

The Early History of Rome

Livy

TRANSLATED BY REV. CANON ROBERTS



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PREFACE

[1.Preface]Whether the task I have undertaken of writing a complete history of the Roman people from the very commencement of its existence will reward me for the labour spent on it, I neither know for certain, nor if I did know would I venture to say. For I see that this is an old-established and a common practice, each fresh writer being invariably persuaded that he will either attain greater certainty in the materials of his narrative, or surpass the rudeness of antiquity in the excellence of his style. However this may be, it will still be a great satisfaction to me to have taken my part, too, in investing, to the utmost of my abilities, the annals of the foremost nation in the world with a deeper interest; and if in such a crowd of writers my own reputation is thrown into the shade, I would console myself with the renown and greatness of those who eclipse my fame. The subject, moreover, is one that demands immense labour. It goes back beyond 700 years and, after starting from small and humble beginnings, has grown to such dimensions that it begins to be overburdened by its greatness. I have very little doubt, too, that for the majority of my readers the earliest times and those immediately succeeding, will possess little attraction; they will hurry on to these modern days in which the might of a long paramount nation is wasting by internal decay. I, on the other hand, shall look for a further reward of my labours in being able to close my eyes to the evils which our generation has witnessed for so many years; so long, at least, as I am devoting all my thoughts to retracing those pristine records, free from all the anxiety which can disturb the historian of his own times even if it cannot warp him from the truth.

The traditions of what happened prior to the foundation of the City or whilst it was being built, are more fitted to adorn the creations of the poet than the authentic records of the historian, and I have no intention of establishing either their truth or their falsehood. This

much licence is conceded to the ancients, that by intermingling human actions with divine they may confer a more august dignity on the origins of states. Now, if any nation ought to be allowed to claim a sacred origin and point back to a divine paternity that nation is Rome. For such is her renown in war that when she chooses to represent Mars as her own and her founder's father, the nations of the world accept the statement with the same equanimity with which they accept her dominion. But whatever opinions may be formed or criticisms passed upon these and similar traditions, I regard them as of small importance. The subjects to which I would ask each of my readers to devote his earnest attention are these - the life and morals of the community; the men and the qualities by which through domestic policy and foreign war dominion was won and extended. Then as the standard of morality gradually lowers, let him follow the decay of the national character, observing how at first it slowly sinks, then slips downward more and more rapidly, and finally begins to plunge into headlong ruin, until he reaches these days, in which we can bear neither our diseases nor their remedies.

There is this exceptionally beneficial and fruitful advantage to be derived from the study of the past, that you see, set in the clear light of historical truth, examples of every possible type. From these you may select for yourself and your country what to imitate, and also what, as being mischievous in its inception and disastrous in its issues, you are to avoid. Unless, however, I am misled by affection for my undertaking, there has never existed any commonwealth greater in power, with a purer morality, or more fertile in good examples; or any state in which avarice and luxury have been so late in making their inroads, or poverty and frugality so highly and continuously honoured, showing so clearly that the less wealth men possessed the less they coveted. In these latter years wealth has brought avarice in its train, and the unlimited command of pleasure has created in men a passion for ruining themselves and everything else through self-indulgence and licentiousness. But criticisms which will be unwelcome, even when perhaps necessary, must not appear in the commencement at all events of this extensive work. We should much prefer to start with favourable omens, and if we could have adopted the poets' custom, it would have been much pleasanter to commence with prayers and supplications to gods and goddesses that

they would grant a favourable and successful issue to the great task before us.

BOOK 1: THE EARLIEST LEGENDS

[1.1]To begin with, it is generally admitted that after the capture of Troy, whilst the rest of the Trojans were massacred, against two of them - Aeneas and Antenor - the Achivi refused to exercise the rights of war, partly owing to old ties of hospitality, and partly because these men had always been in favour of making peace and surrendering Helen. Their subsequent fortunes were different. Antenor sailed into the furthest part of the Adriatic, accompanied by a number of Enetians who had been driven from Paphlagonia by a revolution, and after losing their king Pylaemenes before Troy were looking for a settlement and a leader. The combined force of Enetians and Trojans defeated the Euganei, who dwelt between the sea and the Alps and occupied their land. The place where they disembarked was called Troy, and the name was extended to the surrounding district; the whole nation were called Veneti. Similar misfortunes led to Aeneas becoming a wanderer, but the Fates were preparing a higher destiny for him. He first visited Macedonia, then was carried down to Sicily in quest of a settlement; from Sicily he directed his course to the Laurentian territory. Here, too, the name of Troy is found, and here the Trojans disembarked, and as their almost infinite wanderings had left them nothing but their arms and their ships, they began to plunder the neighbourhood. The Aborigines, who occupied the country, with their king Latinus at their head, came hastily together from the city and the country districts to repel the inroads of the strangers by force of arms.

From this point there is a twofold tradition. According to the one, Latinus was defeated in battle, and made peace with Aeneas, and subsequently a family alliance. According to the other, whilst the two armies were standing ready to engage and waiting for the signal, Latinus advanced in front of his lines and invited the leader of the strangers to a conference. He inquired of him what manner of men they were, whence they came, what had happened to make them leave their homes, what were they in quest of when they landed in Latinus' territory. When he heard that the men were Trojans, that their leader was Aeneas, the son of Anchises and Venus, that their

city had been burnt, and that the homeless exiles were now looking for a place to settle in and build a city, he was so struck with the noble bearing of the men and their leader, and their readiness to accept alike either peace or war, that he gave his right hand as a solemn pledge of friendship for the future. A formal treaty was made between the leaders and mutual greetings exchanged between the armies. Latinus received Aeneas as a guest in his house, and there, in the presence of his tutelary deities, completed the political alliance by a domestic one, and gave his daughter in marriage to Aeneas. This incident confirmed the Trojans in the hope that they had reached the term of their wanderings and won a permanent home. They built a town, which Aeneas called Lavinium after his wife. In a short time a boy was born of the new marriage, to whom his parents gave the name of Ascanius.

[1.2] In a short time the Aborigines and Trojans became involved in war with Turnus, the king of the Rutulians. Lavinia had been betrothed to him before the arrival of Aeneas, and, furious at finding a stranger preferred to him, he declared war against both Latinus and Aeneas. Neither side could congratulate themselves on the result of the battle; the Rutulians were defeated, but the victorious Aborigines and Trojans lost their leader Latinus. Feeling their need of allies, Turnus and the Rutulians had recourse to the celebrated power of the Etruscans and Mezentius, their king, who was reigning at Caere, a wealthy city in those days. From the first he had felt anything but pleasure at the rise of the new city, and now he regarded the growth of the Trojan state as much too rapid to be safe to its neighbours, so he welcomed the proposal to join forces with the Rutulians. To keep the Aborigines from abandoning him in the face of this strong coalition and to secure their being not only under the same laws, but also the same designation, Aeneas called both nations by the common name of Latins. From that time the Aborigines were not behind the Trojans in their loyal devotion to Aeneas. So great was the power of Etruria that the renown of her people had filled not only the inland parts of Italy but also the coastal districts along the whole length of the land from the Alps to the Straits of Messina. Aeneas, however, trusting to the loyalty of the two nations who were day by day growing into one, led his forces into the field, instead of awaiting the enemy behind his walls. The battle resulted in favour of the Latins, but it was the last mortal act of Aeneas. His tomb -

whatever it is lawful and right to call him - is situated on the bank of the Numicius. He is addressed as "Jupiter Indiges."

[1.3]His son, Ascanius, was not old enough to assume the government; but his throne remained secure throughout his minority. During that interval - such was Lavinia's force of character - though a woman was regent, the Latin State, and the kingdom of his father and grandfather, were preserved unimpaired for her son. I will not discuss the question - for who could speak decisively about a matter of such extreme antiquity? - whether the man whom the Julian house claim, under the name of Iulus, as the founder of their name, was this Ascanius or an older one than he, born of Creusa, whilst Ilium was still intact, and after its fall a sharer in his father's fortunes. This Ascanius, where ever born, or of whatever mother - it is generally agreed in any case that he was the son of Aeneas - left to his mother (or his stepmother) the city of Lavinium, which was for those days a prosperous and wealthy city, with a superabundant population, and built a new city at the foot of the Alban hills, which from its position, stretching along the side of the hill, was called "Alba Longa." An interval of thirty years elapsed between the foundation of Lavinium and the colonisation of Alba Longa. Such had been the growth of the Latin power, mainly through the defeat of the Etruscans, that neither at the death of Aeneas, nor during the regency of Lavinia, nor during the immature years of the reign of Ascanius, did either Mezentius and the Etruscans or any other of their neighbours venture to attack them. When terms of peace were being arranged, the river Albula, now called the Tiber, had been fixed as the boundary between the Etruscans and the Latins.

Ascanius was succeeded by his son Silvius, who by some chance had been born in the forest. He became the father of Aeneas Silvius, who in his turn had a son, Latinus Silvius. He planted a number of colonies: the colonists were called Prisci Latini. The cognomen of Silvius was common to all the remaining kings of Alba, each of whom succeeded his father. Their names are Alba, Atys, Capys, Capetus, Tiberinus, who was drowned in crossing the Albula, and his name transferred to the river, which became henceforth the famous Tiber. Then came his son Agrippa, after him his son Romulus Silvius. He was struck by lightning and left the crown to his son Aventinus, whose shrine was on the hill which bears his name and is now a part of the city of Rome. He was succeeded by Proca, who had two sons,

Numitor and Amulius. To Numitor, the elder, he bequeathed the ancient throne of the Silvian house. Violence, however, proved stronger than either the father's will or the respect due to the brother's seniority; for Amulius expelled his brother and seized the crown. Adding crime to crime, he murdered his brother's sons and made the daughter, Rea Silvia, a Vestal virgin; thus, under the presence of honouring her, depriving her of all hopes of issue.

[1.4] But the Fates had, I believe, already decreed the origin of this great city and the foundation of the mightiest empire under heaven. The Vestal was forcibly violated and gave birth to twins. She named Mars as their father, either because she really believed it, or because the fault might appear less heinous if a deity were the cause of it. But neither gods nor men sheltered her or her babes from the king's cruelty; the priestess was thrown into prison, the boys were ordered to be thrown into the river. By a heaven-sent chance it happened that the Tiber was then overflowing its banks, and stretches of standing water prevented any approach to the main channel. Those who were carrying the children expected that this stagnant water would be sufficient to drown them, so under the impression that they were carrying out the king's orders they exposed the boys at the nearest point of the overflow, where the Ficus Ruminalis (said to have been formerly called Romularis) now stands. The locality was then a wild solitude. The tradition goes on to say that after the floating cradle in which the boys had been exposed had been left by the retreating water on dry land, a thirsty she-wolf from the surrounding hills, attracted by the crying of the children, came to them, gave them her teats to suck and was so gentle towards them that the king's flock-master found her licking the boys with her tongue. According to the story, his name was Faustulus. He took the children to his hut and gave them to his wife Larentia to bring up. Some writers think that Larentia, from her unchaste life, had got the nickname of "She-wolf" amongst the shepherds, and that this was the origin of the marvellous story. As soon as the boys, thus born and thus brought up, grew to be young men they did not neglect their pastoral duties, but their special delight was roaming through the woods on hunting expeditions. As their strength and courage were thus developed, they used not only to lie in wait for fierce beasts of prey, but they even attacked brigands when loaded with plunder. They distributed what they took amongst the shepherds, with whom, surrounded by a

continually increasing body of young men, they associated themselves in their serious undertakings and in their sports and pastimes.

[1.5]It is said that the festival of the Lupercalia, which is still observed, was even in those days celebrated on the Palatine hill. This hill was originally called Pallantium from a city of the same name in Arcadia; the name was afterwards changed to Palatium. Evander, an Arcadian, had held that territory many ages before, and had introduced an annual festival from Arcadia in which young men ran about naked for sport and wantonness, in honour of the Lycaean Pan, whom the Romans afterwards called Inuus. The existence of this festival was widely recognised, and it was while the two brothers were engaged in it that the brigands, enraged at losing their plunder, ambushed them. Romulus successfully defended himself, but Remus was taken prisoner and brought before Amulius, his captors impudently accusing him of their own crimes. The principal charge brought against them was that of invading Numitor's lands with a body of young men whom they had got together, and carrying off plunder as though in regular warfare. Remus accordingly was handed over to Numitor for punishment. Faustulus had from the beginning suspected that it was royal offspring that he was bringing up, for he was aware that the boys had been exposed at the king's command and the time at which he had taken them away exactly corresponded with that of their exposure. He had, however, refused to divulge the matter prematurely, until either a fitting opportunity occurred or necessity demanded its disclosure. The necessity came first. Alarmed for the safety of Remus he revealed the state of the case to Romulus. It so happened that Numitor also, who had Remus in his custody, on hearing that he and his brother were twins and comparing their ages and the character and bearing so unlike that of one in a servile condition, began to recall the memory of his grandchildren, and further inquiries brought him to the same conclusion as Faustulus; nothing was wanting to the recognition of Remus. So the king Amulius was being enmeshed on all sides by hostile purposes. Romulus shrunk from a direct attack with his body of shepherds, for he was no match for the king in open fight. They were instructed to approach the palace by different routes and meet there at a given time, whilst from Numitor's house Remus lent his assistance with a

second band he had collected. The attack succeeded and the king was killed.

[1.6]At the beginning of the fray, Numitor gave out that an enemy had entered the City and was attacking the palace, in order to draw off the Alban soldiery to the citadel, to defend it. When he saw the young men coming to congratulate him after the assassination, he at once called a council of his people and explained his brother's infamous conduct towards him, the story of his grandsons, their parentage and bringing up, and how he recognised them. Then he proceeded to inform them of the tyrant's death and his responsibility for it. The young men marched in order through the midst of the assembly and saluted their grandfather as king; their action was approved by the whole population, who with one voice ratified the title and sovereignty of the king. After the government of Alba was thus transferred to Numitor, Romulus and Remus were seized with the desire of building a city in the locality where they had been exposed. There was the superfluous population of the Alban and Latin towns, to these were added the shepherds: it was natural to hope that with all these Alba would be small and Lavinium small in comparison with the city which was to be founded. These pleasant anticipations were disturbed by the ancestral curse - ambition - which led to a deplorable quarrel over what was at first a trivial matter. As they were twins and no claim to precedence could be based on seniority, they decided to consult the tutelary deities of the place by means of augury as to who was to give his name to the new city, and who was to rule it after it had been founded. Romulus accordingly selected the Palatine as his station for observation, Remus the Aventine.

[1.7]Remus is said to have been the first to receive an omen: six vultures appeared to him. The augury had just been announced to Romulus when double the number appeared to him. Each was saluted as king by his own party. The one side based their claim on the priority of the appearance, the other on the number of the birds. Then followed an angry altercation; heated passions led to bloodshed; in the tumult Remus was killed. The more common report is that Remus contemptuously jumped over the newly raised walls and was forthwith killed by the enraged Romulus, who exclaimed, "So shall it be henceforth with every one who leaps over my walls." Romulus thus became sole ruler, and the city was called

after him, its founder. His first work was to fortify the Palatine hill where he had been brought up. The worship of the other deities he conducted according to the use of Alba, but that of Hercules in accordance with the Greek rites as they had been instituted by Evander. It was into this neighbourhood, according to the tradition, that Hercules, after he had killed Geryon, drove his oxen, which were of marvellous beauty. He swam across the Tiber, driving the oxen before him, and wearied with his journey, lay down in a grassy place near the river to rest himself and the oxen, who enjoyed the rich pasture. When sleep had overtaken him, as he was heavy with food and wine, a shepherd living near, called Cacus, presuming on his strength, and captivated by the beauty of the oxen, determined to secure them. If he drove them before him into the cave, their hoof-marks would have led their owner on his search for them in the same direction, so he dragged the finest of them backwards by their tails into his cave. At the first streak of dawn Hercules awoke, and on surveying his herd saw that some were missing. He proceeded towards the nearest cave, to see if any tracks pointed in that direction, but he found that every hoof-mark led from the cave and none towards it. Perplexed and bewildered he began to drive the herd away from so dangerous a neighbourhood. Some of the cattle, missing those which were left behind, lowed as they often do, and an answering low sounded from the cave. Hercules turned in that direction, and as Cacus tried to prevent him by force from entering the cave, he was killed by a blow from Hercules' club, after vainly appealing for help to his comrades.

The king of the country at that time was Evander, a refugee from Peloponnesus, who ruled more by personal ascendancy than by the exercise of power. He was looked up to with reverence for his knowledge of letters - a new and marvellous thing for uncivilised men - but he was still more revered because of his mother Carmenta, who was believed to be a divine being and regarded with wonder by all as an interpreter of Fate, in the days before the arrival of the Sibyl in Italy. This Evander, alarmed by the crowd of excited shepherds standing round a stranger whom they accused of open murder, ascertained from them the nature of his act and what led to it. As he observed the bearing and stature of the man to be more than human in greatness and august dignity, he asked who he was. When he heard his name, and learnt his father and his country he said, "Hercules,

son of Jupiter, hail! My mother, who speaks truth in the name of the gods, has prophesied that thou shalt join the company of the gods, and that here a shrine shall be dedicated to thee, which in ages to come the most powerful nation in all the world shall call their Ara Maxima and honour with shine own special worship." Hercules grasped Evander's right hand and said that he took the omen to himself and would fulfil the prophecy by building and consecrating the altar. Then a heifer of conspicuous beauty was taken from the herd, and the first sacrifice was offered; the Potitii and Pinarii, the two principal families in those parts, were invited by Hercules to assist in the sacrifice and at the feast which followed. It so happened that the Potitii were present at the appointed time, and the entrails were placed before them; the Pinarii arrived after these were consumed and came in for the rest of the banquet. It became a permanent institution from that time, that as long as the family of the Pinarii survived they should not eat of the entrails of the victims. The Potitii, after being instructed by Evander, presided over that rite for many ages, until they handed over this ministerial office to public servants after which the whole race of the Potitii perished. This out of all foreign rites, was the only one which Romulus adopted, as though he felt that an immortality won through courage, of which this was the memorial, would one day be his own reward.

[1.8]After the claims of religion had been duly acknowledged, Romulus called his people to a council. As nothing could unite them into one political body but the observance of common laws and customs, he gave them a body of laws, which he thought would only be respected by a rude and uncivilised race of men if he inspired them with awe by assuming the outward symbols of power. He surrounded himself with greater state, and in particular he called into his service twelve lictors. Some think that he fixed upon this number from the number of the birds who foretold his sovereignty; but I am inclined to agree with those who think that as this class of public officers was borrowed from the same people from whom the "sella curulis" and the "toga praetexta" were adopted - their neighbours, the Etruscans - so the number itself also was taken from them. Its use amongst the Etruscans is traced to the custom of the twelve sovereign cities of Etruria, when jointly electing a king, furnishing him each with one lictor. Meantime the City was growing by the extension of its walls in various directions; an increase due rather to the anticipation of its

future population than to any present overcrowding. His next care was to secure an addition to the population that the size of the City might not be a source of weakness. It had been the ancient policy of the founders of cities to get together a multitude of people of obscure and low origin and then to spread the fiction that they were the children of the soil. In accordance with this policy, Romulus opened a place of refuge on the spot where, as you go down from the Capitol, you find an enclosed space between two groves. A promiscuous crowd of freemen and slaves, eager for change, fled thither from the neighbouring states. This was the first accession of strength to the nascent greatness of the city. When he was satisfied as to its strength, his next step was to provide for that strength being wisely directed. He created a hundred senators; either because that number was adequate, or because there were only a hundred heads of houses who could be created. In any case they were called the "Patres" in virtue of their rank, and their descendants were called "Patricians."

[1.9]The Roman State had now become so strong that it was a match for any of its neighbours in war, but its greatness threatened to last for only one generation, since through the absence of women there was no hope of offspring, and there was no right of intermarriage with their neighbours. Acting on the advice of the senate, Romulus sent envoys amongst the surrounding nations to ask for alliance and the right of intermarriage on behalf of his new community. It was represented that cities, like everything else, sprung from the humblest beginnings, and those who were helped on by their own courage and the favour of heaven won for themselves great power and great renown. As to the origin of Rome, it was well known that whilst it had received divine assistance, courage and self-reliance were not wanting. There should, therefore, be no reluctance for men to mingle their blood with their fellow-men. Nowhere did the envoys meet with a favourable reception. Whilst their proposals were treated with contumely, there was at the same time a general feeling of alarm at the power so rapidly growing in their midst. Usually they were dismissed with the question, "whether they had opened an asylum for women, for nothing short of that would secure for them intermarriage on equal terms." The Roman youth could ill brook such insults, and matters began to look like an appeal to force. To secure a favourable place and time for such an attempt, Romulus, disguising his resentment, made elaborate preparations for the celebration of

games in honour of "Equestrian Neptune," which he called "the Consualia." He ordered public notice of the spectacle to be given amongst the adjoining cities, and his people supported him in making the celebration as magnificent as their knowledge and resources allowed, so that expectations were raised to the highest pitch. There was a great gathering; people were eager to see the new City, all their nearest neighbours - the people of Caenina, Antemnae, and Crustumerium - were there, and the whole Sabine population came, with their wives and families. They were invited to accept hospitality at the different houses, and after examining the situation of the City, its walls and the large number of dwelling-houses it included, they were astonished at the rapidity with which the Roman State had grown.

When the hour for the games had come, and their eyes and minds were alike riveted on the spectacle before them, the preconcerted signal was given and the Roman youth dashed in all directions to carry off the maidens who were present. The larger part were carried off indiscriminately, but some particularly beautiful girls who had been marked out for the leading patricians were carried to their houses by plebeians told off for the task. One, conspicuous amongst them all for grace and beauty, is reported to have been carried off by a group led by a certain Talassius, and to the many inquiries as to whom she was intended for, the invariable answer was given, "For Talassius." Hence the use of this word in the marriage rites. Alarm and consternation broke up the games, and the parents of the maidens fled, distracted with grief, uttering bitter reproaches on the violators of the laws of hospitality and appealing to the god to whose solemn games they had come, only to be the victims of impious perfidy. The abducted maidens were quite as despondent and indignant. Romulus, however, went round in person, and pointed out to them that it was all owing to the pride of their parents in denying right of intermarriage to their neighbours. They would live in honourable wedlock, and share all their property and civil rights, and - dearest of all to human nature - would be the mothers of freemen. He begged them to lay aside their feelings of resentment and give their affections to those whom fortune had made masters of their persons. An injury had often led to reconciliation and love; they would find their husbands all the more affectionate, because each would do his utmost, so far as in him lay, to make up for the loss of

parents and country. These arguments were reinforced by the endearments of their husbands, who excused their conduct by pleading the irresistible force of their passion - a plea effective beyond all others in appealing to a woman's nature.

[1.10]The feelings of the abducted maidens were now pretty completely appeased, but not so those of their parents. They went about in mourning garb, and tried by their tearful complaints to rouse their countrymen to action. Nor did they confine their remonstrances to their own cities; they flocked from all sides to Titus Tatius, the king of the Sabines, and sent formal deputations to him, for his was the most influential name in those parts. The people of Caenina, Crustumerium, and Antemnae were the greatest sufferers; they thought Tatius and his Sabines were too slow in moving, so these three cities prepared to make war conjointly. Such, however, were the impatience and anger of the Caeninensians that even the Crustumini and Antemnates did not display enough energy for them, so the men of Caenina made an attack upon Roman territory on their own account. Whilst they were scattered far and wide, pillaging and destroying, Romulus came upon them with an army, and after a brief encounter taught them that anger is futile without strength. He put them to a hasty flight, and following them up, killed their king and despoiled his body; then after slaying their leader took their city at the first assault. He was no less anxious to display his achievements than he had been great in performing them, so, after leading his victorious army home, he mounted to the Capitol with the spoils of his dead foe borne before him on a frame constructed for the purpose. He hung them there on an oak, which the shepherds looked upon as a sacred tree, and at the same time marked out the site for the temple of Jupiter, and addressing the god by a new title, uttered the following invocation: "Jupiter Feretrius! these arms taken from a king, I, Romulus a king and conqueror, bring to thee, and on this domain, whose bounds I have in will and purpose traced, I dedicate a temple to receive the 'spolia opima' which posterity following my example shall bear hither, taken from the kings and generals of our foes slain in battle." Such was the origin of the first temple dedicated in Rome. And the gods decreed that though its founder did not utter idle words in declaring that posterity would thither bear their spoils, still the splendour of that offering should not be dimmed by the number of those who have rivalled his

achievement. For after so many years have elapsed and so many wars been waged, only twice have the "spolia opima" been offered. So seldom has Fortune granted that glory to men.

[1.11]Whilst the Romans were thus occupied, the army of the Antemnates seized the opportunity of their territory being unoccupied and made a raid into it. Romulus hastily led his legion against this fresh foe and surprised them as they were scattered over the fields. At the very first battle-shout and charge the enemy were routed and their city captured. Whilst Romulus was exulting over this double victory, his wife, Hersilia, moved by the entreaties of the abducted maidens, implored him to pardon their parents and receive them into citizenship, for so the State would increase in unity and strength. He readily granted her request. He then advanced against the Crustumini, who had commenced war, but their eagerness had been damped by the successive defeats of their neighbours, and they offered but slight resistance. Colonies were planted in both places; owing to the fertility of the soil of the Crustumine district, the majority gave their names for that colony. On the other hand there were numerous migrations to Rome mostly of the parents and relatives of the abducted maidens. The last of these wars was commenced by the Sabines and proved the most serious of all, for nothing was done in passion or impatience; they masked their designs till war had actually commenced. Strategy was aided by craft and deceit, as the following incident shows. Spurius Tarpeius was in command of the Roman citadel. Whilst his daughter had gone outside the fortifications to fetch water for some religious ceremonies, Tatius bribed her to admit his troops within the citadel. Once admitted, they crushed her to death beneath their shields, either that the citadel might appear to have been taken by assault, or that her example might be left as a warning that no faith should be kept with traitors. A further story runs that the Sabines were in the habit of wearing heavy gold armlets on their left arms and richly jewelled rings, and that the girl made them promise to give her "what they had on their left arms," accordingly they piled their shields upon her instead of golden gifts. Some say that in bargaining for what they had in their left hands, she expressly asked for their shields, and being suspected of wishing to betray them, fell a victim to her own bargain.

[1.12]However this may be, the Sabines were in possession of the citadel. And they would not come down from it the next day, though

the Roman army was drawn up in battle array over the whole of the ground between the Palatine and the Capitoline hill, until, exasperated at the loss of their citadel and determined to recover it, the Romans mounted to the attack. Advancing before the rest, Mettius Curtius, on the side of the Sabines, and Hostius Hostilius, on the side of the Romans, engaged in single combat. Hostius, fighting on disadvantageous ground, upheld the fortunes of Rome by his intrepid bravery, but at last he fell; the Roman line broke and fled to what was then the gate of the Palatine. Even Romulus was being swept away by the crowd of fugitives, and lifting up his hands to heaven he exclaimed: "Jupiter, it was thy omen that I obeyed when I laid here on the Palatine the earliest foundations of the City. Now the Sabines hold its citadel, having bought it by a bribe, and coming thence have seized the valley and are pressing hitherwards in battle. Do thou, Father of gods and men, drive hence our foes, banish terror from Roman hearts, and stay our shameful flight! Here do I vow a temple to thee, 'Jove the Stayer,' as a memorial for the generations to come that it is through thy present help that the City has been saved." Then, as though he had become aware that his prayer had been heard, he cried, "Back, Romans! Jupiter Optimus Maximus bids you stand and renew the battle." They stopped as though commanded by a voice from heaven - Romulus dashed up to the foremost line, just as Mettius Curtius had run down from the citadel in front of the Sabines and driven the Romans in headlong flight over the whole of the ground now occupied by the Forum. He was now not far from the gate of the Palatine, and was shouting: "We have conquered our faithless hosts, our cowardly foes; now they know that to carry off maidens is a very different thing from fighting with men." In the midst of these vaunts Romulus, with a compact body of valiant troops, charged down on him. Mettius happened to be on horseback, so he was the more easily driven back, the Romans followed in pursuit, and, inspired by the courage of their king, the rest of the Roman army routed the Sabines. Mettius, unable to control his horse, maddened by the noise of his pursuers, plunged into a morass. The danger of their general drew off the attention of the Sabines for a moment from the battle; they called out and made signals to encourage him, so, animated to fresh efforts, he succeeded in extricating himself. Thereupon the Romans and Sabines renewed the fighting in the middle of the valley, but the fortune of Rome was in the ascendant.

[1.13]Then it was that the Sabine women, whose wrongs had led to the war, throwing off all womanish fears in their distress, went boldly into the midst of the flying missiles with dishevelled hair and rent garments. Running across the space between the two armies they tried to stop any further fighting and calm the excited passions by appealing to their fathers in the one army and their husbands in the other not to bring upon themselves a curse by staining their hands with the blood of a father-in-law or a son-in-law, nor upon their posterity the taint of parricide. "If," they cried, "you are weary of these ties of kindred, these marriage-bonds, then turn your anger upon us; it is we who are the cause of the war, it is we who have wounded and slain our husbands and fathers. Better for us to perish rather than live without one or the other of you, as widows or as orphans." The armies and their leaders were alike moved by this appeal. There was a sudden hush and silence. Then the generals advanced to arrange the terms of a treaty. It was not only peace that was made, the two nations were united into one State, the royal power was shared between them, and the seat of government for both nations was Rome. After thus doubling the City, a concession was made to the Sabines in the new appellation of Quirites, from their old capital of Cures. As a memorial of the battle, the place where Curtius got his horse out of the deep marsh on to safer ground was called the Curtian lake. The joyful peace, which put an abrupt close to such a deplorable war, made the Sabine women still dearer to their husbands and fathers, and most of all to Romulus himself. Consequently when he effected the distribution of the people into the thirty curiae, he affixed their names to the curiae. No doubt there were many more than thirty women, and tradition is silent as to whether those whose names were given to the curiae were selected on the ground of age, or on that of personal distinction - either their own or their husbands' - or merely by lot. The enrolment of the three centuries of knights took place at the same time; the Ramnenses were called after Romulus, the Titienses from T. Tatius. The origin of the Luceres and why they were so called is uncertain. Thenceforward the two kings exercised their joint sovereignty with perfect harmony.

[1.14]Some years subsequently the kinsmen of King Tatius ill-treated the ambassadors of the Laurentines. They came to seek redress from him in accordance with international law, but the influence and importunities of his friends had more weight with Tatius than the

remonstrances of the Laurentines. The consequence was that he brought upon himself the punishment due to them, for when he had gone to the annual sacrifice at Lavinium, a tumult arose in which he was killed. Romulus is reported to have been less distressed at this incident than his position demanded, either because of the insincerity inherent in all joint sovereignty, or because he thought he had deserved his fate. He refused, therefore, to go to war, but that the wrong done to the ambassadors and the murder of the king might be expiated, the treaty between Rome and Lavinium was renewed. Whilst in this direction an unhoped-for peace was secured, war broke out in a much nearer quarter, in fact almost at the very gates of Rome. The people of Fidenae considered that a power was growing up too close to them, so to prevent the anticipations of its future greatness from being realised, they took the initiative in making war. Armed bands invaded and devastated the country lying between the City and Fidenae. Thence they turned to the left - the Tiber barred their advance on the right - and plundered and destroyed, to the great alarm of the country people. A sudden rush from the fields into the City was the first intimation of what was happening. A war so close to their gates admitted of no delay, and Romulus hurriedly led out his army and encamped about a mile from Fidenae. Leaving a small detachment to guard the camp, he went forward with his whole force, and whilst one part were ordered to lie in ambush in a place overgrown with dense brushwood, he advanced with the larger part and the whole of the cavalry towards the city, and by riding up to the very gates in a disorderly and provocative manner he succeeded in drawing the enemy. The cavalry continued these tactics and so made the flight which they were to feign seem less suspicious, and when their apparent hesitation whether to fight or to flee was followed by the retirement of the infantry, the enemy suddenly poured out of the crowded gates, broke the Roman line and pressed on in eager pursuit till they were brought to where the ambush was set. Then the Romans suddenly rose and attacked the enemy in flank; their panic was increased by the troops in the camp bearing down upon them. Terrified by the threatened attacks from all sides, the Fidenates turned and fled almost before Romulus and his men could wheel round from their simulated flight. They made for their town much more quickly than they had just before pursued those who pretended to flee, for their flight was a genuine one. They could not, however, shake off the pursuit; the Romans were on their heels, and before the

gates could be closed against them, burst through pell-mell with the enemy.

[1.15]The contagion of the war-spirit in Fidenae infected the Veientes. This people were connected by ties of blood with the Fidenates, who were also Etruscans, and an additional incentive was supplied by the mere proximity of the place, should the arms of Rome be turned against all her neighbours. They made an incursion into Roman territory, rather for the sake of plunder than as an act of regular war. After securing their booty they returned with it to Veii, without entrenching a camp or waiting for the enemy. The Romans, on the other hand, not finding the enemy on their soil, crossed the Tiber, prepared and determined to fight a decisive battle. On hearing that they had formed an entrenched camp and were preparing to advance on their city, the Veientes went out against them, preferring a combat in the open to being shut up and having to fight from houses and walls. Romulus gained the victory, not through stratagem, but through the prowess of his veteran army. He drove the routed enemy up to their walls, but in view of the strong position and fortifications of the city, he abstained from assaulting it. On his march homewards, he devastated their fields more out of revenge than for the sake of plunder. The loss thus sustained, no less than the previous defeat, broke the spirit of the Veientes, and they sent envoys to Rome to sue for peace. On condition of a cession of territory a truce was granted to them for a hundred years. These were the principal events at home and in the field that marked the reign of Romulus. Throughout - whether we consider the courage he showed in recovering his ancestral throne, or the wisdom he displayed in founding the City and adding to its strength through war and peace alike - we find nothing incompatible with the belief in his divine origin and his admission to divine immortality after death. It was, in fact, through the strength given by him that the City was powerful enough to enjoy an assured peace for forty years after his departure. He was, however, more acceptable to the populace than to the patricians, but most of all was he the idol of his soldiers. He kept a bodyguard of three hundred men round him in peace as well as in war. These he called the "Celeres."

[1.16]After these immortal achievements, Romulus held a review of his army at the "Caprae Palus" in the Campus Martius. A violent thunderstorm suddenly arose and enveloped the king in so dense a

cloud that he was quite invisible to the assembly. From that hour Romulus was no longer seen on earth. When the fears of the Roman youth were allayed by the return of bright, calm sunshine after such fearful weather, they saw that the royal seat was vacant. Whilst they fully believed the assertion of the senators, who had been standing close to him, that he had been snatched away to heaven by a whirlwind, still, like men suddenly bereaved, fear and grief kept them for some time speechless. At length, after a few had taken the initiative, the whole of those present hailed Romulus as "a god, the son of a god, the King and Father of the City of Rome." They put up supplications for his grace and favour, and prayed that he would be propitious to his children and save and protect them. I believe, however, that even then there were some who secretly hinted that he had been torn limb from limb by the senators - a tradition to this effect, though certainly a very dim one, has filtered down to us. The other, which I follow, has been the prevailing one, due, no doubt, to the admiration felt for the man and the apprehensions excited by his disappearance. This generally accepted belief was strengthened by one man's clever device. The tradition runs that Proculus Julius, a man whose authority had weight in matters of even the gravest importance, seeing how deeply the community felt the loss of the king, and how incensed they were against the senators, came forward into the assembly and said: "Quirites! at break of dawn, to-day, the Father of this City suddenly descended from heaven and appeared to me. Whilst, thrilled with awe, I stood rapt before him in deepest reverence, praying that I might be pardoned for gazing upon him, 'Go,' said he, 'tell the Romans that it is the will of heaven that my Rome should be the head of all the world. Let them henceforth cultivate the arts of war, and let them know assuredly, and hand down the knowledge to posterity, that no human might can withstand the arms of Rome.'" It is marvellous what credit was given to this man's story, and how the grief of the people and the army was soothed by the belief which had been created in the immortality of Romulus.

[1.17]Disputes arose among the senators about the vacant throne. It was not the jealousies of individual citizens, for no one was sufficiently prominent in so young a State, but the rivalries of parties in the State that led to this strife. The Sabine families were apprehensive of losing their fair share of the sovereign power, because after the death of Tatius they had had no representative on

the throne; they were anxious, therefore, that the king should be elected from amongst them. The ancient Romans could ill brook a foreign king; but amidst this diversity of political views, all were for a monarchy; they had not yet tasted the sweets of liberty. The senators began to grow apprehensive of some aggressive act on the part of the surrounding states, now that the City was without a central authority and the army without a general. They decided that there must be some head of the State, but no one could make up his mind to concede the dignity to any one else. The matter was settled by the hundred senators dividing themselves into ten "decuries," and one was chosen from each decury to exercise the supreme power. Ten therefore were in office, but only one at a time had the insignia of authority and the lictors. Their individual authority was restricted to five days, and they exercised it in rotation. This break in the monarchy lasted for a year, and it was called by the name it still bears - that of "interregnum." After a time the plebs began to murmur that their bondage was multiplied, for they had a hundred masters instead of one. It was evident that they would insist upon a king being elected and elected by them. When the senators became aware of this growing determination, they thought it better to offer spontaneously what they were bound to part with, so, as an act of grace, they committed the supreme power into the hands of the people, but in such a way that they did not give away more privilege than they retained. For they passed a decree that when the people had chosen a king, his election would only be valid after the senate had ratified it by their authority. The same procedure exists to-day in the passing of laws and the election of magistrates, but the power of rejection has been withdrawn; the senate give their ratification before the people proceed to vote, whilst the result of the election is still uncertain. At that time the "interrex" convened the assembly and addressed it as follows: "Quirites! elect your king, and may heaven's blessing rest on your labours! If you elect one who shall be counted worthy to follow Romulus, the senate will ratify your choice." So gratified were the people at the proposal that, not to appear behindhand in generosity, they passed a resolution that it should be left to the senate to decree who should reign in Rome.

[1.18] There was living, in those days, at Cures, a Sabine city, a man of renowned justice and piety - Numa Pompilius. He was as conversant as any one in that age could be with all divine and human

law. His master is given as Pythagoras of Samos, as tradition speaks of no other. But this is erroneous, for it is generally agreed that it was more than a century later, in the reign of Servius Tullius, that Pythagoras gathered round him crowds of eager students, in the most distant part of Italy, in the neighbourhood of Metapontum, Heraclea, and Crotona. Now, even if he had been contemporary with Numa, how could his reputation have reached the Sabines? From what places, and in what common language could he have induced any one to become his disciple? Who could have guaranteed the safety of a solitary individual travelling through so many nations differing in speech and character? I believe rather that Numa's virtues were the result of his native temperament and self-training, moulded not so much by foreign influences as by the rigorous and austere discipline of the ancient Sabines, which was the purest type of any that existed in the old days. When Numa's name was mentioned, though the Roman senators saw that the balance of power would be on the side of the Sabines if the king were chosen from amongst them, still no one ventured to propose a partisan of his own, or any senator, or citizen in preference to him. Accordingly they all to a man decreed that the crown should be offered to Numa Pompilius. He was invited to Rome, and following the precedent set by Romulus, when he obtained his crown through the augury which sanctioned the founding of the City, Numa ordered that in his case also the gods should be consulted. He was solemnly conducted by an augur, who was afterwards honoured by being made a State functionary for life, to the Citadel, and took his seat on a stone facing south. The augur seated himself on his left hand, with his head covered, and holding in his right hand a curved staff without any knots, which they called a "lituus." After surveying the prospect over the City and surrounding country, he offered prayers and marked out the heavenly regions by an imaginary line from east to west; the southern he defined as "the right hand," the northern as "the left hand." He then fixed upon an object, as far as he could see, as a corresponding mark, and then transferring the lituus to his left hand, he laid his right upon Numa's head and offered this prayer: "Father Jupiter, if it be heaven's will that this Numa Pompilius, whose head I hold, should be king of Rome, do thou signify it to us by sure signs within those boundaries which I have traced." Then he described in the usual formula the augury which he desired should be sent. They were sent, and Numa being by them manifested to be king, came down from the "templum."

[1.19] Having in this way obtained the crown, Numa prepared to found, as it were, anew, by laws and customs, that City which had so recently been founded by force of arms. He saw that this was impossible whilst a state of war lasted, for war brutalised men. Thinking that the ferocity of his subjects might be mitigated by the disuse of arms, he built the temple of Janus at the foot of the Aventine as an index of peace and war, to signify when it was open that the State was under arms, and when it was shut that all the surrounding nations were at peace. Twice since Numa's reign has it been shut, once after the first Punic war in the consulship of T. Manlius, the second time, which heaven has allowed our generation to witness, after the battle of Actium, when peace on land and sea was secured by the emperor Caesar Augustus. After forming treaties of alliance with all his neighbours and closing the temple of Janus, Numa turned his attention to domestic matters. The removal of all danger from without would induce his subjects to luxuriate in idleness, as they would be no longer restrained by the fear of an enemy or by military discipline. To prevent this, he strove to inculcate in their minds the fear of the gods, regarding this as the most powerful influence which could act upon an uncivilised and, in those ages, a barbarous people. But, as this would fail to make a deep impression without some claim to supernatural wisdom, he pretended that he had nocturnal interviews with the nymph Egeria: that it was on her advice that he was instituting the ritual most acceptable to the gods and appointing for each deity his own special priests. First of all he divided the year into twelve months, corresponding to the moon's revolutions. But as the moon does not complete thirty days in each month, and so there are fewer days in the lunar year than in that measured by the course of the sun, he interpolated intercalary months and so arranged them that every twentieth year the days should coincide with the same position of the sun as when they started, the whole twenty years being thus complete. He also established a distinction between the days on which legal business could be transacted and those on which it could not, because it would sometimes be advisable that there should be no business transacted with the people.

[1.20] Next he turned his attention to the appointment of priests. He himself, however, conducted a great many religious services, especially those which belong to the Flamen of Jupiter. But he

thought that in a warlike state there would be more kings of the type of Romulus than of Numa who would take the field in person. To guard, therefore, against the sacrificial rites which the king performed being interrupted, he appointed a Flamen as perpetual priest to Jupiter, and ordered that he should wear a distinctive dress and sit in the royal curule chair. He appointed two additional Flamens, one for Mars, the other for Quirinus, and also chose virgins as priestesses to Vesta. This order of priestesses came into existence originally in Alba and was connected with the race of the founder. He assigned them a public stipend that they might give their whole time to the temple, and made their persons sacred and inviolable by a vow of chastity and other religious sanctions. Similarly he chose twelve "Salii" for Mars Gradivus, and assigned to them the distinctive dress of an embroidered tunic and over it a brazen cuirass. They were instructed to march in solemn procession through the City, carrying the twelve shields called the "Ancilia," and singing hymns accompanied by a solemn dance in triple time. The next office to be filled was that of the Pontifex Maximus. Numa appointed the son of Marcus, one of the senators - Numa Marcius - and all the regulations bearing on religion, written out and sealed, were placed in his charge. Here was laid down with what victims, on what days, and at what temples the various sacrifices were to be offered, and from what sources the expenses connected with them were to be defrayed. He placed all other sacred functions, both public and private, under the supervision of the Pontifex, in order that there might be an authority for the people to consult, and so all trouble and confusion arising through foreign rites being adopted and their ancestral ones neglected might be avoided. Nor were his functions confined to directing the worship of the celestial gods; he was to instruct the people how to conduct funerals and appease the spirits of the departed, and what prodigies sent by lightning or in any other way were to be attended to and expiated. To elicit these signs of the divine will, he dedicated an altar to Jupiter Elicius on the Aventine, and consulted the god through auguries, as to which prodigies were to receive attention.

[1.21]The deliberations and arrangements which these matters involved diverted the people from all thoughts of war and provided them with ample occupation. The watchful care of the gods, manifesting itself in the providential guidance of human affairs, had

kindled in all hearts such a feeling of piety that the sacredness of promises and the sanctity of oaths were a controlling force for the community scarcely less effective than the fear inspired by laws and penalties. And whilst his subjects were moulding their characters upon the unique example of their king, the neighbouring nations, who had hitherto believed that it was a fortified camp and not a city that was placed amongst them to vex the peace of all, were now induced to respect them so highly that they thought it sinful to injure a State so entirely devoted to the service of the gods. There was a grove through the midst of which a perennial stream flowed, issuing from a dark cave. Here Numa frequently retired unattended as if to meet the goddess, and he consecrated the grove to the Camaenae, because it was there that their meetings with his wife Egeria took place. He also instituted a yearly sacrifice to the goddess Fides and ordered that the Flamens should ride to her temple in a hooded chariot, and should perform the service with their hands covered as far as the fingers, to signify that Faith must be sheltered and that her seat is holy even when it is in men's right hands. There were many other sacrifices appointed by him and places dedicated for their performance which the pontiffs call the Argei. The greatest of all his works was the preservation of peace and the security of his realm throughout the whole of his reign. Thus by two successive kings the greatness of the State was advanced; by each in a different way, by the one through war, by the other through peace. Romulus reigned thirty-seven years, Numa forty-three. The State was strong and disciplined by the lessons of war and the arts of peace.

[1.22]The death of Numa was followed by a second interregnum. Then Tullus Hostilius, a grandson of the Hostilius who had fought so brilliantly at the foot of the Citadel against the Sabines, was chosen king by the people, and their choice was confirmed by the senate. He was not only unlike the last king, but he was a man of more warlike spirit even than Romulus, and his ambition was kindled by his own youthful energy and by the glorious achievements of his grandfather. Convinced that the vigour of the State was becoming enfeebled through inaction, he looked all round for a pretext for getting up a war. It so happened that Roman peasants were at that time in the habit of carrying off plunder from the Alban territory, and the Albans from Roman territory. Gaius Cluilius was at the time ruling in Alba. Both parties sent envoys almost simultaneously to seek redress.

Tullus had told his ambassadors to lose no time in carrying out their instructions; he was fully aware that the Albans would refuse satisfaction, and so a just ground would exist for proclaiming war. The Alban envoys proceeded in a more leisurely fashion. Tullus received them with all courtesy and entertained them sumptuously. Meantime the Romans had preferred their demands, and on the Alban governor's refusal had declared that war would begin in thirty days. When this was reported to Tullus, he granted the Albans an audience in which they were to state the object of their coming. Ignorant of all that had happened, they wasted time in explaining that it was with great reluctance that they would say anything which might displease Tullus, but they were bound by their instructions; they were come to demand redress, and if that were refused they were ordered to declare war. "Tell your king," replied Tullus, "that the king of Rome calls the gods to witness that whichever nation is the first to dismiss with ignominy the envoys who came to seek redress, upon that nation they will visit all the sufferings of this war."

[1.23]The Albans reported this at home. Both sides made extraordinary preparations for a war, which closely resembled a civil war between parents and children, for both were of Trojan descent, since Lavinium was an offshoot of Troy, and Alba of Lavinium, and the Romans were sprung from the stock of the kings of Alba. The outcome of the war, however, made the conflict less deplorable, as there was no regular engagement, and though one of the two cities was destroyed, the two nations were blended into one. The Albans were the first to move, and invaded the Roman territory with an immense army. They fixed their camp only five miles from the City and surrounded it with a moat; this was called for several centuries the "Cluilian Dyke" from the name of the Alban general, till through lapse of time the name and the thing itself disappeared. While they were encamped Cluilus, the Alban king, died, and the Albans made Mettius Fufetius dictator. The king's death made Tullus more sanguine than ever of success. He gave out that the wrath of heaven which had fallen first of all on the head of the nation would visit the whole race of Alba with condign punishment for this unholy war. Passing the enemy's camp by a night march, he advanced upon Alban territory. This drew Mettius from his entrenchments. He marched as close to his enemy as he could, and then sent on an officer to inform Tullus that before engaging it was necessary that they should have a

conference. If he granted one, then he was satisfied that the matters he would lay before him were such as concerned Rome no less than Alba. Tullus did not reject the proposal, but in case the conference should prove illusory, he led out his men in order of battle. The Albans did the same. After they had halted, confronting each other, the two commanders, with a small escort of superior officers, advanced between the lines. The Alban general, addressing Tullus, said: "I think I have heard our king Cluilius say that acts of robbery and the non-restitution of plundered property, in violation of the existing treaty, were the cause of this war, and I have no doubt that you, Tullus, allege the same pretext. But if we are to say what is true, rather than what is plausible, we must admit that it is the lust of empire which has made two kindred and neighbouring peoples take up arms. Whether rightly or wrongly I do not judge; let him who began the war settle that point; I am simply placed in command by the Albans to conduct the war. But I want to give you a warning, Tullus. You know, you especially who are nearer to them, the greatness of the Etruscan State, which hems us both in; their immense strength by land, still more by sea. Now remember, when once you have given the signal to engage, our two armies will fight under their eyes, so that when we are wearied and exhausted they may attack us both, victor and vanquished alike. If then, not content with the secure freedom we now enjoy, we are determined to enter into a game of chance, where the stakes are either supremacy or slavery, let us, in heaven's name, choose some method by which, without great suffering or bloodshed on either side, it can be decided which nation is to be master of the other." Although, from natural temperament, and the certainty he felt of victory, Tullus was eager to fight, he did not disapprove of the proposal. After much consideration on both sides a method was adopted, for which Fortune herself provided the necessary means.

[1.24] There happened to be in each of the armies a triplet of brothers, fairly matched in years and strength. It is generally agreed that they were called Horatii and Curiatii. Few incidents in antiquity have been more widely celebrated, yet in spite of its celebrity there is a discrepancy in the accounts as to which nation each belonged. There are authorities on both sides, but I find that the majority give the name of Horatii to the Romans, and my sympathies lead me to follow them. The kings suggested to them that they should each fight on

behalf of their country, and where victory rested, there should be the sovereignty. They raised no objection; so the time and place were fixed. But before they engaged a treaty was concluded between the Romans and the Albans, providing that the nation whose representatives proved victorious should receive the peaceable submission of the other. This is the earliest treaty recorded, and as all treaties, however different the conditions they contain, are concluded with the same forms, I will describe the forms with which this one was concluded as handed down by tradition. The Fetial put the formal question to Tullus: "Do you, King, order me to make a treaty with the Pater Patratus of the Alban nation?" On the king replying in the affirmative, the Fetial said: "I demand of thee, King, some tufts of grass." The king replied: "Take those that are pure." The Fetial brought pure grass from the Citadel. Then he asked the king: "Do you constitute me the plenipotentiary of the People of Rome, the Quirites, sanctioning also my vessels and comrades?" To which the king replied: "So far as may be without hurt to myself and the People of Rome, the Quirites, I do." The Fetial was M. Valerius. He made Spurius Furius the Pater Patratus by touching his head and hair with the grass. Then the Pater Patratus, who is constituted for the purpose of giving the treaty the religious sanction of an oath, did so by a long formula in verse, which it is not worth while to quote. After reciting the conditions he said: "Hear, O Jupiter, hear! thou Pater Patratus of the people of Alba! Hear ye, too, people of Alba! As these conditions have been publicly rehearsed from first to last, from these tablets, in perfect good faith, and inasmuch as they have here and now been most clearly understood, so these conditions the People of Rome will not be the first to go back from. If they shall, in their national council, with false and malicious intent be the first to go back, then do thou, Jupiter, on that day, so smite the People of Rome, even as I here and now shall smite this swine, and smite them so much the more heavily, as thou art greater in power and might." With these words he struck the swine with a flint. In similar wise the Albans recited their oath and formularies through their own dictator and their priests.

[1.25]On the conclusion of the treaty the six combatants armed themselves. They were greeted with shouts of encouragement from their comrades, who reminded them that their fathers' gods, their fatherland, their fathers, every fellow-citizen, every fellow-soldier, were now watching their weapons and the hands that wielded them.

Eager for the contest and inspired by the voices round them, they advanced into the open space between the opposing lines. The two armies were sitting in front of their respective camps, relieved from personal danger but not from anxiety, since upon the fortunes and courage of this little group hung the issue of dominion. Watchful and nervous, they gaze with feverish intensity on a spectacle by no means entertaining. The signal was given, and with uplifted swords the six youths charged like a battle-line with the courage of a mighty host. Not one of them thought of his own danger; their sole thought was for their country, whether it would be supreme or subject, their one anxiety that they were deciding its future fortunes. When, at the first encounter, the flashing swords rang on their opponents' shields, a deep shudder ran through the spectators; then a breathless silence followed, as neither side seemed to be gaining any advantage. Soon, however, they saw something more than the swift movements of limbs and the rapid play of sword and shield: blood became visible flowing from open wounds. Two of the Romans fell one on the other, breathing out their life, whilst all the three Albans were wounded. The fall of the Romans was welcomed with a burst of exultation from the Alban army; whilst the Roman legions, who had lost all hope, but not all anxiety, trembled for their solitary champion surrounded by the three Curiatii. It chanced that he was untouched, and though not a match for the three together, he was confident of victory against each separately. So, that he might encounter each singly, he took to flight, assuming that they would follow as well as their wounds would allow. He had run some distance from the spot where the combat began, when, on looking back, he saw them following at long intervals from each other, the foremost not far from him. He turned and made a desperate attack upon him, and whilst the Alban army were shouting to the other Curiatii to come to their brother's assistance, Horatius had already slain his foe and, flushed with victory, was awaiting the second encounter. Then the Romans cheered their champion with a shout such as men raise when hope succeeds to despair, and he hastened to bring the fight to a close. Before the third, who was not far away, could come up, he despatched the second Curiatius. The survivors were now equal in point of numbers, but far from equal in either confidence or strength. The one, unscathed after his double victory, was eager for the third contest; the other, dragging himself wearily along, exhausted by his wounds and by his running, vanquished already by the previous

slaughter of his brothers, was an easy conquest to his victorious foe. There was, in fact, no fighting. The Roman cried exultingly: "Two have I sacrificed to appease my brothers' shades; the third I will offer for the issue of this fight, that the Roman may rule the Alban." He thrust his sword downward into the neck of his opponent, who could no longer lift his shield, and then despoiled him as he lay. Horatius was welcomed by the Romans with shouts of triumph, all the more joyous for the fears they had felt. Both sides turned their attention to burying their dead champions, but with very different feelings, the one rejoicing in wider dominion, the other deprived of their liberty and under alien rule. The tombs stand on the spots where each fell; those of the Romans close together, in the direction of Alba; the three Alban tombs, at intervals, in the direction of Rome.

[1.26] Before the armies separated, Mettius inquired what commands he was to receive in accordance with the terms of the treaty. Tullus ordered him to keep the Alban soldiery under arms, as he would require their services if there were war with the Veientes. Both armies then withdrew to their homes. Horatius was marching at the head of the Roman army, carrying in front of him his triple spoils. His sister, who had been betrothed to one of the Curiatii, met him outside the Capene gate. She recognised on her brother's shoulders the cloak of her betrothed, which she had made with her own hands; and bursting into tears she tore her hair and called her dead lover by name. The triumphant soldier was so enraged by his sister's outburst of grief in the midst of his own triumph and the public rejoicing that he drew his sword and stabbed the girl. "Go," he cried, in bitter reproach, "go to your betrothed with your ill-timed love, forgetful as you are of your dead brothers, of the one who still lives, and of your country! So perish every Roman woman who mourns for an enemy!" The deed horrified patricians and plebeians alike; but his recent services were a set-off to it. He was brought before the king for trial. To avoid responsibility for passing a harsh sentence, which would be repugnant to the populace, and then carrying it into execution, the king summoned an assembly of the people, and said: "I appoint two duumvirs to judge the treason of Horatius according to law." The dreadful language of the law was: "The duumvirs shall judge cases of treason; if the accused appeal from the duumvirs, the appeal shall be heard; if their sentence be confirmed, the lictor shall hang him by a rope on the fatal tree, and shall scourge him either within or without

the pomoerium." The duumvirs appointed under this law did not think that by its provisions they had the power to acquit even an innocent person. Accordingly they condemned him; then one of them said: "Publius Horatius, I pronounce you guilty of treason. Lictor, bind his hands." The lictor had approached and was fastening the cord, when Horatius, at the suggestion of Tullus, who placed a merciful interpretation on the law, said, "I appeal." The appeal was accordingly brought before the people.

Their decision was mainly influenced by Publius Horatius, the father, who declared that his daughter had been justly slain; had it not been so, he would have exerted his authority as a father in punishing his son. Then he implored them not to bereave of all his children the man whom they had so lately seen surrounded with such noble offspring. Whilst saying this he embraced his son, and then, pointing to the spoils of the Curiatii suspended on the spot now called the Pila Horatia, he said: "Can you bear, Quirites, to see bound, scourged, and tortured beneath the gallows the man whom you saw, lately, coming in triumph adorned with his foemen's spoils? Why, the Albans themselves could not bear the sight of such a hideous spectacle. Go, lictor, bind those hands which when armed but a little time ago won dominion for the Roman people. Go, cover the head of the liberator of this City! Hang him on the fatal tree, scourge him within the pomoerium, if only it be amongst the trophies of his foes, or without, if only it be amongst the tombs of the Curiatii! To what place can you take this youth where the monuments of his splendid exploits will not vindicate him from such a shameful punishment?" The father's tears and the young soldier's courage ready to meet every peril were too much for the people. They acquitted him because they admired his bravery rather than because they regarded his cause as a just one. But since a murder in broad daylight demanded some expiation, the father was commanded to make an atonement for his son at the cost of the State. After offering certain expiatory sacrifices he erected a beam across the street and made the young man pass under it, as under a yoke, with his head covered. This beam exists to-day, having always been kept in repair by the State: it is called "The Sister's Beam." A tomb of hewn stone was constructed for Horatia on the spot where she was murdered.

[1.27]But the peace with Alba was not a lasting one. The Alban dictator had incurred general odium through having entrusted the

fortunes of the State to three soldiers, and this had an evil effect upon his weak character. As straightforward counsels had turned out so unfortunate, he tried to recover the popular favour by resorting to crooked ones, and as he had previously made peace his aim in war, so now he sought the occasion of war in peace. He recognised that his State possessed more courage than strength, he therefore incited other nations to declare war openly and formally, whilst he kept for his own people an opening for treachery under the mask of an alliance. The people of Fidenae, where a Roman colony existed, were induced to go to war by a compact on the part of the Albans to desert to them; the Veientes were taken into the plot. When Fidenae had broken out into open revolt, Tullus summoned Mettius and his army from Alba and marched against the enemy. After crossing the Anio he encamped at the junction of that river with the Tiber. The army of the Veientes had crossed the Tiber at a spot between his camp and Fidenae. In the battle they formed the right wing near the river, the Fidenates were on the left nearer the mountains. Tullus formed his troops in front of the Veientes, and stationed the Albans against the legion of the Fidenates. The Alban general showed as little courage as fidelity; afraid either to keep his ground or to openly desert, he drew away gradually towards the mountains. When he thought he had retired far enough, he halted his entire army, and still irresolute, he began to form his men for attack, by way of gaining time, intending to throw his strength on the winning side. Those Romans who had been stationed next to the Albans were astounded to find that their allies had withdrawn and left their flank exposed, when a horseman rode up at full speed and reported to the king that the Albans were leaving the field. In this critical situation, Tullus vowed to found a college of twelve Salii and to build temples to Pallor and Pavor. Then, reprimanding the horseman loud enough for the enemy to hear, he ordered him to rejoin the fighting line, adding that there was no occasion for alarm, as it was by his orders that the Alban army was making a circuit that they might fall on the unprotected rear of the Fidenates. At the same time he ordered the cavalry to raise their spears; this action hid the retreating Alban army from a large part of the Roman infantry. Those who had seen them, thinking that what the king had said was actually the case, fought all the more keenly. It was now the enemies' turn to be alarmed; they had heard clearly the words of the king, and, moreover, a large part of the Fidenates who had formerly joined the Roman colonists understood

Latin. Fearing to be cut off from their town by a sudden charge of the Albans from the hills, they retreated. Tullus pressed the attack, and after routing the Fidenates, returned to attack the Veientes with greater confidence, as they were already demoralised by the panic of their allies. They did not wait for the charge, but their flight was checked by the river in their rear. When they reached it, some, flinging away their arms, rushed blindly into the water, others, hesitating whether to fight or fly, were overtaken and slain. Never had the Romans fought in a bloodier battle.

[1.28] Then the Alban army, who had been watching the fight, marched down into the plain. Mettius congratulated Tullus on his victory, Tullus replied in a friendly tone, and as a mark of goodwill, ordered the Albans to form their camp contiguous to that of the Romans, and made preparations for a "lustral sacrifice" on the morrow. As soon as it was light, and all the preparations were made, he gave the customary order for both armies to muster on parade. The heralds began at the furthest part of the camp, where the Albans were, and summoned them first of all; they, attracted by the novelty of hearing the Roman addressing his troops, took up their position close round him. Secret instructions had been given for the Roman legion to stand fully armed behind them, and the centurions were in readiness to execute instantly the orders they received. Tullus commenced as follows: "Romans! if in any war that you have ever waged there has been reason for you to thank, first, the immortal gods, and then your own personal courage, such was certainly the case in yesterday's battle. For whilst you had to contend with an open enemy, you had a still more serious and dangerous conflict to maintain against the treachery and perfidy of your allies. For I must undeceive you - it was by no command of mine that the Albans withdrew to the mountains. What you heard was not a real order but a pretended one, which I used as an artifice to prevent your knowing that you were deserted, and so losing heart for the battle, and also to fill the enemy with alarm and a desire to flee by making them think that they were being surrounded. The guilt which I am denouncing does not involve all the Albans; they only followed their general, just as you would have done had I wanted to lead my army away from the field. It is Mettius who is the leader of this march, Mettius who engineered this war, Mettius who broke the treaty between Rome and Alba. Others may venture on similar practices, if I do not make this

man a signal lesson to all the world." The armed centurions closed round Mettius, and the king proceeded: "I shall take a course which will bring good fortune and happiness to the Roman people and myself, and to you, Albans; it is my intention to transfer the entire Alban population to Rome, to give the rights of citizenship to the plebeians, and enrol the nobles in the senate, and to make one City, one State. As formerly the Alban State was broken up into two nations, so now let it once more become one." The Alban soldiery listened to these words with conflicting feelings, but unarmed as they were and hemmed in by armed men, a common fear kept them silent. Then Tullus said: "Mettius Fufetius! if you could have learnt to keep your word and respect treaties, I would have given you that instruction in your lifetime, but now, since your character is past cure, do at least teach mankind by your punishment to hold those things as sacred which have been outraged by you. As yesterday your interest was divided between the Fidenates and the Romans, so now you shall give up your body to be divided and dismembered." Thereupon two four-horse chariots were brought up, and Mettius was bound at full length to each, the horses were driven in opposite directions, carrying off parts of the body in each chariot, where the limbs had been secured by the cords. All present averted their eyes from the horrible spectacle. This is the first and last instance amongst the Romans of a punishment so regardless of humanity. Amongst other things which are the glory of Rome is this, that no nation has ever been contented with milder punishments.

[1.29]Meanwhile the cavalry had been sent on in advance to conduct the population to Rome; they were followed by the legions, who were marched thither to destroy the city. When they entered the gates there was not that noise and panic which are usually found in captured cities, where, after the gates have been shattered or the walls levelled by the battering-ram or the citadel stormed, the shouts of the enemy and the rushing of the soldiers through the streets throw everything into universal confusion with fire and sword. Here, on the contrary, gloomy silence and a grief beyond words so petrified the minds of all, that, forgetting in their terror what to leave behind, what to take with them, incapable of thinking for themselves and asking one another's advice, at one moment they would stand on their thresholds, at another wander aimlessly through their houses, which they were seeing then for the last time. But now they were roused by

the shouts of the cavalry ordering their instant departure, now by the crash of the houses undergoing demolition, heard in the furthest corners of the city, and the dust, rising in different places, which covered everything like a cloud. Seizing hastily what they could carry, they went out of the city, and left behind their hearths and household gods and the homes in which they had been born and brought up. Soon an unbroken line of emigrants filled the streets, and as they recognised one another the sense of their common misery led to fresh outbursts of tears. Cries of grief, especially from the women, began to make themselves heard, as they walked past the venerable temples and saw them occupied by troops, and felt that they were leaving their gods as prisoners in an enemy's hands. When the Albans had left their city the Romans levelled to the ground all the public and private edifices in every direction, and a single hour gave over to destruction and ruin the work of those four centuries during which Alba had stood. The temples of the gods, however, were spared, in accordance with the king's proclamation.

[1.30]The fall of Alba led to the growth of Rome. The number of the citizens was doubled, the Caelian hill was included in the city, and that it might become more populated, Tullus chose it for the site of his palace, and for the future lived there. He nominated Alban nobles to the senate that this order of the State might also be augmented. Amongst them were the Tullii, the Servilii, the Quinctii, the Geganii, the Curiatii, and the Cloelii. To provide a consecrated building for the increased number of senators he built the senate-house, which down to the time of our fathers went by the name of the Curia Hostilia. To secure an accession of military strength of all ranks from the new population, he formed ten troops of knights from the Albans; from the same source he brought up the old legions to their full strength and enrolled new ones. Impelled by the confidence in his strength which these measures inspired, Tullus proclaimed war against the Sabines, a nation at that time second only to the Etruscans in numbers and military strength. Each side had inflicted injuries on the other and refused all redress. Tullus complained that Roman traders had been arrested in open market at the shrine of Feronia; the Sabines' grievance was that some of their people had previously sought refuge in the Asylum and been kept in Rome. These were the ostensible grounds of the war. The Sabines were far from forgetting that a portion of their strength had been transferred to Rome by

Tatius, and that the Roman State had lately been aggrandised by the inclusion of the population of Alba; they, therefore, on their side began to look round for outside help. Their nearest neighbour was Etruria, and, of the Etruscans, the nearest to them were the Veientes. Their past defeats were still rankling in their memories, and the Sabines, urging them to revolt, attracted many volunteers; others of the poorest and homeless classes were paid to join them. No assistance was given by the State. With the Veientes - it is not so surprising that the other cities rendered no assistance - the truce with Rome was still held to be binding. Whilst preparations were being made on both sides with the utmost energy, and it seemed as though success depended upon which side was the first to take the offensive, Tullus opened the campaign by invading the Sabine territory. A severe action was fought at the Silva Malitiosa. Whilst the Romans were strong in their infantry, their main strength was in their lately increased cavalry force. A sudden charge of horse threw the Sabine ranks into confusion, they could neither offer a steady resistance nor effect their flight without great slaughter.

[1.31] This victory threw great lustre upon the reign of Tullus, and upon the whole State, and added considerably to its strength. At this time it was reported to the king and the senate that there had been a shower of stones on the Alban Mount. As the thing seemed hardly credible, men were sent to inspect the prodigy, and whilst they were watching, a heavy shower of stones fell from the sky, just like hailstones heaped together by the wind. They fancied, too, that they heard a very loud voice from the grove on the summit, bidding the Albans celebrate their sacred rites after the manner of their fathers. These solemnities they had consigned to oblivion, as though they had abandoned their gods when they abandoned their country and had either adopted Roman rites, or, as sometimes happens, embittered against Fortune, had given up the service of the gods. In consequence of this prodigy, the Romans, too, kept up a public religious observance for nine days, either - as tradition asserts - owing to the voice from the Alban Mount, or because of the warning of the soothsayers. In either case, however, it became permanently established whenever the same prodigy was reported; a nine days' solemnity was observed. Not long after a pestilence caused great distress, and made men indisposed for the hardships of military service. The warlike king, however, allowed no respite from arms; he

thought, too, that it was more healthy for the soldiery in the field than at home. At last he himself was seized with a lingering illness, and that fierce and restless spirit became so broken through bodily weakness, that he who had once thought nothing less fitting for a king than devotion to sacred things, now suddenly became a prey to every sort of religious terror, and filled the City with religious observances. There was a general desire to recall the condition of things which existed under Numa, for men felt that the only help that was left against sickness was to obtain the forgiveness of the gods and be at peace with heaven. Tradition records that the king, whilst examining the commentaries of Numa, found there a description of certain secret sacrificial rites paid to Jupiter Elicius: he withdrew into privacy whilst occupied with these rites, but their performance was marred by omissions or mistakes. Not only was no sign from heaven vouchsafed to him, but the anger of Jupiter was roused by the false worship rendered to him, and he burnt up the king and his house by a stroke of lightning. Tullus had achieved great renown in war, and reigned for two-and-thirty years.

[1.32] On the death of Tullus, the government, in accordance with the original constitution, again devolved on the senate. They appointed an interrex to conduct the election. The people chose Ancus Martius as king, the senate confirmed the choice. His mother was Numa's daughter. At the outset of his reign - remembering what made his grandfather glorious, and recognising that the late reign, so splendid in all other respects, had, on one side, been most unfortunate through the neglect of religion or the improper performance of its rites - he determined to go back to the earliest source and conduct the state offices of religion as they had been organised by Numa. He gave the Pontifex instructions to copy them out from the king's commentaries and set them forth in some public place. The neighbouring states and his own people, who were yearning for peace, were led to hope that the king would follow his grandfather in disposition and policy. In this state of affairs, the Latins, with whom a treaty had been made in the reign of Tullus, recovered their confidence, and made an incursion into Roman territory. On the Romans seeking redress, they gave a haughty refusal, thinking that the king of Rome was going to pass his reign amongst chapels and altars. In the temperament of Ancus there was a touch of Romulus as well as Numa. He realised that the great necessity of Numa's reign was peace, especially

amongst a young and aggressive nation, but he saw, too, that it would be difficult for him to preserve the peace which had fallen to his lot unimpaired. His patience was being put to the proof, and not only put to the proof but despised; the times demanded a Tullus rather than a Numa. Numa had instituted religious observances for times of peace, he would hand down the ceremonies appropriate to a state of war. In order, therefore, that wars might be not only conducted but also proclaimed with some formality, he wrote down the law, as taken from the ancient nation of the Aequicoli, under which the Fetials act down to this day when seeking redress for injuries. The procedure is as follows: -

The ambassador binds his head in a woollen fillet. When he has reached the frontiers of the nation from whom satisfaction is demanded, he says, "Hear, O Jupiter! Hear, ye confines" - naming the particular nation whose they are - "Hear, O Justice! I am the public herald of the Roman People. Rightly and duly authorised do I come; let confidence be placed in my words." Then he recites the terms of the demands, and calls Jupiter to witness: "If I am demanding the surrender of those men or those goods, contrary to justice and religion, suffer me nevermore to enjoy my native land." He repeats these words as he crosses the frontier, he repeats them to whoever happens to be the first person he meets, he repeats them as he enters the gates and again on entering the forum, with some slight changes in the wording of the formula. If what he demands are not surrendered at the expiration of thirty-three days - for that is the fixed period of grace - he declares war in the following terms: "Hear, O Jupiter, and thou Janus Quirinus, and all ye heavenly gods, and ye, gods of earth and of the lower world, hear me! I call you to witness that this people" - mentioning it by name - "is unjust and does not fulfil its sacred obligations. But about these matters we must consult the elders in our own land in what way we may obtain our rights."

With these words the ambassador returned to Rome for consultation. The king forthwith consulted the senate in words to the following effect: "Concerning the matters, suits, and causes, whereof the Pater Patratus of the Roman People and Quirites hath complained to the Pater Patratus of the Prisci Latini, and to the people of the Prisci Latini, which matters they were bound severally to surrender, discharge, and make good, whereas they have done none of these things - say, what is your opinion?" He whose opinion was first asked,

replied, "I am of opinion that they ought to be recovered by a just and righteous war, wherefore I give my consent and vote for it." Then the others were asked in order, and when the majority of those present declared themselves of the same opinion, war was agreed upon. It was customary for the Fetial to carry to the enemies' frontiers a blood-smeared spear tipped with iron or burnt at the end, and, in the presence of at least three adults, to say, "Inasmuch as the peoples of the Prisci Latini have been guilty of wrong against the People of Rome and the Quirites, and inasmuch as the People of Rome and the Quirites have ordered that there be war with the Prisci Latini, and the Senate of the People of Rome and the Quirites have determined and decreed that there shall be war with the Prisci Latini, therefore I and the People of Rome, declare and make war upon the peoples of the Prisci Latini." With these words he hurled his spear into their territory. This was the way in which at that time satisfaction was demanded from the Latins and war declared, and posterity adopted the custom.

[1.33]After handing over the care of the various sacrificial rites to the Flamens and other priests, and calling up a fresh army, Ancus advanced against Politorium a city belonging to the Latins. He took it by assault, and following the custom of the earlier kings who had enlarged the State by receiving its enemies into Roman citizenship, he transferred the whole of the population to Rome. The Palatine had been settled by the earliest Romans, the Sabines had occupied the Capitoline hill with the Citadel, on one side of the Palatine, and the Albans the Caelian hill, on the other, so the Aventine was assigned to the new-comers. Not long afterwards there was a further addition to the number of citizens through the capture of Tellenae and Ficana. Politorium after its evacuation was seized by the Latins and was again recovered; and this was the reason why the Romans razed the city, to prevent its being a perpetual refuge for the enemy. At last the whole war was concentrated round Medullia, and fighting went on for some time there with doubtful result. The city was strongly fortified and its strength was increased by the presence of a large garrison. The Latin army was encamped in the open and had had several engagements with the Romans. At last Ancus made a supreme effort with the whole of his force and won a pitched battle, after which he returned with immense booty to Rome, and many thousands of Latins were admitted into citizenship. In order to

connect the Aventine with the Palatine, the district round the altar of Venus Murcia was assigned to them. The Janiculum also was brought into the city boundaries, not because the space was wanted, but to prevent such a strong position from being occupied by an enemy. It was decided to connect this hill with the City, not only by carrying the City wall round it, but also by a bridge, for the convenience of traffic. This was the first bridge thrown over the Tiber, and was known as the Pons Sublicius. The Fossa Quiritium also was the work of King Ancus, and afforded no inconsiderable protection to the lower and therefore more accessible parts of the City. Amidst this vast population, now that the State had become so enormously increased, the sense of right and wrong was obscured, and secret crimes were committed. To overawe the growing lawlessness a prison was built in the heart of the City, overlooking the Forum. The additions made by this king were not confined to the City. The Mesian Forest was taken from the Veientes, and the Roman dominion extended to the sea; at the mouth of the Tiber the city of Ostia was built; salt-pits were constructed on both sides of the river, and the temple of Jupiter Feretrius was enlarged in consequence of the brilliant successes in the war.

[1.34] During the reign of Ancus a wealthy and ambitious man named Lucumo removed to Rome, mainly with the hope and desire of winning high distinction, for which no opportunity had existed in Tarquinii, since there also he was an alien. He was the son of Demaratus a Corinthian, who had been driven from home by a revolution, and who happened to settle in Tarquinii. There he married and had two sons, their names were Lucumo and Arruns. Arruns died before his father, leaving his wife with child; Lucumo survived his father and inherited all his property. For Demaratus died shortly after Arruns, and being unaware of the condition of his daughter-in-law, had made no provision in his will for a grandchild. The boy, thus excluded from any share of his grandfather's property, was called, in consequence of his poverty, Egerius. Lucumo, on the other hand, heir to all the property, became elated by his wealth, and his ambition was stimulated by his marriage with Tanaquil. This woman was descended from one of the foremost families in the State, and could not bear the thought of her position by marriage being inferior to the one she claimed by birth. The Etruscans looked down upon Lucumo as the son of a foreign refugee; she could not brook

this indignity, and forgetting all ties of patriotism if only she could see her husband honoured, resolved to emigrate from Tarquinii. Rome seemed the most suitable place for her purpose. She felt that among a young nation where all nobility is a thing of recent growth and won by personal merit, there would be room for a man of courage and energy. She remembered that the Sabine Tatius had reigned there, that Numa had been summoned from Cures to fill the throne, that Ancus himself was sprung from a Sabine mother, and could not trace his nobility beyond Numa. Her husband's ambition and the fact that Tarquinii was his native country only on the mother's side, made him give a ready ear to her proposals. They accordingly packed up their goods and removed to Rome.

They had got as far as the Janiculum when a hovering eagle swooped gently down and took off his cap as he was sitting by his wife's side in the carriage, then circling round the vehicle with loud cries, as though commissioned by heaven for this service, replaced it carefully upon his head and soared away. It is said that Tanaquil, who, like most Etruscans, was expert in interpreting celestial prodigies, was delighted at the omen. She threw her arms round her husband and bade him look for a high and majestic destiny, for such was the import of the eagle's appearance, of the particular part of the sky where it appeared, and of the deity who sent it. The omen was directed to the crown and summit of his person, the bird had raised aloft an adornment put on by human hands, to replace it as the gift of heaven. Full of these hopes and surmises they entered the City, and after procuring a domicile there, they announced his name as Lucius Tarquinius Priscus. The fact of his being a stranger, and a wealthy one, brought him into notice, and he increased the advantage which Fortune gave him by his courteous demeanour, his lavish hospitality, and the many acts of kindness by which he won all whom it was in his power to win, until his reputation even reached the palace. Once introduced to the king's notice, he soon succeeded by adroit complaisance in getting on to such familiar terms that he was consulted in matters of state, as much as in private matters, whether they referred to either peace or war. At last, after passing every test of character and ability, he was actually appointed by the king's will guardian to his children.

[1.35]Ancus reigned twenty-four years, unsurpassed by any of his predecessors in ability and reputation, both in the field and at home.

His sons had now almost reached manhood. Tarquin was all the more anxious for the election of the new king to be held as soon as possible. At the time fixed for it he sent the boys out of the way on a hunting expedition. He is said to have been the first who canvassed for the crown and delivered a set speech to secure the interest of the plebs. In it he asserted that he was not making an unheard-of request, he was not the first foreigner who aspired to the Roman throne; were this so, any one might feel surprise and indignation. But he was the third. Tattius was not only a foreigner, but was made king after he had been their enemy; Numa, an entire stranger to the City, had been called to the throne without any seeking it on his part. As to himself, as soon as he was his own master, he had removed to Rome with his wife and his whole fortune; he had lived at Rome for a larger part of the period during which men discharge the functions of citizenship than he had passed in his old country; he had learnt the laws of Rome, the ceremonial rites of Rome, both civil and military, under Ancus himself, a very sufficient teacher; he had been second to none in duty and service towards the king; he had not yielded to the king himself in generous treatment of others. Whilst he was stating these facts, which were certainly true, the Roman people with enthusiastic unanimity elected him king. Though in all other respects an excellent man, his ambition, which impelled him to seek the crown, followed him on to the throne; with the design of strengthening himself quite as much as of increasing the State, he made a hundred new senators. These were afterwards called "the Lesser Houses" and formed a body of uncompromising supporters of the king, through whose kindness they had entered the senate. The first war he engaged in was with the Latins. He took the town of Apiolae by storm, and carried off a greater amount of plunder than could have been expected from the slight interest shown in the war. After this had been brought in wagons to Rome, he celebrated the Games with greater splendour and on a larger scale than his predecessors. Then for the first time a space was marked for what is now the "Circus Maximus." Spots were allotted to the patricians and knights where they could each build for themselves stands - called "ford" - from which to view the Games. These stands were raised on wooden props, branching out at the top, twelve feet high. The contests were horse-racing and boxing, the horses and boxers mostly brought from Etruria. They were at first celebrated on occasions of especial solemnity; subsequently they became an annual fixture, and were called indifferently the "Roman"

or the "Great Games." This king also divided the ground round the Forum into building sites; arcades and shops were put up.

[1.36]He was also making preparations for surrounding the City with a stone wall when his designs were interrupted by a war with the Sabines. So sudden was the outbreak that the enemy were crossing the Anio before a Roman army could meet and stop them. There was great alarm in Rome. The first battle was indecisive, and there was great slaughter on both sides. The enemies' return to their camp allowed time for the Romans to make preparations for a fresh campaign. Tarquin thought his army was weakest in cavalry and decided to double the centuries, which Romulus had formed, of the Ramnes, Titienses, and Luceres, and to distinguish them by his own name. Now as Romulus had acted under the sanction of the auspices, Attus Navius, a celebrated augur at that time, insisted that no change could be made, nothing new introduced, unless the birds gave a favourable omen. The king's anger was roused, and in mockery of the augur's skill he is reported to have said, "Come, you diviner, find out by your augury whether what I am now contemplating can be done." Attus, after consulting the omens, declared that it could. "Well," the king replied, "I had it in my mind that you should cut a whetstone with a razor. Take these, and perform the feat which your birds portend can be done." It is said that without the slightest hesitation he cut it through. There used to be a statue of Attus, representing him with his head covered, in the Comitium, on the steps to the left of the senate-house, where the incident occurred. The whetstone also, it is recorded, was placed there to be a memorial of the marvel for future generations. At all events, auguries and the college of augurs were held in such honour that nothing was undertaken in peace or war without their sanction; the assembly of the curies, the assembly of the centuries, matters of the highest importance, were suspended or broken up if the omen of the birds was unfavourable. Even on that occasion Tarquin was deterred from making changes in the names or numbers of the centuries of knights; he merely doubled the number of men in each, so that the three centuries contained eighteen hundred men. Those who were added to the centuries bore the same designation, only they were called the "Second" knights, and the centuries being thus doubled are now called the "Six Centuries."

[1.37]After this division of the forces was augmented there was a second collision with the Sabines, in which the increased strength of the Roman army was aided by an artifice. Men were secretly sent to set fire to a vast quantity of logs lying on the banks of the Anio, and float them down the river on rafts. The wind fanned the flames, and as the logs drove against the piles and stuck there they set the bridge on fire. This incident, occurring during the battle, created a panic among the Sabines and led to their rout, and at the same time prevented their flight; many after escaping from the enemy perished in the river. Their shields floated down the Tiber as far as the City, and being recognised, made it clear that there had been a victory almost before it could be announced. In that battle the cavalry especially distinguished themselves. They were posted on each wing, and when the infantry in the centre were being forced back, it is said that they made such a desperate charge from both sides that they not only arrested the Sabine legions as they were pressing on the retreating Romans, but immediately put them to flight. The Sabines, in wild disorder, made for the hills, a few gained them, by far the greater number, as was stated above, were driven by the cavalry into the river. Tarquin determined to follow them up before they could recover from their panic. He sent the prisoners and booty to Rome; the spoils of the enemy had been devoted to Vulcan, they were accordingly collected into an enormous pile and burnt; then he proceeded forthwith to lead his army into the Sabine territory. In spite of their recent defeat and the hopelessness of repairing it, the Sabines met him with a hastily raised body of militia, as there was no time for concerting a plan of operations. They were again defeated, and as they were now brought to the verge of ruin, sought for peace.

[1.38]Collatia and all the territory on this side of it was taken from the Sabines; Egerius, the king's nephew, was left to hold it. I understand that the procedure on the surrender of Collatia was as follows: The king asked, "Have you been sent as envoys and commissioners by the people of Collatia to make the surrender of yourselves and the people of Collatia?" "We have." "And is the people of Collatia an independent people?" "It is." "Do you surrender into my power and that of the People of Rome yourselves, and the people of Collatia, your city, lands, water, boundaries, temples, sacred vessels, all things divine and human?" "We do surrender them." "Then I accept them." After bringing the Sabine

war to a conclusion Tarquin returned in triumph to Rome. Then he made war on the Prisci Latini. No general engagement took place, he attacked each of their towns in succession and subjugated the whole nation. The towns of Corniculum, Old Ficulea, Cameria, Crustumerium, Ameriola, Medullia, Nomentum, were all taken from the Prisci Latini or those who had gone over to them. Then peace was made. Works of peace were now commenced with greater energy even than had been displayed in war, so that the people enjoyed no more quiet at home than they had had in the field. He made preparations for completing the work, which had been interrupted by the Sabine war, of enclosing the City in those parts where no fortification yet existed with a stone wall. The low-lying parts of the City round the Forum, and the other valleys between the hills, where the water could not escape, were drained by conduits which emptied into the Tiber. He built up with masonry a level space on the Capitol as a site for the temple of Jupiter which he had vowed during the Sabine war, and the magnitude of the work revealed his prophetic anticipation of the future greatness of the place.

[1.39]At that time an incident took place as marvellous in the appearance as it proved in the result. It is said that whilst a boy named Servius Tullius was asleep, his head was enveloped in flames, before the eyes of many who were present. The cry which broke out at such a marvellous sight aroused the royal family, and when one of the domestics was bringing water to quench the flames the queen stopped him, and after calming the excitement forbade the boy to be disturbed until he awoke of his own accord. Presently he did so, and the flames disappeared. Then Tanaquil took her husband aside and said to him, "Do you see this boy, whom we are bringing up in such a humble style? You may be certain that he will one day be a light to us in trouble and perplexity, and a protection to our tottering house. Let us henceforth bring up with all care and indulgence one who will be the source of measureless glory to the State and to ourselves." From this time the boy began to be treated as their child and trained in those accomplishments by which characters are stimulated to the pursuit of a great destiny. The task was an easy one, for it was carrying out the will of the gods. The youth turned out to be of a truly kingly disposition, and when search was made for a son-in-law to Tarquinius, none of the Roman youths could be compared with him in any respect, so the king betrothed his daughter to him. The

bestowal of this great honour upon him, whatever the reason for it, forbids our believing that he was the son of a slave, and, in his boyhood, a slave himself. I am more inclined to the opinion of those who say that in the capture of Corniculum, Servius Tullius, the leading man of that city, was killed, and his wife, who was about to become a mother, was recognised amongst the other captive women, and in consequence of her high rank was exempted from servitude by the Roman queen, and gave birth to a son in the house of Priscus Tarquinius. This kind treatment strengthened the intimacy between the women, and the boy, brought up as he was from infancy in the royal household, was held in affection and honour. It was the fate of his mother, who fell into the hands of the enemy when her native city was taken, that made people think he was the son of a slave.

[1.40]When Tarquin had been about thirty-eight years on the throne, Servius Tullius was held in by far the highest esteem of any one, not only with the king but also with the patricians and the commons. The two sons of Ancus had always felt most keenly their being deprived of their father's throne through the treachery of their guardian; its occupation by a foreigner who was not even of Italian, much less Roman descent, increased their indignation, when they saw that not even after the death of Tarquin would the crown revert to them, but would suddenly descend to a slave - that crown which Romulus, the offspring of a god, and himself a god, had worn whilst he was on earth, now to be the possession of a slave-born slave a hundred years later! They felt that it would be a disgrace to the whole Roman nation, and especially to their house, if, while the male issue of Ancus was still alive, the sovereignty of Rome should be open not only to foreigners but even to slaves. They determined, therefore, to repel that insult by the sword. But it was on Tarquin rather than on Servius that they sought to avenge their wrongs; if the king were left alive he would be able to deal more summary vengeance than an ordinary citizen, and in the event of Servius being killed, the king would certainly make any one else whom he chose for a son-in-law heir to the crown. These considerations decided them to form a plot against the king's life. Two shepherds, perfect desperadoes, were selected for the deed. They appeared in the vestibule of the palace, each with his usual implement, and by pretending to have a violent and outrageous quarrel, they attracted the attention of all the royal guards. Then, as they both began to appeal to the king, and their clamour had

penetrated within the palace, they were summoned before the king. At first they tried, by shouting each against the other, to see who could make the most noise, until, after being repressed by the lictor and ordered to speak in turn, they became quiet, and one of the two began to state his case. Whilst the king's attention was absorbed in listening to him, the other swung aloft his axe and drove it into the king's head, and leaving the weapon in the wound both dashed out of the palace.

[1.41]Whilst the bystanders were supporting the dying Tarquin in their arms, the lictors caught the fugitives. The shouting drew a crowd together, wondering what had happened. In the midst of the confusion, Tanaquil ordered the palace to be cleared and the doors closed; she then carefully prepared medicaments for dressing the wound, should there be hopes of life; at the same time she decided on other precautions, should the case prove hopeless, and hastily summoned Servius. She showed him her husband at the point of death, and taking his hand, implored him not to leave his father-in-law's death unavenged, nor to allow his mother-in-law to become the sport of her enemies. "The throne is yours, Servius," she said, "if you are a man; it does not belong to those who have, through the hands of others, wrought this worst of crimes. Up! follow the guidance of the gods who presaged the exaltation of that head round which divine fire once played! Let that heaven-sent flame now inspire you. Rouse yourself in earnest! We, too, though foreigners, have reigned. Bethink yourself not whence you sprang, but who you are. If in this sudden emergency you are slow to resolve, then follow my counsels." As the clamour and impatience of the populace could hardly be restrained, Tanaquil went to a window in the upper part of the palace looking out on the Via Nova - the king used to live by the temple of Jupiter Stator - and addressed the people. She bade them hope for the best; the king had been stunned by a sudden blow, but the weapon had not penetrated to any depth, he had already recovered consciousness, the blood had been washed off and the wound examined, all the symptoms were favourable, she was sure they would soon see him again, meantime it was his order that the people should recognise the authority of Servius Tullius, who would administer justice and discharge the other functions of royalty. Servius appeared in his trabea attended by the lictors, and after taking his seat in the royal chair decided some cases and adjourned others under presence of

consulting the king. So for several days after Tarquin's death Servius continued to strengthen his position by giving out that he was exercising a delegated authority. At length the sounds of mourning arose in the palace and divulged the fact of the king's death. Protected by a strong bodyguard Servius was the first who ascended the throne without being elected by the people, though without opposition from the senate. When the sons of Ancus heard that the instruments of their crime had been arrested, that the king was still alive, and that Servius was so powerful, they went into exile at Suessa Pometia.

[1.42]Servius consolidated his power quite as much by his private as by his public measures. To guard against the children of Tarquin treating him as those of Ancus had treated Tarquin, he married his two daughters to the scions of the royal house, Lucius and Arruns Tarquin. Human counsels could not arrest the inevitable course of destiny, nor could Servius prevent the jealousy aroused by his ascending the throne from making his family the scene of disloyalty and hatred. The truce with the Veientes had now expired, and the resumption of war with them and other Etruscan cities came most opportunely to help in maintaining tranquillity at home. In this war the courage and good fortune of Tullius were conspicuous, and he returned to Rome, after defeating an immense force of the enemy, feeling quite secure on the throne, and assured of the goodwill of both patricians and commons. Then he set himself to by far the greatest of all works in times of peace. Just as Numa had been the author of religious laws and institutions, so posterity extols Servius as the founder of those divisions and classes in the State by which a clear distinction is drawn between the various grades of dignity and fortune. He instituted the census, a most beneficial institution in what was to be a great empire, in order that by its means the various duties of peace and war might be assigned, not as heretofore, indiscriminately, but in proportion to the amount of property each man possessed. From it he drew up the classes and centuries and the following distribution of them, adapted for either peace or war.

[1.43]Those whose property amounted to, or exceeded 100,000 lbs. weight of copper were formed into eighty centuries, forty of juniors and forty of seniors. These were called the First Class. The seniors were to defend the City, the juniors to serve in the field. The armour which they were to provide themselves with comprised helmet, round shield, greaves, and coat of mail, all of brass; these were to

protect the person. Their offensive weapons were spear and sword. To this class were joined two centuries of carpenters whose duty it was to work the engines of war; they were without arms. The Second Class consisted of those whose property amounted to between 75,000 and 100,000 lbs. weight of copper; they were formed, seniors and juniors together, into twenty centuries. Their regulation arms were the same as those of the First Class, except that they had an oblong wooden shield instead of the round brazen one and no coat of mail. The Third Class he formed of those whose property fell as low as 50,000 lbs.; these also consisted of twenty centuries, similarly divided into seniors and juniors. The only difference in the armour was that they did not wear greaves. In the Fourth Class were those whose property did not fall below 25,000 lbs. They also formed twenty centuries; their only arms were a spear and a javelin. The Fifth Class was larger it formed thirty centuries. They carried slings and stones, and they included the supernumeraries, the horn-blowers, and the trumpeters, who formed three centuries. This Fifth Class was assessed at 11,000 lbs. The rest of the population whose property fell below this were formed into one century and were exempt from military service.

After thus regulating the equipment and distribution of the infantry, he re-arranged the cavalry. He enrolled from amongst the principal men of the State twelve centuries. In the same way he made six other centuries (though only three had been formed by Romulus) under the same names under which the first had been inaugurated. For the purchase of the horse, 10,000 lbs. were assigned them from the public treasury; whilst for its keep certain widows were assessed to pay 2000 lbs. each, annually. The burden of all these expenses was shifted from the poor on to the rich. Then additional privileges were conferred. The former kings had maintained the constitution as handed down by Romulus, viz., manhood suffrage in which all alike possessed the same weight and enjoyed the same rights. Servius introduced a graduation; so that whilst no one was ostensibly deprived of his vote, all the voting power was in the hands of the principal men of the State. The knights were first summoned to record their vote, then the eighty centuries of the infantry of the First Class; if their votes were divided, which seldom happened, it was arranged for the Second Class to be summoned; very seldom did the voting extend to the lowest Class. Nor need it occasion any surprise,

that the arrangement which now exists since the completion of the thirty-five tribes, their number being doubled by the centuries of juniors and seniors, does not agree with the total as instituted by Servius Tullius. For, after dividing the City with its districts and the hills which were inhabited into four parts, he called these divisions "tribes," I think from the tribute they paid, for he also introduced the practice of collecting it at an equal rate according to the assessment. These tribes had nothing to do with the distribution and number of the centuries.

[1.44]The work of the census was accelerated by an enactment in which Servius denounced imprisonment and even capital punishment against those who evaded assessment. On its completion he issued an order that all the citizens of Rome, knights and infantry alike, should appear in the Campus Martius, each in their centuries. After the whole army had been drawn up there, he purified it by the triple sacrifice of a swine, a sheep, and an ox. This was called "a closed lustrum," because with it the census was completed. Eighty thousand citizens are said to have been included in that census. Fabius Pictor, the oldest of our historians, states that this was the number of those who could bear arms. To contain that population it was obvious that the City would have to be enlarged. He added to it the two hills - the Quirinal and the Viminal - and then made a further addition by including the Esquiline, and to give it more importance he lived there himself. He surrounded the City with a mound and moats and wall; in this way he extended the "pomoerium." Looking only to the etymology of the word, they explain "pomoerium" as "postmoerium"; but it is rather a "circamoerium." For the space which the Etruscans of old, when founding their cities, consecrated in accordance with auguries and marked off by boundary stones at intervals on each side, as the part where the wall was to be carried, was to be kept vacant so that no buildings might connect with the wall on the inside (whilst now they generally touch), and on the outside some ground might remain virgin soil untouched by cultivation. This space, which it was forbidden either to build upon or to plough, and which could not be said to be behind the wall any more than the wall could be said to be behind it, the Romans called the "pomoerium." As the City grew, these sacred boundary stones were always moved forward as far as the walls were advanced.

[1.45]After the State was augmented by the expansion of the City and all domestic arrangements adapted to the requirements of both peace and war, Servius endeavoured to extend his dominion by state-craft, instead of aggrandising it by arms, and at the same time made an addition to the adornment of the City. The temple of the Ephesian Diana was famous at that time, and it was reported to have been built by the co-operation of the states of Asia. Servius had been careful to form ties of hospitality and friendship with the chiefs of the Latin nation, and he used to speak in the highest praise of that co-operation and the common recognition of the same deity. By constantly dwelling on this theme he at length induced the Latin tribes to join with the people of Rome in building a temple to Diana in Rome. Their doing so was an admission of the predominance of Rome; a question which had so often been disputed by arms. Though the Latins, after their many unfortunate experiences in war, had as a nation laid aside all thoughts of success, there was amongst the Sabines one man who believed that an opportunity presented itself of recovering the supremacy through his own individual cunning. The story runs that a man of substance belonging to that nation had a heifer of marvellous size and beauty. The marvel was attested in after ages by the horns which were fastened up in the vestibule of the temple of Diana. The creature was looked upon as - what it really was - a prodigy, and the soothsayers predicted that, whoever sacrificed it to Diana, the state of which he was a citizen should be the seat of empire. This prophecy had reached the ears of the official in charge of the temple of Diana. When the first day on which the sacrifice could properly be offered arrived, the Sabine drove the heifer to Rome, took it to the temple, and placed it in front of the altar. The official in charge was a Roman, and, struck by the size of the victim, which was well known by report, he recalled the prophecy and addressing the Sabine, said, "Why, pray, are you, stranger, preparing to offer a polluted sacrifice to Diana? Go and bathe yourself first in running water. The Tiber is flowing down there at the bottom of the valley." Filled with misgivings, and anxious for everything to be done properly that the prediction might be fulfilled, the stranger promptly went down to the Tiber. Meanwhile the Roman sacrificed the heifer to Diana. This was a cause of intense gratification to the king and to his people.

[1.46]Servius was now confirmed on the throne by long possession. It had, however, come to his ears that the young Tarquin was giving out that he was reigning without the assent of the people. He first secured the goodwill of the plebs by assigning to each householder a slice of the land which had been taken from the enemy. Then he was emboldened to put to them the question whether it was their will and resolve that he should reign. He was acclaimed as king by a unanimous vote such as no king before him had obtained. This action in no degree damped Tarquin's hopes of making his way to the throne, rather the reverse. He was a bold and aspiring youth, and his wife Tullia stimulated his restless ambition. He had seen that the granting of land to the commons was in defiance of the opinion of the senate, and he seized the opportunity it afforded him of traducing Servius and strengthening his own faction in that assembly. So it came about that the Roman palace afforded an instance of the crime which tragic poets have depicted, with the result that the loathing felt for kings hastened the advent of liberty, and the crown won by villainy was the last that was worn.

This Lucius Tarquinius - whether he was the son or the grandson of King Priscus Tarquinius is not clear; if I should give him as the son I should have the preponderance of authorities - had a brother, Arruns Tarquinius, a youth of gentle character. The two Tullias, the king's daughters, had, as I have already stated, married these two brothers; and they themselves were of utterly unlike dispositions. It was, I believe, the good fortune of Rome which intervened to prevent two violent natures from being joined in marriage, in order that the reign of Servius Tullius might last long enough to allow the State to settle into its new constitution. The high-spirited one of the two Tullias was annoyed that there was nothing in her husband for her to work on in the direction of either greed or ambition. All her affections were transferred to the other Tarquin; he was her admiration, he, she said, was a man, he was really of royal blood. She despised her sister, because having a man for her husband she was not animated by the spirit of a woman. Likeness of character soon drew them together, as evil usually consorts best with evil. But it was the woman who was the originator of all the mischief. She constantly held clandestine interviews with her sister's husband, to whom she unsparingly vilified alike her husband and her sister, asserting that it would have been better for her to have remained unmarried and he a bachelor, rather

than for them each to be thus unequally mated, and fret in idleness through the poltroonery of others. Had heaven given her the husband she deserved, she would soon have seen the sovereignty which her father wielded established in her own house. She rapidly infected the young man with her own recklessness. Lucius Tarquin and the younger Tullia, by a double murder, cleared from their houses the obstacles to a fresh marriage; their nuptials were solemnised with the tacit acquiescence rather than the approbation of Servius.

[1.47]From that time the old age of Tullius became more embittered, his reign more unhappy. The woman began to look forward from one crime to another; she allowed her husband no rest day or night, for fear lest the past murders should prove fruitless. What she wanted, she said, was not a man who was only her husband in name, or with whom she was to live in uncomplaining servitude; the man she needed was one who deemed himself worthy of a throne, who remembered that he was the son of Priscus Tarquinius, who preferred to wear a crown rather than live in hopes of it. "If you are the man to whom I thought I was married, then I call you my husband and my king; but if not, I have changed my condition for the worse, since you are not only a coward but a criminal to boot. Why do you not prepare yourself for action? You are not, like your father, a native of Corinth or Tarquinii, nor is it a foreign crown you have to win. Your father's household gods, your father's image, the royal palace, the kingly throne within it, the very name of Tarquin, all declare you king. If you have not courage enough for this, why do you excite vain hopes in the State? Why do you allow yourself to be looked up to as a youth of kingly stock? Make your way back to Tarquinii or Corinth, sink back to the position whence you sprung; you have your brother's nature rather than your father's." With taunts like these she egged him on. She, too, was perpetually haunted by the thought that whilst Tanaquil, a woman of alien descent, had shown such spirit as to give the crown to her husband and her son-in-law in succession, she herself, though of royal descent, had no power either in giving it or taking it away. Infected by the woman's madness Tarquin began to go about and interview the nobles, mainly those of the Lesser Houses; he reminded them of the favour his father had shown them, and asked them to prove their gratitude; he won over the younger men with presents. By making magnificent promises as

to what he would do, and by bringing charges against the king, his cause became stronger amongst all ranks.

At last, when he thought the time for action had arrived, he appeared suddenly in the Forum with a body of armed men. A general panic ensued, during which he seated himself in the royal chair in the senate-house and ordered the Fathers to be summoned by the crier "into the presence of King Tarquin." They hastily assembled, some already prepared for what was coming; others, apprehensive lest their absence should arouse suspicion, and dismayed by the extraordinary nature of the incident, were convinced that the fate of Servius was sealed. Tarquin went back to the king's birth, protested that he was a slave and the son of a slave, and after his (the speaker's) father had been foully murdered, seized the throne, as a woman's gift, without any interrex being appointed as heretofore, without any assembly being convened, without any vote of the people being taken or any confirmation of it by the Fathers. Such was his origin, such was his right to the crown. His sympathies were with the dregs of society from which he had sprung, and through jealousy of the ranks to which he did not belong, he had taken the land from the foremost men in the State and divided it amongst the vilest; he had shifted on to them the whole of the burdens which had formerly been borne in common by all; he had instituted the census that the fortunes of the wealthy might be held up to envy, and be an easily available source from which to shower doles, whenever he pleased, upon the neediest.

[1.48]Servius had been summoned by a breathless messenger, and arrived on the scene while Tarquin was speaking. As soon as he reached the vestibule, he exclaimed in loud tones, "What is the meaning of this, Tarquin? How dared you, with such insolence, convene the senate or sit in that chair whilst I am alive?" Tarquin replied fiercely that he was occupying his father's seat, that a king's son was a much more legitimate heir to the throne than a slave, and that he, Servius, in playing his reckless game, had insulted his masters long enough. Shouts arose from their respective partisans, the people made a rush to the senate-house, and it was evident that he who won the fight would reign. Then Tarquin, forced by sheer necessity into proceeding to the last extremity, seized Servius round the waist, and being a much younger and stronger man, carried him out of the senate-house and flung him down the steps into the Forum below. He then returned to call the senate to order. The officers and

attendants of the king fled. The king himself, half dead from the violence, was put to death by those whom Tarquin had sent in pursuit of him. It is the current belief that this was done at Tullia's suggestion, for it is quite in keeping with the rest of her wickedness. At all events, it is generally agreed that she drove down to the Forum in a two-wheeled car, and, unabashed by the presence of the crowd, called her husband out of the senate-house and was the first to salute him as king. He told her to make her way out of the tumult, and when on her return she had got as far as the top of the Cyprius Vicus, where the temple of Diana lately stood, and was turning to the right on the Urbis Clivus, to get to the Esquiline, the driver stopped horror-struck and pulled up, and pointed out to his mistress the corpse of the murdered Servius. Then, the tradition runs, a foul and unnatural crime was committed, the memory of which the place still bears, for they call it the Vicus Sceleratus. It is said that Tullia, goaded to madness by the avenging spirits of her sister and her husband, drove right over her father's body, and carried back some of her father's blood with which the car and she herself were defiled to her own and her husband's household gods, through whose anger a reign which began in wickedness was soon brought to a close by a like cause. Servius Tullius reigned forty-four years, and even a wise and good successor would have found it difficult to fill the throne as he had done. The glory of his reign was all the greater because with him perished all just and lawful kingship in Rome. Gentle and moderate as his sway had been, he had nevertheless, according to some authorities, formed the intention of laying it down, because it was vested in a single person, but this purpose of giving freedom to the State was cut short by that domestic crime.

[1.49]Lucius Tarquinius now began his reign. His conduct procured for him the nickname of "Superbus," for he deprived his father-in-law of burial, on the plea that Romulus was not buried, and he slew the leading nobles whom he suspected of being partisans of Servius. Conscious that the precedent which he had set, of winning a throne by violence, might be used against himself, he surrounded himself with a guard. For he had nothing whatever by which to make good his claim to the crown except actual violence; he was reigning without either being elected by the people, or confirmed by the senate. As, moreover, he had no hope of winning the affections of the citizens, he had to maintain his dominion by fear. To make himself more

dreaded, he conducted the trials in capital cases without any assessors, and under this presence he was able to put to death, banish, or fine not only those whom he suspected or disliked, but also those from whom his only object was to extort money. His main object was so to reduce the number of senators, by refusing to fill up any vacancies, that the dignity of the order itself might be lowered through the smallness of its numbers, and less indignation felt at all public business being taken out of its hands. He was the first of the kings to break through the traditional custom of consulting the senate on all questions, the first to conduct the government on the advice of his palace favourites. War, peace, treaties, alliances were made or broken off by him, just as he thought good, without any authority from either people or senate. He made a special point of securing the Latin nation, that through his power and influence abroad he might be safer amongst his subjects at home; he not only formed ties of hospitality with their chief men, but established family connections. He gave his daughter in marriage to Octavius Mamilius of Tusculum, who was quite the foremost man of the Latin race, descended, if we are to believe traditions, from Ulysses and the goddess Circe; through that connection he gained many of his son-in-law's relations and friends.

[1.50] Tarquin had now gained considerable influence amongst the Latin nobility, and he sent word for them to meet on a fixed date at the Grove of Ferentina, as there were matters of mutual interest about which he wished to consult them. They assembled in considerable numbers at daybreak; Tarquin kept his appointment, it is true, but did not arrive till shortly before sunset. The council spent the whole day in discussing many topics. Turnus Herdonius, from Aricia, had made a fierce attack on the absent Tarquin. It was no wonder, he said, that the epithet "Tyrant" had been bestowed upon him at Rome - for this was what people commonly called him, though only in whispers - could anything show the tyrant more than his thus trifling with the whole Latin nation? After summoning the chiefs from distant homes, the man who had called the council was not present. He was in fact trying how far he could go, so that if they submitted to the yoke he might crush them. Who could not see that he was making his way to sovereignty over the Latins? Even supposing that his own countrymen did well to entrust him with supreme power, or rather that it was entrusted and not seized by an

act of parricide, the Latins ought not, even in that case, to place it in the hands of an alien. But if his own people bitterly rue his sway, seeing how they are being butchered, sent into exile, stripped of all their property, what better fate can the Latins hope for? If they followed the speaker's advice they would go home and take as little notice of the day fixed for the council as he who had fixed it was taking. Just while these and similar sentiments were being uttered by the man who had gained his influence in Aricia by treasonable and criminal practice, Tarquin appeared on the scene. That put a stop to his speech, for all turned from the speaker to salute the king. When silence was restored, Tarquin was advised by those near to explain why he had come so late. He said that having been chosen as arbitrator between a father and a son, he had been detained by his endeavours to reconcile them, and as that matter had taken up the whole day, he would bring forward the measures he had decided upon the next day. It is said that even this explanation was not received by Turnus without his commenting on it; no case, he argued, could take up less time than one between a father and a son, it could be settled in a few words; if the son did not comply with the father's wishes he would get into trouble.

[1.51] With these censures on the Roman king he left the council. Tarquin took the matter more seriously than he appeared to do and at once began to plan Turnus' death, in order that he might inspire the Latins with the same terror through which he had crushed the spirits of his subjects at home. As he had not the power to get him openly put to death, he compassed his destruction by bringing a false charge against him. Through the agency of some of the Aricians who were opposed to Turnus, he bribed a slave of his to allow a large quantity of swords to be carried secretly into his quarters. This plan was executed in one night. Shortly before daybreak Tarquin summoned the Latin chiefs into his presence, as though something had happened to give him great alarm. He told them that his delay on the previous day had been brought about by some divine providence, for it had proved the salvation both of them and himself. He was informed that Turnus was planning his murder and that of the leading men in the different cities, in order that he might hold sole rule over the Latins. He would have attempted it the previous day in the council; but the attempt was deferred owing to the absence of the convener of the council, the chief object of attack. Hence the

abuse levelled against him in his absence, because his delay had frustrated the hopes of success. If the reports which reached him were true, he had no doubt that, on the assembling of the council at daybreak, Turnus would come armed and with a strong body of conspirators. It was asserted that a vast number of swords had been conveyed to him. Whether this was an idle rumour or not could very soon be ascertained, he asked them to go with him to Turnus. The restless, ambitious character of Turnus, his speech of the previous day, and Tarquin's delay, which easily accounted for the postponement of the murder, all lent colour to their suspicions. They went, inclined to accept Tarquin's statement, but quite prepared to regard the whole story as baseless, if the swords were not discovered. When they arrived, Turnus was roused from sleep and placed under guard, and the slaves who from affection to their master were preparing to defend him were seized. Then, when the concealed swords were produced from every corner of his lodgings, the matter appeared only too certain and Turnus was thrown into chains. Amidst great excitement a council of the Latins was at once summoned. The sight of the swords, placed in the midst, aroused such furious resentment that he was condemned, without being heard in his defence, to an unprecedented mode of death. He was thrown into the fountain of Ferentina and drowned by a hurdle weighted with stones being placed over him.

[1.52]After the Latins had reassembled in council and had been commended by Tarquin for having inflicted on Turnus a punishment befitting his revolutionary and murderous designs, Tarquin addressed them as follows: It was in his power to exercise a long-established right, since, as all the Latins traced their origin to Alba, they were included in the treaty made by Tullus under which the whole of the Alban State with its colonies passed under the suzerainty of Rome. He thought, however, that it would be more advantageous for all parties if that treaty were renewed, so that the Latins could enjoy a share in the prosperity of the Roman people, instead of always looking out for, or actually suffering, the demolition of their towns and the devastation of their fields, as happened in the reign of Ancus and afterwards whilst his own father was on the throne. The Latins were persuaded without much difficulty, although by that treaty Rome was the predominant State, for they saw that the heads of the Latin League were giving their adhesion to the king, and Turnus

afforded a present example of the danger incurred by any one who opposed the king's wishes. So the treaty was renewed, and orders were issued for the "juniors" amongst the Latins to muster under arms, in accordance with the treaty, on a given day, at the Grove of Ferentina. In compliance with the order contingents assembled from all the thirty towns, and with a view to depriving them of their own general or a separate command, or distinctive standards, he formed one Latin and one Roman century into a maniple, thereby making one unit out of the two, whilst he doubled the strength of the maniples, and placed a centurion over each half.

[1.53] However tyrannical the king was in his domestic administration he was by no means a despicable general; in military skill he would have rivalled any of his predecessors had not the degeneration of his character in other directions prevented him from attaining distinction here also. He was the first to stir up war with the Volscians - a war which was to last for more than two hundred years after his time - and took from them the city of Pomptine Suessa. The booty was sold and he realised out of the proceeds forty talents of silver. He then sketched out the design of a temple to Jupiter, which in its extent should be worthy of the king of gods and men, worthy of the Roman empire, worthy of the majesty of the City itself. He set apart the above-mentioned sum for its construction. The next war occupied him longer than he expected. Failing to capture the neighbouring city of Gabii by assault and finding it useless to attempt an investment, after being defeated under its walls, he employed methods against it which were anything but Roman, namely, fraud and deceit. He pretended to have given up all thoughts of war and to be devoting himself to laying the foundations of his temple and other undertakings in the City. Meantime, it was arranged that Sextus, the youngest of his three sons, should go as a refugee to Gabii, complaining loudly of his father's insupportable cruelty, and declaring that he had shifted his tyranny from others on to his own family, and even regarded the presence of his children as a burden and was preparing to devastate his own family as he had devastated the senate, so that not a single descendant, not a single heir to the crown might be left. He had, he said, himself escaped from the murderous violence of his father, and felt that no place was safe for him except amongst Lucius Tarquin's enemies. Let them not deceive themselves, the war which apparently was abandoned was hanging

over them, and at the first chance he would attack them when they least expected it. If amongst them there was no place for suppliants, he would wander through Latium, he would petition the Volsci, the Aequi, the Hernici, until he came to men who know how to protect children against the cruel and unnatural persecutions of parents. Perhaps he would find people with sufficient spirit to take up arms against a remorseless tyrant backed by a warlike people. As it seemed probable that if they paid no attention to him he would, in his angry mood, take his departure, the people of Gabii gave him a kind reception. They told him not to be surprised if his father treated his children as he had treated his own subjects and his allies; failing others he would end by murdering himself. They showed pleasure at his arrival and expressed their belief that with his assistance the war would be transferred from the gates of Gabii to the walls of Rome.

[1.54]He was admitted to the meetings of the national council. Whilst expressing his agreement with the elders of Gabii on other subjects, on which they were better informed, he was continually urging them to war, and claimed to speak with special authority, because he was acquainted with the strength of each nation, and knew that the king's tyranny, which even his own children had found insupportable, was certainly detested by his subjects. So after gradually working up the leaders of the Gabinians to revolt, he went in person with some of the most eager of the young men on foraging and plundering expeditions. By playing the hypocrite both in speech and action, he gained their mistaken confidence more and more; at last he was chosen as commander in the war. Whilst the mass of the population were unaware of what was intended, skirmishes took place between Rome and Gabii in which the advantage generally rested with the latter, until the Gabinians from the highest to the lowest firmly believed that Sextus Tarquin had been sent by heaven to be their leader. As for the soldiers, he became so endeared to them by sharing all their toils and dangers, and by a lavish distribution of the plunder, that the elder Tarquin was not more powerful in Rome than his son was in Gabii.

When he thought himself strong enough to succeed in anything that he might attempt, he sent one of his friends to his father at Rome to ask what he wished him to do now that the gods had given him sole and absolute power in Gabii. To this messenger no verbal reply was given, because, I believe, he mistrusted him. The king went into the

palace-garden, deep in thought, his son's messenger following him. As he walked along in silence it is said that he struck off the tallest poppy-heads with his stick. Tired of asking and waiting for an answer, and feeling his mission to be a failure, the messenger returned to Gabii, and reported what he had said and seen, adding that the king, whether through temper or personal aversion or the arrogance which was natural to him, had not uttered a single word. When it had become clear to Sextus what his father meant him to understand by his mysterious silent action, he proceeded to get rid of the foremost men of the State by traducing some of them to the people, whilst others fell victims to their own unpopularity. Many were publicly executed, some against whom no plausible charges could be brought were secretly assassinated. Some were allowed to seek safety in flight, or were driven into exile; the property of these as well as of those who had been put to death was distributed in grants and bribes. The gratification felt by each who received a share blunted the sense of the public mischief that was being wrought, until, deprived of all counsel and help, the State of Gabii was surrendered to the Roman king without a single battle.

[1.55]After the acquisition of Gabii, Tarquin made peace with the Aequi and renewed the treaty with the Etruscans. Then he turned his attention to the business of the City. The first thing was the temple of Jupiter on the Tarpeian Mount, which he was anxious to leave behind as a memorial of his reign and name; both the Tarquins were concerned in it, the father had vowed it, the son completed it. That the whole of the area which the temple of Jupiter was to occupy might be wholly devoted to that deity, he decided to deconsecrate the fanes and chapels, some of which had been originally vowed by King Tatius at the crisis of his battle with Romulus, and subsequently consecrated and inaugurated. Tradition records that at the commencement of this work the gods sent a divine intimation of the future vastness of the empire, for whilst the omens were favourable for the deconsecration of all the other shrines, they were unfavourable for that of the fane of Terminus. This was interpreted to mean that as the abode of Terminus was not moved and he alone of all the deities was not called forth from his consecrated borders, so all would be firm and immovable in the future empire. This augury of lasting dominion was followed by a prodigy which portended the greatness of the empire. It is said that whilst they were digging the

foundations of the temple, a human head came to light with the face perfect; this appearance unmistakably portended that the spot would be the stronghold of empire and the head of all the world. This was the interpretation given by the soothsayers in the City, as well as by those who had been called into council from Etruria. The king's designs were now much more extensive; so much so that his share of the spoils of Pometia, which had been set apart to complete the work, now hardly met the cost of the foundations. This makes me inclined to trust Fabius - who, moreover is the older authority - when he says that the amount was only forty talents, rather than Piso, who states that forty thousand pounds of silver were set apart for that object. For not only is such a sum more than could be expected from the spoils of any single city at that time, but it would more than suffice for the foundations of the most magnificent building of the present day.

[1.56]Determined to finish his temple, he sent for workmen from all parts of Etruria, and not only used the public treasury to defray the cost, but also compelled the plebeians to take their share of the work. This was in addition to their military service, and was anything but a light burden. Still they felt it less of a hardship to build the temples of the gods with their own hands, than they did afterwards when they were transferred to other tasks less imposing, but involving greater toil - the construction of the "ford" in the Circus and that of the Cloaca Maxima, a subterranean tunnel to receive all the sewage of the City. The magnificence of these two works could hardly be equalled by anything in the present day. When the plebeians were no longer required for these works, he considered that such a multitude of unemployed would prove a burden to the State, and as he wished the frontiers of the empire to be more widely colonised, he sent colonists to Signia and Circeii to serve as a protection to the City by land and sea. While he was carrying out these undertakings a frightful portent appeared; a snake gliding out of a wooden column created confusion and panic in the palace. The king himself was not so much terrified as filled with anxious forebodings. The Etruscan soothsayers were only employed to interpret prodigies which affected the State; but this one concerned him and his house personally, so he decided to send to the world-famed oracle of Delphi. Fearing to entrust the oracular response to any one else, he sent two of his sons to Greece, through lands at that time unknown and over seas still less known.

Titus and Arruns started on their journey. They had as a travelling companion L. Junius Brutus, the son of the king's sister, Tarquinia, a young man of a very different character from that which he had assumed. When he heard of the massacre of the chiefs of the State, amongst them his own brother, by his uncle's orders, he determined that his intelligence should give the king no cause for alarm nor his fortune any provocation to his avarice, and that as the laws afforded no protection, he would seek safety in obscurity and neglect. Accordingly he carefully kept up the appearance and conduct of an idiot, leaving the king to do what he liked with his person and property, and did not even protest against his nickname of "Brutus"; for under the protection of that nickname the soul which was one day to liberate Rome was awaiting its destined hour. The story runs that when brought to Delphi by the Tarquins, more as a butt for their sport than as a companion, he had with him a golden staff enclosed in a hollow one of corner wood, which he offered to Apollo as a mystical emblem of his own character. After executing their father's commission the young men were desirous of ascertaining to which of them the kingdom of Rome would come. A voice came from the lowest depths of the cavern: "Whichever of you, young men, shall be the first to kiss his mother, he shall hold supreme sway in Rome." Sextus had remained behind in Rome, and to keep him in ignorance of this oracle and so deprive him of any chance of coming to the throne, the two Tarquins insisted upon absolute silence being kept on the subject. They drew lots to decide which of them should be the first to kiss his mother on their return to Rome. Brutus, thinking that the oracular utterance had another meaning, pretended to stumble, and as he fell kissed the ground, for the earth is of course the common mother of us all. Then they returned to Rome, where preparations were being energetically pushed forward for a war with the Rutulians.

[1.57] This people, who were at that time in possession of Ardea, were, considering the nature of their country and the age in which they lived, exceptionally wealthy. This circumstance really originated the war, for the Roman king was anxious to repair his own fortune, which had been exhausted by the magnificent scale of his public works, and also to conciliate his subjects by a distribution of the spoils of war. His tyranny had already produced disaffection, but what moved their special resentment was the way they had been so

long kept by the king at manual and even servile labour. An attempt was made to take Ardea by assault; when that failed recourse was had to a regular investment to starve the enemy out. When troops are stationary, as is the case in a protracted more than in an active campaign, furloughs are easily granted, more so to the men of rank, however, than to the common soldiers. The royal princes sometimes spent their leisure hours in feasting and entertainments, and at a wine party given by Sextus Tarquinius at which Collatinus, the son of Egerius, was present, the conversation happened to turn upon their wives, and each began to speak of his own in terms of extraordinarily high praise. As the dispute became warm, Collatinus said that there was no need of words, it could in a few hours be ascertained how far his Lucretia was superior to all the rest. "Why do we not," he exclaimed, "if we have any youthful vigour about us, mount our horses and pay our wives a visit and find out their characters on the spot? What we see of the behaviour of each on the unexpected arrival of her husband, let that be the surest test." They were heated with wine, and all shouted: "Good! Come on!" Setting spur to their horses they galloped off to Rome, where they arrived as darkness was beginning to close in. Thence they proceeded to Collatia, where they found Lucretia very differently employed from the king's daughters-in-law, whom they had seen passing their time in feasting and luxury with their acquaintances. She was sitting at her wool work in the hall, late at night, with her maids busy round her. The palm in this competition of wifely virtue was awarded to Lucretia. She welcomed the arrival of her husband and the Tarquins, whilst her victorious spouse courteously invited the royal princes to remain as his guests. Sextus Tarquin, inflamed by the beauty and exemplary purity of Lucretia, formed the vile project of effecting her dishonour. After their youthful frolic they returned for the time to camp.

[1.58]A few days afterwards Sextus Tarquin went, unknown to Collatinus, with one companion to Collatia. He was hospitably received by the household, who suspected nothing, and after supper was conducted to the bedroom set apart for guests. When all around seemed safe and everybody fast asleep, he went in the frenzy of his passion with a naked sword to the sleeping Lucretia, and placing his left hand on her breast, said, "Silence, Lucretia! I am Sextus Tarquin, and I have a sword in my hand; if you utter a word, you shall die." When the woman, terrified out of her sleep, saw that no help was

near, and instant death threatening her, Tarquin began to confess his passion, pleaded, used threats as well as entreaties, and employed every argument likely to influence a female heart. When he saw that she was inflexible and not moved even by the fear of death, he threatened to disgrace her, declaring that he would lay the naked corpse of the slave by her dead body, so that it might be said that she had been slain in foul adultery. By this awful threat, his lust triumphed over her inflexible chastity, and Tarquin went off exulting in having successfully attacked her honour. Lucretia, overwhelmed with grief at such a frightful outrage, sent a messenger to her father at Rome and to her husband at Ardea, asking them to come to her, each accompanied by one faithful friend; it was necessary to act, and to act promptly; a horrible thing had happened. Spurius Lucretius came with Publius Valerius, the son of Volesus; Collatinus with Lucius Junius Brutus, with whom he happened to be returning to Rome when he was met by his wife's messenger. They found Lucretia sitting in her room prostrate with grief. As they entered, she burst into tears, and to her husband's inquiry whether all was well, replied, "No! what can be well with a woman when her honour is lost? The marks of a stranger, Collatinus, are in your bed. But it is only the body that has been violated, the soul is pure; death shall bear witness to that. But pledge me your solemn word that the adulterer shall not go unpunished. It is Sextus Tarquin, who, coming as an enemy instead of a guest, forced from me last night by brutal violence a pleasure fatal to me, and, if you are men, fatal to him." They all successively pledged their word, and tried to console the distracted woman by turning the guilt from the victim of the outrage to the perpetrator, and urging that it is the mind that sins, not the body, and where there has been no consent there is no guilt. "It is for you," she said, "to see that he gets his deserts; although I acquit myself of the sin, I do not free myself from the penalty; no unchaste woman shall henceforth live and plead Lucretia's example." She had a knife concealed in her dress which she plunged into her heart, and fell dying on the floor. Her father and husband raised the death-cry.

[1.59]Whilst they were absorbed in grief, Brutus drew the knife from Lucretia's wound, and holding it, dripping with blood, in front of him, said, "By this blood - most pure before the outrage wrought by the king's son - I swear, and you, O gods, I call to witness that I will drive hence Lucius Tarquinius Superbus, together with his cursed

wife and his whole brood, with fire and sword and every means in my power, and I will not suffer them or any one else to reign in Rome." Then he handed the knife to Collatinus and then to Lucretius and Valerius, who were all astounded at the marvel of the thing, wondering whence Brutus had acquired this new character. They swore as they were directed; all their grief changed to wrath, and they followed the lead of Brutus, who summoned them to abolish the monarchy forthwith. They carried the body of Lucretia from her home down to the Forum, where, owing to the unheard-of atrocity of the crime, they at once collected a crowd. Each had his own complaint to make of the wickedness and violence of the royal house. Whilst all were moved by the father's deep distress, Brutus bade them stop their tears and idle laments, and urged them to act as men and Romans and take up arms against their insolent foes. All the high-spirited amongst the younger men came forward as armed volunteers, the rest followed their example. A portion of this body was left to hold Collatia, and guards were stationed at the gates to prevent any news of the movement from reaching the king; the rest marched in arms to Rome with Brutus in command. On their arrival, the sight of so many men in arms spread panic and confusion wherever they marched, but when again the people saw that the foremost men of the State were leading the way, they realised that whatever the movement was it was a serious one. The terrible occurrence created no less excitement in Rome than it had done in Collatia; there was a rush from all quarters of the City to the Forum. When they had gathered there, the herald summoned them to attend the "Tribune of the Celeres"; this was the office which Brutus happened at the time to be holding. He made a speech quite out of keeping with the character and temper he had up to that day assumed. He dwelt upon the brutality and licentiousness of Sextus Tarquin, the infamous outrage on Lucretia and her pitiful death, the bereavement sustained by her father, Tricipitinus, to whom the cause of his daughter's death was more shameful and distressing than the actual death itself. Then he dwelt on the tyranny of the king, the toils and sufferings of the plebeians kept underground clearing out ditches and sewers - Roman men, conquerors of all the surrounding nations, turned from warriors into artisans and stonemasons! He reminded them of the shameful murder of Servius Tullius and his daughter driving in her accursed chariot over her father's body, and solemnly invoked the gods as the avengers of murdered parents. By

enumerating these and, I believe, other still more atrocious incidents which his keen sense of the present injustice suggested, but which it is not easy to give in detail, he goaded on the incensed multitude to strip the king of his sovereignty and pronounce a sentence of banishment against Tarquin with his wife and children. With a picked body of the "Juniors," who volunteered to follow him, he went off to the camp at Ardea to incite the army against the king, leaving the command in the City to Lucretius, who had previously been made Prefect of the City by the king. During the commotion Tullia fled from the palace amidst the execrations of all whom she met, men and women alike invoking against her her father's avenging spirit.

[1.60]When the news of these proceedings reached the camp, the king, alarmed at the turn affairs were taking, hurried to Rome to quell the outbreak. Brutus, who was on the same road had become aware of his approach, and to avoid meeting him took another route, so that he reached Ardea and Tarquin Rome almost at the same time, though by different ways. Tarquin found the gates shut, and a decree of banishment passed against him; the Liberator of the City received a joyous welcome in the camp, and the king's sons were expelled from it. Two of them followed their father into exile amongst the Etruscans in Caere. Sextus Tarquin proceeded to Gabii, which he looked upon as his kingdom, but was killed in revenge for the old feuds he had kindled by his rapine and murders. Lucius Tarquinius Superbus reigned twenty-five years. The whole duration of the regal government from the foundation of the City to its liberation was two hundred and forty-four years. Two consuls were then elected in the assembly of centuries by the prefect of the City, in accordance with the regulations of Servius Tullius. They were Lucius Junius Brutus and Lucius Tarquinius Collatinus.

BOOK 2: THE EARLY YEARS OF THE REPUBLIC

[2.1]It is of a Rome henceforth free that I am to write the history - her civil administration and the conduct of her wars, her annually elected magistrates, the authority of her laws supreme over all her citizens. The tyranny of the last king made this liberty all the more welcome, for such had been the rule of the former kings that they might not undeservedly be counted as founders of parts, at all events, of the city; for the additions they made were required as abodes for

the increased population which they themselves had augmented. There is no question that the Brutus who won such glory through the expulsion of Superbus would have inflicted the gravest injury on the State had he wrested the sovereignty from any of the former kings, through desire of a liberty for which the people were not ripe. What would have been the result if that horde of shepherds and immigrants, fugitives from their own cities, who had secured liberty, or at all events impunity, in the shelter of an inviolable sanctuary, - if, I say, they had been freed from the restraining power of kings and, agitated by tribunician storms, had begun to foment quarrels with the patricians in a City where they were aliens before sufficient time had elapsed for either family ties or a growing love for the very soil to effect a union of hearts? The infant State would have been torn to pieces by internal dissension. As it was, however, the moderate and tranquilising authority of the kings had so fostered it that it was at last able to bring forth the fair fruits of liberty in the maturity of its strength. But the origin of liberty may be referred to this time rather because the consular authority was limited to one year than because there was any weakening of the authority which the kings had possessed. The first consuls retained all the old jurisdiction and insignia of office, one only, however, had the "fasces," to prevent the fear which might have been inspired by the sight of both with those dread symbols. Through the concession of his colleague, Brutus had them first, and he was not less zealous in guarding the public liberty than he had been in achieving it. His first act was to secure the people, who were now jealous of their newly-recovered liberty, from being influenced by any entreaties or bribes from the king. He therefore made them take an oath that they would not suffer any man to reign in Rome. The senate had been thinned by the murderous cruelty of Tarquin, and Brutus' next care was to strengthen its influence by selecting some of the leading men of equestrian rank to fill the vacancies; by this means he brought it up to the old number of three hundred. The new members were known as "conscripti," the old ones retained their designation of "patres." This measure had a wonderful effect in promoting harmony in the State and bringing the patricians and plebeians together.

[2.2]He next gave his attention to the affairs of religion. Certain public functions had hitherto been executed by the kings in person; with the view of supplying their place a "king for sacrifices" was

created, and lest he should become king in anything more than name, and so threaten that liberty which was their first care, his office was made subordinate to the Pontifex Maximus. I think that they went to unreasonable lengths in devising safeguards for their liberty, in all, even the smallest points. The second consul - L. Tarquinius Collatinus - bore an unpopular name - this was his sole offence - and men said that the Tarquins had been too long in power. They began with Priscus; then Servius Tullius reigned, and Superbus Tarquinius, who even after this interruption had not lost sight of the throne which another filled, regained it by crime and violence as the hereditary possession of his house. And now that he was expelled, their power was being wielded by Collatinus; the Tarquins did not know how to live in a private station, the very name was a danger to liberty. What were at first whispered hints became the common talk of the City, and as the people were becoming suspicious and alarmed, Brutus summoned an assembly. He first of all rehearsed the people's oath, that they would suffer no man to reign or to live in Rome by whom the public liberty might be imperilled. This was to be guarded with the utmost care, no means of doing so were to be neglected. Personal regard made him reluctant to speak, nor would he have spoken had not his affection for the commonwealth compelled him. The Roman people did consider that their freedom was not yet fully won; the royal race, the royal name, was still there, not only amongst the citizens but in the government; in that fact lay an injury, an obstacle to full liberty. Turning to his brother consul: "These apprehensions it is for you, L. Tarquinius, to banish of your own free will. We have not forgotten, I assure you, that you expelled the king's family, complete your good work, remove their very name. Your fellow-citizens will, on my authority, not only hand over your property, but if you need anything, they will add to it with lavish generosity. Go, as our friend, relieve the commonwealth from a, perhaps groundless, fear: men are persuaded that only with the family will the tyranny of the Tarquins depart." At first the consul was struck dumb with astonishment at this extraordinary request; then, when he was beginning to speak, the foremost men in the commonwealth gathered round him and repeatedly urged the same plea, but with little success. It was not till Spurius Lucretius, his superior in age and rank, and also his father-in-law, began to use every method of entreaty and persuasion that he yielded to the universal wish. The consul, fearing lest after his year of office had expired and he returned

to private life, the same demand should be made upon him, accompanied with loss of property and the ignominy of banishment, formally laid down the consulship, and after transferring all his effects to Lanuvium, withdrew from the State. A decree of the senate empowered Brutus to propose to the people a measure exiling all the members of the house of Tarquin. He conducted the election of a new consul, and the centuries elected as his colleague Publius Valerius, who had acted with him in the expulsion of the royal family.

[2.3] Though no one doubted that war with the Tarquins was imminent, it did not come as soon as was universally expected. What was not expected, however, was that through intrigue and treachery the new-won liberty was almost lost. There were some young men of high birth in Rome who during the late reign had done pretty much what they pleased, and being boon companions of the young Tarquins were accustomed to live in royal fashion. Now that all were equal before the law, they missed their former licence and complained that the liberty which others enjoyed had become slavery for them; as long as there was a king, there was a person from whom they could get what they wanted, whether lawful or not, there was room for personal influence and kindness, he could show severity or indulgence, could discriminate between his friends and his enemies. But the law was a thing, deaf and inexorable, more favourable to the weak than to the powerful, showing no indulgence or forgiveness to those who transgressed; human nature being what it was, it was a dangerous plan to trust solely to one's innocence. When they had worked themselves into a state of disaffection, envoys from the royal family arrived, bringing a demand for the restoration of their property without any allusion to their possible return. An audience was granted them by the senate, and the matter was discussed for some days; fears were expressed that the non-surrender would be taken as a pretext for war, while if surrendered it might provide the means of war. The envoys, meantime, were engaged on another task: whilst ostensibly seeking only the surrender of the property they were secretly hatching schemes for regaining the crown. Whilst canvassing the young nobility in favour of their apparent object, they sounded them as to their other proposals, and meeting with a favourable reception, they brought letters addressed to them by the Tarquins and discussed plans for admitting them secretly at night into the City.

[2.4]The project was at first entrusted to the brothers Vitellii and Aquilii. The sister of the Vitellii was married to the consul Brutus, and there were grown-up children from this marriage - Titus and Tiberius. Their uncles took them into the conspiracy, there were others besides, whose names have been lost. In the meantime the opinion that the property ought to be restored was adopted by the majority of the senate, and this enabled the envoys to prolong their stay, as the consuls required time to provide vehicles for conveying the goods. They employed their time in consultations with the conspirators and they insisted on getting a letter which they were to give to the Tarquins, for without such a guarantee, they argued, how could they be sure that their envoys had not brought back empty promises in a matter of such vast importance? A letter was accordingly given as a pledge of good faith, and this it was that led to the discovery of the plot. The day previous to the departure of the envoys they happened to be dining at the house of the Vitellii. After all who were not in the secret had left, the conspirators discussed many details respecting their projected treason, which were overheard by one of the slaves who had previously suspected that something was afoot, but was waiting for the moment when the letter should be given, as its seizure would be a complete proof of the plot. When he found that it had been given, he disclosed the affair to the consuls. They at once proceeded to arrest the envoys and the conspirators, and crushed the whole plot without exciting any alarm. Their first care was to secure the letter before it was destroyed. The traitors were forthwith thrown into prison; there was some hesitation in dealing with the envoys, and although they had evidently been guilty of a hostile act, the rights of international law were accorded them.

[2.5]The question of the restoration of the property was referred anew to the senate, who yielding to their feelings of resentment prohibited its restoration, and forbade its being brought into the treasury; it was given as plunder to the plebs, that their share in this spoliation might destroy for ever any prospect of peaceable relations with the Tarquins. The land of the Tarquins, which lay between the City and the Tiber, was henceforth sacred to Mars and known as the Campus Martius. There happened, it is said, to be a crop of corn there which was ripe for the harvest, and as it would have been sacrilege to consume what was growing on the Campus, a large body

of men were sent to cut it. They carried it, straw and all, in baskets to the Tiber and threw it into the river. It was the height of the summer and the stream was low, consequently the corn stuck in the shallows, and heaps of it were covered with mud; gradually as the debris which the river brought down collected there, an island was formed. I believe that it was subsequently raised and strengthened so that the surface might be high enough above the water and firm enough to carry temples and colonnades. After the royal property had been disposed of, the traitors were sentenced and executed. Their punishment created a great sensation owing to the fact that the consular office imposed upon a father the duty of inflicting punishment on his own children; he who ought not to have witnessed it was destined to be the one to see it duly carried out. Youths belonging to the noblest families were standing tied to the post, but all eyes were turned to the consul's children, the others were unnoticed. Men did not grieve more for their punishment than for the crime which had incurred it - that they should have conceived the idea, in that year above all, of betraying to one, who had been a ruthless tyrant and was now an exile and an enemy, a newly liberated country, their father who had liberated it, the consulship which had originated in the Junian house, the senate, the plebs, all that Rome possessed of human or divine. The consuls took their seats, the lictors were told off to inflict the penalty; they scourged their bared backs with rods and then beheaded them. During the whole time, the father's countenance betrayed his feelings, but the father's stern resolution was still more apparent as he superintended the public execution. After the guilty had paid the penalty, a notable example of a different nature was provided to act as a deterrent of crime, the informer was assigned a sum of money from the treasury and he was given his liberty and the rights of citizenship. He is said to have been the first to be made free by the "vindicta." Some suppose this designation to have been derived from him, his name being Vindicius. After him it was the rule that those who were made free in this way were considered to be admitted to the citizenship.

[2.6]A detailed report of these matters reached Tarquin. He was not only furious at the failure of plans from which he had hoped so much, but he was filled with rage at finding the way blocked against secret intrigues; and consequently determined upon open war. He visited the cities of Etruria and appealed for help; in particular, he implored

the people of Veii and Tarquinii not to allow one to perish before their eyes who was of the same blood with them, and from being a powerful monarch was now, with his children, homeless and destitute. Others, he said, had been invited from abroad to reign in Rome; he, the king, whilst extending the rule of Rome by a successful war, had been driven out by the infamous conspiracy of his nearest kinsmen. They had no single person amongst them deemed worthy to reign, so they had distributed the kingly authority amongst themselves, and had given his property as plunder to the people, that all might be involved in the crime. He wanted to recover his country and his throne and punish his ungrateful subjects. The Veientes must help him and furnish him with resources, they must set about avenging their own wrongs also, their legions so often cut to pieces, their territory torn from them. This appeal decided the Veientes, they one and all loudly demanded that their former humiliations should be wiped out and their losses made good, now that they had a Roman to lead them. The people of Tarquinii were won over by the name and nationality of the exile; they were proud of having a countryman as king in Rome. So two armies from these cities followed Tarquin to recover his crown and chastise the Romans. When they had entered the Roman territory the consuls advanced against them; Valerius with the infantry in phalanx formation, Brutus reconnoitring in advance with the cavalry. Similarly the enemy's cavalry was in front of his main body, Arruns Tarquin, the king's son, in command; the king himself followed with the legionaries. Whilst still at a distance Arruns distinguished the consul by his escort of lictors; as they drew nearer he clearly recognised Brutus by his features, and in a transport of rage exclaimed, "That is the man who drove us from our country; see him proudly advancing, adorned with our insignia! Ye gods, avengers of kings, aid me!" With these words, he dug spurs into his horse and rode straight at the consul. Brutus saw that he was making for him. It was a point of honour in those days for the leaders to engage in single combat, so he eagerly accepted the challenge, and they charged with such fury, neither of them thinking of protecting himself, if only he could wound his foe, that each drove his spear at the same moment through the other's shield, and they fell dying from their horses, with the spears sticking in them. The rest of the cavalry at once engaged, and not long after the infantry came up. The battle raged with varying fortune, the two armies being fairly matched; the right wing of each was victorious,

the left defeated. The Veientes, accustomed to defeat at the hands of the Romans, were scattered in flight, but the Tarquinians, a new foe, not only held their ground, but forced the Romans to give way.

[2.7]After the battle had gone in this way, so great a panic seized Tarquin and the Etruscans that the two armies of Veii and Tarquini, on the approach of night, despairing of success, left the field and departed for their homes. The story of the battle was enriched by marvels. In the silence of the next night a great voice is said to have come from the forest of Arsia, believed to be the voice of Silvanus, which spoke thus: "The fallen of the Tusci are one more than those of their foe; the Roman is conqueror." At all events the Romans left the field as victors; the Etruscans regarded themselves as vanquished, for when daylight appeared not a single enemy was in sight. P. Valerius, the consul, collected the spoils and returned in triumph to Rome. He celebrated his colleague's obsequies with all the pomp possible in those days, but far greater honour was done to the dead by the universal mourning, which was rendered specially noteworthy by the fact that the matrons were a whole year in mourning for him, because he had been such a determined avenger of violated chastity. After this the surviving consul, who had been in such favour with the multitude, found himself - such is its fickleness - not only unpopular but an object of suspicion, and that of a very grave character. It was rumoured that he was aiming at monarchy, for he had held no election to fill Brutus' place, and he was building a house on the top of the Velia, an impregnable fortress was being constructed on that high and strong position. The consul felt hurt at finding these rumours so widely believed, and summoned the people to an assembly. As he entered the "fasces" were lowered, to the great delight of the multitude, who understood that it was to them that they were lowered as an open avowal that the dignity and might of the people were greater than those of the consul. Then, after securing silence, he began to eulogise the good fortune of his colleague who had met his death, as a liberator of his country, possessing the highest honour it could bestow, fighting for the commonwealth, whilst his glory was as yet undimmed by jealousy and distrust. Whereas he himself had outlived his glory and fallen on days of suspicion and opprobrium; from being a liberator of his country he had sunk to the level of the Aquilii and Vitellii. "Will you," he cried, "never deem any man's merit so assured that it cannot be tainted by suspicion? Am I,

the most determined foe to kings to dread the suspicion of desiring to be one myself? Even if I were dwelling in the Citadel on the Capitol, am I to believe it possible that I should be feared by my fellow-citizens? Does my reputation amongst you hang on so slight a thread? Does your confidence rest upon such a weak foundation that it is of greater moment where I am than who I am? The house of Publius Valerius shall be no check upon your freedom, your Velia shall be safe. I will not only move my house to level ground, but I will move it to the bottom of the hill that you may dwell above the citizen whom you suspect. Let those dwell on the Velia who are regarded as truer friends of liberty than Publius Valerius." All the materials were forthwith carried below the Velia and his house was built at the very bottom of the hill where now stands the temple of Vica Pota.

[2.8]Laws were passed which not only cleared the consul from suspicion but produced such a reaction that he won the people's affections, hence his soubriquet of Publicola. The most popular of these laws were those which granted a right of appeal from the magistrate to the people and devoted to the gods the person and property of any one who entertained projects of becoming king. Valerius secured the passing of these laws while still sole consul, that the people might feel grateful solely to him; afterwards he held the elections for the appointment of a colleague. The consul elected was Sp. Lucretius. But he had not, owing to his great age, strength enough to discharge the duties of his office, and within a few days he died. M. Horatius Pulvillus was elected in his place. In some ancient authors I find no mention of Lucretius, Horatius being named immediately after Brutus; as he did nothing of any note during his office, I suppose, his memory has perished. The temple of Jupiter on the Capitol had not yet been dedicated, and the consuls drew lots to decide which should dedicate it. The lot fell to Horatius. Publicola set out for the Veientine war. His friends showed unseemly annoyance at the dedication of so illustrious a fane being assigned to Horatius, and tried every means of preventing it. When all else failed, they tried to alarm the consul, whilst he was actually holding the door-post during the dedicatory prayer, by a wicked message that his son was dead, and he could not dedicate a temple while death was in his house. As to whether he disbelieved the message, or whether his conduct simply showed extraordinary self-control, there is no

definite tradition, and it is not easy to decide from the records. He only allowed the message to interrupt him so far that he gave orders for the body to be burnt; then, with his hand still on the door-post, he finished the prayer and dedicated the temple. These were the principal incidents at home and in the field during the first year after the expulsion of the royal family. The consuls elected for the next year were P. Valerius, for the second time, and T. Lucretius.

[2.9]The Tarquins had now taken refuge with Porsena, the king of Clusium, whom they sought to influence by entreaty mixed with warnings. At one time they entreated him not to allow men of Etruscan race, of the same blood as himself, to wander as penniless exiles; at another they would warn him not to let the new fashion of expelling kings go unpunished. Liberty, they urged, possessed fascination enough in itself; unless kings defend their authority with as much energy as their subjects show in quest of liberty, all things come to a dead level, there will be no one thing pre-eminent or superior to all else in the State; there will soon be an end of kingly power, which is the most beautiful thing, whether amongst gods or amongst mortal men. Porsena considered that the presence of an Etruscan upon the Roman throne would be an honour to his nation; accordingly he advanced with an army against Rome. Never before had the senate been in such a state of alarm, so great at that time was the power of Clusium and the reputation of Porsena. They feared not only the enemy but even their own fellow-citizens, lest the plebs, overcome by their fears, should admit the Tarquins into the City, and accept peace even though it meant slavery. Many concessions were made at that time to the plebs by the senate. Their first care was to lay in a stock of corn, and commissioners were despatched to Vulsi and Cumae to collect supplies. The sale of salt, hitherto in the hands of private individuals who had raised the price to a high figure, was now wholly transferred to the State. The plebs were exempted from the payment of harbour-dues and the war-tax, so that they might fall on the rich, who could bear the burden; the poor were held to pay sufficient to the State if they brought up their children. This generous action of the senate maintained the harmony of the commonwealth through the subsequent stress of siege and famine so completely that the name of king was not more abhorrent to the highest than it was to the lowest, nor did any demagogue ever succeed in becoming so

popular in after times as the senate was then by its beneficent legislation.

[2.10]On the appearance of the enemy the country people fled into the City as best they could. The weak places in the defences were occupied by military posts; elsewhere the walls and the Tiber were deemed sufficient protection. The enemy would have forced their way over the Sublician bridge had it not been for one man, Horatius Cocles. The good fortune of Rome provided him as her bulwark on that memorable day. He happened to be on guard at the bridge when he saw the Janiculum taken by a sudden assault and the enemy rushing down from it to the river, whilst his own men, a panic-struck mob, were deserting their posts and throwing away their arms. He reproached them one after another for their cowardice, tried to stop them, appealed to them in heaven's name to stand, declared that it was in vain for them to seek safety in flight whilst leaving the bridge open behind them, there would very soon be more of the enemy on the Palatine and the Capitol than there were on the Janiculum. So he shouted to them to break down the bridge by sword or fire, or by whatever means they could, he would meet the enemies' attack so far as one man could keep them at bay. He advanced to the head of the bridge. Amongst the fugitives, whose backs alone were visible to the enemy, he was conspicuous as he fronted them armed for fight at close quarters. The enemy were astounded at his preternatural courage. Two men were kept by a sense of shame from deserting him - Sp. Lartius and T. Herminius - both of them men of high birth and renowned courage. With them he sustained the first tempestuous shock and wild confused onset, for a brief interval. Then, whilst only a small portion of the bridge remained and those who were cutting it down called upon them to retire, he insisted upon these, too, retreating. Looking round with eyes dark with menace upon the Etruscan chiefs, he challenged them to single combat, and reproached them all with being the slaves of tyrant kings, and whilst unmindful of their own liberty coming to attack that of others. For some time they hesitated, each looking round upon the others to begin. At length shame roused them to action, and raising a shout they hurled their javelins from all sides on their solitary foe. He caught them on his outstretched shield, and with unshaken resolution kept his place on the bridge with firmly planted foot. They were just attempting to dislodge him by a charge when the crash of the broken

bridge and the shout which the Romans raised at seeing the work completed stayed the attack by filling them with sudden panic. Then Cocles said, "Tiberinus, holy father, I pray thee to receive into thy propitious stream these arms and this thy warrior." So, fully armed, he leaped into the Tiber, and though many missiles fell over him he swam across in safety to his friends: an act of daring more famous than credible with posterity. The State showed its gratitude for such courage; his statue was set up in the Comitium, and as much land given to him as he could drive the plough round in one day. Besides this public honour, the citizens individually showed their feeling; for, in spite of the great scarcity, each, in proportion to his means, sacrificed what he could from his own store as a gift to Cocles.

[2.11]Repulsed in his first attempt, Porsena changed his plans from assault to blockade. After placing a detachment to hold the Janiculum he fixed his camp on the plain between that hill and the Tiber, and sent everywhere for boats, partly to intercept any attempt to get corn into Rome and partly to carry his troops across to different spots for plunder, as opportunity might serve. In a short time he made the whole of the district round Rome so insecure that not only were all the crops removed from the fields but even the cattle were all driven into the City, nor did any one venture to take them outside the gates. The impunity with which the Etruscans committed their depredations was due to strategy on the part of the Romans more than to fear. For the consul Valerius, determined to get an opportunity of attacking them when they were scattered in large numbers over the fields, allowed small forages to pass unnoticed, whilst he was reserving himself for vengeance on a larger scale. So to draw on the pillagers, he gave orders to a considerable body of his men to drive cattle out of the Esquiline gate, which was the furthest from the enemy, in the expectation that they would gain intelligence of it through the slaves who were deserting, owing to the scarcity produced by the blockade. The information was duly conveyed, and in consequence they crossed the river in larger numbers than usual in the hope of securing the whole lot. P. Valerius ordered T. Herminius with a small body of troops to take up a concealed position at a distance of two miles on the Gabian road, whilst Sp. Lartius with some light-armed infantry was to post himself at the Colline gate until the enemy had passed him and then to intercept their retreat to the river. The other consul, T. Lucretius, with a few maniples made a

sortie from the Naevian gate; Valerius himself led some picked cohorts from the Caelian hill, and these were the first to attract the enemy's notice. When Herminius became aware that fighting was begun, he rose from ambush and took the enemy who were engaged with Valerius in rear. Answering cheers arose right and left, from the Colline and the Naevian gates and the pillagers, hemmed in, unequal to the fight, and with every way of escape blocked, were cut to pieces. That put an end to these irregular and scattered excursions on the part of the Etruscans.

[2.12]The blockade, however, continued, and with it a growing scarcity of corn at famine prices. Porsena still cherished hopes of capturing the City by keeping up the investment. There was a young noble, C. Mucius, who regarded it as a disgrace that whilst Rome in the days of servitude under her kings had never been blockaded in any war or by any foe, she should now, in the day of her freedom, be besieged by those very Etruscans whose armies she had often routed. Thinking that this disgrace ought to be avenged by some great deed of daring, he determined in the first instance to penetrate into the enemy's camp on his own responsibility. On second thoughts, however, he became apprehensive that if he went without orders from the consuls, or unknown to any one, and happened to be arrested by the Roman outposts, he might be brought back as a deserter, a charge which the condition of the City at the time would make only too probable. So he went to the senate. "I wish," he said, "Fathers, to swim the Tiber, and, if I can, enter the enemy's camp, not as a pillager nor to inflict retaliation for their pillagings. I am purposing, with heaven's help, a greater deed." The senate gave their approval. Concealing a sword in his robe, he started. When he reached the camp he took his stand in the densest part of the crowd near the royal tribunal. It happened to be the soldiers' pay-day, and a secretary, sitting by the king and dressed almost exactly like him, was busily engaged, as the soldiers kept coming to him incessantly. Afraid to ask which of the two was the king, lest his ignorance should betray him, Mucius struck as fortune directed the blow and killed the secretary instead of the king. He tried to force his way back with his blood-stained dagger through the dismayed crowd, but the shouting caused a rush to be made to the spot; he was seized and dragged back by the king's bodyguard to the royal tribunal. Here, alone and helpless, and in the utmost peril, he was still able to inspire more fear

than he felt. "I am a citizen of Rome," he said, "men call me C. Mucius. As an enemy I wished to kill an enemy, and I have as much courage to meet death as I had to inflict it. It is the Roman nature to act bravely and to suffer bravely. I am not alone in having made this resolve against you, behind me there is a long list of those who aspire to the same distinction. If then it is your pleasure, make up your mind for a struggle in which you will every hour have to fight for your life and find an armed foe on the threshold of your royal tent. This is the war which we the youth of Rome, declare against you. You have no serried ranks, no pitched battle to fear, the matter will be settled between you alone and each one of us singly." The king, furious with anger, and at the same time terrified at the unknown danger, threatened that if he did not promptly explain the nature of the plot which he was darkly hinting at he should be roasted alive. "Look," Mucius cried, "and learn how lightly those regard their bodies who have some great glory in view." Then he plunged his right hand into a fire burning on the altar. Whilst he kept it roasting there as if he were devoid of all sensation, the king, astounded at his preternatural conduct, sprang from his seat and ordered the youth to be removed from the altar. "Go," he said, "you have been a worse enemy to yourself than to me. I would invoke blessings on your courage if it were displayed on behalf of my country; as it is, I send you away exempt from all rights of war, unhurt, and safe." Then Mucius, reciprocating, as it were, this generous treatment, said, "Since you honour courage, know that what you could not gain by threats you have obtained by kindness. Three hundred of us, the foremost amongst the Roman youth, have sworn to attack you in this way. The lot fell to me first, the rest, in the order of their lot, will come each in his turn, till fortune shall give us a favourable chance against you."

[2.13]Mucius was accordingly dismissed; afterwards he received the soubriquet of Scaevola, from the loss of his right hand. Envoys from Porsena followed him to Rome. The king's narrow escape from the first of many attempts; which was owing solely to the mistake of his assailant, and the prospect of having to meet as many attacks as there were conspirators, so unnerved him that he made proposals of peace to Rome. One for the restoration of the Tarquins was put forward, more because he could not well refuse their request than because he had any hope of its being granted. The demand for the restitution of their territory to the Veientes, and that for the surrender of

hostages as a condition of the withdrawal of the detachment from the Janiculum, were felt by the Romans to be inevitable, and on their being accepted and peace concluded, Porsena moved his troops from the Janiculum and evacuated the Roman territory. As a recognition of his courage the senate gave C. Mucius a piece of land across the river, which was afterwards known as the Mucian Meadows. The honour thus paid to courage incited even women to do glorious things for the State. The Etruscan camp was situated not far from the river, and the maiden Cloelia, one of the hostages, escaped, unobserved, through the guards and at the head of her sister hostages swam across the river amidst a shower of javelins and restored them all safe to their relatives. When the news of this incident reached him, the king was at first exceedingly angry and sent to demand the surrender of Cloelia; the others he did not care about. Afterwards his feelings changed to admiration; he said that the exploit surpassed those of Cocles and Mucius, and announced that whilst on the one hand he should consider the treaty broken if she were not surrendered, he would on the other hand, if she were surrendered, send her back to her people unhurt. Both sides behaved honourably; the Romans surrendered her as a pledge of loyalty to the terms of the treaty; the Etruscan king showed that with him courage was not only safe but honoured, and after eulogising the girl's conduct, told her that he would make her a present of half the remaining hostages, she was to choose whom she would. It is said that after all had been brought before her, she chose the boys of tender age; a choice in keeping with maidenly modesty, and one approved by the hostages themselves, since they felt that the age which was most liable to ill-treatment should have the preference in being rescued from hostile hands. After peace was thus re-established, the Romans rewarded the unprecedented courage shown by a woman by an unprecedented honour, namely an equestrian statue. On the highest part of the Sacred Way a statue was erected representing the maiden sitting on horseback.

[2.14]Quite inconsistent with this peaceful withdrawal from the City on the part of the Etruscan king is the custom which, with other formalities, has been handed down from antiquity to our own age of "selling the goods of King Porsena." This custom must either have been introduced during the war and kept up after peace was made, or else it must have a less bellicose origin than would be implied by

the description of the goods sold as "taken from the enemy." The most probable tradition is that Porsena, knowing the City to be without food owing to the long investment, made the Romans a present of his richly-stored camp, in which provisions had been collected from the neighbouring fertile fields of Etruria. Then, to prevent the people seizing them indiscriminately as spoils of war, they were regularly sold, under the description of "the goods of Porsena," a description indicating rather the gratitude of the people than an auction of the king's personal property, which had never been at the disposal of the Romans. To prevent his expedition from appearing entirely fruitless, Porsena, after bringing the war with Rome to a close, sent his son Aruns with a part of his force to attack Aricia. At first the Aricians were dismayed by the unexpected movement, but the succours which in response to their request were sent from the Latin towns and from Cumae so far encouraged them that they ventured to offer battle. At the commencement of the action the Etruscans attacked with such vigour that they routed the Aricians at the first charge. The Cuman cohorts made a strategical flank movement, and when the enemy had pressed forward in disordered pursuit, they wheeled round and attacked them in the rear. Thus the Etruscans, now all but victorious, were hemmed in and cut to pieces. A very small remnant, after losing their general, made for Rome, as there was no nearer place of safety. Without arms, and in the guise of suppliants, they were kindly received and distributed amongst different houses. After recovering from their wounds, some left for their homes, to tell of the kind hospitality they had received; many remained behind out of affection for their hosts and the City. A district was assigned to them to dwell in, which subsequently bore the designation of "the Tuscan quarter."

[2.15]The new consuls were Sp. Lartius and T. Herminius. This year Porsena made the last attempt to effect the restoration of the Tarquins. The ambassadors whom he had despatched to Rome with this object were informed that the senate were going to send an embassy to the king, and the most honourable of the senators were forthwith despatched. They stated that the reason why a select number of senators had been sent to him in preference to a reply being given to his ambassadors at Rome was not that they had been unable to give the brief answer that kings would never be allowed in Rome, but simply that all mention of the matter might be for ever

dropped, that after the interchange of so many kindly acts there might be no cause of irritation, for he, Porsena, was asking for what would be against the liberty of Rome. The Romans, if they did not wish to hasten their own ruin, would have to refuse the request of one to whom they wished to refuse nothing. Rome was not a monarchy, but a free City, and they had made up their minds to open their gates even to an enemy sooner than to a king. It was the universal wish that whatever put an end to liberty in the City should put an end to the City itself. They begged him, if he wished Rome to be safe, to allow it to be free. Touched with a feeling of sympathy and respect, the king replied, "Since this is your fixed and unalterable determination, I will not harass you by fruitless proposals, nor will I deceive the Tarquins by holding out hopes of an assistance which I am powerless to render. Whether they insist on war or are prepared to live quietly, in either case they must seek another place of exile than this, to prevent any interruption of the peace between you and me." He followed up his words by still stronger practical proofs of friendship, for he returned the remainder of the hostages and restored the Veientine territory which had been taken away under the treaty. As all hope of restoration was cut off, Tarquin went to his son-in-law Mamilius Octavius at Tusculum. So the peace between Rome and Porsena remained unbroken.

[2.16] The new consuls were M. Valerius and P. Postumius. This year a successful action was fought with the Sabines; the consuls celebrated a triumph. Then the Sabines made preparations for war on a larger scale. To oppose them and also at the same time to guard against danger in the direction of Tusculum, from which place war, though not openly declared, was still apprehended, the consuls elected were P. Valerius for the fourth time and T. Lucretius for the second. A conflict which broke out amongst the Sabines between the peace party and the war party brought an accession of strength to the Romans. Attius Clausus, who was afterwards known in Rome as Appius Claudius, was an advocate for peace, but, unable to maintain his ground against the opposing faction, who were stirring up war, he fled to Rome with a large body of clients. They were admitted to the citizenship and received a grant of land lying beyond the Anio. They were called the Old Claudian tribe, and their numbers were added to by fresh tribesmen from that district. After his election into the senate it was not long before Appius gained a prominent position

in that body. The consuls marched into the Sabine territory, and by their devastation of the country and the defeats which they inflicted so weakened the enemy that no renewal of the war was to be feared for a long time. The Romans returned home in triumph. The following year, in the consulship of Agrippa Menenius and P. Postumius, P. Valerius died. He was universally admitted to be first in the conduct of war and the arts of peace, but though he enjoyed such an immense reputation, his private fortune was so scanty that it could not defray the expenses of his funeral. They were met by the State. The matrons mourned for him as a second Brutus. In the same year two Latin colonies, Pometia and Cora, revolted to the Auruncans. War commenced, and after the defeat of an immense army which had sought to oppose the advance of the consuls into their territory, the whole war was centered round Pometia. There was no respite from bloodshed after the battle any more than during the fighting, many more were killed than were taken prisoners; the prisoners were everywhere butchered; even the hostages, three hundred of whom they had in their hands, fell a victim to the enemy's bloodthirsty rage. This year also there was a triumph in Rome.

[2.17]The consuls who succeeded, Opiter Verginius and Sp. Cassius, tried at first to take Pometia by storm, then they had recourse to regular siege-works. Actuated more by a spirit of mortal hatred than by any hope or chance of success, the Auruncans made a sortie. The greater number were armed with blazing torches, and they carried flames and death everywhere. The "vineae" were burnt, great numbers of the besiegers were killed and wounded, they nearly killed one of the consuls - the authorities do not give his name - after he had fallen from his horse severely wounded. After this disaster the Romans returned home, with a large number of wounded, amongst them the consul, whose condition was critical. After an interval, long enough for the recovery of the wounded and the filling up of the ranks, operations were resumed at Pometia in stronger force and in a more angry temper. The vineae were repaired and the other vast works were made good, and when everything was ready for the soldiers to mount the walls, the place surrendered. The Auruncans, however, were treated with no less rigour after they had surrendered the city than if it had been taken by assault; the principal men were beheaded, the rest of the townsfolk sold as slaves. The town was razed, the land put up for sale. The consuls celebrated a triumph

more because of the terrible vengeance they had inflicted than on account of the importance of the war now terminated.

[2.18]The following year had as consuls Postumius Cominius and T. Lartius. During this year an incident occurred which, though small in itself, threatened to lead to the renewal of a war more formidable than the Latin war which was dreaded. During the games at Rome some courtesans were carried off by Sabine youths in sheer wantonness. A crowd gathered, and a quarrel arose which became almost a pitched battle. The alarm was increased by the authentic report that at the instigation of Octavius Mamilius the thirty Latin towns had formed a league. The apprehensions felt by the State at such a serious crisis led to suggestions being made for the first time for the appointment of a dictator. It is not, however, clearly ascertained in what year this office was created, or who the consuls were who had forfeited the confidence of the people owing to their being adherents of the Tarquins - for this, too, is part of the tradition - or who was the first dictator. In the most ancient authorities I find that it was T. Lartius, and that Sp. Cassius was his master of the horse. Only men of consular rank were eligible under the law governing the appointment. This makes me more inclined to believe that Lartius, who was of consular rank, was set over the consuls to restrain and direct them rather than Manlius Valerius, the son of Marcus and grandson of Volesus. Besides, if they wanted the dictator to be chosen from that family especially, they would have much sooner chosen the father, M. Valerius, a man of proved worth and also of consular rank. When, for the first time, a Dictator was created in Rome, a great fear fell on the people, after they saw the axes borne before him, and consequently they were more careful to obey his orders. For there was not, as in the case of the consuls, each of whom possessed the same authority, any chance of securing the aid of one against the other, nor was there any right of appeal, nor in short was there any safety anywhere except in punctilious obedience. The Sabines were even more alarmed at the appointment of a Dictator than the Romans, because they were convinced that it was in their account that he had been created. Accordingly envoys were sent with proposals for peace. They begged the Dictator and the senate to pardon what was a youthful escapade, but were told in reply that young men could be pardoned, but not old men, who were continually stirring up fresh wars. However, the negotiations

continued and peace would have been secured if the Sabines could have made up their minds to comply with the demand to make good the expenses of the war. War was proclaimed; an informal truce kept the year undisturbed.

[2.19]The next consuls were Ser. Sulpicius and Manlius Tullius. Nothing worth recording took place. The consuls of the following year were T. Aebutius and C. Vetusius. During their consulship Fidenae was besieged; Crustumeria captured; Praeneste revolted from the Latins to Rome. The Latin war which had been threatening for some years now at last broke out. A. Postumius, the Dictator, and T. Aebutius, Master of the Horse, advanced with a large force of infantry and cavalry to the Lake Regillus in the district of Tusculum and came upon the main army of the enemy. On hearing that the Tarquins were in the army of the Latins, the passions of the Romans were so roused that they determined to engage at once. The battle that followed was more obstinately and desperately fought than any previous ones had been. For the commanders not only took their part in directing the action, they fought personally against each other, and hardly one of the leaders in either army, with the exception of the Roman Dictator, left the field unwounded. Tarquinius Superbus, though now enfeebled by age, spurred his horse against Postumius, who in the front of the line was addressing and forming his men. He was struck in the side and carried off by a body of his followers into a place of safety. Similarly on the other wing Aebutius, Master of the Horse, directed his attack against Octavius Mamilius; the Tusculan leader saw him coming and rode at him full speed. So terrific was the shock that Aebutius' arm was pierced, Mamilius was speared in the breast, and led off by the Latins into their second line. Aebutius, unable to hold a weapon with his wounded arm, retired from the fighting. The Latin leader, in no way deterred by his wound, infused fresh energy into the combat, for, seeing that his own men were wavering, he called up the cohort of Roman exiles, who were led by Lucius Tarquinius. The loss of country and fortune made them fight all the more desperately; for a short time they restored the battle, and the Romans who were opposed to them began to give ground.

[2.20]M. Valerius, the brother of Publicola, catching sight of the fiery young Tarquin conspicuous in the front line, dug spurs into his horse and made for him with levelled lance, eager to enhance the pride of his house, that the family who boasted of having expelled the

Tarquins might have the glory of killing them. Tarquin evaded his foe by retiring behind his men. Valerius, riding headlong into the ranks of the exiles, was run through by a spear from behind. This did not check the horse's speed, and the Roman sank dying to the ground, his arms falling upon him. When the Dictator Postumius saw that one of his principal officers had fallen, and that the exiles were rushing on furiously in a compact mass whilst his men were shaken and giving ground, he ordered his own cohort - a picked force who formed his bodyguard - to treat any of their own side whom they saw in flight as enemy. Threatened in front and rear the Romans turned and faced the foe, and closed their ranks. The Dictator's cohort, fresh in mind and body, now came into action and attacked the exhausted exiles with great slaughter. Another single combat between the leaders took place; the Latin commander saw the cohort of exiles almost hemmed in by the Roman Dictator, and hurried to the front with some maniples of the reserves. T. Herminius saw them coming, and recognised Mamilius by his dress and arms. He attacked the enemies' commander much more fiercely than the Master of the Horse had previously done, so much so, in fact, that he killed him by a single spear-thrust through his side. Whilst despoiling the body he himself was struck by a javelin, and after being carried back to the camp, expired whilst his wound was being dressed. Then the Dictator hurried up to the cavalry and appealed to them to relieve the infantry, who were worn out with the struggle, by dismounting and fighting on foot. They obeyed, leaped from their horses, and protecting themselves with their targets, fought in front of the standards. The infantry recovered their courage at once when they saw the flower of the nobility fighting on equal terms and sharing the same dangers with themselves. At last the Latins were forced back, wavered, and finally broke their ranks. The cavalry had their horses brought up that they might commence the pursuit, the infantry followed. It is said that the Dictator, omitting nothing that could secure divine or human aid, vowed, during the battle, a temple to Castor and promised rewards to those who should be the first and second to enter the enemies' camp. Such was the ardour which the Romans displayed that in the same charge which routed the enemy they carried their camp. Thus was the battle fought at Lake Regillus. The Dictator and the Master of the Horse returned in triumph to the City.

[2.21]For the next three years there was neither settled peace nor open war. The consuls were Q. Cloelius and T. Larcus. They were succeeded by A. Sempronius and M. Minucius. During their consulship a temple was dedicated to Saturn and the festival of the Saturnalia instituted. The next consuls were A. Postumius and T. Verginius. I find in some authors this year given as the date of the battle at Lake Regillus, and that A. Postumius laid down his consulship because the fidelity of his colleague was suspected, on which a Dictator was appointed. So many errors as to dates occur, owing to the order in which the consuls succeeded being variously given, that the remoteness in time of both the events and the authorities make it impossible to determine either which consuls succeeded which, or in what year any particular event occurred. Ap. Claudius and P. Servilius were the next consuls. This year is memorable for the news of Tarquin's death. His death took place at Cuma, whither he had retired, to seek the protection of the tyrant Aristodemus after the power of the Latins was broken. The news was received with delight by both senate and plebs. But the elation of the patricians was carried to excess. Up to that time they had treated the commons with the utmost deference, now their leaders began to practice injustice upon them. The same year a fresh batch of colonists was sent to complete the number at Signia, a colony founded by King Tarquin. The number of tribes at Rome was increased to twenty-one. The temple of Mercury was dedicated on May 15.

[2.22]The relations with the Volscians during the Latin war were neither friendly nor openly hostile. The Volscians had collected a force which they were intending to send to the aid of the Latins had not the Dictator forestalled them by the rapidity of his movements, a rapidity due to his anxiety to avoid a battle with the combined armies. To punish them the consuls led the legions into the Volscian country. This unexpected movement paralysed the Volscians, who were not expecting retribution for what had been only an intention. Unable to offer resistance, they gave as hostages three hundred children belonging to their nobility, drawn from Cora and Pometia. The legions, accordingly, were marched back without fighting. Relieved from the immediate danger, the Volscians soon fell back on their old policy, and after forming an armed alliance with the Hernicans, made secret preparations for war. They also despatched envoys through the length and breadth of Latium to induce that

nation to join them. But after their defeat at Lake Regillus the Latins were so incensed against every one who advocated a resumption of hostilities that they did not even spare the Volscian envoys, who were arrested and conducted to Rome. There they were handed over to the consuls and evidence was produced showing that the Volscians and Hernicans were preparing for war with Rome. When the matter was brought before the senate, they were so gratified by the action of the Latins that they sent back six thousand prisoners who had been sold into slavery, and also referred to the new magistrates the question of a treaty which they had hitherto persistently refused to consider. The Latins congratulated themselves upon the course they had adopted, and the advocates of peace were in high honour. They sent a golden crown as a gift to the Capitoline Jupiter. The deputation who brought the gift were accompanied by a large number of the released prisoners, who visited the houses where they had worked as slaves to thank their former masters for the kindness and consideration shown them in their misfortunes, and to form ties of hospitality with them. At no previous period had the Latin nation been on more friendly terms both politically and personally with the Roman government.

[2.23]But a war with the Volscians was imminent, and the State was torn with internal dissensions; the patricians and the plebeians were bitterly hostile to one another, owing mainly to the desperate condition of the debtors. They loudly complained that whilst fighting in the field for liberty and empire they were oppressed and enslaved by their fellow-citizens at home; their freedom was more secure in war than in peace, safer amongst the enemy than amongst their own people. The discontent, which was becoming of itself continually more embittered, was still further inflamed by the signal misfortunes of one individual. An old man, bearing visible proofs of all the evils he had suffered, suddenly appeared in the Forum. His clothing was covered with filth, his personal appearance was made still more loathsome by a corpse-like pallor and emaciation, his unkempt beard and hair made him look like a savage. In spite of this disfigurement he was recognised by the pitying bystanders; they said that he had been a centurion, and mentioned other military distinctions he possessed. He bared his breast and showed the scars which witnessed to many fights in which he had borne an honourable part. The crowd had now almost grown to the dimensions of an Assembly of the

people. He was asked, "Whence came that garb, whence that disfigurement?" He stated that whilst serving in the Sabine war he had not only lost the produce of his land through the depredations of the enemy, but his farm had been burnt, all his property plundered, his cattle driven away, the war-tax demanded when he was least able to pay it, and he had got into debt. This debt had been vastly increased through usury and had stripped him first of his father's and grandfather's farm, then of his other property, and at last like a pestilence had reached his person. He had been carried off by his creditor, not into slavery only, but into an underground workshop, a living death. Then he showed his back scored with recent marks of the lash.

On seeing and hearing all this a great outcry arose; the excitement was not confined to the Forum, it spread everywhere throughout the City. Men who were in bondage for debt and those who had been released rushed from all sides into the public streets and invoked "the protection of the Quirites." Every one was eager to join the malcontents, numerous bodies ran shouting through all the streets to the Forum. Those of the senators who happened to be in the Forum and fell in with the mob were in great danger of their lives. Open violence would have been resorted to, had not the consuls, P. Servilius and Ap. Claudius, promptly intervened to quell the outbreak. The crowd surged round them, showed their chains and other marks of degradation. These, they said, were their rewards for having served their country; they tauntingly reminded the consuls of the various campaigns in which they had fought, and peremptorily demanded rather than petitioned that the senate should be called together. Then they closed round the Senate-house, determined to be themselves the arbiters and directors of public policy. A very small number of senators, who happened to be available, were got together by the consuls, the rest were afraid to go even to the Forum, much more to the Senate-house. No business could be transacted owing to the requisite number not being present. The people began to think that they were being played with and put off, that the absent senators were not kept away by accident or by fear, but in order to prevent any redress of their grievances, and that the consuls themselves were shuffling and laughing at their misery. Matters were reaching the point at which not even the majesty of the consuls could keep the enraged people in check, when the absentees, uncertain whether they

ran the greater risk by staying away or coming, at last entered the Senate-house. The House was now full, and a division of opinion showed itself not only amongst the senators but even between the two consuls. Appius, a man of passionate temperament, was of opinion that the matter ought to be settled by a display of authority on the part of the consuls; if one or two were brought up for trial, the rest would calm down. Servilius, more inclined to gentle measures, thought that when men's passions are aroused it was safer and easier to bend them than to break them.

[2.24]In the middle of these disturbances, fresh alarm was created by some Latin horsemen who galloped in with the disquieting tidings that a Volscian army was on the march to attack the City. This intelligence affected the patricians and the plebeians very differently; to such an extent had civic discord rent the State in twain. The plebeians were exultant, they said that the gods were preparing to avenge the tyranny of the patricians; they encouraged each other to evade enrolment, for it was better for all to die together than to perish one by one. "Let the patricians take up arms, let the patricians serve as common soldiers, that those who get the spoils of war may share its perils." The senate, on the other hand, filled with gloomy apprehensions by the twofold danger from their own fellow-citizens and from their enemy, implored the consul Servilius, who was more sympathetic towards the people, to extricate the State from the perils that beset it on all sides. He dismissed the senate and went into the Assembly of the plebs. There he pointed out how anxious the senate were to consult the interests of the plebs, but their deliberations respecting what was certainly the largest part, though still only a part, of the State had been cut short by fears for the safety of the State as a whole. The enemy were almost at their gates, nothing could be allowed to take precedence of the war, but even if the attack were postponed, it would not be honourable on the part of the plebeians to refuse to take up arms for their country till they had been paid for doing so, nor would it be compatible with the self-respect of the senate to be actuated by fear rather than by good-will in devising measures for the relief of their distressed fellow-citizens. He convinced the Assembly of his sincerity by issuing an edict that none should keep a Roman citizen in chains or duress whereby he would be prevented from enrolling for military service, none should distrain or sell the goods of a soldier as long as he was in camp, or detain his

children or grandchildren. On the promulgation of this edict those debtors who were present at once gave in their names for enrolment, and crowds of persons running in all quarters of the City from the houses where they were confined, as their creditors had no longer the right to detain them, gathered together in the Forum to take the military oath. These formed a considerable force, and none were more conspicuous for courage and activity in the Volscian war. The consul led his troops against the enemy and encamped a short distance from them.

[2.25]The very next night the Volscians, trusting to the dissensions amongst the Romans, made an attempt on the camp, on the chance of desertions taking place, or the camp being betrayed, in the darkness. The outposts perceived them, the army was aroused, and on the alarm being sounded they rushed to arms, so the Volscian attempt was foiled; for the rest of the night both sides kept quiet. The following day, at dawn, the Volscians filled up the trenches and attacked the rampart. This was already being torn down on all sides while the consul, in spite of the shouts of the whole army - of the debtors most of all - demanding the signal for action, delayed for a few minutes, in order to test the temper of his men. When he was quite satisfied as to their ardour and determination, he gave the signal to charge and launched his soldiery, eager to engage, upon the foe. They were routed at the very first onset, the fugitives were cut down as far as the infantry could pursue them, then the cavalry drove them in confusion to their camp. They evacuated it in their panic, the legions soon came up, surrounded it, captured and plundered it. The following day the legions marched to Suessa Pometia, whither the enemy had fled, and in a few days it was captured and given up to the soldiers to pillage. This to some extent relieved the poverty of the soldiers. The consul, covered with glory, led his victorious army back to Rome. Whilst on the march he was visited by envoys from the Volscians of Ecetra, who were concerned for their own safety after the capture of Pometia. By a decree of the senate, peace was granted to them, some territory was taken from them.

[2.26]Immediately afterwards a fresh alarm was created at Rome by the Sabines, but it was more a sudden raid than a regular war. News was brought during the night that a Sabine army had advanced as far as the Anio on a predatory expedition, and that the farms in that neighbourhood were being harried and burnt. A. Postumius, who

had been the Dictator in the Latin war, was at once sent there with the whole of the cavalry force; the consul Servilius followed with a picked body of infantry. Most of the enemy were surrounded by the cavalry while scattered in the fields; the Sabine legion offered no resistance to the advance of the infantry. Tired out with their march and the nocturnal plundering - a large proportion of them were in the farms full of food and wine - they had hardly sufficient strength to flee. The Sabine war was announced and concluded in one night, and strong hopes were entertained that peace had now been secured everywhere. The next day, however, envoys from the Auruncans came with a demand for the evacuation of the Volscian territory, otherwise they were to proclaim war. The army of the Auruncans had begun their advance when the envoys left home, and the report of its having been seen not far from Aricia created so much excitement and confusion amongst the Romans that it was impossible either for the senate to take the matter into formal consideration, or for a favourable reply to be given to those who were commencing hostilities, since they were themselves taking up arms to repel them. They marched to Aricia; not far from there they engaged the Auruncans and in one battle finished the war.

[2.27]After the defeat of the Auruncans, the Romans, who had, within a few days, fought so many successful wars, were expecting the fulfilment of the promises which the consul had made on the authority of the senate. Appius, partly from his innate love of tyranny and partly to undermine the confidence felt in his colleague, gave the harshest sentences he could when debtors were brought before him. One after another those who had before pledged their persons as security were now handed over to their creditors, and others were compelled to give such security. A soldier to whom this happened appealed to the colleague of Appius. A crowd gathered round Servilius, they reminded him of his promises, upbraided him with their services in war and the scars they had received, and demanded that he should either get an ordinance passed by the senate, or, as consul, protect his people; as commander, his soldiers. The consul sympathised with them, but under the circumstances he was compelled to temporise; the opposite policy was so recklessly insisted on not only by his colleague but by the entire party of the nobility. By taking a middle course he did not escape the odium of the plebs nor did he win the favour of the patricians. These regarded him as a

weak popularity-hunting consul, the plebeians considered him false, and it soon became apparent that he was as much detested as Appius.

A dispute had arisen between the consuls as to which of them should dedicate the temple of Mercury. The senate referred the question to the people, and issued orders that the one to whom the dedication was assigned by the people should preside over the corn-market and form a guild of merchants and discharge functions in the presence of the Pontifex Maximus. The people assigned the dedication of the temple to M. Laetorius, the first centurion of the legion, a choice obviously made not so much to honour the man, by conferring upon him an office so far above his station, as to bring discredit on the consuls. One of them, at all events, was excessively angry, as were the senate, but the courage of the plebs had risen, and they went to work in a very different method from that which they had adopted at first. For as any prospect of help from the consuls or the senate was hopeless, they took matters into their own hands, and whenever they saw a debtor brought before the court, they rushed there from all sides, and by their shouts and uproar prevented the consul's sentence from being heard, and when it was pronounced no one obeyed it. They resorted to violence, and all the fear and danger to personal liberty was transferred from the debtors to the creditors, who were roughly handled before the eyes of the consul. In addition to all this there were growing apprehensions of a Sabine war. A levy was decreed, but no one gave in his name. Appius was furious; he accused his colleague of courting the favour of the people, denounced him as a traitor to the commonwealth because he refused to give sentence where debtors were brought before him, and moreover he refused to raise troops after the senate had ordered a levy. Still, he declared, the ship of State was not entirely deserted nor the consular authority thrown to the winds; he, single-handed, would vindicate his own dignity and that of the senate. Whilst the usual daily crowd were standing round him, growing ever bolder in licence, he ordered one conspicuous leader of the agitation to be arrested. As he was being dragged away by the lictors, he appealed. There was no doubt as to what judgment the people would give, and he would not have allowed the appeal had not his obstinacy been with great difficulty overcome more by the prudence and authority of the senate than by the clamour of the people, so determined was he to brave the popular odium. From that time the mischief became more serious every day, not only

through open clamour but, what was far more dangerous, through secession and secret meetings. At length the consuls, detested as they were by the plebs, went out of office - Servilius equally hated by both orders, Appius in wonderful favour with the patricians.

[2.28] Then A. Verginius and T. Vetustius took office. As the plebeians were doubtful as to what sort of consuls they would have, and were anxious to avoid any precipitate and ill-considered action which might result from hastily adopted resolutions in the Forum, they began to hold meetings at night, some on the Esquiline and others on the Aventine. The consuls considered this state of things to be fraught with danger, as it really was, and made a formal report to the senate. But any orderly discussion of their report was out of the question, owing to the excitement and clamour with which the senators received it, and the indignation they felt at the consuls throwing upon them the odium of measures which they ought to have carried on their own authority as consuls. "Surely," it was said, "if there were really magistrates in the State, there would have been no meetings in Rome beyond the public Assembly; now the State was broken up into a thousand senates and assemblies, since some councils were being held on the Esquiline and others on the Aventine. Why, one man like Appius Claudius, who was worth more than a consul, would have dispersed these gatherings in a moment." When the consuls, after being thus censured, asked what they wished them to do, as they were prepared to act with all the energy and determination that the senate desired, a decree was passed that the levy should be raised as speedily as possible, for the plebs was waxing wanton through idleness. After dismissing the senate, the consuls ascended the tribunal and called out the names of those liable to active service. Not a single man answered to his name. The people, standing round as though in formal assembly, declared that the plebs could no longer be imposed upon, the consuls should not get a single soldier until the promise made in the name of the State was fulfilled. Before arms were put into their hands, every man's liberty must be restored to him, that they might fight for their country and their fellow-citizens and not for tyrannical masters. The consuls were quite aware of the instructions they had received from the senate, but they were also aware that none of those who had spoken so bravely within the walls of the Senate-house were now present to share the odium which they were incurring. A desperate conflict with the plebs

seemed inevitable. Before proceeding to extremities they decided to consult the senate again. Thereupon all the younger senators rushed from their seats, and crowding round the chairs of the consuls, ordered them to resign their office and lay down an authority which they had not the courage to maintain.

[2.29] Having had quite enough of trying to coerce the plebs on the one hand and persuading the senate to adopt a milder course on the other, the consuls at last said: "Senators, that you may not say you have not been forewarned, we tell you that a very serious disturbance is at hand. We demand that those who are the loudest in charging us with cowardice shall support us whilst we conduct the levy. We will act as the most resolute may wish, since such is your pleasure." They returned to the tribunal and purposely ordered one of those who were in view to be called up by name. As he stood silent, and a number of men had closed round him to prevent his being seized, the consuls sent a lictor to him. The lictor was pushed away, and those senators who were with the consuls exclaimed that it was an outrageous insult and rushed down from the tribunal to assist the lictor. The hostility of the crowd was diverted from the lictor, who had simply been prevented from making the arrest, to the senators. The interposition of the consuls finally allayed the conflict. There had, however, been no stones thrown or weapons used, it had resulted in more noise and angry words than personal injury. The senate was summoned and assembled in disorder; its proceedings were still more disorderly. Those who had been roughly handled demanded an inquiry, and all the more violent members supported the demand by shouting and uproar quite as much as by their votes. When at last the excitement had subsided, the consuls censured them for showing as little calm judgment in the senate as there was in the Forum. Then the debate proceeded in order. Three different policies were advocated. P. Valerius did not think the general question ought to be raised; he thought they ought only to consider the case of those who, in reliance on the promise of the consul P. Servilius, had served in the Volscian, Auruncan, and Sabine wars. Titus Larcus considered that the time had passed for rewarding only men who had served, the whole plebs was overwhelmed with debt, the evil could not be arrested unless there was a measure for universal relief. Any attempt to differentiate between the various classes would only kindle fresh discord instead of allaying it. Appius Claudius, harsh by nature, and

now maddened by the hatred of the plebs on the one hand and the praises of the senate on the other, asserted that these riotous gatherings were not the result of misery but of licence, the plebeians were actuated by wantonness more than by anger. This was the mischief which had sprung from the right of appeal, for the consuls could only threaten without the power to execute their threats as long as a criminal was allowed to appeal to his fellow-criminals. "Come," said he, "let us create a Dictator from whom there is no appeal, then this madness which is setting everything on fire will soon die down. Let me see any one strike a lictor then, when he knows that his back and even his life are in the sole power of the man whose authority he attacks."

[2.30] To many the sentiments which Appius uttered seemed cruel and monstrous, as they really were. On the other hand, the proposals of Verginius and Larcus would set a dangerous precedent, that of Larcus at all events, as it would destroy all credit. The advice given by Verginius was regarded as the most moderate, being a middle course between the other two. But through the strength of his party, and the consideration of personal interests which always have injured and always will injure public policy, Appius won the day. He was very nearly being himself appointed Dictator, an appointment which would more than anything have alienated the plebs, and that too at a most critical time when the Volscians, the Aequi, and the Sabines were all in arms together. The consuls and the older patricians, however, took care that a magistracy clothed with such tremendous powers should be entrusted to a man of moderate temper. They created M. Valerius, the son of Volesus, Dictator. Though the plebeians recognised that it was against them that a Dictator had been created, still, as they held their right of appeal under a law which his brother had passed, they did not fear any harsh or tyrannical treatment from that family. Their hopes were confirmed by an edict issued by the Dictator, very similar to the one made by Servilius. That edict had been ineffective, but they thought that more confidence could be placed in the person and power of the Dictator, so, dropping all opposition, they gave in their names for enrolment. Ten legions, were formed, a larger army than had ever before been assembled. Three of them were assigned to each of the consuls, the Dictator took command of four.

The war could no longer be delayed. The Aequi had invaded the Latin territory. Envoys sent by the Latins asked the senate either to send help or allow them to arm for the purpose of defending their frontier. It was thought safer to defend the unarmed Latins than to allow them to re-arm themselves. The consul Vetusius was despatched, and that was the end of the raids. The Aequi withdrew from the plains, and trusting more to the nature of the country than to their arms, sought safety on the mountain ridges. The other consul advanced against the Volscians, and to avoid loss of time, he devastated their fields with the object of forcing them to move their camp nearer to his and so bringing on an engagement. The two armies stood facing each other, in front of their respective lines, on the level space between the camps. The Volscians had considerably the advantage in numbers, and accordingly showed their contempt for their foe by coming on in disorder. The Roman consul kept his army motionless, forbade their raising an answering shout, and ordered them to stand with their spears fixed in the ground, and when the enemy came to close quarters, to spring forward and make all possible use of their swords. The Volscians, wearied with their running and shouting, threw themselves upon the Romans as upon men benumbed with fear, but when they felt the strength of the counter-attack and saw the swords flashing before them, they retreated in confusion just as if they had been caught in an ambush, and owing to the speed at which they had come into action, they had not even strength to flee. The Romans, on the other hand, who at the beginning of the battle had remained quietly standing, were fresh and vigorous, and easily overtook the exhausted Volscians, rushed their camp, drove them out, and pursued them as far as Velitrae, victors and vanquished bursting pell-mell into the city. A greater slaughter of all ranks took place there than in the actual battle; a few who threw down their arms and surrendered received quarter.

[2.31] Whilst these events were occurring amongst the Volscians, the Dictator, after entering the Sabine territory, where the most serious part of the war lay, defeated and routed the enemy and chased them out of their camp. A cavalry charge had broken the enemy's centre which, owing to the excessive lengthening of the wings, was weakened by an insufficient depth of files, and while thus disordered the infantry charged them. In the same charge the camp was captured and the war brought to a close. Since the battle at Lake Regillus no

more brilliant action had been fought in those years. The Dictator rode in triumph into the City. In addition to the customary distinctions, a place was assigned in the Circus Maximus to him and to his posterity, from which to view the Games, and the sella curulis was placed there. After the subjugation of the Volscians, the territory of Velitrae was annexed and a body of Roman citizens was sent out to colonise it. Some time later, an engagement took place with the Aequi. The consul was reluctant to fight as he would have to attack on unfavourable ground, but his soldiers forced him into action. They accused him of protracting the war in order that the Dictator's term of office might expire before they returned home, in which case his promises would fall to the ground, as those of the consul had previously done. They compelled him to march his army up the mountain at all hazards; but owing to the cowardice of the enemy this unwise step resulted in success. They were so astounded at the daring of the Romans that before they came within range of their weapons they abandoned their camp, which was in a very strong position, and dashed down into the valley in the rear. So the victors gained a bloodless victory and ample spoil.

Whilst these three wars were thus brought to a successful issue, the course which domestic affairs were taking continued to be a source of anxiety to both the patricians and the plebeians. The money-lenders possessed such influence and had taken such skilful precautions that they rendered the commons and even the Dictator himself powerless. After the consul Vetusius had returned, Valerius introduced, as the very first business of the senate, the treatment of the men who had been marching to victory, and moved a resolution as to what decision they ought to come to with regard to the debtors. His motion was negatived, on which he said, "I am not acceptable as an advocate of concord. Depend upon it, you will very soon wish that the Roman plebs had champions like me. As far as I am concerned, I will no longer encourage my fellow-citizens in vain hopes nor will I be Dictator in vain. Internal dissensions and foreign wars have made this office necessary to the commonwealth; peace has now been secured abroad, at home it is made impossible. I would rather be involved in the revolution as a private citizen than as Dictator." So saying, he left the House and resigned his dictatorship. The reason was quite clear to the plebs; he had resigned office because he was indignant at the way they were treated. The non-

fulfilment of his pledge was not due to him, they considered that he had practically kept his word, and on his way home they followed him with approving cheers.

[2.32]The senate now began to feel apprehensive lest on the disbandment of the army there should be a recurrence of the secret conclaves and conspiracies. Although the Dictator had actually conducted the enrolment, the soldiers had sworn obedience to the consuls. Regarding them as still bound by their oath, the senate ordered the legions to be marched out of the City on the pretext that war had been recommenced by the Aequi. This step brought the revolution to a head. It is said that the first idea was to put the consuls to death that the men might be discharged from their oath; then, on learning that no religious obligation could be dissolved by a crime, they decided, at the instigation of a certain Sicinius, to ignore the consuls and withdraw to the Sacred Mount, which lay on the other side of the Anio, three miles from the City. This is a more generally accepted tradition than the one adopted by Piso that the secession was made to the Aventine. There, without any commander in a regularly entrenched camp, taking nothing with them but the necessities of life, they quietly maintained themselves for some days, neither receiving nor giving any provocation. A great panic seized the City, mutual distrust led to a state of universal suspense. Those plebeians who had been left by their comrades in the City feared violence from the patricians; the patricians feared the plebeians who still remained in the City, and could not make up their minds whether they would rather have them go or stay. "How long," it was asked, "would the multitude who had seceded remain quiet? What would happen if a foreign war broke out in the meantime?" They felt that all their hopes rested on concord amongst the citizens, and that this must be restored at any cost.

The senate decided, therefore, to send as their spokesman Menenius Agrippa, an eloquent man, and acceptable to the plebs as being himself of plebeian origin. He was admitted into the camp, and it is reported that he simply told them the following fable in primitive and uncouth fashion. "In the days when all the parts of the human body were not as now agreeing together, but each member took its own course and spoke its own speech, the other members, indignant at seeing that everything acquired by their care and labour and ministry went to the belly, whilst it, undisturbed in the middle of them all, did

nothing but enjoy the pleasures provided for it, entered into a conspiracy; the hands were not to bring food to the mouth, the mouth was not to accept it when offered, the teeth were not to masticate it. Whilst, in their resentment, they were anxious to coerce the belly by starving it, the members themselves wasted away, and the whole body was reduced to the last stage of exhaustion. Then it became evident that the belly rendered no idle service, and the nourishment it received was no greater than that which it bestowed by returning to all parts of the body this blood by which we live and are strong, equally distributed into the veins, after being matured by the digestion of the food." By using this comparison, and showing how the internal disaffection amongst the parts of the body resembled the animosity of the plebeians against the patricians, he succeeded in winning over his audience.

[2.33]Negotiations were then entered upon for a reconciliation. An agreement was arrived at, the terms being that the plebs should have its own magistrates, whose persons were to be inviolable, and who should have the right of affording protection against the consuls. And further, no patrician should be allowed to hold that office. Two "tribunes of the plebs" were elected, C. Licinius and L. Albinus. These chose three colleagues. It is generally agreed that Sicinius, the instigator of the secession, was amongst them, but who the other two were is not settled. Some say that only two tribunes were created on the Sacred Hill and that it was there that the *lex sacrata* was passed. During the secession of the plebs Sp. Cassius and Postumius Cominius entered on their consulship. In their year of office a treaty was concluded with the Latin towns, and one of the consuls remained in Rome for the purpose. The other was sent to the Volscian war. He routed a force of Volscians from Antium, and pursued them to Longula, which he gained possession of. Then he advanced to Polusca, also belonging to the Volscians, which he captured, after which he attacked Corioli in great force.

Amongst the most distinguished of the young soldiers in the camp at that time was Cnaeus Marcius, a young man prompt in counsel and action, who afterwards received the epithet of Coriolanus. During the progress of the siege, while the Roman army was devoting its whole attention to the townspeople whom it had shut up within their walls, and not in the least apprehending any danger from hostile movements without, it was suddenly attacked by Volscian legions

who had marched from Antium. At the same moment a sortie was made from the town. Marcius happened to be on guard, and with a picked body of men not only repelled the sortie but made a bold dash through the open gate, and after cutting down many in the part of the city nearest to him, seized some fire and hurled it on the buildings which abutted on the walls. The shouts of the townsmen mingled with the shrieks of the terrified women and children encouraged the Romans and dismayed the Volscians, who thought that the city which they had come to assist was already captured. So the troops from Antium were routed and Corioli taken. The renown which Marcius won so completely eclipsed that of the consul, that, had not the treaty with the Latins - which owing to his colleague's absence had been concluded by Sp. Cassius alone - been inscribed on a brazen column, and so permanently recorded, all memory of Postumius Cominius having carried on a war with the Volscians would have perished. In the same year Agrippa Menenius died, a man who all through his life was equally beloved by the patricians and the plebeians, and made himself still more endeared to the plebeians after their secession. Yet he, the negotiator and arbitrator of the reconciliation, who acted as the ambassador of the patricians to the plebs, and brought them back to the City, did not possess money enough to defray the cost of his funeral. He was interred by the plebeians, each man contributing a sextans towards the expense.

[2.34]The new consuls were T. Geganius and P. Minucius. In this year, whilst all abroad was undisturbed by war and the civic dissensions at home were healed, the commonwealth was attacked by another much more serious evil: first, dearness of food, owing to the fields remaining uncultivated during the secession, and following on this a famine such as visits a besieged city. It would have led to the perishing of the slaves in any case, and probably the plebeians would have died, had not the consuls provided for the emergency by sending men in various directions to buy corn. They penetrated not only along the coast to the right of Ostia into Etruria, but also along the sea to the left past the Volscian country as far as Cumae. Their search extended even as far as Sicily; to such an extent did the hostility of their neighbours compel them to seek distant help. When corn had been bought at Cumae, the ships were detained by the tyrant Aristodemus, in lieu of the property of Tarquin, to whom he was heir. Amongst the Volscians and in the Pomptine district it was even

impossible to purchase corn, the corn merchants were in danger of being attacked by the population. Some corn came from Etruria up the Tiber; this served for the support of the plebeians. They would have been harassed by a war, doubly unwelcome when provisions were so scarce, if the Volscians, who were already on the march, had not been attacked by a frightful pestilence. This disaster cowed the enemy so effectually that even when it had abated its violence they remained to some extent in a state of terror; the Romans increased the number of colonists at Velitrae and sent a new colony to Norba, up in the mountains, to serve as a stronghold in the Pomptine district.

During the consulship of M. Minucius and A. Sempronius, a large quantity of corn was brought from Sicily, and the question was discussed in the senate at what price it should be given to the plebs. Many were of opinion that the moment had come for putting pressure on the plebeians, and recovering the rights which had been wrested from the senate through the secession and the violence which accompanied it. Foremost among these was Marcus Coriolanus, a determined foe to the tribunitian power. "If," he argued, "they want their corn at the old price, let them restore to the senate its old powers. Why, then, do I, after being sent under the yoke, ransomed as it were from brigands, see plebeian magistrates, why do I see a Sicinius in power? Am I to endure these indignities a moment longer than I can help? Am I, who could not put up with a Tarquin as king, to put up with a Sicinius? Let him secede now! let him call out his plebeians, the way lies open to the Sacred Hill and to other hills. Let them carry off the corn from our fields as they did two years ago; let them enjoy the scarcity which in their madness they have produced! I will venture to say that after they have been tamed by these sufferings, they will rather work as labourers themselves in the fields than prevent their being cultivated by an armed secession." It is not so easy to say whether they ought to have done this as it is to express one's belief that it could have been done, and the senators might have made it a condition of lowering the price of the corn that they should abrogate the tribunitian power and all the legal restrictions imposed upon them against their will.

[2.35] The senate considered these sentiments too bitter, the plebeians in their exasperation almost flew to arms. Famine, they said, was being used as a weapon against them, as though they were enemies; they were being cheated out of food and sustenance; the foreign corn,

which fortune had unexpectedly given them as their sole means of support, was to be snatched from their mouths unless their tribunes were given up in chains to Cn. Marcius, unless he could work his will on the backs of the Roman plebeians. In him a new executioner had sprung up, who ordered them either to die or live as slaves. He would have been attacked on leaving the Senate-house had not the tribunes most opportunely fixed a day for his impeachment. This allayed the excitement, every man saw himself a judge with the power of life and death over his enemy. At first Marcius treated the threats of the tribunes with contempt; they had the right of protecting not of punishing, they were the tribunes of the plebs not of the patricians. But the anger of the plebeians was so thoroughly roused that the patricians could only save themselves by the punishment of one of their order. They resisted, however, in spite of the odium: they incurred, and exercised all the powers they possessed both collectively and individually. At first they attempted to thwart proceedings by posting pickets of their clients to deter individuals from frequenting meetings and conclaves. Then they proceeded in a body - you might suppose that every patrician was impeached - and implored the plebeians, if they refused to acquit a man who was innocent, at least to give up to them, as guilty, one citizen, one senator. As he did not put in an appearance on the day of trial, their resentment remained unabated, and he was condemned in his absence. He went into exile amongst the Volscians, uttering threats against his country, and even then entertaining hostile designs against it. The Volscians welcomed his arrival, and he became more popular as his resentment against his countrymen became more bitter, and his complaints and threats were more frequently heard. He enjoyed the hospitality of Attius Tullius, who was by far the most important man at that time amongst the Volscians and a life-long enemy of the Romans. Impelled each by similar motives, the one by old-standing hatred, the other by newly-provoked resentment, they formed joint plans for war with Rome. They were under the impression that the people could not easily be induced, after so many defeats, to take up arms again, and that after their losses in their numerous wars and recently through the pestilence, their spirits were broken. The hostility had now had time to die down; it was necessary, therefore, to adopt some artifice by which fresh irritation might be produced.

[2.36]It so happened that preparations were being made for a repetition of the "Great Games." The reason for their repetition was that early in the morning, prior to the commencement of the Games, a householder after flogging his slave had driven him through the middle of the Circus Maximus. Then the Games commenced, as though the incident had no religious significance. Not long afterwards, Titus Latinius, a member of the plebs, had a dream. Jupiter appeared to him and said that the dancer who commenced the Games was displeasing to him, adding that unless those Games were repeated with due magnificence, disaster would overtake the City, and he was to go and report this to the consuls. Though he was by no means free from religious scruples, still his fears gave way before his awe of the magistrates, lest he should become an object of public ridicule. This hesitation cost him dear, for within a few days he lost his son. That he might have no doubt as to the cause of this sudden calamity, the same form again appeared to the distressed father in his sleep, and demanded of him whether he had been sufficiently repaid for his neglect of the divine will, for a more terrible recompense was impending if he did not speedily go and inform the consuls. Though the matter was becoming more urgent, he still delayed, and while thus procrastinating he was attacked by a serious illness in the form of sudden paralysis. Now the divine wrath thoroughly alarmed him, and wearied out by his past misfortune and the one from which he was suffering he called his relations together and explained what he had seen and heard, the repeated appearance of Jupiter in his sleep, the threatening wrath of heaven brought home to him by his calamities. On the strong advice of all present he was carried in a litter to the consuls in the Forum, and from there by the consuls' order into the Senate-house. After repeating the same story to the senators, to the intense surprise of all, another marvel occurred. The tradition runs that he who had been carried into the Senate-house paralysed in every limb, returned home, after performing his duty, on his own feet.

[2.37]The senate decreed that the Games should be celebrated on the most splendid scale. At the suggestion of Attius Tullius, a large number of Volscians came to them. In accordance with a previous arrangement with Marcius, Tullius came to the consuls, before the proceedings commenced, and said that there were certain matters touching the State which he wished to discuss privately with them.

When all the bystanders had been removed, he began: "It is with great reluctance that I say anything to the disparagement of my people. I do not come, however, to charge them with having actually committed any offence, but to take precautions against their committing one. The character of our citizens is more fickle than I should wish; we have experienced this in many defeats, for we owe our present security not to our own deserts but to your forbearance. Here at this moment are a great multitude of Volscians, the Games are going on, the whole City will be intent on the spectacle. I remember what an outrage was committed by the young Sabines on a similar occasion, I shudder lest any ill-advised and reckless incident should occur. For our sakes, and yours, consuls, I thought it right to give you this warning. As far as I am concerned, it is my intention to start at once for home, lest, if I stay, I should be involved in some mischief either of speech or act." With these words he departed. These vague hints, uttered apparently on good authority, were laid by the consuls before the senate. As generally happens, the authority rather than the facts of the case induced them to take even excessive precautions. A decree was passed that the Volscians should leave the City, criers were sent round ordering them all to depart before nightfall. Their first feeling was one of panic as they ran off to their respective lodgings to take away their effects, but when they had started a feeling of indignation arose at their being driven away from the Games, from a festival which was in a manner a meeting of gods and men, as though they were under the curse of heaven and unfit for human society.

[2.38]As they were going along in an almost continuous stream, Tullius, who had gone on in advance, waited for them at the Ferentine Fountain. Accosting their chief men as they came up in tones of complaint and indignation, he led them, eagerly listening to words which accorded with their own angry feelings, and through them the multitude, down to the plain which stretched below the road. There he began a speech: "Even though you should forget the wrongs that Rome has inflicted and the defeats which the Volscian nation has suffered, though you should forget everything else, with what temper, I should like to know, do you brook this insult of yesterday, when they commenced their Games by treating us with ignominy? Have you not felt that they have won a triumph over you to-day, that as you departed you were a spectacle to the townsfolk, to

the strangers, to all those neighbouring populations; that your wives, your children, were paraded as a gazing-stock before men's eyes? What do you suppose were the thoughts of those who heard the voice of the criers, those who watched us depart, those who met this ignominious cavalcade? What could they have thought but that there was some awful guilt cleaving to us, so that if we had been present at the Games we should have profaned them and made an expiation necessary, and that this was the reason why we were driven away from the abodes of these good and religious people and from all intercourse and association with them? Does it not occur to you that we owe our lives to the haste with which we departed, if we may call it a departure and not a flight? And do you count this City as anything else than the City of your enemies, where, had you lingered a single day, you would all have been put to death? War has been declared against you - to the great misery of those who have declared it, if you are really men." So they dispersed to their homes, with their feelings of resentment embittered by this harangue. They so worked upon the feelings of their fellow-countrymen, each in his own city, that the whole Volscian nation revolted.

[2.39]By the unanimous vote of the states, the conduct of the war was entrusted to Attius Tullius and Cn. Marcius, the Roman exile, on whom their hopes chiefly rested. He fully justified their expectations, so that it became quite evident that the strength of Rome lay in her generals rather than in her army. He first marched against Cerceii, expelled the Roman colony and handed it over to the Volscians as a free city. Then he took Satricum, Longula, Polusca, and Corioli, towns which the Romans had recently acquired. Marching across country into the Latin road, he recovered Lavinium, and then, in succession, Corbio, Vetellia, Trebium Labici, and Pedum. Finally, he advanced from Pedum against the City. He entrenched his camp at the Cluilian Dykes, about five miles distant, and from there he ravaged the Roman territory. The raiding parties were accompanied by men whose business it was to see that the lands of the patricians were not touched; a measure due either to his rage being especially directed against the plebeians, or to his hope that dissensions might arise between them and the patricians. These certainly would have arisen - to such a pitch were the tribunes exciting the plebs by their attacks on the chief men of the State - had not the fear of the enemy outside - the strongest bond of union - brought men together in spite

of their mutual suspicions and aversion. On one point they disagreed; the senate and the consuls placed their hopes solely in arms, the plebeians preferred anything to war. Sp. Nautius and Sex. Furius were now consuls. Whilst they were reviewing the legions and manning the walls and stationing troops in various places, an enormous crowd gathered together. At first they alarmed the consuls by seditious shouts, and at last they compelled them to convene the senate and submit a motion for sending ambassadors to Cn. Marcius. As the courage of the plebeians was evidently giving way, the senate accepted the motion, and a deputation was sent to Marcius with proposals for peace. They brought back the stern reply: If the territory were restored to the Volscians, the question of peace could be discussed; but if they wished to enjoy the spoils of war at their ease, he had not forgotten the wrongs inflicted by his countrymen nor the kindness shown by those who were now his hosts, and would strive to make it clear that his spirit had been roused, not broken, by his exile. The same envoys were sent on a second mission, but were not admitted into the camp. According to the tradition, the priests also in their robes went as suppliants to the enemies' camp, but they had no more influence with him than the previous deputation.

[2.40] Then the matrons went in a body to Veturia, the mother of Coriolanus, and Volumnia his wife. Whether this was in consequence of a decree of the senate, or simply the prompting of womanly fear, I am unable to ascertain, but at all events they succeeded in inducing the aged Veturia to go with Volumnia and her two little sons to the enemies' camp. As men were powerless to protect the City by their arms, the women sought to do so by their tears and prayers. On their arrival at the camp a message was sent to Coriolanus that a large body of women were present. He had remained unmoved by the majesty of the State in the persons of its ambassadors, and by the appeal made to his eyes and mind in the persons of its priests; he was still more obdurate to the tears of the women. Then one of his friends, who had recognised Veturia, standing between her daughter-in-law and her grandsons, and conspicuous amongst them all in the greatness of her grief, said to him, "Unless my eyes deceive me, your mother and wife and children are here." Coriolanus, almost like one demented, sprung from his seat to embrace his mother. She, changing her tone from entreaty to anger, said, "Before I admit your embrace suffer me to know whether it is to an enemy or a son that I have come, whether

it is as your prisoner or as your mother that I am in your camp. Has a long life and an unhappy old age brought me to this, that I have to see you an exile and from that an enemy? Had you the heart to ravage this land, which has borne and nourished you? However hostile and menacing the spirit in which you came, did not your anger subside as you entered its borders? Did you not say to yourself when your eye rested on Rome, 'Within those walls are my home, my household gods, my mother, my wife, my children?' Must it then be that, had I remained childless, no attack would have been made on Rome; had I never had a son, I should have ended my days a free woman in a free country? But there is nothing which I can suffer now that will not bring more disgrace to you than wretchedness to me; whatever unhappiness awaits me it will not be for long. Look to these, whom, if you persist in your present course, an untimely death awaits, or a long life of bondage." When she ceased, his wife and children embraced him, and all the women wept and bewailed their own and their country's fate. At last his resolution gave way. He embraced his family and dismissed them, and moved his camp away from the City. After withdrawing his legions from the Roman territory, he is said to have fallen a victim to the resentment which his action aroused, but as to the time and circumstances of his death the traditions vary. I find in Fabius, who is by far the oldest authority, that he lived to be an old man; he relates a saying of his, which he often uttered in his later years, that it is not till a man is old that he feels the full misery of exile. The Roman husbands did not grudge their wives the glory they had won, so completely were their lives free from the spirit of detraction and envy. A temple was built and dedicated to Fortuna Muliebris, to serve as a memorial of their deed. Subsequently the combined forces of the Volscians and Aequi re-entered the Roman territory. The Aequi, however, refused any longer to accept the generalship of Attius Tullius, a quarrel arose as to which nation should furnish the commander of the combined army, and this resulted in a bloody battle. Here the good fortune of Rome destroyed the two armies of her enemies in a conflict no less ruinous than obstinate. The new consuls were T. Sicinius and C. Aquilius. To Sicinius was assigned the campaign against the Volscians, to Aquilius that against the Hernici, for they also were in arms. In that year the Hernici were subjugated, the campaign against the Volscians ended indecisively.

[2.41]For the next year Sp. Cassius and Proculus Verginius were elected consuls. A treaty was concluded with the Hernici, two-thirds of their territory was taken from them. Of this Cassius intended to give half to the Latins and half to the Roman plebs. He contemplated adding to this a quantity of land which, he alleged, though State land, was occupied by private individuals. This alarmed many of the patricians, the actual occupiers, as endangering, the security of their property. On public grounds, too, they felt anxious, as they considered that by this largess the consul was building up a power dangerous to liberty. Then for the first time an Agrarian Law was proposed, and never, from that day to the times within our own memory, has one been mooted without the most tremendous commotions. The other consul resisted the proposed grant. In this he was supported by the senate, whilst the plebs was far from unanimous in its favour. They were beginning to look askance at a boon so cheap as to be shared between citizens and allies, and they often heard the consul Verginius in his public speeches predicting that his colleague's gift was fraught with mischief, the land in question would bring slavery on those who took it, the way was being prepared for a throne. Why were the allies, he asked, and the Latin league included? What necessity was there for a third part of the territory of the Hernici, so lately our foes, being restored to them, unless it was that these nations might have Cassius as their leader in place of Coriolanus?' The opponent of the Agrarian Law began to be popular. Then both consuls tried who could go furthest in humouring the plebs. Verginius said that he would consent to the assignment of the lands provided they were assigned to none but: Roman citizens. Cassius had courted popularity amongst the allies by including them in the distribution and had thereby sunk in the estimation of his fellow-citizens. To recover their favour he gave orders for the money which had been received for the corn from Sicily to be refunded to the people. This offer the plebeians treated with scorn as nothing else than the price of a throne. Owing to their innate suspicion that he was aiming at monarchy, his gifts were rejected as completely as if they had abundance of everything. It is generally asserted that immediately upon his vacating office he was condemned and put to death. Some assert that his own father was the author of his punishment, that he tried him privately at home, and after scourging him put him to death and devoted his private property to Ceres. From the proceeds a statue of her was made with an inscription,

"Given from the Cassian family." I find in some authors a much more probable account, viz., that he was arraigned by the quaestors Caeso Fabius and L. Valerius before the people and convicted of treason, and his house ordered to be demolished. It stood on the open space in front of the temple of Tellus. In any case, whether the trial was a public or a private one, his condemnation took place in the consulship of Servius Cornelius and Q. Fabius.

[2.42]The popular anger against Cassius did not last long. The attractiveness of the Agrarian Law, though its author was removed, was in itself sufficient to make the plebeians desire it, and their eagerness for it was intensified by the unscrupulousness of the senate, who cheated the soldiers out of their share of the spoil which they had won that year from the Volscians and Aequi. Everything taken from the enemy was sold by the consul Fabius and the amount realised paid into the treasury. In spite of the hatred which this produced in the plebs against the whole Fabian house, the patricians succeeded in getting Caeso Fabius elected with L. Aemilius as consuls for the next year. This still further embittered the plebeians, and domestic disturbances brought on a foreign war. For the time civic quarrels were suspended, patricians and plebeians were of one mind in resisting the Aequi and Volscians, and a victorious action was fought under Aemilius. The enemy lost more in the retreat than in the battle, so hotly did the cavalry pursue their routed foe. In the same year the temple of Castor was dedicated on the 15th of July. It had been vowed by the Dictator Postumius in the Latin war; his son was appointed "duumvir" for its dedication. In this year, too, the minds of the plebeians were much exercised by the attractions which the Agrarian Law held out for them, and the tribunes made their office more popular by constantly dwelling on this popular measure. The patricians, believing that there was enough and more than enough madness in the multitude as it was, viewed with horror these bribes and incentives to recklessness. The consuls led the way in offering a most determined resistance, and the senate won the day. Nor was the victory only a momentary one, for they elected as consuls for the following year M. Fabius, the brother of Caeso, and L. Valerius, who was an object of special hatred on the part of the plebs through his prosecution of Sp. Cassius. The contest with the tribunes went on through the year; the Law remained a dead letter, and the tribunes, with their fruitless promises, turned out to be idle

boasters. The Fabian house gained an immense reputation through the three successive consulships of its members, all of whom had been uniformly successful in their resistance to the tribunes. The office remained like a safe investment, for some time in the family. War now began with Veii, and the Volscians rose again. The people possessed more than sufficient strength for their foreign wars, but they wasted it in domestic strife. The universal anxiety was aggravated by supernatural portents, menacing almost daily City and country alike. The soothsayers, who were consulted by the State and by private persons, declared that the divine wrath was due to nothing else but the profanation of sacred functions. These alarms resulted in the punishment of Oppia, a Vestal virgin who was convicted of unchastity.

[2.43] The next consuls were Q. Fabius and C. Julius. During this year the civic dissensions were as lively as ever, and the war assumed a more serious form. The Aequi took up arms, and the Veientes made depredations on Roman territory. Amidst the growing anxiety about these wars Caeso Fabius and Sp. Furius were made consuls. The Aequi were attacking Ortona, a Latin city; the Veientes, laden with plunder, were now threatening to attack Rome itself. This alarming condition of affairs ought to have restrained, whereas it actually increased, the hostility of the plebs, and they resumed the old method of refusing military service. This was not spontaneous on their part; Sp. Licinius, one of their tribunes, thinking that it was a good time for forcing the Agrarian Law upon the senate through sheer necessity, had taken upon him the obstruction of the levy. All the odium, however, aroused by this misuse of the tribunitian power recoiled upon the author, his own colleagues were as much opposed to him as the consuls; through their assistance the consuls completed the enrolment. An army was raised for two wars at the same time, one against the Veientes under Fabius, the other against the Aequi under Furius. In this latter campaign nothing happened worth recording. Fabius, however, had considerably more trouble with his own men than with the enemy. He, the consul, single-handed, sustained the commonwealth, while his army through their hatred of the consul were doing their best to betray it. For, besides all the other instances of his skill as a commander, which he had so abundantly furnished in his preparation for the war and his conduct of it, he had so disposed his troops that he routed the enemy by sending only his

cavalry against them. The infantry refused to take up the pursuit; not only were they deaf to the appeals of their hated general, but even the public disgrace and infamy which they were bringing upon themselves at the moment, and the danger which would come if the enemy were to rally were powerless to make them quicken their pace, or, failing that, even to keep their formation. Against orders they retired, and with gloomy looks - you would suppose that they had been defeated - they returned to camp, cursing now their commander, now the work which the cavalry had done. Against this example of demoralisation the general was unable to devise any remedy; to such an extent may men of commanding ability be more deficient in the art of managing their own people than in that of conquering the enemy. The consul returned to Rome, but he had not enhanced his military reputation so much as he had aggravated and embittered the hatred of his soldiers towards him. The senate, however, succeeded in keeping the consulship in the family of the Fabii; they made M. Fabius consul, Gnaeus Manlius was elected as his colleague.

[2.44] This year also found a tribune advocating the Agrarian Law. It was Tiberius Pontificius. He adopted the same course as Sp. Licinius and for a short time stopped the enrolment. The senate were again perturbed, but Appius Claudius told them that the power of the tribunes had been overcome in the previous year, it was actually so at the present moment, and the precedent thus set would govern the future, since it had been discovered that its very strength was breaking it down. For there would never be wanting a tribune who would be glad to triumph over his colleague and secure the favour of the better party for the good of the State. If more were needed, more were ready to come to the assistance of the consuls, even one was sufficient, against the rest. The consuls and leaders of the senate had only to take the trouble to secure, if not all, at least some of the tribunes on the side of the commonwealth and the senate. The senators followed this advice, and whilst, as a body, they treated the tribunes with courtesy and kindness, the men of consular rank, in each private suit which they instituted, succeeded, partly by personal influence, partly by the authority their rank gave them. In getting the tribunes to exert their power for the welfare of the State. Four of the tribunes were opposed to the one who was a hindrance to the public good; by their aid the consuls raised the levy.

Then they set out for the campaign against Veii. Succours had reached this city from all parts of Etruria, not so much out of regard for the Veientines as because hopes were entertained of the possible dissolution of the Roman State through intestine discord. In the public assemblies throughout the cities of Etruria the chiefs were loudly proclaiming that the Roman power would be eternal unless its citizens fell into the madness of mutual strife. This, they said, had proved to be the one poison, the one bane in powerful states which made great empires mortal. That mischief had been for a long time checked, partly by the wise policy of the senate, partly by the forbearance of the plebs, but now things had reached extremities. The one State had been severed into two, each with its own magistrates and its own laws. At first the enrolments were the cause of the quarrel, but when actually on service the men obeyed their generals. As long as military discipline was maintained the evil could be arrested, whatever the state of affairs in the City, but now the fashion of disobedience to the magistrates was following the Roman soldier even into the camp. During the last war, in the battle itself, at the crisis of the engagement, the victory was by the common action of the whole army transferred to the vanquished Aequi, the standards were abandoned, the commander left alone on the field, the troops returned against orders into camp. In fact, if matters were pressed, Rome could be vanquished through her own soldiers, nothing else was needful than a declaration of war, a show of military activity, the Fates and the gods would do the rest.

[2.45]Anticipations like these had given the Etruscans fresh energy after their many vicissitudes of defeat and victory. The Roman consuls, too, dreaded nothing but their own strength and their own arms. The recollection of the fatal precedent set in the last war deterred them from any action whereby they would have to fear a simultaneous attack from two armies. They confined themselves to their camp, and in face of the double danger avoided an engagement, hoping that time and circumstances might perhaps calm the angry passions and bring about a more healthy state of mind. The Veientines and Etruscans were all the more energetic in forcing an engagement; they rode up to the camp and challenged the Romans to fight. At last, as they produced no effect by the taunts and insults levelled at the army and consuls alike, they declared that the consuls were using the pretext of internal dissensions to veil the cowardice of

their men, they distrusted their courage more than they doubted their loyalty. Silence and inactivity amongst men in arms was a novel kind of sedition. They also made reflections, true as well as false, on the upstart quality of their nationality and descent. They shouted all this out close up to the ramparts and gates of the camp. The consuls took it with composure, but the simple soldiery were filled with indignation and shame, and their thoughts were diverted from their domestic troubles. They were unwilling that the enemy should go on with impunity, they were equally unwilling that the patricians and the consuls should win the day, hatred against the enemy and hatred against their fellow-countrymen struggled in their minds for the mastery. At length the former prevailed, so contemptuous and insolent did the mockery of the enemy become. They gathered in crowds round the generals' quarters, they insisted upon fighting, they demanded the signal for action. The consuls put their heads together as though deliberating, and remained for some time in conference. They were anxious to fight, but their anxiety had to be repressed and concealed in order that the eagerness of the soldiers, once roused, might be intensified by opposition and delay. They replied that matters were not ripe, the time for battle had not come, they must remain within their camp. They then issued an order that there must be no fighting, any one fighting against orders would be treated as an enemy. The soldiers, dismissed with this reply, became the more eager for battle the less they thought the consuls wished for it. The enemy became much more exasperating when it was known that the consuls had determined not to fight, they imagined that they could now insult with impunity, that the soldiers were not entrusted with arms, matters would reach the stage of mutiny, and the dominion of Rome had come to an end. In this confidence they ran up to the gates, flung opprobrious epithets and hardly stopped short of storming the camp. Naturally the Romans could brook these insults no longer, they ran from all parts of the camp to the consuls, they did not now prefer their demand quietly through the first centurions as before, they shouted them in all directions. Matters were ripe, still the consuls hung back. At last Cn. Manlius, fearing lest the increasing disturbance might lead to open mutiny, gave way, and Fabius, after ordering the trumpets to command silence, addressed his colleague thus: "I know, Cn. Manlius, that these men can conquer; it is their own fault that I did not know whether they wished to do so. It has, therefore, been resolved and determined not to give the signal for

battle unless they swear that they will come out of this battle victorious. A Roman consul was once deceived by his soldiers, they cannot deceive the gods." Amongst the centurions of the first rank who had demanded to be led to battle was M. Flavoleius. "M. Fabius," he said, "I will come back from the battle victorious." He invoked the wrath of Father Jupiter and Mars Gradivus and other deities if he broke his oath. The whole army took the oath, man by man, after him. When they had sworn, the signal was given, they seized their weapons, and went into action, furious with rage and confident of victory. They told the Etruscans to continue their insults, and begged the enemy so ready with the tongue to stand up to them now they were armed. All, patricians and plebeians alike, showed conspicuous courage on that day, the Fabian house especially covered itself with glory. They determined in that battle to win back the affection of the plebs, which had been alienated through many political contests.

[2.46]The battle-line was formed; neither the Veientes nor the legions of Etruria declined the contest. They were almost certain that the Romans would no more fight with them than they fought with the Aequi, and they did not despair of something still more serious happening, considering the state of irritation they were in and the double opportunity which now presented itself. Things took a very different course, for in no previous war had the Romans gone into action with more grim determination, so exasperated were they by the insults of the enemy and the procrastination of the consuls. The Etruscans had scarcely time to form their ranks when, after the javelins had in the first confusion been flung at random rather than thrown regularly, the combatants came to a hand-to-hand encounter with swords, the most desperate kind of fighting. Amongst the foremost were the Fabii, who set a splendid example for their countrymen to behold. Quintus Fabius - the one who had been consul two years previously - charged, regardless of danger, the massed Veientes, and whilst he was engaged with vast numbers of the enemy, a Tuscan of vast strength and splendidly armed plunged his sword into his breast, and as he drew it out Fabius fell forward on the wound. Both armies felt the fall of this one man, and the Romans were beginning to give ground, when M. Fabius, the consul, sprang over the body as it lay, and holding up his buckler, shouted, "Is this what you swore, soldiers, that you would go back to camp as

fugitives? Are you more afraid of this cowardly foe than of Jupiter and Mars, by whom you swore? I, who did not swear, will either go back victorious, or will fall fighting by you, Quintus Fabius." Then Caeso Fabius, the consul of the previous year, said to the consul, "Is it by words like these, my brother, that you think you will make them fight? The gods, by whom they swore, will do that; our duty as chiefs, if we are to be worthy of the Fabian name, is to kindle our soldiers' courage by fighting rather than haranguing." So the two Fabii dashed forward with levelled spears, and carried the whole line with them.

[2.47]Whilst the battle was restored in one direction, the consul Cn. Manlius was showing no less energy on the other wing, where the fortunes of the day took a similar turn. For, like Q. Fabius on the other wing, the consul Manlius was here driving the enemy before him and his soldiers were following up with great vigour, when he was seriously wounded and retired from the front. Thinking that he was killed, they fell back, and would have abandoned their ground had not the other consul ridden up at full gallop with some troops of cavalry, and, crying out that his colleague was alive and that he had himself routed the other wing of the enemy, succeeded in checking the retreat. Manlius also showed himself amongst them, to rally his men. The well-known voices of the two consuls gave the soldiers fresh courage. At the same time the enemies' line was now weakened, for, trusting to their superiority in numbers, they had detached their reserves and sent them to storm the camp. These met with but slight resistance, and whilst they were wasting time by thinking more about plundering than about fighting, the Roman triarii, who had been unable to withstand the first assault, despatched messengers to the consul to tell him the position of affairs, and then, retiring in close order to the headquarters tent, renewed the fighting without waiting for orders. The consul Manlius had ridden back to the camp and posted troops at all the gates to block the enemies' escape. The desperate situation roused the Tuscans to madness rather than courage; they rushed in every direction where there seemed any hope of escape, and for some time their efforts were fruitless.

At last a compact body of young soldiers made an attack on the consul himself, conspicuous from his arms. The first weapons were intercepted by those who stood round him, but the violence of the onset could not long be withstood. The consul fell mortally wounded and all around him were scattered. The Tuscans were encouraged,

the Romans fled in panic through the length of the camp, and matters would have come to extremities had not the members of the consul's staff hurriedly taken up his body and opened a way for the enemy through one gate. They burst through it, and in a confused mass fell in with the other consul who had won the battle; here they were again cut to pieces and scattered in all directions. A glorious victory was won, though saddened by the death of two illustrious men. The senate decreed a triumph, but the consul replied that if the army could celebrate a triumph without its commander, he would gladly allow them to do so in return for their splendid service in the war. But as his family were in mourning for his brother, Quintus Fabius, and the State had suffered partial bereavement through the loss of one of its consuls, he could not accept laurels for himself which were blighted by public and private grief. The triumph he declined was more brilliant than any actually celebrated, so much does glory laid by for the moment return sometimes with added splendour. Afterwards he conducted the obsequies of his colleague and his brother, and pronounced the funeral oration over each. The greatest share of the praise which he conceded to them rested upon himself. He had not lost sight of the object which he set before him at the beginning of his consulship, the conciliation of the plebs. To further this, he distributed amongst the patricians the care of the wounded. The Fabii took charge of a large number, and nowhere was greater care showed them. From this time they began to be popular; their popularity was won by no methods which were inconsistent with the welfare of the State.

[2.48]Consequently the election of Caeso Fabius as consul, together with Titus Verginius, was welcomed by the plebs as much as by the patricians. Now that there was a favourable prospect of concord, he subordinated all military projects to the task of bringing the patricians and the plebs into union at the earliest possible moment. At the beginning of his year of office he proposed that before any tribune came forward to advocate the Agrarian Law, the senate should anticipate him by themselves undertaking what was their own work and distributing the territory taken in war to the plebeians as fairly as possible. It was only right that those should have it by whose sweat and blood it had been won. The patricians treated the proposal with scorn, some even complained that the once energetic mind of Caeso was becoming wanton and enfeebled through the excess of glory

which he had won. There were no party struggles in the City. The Latins were being harassed by the inroads of the Aequi. Caeso was despatched thither with an army, and crossed over into the territory of the Aequi to ravage it. The Aequi withdrew into their towns and remained behind their walls. No battle of any importance took place. But the rashness of the other consul incurred a defeat at the hands of the Veientes, and it was only the arrival of Caeso Fabius with reinforcements that saved the army from destruction. From that time there was neither peace nor war with the Veientes, whose methods closely resembled those of brigands. They retired before the Roman legions into their city; then when they found that they were withdrawn they made inroads on the fields, evading war by keeping quiet, and then making quiet impossible by war. So the business could neither be dropped nor completed. Wars were threatening in other quarters also; some seemed imminent as in the case of the Aequi and Volscians, who were only keeping quiet till the effect of their recent defeat should pass away, whilst it was evident that the Sabines, perpetual enemies of Rome, and the whole of Etruria would soon be in motion. But the Veientes, a persistent rather than a formidable foe, created more irritation than alarm because it was never safe to neglect them or to turn the attention elsewhere. Under these circumstances the Fabii came to the senate, and the consul, on behalf of his house, spoke as follows: "As you are aware, senators, the Veientine war does not require a large force so much as one constantly in the field. Let the other wars be your care, leave the Fabii to deal with the Veientes. We will guarantee that the majesty of Rome shall be safe in that quarter. We propose to carry on that war as a private war of our own at our own cost. Let the State be spared money and men there." A very hearty vote of thanks was passed; the consul left the House and returned home accompanied by the Fabii, who had been standing in the vestibule awaiting the senate's decision. After receiving instructions to meet on the morrow, fully armed, before the consul's house, they separated for their homes.

[2.49]News of what had happened spread through the whole City, the Fabii were praised up to the skies; people said, "One family had taken up the burden of the State, the Veientine war had become a private concern, a private quarrel. If there were two houses of the same strength in the City, and the one claimed the Volscians for themselves, the other the Aequi, then all the neighbouring states

could be subjugated while Rome itself remained in profound tranquillity." The next day the Fabii took their arms and assembled at the appointed place. The consul, wearing his "paludamentum," went out into the vestibule and saw the whole of his house drawn up in order of march. Taking his place in the centre, he gave the word of advance. Never has an army marched through the City smaller in numbers or with a more brilliant reputation or more universally admired. Three hundred and six soldiers, all patricians, all members of one house, not a single man of whom the senate even in its palmiest days would deem unfitted for high command, went forth, threatening ruin to the Veientes through the strength of a single family. They were followed by a crowd; made up partly of their own relatives and friends, whose minds were not occupied with ordinary hope and anxiety, but filled with the loftiest anticipations; partly of those who shared the public anxiety, and could not find words to express their affection and admiration. "Go on," they cried, "you gallant band, go on, and may you be fortunate; bring back results equal to this beginning, then look to us for consulships and triumphs and every possible reward." As they passed the Citadel and the Capitol and other temples, their friends prayed to each deity, whose statue or whose shrine they saw, that they would send that band with all favourable omens to success, and in a short time restore them safe to their country and their kindred. In vain were those prayers sent up! They proceeded on their ill-starred way by the right postern of the Carmental gate, and reached the banks of the Cremera. This seemed to them a suitable position for a fortified post. L. Aemilius and C. Servilius were the next consuls. As long as it was only a question of forays and raids, the Fabii were quite strong enough not only to protect their own fortified post, but, by patrolling both sides of the border-line between the Roman and Tuscan territories, to make the whole district safe for themselves and dangerous for the enemy. There was a brief interruption to these raids, when the Veientes, after summoning an army from Etruria, assaulted the fortified post at the Cremera. The Roman legions were brought up by the consul L. Aemilius and fought a regular engagement with the Etruscan troops. The Veientes, however, had not time to complete their formation, and during the confusion, whilst the men were getting into line and the reserves were being stationed, a squadron of Roman cavalry suddenly made a flank attack, and gave them no chance of commencing a battle or even of standing their ground. They were

driven back to their camp at the Saxa Rubra, and sued for peace. They obtained it, but their natural inconstancy made them regret it before the Roman garrison was recalled from the Cremera.

[2.50]The conflicts between the Fabii and the State of Veii were resumed without any more extensive military preparations than before. There were not only forays into each other's territories and surprise attacks upon the forayers, but sometimes they fought regular engagements, and this single Roman house often won the victory over what was at that time the most powerful city in Etruria. This was a bitter mortification to the Veientes, and they were led by circumstances to adopt the plan of trapping their daring enemy in an ambushade; they were even glad that the numerous successes of the Fabii had increased their confidence. Accordingly they drove herds of cattle, as if by accident, in the way of the foraying parties, the fields were abandoned by the peasants, and the bodies of troops sent to repel the raiders fled in a panic more often assumed than genuine. By this time the Fabii had conceived such a contempt for their foe as to be convinced that under no circumstances of either time or place could their invincible arms be resisted. This presumption carried them so far that at the sight of some distant cattle on the other side of the wide plain stretching from the camp they ran down to secure them, although but few of the enemy were visible. Suspecting no danger and keeping no order they passed the ambushade which was set on each side of the road, and whilst they were scattered in trying to catch the cattle, which in their fright were rushing wildly about, the enemy suddenly rose from their concealment and attacked them on all sides. At first they were startled by the shouts round them, then javelins fell on them from every direction. As the Etruscans closed round them, they were hemmed by a continuous ring of men, and the more the enemy pressed upon them, the less the space in which they were forced to form their ever-narrowing square. This brought out strongly the contrast between their scanty numbers and the host of Etruscans, whose ranks were multiplied through being narrowed. After a time they abandoned their plan of presenting a front on all sides; facing in one direction they formed themselves into a wedge and by the utmost exertion of sword and muscle forced a passage through. The road led up to gentle eminence, and here they halted. When the higher ground gave them room to breathe freely and to recover from the feeling of despair, they repelled those who mounted

to the attack, and through the advantage of position the little band were beginning to win the day, when some Veientes who had been sent round the hill emerged on the summit. So the enemy again had the advantage. The Fabii were all cut down to a man, and their fort taken. It is generally agreed that three hundred and six men perished, and that one only, an immature youth, was left as a stock for the Fabian house to be Rome's greatest helper in her hour of danger both at home and in the field.

[2.51]When this disaster occurred, C. Horatius and T. Menenius were consuls. Menenius was at once sent against the Tuscans, flushed with their recent victory. Another unsuccessful action was fought, and the enemy took possession of the Janiculum. The City, which was suffering from scarcity as well as from the war, would have been invested - for the Etruscans had crossed the Tiber - had not the consul Horatius been recalled from the Volsci. The fighting approached so near the walls that the first battle, an indecisive one, took place near the temple of Spes, and the second at the Colline gate. In the latter, although the Romans gained only a slight advantage, the soldiers recovered something of their old courage and were better prepared for future campaigns. The next consuls were A. Verginius and Sp. Servilius. After their defeat in the last battle, the Veientes declined an engagement. There were forays. From the Janiculum as from a citadel they made raids in all directions on the Roman territory; nowhere were the cattle or the country-folk safe. They were ultimately caught by the same stratagem by which they had caught the Fabii. Some cattle were purposely driven in different directions as a decoy; they followed them and fell into an ambushade; and as their numbers were greater, the slaughter was greater. Their rage at this defeat was the cause and commencement of a more serious one. They crossed the Tiber by night and marched up to an attack on Servilius' camp, but were routed with great loss, and with great difficulty reached the Janiculum. The consul himself forthwith crossed the Tiber and entrenched himself at the foot of the Janiculum. The confidence inspired by his victory of the previous day, but still more the scarcity of corn, made him decide upon an immediate but precipitate move. He led his army at daybreak up the side of the Janiculum to the enemies' camp; but he met with a more disastrous repulse than the one he had inflicted the day before. It was only by the intervention of his colleague that he and his army were

saved. The Etruscans, caught between the two armies, and retreating from each alternately, were annihilated. So the Veientine war was brought to a sudden close by an act of happy rashness.

[2.52] Together with peace, food came more freely into the City. Corn was brought from Campania, and as the fear of future scarcity had disappeared, each individual brought out what he had hoarded. The result of ease and plenty was fresh restlessness, and as the old evils no longer existed abroad, men began to look for them at home. The tribunes began to poison the minds of the plebeians with the Agrarian Law and inflamed them against the senators who resisted it, not only against the whole body, but individual members. Q. Considius and T. Genucius, who were advocating the Law, appointed a day for the trial of T. Menenius. Popular feeling was roused against him by the loss of the fort at the Cremera, since, as consul, he had his standing camp not far from it. This crushed him, though the senators exerted themselves for him no less than they had done for Coriolanus, and the popularity of his father Agrippa had not died away. The tribunes contented themselves with a fine, though they had arraigned him on a capital charge; the amount was fixed at 2000 "ases." This proved to be a death-sentence, for they say that he was unable to endure the disgrace and grief, and was carried off by a fatal malady. Sp. Servilius was the next to be impeached. His prosecution, conducted by the tribunes L. Caedicius and T. Statius, took place immediately after his year had expired, at the commencement of the consulship of C. Nautius and P. Valerius. When the day of trial came, he did not, like Menenius, meet the attacks of the tribunes by appeals for mercy, whether his own or those of the senators, he relied absolutely on his innocence and personal influence. The charge against him was his conduct in the battle with the Tuscans on the Janiculum; but the same courage which he then displayed, when the State was in danger, he now displayed when his own life was in danger. Meeting charge by counter-charge, he boldly laid upon the tribunes and the whole of the plebs the guilt of the condemnation and death of T. Menenius; the son, he reminded them, of the man through whose efforts the plebeians had been restored to their position in the State, and were enjoying those very magistracies and laws which now allowed them to be cruel and vindictive. By his boldness he dispelled the danger, and his colleague Verginius, who came forward as a witness, assisted him by crediting him with some

of his own services to the State. The thing that helped him more, however, was the sentence passed on Menenius, so completely had the popular sentiment changed.

[2.53]The domestic conflicts came to an end; war began again with the Veientes, with whom the Sabines had formed an armed league. The Latin and Hernican auxiliaries were summoned, and the consul P. Valerius was sent with an army to Veii. He at once attacked the Sabine camp, which was situated in front of the walls of their allies, and created such confusion that while small bodies of the defenders were making sorties in various directions to repel the attack, the gate against which the assault had been first made was forced, and once inside the rampart it became a massacre rather than a battle. The noise in the camp penetrated even to the city, and the Veientes flew to arms, in a state of as great alarm as if Veii itself was taken. Some went to the help of the Sabines, others attacked the Romans, who were wholly occupied with their assault on the camp. For a few moments they were checked and thrown into confusion; then, forming front in both directions, they offered a steady resistance while the cavalry whom the consul had ordered to charge routed the Tuscans and put them to flight. In the same hour, two armies, the two most powerful of the neighbouring states, were overcome. Whilst this was going on at Veii, the Volscians and Aequi had encamped in the Latin territory and were ravaging their borders. The Latins, in conjunction with the Hernici, drove them out of their camp without either a Roman general or Roman troops. They recovered their own property and obtained immense booty in addition. Nevertheless, the consul C. Nautius was sent from Rome against the Volscians. They did not approve, I think, of the custom of allies carrying on war in their own strength and on their own methods, without any Roman general or army. There was no kind of injury or insult that was not practiced against the Volscians; they could not, however, be driven to fight a regular battle.

[2.54]L. Furius and C. Manlius were the next consuls. The Veientes fell to Manlius as his province. There was no war, however; a forty years' truce was granted on their request; they were ordered to furnish corn and pay for the troops. Peace abroad was at once followed by discord at home. The tribunes employed the Agrarian Law to goad the plebs into a state of dangerous excitement. The consuls, nowise intimidated by the condemnation of Menenius or the danger in which

Servilius had stood, resisted them with the utmost violence. On their vacating office the tribune Genucius impeached them. They were succeeded by L. Aemilius and Opiter Verginius. I find in some annals Vopiscus Julius instead of Verginius. Whoever the consuls were, it was in this year that Furius and Manlius, who were to be tried before the people, went about in mourning garb amongst the younger members of the senate quite as much as amongst the plebs. They urged them to keep clear of the high offices of State and the administration of affairs, and to regard the consular "fasces," the "praetexta," and the curule chair as nothing but the pomp of death, for when invested with these insignia they were like victims adorned for sacrifice. If the consulship possessed such attractions for them, they must clearly understand that this office had been captured and crushed by the tribunician power; the consul had to do everything at the beck and call of the tribune just as if he were his apparitor. If he took an active line, if he showed any regard for the patricians, if he thought that anything besides the plebs formed part of the commonwealth, he should keep before his eyes the banishment of Cn. Marcius, the condemnation and death of Menenius. Fired by these appeals the senators held meetings not in the Senate-house but in private, only a few being invited. As the one point on which they were agreed was that the two who were impeached were to be rescued, by lawful or unlawful means, the most desperate plan was the most acceptable, and men were found who advocated the most daring crime. Accordingly, on the day of the trial, whilst the plebs were standing in the Forum on the tiptoe of expectation, they were surprised that the tribune did not come down to them. Further delay made them suspicious; they believed that he had been intimidated by the leaders of the senate, and they complained that the cause of the people had been abandoned and betrayed. At last some who had been waiting in the vestibule of the tribune's house sent word that he had been found dead in his house. As this news spread throughout the assembly, they at once dispersed in all directions, like a routed army that has lost its general. The tribunes especially were alarmed, for they were warned by their colleague's death how absolutely ineffective the Sacred Laws were for their protection. The patricians, on the other hand, showed extravagant delight; so far was any one of them from regretting the crime, that even those who had taken no part in it were anxious to appear as though they had, and it was openly

asserted that the tribunitian power must be chastised into submission.

[2.55]Whilst the impression produced by this frightful instance of triumphant crime was still fresh, orders were issued for a levy, and as the tribunes were thoroughly intimidated, the consuls carried it out without any interruption from them. But now the plebeians were more angry at the silence of the tribunes than at the exercise of authority on the part of the consuls. They said that it was all over with their liberty, they had gone back to the old state of things, the tribunitian power was dead and buried with Genucius. Some other method must be thought out and adopted by which they could resist the patricians, and the only possible course was for the commons to defend themselves, as they had no other help. Four-and-twenty lictors attended on the consuls, and these very men were drawn from the plebs. Nothing was more contemptible and feeble than they were, if there were any that would treat them with contempt, but every one imagined them to be great and awful things. After they had excited one another by these speeches, Volero Publilius, a plebeian, said that he ought not to be made a common soldier after serving as a centurion. The consuls sent a lictor to him. Volero appealed to the tribunes. None came to his assistance, so the consuls ordered him to be stripped and the rods got ready. "I appeal to the people," he said, "since the tribunes would rather see a Roman citizen scourged before their eyes than be murdered in their beds by you." The more excitedly he called out, the more violently did the lictor tear off his toga, to strip him. Then Volero, himself a man of unusual strength, and helped by those to whom he called, drove the lictor off, and amidst the indignant remonstrances of his supporters, retreated into the thickest part of the crowd, crying out, "I appeal to the plebs for protection. Help, fellow-citizens! help, fellow-soldiers! You have nothing to expect from the tribunes; they themselves need your aid." The men, greatly excited, got ready as if for battle, and a most critical struggle was evidently impending, where no one would show the slightest respect for either public or private rights. The consuls tried to check the fury of the storm, but they soon found that there is little safety for authority without strength. The lictors were mobbed, the fasces broken, and the consuls driven from the Forum into the Senate-house, uncertain how far Volero would push his victory. As the tumult was subsiding they ordered the senate to be convened,

and when it was assembled they complained of the outrage done to them, the violence of the plebeians, the audacious insolence of Volero. After many violent speeches had been made, the opinion of the older senators prevailed; they disapproved of the intemperance of the plebs being met by angry resentment on the part of the patricians.

[2.56]Volero was now in high favour with the plebs, and they made him a tribune at the next election. Lucius Pinarius and P. Furius were the consuls for that year. Everybody supposed that Volero would use all the power of his tribuneship to harass the consuls of the preceding year. On the contrary, he subordinated his private grievances to the interests of the State, and without uttering a single word which could reflect on the consuls, he proposed to the people a measure providing that the magistrates of the plebs should be elected by the Assembly of the Tribes. At first sight this measure appeared to be of a very harmless description, but it would deprive the patricians of all power of electing through their clients' votes those whom they wanted as tribunes. It was most welcome to the plebeians, but the patricians resisted it to the utmost. They were unable to secure the one effectual means of resistance, namely, inducing one of the tribunes, through the influence of the consuls or the leading patricians, to interpose his veto. The weight and importance of the question led to protracted controversy throughout the year. The plebs re-elected Volero. The patricians, feeling that the question was rapidly approaching a crisis, appointed Appius Claudius, the son of Appius, who, ever since his father's contests with them, had been hated by them and cordially hated them in return. From the very commencement of the year the Law took precedence of all other matters. Volero had been the first to bring it forward, but his colleague, Laetorius, though a later, was a still more energetic supporter of it. He had won an immense reputation in war, for no man was a better fighter, and this made him a stronger opponent. Volero in his speeches confined himself strictly to discussing the Law and abstained from all abuse of the consuls. But Laetorius began by accusing Appius and his family of tyranny and cruelty towards the plebs; he said it was not a consul who had been elected, but an executioner, to harass and torture the plebeians. The untrained tongue of the soldier was unable to express the freedom of his sentiments; as words failed him, he said, "I cannot

speak so easily as I can prove the truth of what I have said; come here tomorrow, I will either perish before your eyes or carry the Law."

Next day the tribunes took their places on the "templum," the consuls and the nobility stood about in the Assembly to prevent the passage of the Law. Laetorius gave orders for all, except actual voters, to withdraw. The young patricians kept their places and paid no attention to the tribune's officer, whereupon Laetorius ordered some of them to be arrested. Appius insisted that the tribunes had no jurisdiction over any but plebeians, they were not magistrates of the whole people, but only of the plebs; even he himself could not, according to the usage of their ancestors, remove any man by virtue of his authority, for the formula ran, "If it seems good to you, Quirites, depart! "By making contemptuous remarks about his jurisdiction, he was easily able to disconcert Laetorius. The tribune, in a burning rage, sent his officer to the consul, the consul sent a lictor to the tribune, exclaiming that he was a private citizen without any magisterial authority. The tribune would have been treated with indignity had not the whole Assembly risen angrily to defend the tribune against the consul, whilst people rushed from all parts of the City in excited crowds to the Forum. Appius braved the storm with inflexible determination, and the conflict would have ended in bloodshed had not the other consul, Quinctius, entrusted the consulars with the duty of removing, by force if necessary, his colleague from the Forum. He entreated the furious plebeians to be calm, and implored the tribunes to dismiss the Assembly; they should give their passions time to cool, delay would not deprive them of their power, but would add prudence to their strength; the senate would submit to the authority of the people, and the consuls to that of the senate.

[2.57]With difficulty Quinctius succeeded in quieting the plebeians; the senators had much greater difficulty in pacifying Appius. At length the Assembly was dismissed and the consuls held a meeting of the senate. Very divergent opinions were expressed according as the emotions of fear or anger predominated, but the longer the interval during which they were called away from impulsive action to calm deliberation, the more averse did they become to a prolongation of the conflict; so much so, indeed, that they passed a vote of thanks to Quinctius for having through his exertions allayed the disturbance. Appius was called upon to consent to the consular authority being so

far limited as to be compatible with a harmonious commonwealth. It was urged that whilst the tribunes and the consuls each tried to bring everything under their respective authority, there was no basis for common action; the State was torn in two, and the one thing aimed at was, who should be its rulers, not how could its security be preserved. Appius, on the other hand, called gods and men to witness that the State was being betrayed and abandoned through fear; it was not the consul who was failing the senate, the senate was failing the consul; worse conditions were being submitted to than those which had been accepted on the Sacred Hill. However, he was overborne by the unanimous feeling of the senate and became quiet. The Law was passed in silence. Then for the first time the tribunes were elected by the Assembly of the Tribes. According to Piso three were added, as though there had only been two before. He gives their names as Cn. Siccius, L. Numitorius, M. Duellius, Sp. Icilius, and L. Mecilius.

[2.58] During the disturbances in Rome, the war with the Volscians and Aequi broke out afresh. They had laid waste the fields, in order that if there were a secession of the plebs they might find refuge with them. When quiet had been restored they moved their camp further away. Appius Claudius was sent against the Volscians, the Aequi were left for Quinctius to deal with. Appius displayed the same savage temper in the field that he had shown at home, only it was more unrestrained because he was not now fettered by the tribunes. He hated the commons with a more intense hatred than his father had felt, for they had got the better of him and had carried their Law though he had been elected consul as being the one man who could thwart the tribunitian power - a Law, too, which former consuls, from whom the senate expected less than from him, had obstructed with less trouble. Anger and indignation at all this goaded his imperious nature into harassing his army by ruthless discipline. No violent measures, however, could subdue them, such was the spirit of opposition with which they were filled. They did everything in a perfunctory, leisurely, careless, defiant way; no feeling of shame or fear restrained them. If he wished the column to move more quickly they deliberately marched more slowly, if he came up to urge them on in their work they all relaxed the energy they had been previously exerting of their own accord; in his presence they cast their eyes down to the ground, when he passed by they silently cursed him, so that the courage which had not quailed before the hatred of the plebs was

sometimes shaken. After vainly employing harsh measures of every kind, he abstained from any further intercourse with his soldiers, said that the army had been corrupted by the centurions, and sometimes called them, in jeering tones, tribunes of the plebs, and Voleros.

[2.59]None of this escaped the notice of the Veientes, and they pressed on more vigorously in the hope that the Roman army would show the same spirit of disaffection towards Appius which it had shown towards Fabius. But it was much more violent towards Appius than it had been towards Fabius, for the soldiers not only refused to conquer, like the army of Fabius, but they wished to be conquered. When led into action they broke into a disgraceful flight and made for their camp, and offered no resistance till they saw the Volscians actually attacking their entrenchments and doing frightful execution in their rear. Then they were compelled to fight, in order that the victorious enemy might be dislodged from their rampart; it was, however, quite evident that the Roman soldiers only fought to prevent the capture of the camp; otherwise they rejoiced in their ignominious defeat. Appius' determination was in no way weakened by this, but when he was meditating more severe measures and ordering an assembly of his troops, the officers of his staff and the military tribunes gathered round him and warned him on no account to try how far he could stretch his authority, for its force wholly depended upon the free consent of those who obeyed it. They said that the soldiers as a body refused to come to the assembly, and demands were heard on all sides for the camp to be removed from the Volscian territory; only a short time before the victorious enemy had all but forced his way into the camp. There were not only suspicions of a serious mutiny, the evidence was before their eyes.

Appius yielded at last to their remonstrances. He knew that they would gain nothing but a delay of punishment, and consented to forego the assembly. Orders were issued for an advance on the morrow, and the trumpet gave the signal for starting at dawn. When the army had got clear of the camp and was forming in marching order, the Volscians, aroused, apparently, by the same signal, fell upon the rear. The confusion thus created extended to the leading ranks, and set up such a panic in the whole army that it was impossible for either orders to be heard or a fighting line to be formed. No one thought of anything but flight. They made their way over heaps of bodies and arms in such wild haste that the enemy gave

up the pursuit before the Romans abandoned their flight. At last, after the consul had vainly endeavoured to follow up and rally his men, the scattered troops were gradually got together again, and he fixed his camp on territory undisturbed by war. He called up the men for an assembly, and after inveighing, with perfect justice, against an army which had been false to military discipline and had deserted its standards, he asked them individually where the standards were, where their arms were. The soldiers who had thrown away their arms, the standard-bearers who had lost their standards, and in addition to these the centurions and *duplicarii* who had deserted their ranks, he ordered to be scourged and beheaded. Of the rank and file every tenth man was drawn by lot for punishment.

[2.60] Just the opposite state of things prevailed in the army campaigning amongst the Aequi, where the consul and his soldiers vied with each other in acts of kindness and comradeship. Quinticius was naturally milder, and the unfortunate severity of his colleague made him all the more inclined to follow the bent of his gentle disposition. The Aequi did not venture to meet an army where such harmony prevailed between the general and his men, and they allowed their enemy to ravage their territory in all directions. In no previous war had plunder been gathered from a wider area. The whole of it was given to the soldiers, and with it those words of praise which, no less than material rewards, delight the soldier's heart. The army returned home on better terms with their general, and through him with the patricians; they said that whilst the senate had given them a father it had given the other army a tyrant. The year, which had been passed in varying fortunes of war and furious dissensions both at home and abroad, was chiefly memorable for the Assembly of Tribes, which were important rather for the victory won in a prolonged contest than for any real advantage gained. For through the withdrawal of the patricians from their council the Assembly lost more in dignity than either the plebs gained, or the patricians lost, in strength.

[2.61] L. Valerius and T. Aemilius were consuls for the next year, which was a still stormier one, owing, in the first place to the struggle between the two orders over the Agrarian Law, and secondly to the prosecution of Appius Claudius. He was impeached by the tribunes, M. Duellius and Cn. Siccus, on the ground of his determined opposition to the Law, and also because he defended the cause of the

occupiers of the public land, as if he were a third consul. Never before had any one been brought to trial before the people whom the plebs so thoroughly detested, both on his own and his father's account. For hardly any one had the patricians exerted themselves more than for him whom they regarded as the champion of the senate and the vindicator of its authority, the stout bulwark against disturbances of tribunes or plebs, and now saw exposed to the rage of the plebeians simply for having gone too far in the struggle. Appius Claudius himself, alone of all the patricians, looked upon the tribunes, the plebs, and his own trial as of no account. Neither the threats of the plebeians nor the entreaties of the senate could induce him - I will not say to change his attire and accost men as a suppliant, but - even to soften and subdue to some extent his wonted asperity of language when he had to make his defence before the people. There was the same expression, the same defiant look, the same proud tones of speech, so that a large number of the plebeians were no less afraid of Appius on his trial than they had been when he was consul. He only spoke in his defence once, but in the same aggressive tone that he always adopted, and his firmness so dumbfounded the tribunes and the plebs, that they adjourned the case of their own accord, and then allowed it to drag on. There was not a very long interval, however. Before the date of the adjourned trial arrived he was carried off by illness. The tribunes tried to prevent any funeral oration being pronounced over him, but the plebeians would not allow the obsequies of so great a man to be robbed of the customary honours. They listened to the panegyric of the dead as attentively as they had listened to the indictment of the living, and vast crowds followed him to the tomb.

[2.62]In the same year the consul Valerius advanced with an army against the Aequi, but failing to draw the enemy into an engagement he commenced an attack on their camp. A terrible storm, sent down from heaven, of thunder and hail prevented him from continuing the attack. The surprise was heightened when, after the retreat had been sounded, calm and bright weather returned. He felt that it would be an act of impiety to attack a second time a camp defended by some divine power. His warlike energies were turned to the devastation of the country. The other consul, Aemilius, conducted a campaign amongst the Sabines. There, too, as the enemy kept behind their walls, their fields were laid waste. The burning not only of scattered

homesteads but also of villages with numerous populations roused the Sabines to action. They met the depredators, an indecisive action was fought, after which they moved their camp into a safer locality. The consul thought this a sufficient reason for leaving the enemy as though defeated, and coming away without finishing the war.

[2.63]T. Numicius Priscus and A. Verginius were the new consuls. The domestic disturbance continued through these wars, and the plebeians were evidently not going to tolerate any further delay with regard to the Agrarian Law, and were preparing for extreme measures, when the smoke of burning farms and the flight of the country folk announced the approach of the Volscians. This checked the revolution which was now ripe and on the point of breaking out. The senate was hastily summoned, and the consuls led the men liable for active service out to the war, thereby making the rest of the plebs more peaceably disposed. The enemy retired precipitately, having effected nothing beyond filling the Romans with groundless fears. Numicius advanced against the Volscians to Antium, Verginius against the Aequi. Here he was ambushed and narrowly escaped a serious defeat; the valour of the soldiers restored the fortunes of the day, which the consul's negligence had imperilled. More skilful generalship was shown against the Volscians; the enemy were routed in the first engagement and driven in flight to Antium, which was, for those days, a very wealthy city. The consul did not venture to attack it, but he took Caeno from the Antiates, not by any means so wealthy a place. Whilst the Aequi and Volscians were keeping the Roman armies engaged, the Sabines extended their ravages up to the gates of the City. In a few days the consuls invaded their territory, and, attacked fiercely by both armies, they suffered heavier losses than they had inflicted.

[2.64]Towards the close of the year there was a short interval of peace, but, as usual, it was marred by the struggle between the patricians and the plebeians. The plebs, in their exasperation, refused to take any part in the election of consuls; T. Quinctius and Q. Servilius were elected consuls by the patricians and their clients. They had a year similar to the previous one: agitation during the first part, then the calming of this by foreign war. The Sabines hurriedly traversed the plains of Crustumerium, and carried fire and sword into the district watered by the Anio, but were repulsed when almost close to the Colline gate and the walls of the City. They succeeded,

however, in carrying off immense spoil both in men and cattle. The consul Servilius followed them up with an army bent on revenge, and though unable to come up with their main body in the open country, he carried on his ravages on such an extensive scale that he left no part unmolested by war, and returned with spoil many times greater than that of the enemy. Amongst the Volscians also the cause of Rome was splendidly upheld by the exertions of general and soldiers alike. To begin with, they met on level ground and a pitched battle was fought with immense losses on both sides in killed and wounded. The Romans, whose paucity of numbers made them more sensible of their loss, would have retreated had not the consul called out that the enemy on the other wing were in flight, and by this well-timed falsehood roused the army to fresh effort. They made a charge and converted a supposed victory into a real one. The consul, fearing lest by pressing the attack too far he might force a renewal of the combat, gave the signal for retiring. For the next few days both sides kept quiet, as though there were a tacit understanding. During this interval, an immense body of men from all the Volscian and Aequian cities came into camp, fully expecting that when the Romans heard of their arrival they would make a nocturnal retreat. Accordingly, about the third watch they moved out to attack the camp. After allaying the confusion caused by the sudden alarm, Quinctius ordered the soldiers to remain quietly in their quarters, marched out a cohort of Hernicans to the outposts, mounted the buglers and trumpeters on horseback, and ordered them to sound their calls and keep the enemy on the alert till dawn. For the remainder of the night all was so quiet in the camp that the Romans even enjoyed ample sleep. The sight of the armed infantry whom the Volscians took to be Romans and more numerous than they really were, the noise and neighing of the horses, restless under their inexperienced riders and excited by the sound of the trumpets, kept the enemy in constant apprehension of an attack.

[2.65]At daybreak the Romans, fresh from their undisturbed sleep, were led into action, and at the first charge broke the Volscians, worn out as they were with standing and want of sleep. It was, however, a retreat rather than a rout, for in their rear there were hills to which all behind the front ranks safely retired. When they reached the rising ground, the consul halted his army. The soldiers were with difficulty restrained, they clamoured to be allowed to follow up the beaten foe. The cavalry were much more insistent, they crowded round the

general and loudly declared that they would go on in advance of the infantry. While the consul, sure of the courage of his men, but not reassured as to the nature of the ground, was still hesitating, they shouted that they would go on, and followed up their shouts by making an advance. Fixing their spears in the ground that they might be more lightly equipped for the ascent, they went up at a run. The Volscians hurled their javelins at the first onset, and then flung the stones lying at their feet upon the enemy as they came up. Many were hit, and through the disorder thus created they were forced back from the higher ground. In this way the Roman left wing was nearly overwhelmed, but through the reproaches which the consul cast upon his retreating men for their rashness as well as their cowardice, he made their fear give way to the sense of shame. At first they stood and offered a firm resistance, then when by holding their ground they had recovered their energies they ventured upon an advance. With a renewed shout the whole line went forward, and pressing on in a second charge they surmounted the difficulties of the ascent, and were just on the point of reaching the summit when the enemy turned and fled. With a wild rush, pursuers and fugitives almost in one mass dashed into the camp, which was taken. Those of the Volscians who succeeded in escaping made for Antium; thither the Roman army was led. After a few days' investment the place was surrendered, not owing to any unusual efforts on the part of the besiegers, but simply because after the unsuccessful battle and the loss of their camp the enemy had lost heart.

BOOK 3: THE DECENVIRATE

[3.1] For the year following the capture of Antium, Titus Aemilius and Quinctius Fabius were made consuls. This was the Fabius who was the sole survivor of the extinction of his house at the Cremera. Aemilius had already in his former consulship advocated the grant of land to the plebeians. As he was now consul for the second time, the agrarian party entertained hopes that the Law would be carried out; the tribunes took the matter up in the firm expectation that after so many attempts they would gain their cause now that one consul, at all events, was supporting them; the consul's views on the question remained unchanged. Those in occupation of the land - the majority of the patricians - complained that the head of the State was adopting the methods of the tribunes and making himself popular by giving

away other people's property, and in this way they shifted all the odium from the tribunes on to the consul. There was every prospect of a serious contest, had not Fabius smoothed matters by a suggestion acceptable to both sides, namely, that as there was a considerable quantity of land which had been taken from the Volscians the previous year, under the auspicious generalship of T. Quinctius, a colony might be settled at Antium, which, as a seaport town, and at no great distance from Rome, was a suitable city for the purpose. This would allow the plebeians to enter on public land without any injustice to those in occupation, and so harmony would be restored to the State. This suggestion was adopted. He appointed as the three commissioners for the distribution of the land, T. Quinctius, A. Verginius, and P. Furius. Those who wished to receive a grant were ordered to give in their names. As usual, abundance produced disgust, and so few gave in their names that the number was made up by the addition of Volscians as colonists. The rest of the people preferred to ask for land at Rome rather than accept it elsewhere. The Aequi sought for peace from Q. Fabius, who had marched against them, but they broke it by a sudden incursion into Latin territory.

[3.2]In the following year, Q. Servilius - for he was consul with Sp. Postumius - was sent against the Aequi, and fixed his entrenched camp on Latin territory. His army was attacked by an epidemic and compelled to remain inactive. The war was protracted into the third year, when Quinctius Fabius and T. Quinctius were the consuls. As Fabius after his victory had granted peace to the Aequi, they were by special edict assigned to him as his sphere of operation. He set out in the firm belief that the renown of his name would dispose them to peace; accordingly he sent envoys to their national council who were instructed to carry a message from Q. Fabius the consul to the effect that as he had brought peace from the Aequi to Rome, so now he was bringing war from Rome to the Aequi, with the same right hand, now armed, which he had formerly given to them as a pledge of peace. The gods were now the witnesses and would soon be the avengers of those through whose perfidy and perjury this had come about. In any case, however, he would rather that the Aequi should repent of their own accord than suffer at the hands of an enemy; if they did repent they could safely throw themselves on the clemency they had already experienced, but if they found pleasure in perjurying

themselves, they would be warring more against the angered gods than against earthly foes.

These words, however, had so little effect that the envoys barely escaped maltreatment, and an army was despatched to Mount Algidus against the Romans. On this being reported at Rome, feelings of indignation rather than apprehension of danger hurried the other consul out of the City. So two armies under the command of both consuls advanced against the enemy in battle formation, to bring about an immediate engagement. But, as it happened, not much daylight remained, and a soldier called out from the enemies' outposts: "This, Romans, is making a display of war, not waging it. You form your line when night is at hand; we need more daylight for the coming battle. When tomorrow's sun is rising, get into line again. There will be an ample opportunity of fighting, do not fear! "Smarting under these taunts the soldiers were marched back into camp, to wait for the next day. They thought the coming night a long one, as it delayed the contest; after returning to camp they refreshed themselves with food and sleep. When the next day dawned the Roman line was formed some time before that of the enemy. At length the Aequi advanced. The fighting was fierce on both sides; the Romans fought in an angry and bitter temper; the Aequi, conscious of the danger in which their misdoing had involved them, and hopeless of ever being trusted in the future, were compelled to make a desperate and final effort. They did not, however, hold their ground against the Roman army, but were defeated and forced to retire within their frontiers. The spirit of the rank and file of the army was unbroken and not a whit more inclined to peace. They censured their generals because they staked all on one pitched battle, a mode of fighting in which the Romans excelled, whereas the Aequi, they said, were better at destructive forays and raids; numerous bands acting in all directions would be more successful than if massed in one great army.

[3.3]Accordingly, leaving a detachment to guard the camp, they sallied forth, and made such devastating forays in the Roman territory that the terror they caused extended even to the City. The alarm was all the greater because such proceedings were quite unexpected. For nothing was less to be feared than that an enemy who had been defeated and almost surrounded in his camp should think of predatory incursions, whilst the panic-stricken country people,

pouring in at the gates and exaggerating everything in their wild alarm, exclaimed that they were not mere raids or small bodies of plunderers, entire armies of the enemy were near, preparing to swoop down on the City in force. Those who were nearest carried what they heard to others, and the vague rumours became still more exaggerated and false. The running and clamour of men shouting "To arms!" created nearly as great a panic as though the City was actually taken. Fortunately the consul Quinctius had returned to Rome from Algidus. This relieved their fears, and after allaying the excitement and rebuking them for being afraid of a defeated enemy, he stationed troops to guard the gates. The senate was then convened, and on their authority he proclaimed a suspension of all business; after which he set out to protect the frontier, leaving Q. Servilius as prefect of the City. He did not, however, find the enemy. The other consul achieved a brilliant success. He ascertained by what routes the parties of the enemy would come, attacked each while laden with plunder and therefore hampered in their movements, and made their plundering expeditions fatal to them. Few of the enemy escaped, all the plunder was recovered. The consul's return put an end to the suspension of business, which lasted four days. Then the census was made and the "lustrum " closed by Quinctius. The numbers of the census are stated to have been one hundred and four thousand seven hundred and fourteen, exclusive of widows and orphans. Nothing further of any importance occurred amongst the Aequi. They withdrew into their towns and looked on passively at the rifling and burning of their homesteads. After repeatedly marching through the length and breadth of the enemies' territory and carrying destruction everywhere, the consul returned to Rome with immense glory and immense spoil.

[3.4]The next consuls were A. Postumius Albus and Sp. Furius Fusus. Some writers call the Furii, Fusii. I mention this in case any one should suppose that the different names denote different people. It was pretty certain that one of the consuls would continue the war with the Aequi. They sent, accordingly, to the Volscians of Ecetra for assistance. Such was the rivalry between them as to which should show the most inveterate enmity to Rome, that the assistance was readily granted, and preparations for war were carried on with the utmost energy. The Hernici became aware of what was going on and warned the Romans that Ecetra had revolted to the Aequi. The

colonists of Antium were also suspected, because on the capture of that town a large number of the inhabitants had taken refuge with the Aequi, and they were the most efficient soldiers throughout the war. When the Aequi were driven into their walled towns, this body was broken up and returned to Antium. There they found the colonists already disaffected, and they succeeded in completely alienating them from Rome. Before matters were ripe, information was laid before the senate that a revolt was in preparation, and the consuls were instructed to summon the chiefs of the colony to Rome and question them as to what was going on. They came without any hesitation, but after being introduced by the consuls to the senate, they gave such unsatisfactory replies that heavier suspicion attached to them on their departure than on their arrival. War was certain. Sp. Furius, the consul to whom the conduct of the war had been assigned, marched against the Aequi and found them committing depredations in the territory of the Hernici. Ignorant of their strength, because they were nowhere all in view at once, he rashly joined battle with inferior forces. At the first onset he was defeated, and retired into his camp, but he was not out of danger there. For that night and the next day the camp was surrounded and attacked with such vigour that not even a messenger could be despatched to Rome. The news of the unsuccessful action and the investment of the consul and his army was brought by the Hernici, and created such an alarm in the senate that they passed a decree in a form which has never been used except under extreme emergencies. They charged Postumius to "see that the commonwealth suffered no hurt." It was thought best that the consul himself should remain in Rome to enrol all who could bear arms, whilst T. Quinctius was sent as his representative to relieve the camp with an army furnished by the allies. This force was to be made up of the Latins and the Hernici, whilst the colony at Antium was to supply "subitary" troops - a designation then applied to hastily raised auxiliary troops.

[3.5] Numerous maneuvers and skirmishes took place during these days, because the enemy with his superior numbers was able to attack the Romans from many points and so wear out their strength, as they were not able to meet them everywhere. Whilst one part of their army attacked the camp, another was sent to devastate the Roman territory, and, if a favourable opportunity arose, to make an attempt on the City itself. L. Valerius was left to guard the City, the consul Postumius

was sent to repel the raids on the frontier. No precaution was omitted, no exertion spared; detachments were posted in the City, bodies of troops before the gates, veterans manned the walls, and as a necessary measure in a time of such disturbance, a cessation of public business was ordered for some days. In the camp, meanwhile, the consul Furius, after remaining inactive during the first days of the siege, made a sortie from the "decuman" gate and surprised the enemy, and though he could have pursued him, he refrained from doing so, fearing lest the camp might be attacked from the other side. Furius, a staff officer and brother of the consul, was carried too far in the charge, and did not notice, in the excitement of the pursuit, that his own men were returning and that the enemy were coming upon him from behind. Finding himself cut off, after many fruitless attempts to cut his way back to camp, he fell fighting desperately. The consul, hearing that his brother was surrounded, returned to the fight, and whilst he plunged into the thick of the fray was wounded, and with difficulty rescued by those round him. This incident damped the courage of his own men and raised that of the enemy, who were so inspired by the death of a staff officer and the wound of the consul that the Romans, who had been driven back to their camp and again besieged, were no longer a match for them either in spirits or fighting strength. Their utmost efforts failed to keep the enemy in check, and they would have been in extreme danger had not T. Quinctius come to their assistance with foreign troops, an army composed of Latin and Hernican contingents. As the Aequi were directing their whole attention to the Roman camp and exultingly displaying the staff officer's head he attacked them in rear, whilst at a signal given by him a sortie was made simultaneously from the camp and a large body of the enemy were surrounded.

Amongst the Aequi who were in the Roman territory there was less loss in killed and wounded, but they were more effectually scattered in flight. Whilst they were dispersed over the country with their plunder, Postumius attacked them at various points where he had posted detachments. Their army was thus broken up into scattered bodies of fugitives, and in their flight they fell in with Quinctius, returning from his victory, with the wounded consul. The consul's army fought a brilliant action and avenged the wounds of the consuls and the slaughter of the staff officer and his cohorts. During those days great losses were inflicted and sustained by both sides. In a

matter of such antiquity it is difficult to make any trustworthy statement as to the exact number of those who fought or those who fell. Valerius of Antium, however, ventures to give definite totals. He puts the Romans who fell in Hernican territory at 5800, and the Antiates who were killed by A. Postumius whilst raiding the Roman territory at 2400. The rest who fell in with Quinctius whilst carrying off their plunder got off with nothing like so small a loss; he gives as the exact number of their killed, 4230. On the return to Rome, the order for the cessation of all public business was revoked. The sky seemed to be all on fire, and other portents were either actually seen, or people in their fright imagined that they saw them. To avert these alarming omens, public intercessions were ordered for three days, during which all the temples were filled with crowds of men and women imploring the protection of the gods. After this the Latin and Hernican cohorts received the thanks of the senate for their services and were dismissed to their homes. The thousand soldiers from Antium who had come after the battle, too late to help, were sent back almost with ignominy.

[3.6] Then the elections were held, and L. Aebutius and P. Servilius were chosen as consuls; they entered upon office on August 1, which was then the commencement of the consular year. The season was a trying one, and that year happened to be a pestilential one both for the City and the rural districts, for the flocks and herds quite as much as for human beings. The violence of the epidemic was aggravated by the crowding into the City of the country people and their cattle through fear of raids. This promiscuous collection of animals of all kinds became offensive to the citizens, through the unaccustomed smell, and the country people, crowded as they were into confined dwellings, were distressed by the oppressive heat which made it impossible to sleep. Their being brought into contact with each other in ordinary intercourse helped to spread the disease. Whilst they were hardly able to bear up under the pressure of this calamity, envoys from the Hernici announced that the Aequi and Volscians had united their forces, had entrenched their camp within their territory, and were ravaging their frontier with an immense army. The allies of Rome not only saw in the thinly-attended senate an indication of the widespread suffering caused by the epidemic, but they had also to carry back the melancholy reply that the Hernici must, in conjunction with the Latins, undertake their own defence. Through a sudden

visitation of the angry gods, the City of Rome was being ravaged by pestilence; but if any respite from the evil should come, then she would send succour to her allies as she had done the year before and on all previous occasions. The allies departed, carrying home in answer to the gloomy tidings they had brought a still more gloomy response, for they had in their own strength to sustain a war which they had hardly been equal to when supported by the power of Rome. The enemy no longer confined himself to the country of the Hernici, he went on to destroy the fields of Rome, which were already lying waste without having suffered the ravages of war. He met no one, not even an unarmed peasant, and after over running the country, abandoned as it was by its defenders and even devoid of all cultivation, he reached the third milestone from Rome on the Gabian road. Aebutius, the consul, was dead, his colleague Servilius was still breathing, with little hope of recovery, most of the leading men were down, the majority of the senators, nearly all the men of military age, so that not only was their strength unequal to an expeditionary force such as the position of affairs required, but it hardly allowed of their mounting guard for home defence. The duty of sentinel was discharged in person by those of the senators whose age and health allowed them to do so; the aediles of the plebs were responsible for their inspection. On these magistrates had devolved the consular authority and the supreme control of affairs.

[3.7]The helpless commonwealth, deprived of its head and all its strength, was saved by its guardian deities and the fortune of the City, who made the Volscians and Aequi think more of plunder than of their enemy. For they had no hope of even approaching the walls of Rome, still less of effecting its capture. The distant view of its houses and its hills, so far from alluring them repelled them. Everywhere throughout their camp angry remonstrances arose: "Why were they idly wasting their time in a waste and deserted land amid plague-stricken beasts and men while they could find places free from infection in the territory of Tusculum with its abundant wealth?" They hastily plucked up their standards, and by cross-marches through the fields of Labici they reached the hills of Tusculum. All the violence and storm of war was now turned in this direction. Meantime the Hernici and Latins joined their forces and proceeded to Rome. They were actuated by a feeling not only of pity but also of the disgrace they would incur if they had offered no opposition to

their common foe while he was advancing to attack Rome, or had brought no succour to those who were their allies. Not finding the enemy there, they followed up their traces from the information supplied them, and met them as they were descending from the hills of Tusculum into the valley of Alba. Here a very one-sided action was fought, and their fidelity to their allies met with little success for the time. The mortality in Rome through the epidemic was not less than that of the allies through the sword. The surviving consul died; amongst other illustrious victims were M. Valerius and T. Verginius Rutilus, the augurs, and Ser. Sulpicius, the "Curio Maximus." Amongst the common people the violence of the epidemic made great ravage. The senate, deprived of all human aid, bade the people betake themselves to prayers; they with their wives and children were ordered to go as suppliants and entreat the gods to be gracious. Summoned by public authority to do what each man's misery was constraining him to do, they crowded all the temples. Prostrate matrons, sweeping with their dishevelled hair the temple floors, were everywhere imploring pardon from offended heaven, and entreating that an end might be put to the pestilence.

[3.8]Whether it was that the gods graciously answered prayer or that the unhealthy season had passed, people gradually threw off the influence of the epidemic and the public health became more satisfactory. Attention was once more turned to affairs of State, and after one or two interregna had expired, P. Valerius Publicola, who had been interrex for two days, conducted the election of L. Lucretius Tricipitinus and T. Veturius Geminus - or Vetusius - as consuls. They entered office on August 11, and the State was now strong enough not only to defend its frontiers, but to take the offensive. Consequently, when the Hernici announced that the enemy had crossed their frontiers, help was promptly sent. Two consular armies were enrolled. Veturius was sent to act against the Volsci, Tricipitinus had to protect the country of the allies from predatory incursions, and did not advance beyond the Hernican frontier. In the first battle Veturius defeated and routed the enemy. Whilst Lucretius lay encamped amongst the Hernici, a body of plunderers evaded him by marching over the mountains of Praeneste, and descending into the plains devastated the fields of the Praenestines and Gabians, and then turned off to the hills above Tusculum. Great alarm was felt in Rome, more from the surprising rapidity of the movement than from

insufficiency of strength to repel any attack. Quintus Fabius was prefect of the City. By arming the younger men and manning the defences, he restored quiet and security everywhere. The enemy did not venture to attack the City, but returned by a circuitous route with the plunder they had secured from the neighbourhood. The greater their distance from the City the more carelessly they marched, and in this state they fell in with the consul Lucretius, who had reconnoitred the route they were taking and was in battle formation, eager to engage. As they were on the alert and ready for the enemy, the Romans, though considerably fewer in numbers, routed and scattered the vast host, whom the unexpected attack had thrown into confusion, drove them into the deep valleys and prevented their escape. The Volscian nation was almost wiped out there. I find in some of the annals that 13,470 men fell in the battle and the pursuit, and 1750 were taken prisoners, whilst twenty-seven military standards were captured. Although there may be some exaggeration, there certainly was a great slaughter. The consul, after securing enormous booty, returned victorious to his camp. The two consuls then united their camps; the Volscians and Aequi also concentrated their shattered forces. A third battle took place that year; again fortune gave the victory to the Romans, the enemy were routed and their camp taken.

[3.9]Matters at home drifted back to their old state; the successes in the war forthwith evoked disorders in the City. Gaius Terentilius Harsa was a tribune of the plebs that year. Thinking that the absence of the consuls afforded a good opportunity for tribunitian agitation, he spent several days in haranguing the plebeians on the overbearing arrogance of the patricians. In particular he inveighed against the authority of the consuls as excessive and intolerable in a free commonwealth, for whilst in name it was less invidious, in reality it was almost more harsh and oppressive than that of the kings had been, for now, he said, they had two masters instead of one, with uncontrolled, unlimited powers, who, with nothing to curb their licence, directed all the threats and penalties of the laws against the plebeians. To prevent this unfettered tyranny from lasting for ever, he said he would propose an enactment that a commission of five should be appointed to draw up in writing the laws which regulated the power of the consuls. Whatever jurisdiction over themselves the people gave the consul, that and that only was he to exercise; he was

not to regard his own licence and caprice as law. When this measure was promulgated, the patricians were apprehensive lest in the absence of the consuls they might have to accept the yoke. A meeting of the senate was convened by Q. Fabius, the prefect of the City. He made such a violent attack upon the proposed law and its author, that the threats and intimidation could not have been greater even if the two consuls had been standing by the tribune, threatening his life. He accused him of plotting treason, of seizing a favourable moment for compassing the ruin of the commonwealth. "Had the gods," he continued, "given us a tribune like him last year, during the pestilence and the war, nothing could have stopped him. After the death of the two consuls, whilst the State was lying prostrate, he would have passed laws, amid the universal confusion, to deprive the commonwealth of the power of the consuls, he would have led the Volscians and Aequi in an attack on the City. Why, surely it is open to him to impeach the consuls for whatever tyranny or cruelty they may have been guilty of towards any citizen, to bring them to trial before those very judges, one of whom had been their victim. His action was making - not the authority of the consuls, but - the power of the tribunes odious and intolerable, and after being exercised peaceably and in harmony with the patricians, that power was now reverting to its old evil practices." As to Terentilius, he would not dissuade him from continuing as he began. "As to you," said Fabius, "the other tribunes, we beg you to reflect that in the first instance your power was conferred upon you for the assistance of individual citizens, not for the ruin of all; you have been elected as the tribunes of the plebs, not as the enemies of the patricians. To us it is distressing, to you it is a source of odium that the commonwealth should be thus attacked while it is without its head. You will not impair your rights, but you will lessen the odium felt against you if you arrange with your colleague to have the whole matter adjourned till the arrival of the consuls. Even the Aequi and Volscians, after the consuls had been carried off by the epidemic last year, did not harass us with a cruel and ruthless war." The tribunes came to an understanding with Terentilius and the proceedings were ostensibly adjourned, but, as a matter of fact, abandoned. The consuls were immediately summoned home.

[3.10] Lucretius returned with an immense amount of booty, and with a still more brilliant reputation. This prestige he enhanced on his

arrival by laying out all the booty in the Campus Martius for three days, that each person might recognise and take away his own property. The rest, for which no owners appeared, was sold. By universal consent a triumph was due to the consul, but the matter was delayed through the action of the tribune, who was pressing his measure. The consul regarded this as the more important question. For some days the subject was discussed both in the senate and the popular assembly. At last the tribune yielded to the supreme authority of the consul and dropped his measure. Then the consul and his army received the honour they deserved; at the head of his victorious legions he celebrated his triumph over the Volscians and Aequi. The other consul was allowed to enter the City without his troops and enjoy an ovation. The following year the new consuls, P. Volumnius and Ser. Sulpicius, were confronted by the proposed law of Terentilius, which was now brought forward by the whole college of tribunes. During the year, the sky seemed to be on fire; there was a great earthquake; an ox was believed to have spoken - the year before this rumour found no credence. Amongst other portents it rained flesh, and an enormous number of birds are said to have seized it while they were flying about; what fell to the ground lay about for several days without giving out any bad smell. The Sibylline Books were consulted by the "duumviri," and a prediction was found of dangers which would result from a gathering of aliens, attempts on the highest points of the City and consequent bloodshed. Amongst other notices, there was a solemn warning to abstain from all seditious agitations. The tribunes alleged that this was done to obstruct the passing of the Law, and a desperate conflict seemed imminent.

As though to show how events revolve in the same cycle year by year, the Hernici reported that the Volscians and Aequi, in spite of their exhaustion, were equipping fresh armies. Antium was the centre of the movement; the colonists of Antium were holding public meetings in Ecetra, the capital, and the main strength of the war. On this information being laid before the senate, orders were given for a levy. The consuls were instructed to divide the operations between them; the Volscians were to be the province of the one, the Aequi of the other. The tribunes, even in face of the consuls, filled the Forum with their shouts declaring that the story of a Volscian war was a prearranged comedy, the Hernici had been prepared beforehand for

the part they were to play; the liberties of the Roman were not being repressed by straightforward opposition, but were being cunningly fooled away. It was impossible to persuade them that the Volscians and Aequi, after being almost exterminated, could themselves commence hostilities; a new enemy, therefore, was being sought for; a colony which had been a loyal neighbour was being covered with infamy. It was against the unoffending people of Antium that war was declared; it was against the Roman plebs that war was really being waged. After loading them with arms they would drive them in hot haste out of the City, and wreak their vengeance on the tribunes by sentencing their fellow-citizens to banishment. By this means - they might be quite certain - the Law would be defeated; unless, while the question was still undecided, and they were still at home, still unenrolled, they took steps to prevent their being ousted from their occupation of the City, and forced under the yoke of servitude. If they showed courage, help would not be wanting, the tribunes were unanimous. There was no cause for alarm, no danger from abroad. The gods had taken care, the previous year, that their liberties should be safely protected.

[3.11] Thus far the tribunes. The consuls at the other end of the Forum, however, placed their chairs in full view of the tribunes and proceeded with the levy. The tribunes ran to the spot, carrying the Assembly with them. A few were cited, apparently as an experiment, and a tumult arose at once. As soon as any one was seized by the consuls' orders, a tribune ordered him to be released. None of them confined himself to his legal rights; trusting to their strength they were bent upon getting what they set their minds upon by main force. The methods of the tribunes in preventing the enrolment were followed by the patricians in obstructing the Law, which was brought forward every day that the Assembly met. The trouble began when the tribunes had ordered the people to proceed to vote - the patricians refused to withdraw. The older members of the order were generally absent from proceedings which were certain not to be controlled by reason, but given over to recklessness and licence; the consuls, too, for the most part kept away, lest in the general disorder the dignity of their office might be exposed to insult. Caeso was a member of the Quinctian house, and his noble descent and great bodily strength and stature made him a daring and intrepid young man. To these gifts of the gods he added brilliant military qualities

and eloquence as a public speaker, so that no one in the State was held to surpass him either in speech or action. When he took his stand in the middle of a group of patricians, conspicuous amongst them all, carrying as it were in his voice and personal strength all dictatorships and consulships combined, he was the one to withstand the attacks of the tribunes and the storms of popular indignation. Under his leadership the tribunes were often driven from the Forum, the plebeians routed and chased away, anybody who stood in his way went off stripped and beaten. It became quite clear that if this sort of thing were allowed to go on, the Law would be defeated. When the other tribunes were now almost in despair, Aulus Verginius, one of the college, impeached Caeso on a capital charge. This procedure inflamed more than it intimidated his violent temper; he opposed the Law and harassed the plebeians more fiercely than ever, and declared regular war against the tribunes. His accuser allowed him to rush to his ruin and fan the flame of popular hatred, and so supply fresh material for the charges to be brought against him. Meantime he continued to press the Law, not so much in the hope of carrying it as in order to provoke Caeso to greater recklessness. Many wild speeches and exploits of the younger patricians were fastened on Caeso to strengthen the suspicions against him. Still the opposition to the Law was kept up. A. Verginius frequently said to the plebeians, "Are you now aware, Quirites, that you cannot have the Law which you desire, and Caeso as a citizen, together? Yet, why do I talk of the Law? He is a foe to liberty, he surpasses all the Tarquins in tyranny. Wait till you see the man who now, in private station, acts the king in audacity and violence - wait till you see him made consul, or dictator." His words were endorsed by many who complained of having been beaten, and the tribune was urged to bring the matter to a decision.

[3.12]The day of trial was now at hand, and it was evident that men generally believed that their liberty depended upon the condemnation of Caeso. At last, to his great indignation, he was constrained to approach individual members of the plebs; he was followed by his friends, who were amongst the foremost men of the State. Titus Quinctius Capitolinus, who had three times been consul, after recounting his own numerous distinctions and those of his family, asserted that neither in the Quinctian house nor in the Roman State did there exist another such example of personal merit and youthful courage. He had been the foremost soldier in his army; he had often

fought under his own eyes. Sp. Furius said that Caeso had been sent by Quinctius Capitolinus to his assistance when in difficulties, and that no single person had done more to retrieve the fortunes of the day. L. Lucretius, the consul of the previous year, in the splendour of his newly-won glory, associated Caeso with his own claim to distinction, enumerated the actions in which he had taken part, recounted his brilliant exploits on the march and in the field, and did his utmost to persuade them to retain as their own fellow-citizen a young man furnished with every advantage that nature and fortune could give, who would be an immense power in any state of which he became a member, rather than drive him to an alien people. As to what had given such offence - his hot temper and audacity - these faults were being continually lessened; what was wanting in him - prudence - was increasing day by day. As his faults were decaying and his virtues maturing, they ought to allow such a man to live out his years in the commonwealth. Among those who spoke for him was his father, L. Quinctius Cincinnatus. He did not go over all his merits again, for fear of aggravating the feeling against him, but he pleaded for indulgence to the errors of youth; he himself had never injured any one either by word or deed, and for his own sake he implored them to pardon his son. Some refused to listen to his prayers, lest they should incur the displeasure of their friends; others complained of the maltreatment they had received, and by their angry replies showed beforehand what their verdict would be.

[3.13]Over and above the general exasperation, one charge in particular weighed heavily against him. M. Volscius Fictor, who had some years previously been tribune of the plebs, had come forward to give evidence that not long after the epidemic had visited the City, he had met some young men strolling in the Suburra. A quarrel broke out and his elder brother, still weak from illness, was knocked down by a blow from Caeso's fist, and carried home in a critical condition, and afterwards died, he believed, in consequence of the blow. He had not been allowed by the consuls, during the years that had elapsed, to obtain legal redress for the outrage. Whilst Volscius was telling this story in a loud tone of voice, so much excitement was created that Caeso was very near losing his life at the hands of the people. Verginius ordered him to be arrested and taken to prison. The patricians met violence by violence. T. Quinctius called out that when the day of trial has been fixed for any one indicted on a capital charge

and is near at hand, his personal liberty ought not to be interfered with before the case is heard and sentence given. The tribune replied that he was not going to inflict punishment upon a man not yet found guilty; but he should keep him in prison till the day of the trial, that the Roman people might be in a position to punish one who has taken a man's life. The other tribunes were appealed to, and they saved their prerogative by a compromise; they forbade him to be cast into prison, and announced as their decision that the accused should appear in court, and if he failed to do so, he should forfeit a sum of money to the people. The question was, what sum would it be fair to fix? The matter was referred to the senate, the accused was detained in the Assembly whilst the senators were deliberating. They decided that he should give sureties, and each surety was bound in 3000 "ases" It was left to the tribunes to decide how many should be given; they fixed the number at ten. The prosecutor released the accused on that bail. Caeso was the first who gave securities on a state trial. After leaving the Forum, he went the following night into exile amongst the Tuscans. When the day for the trial came, it was pleaded in defence of his non-appearance that he had changed his domicile by going into exile. Verginius, nevertheless, went on with the proceedings, but his colleagues, to whom an appeal was made, dismissed the Assembly. The money was unmercifully extorted from the father, who had to sell all his property and live for some time like a banished man in an out-of-the-way hut on the other side of the Tiber.

[3.14] This trial and the discussions on the Law kept the State employed; there was a respite from foreign troubles. The patricians were cowed by the banishment of Caeso, and the tribunes, having, as they thought, gained the victory, regarded the Law as practically carried. As far as the senior senators were concerned, they abandoned the control of public affairs, but the younger members of the order, mostly those who had been Caeso's intimates, were more bitter than ever against the plebeians, and quite as aggressive. They made much more progress by conducting the attack in a methodical manner. The first time that the Law was brought forward after Caeso's flight they were organised in readiness, and on the tribunes furnishing them with a pretext, by ordering them to withdraw, they attacked them with a huge army of clients in such a way that no single individual could carry home any special share of either glory or odium. The plebeians

complained that for one Caeso thousands had sprung up. During the intervals when the tribunes were not agitating the Law, nothing could be more quiet or peaceable than these same men; they accosted the plebeians affably, entered into conversation with them, invited them to their houses, and when present in the Forum even allowed the tribunes to bring all other questions forward without interrupting them. They were never disagreeable to any one either in public or private, except when a discussion commenced on the Law; on all other occasions they were friendly with the people. Not only did the tribunes get through all their other business quietly, but they were even re-elected for the following year, without any offensive remark being made, still less any violence being offered. By gentle handling they gradually made the plebs tractable, and through these methods the Law was cleverly evaded throughout the year.

[3.15]The new consuls, C. Claudius, the son of Appius, and P. Valerius Publicola, took over the State in a quieter condition than usual. The new year brought nothing new. Political interest centered in the fate of the Law. The more the younger senators ingratiated themselves with the plebeians, the fiercer became the opposition of the tribunes. They tried to arouse suspicion against them by alleging that a conspiracy had been formed; Caeso was in Rome, and plans were laid for the assassination of the tribunes and the wholesale massacre of the plebeians, and further that the senior senators had assigned to the younger members of the order the task of abolishing the tribunitian authority so that the political conditions might be the same as they were before the occupation of the Sacred Hill. War with the Volscians and Aequi had become now a regular thing of almost annual recurrence, and was looked forward to with apprehension. A fresh misfortune happened nearer home. The political refugees and a number of slaves, some 2500 in all, under the leadership of Appius Herdonius the Sabine, seized the Capitol and Citadel by night. Those who refused to join the conspirators were instantly massacred, others in the confusion rushed in wild terror down to the Forum; various shouts were heard: "To arms!" "The enemy is in the City." The consuls were afraid either to arm the plebeians or to leave them without arms. Uncertain as to the nature of the trouble which had overtaken the City, whether it was caused by citizens or by foreigners, whether due to the embittered feelings of the plebs or to the treachery of slaves, they tried to allay the tumult, but their efforts only

increased it; in their terrified and distracted state the population could not be controlled. Arms were, however, distributed, not indiscriminately, but only, as it was an unknown foe, to secure protection sufficient for all emergencies. The rest of the night they spent in posting men in all the convenient situations in the City, while their uncertainty as to the nature and numbers of the enemy kept them in anxious suspense. Daylight at length disclosed the enemy and their leader. Appius Herdonius was calling from the Capitol to the slaves to win their liberty, saying that he had espoused the cause of all the wretched in order to restore the exiles who had been wrongfully banished and remove the heavy yoke from the necks of the slaves. He would rather that this be done at the bidding of the Roman people, but if that were hopeless, he would run all risks and rouse the Volscians and Aequi.

[3.16]The state of affairs became clearer to the senators and consuls. They were, however, apprehensive lest behind these openly declared aims there should be some design of the Veientes or Sabines, and whilst there was this large hostile force within the City the Etruscan and Sabine legions should appear, and then the Volscians and Aequi, their standing foes, should come, not into their territory to ravage, but into the City itself, already partly captured. Many and various were their fears. What they most dreaded was a rising of the slaves, when every man would have an enemy in his own house, whom it would be alike unsafe to trust and not to trust, since by withdrawing confidence he might be made a more determined enemy. Such threatening and overwhelming dangers could only be surmounted by unity and concord, and no fears were felt as to the tribunes or the plebs. That evil was mitigated, for as it only broke out when there was a respite from other evils, it was believed to have subsided now in the dread of foreign aggression. Yet it, more than almost anything else, helped to further depress the fortunes of the sinking State. For such madness seized the tribunes that they maintained that it was not war but an empty phantom of war which had settled in the Capitol, in order to divert the thoughts of the people from the Law. Those friends, they said, and clients of the patricians would depart more silently than they had come if they found their noisy demonstration frustrated by the passing of the Law. They then summoned the people to lay aside their arms and form an Assembly for the purpose of carrying the Law. Meantime the consuls, more alarmed at the

action of the tribunes than at the nocturnal enemy, convened a meeting of the senate.

[3.17]When it was reported that arms were being laid aside and men were deserting their posts, P. Valerius left his colleague to keep the senate together and hurried to the tribunes at the templum. "What," he asked, "is the meaning of this, tribunes? Are you going to overthrow the State under the leadership of Appius Herdonius? Has the man whose appeals failed to rouse a single slave been so successful as to corrupt you? Is it when the enemy is over our heads that you decide that men shall lay down their arms and discuss laws?" Then turning to the Assembly he said, "If, Quirites, you feel no concern for the City, no anxiety for yourselves, still show reverence for your gods who have been taken captive by an enemy! Jupiter Optimus Maximus, Queen Juno and Minerva, with other gods and goddesses, are being besieged; a camp of slaves holds the tutelary deities of your country in its power. Is this the appearance which you think a State in its senses ought to present - a large hostile force not only within the walls, but in the Citadel, above the Forum, above the Senate-house, whilst meantime the Assembly is being held in the Forum, the senate are in the Senate-house, and as though peace and quiet prevailed, a senator is addressing the House, whilst the Quirites in the Assembly are proceeding to vote? Would it not be more becoming for every man, patrician and plebeian alike, for the consuls and tribunes, for gods and men, to come, one and all, to the rescue with their arms, to run to the Capitol and restore liberty and calm to that most venerable abode of Jupiter Optimus Maximus? O, Father Romulus, grant to shine offspring that spirit in which thou didst once win back from these same Sabines the Citadel which had been captured with gold! Bid them take the road on which thou didst lead shine army. Behold, I, the consul, will be the first to follow thee and thy footsteps as far as mortal man can follow a god." He ended his speech by saying that he was taking up arms, and he summoned all the Quirites to arms. If any one tried to obstruct, he should now ignore the limits set to his consular authority, the power of the tribunes, and the laws which made them inviolable, and whoever or wherever he might be, whether in the Capitol or the Forum, he should treat him as a public enemy. The tribunes had better order arms to be taken up against P. Valerius the consul, as they forbade them to be used against Appius Herdonius. He would dare to do in

the case of the tribunes what the head of his family had dared to do in the case of the kings. There was every prospect of an appeal to force, and of the enemy enjoying the spectacle of a riot in Rome. However, the Law could not be voted upon, nor could the consul go to the Capitol, for night put an end to the threatened conflict. As night came on the tribunes retired, afraid of the consul's arms. When the authors of the disturbance were out of the way, the senators went about amongst the plebeians, and mingling with different groups pointed out the seriousness of the crisis, and warned them to reflect into what a dangerous position they were bringing the State. It was not a contest between patricians and plebeians; patricians and plebeians alike, the stronghold of the City, the temples of the gods, the guardian deities of the State and of every home, were being surrendered to the enemy. While these steps were being taken to lay the spirit of discord in the Forum, the consuls had gone away to inspect the gates and walls, in case of any movement on the part of the Sabines or Veientes.

[3.18]The same night messengers reached Tusculum with tidings of the capture of the Citadel, the seizure of the Capitol, and the generally disturbed state of the City. L. Mamilius was at that time Dictator of Tusculum. After hurriedly convening the senate and introducing the messengers, he strongly urged the senators not to wait until envoys arrived from Rome begging for help; the fact of the danger and the seriousness of the crisis, the gods who watched over alliances, and loyalty to treaties, all demanded instant action. Never again would the gods vouchsafe so favourable an opportunity for conferring an obligation on so powerful a State or one so close to their own doors. They decided that help should be sent, the men of military age were enrolled, arms were distributed. As they approached Rome in the early dawn, they presented in the distance the appearance of enemies; it seemed as though Aequi or Volscians were coming. When this groundless alarm was removed they were admitted into the City and marched in order into the Forum, where P. Valerius, who had left his colleague to direct the troops on guard at the gates, was forming his army for battle. It was his authority that had achieved this result; he declared that if, when the Capitol was recovered and the City pacified they would allow the covert dishonesty of the Law which the tribunes supported to be explained to them, he would not oppose the holding of a plebeian Assembly, for he was not unmindful of his ancestors or

of the name he bore, which made the protection of the plebs, so to speak, a hereditary care. Following his leadership, amid the futile protests of the tribunes, they marched in order of battle up the Capitoline hill, the legion from Tusculum marching with them. The Romans and their allies were striving which should have the glory of recapturing the Citadel. Each of the commanders were encouraging his men. Then the enemy lost heart, their only confidence was in the strength of their position; whilst thus demoralised the Romans and allies advanced to the charge. They had already forced their way into the vestibule of the temple, when P. Valerius, who was in the front, cheering on his men, was killed. P. Volumnius, a man of consular rank, saw him fall. Directing his men to protect the body, he ran to the front and took the consul's place. In the heat of their charge the soldiers were not aware of the loss they had sustained; they gained the victory before they knew that they were fighting without a general. Many of the exiles defiled the temple with their blood, many were taken prisoners, Herdonius was killed. So the Capitol was recovered. Punishment was inflicted on the prisoners according to their condition whether slave or freeman; a vote of thanks was accorded to the Tusculans; the Capitol was cleansed and solemnly purified. It is stated that the plebeians threw quadrantes into the consul's house that he might have a more splendid funeral.

[3.19]No sooner were order and quiet restored than the tribunes began to press upon the senators the necessity of redeeming the promise made by Publius Valerius; they urged Claudius to free his colleague's manes from the guilt of deception by allowing the Law to be proceeded with. The consul refused to allow it until he had secured the election of a colleague. The contest went on till the election was held. In the month of December, after the utmost exertions on the part of the patricians, L. Quinctius Cincinnatus, the father of Caeso, was elected consul, and at once took up his office. The plebeians were dismayed at the prospect of having as consul a man incensed against them, and powerful in the warm support of the senate, in his own personal merits, and in his three children, not one of whom was Caeso's inferior in loftiness of mind, while they were his superiors in exhibiting prudence and moderation where necessary. When he entered on his magistracy he continually delivered harangues from the tribunal, in which he censured the senate as energetically as he put down the plebs. It was, he said,

through the apathy of that order that the tribunes of the plebs, now perpetually in office, acted as kings in their speeches and accusations, as though they were living, not in the commonwealth of Rome, but in some wretched ill-regulated family. Courage, resolution, all that makes youth distinguished at home and in the battle-field, had been expelled and banished from Rome with his son Caeso. Loquacious agitators, sowers of discord, made tribunes for the second and third time in succession, were living by means of infamous practices in regal licentiousness. "Did that fellow," he asked, "Aulus Verginius, because he did not happen to be in the Capitol, deserve less punishment than Appius Herdonius? Considerably more, by Jove, if any choose to form a true estimate of the matter. Herdonius, if he did nothing else, avowed himself an enemy and in a measure summoned you to take up arms; this man, by denying the existence of a war, deprived you of your arms, and exposed you defenceless to the mercy of your slaves and exiles. And did you - without disrespect to C. Claudius and the dead P. Valerius, I would ask - did you advance against the Capitol before you cleared these enemies out of the Forum? It is an outrage on gods and men, that when there were enemies in the Citadel, in the Capitol, and the leader of the slaves and exiles, after profaning everything, had taken up his quarters in the very shrine of Jupiter Optimus Maximus, it should be at Tusculum, not at Rome, that arms were first taken up. It was doubtful whether the Citadel of Rome would be delivered by the Tusculan general, L. Mamilius, or by the consuls, P. Valerius and C. Claudius. We, who had not allowed the Latins to arm, even to defend themselves against invasion, would have been taken and destroyed, had not these very Latins taken up arms unbidden. This, tribunes, is what you call protecting the plebs, exposing it to be helplessly butchered by the enemy! If the meanest member of your order, which you have as it were severed from the rest of the people and made into a province, a State of your own - if such an one, I say, were to report to you that his house was beset by armed slaves, you would, I presume, think that you ought to render him assistance; was not Jupiter Optimus Maximus, when shut in by armed slaves and exiles, worthy to receive any human aid? Do these fellows demand that their persons shall be sacred and inviolable, when the very gods themselves are neither sacred nor inviolable in their eyes? But, steeped as you are in crimes against gods and men, you give out that you will carry your Law this year. Then, most assuredly, if you do carry it; the day when I was

made consul will be a far worse day for the State than that on which P. Valerius perished. Now I give you notice, Quirites, the very first thing that my colleague and myself intend to do is to march the legions against the Volscians and Aequi. By some strange fatality, we find the gods more propitious when we are at war than when we are at peace. It is better to infer from what has occurred in the past than to learn by actual experience how great the danger from those States would have been had they known that the Capitol was in the hands of exiles."

[3.20]The consul's speech produced an impression on the plebs; the patricians were encouraged and regarded the State as re-established. The other consul, who showed more courage in supporting than in proposing, was quite content for his colleague to take the first step in a matter of such importance but in carrying it out he claimed his full responsibility as consul. The tribunes laughed at what they considered idle words; and constantly asked, "By what method were the consuls going to take out an army, when no one would allow one to be levied?" "We do not," said Quinctius, "require to make a levy. At the time when P. Valerius supplied the people with arms for the recovery of the Capitol, they all took the oath to muster at the consul's orders, and not to disband without his orders. We, therefore, issue an order that all of you who took that oath appear under arms, tomorrow, at Lake Regillus." Thereupon the tribunes wanted to release the people from their oath by raising a quibble. They argued that Quinctius was not consul when the oath was taken. But the neglect of the gods, which prevails in this age, had not yet appeared, nor did every man interpret oaths and laws in just the sense which suited him best; he preferred to shape his own conduct by their requirements. The tribunes, finding any attempt at obstruction hopeless, set themselves to delay the departure of the army. They were the more anxious to do this as a report had got abroad that the augurs had received instructions to repair to Lake Regillus and set apart with the usual augural formalities a spot where business could be transacted by a properly constituted Assembly. This would enable every measure which had been carried by the violent exercise of the tribunitian authority to be repealed by the regular Assembly of the Tribes. All would vote as the consuls wished, for the right of appeal did not extend beyond a mile from the City, and the tribunes themselves, if they went with the army, would be subject to the

authority of the consuls. These rumours were alarming; but what filled them with the greatest alarm were the repeated assertions of Quinctius that he should not hold an election of consuls; the diseases of the State were such that none of the usual remedies could check them; the commonwealth needed a Dictator, in order that any one who took steps to disturb the existing constitution might learn that from a Dictator there lay no appeal.

[3.21]The senate was in the Capitol. Thither the tribunes proceeded, accompanied by the plebeians in a great state of consternation. They loudly appealed for help, first to the consuls, then to the senators, but they did not shake the determination of the consul, until the tribunes had promised that they would bow to the authority of the senate. The consuls laid before the senate the demands of the plebs and their tribunes, and decrees were passed that the tribunes should not bring forward their Law during the year, nor should the consuls take the army out of the City. The senate also judged it to be against the interests of the State that a magistrate's tenure of office should be prolonged, or that the tribunes should be re-elected. The consuls yielded to the authority of the senate, but the tribunes, against the protests of the consuls, were re-elected. On this, the senate also, to avoid giving any advantage to the plebs, reappointed Lucius Quinctius as consul. Nothing during the whole year roused the indignation of the consul more than this proceeding of theirs. "Can I," he exclaimed, "be surprised, Conscript Fathers, if your authority has little weight with the plebs? You yourselves are weakening it. Because, forsooth, they have disregarded the senatorial decree forbidding a magistrate's continuance in office, you yourselves wish it to be disregarded, that you may not be behind the populace in headstrong thoughtlessness, as though to possess more power in the State was to show more levity and lawlessness. It is undoubtedly a more idle and foolish thing to do away with one's own resolutions and decrees than with those of others. Imitate, Conscript Fathers, the inconsiderate multitude; sin after the example of others, you who ought to be an example to others, rather than that others should act rightly after your example, as long as I do not imitate the tribunes or allow myself to be returned as consul in defiance of the resolution of the senate. To you, C. Claudius, I earnestly appeal, that you, too, will restrain the Roman people from this lawlessness. As to myself, rest assured that I will accept your action in the firm belief that you have

not stood in the way of my advancement to honour, but that I have gathered greater glory by rejecting it, and have removed the odium which my continuance in office would have provoked." Thereupon the two consuls issued a joint edict that no one should make L. Quinctius consul; if any one attempted it, they would not allow the vote.

[3.22]The consuls elected were Q. Fabius Vibulanus, for the third time, and L. Cornelius Maluginensis. In that year the census was taken, and owing to the seizure of the Capitol and the death of the consul, the "lustrum" was closed on religious grounds. During their consulship matters became disturbed at the very beginning of the year. The tribunes began to instigate the plebs. The Latins and Hernici reported that war on an immense scale was commenced by the Volscians and Aequi, the Volscian legions were already at Antium, and there were grave fears of the colony itself revolting. With great difficulty the tribunes were induced to allow the war to take precedence of their Law. Then their respective spheres of operation were allotted to the consuls: Fabius was commissioned to take the legions to Antium; Cornelius was to protect Rome and prevent detachments of the enemy from coming on marauding expeditions, as was the custom with the Aequi. The Hernici and Latins were ordered to furnish troops, in accordance with the treaty; two-thirds of the army consisted of allies, the rest of Roman citizens. The allies came in on the appointed day, and the consul encamped outside the Capene gate. When the lustration of the army was completed, he marched to Antium and halted at a short distance from the city and from the enemies' standing camp. As the army of the Aequi had not arrived, the Volscians did not venture on an engagement, and prepared to act on the defensive and protect their camp. The next day Fabius formed his troops round the enemies' lines, not in one mixed army of allies and citizens, but each nation in a separate division, he himself being in the centre with the Roman legions. He gave orders to carefully observe his signals, that all might commence the action and retire - should the signal for retirement be sounded - at the same moment. The cavalry were stationed behind their respective divisions. In this triple formation he assaulted three sides of the camp, and the Volscians, unable to meet the simultaneous attack, were dislodged from the breastworks. Getting inside their lines he drove the panic-struck crowd, who were all

pressing in one direction, out of their camp. The cavalry, unable to surmount the breastworks, had so far been merely spectators of the fight, now they overtook the enemy and cut them down as they fled in disorder over the plain, and so enjoyed a share of the victory. There was a great slaughter both in the camp and in the pursuit, but a still greater amount of spoil, as the enemy had hardly been able to carry away even their arms. Their army would have been annihilated had not the fugitives found shelter in the forest.

[3.23] Whilst these events were occurring at Antium, the Aequi sent forward some of their best troops and by a sudden night attack captured the citadel of Tusculum; the rest of the army they halted not far from the walls, in order to distract the enemy. Intelligence of this quickly reached Rome, and from Rome was carried to the camp before Antium, where it produced as much excitement as if the Capitol had been taken. The service which Tusculum had so recently rendered and the similar character of the danger then and now, demanded a similar return of assistance. Fabius made it his first object to carry the spoil from the camp into Antium; leaving a small force there he hastened by forced marches to Tusculum. The soldiers were not allowed to carry anything but their arms and whatever baked bread was at hand, the consul Cornelius brought up supplies from Rome. The fighting went on for some months at Tusculum. With a portion of his army the consul attacked the camp of the Aequi, the rest he lent to the Tusculans for the recapture of their citadel. This could not be approached by direct assault. Ultimately, famine compelled the enemy to evacuate it, and after being reduced to the last extremities, they were all stripped of their arms and clothes and sent under the yoke. Whilst they were making their way home in this ignominious plight, the Roman consul on Algidus followed them up and slew them to a man. After this victory he led his army back to a place called Columen, where he fixed his camp. As the walls of Rome were no longer exposed to danger after the defeat of the enemy, the other consul also marched out of the City. The two consuls entered the enemies' territories by separate routes, and each tried to outdo the other in devastating the Volscian lands on the one side and those of the Aequi on the other. I find it stated in the majority of authorities that Antium revolted this year, but that the consul L. Cornelius conducted a campaign and recaptured the town, I would not venture to assert, as there is no mention of it in the older writers.

[3.24]When this war had been brought to a close, the fears of the patricians were aroused by a war which the tribunes commenced at home. They exclaimed that the army was being detained abroad from dishonest motives; it was intended to frustrate the passing of the Law; all the same they would carry through the task they had begun. L. Lucretius, the prefect of the City, succeeded, however, in inducing the tribunes to defer action till the arrival of the consuls. A fresh cause of trouble arose. A. Cornelius and Q. Servilius, the quaestors, indicted M. Volscius on the ground that he had given what was undoubtedly false evidence against Caeso. It had become known from many sources that after the brother of Volscius first became ill, he had not only never been seen in public, but had not even left his bed, and his death was due to an illness of many months' standing. On the date at which the witness fixed the crime, Caeso was not seen in Rome, whilst those who had served with him declared that he had constantly been in his place in the ranks with them and had not had leave of absence. Many people urged Volscius to institute a private suit before a judge. As he did not venture to take this course, and all the above-mentioned evidence pointed to one conclusion, his condemnation was no more doubtful than that of Caeso had been on the evidence which he had given. The tribunes managed to delay matters; they said they would not allow the quaestors to bring the accused before the Assembly unless it had first been convened to carry the Law. Both questions were adjourned till the arrival of the consuls. When they made their triumphal entry at the head of their victorious army, nothing was said about the Law; most people therefore supposed that the tribunes were intimidated. But it was now the end of the year and they were aiming at a fourth year of office, so they turned their activity from the Law to canvassing the electors. Though the consuls had opposed the tribunes' continuance in office as strenuously as if the Law had been mooted solely to impair their authority, the victory remained with the tribunes. In the same year the Aequi sued for and obtained peace. The census, commenced the previous year, was completed, and the "lustrum," which was then closed, is stated to have been the tenth since the beginning of the City. The numbers of the census amounted to 117,319. The consuls in that year won a great reputation both at home and in war, for they secured peace abroad, and though there was not harmony at home, the commonwealth was less disturbed than it had been on other occasions.

[3.25]The new consuls, L. Minucius and C. Nautius, took over the two subjects which remained from the previous year. As before, they obstructed the Law, the tribunes obstructed the trial of Volscius; but the new quaestors possessed greater energy and greater weight. T. Quinctius Capitolinus, who had been thrice consul, was quaestor with M. Valerius, the son of Valerius and grandson of Volesus. As Caeso could not be restored to the house of the Quinctii, nor could the greatest of her soldiers be restored to the State, Quinctius was bound in justice and by loyalty to his family to prosecute the false witness who had deprived an innocent man of the power to plead in his own defence. As Verginius, most of all the tribunes, was agitating for the Law, an interval of two months was granted the consuls for an examination of it, in order that when they had made the people understand what insidious dishonesty it contained, they might allow them to vote upon it. During this interval matters were quiet in the City. The Aequi, however, did not allow much respite. In violation of the treaty made with Rome the year before, they made predatory incursions into the territory of Labici and then into that of Tusculum. They had placed Gracchus Cloelius in command, their foremost man at that time. After loading themselves with plunder they fixed their camp on Mount Algidus. Q. Fabius, P. Volumnius, and A. Postumius were sent from Rome to demand satisfaction, under the terms of the treaty. The general's quarters were located under an enormous oak, and he told the Roman envoys to deliver the instructions they had received from the senate to the oak under whose shadow he was sitting, as he was otherwise engaged. As they withdrew, one of the envoys exclaimed, "May this consecrated oak, may each offended deity hear that you have broken the treaty! May they look upon our complaint now, and may they presently aid our arms when we seek to redress the outraged rights of gods as well as men!" On the return of the envoys, the senate ordered one of the consuls to march against Gracchus on Algidus; the other was instructed to ravage the territory of the Aequi. As usual, the tribunes attempted to obstruct the levy and probably would in the end have succeeded, had there not been fresh cause for alarm.

[3.26]An immense body of Sabines came in their ravages almost up to the walls of the City. The fields were ruined, the City thoroughly alarmed. Now the plebeians cheerfully took up arms, the tribunes remonstrated in vain, and two large armies were levied. Nautius led

one of them against the Sabines, formed an entrenched camp, sent out, generally at night, small bodies who created such destruction in the Sabine territory that the Roman borders appeared in comparison almost untouched by war. Minucius was not so fortunate, nor did he conduct the campaign with the same energy; after taking up an entrenched position not far from the enemy, he remained timidly within his camp, though he had not suffered any important defeat. As usual, the enemy were emboldened by the lack of courage on the other side. They made a night attack on his camp, but as they gained little by a direct assault they proceeded the following day to invest it. Before all the exits were closed by the circumvallation, five mounted men got through the enemies' outposts and brought to Rome the news that the consul and his army were blockaded. Nothing could have happened so unlooked for, so undreamed of; the panic and confusion were as great as if it had been the City and not the camp that was invested. The consul Nautius was summoned home, but as he did nothing equal to the emergency, they decided to appoint a Dictator to retrieve the threatening position of affairs. By universal consent L. Quinctius Cincinnatus was called to the office.

It is worth while for those who despise all human interests in comparison with riches, and think that there is no scope for high honours or for virtue except where lavish wealth abounds, to listen to this story. The one hope of Rome, L. Quinctius, used to cultivate a four-acre field on the other side of the Tiber, just opposite the place where the dockyard and arsenal are now situated; it bears the name of the "Quinctian Meadows." There he was found by the deputation from the senate either digging out a ditch or ploughing, at all events, as is generally agreed, intent on his husbandry. After mutual salutations he was requested to put on his toga that he might hear the mandate of the senate, and they expressed the hope that it might turn out well for him and for the State. He asked them, in surprise, if all was well, and bade his wife, Racilia, bring him his toga quickly from the cottage. Wiping off the dust and perspiration, he put it on and came forward, on which the deputation saluted him as Dictator and congratulated him, invited him to the City and explained the state of apprehension in which the army were. A vessel had been provided for him by the government, and after he had crossed over, he was welcomed by his three sons, who had come out to meet him. They were followed by other relatives and friends, and by the majority of

the senate. Escorted by this numerous gathering and preceded by the lictors, he was conducted to his house. There was also an enormous gathering of the plebs, but they were by no means so pleased to see Quinctius; they regarded the power with which he was invested as excessive, and the man himself more dangerous than his power. Nothing was done that night beyond adequately guarding the City.

[3.27]The following morning the Dictator went, before daylight, into the Forum and named as his Master of the Horse, L. Tarquinius, a member of a patrician house, but owing to his poverty he had served in the infantry, where he was considered by far the finest of the Roman soldiers. In company with the Master of the Horse the Dictator proceeded to the Assembly, proclaimed a suspension of all public business, ordered the shops to be closed throughout the City, and forbade the transaction of any private business whatever. Then he ordered all who were of military age to appear fully armed in the Campus Martius before sunset, each with five days' provisions and twelve palisades. Those who were beyond that age were required to cook the rations for their neighbours, whilst they were getting their arms ready and looking for palisades. So the soldiers dispersed to hunt for palisades; they took them from the nearest places, no one was interfered with, all were eager to carry out the Dictator's edict. The formation of the army was equally adapted for marching or, if circumstances required, for fighting; the Dictator led the legions in person, the Master of the Horse was at the head of his cavalry. To both bodies words of encouragement were addressed suitable to the emergency, exhorting them to march at extra speed, for there was need of haste if they were to reach the enemy at night; a Roman army with its consul had been now invested for three days, it was uncertain what a day or a night might bring forth, tremendous issues often turned on a moment of time. The men shouted to one another, "Hurry on, standard-bearer!" "Follow up, soldiers!" to the great gratification of their leaders. They reached Algidus at midnight, and on finding that they were near the enemy, halted.

[3.28]The Dictator, after riding round and reconnoitring as well as he could in the night the position and shape of the camp, commanded the military tribunes to give orders for the baggage to be collected together and the soldiers with their arms and palisades to resume their places in the ranks. His orders were carried out. Then, keeping the formation in which they had marched, the whole army, in one

long column, surrounded the enemies' lines. At a given signal all were ordered to raise a shout; after raising the shout each man was to dig a trench in front of him and fix his palisade. As soon as the order reached the men, the signal followed. The men obeyed the order, and the shout rolled round the enemies' line and over them into the consul's camp. In the one it created panic, in the other rejoicing. The Romans recognised their fellow-citizens' shout, and congratulated one another on help being at hand. They even made sorties from their outposts against the enemy and so increased their alarm. The consul said there must be no delay, that shout meant that their friends had not only arrived but were engaged, he should be surprised if the outside of the enemies' lines was not already attacked. He ordered his men to seize their arms and follow him. A nocturnal battle began. They notified the Dictator's legions by their shouts that on their side too the action had commenced. The Aequi were already making preparations to prevent themselves from being surrounded when the enclosed enemy began the battle; to prevent their lines from being broken through, they turned from those who were investing them to fight the enemy within, and so left the night free for the Dictator to complete his work. The fighting with the consul went on till dawn. By this time they were completely invested by the Dictator, and were hardly able to keep up the fight against one army. Then their lines were attacked by Quinctius' army, who had completed the circumvallation and resumed their arms. They had now to maintain a fresh conflict, the previous one was in no way slackened. Under the stress of the double attack they turned from fighting to supplication, and implored the Dictator on the one side and the consul on the other not to make their extermination the price of victory, but to allow them to surrender their arms and depart. The consul referred them to the Dictator, and he, in his anger, determined to humiliate his defeated enemy. He ordered Gracchus Cloelius and others of their principal men to be brought to him in chains, and the town of Corbio to be evacuated. He told the Aequi he did not require their blood, they were at liberty to depart; but, as an open admission of the defeat and subjugation of their nation, they would have to pass under the yoke. This was made of three spears, two fixed upright in the ground, and the third tied to them across the top. Under this yoke the Dictator sent the Aequi.

[3.29] Their camp was found to be full of everything - for they had been sent away with only their shirts on - and the Dictator gave the whole of the spoil to his own soldiers alone. Addressing the consul and his army in a tone of severe rebuke, "You, soldiers," he said, "will go without your share of the spoil, for you all but fell a spoil yourselves to the enemy from whom it was taken; and you, L. Minucius, will command these legions as a staff officer, until you begin to show the spirit of a consul." Minucius laid down his consulship and remained with the army under the Dictator's orders. But such unquestioning obedience did men in those days pay to authority when ably and wisely exercised, that the soldiers, mindful of the service he had done them rather than of the disgrace inflicted on them, voted to the Dictator a gold crown a pound in weight, and when he left they saluted him as their "patron." Quintus Fabius, the prefect of the City, convened a meeting of the senate, and they decreed that Quintus, with the army he was bringing home, should enter the City in triumphal procession. The commanding officers of the enemy were led in front, then the military standards were borne before the general's chariot, the army followed loaded with spoil. It is said that tables spread with provisions stood before all the houses, and the feasters followed the chariot with songs of triumph and the customary jests and lampoons. On that day the freedom of the City was bestowed on L. Mamilius the Tusculan, amidst universal approval. The Dictator would at once have laid down his office had not the meeting of the Assembly for the trial of M. Volscius detained him: fear of the Dictator prevented the tribunes from obstructing it. Volscius was condemned and went into exile at Lanuvium. Quintus resigned on the sixteenth day the dictatorship which had been conferred upon him for six months. During that period the consul Nautius fought a brilliant action with the Sabines at Eretum, who suffered a severe defeat, in addition to the ravaging of their fields. Fabius Quintus was sent to succeed Minucius in command at Algidus. Towards the end of the year, the tribunes began to agitate the Law, but as two armies were absent, the senate succeeded in preventing any measure from being brought before the plebs. The latter gained their point, however, in securing the re-election of the tribunes for the fifth time. It is said that wolves pursued by dogs were seen in the Capitol; this prodigy necessitated its purification. These were the events of the year.

[3.30]The next consuls were Quintus Minucius and C. Horatius Pulvillus. As there was peace abroad at the beginning of the year, the domestic troubles began again; the same tribunes agitating for the same Law. Matters would have gone further - so inflamed were the passions on both sides - had not news arrived, as though it had been purposely arranged, of the loss of the garrison at Corbio in a night attack of the Aequi. The consuls summoned a meeting of the senate; they were ordered to form a force of all who could bear arms and march to Algidus. The contest about the Law was suspended, and a fresh struggle began about the enlistment. The consular authority was on the point of being overborne by the interference of the tribunes when a fresh alarm was created. A Sabine army had descended on the Roman fields for plunder, and were approaching the City. Thoroughly alarmed, the tribunes allowed the enrolment to proceed; not, however, without insisting on an agreement that since they had been foiled for five years and but slight protection to the plebeians had so far been afforded, there should henceforth be ten tribunes of the plebs elected. Necessity extorted this from the senate, with only one condition, that for the future they should not see the same tribunes in two successive years. That this agreement might not, like all the others, prove illusory, when once the war was over, the elections for tribunes were held at once. The office of tribune had existed for thirty-six years when for the first time ten were created, two from each class. It was definitely laid down that this should be the rule in all future elections. When the enrolment was completed Minucius advanced against the Sabines, but did not find the enemy. After massacring the garrison at Corbio, the Aequi had captured Ortona; Horatius fought them on Algidus, inflicting great slaughter, and drove them not only from Algidus but also out of Corbio and Ortona; Corbio he totally destroyed on account of their having betrayed the garrison.

[3.31]M. Valerius and Sp. Vergilius were the new consuls. There was quiet at home and abroad. Owing to excessive rain there was a scarcity of provisions. A law was carried making the Aventine a part of the State domain. The tribunes of the plebs were re-elected. These men in the following year, when T. Romilius and C. Veturius were the consuls, were continually making the Law the staple of all their harangues, and said that they should be ashamed of their number being increased to no purpose, if that matter made as little progress

during their two years of office as it had made during the five preceding years. Whilst the agitation was at its height, a hurried message came from Tusculum to the effect that the Aequi were in the Tusculan territory. The good services which that nation had so lately rendered made the people ashamed to delay sending assistance. Both consuls were sent against the enemy, and found him in his usual position on Algidus. An action was fought there; above 7000 of the enemy were killed, the rest were put to flight; immense booty was taken. This, owing to the low state of the public treasury, the consuls sold. Their action, however, created ill-feeling in the army, and afforded the tribunes material on which to base an accusation against them. When, therefore, they went out of office, in which they were succeeded by Spurius Tarpeius and A. Aeternius, they were both impeached - Romilius by C. Calvius Cicero, plebeian tribune, and Veturius by L. Alienus, plebeian aedile. To the intense indignation of the senatorial party, both were condemned and fined; Romilius had to pay 10,000 "ases," and Veturius 15,000. The fate of their predecessors did not shake the resolution of the new consuls; they said that while it was quite possible that they might also be condemned, it was not possible for the plebs and its tribunes to carry the Law. Through long discussion it had become stale, the tribunes now threw it over and approached the patricians in a less aggressive spirit. They urged that an end should be put to their disputes, and if they objected to the measures adopted by the plebeians, they should consent to the appointment of a body of legislators, chosen in equal numbers from plebeians and patricians, to enact what would be useful to both orders and secure equal liberty for each. The patricians thought the proposal worth consideration; they said, however, that no one should legislate unless he were a patrician, since they were agreed as to the laws and only differed as to who should enact them. Commissioners were sent to Athens with instructions to make a copy of the famous laws of Solon, and to investigate the institutions, customs, and laws of other Greek States. Their names were Spurius Postumius Albus, A. Manlius, P. Sulpicius Camerinus.

[3.32]As regards foreign war, the year was a quiet one. The following one, in which P. Curiatius and Sextus Quinctilius were consuls, was still quieter owing to the continued silence of the tribunes. This was due to two causes: first, they were waiting for the return of the commissioners who had gone to Athens, and the foreign laws which

they were to bring; and secondly, two fearful disasters came together, famine and a pestilence which was fatal to men and fatal to cattle. The fields lay waste, the City was depleted by an unbroken series of deaths, many illustrious houses were in mourning. The Flamen Quirinalis, Servius Cornelius, died, also the augur C. Horatius Pulvillus, in whose place the augurs chose C. Veturius, all the more eagerly because he had been condemned by the plebs. The consul Quinctilius and four tribunes of the plebs died. The year was a gloomy one owing to the numerous losses. There was a respite from external enemies. The succeeding consuls were C. Menenius and P. Sestius Capitolinus. This year also was free from war abroad, but commotions began at home. The commissioners had now returned with the laws of Athens; the tribunes, in consequence, were more insistent that a commencement should at last be made in the compilation of the laws. It was decided that a body of Ten (hence called the "Decemvirs") should be created, from whom there should be no appeal, and that all other magistrates should be suspended for the year. There was a long controversy as to whether plebeians should be admitted; at last they gave way to the patricians on condition that the Icilian Law concerning the Aventine and the other sacred laws should not be repealed.

[3.33]For the second time - in the 301st year from the foundation of Rome - was the form of government changed; the supreme authority was transferred from consuls to decemvirs, just as it had previously passed from kings to consuls. The change was the less noteworthy owing to its short duration, for the happy beginnings of that government developed into too luxuriant a growth; hence its early failure and the return to the old practice of entrusting to two men the name and authority of consul. The decemvirs were Appius Claudius, T. Genucius, P. Sestius, L. Veturius, C. Julius, A. Manlius, P. Sulpicius, P. Curiatius, T. Romilius, and Sp. Postumius. As Claudius and Genucius were the consuls designate, they received the honour in place of the honour of which they were deprived. Sestius, one of the consuls the year before, was honoured because he had, against his colleague, brought that subject before the senate. Next to them were placed the three commissioners who had gone to Athens, as a reward for their undertaking so distant an embassy, and also because it was thought that those who were familiar with the laws of foreign States would be useful in the compilation of new ones. It is

said that in the final voting for the four required to complete the number, the electors chose aged men, to prevent any violent opposition to the decisions of the others. The presidency of the whole body was, in accordance with the wishes of the plebs, entrusted to Appius. He had assumed such a new character that from being a stern and bitter enemy of the people he suddenly appeared as their advocate, and trimmed his sails to catch every breath of popular favour. They administered justice each in turn, the one who was presiding judge for the day was attended by the twelve lictors, the others had only a single usher each. Notwithstanding the singular harmony which prevailed amongst them - a harmony which under other circumstances might be dangerous to individuals - the most perfect equity was shown to others. It will be sufficient to adduce a single instance as proof of the moderation with which they acted. A dead body had been discovered and dug up in the house of Sestius, a member of a patrician family. It was brought into the Assembly. As it was clear that an atrocious crime had been committed, Caius Julius, a decemvir, indicted Sestius, and appeared before the people to prosecute in person, though he had the right to act as sole judge in the case. He waived his right in order that the liberties of the people might gain what he surrendered of his power.

[3.34] Whilst highest and lowest alike were enjoying their prompt and impartial administration of justice, as though delivered by an oracle, they were at the same time devoting their attention to the framing of the laws. These eagerly looked for laws were at length inscribed on ten tables which were exhibited in an Assembly specially convened for the purpose. After a prayer that their work might bring welfare and happiness to the State, to them and to their children, the decemvirs bade them go and read the laws which were exhibited. "As far as the wisdom and foresight of ten men admitted, they had established equal laws for all, for highest and lowest alike; there was, however, more weight in the intelligence and advice of many men. They should turn over each separate item in their minds, discuss them in conversations with each other, and bring forward for public debate what appeared to them superfluous or defective in each enactment. The future laws for Rome should be such as would appear to have been no less unanimously proposed by the people themselves than ratified by them on the proposal of others." When it appeared that they had been sufficiently amended in accordance

with the expression of public opinion on each head, the Laws of the Ten Tables were passed by the Assembly of Centuries. Even in the mass of legislation today, where laws are piled one upon another in a confused heap, they still form the source of all public and private jurisprudence. After their ratification, the remark was generally made that two tables were still wanting; if they were added, the body, as it might be called, of Roman law would be complete. As the day for the elections approached, this impression created a desire to appoint decemvirs for a second year. The plebeians had learnt to detest the name of "consul" as much as that of "king," and now as the decemvirs allowed an appeal from one of their body to another, they no longer required the aid of their tribunes.

[3.35]But after notice had been given that the election of decemvirs would be held on the third market day, such eagerness to be amongst those elected displayed itself, that even the foremost men of the State began an individual canvass as humble suitors for an office which they had previously with all their might opposed, seeking it at the hands of that very plebs with which they had hitherto been in conflict. I think they feared that if they did not fill posts of such great authority, they would be open to men who were not worthy of them. Appius Claudius was keenly alive to the chance that he might not be re-elected, in spite of his age and the honours he had enjoyed. You could hardly tell whether to consider him as a decemvir or a candidate. Sometimes he was more like one who sought office than one who actually held it; he abused the nobility, and extolled all the candidates who had neither birth nor personal weight to recommend them; he used to bustle about the Forum surrounded by ex-tribunes of the Duellius and Scilius stamp and through them made overtures to the plebeians, until even his colleagues, who till then had been wholly devoted to him, began to watch him, wondering what he meant. They were convinced that there was no sincerity about it, it was certain that so haughty a man would not exhibit such affability for nothing. They regarded this demeaning of himself and hobnobbing with private individuals as the action of a man who was not so keen to resign office as to discover some way of prolonging it. Not venturing to thwart his aims openly, they tried to moderate his violence by humouring him. As he was the youngest member of their body, they unanimously conferred on him the office of presiding over the elections. By this artifice they hoped to prevent him from

getting himself elected; a thing which no one except the tribunes of the plebs had ever done, setting thereby the worst of precedents. However, he gave out that, if all went well, he should hold the elections, and he seized upon what should have been an impediment as a good opportunity for effecting his purpose. By forming a coalition he secured the rejection of the two Quinctii - Capitolinus and Cincinnatus - his own uncle, C. Claudius, one of the firmest supporters of the nobility, and other citizens of the same rank. He procured the election of men who were very far from being their equals either socially or politically, himself amongst the first, a step which respectable men disapproved of, all the more because no one had supposed that he would have the audacity to take it. With him were elected M. Cornelius Maluginensis, M. Sergius, L. Minucius, Q. Fabius Vibulanus, Q. Poetilius, T. Antonius Merenda, K. Duillius, Sp. Oppius Cornicen, and Manlius Rabuleius.

[3.36] This was the end of Appius' assumption of a part foreign to his nature. From that time his conduct was in accordance with his natural disposition, and he began to mould his new colleagues, even before they entered on office, into the lines of his own character. They held private meetings daily; then, armed with plans hatched in absolute secrecy for exercising unbridled power, they no longer troubled to dissemble their tyranny, but made themselves difficult of access, harsh and stern to those to whom they granted interviews. So matters went on till the middle of May. At that period, May 15, was the proper time for magistrates to take up their office. At the outset, the first day of their government was marked by a demonstration which aroused great fears. For, whereas the previous decemvirs had observed the rule of only one having the "fasces" at a time and making this emblem of royalty go to each in turn, now all the Ten suddenly appeared, each with his twelve lictors. The Forum was filled with one hundred and twenty lictors, and they bore the axes tied up in the "fasces." The decemvirs explained it by saying that as they were invested with absolute power of life and death, there was no reason for the axes being removed. They presented the appearance of ten kings, and manifold fears were entertained not only by the lowest classes but even by the foremost of the senators. They felt that a pretext for commencing bloodshed was being sought for, so that if any one uttered, either in the senate or amongst the people, a single word which reminded them of liberty, the rods and axes would instantly be

made ready for him, to intimidate the rest. For not only was there no protection in the people now that the right of appeal to them was withdrawn, but the decemvirs had mutually agreed not to interfere with each other's sentences, whereas the previous decemvirs had allowed their judicial decisions to be revised on appeal to a colleague, and certain matters which they considered to be within the jurisdiction of the people they had referred to them. For some time they inspired equal terror in all, gradually it rested wholly on the plebs. The patricians were unmolested; it was the men in humble life for whom they reserved their wanton and cruel treatment. They were solely swayed by personal motives, not by the justice of a cause, since influence had with them the force of equity. They drew up their judgments at home and pronounced them in the Forum; if any one appealed to a colleague, he left the presence of the one to whom he had appealed bitterly regretting that he had not abided by the first sentence. A belief, not traceable to any authoritative source, had got abroad that their conspiracy against law and justice was not for the present only, a secret and sworn agreement existed amongst them not to hold any elections, but to keep their power, now they had once obtained it, by making the decemvirate perpetual.

[3.37]The plebeians now began to study the faces of the patricians, to catch haply some gleam of liberty from the men from whom they had dreaded slavery and through that dread had brought the commonwealth into its present condition. The leaders of the senate hated the decemvirs, and hated the plebs; they did not approve of what was going on, but they thought that the plebeians deserved all that they got, and refused to help men who by rushing too eagerly after liberty had fallen into slavery. They even increased the wrongs they suffered, that through their disgust and impatience at the present conditions they might begin to long for the former state of things and the two consuls as of old. The greater part of the year had now elapsed; two tables had been added to the ten of the previous year; if these additional laws were passed by the "Comitia Centuriata" there was no reason why the decemvirate should be any longer considered necessary. Men were wondering how soon notice would be given of the election of consuls; the sole anxiety of the plebeians was as to the method by which they could re-establish that bulwark of their liberties, the power of the tribunes, which was now suspended. Meantime nothing was said about any elections. At first the

decemvirs had bid for popularity by appearing before the plebs, surrounded by ex-tribunes, but now they were accompanied by an escort of young patricians, who crowded round the tribunals, maltreated the plebeians and plundered their property, and being the stronger, succeeded in getting whatever they had taken a fancy to. They did not stop short of personal violence, some were scourged, others beheaded, and that this brutality might not be gratuitous, the punishment of the owner was followed by a grant of his effects. Corrupted by such bribes, the young nobility not only declined to oppose the lawlessness of the decemvirs, but they openly showed that they preferred their own freedom from all restraints to the general liberty.

[3.38]The fifteenth of May arrived, the decemvirs' term of office expired, but no new magistrates were appointed. Though now only private citizens, the decemvirs came forward as determined as ever to enforce their authority and retain all the emblems of power. It was now in truth undisguised monarchy. Liberty was looked upon as for ever lost, none stood forth to vindicate it, nor did it seem likely that any one would do so. Not only had the people sunk into despondency themselves but they were beginning to be despised by their neighbours, who scorned the idea of sovereign power existing where there was no liberty. The Sabines made an incursion into Roman territory in great force, and carrying their ravages far and wide, drove away an immense quantity of men and cattle to Eretum, where they collected their scattered forces and encamped in the hope that the distracted state of Rome would prevent an army from being raised. Not only the messengers who brought the information but the country people who were flying into the City created a panic. The decemvirs, hated alike by the senate and the plebs, were left without any support, and whilst they were consulting as to the necessary measures, Fortune added a fresh cause of alarm. The Aequi, advancing in a different direction, had entrenched themselves on Algidus, and from there were making predatory incursions into the territory of Tusculum. The news was brought by envoys from Tusculum who implored assistance. The panic created unnerved the decemvirs, and seeing the City encompassed by two separate wars they were driven to consult the senate. They gave orders for the senators to be summoned, quite realising what a storm of indignant resentment was awaiting them, and that they would be held solely

responsible for the wasted territory and the threatening dangers. This, they expected, would lead to an attempt to deprive them of office, unless they offered a unanimous resistance, and by a sharp exercise of authority on a few of the most daring spirits repress the attempts of the others.

When the voice of the crier was heard in the Forum calling the patricians to the Senate-house to meet the decemvirs, the novelty of it, after so long a suspension of the meetings of the senate, filled the plebeians with astonishment. "What," they asked, "has happened to revive a practice so long disused? We ought to be grateful to the enemy who are menacing us with war, for causing anything to happen which belongs to the usage of a free State." They looked in every part of the Forum for a senator, but seldom was one recognised; then they contemplated the Senate-house and the solitude round the decemvirs. The latter put it down to the universal hatred felt for their authority, the plebeians explained it by saying that the senators did not meet because private citizens had not the right to summon them. If the plebs made common cause with the senate, those who were bent on recovering their liberty would have men to lead them, and as the senators when summoned would not assemble, so the plebs must refuse to be enrolled for service. Thus the plebeians expressed their opinions. As to the senators, there was hardly a single member of the order in the Forum, and very few in the City. Disgusted with the state of matters they had retired to their country homes and were attending to their own affairs, having lost all interest in those of the State. They felt that the more they kept away from any meeting and intercourse with their tyrannical masters the safer would it be for them. As, on being summoned, they did not come, the ushers were despatched to their houses to exact the penalties for non-attendance and to ascertain whether they absented themselves of set purpose. They took back word that the senate was in the country. This was less unpleasant for the decemvirs than if they had been in the City and had refused to recognise their authority. Orders were issued for all to be summoned for the following day. They assembled in greater numbers than they themselves expected. This led the plebeians to think that their liberty had been betrayed by the senate, since they had obeyed men whose term of office had expired and who, apart from the force at their disposal, were only private citizens; thus recognising their right to convene the senate.

[3.39] This obedience, however, was shown more by their coming to the Senate-house than by any servility in the sentiments which we understand that they expressed. It is recorded that after the question of the war had been introduced by Appius Claudius, and before the formal discussion began, L. Valerius Potitus created a scene by demanding that he should be allowed to speak on the political question, and on the decemvirs forbidding him in threatening tones to do so, he declared that he would present himself before the people. Marcus Horatius Barbatus showed himself an equally determined opponent, called the decemvirs "ten Tarquins," and reminded them that it was under the leadership of the Valerii and the Horatii that monarchy had been expelled from Rome. It was not the name of "king" that men had now grown weary of, for it was the proper title of Jupiter, Romulus the founder of the City and his successors were called "kings," and the name was still retained for religious purposes. It was the tyranny and violence of kings that men detested. If these were insupportable in a king or a king's son, who would endure them in ten private citizens? They should see to it that they did not, by forbidding freedom of speech in the House, compel them to speak outside its walls. He could not see how it was less permissible for him as a private citizen to convene an Assembly of the people than for them to summon the senate. They might find out whenever they chose how much more powerful a sense of wrong is to vindicate liberty than greedy ambition is to support tyranny. They were bringing up the question of the Sabine war as if the Roman people had any more serious war to wage than one against men who, appointed to draw up laws, left no vestige of law or justice in the State; who had abolished the elections, the annual magistrates, the regular succession of rulers, which formed the sole guarantee of equal liberty for all; who, though simple citizens, still retained the fasces and the power of despotic monarchs. After the expulsion of the kings, the magistrates were patricians; after the secession of the plebs, plebeian magistrates were appointed. "What party did these men belong to?" he asked. "The popular party? Why, what have they ever done in conjunction with the people? The nobility? What! these men, who have not held a meeting of the senate for nearly a year, and now that they are holding one, forbid any speaking on the political situation? Do not place too much reliance on the fears of others. The ills that men are actually suffering from seem to them much more grievous than any they may fear in the future."

[3.40]Whilst Horatius was delivering this impassioned speech, and the decemvirs were in doubt how far they ought to go, whether in the direction of angry resistance or in that of concession, and unable to see what the issue would be, C. Claudius, the uncle of the decemvir Appius, made a speech more in the nature of entreaty than of censure. He implored him by the shade of his father to think rather of the social order under which he had been born than of the nefarious compact made with his colleagues. It was much more, he said, for the sake of Appius than of the State that he made this appeal, for the State would assert its rights in spite of them, if it could not do so with their consent. But great controversies generally kindle great and bitter passions, and it was what these might lead to that he dreaded. Though the decemvirs forbade the discussion of any subject save the one they had introduced, their respect for Claudius prevented them from interrupting him, so he concluded with a resolution that no decree should be passed by the senate. This was universally taken to mean that Claudius adjudged them to be private citizens, and many of the consulars expressed their concurrence. Another proposal, apparently more drastic, but in reality less effective, was that the senate should order the patricians to hold a special meeting to appoint an "interrex." For by voting for this, they decided that those who were presiding over the senate were lawful magistrates, whoever they were, whereas the proposal that no decree should be passed made them private citizens.

The cause of the decemvirs was on the point of collapsing, when L. Cornelius Maluginensis, the brother of M. Cornelius the decemvir, who had been purposely selected from among the consulars to wind up the debate, undertook to defend his brother and his brother's colleagues by professing great anxiety about the war. He was wondering, he said, by what fatality it had come about that the decemvirs should be attacked by those who had sought the office or by their allies or in particular by these men, or why, during all the months that the commonwealth was undisturbed, no one questioned whether those at the head of affairs were lawful magistrates or not, whereas now, when the enemy were almost at their gates, they were fomenting civic discord - unless indeed they supposed that the nature of their proceeding would be less apparent in the general confusion. No one was justified in importing prejudice into a matter of such moment whilst they were preoccupied with much more serious

anxieties. He gave it as his opinion that the point raised by Valerius and Horatius, namely, that the decemvirs had ceased to hold office by May 15, should be submitted to the senate for decision after the impending wars had been brought to a close and the tranquillity of the State restored. And further, that Ap. Claudius must at once understand that he must be prepared to make a proper return of the election which he held for the appointment of decemvirs, stating whether they were elected only for a year, or until such time as the laws which were still required should be passed. In his opinion every matter but the war should for the present be laid aside. If they thought that the reports of it which had got abroad were false, and that not only the messengers which had come in but even the Tuscan envoys had invented the story, then they ought to send out reconnoitring parties to bring back accurate information. If, however, they believed the messengers and the envoys, a levy ought to be made at the earliest possible moment, the decemvirs should lead the armies in whatever direction each thought best, and nothing else should take precedence.

[3.41]Whilst a division was being taken and the younger senators were carrying this proposition, Valerius and Horatius rose again in great excitement and loudly demanded leave to discuss the political situation. If, they said, the faction in the senate prevented them, they would bring it before the people, for private citizens had no power to silence them either in the Senate-house or in the Assembly, and they were not going to give way before the fasces of a mock authority. Appius felt that unless he met their violence with equal audacity, his authority was practically at an end. "It will be better," he said, "not to speak on any subject but the one we are now considering," and as Valerius insisted that he should not keep silent for a private citizen, Appius ordered a lictor to go to him. Valerius ran to the doors of the Senate-house and invoked "the protection of the Quirites." L. Cornelius put an end to the scene by throwing his arms round Appius as though to protect Valerius, but really to protect Appius from further mischief. He obtained permission for Valerius to say what he wanted, and as this liberty did not go beyond words, the decemvirs achieved their purpose. The consulars and senior senators felt that the tribunitian authority, which they still regarded with detestation, was much more eagerly desired by the plebs than the restoration of the consular authority, and they would almost rather have had the

decemvirs voluntarily resigning office at a subsequent period than that the plebs should recover power through their unpopularity. If matters could be quietly arranged and the consuls restored without any popular disturbance, they thought that either the preoccupation of war or the moderate exercise of power on the part of the consuls would make the plebs forget all about their tribunes. The levy was proclaimed without any protest from the senate. The men of age for active service answered to their names, as there was no appeal from the authority of the decemvirs. When the legions were enrolled, the decemvirs arranged among themselves their respective commands. The prominent men amongst them were Q. Fabius and Appius Claudius. The war at home threatened to be more serious than the one abroad, and the violent disposition of Appius was deemed more fitted to repress commotions in the City, whilst Fabius was looked upon as more inclined to evil practices than to be any permanent good to them. This man, at one time so distinguished both at home and in the field, had been so changed by office and the influence of his colleagues that he preferred to take Appius as his model rather than be true to himself. He was entrusted with the Sabine war, and Manlius Rabuleius and Q. Poetilius were associated with him in its conduct. M. Cornelius was sent to Algidus, together with L. Minucius, T. Antonius, Kaeso Duillius, and M. Sergius. It was decreed that Sp. Oppius should assist Ap. Claudius in the defence of the City, with an authority co-ordinate with that of the other decemvirs.

[3.42]The military operations were not any more satisfactory than the domestic administration. The commanders were certainly at fault in having made themselves objects of detestation to the citizens, but otherwise the whole of the blame rested on the soldiers, who, to prevent anything from succeeding under the auspices and leadership of the decemvirs, disgraced both themselves and their generals by allowing themselves to be defeated. Both armies had been routed, the one by the Sabines at Eretum, the other by the Aequi on Algidus. Fleeing from Eretum in the silence of the night, they had entrenched themselves on some high ground near the City between Fidenae and Crustumeria. They refused to meet the pursuing enemy anywhere on equal terms, and trusted for safety to their entrenchments and the nature of the ground, not to arms or courage. On Algidus they behaved more disgracefully, suffered a heavier defeat, and even lost

their camp. Deprived of all their stores, the soldiers made their way to Tusculum, looking for subsistence to the good faith and compassion of their hosts, and their confidence was not misplaced. Such alarming reports were brought to Rome that the senate, laying aside their feeling against the decemvirs, resolved that guards should be mounted in the City, ordered that all who were of age to bear arms should man the walls and undertake outpost duty before the gates, and decreed a supply of arms to be sent to Tusculum to replace those which had been lost, whilst the decemvirs were to evacuate Tusculum and keep their soldiers encamped. The other camp was to be transferred from Fidenae on to the Sabine territory, and by assuming the offensive deter the enemy from any project of attacking the City.

[3.43]To these defeats at the hands of the enemy have to be added two infamous crimes on the part of the decemvirs. L. Siccius was serving in the campaign against the Sabines. Seeing the bitter feeling against the decemvirs, he used to hold secret conversations with the soldiery and threw out hints about the creation of tribunes and resorting to a secession. He was sent to select and survey a site for a camp, and the soldiers who had been told off to accompany him were instructed to choose a favourable opportunity for attacking and despatching him. They did not effect their purpose with impunity, several of the assassins fell around him whilst he was defending himself with a courage equal to his strength, and that was exceptional. The rest brought a report back to camp that Siccius had fallen into an ambush and had died fighting bravely, whilst some soldiers had been lost with him. At first the informants were believed; but subsequently a cohort which had gone out by permission of the decemvirs to bury those who had fallen, found, when they reached the spot, no corpse despoiled, but the body of Siccius lying in the centre fully armed with those around all turned towards him, whilst there was not a single body belonging to the enemy nor any trace of their having retired. They brought the body back and declared that, as a matter of fact, he had been killed by his own men. The camp was filled with deep resentment, and it was decided that Siccius should be forthwith carried to Rome. The decemvirs anticipated this resolve by hastily burying him with military honours at the cost of the State. The soldiers manifested profound grief at his funeral, and the worst possible suspicions were everywhere entertained against the decemvirs.

[3.44] This was followed by a second atrocity, the result of brutal lust, which occurred in the City and led to consequences no less tragic than the outrage and death of Lucretia, which had brought about the expulsion of the royal family. Not only was the end of the decemvirs the same as that of the kings, but the cause of their losing their power was the same in each case. Ap. Claudius had conceived a guilty passion for a girl of plebeian birth. The girl's father, L. Verginius, held a high rank in the army on Algidus; he was a man of exemplary character both at home and in the field. His wife had been brought up on equally high principles, and their children were being brought up in the same way. He had betrothed his daughter to L. Icilius, who had been tribune, an active and energetic man whose courage had been proved in his battles for the plebs. This girl, now in the bloom of her youth and beauty, excited Appius' passions, and he tried to prevail on her by presents and promises. When he found that her virtue was proof against all temptation, he had recourse to unscrupulous and brutal violence. He commissioned a client, M. Claudius, to claim the girl as his slave, and to bar any claim on the part of her friends to retain possession of her till the case was tried, as he thought that the father's absence afforded a good opportunity for this illegal action. As the girl was going to her school in the Forum - the grammar schools were held in booths there - the decemvir's pander laid his hand upon her, declaring that she was the daughter of a slave of his, and a slave herself. He then ordered her to follow him, and threatened, if she hesitated, to carry her off by force. While the girl was stupefied with terror, her maid's shrieks, invoking "the protection of the Quirites," drew a crowd together. The names of her father Verginius and her betrothed lover, Icilius, were held in universal respect. Regard for them brought their friends, feelings of indignation brought the crowd to the maiden's support. She was now safe from violence; the man who claimed her said that he was proceeding according to law, not by violence, there was no need for any excited gathering. He cited the girl into court. Her supporters advised her to follow him; they came before the tribunal of Appius. The claimant rehearsed a story already perfectly familiar to the judge as he was the author of the plot, how the girl had been born in his house, stolen from there, transferred to the house of Verginius and fathered on him; these allegations would be supported by definite evidence, and he would prove them to the satisfaction of Verginius himself, who was really most concerned, as an injury had been done

to him. Meanwhile, he urged, it was only right that a slave girl should follow her master. The girl's advocates contended that Verginius was absent on the service of the State, he would be present in two days' time if information were sent to him, and it was contrary to equity that in his absence he should incur risk with regard to his children. They demanded that he should adjourn the whole of the proceedings till the father's arrival, and in accordance with the law which he himself had enacted, grant the custody of the girl to those who asserted her freedom, and not suffer a maiden of ripe age to incur danger to her reputation before her liberty was imperilled.

[3.45]Before giving judgment, Appius showed how liberty was upheld by that very law to which the friends of Verginia had appealed in support of their demand. But, he went on to say, it guaranteed liberty only so far as its provisions were strictly adhered to as regarded both persons and cases. For where personal freedom is the matter of claim, that provision holds good, because any one can lawfully plead, but in the case of one who is still in her father's power, there is none but her father to whom her master need renounce possession. His decision, therefore, was that the father should be summoned, and in the meanwhile the man who claimed her should not forego his right to take the girl and give security to produce her on the arrival of her reputed father. The injustice of this sentence called forth many murmurs, but no one ventured on open protest, until P. Numitorius, the girl's grandfather, and Icilius, her betrothed, appeared on the scene. The intervention of Icilius seemed to offer the best chance of thwarting Appius, and the crowd made way for him. The lictor said that judgment had been given, and as Icilius continued loudly protesting he attempted to remove him. Such rank injustice would have fired even a gentle temper. He exclaimed, "I am, at your orders, Appius, to be removed at the point of the sword, that you may stifle all comment on what you want to keep concealed. I am going to marry this maiden, and I am determined to have a chaste wife. Summon all the lictors of all your colleagues, give orders for the axes and rods to be in readiness - the betrothed of Icilius shall not remain outside her father's house. Even if you have deprived us of the two bulwarks of our liberty - the aid of our tribunes and the right of appeal to the Roman plebs - that has given you no right to our wives and children, the victims of your lust. Vent your cruelty upon our backs and necks; let female honour at least be safe. If violence is

offered to this girl, I shall invoke the aid of the Quirites here for my betrothed, Verginius that of the soldiers for his only daughter; we shall all invoke the aid of gods and men, and you shall not carry out that judgment except at the cost of our lives. Reflect, Appius, I demand of you, whither you are going! When Verginius has come, he must decide what action to take about his daughter; if he submits to this man's claim, he must look out another husband for her. Meantime I will vindicate her liberty at the price of my life, sooner than sacrifice my honour."

[3.46]The people were excited and a conflict appeared imminent. The lictors had closed round Icilius, but matters had not got beyond threats on both sides when Appius declared that it was not the defence of Verginia that was Icilius' main object; a restless intriguer, even yet breathing the spirit of the tribuneship, was looking out for a chance of creating sedition. He would not, however, afford him material for it that day, but that he might know that it was not to his insolence that he was making a concession, but to the absent Verginius, to the name of father, and to liberty, he would not adjudicate on that day, or issue any decree. He would ask M. Claudius to forego his right, and allow the girl to be in the custody of her friends till the morrow. If the father did not then appear, he warned Icilius and men of his stamp that neither as legislator would he be disloyal to his own law, nor as decemvir would he lack firmness to execute it. He certainly would not call upon the lictors of his colleagues to repress the ringleaders of sedition, he should be content with his own. The time for perpetrating this illegality was thus postponed, and after the girl's supporters had withdrawn, it was decided as the very first thing to be done that the brother of Icilius and one of Numitor's sons, both active youths, should make their way straight to the gate and summon Verginius from the camp with all possible speed. They knew that the girl's safety turned upon her protector against lawlessness being present in time. They started on their mission, and riding at full speed brought the news to the father. While the claimant of the girl was pressing Icilius to enter his plea and name his sureties, and Icilius kept asserting that this very thing was being arranged, purposely spinning out the time to allow of his messengers getting first to the camp, the crowd everywhere held up their hands to show that every one of them was ready to be security for him. With tears in his eyes, he said, "It is most kind of you.

Tomorrow I may need your help, now I have sufficient securities." So Verginia was bailed on the security of her relatives. Appius remained for some time on the bench, to avoid the appearance of having taken his seat for that one case only. When he found that owing to the universal interest in this one case no other suitors appeared, he withdrew to his home and wrote to his colleagues in camp not to grant leave of absence to Verginius, and actually to keep him under arrest. This wicked advice came too late, as it deserved to do; Verginius had already obtained leave, and started in the first watch. The letter ordering his detention was delivered the next morning, and was therefore useless.

[3.47] In the City, the citizens were standing in the Forum in the early dawn, on the tiptoe of expectation. Verginius, in mourning garb, brought his daughter, similarly attired, and accompanied by a number of matrons, into the Forum. An immense body of sympathisers stood round him. He went amongst the people, took them by the hand and appealed to them to help him, not out of compassion only but because they owed it to him; he was at the front day by day, in defence of their children and their wives; of no man could they recount more numerous deeds of endurance and of daring than of him. What good was it all, he asked, if while the City was safe, their children were exposed to what would be their worst fate if it were actually captured? Men gathered round him, whilst he spoke as though he were addressing the Assembly. Icilius followed in the same strain. The women who accompanied him made a profounder impression by their silent weeping than any words could have made. Unmoved by all this - it was really madness rather than love that had clouded his judgment - Appius mounted the tribunal. The claimant began by a brief protest against the proceedings of the previous day; judgment, he said, had not been given owing to the partiality of the judge. But before he could proceed with his claim or any opportunity was given to Verginius of replying, Appius intervened. It is possible that the ancient writers may have correctly stated some ground which he alleged for his decision, but I do not find one anywhere that would justify such an iniquitous decision. The one thing which can be propounded as being generally admitted is the judgment itself. His decision was that the girl was a slave. At first all were stupefied with amazement at this atrocity, and for a few moments there was a dead silence. Then, as M. Claudius approached the matrons standing

round the girl, to seize her amidst their outcries and tears, Verginius, pointing with outstretched arm to Appius, cried, "It is to Icilius and not to you, Appius, that I have betrothed my daughter; I have brought her up for wedlock, not for outrage. Are you determined to satisfy your brutal lusts like cattle and wild beasts? Whether these people will put up with this, I know not, but I hope that those who possess arms will refuse to do so." Whilst the man who claimed the maiden was being pushed back by the group of women and her supporters who stood round, the crier called for silence.

[3.48]The decemvir, utterly abandoned to his passion, addressed the crowd and told them that he had ascertained not only through the insolent abuse of Icilius on the previous day and the violent behaviour of Verginius, which the Roman people could testify to, but mainly from certain definite information received, that all through the night meetings had been held in the City to organise a seditious movement. Forewarned of the likelihood of disturbance, he had come down into the Forum with an armed escort, not to injure peaceable citizens, but to uphold the authority of the government by putting down the disturbers of public tranquillity. "It will therefore," he proceeded, "be better for you to keep quiet. Go, lictor, remove the crowd and clear a way for the master to take possession of his slave." When, in a transport of rage, he had thundered out these words, the people fell back and left the deserted girl a prey to injustice. Verginius, seeing no prospect of help anywhere, turned to the tribunal. "Pardon me, Appius, I pray you, if I have spoken disrespectfully to you, pardon a father's grief. Allow me to question the nurse here, in the maiden's presence, as to what are the real facts of the case, that if I have been falsely called her father, I may leave her with the greater resignation." Permission being granted, he took the girl and her nurse aside to the booths near the temple of Venus Cloacina, now known as the "New Booths," and there, snatching up a butcher's knife, he plunged it into her breast, saying, "In this the only way in which I can, I vindicate, my child, thy freedom." Then, looking towards the tribunal, "By this blood, Appius, I devote thy head to the infernal gods." Alarmed at the outcry which arose at this terrible deed, the decemvir ordered Verginius to be arrested. Brandishing the knife, he cleared the way before him, until, protected by a crowd of sympathisers, he reached the city gate. Icilius and Numitorius took up the lifeless body and showed it to the people;

they deplored the villainy of Appius, the ill-starred beauty of the girl, the terrible compulsion under which the father had acted. The matrons, who followed with angry cries, asked, "Was this the condition on which they were to rear children, was this the reward of modesty and purity?" with other manifestations of that womanly grief, which, owing to their keener sensibility, is more demonstrative, and so expresses itself in more moving and pitiful fashion. The men, and especially Icilius, talked of nothing but the abolition of the tribunitian power and the right of appeal and loudly expressed their indignation at the condition of public affairs.

[3.49].The people were excited partly by the atrocity of the deed, partly by the opportunity now offered of recovering their liberties. Appius first ordered Icilius to be summoned before him, then, on his refusal to come, to be arrested. As the lictors were not able to get near him, Appius himself with a body of young patricians forced his way through the crowd and ordered him to be taken to prison. By this time Icilius was not only surrounded by the people, but the people's leaders were there - L. Valerius and M. Horatius. They drove back the lictors and said, if they were going to proceed by law, they would undertake the defence of Icilius against one who was only a private citizen, but if they were going to attempt force, they would be no unequal match for him. A furious scuffle began, the decemvir's lictors attacked Valerius and Horatius; their "fasces" were broken up by the people; Appius mounted the platform, Horatius and Valerius followed him; the Assembly listened to them, Appius was shouted down. Valerius, assuming the tone of authority, ordered the lictors to cease attendance on one who held no official position, on which Appius, thoroughly cowed, and fearing for his life, muffled his head with his toga and retreated into a house near the Forum, without his adversaries perceiving his flight. Sp. Oppius burst into the Forum from the other side to support his colleague, and saw that their authority was overcome by main force. Uncertain what to do and distracted by the conflicting advice given him on all sides, he gave orders for the senate to be summoned. As a great number of the senators were thought to disapprove of the conduct of the decemvirs, the people hoped that their power would be put an end to through the action of the senate, and consequently became quiet. The senate decided that nothing should be done to irritate the plebs, and, what was of much more importance, that every precaution should be taken

to prevent the arrival of Verginius from creating a commotion in the army.

[3.50]Accordingly, some of the younger senators were sent to the camp, which was then on Mount Vecilius. They informed the three decemvirs who were in command that by every possible means they were to prevent the soldiers from mutinying. Verginius caused a greater commotion in the camp than the one he had left behind in the City. The sight of his arrival with a body of nearly 400 men from the City, who, fired with indignation, had enlisted themselves as his comrades, still more the weapon still clenched in his hand and his blood-besprinkled clothes, attracted the attention of the whole camp. The civilian garb seen in all directions in the camp made the number of the citizens who had accompanied him seem greater than it was. Questioned as to what had happened, Verginius for a long time could not speak for weeping; at length when those who had run up stood quietly round him and there was silence, he explained everything in order just as it happened. Then lifting up his hands to heaven he appealed to them as his fellow-soldiers and implored them not to attribute to him what was really the crime of Appius, nor to look upon him with abhorrence as the murderer of his children. His daughter's life was dearer to him than his own, had she been allowed to live in liberty and purity; when he saw her dragged off as a slave-girl to be outraged, he thought it better to lose his child by death than by dishonour. It was through compassion for her that he had fallen into what looked like cruelty, nor would he have survived her had he not entertained the hope of avenging her death by the aid of his fellow-soldiers. For they, too, had daughters and sisters and wives; the lust of Appius was not quenched with his daughter's life, nay rather, the more impunity it met with the more unbridled would it be. Through the sufferings of another they had received a warning how to guard themselves against a like wrong. As for him, his wife had been snatched from him by Fate, his daughter, because she could no longer live in chastity, had met a piteous but an honourable death. There was no longer in his house any opportunity for Appius to gratify his lust, from any other violence on that man's part he would defend himself with the same resolution with which he had defended his child; others must look out for themselves and for their children.

To this impassioned appeal of Verginius the crowd replied with a shout that they would not fail him in his grief or in the defence of his

liberty. The civilians mingling in the throng of soldiers told the same tragic story, and how much more shocking the incident was to behold than to hear about; at the same time they announced that affairs were in fatal confusion at Rome, and that some had followed them into camp with the tidings that Appius after being almost killed had gone into exile. The result was a general call to arms, they plucked up the standards and started for Rome. The decemvirs, thoroughly alarmed at what they saw and at what they heard of the state of things in Rome, went to different parts of the camp to try and allay the excitement. Where they tried persuasion no answer was returned, but where they attempted to exercise authority, the reply was, "We are men and have arms." They marched in military order to the City and occupied the Aventine. Every one whom they met was urged to recover the liberties of the plebs and appoint tribunes; apart from this, no appeals to violence were heard. The meeting of the senate was presided over by Sp. Oppius. They decided not to adopt any harsh measures, as it was through their own lack of energy that the sedition had arisen. Three envoys of consular rank were sent to the army to demand in the name of the senate by whose orders they had abandoned their camp, and what they meant by occupying the Aventine in arms, and diverting the war from foreign foes to their own country, which they had taken forcible possession of. They were at no loss for an answer, but they were at a loss for some one to give it, since they had as yet no regular leader, and individual officers did not venture to expose themselves to the dangers of such a position. The only reply was a loud and general demand that L. Valerius and M. Horatius should be sent to them, to these men they would give a formal reply.

[3.51]After the envoys were dismissed, Verginius pointed out to the soldiers that they had a few moments ago felt themselves embarrassed in a matter of no great importance, because they were a multitude without a head, and the answer they had given, though it served their turn, was the outcome rather of the general feeling at the time than of any settled purpose. He was of opinion that ten men should be chosen to hold supreme command, and by virtue of their military rank should be called tribunes of the soldiers. He himself was the first to whom this distinction was offered, but he replied, "Reserve the opinion you have formed of me till both you and I are in more favourable circumstances; so long as my daughter is

unavenged no honour can give me pleasure, nor in the present disturbed state of the commonwealth is it any advantage for those men to be at your head who are most obnoxious to party malice. If I am to be of any use, I shall be none the less so in a private capacity." Ten military tribunes, accordingly, were appointed. The army acting against the Sabines did not remain passive. There, too, at the instigation of Icilius and Numitorius, a revolt against the decemvirs took place. The feelings of the soldiery were roused by the recollection of the murdered Siccius no less than by the fresh story of the maiden whom it had been sought to make a victim of foul lust. When Icilius heard that tribunes of the soldiers had been elected on the Aventine, he anticipated from what he knew of the plebs that when they came, to elect their tribunes they would follow the lead of the army and choose those who were already elected as military tribunes. As he was looking to a tribuneship himself, he took care to get the same number appointed and invested with similar powers by his own men, before they entered the City. They made their entry through the Colline gate in military order, with standards displayed, and proceeded through the heart of the City to the Aventine. There the two armies united, and the twenty military tribunes were requested to appoint two of their number to take the supreme direction of affairs. They appointed M. Oppius and Sex. Manlius. Alarmed at the direction affairs were taking, the senate held daily meetings, but the time was spent in mutual reproaches rather than in deliberation. The decemvirs were openly charged with the murder of Siccius, the profligacy of Appius, and the disgrace incurred in the field. It was proposed that Valerius and Horatius should go to the Aventine, but they refused to go unless the decemvirs gave up the insignia of an office which had expired the previous year. The decemvirs protested against this attempt to coerce them, and said that they would not lay down their authority until the laws which they were appointed to draw up were duly enacted.

[3.52]M. Duillius, a former tribune, informed the plebs that, owing to incessant wranglings, no business was being transacted in the senate. He did not believe that the senators would trouble about them till they saw the City deserted; the Sacred Hill would remind them of the firm determination once shown by the plebs, and they would learn that unless the tribunitian power was restored there could be no concord in the State. The armies left the Aventine and, going out

by the Nomentan - or, as it was then called, the Ficulian - road, they encamped on the Sacred Hill, imitating the moderation of their fathers by abstaining from all injury. The plebeian civilians followed the army, no one whose age allowed him to go hung back. Their wives and children followed them, asking in piteous tones, to whom would they leave them in a City where neither modesty nor liberty were respected? The unwonted solitude gave a dreary and deserted look to every part of Rome; in the Forum there were only a few of the older patricians, and when the senate was in session it was wholly deserted. Many besides Horatius and Valerius were now angrily asking, "What are you waiting for, senators? If the decemvirs do not lay aside their obstinacy, will you allow everything to go to wrack and ruin? And what, pray; is that authority, decemvirs, to which you cling so closely? Are you going to administer justice to walls and roofs? Are you not ashamed to see a greater number of lictors in the Forum than of all other citizens put together? What will you do if the enemy approach the City? What if the plebs, seeing that their secession has no effect, come shortly against us in arms? Do you want to end your power by the fall of the City? Either you will have to do without the plebeians or you will have to accept their tribunes; sooner than they will go without their magistrates, we shall have to go without ours. That power which they wrested from our fathers, when it was an untried novelty, they will not submit to be deprived of, now that they have tasted the sweets of it, especially as we are not making that moderate use of our power which would prevent their needing its protection." Remonstrances like these came from all parts of the House; at last the decemvirs, overborne by the unanimous opposition, asserted that since it was the general wish, they would submit to the authority of the senate. All they asked for was that they might be protected against the popular rage; they warned the senate against the plebs becoming by their death habituated to inflicting punishment on the patricians.

[3.53]Valerius and Horatius were then sent to the plebs with terms which it was thought would lead to their return and the adjustment of all differences; they were also instructed to procure guarantees for the protection of the decemvirs against popular violence. They were welcomed in the camp with every expression of delight, for they were unquestionably regarded as liberators from the commencement of the disturbance to its close. Thanks therefore were offered to them

on their arrival. Icilius was the spokesman. A policy had been agreed upon before the arrival of the envoys, so when the discussion of the terms commenced, and the envoys asked what the demands of the plebs were, Icilius put forward proposals of such a nature as to show clearly that their hopes lay in the justice of their cause rather than in an appeal to arms. They demanded the re-establishment of the tribunitian power and the right of appeal, which before the institution of decemvirs had been their main security. They also demanded an amnesty for those who had incited the soldiers or the plebs to recover their liberties by a secession. The only vindictive demand made was with reference to the punishment of the decemvirs. They insisted, as an act of justice, that they should be surrendered, and they threatened to burn them alive. The envoys replied to these demands as follows: "The demands you have put forward as the result of your deliberations are so equitable that they would have been voluntarily conceded, for you ask for them as the safeguards of your liberties, not as giving you licence to attack others. Your feelings of resentment are to be excused rather than indulged; for it is through hatred of cruelty that you are actually hurrying into cruelty, and almost before you are free yourselves you want to act the tyrant over your adversaries. Is our State never to enjoy any respite from punishments inflicted either by the patricians on the Roman plebs, or by the plebs on the patricians? You need the shield rather than the sword. He is humble enough who lives in the State under equal laws, neither inflicting nor suffering injury. Even if the time should come when you will make yourselves formidable, when, after recovering your magistrates and your laws, you will have judicial power over our lives and property - even then you will decide each case on its merits, it is enough now that your liberties are won back."

[3.54]Permission having been unanimously granted them to do as they thought best, the envoys announced that they would return shortly after matters were arranged. When they laid the demands of the plebs before the senate, the other decemvirs, on finding that no mention was made of inflicting punishment on them, raised no objection whatever. The stern Appius, who was detested most of all, measuring the hatred of others towards him by his hatred towards them, said, "I am quite aware of the fate that is hanging over me. I see that the struggle against us is only postponed till our weapons are handed over to our opponents. Their rage must be appeased with

blood. Still, even I do not hesitate to lay down my decemvirate." A decree was passed for the decemvirs to resign office as soon as possible, Q. Furius, the Pontifex Maximus, to appoint tribunes of the plebs, and an amnesty to be granted for the secession of the soldiers and the plebs. After these decrees were passed, the senate broke up, and the decemvirs proceeded to the Assembly and formally laid down their office, to the immense delight of all. This was reported to the plebs on the Sacred Hill. The envoys who carried the intelligence were followed by everybody who was left in the City; this mass of people was met by another rejoicing multitude who issued from the camp. They exchanged mutual congratulations on the restoration of liberty and concord. The envoys, addressing the multitude as an Assembly, said, "Prosperity, fortune, and happiness to you and to the State! Return to your fatherland, your homes, your wives, and your children! But carry into the City the same self-control which you have exhibited here, where no man's land has been damaged, notwithstanding the need of so many things necessary for so large a multitude. Go to the Aventine, whence you came; there, on the auspicious spot where you laid the beginnings of your liberty, you will appoint your tribunes; the Pontifex Maximus will be present to hold the election." Great was the delight and eagerness with which they applauded everything. They plucked up the standards and started for Rome, outdoing those they met in their expressions of joy. Marching under arms through the City in silence, they reached the Aventine. There the Pontifex Maximus at once proceeded to hold the election for tribunes. The first to be elected was L. Verginius; next, the organisers of the secession, L. Icilius and P. Numitorius, the uncle of Verginius; then, C. Sicinius, the son of the man who is recorded as the first to be elected of the tribunes on the Sacred Hill, and M. Duillius, who had filled that office with distinction before the appointment of the decemvirs, and through all the struggles with them had never failed to support the plebs. After these came M. Titinius, M. Pomponius, C. Apronius, Appius Villius, and Caius Oppius, all of whom were elected rather in hope of their future usefulness than for any services actually rendered. When he had entered on his tribuneship L. Icilius at once proposed a resolution which the plebs accepted, that no one should suffer for the secession. Marcus Duillius immediately carried a measure for the election of consuls and the right of appeal from them to the people. All these

measures were passed in a council of the plebs which was held in the Flaminian Meadows, now called the Circus Flaminius.

[3.55]The election of consuls took place under the presidency of an "interrex." Those elected were L. Valerius and M. Horatius, and they at once assumed office. Their consulship was a popular one, and inflicted no injustice upon the patricians, though they regarded it with suspicion, for whatever was done to safeguard the liberties of the plebs they looked upon as an infringement of their own powers. First of all, as it was a doubtful legal point whether the patricians were bound by the ordinances of the plebs, they carried a law in the Assembly of Centuries that what the plebs had passed in their Tribes should be binding on the whole people. By this law a very effective weapon was placed in the hands of the tribunes. Then another consular law, confirming the right of appeal, as the one defence of liberty, which had been annulled by the decemvirs, was not only restored but strengthened for the future by a fresh enactment. This forbade the appointment of any magistrate from whom there was no right of appeal, and provided that any one who did so appoint might be rightly and lawfully put to death, nor should the man who put him to death be held guilty of murder. When they had sufficiently strengthened the plebs by the right of appeal on the one hand and the protection afforded by the tribunes on the other, they proceeded to secure the personal inviolability of the tribunes themselves. The memory of this had almost perished, so they renewed it with certain sacred rites revived from a distant past, and in addition to securing their inviolability by the sanctions of religion, they enacted a law that whoever offered violence to the magistrates of the plebs, whether tribunes, aediles, or decemviral judges, his person should be devoted to Jupiter, his possessions sold and the proceeds assigned to the temples of Ceres, Liber, and Liberal. Jurists say that by this law no one was actually "sacrosanct," but that when injury was offered to any of those mentioned above the offender was "sacer." If an aedile, therefore, were arrested and sent to prison by superior magistrates, though this could not be done by law - for by this law it would not be lawful for him to be injured - yet it is a proof that an aedile is not held to be "sacrosanct," whereas the tribunes of the plebs were "sacrosanct" by the ancient oath taken by the plebeians when that office was first created. There were some who interpreted the law as including even the consuls in its provisions, and the praetors, because

they were elected under the same auspices as the consuls, for a consul was called a "judge." This interpretation is refuted by the fact that in those times it was the custom for a judge to be called not "consul" but "praetor." These were the laws enacted by the consuls. They also ordered that the decrees of the senate, which used formerly to be suppressed and tampered with at the pleasure of the consuls, should henceforth be taken to the aediles at the temple of Ceres. Marcus Duillius, the tribune, then proposed a resolution which the plebs adopted, that any one who should leave the plebs without tribunes, or who should create a magistrate from whom there was no appeal, should be scourged and beheaded. All these transactions were distasteful to the patricians, but they did not actively oppose them, as none of them had yet been marked out for vindictive proceedings.

[3.56]The power of the tribunes and the liberties of the plebs were now on a secure basis. The next step was taken by the tribunes, who thought the time had come when they might safely proceed against individuals. They selected Verginius to take up the first prosecution, which was that of Appius. When the day had been fixed, and Appius had come down to the Forum with a bodyguard of young patricians, the sight of him and his satellites reminded all present of the power he had used so vilely. Verginius began: "Oratory was invented for doubtful cases. I will not, therefore, waste time by a long indictment before you of the man from whose cruelty you have vindicated yourselves by force of arms, nor will I allow him to add to his other crimes an impudent defence. So I will pass over, Appius Claudius, all the wicked and impious things that you had the audacity to do, one after another, for the last two years. One charge only will I bring against you, that contrary to law you have adjudged a free person to be a slave, and unless you name an umpire before whom you can prove your innocence, I shall order you to be taken to prison." Appius had nothing to hope for in the protection of the tribunes or the verdict of the people. Nevertheless he called upon the tribunes, and when none intervened to stay proceedings and he was seized by the apparitor, he said, "I appeal." This single word, the protection of liberty, uttered by those lips which had so lately judicially deprived a person of her freedom, produced a general silence. Then the people remarked to one another that there were gods after all who did not neglect the affairs of men; arrogance and cruelty were visited by punishments which, though lingering, were not light; that man was

appealing who had taken away the power of appeal; that man was imploring the protection of the people who had trampled underfoot all their rights; he was losing his own liberty and being carried off to prison who had sentenced a free person to slavery. Amidst the murmur of the Assembly the voice of Appius himself was heard imploring "the protection of the Roman people."

He began by enumerating the services of his ancestors to the State, both at home and in the field; his own unfortunate devotion to the plebs, which had led him to resign his consulship in order to enact equal laws for all, giving thereby the greatest offence to the patricians; his laws which were still in force, though their author was being carried to prison. As to his own personal conduct and his good and evil deeds, however, he would bring them to the test when he had the opportunity of pleading his cause. For the present he claimed the common right of a Roman citizen to be allowed to plead on the appointed day and submit himself to the judgment of the Roman people. He was not so apprehensive of the general feeling against him as to abandon all hope in the impartiality and sympathy of his fellow-citizens. If he was to be taken to prison before his case was heard, he would once more appeal to the tribunes, and warn them not to copy the example of those whom they hated. If they admitted that they were bound by the same agreement to abolish the right of appeal which they accused the decemvirs of having formed, then he would appeal to the people and invoke the laws which both consuls and tribunes had enacted that very year to protect that right. For if before the case is heard and judgment given there is no power of appeal, who would appeal? What plebeian, even the humblest, would find protection in the laws, if Appius Claudius could not? His case would show whether it was tyranny or freedom that was conferred by the new laws, and whether the right of challenge and appeal against the injustice of magistrates was only displayed in empty words or was actually granted.

[3.57] Verginius replied. Appius Claudius, he said, alone was outside the laws, outside all the bonds that held States or even human society together. Let men cast their eyes on that tribunal, the fortress of all villainies, where that perpetual decemvir, surrounded by hangmen not lictors, in contempt of gods and men alike, wreaked his vengeance on the goods, the backs, and the lives of the citizens, threatening all indiscriminately with the rods and axes, and then when

his mind was diverted from rapine and murder to lust, tore a free-born maiden from her father's arms, before the eyes of Rome, and gave her to a client, the minister of his intrigues - that tribunal where by a cruel decree and infamous judgment he armed the father's hand against the daughter, where he ordered those who took up the maiden's lifeless body - her betrothed lover and her grandfather - to be thrown into prison, moved less by her death than by the check to his criminal gratification. For him as much as for others was that prison built which he used to call "the domicile of the Roman plebs." Let him appeal again and again, he (the speaker) would always refer him to an umpire on the charge of having sentenced a free person to slavery. If he would not go before an umpire he should order him to be imprisoned as though found guilty. He was accordingly thrown into prison, and though no one actually opposed this step, there was a general feeling of anxiety, since even the plebeians themselves thought it an excessive use of their liberty to inflict punishment on so great a man. The tribune adjourned the day of trial. During these proceedings ambassadors came from the Latins and Hernicans to offer their congratulations on the restoration of harmony between the patriciate and the plebs. As a memorial of it, they brought an offering to Jupiter Optimus Maximus, in the shape of a golden crown. It was not a large one, as they were not wealthy States; their religious observances were characterised by devotion rather than magnificence. They also brought information that the Aequi and Volscians were devoting all their energies to preparing for war. The consuls were thereupon ordered to arrange their respective commands. The Sabines fell to Horatius, the Aequi to Valerius. They proclaimed a levy for these wars, and so favourable was the attitude of the plebs that not only did the men liable for service promptly give in their names, but a large part of the levy consisted of men who had served their time and came forward as volunteers. In this way the army was strengthened not only in numbers but in the quality of the soldiers, as veterans took their places in the ranks. Before they left the City, the laws of the decemvirs, known as the "Twelve Tables," were engraved in brass and publicly exhibited; some writers assert that the aediles discharged this task under orders from the tribunes.

[3.58] Caius Claudius, through detestation of the crimes committed by the decemvirs, and the anger which he, more than any one, felt at the tyrannical conduct of his nephew, had retired to Regillum, his

ancestral home. Though advanced in years, he now returned to the City, to deprecate the dangers threatening the man whose vicious practices had driven him into retirement. Going down to the Forum in mourning garb, accompanied by the members of his house and by his clients, he appealed to the citizens individually, and implored them not to stain the house of the Claudii with such an indelible disgrace as to deem them worthy of bonds and imprisonment. To think that a man whose image would be held in highest honour by posterity, the framer of their laws and the founder of Roman jurisprudence, should be lying manacled amongst nocturnal thieves and robbers! Let them turn their thoughts for a moment from feelings of exasperation to calm examination and reflection, and forgive one man at the intercession of so many of the Claudii, rather than through their hatred of one man despise the prayers of many. So far he himself would go for the honour of his family and his name, but he was not reconciled to the man whose distressed condition he was anxious to relieve. By courage their liberties had been recovered, by clemency the harmony of the orders in the State could be strengthened. Some were moved, but it was more by the affection he showed for his nephew than by any regard for the man for whom he was pleading. But Verginius begged them with tears to keep their compassion for him and his daughter, and not to listen to the prayers of the Claudii, who had assumed sovereign power over the plebs, but to the three tribunes, kinsmen of Verginia, who, after being elected to protect the plebeians, were now seeking their protection. This appeal was felt to have more justice in it. All hope being now cut off, Appius put an end to his life before the day of trial came.

Soon after Sp. Oppius was arraigned by P. Numitorius. He was only less detested than Appius, because he had been in the City when his colleague pronounced the iniquitous judgment. More indignation, however, was aroused by an atrocity which Oppius had committed than by his not having prevented one. A witness was produced, who after reckoning up twenty-seven years of service, and eight occasions on which he had been decorated for conspicuous bravery, appeared before the people wearing all his decorations. Tearing open his dress he exhibited his back lacerated with stripes. He asked for nothing but a proof on Oppius' part of any single charge against him; if such proof were forthcoming, Oppius, though now only a private citizen, might repeat all his cruelty towards him. Oppius was taken to prison

and there, before the day of trial, he put an end to his life. His property and that of Claudius were confiscated by the tribunes. Their colleagues changed their domicile by going into exile; their property also was confiscated. M. Claudius, who had been the claimant of Verginia, was tried and condemned; Verginius himself, however, refused to press for the extreme penalty, so he was allowed to go into exile to Tibur. Verginia was more fortunate after her death than in her lifetime; her shade, after wandering through so many houses in quest of expiatory penalties, at length found rest, not one guilty person being now left.

[3.59]Great alarm seized the patricians; the looks of the tribunes were now as menacing as those of the decemvirs had been. M. Duillius the tribune imposed a salutary check upon their excessive exercise of authority. "We have gone," he said, "far enough in the assertion of our liberty and the punishment of our opponents, so for this year I will allow no man to be brought to trial or cast into prison. I disapprove of old crimes, long forgotten, being raked up, now that the recent ones have been atoned for by the punishment of the decemvirs. The unceasing care which both the consuls are taking to protect your liberties is a guarantee that nothing will be done which will call for the power of the tribunes." This spirit of moderation shown by the tribune relieved the fears of the patricians, but it also intensified their resentment against the consuls, for they seemed to be so wholly devoted to the plebs, that the safety and liberty of the patricians were a matter of more immediate concern to the plebeian than they were to the patrician magistrates. It seemed as though their adversaries would grow weary of inflicting punishment on them sooner than the consuls would curb their insolence. It was pretty generally asserted that they had shown weakness, since their laws had been sanctioned by the senate, and no doubt was entertained that they had yielded to the pressure of circumstances.

[3.60]After matters had been settled in the City and the position of the plebs firmly assured, the consuls left for their respective provinces. Valerius wisely suspended operations against the combined forces of the Aequi and Volscians. If he had at once hazarded an engagement, I question whether, considering the temper of both the Romans and the enemy after the inauspicious leadership of the decemvirs, he would not have incurred a serious defeat. Taking up a position about a mile from the enemy, he kept his men in camp.

The enemy formed up for battle, and filled the space between the camps, but their challenge met with no response from the Romans. Tired at last of standing and vainly waiting for battle, and regarding victory as practically conceded to them, the two nations marched away to ravage the territories of the Hernici and Latins. The force left behind was sufficient to guard the camp, but not to sustain an action. On seeing this the consul made them in their turn feel the terror which they had inspired, drew up his men in order of battle and challenged them to fight. As, conscious of their reduced strength, they declined an engagement, the courage of the Romans at once rose, and they looked upon the men who kept timidly within their lines as already defeated. After standing the whole day eager to engage, they retired at nightfall; the enemy in a very different state of mind sent men hurriedly in all directions to recall the plundering parties; those in the neighbourhood hastened back to camp, the more distant ones were not traced. As soon as it grew light, the Romans marched out, prepared to storm their camp if they did not give them the chance of a battle. When the day was far advanced without any movement on the part of the enemy, the consul gave the order to advance. As the line moved forward, the Aequi and Volscians, indignant at the prospect of their victorious armies being protected by earthworks rather than by courage and arms, clamoured for the signal for battle. It was given, and part of their force had already emerged from the gate of the camp, whilst others were coming down in order and taking up their allotted positions, but before the enemy could mass his whole strength in the field the Roman consul delivered his attack. They had not all marched out of the camp, those who had done so were not able to deploy into line, and crowded together as they were, they began to waver and sway. Whilst they looked round helplessly at each other, undecided what to do, the Romans raised their war-cry, and at first the enemy gave ground, then, when they had recovered their presence of mind and their generals were appealing to them not to give way before those whom they had defeated, the battle was restored.

[3.61] On the other side the consul bade the Romans remember that on that day for the first time they were fighting as free men on behalf of a free Rome. It was for themselves that they would conquer, the fruits of their victory would not go to decemvirs. The battle was not being fought under an Appius, but under their consul Valerius, a

descendant of the liberators of the Roman people, and a liberator himself. They must show that it was owing to the generals, not to the soldiers, that they had failed to conquer in former battles; it would be a disgrace if they showed more courage against their own citizens than against a foreign foe, or dreaded slavery at home more than abroad. It was only Verginia whose chastity was imperilled, only Appius whose licentiousness was dangerous, in a time of peace, but if the fortune of war should turn against them, every one's children would be in danger from all those thousands of enemies. He would not forebode disasters which neither Jupiter nor Mars their Father would permit to a City founded under those happy auspices. He reminded them of the Aventine and the Sacred Hill, and besought them to carry back unimpaired dominion to that spot where a few months before they had won their liberties. They must make it clear that Roman soldiers possessed the same qualities now that the decemvirs were expelled which they had before they were created, and that Roman courage was not weakened by the fact that the laws were equal for all.

After this address to the infantry, he galloped up to the cavalry. "Come, young men," he shouted, "prove yourselves superior to the infantry in courage, as you are superior to them in honour and rank. They dislodged the enemy at the first onset, do you ride in amongst them and drive them from the field. They will not stand your charge, even now they are hesitating rather than resisting." With slackened rein, they spurred their horses against the enemy already shaken by the infantry encounter, and sweeping through their broken ranks were carried to the rear. Some, wheeling round in the open ground, rode across and headed off the fugitives who were everywhere making for the camp. The line of infantry with the consul in person and the whole of the battle rolled in the same direction; they got possession of the camp with an immense loss to the enemy, but the booty was still greater than the carnage. The news of this battle was carried not only to the City, but to the other army amongst the Sabines. In the City it was celebrated with public rejoicings, but in the other camp it fired the soldiers to emulation. By employing them in incursions and testing their courage in skirmishes, Horatius had trained them to put confidence in themselves instead of brooding over the disgrace incurred under the leadership of the decemvirs, and this had gone far to make them hope for ultimate success. The

Sabines, emboldened by their success of the previous year, were incessantly provoking them and urging them to fight, and wanting to know why they were wasting their time in petty incursions and retreats like banditti, and fettering away the effort of one decisive action in a number of insignificant engagements. Why, they tauntingly asked, did they not meet them in a pitched battle and trust once for all to the fortune of war?

[3.62]The Romans had not only recovered their courage, but they were burning with indignation. The other army, they said, was about to return to the City in triumph, whilst they were exposed to the taunts of an insolent foe. When would they ever be a match for the enemy if they were not now? The consul became aware of these murmurings of discontent and after summoning the soldiers to an assembly, addressed them as follows: "How the battle was fought on Algidus, soldiers, I suppose you have heard. The army behaved as the army of a free people ought to behave. The victory was won by the generalship of my colleague and the bravery of his soldiers. As far as I am concerned, I am ready to adopt that plan of operations which you, my soldiers, have the courage to execute. The war may either be prolonged with advantage or brought to an early close. If it is to be protracted I shall continue the method of training which I have begun, so that your spirits and courage may rise day by day. If you want it brought to a decisive issue, come now, raise such a shout as you will raise in battle as a proof of your willingness and courage." After they had raised the shout with great alacrity, he assured them that, with the blessing of heaven, he would comply with their wishes and lead them out to battle on the morrow. The rest of the day was spent in getting their armour and weapons ready. No sooner did the Sabines see the Romans forming in order of battle the next morning than they also advanced to an engagement which they had long been eager for. The battle was such as would be expected between armies both of which were full of self-confidence - the one proud of its old and unbroken renown, the other flushed with its recent victory. The Sabines called strategy to their aid, for, after giving their line an extent equal to that of the enemy, they kept 2000 men in reserve to make an impression on the Roman left when the battle was at its height. By this flank attack they had almost surrounded and were beginning to overpower that wing, when the cavalry of the two legions - about 600 strong - sprang from their horses and rushed to the front to support

their comrades who were now giving way. They checked the enemy's advance and at the same time roused the courage of the infantry by sharing their danger, and appealing to their sense of shame, by showing that whilst the cavalry could fight either mounted or on foot, the infantry, trained to fight on foot, were inferior even to dismounted cavalry.

[3.63]So they resumed the struggle which they were giving up and recovered the ground they had lost, and in a moment not only was the battle restored but the Sabines on that wing were even forced back. The cavalry returned to their horses, protected by the infantry through whose ranks they passed, and galloped off to the other wing to announce their success to their comrades. At the same time they made a charge on the enemy, who were now demoralised through the defeat of their strongest wing. None showed more brilliant courage in that battle. The consul's eyes were everywhere, he commended the brave, had words of rebuke wherever the battle seemed to slacken. Those whom he censured displayed at once the energy of brave men, they were stimulated by a sense of shame, as much as the others by his commendation. The battle-cry was again raised, and by one united effort on the part of the whole army they repulsed the enemy; the Roman attack could no longer be withstood. The Sabines were scattered in all directions through the fields, and left their camp as a spoil to the enemy. What the Romans found there was not the property of their allies, as had been the case on Algidus, but their own, which had been lost in the ravaging of their homesteads. For this double victory, won in two separate battles, the senate decreed thanksgivings on behalf of the consuls, but their jealousy restricted them to one day. The people, however, without receiving orders, went on the second day also in vast crowds to the temples, and this unauthorised and spontaneous thanksgiving was celebrated with almost greater enthusiasm than the former.

The consuls had mutually agreed to approach the City during these two days and convene a meeting of the senate in the Campus Martius. Whilst they were making their report there on the conduct of the campaigns, the leaders of the senate entered a protest against their session being held in the midst of the troops, in order to intimidate them. To avoid any ground for this charge the consuls immediately adjourned the senate to the Flaminian Meadows, where the temple of Apollo - then called the Apollinare - now stands. The senate by a

large majority refused the consuls the honour of a triumph, whereupon L. Icilius, as tribune of the plebs, brought the question before the people. Many came forward to oppose it, particularly C. Claudius, who exclaimed in excited tones that it was over the senate, not over the enemy, that the consuls wished to celebrate their triumph. It was demanded as an act of gratitude for a private service rendered to a tribune, not as an honour for merit. Never before had a triumph been ordered by the people, it had always lain with the senate to decide whether one was deserved or not; not even kings had infringed the prerogative of the highest order in the State. The tribunes must not make their power pervade everything, so as to render the existence of a council of State impossible. The State will only be free, the laws equal, on condition that each order preserves its own rights, its own power and dignity. Much to the same effect was said by the senior members of the senate, but the tribes unanimously adopted the proposal. That was the first instance of a triumph being celebrated by order of the people without the authorisation of the senate.

[3.64] This victory of the tribunes and the plebs very nearly led to a dangerous abuse of power. A secret understanding was come to amongst the tribunes that they should all be reappointed, and to prevent their factious purpose from being too noticeable, they were to secure a continuance of the consuls in office also. They alleged as a reason the agreement of the senate to undermine the rights of the plebs by the slight they had cast on the consuls. "What," they argued, "would happen if, before the laws were yet securely established, the patricians should attack fresh tribunes through consuls belonging to their own party? For the consuls would not always be men of the stamp of Valerius and Horatius, who subordinated their own interests to the liberty of the plebs." By a happy chance it fell to the lot of M. Duillius to preside over the elections. He was a man of sagacity, and foresaw the obloquy that would be incurred by the continuance in office of the present magistrates. On his declaring that he would accept no votes for the former tribunes, his colleagues insisted that he should either leave the tribes free to vote for whom they chose, or else resign the control of the elections to his colleagues, who would conduct them according to law rather than at the will of the patricians. As a contention had arisen, Duillius sent for the consuls and asked them what they intended to do about the consular

elections. They replied that they should elect fresh consuls. Having thus gained popular supporters for a measure by no means popular, he proceeded in company with them into the Assembly. Here the consuls were brought forward to the people and the question was put to them, "If the Roman people, remembering how you have recovered their liberty for them at home, remembering, too, your services and achievements in war, should make you consuls a second time, what do you intend to do?" They declared their resolution unchanged, and Duillius, applauding the consuls for maintaining to the last an attitude totally unlike that of the decemvirs, proceeded to hold the election. Only five tribunes were elected, for owing to the efforts of the nine tribunes in openly pushing their canvass, the other candidates could not get the requisite majority of votes. He dismissed the Assembly and did not hold a second election, on the ground that he had satisfied the requirements of the law, which nowhere fixed the number of tribunes, but merely enacted that the office of tribune should not be left vacant. He ordered those who had been elected to co-opt colleagues, and recited the formula which governed the case as follows: "If I require you to elect ten tribunes of the plebs; if on this day you have elected less than ten, then those whom they co-opt shall be lawful tribunes of the plebs by the same law, in like manner as those whom you have this day made tribunes of the plebs." Duillius persisted in asserting to the last that the commonwealth could not possibly have fifteen tribunes, and he resigned office, after having won the goodwill of patricians and plebeians alike by his frustration of the ambitious designs of his colleagues.

[3.65]The new tribunes of the plebs studied the wishes of the senate in co-opting colleagues; they even admitted two patricians of consular rank, Sp. Tarpeius and A. Aeternius. The new consuls were Spurius Herminius and T. Verginius Caelimontanus, who were not violent partisans of either the patricians or the plebeians. They maintained peace both at home and abroad. L. Trebonius, a tribune of the plebs, was angry with the senate because, as he said, he had been hoodwinked by them in the co-optation of tribunes, and left in the lurch by his colleagues. He brought in a measure providing that when tribunes of the plebs were to be elected, the presiding magistrate should continue to hold the election until ten tribunes were elected. He spent his year of office in worrying the patricians, which led to his receiving the nickname of "Asper " (i.e. "the

Cantankerous"). The next consuls were M. Geganius Macerinus and C. Julius. They appeased the quarrels which had broken out between the tribunes and the younger members of the nobility without interfering with the powers of the former or compromising the dignity of the patricians. A levy had been decreed by the senate for service against the Volscians and Aequi, but they kept the plebs quiet by holding it over, and publicly asserting that when the City was at peace everything abroad was quiet, whereas civil discord encouraged the enemy. Their care for peace led to harmony at home. But the one order was always restless when the other showed moderation. Whilst the plebs was quiet it began to be subjected to acts of violence from the younger patricians. The tribunes tried to protect the weaker side, but they did little good at first, and soon even they themselves were not exempt from ill-treatment, especially in the later months of their year of office. Secret combinations amongst the stronger party resulted in lawlessness, and the exercise of the tribunitian authority usually slackened towards the close of the year. Any hopes the plebeians might place in their tribunes depended upon their having men like Icilius; for the last two years they had had mere names. On the other hand, the older patricians realised that their younger members were too aggressive, but if there were to be excesses they preferred that their own side should commit them rather than their opponents. So difficult is it to observe moderation in the defence of liberty, while each man under the presence of equality raises himself only by keeping others down, and by their very precautions against fear men make themselves feared, and in repelling injury from ourselves we inflict it on others as though there were no alternative between doing wrong and suffering it.

[3.66]T. Quinctius Capitolinus and Agrippa Furius were the next consuls elected - the former for the fourth time. They found on entering office no disturbances at home nor any war abroad, though both were threatening. The dissensions of the citizens could now no longer be checked, as both the tribunes and the plebs were exasperated against the patricians, owing to the Assembly being constantly disturbed by fresh quarrels whenever one of the nobility was prosecuted. At the first bruit of these outbreaks, the Aequi and Volscians, as though at a given signal, took up arms. Moreover their leaders, eager for plunder, had persuaded them that it had been impossible to raise the levy ordered two years previously, because the

plebs refused to obey, and it was owing to this that no armies had been sent against them; military discipline was broken up by insubordination; Rome was no longer looked upon as the common fatherland; all their rage against foreign foes was turned against one another. Now was the opportunity for destroying these wolves blinded by the madness of mutual hatred. With their united forces they first completely desolated the Latin territory; then, meeting with none to check their depredations, they actually approached the walls of Rome, to the great delight of those who had fomented the war. Extending their ravages in the direction of the Esquiline gate, they plundered and harried, through sheer insolence, in the sight of the City. After they had marched back unmolested with their plunder to Corbio, the consul Quinctius convoked the people to an Assembly.

[3.67]I find that he spoke there as follows: "Though, Quirites, my own conscience is clear, it is, nevertheless, with feelings of the deepest shame that I have come before you. That you should know - that it will be handed down to posterity - that the Aequi and Volscians, who were lately hardly a match for the Hernici, have in the fourth consulship of T. Quinctius come in arms up to the walls of Rome with impunity! Although we have long been living in such a state, although public affairs are in such a condition, that my mind augurs nothing good, still, had I known that this disgrace was coming in this year, of all others, I would have avoided by exile or by death, had there been no other means of escape, the honour of a consulship. So then, if those arms which were at our gates had been in the hands of men worthy of the name, Rome could have been taken whilst I was consul! I had enough of honours, enough and more than enough of life, I ought to have died in my third consulship. Who was it that those most dastardly foes felt contempt for, us consuls, or you Quirites? If the fault is in us, strip us of an office which we are unworthy to hold, and if that is not enough, visit us with punishment. If the fault is in you, may there be no one, either god or man, who will punish your sins; may you repent of them! It was not your cowardice that provoked their contempt, nor their valour that gave them confidence; they have been too often defeated, put to flight, driven out of their entrenchments, deprived of their territory, not to know themselves and you. It is the dissensions between the two orders, the quarrels between patricians and plebeians that is poisoning the life of this City. As long as our power respects no

limits, and your liberty acknowledges no restraints, as long as you are impatient of patrician, we of plebeian magistrates, so long has the courage of our enemies been rising. What in heaven's name do you want? You set your hearts on having tribunes of the plebs, we yielded, for the sake of peace. You yearned for decemvirs, we consented to their appointment; you grew utterly weary of them, we compelled them to resign. Your hatred pursued them into private life; to satisfy you, we allowed the noblest and most distinguished of our order to suffer death or go into exile. You wanted tribunes of the plebs to be appointed again; you have appointed them. Although we saw how unjust it was to the patricians that men devoted to your interests should be elected consuls, we have seen even that patrician office conferred by favour of the plebs. 'The tribunes' protective authority, the right of appeal to the people, the resolutions of the plebs made binding on the patricians, the suppression of our rights and privileges under the pretext of making the laws equal for all - these things we have submitted to, and do submit to. What term is there to be to our dissensions? When shall we ever be allowed to have a united City, when will this ever be our common fatherland? We who have lost, show more calmness and evenness of temper than you who have won. Is it not enough that you have made us fear you? It was against us that the Aventine was seized, against us the Sacred Hill occupied. When the Esquiline is all but captured and the Volscian is trying to scale the rampart, no one dislodges him. Against us you show yourselves men; against us you take up arms.

[3.68]"Well, then, now that you have beleaguered the Senate-house, and treated the Forum as enemies' ground, and filled the prison with our foremost men, display the same daring courage in making a sortie from the Esquiline gate, or if you have not the courage even for this, mount the walls and watch your fields disgracefully laid waste with fire and sword, plunder carried off and smoke rising everywhere from your burning dwellings. But I may be told it is the common interests of all that are being injured by this; the land is burned, the City besieged, all the honours of war rest with the enemy. Good heavens! In what condition are your own private interests? Every one of you will have losses reported to him from the fields. What, pray, is there at home from which to make them good? Will the tribunes restore and repay you for what you have lost? They will contribute any amount you like of talk and words and accusations against the leading

men, and law after law, and meetings of the Assembly. But from those meetings not a single one of you will ever go home the richer. Who has ever brought back to his wife and children anything but resentment and hatred, party strife and personal quarrels, from which you are to be protected not by your own courage and honesty of purpose, but by the help of others? But, let me tell you, when you were campaigning under us your consuls, not under tribunes, in the camp not in the Forum, and your battle-cry appalled the enemy in the field, not the patricians of Rome in the Assembly, then you obtained booty, took territory from the enemy, and returned to your homes and household gods in triumph, laden with wealth and covered with glory both for the State and for yourselves. Now you allow the enemy to depart laden with your property. Go on, stick to your Assembly meetings, pass your lives in the Forum, still the necessity, which you shirk, of taking the field follows you. It was too much for you to go out against the Aequi and Volscians; now the war is at your gates. If it is not beaten back, it will be within the walls, it will scale the Citadel and the Capitol and follow you into your homes. It is two years since the senate ordered a levy to be raised and an army led out to Algidus; we are still sitting idly at home, wrangling with one another like a troop of women, delighted with the momentary peace, and shutting our eyes to the fact that we shall very soon have to pay for our inaction many times over in war.

"I know that there are other things pleasanter to speak about than these, but necessity compels me, even if a sense of duty did not, to say what is true instead of what is agreeable. I should only be too glad, Quirites, to give you pleasure, but I would very much rather have you safe, however you may feel towards me for the future. Nature has so ordered matters that the man who addresses the multitude for his own private ends is much more popular than the man who thinks of nothing but the public good. Possibly, you imagine that it is in your interest that those demagogues who flatter the plebs and do not suffer you either to take up arms or live in peace, excite you and make you restless. They only do so to win notoriety or to make something out of it, and because they see that when the two orders are in harmony they are nowhere, they are willing to be leaders in a bad cause rather than in none, and get up disturbances and seditions. "If there is any possibility of your becoming at last weary of this sort of thing, if you are willing to resume the character

which marked your fathers and yourselves in old days, instead of these new-fangled ideas, then there is no punishment I will not submit to, if I do not in a few days drive these destroyers of our fields in confusion and flight out of their camp, and remove from our gates and walls to their cities this dread aspect of war which now so appals you."

[3.69]Seldom if ever was speech of popular tribune more favourably received by the plebeians than that of this stern consul. The men of military age who in similar emergencies had made refusal to be enrolled their most effective weapon against the senate, began now to turn their thoughts to arms and war. The fugitives from the country districts, those who had been plundered and wounded in the fields, reported a more terrible state of things than what was visible from the walls, and filled the whole City with a thirst for vengeance. When the senate met, all eyes fumed to Quinctius as the one man who could uphold the majesty of Rome. The leaders of the House declared his speech to be worthy of the position he held as consul, worthy of the many consulships he had previously held, worthy of his whole life, rich as it was in honours, many actually enjoyed, many more deserved. Other consuls, they said, had either flattered the plebs by betraying the authority and privileges of the patricians, or, by insisting too harshly upon the rights of their order, had intensified the opposition of the masses, Titus Quinctius, in his speech, had kept in view the authority of the senate, the concord of the two orders, and, above all, the circumstances of the hour. They begged him and his colleague to take over the conduct of public affairs, and appealed to the tribunes to be of one mind with the consuls in wishing to see the war rolled back from the walls of the City, and inducing the plebs, at such a crisis, to yield to the authority of the senate. Their common fatherland was, they declared, calling on the tribunes and imploring their aid now that their fields were ravaged and the City all but attacked.

By universal consent a levy was decreed and held. The consuls gave public notice that there was no time for investigating claims for exemption, and all the men liable for service were to present themselves the next day in the Campus Martius. When the war was over they would give time for inquiry into the cases of those who had not given in their names, and those who could not prove justification would be held to be deserters. All who were liable to serve appeared

on the following day. Each of the cohorts selected their own centurions, and two senators were placed in command of each cohort. We understand that these arrangements were so promptly carried out that the standards, which had been taken from the treasury and carried down to the Campus Martius by the quaestors in the morning, left the Campus at 10 o'clock that same day, and the army, a newly-raised one with only a few cohorts of veterans following as volunteers, halted at the tenth milestone. The next day brought them within sight of the enemy, and they entrenched their camp close to the enemy's camp at Corbio. The Romans were fired by anger and resentment; the enemy, conscious of their guilt after so many revolts, despaired of pardon. There was consequently no delay in bringing matters to an issue.

[3.70]In the Roman army the two consuls possessed equal authority. Agrippa, however, voluntarily resigned the supreme command to his colleague - a very beneficial arrangement where matters of great importance are concerned - and the latter, thus preferred by the ungrudging self-suppression of his colleague, courteously responded by imparting to him his plans, and treating him in every way as his equal. When drawn up in battle order, Quintius commanded the right wing, Agrippa the left. The centre was assigned to Sp. Postumius Albus, lieutenant-general; the other lieutenant-general, P. Sulpicius, was given charge of the cavalry. The infantry on the right wing fought splendidly, but met with stout resistance on the side of the Volscians. P. Sulpicius with his cavalry broke the enemy's centre. He could have got back to the main body before the enemy reformed their broken ranks, but he decided to attack from the rear, and would have scattered the enemy in a moment, attacked as they were in front and rear, had not the cavalry of the Volscians and Aequi, adopting his own tactics, intercepted him and kept him for some time engaged. He shouted to his men that there was no time to lose, they would be surrounded and cut off from their main body if they did not do their utmost to make a finish of the cavalry fight; it was not enough simply to put them to flight, they must dispose of both horses and men, that none might return to the field or renew the fighting. They could not resist those before whom a serried line of infantry had given way.

His words did not fall on deaf ears. In one shock they routed the whole of the cavalry, hurled a vast number from their seats, and

drove their lances into the horses. That was the end of the cavalry fight. Next they made a rear attack on the infantry, and when their line began to waver they sent a report to the consuls of what they had done. The news gave fresh courage to the Romans, who were now winning, and dismayed the retreating Aequi. Their defeat began in the centre, where the cavalry charge had thrown them into disorder. Then the repulse of the left wing by the consul Quinctius commenced. The right wing gave more trouble. Here Agrippa, whose age and strength made him fearless, seeing that things were going better in all parts of the field than with him, seized standards from the standard-bearers and advanced with them himself, some he even began to throw amongst the masses of the enemy. Roused at the fear and disgrace of losing them, his men made a fresh charge on the enemy, and in all directions the Romans were equally successful. At this point a message came from Quinctius that he was victorious, and was now threatening the enemy's camp, but would not attack it till he knew that the action on the left wing was decided. If Agrippa had defeated the enemy he was to join him, so that the whole army might together take possession of the spoil. The victorious Agrippa, amidst mutual congratulations, proceeded to his colleague and the enemy's camp. The few defenders were routed in a moment and the entrenchment forced without any resistance. The army was marched back to camp after securing immense spoil and recovering their own property which had been lost in the ravaging of their lands. I cannot find that a triumph was either demanded by the consuls or granted by the senate; nor is any reason recorded for this honour having been either not expected or not thought worth asking for. As far as I can conjecture after such an interval of time, the reason would appear to be that as a triumph was refused by the senate to the consuls Valerius and Horatius, who, apart from the Volscians and Aequi, had won the distinction of bringing the Sabine war to a close, the present consuls were ashamed to ask for a triumph for doing only half as much, lest, if they did obtain it, it might appear to be out of consideration for the men more than for their services.

[3.71] This honourable victory won from an enemy was sullied by a disgraceful decision of the people respecting the territory of their allies. The inhabitants of Aricia and Ardea had frequently gone to war over some disputed land; tired at last of their many reciprocal defeats, they referred the matter to the arbitrament of Rome. The magistrates

convened an Assembly on their behalf, and when they had come to plead their cause, the debate was conducted with much warmth. When the evidence was concluded and the time came for the tribes to be called upon to vote, P. Scaptius, an aged plebeian, rose and said, "If, consuls, I am allowed to speak on matters of high policy, I will not suffer the people to go wrong in this matter." The consuls refused him a hearing, as being a man of no credit, and when he loudly exclaimed that the commonwealth was being betrayed they ordered him to be removed. He appealed to the tribunes. The tribunes, who are almost always ruled by the multitude more than they rule them, finding that the plebs were anxious to hear him, gave Scaptius permission to say what he wanted. So he began by saying that he was now in his eighty-third year and had seen service in that country which was now in dispute, not as a young man but as a veteran of twenty years' standing, when the war was going on against Corioli. He therefore alleged as a fact, forgotten through lapse of time, but deeply imprinted in his own memory, that the disputed land formed part of the territory of Corioli, and when that city was taken, became by the right of war part of the State domain of Rome. The Ardeates and Aricians had never claimed it while Corioli was unconquered, and he was wondering how they could hope to filch it from the people of Rome, whom they had made arbiters instead of rightful owners. He had not long to live, but he could not, old as he was, bring himself to refrain from using the only means in his power, namely, his voice, in order to assert the right to that territory which as a soldier he had done his best to win. He earnestly advised the people not to pronounce, from a false feeling of delicacy, against a cause which was really their own.

[3.72]When the consuls saw that Scaptius was listened to not only in silence but even with approval, they called gods and men to witness that a monstrous injustice was being perpetrated, and sent for the leaders of the senate. Accompanied by them they went amongst the tribes and implored them not to commit the worst of crimes and establish a still worse precedent by perverting justice to their own advantage. Even supposing it were permissible for a judge to look after his own interest, they would certainly never gain by appropriating the disputed territory as much as they would lose by estranging the feelings of their allies through their injustice. The damage done to their good name and credit would be incalculable.

Were the envoys to carry back this to their home, was it to go out to the world, was it to reach the ears of their allies and of their enemies? With what pain the former would receive it, with what joy the latter! Did they suppose that the surrounding nations would fix the responsibility for it on Scaptius, a mob-orator in his dotage? To him it might be a patent of nobility, but on the Roman people it would stamp a character for trickery and fraud. For what judge has ever dealt with a private suit so as to adjudge to himself the property in dispute? Even Scaptius would not do that, although he has outlived all sense of shame. In spite of these earnest appeals which the consuls and senators made, cupidity and Scaptius its instigator prevailed. The tribes, when called upon to vote, decided that it was part of the public domain of Rome. It is not denied that the result would have been the same had the case gone before other judges, but as it is, the disgrace attaching to the judgment is not in the least degree lightened by any justice in the case, nor did it appear more ugly and tyrannical to the people of Aricia and Ardea than it did to the Roman senate. The rest of the year remained undisturbed both at home and abroad.

BOOK 4: THE GROWING POWER OF THE PLEBS

[4.1]The consuls who succeeded were M. Genucius and C. Curtius. The year was a troubled one both at home and abroad. In the beginning of the year C. Canuleius, a tribune of the plebs, introduced a law with regard to the intermarriage of patricians and plebeians. The patricians considered that their blood would be contaminated by it and the special rights of the houses thrown into confusion. Then the tribunes began to throw out hints about one consul being elected from the plebs, and matters advanced so far that nine tribunes brought in a measure empowering the people to elect consuls from the plebeians or the patricians as they chose. The patricians believed that, if this were carried, the supreme power would not only be degraded by being shared with the lowest of the people, but would entirely pass away from the chief men in the State into the hands of the plebs. The senate were not sorry, therefore, to hear that Ardea had revolted as a consequence of the unjust decision about the territory, that the Veientes had ravaged the districts on the Roman frontier, and that the Volscians and Aequi were protesting against the fortifying of Verrugo; so much did they prefer war, even when unsuccessful, to an ignominious peace. On receiving these reports -

which were somewhat exaggerated - the senate tried to drown the voice of the tribunes in the uproar of so many wars by ordering a levy to be made and all preparations for war pushed on with the utmost vigour, more so, if possible, than during the consulship of T. Quinctius. Thereupon C. Canuleius addressed the senate in a short and angry speech. It was, he said, useless for the consuls to hold out threats in the hope of distracting the attention of the plebs from the proposed law; as long as he was alive they should never hold a levy until the plebs had adopted the measures brought forward by himself and his colleagues. He at once convened an Assembly.

[4.2]The consuls began to rouse the senate to take action against the tribunes, and at the same time the tribunes were getting up an agitation against the consuls. The consuls declared that the revolutionary proceedings of the tribunes could no longer be tolerated, matters had come to a crisis, there was a more bitter war going on at home than abroad. This was not the fault of the plebs so much as of the senate, nor of the tribunes more than of the consuls. Those things in a State which attain the highest development are those which are encouraged by rewards; it is thus that men become good citizens in times of peace, good soldiers in times of war. In Rome the greatest rewards are won by seditious agitations, these have always brought honour to men both individually and in the mass. Those present should reflect upon the greatness and dignity of the senate as they had received it from their fathers, and consider what they were going to hand on to their children, in order that they might be able to feel pride in the extension and growth of its influence, as the plebs felt pride in theirs. There was no final settlement in sight, nor would there be as long as agitators were honoured in proportion to the success of their agitation. What enormous questions had C. Canuleius raised! He was advocating the breaking up of the houses, tampering with the auspices, both those of the State and those of individuals, so that nothing would be pure, nothing free from contamination, and in the effacing of all distinctions of rank, no one would know either himself or his kindred. What other result would mixed marriages have except to make unions between patricians and plebeians almost like the promiscuous association of animals? The offspring of such marriages would not know whose blood flowed in his veins, what sacred rites he might perform; half of him patrician, half plebeian, he would not even be in harmony with himself. And as

though it were a small matter for all things human and divine to be thrown into confusion, the disturbers of the people were now making an onslaught on the consulship. At first the question of one consul being elected from the plebs was only mooted in private conversations, now a measure was brought forward giving the people power to elect consuls from either patricians or plebeians as they chose. And there was no shadow of doubt that they would elect all the most dangerous revolutionaries in the plebs; the Canuleii and the Icilius would be consuls. Might Jupiter Optimus Maximus never allow a power truly royal in its majesty to sink so low! They would rather die a thousand deaths than suffer such an ignominy to be perpetrated. Could their ancestors have divined that all their concessions only served to make the plebs more exacting, not more friendly, since their first success only emboldened them to make more and more urgent demands, it was quite certain that they would have gone any lengths in resistance sooner than allow these laws to be forced upon them. Because a concession was once made in the matter of tribunes, it had been made again; there was no end to it. Tribunes of the plebs and the senate could not exist in the same State, either that office or this order (i.e. the nobility) must go. Their insolence and recklessness must be opposed, and better late than never. Were they to be allowed with impunity to stir up our neighbours to war by sowing the seeds of discord and then prevent the State from arming in its defence against those whom they had stirred up, and after all but summoning the enemy not allow armies to be enrolled against the enemy? Was Canuleius, forsooth, to have the audacity to give out before the senate that unless it was prepared to accept his conditions, like those of a conqueror, he would stop a levy being held? What else was that but threatening to betray his country and allowing it to be attacked and captured? What courage would his words inspire, not in the Roman plebs but in the Volscians and Aequi and Veientes! Would they not hope, with Canuleius as their leader, to be able to scale the Capitol and the Citadel, if the tribunes, after stripping the senate of its rights and its authority, deprived it also of its courage? The consuls were ready to be their leaders against criminal citizens before they led them against the enemy in arms.

[4.3] At the very time when this was going on in the senate, Canuleius delivered the following speech in defence of his laws and in opposition to the consuls: "I fancy, Quirites, that I have often noticed

in the past how greatly the patricians despise you, how unworthy they deem you to live in the same City, within the same walls, as they. Now, however, it is perfectly obvious, seeing how bitter an opposition they have raised to our proposed laws. For what is our purpose in framing them except to remind them that we are their fellow-citizens, and though we do not possess the same power, we still inhabit the same country? In one of these laws we demand the right of intermarriage, a right usually granted to neighbours and foreigners - indeed we have granted citizenship, which is more than intermarriage, even to a conquered enemy - in the other we are bringing forward nothing new, but simply demanding back what belongs to the people and claiming that the Roman people should confer its honours on whom it will. What possible reason is there why they should embroil heaven and earth, why recently in the Senate-house I was on the point of being subjected to personal violence, why they declare they will not keep their hands off, and threaten to attack our inviolable authority? Will this City be no longer able to stand, is our dominion at an end, if a free vote is allowed to the Roman people so that they may entrust the consulship to whomsoever they will, and no plebeian may be shut out from the hope of attaining the highest honour if only he be worthy of the highest honour? Does the phrase 'Let no plebeian be made consul' mean just the same as 'No slave or freedman shall be consul'? Do you ever realise in what contempt you are living? They would rob you of your share in this daylight, if they could. They are indignant because you breathe and utter speech and wear the form of men. Why! Heaven forgive me, they actually say that it would be an act of impiety for a plebeian to be made consul! Though we are not allowed access to the 'Fasti' or the records of the pontiffs, do we not, pray, know what every stranger knows, that the consuls have simply taken the place of the kings, and possess no right or privilege which was not previously vested in the kings? I suppose you have never heard tell that Numa Pompilius, who was not only no patrician but not even a Roman citizen, was summoned from the land of the Sabines, and after being accepted by the people and confirmed by the senate, reigned as king of Rome? Or that, after him, L. Tarquinius, who belonged to no Roman house, not even to an Italian one, being the son of Demaratus of Corinth, who had settled in Tarquinii, was made king while the sons of Ancus were still alive? Or that, after him again, Servius Tullius, the illegitimate son of a female slave captured at

Corniculum, gained the crown by sheer merit and ability? Why need I mention the Sabine Titus Tatius, with whom Romulus himself, the Father of the City, shared his throne? As long as no class of person in which conspicuous merit appeared was rejected, the Roman dominion grew. Are you then to regard a plebeian consul with disgust, when our ancestors showed no aversion to strangers as their kings? Not even after the expulsion of the kings was the City closed to foreign merit. The Claudian house, at all events, who migrated from the Sabines, was received by us not only into citizenship, but even into the ranks of the patricians. Shall a man who was an alien become a patrician and afterwards consul, and a Roman citizen, if he belongs to the plebs, be cut off from all hope of the consulship? Do we believe that it is impossible for a plebeian to be brave and energetic and capable both in peace and war, or if there be such a man, are we not to allow him to touch the helm of the State; are we to have, by preference, consuls like the decemvirs, those vilest of mortals - who, nevertheless, were all patricians - rather than men who resemble the best of the kings, new men though they were?

[4.4]"But, I may be told, no consul, since the expulsion of the kings, has ever been elected from the plebs. What then? Ought no innovation ever to be introduced; and because a thing has not yet been done - and in a new community there are many things which have not yet been done - ought they not to be done, even when they are advantageous? In the reign of Romulus there were no pontiffs, no college of augurs; they were created by Numa Pompilius. There was no census in the State, no register of the centuries and classes; it was made by Servius Tullius. There were never any consuls; when the kings had been expelled they were created. Neither the power nor the name of Dictator was in existence; it originated with the senate. There were no tribunes of the plebs, no aediles, no quaestors; it was decided that these offices should be created. Within the last ten years we appointed decemvirs to commit the laws to writing and then we abolished their office. Who doubts that in a City built for all time and without any limits to its growth new authorities have to be established, new priesthoods, modifications in the rights and privileges of the houses as well as of individual citizens? Was not this very prohibition of intermarriage between patricians and plebeians, which inflicts such serious injury on the commonwealth and such a gross injustice on the plebs, made by the decemvirs within these last

few years? Can there be a greater or more signal disgrace than for a part of the community to be held unworthy of intermarriage, as though contaminated? What is this but to suffer exile and banishment within the same walls? They are guarding against our becoming connected with them by affinity or relationship, against our blood being allied with theirs. Why, most of you are descended from Albans and Sabines, and that nobility of yours you hold not by birth or blood, but by co-optation into the patrician ranks, having been selected for that honour either by the kings, or after their expulsion by the mandate of the people. If your nobility is tainted by union with us, could you not have kept it pure by private regulations, by not seeking brides from the plebs, and not suffering your sisters or daughters to marry outside your order? No plebeian will offer violence to a patrician maiden, it is the patricians who indulge in those criminal practices. None of us would have compelled any one to enter into a marriage contract against his will. But, really, that this should be prohibited by law and the intermarriage of patricians and plebeians made impossible is indeed insulting to the plebs. Why do you not combine to forbid intermarriage between rich and poor? Everywhere and in all ages there has been an understanding that a woman might marry into any house in which she has been betrothed, and a man might marry from any house the woman to whom he has become engaged, and this understanding you are fettering by the manacles of a most insolent law, through which you may break up civil society and rend one State into two. Why do you not enact a law that no plebeian shall live in the neighbourhood of a patrician, or go along the same road, or take his place at the same banquet, or stand in the same Forum? For, as a matter of fact, what difference is there, if a patrician marries a plebeian woman or a plebeian marries a patrician? What rights are infringed, pray? Of course, the children follow the father. There is nothing that we are seeking in intermarriage with you, except that we may be reckoned amongst men and citizens; there is nothing for you to fight about, unless you delight in trying how far you can insult and degrade us.

[4.5]"In a word, does the supreme power belong to you or to the Roman people? Did the expulsion of the kings mean absolute ascendancy for you or equal liberty for all? Is it right and proper for the Roman people to enact a law, if it wishes to do so, or are you going, whenever a measure is proposed, to order a levy by way of

punishment? Am I to call the tribes up to vote, and as soon as I have begun, are you, the consuls, going to compel those who are liable for service to take the military oath, and then march them off to camp, threatening alike the plebs and the tribunes? Why, have you not on two occasions found out what your threats are worth against a united plebs? Was it, I wonder, in our interest that you abstained from an open conflict, or was it because the stronger party was also the more moderate one that there was no fighting? Nor will there be any conflict now, Quirites; they will always try your courage, they will not test your strength. And so, consuls, the plebeians are ready to follow you to these wars, whether real or imaginary, on condition that by restoring the right of intermarriage you at last make this commonwealth a united one, that it be in their power to be allied with you by family ties, that the hope of attaining high office be granted to men of ability and energy, that it be open to them to be associated with you in taking their share of the government, and - which is the essence of equal liberty - to rule and obey in turn, in the annual succession of magistrates. If any one is going to obstruct these measures, you may talk about wars and exaggerate them by rumour, no one is going to give in his name, no one is going to take up arms, no one is going to fight for domineering masters with whom they have in public life no partnership in honours, and in private life no right of intermarriage."

[4.6]After the two consuls had come forward into the Assembly, set speeches gave place to a personal altercation. The tribune asked why it was not right for a plebeian to be elected consul. The consuls gave a reply which, though perhaps true, was an unfortunate one in view of the present controversy. They said, "Because no plebeian could have the auspices, and the reason why the decemvirs had put an end to intermarriage was to prevent the auspices from being vitiated through the uncertainty of descent." This bitterly exasperated the plebeians, for they believed that they were held incompetent to take the auspices because they were hateful to the immortal gods. As they had got a most energetic leader in their tribune and were supporting him with the utmost determination, the controversy ended in the defeat of the patricians. They consented to the intermarriage law being passed, mainly in the belief that the tribunes would either abandon the struggle for plebeian consuls altogether, or would at least postpone it till after the war, and that the plebeians, contented

with what they had gained, would be ready to enlist. Owing to his victory over the patricians Canuleius was now immensely popular. Fired by his example, the other tribunes fought with the utmost energy to secure the passing of their measure, and though the rumours of war became more serious every day they obstructed the enlistment. As no business could be transacted in the senate owing to the intervention of the tribunes, the consuls held councils of the leaders at their own houses.

It was evident that they would have to yield the victory either to their foreign foes or to their own countrymen. Valerius and Horatius were the only men of consular rank who did not attend these councils. C. Claudius was in favour of empowering the consuls to use armed force against the tribunes; the Quinctii, Cincinnatus and Capitolinus, were averse from bloodshed or injury to those whom in their treaty with the plebs they had agreed to hold inviolable. The result of their deliberations was that they allowed tribunes of the soldiers with consular powers to be elected from the patricians and plebeians indiscriminately; no change was made in the election of consuls. This arrangement satisfied the tribunes and it satisfied the plebs. Notice was published that an Assembly would be held for the election of three tribunes with consular powers. No sooner was this announcement made than everybody who had ever acted or spoken as a fomentor of sedition, especially those who had been tribunes, came forward as candidates, and began to bustle about the Forum, canvassing for votes. The patricians were at first deterred from seeking election, as in the exasperated mood of the plebeians they regarded their chances as hopeless, and they were disgusted at the prospect of having to hold office with these men. At last, under compulsion from their leaders, lest they should appear to have withdrawn from any share in the government, they consented to stand. The result of the election showed that when men are contending for liberty and the right to hold office their feelings are different from what they are when the contest is over and they can form an unbiased judgment. The people were satisfied now that votes were allowed for plebeians, and they elected none but patricians. Where in these days will you find in a single individual the moderation, fairness, and loftiness of mind which then characterised the people as a whole?

[4.7]In the 310th year after the foundation of Rome (444 B.C.), military tribunes with consular powers for the first time took office. Their names were Aulus Sempronius Atratinus, L. Atilius, and T. Caecilius, and during their tenure of office concord at home procured peace abroad. Some writers omit all mention of the proposal to elect consuls from the plebs, and assert that the creation of three military tribunes invested with the insignia and authority of consuls was rendered necessary by the inability of two consuls to cope at the same time with the Veientine war in addition to the war with the Aequi and Volscians and the defection of Ardea. The jurisdiction of that office was not yet, however, firmly established, for in consequence of the decision of the augurs they resigned office after three months, owing to some irregularity in their election. C. Curtius, who had presided over their election, had not rightly selected his position for taking the auspices. Ambassadors came from Ardea to complain of the injustice done them; they promised that if it were removed by the restoration of their territory they would abide by the treaty and remain good friends with Rome. The senate replied that they had no power to rescind a judgment of the people, there was no precedent or law to allow it, the necessity of preserving harmony between the two orders made it impossible. If the Ardeates were willing to wait their time and leave the redress of their wrongs in the hands of the senate, they would afterwards congratulate themselves on their moderation, and would discover that the senators were just as anxious that no injustice should be done them as that whatever had been done should speedily be repaired. The ambassadors said that they would bring the whole matter again before their senate, and were then courteously dismissed.

As the State was now without any curule magistrate, the patricians met together and appointed an interrex. Owing to a dispute whether consuls or military tribunes should be elected, the interregnum lasted several days. The interrex and the senate tried to secure the election of consuls; the plebs and their tribunes that of military tribunes. The senate conquered, for the plebeians were sure to confer either honour on the patricians and so refrained from an idle contest, whilst their leaders preferred an election in which no votes could be received for them to one in which they would be passed over as unworthy to hold office. The tribunes, too, gave up the fruitless contest out of complaisance to the leaders of the senate. T. Quinctius Barbatus, the

interrex, elected as consuls Lucius Papirius Mugilanus and L. Sempronius Atratinus. During their consulship the treaty with Ardea was renewed. This is the sole proof that they were the consuls for that year, for they are not found in the ancient annals nor in the official list of magistrates. The reason, I believe, was that since at the beginning of the year there were military tribunes, the names of the consuls who replaced them were omitted as though the tribunes had continued in office through the year. According to Licinius Macer, their names were found in the copy of the treaty with Ardea, as well as in the "Linen Rolls." In spite of so many alarming symptoms of unrest amongst the neighbouring nations, things were quiet both abroad and at home.

[4.8] Whether there were tribunes this year, or whether they were replaced by consuls, there is no doubt that the following year the consuls were M. Geganius Macerinus and T. Quinctius Capitolinus; the former consul for the second time, the latter for the fifth time. This year saw the beginning of the censorship, an office which, starting from small beginnings, grew to be of such importance that it had the regulation of the conduct and morals of Rome, the control of the senate and the equestrian order; the power of honouring and degrading was also in the hands of these magistrates; the legal rights connected with public places and private property, and the revenues of the Roman people, were under their absolute control. Its origin was due to the fact that no census had been taken of the people for many years, and it could no longer be postponed, whilst the consuls, with so many wars impending, did not feel at liberty to undertake the task. It was suggested in the senate that as the business would be a complicated and laborious one, not at all suitable for the consuls, a special magistrate was needed who should superintend the registrars and have the custody of the lists and assessment schedules and fix the valuation of property and the status of citizens at his discretion. Though the suggestion was not of great importance, the senate gladly adopted it, as it would add to the number of patrician magistrates in the State, and I think that they anticipated what actually happened, that the influence of those who held the office would soon enhance its authority and dignity. The tribunes, too, looking more at the need which certainly existed for such an office than at the lustre which would attend its administration, offered no opposition, lest they should appear to be raising troublesome difficulties even in small

matters. The foremost men of the State declined the honour, so Papirius and Sempronius - about whose consulship doubts were entertained - were elected by the suffrages of the people to conduct the census. Their election to this magistracy made up for the incompleteness of their consulship. From the duties they had to discharge they were called Censors.

[4.9] Whilst this was going on in Rome, ambassadors came from Ardea, appealing, in the name of the ancient alliance and recently renewed treaty, for help for their city which was almost destroyed. They were not allowed, they said, to enjoy the peace which in pursuance of the soundest policy they had maintained with Rome, owing to internal disputes. The origin and occasion of these is said to have been party struggles, which have been and will be more ruinous to the majority of States than external wars or famine and pestilence or whatever else is ascribed to the wrath of the gods as the last evil which a State can suffer. Two young men were courting a maiden of plebeian descent celebrated for her beauty. One of them, the girl's equal in point of birth, was encouraged by her guardians, who belonged to the same class; the other, a young noble captivated solely by her beauty, was supported by the sympathy and good-will of the nobility. Party feeling had even penetrated into the girl's home, for the mother, who wanted her daughter to make as splendid a match as possible, preferred the young noble, whilst the guardians, carrying their partisanship even into such a matter as this, were working for the man of their own class. As the matter could not be settled within the four walls of the house, they brought it into court. After hearing the appeals of the mother and of the guardians, the magistrates granted the disposal of the girl's hand in accordance with the mother's wishes. But violence won the day, for the guardians, after haranguing a number of their partisans in the Forum on the iniquity of the verdict, collected a body of men and carried off the maiden from her mother's house. They were met by a still more determined troop of nobles, assembled to follow their young comrade, who was furious at the outrage. A desperate fight ensued and the plebeians got the worst of it. In a very different spirit from the Roman plebs they marched, fully armed, out of the city and took possession of a hill from which they raided the lands of the nobles and laid them waste with fire and sword. A multitude of artisans who had previously taken no part in the conflict, excited by the hope of

plunder, joined them, and preparations were made to besiege the city. All the horrors of war were present in the city, as though it had been infected with the madness of the two young men who were seeking fatal nuptials out of their country's ruin. Both sides felt the need of an addition to their strength; the nobles prevailed on the Romans to come to the relief of their beleaguered city; the plebs induced the Volscians to join them in attacking Ardea. The Volscians, under the leadership of Cluilius, the Aequian, were the first to come, and drew lines of circumvallation round the enemy's walls. When news of this reached Rome the consul M. Geganus at once left with an army and fixed his camp three miles distant from the enemy, and as the day was declining he ordered his men to rest. At the fourth watch he ordered an advance, and so expeditiously was the task undertaken and completed, that at sunrise the Volscians saw themselves enclosed by a stronger circumvallation than the one which they had themselves carried round the city. In another direction the consul constructed a covered way up to the wall of Ardea by which his friends in the city could go to and fro.

[4.10]Up to that time the Volscian commander had not laid in any stock of provisions, as he had been able to maintain his army upon the corn carried off each day from the surrounding country. Now, however, that he was suddenly shut in by the Roman lines, he found himself destitute of everything. He invited the consul to a conference, and said that if the object for which the Romans had come was to raise the siege, he would withdraw the Volscians. The consul replied that it was for the defeated side to submit to terms, not to impose them, and as the Volscians had come at their own pleasure to attack the allies of Rome, they should not depart on the same terms. He required them to lay down their arms, surrender their general, and make acknowledgment of their defeat by placing themselves under his orders; otherwise, whether they remained or departed, he would prove a relentless foe, and would rather carry back to Rome a victory over them than a faithless peace. The only hope of the Volscians lay in their arms, and slight as it was they risked it. The ground was unfavourable to them for fighting, still more so for flight. As they were being cut down in all directions, they begged for quarter, but they were only allowed to get away after their general had been surrendered, their arms given up, and they themselves sent under the yoke. Covered with disgrace and disaster, they departed with only one

garment apiece. They halted not far from the city of Tusculum, and owing to an old grudge which that city had against them, they were suddenly attacked, and defenceless as they were, suffered severe punishment, few being left to carry the news of the disaster. The consul settled the troubles in Ardea by beheading the ringleaders of the disturbance and confiscating their property to the treasury of the city. The citizens considered that the injustice of the recent decision was removed by the great service that Rome had rendered, but the senate thought that something ought still to be done to wipe out the record of national avarice. The consul Quinctius achieved the difficult task of rivalling in his civil administration the military renown of his colleague. He showed such care to maintain peace and concord by tempering justice equally for the highest and the lowest, that whilst the senate looked upon him as a stern consul, the plebeians regarded him as a lenient one. He held his ground against the tribunes more by personal authority than by active opposition. Five consulships marked by the same even tenor of conduct, a whole lifetime passed in a manner worthy of a consul, invested the man himself with almost more reverence than the office he filled. Whilst these two men were consuls there was no talk of military tribunes.

[4.11] The new consuls were Marcus Fabius Vibulanus and Postumius Aebutius Cornicinien. The previous year was regarded by the neighbouring peoples, whether friendly or hostile, as chiefly memorable because of the trouble taken to help Ardea in its peril. The new consuls, aware that they were succeeding men distinguished both at home and abroad, were all the more anxious to obliterate from men's minds the infamous judgment. Accordingly, they obtained a senatorial decree ordering that as the population of Ardea had been seriously reduced through the internal disturbances, a body of colonists should be sent there as a protection against the Volscians. This was the reason alleged in the text of the decree, to prevent their intention of rescinding the judgment from being suspected by the plebs and tribunes. They had, however, privately agreed that the majority of the colonists should consist of Rutulians, that no land should be allotted other than what had been appropriated under the infamous judgment, and that not a single sod should be assigned to a Roman till all the Rutulians had received their share. So the land went back to the Ardeates. Agrippa Menenius, T. Cluilius Siculus, and M. Aebutius Helva were the triumvirs appointed

to superintend the settlement of the colony. Their office was not only extremely unpopular, but they gave great offence to the plebs by assigning to allies land which the Roman people had formally adjudged to be their own. Even with the leaders of the patricians they were out of favour, because they had refused to allow themselves to be influenced by any of them. The tribunes impeached them, but they avoided all further vexatious proceedings by enrolling themselves amongst the settlers and remaining in the colony which they now possessed as a testimony to their justice and integrity.

[4.12] There was peace abroad and at home during this and the following year when C. Furius Pacilus and M. Papirius Crassus were consuls. The Sacred Games, which in accordance with a decree of the senate had been vowed by the decemvirs on the occasion of the secession of the plebs, were celebrated this year. Poetilius, who had again raised the question of the division of territory, was made tribune. He made fruitless efforts to create sedition, and was unable to prevail upon the consuls to bring the question before the senate. After a great struggle he succeeded so far that the senate should be consulted as to whether the next elections should be held for consuls or for consular tribunes. They ordered consuls to be elected. The tribune's menaces were laughed at when he threatened to obstruct the levy at a time when all the neighbouring States were quiet and there was no necessity for war or for any preparations for war. Proculus Geganius Macerinus and Lucius Menenius Lanatus were the consuls for the year which followed this state of tranquillity; a year remarkable for a multiplicity of disasters and dangers, seditions, famine, and the imminent risk of the people being bribed to bow their necks to despotic power. A foreign war alone was wanting. Had this come to aggravate the universal distress, resistance would hardly have been possible even with the help of all the gods.

The misfortunes began with a famine, owing either to the year being unfavourable to the crops, or to the cultivation of the land being abandoned for the attractions of political meetings and city life; both causes are assigned. The senate blamed the idleness of the plebeians, the tribunes charged the consuls at one time with dishonesty, at another with negligence. At last they induced the plebs, with the acquiescence of the senate, to appoint as Prefect of the Corn-market L. Minucius. In that capacity he was more successful in guarding liberty than in the discharge of his office, though in the end he

deservedly won gratitude and reputation for having relieved the scarcity. He despatched numerous agents by sea and land to visit the surrounding nations, but as, with the sole exception of Etruria, who furnished a small supply, their mission was fruitless, he made no impression on the market. He then devoted himself to the careful adjustment of the scarcity, and obliged all who possessed any corn to declare the amount, and after retaining a month's supply for themselves, sell the rest to the Government. By cutting down the daily rations of the slaves to one half, by holding up the corn-merchants to public execration, by rigorous and inquisitorial methods, he revealed the prevailing distress more than he relieved it. Many of the plebs lost all hope, and rather than drag on a life of misery muffled their heads and threw themselves into the Tiber.

[4.13]It was at that time that Spurius Maelius, a member of the equestrian order and a very wealthy man for those days, entered upon an undertaking, serviceable in itself, but forming a very bad precedent and dictated by still worse motives. Through the instrumentality of his clients and foreign friends he purchased corn in Etruria, and this very circumstance, I believe, hampered the Government in their efforts to cheapen the market. He distributed this corn gratis, and so won the hearts of the plebeians by this generosity that wherever he moved, conspicuous and consequential beyond an ordinary mortal, they followed him, and this popularity seemed to his hopes a sure earnest of a consulship. But the minds of men are never satisfied with Fortune's promises, and he began to entertain loftier and unattainable aims; he knew the consulship would have to be won in the teeth of the patricians, so he began to dream of royalty. After all his grand schemes and efforts he looked upon that as the only fitting reward which owing to its greatness must be won by the greatest exertions. The consular elections were now close at hand, and as his plans were not yet matured, this circumstance proved his ruin. T. Quinctius Capitolinus, a very awkward man for any one meditating a revolution, was chosen consul for the sixth time, and Agrippa Menenius, surnamed Lanatus, was assigned to him as his colleague. Lucius Minucius was either reappointed prefect of the corn-market, or his original appointment was for an indefinite period as long as circumstances required; there is nothing definitely stated beyond the fact that the name of the prefect was entered on the "Linen Rolls" among the magistrates for both years. Minucius was discharging the

same function as a State official which Maelius had undertaken as a private citizen, and the same class of people frequented both their houses. He made a discovery which he brought to the notice of the senate, viz., that arms were being collected in Maelius' house, and that he was holding secret meetings at which plans were being undoubtedly formed to establish a monarchy. The moment for action was not yet fixed, but everything else had been settled; the tribunes had been bought over to betray the liberties of the people, and these leaders of the populace had had their various parts assigned to them. He had, he said, delayed making his report till it was almost too late for the public safety, lest he should appear to be the author of vague and groundless suspicions.

On hearing this the leaders of the senate censured the consuls of the previous year for having allowed those free distributions of corn and secret meetings to go on, and they were equally severe on the new consuls for having waited till the prefect of the corn-market had made his report, for the matter was of such importance that the consuls ought not only to have reported it, but also dealt with it. In reply, Quinctius said that the censure on the consuls was undeserved, for, hampered as they were by the laws giving the right of appeal, which were passed to weaken their authority, they were far from possessing as much power as will to punish the atrocious attempt with the severity it deserved. What was wanted was not only a strong man, but one who was free to act, unshackled by the laws. He should therefore nominate Lucius Quinctius as Dictator, for he had the courage and resolution which such great powers demanded. This met with universal approval. Quinctius at first refused and asked them what they meant by exposing him at the close of his life to such a bitter struggle. At last, after well-merited commendations were showered upon him from all parts of the House and he was assured that "in that aged mind there was not only more wisdom but more courage than in all the rest," whilst the consul adhered to his decision, he yielded. After a prayer to heaven that in such a time of danger his old age might not prove a source of harm or discredit to the republic, Cincinnatus was made Dictator. He appointed Caius Servilius Ahala as his Master of the Horse.

[4.14]The next day, after posting guards at different points, he came down to the Forum. The novelty and mystery of the thing drew the attention of the plebs towards him. Maelius and his confederates

recognised that this tremendous power was directed against them, whilst those who knew nothing of the plot asked what disturbance or sudden outbreak of war called for the supreme authority of a Dictator or required Quinctius, after reaching his eightieth year, to assume the government of the republic. Servilius, the Master of the Horse, was despatched by the Dictator to Maelius with the message: "The Dictator summons you." Alarmed at the summons, he inquired what it meant. Servilius explained that he had to stand his trial and clear himself of the charge brought against him by Minucius in the senate. On this Maelius retreated amongst his troop of adherents, and looking round at them began to slink away, when an officer by order of the Master of the Horse seized him and began to drag him away. The bystanders rescued him, and as he fled he implored "the protection of the Roman plebs," and said that he was the victim of a conspiracy amongst the patricians, because he had acted generously towards the plebs. He entreated them to come to his help in this terrible crisis, and not suffer him to be butchered before their eyes. Whilst he was making these appeals, Servilius overtook him and slew him. Besprinkled with the dead man's blood, and surrounded by a troop of young patricians, he returned to the Dictator and: reported that Maelius after being summoned to appear before him had driven away his officer and incited the populace to riot, and had now met with the punishment he deserved. "Well done!" said the Dictator, "C. Servilius, you have delivered the republic."

[4.15]The populace did not know what to make of the deed and were becoming excited. The Dictator ordered them to be summoned to an Assembly. He declared that Maelius had been lawfully slain, even if he were guiltless of treason, because he had refused to come to the Dictator when summoned by the Master of the Horse. He, Cincinnatus, had sat to investigate the case, after it had been investigated Maelius would have been treated in accordance with the result. He was not to be dealt with like an ordinary citizen. For, though born amongst a free people under laws and settled rights, in a City from which he knew that royalty had been expelled, and in the very same year, the sons of the king's sister, children of the consul who liberated his country, had, on the discovery of a conspiracy for restoring royalty, been beheaded by their own father - a City from which Collatinus Tarquin the consul had been ordered to lay down his office and go into exile, because the very name of Tarquin was

detested - a City in which some years later Spurius Cassius had been punished for entertaining designs of sovereignty - a City in which recently the decemvirs had been punished by confiscation, exile, and death because of a tyranny as despotic as that of kings - in that City Maelius had conceived hopes of sovereignty! And who was this man? Although no nobility of birth, no honours, no services to the State paved the way for any man to sovereign power, still it was their consulships, their decemvirates, the honours achieved by them and their ancestors and the splendour of their families that raised the ambitions of the Claudii and the Cassii to an impious height. But Spurius Maelius, to whom the tribuneship of the plebs was a thing to be wished for rather than hoped for, a wealthy corn-factor, hoped to buy the liberty of his fellow-citizens for a couple of pounds of spelt, and imagined that by throwing a little corn to them he could reduce to slavery the men who had conquered all the neighbouring States, and that he whom the State could hardly stomach as a senator would be tolerated as a king, possessing the power and insignia of Romulus, who had sprung from the gods and been carried back to the gods! His act must be regarded as a portent quite as much as a crime; for that portent his blood was not sufficient expiation, those walls within which such madness had been conceived must be levelled to the ground, and his property, contaminated by the price of treason, confiscated to the State.

[4.16]So far the Dictator. He then gave orders for the house to be forthwith razed to the ground, that the place where it stood might be a perpetual reminder of impious hopes crushed. It was afterwards called the *Aequimaelium*. L. Minucius was presented with the Image of a golden ox set up outside the Trigemian gate. As he distributed the corn which had belonged to Maelius at the price of one "as" per bushel, the plebs raised no objection to his being thus honoured. I find it stated in some authorities that this Minucius went over from the patricians to the plebeians and after being co-opted as an eleventh tribune quelled a disturbance which arose in consequence of the death of Maelius. It is, however, hardly credible that the senate would have allowed this increase in the number of the tribunes, or that such a precedent, above all others, should have been introduced by a patrician, or that if that concession had been once made, the plebs should not have adhered to it, or at all events tried to do so. But the most conclusive refutation of the lying inscription on his image is to

be found in a provision of the law passed a few years previously that it should not be lawful for tribunes to co-opt a colleague. Q. Caecilius, Q. Junius, and Sex. Titinius were the only members of the college of tribunes who did not support the proposal to honour Minucius, and they never ceased to attack Minucius and Servilius in turn before the Assembly and charge them with the undeserved death of Maelius. They succeeded in securing the creation of military tribunes instead of consuls at the next election, for they felt no doubt that for the six vacancies - that number could now be elected - some of the plebeians, by giving out that they would avenge the death of Maelius, would be elected. But in spite of the excitement amongst the plebeians owing to the numerous commotions through the year, they did not create more than three tribunes with consular powers; amongst them L. Quinctius the son of the Cincinnatus who as Dictator incurred such odium that it was made the pretext for disturbances. Mam. Aemilius polled the highest number of votes, L. Julius came in third.

[4.17] During their magistracy Fidenae, where a body of Romans were settled, revolted to Lars Tolumnius, king of the Veientes. The revolt was made worse by a crime. C. Fulcinius, Cloelius Tullus, Sp. Antius, and L. Roscius, who were sent as envoys to ascertain the reasons for this change of policy, were murdered by order of Tolumnius. Some try to exculpate the king by alleging that whilst playing at dice he made a lucky throw and used an ambiguous expression which might be taken to be an order for death, and that the Fidenates took it so, and this was the reason of the death of the envoys. This is incredible; it is impossible to believe that when the Fidenates, his new allies, came to consult him as to committing a murder in defiance of the law of nations, he should not have turned his thoughts from the game, or should afterwards have imputed the crime to a misunderstanding. It is much more probable that he wished the Fidenates to be implicated in such an awful crime in order to make it impossible for them to hope for any reconciliation with Rome. The statues of the murdered envoys were set up in the Rostra. Owing to the proximity of the Veientes and Fidenates, and still more to the heinous crime with which they began the war, the struggle threatened to be a desperate one. Anxiety for the national safety kept the plebs quiet, and their tribunes raised no difficulties in the election of M. Geganius Macerinus as consul for the third time,

and L. Sergius Fidenas, who, I believe, was so called from the war which he afterwards conducted. He was the first who fought a successful action with the king of Veii on this side of the Anio. The victory he gained was by no means a bloodless one; there was more mourning for their countrymen who were lost than joy over the defeat of the enemy. Owing to the critical aspect of affairs, the senate ordered Mamercus Aemilius to be proclaimed Dictator. He chose as his Master of the Horse L. Quinctius Cincinnatus, who had been his colleague in the college of consular tribunes the previous year, a young man worthy of his father. To the force levied by the consuls were added a number of war-seasoned veteran centurions, to fill up the number of those lost in the late battle. The Dictator ordered Quinctius Capitolinus and M. Fabius Vibulanus to accompany him as seconds in command. The higher power of the Dictator, wielded by a man quite equal to it, dislodged the enemy from Roman territory and sent him across the Anio. He occupied the line of hills between Fidenae and the Anio, where he entrenched himself, and did not go down into the plains until the legions of Falerii had come to his support. Then the camp of the Etruscans was formed in front of the walls of Fidenae. The Roman Dictator chose a position not far from them at the junction of the Anio and the Tiber, and extended his lines as far as possible from the one river to the other. The next day he led his men out to battle.

[4.18] Amongst the enemy there was diversity of opinion. The men of Falerii, impatient at serving so far from home, and full of self-confidence, demanded battle; those of Veii and Fidenae placed more hope in a prolongation of the war. Although Tolumnius was more inclined to the opinion of his own men, he announced that he would give battle the next day, in case the Faliscans should refuse to serve through a protracted campaign. This hesitation on the part of the enemy gave the Dictator and the Romans fresh courage. The next day, whilst the soldiers were declaring that unless they had the chance of fighting they would attack the enemy's camp and city, both armies advanced on to the level ground between their respective camps. The Veientine general, who was greatly superior in numbers, sent a detachment round the back of the hills to attack the Roman camp during the battle. The armies of the three States were stationed thus: The Veientes were on the right wing, the Faliscans on the left, the Fidenates in the centre. The Dictator led his right wing against the

Faliscans, Capitolinus Quinctius directed the attack of the left against the Veientes, whilst the Master of the Horse advanced with his cavalry against the enemy's centre. For a few moments all was silent and motionless, as the Etruscans would not commence the fight unless they were compelled, and the Dictator was watching the Citadel of Rome and waiting for the agreed signal from the augurs as soon as the omens should prove favourable. No sooner had he caught sight of it than he let loose the cavalry, who, raising a loud battle-cry, charged; the infantry followed with a furious onslaught. In no quarter did the legions of Etruria stand the Roman charge; their cavalry offered the stoutest resistance, and the king, himself by far the bravest of them, charged the Romans whilst they were scattered everywhere in pursuit of the enemy, and so prolonged the contest.

[4.19] There was in the cavalry, on that day, a military tribune named A. Cornelius Cossus, a remarkably handsome man, and equally distinguished for strength and courage, and proud of his family name, which, illustrious as it was when he inherited it, was rendered still more so when he left it to his posterity. When he saw the Roman squadrons shaken by the repeated charges of Tolumnius in whatever direction he rode, and recognised him as he galloped along the entire line, conspicuous in his royal habiliments, he exclaimed, "Is this the breaker of treaties between man and man, the violator of the law of nations? If it is the will of heaven that anything holy should exist on earth, I will slay this man and offer him as a sacrifice to the manes of the murdered envoys." Putting spurs to his horse he charged with levelled spear against this single foe, and having struck and unhorsed him, he leaped with the aid of his spear to the ground. As the king was attempting to rise he pushed him back with the boss of his shield, and with repeated spear-thrusts pinned him to the earth. Then he despoiled the lifeless body, and cutting off his head stuck it on his spear, and carrying it in triumph routed the enemy, who were panic-struck at the king's death. So the enemy's cavalry, who had alone made the issue of the contest doubtful, now shared in the general rout. The Dictator hotly pursued the flying legions and drove them to their camp with great slaughter. Most of the Fidenates, who were familiar with the country, escaped to the hills. Cossus with the cavalry crossed the Tiber and brought to the City an enormous amount of booty from the country of the Veientes. During the battle there was also an engagement at the Roman camp with the detachment which,

as already stated, Tolumnius had sent to attack it. Fabius Vibulanus at first confined himself to the defence of the circuit of his lines; then, while the enemy's attention was wholly directed to forcing the stockade, he made a sortie from the Porta Principalis on the right, and this unexpected attack produced such consternation among the enemy, that though there were fewer killed, owing to the smaller number engaged, the flight was just as disorderly as in the main battle.

[4.20] Successful in all directions, the Dictator returned home to enjoy the honour of a triumph granted him by decree of the senate and resolution of the people. By far the finest sight in the procession was Cossus bearing the *spolia opima* of the king he had slain. The soldiers sang rude songs in his honour and placed him on a level with Romulus. He solemnly dedicated the spoils to Jupiter Feretrius, and hung them in his temple near those of Romulus, which were the only ones which at that time were called *spolia opima prima*. All eyes were turned from the chariot of the Dictator to him; he almost monopolised the honours of the day. By order of the people, a crown of gold, a pound in weight, was made at the public expense and placed by the Dictator in the Capitol as an offering to Jupiter. In stating that Cossus placed the *spolia opima secunda* in the temple of Jupiter Feretrius when he was a military tribune I have followed all the existing authorities. But not only is the designation of *spolia opima* restricted to those which a commander-in-chief has taken from a commander-in-chief - and we know of no commander-in-chief but the one under whose auspices the war is conducted - but I and my authorities are also confuted by the actual inscription on the spoils, which states that Cossus took them when he was consul. Augustus Caesar, the founder and restorer of all the temples, rebuilt the temple of Jupiter Feretrius, which had fallen to ruin through age, and I once heard him say that after entering it he read that inscription on the linen cuirass with his own eyes. After that I felt it would be almost a sacrilege to withhold from Cossus the evidence as to his spoils given by the Caesar who restored that very temple. Whether the mistake, if there be one, may have arisen from the fact that the ancient annals, and the "Linen Rolls" - the lists of magistrates preserved in the temple of Moneta which Macer Licinius frequently quotes as authorities - have an A. Cornelius Cossus as consul with T. Quinctius Poenus, ten years later - of this every man must judge for himself. For there is this further reason why so famous a battle could

not be transferred to this later date, namely, that during the three years which preceded and followed the consulship of Cossus war was impossible owing to pestilence and famine, so that some of the annals, as though they were records of deaths, supply nothing but the names of the consuls. The third year after his consulship has the name of Cossus as a consular tribune, and in the same year he is entered as Master of the Horse, in which capacity he fought another brilliant cavalry action. Every one is at liberty to form his own conjecture; these doubtful points, in my belief, can be made to support any opinion. The fact remains that the man who fought the battle placed the newly-won spoils in the sacred shrine near Jupiter himself, to whom they were consecrated, and with Romulus in full view - two witnesses to be dreaded by any forger - and that he described himself in the inscription as "A. Cornelius Cossus, Consul."

[4.21]M. Cornelius Maluginensis and L. Papirius Crassus were the next consuls. Armies were led into the territories of the Veientes and Faliscans and men and cattle were carried off. The enemy was nowhere found in the open, nor was there any opportunity of fighting. Their cities, however, were not attacked, for the people were visited by an epidemic. Spurius Maelius, a tribune of the plebs, tried to get up disturbances, but failed to do so. Relying upon the popularity of the name he bore, he had impeached Minucius and brought forward a proposal for the confiscation of the property of Servilius Ahala on the plea that Maelius had been the victim of false charges by Minucius, whilst Servilius had been guilty of putting a citizen to death without trial. The people paid less attention to these accusations than even to their author; they were much more concerned about the increasing virulence of the epidemic and the terrifying portents; most of all about the reports of frequent earthquakes which laid the houses in the country districts in ruins. A solemn supplication, therefore, was offered up by the people, led by the duumvirs. The following year, in which the consuls were C. Julius, for the second time, and L. Verginius, was still more fatal, and created such alarming desolation in town and country that no plundering parties left Roman territory, nor did either senate or plebs entertain any idea of taking the offensive. The Fidenates, however, who had at first confined themselves to their mountains and walled villages, actually came down into the Roman territory and ravaged it. As the

Faliscans could not be induced to renew the war, either by the representations of their allies or by the fact that Rome was prostrated by the epidemic, the Fidenates sent to invite the Veientine army, and the two States crossed the Anio and displayed their standards not far from the Colline gate. The alarm was as great in the City as in the country districts. The consul Julius disposed his troops on the rampart and the walls; Verginius convened the senate in the temple of Quirinus. They decreed that Q. Servilius should be nominated Dictator. According to one tradition he was surnamed Priscus, according to another, Structus. Verginius waited till he could consult his colleague; on gaining his consent, he nominated the Dictator at night. The Dictator appointed Postumius Aebutius Helva as Master of the Horse.

[4.22]The Dictator issued an order for all to muster outside the Colline gate by daybreak. Every man strong enough to bear arms was present. The standards were quickly brought to the Dictator from the treasury. While these arrangements were being made, the enemy withdrew to the foot of the hills. The Dictator followed them with an army eager for battle, and engaged them not far from Nomentum. The Etruscan legions were routed and driven into Fidenae; the Dictator surrounded the place with lines of circumvallation. But, owing to its elevated position and strong fortifications, the city could not be carried by assault, and a blockade was quite ineffective, for there was not only corn enough for their actual necessities, but even for a lavish supply from what had been stored up beforehand. So all hope of either storming the place or starving it into surrender was abandoned. As it was near Rome, the nature of the ground was well known, and the Dictator was aware that the side of the city remote from his camp was weakly fortified owing to its natural strength. He determined to carry a mine through from that side to the citadel. He formed his army into four divisions, to take turns in the fighting, and by keeping up a constant attack upon the walls in all directions, day and night, he prevented the enemy from noticing the work. At last the hill was tunnelled through and the way lay open from the Roman camp up to the citadel. Whilst the attention of the Etruscans was being diverted by feigned attacks from their real danger, the shouts of the enemy above their heads showed them that the city was taken. In that year the censors C. Furius Pacilus and M. Geganius Macerinus

passed the government building on the Campus Martius, and the census of the people was made there for the first time.

[4.23]I find in Macer Licinius that the same consuls were re-elected for the following year - Julius for the third time and Verginius for the second. Valerius Antias and Q. Tubero give M. Manlius and Q. Sulpicius as the consuls for that year. In spite of this discrepancy Tubero and Macer both claim the authority of the "Linen Rolls"; both admit that in the ancient historians it was asserted that there were military tribunes that year. Licinius considers that we ought unhesitatingly to follow the "Linen Rolls"; Tubero has not made up his mind. But amongst the many points obscure through lapse of time, this also is left unsettled. The capture of Fidenae created alarm in Etruria. Not only were the Veientes apprehensive of a similar fate, but the Faliscans too had not forgotten the war which they had commenced in alliance with them, though they had taken no part in its renewal. The two States sent round envoys to the twelve cantons, and in compliance with their request a meeting was proclaimed of the national council of Etruria, to be held at the temple of Voltumna. As a great struggle seemed imminent, the senate ordered that Mamercus Aemilius should be again nominated Dictator. A. Postumius Tubertus was appointed Master of the Horse. Preparations for war were made with all the greater energy now than on the last occasion, as the danger to be apprehended from the whole of Etruria was greater than from only two of its towns

[4.24]The occasion passed off more quietly than anybody expected. Information was brought by traders that help had been refused to the Veientes; they were told to prosecute with their own resources a war which they had commenced on their own initiative, and not, now that they were in difficulties, to look for allies amongst those whom in their prosperity they refused to take into their confidence. The Dictator was now deprived of any opportunity of acquiring fame in war, but he was anxious to achieve some work which might be a memorial of his dictatorship and prevent it from appearing an unnecessary appointment, so he made preparations for abridging the censorship, either because he considered its power excessive, or because he objected not so much to the greatness as the length of duration of the office. Accordingly he convened the Assembly and said that as the gods had undertaken the conduct of the State in external affairs and made everything safe, he would do what required

to be done within the walls, and take counsel for the liberties of the Roman people. Those liberties were most securely guarded when those who held great powers did not hold them long, and when offices which could not be limited in their jurisdiction were limited in their tenure. Whilst the other magistracies were annual, the censorship was a quinquennial one. It was a distinct grievance to have to live at the mercy of the same men for so many years, in fact for a considerable part of one's life. He was going to bring in a law that the censorship should not last longer than eighteen months. He carried the law the next day amidst the enthusiastic approval of the people, and then made the following announcement: "That you may really know, Quirites, how much I disapprove of prolonged rule, I now lay down my dictatorship." After thus resigning his own magistracy and limiting the other one, he was escorted home amidst the hearty goodwill and congratulations of the people. The censors were extremely angry with Mamercus for having limited the power of a Roman magistrate, they struck him out of his tribe, increased his assessment eightfold, and disfranchised him. It is recorded that he bore this most magnanimously, thinking more of the cause which led to the ignominy being inflicted upon him than of the ignominy itself. The leading men amongst the patricians, though disapproving of the limitation imposed on the censorial jurisdiction, were shocked at this instance of the harsh exercise of its power, for each recognised that he would be subject to the censors more frequently and for a longer time than he would be censor himself. At all events the people, it is said, felt so indignant that no one but Mamercus possessed sufficient authority to protect the censors from violence.

[4.25]The tribunes of the plebs held constant meetings of the Assembly with a view to preventing the election of consuls, and after bringing matters almost to the appointment of an interrex, they succeeded in getting consular tribunes elected. They looked for plebeians to be elected as a reward for their exertions, but not a single one came in; all who were elected were patricians. Their names were M. Fabius Vibulanus, M. Folius, and L. Sergius Fidenas. The pestilence that year kept everything quiet. The duumvirs did many things prescribed by the sacred books to appease the wrath of the gods and remove the pestilence from the people. The mortality, notwithstanding, was heavy both in the City and in the country districts; men and beasts alike perished. Owing to the losses amongst

the cultivators of the soil, a famine was feared as the result of the pestilence, and agents were despatched to Etruria and the Pomptine territory and Cumae, and at last even to Sicily, to procure corn. No mention was made of the election of consuls; consular tribunes were appointed, all patricians. Their names were L. Pinarius Mamercus, L. Furius Medullinus, and Sp. Postumius Albus. In this year the violence of the epidemic abated and there was no scarcity of corn, owing to the provision that had been made. Projects of war were discussed in the national councils of the Volscians and Aequi, and in Etruria at the temple of Voltumna. There the question was adjourned for a year and a decree was passed that no council should be held till the year had elapsed, in spite of the protests of the Veientes, who declared that the same fate which had overtaken Fidenae was threatening them.

At Rome, meantime, the leaders of the plebs, finding that their cherished hopes of higher dignity were futile whilst there was peace abroad, got up meetings in the houses of the tribunes, where they discussed their plans in secret. They complained that they had been treated with such contempt by the plebs, that though consular tribunes had now been elected for many years, not a single plebeian had ever found his way to that office. Their ancestors had shown much foresight in taking care that the plebeian magistracies should not be open to patricians, otherwise they must have had patricians as tribunes of the plebs, for so insignificant were they in the eyes of their own order that they were looked down upon by plebeians quite as much as by the patricians. Others threw the blame on the patricians, it was owing to their unscrupulous cleverness in pushing their canvassing that the path to honour was closed to the plebeians. If the plebs were allowed a respite from their menaces and entreaties, they would think of their own party when they went to vote, and by their united efforts would win office and power. It was decided that, with a view to doing away with the abuses of canvassing, the tribunes should bring in a law forbidding any one to whiten his toga, when he appeared as a candidate. To us now the matter may appear trivial and hardly worth serious discussion, but it kindled a tremendous conflict between patricians and plebeians. The tribunes, however, succeeded in carrying their law, and it was clear that, irritated as they were, the plebeians would support their own men. That they might not be free

to do so, a resolution was passed in the senate that the forthcoming elections should be held for the appointment of consuls.

[4.26]The reason for this decision was the report sent in by the Latins and Hernicans of a sudden rising amongst the Volscians and Aequi. T. Quinctius Cincinnatus - surnamed Poenus - the son of Lucius, and Gnaeus Julius Mento were made consuls. War very soon broke out. After a levy had been raised under the Lex Sacrata, which was the most powerful means they possessed of compelling men to serve, the armies of both nations advanced and concentrated on Algidus, where they entrenched themselves, each in a separate camp. Their generals showed greater care than on any previous occasion in the construction of their lines and the exercising of the troops. The reports of this increased the alarm in Rome. In view of the fact that these two nations after their numerous defeats were now renewing the war with greater energy than they had ever done before, and, further, that a considerable number of the Romans fit for active service had been carried off by the epidemic, the senate decided upon the nomination of a Dictator. But the greatest alarm was caused by the perverse obstinacy of the consuls and their incessant wranglings in the senate. Some authorities assent that these consuls fought an unsuccessful action at Algidus and that this was the reason why a Dictator was nominated. It is at all events generally agreed that whilst at variance in other matters, they were at one in opposing the senate and preventing the appointment of a Dictator. At last, when each report that came in was more alarming than the last, and the consuls refused to accept the authority of the senate, Quintus Servilius Priscus, who had filled the highest offices in the State with distinction, said, "Tribunes of the plebs! now that matters have come to extremities, the senate calls upon you in this crisis of the commonwealth, by virtue of the authority of your office, to compel the consuls to nominate a Dictator."

On hearing this appeal, the tribunes considered that a favourable opportunity presented itself for augmenting their authority, and they retired to deliberate. Then they formally declared in the name of the whole college of tribunes that it was their determination that the consuls should bow to the will of the senate; if they offered any further opposition to the unanimous decision of that most august order, they, the tribunes, would order them to be thrown into prison. The consuls preferred defeat at the hands of the tribunes rather than

at those of the senate. If, they said, the consuls could be coerced by the tribunes in virtue of their authority, and even sent to prison - and what more than this had ever a private citizen to fear? - then the senate had betrayed the rights and privileges of the highest office in the State, and made an ignominious surrender, putting the consulship under the yoke of the tribunitian power. They could not even agree as to who should nominate the Dictator, so they cast lots and the lot fell to T. Quinctius. He nominated A. Postumius Tubertus, his father-in-law, a stern and resolute commander. The Dictator named L. Julius as the Master of the Horse. Orders were issued for a levy to be raised and for all business, legal and otherwise, to be suspended in the City, except the preparations for war. The investigation of claims for exemption from military service was postponed till the end of the war, so even in doubtful cases men preferred to give in their names. The Hernici and the Latins were ordered to furnish troops; both nations carried out the Dictator's orders most zealously.

[4.27]All these preparations were completed with extraordinary despatch. The consul Gn. Julius was left in charge of the defences of the City; L. Julius, the Master of the Horse, took command of the reserves to meet any sudden emergency, and to prevent operations from being delayed through inadequacy of supplies at the front. As the war was such a serious one, the Dictator vowed, in the form of words prescribed by the Pontifex Maximus, A. Cornelius, to celebrate the Great Games if he were victorious. He formed the army into two divisions, one of which he assigned to the consul Quinctius, and their joint force advanced up to the enemies' position. As they saw that the hostile camps were separated by a short distance from each other, they also formed separate camps, about a mile from the enemy, the Dictator fixing his in the direction of Tusculum, the consul nearer Lanuvium. The four armies had thus separate entrenched positions, with a plain between them broad enough not only for small skirmishes, but for both armies to be drawn out in battle order. Ever since the camps had confronted each other there had been no cessation of small fights, and the Dictator was quite content for his men to match their strength against the enemy, in order that through the issues of these contests they might entertain the hope of a decisive and final victory. The enemy, hopeless of winning a regular battle, determined to stake everything on the chances of a night attack on the consul's camp. The shout which suddenly arose not only

startled the consul's outposts and the whole army, but even woke the Dictator. Everything depended on prompt action; the consul showed equal courage and coolness; part of his troops reinforced the guards at the camp gates, the rest lined the entrenchments. As the Dictator's camp was not attacked, it was easier for him to see what had to be done. Supports were at once sent to the consul under Sp. Postumius Albus, lieutenant-general, and the Dictator in person with a portion of his force made for a place away from the actual fighting, from which to make an attack on the enemy's rear. He left Q. Sulpicius, lieutenant-general, in charge of the camp, and gave the command of the cavalry to M. Fabius, lieutenant-general, with orders not to move their troops before daylight, as it was difficult to handle them in the confusion of a night attack. Besides taking every measure which any other general of prudence and energy would have taken under the circumstances, the Dictator gave a striking instance of his courage and generalship, which deserves especial praise, for, on ascertaining that the enemy had left his camp with the greater part of his force, he sent M. Geganius with some picked cohorts to storm it. The defenders were thinking more of the issue of their comrades' dangerous enterprise than of taking precautions for their own safety, even their outposts and picket-duty were neglected, and he stormed and captured the camp almost before the enemy realised that it was attacked. When the Dictator saw the smoke - the agreed signal - he called out that the enemy's camp was taken, and ordered the news to be spread everywhere.

[4.28]It was now growing light and everything lay open to view. Fabius had delivered his attack with the cavalry and the consul had made a sortie against the enemy, who were now wavering. The Dictator from the other side had attacked the second line of reserves, and whilst the enemy faced about to meet the sudden charges and confused shouts, he had thrown his victorious horse and foot across their front. They were now hemmed in, and would, to a man, have paid the penalty for renewing the war, had not a Volscian, Vettius Messius, a man more distinguished by his exploits than by his pedigree, remonstrated loudly with his comrades, who were being rolled up into a helpless mass. "Are you going," he shouted, "to make yourselves a mark for the enemies' javelins, unresisting, defenceless? Why then have you got arms, why did you begin an unprovoked war; you who are ever turbulent in peace and laggards in war? What do

you expect to gain by standing here? Do you suppose that some deity will protect you and snatch you out of danger? A path must be made by the sword. Come on in the way you see me go. You who are hoping to visit your homes and parents and wives and children, come with me. It is not a wall or a stockade which is in your way; arms are met by arms. Their equals in courage, you are their superiors by force of necessity, which is the last and greatest weapon." He then rushed forward and his men followed him, raising again their battle-shout, and flung the weight of their charge where Postumius Albus had interposed his cohorts. They forced the victors back, until the Dictator came up to his retreating men, and all the battle rolled to this part of the field. The fortunes of the enemy rested solely on Messius. Many were wounded, many killed in all directions. By this time even the Roman generals were not unhurt. Postumius, whose skull was fractured by a stone, was the only one who left the field. The Dictator was wounded in the shoulder, Fabius had his thigh almost pinned to his horse, the consul had his arm cut off, but they refused to retire while the battle was undecided.

[4.29]Messius with a body of their bravest troops charged through heaps of slain and was carried on to the Volscian camp, which was not yet taken; the entire army followed. The consul followed them up in their disordered flight as far as the stockade and began to attack the camp, whilst the Dictator brought up his troops to the other side of it. The storming of the camp was just as furious as the battle had been. It is recorded that the consul actually threw a standard inside the stockade to make the soldiers more eager to assault it, and in endeavouring to recover it the first breach was made. When the stockade was torn down and the Dictator had now carried the fighting into the camp, the enemy began everywhere to throw away their arms and surrender. After the capture of this camp, the enemy, with the exception of the senators, were all sold as slaves. A part of the booty comprised the plundered property of the Latins and Hernicans, and after being identified, was restored to them, the rest the Dictator sold "under the spear". After placing the consul in command of the camp, he entered the City in triumph and then laid down his dictatorship. Some writers have cast a gloom over the memory of this glorious dictatorship by handing down a tradition that the Dictator's son, who, seeing an opportunity for fighting to advantage, had left his post against orders, was beheaded by his

father, though victorious. I prefer to disbelieve the story, and am at liberty to do so, as opinions differ. An argument against it is that such cruel displays of authority are called "Manlian" not "Postumian," for it is the first man who practiced such severity to whom the stigma would have been affixed. Moreover, Manlius received the soubriquet of "Imperiosus"; Postumius was not distinguished by any invidious epithet. The other consul, C. Julius, dedicated the temple of Apollo in his colleague's absence, without waiting to draw lots with him as to who should do it. Quinctius was very angry at this, and after he had disbanded his army and returned to the City, he laid a protest before the senate, but nothing came of it. In this year so memorable for great achievements an incident occurred which at the time seemed to have little to do with Rome. Owing to disturbances amongst the Sicilians, the Carthaginians, who were one day to be such powerful enemies, transported an army into Sicily for the first time to assist one of the contending parties.

[4.30]In the City the tribunes made great efforts to secure the election of consular tribunes for the next year, but they failed. L. Papirius Crassus and L. Julius were made consuls. Envoys came from the Aequi to ask from the senate a treaty as between independent States; instead of this they were offered peace on condition they acknowledged the supremacy of Rome; they obtained a truce for eight years. After the defeat which the Volscians had sustained on Algidus, their State was distracted by obstinate and bitter quarrels between the advocates of war and those of peace. There was quiet for Rome in all quarters. The tribunes were preparing a popular measure to fix the scale of fines, but one of their body betrayed the fact to the consuls, who anticipated the tribunes by bringing it in themselves. The new consuls were L. Sergius Fidenas, for the second time, and Hostius Lucretius Tricipitinus. Nothing worth recording took place in their consulship. They were followed by A. Cornelius Cossus, and T. Quinctius Poenus for the second time. The Veientes made inroads into the Roman territory, and it was rumoured that some of the Fidenates had taken part in them. L. Sergius, Q. Servilius, and Mamercus Aemilius were commissioned to investigate the affair. Some were interned at Ostia, as they were unable to account satisfactorily for their absence from Fidenae at that time. The number of colonists was increased, and the lands of those who had perished in the war were assigned to them.

Very great distress was caused this year by a drought. Not only was there an absence of water from the heavens, but the earth, through lack of its natural moisture, barely sufficed to keep the rivers flowing. In some cases the want of water made the cattle die of thirst round the dried-up springs and brooks, in others they were carried off by the mange. This disease spread to the men who had been in contact with them; at first it attacked the slaves and agriculturists, then the City was infected. Nor was it only the body that was affected by the pest, the minds of men also became a prey to all kinds of superstitions, mostly foreign ones. Pretended soothsayers went about introducing new modes of sacrificing, and did a profitable trade amongst the victims of superstition, until at last the sight of strange un-Roman modes of propitiating the wrath of the gods in the streets and chapels brought home to the leaders of the commonwealth the public scandal which was being caused. The aediles were instructed to see to it that none but Roman deities were worshipped, nor in any other than the established fashion. Hostilities with the Veientes were postponed till the following year, when Caius Servilius Ahala and L. Papirius Mugilanus were the consuls. Even then the formal declaration of war and the despatch of troops were delayed on religious grounds; it was considered necessary that the fetials should first be sent to demand satisfaction. There had been recent battles with the Veientes at Nomentum and Fidenae, and a truce had been made, not a lasting peace, but before the days of truce had expired they had renewed hostilities. The fetials, however, were sent, but when they presented their demands, in accordance with ancient usage, they were refused a hearing. A question then arose whether war should be declared by the mandate of the people, or whether a resolution passed by the senate was sufficient. The tribunes threatened to stop the levying of troops and succeeded in forcing the consul Quinctius to refer the question to the people. The centuries decided unanimously for war. The plebs gained a further advantage in preventing the election of consuls for the next year.

[4.31] Four consular tribunes were elected - T. Quinctius Poenus, who had been consul, C. Furius, M. Postumius, and A. Cornelius Cossus. Cossus was warden of the City, the other three after completing the levy advanced against Veii, and they showed how useless a divided command is in war. By each insisting on his own plans, when they all held different views, they gave the enemy his opportunity. For whilst

the army was perplexed by different orders, some giving the signal to advance, whilst the others ordered a retreat, the Veientes seized the opportunity for an attack. Breaking into a disorderly flight, the Romans sought refuge in their camp which was close by; they incurred more disgrace than loss. The commonwealth, unaccustomed to defeat, was plunged in grief; they hated the tribunes and demanded a Dictator; all their hopes rested on that. Here too a religious impediment was met with, as a Dictator could only be nominated by a consul. The augurs were consulted and removed the difficulty. A. Cornelius nominated Mamercus Aemilius as Dictator, he himself was appointed by him Master of the Horse. This proved how powerless the action of the censors was to prevent a member of a family unjustly degraded from being entrusted with supreme control when once the fortunes of the State demanded real courage and ability. Elated by their success, the Veientes sent envoys round to the cantons of Etruria, boasting that three Roman generals had been defeated by them in a single battle. As, however, they could not induce the national council to join them, they collected from all quarters volunteers who were attracted by the prospect of booty. The Fidenates alone decided to take part in the war, and as though they thought it impious to begin war otherwise than with a crime, they stained their weapons with the blood of the new colonists, as they had previously with the blood of the Roman ambassadors. Then they joined the Veientes. The chiefs of the two peoples consulted whether they should make Veii or Fidenae the base of operations. Fidenae appeared the more suitable; the Veientes accordingly crossed the Tiber and transferred the war to Fidenae.

[4.32]Very great was the alarm in Rome. The army, demoralised by its ill-success, was recalled from Veii; an entrenched camp was formed in front of the Colline gate, the walls were manned, the shops and law courts closed, and a cessation of all business in the Forum ordered. The whole City wore the appearance of a camp. The Dictator despatched criers through the streets to summon the anxious citizens to an Assembly. When they were gathered together he reproached them for allowing their feelings to be so swayed by slight changes of fortune that, after meeting with an insignificant reverse, due not to the courage of the enemy or the cowardice of the Roman army, but simply to want of harmony amongst the generals, they should be in a state of panic over the Veientes, who had been

defeated six times, and Fidenae, which had been captured almost more frequently than it had been attacked. Both the Romans and the enemy were the same that they had been for so many centuries, their courage, their prowess, their arms were what they had always been. They had as Dictator the same Mamercus Aemilius who at Nomentum defeated the combined forces of Veii and Fidenae supported by the Faliscans; the Master of the Horse would in future battles be the same A. Cornelius who killed Lars Tolumnius, king of Veii, before the eyes of the two armies and carried the spolia opima to the temple of Jupiter Feretrius. They must take up arms, remembering that on their side were triumphs and the spoils of victory, on the side of the enemy, the crime against the law of nations in the assassination of the ambassadors and the massacre of the colonists at Fidenae in a time of peace, a broken truce, a seventh unsuccessful revolt - remembering all this, they must take up arms. When once they were in touch with their enemy, he was confident that the guilt-stained foe would not long rejoice over the disgrace that had overtaken the Roman army, and the people of Rome would see how much better service was rendered to the republic by those who had, for the third time nominated him Dictator, than by those who had cast a slur upon his second dictatorship because he had deprived the censors of their autocratic power.

After reciting the usual vows, he marched out and fixed his camp a mile and a half on this side of Fidenae, with the hills on his right and the Tiber on his left. He ordered T. Quinctius to secure the hills and to seize, by a concealed movement, the ridge in the enemies' rear. On the following day, the Etruscans advanced to battle in high spirits at their success the previous day, which had been due rather to good luck than good fighting. After waiting a short time till the scouts reported that Quinctius had gained the height near the citadel of Fidenae, the Dictator ordered the attack and led the infantry at a quick double against the enemy. He gave instructions to the Master of the Horse not to begin fighting till he got orders; when he needed the assistance of the cavalry he would give him the signal, then he must take his part in the action, inspired by the memory of his combat with Tolumnius, of the spolia opima, and of Romulus and Jupiter Feretrius. The legions charged with great impetuosity. The Romans expressed their burning hatred in words as much as in deeds; they called the Fidenates "traitors," the Veientes "brigands,"

"breakers of truces," "stained with the horrible murder of the ambassadors and the blood of Roman colonists," "faithless as allies, cowardly as soldiers."

[4.33]The enemy were shaken at the very first onset, when suddenly the gates of Fidenae were flung open and a strange army sallied forth, never seen or heard of before. An immense multitude, armed with firebrands, and all waving blazing torches, rushed like men possessed on the Roman line. For a moment this extraordinary mode of fighting put the Romans into a fright. Then the Dictator called up the Master of the Horse with his cavalry, and sent to order Quinctius back from the hills, whilst he himself, encouraging his men, rode up to the left wing, which looked more like a conflagration than a body of combatants, and had given way through sheer terror at the flames. He shouted to them: "Are you overcome with smoke, like a swarm of bees? Will you let an unarmed enemy drive you from your ground? Will you not put the fire out with your swords? If you must fight with fire, not with arms, will you not snatch those torches away and attack them with their own weapons? Come! remember the name of Rome and the courage you have inherited from your fathers; turn this fire upon the enemies' city, and destroy with its own flames the Fidenae which you could not conciliate by your kindness. The blood of ambassadors and colonists, your fellow-countrymen, and the devastation of your borders call upon you to do this."

At the Dictator's command the whole line advanced; some of the torches were caught as they were thrown, others were wrenched from the bearers; both armies were armed with fire. The Master of the Horse, too, on his part, invented a new mode of fighting for his cavalry. He ordered his men to take the bits off the horses, and, giving his own horse his head and putting spurs to it, he was carried into the midst of the flames, whilst the other horses, urged into a hard gallop, carried their riders against the enemy. The dust they raised, mixed with the smoke, blinded both horses and men. The sight which had terrified the infantry had no terrors for the horses. Wherever the cavalry moved they left the slain in heaps. At this moment fresh shouts were heard, creating astonishment in both armies. The Dictator called out that Quinctius and his men had attacked the enemy in the rear, and on the shouts being renewed, he pressed his own attack with more vigour. When the two bodies in two distinct attacks had forced the Etruscans back both in front and rear and

hemmed them in, so that there was no way of escape either to their camp or to the hills - for in that direction the fresh enemy had intercepted them - and the horses, with their reins loose, were carrying their riders about in all directions, most of the Veientes made a wild rush for the Tiber; the survivors amongst the Fidenates made for their city. The flight of the terrified Veientes carried them into the midst of slaughter, some were killed on the banks, others were driven into the river and swept away by the current; even good swimmers were carried down by wounds and fright and exhaustion, few out of the many got across. The other body made their way through their camp to their city with the Romans in close pursuit, especially Quinctius and his men, who had just come down from the hills, and having arrived towards the close of the struggle, were fresher for the work.

[4.34]The latter entered the gates pell-mell with the enemy, and as soon as they had mounted the walls they signalled to their friends that the city was taken. The Dictator had now reached the enemies' abandoned camp, and his soldiers were anxious to disperse in quest of booty, but when he saw the signal he reminded them that there was richer spoil in the city, and led them up to the gate. Once within the walls he proceeded to the citadel, toward which he saw the crowd of fugitives rushing. The slaughter in the city was not less than there had been in the battle, until, throwing down their arms, they surrendered to the Dictator and begged that at least their lives might be spared. The city and camp were plundered. The following day the cavalry and centurions each received one prisoner, selected by lot, as their slave, those who had shown conspicuous gallantry, two; the rest were sold "under the chaplet." The Dictator led back in triumph to Rome his victorious army laden with spoil. After ordering the Master of the Horse to resign his office, he resigned office himself on the sixteenth day after his nomination, surrendering amidst peace the sovereign power which he had assumed at a time of war and danger. Some of the annalists have recorded a naval engagement with the Veientes at Fidenae, an incident as difficult as it is incredible. Even to-day the river is not broad enough for this, and we learn from ancient writers that it was narrower then. Possibly, in their desire for a vain-glorious inscription, as often happens, they magnified a gathering of ships to prevent the passage of the river into a naval victory.

[4.35]The following year had for consular tribunes A. Sempronius Atratinus, L. Quinctius Cincinnatus, L. Furius Medullinus, and L. Horatius Barbatus. A truce for eighteen years was granted to the Veientes and one for three years to the Aequi, though they had asked for a longer one. There was also a respite from civic disturbances. The following year, though not marked by either foreign war or domestic troubles, was rendered memorable by the celebration of the Games vowed on the occasion of the war seven years before, which were carried out with great magnificence by the consular tribunes, and attended by large numbers from the surrounding cities. The consular tribunes were Ap. Claudius Crassus, Spurius Nautius Rutilus, L. Sergius Fidenas, and Sex. Julius Iulus. The spectacle was made more attractive to the visitors by the courteous reception which it had been publicly decided to give them. When the Games were over, the tribunes of the plebs began to deliver inflammatory harangues. They reproached the populace for allowing their stupid admiration of those whom they really hated to keep them in perpetual servitude. Not only did they lack the courage to claim their share in the chance of preferment to the consulship, but even in the election of consular tribunes, which was open to both patricians and plebeians, they never thought of their tribunes or their party. They need be no longer surprised that no one interested himself in the welfare of the plebs. Toil and danger were incurred for those objects from which profit and honour might be expected. There was nothing which men would not attempt if rewards were held out proportionate to the greatness of the effort. But that any tribune of the plebs should rush blindly into contests which involved enormous risks and brought no advantage, which he might be certain would make the patricians whom he opposed persecute him with relentless fury, whilst amongst the plebeians on whose behalf he fought he would not be in the slightest degree more honoured, was a thing neither to be expected nor demanded. Great honours made great men. When the plebeians began to be respected, every plebeian would respect himself. Surely they might now try the experiment in one or two cases, to prove whether any plebeian is capable of holding high office, or whether it would be little short of a miracle for any one sprung from the plebs to be at the same time a strong and energetic man. After a desperate fight, they had secured the election of military tribunes with consular powers, for which plebeians were eligible. Men of tried ability, both at home and in the field, became

candidates. For the first few years they were knocked about, rejected, treated with derision by the patricians; at last they declined to expose themselves to these affronts. They saw no reason why a law should not be repealed which simply legalised what would never happen. They would have less to be ashamed of in the injustice of the law than in being passed over in the elections as though unworthy to hold office.

[4.36] Harangues of this sort were listened to with approval, and some were induced to stand for a consular tribuneship, each of them promising to bring in some measure in the interest of the plebs. Hopes were held out of a division of the State domain and the formation of colonies, whilst money was to be raised for the payment of the soldiers by a tax on the occupiers of the public land. The consular tribunes waited till the usual exodus from the City allowed a meeting of the senate to be held in the absence of the tribunes of the plebs, the members who were in the country being recalled by private notice. A resolution was passed that owing to rumours of an invasion of the Hernican territory by the Volscians the consular tribunes should go and find out what was happening, and that at the forthcoming elections consuls should be chosen. On their departure they left Appius Claudius, the son of the decemvir, to act as warden of the City, a young man of energy, and imbued from his infancy with a hatred of the plebs and its tribunes. The tribunes had nothing on which to raise a contest either with the consular tribunes, who were absent, the authors of the decree, or with Appius, as the matter had been settled.

[4.37] The consuls elected were C. Sempronius Atratinus and Q. Fabius Vibulanus. There is recorded under this year an incident which occurred in a foreign country, but still important enough to be mentioned, namely, the capture of Volturnus, an Etruscan city, now called Capua, by the Samnites. It is said to have been called Capua from their general, but it is more probable that it was so called from its situation in a champaign country (*campus*). It was after the Etruscans, weakened by a long war, had granted them a joint occupancy of the city and its territory that they seized it. During a festival, whilst the old inhabitants were overcome with wine and sleep, the new settlers attacked them in the night and massacred them. After the proceedings described in the last chapter, the above-named consuls entered on office in the middle of December. By this

time intelligence as to the imminence of a Volscian war had been received not only from those who had been sent to investigate, but also from the Latins and Hernicans, whose envoys reported that the Volscians were devoting greater energy than they had ever done before to the selection of their generals and the levying of their forces. The general cry amongst them was that either they must consign all thoughts of war to eternal oblivion and submit to the yoke, or else they must in courage, endurance, and military skill be a match for those with whom they were fighting for supremacy.

These reports were anything but groundless, but not only did the senate treat them with comparative indifference, but C. Sempronius, to whom that field of operations had fallen, imagined that as he was leading the troops of a victorious people against those whom they had vanquished, the fortune of war could never change. Trusting to this, he displayed such rashness and negligence in all his measures that there was more of the Roman discipline in the Volscian army than there was in the Roman army itself. As often happens, fortune waited upon desert. In the very first battle Sempronius made his dispositions without plan or forethought, the fighting line was not strengthened by reserves, nor were the cavalry placed in a suitable position. The war-cries were the first indication as to how the action was going; that of the enemy was more animated and sustained; on the side of the Romans the irregular, intermittent shout, growing feebler at each repetition, betrayed their waning courage. Hearing this, the enemy attacked with greater vigour, pushed with their shields and brandished their swords. On the other side their helmets drooped as the men looked round for supports; men wavered and faltered and crowded together for mutual protection; at one moment the standards while holding their ground were abandoned by the front rank, the next they retreated between their respective maniples. As yet there was no actual flight, no decided victory. The Romans were defending themselves rather than fighting, the Volscians were advancing, forcing back their line; they saw more Romans slain than flying.

[4.38]Now in all directions they were giving way; in vain did Sempronius the consul remonstrate and encourage, neither his authority nor his dignity was of any avail. They would soon have been completely routed had not Tempanius, a decurio of cavalry, retrieved by his ready courage the desperate position of affairs. He shouted to

the cavalry to leap down from their horses if they wished the commonwealth to be safe, and all the troops of cavalry followed his direction as though it were the order of the consul. "Unless," he continued, "this bucklered cohort check the enemies' attack, there is an end of our sovereignty. Follow my spear as your standard! Show Romans and Volscians alike that no cavalry are a match for you as cavalry, no infantry a match for you as infantry!" This stirring appeal was answered by shouts of approval, and he strode on, holding his spear erect. Wherever they went they forced their way; holding their bucklers in front, they made for that part of the field where they saw their comrades in the greatest difficulty; in every direction where their onset carried them, they restored the battle, and undoubtedly, if so small a body could have attacked the entire line at once, the enemy would have been routed.

[4.39]As it was impossible to check them in any direction, the Volscian commander gave a signal for a passage to be opened for this novel cohort of targeteers, until by the impetus of their charge they should be cut off from the main body. As soon as this happened, they were unable to force their way back in the same direction they had advanced, as the enemy had massed in the greatest force there. When the consul and the Roman legions no longer saw anywhere the men who had just been the shield of the whole army, they endeavoured at all risks to prevent so many brave fellows from being surrounded and overwhelmed by the enemy. The Volscians formed two fronts, in one direction they met the attack of the consul and the legions, from the opposite front they pressed upon Tempanius and his troopers. As these latter after repeated attempts found themselves unable to break through to their main body, they took possession of some rising ground, and forming a circle defended themselves, not without inflicting losses on the enemy. The battle did not terminate till nightfall. The consul too kept the enemy engaged without any slackening of the fight as long as any light remained. Night at last put an end to his indecisive action, and through ignorance as to the result such a panic seized each of the camps that both armies, thinking themselves defeated, left their wounded behind and the greater part of their baggage and retired to the nearest hills. The eminence, however, which Tempanius had seized was surrounded till after midnight, when it was announced to the enemy that their camp was abandoned. Looking upon this as a proof that their army was

defeated, they fled in all directions wherever their fears carried them in the darkness. Tempanius, fearing a surprise, kept his men together till daylight. Then he came down with a few of his men to reconnoitre, and after ascertaining from the enemies' wounded that the Volscian camp was abandoned, he joyfully called his men down and made his way to the Roman camp. Here he found a dreary solitude; everything presented the same miserable spectacle as in the enemies' camp. Before the discovery of their mistake could bring the Volscians back again, he collected all the wounded he could carry with him, and as he did not know what direction the Dictator had taken, proceeded by the most direct road to the City.

[4.40]Rumours of an unfavourable battle and the abandonment of the camp had already been brought. Most of all was the fate of the cavalry deplored, the whole community felt the loss as keenly as their families. There was general alarm throughout the City, and the consul Fabius was posting pickets before the gates when cavalry were descried in the distance. Their appearance created alarm, as it was doubtful who they were; presently they were recognised, and the fears gave place to such great joy that the City rang with shouts of congratulation at the cavalry having returned safe and victorious. People flocked into the streets out of houses which had just before been in mourning and filled with wailings for the dead; anxious mothers and wives, forgetting decorum in their joy, ran to meet the column of horsemen, each embracing her own friends and hardly able to control mind or body for joy. The tribunes of the plebs had appointed a day for the trial of M. Postumius and T. Quinctius on the ground of their ill-success at Veii, and they thought it a favourable opportunity for reviving the public feeling against them through the odium now incurred by Sempronius. Accordingly they convened the Assembly, and in excited tones declared that the commonwealth had been betrayed at Veii by their generals, and in consequence of their not having been called to account, the army acting against the Volscians had been betrayed by the consul, their gallant cavalry had been given over to slaughter, and the camp had been disgracefully abandoned. C. Junius, one of the tribunes, ordered Tempanius to be called forward. He then addressed him as follows: "Sextus Tempanius, I ask you, would you consider that the consul Caius Sempronius commenced the action at the fitting moment, or strengthened his line with supports, or discharged any of the duties

of a good consul? When the Roman legions were worsted, did you on your own authority dismount the cavalry and restore the fight? And when you and the cavalry were cut off from our main body, did the consul render any assistance or send you succour? Further, did you on the following day receive any reinforcements, or did you and the cohort force your way to the camp by your own bravery? Did you find any consul, any army in the camp, or did you find it abandoned and the wounded soldiers left to their fate? Your honour and loyalty, which have alone sustained the commonwealth in this war, require you to state these things today. Lastly, where is Caius Sempronius? where are our legions? Were you deserted, or have you deserted the consul and the army? In a word, are we defeated, or have we been victorious?"

[4.41] The speech which Tempanius made in reply is said to have been unpolished, but marked by soldierly dignity, free from the vanity of self-praise, and showing no pleasure in the inculcation of others. "It was not," he said, "a soldier's place to criticise his commander, or judge how much military skill he possessed; that was for the Roman people to do when they elected him consul. They must not therefore demand of him what tactics a commander should adopt, or what military capacity a consul should display; these were matters which even great minds and intellects would have to weigh very carefully. He could, however, relate what he saw. Before he was cut off from the main body he saw the consul fighting in the front line, encouraging his men, going to and fro between the Roman standards and the missiles of the enemy. After he, the speaker, was carried out of sight of his comrades, he knew from the noise and shouting that the combat was kept up till night; and he did not believe that a way could have been made to the eminence which he had occupied, owing to the numbers of the enemy. Where the army was he knew not; he thought that as he found protection for himself and his men at a moment of extreme peril in the nature of the ground, so the consul had selected a stronger position for his camp, to save his army. He did not believe that the Volscians were in any better plight than the Romans; the varying fortunes of the fight and the fall of night had led to all sorts of mistakes on both sides." He then begged them not to keep him any longer, as he was exhausted with his exertions and his wounds, and thereupon was dismissed amidst loud praises of his modesty no less than his courage. Whilst this was going on the

consul had reached the Labican road and was at the chapel of Quies. Wagons and draught-cattle were despatched thither from the City for the conveyance of the army, who were worn out by the battle and night march. Shortly afterwards the consul entered the City, quite as anxious to give Tempanius the praise he so well deserved as to remove the blame from his own shoulders. Whilst the citizens were mourning over their reverses and angry with their generals, M. Postumius, who as consular tribune had commanded at Veii, was brought before them for trial. He was sentenced to a fine of 10,000 "ases." His colleague, T. Quinctius, who had been successful against the Volscians under the auspices of the Dictator Postumius Tubertus, and at Fidenae as second in command under the other Dictator, Mam. Aemilius, threw all the blame for the disaster at Veii on his colleague who had been previously sentenced. He was acquitted by the unanimous vote of the tribes. It is said that the memory of his venerated father, Cincinnatus, stood him in good stead, as also did the now aged Capitolinus Quinctius, who earnestly entreated them not to allow him, with so brief a span of life left to him, to be the bearer of such sad tidings to Cincinnatus.

[4.42]The plebs elected as their tribunes, in their absence, Sex. Tempanius, A. Sellius, Sextus Antistius, and Sp. Icilius, all of whom had, on the advice of Tempanius, been selected by the cavalry to act as centurions. The exasperation against Sempronius made the very name of consul offensive, the senate therefore ordered consular tribunes to be elected. Their names were L. Manlius Capitolinus, Q. Antonius Merenda, and L. Papirius Mugilanus. At the very beginning of the year, L. Hortensius, a tribune of the plebs, appointed a day for the trial of C. Sempronius, the consul of the previous year. His four colleagues begged him, publicly, in full view of the Roman people, not to prosecute their unoffending commander, against whom nothing but ill-luck could be alleged. Hortensius was angry, for he looked upon this as an attempt to test his resolution, he regarded the entreaties of the tribunes as meant simply to save appearances, and he was convinced that it was not to these the consul was trusting, but to their interposing their veto. Turning to Sempronius he asked: "Where is your patrician spirit, and the courage which is supported by the consciousness of innocence? An ex-consul actually sheltering under the wing of the tribunes!" Then he addressed his colleagues: "You, what will you do, if I carry the prosecution through? Are you

going to deprive the people of their jurisdiction and subvert the power of the tribunes?" They replied that the authority of the people was supreme over Sempronius and over everybody else; they had neither the will nor the power to do away with the people's right to judge, but if their entreaties on behalf of their commander, who was a second father to them, proved unavailing, they would appear by his side in suppliant garb. Then Hortensius replied: "The Roman plebs shall not see its tribunes in mourning; I drop all proceedings against C. Sempronius, since he has succeeded, during his command, in becoming so dear to his soldiers." Both plebeians and patricians were pleased with the loyal affection of the four tribunes, and quite as much so with the way in which Hortensius had yielded to their just remonstrances.

[4.43] The consuls for the next year were Numerius Fabius Vibulanus and T. Quinctius Capitolinus, the son of Capitolinus. The Aequi had claimed the doubtful victory of the Volscians as their own, but fortune no longer favoured them. The campaign against them fell to Fabius, but nothing worth mention took place. Their dispirited army had but shown itself when it was routed and put to a disgraceful flight, without the consul gaining much glory from it. A triumph was in consequence refused him, but as he had removed the disgrace of Sempronius' defeat he was allowed to enjoy an ovation. As, contrary to expectation, the war had been brought to a close with less fighting than had been feared, so in the City the calm was broken by unlooked-for and serious disturbances between the plebs and the patricians. It began with the doubling of the number of quaestors. It was proposed to create in addition to the two City quaestors two others to assist the consuls in the various duties arising from a state of war. When this proposal was laid by the consuls before the senate and had received the warm support of that body, the tribunes of the plebs insisted that half the number should be taken from the plebeians; up to that time only patricians had been chosen. This demand was at first opposed most resolutely by the consuls and the senate; afterwards they yielded so far as to allow the same freedom of choice in the election of quaestors as the people already enjoyed in that of consular tribunes. As they gained nothing by this, they dropped the proposal to augment the number altogether. The tribunes took it up, and many revolutionary proposals, including the Agrarian Law, were set on foot in quick succession. In consequence

of these commotions the senate wanted consuls to be elected rather than tribunes, but owing to the veto of the tribunes a formal resolution could not be carried, and on the expiry of the consuls' year of office an interregnum followed, and even this did not happen without a tremendous struggle, for the tribunes vetoed any meeting of the patricians.

The greater part of the following year was wasted in contests between the new tribunes of the plebs and some of the interreges. At one time the tribunes would intervene to prevent the patricians from meeting together to appoint an interrex, at another they would interrupt the interrex and prevent him from obtaining a decree for the election of consuls. At last L. Papirius Mugilanus, who had been made interrex, sternly rebuked the senate and the tribunes, and reminded them that upon the truce with Veii and the dilatoriness of the Aequi, and upon these alone, depended the safety of the commonwealth, which was deserted and forgotten by men, but protected by the providential care of the gods. Should any alarm of war sound from that quarter, was it their wish that the State should be taken by surprise while without any patrician magistrate; that there should be no army, no general to enrol one? Were they going to repel a foreign war by a civil one? If both these should come together, the destruction of Rome could hardly be averted even with the help of the gods. Let them rather try to establish concord by making concessions on both sides - the patricians by allowing military tribunes to be elected instead of consuls; the tribunes of the plebs by not interfering with the liberty of the people to elect the four quaestors from patricians or plebeians indiscriminately.

[4.44]The election of consular tribunes was the first to be held. They were all patricians; L. Quinctius Cincinnatus, for the third time, L. Furius Medullinus, for the second, M. Manlius, and A. Sempronius Atratinus. The last-named conducted the election of the quaestors. Amongst other plebeian candidates were the son of Antistius, tribune of the plebs, and a brother of Sextus Pompilius, another tribune. Their authority and interest were not, however, strong enough to prevent the voters from preferring on the ground of their high birth those whose fathers and grandfathers they had seen in the consul's chair. All the tribunes of the plebs were furious, Pompilius and Antistius, more especially, were incensed at the defeat of their relations. "What," they angrily exclaimed, "is the meaning of all this?

In spite of our good offices, in spite of the wrongs done by the patricians, with all the freedom you now enjoy of exercising powers you did not possess before, not a single member of the plebs has been raised to the quaestorship, to say nothing of the consular tribuneship! The appeals of a father on behalf of a son, of a brother on behalf of a brother, have been unavailing, though they are tribunes, invested with an inviolable authority to protect your liberties. There has certainly been dishonesty somewhere; A. Sempronius has shown more adroitness than straightforwardness." They accused him of having kept their men out of office by illegal means. As they could not attack him directly, protected as he was by his innocence and his official position, they turned their resentment against Caius Sempronius, the uncle of Atratinus, and having obtained the support of their colleague, M. Canuleius, they impeached him upon the ground of the disgrace incurred in the Volscian war.

These same tribunes frequently mooted the question in the senate of a distribution of the public domain, a proposal which C. Sempronius always stoutly resisted. They thought, and rightly as the event proved, that when the day of trial came, he would either abandon his opposition and so lose influence with the patricians, or by persisting in it give offence to the plebeians. He chose the latter, and preferred to incur the odium of his opponents and injure his own cause than prove false to the cause of the State. He insisted that "there should be no grants of land, which would only increase the influence of the three tribunes; what they wanted now was not land for the plebs, but to wreak their spite upon him. He, like others, would meet the storm with a stout heart; neither he nor any other citizen ought to stand so high with the senate that any leniency shown to an individual might be disastrous to the commonwealth." When the day of trial came there was no lowering of his tone, he undertook his own defence, and though the patricians tried every means to soften the plebeians, he was condemned to pay a fine of 15,000 "ases." In this same year Postumia, a Vestal virgin, had to answer a charge of unchastity. Though innocent, she had given grounds for suspicion through her gay attire and unmaidenly freedom of manner. After she had been remanded and finally acquitted, the Pontifex Maximus, in the name of the whole college of priests, ordered her to abstain from frivolity and to study sanctity rather than smartness in her appearance. In the

same year, Cumae, at that time held by the Greeks, was captured by the Campanians.

[4.45] The following year had as consular tribunes Agrippa Menenius Lanatus, P. Lucretius Tricipitinus, and Spurius Nautius Rutilus. Thanks to the good fortune of Rome, the year was marked by serious danger more than by actual disaster. The slaves had formed a plot to fire the City in various spots, and whilst the people were everywhere intent on saving their houses, to take armed possession of the Capitol. Jupiter frustrated their nefarious project; two of their number gave information, and the actual culprits were arrested and punished. The informers received a reward of 10,000 "ases" - a large sum in those days - from the public treasury, and their freedom. After this the Aequi began to prepare for a renewal of hostilities, and it was reported on good authority at Rome that a new enemy, the Labicans, were forming a coalition with their old foes. The commonwealth had come to look upon hostilities with the Aequi as almost an annual occurrence. Envoys were sent to Labici. The reply they brought back was evasive; it was evident that whilst there were no immediate preparations for war, peace would not last long. The Tuscans were requested to be on the watch for any fresh movement on the part of the Labicans. The consular tribunes for the following year were Lucius Sergius Fidenas, M. Papirius Mugilanus, and C. Servilius, the son of the Priscus in whose dictatorship Fidenae had been taken. At the very beginning of their term of office, envoys came from Tusculum and reported that the Labicans had taken up arms and in conjunction with the Aequi had, after ravaging the Tusculan territory, fixed their camp on Algidus. War was thereupon proclaimed and the senate decreed that two tribunes should leave for the war, and one remain in charge of the City. This at once led to a quarrel amongst the tribunes. Each urged his superior claims to command in the war and looked down upon the charge of the City as distasteful and inglorious. Whilst the senators were watching with astonishment this unseemly strife amongst colleagues, Q. Servilius said, "Since no respect is shown either to this House or to the State, the authority of a father shall put an end to this altercation. My son, without having recourse to lots, shall take charge of the City. I trust that those who are so anxious for the command in the war will conduct it in a more considerate and amicable spirit than they have shown in their eagerness to obtain it."

[4.46]It was decided that the levy should not be raised from the whole population indiscriminately; ten tribes were drawn by lot; from these the two tribunes enlisted the men of military age and led them to the war. The quarrels which had begun in the City became much more heated in the camp through the same eagerness to secure the command. They agreed on no single point, they fought for their own opinions, each wanted his own plans and orders carried out exclusively, they felt mutual contempt for each other. At length, through the remonstrances and reproofs of the lieutenants-general, matters were so far arranged that they agreed to hold the command in chief on alternate days. When this state of things was reported at Rome it is said that Q. Servilius, taught by years and experience, offered up a solemn prayer that the disagreement of the tribunes might not prove more hurtful to the State than it had been at Veii; then, as though disaster were undoubtedly impending, he urged his son to enrol troops and prepare arms. He was not a false prophet.

It happened to be the turn of L. Sergius to hold command, and the enemy by a pretended flight had drawn his troops on to unfavourable ground close to their camp, in the vain hope of storming it. Then the Aequi made a sudden charge and drove them down a steep valley where numbers were overtaken and killed in what was not so much a flight as a tumbling over each other. It was with difficulty that they held their camp that day; the next day, after the enemy had surrounded a considerable part of it, they evacuated it in a disgraceful flight through the rear gate. The commanders and lieutenants-general and as much of the army as remained with the standards made for Tusculum, the others, straggling in all directions through the fields, hurried on to Rome and spread the news of a more serious defeat than had been actually incurred. There was less consternation felt because the result was what every one had feared and the reinforcements which they could look to in the hour of danger had been got ready beforehand by the consular tribune. By his orders, after the excitement had been allayed by the inferior magistrates, scouting parties were promptly sent out to reconnoitre, and they reported that the generals and the army were at Tusculum, and that the enemy had not shifted his camp. What did most to restore confidence was the nomination, by a senatorial decree, of Q. Servilius Priscus as Dictator. The citizens had had previous experience of his political foresight in many stormy crises, and the issue of this war

afforded a fresh proof, for he alone suspected danger from the differences of the tribunes before the disaster occurred. He appointed as his Master of the Horse the tribune by whom he had been nominated Dictator, namely, his own son. This at least is the statement of some authorities, others say that Ahala Servilius was Master of the Horse that year. With his fresh army he proceeded to the seat of war, and after recalling the troops who were at Tusculum, he selected a position for his camp two miles distant from the enemy.

[4.47]The arrogance and carelessness which the Roman generals had shown had now passed over to the Aequi in the hour of their success. The result appeared in the very first battle. After shaking the enemies' front with a cavalry charge, the Dictator ordered the standards of the legions to be rapidly advanced, and as one of his standard-bearers hesitated, he slew him. So eager were the Romans to engage that the Aequi did not stand the shock. Driven from the field in headlong flight they made for their camp; the storming of the camp took less time and involved less fighting than the actual battle. The spoils of the captured camp the Dictator gave up to the soldiers. The cavalry who had pursued the enemy as they fled from the camp brought back intelligence that the whole of the defeated Labicans and a large proportion of the Aequi had fled to Labici. On the morrow the army marched to Labici, and after the town was completely invested it was captured and plundered. After leading his victorious army home, the Dictator laid down his office just a week after he had been appointed. Before the tribunes of the plebs had time to get up an agitation about the division of the Labican territory, the senate in a full meeting passed a resolution that a body of colonists should be settled at Labici. One thousand five hundred colonists were sent, and each received two jugera of land. In the year following the capture of Labici the consular tribunes were Menenius Lanatus, L. Servilius Structus, P. Lucretius Tricipitinus - each for the second time - and Spurius Veturius Crassus. For the next year they were A. Sempronius Atratinus - for the third time - and M. Papirius Mugilanus and Sp. Nautius Rutilus - each for the second time. During these two years foreign affairs were quiet, but at home there were contentions over the agrarian laws.

[4.48]The fomenters of the disturbance were Sp. Maecilius, who was tribune of the plebs for the fourth time, and M. Metilius, tribune for the third time; both had been elected in their absence. They brought

forward a measure providing that the territory taken from an enemy should be assigned to individual owners. If this were passed the fortunes of a large number of the nobility would be confiscated. For as the City itself was founded upon foreign soil, it possessed hardly any territory which had not been won by arms, or which had become private property by sale or assignment beyond what the plebeians possessed. There seemed every prospect of a bitter conflict between the plebs and the patricians. The consular tribunes, after discussing the matter in the senate and in private gatherings of patricians, were at a loss what to do, when Appius Claudius, the grandson of the old decemvir and the youngest senator present, rose to speak. He is represented as saying that he was bringing from home an old device well known to his house. His grandfather, Appius Claudius, had pointed out to the senate the only way of breaking down the power of the tribunes, namely, through the interposition of their colleagues' veto. Men who had risen from the masses were easily induced to change their opinions by the personal authority of the leaders of the State if only they were addressed in language suitable to the occasion rather than to the rank of the speaker. Their feelings changed with their fortunes. When they saw that those of their colleagues who were the first to propose any measure took the whole credit of it with the plebs and left no place for them, they would feel no hesitation in coming over to the cause of the senate, and so win the favour not only of the leaders but of the whole order. His views met with universal approval; Q. Servilius Priscus was the first to congratulate the youth on his not having degenerated from the old Claudian stock. The leaders of the senate were charged to persuade as many tribunes as they could to interpose their veto. After the close of the sitting they canvassed the tribunes. By the use of persuasion, warning, and promises, they showed how acceptable that action would be to them individually and to the whole senate. They succeeded in bringing over six.

The next day, in accordance with a previous understanding, the attention of the senate was drawn to the agitation which Maecilius and Metilius were causing by proposing a bribe of the worst possible type. Speeches were delivered by the leaders of the senate, each in turn declaring that he was unable to suggest any course of action, and saw no other resource but the assistance of the tribunes. To the protection of that power the State in its embarrassment, like a private

citizen in his helplessness, fled for succour. It was the glory of the tribunes and of the authority they wielded that they possessed as much strength to withstand evil-minded colleagues as to harass the senate and create dissension between the two orders. Cheers arose from the whole senate and the tribunes were appealed to from every quarter of the House. When silence was restored, those tribunes who had been won over made it clear that since the senate was of opinion that the proposed measure tended to the break-up of the republic, they should interpose their veto on it. They were formally thanked by the senate. The proposers of the measure convened a meeting in which they showered abuse on their colleagues, calling them "traitors to the interests of the plebs" and "slaves of the consulars," with other insulting epithets. Then they dropped all further proceedings.

[4.49]The consular tribunes for the following year were P. Cornelius Cossus, C. Valerius Potitus, Q. Quinctius Cincinnatus, and Numerius Fabius Vibulanus. There would have been two wars this year if the Veientine leaders had not deferred hostilities owing to religious scruples. Their lands had suffered from an inundation of the Tiber chiefly through the destruction of their farm buildings. The Bolani, a people of the same nationality as the Aequi, had made incursions into the adjoining territory of Labici and attacked the newly-settled colonists, in the hope of averting the consequences by receiving the unanimous support of the Aequi. But the defeat they had sustained three years before made them disinclined to render assistance; the Bolani, abandoned by their friends, lost both town and territory after a siege and one trifling engagement in a war which is not even worth recording. An attempt was made by L. Sextius, a tribune of the plebs, to carry a measure providing that colonists should be sent to Bolae as they had been to Labici, but it was defeated by the intervention of his colleagues, who made it clear that they would not allow any resolution of the plebs to take effect except on the authorisation of the senate.

The consular tribunes for the following year were Cnaeus Cornelius Cossus, L. Valerius Potitus, Q. Fabius Vibulanus - for the second time - and M. Postumius Regillensis. The Aequi recaptured Bolae and strengthened the town by introducing fresh colonists. The war against the Aequi was entrusted to Postumius, a man of violent and obstinate temper, which, however, he displayed more in the hour of victory than during the war. After marching with his hastily-raised

army to Bolae and crushing the spirit of the Aequi in some insignificant actions, he at length forced his way into the town. Then he diverted the contest from the enemy to his own fellow-citizens. During the assault he had issued an order that the plunder should go to the soldiers, but after the capture of the town he broke his word. I am led to believe that this was the real ground for the resentment felt by the army rather than that in a city which had been recently sacked and where a new colony had been settled, the amount of booty was less than the tribune had given out. After he had returned to the City on the summons of his colleagues owing to the commotions excited by the tribunes of the plebs, the feeling against him was intensified by a stupid and almost insane utterance in a meeting of the Assembly. Sextius was introducing an agrarian law, and stated that one of its provisions was that colonists be settled at Bolae. "Those," he said, "who had captured Bolae deserved that the city and its territory should belong to them." Postumius exclaimed, "It will be a bad thing for my soldiers if they do not keep quiet." This exclamation was quite as offensive to the senators, when they heard of it, as it was to the Assembly. The tribune of the plebs was a clever man and not a bad speaker; he had now got amongst his opponents a man of insolent temper and hot tongue, whom he could irritate and provoke into saying things which would bring odium not only upon himself, but upon his cause and upon the whole of his order. There was no one amongst the consular tribunes whom he oftener drew into argument before the Assembly than Postumius. After the above quoted coarse and brutal utterance Sextius said, "Do you hear, Quirites, this man threatening his soldiers with punishment, as if they were slaves? Shall this monster appear in your eyes more worthy of his high office than the men who are trying to send you out as colonists to receive as a free gift city and land, and provide a resting-place for your old age; who are fighting gallantly for your interests against such savage and insolent opponents? Now you can begin to wonder why it is that so few take up your cause. What have they to hope for from you? Is it high office? You would rather confer it on your opponents than on the champions of the Roman people. You broke out into indignant murmurs just now when you heard what this man said. What difference does it make? If you had to give your votes now, you would prefer this man who threatens you with punishment to those who want to secure for you lands and houses and property."

[4.50]When this exclamation of Postumius was reported to the soldiers it aroused much more indignation in the camp. "What!" they said, "is the embezzler of the spoils, the robber, actually threatening his soldiers with punishment?" Open as the expressions of resentment were, the quaestor P. Sestius still thought that the excitement could be repressed by the same exhibition of violence by which it had been aroused. A lictor was sent to a soldier who was shouting, this led to uproar and disorder. The quaestor was struck by a stone and got out of the crowd, the man who had hurt him exclaimed that the quaestor had got what the commander had threatened the soldiers. Postumius was sent for to deal with the outbreak; he aggravated the general irritation by the ruthless way in which he made his investigations and the cruelty of the punishments he inflicted. At last, when his rage exceeded all bounds, and a crowd had gathered at the cries of those whom he had ordered to be put to death "under the hurdle," he rushed down from his tribunal in a frenzy to those who were interrupting the execution; the lictors and centurions tried in all directions to disperse the crowd, and drove them to such a pitch of exasperation that the tribune was overwhelmed beneath a shower of stones from his own army. When this dreadful deed was reported at Rome, the consular tribunes urged the senate to order an inquiry into the circumstances of the death of their colleague, but the tribunes of the plebs interposed their veto. That matter was closely connected with another subject of dispute. The senate were apprehensive lest the plebeians, either through dread of an investigation or from feelings of resentment, should elect the consular tribunes from their own body, and they did their utmost accordingly to secure the election of consuls. As the tribunes of the plebs would not allow the senate to pass a decree, and also vetoed the election of consuls, matters passed to an interregnum. The victory rested finally with the senate.

[4.51]Q. Fabius Vibulanus, as interrex, presided over the elections. The consuls elected were A. Cornelius Cossus and L. Furius Medullinus. At the beginning of their year of office, a resolution was adopted by the senate empowering the tribunes to bring before the plebs at the earliest possible date the subject of an inquiry into the circumstances of the death of Postumius, and allowing the plebs to choose whom they would to preside over the inquiry. The plebs by a unanimous vote left the matter to the consuls. They discharged their

task with the greatest moderation and clemency; only a few suffered punishment, and there are good grounds for believing that these died by their own hands. They were quite unable, however, to prevent their action from being bitterly resented by the plebeians, who complained that whilst measures brought forward in their own interests were abortive, one which involved the punishment and death of members of their order was meanwhile passed and put into immediate execution. After justice had been meted out for the mutiny, it would have been a most politic step to appease their resentment by distributing the conquered territory of Bolae. Had the senate done this they would have lessened the eagerness for an agrarian law which proposed to expel the patricians from their unjust occupation of the State domains. As it was, the sense of injury was all the keener because the nobility were not only determined to keep the public land, which they already held, by force, but actually refused to distribute the vacant territory recently conquered, which would soon, like everything else, be appropriated by a few. During this year the consul Furius led the legions against the Volscians, who were ravaging the Hernican territory. As they did not find the enemy in that quarter they advanced against Ferentinum, to which place a large number of Volscians had retreated, and took it. There was less booty there than they had expected to find, for as there was little hope of defending the place, the Volscians carried off their property and evacuated it by night. The next day, when captured, it was almost deserted. The town and its territory were given to the Hernici.

[4.52] This year which, owing to the moderation of the tribunes, had been free from disturbances, was followed by one in which L. Icilius was tribune, the consuls being Q. Fabius Ambustus and C. Furius Pacilus. At the very beginning of the year he took up the work of agitation, as though it were the allotted task of his name and family, and announced proposals for dealing with the land question. Owing to the outbreak of a pestilence which, however, created more alarm than mortality, the thoughts of men were diverted from the political struggles of the Forum to their homes and the necessity of nursing the sick. The pestilence was regarded as less baneful than the agrarian agitation would have been. The community escaped with very few deaths considering the very large number of cases. As usually happens, the pestilence brought a famine the following year, owing to the fields lying uncultivated. The new consuls were M. Papirius

Atratinus and C. Nautius Rutilus. The famine would have been more fatal than the pestilence had not the scarcity been relieved by the despatch of commissioners to all the cities lying on the Etruscan sea and the Tiber. The Samnites, who occupied Capua and Cumae, refused in insolent terms to have any communication with the commissioners; on the other hand, assistance was generously given by the Sicilian Tyrant. The largest supplies were brought down the Tiber, through the ungrudging exertions of the Etruscans. In consequence of the prevalence of sickness in the republic, the consuls found hardly any men available; as only one senator could be obtained for each commission, they were compelled to attach two knights to it. Apart from the pestilence and the famine, there was no trouble either at home or abroad during these two years, but as soon as these causes of anxiety had disappeared, all the usual sources of disturbance in the commonwealth - dissensions at home, wars abroad - broke out afresh.

[4.53]Manlius Aemilius and C. Valerius Potitus were the new consuls. The Aequi made preparations for war, and the Volscians, without the sanction of their government, took up arms and assisted them as volunteers. On the report of these hostile movements - they had already crossed over into the Latin and Hernican territories - the consul Valerius commenced to levy troops. He was obstructed by M. Menenius, the proposer of an agrarian law, and under the protection of this tribune, no one who objected to serve would take the oath. Suddenly the news came that the citadel of Carventum had been seized by the enemy. This humiliation gave the senate an opening for stirring up popular resentment against Menenius, while it afforded to the other tribunes, who were already prepared to veto his agrarian law, stronger justification for opposing their colleague. A long and angry discussion took place. The consuls called gods and men to witness that Menenius by obstructing the levy was solely responsible for whatever defeat and disgrace at the hands of the enemy had already been incurred or was imminent. Menenius on the other hand loudly protested that if those who occupied the public land would give up their wrongful possession of it, he would place no hindrance in the way of the levy. The nine tribunes put an end to the quarrel by interposing a formal resolution and declaring that it was the intention of the college to support the consul, in spite of their colleague's veto, whether he imposed fines or adopted other modes of coercion on

those who refused to serve in the field. Armed with this decree the consul ordered a few who were claiming the tribune's protection to be seized and brought before him; this cowed the rest and they took the oath.

The army was marched to the citadel of Carventum, and though disaffected and embittered against the consul, they no sooner arrived at the place than they drove out the defenders and recaptured the citadel. The attack was facilitated by the absence of some of the garrison, who had through the laxity of their generals stolen away on a plundering expedition. The booty which had been gathered in their incessant raids and stored here for safety was considerable. This the consul ordered to be sold "under the spear," the proceeds to be paid by the quaestors into the treasury. He announced that the army would only have a share in the spoils when they had not declined to serve. This increased the exasperation of the plebs and the soldiers against the consul. The senate decreed him an "ovation," and whilst he made his formal entry into the City, rude verses were bandied by the soldiers with their accustomed licence in which the consul was abused and Menenius extolled in alternate couplets, whilst at every mention of the tribune the voices of the soldiers were drowned in the cheers and applause of the bystanders. This latter circumstance occasioned more anxiety to the senate than the licence of the soldiers, which was almost a regular practice, and as there was no doubt that if Menenius became a candidate he would be elected as a consular tribune, he was shut out by the election of consuls.

[4.54]The two who were elected were Cnaeus Cornelius Cossus and L. Furius Medullinus. On no other occasion had the plebs been more indignant at not being allowed to elect consular tribunes. They showed their indignation in the election of quaestors, and they had their revenge, for that was the first time that plebeians were elected quaestors, and so far did they carry their resentment, that out of the four who were elected one place only was left open for a patrician, viz., Kaeso Fabius Ambustus. The three plebeians, Q. Silius, P. Aelius, and P. Pupius, were chosen in preference to scions of the most illustrious families. It was the Icili, I find, who induced the people to show this independence at the poll; that family was most bitter against the patricians, and three of its members were elected tribunes for this year by holding out hopes of numerous important reforms on which the people had set their hearts. They declared that

they would not take a single step if the people had not sufficient courage even in electing quaestors to secure the end which they had long desired and which the laws had put within their reach, seeing that this was the only office which the senate had left open to patricians and plebeians alike. The plebeians regarded this as a splendid victory; they valued the quaestorship not by what it was in itself, but as opening the path for men who had risen from the ranks to consulships and triumphs. The patricians on the other hand were indignant; they felt that they were not so much giving a share of the honours of the State as losing them altogether. "If," they said, "this is the state of things, children must no longer be reared, since they will only be banished from the station their ancestors filled, and whilst seeing others in possession of the dignity which is theirs by right, they will be left, deprived of all authority and power, to act as *Salii* or *Flamens*, with no other duty than that of offering sacrifices for the people." Both parties were exasperated, and as the spirit of the plebs was rising and they had three leaders bearing a name illustrious in the popular cause, the patricians saw that the results of all the elections would be the same as that for quaestors in which the plebs had a free choice. They exerted themselves, therefore, to secure the election of consuls, which was not yet open to both orders; whilst the *Icili* on the other hand said that consular tribunes must be elected, and that the highest honours must sooner or later be shared by the plebs.

[4.55] But so far no action had been taken by the consuls to give an opening for obstruction and the wresting of the desired concessions from the patricians. By a marvellous piece of good luck, news came that the *Volscians* and *Aequi* had made a predatory inroad into the *Latin* and *Hernican* territories. The senate decreed a levy for this war, but when the consuls began to raise it the tribunes vigorously opposed them, and declared that they themselves and the plebs had now got their opportunity. There were three of them, all very energetic, who might be considered of good family as far as plebeians could be. Two of them assumed the task of keeping a close watch on each of the consuls; to the third was assigned the duty of alternately restraining and urging on the plebeians by his harangues. The consuls could not get through with the levy, nor the tribunes with the election which they were so anxious for. Fortune at last took the side of the plebs, for tidings came that whilst the troops who were holding the

citadel of Carventum were dispersed in quest of plunder, the Aequi had attacked it, and after killing the few left on guard, had cut to pieces some who were hastening back and others whilst straggling in the fields. This incident, so unfortunate for the State, strengthened the hands of the tribunes. Fruitless attempts were made to induce them in this emergency to desist from opposing the war, but they would not give way either in view of the threatening danger to the State or the odium which might fall upon themselves, and finally succeeded in forcing the senate to pass a decree for the election of consular tribunes. It was, however, expressly stipulated that none of the present tribunes of the plebs should be eligible for that post, or should be re-elected as plebeian tribunes for the next year. This was undoubtedly aimed at the Icili, whom the senate suspected of aiming at the consulship as a reward for their exertions as tribunes. Then, with the consent of both orders, the levy was raised and preparations for war commenced. Authorities differ as to whether both consuls proceeded to the citadel of Carventum, or whether one remained behind to conduct the elections. There is no dispute, however, as to the Romans retiring from the citadel of Carventum after a long and ineffectual siege, and recovering Verrugo after committing great depredations and securing much booty in both the Volscian and Aequian territories.

[4.56]At Rome, whilst the plebs had been so far victorious as to secure the election which they preferred, the result of that election was a victory for the senate. Contrary to all expectation, three patricians were elected consular tribunes, viz., C. Julius Julus, P. Cornelius Cossus, and C. Servilius Ahala. It was stated that the patricians had recourse to a trick; the Icili actually accused them of it at the time. They were charged with having introduced a crowd of unsuitable candidates amongst those who were worthy of being elected, and the disgust felt at the notoriously low character of some of these candidates alienated the people from the plebeian candidates as a body. After this a report was received that the Volscians and Aequi were devoting their utmost energies to getting ready for war. Either the fact that they had kept possession of the citadel of Carventum had raised their hopes, or the loss of the detachment at Verrugo had roused their ire. The Antiates were stated to be the prime movers; their ambassadors had gone the round of the cities of both nations reproaching them with cowardice in having skulked

behind their walls the year before and allowing the Romans to harry their fields in all directions and the garrison at Verrugo to be destroyed. Not only were armies despatched, but even colonists were being settled in their territories. Not only had the Romans distributed their property amongst themselves, but they had even made a present to the Hernici of Ferentinum, after they had taken it. These reproaches kindled the war spirit in each city as they came to it, and a large number of fighting men were enrolled. A force gathered from all the States was concentrated at Antium; there they fixed their camp and awaited the enemy. These proceedings were reported at Rome, and created greater excitement than the facts warranted, and the senate at once ordered a Dictator to be nominated - the last resource in imminent danger. It is stated that Julius and Cornelius were extremely angry at this step, and matters proceeded amidst much bitterness on both sides. The leaders of the senate censured the consular tribunes for not recognising the authority of the senate, and finding their protests useless, actually appealed at last to the tribunes of the plebs and reminded them how on a similar occasion their authority had acted as a check on the consuls. The tribunes, delighted at the dissension amongst the senators, said that they could render no assistance to those in whose eyes they were not regarded as citizens or even as men. If the honours of the State were ever open to both orders, and they had their share in the government, then they would take measures to prevent the decisions of the senate from being nullified by the arrogance of any magistrate; till then the patricians, devoid as they were of any respect for magistrates or laws, might deal with the consular tribunes by themselves

[4.57] This controversy preoccupied men's thoughts at a most inopportune moment, when such a serious war was on their hands. At last, after Julius and Cornelius had, one after the other, argued at great length that as they were quite competent to conduct that war, it was unjust to deprive them of the honour which the people had conferred upon them, Ahala Servilius, the other consular tribune, intervened in the dispute. He had, he said, kept silent so long, not because he had any doubt in his own mind, - for what true patriot could separate his own interest from that of the State? - but because he would rather have had his colleagues yield voluntarily to the authority of the senate than allow the power of the plebeian tribunes to be invoked against them. Even now he would have gladly given

them time to abandon their unyielding attitude if circumstances allowed. But the necessities of war do not wait on the counsels of men, and the commonwealth was more to him than the goodwill of his colleagues. If, therefore, the senate adhered to its decision, he would nominate a Dictator the next night, and if any one vetoed the passing of a senatorial decree he should be content to act simply on their resolution. By taking this course he won the well-deserved praise and sympathy of all, and after nominating P. Cornelius as Dictator, he was himself appointed Master of the Horse. He furnished an example to his colleagues, as they compared his position with their own, of the way in which high office and popularity come sometimes most readily to those who do not covet them. The war was far from being a memorable one. The enemy were defeated with great slaughter at Antium in a single easily-won battle. The victorious army devastated the Volscian territory. The fort at Lake Fucinus was stormed, and the garrison of 3000 men taken prisoners, whilst the rest of the Volscians were driven into their walled towns, leaving their fields at the mercy of the enemy. After making what use he could of Fortune's favours in the conduct of the war, the Dictator returned home with more success than glory and laid down his office. The consular tribunes waived all proposals for the election of consuls - owing, I believe, to their resentment at the appointment of a Dictator - and issued orders for the election of consular tribunes. This increased the anxiety of the senators, for they saw that their cause was being betrayed by men of their own party. Accordingly, as in the previous year they had excited disgust against all plebeian candidates, however worthy, by means of those who were perfectly worthless, so now the leaders of the senate appeared as candidates, surrounded by everything that could lend distinction or strengthen personal influence. They secured all the places and prevented the entrance of any plebeian. Four were elected, all of whom had previously held office, viz., L. Furius Medullinus, C. Valerius Potitus, N. Fabius Vibulanus, and C. Servilius Ahala. The latter owed his continuance in office to the popularity he had won by his singular moderation as much as to his other merits.

[4.58]During this year the armistice with Veii expired, and ambassadors and fetials were sent to demand satisfaction. When they reached the frontier they were met by a deputation from Veii, who begged them not to go there before they themselves had an audience

of the Roman senate. They obtained from the senate the withdrawal of the demand for satisfaction, owing to the internal troubles from which Veii was suffering. So far were the Romans from seeking their opportunity in the misfortunes of others! A disaster was incurred on Volscian ground in the loss of the garrison at Verrugo. So much depended here upon a few hours that the soldiers who were being besieged by the Volscians and begging for assistance could have been relieved if prompt measures had been taken. As it was, the relieving force only arrived in time to surprise the enemy, who, fresh from the massacre of the garrison, were scattered in quest of plunder. The responsibility for the delay rested more with the senate than with the consular tribunes; they heard that the garrison were offering a most determined resistance, and they did not reflect that there are limits to human strength which no amount of courage can transcend. The gallant soldiers were not unavenged either in their lives or their deaths.

The following year the consular tribunes were P. Cornelius Cossus, Cnaeus Cornelius Cossus, Numerius Fabius Ambustus, and L. Valerius Potitus. Owing to the action of the senate of Veii, a war with that city was threatened. The envoys whom Rome had sent to demand satisfaction received the insolent reply that unless they speedily departed from the city and crossed the frontiers the Veientes would give them what Lars Tolumnius had given. The senate were indignant and passed a decree that the consular tribunes should bring before the people at the earliest possible day a proposal to declare war against Veii. No sooner was the subject brought forward than the men who were liable for service protested. They complained that the war with the Volscians had not been brought to a close, the garrisons of two forts had been annihilated, and the forts, though recaptured, were held with difficulty, there was not a single year in which there was not fighting, and now, as if they had not enough work on hand, they were preparing for a fresh war with a most powerful neighbour who would rouse the whole of Etruria. This disaffection amongst the plebs was fanned by their tribunes, who were continually giving out that the most serious war was the one going on between the senate and the plebs, who were purposely harassed by war and exposed to be butchered by the enemy and kept as it were in banishment far from their homes lest the quiet of city life might awaken memories of their liberties and lead them to discuss

schemes for distributing the State lands amongst colonists and securing a free exercise of their franchise. They got hold of the veterans, counted up each man's campaigns and wounds and scars, and asked what blood was still left in him which could be shed for the State. By raising these topics in public speeches and private conversations they produced amongst the plebeians a feeling of opposition to the projected war. The subject was therefore dropped for the time, as it was evident that in the then state of opinion it would, if brought forward, be rejected.

[4.59] Meantime the consular tribunes decided to lead the army into the territory of the Volscians; Cnaeus Cornelius was left in charge of the City. The three tribunes ascertained that there was no camp of the Volscians anywhere, and that they would not risk a battle, so they divided into three separate forces to ravage the country. Valerius made Antium his objective; Cornelius, Ecetrae. Wherever they marched they destroyed the homesteads and crops far and wide to divide the forces of the Volscians. Fabius marched to Anxur, which was the chief objective, without losing time in devastating the country. This city is now called Terracina; it was built on the side of a hill and sloped down to the marshes. Fabius made a show of attacking the city on that side. Four cohorts were despatched with C. Servilius Ahala by a circuitous route to seize the hill which overhung the town on the other side. After doing so they made an attack amidst loud shouts and uproar from their higher position upon that part of the town where there was no defence. Those who were holding the lower part of the city against Fabius were stupefied with astonishment at the noise, and this gave him time to plant his scaling ladders. The Romans were soon in all parts of the city, and for some time a ruthless slaughter went on of fugitives and fighters, armed and unarmed alike. As there was no hope of quarter, the defeated enemy were compelled to keep up the fight, till suddenly an order was issued that none but those taken with arms should be injured. On this the whole of the population threw down their arms; prisoners to the number of 2500 were taken. Fabius would not allow his men to touch the other spoils of war until the arrival of his colleagues, for those armies too had taken their part in the capture of Anxur, since they had prevented the Volscians from coming to its relief. On their arrival the three armies sacked the town, which, owing to its long-continued prosperity, contained much wealth. This generosity on the

part of the generals was the first step towards the reconciliation of the plebs and the senate. This was followed by a boon which the senate, at a most opportune moment, conferred on the plebeians. Before the question was mooted either by the plebs or their tribunes, the senate decreed that the soldiery should receive pay from the public treasury. Previously, each man had served at his own expense.

[4.60]Nothing, it is recorded, was ever welcomed by the plebs with such delight; they crowded round the Senate-house, grasped the hands of the senators as they came out, acknowledged that they were rightly called "Fathers," and declared that after what they had done no one would ever spare his person or his blood, as long as any strength remained, for so generous a country. They saw with pleasure that their private property at all events would rest undisturbed at such times as they were impressed and actively employed in the public service, and the fact of the boon being spontaneously offered, without any demand on the part of their tribunes, increased their happiness and gratitude immensely. The only people who did not share the general feeling of joy and goodwill were the tribunes of the plebs. They asserted that the arrangement would not turn out such a pleasant thing for the senate or such a benefit to the whole community as they supposed. The policy was more attractive at first sight than it would prove in actual practice. From what source, they asked, could the money be raised; except by imposing a tax on the people? They were generous at other people's expense. Besides, those who had served their time would not, even if the rest approved, permit others to serve on more favourable terms than they themselves had done and after having had to provide for their own expenses, now provide for those of others. These arguments influenced some of the plebeians. At last, after the tax had been imposed, the tribunes actually gave notice that they would protect any one who refused to contribute to the war tax. The senators were determined to uphold a measure so happily inaugurated, they were themselves the first to contribute, and as coined money was not yet introduced, they carried the copper by weight in wagons to the treasury, thereby drawing public attention to the fact of their contributing. After the senators had contributed most conscientiously the full amount at which they were assessed, the leading plebeians, personal friends of the nobles, began, as had been agreed, to pay in their share. When the crowd saw these men

applauded by the senate and looked up to by the men of military age as patriotic citizens, they hastily rejected the proffered protection of the tribunes and vied with one another in their eagerness to contribute. The proposal authorising the declaration of war against Veii was carried, and the new consular tribunes marched thither an army composed to a large extent of men who volunteered for service.

[4.61] These tribunes were T. Quinctius Capitolinus, Q. Quinctius Cincinnatus, C. Julius Julus - for the second time - Aulus Manlius, L. Furius Medullinus - or the third time - and Manius Aemilius Mamercus. It was by them that Veii was first invested. Immediately after the siege had commenced, a largely-attended meeting of the national council of the Etruscans was held at the fane of Voltumna, but no decision was arrived at as to whether the Veientes should be defended by the armed strength of the whole nation. The following year the siege was prosecuted with less vigour owing to some of the tribunes and a portion of the army being called off to the Volscian war. The consular tribunes for the year were C. Valerius Potitus - for the third time - Manius Sergius Fidenas, P. Cornelius Maluginensis, Cnaeus Cornelius Cossus, Kaeso Fabius Ambustus, and Spurius Nautius Rutilus - for the second time. A pitched battle was fought with the Volscians between Ferentinum and Ecetrae, which resulted in favour of the Romans. Then the tribunes commenced the siege of Artena, a Volscian town. In attempting a sortie the enemy were driven back into the town, giving thereby an opportunity to the Romans of forcing an entrance, and with the exception of the citadel the whole place was captured. A body of the enemy retired into the citadel, which was protected by the nature of its position; below the citadel many were killed or taken prisoners. The citadel was then invested, but it could not be taken by assault as the defenders were quite sufficient for the extent of the fortifications, nor was there any hope of its surrendering, as all the corn from the public magazines had been conveyed there before the city was taken. The Romans would have retired in disgust had not a slave betrayed the place to them. The soldiers, guided by him up some steep ground, effected its capture, and after they had massacred those on guard, the rest, panic-struck, surrendered. After the town and citadel had been demolished, the legions were withdrawn from Volscian territory and the whole strength of Rome was directed against Veii. The traitor was rewarded not only with his freedom, but also with the property of

two households, and was called Servius Romanus. Some suppose that Artena belonged to the Veientes, not the Volscians. The mistake arises from the fact that there was a city of the same name between Caere and Veii, but it was destroyed in the time of the kings of Rome, and it belonged to Caere, not Veii. The other town of the same name whose destruction I have mentioned was in the Volscian territory.

BOOK 5: THE VEII AND THE DESTRUCTION OF ROME BY THE GAULS

[5.1] Whilst peace prevailed elsewhere, Rome and Veii were confronting each other in arms, animated by such fury and hatred that utter ruin clearly awaited the vanquished. Each elected their magistrates, but on totally different principles. The Romans increased the number of their consular tribunes to eight - a larger number than had ever been elected before. They were Manius Aemilius Mamercus - for the second time - L. Valerius Potitus - for the third time - Appius Claudius Crassus, M. Quinctilius Varus, L. Julius Iulus, M. Postumius, M. Furius Camillus, and M. Postumius Albinus. The Veientes, on the other hand, tired of the annual canvassing for office, elected a king. This gave great offence to the Etruscan cantons, owing to their hatred of monarchy and their personal aversion to the one who was elected. He was already obnoxious to the nation through his pride of wealth and overbearing temper, for he had put a violent stop to the festival of the Games, the interruption of which is an act of impiety. His candidature for the priesthood had been unsuccessful, another being preferred by the vote of the twelve cantons, and in revenge he suddenly withdrew the performers, most of whom were his own slaves, in the middle of the Games. The Etruscans as a nation were distinguished above all others by their devotion to religious observances, because they excelled in the knowledge and conduct of them, and they decided, in consequence, that no assistance should be given to the Veientes as long as they were under a king. The report of this decision was suppressed at Veii through fear of the king; he treated those who mentioned anything of the kind, not as authors of an idle tale, but as ringleaders of sedition. Although the Romans had received intelligence that there was no movement on the part of the Etruscans, still, as it was reported that the matter was being discussed in all their councils, they so constructed their lines as to present a double face, the one fronting Veii to prevent sorties from the city,

the other looking towards Etruria to intercept any succour from that side.

[5.2]As the Roman generals placed more reliance on a blockade than on an assault, they began to build huts for winter quarters, a novelty to the Roman soldier. Their plan was to keep up the war through the winter. The tribunes of the plebs had for a long time been unable to find any pretext for creating a revolt. When, however, news of this was brought to Rome, they dashed off to the Assembly and produced great excitement by declaring that this was the reason why it had been settled to pay the troops. They, the tribunes, had not been blind to the fact that this gift from their adversaries would prove to be tainted with poison. The liberties of the plebs had been bartered away, their able-bodied men had been permanently sent away, banished from the City and the State, without any regard to winter or indeed to any season of the year, or to the possibility of their visiting their homes or looking after their property. What did they think was the reason for this continuous campaigning? They would most assuredly find it to be nothing else but the fear that if a large body of these men, who formed the whole strength of the plebs, were present, it would be possible to discuss reforms in favour of the plebeians. Besides, they were suffering much more hardship and oppression than the Veientes, for these passed the winter under their own roofs in a city protected by its magnificent walls and the natural strength of its position, whilst the Romans, amidst labour and toil, buried in frost and snow, were roughing it patiently under their skin-covered tents, and could not lay aside their arms even in the season of winter, when there is a respite from all wars, whether by land or sea. This form of slavery, making military service perpetual, was never imposed either by the kings, or by the consuls who were so domineering before the institution of the tribuneship, or during the stern rule of the Dictator, or by the unscrupulous decemvirs - it was the consular tribunes who were exercising this regal despotism over the Roman plebs. What would these men have done had they been consuls or Dictators, seeing that they have made their proconsular authority, which is only a shadow of the other, so outrageously cruel? But the commons had got what they had deserved. Amongst all the eight consular tribunes not a single plebeian had found a place. Hitherto, with their utmost efforts, the patricians had usually filled only three places at a time; now a team of eight were bent on maintaining their power. Even in

such a crowd not a single plebeian could get a footing, to warn his colleagues, if he could do nothing else, that those who were serving as soldiers were free men, their own fellow-citizens, and not slaves, and that they ought to be brought back, at all events in the winter, to their houses and their homes, and during some part of the year visit their parents and wives and children, and exercise their rights as free citizens in electing the magistrates.

[5.3] Whilst indulging in declamations of this sort, they found an opponent who was quite a match for them in Appius Claudius. He had from early manhood taken his part in the contests with the plebs, and as stated above, had some years previously recommended the senate to break down the power of the tribunes by securing the intervention of their colleagues. He was not only a man of ready and versatile mind, but by this time an experienced debater. He delivered the following speech on this occasion: - "If, Quirites, there has ever been any doubt as to whether it was in your interest or their own that the tribunes have always been the advocates of sedition, I feel quite certain that this year all doubt has ceased to exist. Whilst I rejoice that an end has at last been put to a long-standing delusion, I congratulate you, and on your behalf the whole State, that its removal has been effected just at the time when your circumstances are most prosperous. Is there any one who doubts that whatever wrongs you may have at any time suffered, they never annoyed and provoked the tribunes so much as the generous treatment of the plebs by the senate, in establishing the system of pay for the soldiers? What else do you suppose it was that they were afraid of at that time, and would today gladly upset, except the harmony of the two orders, which they look upon as most of all calculated to destroy their power? They are, really, like so many quack doctors looking for work, always anxious to find some diseased spot in the republic that there may be something which you can call them in to cure." Then, turning to the tribunes, "Are you defending or attacking the plebs? Are you trying to injure the men on service or are you pleading their cause? Or perhaps this is what you are saying, 'Whatever the senate does, whether in the interest of the plebs or against them, we object to.' Just as masters forbid strangers to hold any communication with their slaves, and think it right that they should abstain from showing them either kindness or unkindness, so you interdict the patricians from all dealings with the plebs, lest we should appeal to their feelings by our

graciousness and generosity and secure their loyalty and obedience. How much more dutiful it would have been in you, if you had had a spark - I will not say of patriotism, but - of common humanity, to have viewed with favour, and as far as in you lay, to have fostered the kindly feelings of the patricians and the grateful goodwill of the plebeians! And if this harmony should prove to be lasting, who would not be bold enough to guarantee that this empire will in a short time be the greatest among the neighbouring States?

[5.4]"I shall subsequently show not only the expediency but even the necessity of the policy which my colleagues have adopted of refusing to withdraw the army from Veii until their object was effected. For the present I prefer to speak of the actual conditions under which it is serving, and if I were speaking not before you only but in the camp as well, I think that what I say would appear just and fair in the judgment of the soldiers themselves. Even if no arguments presented themselves to my mind, I should find those of my opponents quite sufficient for my purpose. They were saying lately that pay ought not to be given to the soldiers because it never had been given. How then can they now profess indignation at those who have gained additional benefits being required to undergo additional exertion in proportion? Nowhere do we find labour without its reward, nor, as a rule, reward without some expenditure of labour. Toil and pleasure, utterly dissimilar by nature, have been brought by nature into a kind of partnership with each other. Formerly, the soldier felt it a grievance that he gave his services to the State at his own cost, he had the satisfaction, however, of cultivating his land for a part of the year, and acquiring the means of supporting himself and his family whether he were at home or on service. Now he has the pleasure of knowing that the State is a source of income to him, and he is glad to receive his pay. Let him therefore take it patiently that he is a little longer absent from his home and his property, on which no heavy expense now falls. If the State were to call him to an exact reckoning, would it not be justified in saying, 'You receive a year's pay, put in a year's work. Do you think it fair to receive a whole twelve-month's pay for six months' service?' It is with reluctance, Quirites, that I dwell on this topic, for it is those who employ mercenaries who ought to deal thus with them, but we want to deal with you as with fellow-citizens, and we think it only fair that you should deal with us as with your fatherland.

"Either the war ought not to have been undertaken, or it ought to be conducted as befits the dignity of Rome and brought to a close as soon as possible. It will certainly be brought to a close if we press on the siege, but not if we retire before we have fulfilled our hopes by the capture of Veii. Why, good heavens! if there were no other reason, the very discredit of the thing ought to inspire us with perseverance. A city was once besieged by the whole of Greece for ten years, for the sake of one woman, and at what a distance from home, how many lands and seas lay between! Are we growing tired of keeping up a siege for one year, not twenty miles off, almost within sight of the City? I suppose you think the reason for the war is a trivial one, and we do not feel enough just resentment to urge us to persevere. Seven times have they recommenced war against us; they have never loyally kept to the terms of peace; they have ravaged our fields a thousand times; they forced the Fidenates to revolt; they slew the colonists whom we settled there; they instigated the impious murder of our ambassadors in violation of the law of nations; they wanted to raise the whole of Etruria against us, and they are trying to do so today; when we sent ambassadors to demand satisfaction, they very nearly outraged them.

[5.5]"Are these the men with whom war ought to be carried on in a half-hearted and dilatory fashion? If such just reasons for resentment have no force with us, do not the following considerations, I pray you, possess any weight? The city is hemmed in by immense siege-works which confine the enemy within his walls. He has not tilled his land, and what was tilled before has been devastated by war. If we bring our army back again, has anybody the slightest doubt that they will invade our territory not only from a thirst for revenge, but also through the sheer necessity they are under of plundering other people's property since they have lost their own? If we adopt your policy we do not postpone the war, we simply carry it within our own frontiers. Well, now, what about the soldiers in whom these worthy tribunes have suddenly become interested after vainly endeavouring to rob them of their pay; what about them? They have carried a rampart and a fosse - each requiring enormous labour - over all that extent of ground; they have built forts, few at first, but after the army was increased, very numerous; they have raised defences not only against the city, but also as a barrier against Etruria in case any succours came from there. What need to describe the towers, the

vineae, the testudines, and the other engines used in storming cities? Now that so much labour has been spent and the work of investment at last completed, do you think that they ought to be abandoned in order that by next summer we may be again exhausted by the toil of constructing them all afresh? How much less trouble to defend the works already constructed, to press on and persevere, and so bring our cares and labours to an end! For assuredly the undertaking is not a lengthy one, if it is carried through by one continuous effort, if we do not by our own interruptions and stoppages delay the fulfilment of our hopes.

"I have been speaking of the work and the loss of time. Now there are frequent meetings of the national council of Etruria to discuss the question of sending succours to Veii. Do these allow us to forget the danger we incur by prolonging the war? As matters now stand, they are angry, resentful, and say that they will not send any - Veii may be captured, as far as they are concerned. But who will guarantee that if the war is prolonged they will continue in the same mind? For if you give the Veientes a respite they will send a more numerous and influential embassy, and what now gives such displeasure to the Etruscans, namely, the election of a king, may after a time be annulled either by the unanimous act of the citizens in order to win the sympathies of Etruria, or by voluntary abdication on the part of the king himself, through his unwillingness to allow his crown to endanger the safety of his people. "See how many disastrous consequences follow from the policy you recommend - the sacrifice of works constructed with so much trouble; the threatening devastation of our borders; a war with the whole of Etruria instead of one with Veii alone. This, tribunes, is what your proposals amount to; very much, upon my word, as if any one were to tempt a sick person, who by submitting to strict treatment could speedily recover, to indulge in eating and drinking, and so lengthen his illness and perhaps make it incurable.

[5.6]"Though it might not affect this present war, it would, you may depend upon it, be of the utmost importance to our military training that our soldiers should be habituated not only to enjoy a victory when they have won one, but also, when a campaign progresses slowly, to put up with its tediousness and await the fulfilment of their hopes though deferred. If a war has not been finished in the summer they must learn to go through the winter, and not, like birds of

passage, look out for roofs to shelter them the moment autumn comes. The passion and delight of hunting carries men through frost and snow to the forests and the mountains. Pray tell me, shall we not bring to the exigencies of war the same powers of endurance which are generally called out by sport or pleasure? Are we to suppose that the bodies of our soldiers are so effeminate and their spirits so enfeebled that they cannot hold out in camp or stay away from their homes for a single winter? Are we to believe that like those engaged in naval warfare, who have to watch the seasons and catch the favourable weather, so these men cannot endure times of heat and cold? They would indeed blush if any one laid this to their charge, and would stoutly maintain that both in mind and body they were capable of manly endurance, and could go through a campaign in winter as well as in summer. They would tell you that they had not commissioned their tribunes to act as protectors of the effeminate and the indolent, nor was it in cool shade or under sheltering roofs that their ancestors had instituted this very tribunitian power. The valour of your soldiers, the dignity of Rome, demand that we should not limit our view to Veii and this present war, but seek for reputation in time to come in respect of other wars and amongst all other nations.

"Do you imagine that the opinion men form of us in this crisis is a matter of slight importance? Is it a matter of indifference whether our neighbours regard Rome in such a light that when any city has sustained her first momentary attack it has nothing more to fear from her, or whether on the other hand, the terror of our name is such that no weariness of a protracted siege, no severity of winter, can dislodge a Roman army from any city which it has once invested, that it knows no close to a war but victory, and that it conducts its campaigns by perseverance as much as by dash? Perseverance is necessary in every kind of military operation, but especially in the conduct of sieges, for the majority of cities are impregnable, owing to the strength of their fortifications and their position, and time itself conquers them with hunger and thirst, and captures them as it will capture Veii unless the tribunes of the plebs extend their protection to the enemy and the Veientes find in Rome the support which they are vainly seeking in Etruria. Can anything happen to the Veientes more in accordance with their wishes than that the City of Rome should be filled with sedition and the contagion of it spread to the camp? But amongst the

enemy there is actually so much respect for law and order that they have not been goaded into revolution either by weariness of the siege or even aversion to absolute monarchy, nor have they shown exasperation at the refusal of succours by Etruria. The man who advocates sedition will be put to death on the spot, and no one will be allowed to say the things which are uttered amongst you with impunity. With us the man who deserts his standard or abandons his post is liable to be cudgelled to death, but those who urge the men to abandon the standards and desert from the camp are listened to, not by one or two only; they have the whole army for an audience. To such an extent have you habituated yourselves to listen calmly to whatever a tribune of the plebs may say, even if it means the betrayal of your country and the destruction of the republic. Captivated by the attraction which that office has for you, you allow all sorts of mischief to lurk under its shadow. The one thing left for them is to bring forward in the camp, before the soldiers, the same arguments which they have so loudly urged here, and so corrupt the army that they will not allow it to obey its commanders. For evidently liberty in Rome simply means that the soldiers cease to feel any reverence for either the senate, or the magistrates, or the laws, or the traditions of their ancestors, or the institutions of their fathers, or military discipline."

[5.7] Appius was already quite a match for the tribunes even on the platform, and now his victory over them was assured by the sudden intelligence of a most unexpected disaster, the effect of which was to unite all classes in an ardent resolve to prosecute the siege of Veii more vigorously. A raised way had been carried up to the city, and the vineae had almost been placed in contact with the walls, but more attention had been devoted to their construction by day than to their protection by night. Suddenly the gates were flung open and an enormous multitude, armed mostly with torches, flung the flaming missiles on to the works, and in one short hour the flames consumed both the raised way and the vineae, the work of so many days. Many poor fellows who vainly tried to render assistance perished either in the flames or by the sword. When the news of this reached Rome there was universal mourning, and the senate were filled with apprehension lest disturbances should break out in the City and the camp beyond their power to repress, and the tribunes of the plebs exult over the vanquished republic. Suddenly, however, a number of

men who, though assessed as knights, had not been provided with horses, after concerting a common plan of action, went to the Senate-house, and on permission being given to address the senate, they engaged to serve as cavalry on their own horses. The senate thanked them in the most complimentary terms. When the news of this incident had circulated through the Forum and the City, the plebeians hastily assembled at the Senate-house and declared that they were now part of the infantry force, and though it was not their turn to serve, they promised to give their services to the republic to march to Veii or wherever else they were led. If, they said, they were led to Veii they would not return till the city was taken.

On hearing this it was with difficulty that the senate restrained their delight. They did not, as in the case of the knights, pass a resolution of thanks to be conveyed through the presiding magistrates, nor were any summoned into the House to receive their reply, nor did they themselves remain within the precincts of their House. They came out on the raised space in front and each independently signified by voice and gesture to the people standing in the comitium the joy they all felt, and expressed their confidence that this unanimity of feeling would make Rome a blessed City, invincible and eternal. They applauded the knights, they applauded the commons, they showered encomiums on the very day itself, and frankly admitted that the senate had been outdone in courtesy and kindness. Senators and plebeians alike shed tears of joy. At last the sitting was resumed, and a resolution was carried that the consular tribunes should convene a public meeting and return thanks to the infantry and the knights, and say that the senate would never forget this proof of their affection for their country. They further decided that pay should be reckoned from that day for those who, though not called out, had volunteered to serve. A fixed sum was assigned to each knight; this was the first occasion on which the knights received military pay. The army of volunteers marched to Veii, and not only reconstructed the works that had been lost, but constructed new ones. More care was taken in bringing up supplies from the City, that nothing might be wanting for the use of an army that had behaved so well.

[5.8]The consular tribunes for the following year were C. Servilius Ahala - for the third time - Q. Servilius, Lucius Verginius, Q. Sulpicius, Aulus Manlius - for the second time - and Manius Sergius - also for the second time. During their term of office, whilst every

one was preoccupied with the Veientine war, Anxur was lost. The garrison had become weakened through the absence of men on furlough, and Volscian traders were admitted indiscriminately, with the result that the guard before the gates were surprised and the fortified post taken. The loss in men was slight, as with the exception of the sick, they were all scattered about the fields and neighbouring towns, driving bargains like so many camp-followers. At Veii, the chief point of interest, things went no better. Not only were the Roman commanders opposing one another more vigorously than they opposed the enemy, but the war was rendered more serious by the sudden arrival of the Capenates and the Faliscans. As these two States were nearest in point of distance, they believed that if Veii fell they would be the next on whom Rome would make war. The Faliscans had their own reasons for fearing hostilities, since they were mixed up in the previous war against Fidenae. So both States, after mutually despatching commissioners for the purpose, swore alliance with each other, and their two armies arrived unexpectedly at Veii. It so happened that they attacked the entrenchments on the side where Manius Sergius was in command, and they created great alarm, for the Romans were convinced that all Etruria had risen and was present in great force. The same conviction roused the Veientes in the city to action, so the Roman lines of investment were attacked from within and from without. Rushing from side to side to meet first the one attack, then the other, they were unable to confine the Veientes sufficiently within their fortifications or repel the assault from their own works and defend themselves from the enemy outside. Their only hope was if help came from the main camp so that the legions might fight back to back, some against the Capenates and Faliscans, and others against the sortie from the town. But Verginius was in command of that camp, and he and Sergius mutually detested each other. When it was reported to him that most of the forts had been attacked and the connecting lines surmounted, and that the enemy were forcing their way in from both sides, he kept his men halted under arms, and repeatedly declared that if his colleague needed assistance he would send to him. This selfishness on his part was matched by the other's obstinacy, for Sergius, to avoid the appearance of having sought help from a personal foe, preferred defeat at the hands of the enemy rather than owe success to a fellow-countryman. For some time the soldiers were being slaughtered between the two attacking forces; at last a very small number

abandoned their lines and reached the main camp; Sergius himself, with the greatest part of his force, made his way to Rome. Here he threw all the blame on his colleague, and it was decided that Verginius should be summoned from the camp and his lieutenants put in command during his absence. The case was then discussed in the senate; few studied the interests of the republic, most of the senators supported one or other of the disputants as their party feeling or private sympathy prompted them.

[5.9]The leaders of the senate gave it as their opinion that whether it was through the fault or the misfortune of the commanders that such a disgraceful defeat had been incurred, they ought not to wait until the regular time for the elections, but proceed at once to appoint new consular tribunes, to enter office on October 1. On their proceeding to vote on this proposal, the other consular tribunes offered no opposition, but strange to say, Sergius and Verginius - the very men on whose account obviously the senate were dissatisfied with the magistrates for that year - after protesting against such humiliation, vetoed the resolution. They declared that they would not resign office before December 13, the usual day for new magistrates to take office. On hearing this, the tribunes of the plebs, who had maintained a reluctant silence while the State was enjoying concord and prosperity, now made a sudden attack upon the consular tribunes, and threatened, if they did not bow to the authority of the senate, to order them to be imprisoned. There upon C. Servilius Ahala, the consular tribune, replied: "As for you and your menaces, tribunes of the plebs, I should very much like to put it to the proof how your threats possess as little legality as you possess courage to carry them out, but it is wrong to storm against the authority of the senate. Cease, therefore, to look for a chance of making mischief by meddling in our disputes; either my colleagues will act upon the senate's resolution, or if they persist in their obstinacy, I shall at once nominate a Dictator that he may compel them to resign." This speech was received with universal approval, and the senate were glad to find that without bringing in the bugbear of the plebeian tribunes' power, another and a more effectual method existed for bringing pressure to bear on the magistrates. In deference to the universal feeling, the two recalcitrant tribunes held an election for consular tribunes who entered office on October 1, they themselves having previously resigned office.

[5.10]The newly elected tribunes were L. Valerius Potitus - for the fourth time - M. Furius Camillus - for the second time - Manius Aemilius Mamercus - for the third time - Cnaeus Cornelius Cossus - for the second time - Kaeso Fabius Ambustus, and L. Julius Julius. Their year of office was marked by many incidents at home and abroad. There was a multiplicity of wars going on at once - at Veii, at Capena, at Falerii, and against the Volscians for the recovery of Anxur. In Rome the simultaneous demands of the levy and the war-tax created distress; there was a dispute about the co-opting of tribunes of the plebs, and the trial of two men who had recently held consular power caused great excitement. The consular tribunes made it their first business to raise a levy. Not only were the "juniors" enrolled, but the "seniors" were also compelled to give in their names that they might act as City guards. But the increase in the number of soldiers necessitated a corresponding increase in the amount required for their pay, and those who remained at home were unwilling to contribute their share because, in addition, they were to be harassed by military duties in defence of the City, as servants of the State. This was in itself a serious grievance, but it was made to appear more so by the seditious harangues of the tribunes of the plebs, who asserted that the reason why military pay had been established was that one half of the plebs might be crushed by the war-tax, and the other by military service. One single war was now dragging along into its third year, and it was being badly managed deliberately in order that they might have it the longer to manage. Then, again, armies had been enrolled for four separate wars in one levy, and even boys and old men had been torn from their homes. There was no difference made now between summer and winter, in order that the wretched plebeians might never have any respite. And now, to crown all, they even had to pay a war-tax, so that when they returned, worn out by toil and wounds, and last of all by age, and found all their land untilled through want of the owner's care, they had to meet this demand out of their wasted property and return to the State their pay as soldiers many times over, as though they had borrowed it on usury. What with the levy and the war-tax and the preoccupation of men's minds with still graver anxieties, it was found impossible to get the full number of plebeian tribunes elected. Then a struggle began to secure the co-optation of patricians into the vacant places. This proved to be impossible, but in order to weaken the authority of the Trebonian Law, it was arranged, doubtless through the influence of the

patricians, that C. Lucerius and M. Acutius should be co-opted as tribunes of the plebs.

[5.11]As chance would have it, Cnaeus Trebonius was tribune of the plebs that year, and he came forward as a champion of the Trebonian Law, as a duty apparently to his family and the name he bore. He declared in excited tones that the position which the senate had assailed, though they had been repulsed in their first attack, had been at last carried by the consular tribunes. The Trebonian Law had been set aside and the tribunes of the plebs had not been elected by the vote of the people, but co-opted at the command of the patricians, matters had now come to this pass, that they must have either patricians or the hangers-on to patricians as tribunes of the plebs. The Sacred Laws were being wrested from them, the power and authority of their tribunes was being torn away. This, he contended, was done through the craft and cunning of the patricians and the treacherous villainy of his colleagues. The flame of popular indignation was now beginning to scorch not only the senate, but even the tribunes of the plebs, co-opted and co-opters alike, when three members of the tribunitian college - P. Curatius, M. Metilius, and M. Minucius - trembling for their own safety, instituted proceedings against Sergius and Verginius, the consular tribunes of the preceding year. By fixing a day for their trial, they diverted from themselves on to these men the rage and resentment of the plebs. They reminded the people that those who had felt the burden of the levy, the war-tax, and the long duration of the war, those who were distressed at the defeat sustained at Veii, those whose homes were in mourning for the loss of children, brothers, and relations, had every one of them the right and the power to visit upon two guilty heads their own personal grief and that of the whole State. The responsibility for all their misfortunes rested on Sergius and Verginius; this was not more clearly proved by the prosecutor than admitted by the defendants, for whilst both were guilty, each threw the blame on the other, Verginius denouncing the flight of Sergius, and Sergius the treachery of Verginius. They had behaved with such incredible madness that it was in all probability a concerted plan earned out with the general connivance of the patricians. These men had previously given the Veientes an opening for firing the siege works, now they had betrayed the army and delivered a Roman camp up to the Faliscans. Everything was being done to compel their young

men to grow old at Veii, and to make it impossible for their tribunes to secure the support of a full Assembly in the City either in their resistance to the concerted action of the senate, or for their proposals regarding the distribution of land and other measures in the interest of the plebs. Judgment had already been passed upon the accused by the senate, the Roman people, and their own colleagues, for it was a vote of the senate which removed them from office, it was their own colleagues who upon their refusal to resign, compelled them to do so by the threat of a Dictator, whilst it was the people who had elected consular tribunes to enter upon office, not on the usual day, December 13, but immediately after their election, on October 1, for the republic could no longer be safe if these men remained in office. And yet, shattered as they were by so many adverse verdicts, and condemned beforehand, they were presenting themselves for trial, and fancying that they had purged their offence and suffered an adequate punishment because they had been relegated to private life two months before the time. They did not understand that this was not the infliction of a penalty, but simply the depriving them of power to do further mischief, since their colleagues also had to resign, and they, at all events, had committed no offence. The tribunes continued. "Recall the feelings, Quirites, with which you heard of the disaster which we sustained and watched the army staggering through the gates, panic-stricken fugitives, covered with wounds, accusing not Fortune or any of the gods, but these generals of theirs. We are confident that there is not a man in this Assembly who did not on that day call down curses on the persons and homes and fortunes of L. Verginius and Manius Sergius. It would be utterly inconsistent for you not to use your power, when it is your right and duty to do so, against the men on whom each of you has called down the wrath of heaven. The gods never lay hands themselves on the guilty it is enough when they arm the injured with the opportunity for vengeance.

[5.12]The passions of the plebs were roused by these speeches, and they sentenced the accused to a fine of 10,000 "ases" each, in spite of Sergius' attempt to throw the blame on Fortune and the chances of war, and Verginius' appeal that he might not be more unfortunate at home than he had been in the field. The turning of the popular indignation in this direction threw into the shade the memories of the co-optation of tribunes and the evasion of the Trebonian Law.

As a reward to the plebeians for the sentence they had passed, the victorious tribunes at once gave notice of an agrarian measure. They also prevented contributions being paid in for the war-tax, though pay was required for all those armies, and such successes as had been gained only served to prevent any of the wars from being brought to a close. The camp at Veii which had been lost was recaptured and strengthened with forts and men to hold them. The consular tribunes, Manius Aemilius and Kaeso Fabius, were in command. M. Furius in the Faliscan territory and Cnaeus Cornelius in that of Capenae found no enemy outside his walls; booty was carried off and the territories were ravaged, the farms and crops being burnt. The towns were attacked, but not invested; Anxur, however, in the Volscian territory, and situated on high ground, defied all assaults, and after direct attack had proved fruitless, a regular investment by rampart and fosse was commenced. The conduct of the Volscian campaign had fallen to Valerius Potitus.

Whilst military affairs were in this position, internal troubles were more difficult to manage than the foreign wars. Owing to the tribunes, the war-tax could not be collected, nor the necessary funds remitted to the commanders; the soldiers clamoured for their pay, and it seemed as though the camp would be polluted by the contagion of the seditious spirit which prevailed in the City. Taking advantage of the exasperation of the plebs against the senate, the tribunes told them that the long wished for time had come for securing their liberties and transferring the highest office in the State from people like Sergius and Verginius to strong and energetic plebeians. They did not, however, get further in the exercise of their rights than to secure the election of one member of the plebs as consular tribune, viz., P. Licinius Calvus - the rest were patricians - P. Manlius, L. Titinus, P. Maelius, L. Furius Medullinus, and L. Popilius Volscus. The plebeians were no less surprised at such a success than the tribune-elect himself; he had not previously filled any high office of State, and was only a senator of long standing, and now advanced in years. Our authorities are not agreed as to the reason why he was selected first and foremost to taste the sweets of this new dignity. Some believe that he was thrust forward to so high a position through the popularity of his brother, Cnaeus Cornelius, who had been consular tribune the previous year, and had given triple pay to the "knights." Others attribute it to a well-timed speech he

delivered on the agreement of the two orders, which was welcomed by both patricians and plebeians. In their exultation over this electoral victory, the tribunes of the plebs gave way over the war-tax, and so removed the greatest political difficulty. It was paid in without a murmur and remitted to the army.

[5.13]The Volscian Anxur was recaptured owing to the laxity of the guard during a festival. The year was remarkable for such a cold and snowy winter that the roads were blocked and the Tiber rendered unnavigable. There was no change in the price of corn, owing to a previous accumulation of supplies. P. Licinius had won his position without exciting any disturbance, more to the delight of the people than to the annoyance of the senate, and he discharged his office in such a way that there was a general desire to choose the consular tribunes out of the plebeians at the next election. The only patrician candidate who secured a place was M. Veturius. The rest, who were plebeians, received the support of nearly all the centuries. Their names were M. Pomponius, Cnaeus Duilius, Volero Publilius, and Cnaeus Genucius. In consequence either of the unhealthy weather occasioned by the sudden change from cold to heat, or from some other cause, the severe winter was followed by a pestilential summer, which proved fatal to man and beast. As neither a cause nor a cure could be found for its fatal ravages, the senate ordered the Sibylline Books to be consulted. The priests who had charge of them appointed for the first time in Rome a lectisternium. Apollo and Latona, Diana and Hercules, Mercury and Neptune were for eight days propitiated on three couches decked with the most magnificent coverlets that could be obtained. Solemnities were conducted also in private houses. It is stated that throughout the City the front gates of the houses were thrown open and all sorts of things placed for general use in the open courts, all comers, whether acquaintances or strangers, being brought in to share the hospitality. Men who had been enemies held friendly and sociable conversations with each other and abstained from all litigation, the manacles even were removed from prisoners during this period, and afterwards it seemed an act of impiety that men to whom the gods had brought such relief should be put in chains again. In the meanwhile, at Veii there was increased alarm, created by the three wars being combined in one. For the men of Capenae and Falerii had suddenly arrived to relieve the city, and as on the former occasion, the Romans had to fight a

back to back battle round the entrenchments against three armies. What helped them most of all was the recollection of the condemnation of Sergius and Verginius. From the main camp, where on the former occasion there had been inaction, forces were rapidly brought round and attacked the Capenates in the rear while their attention was concentrated on the Roman lines. The fighting which ensued created panic in the Faliscan ranks also, and whilst they were wavering, a well-timed charge from the camp routed them, and the victors, following them up, caused immense losses amongst them. Not long afterwards the troops who were devastating the territory of Capenae came upon them whilst straggling in disorder as though safe from attack, and those whom the battle had spared were annihilated. Of the Veientes also, many who were fleeing to the city were killed in front of the gates, which were closed to prevent the Romans from breaking in, and so the hindmost of the fugitives were shut out.

[5.14] These were the occurrences of the year. And now the time for the election of consular tribunes was approaching. The senate was almost more anxious about this than about the war, for they recognised that they were not simply sharing the supreme power with the plebs, but had almost completely lost it. An understanding was come to by which their most distinguished members were to come forward as candidates; they believed that for very shame they would not be passed over. Besides this, they resorted to every expedient, just as if they were every one of them candidates, and called to their aid not men alone, but even the gods. They made a religious question of the last two elections. In the former year, they said, an intolerably severe winter had occurred which seemed to be a divine warning; in the last year they had not warnings only but the judgments themselves. The pestilence which had visited the country districts and the City was undoubtedly a mark of the divine displeasure, for it had been found in the Books of Fate that to avert that scourge the gods must be appeased. The auspices were taken before an election, and the gods deemed it an insult that the highest offices should be made common and the distinction of classes thrown into confusion. Men were awestruck not only by the dignity and rank of the candidates, but by the religious aspect of the question, and they elected all the consular tribunes from the patricians, the great majority being all men of high distinction. Those elected were L. Valerius Potitus - for the fifth time - M. Valerius Maximus, M. Furius Camillus - for the second

time - L. Furius Medullinus - for the third time - Q. Servilius Fidenates - for the second time - and Q. Sulpicius Camerinus - for the second time. During their year of office nothing of any importance was done at Veii; their whole activity was confined to raids. Two of the commanders-in-chief carried off an enormous quantity of plunder - Potitus from Falerii and Camillus from Capenae. They left nothing behind which fire or sword could destroy.

[5.15] During this period many portents were announced, but as they rested on the testimony of single individuals, and there were no soothsayers to consult as to how to expiate them, owing to the hostile attitude of the Etruscans, these reports were generally disbelieved and disregarded. One incident, however, caused universal anxiety. The Alban Lake rose to an unusual height, without any rainfall or other cause which could prevent the phenomenon from appearing supernatural. Envoys were sent to the oracle of Delphi to ascertain why the gods sent the portent. But an explanation was afforded nearer at hand. An aged Veientine was impelled by destiny to announce, amidst the jeers of the Roman and Etruscan outposts, in prophetic strain, that the Romans would never get possession of Veii until the water had been drawn off from the Alban Lake. This was at first treated as a wild utterance, but afterwards it began to be talked about. Owing to the length of the war, there were frequent conversations between the troops on both sides, and a Roman on outpost duty asked one of the townsmen who was nearest to him who the man was who was throwing out such dark hints about the Alban Lake. When he heard that he was a soothsayer, being himself a man not devoid of religious fears, he invited the prophet to an interview on the pretext of wishing to consult him, if he had time, about a portent which demanded his own personal expiation. When the two had gone some distance from their respective lines, unarmed, apprehending no danger, the Roman, a young man of immense strength, seized the feeble old man in the sight of all, and in spite of the outcry of the Etruscans, carried him off to his own side. He was brought before the commander-in-chief and then sent to the senate in Rome. In reply to inquiries as to what he wanted people to understand by his remark about the Alban Lake, he said that the gods must certainly have been wroth with the people of Veii on the day when they inspired him with the resolve to disclose the ruin which the Fates had prepared for his native city. What he had then predicted

under divine inspiration he could not now recall or unsay, and perhaps he would incur as much guilt by keeping silence about things which it was the will of heaven should be revealed as by uttering what ought to be concealed. It stood recorded in the Books of Fate, and had been handed down by the occult science of the Etruscans, that whenever the water of the Alban Lake overflowed and the Romans drew it off in the appointed way, the victory over the Veientes would be granted them; until that happened the gods would not desert the walls of Veii. Then he explained the prescribed mode of drawing off the water. The senate, however, did not regard their informant as sufficiently trustworthy in a matter of such importance, and determined to wait for the return of their embassy with the oracular reply of the Pythian god.

[5.16] Previous to their return, and before any way of dealing with the Alban portent was discovered, the new consular tribunes entered upon office. They were L. Julius Iulus, L. Furius Medullinus - for the fourth time - L. Sergius Fidenas, A. Postumius Regillensis, P. Cornelius Maluginensis, and A. Manlius. This year a new enemy arose. The people of Tarquinii saw that the Romans were engaged in numerous campaigns - against the Volscians at Anxur, where the garrison was blockaded; against the Aequi at Labici, who were attacking the Roman colonists, and, in addition to these, at Veii, Falerii, and Capenae, whilst, owing to the contentions between the plebs and the senate, things were no quieter within the walls of the City. Regarding this as a favourable opportunity for mischief, they despatched some light-armed cohorts to harry the Roman territory, in the belief that the Romans would either let the outrage pass unpunished to avoid having another war on their shoulders, or would resent it with a small and weak force. The Romans felt more indignation than anxiety at the raid, and without making any great effort, took prompt steps to avenge it. A. Postumius and L. Julius raised a force, not by a regular levy - for they were obstructed by the tribunes of the plebs - but consisting mostly of volunteers whom they had induced by strong appeals to come forward. With this they advanced by cross marches through the territory of Caere and surprised the Tarquinians as they were returning heavily laden with booty. They slew great numbers, stripped the whole force of their baggage, and returned with the recovered possessions from their farms to Rome. Two days were allowed for the owners to identify

their property; what was unclaimed on the third day, most of it belonging to the enemy, was sold "under the spear," and the proceeds distributed amongst the soldiers. The issues of the other wars, especially of that against Veii, were still undecided, and the Romans were already despairing of success through their own efforts, and were looking to the Fates and the gods, when the embassy returned from Delphi with the sentence of the oracle. It was in accord with the answer given by the Veientine soothsayer, and ran as follows: -

"See to it, Roman, that the rising flood
At Alba flow not o'er its banks and shape
Its channel seawards. Harmless through thy fields
Shalt thou disperse it, scattered into rills.
Then fiercely press upon thy foeman's walls,
For now the Fates have given thee victory.
That city which long years thou hast besieged
Shall now be thine. And when the war hath end,
Do thou, the victor, bear an ample gift
Into my temple, and the ancestral rites
Now in disuse, see that thou celebrate
Anew with all their wonted pomp."

[5.17] From that time the captive prophet began to be held in very high esteem, and the consular tribunes, Cornelius and Postumius, began to make use of him for the expiation of the Alban portent and the proper method of appeasing the gods. At length it was discovered why the gods were visiting men for neglected ceremonies and religious duties unperformed. It was in fact due to nothing else but the fact that there was a flaw in the election of the magistrates, and consequently they had not proclaimed the Festival of the Latin League and the sacrifice on the Alban Mount with the due formalities. There was only one possible mode of expiation, and that was that the consular tribunes should resign office, the auspices to be taken entirely afresh, and an interrex appointed. All these measures were earned out by a decree of the senate. There were three interreges in succession - L. Valerius, Q. Servilius Fidenas, and M. Furius Camillus. During all this time there were incessant disturbances owing to the tribunes of the plebs hindering the elections until an understanding was come to that the majority of the consular tribunes should be elected from the plebeians. Whilst this was going on the national council of Etruria met at the Fane of Voltumna. The

Capenates and the Faliscans demanded that all the cantons of Etruria should unite in common action to raise the siege of Veii; they were told in reply that assistance had been previously refused to the Veientes because they had no right to seek help from those whose advice they had not sought in a matter of such importance. Now, however, it was their unfortunate circumstances and not their will that compelled them to refuse. The Gauls, a strange and unknown race, had recently overrun the greatest part of Etruria, and they were not on terms of either assured peace or open war with them. They would, however, do this much for those of their blood and name, considering the imminent danger of their kinsmen - if any of their younger men volunteered for the war they would not prevent their going. The report spread in Rome that a large number had reached Veii, and in the general alarm the internal dissensions, as usual, began to calm down.

[5.18]The prerogative centuries elected P. Licinius Calvus consular tribune, though he was not a candidate. His appointment was not at all distasteful to the senate, for when in office before he had shown himself a man of moderate views. He was, however, advanced in years. As the voting proceeded it became clear that all who had been formerly his colleagues in office were being reappointed one after another. They were L. Titinius, P. Maenius, Q. Manlius, Cnaeus Genucius, and L. Atilius. After the tribes had been duly summoned to hear the declaration of the poll, but before it was actually published, P. Licinius Calvus, by permission of the interrex, spoke as follows: "I see, Quirites, that from what you remember of our former tenure of office, you are seeking in these elections an omen of concord for the coming year, a thing most of all helpful in the present state of affairs. But, whilst you are re-electing my old comrades, who have become wiser and stronger by experience, you see in me not the man I was, but only a mere shadow and name of P. Licinius. My bodily powers are worn out, my sight and hearing are impaired, my memory is failing, my mental vigour is dulled. Here," he said, holding his son by the hand, "is a young man, the image and counterpart of him whom in days gone by you elected as the first consular tribune taken from the ranks of the plebs. This young man whom I have trained and moulded I now hand over and dedicate to the republic to take my place, and I beg you, Quirites, to confer this honour which you have bestowed unsought on me, on him who is seeking it, and

whose candidature I would fain support and further by my prayers." His request was granted, and his son P. Licinius was formally announced as consular tribune with those above mentioned. Titinius and Genucius marched against the Faliscans and Capenates, but they proceeded with more courage than caution and fell into an ambushade. Genucius atoned for his rashness by an honourable death, and fell fighting amongst the foremost. Titinius rallied his men from the disorder into which they had fallen and gained some rising ground where he reformed his line, but would not come down to continue the fight on level terms.

More disgrace was incurred than loss, but it almost resulted in a terrible disaster, so great was the alarm it created not only in Rome, where very exaggerated accounts were received, but also in the camp before Veii. Here a rumour had gained ground that after the destruction of the generals and their army, the victorious Capenates and Faliscans and the whole military strength of Etruria had proceeded to Veii and were at no great distance; in consequence of this the soldiers were with difficulty restrained from taking to flight. Still more disquieting rumours were current in Rome; at one moment they imagined that the camp before Veii had been stormed, at another that a part of the enemies' forces was in full march to the City. They hurried to the walls; the matrons, whom the general alarm had drawn from their homes, made prayers and supplications in the temples; solemn petitions were offered up to the gods that they would ward off destruction from the houses and temples of the City and from the walls of Rome, and divert the fears and alarms to Veii if the sacred rites had been duly restored and the portents expiated.

[5.19]By this time the Games and the Latin Festival had been celebrated afresh, and the water drawn off from the Alban Lake on the fields, and now the fated doom was closing over Veii. Accordingly the commander destined by the Fates for the destruction of that city and the salvation of his country - M. Furius Camillus - was nominated Dictator. He appointed as his Master of the Horse P. Cornelius Scipio. With the change in the command everything else suddenly changed; men's hopes were different, their spirits were different, even the fortunes of the City wore a different aspect. His first measure was to execute military justice upon those who had fled during the panic from the camp, and he made the soldiers realise that it was not the enemy who was most to be feared. He then appointed

a day for the enrolment of troops, and in the interim went to Veii to encourage the soldiers, after which he returned to Rome to raise a fresh army. Not a man tried to escape enlistment. Even foreign troops - Latins and Hernicans - came to offer assistance for the war. The Dictator formally thanked them in the senate, and as all the preparations for war were now sufficiently advanced, he vowed, in pursuance of a senatorial decree, that on the capture of Veii he would celebrate the Great Games and restore and dedicate the temple of Matuta the Mother, which had been originally dedicated by Servius Tullius. He left the City with his army amid a general feeling of anxious expectation rather than of hopeful confidence on the part of the citizens, and his first engagement was with the Faliscans and Capenates in the territory of Nepete. As usual where everything was managed with consummate skill and prudence, success followed. He not only defeated the enemy in the field, but he stripped them of their camp and secured immense booty. The greater part was sold and the proceeds paid over to the quaestor, the smaller share was given to the soldiers. From there the army was led to Veii. The forts were constructed more closely together. Frequent skirmishes had occurred at random in the space between the city wall and the Roman lines, and an edict was issued that none should fight without orders, thereby keeping the soldiers to the construction of the siege works. By far the greatest and most difficult of these was a mine which was commenced, and designed to lead into the enemies' citadel. That the work might not be interrupted, or the troops exhausted by the same men being continuously employed in underground labour, he formed the army into six divisions. Each division was told off in rotation to work for six hours at a time; the work went on without any intermission until they had made a way into the citadel.

[5.20]When the Dictator saw that victory was now within his grasp, that a very wealthy city was on the point of capture, and that there would be more booty than had been amassed in all the previous wars taken together, he was anxious to avoid incurring the anger of the soldiers through too niggardly a distribution of it on the one hand, and the jealousy of the senate through too lavish a grant of it on the other. He sent a despatch to the senate in which he stated that through the gracious favour of heaven, his own generalship, and the persevering efforts of his soldiers, Veii would in a very few hours be in the power of Rome, and he asked for their decision as to the

disposal of the booty. The senate were divided. It is reported that the aged P. Licinius, who was the first to be asked his opinion by his son, urged that the people should receive public notice that whoever wanted to share in the spoils should go to the camp at Veii. Appius Claudius took the opposite line. He stigmatised the proposed largesse as unprecedented, wasteful, unfair, reckless. If, he said, they once thought it sinful for money taken from the enemy to lie in the treasury, drained as it had been by the wars, he would advise that the pay of the soldiers be supplied from that source, so that the plebs might have so much less tax to pay. "The homes of all would feel alike the benefit of a common boon, the rewards won by brave warriors would not be filched by the hands of city loafers, ever greedy for plunder, for it so constantly happens that those who usually seek the foremost place in toil and danger are the least active in appropriating the spoils." Licinius on the other hand said that "this money would always be regarded with suspicion and aversion, and would supply material for indictments before the plebs, and consequently bring about disturbances and revolutionary measures. It was better, therefore, that the plebs should be conciliated by this gift, that those who had been crushed and exhausted by so many years of taxation should be relieved and get some enjoyment from the spoils of a war in which they had almost become old men. When any one brings home something he has taken from the enemy with his own hand, it affords him more pleasure and gratification than if he were to receive many times its value at the bidding of another. The Dictator had referred the question to the senate because he wanted to avoid the odium and misrepresentations which it might occasion; the senate, in its turn, ought to entrust it to the plebs and allow each to keep what the fortune of war has given him." This was felt to be the safer course, as it would make the senate popular. Notice accordingly was given that those who thought fit should go to the Dictator in camp to share in the plunder of Veii.

[5.21]An enormous crowd went and filled the camp. After the Dictator had taken the auspices and issued orders for the soldiers to arm for battle, he uttered this prayer: "Pythian Apollo, guided and inspired by thy will I go forth to destroy the city of Veii, and a tenth part of its spoils I devote to thee. Thee too, Queen Juno, who now dwellest in Veii, I beseech, that thou wouldst follow us, after our victory, to the City which is ours and which will soon be shine, where

a temple worthy of thy majesty will receive thee." After this prayer, finding himself superior in numbers, he attacked the city on all sides, to distract the enemies' attention from the impending danger of the mine. The Veientes, all unconscious that their doom had already been sealed by their own prophets and by oracles in foreign lands, that some of the gods had already been invited to their share in the spoils, whilst others, called upon in prayer to leave their city, were looking to new abodes in the temples of their foes; all unconscious that they were spending their last day, without the slightest suspicion that their walls had been undermined and their citadel already filled with the enemy, hurried with their weapons to the walls, each as best he could, wondering what had happened to make the Romans, after never stirring from their lines for so many days, now run recklessly up to the walls as though struck with sudden frenzy.

At this point a tale is introduced to the effect that whilst the king of the Veientes was offering sacrifice, the soothsayer announced that victory would be granted to him who had cut out the sacrificial parts of the victim, His words were heard by the soldiers in the mine, they burst through, seized the parts and carried them to the Dictator. But in questions of such remote antiquity I should count it sufficient if what bears the stamp of probability be taken as true. Statements like this, which are more fitted to adorn a stage which delights in the marvellous than to inspire belief, it is not worth while either to affirm or deny. The mine, which was now full of picked soldiers, suddenly discharged its armed force in the temple of Juno, which was inside the citadel of Veii. Some attacked the enemy on the walls from behind, others forced back the bars of the gates, others again set fire to the houses from which stones and tiles were being hurled by women and slaves. Everything resounded with the confused noise of terrifying threats and shrieks of despairing anguish blended with the wailing of women and children. In a very short time the defenders were driven from the walls and the city gates flung open. Some rushed in in close order, others scaled the deserted walls; the city was filled with Romans; fighting went on everywhere. At length, after great carnage, the fighting slackened, and the Dictator ordered the heralds to proclaim that the unarmed were to be spared. That put a stop to the bloodshed, those who were unarmed began to surrender, and the soldiers dispersed with the Dictator's permission in quest of booty. This far surpassed all expectation both in its amount and its

value, and when the Dictator saw it before him he is reported to have raised his hands to heaven and prayed that if any of the gods deemed the good fortune which had befallen him and the Romans to be too great, the jealousy which it caused might be allayed by such a calamity as would be least injurious to him and to Rome. The tradition runs that whilst he was turning round during this devotion he stumbled and fell. To those who judged after the event it appeared as if that omen pointed to Camillus' own condemnation and the subsequent capture of Rome which occurred a few years later. That day was spent in the massacre of the enemy and the sack of the city with its enormous wealth.

[5.22]The following day the Dictator sold all freemen who had been spared, as slaves. The money so realised was the only amount paid into the public treasury, but even that proceeding roused the ire of the plebs. As for the spoil they brought home with them, they did not acknowledge themselves under any obligation for it either to their general, who, they thought, had referred a matter within his own competence to the senate in the hope of getting their authority for his niggardliness, nor did they feel any gratitude to the senate. It was the Licinian family to whom they gave the credit, for it was the father who had advocated the popular measure and the son who had taken the opinion of the senate upon it. When all that belonged to man had been carried away from Veii, they began to remove from the temples the votive gifts that had been made to the gods, and then the gods themselves; but this they did as worshippers rather than as plunderers. The deportation of Queen Juno to Rome was entrusted to a body of men selected from the whole army, who after performing their ablutions and arraying themselves in white vestments, reverently entered the temple and in a spirit of holy dread placed their hands on the statue, for it was as a rule only the priest of one particular house who, by Etruscan usage, touched it. Then one of them, either under a sudden inspiration, or in a spirit of youthful mirth, said, "Art thou willing, Juno, to go to Rome?" The rest exclaimed that the goddess nodded assent. An addition to the story was made to the effect that she was heard to say, "I am willing." At all events we have it that she was moved from her place by appliances of little power, and proved light and easy of transport, as though she were following of her own accord. She was brought without mishap to the Aventine, her everlasting seat, whither the prayers of the

Roman Dictator had called her, and where this same Camillus afterwards dedicated the temple which he had vowed. Such was the fall of Veii, the most wealthy city of the Etruscan league, showing its greatness even in its final overthrow, since after being besieged for ten summers and winters and inflicting more loss than it sustained, it succumbed at last to destiny, being after all carried by a mine and not by direct assault.

[5.23]Although the portents had been averted by due expiation and the answers given by the soothsayer and the oracle were matters of common knowledge, and all that man could do had been done by the selection of M. Furius, the greatest of all commanders - notwithstanding all this, when the capture of Veii was announced in Rome, after so many years of undecided warfare and numerous defeats, the rejoicing was as great as if there had been no hope of success. Anticipating the order of the senate, all the temples were filled with Roman mothers offering thanksgivings to the gods. The senate ordered that the public thanksgivings should be continued for four days, a longer period than for any previous war. The arrival of the Dictator, too, whom all classes poured out to meet, was welcomed by a greater concourse than that of any general before. His triumph went far beyond the usual mode of celebrating the day; himself the most conspicuous object of all, he was drawn into the City by a team of white horses, which men thought unbecoming even for a mortal man, let alone a Roman citizen. They saw with superstitious alarm the Dictator putting himself on a level in his equipage with Jupiter and Sol, and this one circumstance made his triumph more brilliant than popular. After this he signed a contract for building the temple of Queen Juno on the Aventine and dedicated one to Matuta the Mother. After having thus discharged his duties to gods and men he resigned his Dictatorship. Subsequently a difficulty arose about the offering to Apollo. Camillus stated that he had vowed a tenth of the spoils to the deity, and the college of pontiffs decided that the people must fulfil their religious obligation. But it was not easy to find a way of ordering the people to restore their share of booty so that the due proportion might be set apart for sacred purposes. At length recourse was had to what seemed the smoothest plan, namely, that any one who wished to discharge the obligation for himself and his household should make a valuation of his share and contribute the value of a tenth of it to the public treasury, in

order that out of the proceeds a golden crown might be made, worthy of the grandeur of the temple and the august divinity of the god, and such as the honour of the Roman people demanded. This contribution still further estranged the feelings of the plebeians from Camillus. During these occurrences envoys from the Volscians and Aequi came to sue for peace. They succeeded in obtaining it, not so much because they deserved it as that the commonwealth, wearied with such a long war, might enjoy repose.

[5.24]The year following the capture of Veii had for the six consular tribunes two of the Publii Cornelii, namely, Cossus and Scipio, M. Valerius Maximus - for the second time - Caeso Fabius Ambustus - for the third time - L. Furius Medullinus - for the fifth time - and Q. Servilius - for the third time. The war against the Faliscans was allotted to the Cornelii, that against Capenae to Valerius and Servilius. They did not make any attempt to take cities either by assault or investment, but confined themselves to ravaging the country and carrying off the property of the agriculturists; not a single fruit tree, no produce whatever, was left on the land. These losses broke the resistance of the Capenates, they sued for peace and it was granted them. Amongst the Faliscans the war went on. In Rome, meanwhile, disturbances arose on various matters. In order to quiet them it had been decided to plant a colony on the Volscian frontier, and the names of 3000 Roman citizens were entered for it. Triumvirs appointed for the purpose had divided the land into lots of $3\frac{7}{12}$ jugera per man. This grant began to be looked upon with contempt, they regarded it as a sop offered to them to divert them from hoping for something better. "Why," they asked, "were plebeians to be sent into banishment amongst the Volscians when the splendid city of Veii and the territory of the Veientines was within view, more fertile and more ample than the territory of Rome?" Whether in respect of its situation or of the magnificence of its public and private buildings and its open spaces, they gave that city the preference over Rome. They even brought forward a proposal, which met with still more support after the capture of Rome by the Gauls, for migrating to Veii. They intended, however, that Veii should be inhabited by a portion of the plebs and a part of the senate; they thought it a feasible project that two separate cities should be inhabited by the Roman people and form one State. In opposition to these proposals, the nobility went so far as to declare that they would sooner die before the eyes of the

Roman people than that any of those schemes should be put to the vote. If, they argued, there was so much dissension in one city, what would there be in two? Could any one possibly prefer a conquered to a conquering city, and allow Veii to enjoy a greater good fortune after its capture than while it stood safe? It was possible that in the end they might be left behind in their native City by their fellow-citizens, but no power on earth would compel them to abandon their native City and their fellow-citizens in order to follow T. Sicinius - the proposer of this measure - to Veii as its new founder, and so abandon Romulus, a god and the son of a god, the father and creator of the City of Rome.

[5.25] This discussion was attended by disgraceful quarrels, for the senate had drawn over a section of the tribunes of the plebs to their view, and the only thing that restrained the plebeians from offering personal violence was the use which the patricians made of their personal influence. Whenever shouts were raised to get up a brawl, the leaders of the senate were the first to go into the crowd and tell them to vent their rage on them, to beat and kill them. The mob shrank from offering violence to men of their age and rank and distinction, and this feeling prevented them from attacking the other patricians. Camillus went about delivering harangues everywhere, and saying that it was no wonder that the citizens had gone mad, for though bound by a vow, they showed more anxiety about everything than about discharging their religious obligations. He would say nothing about the contribution, which was really a sacred offering rather than a tithe, and since each individual bound himself to a tenth, the State, as such, was free from the obligation. But his conscience would not allow him to keep silence about the assertion that the tenth only applied to movables, and that no mention was made of the city and its territory, which were also really included in the vow. As the senate considered the question a difficult one to decide, they referred it to the pontiffs, and Camillus was invited to discuss it with them. They decided that of all that had belonged to the Veientes before the vow was uttered and had subsequently passed into the power of Rome, a tenth part was sacred to Apollo. Thus the city and territory came into the estimate. The money was drawn from the treasury, and the consular tribunes were commissioned to purchase gold with it. As there was not a sufficient supply, the matrons, after meeting to talk the matter over, made themselves by common consent

responsible to the tribunes for the gold, and sent all their trinkets to the treasury. The senate were in the highest degree grateful for this, and the tradition goes that in return for this munificence the matrons had conferred upon them the honour of driving to sacred festivals and games in a carriage, and on holy days and work days in a two-wheeled car. The gold received from each was appraised in order that the proper amount of money might be paid for it, and it was decided that a golden bowl should be made and carried to Delphi as a gift to Apollo. When the religious question no longer claimed their attention, the tribunes of the plebs renewed their agitation; the passions of the populace were aroused against all the leading men, most of all against Camillus. They said that by devoting the spoils of Veii to the State and to the gods he had reduced them to nothing. They attacked the senators furiously in their absence; when they were present and confronted their rage, shame kept them silent. As soon as the plebeians saw that the matter would be carried over into the following year, they reappointed the supporters of the proposal as their tribunes; the patricians devoted themselves to securing the same support for those who had vetoed the proposal. Consequently, nearly all the same tribunes of the plebs were re-elected.

[5.26]In the election of consular tribunes the patricians succeeded by the utmost exertions in securing the return of M. Furius Camillus. They pretended that in view of the wars they were providing themselves with a general; their real object was to get a man who would oppose the corrupt policy of the plebeian tribunes. His comrades in the tribuneship were L. Furius Medullinus - for the sixth time - C. Aemilius, L. Valerius Publicola, S. Postumius, and P. Cornelius - for the second time. At the beginning of the year the tribunes of the plebs made no move until Camillus left for operations against the Faliscans, the theatre of war assigned to him. This delay took the heart out of their agitation, whilst Camillus, the adversary whom they most dreaded, was gaining fresh glory amongst the Faliscans. At first the enemy kept within their walls, thinking this the safest course, but by devastating their fields and burning their farms he compelled them to come outside their city. They were afraid to go very far, and fixed their camp about a mile away; the only thing which gave them any sense of security was the difficulty of approaching it, as all the country round was rough and broken, and the roads narrow in some parts, in others steep. Camillus, however, had gained

information from a prisoner captured in the neighbourhood, and made him act as guide. After breaking up his camp in the dead of night, he showed himself at daybreak in a position considerably higher than the enemy. The Romans of the third line began to entrench, the rest of the army stood ready for battle. When the enemy attempted to hinder the work of entrenchment, he defeated them and put them to flight, and such a panic seized the Faliscans that in their disorderly flight they were carried past their own camp, which was nearer to them, and made for their city. Many were killed and wounded before they could get inside their gates. The camp was taken, the booty sold, and the proceeds paid over to the quaestors, to the intense indignation of the soldiers, but they were overawed by the sternness of their general's discipline, and though they hated his firmness, at the same time they admired it. The city was now invested and regular siege-works were constructed. For some time the townsmen used to attack the Roman outposts whenever they saw an opportunity, and frequent skirmishes took place. Time went on and hope inclined to neither side; corn and other supplies had been previously collected, and the besieged were better provisioned than the besiegers. The task seemed likely to be as long as it had been at Veii, had not fortune given the Roman commander an opportunity of displaying that greatness of mind which had already been proved in deeds of war, and so secured him an early victory.

[5.27]It was the custom of the Faliscans to employ the same person as the master and also as the attendant of their children, and several boys used to be entrusted to one man's care; a custom which prevails in Greece at the present time. Naturally, the man who had the highest reputation for learning was appointed to instruct the children of the principal men. This man had started the practice, in the time of peace, of taking the boys outside the gates for games and exercise, and he kept up the practice after the war had begun, taking them sometimes a shorter, sometimes a longer distance from the city gate. Seizing a favourable opportunity, he kept up the games and the conversations longer than usual, and went on till he was in the midst of the Roman outposts. He then took them into the camp and up to Camillus in the headquarters tent. There he aggravated his villainous act by a still more villainous utterance. He had, he said, given Falerii into the hands of the Romans, since those boys, whose fathers were at the head of affairs in the city, were now placed in their power. On hearing

this Camillus replied, "You, villain, have not come with your villainous offer to a nation or a commander like yourself. Between us and the Faliscans there is no fellowship based on a formal compact as between man and man, but the fellowship which is based on natural instincts exists between us, and will continue to do so. There are rights of war as there are rights of peace, and we have learnt to wage our wars with justice no less than with courage. We do not use our weapons against those of an age which is spared even in the capture of cities, but against those who are armed as we are, and who without any injury or provocation from us attacked the Roman camp at Veii. These men you, as far as you could, have vanquished by an unprecedented act of villainy; I shall vanquish them as I vanquished Veii, by Roman arts, by courage and strategy and force of arms." He then ordered him to be stripped and his hands tied behind his back, and delivered him up to the boys to be taken back to Falerii, and gave them rods with which to scourge the traitor into the city. The people came in crowds to see the sight, the magistrates thereupon convened the senate to discuss the extraordinary incident, and in the end such a revulsion of feeling took place that the very people who in the madness of their rage and hatred would almost sooner have shared the fate of Veii than obtained the peace which Capena enjoyed, now found themselves in company with the whole city asking for peace. The Roman sense of honour, the commander's love of justice, were in all men's mouths in the forum and in the senate, and in accordance with the universal wish, ambassadors were despatched to Camillus in the camp, and with his sanction to the senate in Rome, to make the surrender of Falerii.

On being introduced to the senate, they are reported to have made the following speech: "Senators! vanquished by you and your general through a victory which none, whether god or man, can censure, we surrender ourselves to you, for we think it better to live under your sway than under our own laws, and this is the greatest glory that a conqueror can attain. Through the issue of this war two salutary precedents have been set for mankind. You have preferred the honour of a soldier to a victory which was in your hands; we, challenged by your good faith, have voluntarily given you that victory. We are at your disposal; send men to receive our arms, to receive the hostages, to receive the city whose gates stand open to you. Never shall you have cause to complain of our loyalty, nor we of your rule."

Thanks were accorded to Camillus both by the enemy and by his own countrymen. The Faliscans were ordered to supply the pay of the troops for that year, in order that the Roman people might be free from the war-tax. After the peace was granted, the army was marched back to Rome.

[5.28]After thus subduing the enemy by his justice and good faith, Camillus returned to the City invested with a much nobler glory than when white horses drew him through it in his triumph. The senate could not withstand the delicate reproof of his silence, but at once proceeded to free him from his vow. L. Valerius, L. Sergius, and A. Manlius were appointed as a deputation to carry the golden bowl, made as a gift to Apollo, to Delphi, but the solitary warship in which they were sailing was captured by Liparean pirates not far from the Straits of Sicily, and taken to the islands of Liparae. Piracy was regarded as a kind of State institution, and it was the custom for the government to distribute the plunder thus acquired. That year the supreme magistracy was held by Timasitheus, a man more akin to the Romans in character than to his own countrymen. As he himself revered the name and office of the ambassadors, the gift they had in charge and the god to whom it was being sent, so he inspired the multitude, who generally share the views of their ruler, with a proper religious sense of their duty. The deputation were conducted to the State guest-house, and from there sent on their way to Delphi with a protecting escort of ships, he then brought them back safe to Rome. Friendly relations were established with him on the part of the State, and presents bestowed upon him.

During this year there was war with the Aequi of so undecided a character that it was a matter of uncertainty, both in the armies themselves and in Rome, whether they were victorious or vanquished. The two consular tribunes, C. Aemilius and Spurius Postumius, were in command of the Roman army. At first they carried on joint operations; after the enemy had been routed in the field, they arranged that Aemilius should hold Verrugo whilst Postumius devastated their territory. Whilst he was marching somewhat carelessly after his success, with his men out of order, he was attacked by the Aequi, and such a panic ensued that his troops were driven to the nearest hills, and the alarm spread even to the other army at Verrugo. After they had retreated to a safe position, Postumius summoned his men to assembly and severely rebuked

them for their panic and flight, and for having been routed by such a cowardly and easily defeated foe. With one voice the army exclaimed that his reproaches were deserved; they had, they confessed behaved disgracefully, but they would themselves repair their fault, the enemy would not long have cause for rejoicing. They asked him to lead them at once against the enemy's camp - it was in full view down in the plain - and no punishment would be too severe if they failed to take it before nightfall. He commended their eagerness, and ordered them to refresh themselves and to be ready by the fourth watch. The enemy, expecting the Romans to attempt a nocturnal flight from their hill, were posted to cut them off from the road leading to Verrugo. The action commenced before dawn, but as there was a moon all night, the battle was as clearly visible as if it had been fought by day. The shouting reached Verrugo, and they believed that the Roman camp was being attacked. This created such a panic that in spite of all the appeals of Aemilius in his efforts to restrain them, the garrison broke away and fled in scattered groups to Tusculum. Thence the rumour was carried to Rome that Postumius and his army were slain. As soon as the rising dawn had removed all apprehensions of a surprise in case the pursuit was carried too far, Postumius rode down the ranks demanding the fulfilment of their promise. The enthusiasm of the troops was so roused that the Aequi no longer withstood the attack. Then followed a slaughter of the fugitives, such as might be expected where men are actuated by rage even more than by courage; the army was destroyed. The doleful report from Tusculum and the groundless fears of the City were followed by a laurelled despatch from Postumius announcing the victory of Rome and the annihilation of the Aequian army.

[5.29]As the agitation of the tribunes of the plebs had so far been without result, the plebeians exerted themselves to secure the continuance in office of the proposers of the land measure, whilst the patricians strove for the re-election of those who had vetoed it. The plebeians, however, carried the election, and the senate in revenge for this mortification passed a resolution for the appointment of consuls, the magistracy which the plebs detested. After fifteen years, consuls were once more elected in the persons of L. Lucretius Flavius and Servius Sulpicius Camerinus. At the beginning of the year, as none of their college was disposed to interpose his veto, the tribunes were combined in a determined effort

to carry their measure, while the consuls, for the same reason, offered a no less strenuous resistance. Whilst all the citizens were preoccupied with this struggle, the Aequi successfully attacked the Roman colony at Vitellia, which was situated in their territory. Most of the colonists were uninjured, for the fact of its treacherous capture taking place in the night gave them the chance of escaping in the opposite direction from the enemy and reaching Rome. That field of operations fell to L. Lucretius. He advanced against the enemy and defeated them in a regular engagement, and then came back victorious to Rome, where a still more serious contest awaited him.

A day had been fixed for the prosecution of A. Verginius and Q. Pomponius, who had been tribunes of the plebs two years previously. The senate unanimously agreed that their honour was concerned in defending them, for no one brought any charge against them touching their private life or their public action; the only ground of indictment was that it was to please the senate that they had exercised their veto. The influence of the senate, however, was overborne by the angry temper of the plebeians, and a most vicious precedent was set by the condemnation of those innocent men to a fine of 10,000 "ases" each. The senate were extremely distressed. Camillus openly accused the plebeians of treason in turning against their own magistrates because they did not see that through this iniquitous judgment they had taken from their tribunes the power of veto, and in depriving them of that had overthrown their power. They were deceived if they expected the senate to put up with the absence of any restraint upon the licence of that magistracy. If the violence of tribunes could not be met by the veto of tribunes, the senate would find another weapon. He poured blame on the consuls also for having silently allowed the honour of the State to be compromised in the case of tribunes who had followed the instructions of the senate. By openly repeating these charges he embittered the feeling of the populace more every day.

[5.30]The senate, on the other hand, he was perpetually inciting to oppose the measure. They must not, he said, go down to the Forum, when the day came for voting on it, in any other temper than that of men who realised that they would have to fight for their hearths and altars, for the temples of the gods, and even for the soil on which they had been born. As for himself, if he dared to think of his own reputation when his country's existence was at stake, it would be

indeed an honour to him that the city which he had taken should become a popular resort, that that memorial of his glory should give him daily delight, that he should have before his eyes the city which had been carried in his triumphal procession, and that all should tread in the track of his renown. But he considered it an offence against heaven for a city to be repeopled after it had been deserted and abandoned by the gods, or for the Roman people to dwell on a soil enslaved and change the conquering country for a conquered one. Roused by these appeals of their leader, the senators, old and young, came down in a body to the Forum when the proposal was being put to the vote. They dispersed among the tribes, and each taking his fellow-tribesmen by the hand, implored them with tears not to desert the fatherland, for which they and their fathers had fought so bravely and so successfully. They pointed to the Capitol, the temple of Vesta, and the other divine temples round them, and besought them not to drive the Roman people, as homeless exiles, from their ancestral soil and their household gods into the city of their foes. They even went so far as to say that it were better that Veii had never been taken than that Rome should be deserted. As they were having recourse not to violence but to entreaties, and were interspersing their entreaties with frequent mention of the gods, it became for the majority of voters a religious question and the measure was defeated by a majority of one tribe. The senate were so delighted at their victory that on the following day a resolution was passed, at the instance of the consuls, that seven jugera of the Veientine territory should be allotted to each plebeian, and not to the heads of families only, account was taken of all the children in the house, that men might be willing to bring up children in the hope that they would receive their share.

[5.31] This bounty soothed the feelings of the plebs, and no opposition was offered to the election of consuls. The two elected were L. Valerius Potitus and M. Manlius, who afterwards received the title of Capitolinus. They celebrated the "Great Games" which M. Furius had vowed when Dictator in the Veientine war. In the same year the temple of Queen Juno, which he had also vowed at the same time, was dedicated, and the tradition runs that this dedication excited great interest amongst the matrons, who were present in large numbers. An unimportant campaign was conducted against the Aequi on Algidus; the enemy were routed almost before they came to close quarters. Valerius had shown greater energy in following up

the fugitives; he was accordingly decreed a triumph; Manlius an ovation. In the same year a new enemy appeared in the Volsinians. Owing to famine and pestilence in the district round Rome, in consequence of excessive heat and drought, it was impossible for an army to march. This emboldened the Volsinians in conjunction with the Salpinates to make inroads upon Roman territory. Thereupon war was declared against the two States. C. Julius, the censor, died, and M. Cornelius was appointed in his place. This proceeding was afterwards regarded as an offence against religion because it was during that lustrum that Rome was taken, and no one has ever since been appointed as censor in the room of one deceased. The consuls were attacked by the epidemic, so it was decided that the auspices should be taken afresh by an interrex. The consuls accordingly resigned office in compliance with a resolution of the senate, and M. Furius Camillus was appointed interrex. He appointed P. Cornelius Scipio as his successor, and Scipio appointed L. Valerius Potitus. The last named appointed six consular tribunes, so that if any of them became incapacitated through illness there might still be a sufficiency of magistrates to administer the republic.

[5.32] These were L. Lucretius, Servius Sulpicius, M. Aemilius, L. Furius Medullinus - for the seventh time - Agrippa Furius, and C. Aemilius - for the second time. They entered upon office on the 1st of July. L. Lucretius and C. Aemilius were charged with the campaign against the Volsinians; Agrippa Furius and Servius Sulpicius with the one against the Salpinates. The first action took place with the Volsinians; an immense number of the enemy were engaged, but the fighting was by no means severe. Their line was scattered at the first shock; 8000 who were surrounded by the cavalry laid down their arms and surrendered. On hearing of this battle the Salpinates would not trust themselves to a regular engagement in the field, but sought the protection of their walls. The Romans carried off plunder in all directions from both the Salpinate and Volsinian territories without meeting any resistance. At last the Volsinians, tired of the war, obtained a truce for twenty years on condition that they paid an indemnity for their previous raid and supplied the year's pay for the army. It was in this year that Marcus Caedicius, a member of the plebs, reported to the tribunes that whilst he was in the Via Nova where the chapel now stands, above the temple of Vesta, he heard in the silence of the night a voice more powerful than any human voice

bidding the magistrates be told that the Gauls were approaching. No notice was taken of this, partly owing to the humble rank of the informant, and partly because the Gauls were a distant and therefore an unknown nation. It was not the monitions of the gods only that were set at nought in face of the coming doom. The one human aid which they had against it, M. Furius Camillus, was removed from the City. He was impeached by the plebeian tribune L. Apuleius for his action with reference to the spoils of Veii, and at the time had just been bereaved of his son. He invited the members of his tribe and his clients, who formed a considerable part of the plebs, to his house and sounded their feelings towards him. They told him that they would pay whatever fine was imposed, but it was impossible for them to acquit him. Thereupon he went into exile, after offering up a prayer to the immortal gods that if he were suffering wrongfully as an innocent man, they would make his ungrateful citizens very soon feel the need of him. He was condemned in his absence to pay a fine of 15,000 "ases."

[5.33]After the expulsion of that citizen whose presence, if there is anything certain in human affairs, would have made the capture of Rome impossible, the doom of the fated City swiftly approached. Ambassadors came from Clusium begging for assistance against the Gauls. The tradition is that this nation, attracted by the report of the delicious fruits and especially of the wine - a novel pleasure to them - crossed the Alps and occupied the lands formerly cultivated by the Etruscans, and that Arruns of Clusium imported wine into Gaul in order to allure them into Italy. His wife had been seduced by a Lucumo, to whom he was guardian, and from whom, being a young man of considerable influence, it was impossible to get redress without getting help from abroad. In revenge, Arruns led the Gauls across the Alps and prompted them to attack Clusium. I would not deny that the Gauls were conducted to Clusium by Arruns or some one else living there, but it is quite clear that those who attacked that city were not the first who crossed the Alps. As a matter of fact, Gauls crossed into Italy two centuries before they attacked Clusium and took Rome. Nor were the Clusines the first Etruscans with whom the Gaulish armies came into conflict; long before that they had fought many battles with the Etruscans who dwelt between the Apennines and the Alps. Before the Roman supremacy, the power of the Tuscans was widely extended both by sea and land. How far it

extended over the two seas by which Italy is surrounded like an island is proved by the names, for the nations of Italy call the one the "Tuscan Sea," from the general designation of the people, and the other the "Atriotic," from Atria, a Tuscan colony. The Greeks also call them the "Tyrrhene" and the "Adriatic." The districts stretching towards either sea were inhabited by them. They first settled on this side the Apennines by the western sea in twelve cities, afterwards they founded twelve colonies beyond the Apennines, corresponding to the number of the mother cities. These colonies held the whole of the country beyond the Po as far as the Alps, with the exception of the corner inhabited by the Veneti, who dwelt round an arm of the sea. The Alpine tribes are undoubtedly of the same stock, especially the Raetii, who had through the nature of their country become so uncivilised that they retained no trace of their original condition except their language, and even this was not free from corruption.

[5.34]About the passage of the Gauls into Italy we have received the following account. Whilst Tarquinius Priscus was king of Rome, the supreme power amongst the Celts, who formed a third part of the whole of Gaul, was in the hands of the Bituriges; they used to furnish the king for the whole Celtic race. Ambigatus was king at that time, a man eminent for his own personal courage and prosperity as much as for those of his dominions. During his sway the harvests were so abundant and the population increased so rapidly in Gaul that the government of such vast numbers seemed almost impossible. He was now an old man, and anxious to relieve his realm from the burden of over-population. With this view he signified his intention of sending his sister's sons Bellovesus and Segovesus, both enterprising young men, to settle in whatever locality the gods should by augury assign to them. They were to invite as many as wished to accompany them, sufficient to prevent any nation from repelling their approach. When the auspices were taken, the Hercynian forest was assigned to Segovesus; to Bellovesus the gods gave the far pleasanter way into Italy. He invited the surplus population of six tribes - the Bituriges, the Avernii, the Senones, the Aedui, the Ambarri, the Carnutes, and the Aulerci. Starting with an enormous force of horse and foot, he came to the Tricastini. Beyond stretched the barrier of the Alps, and I am not at all surprised that they appeared insurmountable, for they had never yet been surmounted by any route, as far at least as unbroken memory reaches, unless you choose to believe the fables

about Hercules. Whilst the mountain heights kept the Gauls fenced in as it were there, and they were looking everywhere to see by what path they could cross the peaks which reached to heaven and so enter a new world, they were also prevented from advancing by a sense of religious obligation, for news came that some strangers in quest of territory were being attacked by the Salyi. These were Massilians who had sailed from Phocaea. The Gauls, looking upon this as an omen of their own fortunes, went to their assistance and enabled them to fortify the spot where they had first landed, without any interference from the Salyi. After crossing the Alps by the passes of the Taurini and the valley of the Douro, they defeated the Tuscans in battle not far from the Ticinus, and when they learnt that the country in which they had settled belonged to the Insubres, a name also borne by a canton of the Haedui, they accepted the omen of the place and built a city which they called Mediolanum.

[5.35]Subsequently another body, consisting of the Cenomani, under the leadership of Elitovius, followed the track of the former and crossed the Alps by the same pass, with the goodwill of Bellovesus. They had their settlements where the cities of Brixia and Verona now stand. The Libui came next and the Saluvii; they settled near the ancient tribe of the Ligurian Laevi, who lived about the Ticinus. Then the Boii and Lingones crossed the Pennine Alps, and as all the country between the Po and the Alps was occupied, they crossed the Po on rafts and expelled not only the Etruscans but the Umbrians as well. They remained, however, north of the Apennines. Then the Senones, the last to come, occupied the country from the Utis to the Aesis. It was this last tribe, I find, that came to Clusium, and from there to Rome; but it is uncertain whether they came alone or helped by contingents from all the Cisalpine peoples. The people of Clusium were appalled by this strange war, when they saw the numbers, the extraordinary appearance of the men, and the kind of weapons they used, and heard that the legions of Etruria had been often routed by them on both sides of the Po. Although they had no claim on Rome, either on the ground of alliance or friendly relations, unless it was that they had not defended their kinsmen at Veii against the Romans, they nevertheless sent ambassadors to ask the senate for assistance. Active assistance they did not obtain. The three sons of M. Fabius Ambustus were sent as ambassadors to negotiate with the Gauls and warn them not to attack those from whom they had suffered no

injury, who were allies and friends of Rome, and who, if circumstances compelled them, must be defended by the armed force of Rome. They preferred that actual war should be avoided, and that they should make acquaintance with the Gauls, who were strangers to them, in peace rather than in arms.

[5.36]A peaceable enough mission, had it not contained envoys of a violent temper, more like Gauls than Romans. After they had delivered their instructions in the council of the Gauls, the following reply was given: "Although we are hearing the name of Romans for the first time, we believe nevertheless that you are brave men, since the Clusines are imploring your assistance in their time of danger. Since you prefer to protect your allies against us by negotiation rather than by armed force, we on our side do not reject the peace you offer, on condition that the Clusines cede to us Gauls, who are in need of land, a portion of that territory which they possess to a greater extent than they can cultivate. On any other conditions peace cannot be granted. We wish to receive their reply in your presence, and if territory is refused us we shall fight, whilst you are still here, that you may report to those at home how far the Gauls surpass all other men in courage." The Romans asked them what right they had to demand, under threat of war, territory from those who were its owners, and what business the Gauls had in Etruria. The haughty answer was returned that they carried their right in their weapons, and that everything belonged to the brave. Passions were kindled on both sides; they flew to arms and joined battle. Thereupon, contrary to the law of nations, the envoys seized their weapons, for the Fates were already urging Rome to its ruin. The fact of three of the noblest and bravest Romans fighting in the front line of the Etruscan army could not be concealed, so conspicuous was the valour of the strangers. And what was more, Q. Fabius rode forward at a Gaulish chieftain, who was impetuously charging right at the Etruscan standards, ran his spear through his side and slew him. Whilst he was in the act of despoiling the body the Gauls recognised him, and the word was passed through the whole army that it was a Roman ambassador. Forgetting their rage against the Clusines, and breathing threats against the Romans, they sounded the retreat.

Some were for an instant advance on Rome. The older men thought that ambassadors should first be sent to Rome to make a formal complaint and demand the surrender of the Fabii as satisfaction for

the violation of the law of nations. After the ambassadors had stated their case, the senate, whilst disapproving of the conduct of the Fabii, and recognising the justice of the demand which the barbarians made, were prevented by political interests from placing their convictions on record in the form of a decree in the case of men of such high rank. In order, therefore, that the blame for any defeat which might be incurred in a war with the Gauls might not rest on them alone, they referred the consideration of the Gauls' demands to the people. Here personal popularity and influence had so much more weight that the very men whose punishment was under discussion were elected consular tribunes for the next year. The Gauls regarded this procedure as it deserved to be regarded, namely, as an act of hostility, and after openly threatening war, returned to their people. The other consular tribunes elected with the Fabii were Q. Sulpicius Longus, Q. Servilius - for the fourth time - and P. Cornelius Maluginensis.

[5.37] To such an extent does Fortune blind men's eyes when she will not have her threatened blows parried, that though such a weight of disaster was hanging over the State, no special steps were taken to avert it. In the wars against Fidenae and Veii and other neighbouring States, a Dictator had on many occasions been nominated as a last resource. But now when an enemy, never seen or even heard of before, was rousing up war from ocean and the furthest corners of the world, no recourse was had to a Dictator, no extraordinary efforts were made. Those men through whose recklessness the war had been brought about were in supreme commands as tribunes, and the levy they raised was not larger than had been usual in ordinary campaigns, they even made light of the resorts as to the seriousness of the war. Meantime the Gauls learnt that their embassy had been treated with contempt, and that honours had actually been conferred upon men who had violated the law of nations. Burning with rage - as a nation they cannot control their passions - they seized their standards and hurriedly set out on their march. At the sound of their tumult as they swept by, the affrighted cities flew to arms and the country folk took to flight. Horses and men, spread far and wide, covered an immense tract of country; wherever they went they made it understood by loud shouts that they were going to Rome. But though they were preceded by rumours and by messages from Clusium, and then from one town after another, it was the swiftness of their approach that created most alarm in Rome. An army hastily raised by a levy en masse marched

out to meet them. The two forces met hardly eleven miles from Rome, at a spot where the Alia, flowing in a very deep channel from the Crustumian mountains, joins the river Tiber a little below the road to Crustumerium. The whole country in front and around was now swarming with the enemy, who, being as a nation given to wild outbreaks, had by their hideous howls and discordant clamour filled everything with dreadful noise.

[5.38]The consular tribunes had secured no position for their camp, had constructed no entrenchments behind which to retire, and had shown as much disregard of the gods as of the enemy, for they formed their order of battle without having obtained favourable auspices. They extended their line on either wing to prevent their being outflanked, but even so they could not make their front equal to the enemy's, whilst by thus thinning their line they weakened the centre so that it could hardly keep in touch. On their right was a small eminence which they decided to hold with reserves, and this disposition, though it was the beginning of the panic and flight, proved to be the only means of safety to the fugitives. For Bennis, the Gaulish chieftain, fearing some ruse in the scanty numbers of the enemy, and thinking that the rising ground was occupied in order that the reserves might attack the flank and rear of the Gauls while their front was engaged with the legions, directed his attack upon the reserves, feeling quite certain that if he drove them from their position, his overwhelming numbers would give him an easy victory on the level ground. So not only Fortune but tactics also were on the side of the barbarians. In the other army there was nothing to remind one of Romans either amongst the generals or the private soldiers. They were terrified, and all they thought about was flight, and so utterly had they lost their heads that a far greater number fled to Veii, a hostile city, though the Tiber lay in their way, than by the direct road to Rome, to their wives and children. For a short time the reserves were protected by their position. In the rest of the army, no sooner was the battle-shout heard on their flank by those nearest to the reserves, and then by those at the other end of the line heard in their rear, than they fled, whole and unhurt, almost before they had seen their untried foe, without any attempt to fight or even to give back the battle-shout. None were slain while actually fighting; they were cut down from behind whilst hindering one another's flight in a confused, struggling mass. Along the bank of the Tiber, whither the

whole of the left wing had fled, after throwing away their arms, there was great slaughter. Many who were unable to swim or were hampered by the weight of their cuirasses and other armour were sucked down by the current. The greater number, however, reached Veii in safety, yet not only were no troops sent from there to defend the City, but not even was a messenger despatched to report the defeat to Rome. All the men on the right wing, which had been stationed some distance from the river, and nearer to the foot of the hill, made for Rome and took refuge in the Citadel without even closing the City gates.

[5.39]The Gauls for their part were almost dumb with astonishment at so sudden and extraordinary a victory. At first they did not dare to move from the spot, as though puzzled by what had happened, then they began to fear a surprise, at last they began to despoil the dead, and, as their custom is, to pile up the arms in heaps. Finally, as no hostile movement was anywhere visible, they commenced their march and reached Rome shortly before sunset. The cavalry, who had ridden on in front, reported that the gates were not shut, there were no pickets on guard in front of them, no troops on the walls. This second surprise, as extraordinary as the previous one, held them back, and fearing a nocturnal conflict in the streets of an unknown City, they halted and bivouacked between Rome and the Anio. Reconnoitring parties were sent out to examine the circuit of the walls and the other gates, and to ascertain what plans their enemies were forming in their desperate plight. As for the Romans, since the greater number had fled from the field in the direction of Veii instead of Rome, it was universally believed that the only survivors were those who had found refuge in Rome, and the mourning for all who were lost, whether living or dead, filled the whole City with the cries of lamentation. But the sounds of private grief were stifled by the general terror when it was announced that the enemy were at hand. Presently the yells and wild war-whoops of the squadrons were heard as they rode round the walls. All the time until the next day's dawn the citizens were in such a state of suspense that they expected from moment to moment an attack on the City. They expected it first when the enemy approached the walls, for they would have remained at the Alia had not this been their object; then just before sunset they thought the enemy would attack because there was not much daylight left; and then when night was fallen they imagined that the attack was

delayed till then to create all the greater terror. Finally, the approach of the next day deprived them of their senses; the entrance of the enemy's standards within the gates was the dreadful climax to fears that had known no respite.

But all through that night and the following day the citizens afforded an utter contrast to those who had fled in such terror at the Alia. Realising the hopelessness of attempting any defence of the City with the small numbers that were left, they decided that the men of military age and the able-bodied amongst the senators should, with their wives and children, withdraw into the Citadel and the Capitol, and after getting in stores of arms and provisions, should from that fortified position defend their gods, themselves, and the great name of Rome. The Flamen and priestesses of Vesta were to carry the sacred things of the State far away from the bloodshed and the fire, and their sacred cult should not be abandoned as long as a single person survived to observe it. If only the Citadel and the Capitol, the abode of gods; if only the senate, the guiding mind of the national policy; if only the men of military age survived the impending ruin of the City, then the loss of the crowd of old men left behind in the City could be easily borne; in any case, they were certain to perish. To reconcile the aged plebeians to their fate, the men who had been consuls and enjoyed triumphs gave out that they would meet their fate side by side with them, and not burden the scanty force of fighting men with bodies too weak to carry arms or defend their country.

[5.40] Thus they sought to comfort one another - these aged men doomed to death. Then they turned with words of encouragement to the younger men on their way to the Citadel and Capitol, and solemnly commended to their strength and courage all that was left of the fortunes of a City which for 360 years had been victorious in all its wars. As those who were carrying with them all hope and succour finally separated from those who had resolved not to survive the fall of the City the misery of the scene was heightened by the distress of the women. Their tears, their distracted running about as they followed first their husbands then their sons, their imploring appeals to them not to leave them to their fate, made up a picture in which no element of human misery was wanting. A great many of them actually followed their sons into the Capitol, none forbidding or inviting them, for though to diminish the number of non-

combatants would have helped the besieged, it was too inhuman a step to take. Another crowd, mainly of plebeians, for whom there was not room on so small a hill or food enough in the scanty store of corn, poured out of the City in one continuous line and made for the Janiculum. From there they dispersed, some over the country, others towards the neighbouring cities, without any leader or concerted action, each following his own aims, his own ideas. and all despairing of the public safety. While all this was going on, the Flamen of Quirinus and the Vestal virgins, without giving a thought to their own property, were deliberating as to which of the sacred things they ought to take with them, and which to leave behind, since they had not strength enough to carry all, and also what place would be the safest for their custody. They thought best to conceal what they could not take in earthen jars and bury them under the chapel next to the Flamen's house, where spitting is now forbidden. The rest they divided amongst them and carried off, taking the road which leads by the Pons Sublicius to the Janiculum. Whilst ascending that hill they were seen by L. Albinus, a Roman plebeian who with the rest of the crowd who were unfit for war was leaving the City. Even in that critical hour the distinction between sacred and profane was not forgotten. He had his wife and children with him in a wagon, and it seemed to him an act of impiety for him and his family to be seen in a vehicle whilst the national priests should be trudging along on foot, bearing the sacred vessels of Rome. He ordered his wife and children to get down, put the virgins and their sacred burden in the wagon, and drove them to Caere, their destination.

[5.41]After all the arrangements that circumstances permitted had been made for the defence of the Capitol, the old men returned to their respective homes and, fully prepared to die, awaited the coming of the enemy. Those who had filled curule offices resolved to meet their fate wearing the insignia of their former rank and honour and distinctions. They put on the splendid dress which they wore when conducting the chariots of the gods or riding in triumph through the City, and thus arrayed, they seated themselves in their ivory chairs in front of their houses. Some writers record that, led by M. Fabius, the Pontifex Maximus, they recited the solemn formula in which they devoted themselves to death for their country and the Quirites. As the Gauls were refreshed by a night's rest after a battle which had at no point been seriously contested, and as they were not now taking

the City by assault or storm, their entrance the next day was not marked by any signs of excitement or anger. Passing the Colline gate, which was standing open, they came to the Forum and gazed round at the temples and at the Citadel, which alone wore any appearance of war. They left there a small body to guard against any attack from the Citadel or Capitol whilst they were scattered, and then they dispersed in quest of plunder through streets in which they did not meet a soul. Some poured in a body into all the houses near, others made for the most distant ones, expecting to find them untouched and full of spoils. Appalled by the very desolation of the place and dreading lest some stratagem should surprise the stragglers, they returned to the neighbourhood of the Forum in close order. The houses of the plebeians were barricaded, the halls of the patricians stood open, but they felt greater hesitation about entering the open houses than those which were closed. They gazed with feelings of real veneration upon the men who were seated in the porticoes of their mansions, not only because of the superhuman magnificence of their apparel and their whole bearing and demeanour, but also because of the majestic expression of their countenances, wearing the very aspect of gods. So they stood, gazing at them as if they were statues, till, as it is asserted, one of the patricians, M. Papirius, roused the passion of a Gaul, who began to stroke his beard - which in those days was universally worn long - by smiting him on the head with his ivory staff. He was the first to be killed, the others were butchered in their chairs. After this slaughter of the magnates, no living being was thenceforth spared; the houses were rifled, and then set on fire.

[5.42]Now - whether it was that the Gauls were not all animated by a passion for the destruction of the City, or whether their chiefs had decided on the one hand to present the spectacle of a few fires as a means of intimidating the besieged into surrender from a desire to save their homes, and on the other, by abstaining from a universal conflagration, hold what remained of the City as a pledge by which to weaken their enemies' determination - certain it is that the fires were far from being so indiscriminate or so extensive as might be expected on the first day of a captured city. As the Romans beheld from the Citadel the City filled with the enemy who were running about in all the streets, while some new disaster was constantly occurring, first in one quarter then in another, they could no longer control their eyes and ears, let alone their thoughts and feelings. In

whatever direction their attention was drawn by the shouts of the enemy, the shrieks of the women and boys, the roar of the flames, and the crash of houses falling in, thither they turned their eyes and minds as though set by Fortune to be spectators of their country's fall, powerless to protect anything left of all they possessed beyond their lives. Above all others who have ever stood a siege were they to be pitied, cut off as they were from the land of their birth and seeing all that had been theirs in the possession of the enemy. The day which had been spent in such misery was succeeded by a night not one whit more restful, this again by a day of anguish, there was not a single hour free from the sight of some ever fresh calamity. And yet, though, weighed down and overwhelmed with so many misfortunes, they had watched everything laid low in flame and ruin, they did not for a moment relax their determination to defend by their courage the one spot still left to freedom, the hill which they held, however small and poor it might be. At length, as this state of things went on day by day, they became as it were hardened to misery, and turned their thoughts from the circumstances round them to their arms and the sword in their right hand, which they gazed upon as the only things left to give them hope.

[5.43]For some days the Gauls had been making useless war merely upon the houses of the City. Now that they saw nothing surviving amidst the ashes and ruin of the captured City except an armed foe whom all these disasters had failed to appal, and who would entertain no thought of surrender unless force were employed, they determined as a last resort to make an assault on the Citadel. At daybreak the signal was given and the whole of their number formed up in the Forum. Raising their battle-shout and locking their shields together over their heads, they advanced. The Romans awaited the attack without excitement or fear, the detachments were strengthened to guard all the approaches, and in whatever direction they saw the enemy advancing, there they posted a picked body of men and allowed the enemy to climb up, for the steeper the ground they got on to, the easier they thought it would be to fling them down the slope. About midway up the hill the Gauls halted; then from the higher ground, which of itself almost hurled them against the enemy, the Romans charged, and routed the Gauls with such loss and overthrow that they never again attempted that mode of fighting either with detachments or in full strength. All hope, therefore, of

forcing a passage by direct assault being laid aside, they made preparations for a blockade. Up to that time they had never thought of one; all the corn in the City had been destroyed in the conflagrations, whilst that in the fields around had been hastily carried off to Veii since the occupation of the City. So the Gauls decided to divide their forces; one division was to invest the Citadel, the other to forage amongst the neighbouring States so that they could supply corn to those who were keeping up the investment. It was Fortune herself who led the Gauls after they left the City to Ardea, that they might have some experience of Roman courage. Camillus was living there as an exile, grieving more over his country's fortunes than his own, eating his heart out in reproaches to gods and men, asking in indignant wonder where the men were with whom he had taken Veii and Falerii; men whose valour in all their wars was greater even than their success. Suddenly he heard that the Gaulish army was approaching, and that the Ardeates were engaged in anxious deliberation about it. He had generally avoided the council meetings, but now, seized with an inspiration nothing short of divine, he hastened to the assembled councillors and addressed them as follows:

[5.44]"Men of Ardea! friends of old, and now my fellow-citizens - for this your kindness has granted, this my fortunes have compelled - let none of you imagine that I have come here in forgetfulness of my position. The force of circumstances and the common danger constrain every man to contribute what help he can to meet the crisis. When shall I ever be able to show my gratitude for all the obligations you have conferred if I fail in my duty now? When shall I ever be of any use to you if not in war? It was by that that I held my position in my native City as having never known defeat; in times of peace my ungrateful countrymen banished me. Now the chance is offered to you, men of Ardea, of proving your gratitude for all the kindness that Rome has shown you - you have not forgotten how great it is, nor need I bring it up against those who so well remember it - the chance of winning for your city a vast reputation for war at the expense of our common foe. Those who are coming here in loose and disorderly fashion are a race to whom nature has given bodies and minds distinguished by bulk rather than by resolution and endurance. It is for this reason that they bring into every battle a terrifying appearance rather than real force. Take the disaster of Rome as a proof. They

captured the City because it lay open to them; a small force repelled them from the Citadel and Capitol. Already the irksomeness of an investment has proved too much for them, they are giving it up and wandering through the fields in straggling parties. When they are gorged with food and the wine they drink so greedily, they throw themselves down like wild beasts, on the approach of night, in all directions by the streams, without entrenching themselves, or setting any outposts or pickets on guard. And now after their success they are more careless than ever. If it is your intention to defend your walls and not to allow all this country to become a second Gaul, seize your arms and muster in force by the first watch and follow me to what will be a massacre, not a battle. If I do not deliver them, whilst enchained by sleep, into your hands to be slaughtered like cattle, I am ready to accept the same fate in Ardea which I met with in Rome."

[5.45] Friends and foes were alike persuaded that nowhere else was there at that time so great a master of war. After the council broke up they refreshed themselves and waited eagerly for the signal to be given. When it was given in the silence of the night they were at the gates ready for Camillus. After marching no great distance from the city they came upon the camp of the Gauls, unprotected, as he had said, and carelessly open on every side. They raised a tremendous shout and rushed in; there was no battle, it was everywhere sheer massacre; the Gauls, defenceless and dissolved in sleep, were butchered as they lay. Those in the furthest part of the camp, however, startled from their lairs, and not knowing whence or what the attack was, fled in terror, and some actually rushed, unawares, amongst their assailants. A considerable number were carried into the neighbourhood of Antium, where they were surrounded by the townsmen. A similar slaughter of Etruscans took place in the district of Veii. So far were these people from feeling sympathy with a City which for almost four centuries had been their neighbour, and was now crushed by an enemy never seen or heard of before, that they chose that time for making forays into Roman territory, and after loading themselves with plunder, intended to attack Veii, the bulwark and only surviving hope of the Roman name. The Roman soldiers at Veii had seen them dispersed through the fields, and afterwards, with their forces collected, driving their booty in front of them. Their first feelings were those of despair, then indignation and rage took possession of them. "Are even the Etruscans," they exclaimed, "from

whom we have diverted the arms of Gaul on to ourselves, to find amusement in our disasters?" With difficulty they restrained themselves from attacking them. Caedicius, a centurion whom they had placed in command, induced them to defer operations till nightfall. The only thing lacking was a commander like Camillus, in all other respects the ordering of the attack and the success achieved were the same as if he had been present. Not content with this, they made some prisoners who had survived the night's massacre act as guides, and, led by them, surprised another body of Tuscans at the salt works and inflicted a still greater loss upon them. Exultant at this double victory they returned to Veii.

[5.46]During these days there was little going on in Rome; the investment was maintained for the most part with great slackness; both sides were keeping quiet, the Gauls being mainly intent on preventing any of the enemy from slipping through their lines. Suddenly a Roman warrior drew upon himself the admiration of foes and friends alike. The Fabian house had an annual sacrifice on the Quirinal, and C. Fabius Dorsuo, wearing his toga in the "Gabine cincture," and bearing in his hands the sacred vessels, came down from the Capitol, passed through the middle of the hostile pickets, unmoved by either challenge or threat, and reached the Quirinal. There he duly performed all the solemn rites and returned with the same composed expression and gait, feeling sure of the divine blessing, since not even the fear of death had made him neglect the worship of the gods; finally he re-entered the Capitol and rejoined his comrades. Either the Gauls were stupefied at his extraordinary boldness, or else they were restrained by religious feelings, for as a nation they are by no means inattentive to the claims of religion. At Veii there was a steady accession of strength as well as courage. Not only were the Romans who had been dispersed by the defeat and the capture of the City gathering there, but volunteers from Latium also flocked to the place that they might be in for a share of the booty. The time now seemed ripe for the recovery of their native City out of the hands of the enemy. But though the body was strong it lacked a head. The very place reminded men of Camillus, the majority of the soldiers had fought successfully under his auspices and leadership, and Caedicius declared that he would give neither gods nor men any pretext for terminating his command; he would rather himself, remembering his subordinate rank, ask for a commander-in-chief. It

was decided by general consent that Camillus should be invited from Ardea, but the senate was to be consulted first; to such an extent was everything regulated by reverence for law; the proper distinctions of things were observed, even though the things themselves were almost lost.

Frightful risk would have to be incurred in passing through the enemies' outposts. Pontius Cominius, a fine soldier, offered himself for the task. Supporting himself on a cork float, he was carried down the Tiber to the City. Selecting the nearest way from the bank of the river, he scaled a precipitous rock which, owing to its steepness, the enemy had left unguarded, and found his way into the Capitol. On being brought before the supreme magistrates he delivered his instructions from the army. After receiving the decree of the senate, which was to the effect that after being recalled from exile by the *comitia curiata*, Camillus should be forthwith nominated Dictator by order of the people, and the soldiers should have the commander they wanted, the messenger returned by the same route and made the best of his way to Veii. A deputation was sent to Ardea to conduct Camillus to Veii. The law was passed in the *comitia curiata* annulling his banishment and nominating him Dictator, and it is, I think, more likely that he did not start from Ardea until he learnt that this law had been passed, because he could not change his domicile without the sanction of the people, nor could he take the auspices in the name of the army until he had been duly nominated Dictator.

[5.47] While these proceedings were taking place at Veii, the Citadel and Capitol of Rome were in imminent danger. The Gauls had either noticed the footprints left by the messenger from Veii, or had themselves discovered a comparatively easy ascent up the cliff to the temple of Carmentis. Choosing a night when there was a faint glimmer of light, they sent an unarmed man in advance to try the road; then handing one another their arms where the path was difficult, and supporting each other or dragging each other up as the ground required, they finally reached the summit. So silent had their movements been that not only were they unnoticed by the sentinels, but they did not even wake the dogs, an animal peculiarly sensitive to nocturnal sounds. But they did not escape the notice of the geese, which were sacred to Juno and had been left untouched in spite of the extremely scanty supply of food. This proved the safety of the garrison, for their clamour and the noise of their wings aroused M.

Manlius, the distinguished soldier, who had been consul three years before. He snatched up his weapons and ran to call the rest to arms, and while the rest hung back he struck with the boss of his shield a Gaul who had got a foothold on the summit and knocked him down. He fell on those behind and upset them, and Manlius slew others who had laid aside their weapons and were clinging to the rocks with their hands. By this time others had joined him, and they began to dislodge the enemy with volleys of stones and javelins till the whole body fell helplessly down to the bottom. When the uproar had died away, the remainder of the night was given to sleep, as far as was possible under such disturbing circumstances, whilst their peril, though past, still made them anxious.

At daybreak the soldiers were summoned by sound of trumpet to a council in the presence of the tribunes, when the due rewards for good conduct and for bad would be awarded. First, Manlius was commended for his bravery, and rewarded not by the tribunes alone but by the soldiers as a body, for every man brought to him at his quarters, which were in the Citadel, half a pound of meal and a quarter of a pint of wine. This does not sound much, but the scarcity made it an overwhelming proof of the affection felt for him, since each stinted himself of food and contributed in honour of that one man what had to be taken from his necessities of life. Next, the sentinels who had been on duty at the spot where the enemy had climbed up without their noticing it were called forward. Q. Sulpicius, the consular tribune, declared that he should punish them all by martial law. He was, however, deterred from this course by the shouts of the soldiers, who all agreed in throwing the blame upon one man. As there was no doubt of his guilt, he was amidst general approval flung from the top of the cliff. A stricter watch was now kept on both sides; by the Gauls because it had become known that messengers were passing between Rome and Veii; by the Romans, who had not forgotten the danger they were in that night.

[5.48]But the greatest of all the evils arising from the siege and the war was the famine which began to afflict both armies, whilst the Gauls were also visited with pestilence. They had their camp on low-lying ground between the hills, which had been scorched by the fires and was full of malaria, and the least breath of wind raised not dust only but ashes. Accustomed as a nation to wet and cold, they could not stand this at all, and tortured as they were by heat and suffocation,

disease became rife among them, and they died off like sheep. They soon grew weary of burying their dead singly, so they piled the bodies into heaps and burned them indiscriminately, and made the locality notorious; it was afterwards known as the *Busta Gallica*. Subsequently a truce was made with the Romans, and with the sanction of the commanders, the soldiers held conversations with each other. The Gauls were continually bringing up the famine and calling upon them to yield to necessity and surrender. To remove this impression it is said that bread was thrown in many places from the Capitol into the enemies' pickets. But soon the famine could neither be concealed nor endured any longer. So, at the very time that the Dictator was raising his own levy at Ardea, and ordering his Master of the Horse, L. Valerius, to withdraw his army from Veii, and making preparations for a sufficient force with which to attack the enemy on equal terms, the army of the Capitol, worn out with incessant duty, but still superior to all human ills, had nature not made famine alone insuperable by them, were day by day eagerly watching for signs of any help from the Dictator. At last not only food but hope failed them. Whenever the sentinels went on duty, their feeble frames almost crushed by the weight of their armour, the army insisted that they should either surrender or purchase their ransom on the best terms they could, for the Gauls were throwing out unmistakable hints that they could be induced to abandon the siege for a moderate consideration. A meeting of the senate was now held, and the consular tribunes were empowered to make terms. A conference took place between Q. Sulpicius, the consular tribune, and Brennus, the Gaulish chieftain, and an agreement was arrived at by which 1000 lbs. of gold was fixed as the ransom of a people destined ere long to rule the world. This humiliation was great enough as it was, but it was aggravated by the despicable meanness of the Gauls, who produced unjust weights, and when the tribune protested, the insolent Gaul threw his sword into the scale, with an exclamation intolerable to Roman ears, "Woe to the vanquished!"

[5.49]But gods and men alike prevented the Romans from living as a ransomed people. By a dispensation of Fortune it came about that before the infamous ransom was completed and all the gold weighed out, whilst the dispute was still going on, the Dictator appeared on the scene and ordered the gold to be carried away and the Gauls to move off. As they declined to do so, and protested that a definite

compact had been made, he informed them that when he was once appointed Dictator no compact was valid which was made by an inferior magistrate without his sanction. He then warned the Gauls to prepare for battle, and ordered his men to pile their baggage into a heap, get their weapons ready, and win their country back by steel, not by gold. They must keep before their eyes the temples of the gods, their wives and children, and their country's soil, disfigured by the ravages of war - everything, in a word, which it was their duty to defend, to recover or to avenge. He then drew up his men in the best formation that the nature of the ground, naturally uneven and now half burnt, admitted, and made every provision that his military skill suggested for securing the advantage of position and movement for his men. The Gauls, alarmed at the turn things had taken, seized their weapons and rushed upon the Romans with more rage than method. Fortune had now turned, divine aid and human skill were on the side of Rome. At the very first encounter the Gauls were routed as easily as they had conquered at the Alia. In a second and more sustained battle at the eighth milestone on the road to Gabii, where they had rallied from their flight, they were again defeated under the generalship and auspices of Camillus. Here the carnage was complete; the camp was taken, and not a single man was left to carry tidings of the disaster. After thus recovering his country from the enemy, the Dictator returned in triumph to the City, and amongst the homely jests which soldiers are wont to bandy, he was called in no idle words of praise, "A Romulus," "The Father of his country," "The Second Founder of the City." He had saved his country in war, and now that peace was restored, he proved, beyond all doubt, to be its saviour again, when he prevented the migration to Veii. The tribunes of the plebs were urging this course more strongly than ever now that the City was burnt, and the plebs were themselves more in favour of it. This movement and the pressing appeal which the senate made to him not to abandon the republic while the position of affairs was so doubtful, determined him not to lay down his dictatorship after his triumph.

[5.50]As he was most scrupulous in discharging religious obligations, the very first measures he introduced into the senate were those relating to the immortal gods. He got the senate to pass a resolution containing the following provisions: All the temples, so far as they had been in possession of the enemy, were to be restored and

purified, and their boundaries marked out afresh; the ceremonies of purification were to be ascertained from the sacred books by the duumvirs. Friendly relations as between State and State were to be established with the people of Caere, because they had sheltered the sacred treasures of Rome and her priests, and by this kindly act had prevented any interruption to the divine worship. Capitoline Games were to be instituted, because Jupiter Optimus Maximus had protected his dwelling-place and the Citadel of Rome in the time of danger, and the Dictator was to form a college of priests for that object from amongst those who were living on the Capitol and in the Citadel. Mention was also made of offering propitiation for the neglect of the nocturnal Voice which was heard announcing disaster before the war began, and orders were given for a temple to be built in the Nova Via to AIUS LOCUTIUS. The gold which had been rescued from the Gauls and that which during the confusion had been brought from the other temples, had been collected in the temple of Jupiter. As no one remembered what proportion ought to be returned to the other temples, the whole was declared sacred, and ordered to be deposited under the throne of Jupiter. The religious feeling of the citizens had already been shown in the fact that when there was not sufficient gold in the treasury to make up the sum agreed upon with the Gauls, they accepted the contribution of the matrons, to avoid touching that which was sacred. The matrons received public thanks, and the distinction was conferred upon them of having funeral orations pronounced over them as in the case of men. It was not till after those matters were disposed of which concerned the gods, and which therefore were within the province of the senate, that Camillus' attention was drawn to the tribunes, who were making incessant harangues to persuade the plebs to leave the ruins and migrate to Veii, which was ready for them. At last he went up to the Assembly, followed by the whole of the senate, and delivered the following speech: -

[5.51]"So painful to me, Quirites, are controversies with the tribunes of the plebs, that all the time I lived at Ardea my one consolation in my bitter exile was that I was far removed from these conflicts. As far as they are concerned I would never have returned even if you recalled me by a thousand senatorial decrees and popular votes. And now that I am returned, it was not change of mind on my part but change of fortune on yours that compelled me. The question at stake

was whether my country was to remain unshaken in her seat, not whether I was to be in my country at any cost. Even now I would gladly remain quiet and hold my peace, if I were not fighting another battle for my country. To be wanting to her, as long as life shall last, would be for other men a disgrace, for Camillus a downright sin. Why did we win her back, why did we, when she was beset by foes, deliver her from their hands, if, now that she is recovered, we desert her? Whilst the Gauls were victorious and the whole of the City in their power, the gods and men of Rome still held, still dwelt in, the Capitol and the Citadel. And now that the Romans are victorious and the City recovered, are the Citadel and Capitol to be abandoned? Shall our good fortune inflict greater desolation on this City than our evil fortune wrought? Even had there been no religious institutions established when the City was founded and passed down from hand to hand, still, so clearly has Providence been working in the affairs of Rome at this time, that I for one would suppose that all neglect of divine worship has been banished from human life. Look at the alternations of prosperity and adversity during these late years; you will find that all went well with us when we followed the divine guidance, and all was disastrous when we neglected it. Take first of all the war with Veii. For what a number of years and with what immense exertions it was carried on! It did not come to an end before the water was drawn off from the Alban Lake at the bidding of the gods. What, again, of this unparalleled disaster to our City? Did it burst upon us before the Voice sent from heaven announcing the approach of the Gauls was treated with contempt, before the law of nations had been outraged by our ambassadors, before we had, in the same irreligious spirit, condoned that outrage when we ought to have punished it? And so it was that, defeated, captured, ransomed, we received such punishment at the hands of gods and men that we were a lesson to the whole world. Then, in our adversity, we bethought us of our religious duties. We fled to the gods in the Capitol, to the seat of Jupiter Optimus Maximus; amidst the ruin of all that we possessed we concealed some of the sacred treasures in the earth, the rest we carried out of the enemies' sight to neighbouring cities; abandoned as we were by gods and men, we still did not intermit the divine worship. It is because we acted thus that they have restored to us our native City, and victory and the renown in war which we had lost; but against the enemy, who, blinded by avarice, broke treaty and troth in

the weighing of the gold, they have launched terror and rout and death.

[5.52]"When you see such momentous consequences for human affairs flowing from the worship or the neglect of the gods, do you not realise, Quirites, how great a sin we are meditating whilst hardly yet emerging from the shipwreck caused by our former guilt and fall? We possess a City which was founded with the divine approval as revealed in auguries and auspices; in it there is not a spot which is not full of religious associations and the presence of a god; the regular sacrifices have their appointed places no less than they have their appointed days. Are you, Quirites, going to desert all these gods - those whom the State honours, those whom you worship, each at your own altars? How far does your action come up to that of the glorious youth C. Fabius, during the siege, which was watched by the enemy with no less admiration than by you, when he went down from the Citadel through the missiles of the Gauls and celebrated the appointed sacrifice of his house on the Quirinal? Whilst the sacred rites of the patrician houses are not interrupted even in time of war, are you content to see the State offices of religion and the gods of Rome abandoned in a time of peace? Are the Pontiffs and Flamens to be more neglectful of their public functions than a private individual is of the religious obligations of his house?

"Some one may possibly reply that we can either discharge these duties at Veii or send priests to discharge them here. But neither of these things can be done if the rites are to be duly performed. Not to mention all the ceremonies or all the deities individually, where else, I would ask, but in the Capitol can the couch of Jupiter be prepared on the day of his festal banquet? What need is there for me to speak about the perpetual fire of Vesta, and the Image - the pledge of our dominion - which is in the safe keeping of her temple? And you, Mars Gradivus, and you, Father Quirinus, what need to speak of your sacred shields? Is it your wish that all these holy things, coeval with the City, some of even greater antiquity, should be abandoned and left on unhallowed soil? See, too, how great the difference between us and our ancestors. They left to us certain rites and ceremonies which we can only duly perform on the Alban Mount or at Lavinium. If it was a matter of religion that these rites should not be transferred from cities which belonged to an enemy to us at Rome, shall we transfer them from here to the enemies' city, Veii, without offending

heaven? Call to mind, I pray you, how often ceremonies are repeated, because through negligence or accident some detail of the ancestral ritual has been omitted. What remedy was there for the republic, when crippled by the war with Veii after the portent of the Alban Lake, except the revival of sacred rites and the taking of fresh auspices? And more than that, as though after all we revered the ancient faiths, we have transferred foreign deities to Rome, and have established new ones. Queen Juno was lately carried from Veii and dedicated on the Aventine, and how splendidly that day was celebrated through the grand enthusiasm of our matrons! We ordered a temple to be built to Aius Locutius because of the divine Voice which was heard in the Via Nova. We have added to our annual festivals the Capitoline Games, and on the authority of the senate we have founded a college of priests to superintend them. What necessity was there for all these undertakings if we intended to leave the City of Rome at the same time as the Gauls, if it was not of our own free will that we remained in the Capitol through all those months, but the fear of the enemy which shut us up there?

"We are speaking about the temples and the sacred rites and ceremonies. But what, pray, about the priests? Do you not realise what a heinous sin will be committed? For the Vestals surely there is only that one abode, from which nothing has ever removed them but the capture of the City. The Flamen of Jupiter is forbidden by divine law to stay a single night outside the City. Are you going to make these functionaries priests of Veii instead of priests of Rome? Will thy Vestals desert thee, Vesta? Is the Flamen to bring fresh guilt upon himself and the State for every night he sojourns abroad? Think of the other proceedings which, after the auspices have been duly taken, we conduct almost entirely within the City boundaries - to what oblivion, to what neglect are we consigning them! The Assembly of the Curies, which confers the supreme command, the Assembly of the Centuries, in which you elect the consuls and consular tribunes - where can they be held and the auspices taken except where they are wont to be held? Shall we transfer these to Veii, or are the people, when an Assembly is to be held, to meet at vast inconvenience in this City after it has been deserted by gods and men?

[5.53]"But, you may say, it is obvious that the whole City is polluted, and no expiatory sacrifices can purify it; circumstances themselves

compel us to quit a City devastated by fire, and all in ruins, and migrate to Veii where everything is untouched. We must not distress the poverty-stricken plebs by building here. I fancy, however, Quirites, that it is evident to you, without my telling you, that this suggestion is a plausible excuse rather than a true reason. You remember how this same question of migrating to Veii was mooted before the Gauls came, whilst public and private buildings were still safe and the City stood secure. And mark you, tribunes, how widely my view differs from yours. Even supposing it ought not to have been done then, you think that at any rate it ought to be done now, whereas - do not express surprise at what I say before you have grasped its purport - I am of opinion that even had it been right to migrate then when the City was wholly unhurt, we ought not to abandon these ruins now. For at that time the reason for our migrating to a captured city would have been a victory glorious for us and for our posterity, but now this migration would be glorious for the Gauls, but for us shame and bitterness. For we shall be thought not to have left our native City as victors, but to have lost it because we were vanquished; it will look as though it was the flight at the Alia, the capture of the City, the beleaguering of the Capitol, which had laid upon us the necessity of deserting our household gods and dooming ourselves to banishment from a place which we were powerless to defend. Was it possible for Gauls to overthrow Rome and shall it be deemed impossible for Romans to restore it?

"What more remains except for them to come again with fresh forces - we all know that their numbers surpass belief - and elect to live in this City which they captured, and you abandoned, and for you to allow them to do so? Why, if it were not Gauls who were doing this, but your old enemies, the Aequi and Volscians, who migrated to Rome, would you wish them to be Romans and you Veientes? Or would you rather that this were a desert of your own than the city of your foes? I do not see what could be more infamous. Are you prepared to allow this crime and endure this disgrace because of the trouble of building? If no better or more spacious dwelling could be put up in the whole City of Rome than that hut of our Founder, would it not be better to live in huts after the manner of herdsmen and peasants, surrounded by our temples and our gods, than to go forth as a nation of exiles? Our ancestors, shepherds and refugees, built a new City in a few years, when there was nothing in these parts

but forests and swamps; are we shirking the labour of rebuilding what has been burnt, though the Citadel and Capitol are intact, and the temples of the gods still stand? What we would each have done in our own case, had our houses caught fire, are we as a community refusing to do now that the City has been burnt?

[5.54]"Well now, suppose that either through crime or accident a fire broke out in Veii, and the flames, as is quite possible, fanned by the wind, consumed a great part of the city, are we going to look out for Fidenae or Gabii, or any other city you please, as a place to which to migrate? Has our native soil, this land we call our motherland, so slight a hold upon us? Does our love for our country cling only to its buildings? Unpleasant as it is to recall my sufferings, still more your injustice, I will nevertheless confess to you that whenever I thought of my native City all these things came into my mind - the hills, the plains, the Tiber, this landscape so familiar to me, this sky beneath which I was born and bred - and I pray that they may now move you by the affection they inspire to remain in your City, rather than that, after you have abandoned it, they should make you pine with homesickness. Not without good reason did gods and men choose this spot as the site of a City, with its bracing hills, its commodious river, by means of which the produce of inland countries may be brought down and over-sea supplies obtained; a sea near enough for all useful purposes, but not so near as to be exposed to danger from foreign fleets; a district in the very centre of Italy - in a word, a position singularly adapted by nature for the expansion of a city. The mere size of so young a City is a proof of this. This is the 365th year of the City, Quirites, yet in all the wars you have for so long been carrying on amongst all those ancient nations - not to mention the separate cities - the Volscians in conjunction with the Aequi and all their strongly fortified towns, the whole of Etruria, so powerful by land and sea, and stretching across Italy from sea to sea - none have proved a match for you in war. This has hitherto been your Fortune; what sense can there be - perish the thought! - in making trial of another Fortune? Even granting that your valour can pass over to another spot, certainly the good Fortune of this place cannot be transferred. Here is the Capitol where in the old days a human head was found, and this was declared to be an omen, for in that place would be fixed the head and supreme sovereign power of the world. Here it was that whilst the Capitol was being cleared with augural

rites, Juventas and Terminus, to the great delight of your fathers, would not allow themselves to be moved. Here is the Fire of Vesta; here are the Shields sent down from heaven; here are all the gods, who, if you remain, will be gracious to you."

[5.55]It is stated that this speech of Camillus made a profound impression, particularly that part of it which appealed to the religious feelings. But whilst the issue was still uncertain, a sentence, opportunely uttered, decided the matter. The senate, shortly afterwards, were discussing the question in the Curia Hostilia, and some cohorts returning from guard happened to be marching through the Forum. They had just entered the Comitium, when the centurion shouted, "Halt, standard-bearer! Plant the standard; it will be best for us to stop here." On hearing these words, the senators rushed out of the Senate-house, exclaiming that they welcomed the omen, and the people crowding round them gave an emphatic approval. The proposed measure for migration was dropped, and they began to rebuild the City in a haphazard way. Tiling was provided at the public expense; every one was given the right to cut stone and timber where he pleased, after giving security that the building should be completed within the year. In their haste, they took no trouble to plan out straight streets; as all distinctions of ownership in the soil were lost, they built on any ground that happened to be vacant. That is the reason why the old sewers, which originally were carried under public ground, now run everywhere under private houses, and why the conformation of the City resembles one casually built upon by settlers rather than one regularly planned out.

BOOK 6: THE RECONCILIATION OF THE ORDERS - (389 - 366 B.C.)

[6.1]The history of the Romans from the foundation of the City to its capture, first under kings, then under consuls, dictators, decemvirs, and consular tribunes, the record of foreign wars and domestic dissensions, has been set forth in the five preceding books. The subject matter is enveloped in obscurity; partly from its great antiquity, like remote objects which are hardly discernible through the vastness of the distance; partly owing to the fact that written records, which form the only trustworthy memorials of events, were

in those times few and scanty, and even what did exist in the pontifical commentaries and public and private archives nearly all perished in the conflagration of the City. Starting from the second beginnings of the City, which, like a plant cut down to its roots, sprang up in greater beauty and fruitfulness, the details of its history both civil and military will now be exhibited in their proper order, with greater clearness and certainty. At first the State was supported by the same prop by which it had been raised from the ground, M. Furius, its chief, and he was not allowed to resign office until a year had elapsed. It was decided that the consular tribunes, during whose rule the capture of the City had taken place, should not hold the elections for the ensuing year; matters reverted to an interregnum. The citizens were taken up with the pressing and laborious task of rebuilding their City, and it was during this interval that Q. Fabius, immediately on laying down his office, was indicted by Cn. Marcius, a tribune of the plebs, on the ground that after being sent as an envoy to the Gauls to speak on behalf of the Clusians, he had, contrary to the law of nations, fought against them. He was saved from the threatened proceedings by death; a death so opportune that many people believed it to be a voluntary one. The interregnum began with P. Cornelius Scipio as the first interrex; he was followed by M. Furius Camillus, under whom the election of military tribunes was conducted. Those elected were L. Valerius Publicola, for the second time, L. Verginius, P. Cornelius, A. Manlius, L. Aemilius, and L. Postumius.

They entered upon their office immediately, and their very first case was to submit to the senate measures affecting religion. Orders were made that in the first place search should be made for the treaties and laws - these latter including those of the Twelve Tables and some belonging to the time of the kings - as far as they were still extant. Some were made accessible to the public, but those which dealt with divine worship were kept secret by the pontiffs, mainly in order that the people might remain dependent on them for religious guidance. Then they entered upon a discussion of the "days of prohibition." The 18th of July was marked by a double disaster, for on that day the Fabii were annihilated at the Cremera, and in after years the battle at the Alia which involved the ruin of the City was lost on the same day. From the latter disaster the day was called "the day of the Alia," and was observed by a religious abstinence from all public and private

business. The consular tribune Sulpicius had not offered acceptable sacrifices on July 16 (the day after the Ides), and without having secured the good will of the gods the Roman army was exposed to the enemy two days later. Some think that it was for this reason that on the day after the Ides in each month all religious functions were ordered to be suspended, and hence it became the custom to observe the second and the middle days of the month in the same way.

[6.2] They were not, however, long left undisturbed whilst thus considering the best means of restoring the commonwealth after its grievous fall. On the one side, the Volscians, their ancient foes, had taken up arms in the determination to wipe out the name of Rome; on the other side, traders were bringing in reports of an assembly at the fane of Voltumna, where the leading men from all the Etruscan cantons were forming a hostile league. Still further alarm was created by the defection of the Latins and Hernicans. After the battle of Lake Regillus these nations had never wavered for 100 years in their loyal friendship with Rome. As so many dangers were threatening on all sides and it became evident the name of Rome was not only held in hatred by her foes, but regarded with contempt by her allies, the senate decided that the State should be defended under the auspices of the man by whom it had been recovered, and that M. Furius Camillus should be nominated Dictator. He nominated as his Master of the Horse, C. Servilius Ahala, and after closing the law courts and suspending all business he proceeded to enrol all the men of military age. Those of the "seniors" who still possessed some vigour were placed in separate centuries after they had taken the military oath. When he had completed the enrolment and equipment of the army he formed it into three divisions. One he stationed in the Veientine territory fronting Etruria. The second was ordered to form an entrenched camp to cover the City; A. Manlius, as military tribune, was in command of this division, whilst L. Aemilius in a similar capacity directed the movement against the Etruscans. The third division he led in person against the Volscians and advanced to attack their encampment at a place called Ad Mecium, not far from Lanuvium. They had gone to war in a feeling of contempt for their enemy as they believed that almost all the Roman fighting men had been annihilated by the Gauls, but when they heard that Camillus was in command they were filled with such alarm that they raised a rampart round them and barricaded the rampart with trees piled up

round it to prevent the enemy from penetrating their lines at any point. As soon as he became aware of this Camillus ordered fire to be thrown on the barricade. The wind happened to be blowing strongly towards the enemy, and so it not only opened up a way through the fire, but by driving the flames into the camp it produced such consternation amongst the defenders, with the steam and smoke and crackling of the green wood as it burnt, that the Roman soldiers found less difficulty in surmounting the rampart and forcing the camp than in crossing the burnt barricade. The enemy were routed and cut to pieces. After the capture of the camp the Dictator gave the booty to the soldiers; an act all the more welcome to them as they did not expect it from a general by no means given to generosity. In the pursuit he ravaged the length and breadth of the Volscian territory, and at last after seventy years of war forced them to surrender. From his conquest of the Volscians he marched across to the Aequi who were also preparing for war, surprised their army at Bolae, and in the first assault captured not only their camp but their city.

[6.3]While these successes were occurring in the field of operations where Camillus was the life and soul of the Roman cause, in another direction a terrible danger was threatening. Nearly the whole of Etruria was in arms and was besieging Sutrium, a city in alliance with Rome. Their envoys approached the senate with a request for help in their desperate condition, and the senate passed a decree that the Dictator should render assistance to the Sutrines as soon as he possibly could. Their hopes were deferred, and as the circumstances of the besieged were such as to admit of no longer delay - their scanty numbers being worn out with toil, want of sleep, and fighting, which always fell upon the same persons - they made a conditional surrender of their city. As the mournful procession set forth, leaving their hearths and homes, without arms and with only one garment apiece, Camillus and his army happened just at that moment to appear on the scene. The grief-stricken crowd flung themselves at his feet; the appeals of their leaders, wrung from them by dire necessity, were drowned by the weeping of the women and children who were being dragged along as companions in exile. Camillus bade the Sutrines spare their laments, it was to the Etruscans that he was bringing grief and tears. He then gave orders for the baggage to be deposited, and the Sutrines to remain where they were, and leaving a

small detachment on guard ordered his men to follow him with only their arms. With his disencumbered army he marched to Sutrium, and found, as he expected, everything in disorder, as usual after a success, the gates open and unguarded, and the victorious enemy dispersed through the streets carrying plunder away from the houses. Sutrium was captured accordingly twice in the same day; the lately victorious Etruscans were everywhere massacred by their new enemies; no time was allowed them either to concentrate their strength or seize their weapons. As they tried each to make their way to the gates on the chance of escaping to the open country they found them closed; this was the first thing the Dictator ordered to be done. Then some got possession of their arms, others who happened to be armed when the tumult surprised them called their comrades together to make a stand. The despair of the enemy would have led to a fierce struggle had not criers been despatched throughout the city to order all to lay down their arms and those without arms to be spared; none were to be injured unless found in arms. Those who had determined in their extremity to fight to the end, now that hopes of life were offered them threw away their arms in all directions, and, since Fortune had made this the safer course, gave themselves as unarmed men to the enemy. Owing to their great number, they were distributed in various places for safe keeping. Before nightfall the town was given back to the Sutrines uninjured and untouched by all the ruin of war, since it had not been taken by storm but surrendered on conditions.

[6.4]Camillus returned in triumphal procession to the City, after having been victorious in three simultaneous wars. By far the greatest number of the prisoners who were led before his chariot belonged to the Etruscans. They were publicly sold, and so much was realised that after the matrons had been repaid for their gold, three golden bowls were made from what was left. These were inscribed with the name of Camillus, and it is generally believed that previous to the fire in the Capitol they were deposited in the chapel of Jupiter before the feet of Juno. During the year, those of the inhabitants of Veii, Capenae, and Fidenae who had gone over to the Romans whilst these wars were going on, were admitted into full citizenship and received an allotment of land. The senate passed a resolution recalling those who had repaired to Veii and taken possession of the empty houses there to avoid the labour of rebuilding. At first they protested and took no

notice of the order; then a day was fixed, and those who had not returned by that date were threatened with outlawry. This step made each man fear for himself, and from being united in defiance they now showed individual obedience. Rome was growing in population, and buildings were rising up in every part of it. The State gave financial assistance; the aediles urged on the work as though it were a State undertaking; the individual citizens were in a hurry to complete their task through need of accommodation. Within the year the new City was built.

At the close of the year elections of consular tribunes were held. Those elected were T. Quinctius Cincinnatus, Q. Servilius Fidenas (for the fifth time), L. Julius Iulus, L. Aquilius Corvus, L. Lucretius Tricipitinus, and Ser. Sulpicius Rufus. One army was led against the Aequi - not to war, for they acknowledged that they were conquered, but - to ravage their territories so that no strength might be left them for future aggression. The other advanced into the district of Tarquinii. There, Cortuosa and Contenebra, towns belonging to the Etruscans, were taken by assault. At Cortuosa there was no fighting, the garrison were surprised and the place was carried at the very first assault. Contenebra stood a siege for a few days, but the incessant toil without any remission day or night proved too much for them. The Roman army was formed into six divisions, each of which took its part in the fighting in turn every six hours. The small number of the defenders necessitated the same men continually coming into action against a fresh enemy; at last they gave up, and an opening was afforded the Romans for entering the city. The tribunes decided that the booty should be sold on behalf of the State, but they were slower in announcing their decision than in forming it; whilst they were hesitating, the soldiery had already appropriated it, and it could not be taken from them without creating bitter resentment. The growth of the City was not confined to private buildings. A substructure of squared stones was built beneath the Capitol during this year, which, even amidst the present magnificence of the City, is a conspicuous object.

[6.5] Whilst the citizens were taken up with their building, the tribunes of the plebs tried to make the meetings of the Assembly more attractive by bringing forward agrarian proposals. They held out the prospect of acquiring the Pomptine territory, which, now that the Volscians had been reduced by Camillus, had become the

indisputable possession of Rome. This territory, they alleged, was in much greater danger from the nobles than it had been from the Volscians, for the latter only made raids into it as long as they had strength and weapons, but the nobles were putting themselves in possession of the public domain, and unless it was allotted before they appropriated everything there would be no room for plebeians there. They did not produce much impression on the plebeians, who were busy with their building and only attended the Assembly in small numbers, and as their expenses had exhausted their means, they felt no interest in land which they were unable to develop owing to want of capital. In a community devoted to religious observances, the recent disaster had filled the leading men with superstitious fears; in order, therefore, that the auspices might be taken afresh they fell back upon an interregnum. There were three interreges in succession - M. Manlius Capitolinus, Ser. Sulpicius Camerinus, and L. Valerius Potitus. The last of these conducted the election of consular tribunes. Those elected were: L. Papirius, C. Cornelius, C. Sergius, L. Aemilius (for the second time), L. Menenius, and L. Valerius Publicola (for the third time). They immediately entered office. In this year the temple of Mars, which had been vowed in the Gaulish war, was dedicated by T. Quinctius, one of the two custodians of the Sibylline Books. The new citizens were formed into four additional tribes - the Stellatine, the Tromentine, the Sabatine, and the Arnian. These brought up the number of the tribes to twenty-five.

[6.6]The question of the Pomptine territory was again raised by L. Sicinius, a tribune of the plebs, and the people attended the Assembly in greater numbers and showed a more eager desire for land than they had done. In the senate the subject of the Latin and Hernican wars was mentioned, but owing to the concern felt about a more serious war, it was adjourned. Etruria was in arms. They again fell back on Camillus. He was made consular tribune, and five colleagues were assigned to him: Ser. Cornelius Maluginensis, Q. Servilius Fidenas (for the sixth time), L. Quinctius Cincinnatus, L. Horatius Pulvillus, and P. Valerius. At the beginning of the year public anxiety was diverted from the Etruscan war by the arrival in the City of a body of fugitives from the Pomptine territory, who reported that the Antiates were in arms, and that the Latin cantons had sent their fighting men to assist them. The latter explained in their defence that it was not in consequence of a formal act of their government; all they had done

was to decline prohibiting any one from serving where he chose as a volunteer. It was no longer the fashion to think lightly of any wars. The senate thanked heaven that Camillus was in office, for certainly had he been a private citizen he must have been nominated Dictator. His colleagues admitted that when any alarm arose of threatened war the supreme direction of everything must be in one man's hands, and they had made up their minds to subordinate their powers to Camillus, feeling assured that to enhance his authority in no way derogated from their own. This action of the consular tribunes met with the hearty approval of the senate, and Camillus, in modest confusion, returned thanks to them. He went on to say that a tremendous burden had been laid upon him by the people of Rome in making him practically Dictator for the fourth time; a heavy responsibility had been put upon him by the senate, who had passed such a flattering judgment upon him; heaviest of all by his colleagues in the honour they had done him. If it were possible for him to show still greater activity and vigilance, he would strive so to surpass himself that he might make the lofty estimation, which his fellow-citizens had with such striking unanimity formed of him, a lasting one. As far as war with the Antiates was concerned, the outlook was threatening rather than dangerous; at the same time he advised them, whilst fearing nothing, to treat nothing with indifference. Rome was beset by the ill-will and hatred of its neighbours, and the interests of the State therefore required several generals and several armies.

He proceeded: "You, P. Valerius, I wish to associate with myself in counsel and command, and you will lead the legions in concert with me against the Antiates. You, Q. Servilius, will keep a second army ready for instant service encamped by the City, prepared for any movement, such as recently took place, on the part of Etruria or on the side of the Latins and Hernicans who are causing us this fresh trouble. I am quite certain that you will conduct the campaign in a manner worthy of your father, your grandfather, yourself, and your six tribuneships. A third army must be raised by L. Quinctius from the seniors, and those excused from service on grounds of health, to garrison the defences of the City. L. Horatius is to provide armour, weapons, corn, and everything else required in a time of war. You, Ser. Cornelius, are appointed by us your colleagues as president of this Council of State, and guardian of everything pertaining to religion, of the Assembly, the laws, and all matters touching the City."

All gladly promised to devote themselves to the various duties assigned them; Valerius, associated in the chief command, added that he should look upon M. Furius as Dictator and regard himself as his Master of the Horse, and the estimation in which they held their sole commander should be the measure of the hopes they entertained as to the issue of the war. The senators, in high delight, exclaimed that they at all events were full of hope with regard to war and peace and all that concerned the republic; there would never be any need for a Dictator when they had such men in office, with such perfect harmony of feeling, prepared equally to obey or command, conferring glory on their country instead of appropriating their country's glory to themselves.

[6.7]After proclaiming a suspension of all public business and completing the enrolment of troops, Furius and Valerius proceeded to Satricum. Here the Antiates had massed not only Volscian troops drawn from a new generation but also an immense body of Latins and Hernicans, nations whose strength had been growing through long years of peace. This coalition of new enemies with old ones daunted the spirits of the Roman soldiers. Camillus was already drawing up his men for battle when the centurions brought reports to him of the discouragement of his troops, the want of alacrity in arming themselves, and the hesitation and unwillingness with which they were marching out of camp. Men were even heard saying that "they were going to fight one against a hundred, and that such a multitude could hardly be withstood even if unarmed, much less now that they were in arms." He at once sprang on his horse, faced the line and, riding along the front, addressed his men: "What is this gloom, soldiers, this extraordinary hesitation? Are you strangers to the enemy, or to me, or to yourselves? As for the enemy - what is he but the means through which you always prove your courage and win renown? And as for you - not to mention the capture of Falerii and Veii and the slaughter of the Gaulish legions inside your captured City - have you not, under my leadership, enjoyed a triple triumph for a threefold victory over these very Volscians, as well as over the Aequi and over Etruria? Or is it that you do not recognise me as your general because I have given the battle signal not as Dictator but as a consular tribune? I feel no craving for the highest authority over you, nor ought you to see in me anything beyond what I am in myself; the Dictatorship has never increased my spirits and energy, nor did my

exile diminish them. We are all of us, then, the same that we have ever been, and since we are bringing just the same qualities into this war that we have displayed in all former wars, let us look forward to the same result. As soon as you meet your foe, every one will do what he has been trained and accustomed to do; you will conquer, they will fly."

[6.8] Then, after sounding the charge, he sprang from his horse and, catching hold of the nearest standard-bearer, he hurried with him against the enemy, exclaiming at the same time: "On, soldier, with the standard!" When they saw Camillus, weakened as he was by age, charging in person against the enemy, they all raised the battle-cry and rushed forward, shouting in all directions, "Follow the General!" It is stated that by Camillus' orders the standard was flung into the enemy's lines in order to incite the men of the front rank to recover it. It was in this quarter that the Antiates were first repulsed, and the panic spread through the front ranks as far as the reserves. This was due not only to the efforts of the troops, stimulated as they were by the presence of Camillus, but also to the terror which his actual appearance inspired in the Volscians, to whom he was a special object of dread. Thus, wherever he advanced he carried certain victory with him. This was especially evident in the Roman left, which was on the point of giving way, when, after flinging himself on his horse and armed with an infantry shield, he rode up to it and by simply showing himself and pointing to the rest of the line who were winning the day, restored the battle. The action was now decided, but owing to the crowding together of the enemy their flight was impeded and the victorious soldiers grew weary of the prolonged slaughter of such an enormous number of fugitives. A sudden storm of rain and wind put an end to what had become a decisive victory more than a battle. The signal was given to retire, and the night that followed brought the war to a close without any further exertions on the part of the Romans, for the Latins and Hernicans left the Volscians to their fate and started for home, after obtaining a result correspondent to their evil counsels. When the Volscians found themselves deserted by the men whom they had relied upon when they renewed hostilities, they abandoned their camp and shut themselves up in Satricum. At first Camillus invested them with the usual siege works; but when he found that no sorties were made to impede his operations, he considered that the enemy did not possess sufficient courage to

justify him in waiting for a victory of which there was only a distant prospect. After encouraging his soldiers by telling them not to wear themselves by protracted toil, as though they were attacking another Veii, for victory was already within their grasp, he planted scaling ladders all round the walls and took the place by storm. The Volscians flung away their arms and surrendered.

[6.9]The general, however, had a more important object in view - Antium, the capital of the Volscians and the starting point of the last war. Owing to its strength, the capture of that city could only be effected by a considerable quantity of siege apparatus, artillery, and war machines. Camillus therefore left his colleague in command and went to Rome to urge upon the senate the necessity of destroying Antium. In the middle of his speech - I think it was the will of heaven that Antium should remain some time longer - envoys arrived from Nepete and Sutrium begging for help against the Etruscans and pointing out that the chance of rendering assistance would soon be lost. Fortune diverted Camillus' energies from Antium to that quarter, for those places, fronting Etruria, served as gates and barriers on that side, and the Etruscans were anxious to secure them whenever they were meditating hostilities, whilst the Romans were equally anxious to recover and hold them. The senate accordingly decided to arrange with Camillus that he should let Antium go and undertake the war with Etruria. They assigned to him the legions in the City which Quinctius was commanding, and though he would have preferred the army which was acting against the Volsci, of which he had had experience and which was accustomed to his command, he raised no objection; all he asked for was that Valerius should share the command with him. Quinctius and Horatius were sent against the Volscian in succession to Valerius. When they reached Sutrium, Furius and Valerius found a part of the city in the hands of the Etruscans; in the rest of the place the inhabitants were with difficulty keeping the enemy at bay behind barricades which they had erected in the streets. The approach of succours from Rome and the name of Camillus, famous amongst allies and enemies alike, relieved the situation for the moment and allowed time to render assistance. Camillus accordingly formed his army into two divisions and ordered his colleague to take one round to the side which the enemy were holding and commence an attack on the walls. This was done not so much in the hope that the attack would succeed as that the enemy's

attention might be distracted so as to afford a respite to the wearied defenders and an opportunity for him to effect an entrance into the town without fighting. The Etruscans, finding themselves attacked on both sides, the walls being assaulted from without and the townsmen fighting within, flung themselves in one panic-stricken mass through the only gate which happened to be clear of the enemy. A great slaughter of the fugitives took place both in the city and in the fields outside. Furius' men accounted for many inside the walls, whilst Valerius' troops were more lightly equipped for pursuit, and they did not put an end to the carnage till nightfall prevented their seeing any longer. After the recapture of Sutrium and its restoration to our allies, the army marched to Nepete, which had surrendered to the Etruscans and of which they were in complete possession.

[6.10]It looked as if the capture of that city would give more trouble, not only because the whole of it was in the hands of the enemy, but also because the surrender had been effected through the treachery of some of the townfolk. Camillus, however, determined to send a message to their leaders requesting them to withdraw from the Etruscans and give a practical proof of that loyalty to allies which they had implored the Romans to observe towards them. Their reply was that they were powerless; the Etruscans were holding the walls and guarding the gates. At first it was sought to intimidate the townsmen by harrying their territory. As, however, they persisted in adhering more faithfully to the terms of surrender than to their alliance with Rome, fascines of brushwood were collected from the surrounding country to fill up the fosse, the army advanced to the attack, the scaling ladders were placed against the walls, and at the very first attempt the town was captured. Proclamation was then made that the Nepesines were to lay down their arms, and all who did so were ordered to be spared. The Etruscans, whether armed or not, were killed, and the Nepesines who had been the agents of the surrender were beheaded; the population who had no share in it received their property back, and the town was left with a garrison. After thus recovering two cities in alliance with Rome from the enemy, the consular tribunes led their victorious army, covered with glory, home. During this year satisfaction was demanded from the Latins and Hernici; they were asked why they had not for these last few years furnished a contingent in accordance with the treaty. A full representative assembly of each nation was held to discuss the terms

of the reply. This was to the effect that it was through no fault or public act of the State that some of their men had fought in the Volscian ranks; these had paid the penalty of their folly, not a single one had returned. The reason why they had supplied no troops was their incessant fear of the Volscians; this thorn in their side they had not, even after such a long succession of wars, been able to get rid of. The senate regarded this reply as affording a justifiable ground for war, but the present time was deemed inopportune.

[6.11]The consular tribunes who succeeded were A. Manlius, P. Cornelius, T. and L. Quinctius Capitolinus, L. Papirius Cursor (for the second time), and C. Sergius (for the second time). In this year a serious war broke out, and a still more serious disturbance at home. The war was begun by the Volscians, aided by the revolted Latins and Hernici. The domestic trouble arose in a quarter where it was least to be apprehended, from a man of patrician birth and brilliant reputation - M. Manlius Capitolinus. Full of pride and presumption, he looked down upon the foremost men with scorn; one in particular he regarded with envious eyes, a man conspicuous for his distinctions and his merits - M. Furius Camillus. He bitterly resented this man's unique position amongst the magistrates and in the affections of the army, and declared that he was now such a superior person that he treated those who had been appointed under the same auspices as himself, not as his colleagues, but as his servants, and yet if any one would form a just judgment he would see that M. Furius could not possibly have rescued his country. When it was beleaguered by the enemy had not he, Manlius, saved the Capitol and the Citadel? Camillus attacked the Gauls while they were off their guard, their minds pre-occupied with obtaining the gold and securing peace; he, on the other hand, had driven them off when they were armed for battle and actually capturing the Citadel. Camillus' glory was shared by every man who conquered with him, whereas no mortal man could obviously claim any part in his victory.

With his head full of these notions and being unfortunately a man of headstrong and passionate nature, he found that his influence was not so powerful with the patricians as he thought it ought to be, so he went over to the plebs - the first patrician to do so - and adopted the political methods of their magistrates. He abused the senate and courted the populace and, impelled by the breeze of popular favour more than by conviction or judgment, preferred notoriety to

respectability. Not content with the agrarian laws which had hitherto always served the tribunes of the plebs as the material for their agitation, he began to undermine the whole system of credit, for he saw that the laws of debt caused more irritation than the others; they not only threatened poverty and disgrace, but they terrified the freeman with the prospect of fetters and imprisonment. And, as a matter of fact, a vast amount of debt had been contracted owing to the expense of building, an expense most ruinous even to the rich. It became, therefore, a question of arming the government with stronger powers, and the Volscian war, serious in itself but made much more so by the defection of the Latins and Hernici, was put forward as the ostensible reason. It was, however, the revolutionary designs of Manlius that mainly decided the senate to nominate a Dictator. A. Cornelius Cossus was nominated, and he named T. Quinctius Capitolinus as his Master of the Horse.

[6.12]Although the Dictator recognised that a more difficult contest lay before him at home than abroad, he enrolled his troops and proceeded to the Pomptine territory, which, he heard, had been invaded by the Volscians. Either he considered it necessary to take prompt military measures or he hoped to strengthen his hands as Dictator by a victory and a triumph. I have no doubt that my readers will be tired of such a long record of incessant wars with the Volscians, but they will also be struck with the same difficulty which I have myself felt whilst examining the authorities who lived nearer to the period, namely, from what source did the Volscians obtain sufficient soldiers after so many defeats? Since this point has been passed over by the ancient writers, what can I do more than express an opinion such as any one may form from his own inferences? Probably, in the interval between one war and another, they trained each fresh generation against the renewal of hostilities, as is now done in the enlistment of Roman troops, or their armies were not always drawn from the same districts, though it was always the same nation that carried on the war, or there must have been an innumerable free population in those districts which are barely now kept from desolation by the scanty tillage of Roman slaves, with hardly so much as a miserably small recruiting ground for soldiers left. At all events, the authorities are unanimous in asserting that the Volscians had an immense army in spite of their having been so lately crippled by the successes of Camillus. Their numbers were increased by the Latins

and Hernici, as well as by a body of Circeians, and even by a contingent from Velitrae, where there was a Roman colony.

On the day he arrived the Dictator formed his camp. On the morrow, after taking the auspices and supplicating the favour of the gods by sacrifice and prayer, he advanced in high spirits to the soldiers who were already in the early dawn arming themselves according to orders against the moment when the signal for battle should be given. "Ours, soldiers," he exclaimed, "is the victory, if the gods and their interpreters see at all into the future. Let us then, as becomes men filled with sure hopes, who are going to engage an enemy who is no match for us, lay our javelins at our feet and arm ourselves only with our swords. I would not even have any running forward from the line; stand firm and receive the enemy's charge without stirring a foot. When they have hurled their ineffective missiles and their disordered ranks fling themselves upon you, then let your swords flash and let every man remember that it is the gods who are helping the Romans, it is the gods who have sent you into battle with favourable omens. You, T. Quinctius, keep your cavalry in hand and wait till the fight has begun, but when you see the lines locked together, foot to foot, then strike with the terror of your cavalry those who are already overtaken with other terrors. Charge and scatter their ranks while they are in the thick of the fight." Cavalry and infantry alike fought in accordance with their instructions. The commander did not disappoint his soldiers, nor did Fortune disappoint the commander.

[6.13]The vast host of the enemy, relying solely on their numbers and measuring the strength of each army merely by their eyes, went recklessly into the battle and as recklessly abandoned it. Courageous enough in the battle shout, in discharging their weapons, in making the first charge, they were unable to stand the foot to foot fighting and the looks of their opponents, glowing with the ardour of battle. Their front was driven in and the demoralisation extended to the supports; the charge of the cavalry produced fresh panic; the ranks were broken in many places, the whole army was in commotion and resembled a retreating wave. When each of them saw that as those in front fell he would be the next to be cut down, they turned and fled. The Romans pressed hard upon them, and as long as the enemy defended themselves whilst retreating, it was the infantry to whom the task of pursuit fell. When they were seen to be throwing away their arms in all directions and dispersing over the fields, the signal

was given for the squadrons of cavalry to be launched against them, and these were instructed not to lose time by cutting down individual fugitives and to give the main body a chance of escaping. It would be enough to check them by hurling missiles and galloping across their front, and generally terrifying them until the infantry could come up and regularly dispatch the enemy. The flight and pursuit did not end till nightfall. The Volscian camp was taken and plundered on the same day, and all the booty, with the exception of the prisoners, was bestowed on the soldiers. The majority of the captives belonged to the Hernici and Latins, not men of the plebeian class, who might have been regarded as only mercenaries, they were found to include some of the principal men of their fighting force, a clear proof that those States had formally assisted the enemy. Some were also recognised as belonging to Circeii and to the colony at Velitrae. They were all sent to Rome and examined by the leaders of the senate; they gave them the same replies which they had made to the Dictator, and disclosed without any attempt at evasion the defection of their respective nations.

[6.14]The Dictator kept his army permanently encamped, fully expecting that the senate would declare war against those peoples. A much greater trouble at home, however, necessitated his recall. The sedition which, owing to its ringleader's work, was exceptionally alarming, was gaining strength from day to day. For to any one who looked at his motives, not only the speeches, but still more the conduct of M. Manlius, though ostensibly in the interest of the people, would have appeared revolutionary and dangerous. When he saw a centurion, a distinguished soldier, led away as an adjudged debtor, he ran into the middle of the Forum with his crowd of supporters and laid his hand on him. After declaiming against the tyranny of patricians and the brutality of usurers and the wretched condition of the plebs he said: " It was then in vain that I with this right hand saved the Capitol and Citadel if I have to see a fellow-citizen and a comrade in arms carried off to chains and slavery just as though he had been captured by the victorious Gauls." Then, before all the people, he paid the sum due to the creditors, and after thus freeing the man by "copper and scales," sent him home. The released debtor appealed to gods and men to reward Manlius, his deliverer and the beneficial protector of the Roman plebs. A noisy crowd immediately surrounded him, and he increased the excitement

by displaying the scars left by wounds he had received in the wars against Veii and the Gauls and in recent campaigns. "Whilst," he cried, "I was serving in the field and whilst I was trying to restore my desolated home, I paid in interest an amount equal to many times the principal, but as the fresh interest always exceeded my capital, I was buried beneath the load of debt. It is owing to M. Manlius that I can now look upon the light of day, the Forum, the faces of my fellow-citizens; from him I have received all the kindness which a parent can show to a child; to him I devote all that remains of my bodily powers, my blood, my life. In that one man is centered everything that binds me to my home, my country, and my country's gods."

The plebs, wrought upon by this language, had now completely espoused this one man's cause, when another circumstance occurred, still more calculated to create universal confusion. Manlius brought under the auctioneer's hammer an estate in the Veientine territory which comprised the principal part of his patrimony - "In order," he said, "that as long as any of my property remains, I may prevent any of you Quirites from being delivered up to your creditors as judgment debtors." This roused them to such a pitch that it was quite clear that they would follow the champion of their liberties through anything, right or wrong. To add to the mischief, he delivered speeches in his own house, as though he were haranguing the Assembly, full of calumnious abuse of the senate. Indifferent to the truth or falsehood of what he said, he declared, among other things, that the stores of gold collected for the Gauls were being hidden away by the patricians; they were no longer content with appropriating the public lands unless they could also embezzle the public funds; if that affair were brought to light, the debts of the plebs could be wiped off. With this hope held out to them they thought it a most shameful proceeding that whilst the gold got together to ransom the City from the Gauls had been raised by general taxation, this very gold when recovered from the enemy had become the plunder of a few. They insisted therefore, on finding out where this vast stolen booty was concealed, and as Manlius kept putting them off and announcing that he would choose his own time for the disclosure, the universal interest became absorbed in this question to the exclusion of everything else. There would clearly be no limit to their gratitude if his information proved correct, or to their displeasure if it turned out to be false.

[6.15] Whilst matters were in this state of suspense the Dictator had been summoned from the army and arrived in the City. After satisfying himself as to the state of public feeling he called a meeting of the senate for the following day and ordered them to remain in constant attendance upon him. He then ordered his chair of office to be placed on the tribunal in the Comitium and, surrounded by the senators as a bodyguard, sent his officer to M. Manlius. On receiving the Dictator's summons Manlius gave his party a signal that a conflict was imminent and appeared before the tribunal with an immense crowd round him. On the one side the senate, on the other side the plebs, each with their eyes fixed on their respective leaders, stood facing one another as though drawn up for battle. After silence was obtained, the Dictator said: "I wish the senate and myself could come to an understanding with the plebs on all other matters as easily as, I am convinced, we shall about you and the subject on which I am about to examine you. I see that you have led your fellow-citizens to expect that all debts can be paid without any loss to the creditors out of the treasure recovered from the Gauls, which you say the leading patricians are secreting. I am so far from wishing to hinder this project that, on the contrary, I challenge you, M. Manlius, to take off from their hidden hordes those who, like sitting hens, are brooding over treasures which belong to the State. If you fail to do this, either because you yourself have your part in the spoils or because your charge is unfounded, I shall order you to be thrown into prison and will not suffer the people to be excited by the false hopes which you have raised.

Manlius said in reply that he had not been mistaken in his suspicions; it was not against the Volscians who were treated as enemies whenever it was in the interest of the patricians so to treat them, nor against the Latins and Hernici whom they were driving to arms by false charges, that a Dictator had been appointed, but against him and the Roman plebs. They had dropped their pretended war and were now attacking him; the Dictator was openly declaring himself the protector of the usurers against the plebeians; the gratitude and affection which the people were showing towards himself were being made the ground for charges against him which would ruin him. He proceeded: "The crowd which I have round me is an offence in your eyes, A. Cornelius, and in yours, senators. Then why do you not each of you withdraw it from me by acts of kindness, by offering security,

by releasing your fellow-citizens from the stocks, by preventing them from being adjudged to their creditors, by supporting others in their necessity out of the superabundance of your own wealth? But why should I urge you to spend your own money? Be content with a moderate capital, deduct from the principal what has already been paid in interest, then the crowd round me will be no more noticeable than that round any one else. But do I alone show this anxiety for my fellow-citizens? I can only answer that question as I should answer another - Why did I alone save the Capitol and the Citadel? Then I did what I could to save the body of citizens as a whole, now I am doing what I can to help individuals. As to the gold of the Gauls, your question throws difficulties round a thing which is simple enough in itself. For why do you ask me about a matter which is within your own knowledge? Why do you order what is in your purse to be shaken out from it rather than surrender it voluntarily, unless there is some dishonesty at bottom? The more you order your conjuring tricks to be detected, the more, I fear, will you hoodwink those who are watching you. It is not I who ought to be compelled to discover your plunder for you, it is you who ought to be compelled to publicly produce it."

The Dictator ordered him to drop all subterfuge, and insisted upon his either adducing trustworthy evidence or admitting that he had been guilty of concocting false accusations against the senate and exposing them to odium on a baseless charge of theft. He refused, and said he would not speak at the bidding of his enemies, whereupon the Dictator ordered him to be taken to prison. When apprehended by the officer he exclaimed: "Jupiter Optimus Maximus, Queen Juno, Minerva, all ye gods and goddesses who dwell in the Capitol, do ye suffer your soldier and defender to be thus persecuted by his enemies? Shall this right hand with which I drove the Gauls from your shrines be manacled and fettered?" None could endure to see or hear the indignity offered him, but the State, in its absolute submission to lawful authority, had imposed upon itself limits which could not be passed; neither the tribunes of the plebs nor the plebeians themselves ventured to cast an angry look or breathe a syllable against the action of the Dictator. It seems pretty certain that after Manlius was thrown into prison, a great number of plebeians went into mourning; many let their hair grow, and the vestibule of the prison was beset by a depressed and sorrowful

crowd. The Dictator celebrated his triumph over the Volscians, but his triumph increased his unpopularity; men complained that the victory was won at home, not in the field, over a citizen, not over an enemy. One thing alone was lacking in the pageant of tyranny, Manlius was not led in procession before the victor's chariot. Matters were rapidly drifting towards sedition, and the senate took the initiative in endeavouring to calm the prevailing unrest. Before any demand had been put forward they ordered that 2000 Roman citizens should be settled as colonists at Satricum, and each receive two and a half jugera of land. This was regarded as too small a grant, distributed amongst too small a number; it was looked upon, in fact, as a bribe for the betrayal of Manlius, and the proposed remedy only inflamed the disease. By this time the crowd of Manlian sympathisers had become conspicuous for their dirty garments and dejected looks. It was not till the Dictator laid down his office after his triumph and so removed the terror which he inspired that the tongues and spirits of men were once more free.

[6.17]Men were heard openly reproaching the populace for always encouraging their defenders till they led them to the brink of the precipice and deserting them when the moment of danger actually came. It was in this way, they said, that Sp. Cassius, while seeking to get the plebs on to the land, and Sp. Maelius, whilst staving off famine at his own cost from the mouths of his fellow-citizens, had both been crushed; it was in this way that M. Manlius was betrayed to his foes, whilst rescuing a part of the community who were overwhelmed and submerged by usurious extortion and bringing them back to light and liberty. The plebs fattened up their own defenders for slaughter. Was it not to be permitted that a man of consular rank should refuse to answer at the beck and call of a Dictator? Assuming that he had previously been speaking falsely, and had therefore no reply ready at the time, was there ever a slave who had been thrown into prison as a punishment for lying? Had they forgotten that night which was all but a final and eternal night for Rome? Could they not recall the sight of the troop of Gauls climbing up over the Tarpeian rock, or that of Manlius himself as they had actually seen him, covered with blood and sweat, after rescuing, one might almost say, Jupiter himself from the hands of the enemy. Had they discharged their obligation to the saviour of their country by giving him half a pound of corn each? Was the man whom they almost regarded as a god, whom they at all

events placed on a level with Jupiter of the Capitol by giving him the epithet of Capitolinus - was that man to be allowed to drag out his life in chains and darkness at the mercy of the executioner? Had the help of one man sufficed to save all, and was there amongst them all no help to be found for that one man? By this time the crowd refused to leave the spot even at night, and were threatening to break open the prison when the senate conceded what they were going to extort by violence, and passed a resolution that Manlius should be released. This did not put an end to the seditious agitation, it simply provided it with a leader. During this time the Latins and Hernici, together with the colonists from Circeii and Velitrae, sent to Rome to clear themselves from the charge of being concerned in the Volscian war and to ask for the surrender of their countrymen who had been made prisoners, that they might proceed against them under their own laws. An unfavourable reply was given to the Latins and Hernici, a still more unfavourable one to the colonists, because they had entertained the impious project of attacking their mother country. Not only was the surrender of the prisoners refused, but they received a stern warning from the senate, which was withheld from the Latins and Hernici, to make their way speedily from the City out of the sight of the Roman people; otherwise they would be no longer protected by the rights of ambassadors, rights which were established for foreigners, not for citizens.

[6.18] At the close of the year, amidst the growing agitation headed by Manlius, the elections were held. The new consular tribunes were: Ser. Cornelius Maluginensis and P. Valerius Potitus (each for the second time), M. Furius Camillus (for the fifth time), Ser. Sulpicius Rufus (for the second time), C. Papirius Crassus and T. Quinctius Cincinnatus (for the second time). The year opened in peace, which was most opportune for both patricians and plebeians - for the plebs, because as they were not called away to serve in the ranks, they hoped to secure relief from the burden of debt, especially now that they had such a strong leader; for the patricians, as no external alarms would distract their minds from dealing with their domestic troubles. As each side was more prepared for the struggle it could not long be delayed. Manlius, too, was inviting the plebeians to his house and discussing night and day revolutionary plans with their leaders in a much more aggressive and resentful spirit than formerly. His resentment was kindled by the recent humiliation inflicted on a spirit

unaccustomed to disgrace; his aggressiveness was encouraged by his belief that the Dictator had not ventured to treat him as Quinctius Cincinnatus had treated Sp. Maelius, for not only had the Dictator avoided the odium created by his imprisonment through resignation, but even the senate had not been able to face it.

Emboldened and embittered by these considerations, he roused the passions of the plebs, who were already incensed enough, to a higher pitch by his harangues. "How long, pray," he asked, "are you going to remain in ignorance of your strength, an ignorance which nature forbids even to beasts? Do at least reckon up your numbers and those of your opponents. Even if you were going to attack them on equal terms, man for man, I believe that you would fight more desperately for freedom than they for power. But you are much more numerous, for all you who have been in attendance on your patrons as clients will now confront them as adversaries. You have only to make a show of war and you will have peace. Let them see you are prepared to use force, they will abate their claims. You must dare something as a body or you will have to suffer everything as individuals. How long will you look to me? I certainly shall not fail you, see to it that Fortune does not fail me. I, your avenger, when your enemies thought fit was suddenly reduced to nothing, and you watched the man carried off to prison who had warded off imprisonment from so many of you. What have I to hope for, if my enemies dare to do more to me? Am I to look for the fate of Cassius and Maelius? It is all very well to cry in horror, 'The gods will prevent that,' but they will never come down from heaven on my account. You must prevent it; they must give you the courage to do so, as they gave me courage to defend you as a soldier from the barbarian enemy and as a civilian from your tyrannical fellow-citizens. Is the spirit of this great nation so small that you will always remain contented with the aid which your tribunes now afford you against your enemies, and never know any subject of dispute with the patricians, except as to how far you allow them to lord it over you? This is not your natural instinct, you are the slaves of habit. For why is it that you display such spirit towards foreign nations as to think it fair and just that you should rule over them? Because with them you have been wont to contend for dominion, while against these domestic enemies it has been a contest for liberty, which you have mostly attempted rather than maintained. Still, whatever leaders you have had, whatever qualities you

yourselves have shown, you have so far, either by your strength or your good fortune, achieved every object, however great, on which you have set your hearts. Now it is time to attempt greater things. If you will only put your own good fortune to the test, if you will only put me to the test, who have already been tested fortunately, I hope, for you, you will have less trouble in setting up some one to lord it over the patricians than you have had in setting up men to resist their lording it over you. Dictatorships and consulships must be levelled to the ground in order that the Roman plebs may lift up its head. Take your places, then, in the Forum; prevent any judgment for debt from being pronounced. I profess myself the Patron of the plebs, a title with which my care and fidelity have invested me; if you prefer to designate your leader by any other title of honour or command, you will find in him a more powerful instrument for attaining the objects you desire." It is said that this was the first step in his attempt to secure kingly power, but there is no clear tradition as to his fellow-conspirators or the extent to which his plans were developed

[6.19]On the other side, however, the senate were discussing this secession of the plebs to a private house, which happened to be situated on the Capitol, and the great danger with which liberty was menaced. A great many exclaimed that what was wanted was a Servilius Ahala, who would not simply irritate an enemy to the State by ordering him to be sent to prison, but would put an end to the intestine war by the sacrifice of a single citizen. They finally took refuge in a resolution which was milder in its terms but possessed equal force, viz., that "the magistrates should see to it that the republic received no hurt from the mischievous designs of M. Manlius." Thereupon the consular tribunes and the tribunes of the plebs - for these latter recognised that the end of liberty would also be the end of their power, and had, therefore, placed themselves under the authority of the senate - all consulted together as to what were the necessary steps to take. As no one could suggest anything but the employment of force and its inevitable bloodshed, while this would obviously lead to a frightful struggle, M. Menenius and Q. Publilius, tribunes of the plebs, spoke as follows: "Why are we making that which ought to be a contest between the State and one pestilent citizen into a conflict between patricians and plebeians? Why do we attack the plebs through him when it is so much safer to attack him through the plebs, so that he may sink into ruin under the

weight of his own strength? It is our intention to fix a day for his trial. Nothing is less desired by the people than kingly power. As soon as that body of plebeians become aware that the quarrel is not with them, and find that from being his supporters they have become his judges; as soon as they see a patrician on his trial, and learn that the charge before them is one of aiming at monarchy, they will not show favour to any man more than to their own liberty."

[6.20] Amidst universal approval they fixed a day for the trial of Manlius. There was at first much perturbation amongst the plebs, especially when they saw him going about in mourning garb without a single patrician, or any of his relatives or connections and, strangest of all, neither of his brothers, Aulus and Titus Manlius, being similarly attired. For up to that day such a thing had never been known, that at such a crisis in a man's fate even those nearest to him did not put on mourning. They remembered that when Appius Claudius was thrown into prison, his personal enemy, Caius Claudius, and the whole house of the Claudii, wore mourning. They regarded it as a conspiracy to crush a popular hero, because he was the first man to go over from the patricians to the plebs. What evidence strictly bearing out the charge of treason was adduced by the prosecution at the actual trial, beyond the gatherings at his house, his seditious utterances, and his false statement about the gold, I do not find stated by any authority. But I have no doubt that it was anything but slight, for the hesitation shown by the people in finding him guilty was not due to the merits of the case, but to the locality where the trial took place. This is a thing to be noted in order that men may see how great and glorious deeds are not only deprived of all merit, but made positively hateful by a loathesome hankering after kingly power.

He is said to have produced nearly four hundred people to whom he had advanced money without interest, whom he had prevented from being sold up and having their persons adjudged to their creditors. It is stated that besides this he not only enumerated his military distinctions, but brought them forward for inspection; the spoils of as many as thirty enemies whom he had slain, gifts from commanders-in-chief to the number of forty, amongst them two mural crowns and eight civil ones. In addition to these, he produced citizens whom he had rescued from the enemy, and named C. Servilius, Master of the Horse, who was not present, as one of them. After he had recalled his warlike achievements in a great speech

corresponding to the loftiness of his theme, his language rising to the level of his exploits, he bared his breast, ennobled by the scars of battle, and looking towards the Capitol repeatedly invoked Jupiter and the other deities to come to the aid of his shattered fortunes. He prayed that they would, in this crisis of his fate, inspire the Roman people with the same feeling with which they inspired him when he was protecting the Citadel and the Capitol and so saving Rome. Then turning to his judges, he implored them one and all to judge his cause with their eyes fixed on the Capitol, looking towards the immortal gods.

As it was in the Campus Martius that the people were to vote in their centuries, and the defendant, stretching forth his hands towards the Capitol, had turned from men to the gods in his prayers, it became evident to the tribunes that unless they could release men's spell-bound eyes from the visible reminder of his glorious deed, their minds, wholly possessed with the sense of the service he had done them, would find no place for charges against him, however true. So the proceedings were adjourned to another day, and the people were summoned to an Assembly in the Peteline Grove outside the Flumentan Gate, from which the Capitol was not visible. Here the charge was established, and with hearts steeled against his appeals, they passed a dreadful sentence, abhorrent even to the judges. Some authorities assert that he was sentenced by the *duumvirs*, who were appointed to try cases of treason. The tribunes hurled him from the Tarpeian rock, and the place which was the monument of his exceptional glory became also the scene of his final punishment. After his death two stigmas were affixed to his memory. One by the State. His house stood where now the temple and mint of Juno Moneta stand, a measure was consequently brought before the people that no patrician should occupy a dwelling within the Citadel or on the Capitoline. The other by the members of his house, who made a decree forbidding any one henceforth to assume the names of Marcus Manlius. Such was the end of a man who, had he not been born in a free State, would have attained distinction. When danger was no longer to be feared from him the people, remembering only his virtues, soon began to regret his loss. A pestilence which followed shortly after and inflicted great mortality, for which no cause could be assigned, was thought by a great many people to be due to the execution of Manlius. They imagined that the Capitol had been

polluted by the blood of its deliverer, and that the gods had been displeased at a punishment having been inflicted almost before their eyes on the man by whom their temples had been wrested from an enemy's hands.

[6.21]The pestilence was followed by scarcity, and the widespread rumour of these two troubles was followed the next year by a number of wars. The consular tribunes were: L. Valerius (for the fourth time), A. Manlius, Ser. Sulpicius, L. Lucretius, and L. Aemilius (all for the third time), and M. Trebonius. In addition to the Volscians, who seemed destined by some fate to keep the Roman soldiery in perpetual training; in addition to the colonies of Circeii and Velitrae, who had long been meditating revolt; in addition to Latium, which was an object of suspicion, a new enemy suddenly appeared at Lanuvium, which had hitherto been a most loyal city. The senate thought this was due to a feeling of contempt because the revolt of their countrymen at Velitrae had remained so long unpunished. They accordingly passed a decree that the people should be asked as soon as possible to consent to a declaration of war against them. To make the plebs more ready to enter on this campaign, five commissioners were appointed to distribute the Pomptine territory and three to settle a colony at Nepete. Then the proposal was submitted to the people, and in spite of the protests of the tribunes the tribes unanimously declared for war. Preparations for war continued throughout the year, but, owing to the pestilence, the army was not led out. This delay allowed the colonists time for propitiating the senate, and there was a considerable party amongst them in favour of sending a deputation to Rome to ask for pardon. But, as usual, the interest of the State was bound up with the interests of individuals, and the authors of the revolt, fearing that they alone would be held responsible and surrendered, in consequence, to appease the resentment of the Romans, turned the colonists from all thoughts of peace. Nor did they confine themselves to persuading their senate to veto the proposed embassy; they stirred up a large number of the plebs to make a predatory incursion on Roman territory. This fresh outrage destroyed all hopes of peace. This year, for the first time, there arose a rumour of a revolt at Praeneste, but when the people of Tusculum, Gabinii, and Labici, whose territories had been invaded, laid a formal complaint, the senate took it so calmly that it was

evident they did believe the charge because they did not wish it to be true.

[6.22]Sp. and L. Papirius, the new consular tribunes, marched with the legions to Velitrae. Their four colleagues, Ser. Cornelius Maluginensis, Q. Servilius, C. Sulpicius, and L. Aemilius were left to defend the City and to meet any fresh movement in Etruria, for danger was suspected everywhere on that side. At Velitrae, where the auxiliaries from Praeneste were almost more numerous than the colonists themselves, an engagement took place in which the Romans soon won the day, for as the city was so near, the enemy took to flight early in the battle and made for the city as their one refuge. The tribunes abstained from storming the place, for they were doubtful of success and did not think it right to reduce the colony to ruin. The dispatches to the senate announcing the victory were more severe on the Praenestines than on the Veliternians. Accordingly, by a decree of the senate confirmed by the people, war was declared against Praeneste. The Praenestines joined forces with the Volscians and in the following year took by storm the Roman colony of Satricum, after an obstinate defence, and made a brutal use of their victory. This incident exasperated the Romans. They elected M. Furius Camillus as consular tribune for the sixth time, and gave him four colleagues, A. and L. Postumius Regillensis, L. Furius, L. Lucretius, and M. Fabius Ambustus. By a special decree of the senate the war with the Volscians was entrusted to M. Furius Camillus; the tribune chosen by lot as his coadjutor was L. Furius, not so much, as it turned out, in the interest of the State, as in the interest of his colleague, for whom he served as the means of gaining fresh renown. He gained it on public grounds by restoring the fortunes of the State which had been brought low by the other's rashness, and on private grounds, because he was more anxious to win the other's gratitude after retrieving his error than to win glory for himself. Camillus was now advanced in age, and after being elected was prepared to make the usual affidavit declining office on the grounds of health, but the people refused to allow him. His vigorous breast was still animated by an energy unweakened by age, his senses were unimpaired, and his interest in political affairs was lost in the prospect of war. Four legions were enrolled, each consisting of 4000 men. The army was ordered to muster the next day at the Esquiline Gate and at once marched for Satricum. Here the captors of the colony awaited him, their decided

superiority of numbers inspiring them with complete confidence. When they found that the Romans were approaching they advanced at once to battle, anxious to bring matters to a decisive issue as soon as possible. They imagined that this would prevent the inferiority in numbers of their opponents from being in any way aided by the skill of their commander, which they looked upon as the sole ground of confidence for the Romans.

[6.23] The same eagerness for battle was felt by the Roman army and by Camillus' colleague. Nothing stood in the way of their hazarding an immediate engagement except the prudence and authority of one man, who was seeking an opportunity, by protracting the war, for aiding the strength of his force by strategy. This made the enemy more insistent; they not only deployed their lines in front of their camp, but even marched forward in the middle of the plain and showed their supercilious confidence in their numbers by advancing their standards close to the Roman entrenchments. This made the Romans indignant, still more so L. Furius. Young and naturally high-tempered, he was now infected with the hopefulness of the rank and file whose spirits were rising with very little to justify their confidence. He increased their excitement by belittling the authority of his colleague on the score of his age, the only possible reason he had for doing so; he declared that wars were the province of the younger men, for courage grows and decays in correspondence with the bodily powers. "Camillus," he said, "once a most active warrior, had now become a laggard; he, whose habit it had been, immediately on arriving at camps or cities, to take them at the first assault, was now wasting time and stagnating inside his lines. What accession to his own strength or diminution of the enemy's strength was he hoping for? What favourable chance, what opportune moment, what ground on which to employ his strategy? The old man's plans had lost all fire and life. Camillus had had his share of life as well as glory. What was gained by letting the strength of a State which ought to be immortal share in the senile decay of one mortal frame?"

By speeches of this kind he had brought over the whole camp to his view and in many quarters they were demanding to be led to immediate battle. Addressing Camillus, he said: "M. Furius, we cannot resist the impetuosity of the soldiers, and the enemy to whom we have given fresh courage by our hesitation are now showing intolerable contempt for us. You are one against all; yield to the

universal desire and allow yourself to be overcome in argument that you may the sooner overcome in battle." In his reply, Camillus said that in all the wars he had waged down to that day, as sole commander, neither he nor the Roman people had had any reason to complain of either his generalship or his good fortune. Now he was aware that he had as a colleague one who was his equal in authority and rank, his superior in physical strength and activity. As for the army, he had been accustomed to direct and not to be directed, but as for his colleague, he could not hamper his authority. Let him do with the help of heaven whatever he considered best for the State. He begged that owing to his years he might be excused from being in the front line; whatever duties an old man could discharge in battle, in these he would not show himself lacking. He prayed to the immortal gods that no mischance might make them feel that his plan after all was the best. His salutary advice was not listened to by men, nor was his patriotic prayer heard by the gods. His colleague who had determined on battle drew up the front line, Camillus formed a powerful reserve and posted a strong force in front of the camp. He himself took his station on some rising ground and anxiously awaited the result of tactics so different from his own.

[6.24]No sooner had their arms clashed together at the first onset than the enemy began to retire, not through fear but for tactical reasons. Behind them the ground rose gently up to their camp, and owing to their preponderance in numbers they had been able to leave several cohorts armed and drawn up for action in their camp. After the battle had begun these were to make a sortie as soon as the enemy were near their entrenchments. In pursuing the retiring enemy the Romans had been drawn on to the rising ground and were in some disorder. Seizing their opportunity the enemy made their charge from the camp. It was the victors' turn now to be alarmed, and this new danger and the uphill fighting made the Roman line give ground. Whilst the Volscians who had charged from the camp pressed home their attack, the others who had made the pretended flight renewed the contest. At last the Romans no longer retired in order; forgetting their recent battle-ardour and their old renown they began to flee in all directions, and in wild disorder were making for their camp. Camillus, after being assisted to mount by those around, hastily brought up the reserves and blocked their flight. "Is this, soldiers," he cried, "the battle which you were clamouring for? Who is the man,

who is the god that you can throw the blame upon? Then you were foolhardy; now you are cowards. You have been following another captain, now follow Camillus and conquer, as you are accustomed to do, under my leadership. Why are you looking at the rampart and the camp? Not a man of you shall enter there unless you are victorious." A feeling of shame at first arrested their disorderly flight, then, when they saw the standards brought round and the line turning to face the enemy, and their leader, illustrious through a hundred triumphs and now venerable through age, showing himself amongst the foremost ranks, where the risk and toil were greatest, mutual reproaches mingled with words of encouragement were heard through the whole field till finally they burst into a ringing cheer.

The other tribune did not show himself wanting to the occasion. Whilst his colleague was rallying the infantry he was sent to the cavalry. He did not venture to censure them - his share in their fault left him too little authority for that - but dropping all tone of command he implored them one and all to clear him from the guilt of that day's misfortunes. "In spite," he said, "of the refusal and opposition of my colleague I preferred to associate myself with the rashness of all rather than with the prudence of one. Whatever your fortunes may be, Camillus sees his own glory reflected in them; I, unless the day is won, shall have the utter wretchedness of sharing the fortunes of all but bearing the infamy alone." As the infantry were wavering it seemed best for the cavalry, after dismounting and leaving their horses to be held, to attack the enemy on foot. Conspicuous for their arms and dashing courage they went wherever they saw the infantry force pressed. Officers and men emulated each other in fighting with a determination and courage which never slackened. The effect of such strenuous bravery was shown in the result; the Volscians who a short time before had given ground in simulated fear were now scattered in real panic. A large number were killed in the actual battle and the subsequent flight, others in the camp, which was carried in the same charge; there were more prisoners, however, than slain.

[6.25] On examining the prisoners, it was discovered that some were from Tusculum; these were brought separately before the tribunes and on being questioned admitted that their State authorised their taking up arms. Alarmed at the prospect of a war so close to the City, Camillus said that he would at once conduct the prisoners to Rome

so that the senate might not remain in ignorance of the fact that the Tusculans had abandoned the alliance with Rome. His colleague might, if he thought good, remain in command of the army in camp. One day's experience had taught him not to prefer his own counsels to wiser ones, but even so, neither he nor any one in the army supposed that Camillus would calmly pass over that blunder of his by which the republic had been exposed to headlong disaster. Both in the army and at Rome it was universally remarked that in the chequered fortune which had attended the Volscian campaign, the blame for the unsuccessful battle and flight would be visited on L. Furius, the glory of the successful one would rest with M. Furius Camillus. After the examination of the prisoners the senate resolved upon war with Tusculum, and entrusted the conduct of it to Camillus. He requested that he might have one coadjutor, and on receiving permission to choose whom he would, he selected, to every one's surprise, L. Furius. By this act of generosity he removed the stigma attaching to his colleague and won great glory for himself.

But there was no war with the Tusculans. Unable to resist the attack of Rome by force of arms they turned it aside by a firm and lasting peace. When the Romans entered their territory, there was no flight of the inhabitants from the places near their line of march, the cultivation of the fields was not interrupted, the gates of the city stood open, and the townsmen in civic attire came in crowds to meet the commanders, whilst provisions for the camp were brought ungrudgingly from town and country. Camillus fixed his camp in front of the gates and decided to ascertain for himself whether the peaceful aspect which things wore in the country prevailed within the walls as well. Inside the city he found the doors of the houses standing open and all kinds of things exposed for sale in the stalls; the workmen all busy at their respective tasks and the schools humming with the voices of the children learning to read; the streets filled with crowds, including women and children going in all directions about their business and wearing an expression free not only from fear but even from surprise. He looked everywhere in vain for some signs of war; there was not the slightest trace of anything having been removed or brought forward just for the moment; all things looked so calm and peaceful that it seemed hardly possible that the bruit of war could have reached them.

[6.26]Disarmed by the submissive demeanour of the enemy he gave orders for the senate to be summoned. He then addressed them in the following terms: "Men of Tusculum, you are the only people who have discovered the true weapons, the true strength, with which to protect yourselves from the wrath of Rome. Go to the senate at Rome; they will decide aright whether your past offence deserves punishment most or your present submission, pardon. I will not anticipate the grace and favour which the State may show you; you shall receive from me the permission to plead for forgiveness; the senate will vouchsafe to your supplication the answer which shall seem good to them." After the arrival of the Tusculan senators in Rome, when the mournful countenances of those who a few weeks before had been staunch allies were seen in the vestibule of the Senate-house, the Roman senate were touched with pity and at once ordered them to be called in as guest-friends rather than as enemies. The Dictator of Tusculum was the spokesman. "Senators," he said, "we against whom you have declared and commenced hostilities, went out to meet your generals and your legions armed and equipped just as you see us now standing in the vestibule of your House. This civilian dress has always been the dress of our order and of our plebs and ever will be, unless at any time we receive from you arms for your defence. We are grateful to your generals and to your armies because they trusted their eyes rather than their ears, and did not make enemies where none existed. We ask of you the peace which we have ourselves observed, and pray you to turn the tide of war where a state of war exists; if we are to learn by painful experience the power which your arms can exert against us, we will learn it without using arms ourselves. This is our determination - may the gods make it as fortunate as it is dutiful! As for the accusations which induced you to declare war, although it is unnecessary to refute in words what has been disproved by facts, still, even supposing them to be true, we believe that it would have been safe to admit them, since we should have given such evident proofs of repentance. Let us acknowledge that we have wronged you, if only you are worthy to receive such satisfaction." This was practically what the Tusculans said. They obtained peace at the time and not long after full citizenship. The legions were marched back from Tusculum.

[6.27]After thus distinguishing himself by his skill and courage in the Volscian war and bringing the expedition against Tusculum to such

a happy termination, and on both occasions treating his colleague with singular consideration and forbearance, Camillus went out of office. The consular tribunes for the next year were: Lucius Valerius (for the fifth time) and Publius (for the third time), C. Sergius (also for the third time), L. Menenius (for the second time), P. Papirius, and Ser. Cornelius Maluginensis. This year it was found necessary to appoint censors, mainly owing to the vague rumours which were afloat about the burden of debt. The plebeian tribunes, in order to stir up ill-feeling exaggerated the amount, while it was underestimated by those whose interest it was to represent the difficulty as due to the unwillingness rather than the inability of the debtor to pay. The censors appointed were C. Sulpicius Camerinius and Sp. Postumius Regillensis. They commenced a fresh assessment, but the work was interrupted by the death of Postumius, because it was doubtful whether the co-optation of a colleague, in the case of the censors, was permissible. Sulpicius accordingly resigned, and fresh magistrates were appointed, but owing to some flaw in their election did not act. Religious fears deterred them from proceeding to a third election; it seemed as though the gods would not allow a censorship for that year. The tribunes declared that such mockery was intolerable. "The senate," according to them, "dreaded the publication of the assessment lists, which supplied information as to every man's property, because they did not wish the amount of the debtor to be brought to light, for it would show how one half of the community was being ruined by the other half, while the debt-burdened plebs were all the time being exposed to one enemy after another. Excuses for war were being sought indiscriminately in every direction; the legions were marched from Antium to Satricum, from Satricum to Velitrae, from there to Tusculum. And now the Latins, the Hernici, and the Praenestines were being threatened with hostilities in order that the patricians might wreak their vengeance on their fellow-citizens more even than upon the enemy. They were wearing out the plebs by keeping them under arms and not allowing them any breathing time in the City or any leisure for thoughts of liberty, or any possibility for taking their place in the Assembly, where they might listen to the voice of a tribune urging the reduction of interest and the redress of other grievances. Why, if the plebs had spirit enough to recall to mind the liberties which their fathers won, they would never suffer a Roman citizen to be made over to his creditors, nor would they permit an army to be raised until an account was

taken of the existing debt and some method of reducing it discovered, so that each man might know what he actually owed, and what was left for himself -whether his person was free or whether that, too, was due to the stocks." The premium thus put upon sedition made it at once more active. Many cases were occurring of men being made over to their creditors, and in view of a war with Praeneste, the senate had resolved that fresh legions should be enrolled, but both these proceedings were arrested by the intervention of the tribunes, supported by the whole body of the plebs. The tribunes refused to allow the judgment debtors to be carried off; the men whose names were called for enrolment refused to answer. The senate was less concerned to insist upon the rights of creditors than to carry out the enlistment, for information had been received that the enemy had advanced from Praeneste and were encamped in the district of Gabii. This intelligence, however, instead of deterring the plebeian tribunes from opposition, only made them more determined, and nothing availed to quiet the agitation in the City but the approach of war to its very walls.

[6.28]A report had reached Praeneste that no army had been raised in Rome and no commander-in-chief selected, and that the patricians and plebeians had turned against one another. Seizing the opportunity, their generals had led their army by rapid marches through fields which they had utterly laid waste and appeared before the Colline Gate. There was wide-spread alarm in the City. A general cry arose, "To arms!" and men hurried to the walls and gates. At last, abandoning sedition for war, they nominated T. Quinctius Cincinnatus as Dictator. He named A. Sempronius Atratinus as his Master of the Horse. No sooner did they hear of this - so great was the terror which a Dictatorship inspired - than the enemy retired from the walls, and the men liable for active service assembled without any hesitation at the Dictator's orders. Whilst the army was being mobilised in Rome, the camp of the enemy had been fixed not far from the Alia. From this point they spread devastation far and wide, and congratulated themselves that they had chosen a position of fatal import for the City of Rome; they expected that there would be the same panic and flight as in the Gaulish war. For, they argued, if the Romans regarded with horror even the day which took its name from that spot and was under a curse, how much more would they dread the Alia itself, the memorial of that great disaster. They would

most assuredly have the appalling sight of the Gauls before their eyes and the sound of their voices in their ears. Indulging in these idle dreams, they placed all their hopes in the fortune of the place. The Romans, on the other hand, knew perfectly well that wherever he was, the Latin enemy was the same as the one who had been conquered at Lake Regillus and kept in peaceable subjection for a hundred years. The fact that the place was associated with the memories of their great defeat would sooner stimulate them to wipe out the recollection of that disgrace than make them feel that any place on earth could be of ill omen for their success. Even if the Gauls themselves were to appear there, they would fight just as they fought when they recovered their City, just as they fought the next day at Gabii, when they did not leave a single enemy who had entered Rome to carry the news of their defeat and the Roman victory to their countrymen.

[6.29]In these different moods, each side reached the banks of the Alia. When the enemy came into view in battle formation ready for action, the Dictator turned to A. Sempronius: "Do you see," he said, "how they have taken their station on the Alia, relying on the fortune of the place? May heaven have given them nothing more certain to trust to, or stronger to help them! You, however, placing your confidence in arms and valour, will charge their center at full gallop, while I with the legions will attack them whilst in disorder. Ye deities who watch over treaties, assist us, and exact the penalties due from those who have sinned against you and deceived us by appealing to your divinity!" Neither the cavalry charge nor the infantry attack was sustained by the Praenestines. At the first onset and battle shout their ranks were broken, and when no portion of the line any longer kept its formation they turned and fled in confusion. In their panic they were carried past their camp, and did not stop their headlong flight until they were within sight of Praeneste. There the fugitives rallied and seized a position which they hastily fortified; they were afraid of retiring within the walls of their city lest their territory should be wasted with fire and, after everything had been devastated, the city should be invested. The Romans, however, after spoiling the camp at the Alia, came up; this position, therefore, was also abandoned. They shut themselves in Praeneste, feeling hardly safe even behind its walls. There were eight towns under the jurisdiction of Praeneste. These were successively attacked and reduced without much fighting.

Then the army advanced against Velitrae, which was successfully stormed. Finally, they arrived at Praeneste, the origin and center of the war. It was captured, not by assault, but after surrender. After being thus victorious in battle and capturing two camps and nine towns belonging to the enemy and receiving the surrender of Praeneste, Titus Quinctius returned to Rome. In his triumphal procession he carried up to the Capitol the image of Jupiter Imperator, which had been brought from Praeneste. It was set up in a recess between the shrines of Jupiter and Minerva, and a tablet was affixed to the pedestal recording the Dictator's successes. The inscription ran something like this: "Jupiter and all the gods have granted this boon to Titus Quinctius the Dictator, that he should capture nine towns." On the twentieth day after his appointment he laid down the Dictatorship.

[6.30]When the election of consular tribunes took place, an equal number were elected from each order. The patricians were: P. and C. Manlius, together with L. Julius; the plebeians were: C. Sextilius, M. Albinus, and L. Anstitius. As the two Manlii took precedence of the plebeians by birth and were more popular than Julius, they had the Volscians assigned to them by special resolution, without casting lots or any understanding with the other consular tribunes; a step which they themselves and the senate who made the arrangement had cause to regret. They sent out some cohorts to forage without previously reconnoitring. On receiving a false message that these were cut off, they started off in great haste to their support, without detaining the messenger, who was a hostile Latin and had passed himself off as a Roman soldier. Consequently, they fell straight into an ambushade. It was only the sheer courage of the men that enabled them to make a stand on unfavourable ground and offer a desperate resistance. At the same time, their camp, which lay on the plain in another direction, was attacked. In both incidents the generals had imperilled everything by their rashness and ignorance; if by the good fortune of Rome anything was saved it was due to the steadiness and courage of the soldiers who had no one to direct operations. On the report of these occurrences reaching Rome, it was at first decided that a Dictator should be nominated, but on subsequent information being received that all was quiet amongst the Volscians, who evidently did not know how to make use of their victory, the armies were recalled from that quarter. On the side of the Volscians peace prevailed; the only trouble

that marked the close of the year was the renewal of hostilities by the Praenestines, who had stirred up the Latin cantons. The colonists of Setia complained of the fewness of their number, so a fresh body of colonists was sent to join them. The misfortunes of the war were compensated by the quiet which prevailed at home owing to the influence and authority which the consular tribunes from the plebeians possessed with their party.

[6.31]The new consular tribunes were: Sp. Furius, Q. Servilius (for the second time), L. Menenius (for the third time), P. Cloelius, M. Horatius, and L. Geganius. No sooner had their year begun than the flames of a violent disturbance broke out, for which the distress caused by the debts supplied both cause and motive. Sp. Servilius Priscus and Q. Cloelius Siculus were appointed censors to go into the matter, but they were prevented from doing so by the outbreak of war. The Volscian legions invaded the Roman territory and were committing ravages in all directions. The first intimation came through panic-stricken messengers followed by a general flight from the country districts. So far was the alarm thus created from repressing the domestic dissensions that the tribunes showed all the greater determination to obstruct the enrolment of troops. They succeeded at last in imposing two conditions on the patricians: that none should pay the war-tax until the war was over, and that no suits for debt should be brought into court. After the plebs had obtained this relief there was no longer any delay in the enrolment. When the fresh troops had been raised they were formed into two armies, both of which were marched into the Volscian territory. Sp. Furius and M. Horatius turned to the right in the direction of Antium and the coast; Q. Servilius and L. Geganius proceeded to the left towards Ecetra and the mountain district. In neither direction did the enemy meet them. So they commenced to ravage the country in a very different method from that which the Volscians had practiced. These, emboldened by the dissensions but afraid of the courage of their enemy, had made hasty depredations like freebooters dreading a surprise, but the Romans acting as a regular army wreaked their just anger in ravages which were all the more destructive because they were continuous. The Volscians, fearing lest an army might come from Rome, confined their ravages to the extreme frontier; the Romans, on the other hand, lingered in the enemy's country to provoke him to battle. After burning all the scattered houses and

several of the villages and leaving not a single fruit tree or any hope of harvest for the year, and carrying off as booty all the men and cattle that remained outside the walled towns, the two armies returned to Rome.

[6.32]A short breathing space had been allowed to the debtors, but as soon as hostilities ceased and quiet was restored large numbers of them were again being adjudged to their creditors, and so completely had all hopes of lightening the old load of debt vanished that new debts were being contracted to meet a tax imposed for the construction of a stone wall for which the censors had made a contract. The plebs were compelled to submit to this burden because there was no enrolment which their tribunes could obstruct. They were even forced by the influence of the nobility to elect only patricians as consular tribunes; their names were: L. Aemilius, P. Valerius (for the fourth time), C. Veturius, Ser. Sulpicius, L. and C. Quinctius Cincinnatus. The patricians were also strong enough to effect the enrolment of three armies to act against the Latins and Volscians, who had united their forces and were encamped at Satricum. All those who were liable for active service were made to take the military oath; none ventured to obstruct. One of these armies was to protect the City; another was to be in readiness to be despatched wherever any sudden hostile movement might be attempted; the third, and by far the strongest, was led by P. Valerius and L. Aemilius to Satricum. Here they found the enemy drawn up for battle on favourable ground and immediately engaged him. The action, though so far not decisive, was going in favour of the Romans when it was stopped by violent storms of wind and rain. The next day it was resumed and was kept up for some time on the part of the enemy with a courage and success equal to that of the Romans, mainly by the Latin legions who through their long alliance were familiar with Roman tactics. A cavalry charge disordered their ranks, and before they could recover, the infantry made a fresh attack and the further they pressed forward the more decided the retreat of the enemy became, and once the battle turned, the Roman attack became irresistible. The rout of the enemy was complete, and as they did not make for their camp but tried to reach Satricum, which was two miles distant, they were mostly cut down by the cavalry. The camp was taken and plundered. The following night they evacuated Satricum, and in a march which was much more like a flight made their way to

Antium, and though the Romans followed almost on their heels, the state of panic they were in enabled them to outstrip their pursuers. The enemy entered the city before the Romans could delay or harass their rear. Some days were spent in harrying the country as the Romans were not sufficiently provided with military engines for attacking the walls, nor were the enemy disposed to run the risk of a battle.

[6.33]A quarrel now arose between the Antiates and the Latins. The Antiates, crushed by their misfortunes and exhausted by a state of war which had lasted all their lives, were contemplating peace; the newly revolted Latins, who had enjoyed a long peace and whose spirits were yet unbroken, were all the more determined to keep up hostilities. When each side had convinced the other that it was perfectly free to act as it thought best, there was an end of the quarrel. The Latins took their departure and so cleared themselves from all association with a peace which they considered dishonourable; the Antiates, when once the inconvenient critics of their salutary counsels were out of the way, surrendered their city and territory to the Romans. The exasperation and rage of the Latins at finding themselves unable to injure the Romans in war or to induce the Volscians to keep up hostilities rose to such a pitch that they set fire to Satricum, which had been their first shelter after their defeat. They flung firebrands on sacred and profane buildings alike, and not a single roof of that city escaped except the temple of Mother Matuta. It is stated that it was not any religious scruple or fear of the gods that restrained them, but an awful Voice which sounded from the temple threatening them with terrible punishment if they did not keep their accursed firebrands far from the shrine. Whilst in this state of frenzy, they next attacked Tusculum, in revenge for its having deserted the national council of the Latins and not only becoming an ally of Rome but even accepting her citizenship. The attack was unexpected and they burst in through the open gates. The town was taken at the first alarm with the exception of the citadel. Thither the townsmen fled for refuge with their wives and children, after sending messengers to Rome to inform the senate of their plight. With the promptitude which the honour of the Roman people demanded an army was marched to Tusculum under the command of the consular tribunes, L. Quinctius and Ser. Sulpicius. They found the gates of Tusculum closed and the Latins, with the feelings of men who are at

once besieging and being besieged, were in one direction defending the walls and in the other attacking the citadel, inspiring terror and feeling it at the same time. The arrival of the Romans produced a change in the temper of both sides; it turned the gloomy forebodings of the Tusculans into the utmost cheerfulness, whilst the confidence which the Latins had felt in a speedy capture of the citadel, as they were already in possession of the town, sank into a faint and feeble hope of even their own safety. The Tusculans in the citadel gave a cheer, it was answered by a much louder one from the Roman army. The Latins were hard pressed on both sides; they could not withstand the attack of the Tusculans charging from the higher ground, nor could they repel the Romans who were mounting the walls and forcing the gates. The walls were first taken by escalade, then the bars of the gates were burst. The double attack in front and rear left the Latins no strength to fight and no room for escape; between the two they were killed to a man.

[6.34]The greater the tranquillity which prevailed everywhere abroad after these successful operations so much the greater became the violence of the patricians and the miseries of the plebeians, since the ability to pay their debts was frustrated by the very fact that payment had become necessary. They had no means left on which to draw, and after judgment had been given against them they satisfied their creditors by surrendering their good name and their personal liberty; punishment took the place of payment. To such a state of depression had not only the humbler classes but even the leading men amongst the plebeians been reduced, that there was no energetic or enterprising individual amongst them who had the spirit to take up or become a candidate even for the plebeian magistracies, still less to win a place amongst the patricians as consular tribune, an honour which they had previously done their utmost to secure. It seemed as though the patricians had for all time won back from the plebs the sole enjoyment of a dignity which for the last few years had been shared with them. As a check to any undue exaltation on the part of the patricians, an incident occurred which was slight in itself, but, as is often the case, led to important results. M. Fabius Ambustus, a patrician, possessed great influence amongst the men of his own order and also with the plebeians, because they felt that he did not in any way look down on them. His two daughters were married, the elder one to Ser. Sulpicius, the younger to C. Licinius Stolo, a

distinguished man, but a plebeian. The fact that Fabius did not regard this alliance as beneath him had made him very popular with the masses. The two sisters happened to be one day at Ser. Sulpicius' house, passing the time in conversation, when on his return from the Forum the tribune's apparitor gave the customary knocks on the door with his rod. The younger Fabia was startled at what was to her an unfamiliar custom, and her sister laughed at her and expressed surprise that she was ignorant of it. That laugh, however, left its sting in the mind of a woman easily excited by trifles. I think, too, that the crowd of attendants coming to ask for orders awoke in her that spirit of jealousy which makes every one anxious to be surpassed as little as possible by one's neighbours. It made her regard her sister's marriage as a fortunate one and her own as a mistake. Her father happened to see her whilst she was still upset by this mortifying incident and asked her if she was well. She tried to conceal the real reason, as showing but little affection for her sister and not much respect for her own husband. He kindly but firmly insisted upon finding out, and she confessed the real cause of her distress; she was united to one who was her inferior in birth, married into a house where neither honour nor political influence could enter. Ambustus consoled his daughter and bade her keep up her spirits; she would very soon see in her own house the same honours which she saw at her sister's. From that time he began to concert plans with his son-in-law; they took into their counsels L. Sextius, a pushing young man who regarded nothing as beyond his ambition except patrician blood.

[6.35]A favourable opportunity for making innovations presented itself in the terrible pressure of debt, a burden from which the plebs did not hope for any alleviation until they had raised men of their own order to the highest authority in the State. This, they thought, was the aim which they must devote their utmost efforts to reach, and they believed that they had already, by dint of effort, secured a foothold from which, if they pushed forward, they could secure the highest positions, and so become the equals of the patricians in dignity as they now were in courage. For the time being, C. Licinius and L. Sextius decided to become tribunes of the plebs; once in this office they could clear for themselves the way to all the other distinctions. All the measures which they brought forward after they were elected were directed against the power and influence of the patricians and calculated to promote the interests of the plebs. One

dealt with the debts, and provided that the amount paid in interest should be deducted from the principal and the balance repaid in three equal yearly instalments. The second restricted the occupation of land and prohibited any one from holding more than five hundred jugera. The third provided that there should be no more consular tribunes elected, and that one consul should be elected from each order. They were all questions of immense importance, which could not be settled without a tremendous struggle.

The prospect of a fight over those things which excite the keenest desires of men - land, money, honours - produced consternation among the patricians. After excited discussions in the senate and in private houses, they found no better remedy than the one they had adopted in previous contests, namely, the tribunitian veto. So they won over some of the tribunes to interpose their veto against these proposals. When they saw the tribes summoned by Licinius and Sextius to give their votes, these men, surrounded by a bodyguard of patricians, refused to allow either the reading of the bills or any other procedure which the plebs usually adopted when they came to vote. For many weeks the Assembly was regularly summoned without any business being done, and the bills were looked upon as dead. "Very good," said Sextius, "since it is your pleasure that the veto shall possess so much power, we will use this same weapon for the protection of the plebs. Come then, patricians, give notice of an Assembly for the election of consular tribunes, I will take care that the word which our colleagues are now uttering in concert to your great delight, the word 'I FORBID,' shall not give you much pleasure." These were not idle threats. No elections were held beyond those of the tribunes and aediles of the plebs. Licinius and Sextius, when re-elected, would not allow any curule magistrates to be appointed, and as the plebs constantly re-elected them, and as they constantly stopped the election of consular tribunes, this dearth of magistrates lasted in the City for five years.

[6.36] Fortunately, with one exception, there was a respite from foreign war. The colonists of Velitrae, becoming wanton in a time of peace and in the absence of any Roman army, made various incursions into Roman territory and began an attack on Tusculum. The citizens, allies of old, and now citizens, implored help, and their situation moved not only the senate, but the plebs as well, with a sense of shame. The tribunes of the plebs gave way and the elections

were conducted by an interrex. The consular tribunes elected were: L. Furius, A. Manlius, Ser. Sulpicius, Ser. Cornelius, P. and C. Valerius. They did not find the plebeians nearly so amenable in the enlistment as they had been in the elections; it was only after a very great struggle that an army was raised. They not only dislodged the enemy from before Tusculum, but forced him to take refuge behind his walls. The siege of Velitrae was carried on with far greater vigour than that of Tusculum had been. Those commanders who had commenced the investment did not, however, effect its capture. The new consular tribunes were: Q. Servilius, C. Veturius, A. and M. Cornelius, Q. Quinctius, and M. Fabius. Even under these tribunes nothing worth mention took place at Velitrae. At home affairs were becoming more critical. Sextius and Licinius, the original proposers of the laws, who had been re-elected tribunes of the plebs for the eighth time, were now supported by Fabius Ambustus, Licinius Stolo's father-in-law. He came forward as the decided advocate of the measures which he had initiated, and whereas there had at first been eight members of the college of tribunes who had vetoed the proposals, there were now only five. These five, as usually happens with men who desert their party, were embarrassed and dismayed, and defended their opposition by borrowed arguments privately suggested to them by the patricians. They urged that as a large number of plebeians were in the army at Velitrae the Assembly ought to be adjourned till the return of the soldiers, to allow of the entire body of the plebs voting on matters affecting their interests. Sextius and Licinius, experts after so many years' practice in the art of handling the plebs, in conjunction with some of their colleagues and the consular tribune, Fabius Ambustus, brought forward the leaders of the patrician party and worried them with questions on each of the measures they were referring to the people. "Have you," they asked, "the audacity to demand that whilst two jugera are allotted to each plebeian, you yourselves should each occupy more than five hundred jugera, so that while a single patrician can occupy the land of nearly three hundred citizens, the holding of a plebeian is hardly extensive enough for the roof he needs to shelter him, or the place where he is to be buried? Is it your pleasure that the plebeians, crushed by debt, should surrender their persons to fetters and punishments sooner than that they should discharge their debts by repaying the principal? That they should be led off in crowds from the Forum as the property of their creditors? That the houses of the

nobility should be filled with prisoners, and wherever a patrician lives there should be a private dungeon?"

[6.37] They were denouncing these indignities in the ears of men, apprehensive for their own safety, who listened to them with stronger indignation than the men who were speaking felt. They went on to assert that after all there would be no limit to the seizure of land by the patricians or the murder of the plebs by the deadly usury until the plebs elected one of the consuls from their own ranks as a guardian of their liberties. The tribunes of the plebs were now objects of contempt since their power was shattering itself by their own veto. There could be no fair or just administration as long as the executive power was in the hands of the other party, while they had only the right of protesting by their veto; nor would the plebs ever have an equal share in the government till the executive authority was thrown open to them; nor would it be enough, as some people might suppose, to allow plebeians to be voted for at the election of consuls. Unless it was made obligatory for one consul at least to be chosen from the plebs, no plebeian would ever become consul. Had they forgotten that after they had decided that consular tribunes should be elected in preference to consuls in order that the highest office might be open to plebeians, not a single plebeian was elected consular tribune for four-and-forty years? What did they suppose? Did they imagine that the men who had been accustomed to fill all the eight places when consular tribunes were elected would of their own free will consent to share two places with the plebs, or that they would allow the path to the consulship to be opened when they had so long blocked the one to the consular tribuneship? The people would have to secure by law what they could not gain by favour, and one of the two consulships would have to be placed beyond dispute as open to the plebs alone, for if it were open to a contest it would always be the prey of the stronger party. The old, oft-repeated taunt could no longer be made now that there were no men amongst the plebs suitable for curule magistracies. Was the government carried on with less spirit and energy after the consulship of P. Licinius Calvus, who was the first plebeian to be elected to that post, than during the years when only patricians held the office? Nay, on the contrary, there had been some cases of patricians being impeached after their year of office, but none of plebeians. The quaestors also, like the consular tribunes, had a few years previously begun to be elected from the

plebs; in no single instance had the Roman people had any cause to regret those appointments. The one thing that was left for the plebs to strive for was the consulship. That was the pillar, the stronghold of their liberties. If they arrived at that, the Roman people would realise that monarchy had been completely banished from the City, and that their freedom was securely established, for in that day everything in which the patricians were pre-eminent would come to the plebs - power, dignity, military glory, the stamp of nobility; great things for themselves to enjoy, but greater still as legacies to their children. When they saw that speeches of this kind were listened to with approval, they brought forward a fresh proposal, viz. that instead of the *duumviri* (the two keepers of the Sacred Books) a College of Ten should be formed, half of them plebeians and half patricians. The meeting of the Assembly, which was to pass these measures, was adjourned till the return of the army which was besieging Velitrae.

[6.38]The year passed away before the legions were brought back. Thus the new measures were hung up and left for the new consular tribunes to deal with. They were T. Quinctius, Ser. Cornelius, Ser. Sulpicius, Sp. Servilius, L. Papirius, and L. Veturius. The plebs re-elected their tribunes, at all events the same two who had brought forward the new measures. At the very beginning of the year the final stage in the struggle was reached. When the tribes were summoned and the proposers refused to be thwarted by the veto of their colleagues, the patricians, now thoroughly alarmed, took refuge in their last line of defence - supreme power, and a supreme citizen to wield it. They resolved upon the nomination of a Dictator, and M. Furius Camillus was nominated; he chose L. Aemilius as his Master of the Horse. Against such formidable preparations on the part of their opponents, the proposers on their side prepared to defend the cause of the plebs with the weapons of courage and resolution. They gave notice of a meeting of the Assembly and summoned the tribes to vote. Full of anger and menace, the Dictator, surrounded by a compact body of patricians, took his seat, and the proceedings commenced as usual with a struggle between those who were bringing in the bills and those who were interposing their veto against them. The latter were in the stronger position legally, but they were overborne by the popularity of the measures and the men who were proposing them. The first tribes were already voting "Aye," when

Camillus said, "Since, Quirites, it is not the authority of your tribunes but their defiance of authority that you are ruled by now, and their right of veto, which was once secured by the secession of the plebs, is now being rendered nugatory by the same violent conduct by which you obtained it, I, as Dictator, acting in your own interests quite as much as in that of the State, shall support the right of veto and protect by my authority the safeguard which you are destroying. If, therefore, C. Licinius and L. Sextius give way before the opposition of their colleagues, I will not intrude the powers of a patrician magistrate into the councils of the plebs; if, however, in spite of that opposition they are bent on imposing their measures on the State, as though it had been subjugated in war, I will not allow the tribunitian power to work its own destruction."

The tribunes of the plebs treated this pronouncement with contempt, and persisted in their course with unshaken resolution. Thereupon Camillus, excessively angry, sent lictors to disperse the plebeians and threatened, if they went on, to bind the fighting men by their military oath and march them out of the City. The plebs were greatly alarmed, but their leaders were exasperated rather than intimidated by his opposition. But while the contest was still undecided he resigned office, either owing to some irregularity in his nomination, as certain writers maintain, or because the tribunes proposed a resolution, which the plebs adopted, to the effect that if Camillus took any action as Dictator a fine of 500,000 ascs should be imposed upon him. That his resignation was due to some defect in the auspices rather than to the effect of such an unprecedented proposal I am led to believe by the following considerations: the well-known character of the man himself; the fact that P. Manlius immediately succeeded him as Dictator - for what influence could he have exerted in a contest in which Camillus had been worsted? the further fact that Camillus was again Dictator the following year, for surely he would have been ashamed to reassume an authority which had been successfully defied the year before. Besides, at the time when, according to the tradition, the resolution imposing a fine on him was passed, either he had as Dictator the power to negative a measure which he saw was meant to circumscribe his authority, or else he was powerless to resist even those other measures on account of which this one was carried. But amidst all the conflicts in which tribunes and consuls have been engaged, the Dictator's powers have always been above controversy.

[6.39]Between Camillus' resignation of office and Manlius' entrance on his Dictatorship, the tribunes held a council of the plebs as though an interregnum had occurred. Here it was evident which of the proposed measures were preferred by the plebs and which their tribunes were most eager about. The measures dealing with usury and the allotment of State land were being adopted, that providing that one consul should always be a plebeian was rejected; both the former would probably have been carried into law if the tribunes had not said that they were putting them en bloc. P. Manlius, on his nomination as Dictator, strengthened the cause of the plebs by appointing a plebeian, C. Licinius, who had been a consular tribune, as his Master of the Horse. I gather that the patricians were much annoyed; the Dictator generally defended his action on the ground of relationship; he pointed out also that the authority of a Master of the Horse was no greater than that of a consular tribune. When notice was given for the election of tribunes of the plebs, Licinius and Sextius declared their unwillingness to be re-elected, but they put it in a way which made the plebeians all the more eager to secure the end which they secretly had in view. For nine years, they said, they had been standing in battle array, as it were, against the patricians, at the greatest risk to themselves and with no advantage to the people. The measures they had brought forward and the whole power of the tribunes had, like themselves, become enfeebled by age. Their proposed legislation had been frustrated first by the veto of their colleagues, then by the withdrawal of their fighting men to the district of Velitrae, and last of all the Dictator had launched his thunders at them. At the present time there was no obstacle either from their colleagues or from war or from the Dictator, for he had given them an earnest of the future election of plebeian consuls by appointing a plebeian as Master of the Horse. It was the plebs who stood in the way of their tribunes and their own interests. If they chose they could have a City and a Forum free from creditors, and fields rescued from their unlawful occupiers. When were they ever going to show sufficient gratitude for these boons, if while accepting these beneficial measures they cut off from those who proposed them all hope of attaining the highest honours? It was not consistent with the self-respect of the Roman people for them to demand to be relieved of the burden of usury and placed on the land which is now wrongfully held by the magnates, and then to leave the tribunes, through whom they won these reforms, without honourable

distinction in their old age or any hope of attaining it. They must first make up their minds as to what they really wanted and then declare their will by their votes at the election. If they wanted the proposed measures carried as a whole, there was some reason for their re-electing the same tribunes, because they would carry their own measures through; if, however, they only wished that to be passed which each man happened to want for himself, there was no need for them to incur odium by prolonging their term of office; they would not have the tribuneship themselves, nor would the people obtain the proposed reforms.

[6.40] This determined language from the tribunes filled the patricians with speechless indignation and amazement. It is stated that Appius Claudius, a grandson of the old decemvir, moved by feelings of anger and hatred more than by any hope of turning them from their purpose, came forward and spoke to the following effect: "It would be nothing new or surprising to me, Quirites, to hear once more the reproach that has always been levelled against our family by revolutionary tribunes, namely, that from the very beginning we have never regarded anything in the State as more important than the honour and dignity of the patricians, and that we have always been inimical to the interests of the plebs. The former of these charges I do not deny. I acknowledge that from the day when we were admitted into the State and into the senate we have laboured most assiduously in order that the greatness of those houses amongst which it was your will that we should be numbered might be said in all truth to have been enhanced rather than impaired. In reply to the second charge, I would go so far as to assert, on my own behalf and on that of my ancestors, that neither as individuals nor in our capacity as magistrates have we ever done anything knowingly which was against the interests of the plebs, unless any one should suppose that what is done on behalf of the State as a whole is necessarily injurious to the plebs as though they were living in another city; nor can any act or word of ours be truthfully brought up as opposed to your real welfare, though some may have been opposed to your wishes. Even if I did not belong to the Claudian house and had no patrician blood in my veins, but more simply one of the Quirites, knowing only that I was sprung from free-born parents and was living in a free State - even then, could I keep silence when I see that this L. Sextius, this C. Licinius, tribunes for life - good heavens! - have reached such a pitch

of impudence during the nine years of their reign that they are refusing to allow you to vote as you please in the elections and in the enacting of laws?

"'On one condition,' they say, 'you shall reappoint us tribunes for the tenth time.' What is this but saying, 'What others seek we so thoroughly despise that we will not accept it without a heavy premium?' But what premium have we to pay that we may always have you as tribunes of the plebs? 'That you adopt all our measures en bloc, whether you agree with them or not, whether they are useful or the reverse.' Now I ask you - you Tarquinian tribunes of the plebs - to listen to me. Suppose that I, as a citizen, call out from the middle of the Assembly, 'Allow us, with your kind permission, to choose out of these proposed measures what we think beneficial for us and reject the others.' 'No,' he says, 'you will not be allowed to do so. You would pass the measure about usury and the one about the distribution of land, for these concern you all; but you would not allow the City of Rome to witness the portentous sight of L. Sextius and C. Licinius as consuls, a prospect you regard with detestation and loathing. Either accept all, or I propose none.' Just as if a man were to place poison together with food before some one famished with hunger and bid him either abstain from what would support his life or mix with it what would bring death. If this were a free State, would not hundreds of voices have exclaimed, 'Begone, with your tribuneships and proposals!' What? If you do not bring in reforms which it is to the people's advantage to adopt, is there no one else who will? If any patrician, if even a Claudius - whom they detest still more -were to say, 'Either accept all, or I propose none,' which of you, Quirites, would tolerate it? Will you never have more regard for measures than for men? Will you always listen with approving ears to everything which your magistrate says and with hostile ears to whatever is said by any of us?

"His language is utterly unbecoming a citizen of a free republic. Well, and what sort of a proposal is it, in heaven's name, that they are indignant with you for having rejected? One, Quirites, which quite matches his language. 'I am proposing,' he says, 'that you shall not be allowed to appoint whom you please as consuls.' What else does his proposal mean? He is laying down the law that one consul at least shall be elected from the plebs, and is depriving you of the power of electing two patricians. If there were to-day a war with Etruria such

as when Porsena encamped on the Janiculum, or such as that in recent times with the Gauls, when everything round us except the Capitol and the Citadel were in the enemy's hands, and, in the press of such a war, L. Sextius were standing for the consulship with M. Furius Camillus and some other patrician, could you tolerate Sextius being quite certain of election and Camillus in danger of defeat? Is this what you call an equal distribution of honours, when it is lawful for two plebeians to be made consuls, but not for two patricians; when one must necessarily be taken from the plebs, while it is open to reject every patrician? What is this comradeship, this equality of yours? Do you count it little to come into a share of what you have had no share in hitherto, unless whilst you are seeking to obtain the half you can carry off the whole? He says, 'I am afraid if it is left open for two patricians to be elected, you will never elect a plebeian.' What is this but saying, 'Because you would not of your own will elect unworthy persons, I will impose upon you the necessity of electing them against your will'? What follows? That if only one plebeian is standing with two patricians he has not to thank the people for his election; he may say he was appointed by the law not by their vote.

[6.41]"Their aim is not to sue for honours but to extort them from you, and they will get the greatest favours from you without showing the gratitude due even for the smallest. They prefer seeking posts of honour by trusting to accident rather than by personal merit. There is many a man, too proud to submit his merits and claims to inspection and examination, who would think it quite fair that he alone among his competitors should be quite certain of attaining a post of honour, who would withdraw himself from your judgment and transfer your free votes into compulsory and servile ones. Not to mention Licinius and Sextius, whose years of uninterrupted power you number up as though they were kings in the Capitol, who is there in the State to-day in such humble circumstances as not to find the path to the consulship made easier by the opportunities offered in that measure for him than it is for us and our children? Even when you sometimes wish to elect us you will not have the power; those people you will be compelled to elect, even if you do not wish to do so. Enough has been said about the indignity of the thing. Questions of dignity, however, only concern men; what shall I say about the duties of religion and the auspices, the contempt and profanation of which specially concern the gods? Who is there who knows not that

it was under auspices that this City was founded, that only after auspices have been taken is anything done in war or peace, at home or in the field? Who have the right to take the auspices in accordance with the usage of our fathers? The patricians, surely, for not a single plebeian magistrate is elected under auspices. So exclusively do the auspices belong to us that not only do the people when electing patrician magistrates elect them only when the auspices are favourable, but even we, when, independently of the people, we are choosing an interrex, only do so after the auspices have been taken: we as private citizens have the auspices which your order does not possess even as magistrates. What else is the man doing who by the creation of plebeian consuls takes away the auspices from the patricians who alone can possess them - what else, I ask, is he doing but depriving the State of the auspices? Now, men are at liberty to mock at our religious fears. 'What does it matter if the sacred chickens do not feed, if they hesitate to come out of their coop, if a bird has shrieked ominously?' These are small matters, but it was by not despising these small matters that our ancestors have achieved the supreme greatness of this State. Now, as though there were no need of securing peace with the gods, we are polluting all ceremonial acts. Are pontiffs, augurs, kings for sacrifice to be appointed indiscriminately? Are we to place the mitre of the Flamen of Jupiter upon any one's head provided only he be a man? Are we to hand over the sacred shields, the shrines, the gods, and the care of their worship to men to whom it would be impious to entrust them? Are laws no longer to be passed, or magistrates elected in accordance with the auspices? Are the senate no longer to authorise the Assembly of centuries, or the Assembly of curies? Are Sextius and Licinius to reign in this City of Rome as though they were a second Romulus, a second Tatius, because they give away other people's money and other people's lands? So great a charm is felt in preying upon other people's fortunes, that it has not occurred to them that by expelling the occupiers from their lands under the one law vast solitudes will be created, whilst by the action of the other all credit will be destroyed and with it all human society abolished. For every reason I consider that these proposals ought to be rejected, and may heaven guide you to a right decision!"

[6.42]The speech of Appius only availed to effect the postponement of the voting. Sextius and Licinius were re-elected for the tenth time.

They carried a law providing that of the ten keepers of the Sibylline Books, five should be chosen from the patricians and five from the plebeians. This was regarded as a further step towards opening the path to the consulship. The plebs, satisfied with their victory, made the concession to the patricians that for the present all mention of consuls should be dropped. Consular tribunes were accordingly elected. Their names were A. and M. Cornelius (each for the second time), M. Geganius, P. Manlius, L. Veturius, and P. Valerius (for the sixth time). With the exception of the siege of Velitrae, in which the result was delayed rather than doubtful, Rome was quiet so far as foreign affairs went. Suddenly the City was startled by rumours of the hostile advance of the Gauls. M. Furius Camillus was nominated Dictator for the fifth time. He named as his Master of the Horse T. Quinctius Poenus. Claudius is our authority for the statement that a battle was fought at the Anio with the Gauls this year, and that it was then that the famous fight took place on the bridge in which T. Manlius killed a Gaul who had challenged him and then despoiled him of his golden collar in the sight of both armies. I am more inclined, with the majority of authors, to believe that these occurrences took place ten years later. There was, however, a pitched battle fought this year by the Dictator, M. F. Camillus, against the Gauls in the Alban territory. Although, bearing in mind their former defeat, the Romans felt a great dread of the Gauls, their victory was neither doubtful nor difficult. Many thousands of the barbarians were slain in the battle, many more in the capture of their camp. Many others, making chiefly in the direction of Apulia, escaped, some by distant flight, and others who had become widely scattered and in their panic had lost their way.

By the joint consent of the senate and plebs a triumph was decreed to the Dictator. He had hardly disposed of that war before a more alarming commotion awaited him at home. After tremendous conflicts, the Dictator and the senate were worsted; consequently the proposals of the tribunes were carried, and in spite of the opposition of the nobility the elections were held for consuls. L. Sextius was the first consul to be elected out of the plebs. Even that was not the end of the conflict. The patricians refused to confirm the appointment, and matters were approaching a secession of the plebs and other threatening signs of appalling civic struggles. The Dictator, however, quieted the disturbances by arranging a compromise; the nobility

made a concession in the matter of a plebeian consul, the plebs gave way to the nobility on the appointment of a praetor to administer justice in the City who was to be a patrician. Thus after their long estrangement the two orders of the State were at length brought into harmony. The senate decided that this event deserved to be commemorated - and if ever the immortal gods merited men's gratitude, they merited it then - by the celebration of the Great Games, and a fourth day was added to the three hitherto devoted to them. The plebeian aediles refused to superintend them, whereupon the younger patricians were unanimous in declaring that they would gladly allow themselves to be appointed aediles for the honour of the immortal gods. They were universally thanked, and the senate made a decree that the Dictator should ask the people to elect two aediles from amongst the patricians, and that the senate should confirm all the elections of that year.

BOOK 7: FRONTIER WARS - (366 - 341 B.C.)

[7.1] This year will be noteworthy for the first consulship held by a plebeian, and also for two new magistracies, the praetorship and the curule aedileship. These offices the patricians created in their own interest as an equivalent for their concession of one consulship to the plebs, who bestowed it on L. Sextius, the man who had secured it for them. The patricians secured the praetorship for Sp. Furius, the son of old Camillus, and the two aedileships for Gnaeus Quinctius Capitolinus and P. Cornelius Scipio, members of their own order. L. Aemilius Mamercus was elected from the patricians as colleague to L. Sextius. The main themes of discussion at the beginning of the year were the Gauls, about whom it was rumoured that after wandering by various routes through Apulia they had reunited their forces and the Hernici, who were reported to have revolted. All preparations were deferred with the sole purpose of preventing any action from being taken by the plebeian consul; everything was quiet and silent in the City, as though a suspension of all business had been proclaimed, with the one exception of the tribunes of the plebs. They did not silently submit to the procedure of the nobility in appropriating to themselves three patrician magistrates, sitting in curule chairs and clothed in the praetexta like consuls, as a set-off against one plebeian consul - the praetor even administering justice, as though he were a colleague of the consuls and elected under the

same auspices. The senate felt somewhat ashamed of their resolution by which they had limited the curule aediles to their own order; it had been agreed that they should be elected in alternate years from the plebs; afterwards it was left open.

The consuls for the following year were L. Genucius and Q. Servilius. Matters were quiet as regarded domestic troubles or foreign wars, but, lest there should be too great a feeling of security, a pestilence broke out. It is asserted that one of the censors, one of the curule aediles, and three tribunes of the plebs fell victims, and in the population generally there was a corresponding proportion of deaths. The most illustrious victim was M. F. Camillus, whose death, though occurring in ripe old age, was bitterly lamented. He was, it may be truly said, an exceptional man in every change of fortune; before he went into exile foremost in peace and war, rendered still more illustrious when actually in exile by the regret which the State felt for his loss, and the eagerness with which after its capture it implored his assistance, and quite as much so by the success with which, after being restored to his country, he restored his country's fortunes together with his own. For five-and-twenty years after this he lived fully up to his reputation, and was counted worthy to be named next to Romulus, as the second founder of the City.

[7.2]The pestilence lasted into the following year. The new consuls were C. Sulpicius Peticus and C. Licinius Stolo. Nothing worth mentioning took place, except that in order to secure the peace of the gods a lectisternium was instituted, the third since the foundation of the City. But the violence of the epidemic was not alleviated by any aid from either men or gods, and it is asserted that as men's minds were completely overcome by superstitious terrors they introduced, amongst other attempts to placate the wrath of heaven, scenic representations, a novelty to a nation of warriors who had hitherto only had the games of the Circus. They began, however, in a small way, as nearly everything does, and small as they were, they were borrowed from abroad. The players were sent for from Etruria; there were no words, no mimetic action; they danced to the measures of the flute and practiced graceful movements in Tuscan fashion. Afterwards the young men began to imitate them, exercising their wit on each other in burlesque verses, and suiting their action to their words. This became an established diversion, and was kept up by frequent practice. The Tuscan word for an actor is *istrio*, and so the

native performers were called *histriones*. These did not, as in former times, throw out rough extempore effusions like the Fescennine verse, but they chanted satirical verses quite metrically arranged and adapted to the notes of the flute, and these they accompanied with appropriate movements. Several years later Livius for the first time abandoned the loose satirical verses and ventured to compose a play with a coherent plot. Like all his contemporaries, he acted in his own plays, and it is said that when he had worn out his voice by repeated recalls he begged leave to place a second player in front of the flutist to sing the monologue while he did the acting, with all the more energy because his voice no longer embarrassed him. Then the practice commenced of the chanter following the movements of the actors, the dialogue alone being left to their voices. When, by adopting this method in the presentation of pieces, the old farce and loose jesting was given up and the play became a work of art, the young people left the regular acting to the professional players and began to improvise comic verses. These were subsequently known as *exodia* (after-pieces), and were mostly worked up into the "Atellane Plays." These farces were of Oscan origin, and were kept by the young men in their own hands; they would not allow them to be polluted by the regular actors. Hence it is a standing rule that those who take part in the *Atellanae* are not deprived of their civic standing, and serve in the army as being in no way connected with the regular acting. Amongst the things which have arisen from small beginnings, the origin of the stage ought to be put foremost, seeing that what was at first healthy and innocent has grown into a mad extravagance that even wealthy kingdoms can hardly support.

[7.3]However, the first introduction of plays, though intended as a means of religious expiation, did not relieve the mind from religious terrors nor the body from the inroads of disease. Owing to an inundation of the Tiber, the Circus was flooded in the middle of the Games, and this produced an unspeakable dread; it seemed as though the gods had turned their faces from men and despised all that was done to propitiate their wrath. C. Genucius and L. Aemilius Mamercus were the new consuls, each for the second time. The fruitless search for effective means of propitiation was affecting the minds of the people more than disease was affecting their bodies. It is said to have been discovered that the older men remembered that a pestilence had once been assuaged by the Dictator driving in a nail.

The senate believed this to be a religious obligation, and ordered a Dictator to be nominated for that purpose. L. Manlius Imperiosus was nominated, and he appointed L. Pinarius as his Master of the Horse. There is an ancient instruction written in archaic letters which runs: Let him who is the praetor maximus fasten a nail on the Ides of September. This notice was fastened up on the right side of the temple of Jupiter Optimus Maximus, next to the chapel of Minerva. This nail is said to have marked the number of the year -written records being scarce in those days - and was for that reason placed under the protection of Minerva because she was the inventor of numbers. Cincius, a careful student of monuments of this kind, asserts that at Volsinii also nails were fastened in the temple of Nortia, an Etruscan goddess, to indicate the number of the year. It was in accordance with this direction that the consul Horatius dedicated the temple of Jupiter Optimus Maximus in the year following the expulsion of the kings; from the consuls the ceremony of fastening the nails passed to the Dictators, because they possessed greater authority. As the custom had been subsequently dropped, it was felt to be of sufficient importance to require the appointment of a Dictator. L. Manlius was accordingly nominated, but, regarding his appointment as due to political rather than to religious reasons and eager to command in the war with the Hernici, he caused a very angry feeling among the men liable to serve by the inconsiderate way in which he conducted the enrolment. At last, in consequence of the unanimous resistance offered by the tribunes of the plebs, he gave way, either voluntarily or through compulsion, and laid down his Dictatorship.

[7.4]This did not, however, prevent his impeachment the following year, when Q. Servilius Ahala and L. Genucius were consuls, the prosecutor being M. Pomponius, one of the tribunes of the plebs. He had incurred universal hatred through the unfeeling severity with which he had carried out the enlistment; the citizens had not only been fined, but subjected to personal ill-treatment, some scourged and others imprisoned because they had not answered to their names. But what men most loathed was his brutal temperament, and the epithet "Imperiosus " (masterful) which had been fastened on him from his unblushing cruelty, an epithet utterly repugnant to a free State. The effects of his cruelty were felt quite as much by his nearest kindred, by his own blood, as by strangers. Amongst other charges

which the tribune brought against him was his treatment of his young son. It was alleged that although guilty of no offence he had banished him from the City, from his home and household gods, had forbidden him to appear in public in the Forum or to associate with those of his own age, and had consigned him to servile work, almost to the imprisonment of a workshop. Here the youth, of high birth, the son of a Dictator, was to learn by daily suffering how rightly his father was called "Imperiosus." And for what offence? Simply because he was lacking in eloquence, in readiness of speech! Ought not this natural defect to have been helped and remedied by the father, if there were a spark of humanity in him, instead of being punished and branded by persecution? Not even do brute beasts show less care and protection to their offspring if they happen to be sickly or deformed. But L. Manlius actually aggravated his son's misfortune by fresh misfortunes, and increased his natural dullness and quenched any faint glimmerings of ability which he might have shown by the clodhopper's life to which he was condemned and the boorish bringing up amongst cattle to which he had to submit.

The youth himself was the last to be exasperated by these accusations brought against his father. On the contrary, he was so indignant at finding himself made the ground of the charges against his father and the deep resentment they created that he was determined to let gods and men see that he preferred standing by his father to helping his enemies. He formed a project which, though natural to an ignorant rustic and no precedent for an ordinary citizen to follow, still afforded a laudable example of filial affection. Arming himself with a knife, he went off early in the morning, without any one's knowledge, to the City, and once inside the gates proceeded straight to the house of M. Pomponius. He informed the porter that it was necessary for him to see his master at once, and announced himself as T. Manlius, the son of Lucius. Pomponius imagined that he was either bringing some matter for a fresh charge, to revenge himself on his father, or was going to offer some advice as to the management of the prosecution. After mutual salutations, he informed Pomponius that he wished the business in hand to be transacted in the absence of witnesses. After all present had been ordered to withdraw, he grasped his knife and standing over the tribune's bed and pointing the weapon towards him, threatened to plunge it into him at once unless he took the oath which he was going to dictate to him, "That

he would never hold an Assembly of the plebs for the prosecution of his father." The tribune was terrified, for he saw the steel glittering before his eyes, while he was alone and defenceless, in the presence of a youth of exceptional strength, and what was worse, prepared to use that strength with savage ferocity. He took the required oath and publicly announced that, yielding to violence, he had abandoned his original purpose. The plebs would certainly have been glad of the opportunity of passing sentence on such an insolent and cruel offender, but they were not displeased at the son's daring deed in defence of his parent, which was all the more meritorious because it showed that his father's brutality had not in any way weakened his natural affection and sense of duty. Not only was the prosecution of the father dropped, but the incident proved the means of distinction for the son. That year, for the first time, the military tribunes were elected by the popular vote; previously they had been nominated by the commander-in-chief, as is the case now with those who are called *Rufuli*. This youth obtained the second out of six places, though he had done nothing at home or in the field to make him popular, having passed his youth in the country far from city life.

[7.5]In this year, owing either to an earthquake or the action of some other force, the middle of the Forum fell in to an immense depth, presenting the appearance of an enormous cavern. Though all worked their hardest at throwing earth in, they were unable to fill up the gulf, until at the bidding of the gods inquiry was made as to what that was in which the strength of Rome lay. For this, the seers declared, must be sacrificed on that spot if men wished the Roman republic to be eternal. The story goes on that M. Curtius, a youth distinguished in war, indignantly asked those who were in doubt what answer to give, whether anything that Rome possessed was more precious than the arms and valour of her sons. As those around stood silent, he looked up to the Capitol and to the temples of the immortal gods which looked down on the Forum, and stretching out his hands first towards heaven and then to the yawning chasm beneath, devoted himself to the gods below. Then mounting his horse, which had been caparisoned as magnificently as possible, he leaped in full armour into the cavern. Gifts and offerings of fruits of the earth were flung in after him by crowds of men and women. It was from this incident that the designation "The Curtian Gulf" originated, and not from that old-world soldier of Titius Tatius, Curtius Mettius. If any

path would lead an inquirer to the truth, we should not shrink from the labour of investigation; as it is, on a matter where antiquity makes certainty impossible we must adhere to the legend which supplies the more famous derivation of the name.

[7.6]After this appalling portent had been duly expiated, the deliberations of the senate were concerned with the Hernici. The mission of the Fetials who had been sent to demand satisfaction proved to be fruitless; the senate accordingly decided to submit to the people at the earliest possible day the question of declaring war against the Hernici. The people in a crowded Assembly voted for war. Its conduct fell by lot to L. Genucius. As he was the first plebeian consul to manage a war under his own auspices the State awaited the issue with keen interest, prepared to look upon the policy of admitting plebeians to the highest offices of state as wise or unwise according to the way matters turned out. As chance would have it, Genucius, whilst making a vigorous attack upon the enemy, fell into an ambush, the legions were taken by surprise and routed, and the consul was surrounded and killed without the enemy being aware who their victim was. When the report of the occurrence reached Rome, the patricians were not so much distressed at the disaster which had befallen the commonwealth as they were exultant over the unfortunate generalship of the consul. Everywhere they were taunting the plebeians: "Go on! Elect your consuls from the plebs, transfer the auspices to those for whom it is an impiety to possess them! The voice of the plebs may expel the patricians from their rightful honours, but has your law, which pollutes the auspices, any force against the immortal gods? They have themselves vindicated their will as expressed through the auspices, for no sooner have these been profaned by one who took them against all divine and human law than the army and its general have been wiped out as a lesson to you not to conduct the elections to the confusion of all the rights of the patrician houses." The Senate-house and the Forum alike were resounding with these protests. Appius Claudius, who had led the opposition to the law, spoke with more weight than ever while he denounced the result of a policy which he had severely censured, and the consul Servilius, with the unanimous approval of the patricians, nominated him Dictator. Orders were issued for an immediate enrolment and the suspension of all business.

[7.7]After Genucius had fallen, C. Sulpicius had assumed the command, and before the arrival of the Dictator and the newly-raised legions, he distinguished himself by a smart action. The death of the consul had led the Hernici to think very lightly of the Roman arms, and they surrounded the Roman camp fully expecting to carry it by assault. The defenders, encouraged by their general and burning with rage and indignation at their recent defeat, made a sortie, and not only destroyed any hopes the Hernici had of forcing the entrenchment but created such disorder amongst them that they precipitately retreated. By the arrival of the Dictator and the junction of the old and newly-raised legions, their strength was doubled. In the presence of the entire force, the Dictator commended Sulpicius and the men who had so gallantly defended the camp, and whilst he raised the courage of those who listened to the praise which they so well deserved, he at the same time made the rest all the keener to emulate them. The enemy showed no less energy in preparing for a renewal of the struggle. Aware of the increase in the strength of their enemy, and animated by the thought of their recent victory, they called every man in the Hernican nation who could bear arms. Eight cohorts were formed of four hundred men each, who had been carefully selected. These, the picked flower of their manhood, were full of hope and courage, and they were further encouraged by a decree which had been passed to allow them double pay. They were exempt from all fatigue duty, in order that they might devote themselves more than the rest of the troops to the one duty reserved for them - that of fighting. In order to make their courage more conspicuous they occupied a special position in the fighting line. The Roman camp was separated from the Hernican by a plain two miles broad. In the middle of this plain, almost equally distant from both camps, the battle took place. For some time neither side gained any advantage, though the Roman cavalry made frequent attempts to break the enemy's line. When they found that the effect produced was much feebler than the efforts they made, they obtained the Dictator's permission to abandon their horses and fight on foot. They raised a loud cheer and commenced a novel kind of fighting by charging as infantry. Their onset would have been irresistible had not the special cohorts of the enemy opposed them with a strength and courage equal to their own.

[7.8]Then the struggle was kept up by the foremost men of each nation. Whatever losses the common chances of battle inflicted on each side were many times greater than could have been expected from their numbers. The rest of the soldiers stood like a crowd of spectators, leaving the fighting to their chiefs as if it were their special privilege, and placing all their hopes of victory on the courage of others. Many fell on both sides, still more were wounded. At length the cavalry began to ask each other somewhat bitterly, "What was left for them to do if after failing to repulse the enemy when mounted they could make no impression on them whilst fighting on foot. What third mode of fighting were they looking for? Why had they dashed forward so eagerly in front of the standards to fight in a position which was not their proper one? "Urged on by these mutual reproaches, they raised their battle shout again and pressed forward. Slowly they compelled the enemy to give ground, then they drove them back more rapidly, and at last fairly routed them. It is not easy to say what gave the advantage where the two sides were so evenly matched, unless it be that the Fortune which ever watches over each nation had the power to raise and to depress their courage. The Romans followed up the fleeing Hernici as far as their camp; but they abstained from attacking it, as it was late in the day. They offered sacrifices the next morning for a long time without obtaining any favourable omen, and this prevented the Dictator from giving the signal for attack before noon; the fight consequently went on into the night. The next day they found the camp abandoned; the Hernici had fled and left some of their wounded behind. The people of Signium saw the main body of the fugitives streaming past their walls with their standards few and far between, and sallying out to attack them they scattered them in headlong flight over the fields. The victory was anything but a bloodless one for the Romans; they lost a quarter of their whole force, and by no means the smallest loss fell on the cavalry, a considerable number of whom perished.

[7.9]The consuls for the following year were C. Sulpicius and C. Licinius Calvus. They resumed operations against the Hernici and invaded their territory, but did not find the enemy in the open. They attacked and captured Ferentinum, a Hernican City; but as they were returning home the Tiburtines closed their gates against them. There had previously been numerous complaints made on both sides, but this last provocation finally decided the Romans, in case the Fetials

failed to get redress, to declare war against the Tiburtines. It is generally understood that T. Quinctius Pennus was the Dictator and Ser. Cornelius Maluginensis the Master of the Horse. According to Licinius Macer, the Dictator was nominated by the consul Licinius. His colleague, Sulpicius, was anxious to get the elections over before he departed for the war, in the hope of being himself re-elected, if he were on the spot, and Licinius determined to thwart his colleague's self-seeking ambition. Licinius Macer's desire to appropriate the credit of this to his house (the Licinii) lessens the weight of his authority. As I find no mention of this in the older annalists, I am more inclined to believe that it was the prospect of a Gaulish war which was the immediate cause why a Dictator was nominated. At all events it was in this year that the Gauls formed their camp by the Salarian road, three miles from the City at the bridge across the Anio. In face of this sudden and alarming inroad the Dictator proclaimed a suspension of all business, and made every man who was liable to serve take the military oath. He marched out of the City with an immense army and fixed his camp on this side the Anio. Each side had left the bridge between them intact, as its destruction might have been thought due to fears of an attack. There were frequent skirmishes for the possession of the bridge; as these were indecisive, the question was left unsettled. A Gaul of extraordinary stature strode forward on to the unoccupied bridge, and shouting as loudly as he could, cried: "Let the bravest man that Rome possesses come out and fight me, that we two may decide which people is the superior in war."

[7.10]A long silence followed. The best and bravest of the Romans made no sign; they felt ashamed of appearing to decline the challenge, and yet they were reluctant to expose themselves to such terrible danger. Thereupon T. Manlius, the youth who had protected his father from the persecution of the tribune, left his post and went to the Dictator. "Without your orders, General," he said, "I will never leave my post to fight, no, not even if I saw that victory was certain; but if you give me permission I want to show that monster as he stalks so proudly in front of their lines that I am a scion of that family which hurled the troop of Gauls from the Tarpeian rock." Then the Dictator: "Success to your courage, T. Manlius, and to your affection for your father and your fatherland! Go, and with the help of the gods show that the name of Rome is invincible." Then his comrades

fastened on his armour; he took an infantry shield and a Spanish sword as better adapted for close fighting; thus armed and equipped they led him forward against the Gaul, who was exulting in his brute strength, and even - the ancients thought this worth recording - putting his tongue out in derision. They retired to their posts and the two armed champions were left alone in the midst, more after the manner of a scene on the stage than under the conditions of serious war, and to those who judged by appearances, by no means equally matched. The one was a creature of enormous bulk, resplendent in a many-coloured coat and wearing painted and gilded armour; the other a man of average height, and his arms, useful rather than ornamental, gave him quite an ordinary appearance. There was no singing of war-songs, no prancing about, no silly brandishing of weapons. With a breast full of courage and silent wrath Manlius reserved all his ferocity for the actual moment of conflict. When they had taken their stand between the two armies, while so many hearts around them were in suspense between hope and fear, the Gaul, like a great overhanging mass, held out his shield on his left arm to meet his adversary's blows and aimed a tremendous cut downwards with his sword. The Roman evaded the blow, and pushing aside the bottom of the Gaul's shield with his own, he slipped under it close up to the Gaul, too near for him to get at him with his sword. Then turning the point of his blade upwards, he gave two rapid thrusts in succession and stabbed the Gaul in the belly and the groin, laying his enemy prostrate over a large extent of ground. He left the body of his fallen foe undespoiled with the exception of his chain, which though smeared with blood he placed round his own neck. Astonishment and fear kept the Gauls motionless; the Romans ran eagerly forward from their lines to meet their warrior, and amidst cheers and congratulations they conducted him to the Dictator. In the doggerel verses which they extemporised in his honour they called him *Torquatus* ("adorned with a chain"), and this soubriquet became for his posterity a proud family name. The Dictator gave him a golden crown, and before the whole army alluded to his victory in terms of the highest praise.

[7.11] Strange to relate, that single combat had such a far-reaching influence upon the whole war that the Gauls hastily abandoned their camp and moved off into the neighbourhood of Tibur. They formed an alliance offensive and defensive with that city, and the Tiburtines

supplied them generously with provisions. After receiving this assistance they passed on into Campania. This was the reason why in the following year the consul, C. Poetilius Balbus, led an army, by order of the people, against the Tiburtines, though the conduct of the war against the Hernici had fallen by lot to his colleague, M. Fabius Ambustus. Though the Gauls had come back from Campania to their assistance, it was undoubtedly by the Tiburtine generals that the cruel depredations in the territories of Labici, Tusculum, and Alba were carried out. To act against the Tiburtines, the republic was content with a consul, but the sudden re-appearance of the Gauls required a Dictator. Q. Servilius Ahala was nominated, and he selected T. Quinctius as Master of the Horse. On the authority of the senate, he made a vow to celebrate the Great Games, should the issue of the war prove favourable. After giving orders for the consul's army to remain where it was, in order to confine the Tiburtines to their own war, the Dictator made all the "juniors" take the military oath, without a single refusal. The battle, in which the whole strength of the City was engaged, took place not far from the Colline Gate in the sight of the parents and wives and children of the Roman soldiers. Even when absent, the thought of those near and dear to one is a great incentive to courage, but now that they were within view they fired the men with a firm resolve to win their applause and secure their safety. There was great slaughter on both sides, but the Gauls were in the end repulsed, and fled in the direction of Tibur as though it were a Gaulish stronghold. The straggling fugitives were intercepted by the consul not far from Tibur; the townsmen sallied out to render them assistance, and they and the Gauls were driven within their gates. So the consul was equally successful with the Dictator. The other consul, Fabius, crushed the Hernici in successive defeats, at first in comparatively unimportant actions and then finally in one great battle when the enemy attacked him in full strength. The Dictator passed splendid encomiums on the consuls, both in the senate and before the people, and even transferred to them the credit for his own success. He then laid down his office. Poetilius celebrated a double triumph - over the Gauls and over the Tiburtines. It was considered a sufficient honour for Fabius to be allowed to enter the City in an ovation. The Tiburtines laughed at Poetilius' triumph. "When," they said, "had he ever met them in a pitched battle? A few of them had come outside their gates to watch the disordered flight of the Gauls, but when they found that they, too, were being attacked

and cut down indiscriminately they retreated into their city. Did the Romans deem that sort of thing worthy of a triumph? They must not look upon it as too great and wonderful a thing to create disorder in an enemy's gates; they would themselves see greater confusion and panic before their own walls."

[7.12]Accordingly, the following year, when M. Popilius Laenas and Cnaeus Manlius were the consuls, an army from Tibur marched in the early hours of the night when all was still against the City of Rome. The citizens, suddenly aroused from sleep, were alarmed by the danger of a nocturnal attack and one quite unlooked for, and the alarm was heightened by their ignorance as to who the enemies were and whence they came. However, the word quickly passed "To arms"; the gates were protected by pickets and the walls manned. When the early dawn revealed a comparatively small force before the walls and the enemy turned out to be none other than the Tiburtines, the consuls decided upon an immediate attack. They issued from two separate gates and attacked the enemy, as they were advancing to the walls, on both flanks. It soon became obvious that they had been trusting more to the chances of a surprise than to their own courage, so little resistance did they offer to the very first onset of the Romans. Their expedition turned out to be an advantage to the Romans, for the apprehensions aroused by a war so close to their gates stifled a nascent conflict between the patricians and the plebs. In the war which followed there was another hostile incursion, but one more formidable to the country districts than to the City; the Tarquinians were carrying on their depredations within the Roman frontiers mainly on the side towards Etruria. As redress was refused, the new consuls, C. Fabius and C. Plautius, by order of the people, declared war against them. This campaign was allotted to Fabius, the one against the Hernici to Plautius. Rumours of hostilities on the part of the Gauls were becoming more frequent. Amidst these numerous alarms, however, there was one consolation - peace had been granted on their request to the Latins, and a strong contingent was sent by them in accordance with the old treaty which for many years they had not observed. Now that the cause of Rome was strengthened by this reinforcement, there was less excitement created by the news that the Gauls had recently reached Praeneste and from there had settled in the country round Pedum. It was decided that C. Sulpicius should be nominated Dictator; the consul, C. Plautius, was summoned home

for the purpose. M. Valerius was appointed Master of the Horse. They selected the finest troops out of the two armies which the consuls had commanded and led them against the Gauls.

The war was somewhat more tedious than was agreeable to either side. At first it was only the Gauls who were anxious to fight, then the Romans showed even more alacrity than the Gauls in arming themselves for action. The Dictator by no means approved of this, since there was no necessity for him to run any risks. The enemy was daily becoming weaker by remaining inactive in a disadvantageous position, without any supplies previously collected, and with no proper entrenchments thrown up. Their whole strength both of mind and body depended upon rapid movements, and even a short delay told upon their vigour. For these reasons the Dictator prolonged the war and announced that he would inflict severe punishment on any one who fought against orders. The soldiers grew impatient at this state of things. When on picket or outpost duty at night, they talked in very disparaging terms about the Dictator, sometimes they abused the senators generally for not having given orders that the war should be conducted by consuls. "An extraordinary commander," they said, "had been selected, one man out of a thousand, who thought that if he sat still and did nothing himself, victory would fly down from heaven into his lap." Then they uttered these sentiments and still more angry ones openly in the daytime; they declared that they would either fight without waiting for orders or they would march back in a body to Rome. The centurions made common cause with the soldiers; the murmurs were not confined to scattered groups, a general discussion went on in the main thoroughfares of the camp and in the open space before the headquarters' tent. The crowd grew to the dimensions of an Assembly, and shouts were raised from all sides to go at once to the Dictator. Sextius Tullius was to be spokesman for the army, a position he was well worthy to fill.

[7.13]Tullius was now first centurion for the seventh time and there was not in the whole army amongst the infantry officers a more distinguished soldier. He led the procession to the tribunal, and Sulpicius was not more surprised at seeing the gathering than at seeing Tullius at the head of it. He began: "Do not be surprised, Dictator, at my being here. The whole army is under the impression that it has been condemned by you for cowardice and to mark its disgrace has been deprived of its arms. It has asked me to plead its

cause before you. Even if we could be charged with deserting our ranks and turning our backs to the enemy, or with the disgraceful loss of our standards, even then I should think it only fair for you to allow us to amend our fault by courage and to wipe out the memory of our disgraceful conduct by winning fresh glory. Even the legions which were routed at the Alia marched out afterwards from Veii and recovered the City which they had lost through panic. For us, thanks to the goodness of the gods and the happy fortune which attends on you and on Rome, our fortunes and our honour remain unimpaired. And yet I hardly dare mention the word 'honour' whilst the enemy ventures to mock us with every kind of insult, as if we were hiding ourselves like women behind our rampart, and - what grieves us much more - even you our commander have made up your mind that your army is without courage, without weapons, without hands to use them, and before you have put us to the proof have so despaired of us that you look upon yourself as the commander of cripples and weaklings. What other reason can we believe there to be, why you, a veteran commander, a most gallant soldier, should be as they say sitting with your arms folded? However the case may be, it is more true to say that you appear to doubt our courage than that we doubt yours. But if this is not your doing, but a piece of State policy, if it is some concerted scheme of the patricians and not war with the Gauls that is keeping us in banishment from the City and from our household gods, then I ask you to regard what I am now going to say as addressed not by soldiers to their commander but to the patricians by the plebs, who say that as you have your projects so they will have theirs. Who could possibly be angry with us for regarding ourselves as your soldiers, not your slaves, sent to war not into banishment, ready, if any one gives the signal and leads us into battle, to fight as becomes men and Romans, equally ready, if there is no need for arms, to live a life of peace and quietness in Rome rather than in camp? This is what we would say to the patricians. But you are our commander, and we your soldiers implore you to give us a chance of fighting. We are eager to win a victory, but to win it under your leadership; it is on you that we want to bestow the laurels of glory, it is with you that we desire to enter the City in triumphal procession, it is behind your chariot that we would go with joyous thanksgivings up to the temple of Jupiter Optimus Maximus." This speech of 'Tullius' was followed by earnest requests from the whole army that he would give the signal and order them to arm.

[7.14] Although the Dictator recognised that, however satisfactory the soldiers' action might be, a most undesirable precedent had been set, he nevertheless undertook to carry out their wishes. He interrogated Tullius privately as to what the whole thing meant and what warrant he had for his procedure. Tullius earnestly entreated the Dictator not to think that he had forgotten military discipline or the respect due to his commanding officer. "But an excited multitude is generally swayed by their advisers, and he had consented to act as their leader to prevent any one else from coming forward whom they might have chosen because he shared their excitement. He himself would do nothing against the wish of the commander-in-chief, but the commander also must be most careful to keep his men in hand. They were too excited now to be put off; they would themselves choose the place and time for fighting if the Dictator did not do so." During this conversation some cattle which happened to be grazing outside the rampart were being driven off by a Gaul, when two Roman soldiers took them from him. The Gauls pelted them with stones, a shout was raised by the Roman outpost and men ran together from both sides. Affairs were rapidly approaching a pitched battle had not the centurions promptly stopped the fighting. This incident confirmed the Dictator's belief in what Tullius had told him, and as matters no longer admitted of delay he issued orders to prepare for battle on the following day.

The Dictator was going into action feeling more assured as to the courage than as to the strength of his troops. He began to turn over in his mind every possible device by which he could inspire fear into the enemy. At last he thought out an ingenious and original plan, one, too, which has since been adopted by many of our own generals as well as those of other countries and which is even practiced to-day. He ordered the packsaddles to be taken off the mules and two pieces of coloured cloth placed on their backs. The muleteers were then furnished with arms, some taken from the prisoners and others belonging to the invalided soldiers, and after thus equipping about a thousand of them and distributing a hundred of the cavalry amongst them he ordered them to ascend the mountains which overlooked the camp and conceal themselves in the woods, and remain there motionless till they received the signal from him. As soon as it grew light the Dictator extended his lines along the lower slopes of the mountain in order that the enemy might have to form their front

facing the mountain. The arrangements for creating a groundless alarm were now completed, and that groundless alarm proved almost more serviceable than an actual increase of strength would have been. At first the leaders of the Gauls did not believe that the Romans would come down on to the plain, but when they saw them suddenly descending, they rushed on to meet them, eager for the encounter, and the battle commenced before the signal had been given by the commanders.

[7.15]The Gauls directed their fiercest attack upon the Roman right, and the Dictator's presence with that division alone prevented the attack from succeeding. When he saw the men wavering he called out sharply to Sextius and asked him if this was the way in which he had pledged his soldiers to fight. "Where," he cried, "are the shouts of the men who clamoured for arms? Where are their threats of going into battle without their commander's orders? Here is the commander, calling loudly to them to fight, and himself fighting in the forefront of the battle; who out of all those who were just now going to lead the way was following him? Braggarts in camp, cowards in battle!" They felt the truth of what they heard, and they were so stung by a sense of shame that they rushed on the enemy's weapons without any thought of danger. They charged like madmen and threw the enemy's lines into confusion, and a cavalry attack which followed turned the confusion into rout. As soon as the Dictator saw their line broken in this part of the field he turned the attack on to their left, where he saw them closing up into a crowded mass, and at the same time gave the agreed signal to those on the mountain. When a fresh battle shout arose and these were seen crossing the mountain slope in the direction of the Gauls' camp, the enemy, afraid of being cut off, gave up the fight and ran in wild disorder to their camp. They were met by Marcus Valerius, the Master of the Horse, who after putting their right wing to flight was riding up to their lines, and he turned their flight towards the mountain and woods. A great many were intercepted by the muleteers whom they took for cavalry, and a terrible slaughter took place amongst those whom panic had driven into the woods after the main battle was over. No one since Camillus celebrated a more justly deserved triumph over the Gauls than C. Sulpicius. A large quantity of gold taken out of the spoil was dedicated by him and stored away in a vault beneath the Capitol. The campaigns in which the consuls for the year were engaged ended in

a very different way. Whilst the Hernici were defeated and reduced to submission by his colleague, Fabius showed a sad want of caution and skill in his operations against the Tarquinians. The humiliation which Rome incurred through his defeat was embittered by the barbarity of the enemy, who sacrificed 307 prisoners of war. That defeat was followed by a sudden predatory incursion of the Privernates and afterwards by one in which the Veliternians took part. In this year two additional tribes were formed - the Pomptine and the Publilian. The Games which Camillus had vowed when Dictator were celebrated. A measure dealing with improper canvassing was for the first time submitted to the people, after passing the senate, by C. Poetilius, tribune of the plebs. It was intended to check the canvassing, mainly by rich plebeians, in the markets and promiscuous gatherings.

[7.16]Another measure, by no means so welcome to the patricians, was brought forward the following year, the consuls being C. Marcius and Cnaeus Manlius. M. Duilius and L. Menenius, tribunes of the plebs, were the proposers of this measure, which fixed the rate of interest at $8 \frac{1}{3}$ per cent.; the plebs adopted it with much more eagerness than the Poetilian Law against canvassing. In addition to the fresh wars decided upon the previous year, the Faliscans had been guilty of two acts of hostility; their men had fought in the ranks of the Tarquinians, and they had refused to give up those who had fled after their defeat to Tarquinii, when the Fetials demanded their surrender. That campaign fell to Cn. Manlius; Marcius conducted the operations against Privernum. This district had remained uninjured during the long years of peace, and when Marcius led his army thither, they loaded themselves with plunder. Its value was enhanced by the munificence of the consul, for he appropriated none of it for the State, and so encouraged the efforts of the private soldier to increase his private means. The Privernates had formed a strongly entrenched camp in front of their walls, and before attacking it Marcius summoned his troops to assembly, and said: "If you promise me that you will do your duty bravely in battle and are quite as ready for fighting as for plunder, I give you now the camp and city of the enemy." With a mighty shout they demanded the signal for battle, and with heads erect and full of confidence they marched proudly into line. Sex. Tullius, who has been already mentioned, was in the front, and he called out, "See, General, how your army is fulfilling its

promise to you," and with the word he dropped his javelin and drawing his sword charged the enemy. The whole of the front line followed him and at the very first onset defeated the Privernates and pursued them as far as the town, which they prepared to storm. When the scaling ladders were actually placed against the walls the place surrendered. A triumph was celebrated over the Privernates. Nothing worth recording was done by the other consul, except his unprecedented action in getting a law passed in camp by the tribes levying 5 per cent. on the value of every slave who was manumitted. As the money raised under this law would be a handsome addition to the exhausted treasury, the senate confirmed it. The tribunes of the plebs, however, looking not so much to the law as to the precedent set, made it a capital offence for any one to convene the Assembly outside their usual place of meeting. If it were once legalised, there was nothing, however injurious to the people, which could not be carried through men who were bound by the oath of military obedience. In this year C. Licinius Stolo was impeached by M. Popilius Laenas for having violated his own law; he and his son together occupied a thousand jugera of land, and he had emancipated his son in order to evade the law. He was condemned to pay a fine of 10,000 ases.

[7.17]The new consuls were M. Fabius Ambustus and M. Popilius Laenas, each for the second time. They had two wars on hand. The one which Laenas waged against the Tiburtines presented little difficulty; after driving them into their city he ravaged their fields. The other consul, who was operating against the Faliscans and Tarquinians, met with a defeat in the first battle. What mainly contributed to it and produced a real terror amongst the Romans was the extraordinary spectacle presented by their priests who, brandishing lighted torches and with what looked like snakes entwined in their hair, came on like so many Furies. At this sight the Romans were like men distraught or thunderstruck and rushed in a panic-stricken mass into their entrenchments. The consul and his staff officers and the military tribunes laughed at them and scolded them for being terrified by conjuring tricks like a lot of boys. Stung by a feeling of shame, they suddenly passed from a state of terror to one of reckless daring, and they rushed like blind men against what they had just fled from. When, after scattering the idle pageantry of the enemy, they got at the armed men behind, they routed the entire

army. The same day they gained possession of the camp, and after securing an immense amount of booty returned home flushed with victory, jesting as soldiers do, and deriding the enemy's contrivance and their own panic. This led to a rising of the whole of Etruria, and under the leadership of the Tarquinians and Faliscans they marched to the salt-works. In this emergency C. Marcius Rutilus was nominated Dictator - the first Dictator nominated from the plebs - and he appointed as Master of the Horse C. Plautius, also a plebeian. The patricians were indignant at even the dictatorship becoming common property, and they offered all the resistance in their power to any decree being passed or any preparations made to help the Dictator in prosecuting that war. This only made the people more ready to adopt every proposal which the Dictator made. On leaving the City he marched along both banks of the Tiber, ferrying the troops across in whichever direction the enemy were reported to be; in this way he surprised many of the raiders scattered about the fields. Finally he surprised and captured their camp; 8000 prisoners were taken, the rest were either killed or hunted out of the Roman territory. By an order of the people which was not confirmed by the senate a triumph was awarded him. As the senate would not have the elections conducted by a plebeian Dictator or a plebeian consul, they fell back on an interregnum. There was a succession of interreges - Q. Servilius Ahala, M. Fabius, Cn. Manlius, C. Fabius, C. Sulpicius, L. Aemilius, Q. Servilius, and M. Fabius Ambustus. In the second of these interregna a contest arose because two patrician consuls were elected. When the tribunes interposed their veto and appealed to the Licinian Law, Fabius, the interrex, said that it was laid down in the Twelve Tables that whatever was the last order that the people made that should have the force of law, and the people had made an order by electing the two consuls. The tribunes' veto only availed to postpone the elections, and ultimately two patrician consuls were elected, namely C. Sulpicius Peticus (for the third time) and M. Valerius Publicola. They entered upon their office the day they were elected.

[7.18] So in the 400th year from the foundation of the City and the 35th after its capture by the Gauls, the second consulship was wrested from the plebs, for the first time since the passing of the Licinian Law seven years previously. Empulum was taken this year from the Tiburtines without any serious fighting. It seems uncertain whether both consuls held joint command in this campaign, as some

writers assert, or whether the fields of the Tarquinians were ravaged by Sulpicius at the same time that Valerius was leading his legions against the Tiburtines. The consuls had a more serious conflict at home with the plebs and their tribunes. They considered it as a question not only of courage but of honour and loyalty to their order that as two patricians had received the consulship so they should hand it on to two patricians. They felt that they must either renounce all claims to it, if it became a plebeian magistracy, or they must keep it in its entirety as a possession which they had received in its entirety from their fathers. The plebs protested: "What were they living for? Why were they enrolled as citizens if they could not with their united strength maintain the right to what had been won for them by the courage of those two men, L. Sextius and C. Licinius? It were better to put up with kings or decemvirs or any other form of absolutism, even though with a worse name, than to see both consuls patricians, the other side not alternately governing and being governed but regarding itself as placed in perpetual authority, and looking upon the plebs as simply born to be their slaves." There was no lack of tribunes to lead the agitation, but in such a state of universal excitement everybody was his own leader. After many fruitless journeys to the Campus Martius, where numerous election days had been wasted in disturbances, the plebs was at last worsted by the steady persistence of the consuls. There was such a feeling of despair that the tribunes, followed by a gloomy and sullen plebs, exclaimed as they left the Campus that there was an end to all liberty, and that they must not only quit the Campus but must even abandon the City now that it was crushed and enslaved by the tyranny of the patricians. The consuls, though deserted by the majority of the people, only a few voters remaining behind, proceeded none the less determinedly with the election. Both the consuls elected were patricians, M. Fabius Ambustus (for the third time) and T. Quinctius. In some of the annalists I find M. Popilius given as consul instead of T. Quinctius.

[7.19]Two wars were brought to a successful close this year. The Tiburtines were reduced to submission; the city of Sassula was taken from them and all their other towns would have shared the same fate had not the nation as a whole laid down their arms and made peace with the consul. A triumph was celebrated over them, otherwise the victory was followed by mild treatment of the vanquished. The Tarquinians were visited with the utmost severity. A large number

were killed in battle; of the prisoners, all those of noble birth to the number of 358 were sent to Rome, the rest were put to the sword. Those who had been sent to Rome met with no gentler treatment from the people, they were all scourged and beheaded in the middle of the Forum. This punishment was an act of retribution for the Romans who had been immolated in the forum of Tarquinii. These successes in war induced the Samnites to ask for a league of friendship. Their envoys received a favourable reply from the senate and a treaty of alliance was concluded with them. The plebs did not enjoy the same good fortune at home which they had met with in the field. In spite of the reduction in the rate of interest, which was now fixed at $8\frac{1}{3}$ per cent., the poor were unable to repay the capital, and were being made over to their creditors. Their personal distress left them little thought for public affairs and political struggles, elections, and patrician consuls; both consulships accordingly remained with the patricians. The consuls elected were C. Sulpicius Peticus (for the fourth time) and M. Valerius Publicola (for the second).

Rumours were brought that the people of Caere, out of sympathy with their co-nationalists, had sided with the Tarquinians. Whilst the minds of the citizens were in consequence filled with apprehensions of a war with Etruria, the arrival of envoys from Latium diverted their thoughts to the Volscians. They reported that an army had been raised and equipped and was now threatening their frontiers and intended to enter and ravage the Roman territory. The senate thought that neither of these movements ought to be ignored; orders were issued for troops to be enrolled for both wars; the consuls were to draw lots for their respective commands. The arrival of despatches from the consul Sulpicius made the Etruscan war appear the more serious of the two. He was directing the operations against Tarquinii, and reported that the country round the Roman salt-works had been raided and a portion of the plunder sent to Caere, some of whose men had undoubtedly been amongst the depredators. The consul Valerius, who was acting against the Volscians and had his camp on the frontiers of Tusculum, was recalled and received orders from the senate to nominate a Dictator. Titus, the son of Lucius Manlius, was nominated, and he named A. Cornelius Cossus as Master of the Horse. Finding the army which the consul had commanded sufficient

for his purpose, he was authorised by the senate and the people to formally declare war upon the Caerites.

[7.20] It would seem as though this formal declaration of war brought home to the Caerites the horrors of a war with Rome more clearly than the action of those who had provoked the Romans by their depredations. They realised how unequal their strength was to such a conflict; they bitterly regretted the raid, and cursed the Tarquinians who had instigated them to revolt. No one made any preparation for war, but each did his utmost to urge the despatch of an embassy to Rome to beg pardon for their offence. When the deputation came before the senate they were referred by the senate to the people. They besought the gods whose sacred things they had taken charge of and made due provision for in the Gaulish war that the Romans in their day of prosperity might feel the same pity for them that they had shown for Rome in her hour of distress. Then turning to the temple of Vesta they invoked the bond of hospitality which they formed in all purity and reverence with the Flamens and the Vestals. "Could any one believe," they asked, "that men who had rendered such services would all of a sudden, without any reason, have become enemies, or if they had been guilty of any hostile act that they had committed it deliberately rather than in a fit of madness? Was it possible that they could, by inflicting fresh injuries, obliterate their old acts of kindness, especially when they had been conferred on those who were so grateful for them; or that they would make an enemy of the Roman people now that it was prosperous and successful in all its wars after having sought its friendship at a time when it was in trouble and adversity? That should not be described as deliberate purpose which ought to be called violence and constraint. After simply asking for a free passage, the Tarquinians traversed their territory in hostile array and compelled some of their country-folk to accompany them in that predatory expedition for which the city of Caere was now held responsible. If it was decided that these men must be surrendered, they would surrender them, if they must be punished, punished they should be. Caere, once the sanctuary of Rome, the shelter of her sacred things, ought to be declared innocent of any thought of war, and acquitted of any charge of hostile intentions in return for her hospitality to the Vestals and her devotion to the gods." Old memories rather than the actual circumstances of the case so wrought upon the people that they thought less of the present grievance than

of the former kindness. Peace was accordingly granted to the people of Caere, and it was agreed to leave to the senate the question of a truce for 100 years. The Faliscans were implicated in the same charge and the war was diverted to them, but the enemy was nowhere to be found in the open. Their territory was ravaged from end to end, but no attempt was made against their cities. After the return of the legions, the rest of the year was spent in repairing the walls and towers. The temple of Apollo was also dedicated.

[7.21]At the close of the year the consular elections were put off owing to the quarrel between the two orders - the tribunes declared that they would not permit the elections to be held unless they were conducted in accordance with the Licinian Law, whilst the Dictator was determined to abolish the consulship altogether rather than make it the common property of plebeians and patricians. The elections were still postponed when the Dictator resigned office; so matters reverted to an interregnum. The interreges declined to hold the elections in consequence of the hostile attitude of the plebs, and the contest went on till the eleventh interregnum. Whilst the tribunes were sheltering themselves behind the Licinian Law and fighting the political battle, the plebs felt their most pressing grievance to be the steadily growing burden of debt; the personal question quite overshadowed the political controversy. Wearied out with the prolonged agitation the senate ordered L. Cornelius Scipio, the interrex, to restore harmony to the State by conducting the consular elections in accordance with the Licinian Law. P. Valerius Publicola was elected and C. Marcus Rutilus was his plebeian colleague.

Now that there was a general desire for concord, the new consuls took up the financial question which was the one hindrance to union. The State assumed the responsibility for the liquidation of the debts, and five commissioners were appointed, who were charged with the management of the money and were hence called *mensarii* (= "bankers"). The impartiality and diligence with which these commissioners discharged their functions make them worthy of an honourable place in every historical record. Their names were: C. Duilius, Publius Decius Mus, M. Papirius, Q. Publilius, and T. Aemilius. The task they undertook was a difficult one, and involved hardship generally to both sides; on one side, at any rate, it always pressed heavily; but they carried it out with great consideration for all parties, and whilst incurring a large outlay on the part of the State

they did not involve it in loss. Seated at tables in the Forum, they dealt with long-standing debts due to the slackness of the debtor more than to his want of means, either by advancing public money on proper security, or by making a fair valuation of his property. In this way an immense amount of debt was cleared off without any injustice or even complaints on either side. Owing to a report that the twelve cities of Etruria had formed a hostile league, a good deal of alarm was felt, which subsequently proved to be groundless, and it was thought necessary that a Dictator should be nominated. This took place in camp, for it was there that the consuls received the senatorial decree. C. Julius was nominated and L. Aemilius was assigned to him as Master of the Horse.

[7.22]Abroad, however, everything was tranquil. At home, owing to the Dictator's attempt to secure the election of patricians to both consulships, matters were brought to an interregnum. There were two interreges, C. Sulpicius and M. Fabius, and they succeeded where the Dictator had failed, as the plebs, owing to the pecuniary relief recently granted them, were in a less aggressive mood. Both consuls elected were patricians - C. Sulpicius Peticus, who had been the first of the two interreges, and T. Quinctius Pennus, some give as his third name Caeso, others Gaius. They both proceeded to war; Quinctius against Falerii, Sulpicius against Tarquinii. The enemy nowhere faced them in open battle; the war was carried on against fields rather than against men; burning and destroying went on everywhere. This waste and decay, like that of a slow decline, wore down the resolution of the two peoples, and they asked for a truce first from the consuls then by their permission from the senate. They obtained one for forty years. After the anxiety created by these two threatening wars was in this way allayed, there was a respite for a time from arms. The liquidation of the debts had in the case of many properties led to a change of ownership, and it was decided that a fresh assessment should be made. When, however, notice was given of the election of censors, C. Marcius Rutilus, who had been the first Dictator nominated from the plebs, announced that he was a candidate for the censorship. This upset the good feeling between the two orders. He took this step at what looked like an unfavourable moment because both consuls happened to be patricians, and they declared that they would allow no votes for him. But he resolutely held to his purpose, and the tribunes, anxious to recover the rights of the plebs which

were lost in the consular elections, assisted him to the utmost of their power. There was no dignity which the greatness of his character was unequal to supporting, and the plebs were desirous of being called to share the censorship by the same man who had opened up the path to the dictatorship. There was no division of opinion shown in the elections, Marcius was unanimously elected censor, together with Manlius Gnaeus. This year also saw M. Fabius as Dictator, not from any apprehension of war but to prevent the Licinian Law from being observed in the consular elections. The Dictatorship, however, did not make the combined efforts of the senate more influential in the election of consuls than it had been in the election of censors.

[7.23]M. Popilius Laenas was the consul elected from the plebs, L. Cornelius Scipio the one from the patricians. Fortune conferred the greater distinction upon the plebeian consul, for upon the receipt of information that an immense army of Gauls had encamped in the territory of Latium, the conduct of that war, owing to Scipio's serious illness at the time, was entrusted by special arrangement to Popilius. He promptly raised an army, and ordered all who were liable for active service to meet under arms outside the Capene Gate at the temple of Mars; the quaestors were ordered to carry the standards from the treasury to the same place. After bringing up four legions to full strength, he handed over the rest of the troops to P. Valerius Publicola, the praetor, and advised the senate to raise a second army to protect the republic against any emergency. When all preparations were completed and everything in readiness, he advanced towards the enemy. With the view of ascertaining their strength before testing it in a decisive action, he seized some rising ground as near to the camp of the Gauls as possible and began to construct the rampart. When the Gauls saw the Roman standards in the distance they formed their line, prepared, with their usual impulsiveness and instinctive love of fighting, to engage at once. Observing, however, that the Romans did not come down into the plain and were trusting to the protection of their position and their rampart, they imagined that they were smitten with fear, and at the same time would be more open to attack whilst they were occupied in the work of entrenchment. So raising a wild shout they advanced to the attack. The triarii, who formed the working party, were not interrupted, for they were screened by the hastati and principes who were posted in front and who began the fighting. Their steady courage was aided by

the fact that they were on higher ground, for the pila and hastae were not thrown ineffectively as often happens on level ground, but being carried forward by their weight they reached their mark. The Gauls were borne down by the weight of the missiles which either pierced their bodies or stuck in their shields, making them extremely heavy to carry. They had almost reached the top of the hill in their charge when they halted, uncertain what to do. The mere delay raised the courage of the Romans and depressed that of the enemy. Then the Roman line swept down upon them and forced them back; they fell over each other and caused a greater loss in this way than that inflicted by the enemy; so headlong was their flight that more were crushed to death than were slain by the sword.

[7.24]But the victory was not yet decided. When the Romans reached the level ground another mass remained to be dealt with. The number of the Gauls was great enough to prevent them from feeling the loss already sustained, and as though a new army had risen from the earth, fresh troops were brought up against their victorious enemy. The Romans checked their onset and stood still, for not only had they, wearied as they were, to sustain a second fight, but the consul, while riding incautiously in the front, had his left shoulder almost run through by a heavy javelin and had retired. The victory was all but forfeited by this delay, when the consul, after his wound was bound up, rode back to the front. "Why are you standing still, soldiers?" he exclaimed. "You have not to do with Latins or Sabines whom, after you have defeated, you can make into allies, it is against wild beasts that we have drawn the sword; we must either drain their blood or give them ours. You have repulsed them from your camp, you have driven them headlong down into the valley, you are standing over the prostrate bodies of your foes. Fill the valley with the same carnage with which you filled the mountain side. Do not look for them to flee while you are standing here; the standards must go forward, you must advance against the enemy." Thus encouraged they made a fresh charge, dislodged the front companies of the Gauls, and closing up their maniples into a wedge penetrated the enemy's center. Then the barbarians were broken up, and having no leadership or definite orders they turned the attack on to their own reserves. They were scattered over the plain, and their headlong flight carried them past their camp in the direction of the Alba hills. As the hill on which the old Alban stronghold stood appeared to be the highest in the range,

they made for it. The consul did not continue the pursuit beyond the camp as his wound was troublesome and he did not wish to risk an attack upon hills held by the enemy. All the spoil of the camp was given up to the soldiers, and he led back to Rome an army flushed with victory and enriched by the plunder of the Gauls, but owing to his wound his triumph was delayed. As both consuls were on the sick list, the senate found it necessary to appoint a Dictator to conduct the elections. L. Furius Camillus was nominated, and P. Cornelius Scipio was associated with him as Master of the Horse. He restored to the patricians their old monopoly of the consulship, and for this service he was through their enthusiastic support elected consul, and he procured the election of Appius Claudius Crassus as his colleague.

[7.25]Before the new consuls entered upon their office Popilius celebrated his triumph over the Gauls amidst the delighted applause of the plebs, and people asked each other with bated breath whether there was any one who regretted the election of a plebeian consul. At the same time they were very bitter against the Dictator for having seized the consulship as a bribe for his treating the Licinian Law with contempt. They considered that he had degraded the consulship more by his greedy ambition than by his acting against the public interest, since he had actually procured his own election as consul whilst he was Dictator. The year was marked by numerous disturbances. The Gauls came down from the hills of Alba because they could not stand the severity of the winter, and they spread themselves in plundering hordes over the plains and the maritime districts. The sea was infested by fleets of Greek pirates who made descents on the coast round Antium and Laurentum and entered the mouth of the Tiber. On one occasion the sea-robbers and the land-robbers encountered one another in a hard-fought battle, and drew off, the Gauls to their camp, the Greeks to their ships, neither side knowing whether they were to consider themselves victors or vanquished.

These various alarms were followed by a much more serious one. The Latins had received a demand from the Roman government to furnish troops, and after discussing the matter in their national council replied in these uncompromising terms: "Desist from making demands on those whose help you need; we Latins prefer to bear arms in defence of our own liberty rather than in support of an alien dominion." With two foreign wars on their hands and this revolt of

their allies, the anxious senate saw that they would have to restrain by fear those who were not restrained by any considerations of honour. They ordered the consuls to exert their authority to the utmost in levying troops, since, as the body of their allies were deserting them, they would have to depend upon their fellow-citizens entirely. Men were enlisted everywhere, not only from the City but also from the country districts. It is stated that ten legions were enrolled, each containing 4200 foot and 300 horse. In these days the strength of Rome, for which the world hardly finds room, would even, if concentrated, find it difficult on any sudden alarm to raise a fresh army of that size; to such an extent have we progressed in those things to which alone we devote our efforts - wealth and luxury. Amongst the other mournful events of this year was the death of the second consul, Ap. Claudius, which occurred while the preparations for war were going on. The government passed into the hands of Camillus, as sole consul, and the senate did not think it well for a Dictator to be appointed, either because of the auspicious omen of his name in view of trouble with the Gauls, or because they would not place a man of his distinction under a Dictator. Leaving two legions to protect the City, the consul divided the remaining eight between himself and L. Pinarius, the praetor. He kept the conduct of the war against the Gauls in his own hands instead of deciding upon the field of operations by the usual drawing of lots, inspired as he was by the memory of his father's brilliant successes. The praetor was to protect the coast-line and prevent the Greeks from effecting a landing, whilst he himself marched down into the Pomptine territory. His intention was to avoid any engagement in the flat country unless he was forced to fight, and to confine himself to checking their depredations; for as it was only by pillaging that they were able to maintain themselves, he thought that he could best crush them in this way. Accordingly he selected suitable ground for a stationary camp.

[7.26] Whilst the Romans were passing their time quietly at the outposts, a gigantic Gaul in splendid armour advanced towards them, and delivered a challenge through an interpreter to meet any Roman in single combat. There was a young military tribune, named Marcus Valerius, who considered himself no less worthy of that honour than T. Manlius had been. After obtaining the consul's permission, he marched, completely armed, into the open ground between the two armies. The human element in the fight was thrown into the shade

by the direct interposition of the gods, for just as they were engaging a crow settled all of a sudden on the Roman's helmet with its head towards his antagonist. The tribune gladly accepted this as a divinely-sent augury, and prayed that whether it were god or goddess who had sent the auspicious bird that deity would be gracious to him and help him. Wonderful to relate, not only did the bird keep its place on the helmet, but every time they encountered it rose on its wings and attacked the Gaul's face and eyes with beak and talon, until, terrified at the sight of so dire a portent and bewildered in eyes and mind alike, he was slain by Valerius. Then, soaring away eastwards, the crow passed out of sight. Hitherto the outposts on both sides had remained quiet, but when the tribune began to despoil his foeman's corpse, the Gauls no longer kept their posts, whilst the Romans ran still more swiftly to help the victor. A furious fight took place round the body as it lay, and not only the maniples at the nearest outposts but the legions pouring out from the camp joined in the fray. The soldiers were exultant at their tribune's victory and at the manifest presence and help of the gods, and as Camillus ordered them into action he pointed to the tribune, conspicuous with his spoils, and said: "Follow his example, soldiers, and lay the Gauls in heaps round their fallen champion!" Gods and man alike took part in the battle, and it was fought out to a finish, unmistakably disastrous to the Gauls, so completely had each army anticipated a result corresponding to that of the single combat. Those Gauls who began the fight fought desperately, but the rest of the host who came to help them turned back before they came within range of the missiles. They dispersed amongst the Volscians and over the Falernian district; from thence they made their way to Apulia and the western sea.

The consul mustered his troops on parade, and after praising the conduct of the tribune presented him with ten oxen and a golden chaplet. In consequence of instructions received from the senate he took over the maritime war and joined his forces with those of the praetor. The Greeks were too lacking in courage to run the risk of a general engagement, and there was every prospect of the war proving a long one. Camillus was in consequence authorised by the senate to nominate T. Manlius Torquatus as Dictator for the purpose of conducting the elections. After appointing A. Cornelius Cossus as Master of the Horse, the Dictator proceeded to hold the consular elections. Marcus Valerius Corvus (for that was henceforth his

cognomen), a young man of twenty-three, was declared to be duly elected amidst the enthusiastic cheers of the people. His colleague was the plebeian, M. Popilius Laenas, now elected for the fourth time. Nothing worth recording took place between Camillus and the Greeks; they were no fighters on land and the Romans could not fight on the sea. Ultimately, as they were prevented from landing anywhere and water and the other necessities of life failed them, they abandoned Italy. To what Greek state or nationality that fleet belonged is a matter of uncertainty; I think it most likely that it belonged to the Tyrant of Sicily, for Greece itself was at that time exhausted by intestine wars and was watching with dread the growing power of Macedonia.

[7.27] After the armies were disbanded there was an interval of peace abroad and harmony between the two orders at home. To prevent things, however, from becoming too pleasant, a pestilence attacked the citizens, and the senate found themselves under the necessity of issuing an order to the decemvirs requiring them to consult the Sibylline Books. On their advice a lectisternium was held. In this year colonists from Antium rebuilt Satricum, which had been destroyed by the Latins, and settled there. A treaty was concluded between Rome and Carthage; the latter city had sent envoys to ask for a friendly alliance. As long as the succeeding consuls - T. Manlius Torquatus and C. Plautius - held office the same peaceful conditions prevailed. The rate of interest was reduced by one half and payment of the principal was to be made in four equal instalments, the first at once, the remainder in three successive years. Though many plebeians were still in distress, the senate looked upon the maintenance of public credit as more important than the removal of individual hardships. What afforded the greatest relief was the suspension of military service and the war-tax. Three years after Satricum had been rebuilt by the Volscians, whilst M. Valerius Corvus was consul for the second time with Caius Poetilius, a report was sent on from Latium that emissaries from Antium were going round the Latin cantons with the view of stirring war. Valerius was instructed to attack the Volscians before the enemy became more numerous, and he proceeded with his army to Satricum. Here he was met by the Antiates and other Volscian troops who had been previously mobilised in case of any movement on the side of Rome. The old standing hatred between the two nations made each side

eager for battle; there was consequently no delay in trying conclusions. The Volscians, bolder to begin war than to sustain it, were completely defeated and fled precipitately to Satricum. The city was surrounded, and as it was on the point of being stormed - the scaling ladders were against the walls - they lost all hope and surrendered to the number of 4000 fighting men, in addition to a multitude of noncombatants. The town was sacked and burnt; the temple of Matuta the Mother was alone spared by the flames; all the plunder was given to the soldiers. In addition to the booty, there were the 4000 who had surrendered; these were marched in chains before the consul's chariot in his triumphal procession, then they were sold and a large sum was realised for the treasury. Some authors assert that these prisoners were slaves who had been captured in Satricum, and this is more likely to have been the case than that men who had surrendered should have been sold.

[7.28]M. Fabius Dorsuo and Ser. Sulpicius Camerinus were the next consuls. A sudden raid by the Auruncans led to a war with that people. Fears were entertained that more than one city was concerned in this, that in fact it had been planned by the entire Latin League. To meet all Latium in arms L. Furius Camillus was nominated Dictator; he appointed Cnaeus Manlius Capitolinus Master of the Horse. As usual in great and sudden alarms a suspension of all business was proclaimed and the enlistment was made without any claims to exemption being allowed; when it was completed the legions were marched as rapidly as possible against the Auruncans. They showed the temper of marauders rather than of soldiers, and the war was finished in the very first battle. But as they had begun the war without any provocation and had shown no reluctance to accept battle, the Dictator thought it his duty to secure the help of the gods, and during the actual fighting he vowed a temple to Juno Moneta. On his victorious return to Rome, he resigned his Dictatorship to discharge his vow. The senate ordered two commissioners to be appointed to carry out the construction of that temple in a style commensurate with the greatness of the Roman people, and a site was marked out in the Citadel where the house of M. Manlius Capitolinus had stood. The consuls employed the Dictator's army in war with the Volscians and took from them by a coup-de-main the city of Sora. The temple of Moneta was dedicated in the following year, when C. Marcus Rutilus was consul for the

third time and T. Manlius Torquatus for the second. A portent followed close on the dedication similar to the old portent on the Alban Mount; a shower of stones fell and night seemed to stretch its curtain over the day. The citizens were filled with dread at this supernatural occurrence, and after the Sibylline Books had been consulted the senate decided upon the appointment of a Dictator to arrange the ceremonial observances for the appointed days. P. Valerius Publicola was nominated and Q. Fabius Ambustus was appointed Master of the Horse. It was arranged that not only the Roman tribes but also the neighbouring populations should take part in the public intercessions, and the order of the days which each was to observe was definitely laid down. There were prosecutions this year of moneylenders by the aediles, and heavy sentences are stated to have been passed on them by the people. For some reason, which is not recorded, matters reverted to an interregnum. As, however, it ended in the election of two patrician consuls, this would appear to be the reason why it was resorted to. The new consuls were M. Valerius Corvus (for the third time) and A. Cornelius Cossus.

[7.29]The history will now be occupied with wars greater than any previously recorded; greater whether we consider the forces engaged in them or the length of time they lasted, or the extent of country over which they were waged. For it was in this year (343 B.C.) that hostilities commenced with the SAMNITES, a people strong in material resources and military power. Our war with the Samnites, with its varying fortunes, was followed by the war with Pyrrhus, and that again by the war with Carthage. What a chapter of great events! How often had we to pass through the very extremity of danger in order that our dominion might be exalted to its present greatness, a greatness which is with difficulty maintained! The cause of the war between the Romans and the Samnites, who had been our friends and allies, came, however, from without; it did not arise between the two peoples themselves. The Samnites, simply because they were the stronger, made an unprovoked attack upon the Sidicines; the weaker side were compelled to fly for succour to those who were more powerful and threw in their lot with the Campanians. The Campanians brought to the help of their allies the prestige of their name rather than actual strength; enervated by luxury they were worsted by a people inured to the use of arms, and after being defeated on Sidicine territory diverted the whole weight of the war

against themselves. The Samnites, dropping operations against the Sidicines, attacked the Campanians as being the mainstay and stronghold of their neighbours; they saw, too, that whilst victory would be just as easily won here, it would bring more glory and spoils. They seized the Tifata hills which overlook Capua and left a strong force to hold them, then they descended in close order into the plain which lies between the Tifata hills and Capua. Here a second battle took place, in which the Campanians were defeated and driven within their walls. They had lost the flower of their army, and as there was no hope of any assistance near, they found themselves compelled to ask for help from Rome.

[7.30]On being admitted to an audience, their envoys addressed the senate to the following effect: "Senators! the people of Capua have sent us as ambassadors to you to ask for a friendship which shall be perpetual, and for help for the present hour. Had we sought this friendship in the day of our prosperity it might have been cemented more readily, but at the same time by a weaker bond. For in that case, remembering that we had formed our friendship on equal terms, we should perhaps have been as close friends as now, but we should have been less prepared to accept your mandates, less at your mercy. Whereas now, won over by your compassion and defended in our extremity by your aid, we should be bound to cherish the kindness bestowed on us if we are not to appear ungrateful and undeserving of any help from either gods or men. I certainly do not consider that the fact of the Samnites having already become your friends and allies should be a bar to our being admitted into your friendship; it only shows that they take precedence of us in the priority and degree of the honour which you have conferred upon them. There is nothing in your treaty with them to prevent you from making fresh treaties. It has always been held amongst you to be a satisfactory reason for friendship, when he who made advances to you was anxious to be your friend. Although our present circumstances forbid us to speak proudly about ourselves, still we Campanians are second to no people, save yourselves, in the size of our city and the fertility of our soil, and we shall bring, I consider, no small accession to your prosperity by entering into your friendship. Whenever the Aequi and Volscians, the perpetual enemies of this City, make any hostile movement we shall be on their rear, and what you lead the way in doing on behalf of our safety, that we shall always continue to do on

behalf of your dominion and your glory. When these nations which lie between us are subjugated - and your courage and fortune are a guarantee that this will soon come about - you will have an unbroken dominion up to our frontier. Painful and humiliating is the confession which our fortunes compel us to make; but it has come to this, senators, we Campanians must be numbered either amongst your friends or your enemies. If you defend us we are yours, if you abandon us we shall belong to the Samnites. Make up your minds, then, whether you would prefer that Capua and the whole of Campania should form an addition to your strength or should augment the power of the Samnites. It is only right, Romans, that your sympathy and help should be extended to all, but especially should it be so to those who, when others appealed to them, tried to help them beyond their strength and so have brought themselves into these dire straits. Although it was ostensibly on behalf of the Sidicines that we fought, we really fought for our own liberty, for we saw our neighbours falling victims to the nefarious brigandage of the Samnites, and we knew that when the Sidicines had been consumed the fire would sweep on to us. The Samnites are not coming to attack us because we have in any way wronged them, but because they have gladly seized upon a pretext for war. Why, if they only sought retribution and were not catching at an opportunity for satisfying their greed, ought it not to be enough for them that our legions have fallen on Sidicine territory and a second time in Campania itself? Where do we find resentment so bitter that the blood shed in two battles cannot satiate it? Then think of the destruction wrought in our fields, the men and cattle carried off, the burning and ruining of our farms, everything devastated with fire and sword cannot all this appease their rage? No, they must satisfy their greed. It is this that is hurrying them on to the storm of Capua; they are bent on either destroying that fairest of cities or making it their own. But you, Romans, should make it your own by kindness, rather than allow them to possess it as the reward of iniquity.

"I am not speaking in the presence of a nation that refuses to go to war when war is righteous, but even so, I believe if you make it clear that you will help us you will not find it necessary to go to war. The contempt which the Samnites feel for their neighbours extends to us, it does not mount any higher; the shadow of your help therefore is enough to protect us, and we shall regard whatever we have, whatever

we are, as wholly yours. For you the Campanian soil shall be tilled, for you the city of Capua shall be thronged; you we shall regard as our founders, our parents, yes, even as gods; there is not a single one amongst your colonies that will surpass us in devotion and loyalty towards you. Be gracious, senators, to our prayers and manifest your divine will and power on behalf of the Campanians, and bid them entertain a certain hope that Capua will be safe. With what a vast crowd made up of every class, think you, did we start from the gates? How full of tears and prayers did we leave all behind! In what a state of expectancy are the senate and people of Capua, our wives and children, now living! I am quite certain that the whole population is standing at the gates, watching the road which leads from here, in anxious suspense as to what reply you are ordering us to carry back to them. The one answer will bring them safety, victory, light, and liberty; the other - I dare not say what that might bring. Deliberate then upon our fate, as that of men who are either going to be your friends and allies, or to have no existence anywhere."

[7.31]When the envoys had withdrawn, the senate proceeded to discuss the question. Many of the members realised how the largest and richest city in Italy, with a very productive country near the sea, could become the granary of Rome, and supply every variety of provision. Notwithstanding, however, loyalty to treaties outweighed even these great advantages, and the consul was authorised by the senate to give the following reply: "The senate is of opinion, Campanians, that you are worthy of our aid, but justice demands that friendship with you shall be established on such a footing that no older friendship and alliance is thereby impaired. Therefore we refuse to employ on your behalf against the Samnites arms which would offend the gods sooner than they injured men. We shall, as is just and right, send an embassy to our allies and friends to ask that no hostile violence be offered you." Thereupon the leader of the embassy, acting according to the instructions they had brought with them, said: "Even though you are not willing to make a just use of force against brute force and injustice in defence of what belongs to us, you will at all events defend what belongs to you. Wherefore we now place under your sway and jurisdiction, senators, and that of the Roman people, the people of Campania and the city of Capua, its fields, its sacred temples, all things human and divine. Henceforth we are prepared to suffer what we may have to suffer as men who have

surrendered themselves into your hands." At these words they all burst into tears and stretching out their hands towards the consul they prostrated themselves on the floor of the vestibule.

The senators were deeply moved by this instance of the vicissitudes of human fortune, where a people abounding in wealth, famous for their pride and luxuriousness, and from whom, shortly before, their neighbours had sought assistance, were now so broken in spirit that they put themselves and all that belonged to them under the power and authority of others. It at once became a matter of honour that men who had formally surrendered themselves should not be left to their fate, and it was resolved "that the Samnite nation would commit a wrongful act if they attacked a city and territory which had by surrender become the possession of Rome." They determined to lose no time in despatching envoys to the Samnites. Their instructions were to lay before them the request of the Campanians, the reply which the senate, mindful of their friendly relations with the Samnites, had given, and lastly the surrender which had been made. They were to request the Samnites, in virtue of the friendship and alliance which existed between them, to spare those who had made a surrender of themselves and to take no hostile action against that territory which had become the possession of the Roman people. If these mild remonstrances proved ineffective, they were to solemnly warn the Samnites in the name of the senate and people of Rome to keep their hands off the city of Capua and the territory of Campania. The envoys delivered their instructions in the national council of Samnium. The reply they received was couched in such defiant terms that not only did the Samnites declare their intention of pursuing the war against Capua, but their magistrates went outside the council chamber and, in tones loud enough for the envoys to hear, ordered the prefects of cohorts to march at once into the Campanian territory and ravage it.

[7.32]When the result of this mission was reported in Rome, all other matters were at once laid aside and the fetials were sent to demand redress. This was refused and the senate decreed that a formal declaration of war should be submitted for the approval of the people as soon as possible. The people ratified the action of the senate and ordered the two consuls to start, each with his army; Valerius for Campania, where he fixed his camp at Mount Glaurus, whilst Cornelius advanced into Samnium and encamped at Saticula.

Valerius was the first to come into touch with the Samnite legions. They had marched into Campania because they thought that this would be the main theatre of war, and they were burning to wreak their rage on the Campanians who had been so ready first to help others against them and then to summon help for themselves. As soon as they saw the Roman camp, they one and all clamoured for the signal for battle to be given by their leaders; they declared that the Romans would have the same luck in helping the Campanians that the Campanians had had in helping the Sidicines. For a few days Valerius confined himself to skirmishes, with the object of testing the enemy's strength. At length he put out the signal for battle and spoke a few words of encouragement to his men. He told them not to let themselves be daunted by a new war or a new enemy, for the further they carried their arms from the City the more unwarlike were the nations whom they approached. They were not to measure the courage of the Samnites by the defeats they had inflicted on the Sidicines and the Campanians; whenever two nations fought together, whatever the qualities they possessed, one side must necessarily be vanquished. There was no doubt that as far as the Campanians were concerned they owed their defeats more to their want of hardihood and the weakening effects of excessive luxury than to the strength of their enemies. What could two successful wars on the part of the Samnites through all those centuries weigh against the many brilliant achievements of the Roman people, who reckoned up almost more triumphs than years since the foundation of their City, who had subdued by the might of their arms all the surrounding nations - Sabines, Etruscans, Latins, Hernici, Aequi, Volscians, and Auruncans - who had slain the Gauls in so many battles and driven them at last to their ships? His men must not only go into action in full reliance upon their own courage and warlike reputation, but they must also remember under whose auspices and generalship they were going to fight, whether under a man who is only to be listened to provided he is a big talker, courageous only in words, ignorant of a soldier's work, or under one who himself knows how to handle weapons, who can show himself in the front, and do his duty in the melee of battle. "I want you, soldiers," he continued, "to follow my deeds not my words, and to look to me not only for the word of command but also for example. It was not by party struggles nor by the intrigues so common amongst the nobles but by my own right hand that I won three consulships and attained the highest

reputation. There was a time when it might have been said to me, 'Yes, for you were a patrician descended from the liberators of our country, and your family held the consulship in the very year when this City first possessed consuls.' Now, however, the consulship is open to you, plebeians, as much as to us who are patricians; it is not the reward of high birth as it once was, but of personal merit. Look forward then, soldiers, to securing all the highest honours! If with the sanction of the gods you men have given me this new name of Corvinus, I have not forgotten the old cognomen of our family; I have not forgotten that I am a Publicola. I always study and always have studied the interests of the Roman plebs, both at home and in the field, whether as a private citizen or holding public office, whether as military tribune or as consul. I have been consistent to this aim in all my successive consulships. And now for what is immediately before us: go on with the help of heaven, and win with me for the first time a triumph over your new foes - the Samnites."

[7.33]Nowhere was there ever a general who endeared himself more to his soldiers by cheerfully sharing every duty with the humblest of his men. In the military sports when the soldiers got up contests of speed and strength among themselves he was equally ready to win or to lose, and never thought any man unworthy to be his antagonist. He showed practical kindness as circumstances required; in his language he was not less mindful of other men's liberty than of his own dignity, and what made him most popular was that he displayed the same qualities in discharging the duties of his office which he had shown as a candidate for it. Following up their commander's words, the whole army marched out of camp with extraordinary alacrity. In no battle that was ever fought did men engage with strength more equally matched, or more assured hopes of victory on both sides, or a stronger spirit of self-confidence unaccompanied, however, by any feeling of contempt for their opponents. The fighting temper of the Samnites was roused by their recent achievements and the double victory won a few days previously; the Romans on the other hand were inspired by their glorious record of four centuries of victory reaching back to the foundation of the City. But each side felt some anxiety at meeting a new and untried foe. The battle was an index to their feelings; for some time they fought so resolutely that neither line showed any signs of giving way. At length the consul, seeing that the Samnites could not be repulsed by steady fighting, determined to

try the effect of a sudden shock and launched his cavalry at them. This made no impression, and as he watched them wheeling round in the narrow space between the opposing armies after their ineffective charge, having utterly failed to penetrate the enemy's line, he rode back to the front ranks of the legions, and after dismounting said: "Soldiers, this task belongs to us infantry. Come on! Wherever you see me making my way through the enemy's lines with my sword follow, and each of you do his best to cut down those in front. All that ground which is now glittering with uplifted spears you shall see cleared by a vast carnage." During these words the cavalry, at the consul's order, retired on both flanks, leaving the center clear for the legions. The consul led the charge, and slew the first man he engaged with. Fired at the sight, every man, right and left, charged straight forward and began a fight to be remembered. The Samnites did not flinch, though they were receiving more wounds than they inflicted.

The battle had now gone on for a considerable time; there was a terrible slaughter round the Samnite standards but no signs of flight anywhere, so resolved were they that death alone should be their conqueror. The Romans began to find their strength failing through fatigue and not much daylight remained, so goaded on by rage and disappointment they flung themselves madly upon their foe. Then for the first time the Samnites were seen to be giving ground and preparing to flee; they were being taken prisoners and killed in all directions, and not many would have survived had not night put an end to what was becoming a victory rather than a battle. The Romans admitted that they had never fought with a more obstinate enemy, and when the Samnites were asked what it was that first turned them, with all their determination, to flight, they said that the eyes of the Romans looked like fire, and their faces and expression like those of madmen; it was this more than anything else which filled them with terror. This terror showed itself not only in the result of the battle but also in their hurrying away in the night. The next day the Romans took possession of their empty camp, and all the population of Capua came out there to congratulate them.

[7.34]But these rejoicings were very nearly being embittered by a great disaster in Samnium. The consul Cornelius had advanced from Saticula and led his army by a mountain pass which descended into a narrow valley. All the surrounding heights were occupied by the enemy, and he did not notice them high up above him till retreat was

impossible. The Samnites were waiting quietly till the whole of the column should descend into the lowest part of the valley, but meantime P. Decius, a military tribune, descried a peak jutting out on the pass which commanded the enemy's camp. This height would have been a difficult one for a heavy-armed force to climb but not for one in light marching order. Decius came up to the consul, who was in a great state of alarm, and said to him: "Do you see, A. Cornelius, that height above the enemy? If we promptly seize that position which the Samnites were blind enough to leave unoccupied, it will prove a stronghold in which all our hopes of safety will center. Do not give me more than the hastati and principes of one legion. When I have reached the summit with them you may march on out of this and save yourself and the army, for the enemy below, a mark for every missile we hurl, will not be able to move without being destroyed. Either the Fortune of Rome or our own courage will then clear the way for our escape." The consul warmly thanked him, and after being furnished with the detachment he asked for, he marched through the pass unobserved and only came into view of the enemy when he was close to the spot for which he was making. Then whilst every eye was fixed upon him in silent astonishment, he gave the consul time to withdraw his army into a more favourable position until he had halted his own men on the summit. The Samnites marched aimlessly hither and thither; they could not follow the consul except by the same path where he had been exposed to their weapons and which was now equally dangerous to them, nor could they lead a force up the hill above them which Decius had seized.

He and his men had snatched victory from their grasp, and therefore it was against him that their rage was mainly directed, whilst the nearness of the position and the paucity of its defenders were additional incentives to them to attack it. First they were bent upon investing the peaks on all sides so as to cut Decius off from the consul, then they thought of retiring and leaving the way open for him so that they could attack when he had descended into the valley. Whilst they were still in this state of indecision night overtook them. At first Decius hoped to be able to attack them from his higher ground while they were coming up the height; then he began to wonder why they did not show fight, or, at all events, if they were deterred by the nature of the ground why they did not enclose him with a circumvallation. He called the centurions round him. "What

ignorance, what cowardice this is!" he exclaimed. "How on earth did those men win a victory over the Sidicines and Campanians? You see them there marching up and down, at one time forming up in close order, at another extending. We could by this time have been completely invested yet no one begins to entrench. We shall be like them if we stay here longer than we need. Come along with me and let us reconnoitre their positions while some light is still left and find out where the exit from here is open." Disguised in a common soldier's cloak that the enemy might not mark the general going his rounds, and with his centurions similarly attired, he made a thorough examination of all these details.

[7.35]After arranging the watches, he ordered the tessera to be given to the rest of the troops; when the bugle sounded for the second watch they were to muster round him in silence. When they had assembled in accordance with instructions, he said: "This silence, soldiers, must be maintained, and all applause as you listen to me checked. When I have laid my proposals fully before you, those of you who approve will cross over silently to the right. The opinion of the majority will be adopted. Now listen to my plans. You were not carried here in flight, nor have you been abandoned through cowardice, and the enemy are investing you. You seized this position by your courage, by your courage you must get away from it. By coming here you have saved a splendid army for Rome, now you must save yourselves by cutting your way out. Though few in number you have brought aid to many, and it is only fitting to your deserts that you yourselves should need the aid of none. We have to do with an enemy who through his slackness yesterday failed to use the chance which Fortune gave him of wiping out an entire army; who did not perceive this most useful peak hanging over his head until it had been seized by us. With all their thousands of men they did not prevent us, few as we are, from climbing it, and now that we are holding it, did they, though plenty of daylight remained, enclose us with lines of circumvallation? The enemy whom you eluded while his eyes were open, and he was on the watch, you certainly ought to evade when he is heavy with sleep. In fact, it is absolutely necessary for you to do so, for our position is such that I have rather to point out the necessity in which you are placed than to suggest any plan of action. For there can be no question as to your remaining here or departing, since Fortune has left you nothing but your arms and the

courage which knows how to use them. If we show more fear of the sword than becomes men and Romans we shall have to die of hunger and thirst. Our one chance of safety, then, lies in our breaking our way through and departing. We must do that either in the daytime or at night. But this is a point which admits of little doubt; if we wait for daylight how can we hope that the enemy, who, as you see, has drawn a ring of men all round us, will not completely enclose us with entrenchments? On the other hand, if night be best for our sortie, as it most certainly is, then this hour of the night is most assuredly the fittest. You have mustered at the call for the second watch, an hour when men are buried in sleep. You will pass through them in silence, unnoticed by the sleepers, but should they become aware of your presence you will throw them into a panic by a sudden shout. You have followed me so far, follow me still, while I follow Fortune who has guided us here. Those of you who think this a safe plan step forward and pass over to the right."

[7.36]All crossed over. They then followed Decius as he moved through the intervals between the pickets. They had already got as far as the center of the Samnite lines when a soldier striding over the bodies of the sleeping sentinels made a noise by striking his shield against one of them. The sentinel awakened by the sound shook the one next him; they both jumped up and aroused others, not knowing whether friends or foes were amongst them, whether it was Decius' force breaking out or the consul capturing the camp. As they were no longer unobserved, Decius ordered his men to raise a shout, which paralysed the half-awakened sleepers with terror. In their confusion they were unable to seize their arms promptly and could neither offer any resistance nor follow up their assailants. While the Samnites were in this state of confusion and panic, the Romans, cutting down all who opposed them, made their way in the direction of the consul's camp. A considerable portion of the night still remained and they were evidently now in safety. Decius addressed them: "All honour to you, brave Romans! your march up that height and your return will be extolled in every age. But for the due recognition of such courage the light of day is needed; you have deserved something more than to carry your glory back to camp hidden in the silence of the night. We will rest here and wait for the daylight." They rested accordingly. As soon as it was light and the news was sent on to the consul in camp, there was great excitement

and rejoicing, and when it was officially announced throughout the camp that the men who saved the army at the risk of their own lives had themselves returned safe and sound, they all poured out in crowds to meet them, showered congratulations upon them, gave thanks and praise to the gods, and extolled Decius to the skies. He marched through the camp in what amounted to a triumphal procession with his small force fully armed. Every eye was fixed upon him; the military tribune was treated with as much distinction as if he had been a consul. When he reached the headquarters' tent, the consul ordered the Assembly to be sounded. He was beginning to give Decius the praise he had so well earned, before the whole army, when Decius interrupted him and begged him to postpone those proceedings in view of the splendid opportunity which they now had in their hands. He accordingly dismissed the parade and followed Decius' advice, which was to attack the enemy before they had recovered from their nocturnal panic and were still stationed round the height in separate detachments; some who had been sent in pursuit were believed to be still defiling through the pass. The legions were ordered to arm for battle and were conducted by a more open route towards the enemy, as scouting parties had brought back fuller information about the locality. The attack was sudden and unexpected; the Samnites were everywhere in scattered bodies, most of them without arms, unable to secure their weapons or get into any compact formation or retire within their entrenchments. They were first driven in panic into their camp, then the camp itself was rushed and captured. The shouting rolled round the height and the detachments who had been posted to watch it fled from a foe whom they had not yet seen. Those who had fled panic-struck into their camp - some 30,000 - were all slain.

[7.37]After this success the consul summoned an Assembly, and in the presence of his fellow-soldiers pronounced a eulogy on Decius not only for his former services but also for this crowning proof of his soldierly qualities. In addition to the other military rewards he presented him with a golden chaplet and a hundred oxen, and one white one of especial beauty, the horns of which had been gilded. The men who had been with him on the height were rewarded with a standing order for double rations and also with one ox and two tunics apiece. After the consul had made the presentation, the legionaries, amidst loud cheers, placed on Decius' head an "obsidial

"wreath of grass. Another similar wreath was bestowed upon him by his own men. With these decorations upon him he sacrificed the beautiful ox to Mars and presented the hundred oxen which had been given him to the men who had accompanied him on his expedition. The legionaries also contributed a pound of meal and a pint of wine for each of them. During all these proceedings enthusiastic cheering went on through the whole camp. After the rout it had suffered at the hands of Valerius, the Samnite army was determined to put its fortunes to the proof in a final conflict, and a third battle was fought at Suessula. The whole fighting strength of the nation was brought up. The alarming news was sent in haste to Capua; from there horsemen galloped to the Roman camp to beg for help from Valerius. He at once ordered an advance, and leaving a strong force to protect the camp and the baggage, proceeded by forced marches to Suessula. He selected a site for his camp not far from the enemy, and very restricted in area, as with the exception of the horses there were no baggage, animals, or camp-followers to be provided for. The Samnite army, assuming that there would be no delay in giving battle, formed their lines, and as no enemy advanced against them they marched on towards the Roman camp prepared to assault it. When they saw the soldiers on the rampart and learnt from the report of the reconnoitring parties who had been sent in every direction that the camp was of small dimensions, they concluded that only a weak force of the enemy held it. The whole army began to clamour for the fosse to be filled up and the rampart torn down that they might force their way into the camp. If the generals had not checked the impetuosity of their men, their recklessness would have terminated the war. As it was, however, their huge numbers were exhausting their supplies, and owing to their previous inaction at Suessula and the delay in bringing on an action they were not far from absolute scarcity. They determined, therefore, since, as they imagined, the enemy was afraid to venture outside his camp, to send foraging parties into the fields. Meantime they expected that as the Romans made no movement and had brought only as much corn as they could carry with the rest of their equipment on their shoulders, they, too, would soon be in want of everything. When the consul saw the enemy scattered through the fields and only a few left on outpost duty in front of the camp, he addressed a few words of encouragement to his men and led them out to storm the Samnite camp. They carried it at the first rush; more of the enemy were killed

in their tents than at the gates or on the rampart. All the standards which were captured he ordered to be collected together. Leaving two legions to hold the camp, he gave strict orders that they were not to touch the booty till he returned. He went forward with his men in open column and sent the cavalry to round up the scattered Samnites, like so much game, and drive them against his army. There was an immense slaughter, for they were too much terrified to think under what standard to rally or whether to make for their camp or flee further afield. Their fears drove them into such a hasty flight that as many as 40,000 shields - far more than the number of the slain - and military standards, including those captured in the storming of the camp, to the number of 170 were brought to the consul. He then returned to the Samnite camp and all the booty there was given to the soldiers.

[7.38] The success which attended these operations made the people of Falerii anxious to convert their forty years' truce into a permanent treaty of peace with Rome. It also led the Latins to abandon their designs against Rome and employ the force they had collected against the Paelignians. The fame of these victories was not confined to the limits of Italy; even the Carthaginians sent a deputation to congratulate the senate and to present a golden crown which was to be placed in the chapel of Jupiter on the Capitol. It weighed twenty-five pounds. Both the consuls celebrated a triumph over the Samnites. A striking figure in the procession was Decius, wearing his decorations; in their extempore effusions the soldiers repeated his name as often as that of the consul. Soon after this an audience was granted to deputations from Capua and from Suessa, and at their request it was arranged that a force should be sent to winter in those two cities to act as a check upon the Samnites. Even in those days a residence in Capua was by no means conducive to military discipline; having pleasures of every kind at their command, the troops became enervated and their patriotism was undermined. They began to hatch plans for seizing Capua by the same criminal means by which its present holders had taken it from its ancient possessors. "They richly deserved," it was said, "to have the precedent which they had set turned against themselves. Why should people like the Campanians who were incapable of defending either their possessions or themselves enjoy the most fertile territory in Italy, and a city well worthy of its territory, in preference to a victorious army who had

driven off the Samnites from it by their sweat and blood? Was it just that these people who had surrendered themselves into their power should be enjoying that fertile and delightful country while they, wearied with warfare, were struggling with the arid and pestilential soil round the City, or suffering the ruinous consequences of an ever-growing interest which were awaiting them in Rome?" This agitation which was being conducted in secret, only a few being yet taken into the conspirators' confidence, was discovered by the new consul, Caius Marcius Rutilus, to whom Campania had been allotted as his province, his colleague, Q. Servilius, being left in the City. Taught by years and experience - he had been four times consul as well as Dictator and censor - he thought his best course would be, after he was in possession of the facts as ascertained through the tribunes, to frustrate any chance of the soldiers carrying out their design by encouraging them in the hope of executing it whenever they pleased. The troops had been distributed amongst the cities of Campania, and the contemplated plan had been propagated from Capua throughout the entire force. The consul caused a rumour, therefore, to be spread that they were to occupy the same winter quarters the following year. As there appeared to be no necessity for their carrying out their design immediately, the agitation quieted down for the present.

[7.39] After settling the army in their summer quarters, whilst all was quiet among the Samnites the consul began to purify it by getting rid of the mutinous spirits. Some were dismissed as having served their time; others were pronounced to be incapacitated through age or infirmity; others were sent home on furlough, at first separately, then selected cohorts were sent together, on the ground that they had passed the winter far from their homes and belongings. A large number were transferred to different places, ostensibly for the needs of the service. All these the other consul and the praetor detained in Rome on various imaginary pretexts. At first, unaware of the trick that was being played upon them, they were delighted to revisit their homes. They soon, however, found out that even those who were first sent away were not rejoining the colours and that hardly any were disbanded but those who had been in Campania, and amongst these mainly the leading agitators. At first they were surprised, and then they felt a well-grounded apprehension that their plans had leaked out. "Now," they said, "we shall have to suffer court-martial, informers will give evidence against us, we shall one after another be

executed in secret; the reckless and ruthless tyranny of the consuls and senators will be let loose on us." The soldiers, seeing how those who were the backbone of the conspiracy had been cleverly got rid of by the consuls, did not venture to do more than whisper these things to one another.

One cohort, which was stationed not far from Antium, took up a position at Lantulae in a narrow pass between the mountains and the sea to intercept those whom the consul was sending home on the various pretexts mentioned above. They soon grew to a very numerous body, and nothing was wanting to give it the form of a regular army except a general. They moved on into the Alban district, plundering as they went, and entrenched themselves in a camp under the hill of Alba Longa. After completing their entrenchments they spent the rest of the day in arguing about the choice of a leader, as they had not sufficient confidence in any one amongst themselves. But who could be invited from Rome? Which of the patricians or plebeians would expose himself to such peril, or to whom could the cause of an army maddened by injustice be safely committed? The next day found them still engaged in the discussion, when some of those who had been dispersed in the marauding expedition brought back the information that Titus Quinctius was cultivating a farm in the neighbourhood and had lost all interest in his City and the honourable distinctions he had won. This man belonged to a patrician house, and after achieving great reputation as a soldier, had his military career cut short by a wound which made him lame in one of his feet, and he betook himself to a rural life, far from the Forum and its party struggles. On hearing his name mentioned they recalled the man to mind, and hoping that all might turn out well they ordered an invitation to be sent to him. They hardly expected that he would come voluntarily, and prepared to intimidate him into compliance. The messengers accordingly entered his farmhouse in the dead of night and woke him up from a sound sleep, and after telling him that there was no alternative, it must either be authority and rank or, if he resisted, death, they carried him off to the camp. On his arrival he was saluted as their commander, and all dismayed as he was by the strangeness and suddenness of the affair, the insignia of his office were brought to him and he was peremptorily told to lead them to the City. Acting on their own impulse rather than their leader's advice they plucked up their standards and marched in hostile array as far as

the eighth milestone on what is now the Appian Way. They would have gone on at once to the City had they not received word that an army was on its march, and that M. Valerius Corvus had been nominated Dictator, with L. Aemilius Mamercus as his Master of the Horse, to act against them.

[7.40]As soon as they came into view and recognised the arms and standards, the thought of their country instantly calmed the passions of them all. They had not yet been hardened to the sight of civic bloodshed, they knew of no wars but those against foreign foes, and secession from their own countrymen began to be looked upon as the last degree of madness. First the leaders then the men on both sides sought an opening for negotiations. Quinctius, who had had enough of fighting for his country and was the last man to fight against it, and Corvus, who was devoted to all his countrymen, especially to the soldiers and above all to his own army, came forward to a colloquy. When the latter was recognised, his opponents showed as much respect for him as his own men by the silence with which they prepared to listen to him. He addressed them as follows: "Soldiers! When I left the City I offered up prayers to the immortal gods who watch over our State, your State and mine, that they would of their goodness grant me, not a victory over you, but the glory of bringing about a reconciliation. There have been and there will be abundant opportunities for winning glory in war, on this occasion we must seek for peace. That which I implored of the immortal gods, when I offered up my prayers, you have it in your power now to grant me if you will please to remember that you are encamped not in Samnium, not amongst the Volscians, but on Roman soil. Those hills which you see are the hills of your City; I, your consul, am the man under whose auspices and leadership you twice defeated the legions of the Samnites a year ago and twice captured their camp. I am Marcus Valerius Corvus, soldiers, a patrician it is true, but my nobility has shown itself in benefits to you, not in wrongs; I have never been the author of any law bearing harshly on you or of any oppressive enactment of the senate; in all my commands I have been stricter with myself than with you. If noble birth, if personal merit, if high office, if distinguished service could make any man proud, I venture to say that such is my descent, such the proof I have given of myself, such the age at which I obtained the consulship, being only twenty-three, that I had it in my power to show myself harsh and overbearing

not only to the plebs but even to the patricians. What have you heard that I have said or done as consul more than I should had I been one of your tribunes? In that spirit I administered two successive consulships, in that spirit will this dread Dictatorship be administered; I shall not be more gentle towards these soldiers of mine and of my country than to you who would be - I loathe the word - its enemies.

"You then will draw the sword against me before I shall draw it against you; if there is to be fighting it is on your side that the advance will be sounded, on your side will the battle-shout and charge begin. Make up your minds to do what your fathers and grandfathers - those who seceded to the Sacred Mount and those who afterwards took possession of the Aventine - could not make up their minds to do! Wait till your wives and mothers come out from the City with dishevelled hair to meet you as they once came to meet Coriolanus! Then the Volscian legions refrained from attacking us because they had a Roman for their general; will not you, an army of Romans, desist from an impious war? Titus Quinctius! by whatever means you were placed in your present position, whether willingly or unwillingly, if there is to be a conflict, retire, I beg you to the rearmost line; it will be more honourable for you to flee from a fellow-citizen than to fight against your country. But if there is to be peace you will take your place with honour amongst the foremost and play the part of a beneficent mediator in this conference. Demand what is just and you shall receive it, though we should acquiesce even in what is unjust rather than embroil impious hands in one another's blood." T. Quinctius, bathed in tears, turned to his men and said: "If, soldiers, I am of any use at all you will find that I am a better leader in peace than in war. The words you have heard are not those of a Volscian or a Samnite but of a Roman. They were spoken by your consul, your commander, soldiers, whose auspices you have found by experience to be favourable for you; do not desire to learn by experience what they may be when directed against you. The senate had at its disposal other generals more ready to fight against you; it has selected the one man who has showed most consideration for his soldiers, in whom you have placed most confidence as your commander. Even those who have victory in their power wish for peace, what ought we to wish for? Why do we not lay aside all resentment and ambitious

hopes - those treacherous advisers - and trust ourselves and all our interests to his tried fidelity?"

[7.41]There was a universal shout of approval, and T. Quinctius advancing to the front asserted that his men would submit to the authority of the Dictator. He implored Valerius to take up the cause of his unhappy fellow-citizens, and when he had taken it up to maintain it with the same integrity that he had always shown in his public administration. For himself he demanded no conditions, he would not place his hope in anything but his innocence, but for the soldiers there must be the same guarantee that was given in the days of their fathers to the plebs and afterwards to the legions, namely, that no man should be punished for having taken part in the secession. The Dictator expressed his approval of what had been said, and after telling them all to hope for the best he galloped back to the City, and after obtaining the consent of the senate, brought a measure before the people who were assembled in the Petilian Grove granting immunity to all who had taken part in the secession. He then begged the Quirites to grant him one request, which was that no one should ever either in jest or earnest bring that matter up against any one. A military Lex Sacrata was also passed, enacting that no soldier's name should be struck off the muster-roll without his consent. An additional provision was subsequently embodied in it, forbidding any one who had once been military tribune from being made to serve afterwards as a centurion. This was in consequence of a demand made by the mutineers with respect to P. Saloni^{us}, who had been every year either military tribune or centurion of the first class. They were incensed against him because he had always opposed their mutinous projects and had fled from Lautulae to avoid being mixed up with them. As this proposal was aimed solely at Saloni^{us} the senate refused to allow it. Then Saloni^{us} himself appealed to the senators not to consider his dignity of more importance than the harmony of the State, and at his request they ultimately passed it. Another demand just as impudent was that the pay of the cavalry should be reduced - at that time they were receiving three times the infantry pay - because they had acted against the mutineers.

[7.42]In addition to these measures I find the following recorded by various authorities. L. Genuci^{us}, a tribune of the plebs, brought before them a measure declaring usury illegal, whilst other resolutions were adopted forbidding any one to accept re-election to the same

office in less than ten years or fill two offices in the same year, and also that both consuls might legally be elected from the plebs. If all these concessions were really made it is quite clear that the revolt possessed considerable strength. In other annalists it is stated that Valerius was not nominated Dictator, but the matter was entirely arranged by the consuls; also that it was not before they came to Rome but in Rome itself that the body of conspirators broke out into armed revolt; also that it was not to T. Quinctius' farm but to the house of C. Manlius that the nocturnal visit was paid, and that it was Manlius who was seized by the conspirators and made their leader, after which they marched out to a distance of four miles and entrenched themselves; also that it was not their leaders who made the first suggestions of concord, but what happened was that as the two armies advanced towards each other prepared for action the soldiers exchanged mutual greetings, and as they drew nearer grasped each other's hands and embraced one another, and the consuls, seeing how averse the soldiers were from fighting, yielded to circumstances and made proposals to the senate for reconciliation and concord. Thus the ancient authorities agree in nothing but the simple fact that there was a mutiny and that it was suppressed. The report of this disturbance and the seriousness of the war which had been commenced with the Samnites made many nationalities averse from an alliance with Rome. The Latins had long been faithless to their treaty, and in addition to that the Privernates made a sudden incursion and devastated the neighbouring Roman colonies of Norba and Setia.

BOOK 8: THE FIRST SAMNITE WAR AND SETTLEMENT OF LATIUM - (341 - 321 B.C.)

[8.1] When messengers from Setia and Norba arrived in Rome with complaints of a defeat they had suffered at the hands of the revolted Privernates, the consulship was held by C. Plautius (for the second time) and L. Aemilius Mamercus. News was also brought that an army of Volscians led by the people of Antium had concentrated at Satricum. Both wars fell to Plautius. He marched first to Privernum and at once engaged the enemy who were defeated without much trouble. The town was captured and then given back to the Privernates after a strong garrison had been placed in it; two-thirds of their territory were confiscated. Then the victorious army was led

against the Antiates at Satricum. There a battle was fought with terrible bloodshed on both sides, and whilst the result was still uncertain night separated the combatants. The Romans were in no way discouraged by the indecisiveness of the conflict, and prepared for battle the next day. The Volscians, after reckoning up their losses in the battles, were by no means eager to run any further risk; looking upon themselves as defeated, they made a hurried departure to Antium in the night, leaving their wounded and a part of their baggage behind. An immense quantity of arms was found both amongst the dead on the field and in the camp. These the consul said he was offering to Lua Mater. He then ravaged the enemy's territories down to the sea-board. When the other consul entered the Sabellian territory, he found that the Samnites had no camp, no legions confronting him. Whilst he was laying waste their fields with fire and sword, envoys came to him to ask for peace and he referred them to the senate. After permission had been given them to state their case, they laid aside their truculent manner and requested that peace might be granted them and also the right of making war against the Sidicines. They considered that they were the more justified in making this request because they had formed friendly relations with Rome when their affairs were prosperous, not as in the case of the Campanians when they were in adversity, and they were taking up arms against the Sidicines, who had always been their enemies and never friends of Rome, who had not, like the Samnites, sought its friendship in a time of peace, nor like the Campanians, asked for its help in a time of war, and who were not under the protection and suzerainty of Rome.

[8.2]The praetor, T. Aemilius, put these demands to the senate, and they decided that the former treaty should be renewed with them. The reply given then by the praetor was to the effect that it was no fault of the Roman people that the friendship with them had not remained unbroken, and there was no objection to its being re-established since they themselves were weary of a war brought on them by their own fault. As to the Sidicines there was nothing to prevent the Samnites from being free to make either peace or war. After the treaty was made the Roman army was at once withdrawn. The men had received a year's pay and three months' rations, for which the consul had stipulated, that he might allow time for an armistice until the envoys returned. The Samnites advanced against

the Sidicines with the same troops that they had employed in the war with Rome, and they were very hopeful of effecting an early capture of the city. Then at last the Sidicines took steps to make a surrender of themselves to Rome. The senate rejected it as being made too late and forced from them by extreme necessity. They then made it to the Latins who were already in arms on their own account. Even the Campanians did not refuse to take part in the hostile movement, so much keener was their sense of the injuries inflicted by the Samnites than of the kindness shown them by Rome. One immense army, composed of these many nationalities and under Latin leadership, invaded the Samnite country and inflicted more disasters by ravages than by actual fighting. Although the Latins proved superior in the various encounters, they were not loath to retire from the enemy's territory lest they might have to fight too often. This allowed the Samnites time to send envoys to Rome. When they were admitted to an audience they complained to the senate that they were suffering more now that they were in treaty with them than they had before, when they were enemies; they very humbly requested them to be satisfied with having snatched from them the victory they had won over the Campanians and the Sidicines, and not permit them, in addition, to be conquered by these most cowardly people. If the Latins and Campanians were really under the suzerainty of Rome they should exert their authority to keep them off the Samnite land, if they renounced that suzerainty they should coerce them by force. They received an ambiguous reply, for the senate shrank from acknowledging that the Latins no longer recognised their authority, and on the other hand they were afraid, if they reprimanded them, that they might alienate them altogether. The circumstances of the Campanians were quite different; they were bound not by treaty but by the terms of surrender, and they must keep quiet whether they would or no. There was nothing in their treaty with the Latins which prevented them from making war with whom they pleased.

[8.3] With this reply the Samnites were dismissed, quite uncertain as to what the Romans were going to do. But its effect was to completely estrange the Campanians, who now feared the worst, and it made the Latins more determined than ever, since the Romans refused any further concessions. Under the pretext of making preparations for a Samnite war, they held frequent meetings of their national council, and in all the consultations of their leaders they

hatched plans in secret for war with Rome. The Campanians also took part in this movement against their preservers. But in spite of the careful secrecy with which everything was being conducted - for they wanted the Samnites to be dislodged from their rear before the Romans made any movement - some who had friends and relatives in Rome sent hints about the league which was being formed. The consuls were ordered to resign before the expiry of their year of office in order that the new consuls might be elected at an earlier date in view of such a formidable war. There were religious difficulties in the way of the elections being held by those whose tenure of office had been curtailed, and so an interregnum commenced. There were two interreges, M. Valerius and M. Fabius. The latter elected T. Manlius Torquatus (for the third time) and P. Decius Mus as consuls. It was in this year (341 B.C.), it appears, that Alexander, King of Epirus, landed in Italy, and there is no doubt that had he been fairly successful at first that war would have extended to Rome. This, too, was about the time of the achievements of Alexander the Great, the son of this man's sister, who, after proving himself invincible in another region of the globe, was cut off, whilst a young man, by disease. Although there could be no doubt as to the revolt of their allies - the Latin league - still, as though they were concerned for the Samnites and not for themselves, the Romans invited the ten chiefs of the league to Rome to give them instructions as to what they wanted. Latium at that time had two praetors, L. Annius of Setia and L. Numisius of Cerceii, both belonging to the Roman colonists. Through these men not only had Signia and Velitrae, themselves Roman colonies, but the Volsci also been instigated to take up arms. It was decided that they should be particularly invited by name. No one had the slightest doubt as to the reason for this invitation. A meeting of their council was accordingly held prior to their departure; they informed those present that they had been asked by the senate to go to Rome, and they requested them to decide as to what reply they should give with reference to the matters which they had reason to suppose would be discussed.

[8.4]After various opinions had been expressed, Annius spoke as follows: "Although it was I who put the question to you as to what answer should be given, I still think that it is of more importance to the interests of the State to decide what must be done rather than what must be said. When our plans are developed it will be easy

enough to fit words to facts. If even now we are capable of submitting to servitude under the shadowy pretext of a treaty on equal terms, what is to prevent us from deserting the Sidicines and receiving our orders not only from the Romans but even from the Samnites, and giving as our reply that we are ready to lay down our arms at the beck and call of the Romans? But if your hearts are at last touched by any yearning for independence; if a treaty, an alliance, an equality of rights really exists; if we are at liberty to boast of the fact that the Romans are of the same stock as ourselves, though once we were ashamed of it; if our army, which when united with theirs doubles their strength, and which the consuls will not dispense with when conducting wars which concern them alone - if, I say, that army is really an army of their allies, then why are we not on an equal footing in all respects? Why is not one consul elected from the Latins? Those who possess half the strength, do they possess half the government? This is not in itself too much honour for us, seeing that we acknowledge Rome to be the head of Latium, but we have made it appear so by our prolonged forbearance.

"But if ever you longed for an opportunity of taking your place in the government and of making use of your liberty, now is the time; this is the opportunity which has been given you by your own courage and the goodness of the gods. You tried their patience by refusing to supply troops. Who doubts that they were intensely irritated when we broke through a custom more than two centuries old? Still they put up with the annoyance. We waged war with the Paelignians on our own account; they who before did not allow us the right to defend our own frontiers did not intervene. They heard that the Sidicines were received into our protection, that the Campanians had revolted from them to us, that we were preparing an army to act against the Samnites with whom they had a treaty, they never moved out of their City. What was this extraordinary self-restraint due to but to a consciousness of our strength and of theirs? I have it on good authority that when the Samnites were laying their complaints about us they received a reply from the Roman senate, from which it was quite evident that they themselves do not now claim that Latium is under the authority of Rome. Make your rights effective by insisting on what they are tacitly conceding to you. If any one is afraid of saying this, I declare my readiness to say it not only in the ears of the Roman people and their senate but in the audience of Jupiter himself

who dwells in the Capitol, and to tell them that if they wish us to remain in alliance with them they must accept one consul from us and half their senate." His speech was followed by a universal shout of approval, and he was empowered to do and to say whatever he deemed to be in furtherance of the interests of the State of Latium and of his own honour.

[8.5]On their arrival in Rome, the senate assembled in the Capitol and granted them an audience. T. Manlius, the consul, acting on the instructions of the senate, recommended them not to make war upon the Samnites, with whom the Romans had a treaty, on which Annius, as though he were a conquerer who had captured the Capitol by arms instead of an ambassador protected by the law of nations, said: "It is about time, Titus Manlius and senators, that you gave up treating us as though you were our suzerains, when you see the State of Latium raised by the bounty of the gods to a most flourishing position, both in population and in military power, the Samnites defeated, the Sidicines and Campanians in alliance with us, even the Volscians now making common cause with us, whilst your own colonies actually prefer the government of Latium to that of Rome. But since you cannot bring your minds to abandon your impudent claims to sovereignty, we will go so far, in recognising that we are kindred nations, as to offer peace upon the conditions of equal rights for both, since it has pleased the gods to grant equal strength to both; though we are quite able to assert the independence of Latium by force of arms. One consul must be elected from Rome, the other from Latium; the senate must contain an equal number of members from both nations; there must be one nation, one republic. And in order that there may be one seat of government and one name for all, since one side or the other must make some concession, let us, if this City really takes precedence, be all called Romans."

It so happened that the Romans had in their consul T. Manlius, a man who was quite as proud and passionate as Annius. He was so enraged as to declare that if the senate were visited by such madness as to accept these conditions from a man from Setia, he would come with his sword drawn into the Senate-house and kill every Latin he found there. Then turning to the image of Jupiter, he exclaimed: "Hear, O Jupiter, these abominable words! Hear them, O Justice and Right! Thou, Jupiter, as though thou hadst been conquered and made captive, art to see in thy temple foreign consuls and a foreign senate!

Were these the terms of the treaty, Latins, which Tullus, the King of Rome, made with your fathers of Alba, or which L. Tarquin made with you afterwards? Have you forgotten the battle at Lake Regillus? Are you so utterly oblivious of your defeats in the old days and of our kindness towards you?" This outburst was followed by the indignant protest of the senate, and it is recorded that whilst on all hands appeals were being made to the gods, whom the consuls were continually invoking as the guardians of treaties, the voice of Annius was heard pouring contempt upon the divine majesty of the Jupiter of Rome. At all events when, in a storm of passion he was flinging himself out of the vestibule of the temple, he slipped down the steps and struck his head so heavily against the bottom step that he became unconscious. The authorities are not agreed as to whether he was actually killed, and I leave the question undecided, as also the statement that during the appeals to the gods to avenge the breach of treaties, a storm burst from the sky with a terrific roar; for they may either be true or simply invented as an appropriate representation of the wrath of the gods. Torquatus was sent by the senate to conduct the envoys away and when he saw Annius lying on the ground he exclaimed, loud enough to be heard by the senators and populace alike: 'It is well. The gods have commenced a just and righteous war! There is a divine power at work; thou, O Great Jupiter, art here! Not in vain have we consecrated this to be shine abode, O Father of gods and men! Why do you hesitate, Quirites, and you, senators, to take up arms when the gods are your leaders? I will lay the legions of the Latins low, just as you see their envoy lying here." The consul's words were received by the people with loud applause and raised them to such a pitch of excitement that when the envoys took their departure they owed their safety more to the care of the magistrates who, on the consul's order, accompanied them to protect them from the attacks of the angry people than to any respect felt for the law of nations.

War having been decided upon by senate as much as people, the consuls enrolled two armies and proceeded through the territories of the Marsi and Paeligni, where they were joined by an army of Samnites. They fixed their camp at Capua, where the Latins and their allies had assembled. It is said that whilst they were there each consul had the same vision in the quiet of the night. A Form greater and more awful than any human form appeared to them and announced

that the commander of the one army and the army itself on the other side were destined as a sacrifice to the Dii Manes and to Mother Earth. In whichever army the commander should have devoted the legions of his enemies and himself as well to those deities, that army, that people would have the victory. When the consuls compared these visions of the night together, they decided that victims should be slain to avert the wrath of the gods, and further, that if, on inspection, they should portend the same as the vision had announced, one of the two consuls should fulfil his destiny. When the answers of the soothsayers after they had inspected the victims, proved to correspond with their own secret belief in the vision, they called up the superior officers and told them to explain publicly to the soldiers what the gods had decreed, in order that the voluntary death of a consul might not create a panic in the army. They arranged with each other that when either division began to give way, the consul in command of it should devote himself on behalf of the Roman people and the Quirites." The council of war also decided that if ever any war had been conducted with the strict enforcement of orders, on this occasion certainly, military discipline should be brought back to the ancient standard. Their anxiety was increased by the fact that it was against the Latins that they had to fight, a people resembling them in language, manners, arms, and especially in their military organisation. They had been colleagues and comrades, as soldiers, centurions, and tribunes, often stationed together in the same posts and side by side in the same maniples. That this might not prove a source of error and confusion, orders were given that no one was to leave his post to fight with the enemy.

[8.7]Amongst the troop commanders, who had been sent out everywhere to reconnoitre, there happened to be T. Manlius, the consul's son. He had ridden out with his men by the enemy's camp and was hardly a stone's-throw from their nearest post, where the Tusculan cavalry were stationed, when Geminus Maecius, who was in command, a man of high reputation amongst his own people, recognised the Roman cavalry and the consul's son at their head, for they were all - especially the men of distinction - known to each other. Accosting Manlius he said: "Are you going to conduct the war against the Latins and their allies with that single troop of yours? What will the consuls, what will their two armies be doing in the meantime?" "They will be here in good time, Manlius replied, "and so will Jupiter,

the Great and Powerful, the witness of your breach of faith. If we fought at Lake Regillus till you had quite enough, certainly we shall succeed here also in preventing you from finding too much pleasure in meeting us in battle." In reply, Geminus rode forward a short distance and said: "Are you willing, before the day comes when you are to set your armies in motion for so great an effort, to have a meeting with me that the result of our single combat may show how much a Latin horseman is superior to a Roman?" Either urged on by anger or feeling ashamed to decline the contest, or dragged on by the irresistible power of destiny, the high-spirited youth forgot the consul's edict and the obedience due to a father and rushed headlong into a contest in which victory or defeat were alike fatal. The rest of the cavalry retired to remain spectators of the fray; the two combatants selected a clear space over which they charged each other at full gallop with levelled spears. Manlius' lance passed above his adversary's helmet, Maecius' across the neck of the other's horse. They wheeled their horses round, and Manlius standing in his stirrups was the first to get in a second stroke; he thrust his lance between the horse's ears. Feeling the wound the horse reared, shook its head violently, and threw its rider off. Whilst he was trying to rise after his heavy fall by supporting himself with his lance and shield, Manlius drove his lance right through his body and pinned him to the earth. After despoiling the body he returned to his men, and amidst their exulting shouts entered the camp and went straight to his father at the headquarters' tent, not in the least realising the nature of his deed or its possible consequences, whether praise or punishment. "That all may say, my father," he said, "that I am a true scion of your blood, I bring to you these equestrian spoils taken from a dead enemy who challenged me to single combat." On hearing this the consul turned away from his son and ordered the trumpet to sound the Assembly.

The soldiers mustered in large numbers and the consul began: "Since you, T. Manlius, have shown no regard for either the authority of a consul or the obedience due to a father, and in defiance of our edict have left your post to fight against the enemy, and have done your best to destroy the military discipline through which the Roman State has stood till now unshaken, and have forced upon me the necessity of forgetting either my duty to the republic or my duty to myself and my children, it is better that we should suffer the consequences of our offence ourselves than that the State should expiate our crime by

inflicting great injury upon itself. We shall be a melancholy example, but one that will be profitable to the young men of the future. My natural love of my children and that proof of courage which from a false sense of honour you have given, move me to take your part, but since either the consuls authority must be vindicated by your death or for ever abrogated by letting you go unpunished, I would believe that even you yourself, if there is a drop of my blood in your veins, will not shrink from restoring by your punishment the military discipline which has been weakened by your misconduct. Go, lictor, bind him to the stake." All were paralysed by such a ruthless order; they felt as if the axe was directed against each of them; fear rather than discipline keep them motionless. For some moments they stood transfixed in silence, then suddenly, when they saw the blood pouring from his severed neck, their voices rose in unrestrained and angry complaint; they spared neither laments nor curses. The body of the youth covered with his spoils was cremated on a pyre erected outside the rampart, with all the funeral honours that the soldiers' devotion could pay. "Manlian orders" were not only regarded with horror for the time, but were looked upon as setting a frightful precedent for the future.

[8.8]The terrible severity of the punishment, however, made the soldiers more obedient to their general, and not only did it lead to greater attention being paid to the pickets and sentry duties and the ordering of the outposts, but when they went into battle for the final contest, this severity proved to be of the greatest service. The battle was exactly like one fought in a civil war; there was nothing in the Latin army different from the Roman except their courage. At first the Romans used the large round shield called the clipeus, afterwards, when the soldiers received pay, the smaller oblong shield called the scutum was adopted. The phalanx formation, similar to the Macedonian of the earlier days, was abandoned in favour of the distribution into companies (manipuli); the rear portion being broken up into smaller divisions. The foremost line consisted of the hastati, formed into fifteen companies, drawn up at a short distance from each other. These were called the light-armed companies, as whilst one-third carried a long spear (hasta) and short iron javelins, the remainder carried shields. This front line consisted of youths in the first bloom of manhood just old enough for service. Behind them were stationed an equal number of companies, called principes, made

up of men in the full vigour of life, all carrying shields and furnished with superior weapons. This body of thirty companies were called the antepilani. Behind them were the standards under which were stationed fifteen companies, which were divided into three sections called vexillae, the first section in each was called the pilus, and they consisted of 180 men to every standard (vexillum). The first vexillum was followed by the triarii, veterans of proved courage; the second by the rorarii, or "skirmishers," younger men and less distinguished; the third by the accensi, who were least to be depended upon, and were therefore placed in the rearmost line.

When the battle formation of the army was completed, the hastati were the first to engage. If they failed to repulse the enemy, they slowly retired through the intervals between the companies of the principes who then took up the fight, the hastati following in their rear. The triarii, meantime, were resting on one knee under their standards, their shields over their shoulders and their spears planted on the ground with the points upwards, giving them the appearance of a bristling palisade. If the principes were also unsuccessful, they slowly retired to the triarii, which has given rise to the proverbial saying, when people are in great difficulty "matters have come down to the triarii." When the triarii had admitted the hastati and principes through the intervals separating their companies they rose from their kneeling posture and instantly closing their companies up they blocked all passage through them and in one compact mass fell on the enemy as the last hope of the army. The enemy who had followed up the others as though they had defeated them, saw with dread a now and larger army rising apparently out of the earth. There were generally four legions enrolled, consisting each of 5000 men, and 300 cavalry were assigned to each legion. A force of equal size used to be supplied by the Latins, now, however, they were hostile to Rome. The two armies were drawn up in the same formation, and they knew that if the maniples kept their order they would have to fight, not only vexilla with vexilla, hastati with hastati, principes with principes, but even centurion with centurion. There were amongst the triarii two centurions, one in each army - the Roman, possessing but little bodily strength but an energetic and experienced soldier, the Latin, a man of enormous strength and a splendid fighter - very well known to each other because they had always served in the same company. The Roman, distrusting his own strength, had obtained the consuls'

permission before leaving Rome to choose his own sub-centurion to protect him from the man who was destined to be his enemy. This youth, finding himself face to face with the Latin centurion, gained a victory over him.

[8.9] The battle took place near the base of Mount Vesuvius, where the road led to Vesperis. Before leading out their armies to battle the consuls offered sacrifice. The haruspex, whose duty it was to inspect the different organs in the victims, pointed out to Decius a prophetic intimation of his death, in all other respects the signs were favourable. Manlius' sacrifice was entirely satisfactory. "It is well," said Decius, "if my colleague has obtained favourable signs." They moved forward to battle in the formation I have already described, Manlius in command of the right division, Decius of the left. At first both armies fought with equal strength and equal determination. After a time the Roman hastati on the left, unable to withstand the insistency of the Latins, retired behind the principes. During the temporary confusion created by this movement, Decius exclaimed in a loud voice to M. Valerius: "Valerius, we need the help of the gods! Let the Pontifex Maximus dictate to me the words in which I am to devote myself for the legions." The Pontifex bade him veil his head in his toga praetexta, and rest his hand, covered with the toga, against his chin, then standing upon a spear to say these words: "Janus, Jupiter, Father Mars, Quirinus, Bellona, Lares, ye Novensiles and Indigetes, deities to whom belongs the power over us and over our foes, and ye, too, Divine Manes, I pray to you, I do you reverence, I crave your grace and favour that you will bless the Roman People, the Quirites, with power and victory, and visit the enemies of the Roman People, the Quirites, with fear and dread and death. In like manner as I have uttered this prayer so do I now on behalf of the commonwealth of the Quirites, on behalf of the army, the legions, the auxiliaries of the Roman People, the Quirites, devote the legions and auxiliaries of the enemy, together with myself to the Divine Manes and to Earth." After this prayer he ordered the lictors to go to T. Manlius and at once announce to his colleague that he had devoted himself on behalf of the army. He then girded himself with the Gabinian cincture, and in full armour leaped upon his horse and dashed into the middle of the enemy. To those who watched him in both armies, he appeared something awful and superhuman, as though sent from heaven to expiate and appease all the anger of the gods and to avert destruction

from his people and bring it on their enemies. All the dread and terror which he carried with him threw the front ranks of the Latins into confusion which soon spread throughout the entire army. This was most evident, for wherever his horse carried him they were paralysed as though struck by some death-dealing star; but when he fell, overwhelmed with darts, the Latin cohorts, in a state of perfect consternation, fled from the spot and left a large space clear. The Romans, on the other hand, freed from all religious fears, pressed forward as though the signal was then first given and commenced a great battle. Even the *rorarii* rushed forward between the companies of *antepilani* and added strength to the *hastati* and *principes*, whilst the *triarii*, kneeling on their right knee, waited for the consul's signal to rise

[8.10]When Manlius heard the fate of his colleague, he honoured his glorious death with tears no less than with the due meed of praise. Meantime the battle proceeded, and in some quarters the weight of numbers was giving the advantage to the Latins. For some time Manlius was in doubt whether the moment had not come for calling up the *triarii*, but judging it better for them to be kept fresh till the final crisis of the battle, he gave orders for the *accensi* at the extreme rear to advance to the front. When they came up, the Latins, taking them for the opposing *triarii*, instantly called up their own. In the desperate struggle they had tired themselves out and broken or blunted their spears, but as they were still driving the enemy back by main force, they imagined that the battle was decided and that they had reached their last line. Then it was that the consul said to his *triarii*: "Rise up now, fresh and vigorous against a wearied foe; think of your country and your parents and wives and children; think of your consul lying there dead that ye might win the victory!" They rose up fresh and resplendent in their armour, as though a new army had suddenly sprung up, and after letting the *antepilani* retire through them they raised their battle-shout. The front ranks of the Latins were thrown into disorder, the Romans thrust their spears into their faces, and in this way killed the main support of their army. They went on without being touched through the remaining companies as though through a crowd of unarmed men, and they marked their advance with such a slaughter that they left hardly a fourth part of the enemy. The Samnites, too, who were drawn up close to the lowest

spurs of the mountain, were threatening the Latins on their flank, and so adding to their demoralisation.

The chief credit for that successful battle was given by all, Romans and allies alike, to the two consuls - one of whom had diverted on to himself alone all the dangers that threatened from the gods supernal and the gods infernal, whilst the other had shown such consummate generalship in the battle itself that the Roman and Latin historians who have left an account of it, are quite agreed that whichever side had had T. Manlius as their commander must have won the victory. After their flight the Latins took refuge in Menturnae. Their camp was captured after the battle, and many were killed there, mostly Campanians. The body of Decius was not found that day, as night overtook those who were searching for it, the next day it was discovered, buried beneath a heap of javelins and with an immense number of the enemy lying round it. His obsequies were conducted by his colleague in a manner befitting that glorious death. I ought to add here that a consul or Dictator or praetor, when he devotes the legions of the enemy, need not necessarily devote himself but may select any one he chooses out of a legion that has been regularly enrolled. If the man who has been so devoted is killed, all is considered to have been duly performed. If he is not killed, an image of the man, seven feet high at least, must be buried in the earth, and a victim slain as an expiatory sacrifice; on the spot, where such an image has been buried, no Roman magistrate must ever set his foot. If, as in the case of Decius, the commander devotes himself but survives the battle, he can no longer discharge any religious function, either on his own account or on behalf of the State. He has the right to devote his arms, either by offering a sacrifice or otherwise, to Vulcan or to any other deity. The spear on which the consul stands, when repeating the formula of devotion, must not pass into the enemy's hands; should this happen a *suovetaurilia* must be offered as a propitiation to Mars.

[8.11] Although the memory of every traditional custom relating to either human or divine things has been lost through our abandonment of the old religion of our fathers in favour of foreign novelties, I thought it not alien from my subject to record these regulations in the very words in which they have been handed down. In some authors I find it stated that it was only after the battle was over that the Samnites who had been waiting to see the result came

to support the Romans. Assistance was also coming to the Latins from Lanuvium whilst time was being wasted in deliberation, but whilst they were starting and a part of their column was already on the march, news came of the defeat of the Latins. They faced about and re-entered their city, and it is stated that Milonius, their praetor, remarked that for that very short march they would have to pay a heavy price to Rome. Those of the Latins who survived the battle retreated by many different routes, and gradually assembled in the city of Vescia. Here the leaders met to discuss the situation, and Numisius assured them that both armies had really experienced the same fortune and an equal amount of bloodshed; the Romans enjoyed no more than the name of victory, in every other respect they were as good as defeated. The headquarters of both consuls were polluted with blood; the one had murdered his son, the other had devoted himself to death; their whole army was massacred, their hastati and principes killed; the companies both in front of and behind the standards had suffered enormous losses; the triarii in the end saved the situation. The Latin troops, it was true, were equally cut up, but Latium and the Volsci could supply reinforcements more quickly than Rome. If, therefore, they approved, he would at once call out the fighting men from the Latin and Volscian peoples and march back with an army to Capua, and would take the Romans unawares; a battle was the last thing they were expecting. He despatched misleading letters throughout Latium and the Volscian country, those who had not been engaged in the battle being the more ready to believe what he said, and a hastily levied body of militia, drawn from all quarters, was got together. This army was met by the consul at Trifanum, a place between Sinuessa and Menturnae. Without waiting even to choose the sites for their camps, the two armies piled their baggage, fought and finished the war, for the Latins were so utterly worsted that when the consul with his victorious army was preparing to ravage their territory, they made a complete surrender and the Campanians followed their example. Latium and Capua were deprived of their territory. The Latin territory, including that of Privernum, together with the Falernian, which had belonged to the Campanians as far as the Volturnus, was distributed amongst the Roman plebs. They received two jugera a head in the Latin territory, their allotment being made up by three-quarters of a jugerum in the Privernate district; in the Falernian district they received three entire jugera, the additional quarter being allowed

owing to the distance. The Laurentes, amongst the Latins and the aristocracy of the Campanians, were not thus penalised because they had not revolted. An order was made for the treaty with the Laurentes to be renewed, and it has since been renewed annually on the tenth day after the Latin Festival. The Roman franchise was conferred on the aristocracy of Campania, and a brazen tablet recording the fact was fastened up in Rome in the temple of Castor, and the people of Campania were ordered to pay them each - they numbered 1600 in all - the sum of 450 denarii annually.

[8.12]The war having been thus brought to a close, and rewards and punishments having been meted out to each according to their deserts, T. Manlius returned to Rome. There seems good reason for believing that only the older men went out to meet him on his arrival, the younger part of the population showed their aversion and detestation for him not only then but all through his life. The Antiates made incursions into the territories of Ostia, Ardea, and Solonia. Manlius' health prevented him from prosecuting this war, so he nominated L. Papirius Crassus as Dictator, and he named L. Papirius Cursor as his Master of the Horse. No important action was taken by the Dictator against the Antiates, though he had a permanent camp in their country for some months. This year had been signalised by victories over many powerful nations, and still more by the noble death of one consul, and the stern, never-to-be-forgotten exercise of authority on the part of the other. It was followed by the consulship of Titus Aemilius Mamercinus and Q. Publilius Philo. They did not meet with similar materials out of which to build a reputation, nor did they study the interests of their country so much as their own or those of the political factions in the republic. The Latins resumed hostilities to recover the domain they had lost, but were routed in the Fenectane plains and driven out of their camp. There Publilius, who had achieved this success, received into surrender the Latin cities who had lost their men there, whilst Aemilius led his army to Penum. This place was defended by a combined force from Tibur, Praeneste, and Velitrae, and help was also sent from Lanuvium and Antium. In the various battles the Romans had the advantage, but at the city itself, and at the camp of the allied forces which adjoined the city, their work had to be done all over again. The consul suddenly abandoned the war before it was brought to a close, because he heard that a triumph had been decreed to his colleague, and he actually

returned to Rome to demand a triumph before he had won a victory. The senate were disgusted at this selfish conduct, and made him understand that he would have no triumph till Pedum had either been taken or surrendered. This produced a complete estrangement between Aemilius and the senate, and he thenceforth administered his consulship in the spirit and temper of a seditious tribune. As long as he was consul he perpetually traduced the senate to the people, without any opposition from his colleague, who himself also belonged to the plebs. Material for his charges was afforded by the dishonest allocation of the Latin and Falernian domain amongst the plebs, and after the senate, desirous of restricting the consuls' authority, had issued an order for the nomination of a Dictator to act against the Latins, Aemilius, whose turn it then was to have the fasces, nominated his own colleague, who named Junius Brutus as his Master of the Horse. He made his Dictatorship popular by delivering incriminatory harangues against the senate and also by carrying three measures which were directed against the nobility and were most advantageous to the plebs. One was that the decisions of the plebs should be binding on all the Quirites; the second, that measures which were brought before the Assembly of centuries should be sanctioned by the patricians before being finally put to the vote; the third, that since it had come about that both censors could legally be appointed from the plebs, one should in any case be always chosen from that order. The patricians considered that the consuls and the Dictator had done more to injure the State by their domestic policy than to strengthen its power by their successes in the field.

[8.13]The consuls for the next year were L. Furius Camillus and C. Maenius. In order to bring more discredit upon Aemilius for his neglect of his military duties the previous year, the senate insisted that no expenditure of arms and men must be spared in order to reduce and destroy Pedum. The new consuls were peremptorily ordered to lay aside everything else and march at once. The state of affairs in Latium was such that they would neither maintain peace nor undertake war. For war their resources were utterly inadequate, and they were smarting too keenly under the loss of their territory to think of peace. They decided, therefore, on a middle course, namely, to confine themselves to their towns, and if they were informed of any town being attacked, to send assistance to it from the whole of Latium. The people of Tibur and Praeneste, who were the nearest,

reached Pedum, but the troops from Aricium, Lanuvium, and Veliternae, in conjunction with the Volscians of Antium, were suddenly attacked and routed by Maenius at the river Astura. Camillus engaged the Tiburtines who were much the strongest force, and, though with greater difficulty, achieved a similar success. During the battle the townsmen made a sudden sortie, but Camillus, directing a part of his army against them, not only drove them back within their walls, but stormed and captured the town, after routing the troops sent to their assistance, all in one day. After this successful attack on one city, they decided to make a greater and bolder effort and to lead their victorious army on to the complete subjugation of Latium. They did not rest until, by capturing or accepting the surrender of one city after another, they had effected their purpose. Garrisons were placed in the captured towns, after which they returned to Rome to enjoy a triumph which was by universal consent accorded to them. An additional honour was paid to the two consuls in the erection of their equestrian statues in the Forum, a rare incident in that age.

Before the consular elections for the following year were held, Camillus brought before the senate the question of the future settlement of Latium. "Senators," he said, "our military operations in Latium have by the gracious favour of the gods and the bravery of our troops been brought to successful close. The hostile armies were cut down at Pedum and the Astura, all the Latin towns and the Volscian Antium have either been stormed or have surrendered and are now held by your garrisons. We are growing weary of their constant renewal of hostilities, it is for you to consult as to the best means of binding them to a perpetual peace. The immortal gods have made you so completely masters of the situation that they have put it into your hands to decide whether there shall be hence-forth a Latium or not. So far, then, as the Latins are concerned, you can secure for yourselves a lasting peace by either cruelty or kindness. Do you wish to adopt ruthless measures against a people that have surrendered and been defeated? It is open to you to wipe out the whole Latin nation and create desolation and solitude in that country which has furnished you with a splendid army of allies which you have employed in many great wars. Or do you wish to follow the example of your ancestors and make Rome greater by conferring her citizenship on those whom she has defeated? The materials for her

expansion to a glorious height are here at hand. That is assuredly the most firmly-based empire, whose subjects take a delight in rendering it their obedience. But whatever decision you come to, you must make haste about it. You are keeping so many peoples in suspense, with their minds distracted between hope and fear, that you are bound to relieve yourselves as soon as possible from your anxiety about them, and by exercising either punishment or kindness to pre-occupy minds which a state of strained expectancy has deprived of the power of thought. Our task has been to put you in a position to take the whole question into consultation, your task is to decree what is best for yourselves and for the republic."

[8.14]The leaders of the senate applauded the way in which the consul had introduced the motion, but as the circumstances differed in different cases they thought that each case ought to be decided upon its merits, and with the view of facilitating discussion they requested the consul to put the name of each place separately. Lanuvium received the full citizenship and the restitution of her sacred things, with the proviso that the temple and grove of Juno Sospita should belong in common to the Roman people and the citizens living at Lanuvium. Aricium, Nomentum, and Pedum obtained the same political rights as Lanuvium. Tusculum retained the citizenship which it had had before, and the responsibility for the part it took in the war was removed from the State as a whole and fastened on a few individuals. The Veliternians, who had been Roman citizens from old times, were in consequence of their numerous revolts severely dealt with; their walls were thrown down, their senate deported and ordered to live on the other side of the Tiber; if any of them were caught on this side of the river, he was to be fined 1000 ases, and the man who caught him was not to release him from confinement till the money was paid. Colonists were sent on to the land they had possessed, and their numbers made Velitrae look as populous as formerly. Antium also was assigned to a fresh body of colonists, but the Antiates were permitted to enrol themselves as colonists if they chose; their warships were taken away, and they were forbidden to possess any more; they were admitted to citizenship. Tibur and Praeneste had their domains confiscated, not owing to the part which they, in common with the rest of Latium, had taken in the war, but because, jealous of the Roman power, they had joined arms with the barbarous nation of the Gauls. The rest of the Latin cities were

deprived of the rights of intermarriage, free trade, and common councils with each other. Capua, as a reward for the refusal of its aristocracy to join the Latins, were allowed to enjoy the private rights of Roman citizens, as were also Fundi and Formiae, because they had always allowed a free passage through their territory. It was decided that Cumae and Suessula should enjoy the same rights as Capua. Some of the ships of Antium were taken into the Roman docks, others were burnt and their beaks (rostra) were fastened on the front of a raised gallery which was constructed at the end of the Forum, and which from this circumstance was called the Rostra.

[8.15]C. Sulpicius Longus and P. Aelius Paetus were the new consuls. The blessings of peace were now enjoyed everywhere, a peace maintained not more by the power of Rome than by the influence she had acquired through her considerate treatment of her vanquished enemies, when a war broke out between the Sidicines and the Auruncans. After their surrender had been accepted by the consul Manlius, the Auruncans had kept quiet, which gave them a stronger claim to the help of Rome. The senate decided that assistance should be afforded them, but before the consuls started, a report was brought that the Auruncans had been afraid to remain in their town and had fled with their wives and children to Suessa - now called Aurunca - which they had fortified, and that their city with its ancient walls had been destroyed by the Sidicines. The senate were angry with the consuls, through whose delay their allies had been betrayed, and ordered a Dictator to be nominated. C. Claudius Regillensis was nominated accordingly, and he named as his Master of the Horse C. Claudius Hortator. There was some difficulty about the religious sanction of the Dictator's appointment, and as the augurs pronounced that there was an irregularity in his election, both the Dictator and the Master of the Horse resigned. This year Minucia, a Vestal, incurred suspicion through an improper love of dress, and subsequently was accused of unchastity on the evidence of a slave. She had received orders from the pontiffs to take no part in the sacred rights and not to manumit any of her slaves. She was tried and found guilty, and was buried alive near the Colline Gate to the right of the high road in the Campus Sceleratus (the "accursed field"), which, I believe, derives its name from this incident. In this year also Q. Publilius Philo was elected as the first plebeian praetor against the opposition of the consul Sulpicius; the senate, after failing to keep

the highest posts in their own hands, showed less interest in retaining the praetorship.

[8.16]The consuls for the following year were L. Papirius Crassus and Caeso Duillius. There was war with the Ausonians; the fact that it was against a new enemy rather than a formidable one made it noticeable. This people inhabited the city of Cales, and had joined arms with their neighbours, the Sidicines. The combined army of the two cities was routed in a quite insignificant engagement; the proximity of their cities made them all the sooner seek a safety in flight which they did not find in fighting. The senate were none the less anxious about the war, in view of the fact that the Sidicines had so frequently either taken the aggressive themselves or assisted others to do so, or had been the cause of hostilities. They did their utmost, therefore, to secure the election of M. Valerius Corvus, the greatest commander of his day, as consul for the fourth time. M. Atilius Regulus was assigned to him as his colleague. To avoid any chance of mistake, the consuls requested that this war might be assigned to Corvus without deciding it by lot. After taking over the victorious army from the previous consuls, he marched to Cales, where the war had originated. The enemy were dispirited through the remembrance of the former conflict, and he routed them at the very first attack. He then advanced to an assault upon their walls. Such was the eagerness of the soldiers that they were anxious to bring up the scaling ladders and mount the walls forthwith, but Corvus perceived the difficulty of the task and preferred to gain his object by submitting his men to the labours of a regular siege rather than by exposing them to unnecessary risks. So he constructed an agger and brought up the vineae and the turrets close to the walls, but a fortunate circumstance rendered them unnecessary. M. Fabius, a Roman prisoner, succeeded in eluding his guards on a festival, and after breaking his chains fastened a rope from a battlement of the wall and let himself down amongst the Roman works. He induced the commander to attack the enemy while they were sleeping off the effects of their wine and feasting, and the Ausonians were captured, together with their city, with no more trouble than they had previously been routed in the open field. The booty seized was enormous, and after a garrison was placed in Cales the legions were marched back to Rome. The senate passed a resolution allowing the consul to celebrate a triumph, and in order that Atilius might have a chance of distinguishing himself, both

the consuls were ordered to march against the Sidicines. Before starting they nominated, on the resolution of the senate, L. Aemilius Mamercinus as Dictator, for the purpose of conducting the elections; he named Q. Publilius Philo as his Master of the Horse. The consuls elected were T. Veturius and Spurius Postumius. Although there was still war with the Sidicines, they brought forward a proposal to send a colony to Cales in order to anticipate the wishes of the plebs by a voluntary act of kindness. The senate passed a resolution that 2500 names should be enrolled, and the three commissioners appointed to settle the colonists and allocate the holdings were Caeso Duillius, T. Quinctius, and M. Fabius.

[8.17]The new consuls, after taking over the army from their predecessors, entered the enemy's territory and carried their depredations up to the walls of their city. The Sidicines had got together an immense army, and were evidently prepared to fight desperately for their last hope; there was also a report that Samnium was being roused into hostilities. A Dictator was accordingly nominated by the consuls on the resolution of the senate - P. Cornelius Rufinus; the Master of the Horse was M. Antonius. Subsequently a religious difficulty arose through an informality in their nomination, and they resigned their posts. In consequence of a pestilence which followed, it seemed as though all the auspices were tainted by that informality, and matters reverted to an interregnum. There were five interreges and under the last one, M. Valerius Corvus, the consuls elected were C. Cornelius (for the second time) and Cn. Domitius. Matters were now quiet, but a rumour of a Gaulish war created as much alarm as an actual invasion, and it was decided that a Dictator should be appointed. M. Papirius Crassus was nominated, his Master of the Horse being P. Valerius Publicola. Whilst they were raising a stronger levy than was usual in wars near at hand, the reconnoitring parties that had been sent out reported that all was quiet amongst the Gauls. For the last two years there had been suspicions of a movement in Samnium in favour of a change of policy, and as a measure of precaution the Roman army was not withdrawn from the Sidicine territory. The landing of Alexander of Epirus near Paestum led the Samnites to make common cause with the Lucanians, but their united forces were defeated by turn in a pitched battle. He then established friendly relations with Rome, but it is very doubtful how far he would have maintained them had his

other enterprises been equally successful. In this year a census was taken, the censors being Q. Publilius Philo and Sp. Postumius. The new citizens were assessed and formed into two additional tribes, the Maecian and the Scaptian. L. Papirius, the praetor, secured the passage of a law by which the rights of citizenship without the franchise were conferred on the inhabitants of Acerrae. These were the military and civil transactions for the year.

[8.18]M. Claudius Marcellus and T. Valerius were the new consuls. I find in the annals Flaccus and Potitus variously given as the consul's cognomen, but the question is of small importance. This year gained an evil notoriety, either through the unhealthy weather or through human guilt. I would gladly believe - and the authorities are not unanimous on the point - that it is a false story which states that those whose deaths made the year notorious for pestilence were really carried off by poison. I shall, however, relate the matter as it has been handed down to avoid any appearance of impugning the credit of our authorities. The foremost men in the State were being attacked by the same malady, and in almost every case with the same fatal results. A maid-servant went to Q. Fabius Maximus, one of the curule aediles, and promised to reveal the cause of the public mischief if the government would guarantee her against any danger in which her discovery might involve her. Fabius at once brought the matter to the notice of the consuls and they referred it to the senate, who authorised the promise of immunity to be given. She then disclosed the fact that the State was suffering through the crimes of certain women; those poisons were concocted by Roman matrons, and if they would follow her at once she promised that they should catch the poisoners in the act. They followed their informant and actually found some women compounding poisonous drugs and some poisons already made up. These latter were brought into the Forum, and as many as twenty matrons, at whose houses they had been seized, were brought up by the magistrates' officers. Two of them, Cornelia and Sergia, both members of patrician houses, contended that the drugs were medicinal preparations. The maid-servant, when confronted with them, told them to drink some that they might prove she had given false evidence. They were allowed time to consult as to what they would do, and the bystanders were ordered to retire that they might take counsel with the other matrons. They all consented to drink the drugs, and after doing so fell victims to their own

criminal designs. Their attendants were instantly arrested, and denounced a large number of matrons as being guilty of the same offence, out of whom a hundred and seventy were found guilty. Up to that time there had never been a charge of poison investigated in Rome. The whole incident was regarded as a portent, and thought to be an act of madness rather than deliberate wickedness. In consequence of the universal alarm created, it was decided to follow the precedent recorded in the annals. During the secessions of the plebs in the old days a nail had been driven in by the Dictator, and by this act of expiation men's minds, disordered by civil strife, had been restored to sanity. A resolution was passed accordingly, that a Dictator should be appointed to drive in the nail. Cnaeus Quinctilius was appointed and named L. Valerius as his Master of the Horse. After the nail was driven in they resigned office.

[8.19]L. Papirius Crassus and L. Plautius Venox were thereupon elected consuls, the former for the second time. At the beginning of the year deputations came from Fabrateria and Luca, places belonging to the Volscians, with a request to be received into the protection of Rome, whose overlordship they would faithfully and loyally acknowledge if they would undertake to defend them from the Samnites. The senate acceded to their request, and sent to warn the Samnites against violating the territory of these two cities. The Samnites took the warning, not because they were anxious for peace, but because they were not yet ready for war. This year a war commenced with Privernum and its ally, Fundi; their commander was a Fundan, Vitrubius Baccus, a man of great distinction not only in his own city but even in Rome, where he had a house on the Palatine, which was afterwards destroyed and the site sold, the place being thenceforth known as the Bacci Prata. Whilst he was spreading devastation far and wide through the districts of Setia, Norba, and Cora, L. Papirius advanced against him and took up a position not far from his camp. Vitrubius had neither the prudence to remain within his lines in presence of an enemy stronger than himself nor the courage to fight at a distance from his camp. He gave battle whilst his men were hardly clear of their camp, and thinking more of retreating back to it than of the battle or the enemy, was with very little effort put to a decisive defeat. Owing to the proximity of the camp retreat was easy, and he had not much difficulty in protecting his men from serious loss; hardly any were killed in the actual battle,

and only a few in the rear of the crowded fugitives as they were rushing into their camp. As soon as it grew dark they abandoned it for Privernum, trusting to stone walls for protection rather than to the rampart round their camp.

The other consul, Plautius, after ravaging the fields in all directions and carrying off the plunder, led his army into the territory of Fundi. As he was crossing their frontier the senate of Fundi met him and explained that they had not come to intercede for Vitrubius and those who had belonged to his party, but for the people of Fundi. They pointed out that Vitrubius himself had cleared them from all responsibility by seeking shelter in Privernum and not in Fundi, though it was his city. At Privernum, therefore, the enemies of Rome were to be looked for and punished, for they had been faithless both to Fundi and Rome. The men of Fundi wished for peace; their sympathies were wholly Roman, and they retained a grateful sense of the boon they received when the rights of citizenship were conferred upon them. They besought the consul to abstain from making war upon an unoffending people; their lands, their city, their own persons and the persons of their wives and children were and would continue to be at the disposal of Rome. The consul commended them for their loyalty and sent despatches to Rome to inform the senate that the Fundans were firm in their allegiance, after which he marched to Privernum. Claudius gives a different account. According to him the consul first proceeded against the ringleaders of the revolt, of whom three hundred and fifty were sent in chains to Rome. He adds that the senate refused to receive the surrender because they considered that the Fundans were anxious to escape with the punishment of poor and obscure individuals.

[8.20] Whilst Privernum was invested by two consular armies, one of the consuls was recalled home to conduct the elections. It was in this year that the carceres were erected in the Circus Maximus. The trouble of the war with Privernum was not yet over when a most alarming report of a sudden movement amongst the Gauls reached the senate. Such reports were not often treated lightly. The new consuls, L. Aemilius Mamercinus and C. Plautius, were immediately ordered to arrange their respective commands on the very day they assumed office, namely July 1. The Gaulish war fell to Mamercinus, and he allowed none of those who were called up for service to claim exemption. It is even asserted that the mob of mechanics and

artizans, a class utterly unfit for warfare, were called out. An immense army was concentrated at Veii to check the advance of the Gauls. It was thought better not to march any further in case the enemy took some other route to the City. After a thorough reconnaissance had been made, it was ascertained after a few days that all was quiet as far as the Gauls were concerned, and the whole force was thereupon marched to Privernum. From this point there is a twofold story. Some state that the city was stormed and Vitrubius taken alive; other authorities aver that before the final assault the townsmen came out with a caduceus and surrendered to the consul, whilst Vitrubius was given up by his own men. The senate, when consulted as to the fate of Vitrubius and the Privernates, instructed the consul to demolish the walls of Privernum and station a strong garrison there, and then to celebrate his triumph. Vitrubius was to be kept in prison until the consul returned and then to be scourged and beheaded; his house on the Palatine was to be razed and his goods devoted to Semo Sancus. The money realised by their sale was melted down into brazen orbs which were deposited in the chapel of Sancus opposite the temple of Quirinus. With regard to the senate of Privernum, it was decreed that every senator who had remained in that city after its revolt from Rome should be deported beyond the Tiber on the same conditions as those of Velitrae. After his triumph, when Vitrubius and his accomplices had been put to death, the consul thought that as the senate was satisfied with the punishment of the guilty, he might safely refer to the matter of the Privernates. He addressed the House in the following terms: "Since the authors of the revolt, senators, have been visited by the immortal gods and by you with the punishment they deserved, what is your pleasure with regard to the innocent population? Although it is my duty to ask for opinions rather than to give them, I should like to say that in view of the fact that the Privernates are neighbours of the Samnites, with whom peaceful relations are now upon a most uncertain footing, I am anxious that as few grounds of complaint as possible should exist between us and them."

The question was not an easy one to settle, for the senators, were governed largely by their temperaments and some advised a harsh, others a gentler course. The general divergence of opinion was widened by one of the Privernate envoys who was thinking more of the state of things in which he had been born than of his present

plight. One of the senators who was advocating sterner measures asked him what punishment he thought his countrymen deserved. He replied: "The punishment which those deserve who assert their liberty." The consul saw that this spirited reply only exasperated those who were already adverse to the cause of the Privernates, and he tried to get a softer answer by a more considerate question. "Well," he said, "if we spare you now, what sort of a peace may we hope to have with you for the time to come?" "A real and lasting one," was the reply, "if its terms be good, but if they are bad, one that will soon be broken." On hearing this, some of the senators exclaimed that he was using open threats, and that it was by such language that even those states which had been pacified were incited to renew hostilities. The better part of the senate, however, put a more favourable construction on his reply, and declared that it was an utterance worthy of a man and a man who loved liberty. Was it, they asked, to be supposed that any people or for that matter, any individual would remain longer than he could help under conditions which made him discontented? Peace would only be faithfully kept where those who accepted it did so voluntarily; they could not hope that it would be faithfully kept where they sought to reduce men to servitude. The senate was brought to adopt this view mainly by the consul himself who kept repeating to the consulars - the men who had to state their opinions first - in a tone loud enough for many to hear, "Men whose first and last thought is their liberty deserve to become Romans." Thus they gained their cause in the senate, and the proposal to confer full citizenship on the Privernates was submitted to the people.

[8.22] The new consuls were P. Plautius Proculus and P. Cornelius Scapula. The year was not remarkable for anything at home or abroad beyond the fact that a colony was sent to Fregellae which was in the territory of Sidicum and had afterwards belonged to the Volscians. There was also a distribution of meat made to the people by M. Flavius on the occasion of his mother's funeral. There were many who looked upon this as the payment of a bribe to the people under the pretext of honouring his mother's memory. He had been prosecuted by the aediles on the charge of seducing a married woman, and had been acquitted, and this was considered in the light of a dole given in return for the favour shown him at the trial. It proved also to be the means of his gaining office, for at the next election he was made a tribune of the plebs in his absence and over

the heads of competitors who had personally canvassed. Palaeopolis was a city not far from the present site of Neapolis. The two cities formed one community. The original inhabitants came from Cumae; Cumae traced its origin to Chalcis in Euboea. The fleet in which they had sailed from home gave them the mastery of the coastal district which they now occupy, and after landing in the islands of Aenaria and Pithecusae they ventured to transfer their settlements to the mainland. This community, relying on their own strength and on the lax observance of treaty obligations which the Samnites were showing towards the Romans, or possibly trusting to the effect of the pestilence which they had heard was now attacking the City, committed many acts of aggression against the Romans who were living in Campania and the Falernian country. In consequence of this, the consuls, L. Cornelius Lentulus and Q. Publilius Philo, sent the fetials to Palaeopolis to demand redress. On hearing that the Greeks, a people valiant in words rather than in deeds, had sent a defiant reply, the people, with the sanction of the senate, ordered war to be made on Palaeopolis. The consuls arranged their respective commands; the Greeks were left for Publilius to deal with; Cornelius, with a second army, was to check any movement on the part of the Samnites. As, however, he received intelligence that they intended to advance into Campania in anticipation of a rising there, he thought it best to form a standing camp there.

[8.23]Both consuls sent word to the senate that there were very slender hopes of the Samnites remaining at peace. Publilius informed them that 2000 troops from Nola and 4000 Samnites had been admitted into Palaeopolis, more under pressure from Nola than from any great desire for their presence on the part of the Greeks; Cornelius sent the additional information that orders for a general levy had been issued throughout Samnium, and attempts were being openly made to induce the neighbouring communities of Privernum, Fundi, and Formiae to rise. Under these circumstances it was decided to send ambassadors to the Samnites before actually commencing war. The Samnites sent an insolent reply. They accused the Romans of wanton aggression, and absolutely denied the charges made against themselves; they declared that the assistance which the Greeks had received was not furnished by their government, nor had they tampered with Fundi and Formiae, for they had no reason to distrust their own strength if it came to war. Moreover, it was impossible to

disguise the deep irritation which the Samnite nation felt at the conduct of the Roman people in restoring Fregellae after they had taken it from the Volscians and destroyed it, and placing a colony on Samnite territory which the colonists called Fregellae. If this insult and injury were not removed by those responsible for it, they would themselves exert all their strength to get rid of it. The Roman ambassadors invited them to submit the questions at issue to arbitration before their common friends, but the Samnites replied: "Why should we beat about the bush? No diplomacy, no arbitration can adjust our quarrel; arms and the fortune of war can alone decide the issue. We must meet in Campania." To which the Roman replied: "Roman soldiers will march not whither the enemy summons them, but whither their commander leads them."

Publilius meantime had taken up a suitable position between Palaeopolis and Neapolis in order to prevent them from rendering each other the mutual assistance they had hitherto given. The time for the elections was close at hand, and it would have been most inexpedient for the public interest to recall Publilius, as he was ready to attack the place and in daily expectation of effecting its capture. An arrangement was accordingly made with the tribunes of the plebs to propose to the people that at the expiration of his term of office Publilius should continue to act as proconsul till the war with the Greeks was brought to a close. The same step was taken with regard to Cornelius, who had already entered Samnium, and written instructions were sent to him to nominate a Dictator to hold the elections. He nominated M. Claudius Marcellus, and Sp. Postumius was named by him Master of the Horse. The elections, however, were not held by that Dictator, doubts having been raised as to whether the proper formalities had been observed in his nomination. The augurs, when consulted, declared that they had not been duly observed. The tribunes characterised their action as dishonest and iniquitous. "How," they asked, "could they know that there was any irregularity? The consul rose at midnight to nominate the Dictator; he had made no communication to any one either officially or privately about the matter; there was no one living who could say that he had seen or heard anything which would vitiate the auspices; the augurs sitting quietly in Rome could not possibly divine what difficulty the consul may have met with in the camp. Who was there who could not see that the irregularity which the augurs had

discovered lay in the fact that the Dictator was a plebeian?" These and other objections were raised by the tribunes. Matters, however, reverted to an interregnum, and owing to the repeated adjournment of the elections on one pretext after another, there were no fewer than fourteen interregna. At last L. Aemilius, the fourteenth interrex, declared C. Poetilius and L. Papirius Mugilanus duly elected. In other lists I find Cursor.

[8.24]The foundation of Alexandria in Egypt is stated to have taken place this year (327 B.C.), and also the assassination of Alexander of Epirus at the hands of a Lucanian refugee, an event which fulfilled the oracular prediction of the Dodonean Jupiter. When he was invited by the Tarentines into Italy, he received a warning to beware of the water of Acheron and the city of Pandosia; for it was there that the limits of his destiny were fixed. This made him cross over into Italy all the sooner, that he might be as far as possible from the city of Pandosia in Epirus and the river Acheron, which flows from Molossis into the Infernal Marshes and finally empties itself into the Thesprotian Gulf. But, as often happens, in trying to avoid his fate he rushed upon it. He won many victories over the nationalities of Southern Italy, inflicting numerous defeats upon the legions of Bruttium and Lucania, capturing the city of Heraclea, a colony of settlers from Tarentum, taking Potentia from the Lucanians, Sipontum from the Apulians, Consentia and Terina from the Bruttii and other cities belonging to the Messapians and Lucanians. He sent three hundred noble families to Epirus to be detained there as hostages. The circumstances under which he met his death were these. He had taken up a permanent position on three hills not far from the city of Pandosia which is close to the frontiers of the Lucanians and Bruttii. From this point he made incursions into every part of the enemy's territory, and on these expeditions he had as a bodyguard some two hundred Lucanian refugees, in whose fidelity he placed confidence, but who, like most of their countrymen, were given to changing their minds as their fortunes changed. Continuous rains had inundated the whole country and prevented the three divisions of the army from mutually supporting each other, the level ground between the hills being impassable. While they were in this condition two out of the three divisions were suddenly attacked in the king's absence and overwhelmed. After annihilating them the enemy invested the third hill, where the king was present in person.

The Lucanian refugees managed to communicate with their countrymen, and promised, if a safe return were guaranteed to them, to place the king in their hands alive or dead. Alexander, with a picked body of troops, cut his way, with splendid courage, through the enemy, and meeting the Lucanian general slew him after a hand to hand fight. Then getting together those of his men who were scattered in flight, he rode towards the ruins of a bridge which had been carried away by the floods and came to a river. Whilst his men were fording it with very uncertain footing, a soldier, almost spent by his exertions and his fears, cursed the river for its unlucky name, and said, "Rightly art thou called Acheros!" When these words fell on his ear the king at once recalled to mind the oracular warning, and stopped, doubtful whether to cross or not. Sotimus, one of his personal attendants, asked him why he hesitated at such a critical moment and drew his attention to the suspicious movements of the Lucanian refugees who were evidently meditating treachery. The king looked back and saw them coming on in a compact body; he at once drew his sword and spurred his horse through the middle of the river. He had already reached the shallow water on the other side when one of the refugees some distance away transfixed him with a javelin. He fell from his horse, and his lifeless body with the weapon sticking in it was carried down by the current to that part of the bank where the enemy were stationed. There it was horribly mutilated. After cutting it through the middle they sent one half to Consentia and kept the other to make sport of. Whilst they were pelting it at a distance with darts and stones a solitary woman ventured among the rabble who were showing such incredible brutality and implored them to desist. She told them amid her tears that her husband and children were held prisoners by the enemy and she hoped to ransom them with the king's body however much it might have been disfigured. This put an end to the outrages. What was left of the limbs was cremated at Consentia by the reverential care of this one woman, and the bones were sent back to Metapontum; from there they were carried to Cleopatra, the king's wife, and Olympias, his sister, the latter of whom was the mother, the former the sister of Alexander the Great. I thought it well to give this brief account of the tragic end of Alexander of Epirus, for although Fortune kept him from hostilities with Rome, the wars he waged in Italy entitle him to a place in this history.

[8.25] A laetisternium took place this year (326 B.C.), the fifth since the foundation of the City, and the same deities were propitiated in this as in the former one. The new consuls, acting on the orders of the people, sent heralds to deliver a formal declaration of war to the Samnites, and made all their preparations on a much greater scale for this war than for the one against the Greeks. New and unexpected succours were forthcoming, for the Lucanians and Apulians, with whom Rome had up to that time established no relations, came forward with offers to make an alliance and promised armed assistance; a friendly alliance was formed with them. Meantime the operations in Samnium were attended with success, the towns of Allifae, Callifae, and Rufrium passed into the hands of the Romans, and ever since the consuls had entered the country the rest of the territory was ravaged far and wide. Whilst this war was commencing thus favourably, the other war against the Greeks was approaching its close. Not only were the two towns Palaeopolis and Neapolis cut off from all communication with each other by the enemy's lines, but the townsfolk within the walls were practically prisoners to their own defenders, and were suffering more from them than from anything which the outside enemy could do; their wives and children were exposed to such extreme indignities as are only inflicted when cities are stormed and sacked. A report reached them that succours were coming from Tarentum and from the Samnites. They considered that they had more Samnites than they wanted already within their walls, but the force from Tarentum composed of Greeks, they were prepared to welcome, being Greeks themselves, and through their means they hoped to resist the Samnites and the Nolans no less than the Romans. At last, surrender to the Romans seemed the less of the two evils. Charilaus and Nymphius, the leading men in the city, arranged with one another the respective parts they were to play. One was to desert to the Roman commander, the other to remain in the city and prepare it for the successful execution of their plot. Charilaus was the one who went to Publius Philo. After expressing the hope that all might turn out for the good and happiness of Palaeopolis and Rome, he went on to say that he had decided to deliver up the fortifications. Whether in doing this he should be found to have preserved his country or betrayed it depended upon the Roman sense of honour. For himself he made no terms and asked for no conditions, but for his countrymen he begged rather than stipulated that if his design succeeded the people of Rome should take into

consideration the eagerness with which they sought to renew the old friendly relations, and the risk attending their action rather than their folly and recklessness in breaking the old ties of duty. The Roman commander gave his approval to the proposed scheme and furnished him with 3000 men to seize that part of the city which was in the occupation of the Samnites. L. Quinctius, a military tribune, was in command of this force.

[8.26]Nymphius at the same time approached the Samnite praetor and persuaded him, now that the whole of the Roman fighting force was either round Palaeopolis or engaged in Samnium, to allow him to sail round with the fleet to the Roman seaboard and ravage not only the coastal districts but even the country close to the city. But to ensure secrecy he pointed out that it would be necessary to start by night, and that the ships should be at once launched. To expedite matters the whole of the Samnite troops, with the exception of those who were mounting guard in the city, were sent down to the shore. Here they were so crowded as to impede one another's movements and the confusion was heightened by the darkness and the contradictory orders which Nymphius was giving in order to gain time. Meantime Charilaus had been admitted by his confederates into the city. When the Romans had completely occupied the highest parts of the city, he ordered them to raise a shout, on which the Greeks, acting on the instructions of their leaders kept quiet. The Nolans escaped at the other end of the city and took the road to Nola. The Samnites, shut out as they were from the city, had less difficulty in getting away, but when once out of danger they found themselves in a much more sorry flight. They had no arms, there was nothing they possessed which was not left behind with the enemy; they returned home stripped and destitute, an object of derision not only to foreigners but even to their own countrymen. I am quite aware that there is another view of this transaction, according to which it was the Samnites who surrendered, but in the above account I have followed the authorities whom I consider most worthy of credit. Neapolis became subsequently the chief seat of the Greek population, and the fact of a treaty being made with that city renders it all the more probable that the re-establishment of friendly relations was due to them. As it was generally believed that the enemy had been forced by the siege to come to terms, a triumph was decreed to Publilius. Two circumstances happened in connection with his

consulship which had never happened before - a prolongation of command and a triumph after he had laid down his command.

[8.27] This was followed almost immediately by a war with the Greeks on the eastern coast. The Tarentines had encouraged the people of Palaeopolis through their long resistance with vain hopes of succour, and when they heard that the Romans had got possession of the place they severely blamed the Palaeopolitans for leaving them in the lurch, as though they were quite guiltless of having behaved in a similar manner themselves. They were furious with the Romans, especially after they found that the Lucanians and Apulians had established friendly relations with them - for it was in this year that the alliance had been formed - and they realised that they would be the next to be involved. They saw that it must soon become a question of either fighting Rome or submitting to her, and that their whole future in fact depended upon the result of the Samnite war. That nation stood out alone, and even their strength was inadequate for the struggle, now that the Lucanians had abandoned them. They believed, however, that these could still be brought back and induced to desert the Roman alliance, if sufficient skill were shown in sowing the seeds of discord between them. These arguments found general acceptance among a people who were fickle and restless, and some young Lucanians, distinguished for their unscrupulousness rather than for their sense of honour, were bribed to make themselves tools of the war party. After scourging one another with rods they presented themselves with their backs exposed, in the popular Assembly, and loudly complained that after they had ventured inside the Roman camp, they had been scourged by the consul's orders and were within an ace of losing their heads. The affair had an ugly look, and the visible evidence removed any suspicion of fraud. The Assembly became greatly excited, and amidst loud shouts insisted upon the magistrates convening the senate. When it assembled the senators were surrounded by a crowd of spectators who clamoured for war with Rome, whilst others went off into the country to rouse the peasantry to arms. Even the coolest heads were carried away by the tumult of popular feeling; a decree was passed that a fresh alliance should be made with the Samnites, and negotiations were opened with them accordingly. The Samnites did not feel much confidence in this sudden and apparently groundless change of policy, and the Lucanians were obliged to give hostages and allow the Samnites to

garrison their fortified places. Blinded by the imposition that had been practiced on them and by their furious resentment at it, they made no difficulty about accepting these terms. Shortly afterwards, when the authors of the false charges had removed to Tarentum, they began to see how they had been hoodwinked, but it was then too late, events were no longer in their power, and nothing remained but unavailing repentance.

[8.28] This year (326 B.C.) was marked by the dawn, as it were, of a new era of liberty for the plebs; creditors were no longer allowed to attach the persons of their debtors. This change in the law was brought about by a signal instance of lust and cruelty upon the part of a moneylender. L. Papirius was the man in question. C. Publilius had pledged his person to him for a debt which his father had contracted. The youth and beauty of the debtor which ought to have called forth feelings of compassion only acted as incentives to lust and insult. Finding that his infamous proposals only filled the youth with horror and loathing, the man reminded him that he was absolutely in his power and sought to terrify him by threats. As these failed to crush the boy's noble instincts, he ordered him to be stripped and beaten. Mangled and bleeding the boy rushed into the street and loudly complained of the usurer's lust and brutality. A vast crowd gathered, and on learning what had happened became furious at the outrage offered to one of such tender years, reminding them as it did of the conditions under which they and their children were living. They ran into the Forum and from there in a compact body to the Senate-house. In face of this sudden outbreak the consuls felt it necessary to convene a meeting of the senate at once, and as the members entered the House the crowd exhibited the lacerated back of the youth and flung themselves at the feet of the senators as they passed in one by one. The strongest bond and support of credit was there and then overthrown through the mad excesses of one individual. The consuls were instructed by the senate to lay before the people a proposal "that no man be kept in irons or in the stocks, except such as have been guilty of some crime, and then only till they have worked out their sentence; and, further, that the goods and not the person of the debtor shall be the security for the debt." So the nexi were released, and it was forbidden for any to become nexi in the future.

[8.29]The Samnite war, the sudden dejection of the Lucanians, and the fact that the Tarentines had been the instigators were quite sufficient in themselves to cause the senators anxiety. Fresh trouble, however, arose this year through the action of the Vestinians, who made common cause with the Samnites. The matter had been a good deal discussed, though it had not yet occupied the attention of the government. In the following year, however, the new consuls, L. Furius Camillus and Junius Brutus Scaeva, made it the very first question to bring before the senate. Though the subject was no new one, yet it was felt to be so serious that the senators shrank from either taking it up or refusing to deal with it. They were afraid that if they left that nation unpunished, the neighbouring states might be encouraged to make a similar display of wanton arrogance, while to punish them by force of arms might lead others to fear similar treatment and arouse feelings of resentment. In fact, the whole of these nations - the Marsi, the Paeligni, and the Marrucini - were quite as warlike as the Samnites, and in case the Vestinians were attacked would have to be reckoned with as enemies. The victory, however, rested with that party in the senate who seemed at the time to possess more daring than prudence, but the result showed that Fortune favours the bold. The people, with the sanction of the senate, resolved on war with the Vestinians. The conduct of that war fell by lot to Brutus, the war in Samnium to Camillus. Armies were marched into both countries, and by carefully watching the frontiers the enemy were prevented from effecting a junction. The consul who had the heavier task, L. Furius, was overtaken by a serious illness and was obliged to resign his command. He was ordered to nominate a Dictator to carry on the campaign, and he nominated L. Papirius Cursor, the foremost soldier of his day, Q. Fabius Maximus Rullianus being appointed Master of the Horse. The two distinguished themselves by their conduct in the field, but they made themselves still more famous by the conflict which broke out between them, and which almost led to fatal consequences. The other consul, Brutus, carried on an active campaign amongst the Vestinians without meeting with a single reverse. He ravaged the fields and burnt the farm buildings and crops of enemy, and at last drove him reluctantly into action. A pitched battle was fought, and he inflicted such a defeat on the Vestinians, though with heavy loss on his own side also, that they fled to their camp, but not feeling sufficiently protected by fosse and rampart they dispersed in scattered parties to their towns,

trusting to their strong positions and stone walls for their defence. Brutus now commenced an attack upon their towns. The first to be taken was Cutina, which he carried by escalade, after a hot assault by his men, who were eager to avenge the heavy losses they had sustained in the previous battle. This was followed by the capture of Cingilia. He gave the spoil of both cities to his troops as a reward for their having surmounted the walls and gates of the enemy.

[8.30]The advance into Samnium was made under doubtful auspices. This circumstance did not portend the result of the campaign, for that was quite favourable, but it did forshadow the insane passion which the commanders displayed. Papirius was warned by the pullarius that it would be necessary to take the auspices afresh. On his departure for Rome for this purpose, he strictly charged the Master of the Horse to keep within his lines and not to engage the enemy. After he had gone Q. Fabius learnt from his scouts that the enemy were showing as much carelessness as if there were not a single Roman in Samnium. Whether it was that his youthful temper resented everything being dependent on the Dictator, or whether he was tempted by the chance offered him of a brilliant success, at any rate, after making the necessary preparations and dispositions he advanced as far as Inbrinium - for so is the district called - and fought a battle with the Samnites. Such was the fortune of the fight that had the Dictator himself been present he could have done nothing to make the success more complete. The general did not disappoint his men, nor did the men disappoint their general. The cavalry made repeated charges but failed to break through the massed force opposed to them, and acting on the advice of L. Cominius, a military tribune, they removed the bits from their horses and spurred them on so furiously that nothing could withstand them. Riding down men and armour they spread carnage far and wide. The infantry followed them and completed the disorder of the enemy. It is said that they lost 20,000 men that day. Some authorities whom I have consulted state that there were two battles fought in the Dictator's absence, and each was a brilliant success. In the oldest writers, however, only one battle is mentioned, and some annalists omit the incident altogether.

In consequence of the vast number slain, a large amount of spoil in the shape of armour and weapons was picked up on the battle-field, and the Master of the Horse had this collected into a huge heap and burnt. His object may have been to discharge a vow to some deity.

But if we are to trust the authority of Fabius, he did this to prevent the Dictator from reaping the fruits of his glory, or carrying the spoils in his triumph and afterwards placing his name upon them. The fact also of his sending the despatches announcing his victory to the senate and not to the Dictator would seem to show that he was by no means anxious to allow him any share in the credit of it. At all events the Dictator took it in that light, and whilst everybody else was jubilant at the victory which had been won, he wore an expression of gloom and wrath. He abruptly dismissed the senate and hurried from the Senate-house, repeatedly exclaiming that the authority and dignity of the Dictator would be as completely overthrown by the Master of the Horse as the Samnite legions had been if this contempt of his orders were to remain unpunished. In this angry and menacing mood, he started with all possible speed for the camp. He was unable, however, to reach it before news arrived of his approach, for messengers had started from the City in advance of him, bringing word that the Dictator was coming bent on vengeance, and almost every other word he uttered was in praise of T. Manlius.

[8.31] Fabius immediately summoned his troops to assembly, and appealed to them to show the same courage with which they had defended the republic from a brave and determined foe in protecting from the unrestrained ferocity of the Dictator the man under whose auspices and generalship they had been victorious. He was coming, maddened by jealousy, exasperated at another man's merits and good fortune, furious because the republic had triumphed in his absence. If it were in his power to change the fortune of the day, he would rather that victory rested with the Samnites than with the Romans. He kept talking about the contempt of orders as though the reason why he forbade all fighting were not precisely the same as that which makes him vexed now that we have fought. Then, prompted by jealousy, he wanted to suppress the merits of others and deprive of their arms men who were most eager to use them, so as to prevent their being employed in his absence; now he is exasperated and furious because the soldiers were not crippled or defenceless though L. Papirius was not with them, and because Q. Fabius considered himself Master of the Horse and not the lacquey of the Dictator. What would he have done if, as often happens amid the chances of war, the battle had gone against us, seeing that now, after the enemy has been thoroughly defeated and a victory won for the republic

which even under his unrivalled generalship could not have been more complete, he is actually menacing the Master of the Horse with punishment! He would, were it in his power, treat all with equal severity, not only the Master of Horse but the military tribunes, the centurions, the men of the rank and file. Jealousy, like lightning, strikes the summits, and because he cannot reach all he has selected one man as his victim whom he regards as the chief conspirator - your general. If he should succeed in crushing him and quenching the splendour of his success, he will treat this army as a victor treats the vanquished and with the same ruthlessness which he has been allowed to practice on the Master of the Horse. In defending his cause they will be defending the liberty of all. If the Dictator sees that the army is as united in guarding its victory as it was in fighting for it, and that one man's safety is the common concern of all, he will bring himself to a calmer frame of mind. His closing words were: "I entrust my fortunes and my life to your fidelity and courage." His words were greeted with universal shouts of approval. They told him not to be dismayed or depressed, no man should harm him while the legions of Rome were alive.

[8.32]Not long after this the Dictator appeared, and at once ordered the trumpet to sound the Assembly. When silence was restored an usher summoned Q. Fabius, the Master of the Horse. He advanced and stood immediately below the Dictator's tribunal. The Dictator began: "Quintus Fabius, inasmuch as the Dictator possesses supreme authority, to which the consuls who exercise the old kingly power, and the praetors who are elected under the same auspices as the consuls alike submit, I ask you whether or not you think it right and fitting that the Master of the Horse should bow to that authority? Further, I ask you whether as I was aware that I had left the City under doubtful auspices I ought to have jeopardised the safety of the republic in the face of this religious difficulty, or whether I ought to have taken the auspices afresh and so avoided any action till the pleasure of the gods was known? I should also like to know whether, if a religious impediment prevents the Dictator from acting, the Master of the Horse is at liberty to consider himself free and unhampered by such impediment? But why am I putting these questions? Surely, if I had gone away without leaving any orders, you ought to have used your judgment in interpreting my wishes and acted accordingly. Answer me this, rather: Did I forbid you to take

any action in my absence? Did I forbid you to engage the enemy? In contempt of my orders, whilst the auspices were still indecisive and the sanctions of religion withheld, you dared to give battle, in defiance of all the military custom and discipline of our ancestors, in defiance of the will of the gods. Answer the questions put to you, but beware of uttering a single word about anything else. Lictor, stand by him!"

Fabius found it far from easy to reply to each question in detail, and protested against the same man being both accuser and judge in a matter of life and death. He exclaimed that it would be easier to deprive him of his life than of the glory he had won, and went on to exculpate himself and bring charges against the Dictator. Papirius in a fresh outburst of rage ordered the Master of the Horse to be stripped and the rods and axes to be got ready. Fabius appealed to the soldiers for help, and as the lictors began to tear off his clothes, he retreated behind the triarii who were now raising a tumult. Their shouts were taken up through the whole concourse, threats and entreaties were heard everywhere. Those nearest the tribunal, who could be recognised as being within view of the Dictator implored him to spare the Master of the Horse and not with him to condemn the whole army; those furthest off and the men who had closed round Fabius reviled the Dictator as unfeeling and merciless. Matters were rapidly approaching a mutiny. Even those on the tribunal did not remain quiet; the staff officers who were standing round the Dictator's chair begged him to adjourn the proceedings to the following day to allow his anger to cool and give time for quiet consideration. They urged that the youthful spirit of Fabius had been sufficiently chastened and his victory sufficiently sullied; they begged him not to push his punishment to extremities or to brand with ignominy not only a youth of exceptional merit but also his distinguished father and the whole Fabian house. When they found their arguments and entreaties alike unavailing, they asked him to look at the angry multitude in front. To add fire to men whose tempers were already inflamed and to provide the materials for a mutiny was, they said, unworthy of a man of his age and experience. If a mutiny did occur, no one would throw the blame of it upon Q. Fabius, who was only deprecating punishment; the sole responsibility would lie on the Dictator for having in his blind passion provoked the multitude to a deplorable struggle with him. And as a final

argument they declared that to prevent him from supposing that they were actuated by any personal feeling in favour of Fabius, they were prepared to state on oath that they considered the infliction of punishment on Fabius under present circumstances to be detrimental to the interests of the State.

[8.33] These remonstrances only irritated the Dictator against them instead of making him more peaceably disposed towards Fabius, and he ordered them to leave the tribunal. In vain the ushers demanded silence, neither the Dictator's voice nor those of his officers could be heard owing to the noise and uproar; at last night put an end to the conflict as though it had been a battle. The Master of the Horse was ordered to appear on the following day. As, however, everybody assured him that Papirius was so upset and embittered by the resistance he had met with that he would be more furious than ever, Fabius left the camp secretly and reached Rome in the night. On the advice of his father, M. Fabius, who had been thrice consul as well as Dictator a meeting of the senate was at once summoned. Whilst his son was describing to the senators the violence and injustice of the Dictator, suddenly the noise of the lictors clearing the way in front of the Senate-house was heard and the Dictator himself appeared, having followed him up with some light cavalry as soon as he heard that he had quitted the camp. Then the contention began again, and Papirius ordered Fabius to be arrested. Though not only the leaders of the senate but the whole House sought to deprecate his wrath, he remained unmoved and persisted in his purpose. Then M. Fabius, the father, said: "Since neither the authority of the senate nor the years which I, whom you are preparing to bereave of a son have reached, nor the noble birth and personal merits of the Master of the Horse whom you yourself appointed, and entreaties such as have often mitigated the fierceness of human foes and pacified the anger of offended deities - since none of these move you - I claim the intervention of the tribunes of the plebs and appeal to the people. As you are seeking to escape from the judgment which the army has passed upon you and which the senate is passing now, I summon you before the one judge who has at all events more power and authority than your Dictatorship. I shall see whether you will submit to an appeal to which a Roman king - Tullus Hostilius - submitted." He at once left the Senate-house for the Assembly. Thither the Dictator also proceeded with a small party, whilst the Master of the Horse was

accompanied by all the leaders of the senate in a body. They had both taken their places on the rostra when Papirius ordered Fabius to be removed to the space below. His father followed him and turned to Papirius with the remark, "You do well to order us to be removed to a position from which we can speak as private citizens."

For some time regular debate was out of the question, nothing was heard but mutual altercations. At last the loud and indignant tones of the elder Fabius rose above the hubbub as he expatiated on the tyranny and brutality of Papirius. He himself, he said, had been Dictator, and not a single person, not a single plebeian, whether centurion or private soldier, had ever suffered any wrong from him. But Papirius would wrest victory and triumph from a Roman commander just as he would from hostile generals. What a difference there was between the moderation shown by the men of old and this new fashion of ruthless severity! The Dictator, Quinticius Cincinnatus, rescued the consul, L. Minucius, from a blockade, and the only punishment he inflicted was to leave him as second in command of the army. L. Furius, after expressing his contempt for the age and authority of M. F. Camillus, incurred a most disgraceful defeat, but Camillus not only checked his anger for the moment and refrained from putting in his despatches to the people, or rather to the senate, anything reflecting on his colleague, but on his return to Rome, after the senate had allowed him to choose from the consular tribunes one to be associated with him in his command, he actually chose L. Furius. Why, even the people themselves, who hold in their hands the sovereign power, have never allowed their feelings to carry them beyond the imposition of a fine even where armies have been lost through the foolhardiness or ignorance of their generals. Never up to this day has a commander-in-chief been tried for his life because he was defeated. But now generals who have won victories and earned the most splendid triumphs are threatened with the rods and axes, a treatment which the laws of war forbid even to the vanquished. What, he asked, would his son have suffered if he had met with defeat, been routed and stripped of his camp? Could that man's rage and violence go beyond scourging and killing? It was owing to Q. Fabius that the State was offering up joyous and grateful thanksgivings for victory; it was on his account that the sacred fanes stood open and prayers and libations were being offered at the altars, and the smoke of sacrifice was ascending. How fitting it was that this

very man should be stripped and torn with rods before the eyes of the Roman people, in sight of the Capitol and the Citadel, in sight of the gods whom he invoked in two battles nor invoked in vain! What would be the feelings of the army who had won their victories under his auspices and generalship? What grief would there be in the Roman camp, what exultation among the enemy! The old man wept bitterly as he uttered these protests and expostulations, ever and anon throwing his arms round his son and appealing for help to gods and men.

[8.34]He had on his side the support of the august and venerable senate, the sympathy of the people, the protection of the tribunes, and the remembrance of the absent army. On the other side were pleaded the unquestioned sovereign power of the Roman people and all the traditions of military discipline, the Dictator's edict which had ever been regarded as possessing divine sanction, and the example of Manlius who had sacrificed his affection for his son to the interests of the State. Brutus too, urged the Dictator, the founder of Roman freedom, had done this before in the case of his two children. Now fathers were indulgent, and aged men, easy-going in matters that do not touch themselves, were spoiling the young men, teaching them to despise authority and treating military discipline as of little importance. He declared his intention of adhering to his purpose, he would not abate a single jot of the punishment due to the man who had fought in defiance of his injunctions' while the auspices were doubtful and the religious sanction withheld. Whether the supreme authority of the Dictator was to remain unimpaired did not depend on him; he, L. Papirius, would do nothing to weaken its power. He sincerely hoped that the tribunes would not use their authority, itself inviolable, to violate by their interference the sovereignty of the Roman government, and that the people to whom the appeal had been made would not extinguish in his case especially Dictator and Dictatorship alike. "If it did, it will not be L. Papirius but the tribunes, the corrupt judgment of the people that posterity will accuse and accuse in vain. When the bond of military discipline has once been broken no soldier will obey his centurion, no centurion his military tribune, no military tribune his general, no Master of the Horse the Dictator. No one will have any reverence or respect for either men or gods, no observance will be shown to the orders of commanders or the auspices under which they acted. Without obtaining leave of

absence soldiers will roam at will through friendly or hostile country; in total disregard of their military oath they will abandon their standards when and where they chose, they will refuse to assemble when ordered, they will fight regardless of day or night, whether the ground were favourable or unfavourable, whether their commander has given orders or not, keeping no formation, no order. Military service, instead of being the solemn and sacred thing it is, will resemble wild and disorderly brigandage. Expose yourselves, tribunes, to all future ages as the authors of these evils! Make yourselves personally responsible for the criminal recklessness of Q. Fabius!"

[8.35]The tribunes were dismayed and felt more anxiety now about their own position than about the man who had sought their protection. They were relieved from their heavy responsibility by the action of the people; the whole Assembly appealed to the Dictator and besought him with earnest entreaties that he would for their sakes forego inflicting punishment on the Master of the Horse. When the tribunes saw the turn matters had taken they added their entreaties also, and implored the Dictator to make allowance for human frailty and to pardon Q. Fabius for an error natural to youth, for he had already suffered punishment enough. And now the youth himself, and even his father, abandoning all further contention, fell on their knees and sought to turn aside the Dictator's anger. At last, when silence was restored, the Dictator spoke. "This, Quirites," he said, "is as it should be. Military discipline has conquered, the supreme authority of government has prevailed; it was a question whether either would survive this day's proceedings. Q. Fabius is not acquitted of guilt in having fought against his commander's orders, but though condemned as guilty he is restored as a free gift to the people of Rome, to the authority of the tribunes, who protected him not by exercising their legal powers but by their intercession. Live, Q. Fabius; happier now in the unanimous desire of your fellow-citizens to defend you than in the hour of exultation after your victory! Live, though you dared to do what even your father, had he been in the place of Papirius, could not have pardoned! As for me, you shall be restored to favour whenever you please. But to the Roman people to whom you owe your life you can make no better return than to show that you have this day learnt the lesson of submission to lawful commands in peace and in war." After announcing that he would no

longer detain the Master of the Horse he left the rostra. The joyful senate, the still more joyful people, flocked round the Dictator and the Master of the Horse, and congratulated them on the result and then escorted them to their homes. It was felt that military authority had been strengthened no less by the peril in which Q. Fabius had been placed than by the terrible punishment of young Manlius. It so happened that on each occasion on which the Dictator was absent from the army, the Samnites showed increased activity. M. Valerius, however, the second in command, who was in charge of the camp, had the example of Q. Fabius before his eyes and dreaded the stern Dictator's anger more than an attack from the enemy. A foraging party were ambushed and cut to pieces, and it was commonly believed that they could have been relieved from the camp had not the commanding officer been deterred by the peremptory orders he had received. This incident still further embittered the feelings of the soldiers who were already incensed against the Dictator owing to his implacable attitude towards Fabius and then to his having pardoned him at the request of the people after having refused to do so on their intercession.

[8.36]After placing L. Papirius Crassus in command of the City and prohibiting Q. Fabius from any action in his capacity of Master of the Horse, the Dictator returned to the camp. His arrival was not viewed with much pleasure by his own men, nor did it create any alarm amongst the enemy. For the very next day, either unaware of his presence or regarding it of small importance whether he were present or absent, they marched towards the camp in order of battle. And yet so much depended upon that one man, L. Papirius, such care did he show in choosing his ground and posting his reserves, so far did he strengthen his force in every way that military skill could suggest, that if the general's tactics had been backed up by the goodwill of the troops it was considered absolutely certain that the Samnite war would that day have been brought to a close. As it was, the soldiers showed no energy; they deliberately threw the victory away that their commander's reputation might be damaged. The Samnites lost a larger proportion of killed, the Romans had more wounded. The quick eye of the general saw what prevented his success, and he realised that he must curb his temper and soften his sternness by greater affability. He went round the camp accompanied by his staff and visited the wounded, putting his head inside their

tents and asking them how they were getting on, and commending them individually by name to the care of his staff officers, the military tribunes, and prefects. In adopting this course, which naturally tended to make him popular, he showed so much tact that the feelings of the men were much sooner won over to their commander now that their bodies were being properly looked after. Nothing conduced more to their recovery than the gratitude they felt for his attention. When the health of the army was completely restored he gave battle to the enemy, both he and his men feeling quite confident of victory, and he so completely defeated and routed the Samnites that this was the last occasion on which they ventured on a regular engagement with the Dictator. After this the victorious army advanced in every direction where there was any prospect of plunder, but wherever they marched they found no armed force; they were nowhere openly attacked or surprised from ambush. They showed all the greater alertness because the Dictator had issued an order that the whole of the spoil was to be given to the soldiers; the chance of private gain stimulated their warlike spirit quite as much as the consciousness that they were avenging the wrongs of their country. Cowed by these defeats, the Samnites made overtures for peace and gave the Dictator an undertaking to supply each of the soldiers with a set of garments and a year's pay. On his referring them to the senate they replied that they would follow him to Rome and trust their cause solely to his honour and rectitude. The army was thereupon withdrawn from Samnium.

[8.37]The Dictator made a triumphal entry into the City, and as he wished to lay down his office, he received instructions from the senate before doing so to conduct the consular elections. The new consuls were C. Sulpicius Longus (for the second time) and Q. Aemilius Cerretanus. The Samnites did not succeed in obtaining a permanent peace, as they could not agree on the conditions; they took back with them a truce for one year. But even this was soon broken, for when they heard that Papirius had resigned they were eager to renew hostilities. The new consuls - some authorities give Aulus instead of Aemilius for the second consul - had on their hands a fresh enemy, the Apulians, in addition to the revolt of the Samnites. Armies were despatched against both; the Samnites were allotted to Sulpicius, the Apulians to Aemilius. Some writers assert that it was not against the Apulians that the campaign was undertaken, but for

the protection of their allies against the wanton aggressions of the Samnites. The circumstances of that people, however, who were hardly able to defend themselves, make it more probable that they had not attacked the Apulians but that both nations were united in hostilities against Rome. Nothing noteworthy took place; the districts of both Samnium and Apulia were laid waste, but neither in the one nor the other was the enemy met with. At Rome the citizens were one night suddenly aroused from sleep by an alarm so serious that the Capitol, the Citadel, the walls, and gates were filled with troops. The whole population was called to arms, but when it grew light neither the author nor the cause of the excitement was discovered. In this year M. Flavius, a tribune of the plebs, brought before the people a proposal to take measures against the Tusculans, "by whose counsel and assistance the peoples of Velitrae and Privernum had made war against the people of Rome." The people of Tusculum came to Rome with their wives and children in mourning garb, like men awaiting trial, and went from tribe to tribe prostrating themselves before the tribesmen. The compassion which their attitude called out went further to procure their pardon than their attempts to exculpate themselves. All the tribes, with the exception of the Pollian tribe, vetoed the proposal. That tribe voted for a proposal that all the adult males should be scourged and beheaded, and their wives and children sold into slavery. Even as late as the last generation the Tusculans retained the memory of that cruel sentence, and their resentment against its authors showed itself in the fact that the Papirian tribe (in which the Tusculans were afterwards incorporated) hardly ever voted for any candidate belonging to the Pollian tribe.

[8.38]Q. Fabius and L. Fulvius were the consuls for the following year. The war in Samnium was threatening to take a more serious turn, as it was stated that mercenary troops had been hired from the neighbouring states. The apprehensions created led to the nomination of A. Cornelius Arvina as Dictator, with M. Fabius Ambustus as Master of the Horse. These commanders carried out the enrolment with unusual strictness, and led an exceptionally fine army into Samnium. But although they were on hostile territory, they exercised as little caution in choosing the site for their camp as though the enemy had been at a great distance. Suddenly the Samnite legions advanced with such boldness that they encamped with their

rampart close to the Roman outposts. The approach of night prevented them from making an immediate attack; they disclosed their intention as soon as it grew light the next morning. The Dictator saw that a battle was nearer than he expected, and he determined to abandon a position which would hamper the courage of his men. Leaving a number of watch-fires alight to deceive the enemy, he silently withdrew his troops, but owing to the proximity of the camps his movement was not unobserved. The Samnite cavalry immediately followed on his heels but refrained from actual attack till it grew lighter, nor did the infantry emerge from their camp before daybreak. As soon as they could see, the cavalry began to harass the Roman rear, and by pressing upon them where difficult ground had to be crossed, considerably delayed their advance. Meantime the infantry had come up, and now the entire force of the Samnites was pressing on the rear of the column.

As the Dictator saw that no further advance was possible without heavy loss, he ordered the ground he was holding to be measured out for a camp. But as the enemy's cavalry was gradually enveloping them, it was impossible to procure wood for the stockade or to commence their entrenchment. Finding that to go forward and to remain where he was were equally out of the question, the Dictator ordered the baggage to be removed from the column and collected and the line of battle formed. The enemy formed also into line, equally matched in courage and in strength. Their confidence was increased by their attributing the retirement of the Romans to fear and not, as was actually the case, to the disadvantageous position of their camp. This made the fight for some considerable time an even one, though the Samnites had long been unaccustomed to stand the battle-shout of the Romans. We read that actually from nine o'clock till two in the afternoon the contest was maintained so equally on both sides that the shout which was raised at the first onset was never repeated, the standards neither advanced nor retreated, in no direction was there any giving way. They fought, each man keeping his ground, pressing forward with their shields, neither looking back nor pausing for breath. Their noise and tumult never grew weaker, the fighting went on perfectly steadily, and it looked as if it would only be terminated by the complete exhaustion of the combatants or the approach of night. By this time the men were beginning to lose their strength and the sword its vigour, whilst the generals were

baffled. A troop of Samnite cavalry, who had ridden some distance round the Roman rear, discovered that their baggage was lying at a distance from the combatants without any guard or protection of any kind. On learning this the whole of the cavalry rode up to it eager to secure the plunder. A messenger in hot haste reported this to the Dictator, who remarked: "All right, let them encumber themselves with spoil." Then the soldiers one after another began to exclaim that their belongings were being plundered and carried off. The Dictator sent for the Master of the Horse. "Do you see," he said, "M. Fabius, that the enemy's cavalry have left the fight? They are hampering and impeding themselves with our baggage. Attack them whilst they are scattered, as plundering parties always are; you will find very few of them in the saddle, very few with swords in their hands. Cut them down whilst they are loading their horses with spoil, with no weapons to defend themselves, and make it a bloody spoil for them! I will look after the infantry battle, the glory of the cavalry victory shall be yours."

[8.39]The cavalry force, riding in perfect order, charged the enemy whilst scattered and hampered by their plunder and filled the whole place with carnage. Incapable of either resistance or flight they were cut down amongst the packages which they had thrown away and over which their startled horses were stumbling. After almost annihilating the enemy's cavalry, M. Fabius led his cavalry by a short circuit round the main battle and attacked the Samnite infantry from behind. The fresh shouting which arose in that direction threw them into a panic, and when the Dictator saw the men in front looking round, the standards getting into confusion, and the whole line wavering, he called upon his men and encouraged them to fresh efforts; he appealed to the military tribunes and first centurions by name to join him in renewing the fight. They again raised the battle-shout and pressed forward, and wherever they advanced they saw more and more demoralisation amongst the enemy. The cavalry were now within view of those in front, and Cornelius, turning round to his maniples, indicated as well as he could by voice and hand that he recognised the standards and bucklers of his own cavalry. No sooner did they see and hear them than, forgetting the toil and travail they had endured for almost a whole day, forgetting their wounds, and as eager as though they had just emerged fresh from their camp after receiving the signal for battle, they flung themselves on the enemy.

The Samnites could no longer bear up against the terrible onset of the cavalry behind them and the fierce charge of the infantry in front. A large number were killed between the two, many were scattered in flight. The infantry accounted for those who were hemmed in and stood their ground, the cavalry created slaughter among the fugitives; amongst those killed was their commander-in-chief.

This battle completely broke down the resistance; so much so that in all their councils peace was advocated. It could not, they said, be a matter of surprise that they met with no success in an unblest war, undertaken in defiance of treaty obligations, where the gods were more justly incensed against them than men. That war would have to be expiated and atoned for at a great cost. The only question was whether they should pay the penalty by sacrificing the few who were guilty or shedding the innocent blood of all. Some even went so far as to name the instigators of the war. One name, especially, was generally denounced, that of Brutulus Papius. He was an aristocrat and possessed great influence, and there was not a shadow of doubt that it was he who had brought about the breach of the recent truce. The praetors found themselves compelled to submit a decree which the council passed, ordering Brutulus Papius to be surrendered and all the prisoners and booty taken from the Romans to be sent with him to Rome, and further that the redress which the fetials had demanded in accordance with treaty-rights should be made as law and justice demanded. Brutulus escaped the ignominy and punishment which awaited him by a voluntary death, but the decree was carried out; the fetials were sent to Rome with the dead body, and all his property was surrendered with him. None of this, however, was accepted by the Romans beyond the prisoners and whatever articles amongst the spoil were identified by the owners; so far as anything else was concerned, the surrender was fruitless. The senate decreed a triumph for the Dictator.

[8.40]Some authorities state that this war was managed by the consuls and it was they who celebrated the triumph over the Samnites, and further that Fabius invaded Apulia and brought away great quantities of spoil. There is no discrepancy as to A. Cornelius having been Dictator that year, the only doubt is whether he was appointed to conduct the war, or whether, owing to the serious illness of L. Plautius, the praetor, he was appointed to give the signal for starting the chariot races, and after discharging this not very noteworthy

function resigned office. It is difficult to decide which account or which authority to prefer. I believe that the true history has been falsified by funeral orations and lying inscriptions on the family busts, since each family appropriates to itself an imaginary record of noble deeds and official distinctions. It is at all events owing to this cause that so much confusion has been introduced into the records of private careers and public events. There is no writer of those times now extant who was contemporary with the events he relates and whose authority, therefore, can be depended upon.

BOOK 9: THE SECOND SAMNITE WAR - (321 - 304 B.C.)

[9.1]The following year (321 B.C.) was rendered memorable by the disaster which befell the Romans at Caudium and the capitulation which they made there. T. Veturius Calvinus and Spurius Postumius were the consuls. The Samnites had for their captain-general that year C. Pontius, the son of Herennius, the ablest statesman they possessed, whilst the son was their foremost soldier and commander. When the envoys who had been sent with the terms of surrender returned from their fruitless mission, Pontius made the following speech in the Samnite council: "Do not suppose that this mission has been barren of results. We have gained this much by it, whatever measure of divine wrath we may have incurred by our violation of treaty obligations has now been atoned for. I am perfectly certain that all those deities whose will it was that we should be reduced to the necessity of making the restitution which was demanded under the terms of the treaty, have viewed with displeasure the haughty contempt with which the Romans have treated our concessions. What more could we have done to placate the wrath of heaven or soften the resentment of men than we have done? The property of the enemy, which we considered ours by the rights of war, we have restored; the author of the war, whom we could not surrender alive, we gave up after he had paid his debt to nature, and lest any taint of guilt should remain with us we carried his possessions to Rome. What more, Romans, do I owe to you or to the treaty or to the gods who were invoked as witnesses to the treaty? What arbitrator am I to bring forward to decide how far your wrath, how far my punishment is to go? I am willing to accept any, whether it be a nation or a private individual. But if human law leaves no rights which the weak share with the stronger, I can still fly to the gods, the avengers of intolerable

tyranny, and I will pray them to turn their wrath against those for whom it is not enough to have their own restored to them and to be loaded also with what belongs to others, whose cruel rage is not satiated by the death of the guilty and the surrender of their lifeless remains together with their property, who cannot be appeased unless we give them our very blood to suck and our bowels to tear. A war is just and right, Samnites, when it is forced upon us; arms are blessed by heaven when there is no hope except in arms. Since then it is of supreme importance in human affairs what things men do under divine favour and what they do against the divine will, be well assured that, if in your former wars you were fighting against the gods even more than against men, in this war which is impending you will have the gods themselves to lead you."

[9.2]After uttering this prediction, which proved to be as true as it was reassuring, he took the field and, keeping his movements as secret as possible, fixed his camp in the neighbourhood of Caudium. From there he sent ten soldiers disguised as shepherds to Calatia, where he understood that the Roman consuls were encamped, with instructions to pasture some cattle in different directions near the Roman outposts. When they fell in with any foraging parties they were all to tell the same story, and say that the Samnite legions were in Apulia investing Luceria with their whole force and that its capture was imminent. This rumour had purposely been spread before and had already reached the ears of the Romans; the captured shepherds confirmed their belief in it, especially as their statements all tallied. There was no doubt but that the Romans would assist the Lucerians for the sake of protecting their allies and preventing the whole of Apulia from being intimidated by the Samnites into open revolt. The only matter for consideration was what route they would take. There were two roads leading to Luceria; one along the Adriatic coast through open country, the longer one of the two but so much the safer; the other and shorter one through the Caudine Forks. This is the character of the spot; there are two passes, deep, narrow, with wooded hills on each side, and a continuous chain of mountains extends from one to the other. Between them lies a watered grassy plain through the middle of which the road goes. Before you reach the plain you have to pass through the first defile and either return by the same path by which you entered or, if you go on, you must

make your way out by a still narrower and more difficult pass at the other end.

The Roman column descended into this plain from the first defile with its overhanging cliffs, and marched straight through to the other pass. They found it blocked by a huge barricade of felled trees with great masses of rock piled against them. No sooner did they become aware of the enemy's stratagem than his outposts showed themselves on the heights above the pass. A hasty retreat was made, and they proceeded to retrace their steps by the way they had come when they discovered that this pass also had its own barricade and armed men on the heights above. Then without any order being given they called a halt. Their senses were dazed and stupefied and a strange numbness seized their limbs. Each gazed at his neighbour, thinking him more in possession of his senses and judgment than himself. For a long time they stood silent and motionless, then they saw the consuls' tents being set up and some of the men getting their entrenching tools ready. Though they knew that in their desperate and hopeless plight it would be ridiculous for them to fortify the ground on which they stood still, not to make matters worse by any fault of their own they set to work without waiting for orders and entrenched their camp with its rampart close to the water. While they were thus engaged the enemy showered taunts and insults upon them, and they themselves in bitter mockery jeered at their own fruitless labour. The consuls were too much depressed and unnerved even to summon a council of war, for there was no place for either counsel or help, but the staff-officers and tribunes gathered round them, and the men with their faces turned towards their tents sought from their leaders a succour which the gods themselves could hardly render them.

[9.3]Night surprised them while they were lamenting over their situation rather than consulting how to meet it. The different temperaments of the men came out; some exclaimed: "Let us break through the barricades, scale the mountain slopes, force our way through the forest, try every way where we can carry arms. Only let us get at the enemy whom we have beaten for now nearly thirty years; all places will be smooth and easy to a Roman fighting against the perfidious Samnite." Others answered: "Where are we to go? How are we to get there? Are we preparing to move the mountains from their seat? How will you get at the enemy as long as these peaks hang over us? Armed and unarmed, brave and cowardly we are all alike

trapped and conquered. 'The enemy will not even offer us the chance of an honourable death by the sword, he will finish the war without moving from his seat.' Indifferent to food, unable to sleep, they talked in this way through the night. Even the Samnites were unable to make up their minds what to do under such fortunate circumstances. It was unanimously agreed to write to Herennius, the captain-general's father, and ask his advice. He was now advanced in years and had given up all public business, civil as well as military, but though his physical powers were failing his intellect was as sound and clear as ever. He had already heard that the Roman armies were hemmed in between the two passes at the Caudine Forks, and when his son's courier asked for his advice he gave it as his opinion that the whole force ought to be at once allowed to depart uninjured. This advice was rejected and the courier was sent back to consult him again. He now advised that they should every one be put to death. On receiving these replies, contradicting each other like the ambiguous utterances of an oracle, his son's first impression was that his father's mental powers had become impaired through his physical weakness. However, he yielded to the unanimous wish and invited his father to the council of war. The old man, we are told, at once complied and was conveyed in a wagon to the camp. After taking his seat in the council, it became clear from what he said that he had not changed his mind, but he explained his reasons for the advice he gave. He believed that by taking the course he first proposed, which he considered the best, he was establishing a durable peace and friendship with a most powerful people in treating them with such exceptional kindness; by adopting the second he was postponing war for many generations, for it would take that time for Rome to recover her strength painfully and slowly after the loss of two armies. There was no third course. When his son and the other chiefs went on to ask him what would happen if a middle course were taken, and they were dismissed unhurt but under such conditions as by the rights of war are imposed on the vanquished, he replied: "That is just the policy which neither procures friends nor rids us of enemies. Once let men whom you have exasperated by ignominious treatment live and you will find out your mistake. The Romans are a nation who know not how to remain quiet under defeat. Whatever disgrace this present extremity burns into their souls will rankle there for ever, and will allow them no rest till they have made you pay for it many times over."

[9.4]Neither of these plans was approved and Herennius was carried home from the camp. In the Roman camp, after many fruitless attempts had been made to break out and they found themselves at last in a state of utter destitution, necessity compelled them to send envoys to the Samnites to ask in the first instance for fair terms of peace, and failing that to challenge them to battle. Pontius replied that all war was at an end, and since even now that they were vanquished and captured they were incapable of acknowledging their true position, he should deprive them of their arms and send them under the yoke, allowing them to retain one garment each. The other conditions would be fair to both victors and vanquished. If they evacuated Samnium and withdrew their colonists from his country, the Roman and the Samnite would henceforth live under their own laws as sovereign states united by a just and honourable treaty. On these conditions he was ready to conclude a treaty with the consuls, if they rejected any of them he forbade any further overtures to be made to him. When the result was announced, such a universal cry of distress arose, such gloom and melancholy prevailed, that they evidently could not have taken it more heavily if it had been announced to them all that they must die on the spot. Then followed a long silence. The consuls were unable to breathe a word either in favour of a capitulation so humiliating or against one so necessary. At last L. Lentulus, of all the staff-officers the most distinguished, both by his personal qualities and the offices he had held, spoke: "I have often," he said, "heard my father, consuls, say that he was the only one in the Capitol who refused to ransom the City from the Gauls with gold, for the force in the Capitol was not invested and shut in with fosse and rampart, as the Gauls were too indolent to undertake that sort of work; it was therefore quite possible for them to make a sortie involving, perhaps, heavy loss, but not certain destruction. If we had the same chance of fighting, whether on favourable or unfavourable ground, which they had of charging down upon the foe from the Capitol, in the same way as the besieged have often made sorties against their besiegers, I should not fall behind my father's spirit and courage in the advice which I should give. To die for one's country is, I admit, a glorious thing, and as concerns myself I am ready to devote myself for the people and legions of Rome or to plunge into the midst of the enemy. But it is here that I behold my country, it is on this spot that all the legions which Rome possesses are gathered, and unless they wish to rush to

death for their own sakes, to save their honour, what else have they that they can save by their death. 'The dwellings of the City,' somebody may reply, 'and its walls, and that crowd of human beings who form its population.' Nay, on the contrary, all these things are not saved, they are handed over to the enemy if this army is annihilated. For who will protect them? A defenceless multitude of non-combatants, I suppose; as successfully as it defended them from the approach of the Gauls. Or will they implore the help of an army from Veii with Camillus at its head? Here and here alone are all our hopes, all our strength. If we save these we save our country, if we give these up to death we desert and betray our country. 'Yes,' you say, 'but surrender is base and ignominious.' It is; but true affection for our country demands that we should preserve it, if need be, by our disgrace as much as by our death. However great then the indignity, we must submit to it and yield to the compulsion of necessity, a compulsion which the gods themselves cannot evade! Go, consuls, give up your arms as a ransom for that State which your ancestors ransomed with gold!

[9.5]The consuls left to confer with Pontius. When the victor began to insist upon a treaty, they told him that a treaty could not possibly be made without the orders of the people nor without the fetials and the usual ceremonial. So that the convention of Claudium did not, as is commonly believed and as even Claudius asserts, take the form of a regular treaty. It was concluded through a *sponsio*, i.e. by the officers giving their word of honour to observe the conditions. For what need would there have been in the case of a treaty for any pledge from the officers or for any hostages, since in concluding a treaty the imprecation is always used: "By whosoever default it may come about that the said conditions are not observed, may Jupiter so smite that people as this swine is now struck by the fetials." The consuls, the staff-officers, the quaestors, and the military tribunes all gave their word on oath, and all their names are extant today, whereas if a regular treaty had been concluded no names but those of the two fetials would have survived. Owing to the inevitable delay in arranging a treaty, 600 equites were demanded as hostages to answer with their lives if the terms of the capitulation were not observed. Then a definite time was fixed for surrendering the hostages and sending the army, deprived of its arms, under the yoke. The return of the consuls with the terms of surrender renewed the grief and distress

in the camp. So bitter was the feeling that the men had difficulty in keeping their hands off those "through whose rashness," they said, "they had been brought into that place and through whose cowardice they would have to leave it in a more shameful plight than they had come. They had had no guides who knew the neighbourhood, no scouts had been thrown out, they had fallen blindly like wild animals into a trap." There they were, looking at each other, gazing sadly at the armour and weapons which were soon to be given up, their right hands which were to be defenceless, their bodies which were to be at the mercy of their enemies. They pictured to themselves the hostile yoke, the taunts and insulting looks of the victors, their marching disarmed between the armed ranks, and then afterwards the miserable progress of an army in disgrace through the cities of their allies, their return to their country and their parents, whither their ancestors had so often returned in triumphal procession. They alone, they said, had been defeated without receiving a single wound, or using a single weapon, or fighting a single battle, they had not been allowed to draw the sword or come to grips with the enemy; courage and strength had been given them in vain. While they were uttering these indignant protests, the hour of their humiliation arrived which was to make everything more bitter for them by actual experience than they had anticipated or imagined. First of all they were ordered to lay down their arms and go outside the rampart with only one garment each. The first to be dealt with were those surrendered as hostages who were taken away for safe keeping. Next, the lictors were ordered to retire from the consuls, who were then stripped of their paludamenta. This aroused such deep commiseration amongst those who a short time ago had been cursing them and saying that they ought to be surrendered and scourged, that every man, forgetting his own plight, turned away his eyes from such an outrage upon the majesty of state as from a spectacle too horrible to behold.

[9.6]The consuls were the first to be sent, little more than half-clothed, under the yoke, then each in the order of his rank was exposed to the same disgrace, and finally, the legionaries one after another. Around them stood the enemy fully armed, reviling and jeering at them; swords were pointed at most of them, and when they offended their victors by showing their indignation and resentment too plainly some were wounded and even killed. Thus were they marched under the yoke. But what was still harder to bear was that

after they had emerged from the pass under the eyes of the foe though, like men dragged up from the jaws of hell, they seemed to behold the light for the first time, the very light itself, serving only to reveal such a hideous sight as they marched along, was more gloomy than any shape of death. They could have reached Capua before nightfall, but not knowing how their allies would receive them, and kept back by a feeling of shame, they all flung themselves, destitute of everything, on the sides of the road near Capua. As soon as news of this reached the place, a proper feeling of compassion for their allies got the better of the inborn disdain of the Campanian; they immediately sent to the consuls their own insignia of office, the fasces and the lictors, and the soldiers they generously supplied with arms, horses, clothes, and provisions. As they entered Capua the senate and people came out in a body to meet them, showed them all due hospitality, and paid them all the consideration to which as individuals and as members of an allied state they were entitled. But all the courtesies and kindly looks and cheerful greetings of their allies were powerless to evoke a single word or even to make them lift up their eyes and look in the face the friends who were trying to comfort them. To such an extent did feelings of shame make their gloom and despondency all the heavier, and constrain them to shun the converse and society of men. The next day some young nobles were commissioned to escort them to the frontier. On their return they were summoned to the Senate-house, and in answer to inquiries on the part of the older senators they reported that they seemed to be much more gloomy and depressed than the day before; the column moved along so silently that they might have been dumb; the Roman mettle was cowed; they had lost their spirit with their arms; they saluted no man, nor did they return any man's salutation; not a single man had the power to open his mouth for fear of what was coming; their necks were bowed as if they were still beneath the yoke. The Samnites had won not only a glorious victory but a lasting one; they had not only captured Rome as the Gauls had done before them, but, what was a still more warlike exploit, they had captured the Roman courage and hardihood.

[9.7] While this report was being made and listened to with the greatest attention, and the name and greatness of Rome were being mourned over as though lost for ever, in the council of her faithful allies, Ofillius Calavius, the son of Ovus, addressed the senators. He

was a man of high birth and with a distinguished career and now venerable for his age. He is reported to have said: "The truth is far otherwise. That stubborn silence, those eyes fixed on the ground, those ears deaf to all consolation, that shame-faced shrinking from the light, are all indications of a terrible resentment fermenting in their hearts which will break out in vengeance. Either I know nothing of the Roman character or that silence will soon call forth amongst the Samnites cries of distress and groans of anguish. The memory of the capitulation of Caudium will be much more bitter to the Samnites than to the Romans. Whenever and wherever they meet each side will be animated by its own courage and the Samnites will not find the Caudine Forks everywhere. Rome was now aware of its disaster. The first information they received was that the army was blockaded, then came the more gloomy news of the ignominious capitulation. Immediately on receiving the first intelligence of the blockade they began to levy troops, but when they heard that the army had surrendered in such a disgraceful way, the preparations for relieving them were abandoned, and without waiting for any formal order the whole City presented the aspect of public mourning. The booths round the Forum were shut up; all public business in the Forum ceased spontaneously before the proclamation closing it was made; the senators laid aside their purple striped tunics and gold rings; the gloom amongst the citizens was almost greater than that in the army. Their indignation was not confined to the generals or the officers who had made the convention, even the innocent soldiers were the objects of resentment, they said they would not admit them into the City. But this angry temper was dispelled by the arrival of the troops; their wretched appearance awoke commiseration amongst the most resentful. They did not enter the City like men returning in safety after being given up for lost, but in the guise and with the expression of prisoners. They came late in the evening and crept to their homes, where they kept themselves so close that for some days not one of them would show himself in public or in the Forum. The consuls shut themselves up in privacy and refused to discharge any official functions with the exception of one which was wrung from them by a decree of the senate, namely, the nomination of a Dictator to conduct the elections. They nominated Q. Fabius Ambustus, with P. Aelius Paetus as Master of the Horse. Their appointment was found to be irregular, and they were replaced by M. Aemilius Papus as Dictator and L. Valerius Flaccus as Master of the Horse. Even they,

however, were not allowed to conduct the elections; the people were dissatisfied with all the magistrates of that year, and so matters reverted to an interregnum. Q. Fabius Maximus and M. Valerius Corvus were successively interreges, and the latter held the consular elections. Q. Publilius Philo and L. Papirius Cursor - the latter for the second time - were returned. The choice was universally approved, for all knew there were no more brilliant generals at that day.

[9.8] They entered upon the active duties of their office on the very day of their election, for so had the senate decreed, and after disposing of the business connected with their accession to office, they proceeded at once to introduce the subject of the capitulation of Caudium. Publilius, who was the presiding consul, called upon Spurius Postumius to speak. He rose in his place with just the same expression that he had worn when passing under the yoke, and began: "Consuls, I am quite aware that I have been called upon to speak first, not because I am foremost in honour, but because I am foremost in disgrace and hold the position not of a senator but of a man on his trial who has to meet the charge not only of an unsuccessful war but also of an ignominious peace. Since, however, you have not introduced the question of our guilt or punishment, I shall not enter upon a defence which in the presence of men not unacquainted with the mutability of human fortunes would not be a very difficult one to undertake. I will state in a few words what I think about the question before us, and you will be able to judge from what I say whether it was myself or your legions that I spared when I pledged myself to the convention, however shameful or however necessary it was. This convention, however, was not made by the order of the Roman people, and therefore the Roman people are not bound by it, nor is anything due to the Samnites under its terms beyond our own persons. Let us be surrendered by the fetials, stripped and bound; let us release the people from their religious obligations if we have involved them in any, so that without infringing any law human or divine we may resume a war which will be justified by the law of nations and sanctioned by the gods. I advise, that in the meantime the consuls enrol and equip an army and lead it forth to war, but that they do not cross the hostile frontier until all our obligations under the terms of surrender have been discharged. And you, immortal gods, I pray and beseech, that as it was not your will that the consuls Sp. Postumius and T. Veturius should wage a

successful war against the Samnites, you may at least deem it enough to have witnessed us sent under the yoke and compelled to submit to a shameful convention, enough to witness us surrendered, naked and in chains, to the enemy, taking upon our heads the whole weight of his anger and vengeance! May it be in accordance with your will that the legions of Rome under fresh consuls should wage war against the Samnites in the same way in which all wars were waged before we were consuls!" When he finished speaking, such admiration and pity were felt for him that they could hardly think that it was the same Sp. Postumius who had concluded such a disgraceful peace. They viewed with the utmost sadness the prospect of such a man suffering at the hands of the enemy such terrible punishment as he was sure to meet with, enraged as they would be at the rupture of the peace. The whole House expressed in terms of the highest praise their approval of his proposal. They were beginning to vote on the question when two of the tribunes of the plebs, L. Livius and Q. Maelius, entered a protest which they afterwards withdrew. They argued that the people as a whole would not be discharged from their religious obligation by this surrender unless the Samnites were placed in the same position of advantage which they held at Caudium. Further, they said they did not deserve any punishment for having saved the Roman army by undertaking to procure peace, and they urged as a final reason that as they, the tribunes, were sacrosanct and their persons inviolable they could not be surrendered to the enemy or exposed to any violence.

[9.9]To this Postumius replied: "In the meanwhile, surrender us, whom no inviolability protects and whose surrender will violate no man's conscience. Afterwards you will surrender those 'sacrosanct' gentlemen also as soon as their year of office expires, but if you take my advice you will see that before they are surrendered they are scourged in the Forum by way of paying interest for a punishment that will have been delayed. Why, who is so ignorant of fetial law as not to see that these men are saying this, not because it represents the fact but to prevent their being surrendered? I do not deny, senators, that where the pledged words of men are held to possess a binding force only second to the sanctions of religion, then such undertakings as we have given are as sacred as formal treaties. But I do say that without the express order of the people nothing can be ratified which can bind the people. Suppose the Samnites, in the same spirit of insolent pride in which they extorted this capitulation from

us, had compelled us to recite the formula for the surrender of cities, would you say, tribunes, that the Roman people was surrendered and that this City with its shrines and temples, its territory, and its waters had become the property of the Samnites? I say no more about surrender because what we are considering is the pledge we gave in the capitulation. Well now, suppose we had given a pledge that the Roman people would abandon this City, would burn it, would no longer have its own magistrates and senates and laws, but would live under the rule of kings. 'Heaven forbid!' you say. Yes, but the binding force of a capitulation is not lightened by the humiliating nature of its terms. If the people can be bound by any article, it can by all. The point which some consider important, namely whether it is a consul or a Dictator or a praetor who has given the undertaking is of no weight whatever. The Samnites themselves made this clear, for it was not enough for them that the consuls pledged themselves, they compelled the staff-officers, the quaestors, and the military tribunes to do the same.

"Now no one need say to me, 'Why did you pledge yourself in that way, seeing that a consul has no right to do so and you were not in a position to promise them a peace of which you could not guarantee the ratification, or to act on behalf of the people when they had given you no mandate to do so?' Nothing that happened at Caudium, senators, was dictated by human prudence; the gods deprived both the enemy's commanders and your own of their senses. We did not exercise sufficient caution in our various movements, they in their folly threw away a victory when they had won through our folly. They hardly felt safe on the very ground which gave them their victory, such a hurry were they in to agree to any conditions if only they could deprive of their arms men who were born to arms. If they had been in their senses, would they have had any difficulty in sending envoys to Rome whilst they were fetching an old man from his home to advise them? Was it impossible for them to enter into negotiations with the senate and with the people about securing peace and making a treaty? It is a three days' journey for lightly-equipped horsemen, and in the meantime there would have been an armistice until the envoys returned bringing either peace or the certainty of their victory. Then and then only would there have been a binding agreement, because we should have made it by order of the people. But you would not have made such an order, nor should we have given such a pledge. It

was not the will of heaven that there should be any other result than this, namely, that the Samnites should be vainly deluded by a dream too delightful for their minds to grasp, that the same Fortune which had imprisoned our army should also release it, that an illusory victory should be rendered futile by a still more illusory peace, and that stipulations should be brought in, binding on none but those who actually made them. For what share have you, senators, what share has the people in this business? Who can call you to account, who can say that you have deceived him? The enemy? You have given no pledge to the enemy. Any fellow-citizen? You have not empowered any fellow-citizen to give a pledge on your behalf. You are not in any way involved with us, for you have given us no mandate; you are not answerable to the Samnites, for you have had no dealings with them. It is we who are answerable, pledged as debtors and quite able to discharge the debt in respect of what is our own, which we are prepared to pay, that is, our own persons and lives. On these let them wreak their vengeance, for these let them sharpen their swords and their rage. As for the tribunes, you ought to consider whether it is possible for them to be surrendered at once, or whether it ought to be deferred, but as for us, T. Veturius and the rest of you who are concerned, let us in the meantime offer these worthless lives of ours in discharge of our bond, and by our deaths set free the arms of Rome for action."

[9.10]Both the speech and the speaker produced a great impression on all who heard him, including the tribunes, who were so far influenced by what they had heard that they formally placed themselves at the disposal of the senate. They immediately resigned their office and were handed over to the fetials to be conducted with the rest to Caudium. After the senate had passed their resolution, it seemed as though the light of day was once more shining on the State. The name of Postumius was in all men's mouths, he was extolled to the skies, his conduct was put on a level with the self-sacrifice of P. Decius and other splendid deeds of heroism. It was through his counsel and assistance, men said, that the State had found its way out of a dishonourable and guilty peace; he was exposing himself to the rage of the enemy and all the tortures they could inflict as an expiatory victim for the Roman people. All eyes were turned to arms and war; "shall we ever be allowed," they exclaimed, "to meet the Samnites in arms?" Amidst this blaze of angry excitement and

thirst for vengeance, a levy was made and nearly all re-enlisted as volunteers. Nine legions were formed out of the former troops, and the army marched to Caudium. The fetials went on in advance, and on arriving at the city gate they ordered the garment to be stripped off from those who had made the capitulation and their arms to be tied behind their backs. As the apparitor, out of respect for Postumius' rank, was binding his cords loosely, "Why do you not," he asked, "draw the cord tight that the surrender may be made in due form?" When they had entered the council chamber and reached the tribunal where Pontius was seated, the fetial addressed him thus: "Forasmuch as these men have, without being ordered thereto by the Roman people, the Quirites, given their promise and oath that a treaty shall be concluded and have thereby been guilty of high crime and misdemeanour, I do herewith make surrender to you of these men, to the end that the Roman people may be absolved from the guilt of a heinous and detestable act." As the fetial said this Postumius struck him as hard as he could with his knee, and in a loud voice declared that he was a Samnite citizen, that he had violated the law of nations in maltreating the fetial who, as herald, was inviolable, and that after this the Romans would be all the more justified in prosecuting the war.

[9.11]Pontius replied: "I shall not accept this surrender of yours nor will the Samnites regard it as valid. Why do you not, Spurius Postumius, if you believe in the existence of gods, either cancel the whole agreement or abide by what you have pledged yourself to. The Samnite people have a right to all those whom it held in its power, or in their stead it has a right to make peace with Rome. But why do I appeal to you? You are keeping your word as far as you can and rendering yourself as prisoner to your conqueror. I appeal to the Roman people. If they are dissatisfied with the convention of the Caudine Forks, let them place their legions once more between the passes which imprisoned them. Let there be no fraudulent dealing on either side, let the whole transaction be annulled, let them resume the arms which they delivered up at the capitulation, let them return to that camp of theirs, let them have everything that they had on the eve of their surrender. When that is done, then let them take a bold line and vote for war, then let the convention and the peace agreed to be repudiated. Let us carry on the war with the same fortune and on the same ground which we held before any mention was made of peace;

the Roman people will not then have any occasion to blame their consuls for pledges they had no right to give, nor shall we have any reason to charge the Roman people with any breach of faith.

"Will you never be at a loss for reasons why, after defeat, you should not abide by your agreements? You gave hostages to Porsena, afterwards you stole them away. You ransomed your city from the Gauls with gold, whilst they were in the act of receiving the gold they were cut down. You made peace with us on condition of our restoring your captured legions, you are now making that peace null and void. You always cloak your dishonest dealing under some specious pretext of right and justice. Does the Roman people not approve of its legions being saved at the cost of a humiliating peace? Then let it keep its peace to itself, only let it restore to the victor its captured legions. Such action would be in accord with the dictates of honour, with the faith of treaties, with the solemn proceedings of the fetials. But that you should secure what you stipulated for, the safety of thousands of your countrymen, whilst I am not to secure the peace which I stipulated for when I released them - is this what you Aulus Cornelius and you fetials call acting according to the law of nations? "As to those men whom you make believe to surrender I neither accept them nor do I regard them as surrendered, nor do I hinder them from returning to their countrymen, who are bound by a convention, the violation of which brings down the wrath of all the gods whose majesty is being trifled with. True, Spurius Postumius has just struck the herald fetial with his knee, then wage war! Of course the gods will believe that Postumius is a Samnite citizen not a Roman, and that it is by a Samnite citizen that a Roman herald has been maltreated, and that for that reason you are justified in making war upon us. It is sad to think that you feel no shame in exposing this mockery of religion to the light of day, and that old men of consular rank should invent excuses for breaking their word which even children would think beneath them. Go, lictor, remove the bonds from the Romans, let none of them be hindered from departing where they please." Thus set free they returned to the Roman camp, their personal obligations and possibly those of the State having been discharged.

[9.12]The Samnites clearly saw that instead of the peace which they had so arrogantly dictated, a most bitter war had commenced. They not only had a foreboding of all that was coming but they almost saw

it with their eyes; now when it was too late they began to view with approval the two alternatives which the elder Pontius had suggested. They saw that they had fallen between the two, and by adopting a middle course had exchanged the secure possession of victory for an insecure and doubtful peace. They realised that they had lost the chance of doing either a kindness or an injury, and would have to fight with those whom they might have got rid of for ever as enemies or secured for ever as friends. And though no battle had yet given either side the advantage, men's feelings had so changed that Postumius enjoyed a greater reputation amongst the Romans for his surrender than Pontius possessed amongst the Samnites for his bloodless victory. The Romans regarded the possibility of war as involving the certainty of victory, whilst the Samnites looked upon the renewal of hostilities by the Romans as equivalent to their own defeat. In the meantime, Satricum revolted to the Samnites. (The latter made a sudden descent on Fregellae and succeeded in occupying it in the night, assisted, there is no doubt, by the Satricans. Mutual fear kept both the Samnites and the Fregellans quiet till daylight, with the return of light the battle began. For some time the Fregellans held their ground, for they were fighting for their hearths and homes and the noncombatant population assisted them from the roofs of the houses. At length the assailants gained the advantage by adopting a ruse. A proclamation was made that all who laid down their arms should depart unhurt, and the defenders did not interfere with the crier who made it. Now that there were hopes of safety they fought with less energy and in all directions arms were thrown away. Some, however, showed more determination and made their way fully armed through the opposite gate. Their courage proved a better protection than the timid credulity of the others, for these were hemmed in by the Samnites with a ring of fire, and in spite of their cries for mercy were burnt to death. After arranging their respective commands, the consuls took the field. Papirius marched into Apulia as far as Luceria, where the equites who had been given as hostages at Caudium were interned; Publilius remained in Samnium to oppose the legions who had been at Caudium. His presence made the Samnites uncertain how to act; they could not march to Luceria for fear of exposing themselves to a rear attack, nor did they feel satisfied to remain where they were, as Luceria might in the meantime be lost. They decided that the best course would be to try their fortune and hazard a battle with Publilius.

[9.13]Accordingly they drew up their forces for action. Before engaging them Publius thought he ought to address a few words to his men, and ordered the Assembly to be sounded. There was such an eager rush, however, to the general's tent, and such loud shouts were raised in all directions as the men clamoured to be led to battle, that none of the general's address was heard; the memory of their recent disgrace was quite enough of itself to stimulate every man to fight. They strode rapidly into battle, urging the standard-bearers to move faster, and, to avoid any delay in having to hurl their javelins, they flung them away as if at a given signal and rushed upon the enemy with naked steel. There was no time for the commander's skill to be shown in maneuvering his men or posting his reserves, it was all carried through by the enraged soldiers, who charged like madmen. The enemy were not only routed, they did not even venture to stay their flight at their camp, but went in scattered parties in the direction of Apulia. Eventually they rallied and reached Luceria in a body. The same rage and fury which had carried the Romans through the midst of the enemy hurried them on to the Samnite camp, and more carnage took place there than on the battle-field. Most of the plunder was destroyed in their excitement. The other army under Papirius had marched along the coast and reached Arpi. The whole of the country through which he passed was peaceably disposed, an attitude which was due more to the injuries inflicted by the Samnites than to any services which the Romans had rendered. For the Samnites used to live at that day in open hamlets among the mountains, and they were in the habit of making marauding incursions into the low country and the coastal districts. Living the free open-air life of mountaineers themselves they despised the less hardy cultivators of the plains who, as often happens, had developed, a character in harmony with their surroundings. If this tract of country had been on good terms with the Samnites, the Roman army would either have failed to reach Arpi or they would have been unable to obtain provisions on their route, and so would have been cut off from supplies of every kind. Even as it was, when they had advanced to Luceria both besieged and besiegers were suffering from scarcity of provisions. The Romans drew all their supplies from Arpi but in very small quantities, for, as the infantry were all employed in outpost and patrol duty and in the construction of the siege-works, the cavalry brought the corn from Arpi in their haversacks, and sometimes when they encountered the enemy they were compelled

to throw these away so as to be free to fight. The besieged, on the other hand, were obtaining their provisions and reinforcements from Samnium. But the arrival of the other consul, Publilius, with his victorious army led to their being more closely invested. He left the conduct of the siege to his colleague that he might be free to intercept the enemy's convoys on all sides. When the Samnites, who were encamped before Luceria, found that there was no hope of the besieged enduring their privations any longer, they were compelled to concentrate their whole strength and offer battle to Papirius.

[9.14]Whilst both sides were making their preparations for battle, a deputation from Tarentum appeared on the scene with a peremptory demand that both the Samnites and the Romans should desist from hostilities. They threatened that whichever side stood in the way of a cessation of arms, they would assist the other side against them. After hearing the demands which the deputation advanced and apparently attaching importance to what they had said, Papirius replied that he would communicate with his colleague. He then sent for him and employed the interval in hastening the preparations for battle. After talking over the matter, about which there could be no two opinions, he displayed the signal for battle. Whilst the consuls were engaged in the various duties, religious and otherwise, which are customary before a battle, the Tarentines waited for them, expecting an answer, and Papirius informed them that the pullarius had reported that the auspices were favourable and the sacrifice most satisfactory. "You see," he added, "that we are going into action with the sanction of the gods." He then ordered the standards to be taken up, and as he marched his men on to the field he expressed his contempt for a people of such egregious vanity, that whilst quite incapable of managing their own affairs, owing to domestic strife and discord, they thought themselves justified in prescribing to others how far they must go in making peace or war. The Samnites, on the other hand, had given up all thoughts of fighting, either because they were really anxious for peace or because it was their interest to appear so, in order to secure the goodwill of the Tarentines. When they suddenly caught sight of the Romans drawn up for battle, they shouted that they should act according to the instructions of the Tarentines; they would neither go down into the field nor carry their arms outside their rampart, they would rather let advantage be taken of them and bear whatever chance might bring them than be thought

to have flouted the peaceful advice of Tarentum. The consuls said that they welcomed the omen, and prayed that the enemy might remain in that mood so as not even to defend their rampart. Advancing in two divisions up to the entrenchments, they attacked them simultaneously on all sides. Some began to fill up the fosse, others tore down the abattis on the rampart and hurled the timber into the fosse. It was not their native courage only, but indignation and rage as well which goaded them on, smarting as they were from their recent disgrace. As they forced their way into the camp, they reminded one another that there were no Forks of Caudium there, none of those insuperable defiles where deceit had won an insolent victory over incaution, but Roman valour which neither rampart nor fosse could check. They slew alike those who fought and those who fled, armed and unarmed, slaves and freemen, young and old, men and beasts. Not a single living thing would have survived had not the consuls given the signal to retire, and by stern commands and threats driven the soldiers who were thirsting for blood out of the enemy's camp. As the men were highly incensed at this interruption to a vengeance which was so delightful, it was necessary to explain to them on the spot why they were prevented from carrying it further. The consuls assured them that they neither had yielded nor would yield to any man in showing their hatred of the enemy, and as they had been their leaders in the fighting so they would have been foremost in encouraging their insatiable rage and vengeance. But they had to consider the 600 equites who were being detained as hostages in Luceria, and to take care that the enemy, despairing of any quarter for themselves, did not wreak their blind rage on their captives, and destroy them before they perished themselves. The soldiers quite approved and were glad that their indiscriminate fury had been checked; they admitted that they must submit to anything rather than endanger the safety of so many youths belonging to the noblest families in Rome.

[9.15]The soldiers were dismissed to quarters, and a council of war was held to decide whether they should press on the siege of Luceria with their whole force or whether Publilius with his army should visit the Apulians and ascertain their intentions, about which there was considerable doubt. The latter was decided upon, and the consul succeeded in reducing a considerable number of their towns in one campaign, whilst others were admitted into alliance. Papirius, who

had remained behind to prosecute the siege of Luceria, soon found his expectations realised, for as all the roads by which supplies could be brought in were blocked, the Samnite garrison in Luceria was so reduced by famine that they sent to the Roman consul an offer to restore the hostages, for whose recovery the war had been undertaken, if he would raise the siege. He replied that they ought to have consulted Pontius, at whose instigation they had sent the Romans under the yoke, as to what terms he thought ought to be imposed on the vanquished. As, however, they preferred that equal terms should be fixed by the enemy rather than proposed by themselves, he told the negotiators to take back word to Luceria that all the arms, baggage, and beasts of burden together with the non-combatant population were to be left behind; the soldiers he should send under the yoke and leave them one garment apiece. In doing this, he said, he was subjecting them to no novel disgrace but simply retaliating upon them one which they had themselves inflicted. They were compelled to accept these terms and 7000 men were sent under the yoke. An enormous amount of booty was found in Luceria, all the arms and standards which had been taken at Caudium, and what created the greatest joy of all - they recovered the equites, the hostages whom the Samnites had placed there for security. Hardly any victory that Rome ever won was more noteworthy for the sudden change that it wrought in the circumstances of the republic, especially if, as I find stated in some annals, Pontius, the son of Herennius, the Samnite captain-general, was sent under the yoke with the rest, to expiate the disgrace he had inflicted on the consuls. I am not, however, so much surprised that uncertainty should exist with regard to this point as I am that any doubt should be felt as to who really captured Luceria; whether, that is to say, it was Lucius Cornelius, acting as Dictator, with L. Papirius Cursor as Master of the Horse, who achieved those successes at Caudium and afterwards - at Luceria, and as the one man who avenged the stem on Roman honour celebrated what I am inclined to think was, with the exception of that of F. Camillus, the most justly earned triumph that any down to that day had enjoyed, or whether the glory of that distinction should be attributed to the consuls and especially to Papirius. There is a further mistake here owing to doubts as to whether at the next consular elections Papirius Cursor was re-elected for the third time in consequence of his success at Luceria, together

with Q. Aulus Corretanus for the second time, or whether the name should really be L. Papirius Mugilanus.

[9.16]The authorities are agreed that the remainder of the war was conducted by the consuls. Aulus finished the campaign against the Frentanians in one battle. Their routed army fled to their city, and after giving hostages the consul received their surrender. The other consul was equally fortunate in his campaign against the Satricans. Though admitted to Roman citizenship they had revolted to the Samnites after the Caudine disaster and allowed them to garrison their city. But when the Roman army was close to their walls they sent an urgent request, couched in very humble terms, for peace. The consul replied that unless they handed over the Samnite garrison or put them to death they were not to go to him again. The severity of this reply created more terror amongst them than the actual presence of the Roman army. They repeatedly asked him by what means he thought that such a small and weak body as they were could attempt to use force against a strong and well-armed garrison. He told them to seek counsel from those through whose advice they had admitted the garrison in the first instance. After having with some difficulty obtained his permission to consult their senate, they returned to the city. There were two parties in the senate: the leaders of the one were the authors of the revolt from Rome, the other consisted of loyal citizens. Both, however, were equally anxious that every effort should be made to induce the consul to grant peace. As the Samnite garrison were not in the least prepared to stand a siege, they intended to evacuate the city the following night. The party who had introduced them thought it would be quite sufficient to let the consul know at what hour and by what gate they would leave; the others who had been all along opposed to their coming actually opened the gate to the consul that very night and admitted his troops into the city. The Samnites were unexpectedly attacked by a force concealed in the woods through which they were marching whilst the shouts of the Romans were resounding in all parts of the city; by this double act of treachery the Samnites were slain and Satricum captured within the space of one short hour and the consul became complete master of the situation. He ordered a strict inquiry to be made as to who were responsible for the revolt, and those who were found to be guilty were scourged and beheaded. The Satricans were deprived of their arms and a strong garrison was placed in the city.

The writers who tell us that it was under Papirius that Luceria was recovered and the Samnites sent under the yoke, go on to inform us that after the capture of Satricum he returned to Rome to celebrate his triumph. And indeed he was, undoubtedly, a man deserving of all praise for his soldierly qualities, distinguished as he was not only by intellectual force but also by his physical prowess. He was especially noted for his swiftness of foot, which gave him his cognomen; he is stated to have beaten all those of his own age in racing. Owing either to his great strength or the amount of exercise he took he had an enormous appetite. Under no commander did either horse or foot find service harder, for he himself never knew what it was to be tired. On one occasion the cavalry ventured to ask him to excuse them some of their fatigue duty in consideration of their having fought a successful action. He replied: "That you may not say I never excuse you anything, I excuse you from rubbing your horses' backs when you dismount." He was as much of a martinet to the allies of Rome as he was to his own countrymen. The commander of the Praenestine detachment had shown a lack of courage in bringing his men up from the rear into the fighting line. Papirius, walking in front of his tent, ordered him to be called up, and on his appearance told the lictor to get the axe ready. The Praenestine, on hearing this, stood paralysed with fear. "Come, lictor," said Papirius, "cut out this root; it is in the way of people as they walk." After almost frightening him to death with this threat, he dismissed him with a fine. No age has been more prolific in great and noble characters than the one in which he lived, and even in that age there was no one whose single arm did more to sustain the commonwealth. Had Alexander the Great, after subjugating Asia, turned his attention to Europe, there are many who maintain that he would have met his match in Papirius.

[9.17]Nothing can be thought to be further from my aim since I commenced this task than to digress more than is necessary from the order of the narrative or by embellishing my work with a variety of topics to afford pleasant resting-places, as it were, for my readers and mental relaxation for myself. The mention, however, of so great a king and commander induces me to lay before my readers some reflections which I have often made when I have proposed to myself the question, "What would have been the results for Rome if she had been engaged in war with Alexander?" "The things which tell most in war are the numbers and courage of the troops, the ability of the

commanders, and Fortune, who has such a potent influence over human affairs, especially those of war. Any one who considers these factors either separately or in combination will easily see that as the Roman empire proved invincible against other kings and nations, so it would have proved invincible against Alexander. Let us, first of all, compare the commanders on each side. I do not dispute that Alexander was an exceptional general, but his reputation is enhanced by the fact that he died while still young and before he had time to experience any change of fortune. Not to mention other kings and illustrious captains, who afford striking examples of the mutability of human affairs, I will only instance Cyrus, whom the Greeks celebrate as one of the greatest of men. What was it that exposed him to reverses and misfortunes but the length of his life, as recently in the case of Pompey the Great? Let me enumerate the Roman generals - not all out of all ages but only those with whom as consuls and Dictators Alexander would have had to fight - M. Valerius Corvus, C. Marcius Rutilus, C. Sulpicius, T. Manlius Torquatus, Q. Publilius Philo, L. Papirius Cursor, Q. Fabius Maximus, the two Decii, L. Volumnius, and Manlius Curius. Following these come those men of colossal mould who would have confronted him if he had first turned his arms against Carthage and then crossed over into Italy later in life. Every one of these men was Alexander's equal in courage and ability, and the art of war, which from the beginning of the City had been an unbroken tradition, had now grown into a science based on definite and permanent rules. It was thus that the kings conducted their wars, and after them the Junii and the Valerii, who expelled the kings, and in later succession the Fabii, the Quinctii, and the Cornелиi. It was these rules that Camillus followed, and the men who would have had to fight with Alexander had seen Camillus as an old man when they were little more than boys.

Alexander no doubt did all that a soldier ought to do in battle, and that is not his least title to fame. But if Manlius Torquatus had been opposed to him in the field, would he have been inferior to him in this respect, or Valerius Corvus, both of them distinguished as soldiers before they assumed command? Would the Decii, who, after devoting themselves, rushed upon the enemy, or Papirius Cursor with his vast physical courage and strength? Would the clever generalship of one young man have succeeded in baffling the whole senate, not to mention individuals, that senate of which he, who

declared that it was composed of kings, alone formed a true idea? Was there any danger of his showing more skill than any of those whom I have mentioned in choosing the site for his camp, or organising his commissariat, or guarding against surprises, or choosing the right moment for giving battle, or disposing his men in line of battle and posting his reserves to the best advantage? He would have said that it was not with Darius that he had to do, dragging after him a train of women and eunuchs, wrapped up in purple and gold, encumbered with all the trappings of state. He found him an easy prey rather than a formidable enemy and defeated him without loss, without being called to do anything more daring than to show a just contempt for the idle show of power. The aspect of Italy would have struck him as very different from the India which he traversed in drunken revelry with an intoxicated army; he would have seen in the passes of Apulia and the mountains of Lucania the traces of the recent disaster which befell his house when his uncle Alexander, King of Epirus, perished.

[9.18]I am speaking of Alexander as he was before he was submerged in the flood of success, for no man was less capable of bearing prosperity than he was. If we look at him as transformed by his new fortunes and presenting the new character, so to speak, which he had assumed after his victories, it is evident he would have come into Italy more like Darius than Alexander, and would have brought with him an army which had forgotten its native Macedonia and was rapidly becoming Persian in character. It is a disagreeable task in the case of so great a man to have to record his ostentatious love of dress; the prostrations which he demanded from all who approached his presence, and which the Macedonians must have felt to be humiliating, even had they been vanquished, how much more when they were victors; the terribly cruel punishments he inflicted; the murder of his friends at the banquet-table; the vanity which made him invent a divine pedigree for himself. What, pray, would have happened if his love of wine had become stronger and his passionate nature more violent and fiery as he grew older? I am only stating facts about which there is no dispute. Are we to regard none of these things as serious drawbacks to his merits as a commander? Or was there any danger of that happening which the most frivolous of the Greeks, who actually extol the Parthians at the expense of the Romans, are so constantly harping upon, namely, that the Roman

people must have bowed before the greatness of Alexander's name - though I do not think they had even heard of him - and that not one out of all the Roman chiefs would have uttered his true sentiments about him, though men dared to attack him in Athens, the very city which had been shattered by Macedonian arms and almost well in sight of the smoking ruins of Thebes, and the speeches of his assailants are still extant to prove this?

However lofty our ideas of this man's greatness, still it is the greatness of one individual, attained in a successful career of little more than ten years. Those who extol it on the ground that though Rome has never lost a war she has lost many battles, whilst Alexander has never fought a battle unsuccessfully, are not aware that they are comparing the actions of one individual, and he a youth, with the achievements of a people who have had 800 years of war. Where more generations are reckoned on one side than years on the other, can we be surprised that in such a long space of time there have been more changes of fortune than in a period of thirteen years? Why do you not compare the fortunes of one man with another, of one commander with another? How many Roman generals could I name who have never been unfortunate in a single battle! You may run through page after page of the lists of magistrates, both consuls and Dictators, and not find one with whose valour and fortunes the Roman people have ever for a single day had cause to be dissatisfied. And these men are more worthy of admiration than Alexander or any other king. Some retained the Dictatorship for only ten or twenty days; none held a consulship for more than a year; the levying of troops was often obstructed by the tribunes of the plebs; they were late, in consequence, in taking the field, and were often recalled before the time to conduct the elections; frequently, when they were commencing some important operation, their year of office expired; their colleagues frustrated or ruined their plans, some through recklessness, some through jealousy; they often had to succeed to the mistakes or failures of others and take over an army of raw recruits or one in a bad state of discipline. Kings are free from all hindrances; they are lords of time and circumstance, and draw all things into the sweep of their own designs. Thus, the invincible Alexander would have crossed swords with invincible captains, and would have given the same pledges to Fortune which they gave. Nay, he would have run greater risks than they, for the Macedonians had only one

Alexander, who was not only liable to all sorts of accidents but deliberately exposed himself to them, whilst there were many Romans equal to Alexander in glory and in the grandeur of their deeds, and yet each of them might fulfil his destiny by his life or by his death without imperilling the existence of the State.

[9.19]It remains for us to compare the one army with the other as regards either the numbers or the quality of the troops or the strength of the allied forces. Now the census for that period gives 250,000 persons. In all the revolts of the Latin league ten legions were raised, consisting almost entirely of city troops. Often during those years four or five armies were engaged simultaneously in Etruria, in Umbria (where they had to meet the Gauls as well), in Samnium, and in Lucania. Then as regards the attitude of the various Italian tribes - the whole of Latium with the Sabines, Volscians, and Aequi, the whole of Campania, parts of Umbria and Etruria, the Picentines, the Marsi, and Paeligni, the Vestinians and Apulians, to which we should add the entire coast of the western sea, with its Greek population, stretching from Thurii to Neapolis and Cumae, and from there as far as Antium and Ostia - all these nationalities he would have found to be either strong allies of Rome or reduced to impotence by Roman arms. He would have crossed the sea with his Macedonian veterans, amounting to not more than 30,000 men and 4000 cavalry, mostly Thracian. This formed all his real strength. If he had brought over in addition Persians and Indians and other Orientals, he would have found them a hindrance rather than a help. We must remember also that the Romans had a reserve to draw upon at home, but Alexander, warring on a foreign soil, would have found his army diminished by the wastage of war, as happened afterwards to Hannibal. His men were armed with round shields and long spears, the Romans had the large shield called the scutum, a better protection for the body, and the javelin, a much more effective weapon than the spear whether for hurling or thrusting. In both armies the soldiers fought in line rank by rank, but the Macedonian phalanx lacked mobility and formed a single unit; the Roman army was more elastic, made up of numerous divisions, which could easily act separately or in combination as required. Then with regard to fatigue duty, what soldier is better able to stand hard work than the Roman?

If Alexander had been worsted in one battle the war would have been over; what army could have broken the strength of Rome, when

Caudium and Cannae failed to do so? Even if things had gone well with him at first, he would often have been tempted to wish that Persians and Indians and effeminate Asiatics were his foes, and would have confessed that his former wars had been waged against women, as Alexander of Epirus is reported to have said when after receiving his mortal wound he was comparing his own fortune with that of this very youth in his Asiatic campaigns. When I remember that in the first Punic war we fought at sea for twenty-four years, I think that Alexander would hardly have lived long enough to see one war through. It is quite possible, too, that as Rome and Carthage were at that time leagued together by an old-standing treaty, the same apprehensions might have led those two powerful states to take up arms against the common foe, and Alexander would have been crushed by their combined forces. Rome has had experience of a Macedonian war, not indeed when Alexander was commanding nor when the resources of Macedon were still unimpaired, but the contests against Antiochus, Philip, and Perses were fought not only without loss but even without risk. I trust that I shall not give offence when I say that, leaving out of sight the civil wars, we have never found an enemy's cavalry or infantry too much for us, when we have fought in the open field, on ground equally favourable for both sides, still less when the ground has given us an advantage. The infantry soldier, with his heavy armour and weapons, may reasonably fear the arrows of Parthian cavalry, or passes invested by the enemy, or country where supplies cannot be brought up, but he has repulsed a thousand armies more formidable than those of Alexander and his Macedonians, and will repulse them in the future if only the domestic peace and concord which we now enjoy remains undisturbed for all the years to come.

[9.20]M. Foslius Flaccina and L. Plautius Venox were the next consuls. In this year several communities amongst the Samnites made overtures for a fresh treaty. These deputations, when admitted to an audience, prostrated themselves on the ground, and their humble attitude influenced the senate in their favour. Their prayers, however, were by no means so efficacious with the Assembly, to which they had been referred by the senate. Their request for a treaty was refused, but after they had spent several days in appealing to individual citizens, they succeeded in obtaining a two years' truce. In Apulia, too, the people of Teanum and Canusium, tired of the

constant ravages which they had suffered, gave hostages and surrendered to the consul, L. Plautius. It was in this year also that prefects were first appointed for Capua and a code of laws given to that city by the praetor, L. Furius. Both these boons were granted in response to a request from the Campanians themselves as a remedy for the deplorable state of things brought about by civic discord. Two new tribes were formed, the Ufentine and the Falernian. As the power of Apulia was declining, the people of Teate came to the new consuls, C. Junius Bubulcus and Q. Aemilius Barbula, to negotiate for a treaty. They gave a formal undertaking that throughout Apulia peace would be maintained towards Rome, and the confident assurances they gave led to a treaty being granted, not, however, as between two independent states; they were to acknowledge the suzerainty of Rome. After the subjugation of Apulia - for Forentum, also a place of considerable strength, had been captured by Junius - an advance was made into Lucania, and the consul, Aemilius, surprised and captured the city of Nerulum. The order introduced into Capua by the adoption of Roman institutions had become generally known amongst the states in alliance with Rome, and the Antiates asked for the same privilege; as they were without a fixed code of laws or any regular magistrates of their own. The patrons of the colony were commissioned by the senate to draw out a system of jurisprudence. Not only the arms of Rome but her laws were spreading far and wide.

[9.21]At the termination of their year of office the consuls did not hand the legions over to their successors, Sp. Nautius. and M. Popilius, but to the Dictator, L. Aemilius. In conjunction with M. Fulvius, the Master of the Horse, he commenced an attack on Saticula, and the Samnites at once seized this opportunity to renew hostilities. The Romans were threatened by a double danger; the Samnites, after getting a large army together, had entrenched themselves not far from the Roman camp in order to relieve their blockaded allies, whilst the Saticulans suddenly flung their gates open and made a tumultuous attack on the Roman outposts. The two bodies of combatants, each relying more on the help of the other than on its own strength, united in a regular attack on the Roman camp. Though both sides of the camp were attacked, the Dictator kept his men free from panic, owing to his having selected a position which could not easily be turned, and also because his men presented

two fronts. He directed his efforts mainly against those who had made the sortie, and drove them back, without much trouble, behind their walls. Then he turned his whole strength against the Samnites. Here the fighting was more sustained and the victory was longer in coming, but when it did come it was decisive. The Samnites were driven in disorder to their camp, and after extinguishing all the camp fires they departed silently in the night, having abandoned all hope of saving Saticula. By way of retaliation they invested Plistica, a city in alliance with Rome.

[9.22]The year having expired, the war was thenceforward carried on by the Dictator, Q. Fabius, whilst the new consuls, like their predecessors, remained in Rome. Fabius marched with reinforcements to Saticula to take over the army from Aemilius. The Samnites did not remain before Plistica; they had called up fresh troops from home, and trusting to their numbers they fixed their camp on the same ground as in the previous year and endeavoured to distract the Romans from their siege operations by a series of harassing attacks. This made the Dictator all the more determined to press the siege, as he considered that the reduction of the place would largely affect the character of the war; he treated the Samnites with comparative indifference, and merely strengthened the pickets on that side of the camp to meet any attack that might be made. This emboldened the Samnites; they rode up to the rampart day after day and allowed the Romans no rest. At last they almost got within the gates of the camp, when Q. Aulus, the Master of the Horse, without consulting the Dictator, charged them furiously from the camp with the whole of his cavalry and drove them off. Though this was only a desultory conflict, Fortune influenced it so largely that she inflicted a signal loss on both sides and brought about the deaths of both commanders. First, the Samnite general, indignant at being repulsed and put to flight from the ground over which he had ridden with such confidence, induced his cavalry by entreaties and encouragement to renew the combat. Whilst he was conspicuous amongst them as he urged on the fighting, the Master of the Horse levelled his lance and spurred his horse against him with such force that with one thrust he hurled him from his saddle dead. His men were not, as often happens, dismayed at their leader's fall. All who were round him flung their missiles on Aulus, who had incautiously ridden on amongst them, but they allowed the dead general's brother to have the special

glory of avenging his death. In a frenzy of grief and rage he dragged the Master of the Horse out of his saddle and slew him. The Samnites, amongst whom he had fallen, would have secured the body had not the Romans suddenly leaped from their horses, on which the Samnites were obliged to do the same. A fierce infantry fight raged round the bodies of the two generals in which the Roman was decidedly superior; the body of Aulus was rescued, and amidst mingled demonstrations of grief and joy the victors carried it into camp. After losing their leader and seeing the unfavourable result of the trial of strength in the cavalry action, the Samnites considered it useless to make any further efforts on behalf of Saticula and resumed the siege of Plistica. A few days later Saticula surrendered to the Romans and Plistica was carried by assault by the Samnites.

[9.23]The seat of war was now changed; the legions were marched from Samnium and Apulia to Sora. This place had revolted to the Samnites after putting the Roman colonists to death. The Roman army marched thither with all speed to avenge the death of their countrymen and to re-establish the colony. No sooner had they arrived before the place than the reconnoitring parties who had been watching the different routes brought in reports one after another that the Samnites were following and were now at no great distance. The consul marched to meet the enemy, and an indecisive action was fought at Lautulae. The battle was put a stop to, not by the losses or flight of either side but by night, which overtook the combatants while still uncertain whether they were victors or vanquished. I find in some authorities that this battle was unfavourable to the Romans, and that Q. Aulus, the Master of the Horse, fell there. C. Fabius was appointed Master of the Horse in his place and came with a fresh army from Rome. He sent orderlies in advance to consult the Dictator as to where he should take up his position and also as to the time and mode of attacking the enemy. After becoming thoroughly acquainted with the Dictator's plans, he halted his army in a place where he was well concealed. The Dictator kept his men for some days confined to their camp, as though he were enduring a siege rather than conducting one. At last he suddenly displayed the signal for battle. Thinking that brave men were more likely to have their courage stimulated when all their hopes depended upon themselves, he kept the arrival of the Master of the Horse and the fresh army concealed from his soldiers, and as though all their prospects of

safety depended upon their cutting their way out, he said to his men: "We have been caught in a position where we are shut in, and we have no way out unless we can open one by our victorious swords. Our standing camp is sufficiently protected by its entrenchments, but it is untenable owing to want of provisions; all the places from which supplies could be obtained have revolted, and even if the people were willing to help us the country is impassable for convoys. I shall not cheat your courage by leaving a camp here into which you can retire, as you did on the last occasion, without winning the victory. Entrenchments are to be protected by arms, not arms by entrenchments. Let those who think it worth their while to prolong the war hold their camp as a place of retreat; we must have regard to nothing but victory. Advance the standards against the enemy, and when the column is clear of the camp those who have been told off for the purpose will set it on fire. What you lose, soldiers, will be made up to you in the plunder of all the surrounding cities which have revolted." The Dictator's words, pointing to the dire necessity to which they were reduced, produced intense excitement, and rendered desperate by the sight of the burning camp - although the Dictator had only ordered some spots nearest to them to be set on fire - they charged like madmen, and at the first onset threw the enemy into confusion. At the same moment the Master of the Horse seeing the burning camp in the distance - the agreed signal - attacked the enemy in the rear. Thus hemmed in, the Samnites fled in all directions, each as best he could. A vast number, who had crowded together in their panic and were so close to one another that they could not use their weapons, were killed between the two armies. The enemy's camp was captured and plundered, and the soldiers, loaded with spoil, were marched back to their own camp. Even their victory did not give them so much pleasure as the discovery that with the exception of a small part spoilt by fire their camp was unexpectedly safe.

[9.24] They then returned to Sora, and the new consuls, M. Poetilius and C. Sulpicius, took over the army from the Dictator Fabius, after a large proportion of the veterans had been sent home and new cohorts brought up as reinforcements. Owing, however, to the difficulties presented by the position of the city, no definite plan of attack was yet formed; a long time would be needed to reduce it by famine, and to attempt to storm it would involve considerable risk.

In the midst of this uncertainty a Soran deserter left the town secretly and made his way to the Roman sentinels, whom he requested to conduct him at once to the consuls. On being brought before them he undertook to betray the place into their hands. When questioned as to the means by which he would carry out his undertaking, he laid his proposals before them and they appeared quite feasible. He advised them to remove their camp, which was almost adjoining the walls, to a distance of six miles from the town, this would lead to less vigilance on the part of those who were on outpost duty during the day and sentry duty at night. The following night, after some cohorts had been ordered to conceal themselves in some wooded spots close under the town, he conducted a picked body of ten men by a steep and almost inaccessible path into the citadel. Here a quantity of missile weapons had been collected, far more than would be required for the men who had been brought there, and in addition there were large stones, some lying about as is usual in craggy places, others piled in heaps by the townsmen to use for the defence of the place. When he had posted the Romans here and had pointed out to them a steep and narrow path leading up from the town, he said to them: "From this ascent even three armed men could keep back a multitude however large. You are ten in number, and what is more you are Romans, and the bravest of them. You have the advantage of position and you will be helped by the night, which by its obscurity makes everything look more terrible. I will now spread panic everywhere; you devote yourselves to holding the citadel." Then he ran down and created as great a tumult as he possibly could, shouting: "To arms, citizens! Help, help! The citadel has been seized by the enemy, hasten to its defence!" He kept up the alarm as he knocked at the doors of the principal men, he shouted it in the ears of all whom he met, of all who rushed out terror-struck into the streets. The panic which one man had started was carried by numbers through the city. The magistrates hurriedly sent men up to the citadel to find out what had happened, and when they heard that it was held by an armed force, whose numbers were grossly exaggerated, they gave up all hopes of recovering it. All quarters of the city were filled with fugitives; the gates were burst open by people who were only half awake and mostly without arms, and through one of these the Roman cohorts, roused by the shouting, rushed in and slew the frightened crowds who were thronging the streets. Sora was already captured when in the early dawn the consuls appeared and accepted the

surrender of those whom Fortune had spared from the nocturnal massacre. Amongst these two hundred and twenty-five were sent in chains to Rome as they were universally admitted to have been the instigators of the murder of the colonists and the revolt which followed. The rest of the population were left uninjured and a garrison was stationed in the town. All those taken to Rome were scourged and beheaded to the great satisfaction of the plebs, who felt it to be a matter of supreme importance that those who had been sent out in such large numbers as colonists should be safe wherever they were.

[9.25]After leaving Sora the consuls extended the war to the cities and fields of Ausonia, for the whole country had become restless owing to the presence of the Samnites after the battle of Lautulae. Plots were being hatched everywhere throughout Campania, even Capua was not free from disaffection, and it was found upon investigation that the movement had actually reached some of the principal men in Rome. It was, however, as in the case of Sora, through the betrayal of her cities that Ausonia fell under the power of Rome. There were three cities - Ausona, Menturnae, and Vescia - which some twelve young men belonging to the principal families there had mutually agreed to betray to the Romans. They came to the consuls and informed them that their people had long been looking forward to the arrival of the Samnites, and after they had heard of the battle of Lautulae, they looked upon the Romans as vanquished and many of the younger men had volunteered to serve with the Samnites. After the Samnites, however, had been driven out of their country they were wavering between peace and war, afraid to close their gates to the Romans lest they should provoke a war and yet determined to close them if a Roman army approached their city. In this state of indecision they would fall an easy prey. Acting on their advice, the Romans moved their camp into the neighbourhood of these cities, and at the same time soldiers were despatched, some fully armed, to occupy concealed positions near the walls, others in ordinary dress, with swords hidden under their togas, were to enter the cities through the open gates at the approach of daylight. As soon as the latter began to attack the guards the signal was given for the others to rush from their ambush. Thus the gates were secured, and the three towns were captured at the same time and by the same stratagem. As the generals were not there to direct the attack, there

was no check upon the carnage which ensued, and the nation of the Ausonians was exterminated, just as if they had been engaged in an internecine war, though there was no certain proof of their having revolted.

[9.26] During this year the Roman garrison at Luceria was treacherously betrayed, and the Samnites became masters of the place. The traitors did not go long unpunished. A Roman army was not far away, and the city, which lay in a plain, was taken at the first assault. The Lucerines and Samnites were put to death, no quarter being given, and such deep indignation was felt at Rome that when the question of sending fresh colonists to Luceria was under discussion in the senate many voted for the complete destruction of the city. Not only the bitter feeling towards a people who had been twice subdued but also the distance from Rome made them shrink from banishing their countrymen so far from home. However, the proposal to despatch colonists was adopted; 2500 were sent. Whilst disloyalty was thus manifesting itself everywhere, Capua also became the centre of intrigues amongst some of her principal men. When the matter came up in the senate, there was a general feeling that it ought to be dealt with at once. A decree was passed authorising the immediate opening of a court of inquiry, and C. Maenius was nominated Dictator to conduct the proceedings. M. Foslius was appointed Master of the Horse. The greatest alarm was created by this step, and the Calavii, Oviui, and Novii, who had been the ringleaders, did not wait to be denounced to the Dictator, but placed themselves beyond the reach of prosecution by what was undoubtedly a self-inflicted death. As there was no longer any matter for investigation at Capua, the inquiry was directed to those who were suspected in Rome. The decree was interpreted as authorising an inquiry, not in regard to Capua especially, but generally in respect of all who had formed cabals and conspiracies against the republic, including the secret leagues entered into by candidates for office. The inquiry began to embrace a wider scope both with respect to the nature of the alleged offences and the persons affected, and the Dictator insisted that the authority vested in him as criminal judge was unlimited. Men of high family were indicted, and no one was allowed to appeal to the tribunes to arrest proceedings. When matters had gone thus far, the nobility - not only those against whom information was being laid, but the order as a whole - protested that

the charge did not lie on the patricians, to whom the path to honours always lay open, unless it was obstructed by intrigue, but on the novi homines. They even asserted that the Dictator and the Master of the Horse were more fit to be put upon their trial than to act as inquisitors in cases where this charge was brought, and they would find that out as soon as they had vacated their office.

Under these circumstances, Maenius, more anxious to clear his reputation than to retain his office, came forward in the Assembly and addressed it in the following terms: "You are all cognisant, Quirites, of what my life has been in the past, and this very office which has been conferred upon me is a testimony to my innocence. There are men amongst the nobility - as to their motives it is better that you should form your own opinion than that I, holding the office I do, should say anything without proof - who tried their utmost to stifle this inquiry. When they found themselves powerless to do this they sought to shelter themselves, patricians though they were, behind the stronghold of their opponents, the tribunician veto, so as to escape from trial. At last, driven from that position, and thinking any course safer than that of trying to prove their innocence, they have directed their assaults against us, and private citizens have not been ashamed to demand the impeachment of the Dictator. Now, that gods and men alike may know that in trying to avoid giving an account of themselves these men are attempting the impossible, and that I am prepared to answer any charge and meet my accusers face to face, I at once resign my Dictatorship. And if the senate should assign the task to you, consuls, I beg that you will begin with M. Foslius and myself, so that it may be conclusively shown that we are protected from such charges, not by our official position, but by our innocence." He then at once laid down his office, followed by the Master of the Horse. They were the first to be tried before the consuls, for so the senate ordered, and as the evidence given by the nobles against them completely broke down, they were triumphantly acquitted. Even Publilius Philo, a man who had repeatedly filled the highest offices as a reward for his services at home and in the field, but who was disliked by the nobility, was put on his trial and acquitted. As usual, however, it was only whilst this inquisition was a novelty that it had strength enough to attack illustrious names; it soon began to stoop to humbler victims, until it was at length stifled by the very cabals and factions which it had been instituted to suppress.

[9.27]The rumour of these proceedings, and, still more, the expectation of a Campanian revolt, which had already been secretly organised recalled the Samnites from their designs in Apulia. They marched to Caudium, which from its proximity to Capua would make it easy for them, if the opportunity offered, to wrest that city from the Romans. The consuls marched to Caudium with a strong force. For some time both armies remained in their positions on either side of the pass, as they could only reach each other by a most difficult route. At length the Samnites descended by a short detour through open country into the flat district of Campania, and there for the first time they came within sight of each other's camp. There were frequent skirmishes, in which the cavalry played a greater part than the infantry, and the Romans had no cause to be dissatisfied with these trials of strength, nor with the delay which was prolonging the war. The Samnite generals, on the other hand, saw that these daily encounters involved daily losses, and that the prolongation of the war was sapping their strength. They decided, therefore, to bring on an action. They posted their cavalry on the two flanks of their army with instructions to keep their attention on their camp, in case it were attacked, rather than on the battle, which would be safe in the hands of the infantry. On the other side, the consul Sulpicius directed the right wing Poetilius the left. The Roman right was drawn up in more open order than usual, as the Samnites opposed to them were standing in thinly extended ranks in order either to surround the enemy or to prevent themselves from being surrounded. The left, which was in a much closer formation, was further strengthened by a rapid maneuver of Poetilius, who suddenly brought up into the fighting line the cohorts which were usually kept in reserve, in case the battle was prolonged. He then charged the enemy with his full strength. As the Samnite infantry were shaken by the weight of the attack their cavalry came to their support, and riding obliquely between the two armies were met by the Roman cavalry who charged them at a hard gallop and threw infantry and cavalry alike into confusion, until they had forced back the whole line in this part of the field. Sulpicius was taking his part with Poetilius in encouraging the men in this division, for on hearing the battle-shout raised he had ridden across from his own division, which was not yet engaged. Seeing that the victory was no longer doubtful here he rode back to his post with his 1200 cavalry, but he found a very different condition of things there, the Romans had been driven from their ground and

the victorious enemy were pressing them hard. The presence of the consul produced a sudden and complete change, the courage of the men revived at the sight of their general, and the cavalry whom he had brought up rendered an assistance out of all proportion to their numbers, whilst the sound, followed soon by the sight of the success on the other wing, re-animated the combatants to redouble their exertions. From this moment the Romans were victorious along the whole line, and the Samnites abandoning all further resistance, were all killed or taken prisoners, with the exception of those who succeeded in escaping to Maleventum, now called Beneventum. Their loss in prisoners and slain is stated by the chroniclers to have amounted to 30,000.

[9.28]After this great victory the consuls advanced to Bovianum, which they proceeded to invest. They remained there in winter quarters until C. Poetilius, who had been named Dictator with M. Foslius as Master of the Horse, took over the army from the new consuls, L. Papirius Cursor, consul for the fifth time, and C. Junius Bubulcus, for the second time. On learning that the citadel of Fregellae had been captured by the Samnites, he raised the siege of Bovianum and marched to Fregellae. The place was retaken without fighting, for the Samnites evacuated it in the night, and after leaving a strong garrison there, the Dictator returned to Campania with the main object of recovering Nola. At his approach the whole of the Samnite population and the native peasantry retired within the walls. After examining the position of the city, he gave orders for all the buildings outside the wall - and there was a considerable population in the suburbs - to be destroyed in order to render the approach easier. Not long afterwards, Nola was taken, either by the Dictator or by the consul, C. Junius, for both accounts are given. Those who give the credit of the capture to the consul state that Atina and Calatia were also taken by him, and they explain the appointment of Poetilius by saying that he was nominated Dictator for the purpose of driving in the nail on the outbreak of an epidemic. Colonies were sent out this year to Suessa and Pontia; Suessa had belonged to the Auruncans, and the island of Pontia had been inhabited by the Volscians, as it lay off their coast. The senate also authorised the settlement of a colony at Interamna on the Casinus, but it fell to the succeeding consuls, M. Valerius and P. Decius, to appoint the commissioners and send out the colonists to the number of 4000.

[9.29]The Samnite war was now drawing to a close, but before the senate could dismiss it entirely from their thoughts there was a rumour of war on the side of Etruria. With the one exception of the Gauls, no nation was more dreaded at that time, owing to their proximity to Rome and their vast population. One of the consuls remained in Samnium to finish the war, the other, P. Decius, was detained in Rome by serious illness, and on instructions from the senate, nominated C. Junius Bubulcus Dictator. In view of the seriousness of the emergency the Dictator compelled all who were liable for service to take the military oath, and used his utmost endeavours to have arms and whatever else was required in readiness. Notwithstanding the great preparations he was making, he had no intention of assuming the aggressive, and had quite made up his mind to wait until the Etruscans made the first move. The Etruscans were equally energetic in their preparations, and equally reluctant to commence hostilities. Neither side went outside their own frontiers. This year (312 B.C.) was signalised by the censorship of Appius Claudius. His claim to distinction with posterity rests mainly upon his public works, the road and the aqueduct which bear his name. He carried out these undertakings single-handed, for, owing to the odium he incurred by the way he revised the senatorial lists and filled up the vacancies, his colleague, thoroughly ashamed of his conduct, resigned. In the obstinate temper which had always marked his house, Appius continued to hold office alone. It was owing to his action that the Potitii, whose family had always possessed the right of ministering at the *Ava Maxima* of Hercules, transferred that duty to some temple servants, whom they had instructed in the various observances. There is a strange tradition connected with this, and one well calculated to create religious scruples in the minds of any who would disturb the established order of ceremonial usages. It is said that though when the change was made there were twelve branches of the family of the Potitii comprising thirty adults, not one member, old or young, was alive twelve months later. Nor was the extinction of the Potitian name the only consequence; Appius himself some years afterwards was struck with blindness by the unforgetting wrath of the gods.

[9.30]The consuls for the following year were C. Junius Bubulcus (for the third time) and Q. Aemilius Barbula (for the second time). At the beginning of their year of office they laid a complaint before the

Assembly touching the unscrupulous way in which vacancies in the senate had been filled up, men having been passed over who were far superior to some who had been selected, whereby the whole senatorial order had been sullied and disgraced. They declared that the selection had been made solely with a view to popularity and out of sheer caprice, and that no regard whatever had been paid to the good or bad characters of those chosen. They then gave out that they should ignore them altogether, and at once proceeded to call over the names of the senators as they appeared on the roll before Appius Claudius and C. Plautius were made censors. Two official posts were for the first time this year placed at the disposal of the people, both of a military character. One was the office of military tribune; sixteen were henceforth appointed by the people for the four legions; these had hitherto been selected by the Dictators and consuls, very few places being left to the popular vote. L. Atilius and C. Marcius, tribunes of the plebs, were responsible for that measure. The other was the post of naval commissioner; the people were to appoint two to superintend the equipment and refitting of the fleet. This provision was due to M. Decius, a tribune of the plebs. An incident of a somewhat trifling character occurred this year which I should have passed over did it not appear to be connected with religious customs. The guild of flute-players had been forbidden by the censors to hold their annual banquet in the temple of Jupiter, a privilege they had enjoyed from ancient times. Hugely disgusted, they went off in a body to Tibur, and not one was left in the City to perform at the sacrificial rites. The senate were alarmed at the prospect of the various religious ceremonies being thus shorn of their due ritual, and they sent envoys to Tibur, who were to make it their business to see that the Romans got these men back again. The Tiburtines promised to do their best, and invited the musicians into the Senate-house, where they were strongly urged to return to Rome. As they could not be persuaded to do so, the Tiburtines adopted a ruse quite appropriate to the character of the men they were dealing with. It was a feast day and they were invited to various houses, ostensibly to supply music at the banquets. Like the rest of their class, they were fond of wine, and they were plied with it till they drank themselves into a state of torpor. In this condition they were thrown into wagons and carried off to Rome. They were left in the wagons all night in the Forum, and did not recover their senses till daylight surprised them still suffering from the effect of their debauch. The

people crowded round them and succeeded in inducing them to stay, and they were granted the privilege of going about the City for three days every year in their long dresses and masks with singing and mirth; a custom which is still observed. Those members of the guild who played on solemn occasions in the temple of Jupiter had the right restored to them of holding their banquets there. These incidents occurred while the public attention was fixed on two most serious wars.

[9.31]The consuls drew lots for their respective commands; the Samnites fell to Junius, the new theatre of war in Etruria to Aemilius. The Roman garrison of Cluvia in Samnium, after being unsuccessfully attacked, were starved into surrender, and were then massacred after being cruelly mangled by the scourge. Enraged at this brutality, Junius felt that the first thing to be done was to attack Cluvia, and on the very day he arrived before the place he took it by storm and put all the adult males to death. Thence his conquering army marched to Bovianum. This was the chief city of the Pentrian Samnites, and by far the wealthiest and best supplied with arms. There was not the same cause for resentment here as at Cluvia, the soldiers were mainly animated by the prospect of plunder, and on the capture of the place the enemy were treated with less severity; but there was almost more booty collected there than from all the rest of Samnium, and the whole of it was generously given up to the soldiers. Now that nothing could withstand the overwhelming might of Roman arms, neither armies nor camps nor cities, the one idea in the minds of all the Samnite leaders was to choose some position from which Roman troops when scattered on their foraging expeditions might be caught and surrounded. Some peasants who pretended to be deserters and some who had, either deliberately or by accident, been made prisoners, came to the consuls with a story in which they all agreed, and which really was true, namely, that an immense quantity of cattle had been driven into a pathless forest. The consuls were induced by this story to send the legions, with nothing but their kits to encumber them, in the direction the cattle had taken, to secure them. A very strong body of the enemy were concealed on either side of the road, and when they saw that the Romans had entered the forest they suddenly raised a shout and made a tumultuous attack upon them. The suddenness of the affair at first created some confusion, while the men were piling their kits in the centre of the

column and getting at their weapons, but as soon as they had each freed themselves from their burdens and put themselves in fighting trim, they began to assemble round the standards. From their old discipline and long experience they knew their places in the ranks, and the line was formed without any orders being needed, each man acting on his own initiative.

The consul rode up to the part where the fighting was hottest and, leaping off his horse, called Jupiter, Mars, and other gods to witness that he had not gone into that place in quest of any glory for himself, but solely to provide booty for his soldiers, nor could any other fault be found with him except that he had been too anxious to enrich his men at the expense of the enemy. From that disgrace nothing would clear him but the courage of his men. Only they must one and all make a determined attack. The enemy had been already worsted in the field, stripped of his camp, deprived of his cities, and was now trying the last chance by lurking secretly in ambush and trusting to his ground, not to his arms. What ground was too difficult for Roman courage? He reminded them of the citadels of Fregellae and of Sora and of the successes they had everywhere met with when the nature of the ground was all against them. Fired by his words, his men, oblivious of all difficulties, went straight at the hostile line above them. Some exertion was needed while the column were climbing up the face of the hill, but when once the leading standards had secured a footing on the summit and the army found that it was on favourable ground, it was the enemy's turn to be dismayed; they flung away their arms, and in wild flight made for the lurking-places in which they had shortly before concealed themselves. But the place which they had selected as presenting most difficulty to the enemy now became a trap for themselves, and impeded them in every way. Very few were able to escape. As many as 20,000 men were killed, and the victorious Romans dispersed in different directions to secure the cattle of which the enemy had made them a present.

[9.32] During these occurrences in Samnium the whole of the cities of Etruria with the exception of Arretium had taken up arms and commenced what proved to be a serious war by an attack on Sutrium. This city was in alliance with Rome, and served as a barrier on the side of Etruria. Aemilius marched thither to raise the siege, and selected a site before the city where he entrenched himself. His camp was plentifully supplied with provisions from Sutrium. The

Etruscans spent the day after his arrival in discussing whether they should bring on an immediate engagement or protract the war. Their generals decided upon the more energetic course as the safer one, and the next day at sunrise the signal for battle was displayed and the troops marched into the field. As soon as this was reported to the consul he ordered the tessera to be given out, instructing the men to take their breakfast, and after they were strengthened by food to arm themselves for battle. When he saw that they were in complete readiness, he ordered the standards to go forward, and after the army had emerged from the camp he formed his battle-line not far from the enemy. For some time both sides stood in expectation, each waiting for the other to raise the battle-shout and begin the fighting. The sun passed the meridian before a single missile was discharged on either side. At length the Etruscans, not caring to leave the field without securing some success, raised the battle-shout; the trumpets sounded and the standards advanced. The Romans showed no less eagerness to engage. They closed with each other in deadly earnest. The Etruscans had the advantage in numbers, the Romans in courage. The contest was equally maintained and cost many lives, including the bravest on both sides, nor did either army show any signs of giving way until the second Roman line came up fresh into the place of the first, who were wearied and exhausted. The Etruscans had no reserves to support their first line, and all fell in front of their standards or around them. No battle would have witnessed fewer fugitives or involved greater carnage had not the Tuscans, who had made up their minds to die, found protection in the approach of night, so that the victors were the first to desist from fighting. After sunset the signal was given to retire, and both armies returned in the night to their respective camps. Nothing further worth mention took place that year at Sutrium. The enemy had lost the whole of their first line in a single battle and had only their reserves left, who were hardly sufficient to protect their camp. Amongst the Romans there were so many wounded that those who left the field disabled were more numerous than those who had fallen in the battle.

[9.33]The consuls for the following year were Q. Fabius and C. Marcus Rutilus. Fabius took over the command at Sutrium, and brought reinforcements from Rome. A fresh army was also raised in Etruria and sent to support the besiegers. Very many years had

elapsed since there had been any contests between the patrician magistrates and the tribunes of the plebs. Now, however, a dispute arose through that family which seemed marked out by destiny to be the cause of quarrels with the plebs and its tribunes. Appius Claudius had now been censor eighteen months, the period fixed by the Aemilian Law for the duration of that office. In spite of the fact that his colleague, C. Plautius, had resigned, he could under no circumstances whatever be induced to vacate his office. P. Sempronius was the tribune of the plebs who commenced an action for limiting his censorship to the legal period. In taking this step he was acting in the interests of justice quite as much as in the interests of the people, and he carried the sympathies of the aristocracy no less than he had the support of the masses. He recited the several provisions of the Aemilian Law and extolled its author, Mamercus Aemilius, the Dictator, for having shortened the censorship. Formerly, he reminded his hearers, it was held for five years, a time long enough to make it tyrannical and despotic, Aemilius limited it to eighteen months. Then turning to Appius he asked him: "Pray tell me, Appius, what would you have done had you been censor at the time that C. Furius and M. Geganius were censors?" Appius Claudius replied that the tribune's question had not much bearing on his case. He argued that though the law might be binding in the case of those censors during whose period of office it was passed, because it was after they had been appointed that the people ordered the measure to become law, and the last order of the people was law for the time being, nevertheless, neither he nor any of the censors subsequently appointed could be bound by it because all succeeding censors had been appointed by the order of the people and the last order of the people was the law for the time being.

[9.34] This quibble on the part of Appius convinced no one. Sempronius then addressed the Assembly in the following language: "Quirites, here you have the progeny of that Appius who, after being appointed decemvir for one year, appointed himself for a second year, and then, without going through any form of appointment either at his own hands or at any one else's, retained the fasces and the supreme authority for a third year, and persisted in retaining them until the power which he gained by foul means, exercised by foul means, and retained by foul means, proved his ruin. This is the family, Quirites, by whose violence and lawlessness you were driven out of

your City and compelled to occupy the Sacred Mount; the family against which you won the protection of your tribunes; the family on whose account you took up your position, in two armies, on the Aventine. It is this family which has always opposed the laws against usury and the agrarian laws; which interfered with the right of intermarriage between patricians and plebeians; which blocked the path of the plebs to curule offices. This name is much more deadly to your liberties than the name of the Tarquins. Is it really the case, Appius Claudius, that though it is a hundred years since Mamercus Aemilius was Dictator, and there have been all those censors since, men of the highest rank and strength of character, not one of them ever read the Twelve Tables, not one of them knew that the last order of the people is the law for the time being? Of course they all knew it, and because they knew it they preferred to obey the Aemilian Law rather than that older one by which the censors were originally appointed, simply because the former was the last passed by order of the people and also because when two laws contradict each other the later one repeals the earlier. Do you maintain, Appius, that the people are not bound by the Aemilian Law, or do you claim, if they are bound by it, that you alone are exempt from its provisions? That law availed to bind those arbitrary censors C. Furius and M. Geganius, who gave us a proof of the mischief which that office could work in the republic when, in revenge for the limitation of their power, they placed among the *aerarii* the foremost soldier and statesman of his time, Mamercus Aemilius. It bound all the succeeding censors for a hundred years, it binds your colleague C. Plautius, who was appointed under the same auspices, with the same powers as yourself. Did not the people appoint him 'with all the customary powers and privileges' that a censor can possess? Or are you the solitary exception in whom all these powers and privileges reside? Whom then can you appoint as 'king for sacrifices'? He will cling to the name of 'king' and say that he was appointed with all the powers that the Kings of Rome possessed. Who do you suppose would be contented with a six months' dictatorship or a five days' interregnum? Whom would you venture to nominate as Dictator for the purpose of driving in the nail or presiding at the Games? How stupid and spiritless, Quirites, you must consider those men to have been who after their magnificent achievements resigned their dictatorship in twenty days, or vacated their office owing to some flaw in their appointment! But why should I recall instances of old time? It is not ten years since C. Maenius as

Dictator was conducting a criminal process with a rigour which some powerful people considered dangerous to themselves, and in consequence his enemies charged him with being tainted with the very crime he was investigating. He at once resigned his dictatorship in order to meet, as a private citizen, the charges brought against him. I am far from wishing to see such moderation in you, Appius. Do not show yourself a degenerate scion of your house; do not fall short of your ancestors in their craving for power, their love of tyranny; do not vacate your office a day or an hour sooner than you are obliged, only see that you do not exceed the fixed term. Perhaps you will be satisfied with an additional day or an additional month? 'No,' he says, 'I shall hold my censorship for three years and a half beyond the period fixed by the Aemilian Law and I shall hold it alone.' This sounds very much like an absolute monarch. Or will you co-opt a colleague, a proceeding forbidden by divine laws even where one has been lost by death?

"There is a sacred function going back to the very earliest times, the only one actually initiated by the deity in whose honour it is performed, which has always been discharged by men of the highest rank and most blameless character. You, conscientious censor that you are, have transferred this ministry to servants, and a House older than this City, hallowed by the hospitality they showed to immortal gods, has become extinct in one short year owing to you and your censorship. But this is not enough for you, you will not rest till you have involved the whole commonwealth in a sacrilege the consequences of which I dare not contemplate. The capture of this City occurred in that lustrum in which the censor, L. Papirius Cursor, after the death of his colleague, C. Julius, co-opted as his colleague M. Cornelius Maluginensis sooner than abdicate his office. And yet how much more moderation did he show even then than you, Appius; he did not continue to hold his censorship alone nor beyond the legal term. L. Papirius did not, however, find any one to follow his example, all succeeding censors resigned office on the death of their colleague. But nothing restrains you, neither the expiry of your term of office nor the resignation of your colleague nor the Law nor any feeling of self-respect. You consider it a merit to show arrogance, effrontery, contempt of gods and men. When I consider the majesty and reverence which surround the office that you have held, Appius Claudius, I am most reluctant to subject you to personal restraint or

even to address you in severe terms. But your obstinacy and arrogance have compelled me to speak as I have done, and now I warn you that if you do not comply with the Aemilian Law I shall order you to be taken to prison. Our ancestors made it a rule that if at the election of censors two candidates did not get the requisite majority of votes one should not be returned alone, but the election should be adjourned. Under this rule, as you cannot be appointed sole censor, I will not allow you to remain in office alone." He then ordered the censor to be arrested and taken to prison. Appius formally appealed to the protection of the tribunes, and though Sempronius was supported by six of his colleagues, the other three vetoed any further proceedings. Appius continued to hold his office alone amidst universal indignation and disgust.

[9.35]During these proceedings in Rome the siege of Sutrium was being kept up by the Etruscans. The consul Fabius was marching to assist the allies of Rome and to attempt the enemy's lines wherever it seemed practicable. His route lay along the lowest slopes of the mountain range, when he came upon the hostile forces drawn up in battle formation. The wide plain which stretched below revealed their enormous numbers, and in order to compensate for his own inferiority in that respect by the advantage of position, he deflected his column a little way on to the rising ground, which was rough and covered with stones. He then formed his front against the enemy. The Etruscans, thinking of nothing but their numbers, on which they solely relied, came on with such eager impetuosity that they flung away their javelins in order to come more quickly to a hand-to-hand fight, and rushed upon their foe with drawn swords. The Romans, on the other hand, showered down upon them first their javelins and then the stones with which the ground plentifully supplied them. Shields and helmets alike were struck, and those who were not wounded were confounded and bewildered; it was almost impossible for them to get to close quarters, and they had no missiles with which to keep up the fight from a distance. Whilst they were standing as a mark for the missiles, without any sufficient protection, some even retreating, the whole line wavering and unsteady, the Roman hastati and principes raised their battle-shout again and charged down upon them with drawn swords. The Etruscans did not wait for the charge but faced about and in disorderly flight made for their camp. The Roman cavalry, however, galloping in a slanting direction across the

plain, headed off the fugitives, who gave up all idea of reaching their camp and turned off to the mountains. For the most part without arms, and with a large proportion of wounded, the fugitives entered the Ciminian forest. Many thousands of Etruscans were killed, thirty-eight standards were taken, and in the capture of the camp the Romans secured an immense amount of booty. Then the question was discussed whether to pursue the enemy or no.

[9.36]The Ciminian forest was, in those days, more frightful and impassable than the German forests were recently found to be; not a single trader had, up to that time, ventured through it. Of those present in the council of war, hardly any one but the general himself was bold enough to undertake to enter it; they had not yet forgotten the horrors of Caudium. According to one tradition, it appears that M. Fabius, the consul's brother - others say Caeso, others again L. Claudius, the consul's half-brother - declared that he would go and reconnoitre, and shortly return with accurate information. He had been brought up in Caere, and was thoroughly conversant with the Etruscan language and literature. There is authority for asserting that at that time Roman boys were, as a rule, instructed in Etruscan literature as they now are in Greek, but I think the probability is that there was something remarkable about the man who displayed such boldness in disguising himself and mingling with the enemy. He is said to have been accompanied by only one servant, and during their journey they only made brief inquiries as to the nature of the country and the names of its leading men, lest they should make some startling blunder in conversing with the natives and so be found out. They went disguised as shepherds, with their rustic weapons, each carrying two bills and two heavy javelins. But neither their familiarity with the language nor the fashion of their dress nor their implements afforded them so much protection as the impossibility of believing that any stranger would enter the Ciminian forest. It is stated that they penetrated as far as Camerinum in Umbria, and on their arrival there the Roman ventured to say who they were. He was introduced into the senate, and, acting in the consul's name, he established a treaty of friendship with them. After having been most kindly and hospitably received, he was requested to inform the Romans that thirty days' provision would be ready for them if they came into that district, and the Camertine soldiery would be prepared to act under their orders. When the consul received this report, he sent the

baggage on in advance at the first watch. The legions were ordered to march behind the baggage, while he himself remained behind with the cavalry. The following day at dawn he rode up with his cavalry to the enemy's outposts stationed on the edge of the forest, and after he had engaged their attention for a considerable time, he returned to the camp and, in the evening, leaving by the rear gate, he started after the column. By dawn on the following day he was holding the nearest heights of the Ciminian range, and after surveying the rich fields of Etruria he sent out parties to forage. A very large quantity of plunder had already been secured when some cohorts of Etruscan peasantry, hastily got together by the authorities of the neighbourhood, sought to check the foragers; they were, however, so badly organised that, instead of rescuing the prey, they almost fell a prey themselves. After putting them to flight with heavy loss, the Romans ravaged the country far and wide, and returned to their camp loaded with plunder of every kind. It happened to be during this raid that a deputation, consisting of five members of the senate with two tribunes of the plebs, came to warn Fabius, in the name of the senate, not to traverse the Ciminian forest. They were very glad to find that they had come too late to prevent the expedition, and returned to Rome to report victory.

[9.37] This expedition did not bring the war to a close, it only extended it. The whole country lying below the Ciminian range had felt the effect of his devastations, and they roused the indignation of the cantons of Etruria and of the adjoining districts of Umbria. A larger army than had ever assembled before was marched to Sutrium. Not only did they advance their camp beyond the edge of the forest, but they showed such eagerness that they marched down in battle order on to the plain as soon as possible. After advancing some distance they halted, leaving a space between them and the Roman camp for the enemy to form his lines. When they became aware that their enemy declined battle, they marched up to the rampart of the camp and, on seeing that the outposts retired within the camp, they loudly insisted upon their generals ordering the day's rations to be brought down to them from their camp, as they intended to remain under arms and attack the hostile camp, if not by night, at all events at dawn. The Romans were quite as excited at the prospect of battle, but they were kept quiet by their commander's authority. It was about four o'clock in the afternoon when the general ordered the troops to

take food, and instructed them to remain under arms and in readiness at whatever hour he gave the signal, whether by day or by night. In a brief address to his men he drew a contrast between the military qualities of the Samnites and those of the Etruscans, speaking highly of the former and disparaging the latter, saying that there was no comparison between them as regarded either their courage or their numbers. They would learn in time that he had another weapon in reserve, meanwhile he must keep silence. By these dark hints he made his men believe that the enemy were being betrayed, and this helped to restore the courage which had quailed at the sight of such an immense multitude. This impression was confirmed by the absence of any intention on the part of the enemy to entrench the ground they were occupying.

After the troops had had dinner, they rested until about the fourth watch. Then they rose quietly and armed themselves. A quantity of mattock-headed axes were distributed to the camp-followers, with which they were to dig away the rampart and fill up the fosse with it. The troops were formed up within their entrenchments, and picked cohorts were posted at the exits of the camp. Then a little before dawn - in summer nights the time for deepest sleep - the signal was given, the men crossed the levelled rampart in line and fell upon the enemy, who were lying about in all directions. Some were killed before they could stir, others only half awake as they lay, most of them whilst wildly endeavouring to seize their arms. Only a few had time to arm themselves, and these, with no standards under which to rally, no officers to lead them, were routed and fled, the Romans following in hot pursuit. Some sought their camp, others the forest. The latter proved the safer refuge, for the camp, situated in the plain below, was taken the same day. The gold and silver were ordered to be brought to the consul; the rest of the spoil became the property of the soldiers. The killed and prisoners amounted to 60,000. Some authors assert that this great battle was fought beyond the Ciminian forest, at Perugia, and that fears were felt in the City lest the army, cut off from all help by that terrible forest, should be overwhelmed by a united force of Tuscans and Umbrians. But wherever it was fought, the Romans had the best of it. As a result of this victory, Perugia, Cortona, and Arretium, which were at that time the three leading cantons of Etruria, sent to Rome for a treaty of peace. A thirty years' truce was granted them.

[9.38]During these occurrences in Etruria the other consul, C. Marcius Rutilus, took Allifae from the Samnites. Many other fortified posts and hamlets were either destroyed or passed uninjured into the power of the Romans. While this was going on, P. Cornelius, whom the senate had made maritime prefect, took the Roman fleet to Campania and brought up at Pompeii. Here the crews landed and proceeded to ravage the territory of Nuceria. After devastating the district near the coast, from which they could have easily reached their ships, they went further inland, attracted as usual by the desire for plunder, and here they roused the inhabitants against them. As long as they were scattered through the fields they met nobody, though they might have been cut off to a man, but when they returned, thinking themselves perfectly safe, they were overtaken by the peasants and stripped of all their plunder. Some were killed; the survivors were driven helter-skelter to their ships. However great the alarm created in Rome by Q. Fabius' expedition through the Ciminian forest, there was quite as much pleasure felt by the Samnites when they heard of it. They said that the Roman army was hemmed in; it was the Caudine disaster over again; the old recklessness had again led a nation always greedy for further conquests into an impassable forest; they were beset by the difficulties of the ground quite as much as by hostile arms. Their delight was, however, tinged with envy when they reflected that fortune had diverted the glory of finishing the war with Rome from the Samnites to the Etruscans. So they concentrated their whole strength to crush C. Marcius or, if he did not give them a chance of fighting, to march through the country of the Marsi and Sabines into Etruria. The consul advanced against them, and a desperate battle was fought with no decisive result. Which side lost most heavily was doubtful, but a rumour was spread that the Romans had been worsted, as they had lost some belonging to the equestrian order and some military tribunes, besides a staff officer, and - what was a signal disaster - the consul himself was wounded. Reports of the battle, exaggerated as usual, reached Rome and created the liveliest alarm among the senators. It was decided that a Dictator should be nominated, and no one had the slightest doubt that Papirius Cursor would be nominated, the one man who was regarded as the supreme general of his day. But they did not believe that a messenger could get through to the army in Samnium, as the whole country was hostile, nor were they by any means sure that Marcius was still alive.

The other consul, Fabius, was on bad terms with Papirius. To prevent this private feud from causing public danger, the senate resolved to send a deputation to Fabius, consisting of men of consular rank, who were to support their authority as public envoys by using their personal influence to induce him to lay aside all feelings of enmity for the sake of his country. When they had handed to Fabius the resolution of the senate, and had employed such arguments as their instructions demanded, the consul, keeping his eyes fixed on the ground, withdrew from the deputation, without making any reply and leaving them in utter uncertainty as to what he would do. Subsequently, he nominated L. Papirius Dictator according to the traditional usage at midnight. When the deputation thanked him for having shown such rare self-command, he remained absolutely silent, and without vouchsafing any reply or making any allusion to what he had done, he abruptly dismissed them, showing by his conduct what a painful effort it had cost him. Papirius named C. Junius Bubulcus, Master of the Horse. Whilst he was submitting to the Assembly of Curies the resolution conferring the Dictatorial power, an unfavourable omen compelled him to adjourn the proceedings. It fell to the Fautian cury to vote first, and this cury had voted first in the years in which two memorable disasters occurred, the capture of the City and the capitulation of Caudium. Licinius Macer adds a third disaster through which this cury became ill-omened, the massacre at the Cremera.

[9.39]The following day, after fresh auspices had been taken, the Dictator was invested with his official powers. He took command of the legions which were raised during the scare connected with the expedition through the Ciminian forest, and led them to Longula. Here he took over the consul's troops, and with the united force went into the field. The enemy showed no disposition to shirk battle, but while the two armies stood facing each other fully prepared for action, yet neither anxious to begin, they were overtaken by night. Their standing camps were within a short distance of each other, and for some days they remained quiet, not, however, through any distrust of their own strength or any feeling of contempt for the enemy. Meantime the Romans were meeting with success in Etruria, for in an engagement with the Umbrians the enemy were unable to keep up the fight with the spirit with which they began it, and, without any great loss, were completely routed. An engagement also

took place at Lake Vadimonis, where the Etruscans had concentrated an army raised under a *lex sacrata*, in which each man chose his comrade. As their army was more numerous than any they had previously raised, so they exhibited a higher courage than they had ever shown before. So savage was the feeling on both sides that, without discharging a single missile, they began the fight at once with swords. The fury displayed in the combat, which long hung in the balance, was such that it seemed as though it was not the Etruscans who had been so often defeated that we were fighting with, but some new, unknown people. There was not the slightest sign of yielding anywhere; as the men in the first line fell, those in the second took their places, to defend the standards. At length the last reserves had to be brought up, and to such an extremity of toil and danger had matters come that the Roman cavalry dismounted, and, leaving their horses in charge, made their way over piles of armour and heaps of slain to the front ranks of the infantry. They appeared like a fresh army amongst the exhausted combatants, and at once threw the Etruscan standards into confusion. The rest of the men, worn out as they were, nevertheless followed up the cavalry attack, and at last broke through the enemy's ranks. Their determined resistance was now overcome, and when once their maniples began to give way, they soon took to actual flight. That day broke for the first time the power of the Etruscans after their long-continued and abundant prosperity. The main strength of their army was left on the field, and their camp was taken and plundered.

[9.40]Equally hard fighting and an equally brilliant success characterised the campaign which immediately followed against the Samnites. In addition to their usual preparations for war, they had new glittering armour made in which their troops were quite resplendent. There were two divisions; one had their shields plated with gold, the other with silver. The shield was made straight and broad at the top to cover the chest and shoulders, then became narrower towards the bottom to allow of it being more easily moved about. To protect the front of the body they wore coats of chain armour; the left leg was covered with a greave, and their helmets were plumed to give them the appearance of being taller than they really were. The tunics of the men with gold plated shields were in variegated colours, those with the silver shields had tunics of white linen. The latter were assigned to the right wing, the former were

posted on the left. The Romans knew that all this splendid armour had been provided, and they had been taught by their generals that a soldier ought to inspire dread not by being decked out in gold and silver but by trusting to his courage and his sword. They looked upon those things as a spoil for the enemy rather than a defence for the wearer, resplendent enough before a battle but soon stained and fouled by wounds and bloodshed. They knew that the one ornament of the soldier was courage, and all that finery would belong to whichever side won the victory; an enemy however rich was the prize of the victor, however poor the victor might be.

With this teaching fresh in their minds, Cursor led his men into battle. He took his place on the right wing, and gave the command of the left to the Master of the Horse. As soon as the two lines came into collision, a contest began between the Dictator and the Master of the Horse, quite as keen as the struggle against the enemy, as to whose division should be the first to win the victory. Junius happened to be the first to dislodge the enemy. Bringing up his left wing against the enemy's right, where the "devoted" soldiers were posted, conspicuous in their white tunics and glittering armour, he declared that he would sacrifice them to Orcus, and, pushing the attack, he shook their ranks and made them visibly give way. On seeing this, the Dictator exclaimed, "Shall the victory begin on the left wing? Is the right wing, the Dictator's own division, going to follow where another had led the way in battle, and not win for itself the greatest share of the victory?" This roused the men; the cavalry behaved with quite as much gallantry as the infantry, and the staff-officers displayed no less energy than the generals. M. Valerius on the right wing, and P. Decius on the left, both men of consular rank, rode up to the cavalry who were covering the flanks and urged them to snatch some of the glory for themselves. They charged the enemy on both flanks, and the double attack increased the consternation of the enemy. To complete their discomfiture, the Roman legions again raised their battle-shout and charged home. Now the Samnites took to flight, and soon the plain was filled with shining armour and heaps of bodies. At first the terrified Samnites found shelter in their camp, but they were not able even to hold that; it was captured, plundered, and burnt before nightfall.

The senate decreed a triumph for the Dictator. By far the greatest sight in the procession was the captured armour, and so magnificent

were the pieces considered that the gilded shields were distributed amongst the owners of the silversmiths' shops to adorn the Forum. This is said to be the origin of the custom of the aediles decorating the Forum when the symbols of three Capitoline deities are conducted in procession through the City on the occasion of the Great Games. Whilst the Romans made use of this armour to honour the gods, the Campanians, out of contempt and hatred towards the Samnites, made the gladiators who performed at their banquets wear it, and they then called them "Samnites." The consul Fabius fought a battle this year with the remnants of the Etruscans at Perugia, for this city had broken the truce. He gained an easy and decisive victory, and after the battle he approached the walls and would have taken the place had not envoys been sent on to surrender it. After he had stationed a garrison in Perugia, deputations came to him from different cities in Etruria to ask for a restoration of amicable relations; these he sent on to the senate at Rome. Then he entered the city in triumphal procession, after achieving a more solid success than the Dictator, especially as the defeat of the Samnites was put down largely to the credit of the staff-officers, P. Decius and M. Valerius. These men were chosen by an almost unanimous vote at the next elections - one as consul, the other as praetor.

[9.41]Owing to his splendid services in the subjugation of Etruria, the consulship of Fabius was extended to another year, Decius being his colleague. Valerius was elected praetor for the fourth time. The consuls arranged their respective commands; Etruria fell to Decius, and Samnium to Fabius. Fabius marched to Nuceria, where the people of Alfaterna met him with a request for peace, but as they had refused it when offered to them before, he declined to grant it now. It was not till he actually began to attack the place that they were forced into unconditional surrender. He fought an action with the Samnites and won an easy victory. The memory of that battle would not have survived if it had not been that the Marsi engaged for the first time on that occasion in hostilities with Rome. The Peligni, who had followed the example of the Marsi, met with the same fate. The other consul, Decius, was also successful. He inspired such alarm in Tarquinii that its people provided his army with corn and asked for a forty years' truce. He captured several fortified posts belonging to Volsinii, some of which he destroyed that they might not serve as retreats for the enemy, and by extending his operations in all

directions he made his name so dreaded that the whole Etruscan league begged him to grant a treaty. There was not the slightest chance of their obtaining one, but a truce was granted them for one year. They had to provide a year's pay for the troops and two tunics for every soldier. That was the price of the truce.

While matters were thus quieted in Etruria fresh trouble was caused by the sudden defection of the Umbrians, a people hitherto untouched by the ravages of war beyond what their land had suffered from the passage of the Romans. They called out all their fighting men and compelled a large section of the Etruscan population to resume hostilities. The army which they mustered was so large that they began to talk in very braggart tones about themselves and in very contemptuous terms about the Romans. They even expressed their intention of leaving Decius in their rear and marching straight to attack Rome. Their intentions were disclosed to Decius; he at once hastened by forced marches to a city outside the frontiers of Etruria and took up a position in the territory of Pupinia, to watch the enemy's movements. This hostile movement on the part of the Umbrians was regarded very seriously in Rome, even their menacing language made people, after their experience of the Gaulish invasion, tremble for the safety of their City. Instructions were accordingly sent to Fabius, ordering him, if he could for the time being suspend operations in Samnium, to march with all speed into Umbria. The consul at once acted upon his instructions and proceeded by forced marches to Mevania, where the forces of the Umbrians were stationed. They were under the impression that he was far away in Samnium, with another war on his hands, and his sudden arrival produced such consternation amongst them, that some advised a retreat into their fortified cities, while others were in favour of abandoning the war. There was one canton - the natives call it Materina - which not only kept the rest under arms but even induced them to come to an immediate engagement. They attacked Fabius while he was fortifying his camp. When he saw them making a rush towards his entrenchments he called his men off from their work and marshalled them in the best order that the ground and the time at his disposal allowed. He reminded them of the glory they had won in Etruria and in Samnium, and bade them finish off this wretched aftergrowth of the Etruscan war and exact a fitting retribution for the impious language in which the enemy had threatened to attack Rome.

His words were received with such eagerness by his men that their enthusiastic shouts interrupted their commander's address, and without waiting for the word of command or the notes of the trumpets and bugles they raced forward against the enemy. They did not attack them as though they were armed men; marvellous to relate, they began by snatching the standards from those who bore them, then the standard-bearers were themselves dragged off to the consul, the soldiers were pulled across from the one army to the other, the action was everywhere fought with shields rather than with swords, men were knocked down by the bosses of shields and blows under the arm-pits. More were captured than killed, and only one cry was heard throughout the ranks: "Lay down your arms!" So, on the field of battle, the prime authors of the war surrendered. During the next few days the rest of the Umbrian communities submitted. The Ocriculans entered into a mutual undertaking with Rome and were admitted to her friendship.

[9.42]After bringing to a victorious close the war which had been allotted to his colleague, Fabius returned to his own sphere of action. As he had conducted operations with such success the senate followed the precedent set by the people in the previous year and extended his command for a third year in spite of the strenuous opposition of Appius Claudius who was now consul, the other consul being L. Volumnius. I find in some annalists that Appius was a candidate for the consulship while he was still censor, and that L. Furius, a tribune of the plebs, stopped the election until he had resigned his censorship. A new enemy, the Sallentines, had appeared, and the conduct of this war was assigned to his colleague; Appius himself remained in Rome with the view of strengthening his influence by his domestic administration, as the attainment of military glory was in other hands. Volumnius had no cause to regret this arrangement, he fought many successful actions and took some of the enemy's cities by storm. He was lavish in distributing the spoil, and this generosity was rendered still more pleasing by his frank and cordial manner; by qualities such as these he made his men keen to face any perils or labours. Q. Fabius, as proconsul, fought a pitched battle with the Samnites near the city of Allifae. There was very little uncertainty as to the result; the enemy were routed and driven to their camp, and they would not have held that had more daylight been left. Before night, however, their camp was completely invested, so that

none could escape. On the morrow while it was still twilight they made proposals for surrender, and their surrender was accepted on condition that the Samnites should be dismissed with one garment apiece after they had all passed under the yoke. No provision had been made for their allies, and as many as 7000 of them were sold into slavery. Those who declared themselves Hernicans were separated and placed under guard; subsequently Fabius sent them all to the senate in Rome. After inquiries had been made as to whether they had fought for the Samnites against Rome as conscripts or as volunteers, they were committed to the custody of the Latin cities. The new consuls, P. Cornelius Arvina and Q. Marcius Tremulus, were ordered to bring the whole question of the prisoners before the senate. The Hernicans resented this, and a national council was held at Anagnia in what they call the Maritime Circus; the whole nation thereupon, with the exception of Aletrium, Ferentinae, and Verulae, declared war against Rome.

[9.43]Now that Fabius had evacuated the country the Samnites became restless. Calatia and Sora and the Roman garrisons there were taken by storm, and the soldiers who had been taken prisoners were cruelly massacred. P. Cornelius was despatched thither with an army. The Anagnians and Hernicans had been assigned to Marcius. At first the enemy occupied such a well-chosen position between the camps of the two consuls that no messenger, however active, could get through, and for some days both consuls were kept in ignorance of everything and in anxious suspense as to each other's movements. Tidings of this alarming state of things reached Rome, and every man liable to service was called out; two complete armies were raised against sudden emergencies. But the progress of the war did not justify this extreme alarm, nor was it worthy of the old reputation which the Hernicans enjoyed. They attempted nothing worth mentioning, within a few days they were stripped of three camps in succession, and begged for a thirty days' armistice to allow of their sending envoys to Rome. To obtain this they consented to supply the troops with six months' pay and one tunic per man. The envoys were referred by the senate to Marcius, to whom they had given full powers to treat, and he received the formal surrender of the Hernicans. The other consul in Samnium, though superior in strength, was more hampered in his movements. The enemy had blocked all the roads and secured the passes so that no supplies could

be brought in, and though the consul drew up his line and offered battle each day he failed to allure the enemy into an engagement. It was quite clear that the Samnites would not risk an immediate conflict, and that the Romans could not stand a prolonged campaign. The arrival of Marcius, who after subjugating the Hernicans had hurried to the assistance of his colleague, made it impossible for the enemy to delay matters any longer. They had not felt themselves strong enough to meet even one army in the open field, and they knew that their position would be perfectly hopeless if the two consular armies formed a junction; they decided, therefore, to attack Marcius while he was on the march before he had time to deploy his men. The soldiers' kits were hurriedly thrown together in the centre, and the fighting line was formed as well as the time allowed. The noise of the battle-shout rolling across and then the sight of the cloud of dust in the distance created great excitement in the standing camp of Cornelius. He at once ordered the men to arm for battle, and led them hurriedly out of the camp into line. It would, he exclaimed, be a scandalous disgrace if they allowed the other army to win a victory which both ought to share, and failed to maintain their claim to the glory of a war which was especially their own. He then made a flank attack, and breaking through the enemy's centre pushed on to their camp, which was denuded of defenders, and burnt it. As soon as Marcius' troops caught sight of the flames, and the enemy looking behind them saw them too, the Samnites took to flight in all directions, but no place afforded them a safe refuge, death awaited them everywhere.

After 30,000 of the enemy had been killed the consuls gave the signal to retire. They were recalling and collecting the troops together amidst mutual congratulations when suddenly fresh cohorts of the enemy were seen in the distance, consisting of recruits who had been sent up as reinforcements. This renewed the carnage, for, without any orders from the consuls or any signal given, the victorious Romans attacked them, exclaiming as they charged that the Samnite recruits would have to pay dearly for their training. The consuls did not check the ardour of their men, for they knew well that raw soldiers would not even attempt to fight when the veterans around them were in disorderly flight. Nor were they mistaken; all the Samnite forces, veterans and recruits alike, fled to the nearest mountains. The Romans went up after them, no place afforded safety

to the beaten foe, they were routed from the heights they had occupied, and at last with one voice they all begged for peace. They were ordered to supply corn for three months, a year's pay, and a tunic for each soldier, and envoys were despatched to the senate to obtain terms of peace. Cornelius was left in Samnium; Marcius entered the City in triumphal procession after his subjugation of the Hernicans. An equestrian statue was decreed to him which was erected in the Forum in front of the Temple of Castor. Three of the Hernican communities - Aletrium, Verulae, and Ferentinum - had their municipal independence restored to them as they preferred that to the Roman franchise, and the right of intermarriage with each other was granted them, a privilege which for a considerable period they were the only communities amongst the Hernicans to enjoy. The Anagninians and the others who had taken up arms against Rome were admitted to the status of citizenship without the franchise, they were deprived of their municipal self-government and the right of intermarriage with each other, and their magistrates were forbidden to exercise any functions except those connected with religion. In this year the censor C. Junius Bubulcus signed a contract for the building of the temple to Salus which he had vowed when engaged as consul in the Samnite war. He and his colleague, M. Valerius Maximus, also undertook the construction of roads through the country districts out of the public funds. The treaty with the Carthaginians was renewed for the third time this year and munificent presents were made to the plenipotentiaries who had come over for the purpose.

[9.44]P. Cornelius Scipio was nominated Dictator this year, with P. Decius Mus as Master of the Horse, for the purpose of holding the elections, as neither of the consuls could leave the seat of war. The consuls elected were L. Postumius and Tiberius Minucius. Piso places these consuls immediately after Q. Fabius and P. Decius, omitting the two years in which I have inserted the consulships of Claudius and Volumnius and of Cornelius and Marcius. Whether this was due to a slip of memory in drawing up the lists or whether he purposely omitted them, believing them to be wrongly inserted, is uncertain. The Samnites made forays this year into the district of Stellae in Campania. Both consuls accordingly were despatched to Samnium. Postumius marched to Tifernum, Minucius made Bovianum his objective. Postumius was the first to come into touch with the enemy

and a battle was fought at Tifernum. Some authorities state that the Samnites were thoroughly beaten and 24,000 prisoners taken. According to others the battle was an indecisive one, and Postumius, in order to create an impression that he was afraid of the enemy, withdrew by night into the mountains, whither the enemy followed him and took up an entrenched position two miles away from him. To keep up the appearance of having sought a safe and commodious place for a standing camp - and such it really was - the consul strongly entrenched himself and furnished his camp with all necessary stores. Then, leaving a strong detachment to hold it, he started at the third watch and led his legions in light marching order by the shortest possible route to his colleague, who was also encamped in front of another Samnite army. Acting on Postumius' advice Minucius engaged the enemy, and after the battle had gone on for the greater part of the day without either side gaining the advantage, Postumius brought up his fresh legions and made an unsuspected attack upon the enemy's wearied lines. Exhausted by fighting and by wounds they were incapable of flight and were practically annihilated. Twenty-one standards were captured. Both armies marched to the camp which Postumius had formed, and there they routed and dispersed the enemy, who were demoralised by the news of the previous battle. Twenty-six standards were captured, the captain-general of the Samnites, Statius Gellius, and a large number of men were made prisoners, and both camps were taken. The next day they commenced an attack on Bovianum which was soon taken, and the consuls after their brilliant successes celebrated a joint triumph. Some authorities assert that the consul Minucius was carried back to the camp severely wounded and died there, and that M. Fulvius was made consul in his place, and after taking over the command of Minucius' army effected the capture of Bovianum. During the year Sora, Arpinum, and Cesennia were recovered from the Samnites. The great statue of Hercules was also set up and dedicated in the Capitol.

[9.45]P. Sulpicius Saverrio and P. Sempronius Sophus were the next consuls. During their consulship the Samnites, anxious for either a termination or at least a suspension of hostilities, sent envoys to Rome to sue for peace. In spite of their submissive attitude they did not meet with a very favourable reception. The reply they received was to the effect that if the Samnites had not often made proposals for peace while they were actually preparing for war negotiations

might possibly have been entered into, but now as their words had proved worthless the question must be decided by their deeds. They were informed that the consul P. Sempronius would shortly be in Samnium with his army, and he would be able to judge accurately whether they were more disposed to peace or to war. When he had obtained all the information that he wanted he would lay it before the senate; on his return from Samnium the envoys might follow him to Rome. Wherever Sempronius marched they found the Samnites peaceably disposed and ready to supply them with provisions and stores. The old treaty was therefore restored. From that quarter the Roman arms were turned against their old enemies the Aequi. For many years this nation had remained quiet, disguising their real sentiments under a peaceable attitude. As long as the Hernicans remained unsubdued the Aequi had frequently co-operated with them in sending help to the Samnites, but after their final subjugation almost the whole of the Aequian nation threw off the mask and openly went over to the enemy. After Rome had renewed the treaty with the Samnites the fetials went on to the Aequi to demand satisfaction. They were told that their demand was simply regarded as an attempt on the part of the Romans to intimidate them by threats of war into becoming Roman citizens. How desirable a thing this citizenship was might be seen in the case of the Hernicans who, when allowed to choose, preferred living under their own laws to becoming citizens of Rome. To men who were not allowed which they would prefer, but were made Roman citizens by compulsion, it would be a punishment.

As these opinions were pretty generally expressed in their different councils, the Romans ordered war to be declared against the Aequi. Both the consuls took the field and selected a position four miles distant from the enemy's camp. As the Aequi had for many years had no experience of a national war, their army was like a body of irregulars with no properly appointed generals and no discipline or obedience. They were in utter confusion; some were of opinion that they ought to give battle, others thought they ought to confine themselves to defending their camp. The majority were influenced by the prospect of their fields being devastated and their cities, with their scanty garrisons, being destroyed. In this diversity of opinions one was given utterance to which put out of sight all care for the common weal and directed each man's regards to his own private interests.

They were advised to abandon their camp at the first watch, carry off all their belongings, and disperse to their respective cities to protect their property behind their walls. This advice met with the warmest approval from all. Whilst the enemy were thus straggling homewards, the Romans as soon as it was light marched out and formed up in order of battle, and as there was no one to oppose, they went on at a quick march to the enemy's camp. Here they found no pickets before the gates or on the rampart, none of the noise which is customary in a camp, and fearing from the unusual silence that a surprise was being prepared they came to a halt. At length they climbed over the rampart and found everything deserted. Then they began to follow up the enemy's footsteps, but as these went in all directions alike, they found themselves going further and further astray. Subsequently they discovered through their scouts what the design of the enemy was, and their cities were successively attacked. Within a fortnight they had stormed and captured thirty-one walled towns. Most of these were sacked and burnt, and the nation of the Aequi was almost exterminated. A triumph was celebrated over them, and warned by their example the Marrucini, the Marsi, the Paeligni, and the Feretrani sent spokesmen to Rome to sue for peace and friendship. These tribes obtained a treaty with Rome.

[9.46]It was during this year that Cn. Flavius, the son of a freedman, born in a humble station of life, but a clever plausible man, became curule aedile. I find in some annalists the statement that at the time of the election of aediles he was acting as apparitor to the aediles, and when he found that the first vote was given in his favour, and was disallowed on the ground that he was a clerk, he laid aside his writing tablet and took an oath that he would not follow that profession. Licinius Macer, however, attempts to show that he had given up the clerk's business for some time as he had been a tribune of the plebs, and had also twice held office as a triumvir, the first time as a triumvir nocturnus, and afterwards as one of the three commissioners for settling a colony. However this may be, there is no question that he maintained a defiant attitude towards the nobles, who regarded his lowly origin with contempt. He made public the legal forms and processes which had been hidden away in the closets of the pontiffs; he exhibited a calendar written on whitened boards in the Forum, on which were marked the days on which legal proceedings were allowed; to the intense disgust of the nobility he dedicated the temple

of Concord on the Vulcanal. At this function the Pontifex Maximus, Cornelius Barbatus, was compelled by the unanimous voice of the people to recite the usual form of devotion in spite of his insistence that in accordance with ancestral usage none but a consul or a commander-in-chief could dedicate a temple. It was in consequence of this that the senate authorised a measure to be submitted to the people providing that no one should presume to dedicate a temple or an altar without being ordered to do so by the senate or by a majority of the tribunes of the plebs.

I will relate an incident, trivial enough in itself, but affording a striking proof of the way in which the liberties of the plebs were asserted against the insolent presumption of the nobility. Flavius went to visit his colleague, who was ill. Several young nobles who were sitting in the room had agreed not to rise when he entered, on which he ordered his curule chair to be brought, and from that seat of dignity calmly surveyed his enemies, who were filled with unutterable disgust. The elevation of Flavius to the aedileship was, however, the work of a party in the Forum who had gained their power during the censorship of Appius Claudius. For Appius had been the first to pollute the senate by electing into it the sons of freedmen, and when no one recognised the validity of these elections and he failed to secure in the Senate-house the influence which he had sought to gain in the City, he corrupted both the Assembly of Tribes and the Assembly of Centuries by distributing the dregs of the populace amongst all the tribes. Such deep indignation was aroused by the election of Flavius that most of the nobles laid aside their gold rings and military decorations as a sign of mourning. From that time the citizens were divided into two parties; the uncorrupted part of the people, who favoured and supported men of integrity and patriotism, were aiming at one thing, the "mob of the Forum" were aiming at something else. This state of things lasted until Q. Fabius and P. Decius were made censors. Q. Fabius, for the sake of concord, and at the same time to prevent the elections from being controlled by the lowest of the populace, threw the whole of the citizens of the lowest class - the "mob of the Forum" - into four tribes and called them "the City Tribes." Out of gratitude for his action, it is said, he received an epithet which he had not gained by all his victories, but which was now conferred upon him for the wisdom he had shown in thus adjusting the orders in the State - the cognomen "Maximus."

It is stated that he also instituted the annual parade of the cavalry on July 15.

BOOK 10: THE THIRD SAMNITE WAR - (303 - 293 B.C.)

[10.1] During the consulship of L. Genucius and Ser. Cornelius there was almost a complete respite from foreign wars. Colonists were settled at Sora and Alba. The latter was in the country of the Aequi; 6000 colonists were settled there. Sora had been a Volscian town, but the Samnites had occupied it; 4000 men were sent there. The right of citizenship was conferred this year upon the Arpinates and the Trebulans. The Frusinates were mulcted in a third of their territory, for it had been ascertained that they were the instigators of the Hernican revolt. The senate decreed that the consuls should hold an inquiry, and the ringleaders were scourged and beheaded. However, in order that the Romans might not pass a whole year without any military operations, a small expeditionary force was sent into Umbria. A certain cave was reported to be the rendezvous of a body of freebooters, and from this hiding-place they made armed excursions into the surrounding country. The Roman troops entered this cave, and many of them were wounded, mostly by stones, owing to the darkness of the place. At length they discovered another entrance, for there was a passage right through the cave, and both mouths of the cavern were filled up with wood. This was set on fire, and, stifled by the smoke, the bandits, in trying to escape, rushed into the flames and 2000 perished. M. Livius Denther and M. Aurelius were the new consuls, and during their year of office hostilities were resumed by the Aequi. They resented the planting within their borders of a colony which was to be a stronghold of Roman power, and they made a desperate effort to capture it, but were beaten off by the colonists. In their weakened condition it seemed almost incredible that the Aequi could have begun war, relying solely upon themselves, and the fear of an indefinitely extended war necessitated the appointment of a Dictator. C. Junius Bubulcus was nominated, and he took the field, with M. Titinius as Master of the Horse. In the very first battle he crushed the Aequi, and a week later he returned in triumph to the City. Whilst Dictator he dedicated the temple of Salus which he had vowed as consul and the construction of which he had contracted for when censor.

[10.2] During the year a fleet of Greek ships under the command of the Lacedaemonian Cleonymus sailed to the shores of Italy and captured the city of Thuriae in the Sallentine country. The consul, Aemilius, was sent to meet this enemy, and in one battle he routed him and drove him to his ships. Thuriae was restored to its former inhabitants, and peace was established in the Sallentine territory. In some annalists I find it stated that the Dictator, Junius Bubulcus, was sent into that country, and that Cleonymus left Italy to avoid a conflict with the Romans. He sailed round the promontory of Brundisium, and was carried up the Adriatic, where he had on his left the harbourless shores of Italy and on his right the countries occupied by the Illyrians, the Liburnians, and the Histrians, savage tribes chiefly notorious for their acts of piracy. He dreaded the possibility of falling in with these, and consequently directed his course inland until he reached the coasts of the Veneti. Here he landed a small party to explore the neighbourhood. The information they brought back was to the effect that there was a narrow beach, and on crossing it they found lagoons which were affected by the tide; beyond these level cultivated country was visible, and in the further distance hills could be seen. At no great distance was the mouth of a river deep enough to allow of ships being brought up and safely anchored - this was the Meduacus. On hearing this he ordered the fleet to make for that river and sail up-stream. As the river channel did not admit the passage of his largest ships, the bulk of his troops went up in the lighter vessels and came to a populous district belonging to the maritime villages of the Patavii, who inhabit that coast. After leaving a few to guard the ships they landed, seized the villages, burnt the houses, and carried off the men and cattle as booty. Their eagerness for plunder led them too far from their ships. The people of Patavium were obliged to be always under arms owing to their neighbours, the Gauls, and when they heard what was going on, they divided their forces into two armies. One of these was to proceed to the district where the invaders were reported to be carrying on their depredations; the other was to go by a different route, to avoid meeting any of the plunderers, to where the ships were anchored, about fourteen miles from the town. The latter attacked the ships, and after killing those who resisted them, they compelled the terrified sailors to take their vessels over to the opposite bank. The other army had been equally successful against the plunderers, who in their flight to their ships were intercepted by

the Veneti, and, hemmed in between the two armies, were cut to pieces. Some of the prisoners informed their captors that King Cleonymus, with his fleet, was only three miles distant. The prisoners were sent to the nearest village for safe-keeping, and some of the defenders got into their river boats, which were flat-bottomed to allow of their passing over the shallows in the lagoons, whilst others manned the vessels they had captured and sailed down the river. When they reached the Greek fleet they surrounded the large ships, which were afraid to stir and dreaded unknown waters more than the enemy, and pursued them to the mouth of the river. Some which in the confused fighting had run aground were captured and burnt. After this victory they returned. Failing to effect a successful landing in any part of the Adriatic, Cleonymus sailed away with barely a fifth part of his fleet undamaged. There are many still living who have seen the beaks of the ships and the spoils of the Lacedaemonians hung up in the old temple of Juno in Patavium, and the anniversary of that battle is celebrated by a sham fight of ships on the river which flows through the town.

[10.3]The Vestinians had requested to be placed on the footing of a friendly State, and a treaty was made with them this year. Subsequently several incidents created alarm in Rome. Intelligence was received of the renewal of hostilities by the Etruscans, owing to disturbances in Arretium. The powerful house of the Cilnii had created widespread jealousy through their enormous wealth, and an attempt was made to expel them from the city. The Marsi also were giving trouble, for a body of 4000 colonists had been sent to Carseoli, and they were prevented by force from occupying the place. In view of this threatening aspect of affairs, M. Valerius Maximus was nominated Dictator, and he named M. Aemilius Paulus Master of the Horse. I think that this is more probable than that Q. Fabius was made Master of the Horse and, therefore, in a subordinate position to Valerius, in spite of his age and the offices he had held; but I am quite prepared to admit that the error arose from the cognomen Maximus, common to both men. The Dictator took the field and routed the Marsi in one battle. After compelling them to seek shelter in their fortified cities, he took Milonia, Plestina, and Fresilia within a few days. The Marsi were compelled to surrender a portion of their territory, and then the old treaty with Rome was renewed. The war was now turned against the Etruscans, and an unfortunate incident

occurred during this campaign. The Dictator had left the camp for Rome to take the auspices afresh, and the Master of the Horse had gone out to forage. He was surprised and surrounded, and after losing some standards and many of his men, he was driven in disgraceful flight back to his camp. Such a precipitate flight is contradictory to all that we know of Fabius; for it was his reputation as a soldier that more than anything else justified his epithet of Maximus, and he never forgot the severity of Papirius towards him, and could never have been tempted to fight without the Dictator's orders.

[10.4]The news of this defeat created a quite unnecessary alarm in Rome. Measures were adopted as though an army had been annihilated; all legal business was suspended, guards were stationed at the gates, watches were set in the different wards of the City, armour and weapons were stored in readiness on the walls, and every man within the military age was embodied. When the Dictator returned to the camp he found that, owing to the careful arrangements which the Master of the Horse had made, everything was quieter than he had expected. The camp had been moved back into a safer position; the cohorts who had lost their standards were punished by being stationed outside the rampart without any tents; the whole army was eager for battle that they might all the sooner wipe out the stain of their defeat. Under these circumstances the Dictator at once advanced his camp into the neighbourhood of Rusella. The enemy followed him, and although they felt the utmost confidence in a trial of strength in the open field, they decided to practice stratagem on their enemy, as they had found it so successful before. At no great distance from the Roman camp were some half-demolished houses belonging to a village which had been burnt when the land was harried. Some soldiers were concealed in these and cattle were driven past the place in full view of the Roman outposts, who were under the command of a staff-officer, Cnaeus Fulvius. As not a single man left his post to take the bait, one of the drovers, coming up close to the Roman lines, called out to the others who were driving the cattle somewhat slowly away from the ruined cottages to ask them why they were so slow, as they could drive them safely through the middle of the Roman camp. Some Caerites who were with Fulvius interpreted the words, and all the maniples were extremely indignant at the insult, but they did not dare to move without orders. He then

instructed those who were familiar with the language to notice whether the speech of the herdsmen was more akin to that of rustics or to that of town-dwellers. On being told that the accent and personal appearance were too refined for cattle-drovers, he said, "Go and tell them to unmask the ambush they have tried in vain to conceal; the Romans know all, and can now no more be trapped by cunning than they can be vanquished by arms." When these words were carried to those who were lying concealed, they suddenly rose from their lurking-place and advanced in order of battle on to the open plain, which afforded a view in all directions. The advancing line appeared to Fulvius to be too large a body for his men to withstand, and he sent a hasty message to the Dictator to ask for help; in the meantime he met the attack single-handed.

[10.5]When the message reached the Dictator, he ordered the standards to go forward and the troops to follow. But everything was done almost more rapidly than the orders were given. The standards were instantly snatched up, and the troops were with difficulty prevented from charging the enemy at a run. They were burning to avenge their recent defeat, and the shouts, becoming continually louder in the battle that was already going on, made them still more excited. They kept urging each other on, and telling the standard-bearers to march more quickly, but the more haste the Dictator saw them making the more determined was he to check the column and insist upon their marching deliberately. The Etruscans had been present in their full strength when the battle began. Message after message was sent to the Dictator telling him that all the legions of the Etruscans were taking part in the fight and that his men could no longer hold out against them, whilst he himself from his higher ground saw for himself in what a critical position the outposts were. As, however, he felt quite confident that their commander could still sustain the attack, and as he was himself near enough to save him from all danger of defeat, he decided to wait until the enemy became utterly fatigued, and then to attack him with fresh troops. Although his own men were advancing so slowly there was now only a moderate distance over which to charge, at all events for cavalry, between the two lines. The standards of the legions were in front, to prevent the enemy from suspecting any sudden or secret maneuver, but the Dictator had left intervals in the ranks of infantry through which the cavalry could pass. The legions raised the battle-shout, and

at the same moment the cavalry charged down upon the enemy, who were unprepared for such a hurricane, and a sudden panic set in. As the outposts, who had been all but cut off, were now relieved at the last moment, they were all allowed a respite from further exertions. The fresh troops took up the fighting, and the result did not long remain in doubt. The routed enemy sought their camp, and as they retreated before the Romans who were attacking it, they became crowded together in the furthest part. In trying to escape, they became blocked in the narrow gates, and a good many climbed on to the mound and stockade in the hope of defending themselves on higher ground, or possibly of crossing ramparts and fosse and so escaping. In one part the mound had been built up too loosely, and, owing to the weight of those standing on it, crumbled down into the fosse, and many, both soldiers and non-combatants, exclaiming that the gods had cleared the passage for their flight, made their escape that way. In this battle the power of the Etruscans was broken up for the second time. After undertaking to provide a year's pay for the army and a two months' supply of corn, they obtained permission from the Dictator to send envoys to Rome to sue for peace. A regular treaty of peace was refused, but they were granted a two years' truce. The Dictator returned in triumphal procession to the City. Some of my authorities aver that Etruria was pacified without any important battle being fought simply through the settlement of the troubles in Arretium and the restoration of the Cilnii to popular favour. No sooner had M. Valerius laid down the Dictatorship than he was elected consul. Some have thought that he was elected without having been a candidate and, therefore, in his absence, and that the election was conducted by an interrex. There is no question, however, that he held the consulship with Apuleius Pansa.

[10.6] During their year of office foreign affairs were fairly peaceful; the ill-success the Etruscans had met with in war and the terms of the truce kept the Etruscans quiet; the Samnites, after their many years of defeat and disaster, were so far quite satisfied with their recent treaty with Rome. In the City itself the large number of colonists sent out made the plebs less restless and lightened their financial burdens. But to prevent anything like universal tranquillity a conflict between the most prominent plebeians and the patricians was started by two of the tribunes of the plebs, Quintus and Cnaeus Ogulnius. These men had sought everywhere for an opportunity of

traducing the patricians before the plebs, and after all other attempts had failed they adopted a policy which was calculated to inflame the minds, not of the dregs of the populace, but of the actual leaders of the plebs, men who had been consuls and enjoyed triumphs, and to whose official distinctions nothing was lacking but the priesthood. This was not yet open to both orders. The Ogulnii accordingly gave notice of a measure providing that as there were at that time four augurs and four pontiffs, and it had been decided that the number of priests should be augmented, the four additional pontiffs and five augurs should all be co-opted from the plebs. How the college of augurs could have been reduced to four, except by the death of two of their number, I am unable to discover. For it was a settled rule amongst the augurs that their number was bound to consist of threes, so that the three ancient tribes of the Ramnes, Titienses, and Luceres might each have their own augur, or if more were needed, the same number should be added for each. This was the principle on which they proceeded when by adding five to four the number was made up to nine, so that three were assigned to each tribe. But the co-optation of the additional priests from the plebs created almost as much indignation amongst the patricians as when they saw the consulship made open. They pretended that the matter concerned the gods more than it concerned them; as for their own sacred functions they would see for themselves that these were not polluted; they only hoped and prayed that no disaster might befall the republic. Their opposition, however, was not so keen, because they had become habituated to defeat in these political contests, and they saw that their opponents in striving for the highest honours were not, as formerly, aiming at what they had little hopes of winning; everything for which they had striven, though with doubtful hopes of success, they had hitherto gained - numberless consulships, censorships, triumphs.

[10.7] Appius Claudius and P. Decius are said to have been the leaders in this controversy, the former as the opponent, the latter as the supporter of the proposed measure. The arguments they advanced were practically the same as those employed for and against the Licinian Laws when the demand was made for the consulship to be thrown open to the plebeians. After going over much of the old ground, Decius made a final appeal on behalf of the proposals. He began by recalling the scene which many of those present had

witnessed, when the elder Decius, his father, vested in the Gabine cincture and standing upon a spear, solemnly devoted himself on behalf of the legions and people of Rome. He proceeded, "The offering which the consul Decius made on that occasion was in the eyes of the immortal gods as pure and holy as that of his colleague, T. Manlius, would have been if he had devoted himself. Could not that Decius also have been fitly chosen to exercise priestly functions on behalf of the Roman people? And for me, are you afraid that the gods will not listen to my prayers as they do to those of Appius Claudius? Does he perform his private devotions with a purer mind or worship the gods in a more religious spirit than I do? Who has ever had occasion to regret the vows which have been made on behalf of the commonwealth by so many plebeian consuls, so many plebeian Dictators, when they were going to take command of their armies, or when they were actually engaged in battle? Count up the commanders in all the years since war was for the first time waged under the leadership and auspices of plebeians, you will find as many triumphs as commanders. The plebeians, too, have their nobility and have no cause to be dissatisfied with them. You may be quite certain that, if a war were suddenly to break out now, the senate and people of Rome would not put more confidence in a general because he was a patrician than in one who happened to be a plebeian. Now, if this is the case, who in heaven or earth could regard it as an indignity that the men whom you have honoured with curule chairs, with the toga praetexta, the tunica palmata, and the toga picta, with the triumphal crown and the laurel wreath, the men upon whose houses you have conferred special distinction by affixing to them the spoils taken from the enemy - that these men, I say, should have in addition to their other marks of rank the insignia of the pontiffs and the augurs? A triumphing general drives through the City in a gilded chariot, apparelled in the splendid vestments of Jupiter Optimus Maximus. After this he goes up to the Capitol; is he not to be seen there with capis and lituus? Is it to be regarded as an indignity, if he with veiled head slay a victim, or from his place on the citadel take an augury? And if in the inscription on his bust the words 'consulship,' 'censorship,' 'triumph' are read without arousing any indignation, in what mood will the reader regard the words which you are going to add, 'augurship' and 'pontificate'? I do indeed hope, please heaven, that, thanks to the good will of the Roman people, we now possess sufficient dignity to be capable of conferring as much honour on the

priesthood as we shall receive. For the sake of the gods as much as for ourselves let us insist that as we worship them now as private individuals so we may worship them for the future as officials of the State.

[10.8]"But why have I so far been assuming that the question of the patricians and the priesthood is still an open one, and that we are not yet in possession of the highest of all offices? We see plebeians amongst the ten keepers of the Sacred Books, acting as interpreters of the Sibyl's runes and the Fates of this people; we see them, too, presiding over the sacrifices and other rites connected with Apollo. No injustice was inflicted on the patricians when an addition was made to the number of the keepers of the Sacred Books on the demand of the plebeians. None has been inflicted now, when a strong and capable tribune has created five more posts for augurs and four more for priests which are to be filled by plebeians, not, Appius, with the design of ousting you patricians from your places, but in order that the plebs may assist you in the conduct of divine matters as they do to the utmost of their power in the administration of human affairs. "Do not blush, Appius, to have as your colleague in the priesthood a man whom you might have had as colleague in the censorship or in the consulship, who might be Dictator with you as his Master of Horse, just as much as you might be Dictator with him for your Master of the Horse. A Sabine immigrant Attius Clausus, or if you prefer it, Appius Claudius, the founder of your noble house, was admitted by those old patricians into their number; do not think it beneath you to admit us into the number of the priests. We bring with us many distinctions, all those, in fact, which have made you so proud. L. Sextius was the first plebeian to be elected consul, C. Licinius Stolo was the first plebeian Master of the Horse, C. Marcius Rutilus the first plebeian who was both Dictator and censor, Q. Publilius Philo was the first praetor. We have always heard the same objection raised - that the auspices were solely in your hands, that you alone enjoy the privileges and prerogatives of noble birth, that you alone can legitimately hold sovereign command and take the auspices either in peace or war. Have you never heard the remark that it was not men sent down from heaven who were originally created patricians, but those who could cite a father, which is nothing more than saying that they were freeborn. I can now cite a consul as my father, and my son will be able to cite him as his grandfather. It simply

comes to this, Quirites, that we can get nothing without a struggle. It is only a quarrel that the patricians are seeking, they do not care in the least about the result. I for my part support this measure, which I believe will be for your good and happiness and a blessing to the State, and I hold that you ought to pass it."

[10.9]The Assembly was on the point of ordering the voting to proceed, and it was evident that the measure would be adopted, when, on the intervention of some of the tribunes, all further business was adjourned for the day. On the morrow, the dissentient tribunes having given way, the law was passed amid great enthusiasm. The co-opted pontiffs were P. Decius Mus, the supporter of the measure, P. Sempronius Sophus, C. Marcius Rutilus, and M. Livius Denter. The five augurs who were also taken from the plebs were C. Genucius, P. Aelius Paetus, M. Minucius Faesus, C. Marcius, and T. Publilius. So the number of the pontiffs was raised to eight and that of the augurs to nine. In this year the consul, M. Valerius, carried a proposal to strengthen the provisions of the law touching the right of appeal. This was the third time since the expulsion of the kings that this law was re-enacted, and always by the same family. I think that the reason for renewing it so often was solely the fact that the excessive power exercised by a few men was dangerous to the liberties of the plebs. The Porcian law, however, seems to have been passed solely for the protection of the citizens in life and limb, for it imposed the severest penalties on any one who killed or scourged a Roman citizen. The Valerian law, it is true, forbade any one who had exercised his right of appeal to be scourged or beheaded, but if any one transgressed its provisions it added no penalty, but simply declared such transgression to be a "wicked act." Such was the self-respect and sense of shame amongst the men of those days, that I believe that declaration to have been a sufficiently strong barrier against violations of the law. Nowadays there is hardly a slave who would not use stronger language against his master.

Valerius also conducted a war against the Aequi, who had recommenced hostilities, but who retained nothing of their earlier character except their restless temper. The other consul, Apuleius, invested the town of Nequinum in Umbria. It was situated where Narnia now stands, on high ground which on one side was steep and precipitous, and it was impossible to take it either by assault or by regular siege works. It was left to the new consuls, M. Fulvius Paetus

and T. Manlius Torquatus, to carry the siege to a successful issue. According to Licinius Macer and Tubero, all the centuries intended to elect Q. Fabius consul for this year, but he urged them to postpone his consulship until some more important war broke out, for he considered that he would be more useful to the State as a City magistrate. So without dissembling his real wishes or ostensibly seeking the post, he was elected curule aedile along with L. Papirius Cursor. I cannot, however, be certain on this point, for the earlier annalist, Piso, states that the curule aediles for this year were Cn. Domitius, Cn. F. Calvinus, Sp. Carvilius, and Q. F. Maximus. I think that the cognomen of the last-mentioned aedile - Maximus - was the cause of the error, and that a story in which the lists of both elections were combined was constructed to fit in with the mistake. The lustrum was closed this year by the censors, P. Sempronius Sophus and P. Sulpicius Saverrio, and two new tribes were added, the Aniensis and the Teretina. These were the principal events of the year in Rome.

[10.10] Meantime the siege of Nequinum was dragging slowly on and time was being wasted. At length two of the townsmen, whose houses abutted on the city wall, made a tunnel, and came by that secret passage to the Roman outposts. They were conducted to the consul, and undertook to admit a detachment of soldiers within the fortifications and the city walls. It did not seem right to reject their proposal, nor yet to accept it offhand. One of them was instructed to conduct two spies through the underground passage; the other was detained as a hostage. The report of the spies was satisfactory, and 300 soldiers, led by the deserter, entered the city by night and seized the nearest gate. This was broken open, and the consul with his army took possession of the place without any fighting. Thus Nequinum passed into the power of Rome. A colony was sent there as an outpost against the Umbrians, and the place was called Narnia from the river Nar. The army marched back to Rome with a large amount of spoil. This year the Etruscans determined to break the truce, and began to make preparations for war. But the invasion of their country by an enormous army of Gauls - the last thing they were expecting - turned them for a time from their purpose. Trusting to the power of money, which with them was very considerable, they endeavoured to convert the Gauls from enemies into allies in order that they might combine their forces in an attack on Rome. The barbarians did not

object to an alliance, the only question was as to the amount of pay. After this had been agreed upon and all the other preparations for war had been completed, the Etruscans called upon the Gauls to follow them. They refused to do so, and asserted that they had not taken the money to make war on Rome. Whatever they had received had been accepted as compensation for not devastating the land of Etruria or subjecting its inhabitants to armed violence. However, they expressed their willingness to serve if the Etruscans really wished them to do so, but only on one condition, namely that they should be admitted to a share of their territory and be able to settle at last in a permanent home. Many councils were held in the various cantons to discuss this proposal, but it was found impossible to accept the terms, not so much because they would not consent to any loss of territory as because they dreaded the prospect of having as their neighbours men belonging to such a savage race. The Gauls were accordingly dismissed, and carried back with them an enormous sum of money gained without labour and without risk. The rumour of a Gaulish invasion in addition to the Etruscan war created alarm in Rome, and there was less hesitation in concluding a treaty with the Picentes.

[10.11]The campaign in Etruria fell to the consul T. Manlius. He had scarcely entered the hostile territory when, as he was wheeling his horse round in some cavalry exercises, he was flung off and almost killed on the spot. Three days later the consul ended his life. The Etruscans derived encouragement from this incident, for they took it as an omen, and declared that the gods were fighting for them. When the sad news reached Rome, not only was the loss of the man severely felt, but also the inopportuneness of the time when it occurred. The senate were prepared to order the nomination of a Dictator, but refrained from doing so as the election of a successor to the consul went quite in accordance with the wishes of the leading patricians. Every vote was given in favour of M. Valerius, the man whom the senate had decided upon as Dictator. The legions were at once ordered to Etruria. Their presence acted as such a check upon the Etruscans that no one ventured outside their lines; their fears shut them up as closely as though they were blockaded. Valerius devastated their fields and burnt their houses, till not only single farms but numerous villages were reduced to smoking ashes, but he failed to bring the enemy to action. While this war was progressing

more slowly than had been anticipated, apprehensions were felt as to another war which, from the numerous defeats sustained formerly on both sides, was not unreasonably regarded with dread. The Picentes had sent information that the Samnites were arming for war, and that they had approached the Picentes to induce them to join them. The latter were thanked for their loyalty, and the public attention was diverted to a large extent from Etruria to Samnium. The dearness of provisions caused widespread distress amongst the citizens. Those writers who make Fabius Maximus a curule aedile for that year assert that there would have been actual famine if he had not shown the same wise care in the control of the market and the accumulation of supplies which he had so often before displayed in war. An interregnum occurred this year - tradition assigns no reason for it. The interreges were Ap. Claudius and P. Sulpicius. The latter held the consular elections, at which L. Cornelius Scipio and Cn. Fulvius were returned. At the beginning of their year a deputation came from the Lucanians to lay a formal complaint against the Samnites. They informed the senate that that people had tried to allure them into forming an offensive and defensive alliance with them, and, finding their efforts futile, they invaded their territory and were laying it waste, and so, by making war upon them, trying to drive them into a war with Rome. The Lucanians, they said, had made too many mistakes already; they had now quite made up their minds that it would be better to bear and suffer everything than to attempt anything against Rome. They implored the senate to take them under its protection and to defend them from the wanton aggressions of the Samnites. They were fully aware that if Rome declared war against Samnium their loyalty to her would be a matter of life and death, but, notwithstanding that, they were prepared to give hostages as a guarantee of good faith.

[10.12]The discussion in the senate was brief. The members unanimously decided that a treaty of close alliance should be made with the Lucanians and satisfaction demanded from the Samnites. When the envoys were readmitted, they received a favourable reply and a treaty was concluded with them. The fetials were sent to insist upon the evacuation by the Samnites of the territories of the allies of Rome and the withdrawal of their forces from the Lucanian frontiers. They were met by emissaries from the Samnites, who warned them that if they appeared in any of the Samnite councils their inviolability

would be no longer respected. On this being reported in Rome, the Assembly confirmed the resolution passed by the senate and ordered war to be made upon the Samnites. In the allotment of their respective commands Etruria fell to Scipio and the Samnites to Fulvius. Both consuls took the field. Scipio, who was anticipating a tedious campaign similar to the one of the previous year, was met by the enemy in battle formation at Volaterrae. The contest lasted the greater part of the day, with heavy loss on both sides. Night came on whilst they were still uncertain with whom the victory lay; the following morning made it clear, for the Etruscans had abandoned their camp in the dead of the night. When the Romans marched out to battle and saw that the enemy had by their action admitted their defeat, they went on to the deserted camp. This they took possession of, and as it was a standing camp and had been hurriedly abandoned, they secured a considerable amount of booty. The troops were marched back into the neighbourhood of Falerii, and after leaving the baggage with a small escort there they proceeded, in light marching order, to harry the Etruscan land. Everything was laid waste with fire and sword; prey was driven in from all sides. Not only was the soil left an absolute waste for the enemy, but their fortified posts and villages were burnt. The Romans refrained from attacking the cities in which the terrified Etruscans had sought shelter. Cnaeus Fulvius fought a brilliant action at Bovianum in Samnium, and gained a decisive victory. He then carried Bovianum by storm, and not long afterwards Aufidena.

[10.13] During the year a colony was settled at Carseoli, in the country of the Aequicoli. The consul Fulvius celebrated a triumph over the Samnites. Just as the consular elections were coming on, a rumour spread that the Etruscans and Samnites were levying immense armies. According to the reports which were sent, the leaders of the Etruscans were attacked in all the cantonal council meetings for not having brought the Gauls over on any terms whatever to take part in the war; the Samnite government were abused for having employed against the Romans a force which was only raised to act against the Lucanians; the enemy was arising in his own strength and in that of his allies to make war on Rome, and matters would not be settled without a conflict on a very much larger scale than formerly. Men of distinction were amongst the candidates for the consulship, but the gravity of the danger turned all eyes to Quintus Fabius Maximus. He

at first simply declined to become a candidate, but when he saw the trend of popular feeling he distinctly refused to allow his name to stand: "Why," he asked, "do you want an old man like me, who has finished his allotted tasks and gained all the rewards they have brought? I am not the man I was either in strength of body or mind, and I fear lest some god should even deem my good fortune too great or too unbroken for human nature to enjoy. I have grown up to the measure of the glory of my seniors, and I would gladly see others rising to the height of my own renown. There is no lack of honours in Rome for the strongest and most capable men, nor is there any lack of men to win the honour." This display of modesty and unselfishness only made the popular feeling all the keener in his favour by showing how rightly it was directed. Thinking that the best way of checking it would be to appeal to the instinctive reverence for law, he ordered the law to be rehearsed which forbade any man from being re-elected consul within ten years. Owing to the clamour the law was hardly heard, and the tribunes of the plebs declared that there was no impediment here; they would make a proposition to the Assembly that he should be exempt from its provisions. He, however, persisted in his refusal, and repeatedly asked what was the object in making laws if they were deliberately broken by those who made them; "we," said he, "are now ruling the laws instead of the laws ruling us." Notwithstanding his opposition the people began to vote, and as each century was called in, it declared without the slightest hesitation for Fabius. At last, yielding to the general desire of his countrymen, he said, "May the gods approve what you have done and what you are going to do. Since, however, you are going to have your own way as far as I am concerned, give me the opportunity of using my influence with you so far as my colleague is concerned. I ask you to elect as my fellow-consul, P. Decius, a man whom I have found to work with me in perfect harmony, a man who is worthy of your confidence, worthy of his illustrious sire." The recommendation was felt to be well deserved, and all the centuries which had not yet voted elected Q. Fabius and P. Decius consuls. During the year a large number of people were prosecuted by the aediles for occupying more than the legal quantity of land. Hardly one could clear himself from the charge, and a very strong curb was placed upon inordinate covetousness.

[10.14]The consuls were busy with their arrangements for the campaign, deciding which of them should deal with the Etruscans, and which with the Samnites, what troops they would each require, which field of operations each was best fitted for, when envoys arrived from Sutrium, Nepete, and Falerii bringing definite information that the local assemblies of Etruria were being convened to decide upon a peace policy. On the strength of this information the whole weight of war was turned against the Samnites. In order to facilitate the transport of supplies, and also to make the enemy more uncertain as to the line of the Roman advance, Fabius led his legions by way of Sora, while Decius proceeded through the Sidicine district. When they had crossed the frontiers of Samnium they marched on a widely extended front, laying the country waste as they went on. They threw out their scouting parties still more widely, and so did not fail to discover the enemy near Tifernum. They had concealed themselves in a secluded valley, prepared to attack the Romans, should they enter the valley, from the rising ground on each side. Fabius removed the baggage into a safe place and left a small guard over it. He then informed his men that a battle was impending, and massing them into a solid square came up to the above-mentioned hiding-place of the enemy. The Samnites, finding all chance of a surprise hopeless, since matters would have to be decided by an action in the open, thought it better to meet their foes in a pitched battle. Accordingly they came down to the lower ground, and placed themselves in the hands of Fortune with more of courage than of hope. But whether it was that they had got together the whole strength out of every community in Samnium, or that their courage was stimulated by the thought that their very existence as a nation depended upon this battle, they certainly did succeed in creating a good deal of alarm in the Roman ranks, even though they were fighting in a fair field. When Fabius saw that the enemy were holding their ground in every part of the field, he rode up to the first line with his son, Maximus, and Marcus Valerius, both military tribunes, and ordered them to go to the cavalry and tell them that if they remembered any single occasion on which the republic had been aided by the efforts of the cavalry, they should that day strive their utmost to sustain the reputation of that invincible arm of the State, for the enemy were standing immovable against the infantry and all their hopes rested on the cavalry. He made a personal appeal to each of them, showering commendations upon them and holding out the

prospect of great rewards. Since, however, the cavalry charge might fail in its object, and attacking in force prove useless, he thought he ought to adopt a stratagem. Scipio, one of his staff, received instructions to draw off the hastati of the first legion and, attracting as little observation as possible, take them to the nearest hills. Then climbing up where they could not be seen, they were suddenly to show themselves in the enemy's rear.

The cavalry, led by the two young tribunes, dashed out in front of the standards, and their sudden appearance created almost as much confusion amongst their own people as amongst the enemy. The Samnite line stood perfectly firm against the galloping squadrons, nowhere could they be forced back or broken. Finding their attempt a failure, the cavalry retired behind the standards and took no further part in the fighting. This increased the courage of the enemy, and the Roman front could not have sustained the prolonged contest, met as they were by a resistance which was becoming more stubborn as its confidence rose, had not the consul ordered the second line to relieve the first. These fresh troops checked the advance of the Samnites, who were now pressing forward. Just at this moment the standards were descried on the hills, and a fresh battle-shout arose from the Roman ranks. The alarm which was created among the Samnites was greater than circumstances warranted, for Fabius exclaimed that his colleague Decius was coming, and every soldier, wild with joy, took up the cry and shouted that the other consul with his legions was at hand. This mistake occurring so opportunely filled the Samnites with dismay; they dreaded, exhausted as they were by fighting, the prospect of being overwhelmed by a second army, fresh and unhurt. Unable to offer any further resistance they broke and fled, and owing to their scattered flight, the bloodshed was small when compared with the greatness of the victory; 3400 were killed, about 830 made prisoners, and 23 standards were captured.

[10.15] Before this battle took place the Samnites would have been joined by the Apulians had not the consul Decius anticipated their action by fixing his camp at Maleventum. He drew them into an engagement and routed them, and in this battle also there were more who escaped by flight than were slain; these amounted to 2000. Without troubling himself further about the Apulians, Decius led his army into Samnium. There the two consular armies spent five months in ravaging and desolating the country. There were forty-five

different places in Samnium where Decius at one time or another had fixed his camp; in the case of the other consul there were eighty-six. Nor were the only traces left those of ramparts and fosses, more conspicuous still were those which attested the devastation and depopulation of all the country round. Fabius also captured the city of Cimetra, where 2900 became prisoners of war, 830 having been killed during the assault. After this he returned to Rome for the elections and arranged for them to be held at an early date. The centuries who voted first declared without exception for Fabius. Amongst the candidates was the energetic and ambitious Appius Claudius. Anxious to secure the honour for himself, he was quite as anxious that both posts should be held by patricians, and he brought his utmost influence, supported by the whole of the nobility, to bear upon the electors so that they might return him together with Fabius. At the outset Fabius refused, and alleged the same grounds for his refusal as he had alleged the year before. Then all the nobles crowded round his chair and begged him to extricate the consulship from the plebeian mire and restore both to the office itself and to the patrician houses the august dignity which they possessed of old. As soon as he could obtain silence he addressed them in terms which calmed their excitement. He would, he said, have arranged to admit votes for two patricians if he saw that any one else than himself was being elected, but as matters were he would not allow his name to stand, since it would be against the law and form a most dangerous precedent. So L. Volumnius, a plebeian, was elected together with Appius Claudius; they had already been associated in a previous consulship. The nobles taunted Fabius and said that he refused to have Appius Claudius as a colleague because he was unquestionably his inferior in eloquence and state-craft.

[10.16]When the elections were over, the previous consuls received a six months' extension of their command and were ordered to prosecute the war in Samnium. P. Decius, who had been left by his colleague in Samnium and was now proconsul, continued his ravages of the Samnite fields until he had driven their army, which nowhere ventured to encounter him, outside their frontiers. They made for Etruria, and were in hopes that the object which they had failed to secure by their numerous deputations might be achieved now that they had a strong force and could back up their appeals by intimidation. They insisted upon a meeting of the Etruscan chiefs

being convened. When it had assembled they pointed out how for many years they had been fighting with the Romans, how they had tried in every possible way to sustain the weight of that war in their own strength, and how they had proved the assistance of their neighbours to be of small value. They had sued for peace because they could no longer endure war, they had taken to war again because a peace which reduced them to slavery was heavier to bear than a war in which they could fight as free men. The only hope left to them now lay in the Etruscans. They knew that they of all the nations of Italy were the richest in arms and men and money, and they had for their neighbours the Gauls, trained to arms from the cradle, naturally courageous to desperation and especially against the Romans, a nation whom they justly boast of having captured and then allowing them to ransom themselves with gold. If the Etruscans had the same spirit which Porsena and their ancestors once had there was no reason why they should not expel the Romans from the whole of their land as far as the Tiber and compel them to fight, not for their insupportable dominion over Italy, but for their very existence. The Samnite army had come to them completely provided with arms and a war chest, and were ready to follow them at once, even if they led them to an attack on Rome itself.

[10.17]While they were thus busy with their intrigues in Etruria the warfare which the Romans were carrying on in Samnium was terribly destructive. When P. Decius had ascertained through his scouts the departure of the Samnite army he summoned a council of war. "Why," he asked, "are we foaming through the country districts, making war only upon the villages? Why are we not attacking the walled cities? There is no army to defend them, the army has abandoned its country and gone into voluntary exile." His proposal was unanimously adopted and he led them to the attack of Murgantia, a powerfully fortified city. Such was the eagerness of the soldiers, due partly to the affection they felt for their commander and partly to the expectation of a larger amount of plunder than they were securing in the country districts, that they stormed and captured the city in a single day. Two thousand one hundred combatants were cut off and made prisoners and an enormous quantity of plunder was seized. To avoid loading the army with a lot of heavy baggage Decius called his men together and addressed them thus: "Are you going to content yourselves with this one victory and this spoil? Raise your hopes and

expectations to the height of your courage. All the cities of the Samnites and all the wealth left in them are yours now that their legions, routed in so many battles, have at last been driven by you beyond their frontiers. Sell what you now hold and attract traders by the hope of profit to follow our armies; I shall frequently supply you with things for sale. Let us go on to the city of Romulea where still greater spoil awaits you but not greater exertions."

The booty was then sold and the men, urging on their commander, marched to Romulea. Here, too, no siege works were constructed, no artillery employed, the moment the standards were brought up to the walls no resistance on the part of the defenders could keep the men back; they planted their scaling-ladders just where they happened to be, and swarmed on to the walls. The town was taken and sacked, 2300 were killed, 6000 taken prisoners, and a vast amount of plunder secured, which the troops, as before, were obliged to dispose of to the traders. The next place to be attacked was Ferentinum, and though no rest was allowed the men, they marched thither in the highest spirits. Here, however, they had more trouble and more risk. The position had been made as strong as possible by nature and by art, and the walls were defended with the utmost energy, but a soldiery habituated to plunder overcame all obstacles. As many as 3000 of the enemy were killed round the walls; the plunder was given to the troops. In some annalists the greater part of the credit of these captures is given to Maximus; Decius they say took Murgantia, Ferentinum and Romulea being captured by Fabius. Some again claim this honour for the new consuls, while a few restrict it to L. Volumnius, to whom they say Samnium was assigned as his sphere of action.

[10.18]Whilst this campaign was going on in Samnium - whoever may have been the commander - a very serious war against Rome was being organised in Etruria, in which many nations were to take part. The chief organiser was Gellius Egnatius, a Samnite. Almost all the Tuscan cantons had decided on war, the contagion had infected the nearest cantons in Umbria, and the Gauls were being solicited to help as mercenaries. All these, were concentrating at the Samnite camp. When the news of this sudden rising reached Rome, L. Volumnius had already left for Samnium with the second and third legions and 15,000 allied troops; it was therefore decided that Appius Claudius should at the earliest possible moment enter Etruria. Two Roman

legions followed him, the first and fourth, and 12,000 allies. He fixed his camp not far from the enemy. The advantage gained by his prompt arrival did not, however, show itself in any wise or fortunate generalship on his part so much as the check imposed by the fear of Rome upon some of the Etrurian cantons which were meditating war. Several engagements took place in unfavourable positions and at unfortunate times, and the more the enemy's hopes of success, the more formidable he became. Matters almost reached the point when the soldiers distrusted their general and the general had no confidence in his soldiers. I find it stated by some annalists that he sent a letter to his colleague summoning him from Samnium, but I cannot assert this as a fact since this very circumstance became a subject of dispute between the two consuls, who were now in office together for the second time; Appius denying that he had sent any letter and Volumnius insisting that he had been summoned by a letter from Appius.

Volumnius had by this time taken three fortified posts in Samnium in which as many as 3000 men were killed and almost half that number made prisoners. He had also sent Q. Fabius, the proconsul, with his veteran army, much to the satisfaction of the Lucanian magnates, to repress the disturbances which had been got up in that part of the country by the plebeian and indigent classes. Leaving the ravaging of the enemy's fields to Decius he proceeded with his whole force to Etruria. On his arrival he was universally welcomed. As to the way Appius treated him, I think that if he had a clear conscience in the matter, that is, if he had written nothing, his anger was justifiable, but if he had really stood in need of help he showed a disingenuous and ungrateful spirit in concealing the fact. When he went out to meet his colleague, almost before they had had time to exchange mutual greetings, he asked: "Is all well, Volumnius? How are things going in Samnium? What induced you to leave your allotted province?" Volumnius replied that all was going on satisfactorily and that he had come because he had been asked to do so by letter. If it was a forgery and there was nothing for him to do in Etruria he would at once countermarch his troops and depart. "Well then," said Appius, "go, let nobody keep you here, for it is by no means right that whilst perhaps you are hardly able to cope with your own war you should boast of having come to the assistance of others." "May Hercules guide all for the best," replied Volumnius. "I

would rather have taken all this trouble in vain than that anything should happen which would make one consular army insufficient for Etruria."

[10.19]As the consuls were parting from each other, the staff-officers and military tribunes stood round them; some of them implored their own commander not to reject the assistance of his colleague, assistance which he himself ought to have invited and which was now spontaneously offered; many of the others tried to stop Volumnius as he was leaving and appealed to him not to betray the safety of the republic through a wretched quarrel with his colleague. They urged that if any disaster occurred the responsibility for it would fall on the one who abandoned the other, not on the other who was abandoned; it came to this - all the glory of success and all the disgrace of failure in Etruria was transferred to Volumnius. People would not inquire what words Appius had used, but what fortune the army was meeting with; he may have been dismissed by Appius, but his presence was demanded by the republic and by the army. He had only to test the feelings of the soldiers to find this out for himself. Amidst appeals and warnings of this character they almost dragged the reluctant consuls into a council of war. There the dispute which had previously been witnessed by only a few went on at much greater length. Volumnius had not only the stronger case, but he showed himself by no means a bad speaker, even when compared with the exceptional eloquence of his colleague. Appius remarked sarcastically that they ought to look upon it as due to him that they had a consul who was actually able to speak, instead of the dumb inarticulate man he once was. In their former consulship, especially during the first months of office, he could not open his lips, now he was becoming quite a popular speaker. Volumnius observed, "I would much rather that you had learnt from me to act with vigour and decision than that I should have learnt from you to be a clever speaker." He finally made a proposal which would settle the question who was - not the better orator, for that was not what the republic needed, but - the better commander. Their two provinces were Etruria and Samnium; Appius might choose which he preferred, he, Volumnius, was willing to conduct operations either in Etruria or in Samnium. On this the soldiers began to clamour; they insisted that both consuls should carry on the war in Etruria. When Volumnius saw that this was the general wish he said, "Since I have made a mistake in interpreting my

colleague's wishes I will take care that there shall be no doubt as to what it is that you want. Signify your wishes by acclamation; do you wish me to stay or to go? "Such a shout arose in reply that it brought the enemy out of their camp; seizing their arms they came down to the battlefield. Then Volumnius ordered the battle signal to be sounded and the standards to be carried out of the camp. Appius, it is said, was for some time undecided, as he saw that whether he fought or remained inactive the victory would be his colleague's, but at last, fearing lest his legions also should follow Volumnius, he yielded to their loud demands and gave the signal for battle.

On both sides the dispositions were far from complete. The Samnite captain-general, Gellius Egnatius, had gone off with a few cohorts on a foraging expedition, and his troops commenced the battle in obedience to their own impulses rather than to any word of command. The Roman armies again were not both led to the attack at the same time, nor was sufficient time allowed for their formation. Volumnius was engaged before Appius reached the enemy, so the battle began on an irregular front, and the usual opponents happened to be interchanged, the Etruscans facing Volumnius and the Samnites, after a short delay owing to their leader's absence, closing with Appius. The story runs that he lifted up his hands to heaven so as to be visible to those about the foremost standards and uttered this prayer: "Bellona! if thou wilt grant us victory today, I, in return, vow a temple to thee." After this prayer it seemed as though the goddess had inspired him, he displayed a courage equal to his colleague's, or indeed to that of the whole army. Nothing was lacking on the part of the generals to ensure success, and the rank and file in each of the consular armies did their utmost to prevent the other from being the first to achieve victory. The enemy were quite unable to withstand a force so much greater than any they had been accustomed to meet, and were in consequence routed and put to flight. The Romans pressed the attack when they began to give ground, and when they broke and fled, followed them up till they had driven them to their camp. There the appearance of Gellius and his cohorts led to a brief stand being made; soon, however, these were routed and the victors attacked the camp. Volumnius encouraging his men by his own example led the attack upon one of the gates in person, whilst Appius was kindling the courage of his troops by repeatedly invoking "Bellona the victorious." They succeeded in

forcing their way through rampart and fosse; the camp was captured and plundered, and a very considerable amount of booty was discovered and given to the soldiery; 6900 of the enemy were killed, 2120 made prisoners.

[10.20] Whilst both the consuls with the whole strength of Rome were devoting their energies more and more to the Etruscan war, fresh armies were raised in Samnium for the purpose of ravaging the territories which belonged to the feudatories of Rome. They passed through the Vescini into the country round Capua and Falernum and secured immense spoil. Volumnius was returning to Samnium by forced marches, for the extended command of Fabius and Decius had almost expired, when he heard of the devastations which the Samnites were committing in Campania. He at once diverted his route in that direction to protect our allies. When he was in the neighbourhood of Cales he saw for himself the fresh traces of the destruction that had been wrought, and the inhabitants informed him that the enemy were carrying off so much plunder that they could hardly keep any proper formation on the march. In fact their generals had openly given out that they dared not expose an army so heavily laden to the chances of battle, and they must at once return to Samnium and leave their plunder there, after which they would return for a fresh raid. However true all this might be, Volumnius thought he ought to get further information, and accordingly he despatched some cavalry to pick up any stragglers they might find among the raiders. On questioning them he learnt that the enemy were halted at the river Volturnus, and were going to move forward at the third watch and take the road to Samnium. Satisfied with this information he marched on and fixed his camp at such a distance from the enemy that while it was not close enough for his arrival to be detected it was sufficiently near to allow of his surprising them while they were leaving their camp. Some time before daylight he approached their camp and sent some men familiar with the Oscan language to find out what was going on. Mingling with the enemy, an easy matter in the confusion of a nocturnal departure, they found that the standards had already gone with only a few to defend them, the booty and those who were to escort it were just leaving, the army as a whole were incapable of any military evolution, for each was looking after his own affairs, without any mutually arranged plan of action or any definite orders from their commander. This seemed the moment for

delivering his attack, and daylight was approaching, so he ordered the advance to be sounded and attacked the enemy's column. The Samnites were encumbered with their booty, only a few were in fighting trim; some hurried on and drove before them the animals they had seized, others halted, undecided whether to go on or retreat to the camp; in the midst of their hesitation they were surrounded and cut off. The Romans had now got over the rampart, and the camp became a scene of wild disorder and carnage. The confusion created in the Samnite column by the swiftness of the attack was increased by the sudden outbreak of their prisoners. Some after releasing themselves broke the fetters of those round them, others snatched the weapons which were fastened up with the baggage and created in the centre of the column a tumult more appalling even than the battle which was going on. Then they achieved a most extraordinary feat. Staius Minacius, the general commanding, was riding up and down the ranks encouraging his men, when the prisoners attacked him, and after dispersing his escort, hurried him off, whilst still in the saddle, as a prisoner to the Roman consul. The noise and the tumult recalled the cohorts who were at the head of the column, and the battle was resumed, but only for a short time, as a long resistance was impossible. As many as 6000 men were killed, there were 2500 prisoners, amongst them four military tribunes, thirty standards were taken, and, what gave the victors more pleasure than anything else, 7400 captives were rescued and the immense booty which had been taken from the allies recovered. Public notice was given inviting the owners to identify and recover what belonged to them. Everything for which no owner appeared on the appointed day was given to the soldiers, but they were obliged to sell it all that nothing might distract their thoughts from their military duties.

[10.21] This predatory incursion into Campania created great excitement in Rome, and it so happened that just at this time grave news was received from Etruria. After the withdrawal of Volumnius' army, the whole country, acting in concert with the Samnite captain-general, Gellius Egnatius, had risen in arms; whilst the Umbrians were being called on to join the movement, and the Gauls were being approached with offers of lavish pay. The senate, thoroughly alarmed at these tidings, ordered all legal and other business to be suspended, and men of all ages and of every class to be enrolled for service. Not only were the freeborn and all within the military age obliged to take

the oath, but cohorts were formed of the older men, and even the freedmen were formed into centuries. Arrangements were made for the defence of the City, and P. Sempronius took supreme command. The senate was, however, relieved of some of its anxiety by the receipt of despatches from L. Volumnius, from which it was ascertained that the raiders of Campania had been routed and killed. Thanksgivings for this success were ordered in honour of the consul, the suspension of business was withdrawn after lasting eighteen days, and the thanksgivings were of a most joyous character. The next question was the protection of the district which had been devastated by the Samnites, and it was decided to settle bodies of colonists about the Vescinian and Falernian country. One was to be at the mouth of the Liris, now called the colony of Menturna, the other in the Vescinian forest where it is contiguous with the territory of Falernum. Here the Greek city of Sinope is said to have stood, and from this the Romans gave the place the name of Sinuessa. It was arranged that the tribunes of the plebs should get a plebiscite passed requiring P. Sempronius, the praetor, to appoint commissioners for the founding of colonies in those spots. But it was not easy to find people to be sent to what was practically a permanent outpost in a dangerously hostile country, instead of having fields allotted to them for cultivation. The attention of the senate was diverted from these matters to the growing seriousness of the outlook in Etruria. There were frequent despatches from Appius warning them not to neglect the movement that was going on in that part of the world; four nations were in arms together, the Etruscans, the Samnites, the Umbrians, and the Gauls, and they were compelled to form two separate camps, for one place would not hold so great a multitude. The date of the elections was approaching, and Volumnius was recalled to Rome to conduct them, and also to advise on the general policy. Before calling upon the centuries to vote he summoned the people to an Assembly. Here he dwelt at some length upon the serious nature of the war in Etruria. Even, he said, when he and his colleague were conducting a joint campaign, the war was on too large a scale for any single general with his one army to cope with. Since then he understood that the Umbrians and an enormous force of Gauls had swollen the ranks of their enemies. The electors must bear in mind that two consuls were being elected on that day to act against four nations. The choice of the Roman people would, he felt certain, fall on the one man who was unquestionably the foremost of all their

generals. Had he not felt sure of this he was prepared to nominate him at once as Dictator.

[10.22]After this speech no one felt the slightest doubt that Q. Fabius would be unanimously elected. The "prerogative" centuries and all those of the first class were voting for him and Volumnius, when he again addressed the electors very much in the terms he had employed two years before, and as on the former occasion when he yielded to the universal wish, so now he again requested that P. Decius might be his colleague. He would be a support for his old age to lean upon, they had been together as censors, and twice as consuls, and he had learnt by experience that nothing went further to protect the State than harmony between colleagues. He felt that he could hardly at his time of life get accustomed to a new comrade in office, he could so much more easily share all his counsels with one whose character and disposition he knew. Volumnius confirmed what Fabius had said. He bestowed a well-deserved encomium on Decius, and pointed out what an advantage in military operations is gained by harmony between the consuls, and what mischief is wrought when they are at variance. He mentioned as an instance the recent misunderstanding between him and his colleague which almost led to a national disaster, and he solemnly admonished Decius and Fabius that they should live together with one mind and one heart. They were, he continued, born commanders, great in action, unskilled in wordy debate, possessing, in fact, all the qualifications of a consul. Those, on the other hand, who were clever and cunning in law, and practiced pleaders, like Appius Claudius, ought to be employed in the City and on the bench; they should be elected praetors to administer justice. The discussion in the Assembly lasted the whole day. On the morrow the elections were held for both consuls and praetors. The consul's recommendation was acted upon; Q. Fabius and P. Decius were elected consuls, and Appius Claudius was returned as praetor; they were all elected in their absence. The senate passed a resolution, which the Assembly confirmed by a plebiscite, that Volumnius' command should be extended for a year.

[10.23]Several portents occurred this year and, with the view of averting them, the senate passed a decree that special intercessions should be offered for two days. The wine and incense were provided at the public cost, and both men and women attended the religious functions in great numbers. This time of special observance was

rendered memorable by a quarrel which broke out amongst the matrons in the chapel of the Patrician Pudicitia, which is in the Forum Boarium, against the round temple of Hercules. Verginia, the daughter of Aulus Verginius, a patrician, had married the plebeian consul, L. Volumnius, and the matrons excluded her from their sacred rites because she had married outside the patriciate. This led to a brief altercation, which, as the women became excited, soon blazed up into a storm of passion. Verginia protested with perfect truth that she entered the temple of Pudicitia as a patrician and a pure woman, the wife of one man to whom she had been betrothed as a virgin, and she had nothing to be ashamed of in her husband or in his honourable career and the offices which he had held. The effect of her high-spirited language was considerably enhanced by her subsequent action. In the Vicus Longus, where she lived, she shut off a portion of her house, sufficient to form a moderately sized chapel, and set up an altar there. She then called the plebeian matrons together and told them how unjustly she had been treated by the patrician ladies. "I am dedicating," she said, "this altar to the Plebeian Pudicitia, and I earnestly exhort you as matrons to show the same spirit of emulation on the score of chastity that the men of this City display with regard to courage, so that this altar may, if possible, have the reputation of being honoured with a holier observance and by purer worshippers than that of the patricians." The ritual and ceremonial practiced at this altar was almost identical with that at the older one; no matron was allowed to sacrifice there whose moral character was not well attested, and who had had more than one husband. Afterwards it was polluted by the presence of women of every kind, not matrons only, and finally passed into oblivion. The curule aediles, Cnaeus and Quintus Ogulnius, brought up several money-lenders for trial this year. The proportion of their fines which was paid into the treasury was devoted to various public objects; the wooden thresholds of the Capitol were replaced by bronze, silver vessels were made for the three tables in the shrine of Jupiter, and a statue of the god himself, seated in a four-horsed chariot, was set up on the roof. They also placed near the Ficus Ruminalis a group representing the Founders of the City as infants being suckled by the she-wolf. The street leading from the Porta Capena to the temple of Mars was paved, under their instructions, with stone slabs. Some graziers were also prosecuted for exceeding the number of cattle allowed them on the public land, and the plebeian aediles, L. Aelius

Paetus and C. Fulvius Curvus, spent the money derived from their fines on public games and a set of golden bowls to be placed in the temple of Ceres.

[10.24]Q. Fabius and P. Decius were now entering their year of office, the former being consul for the fifth time, the latter for the fourth. Twice before they had been consuls together, they had held the censorship together and the perfect unanimity between them, quite as much as their discharge of its duties, made their tenure of office a distinguished one. But this was not to last for ever; the conflict which broke out between them was, however, I think, due more to the antagonism of the two orders to which they belonged than to any personal feeling on their part. The patrician senators were extremely anxious that Fabius should have Etruria assigned to him without going through the usual procedure; the plebeian senators urged Decius to insist upon the question being settled in the usual way by lot. There was, at all events, a sharp division of opinion in the senate, and, when it became apparent that the Fabian interest was the stronger, the matter was referred to the people. As both were first of all soldiers, trusting more to deeds than to words, their speeches before the Assembly were brief. Fabius declared that it would be an unworthy proceeding if another should gather up the fruit beneath the tree which he had planted; he had opened up the Ciminian forest and made a way through pathless jungle for the arms of Rome. Why had they troubled him at his time of life, if they were going to carry on the war under another general? Then he turned to Decius: "Surely," he said, "I have chosen an opponent, not a comrade, in office; Decius is annoyed at our three years of joint power having been so harmonious." Finally, he asserted that he desired nothing more than that if they thought him worthy of that command, they should send him there; he had bowed to the will of the senate and should accept the decision of the people.

P. Decius, in reply, protested against the injustice of the senate. The patricians, he said, had done their utmost to exclude the plebeians from the great offices of the State. Since personal merit had so far won the day that it no longer failed of recognition in any class of men, their object was now not only to stultify the deliberate decisions of the people as expressed by their votes, but even to turn the judgments which Fortune is ever passing into so many reasons for retaining their power, small as their number was. All the consuls

before his time had drawn lots for their commands, now the senate was giving Fabius his province independently of the lot. If this was simply as a mark of honour, then he would admit that Fabius had rendered services both to the republic and to himself and he would gladly consent to anything that would add to his reputation, provided it did not involve casting a slur upon himself. But who could fail to see that when a peculiarly difficult and formidable war is entrusted to one consul without any resort to the lot, it means that the other consul is regarded as superfluous and useless? Fabius pointed with pride to his achievements in Etruria; Decius wished to be able to do so too, and possibly he might succeed in totally extinguishing the fire which the other had only smothered, and smothered in such a way that it was constantly breaking out where one least expected in fresh conflagrations. He was prepared to concede honours and rewards to his colleague out of respect to his age and position, but when it was a question of danger or of fighting he did not give way, and would not voluntarily. If he gained nothing else from this dispute, he would at least gain this much, that the people should decide a question which was theirs to decide, rather than that the senate should show undue partiality. He prayed Jupiter Optimus Maximus and the immortal gods to grant to him the impartial chance of the lot with his colleague, if they were going to grant them each the same courage and good fortune in the conduct of the war. It was, at all events, a thing eminently fair in itself, and an excellent precedent for all time, and a thing which touched the good name of Rome very closely, that both the consuls should be men by either of whom the Etruscan war could be conducted without any risk of failure. Fabius' only reply was to entreat the people to listen to some despatches which had been sent by Appius before they proceeded to vote. He then left the Assembly. The people were no less strong in his support than the senate had been, and Etruria was decreed to Fabius without any casting of lots.

[10.25]When this decision was come to, all the men of military age flocked to the consul, and every one began to give in his name, so eager were they to serve under him as their general. Seeing himself surrounded by this crowd, he called out: "I do not intend to enlist more than 4000 infantry and 600 cavalry, and will take with me those of you who give in your names today and tomorrow. I am more concerned to bring you all back wealthy men than to have a large

number of men for my fighting force." With this compact army full of confidence and hope - all the more so because he felt no need of a great host - he marched to the town of Aharna, which was not far from the enemy, and from there went on to Appius' camp. He was still some miles distant from it when he was met by some soldiers sent to cut wood who were accompanied by an armed escort. When they saw the lictors marching in front of him, and heard that it was Fabius their consul, they were overjoyed and thanked the gods and the people of Rome for having sent him to them as their commander. As they pressed round the consul to salute him, Fabius asked them where they were going, and on their replying that they were going to cut wood, "What do you say?" he inquired; "surely you have a ramparted camp?" They informed him that they had a double rampart and fosse round the camp, and yet they were in a state of mortal fear. "Well, then," he replied, "go back and pull down your stockade, and you will have quite enough wood." They returned into camp and began to demolish the rampart, to the great terror of those who had remained in camp, and especially of Appius himself, until the news spread from one to another that they were acting under the orders of Q. Fabius, the consul. On the following day the camp was shifted, and Appius was sent back to Rome to take up his duties as praetor.

From that time the Romans had no standing camp. Fabius said that it was bad for the army to remain fixed in one spot; it became more healthy and active by frequent marches and change of position. They made as long and frequent marches as the season allowed, for the winter was not yet over. As soon as spring set in, he left the second legion at Clusium, formerly called Camars, and placed L. Scipio in charge of the camp as propraetor. He then returned to Rome to consult the senate as to future operations. He may have taken this step on his own initiative after finding from personal observation that the war was a bigger thing than he had believed it to be from the reports received, or he may have been summoned home by the senate; both reasons are assigned by our authorities. Some want to make it appear that he was compelled to return, owing to the action of Appius Claudius, who had sent alarming despatches about the state of things in Etruria, and was now adding to the alarm by his speeches in the senate and before the Assembly. He considered one general with only one army quite insufficient to cope with four

nations; whether they combined their forces against him or acted separately, there was the danger of his being unable, single-handed, to meet all emergencies. He had left only two legions there, and less than 5000 infantry and cavalry had arrived with Fabius, and he advised that P. Decius should join his colleague in Etruria as soon as possible. Samnium could be handed over to L. Volumnius, or, if the consul preferred to keep to his own province, Volumnius should go to the support of Fabius with a full consular army. As the praetor's representations were producing a considerable impression, we are told that Decius gave it as his opinion that Fabius ought not to be interfered with, but left free to act as he thought best until he had either himself come to Rome, if he could do so with safety to the State, or had sent some member of his staff from whom the senate could learn the actual state of things in Etruria, what force would be necessary, and how many generals would be required.

[10.26]Immediately on his arrival in Rome, Fabius addressed the senate and also the Assembly on the subject of the war. His tone was calm and temperate, he did not exaggerate, nor did he underrate the difficulties. If, he said, he accepted a colleague's assistance it would be more out of consideration for other people's fears than to provide against any danger either to himself or to the republic. If, however, they did give him a coadjutor to be associated with him in the command, how could he possibly overlook P. Decius, who had been so frequently his colleague, and whom he knew so well? There was no one in the world whom he would sooner have; if Decius were with him he should always find his forces sufficient for the work and never find the enemy too numerous for him to deal with. If his colleague preferred some other arrangement they might give him L. Volumnius. The people, the senate, and his own colleague all agreed that Fabius should have a perfectly free hand in the matter, and when Decius made it clear that he was ready to go either to Samnium or to Etruria, there was universal joy and congratulation. Victory was already regarded as certain, and it looked as though a triumph, and not a serious war, had been decreed to the consuls. I find it stated in some authorities that Fabius and Decius both started for Etruria immediately on entering office, no mention being made of their not deciding their provinces by lot, or of the quarrel between the colleagues which I have described. Some, on the other hand, were not satisfied with simply narrating the dispute, but have given in

addition certain charges which Appius brought against the absent Fabius before the people. and the bitter attacks he made upon him in his presence, and mention is made of a second quarrel between the colleagues caused by Decius insisting that each should keep the province assigned to him. We find more agreement amongst the authorities from the time that both consuls left Rome for the scene of war.

But before the consuls arrived in Etruria the Senonian Gauls came in immense numbers to Clusium with the intention of attacking the Roman camp and the legion stationed there. Scipio was in command, and thinking to assist the scantiness of his numbers by taking up a strong position, he marched his force on to a hill which lay between his camp and the city. The enemy had appeared so suddenly that he had had no time to reconnoitre the ground, and he went on towards the summit after the enemy had already seized it, having approached it from the other side. So the legion was attacked in front and rear and completely surrounded. Some authors say that the entire legion was wiped out there, not a man being left to carry the tidings, and that though the consuls were not far from Clusium at the time, no report of the disaster reached them until Gaulish horsemen appeared with the heads of the slain hanging from their horses' chests and fixed on the points of their spears, whilst they chanted war-songs after their manner. According to another tradition they were not Gauls at all, but Umbrians, nor was there a great disaster; a foraging party commanded by L. Manlius Torquatus, a staff officer, was surrounded, but Scipio sent assistance from the camp, and in the end the Umbrians were defeated and the prisoners and booty recovered. It is more probable that this defeat was inflicted by Gauls and not by Umbrians, for the fears of an irruption of Gauls which had been so often aroused were especially present to the minds of the citizens this year, and every precaution was taken to meet it. The force with which the consuls had taken the field consisted of four legions and a large body of cavalry, in addition to 1000 picked Campanian troopers detailed for this war, whilst the contingents furnished by the allies and the Latin League formed an even larger army than the Roman army. But in addition to this large force two other armies were stationed not far from the City, confronting Etruria; one in the Faliscan district, another in the neighbourhood of the Vatican. The

propraetors, Cnaeus Fulvius and L. Postumius Megellus, had been instructed to fix their standing camps in those positions.

[10.27]After crossing the Apennines, the consuls descended into the district of Sentinum and fixed their camp about four miles' distance from the enemy. The four nations consulted together as to their plan of action, and it was decided that they should not all be mixed up in one camp nor go into battle at the same time. The Gauls were linked with the Samnites, the Umbrians with the Etrurians. They fixed upon the day of battle, the brunt of the fighting was to be reserved for the Gauls and Samnites, in the midst of the struggle the Etruscans and Umbrians were to attack the Roman camp. These arrangements were upset by three deserters, who came in the secrecy of night to Fabius and disclosed the enemy's plans. They were rewarded for their information and dismissed with instructions to find out and report whatever fresh decision was arrived at. The consuls sent written instructions to Fulvius and Postumius to bring their armies up to Clusium and ravage the enemy's country on their march as far as they possibly could. The news of these ravages brought the Etruscans away from Sentinum to protect their own territory. Now that they had got them out of the way, the consuls tried hard to bring on an engagement. For two days they sought to provoke the enemy to fight, but during those two days nothing took place worth mentioning; a few fell on both sides and enough exasperation was produced to make them desire a regular battle without, however, wishing to hazard everything on a decisive conflict. On the third day the whole force on both sides marched down into the plain. Whilst the two armies were standing ready to engage, a hind driven by a wolf from the mountains ran down into the open space between the two lines with the wolf in pursuit. Here they each took a different direction, the hind ran to the Gauls, the wolf to the Romans. Way was made for the wolf between the ranks; the Gauls speared the hind. On this a soldier in the front rank exclaimed: "In that place where you see the creature sacred to Diana lying dead, flight and carnage will begin; here the wolf, whole and unhurt, a creature sacred to Mars, reminds us of our Founder and that we too are of the race of Mars." The Gauls were stationed on the right, the Samnites on the left. Q. Fabius posted the first and third legions on the right wing, facing the Samnites; to oppose the Gauls, Decius had the fifth and sixth legions, who formed the Roman left. The second and fourth legions were

engaged in Samnium with L. Volumnius the proconsul. When the armies first met they were so evenly matched that had the Etruscans and Umbrians been present, whether taking part in the battle or attacking the camp, the Romans must have been defeated.

[10.28]But although neither side was gaining any advantage and Fortune had not yet indicated in any way to whom she would grant the victory, the fighting on the right wing was very different from that on the left. The Romans under Fabius were acting more on the defensive and were protracting the contest as long as possible. Their commander knew that it was the habitual practice of both the Gauls and the Samnites to make a furious attack to begin with, and if that were successfully resisted, it was enough; the courage of the Samnites gradually sank as the battle went on, whilst the Gauls, utterly unable to stand heat or exertion, found their physical strength melting away; in their first efforts they were more than men, in the end they were weaker than women. Knowing this, he kept the strength of his men unimpaired against the time when the enemy usually began to show signs of defeat. Decius, as a younger man, possessing more vigour of mind, showed more dash; he made use of all the strength he possessed in opening the attack, and as the infantry battle developed too slowly for him, he called on the cavalry. Putting himself at the head of a squadron of exceptionally gallant troopers, he appealed to them as the pick of his soldiers to follow him in charging the enemy, for a twofold glory would be theirs if victory began on the left wing and, in that wing, with the cavalry. Twice they swept aside the Gaulish horse. Making a third charge, they were carried too far, and whilst they were now fighting desperately in the midst of the enemy's cavalry they were thrown into consternation by a new style of warfare. Armed men mounted on chariots and baggage wagons came on with a thunderous noise of horses and wheels, and the horses of the Roman cavalry, unaccustomed to that kind of uproar, became uncontrollable through fright; the cavalry after their victorious charges, were now scattered in frantic terror; horses and men alike were overthrown in their blind flight. Even the standards of the legionaries were thrown into confusion, and many of the front rank men were crushed by the weight of the horses and vehicles dashing through the lines. When the Gauls saw their enemy thus demoralised they did not give them a moment's breathing space in which to recover themselves, but followed up at once with a fierce attack.

Decius shouted to his men and asked them whither they were fleeing, what hope they had in flight; he tried to stop those who were retreating and recall the scattered units. Finding himself unable, do what he would, to check the demoralisation, he invoked the name of his father, P. Decius, and cried: "Why do I any longer delay the destined fate of my family? This is the privilege granted to our house that we should be an expiatory sacrifice to avert dangers from the State. Now will I offer the legions of the enemy together with myself as a sacrifice to Tellus and the Dii Manes." When he had uttered these words he ordered the pontiff, M. Livius, whom he had kept by his side all through the battle, to recite the prescribed form in which he was to devote "himself and the legions of the enemy on behalf of the army of the Roman people, the Quirites." He was accordingly devoted in the same words and wearing the same garb as his father, P. Decius, at the battle of Vesperis in the Latin war. After the usual prayers had been recited he uttered the following awful curse: "I carry before me terror and rout and carnage and blood and the wrath of all the gods, those above and those below. I will infect the standards, the armour, the weapons of the enemy with dire and manifold death, the place of my destruction shall also witness that of the Gauls and Samnites." After uttering this imprecation on himself and on the enemy he spurred his horse against that part of the Gaulish line where they were most densely massed and leaping into it was slain by their missiles.

[10.29]From this moment the battle could hardly have appeared to any man to be dependent on human strength alone. After losing their leader, a thing which generally demoralises an army, the Romans arrested their flight and recommenced the struggle. The Gauls, especially those who were crowded round the consul's body, were discharging their missiles aimlessly and harmlessly as though bereft of their senses; some seemed paralysed, incapable of either fight or flight. But, in the other army, the pontiff Livius, to whom Decius had transferred his lictors and whom he had commissioned to act as *propraetor*, announced in loud tones that the consul's death had freed the Romans from all danger and given them the victory, the Gauls and Samnites were made over to Tellus the Mother and the Dii Manes, Decius was summoning and dragging down to himself the army which he had devoted together with himself, there was terror everywhere among the enemy, and the Furies were lashing them into

madness. Whilst the battle was thus being restored, L. Cornelius Scipio and C. Marcius were ordered by Fabius to bring up the reserves from the rear to the support of his colleagues. There they learnt the fate of P. Decius, and it was a powerful encouragement to them to dare everything for the republic. The Gauls were standing in close order covered by their shields, and a hand-to-hand fight seemed no easy matter, but the staff officers gave orders for the javelins which were lying on the ground between the two armies to be gathered up and hurled at the enemy's shield wall. Although most of them stuck in their shields and only a few penetrated their bodies, the closely massed ranks went down, most of them falling without having received a wound, just as though they had been struck by lightning. Such was the change that Fortune had brought about in the Roman left wing.

On the right Fabius, as I have stated, was protracting the contest. When he found that neither the battle-shout of the enemy, nor their onset, nor the discharge of their missiles were as strong as they had been at the beginning, he ordered the officers in command of the cavalry to take their squadrons round to the side of the Samnite army, ready at a given signal to deliver as fierce a flank attack as possible. The infantry were at the same time to press steadily forwards and dislodge the enemy. When he saw that they were offering no resistance, and were evidently worn out, he massed all his support which he had kept in reserve for the supreme moment, and gave the signal for a general charge of infantry and cavalry. The Samnites could not face the onslaught and fled precipitately past the Gauls to their camp, leaving their allies to fight as best they could. The Gauls were still standing in close order behind their shield wall. Fabius, on hearing of his colleague's death, ordered a squadron of Campanian horse, about 500 strong, to go out of action and ride round to take the Gauls in the rear. The principes of the third legion were ordered to follow, and, wherever they saw the enemy's line disordered by the cavalry, to press home the attack and cut them down. He vowed a temple and the spoils of the enemy to Jupiter Victor, and then proceeded to the Samnite camp to which the whole crowd of panic-struck fugitives was being driven. As they could not all get through the gates, those outside tried to resist the Roman attack and a battle began close under the rampart. It was here that Gellius Egnatius, the captain-general of the Samnites, fell. Finally the Samnites were driven

within their lines and the camp was taken after a brief struggle. At the same time the Gauls were attacked in the rear and overpowered; 25,000 of the enemy were killed in that day's fighting and 8000 made prisoners. The victory was by no means a bloodless one, for P. Decius lost 7000 killed and Fabius 1700. After sending out a search party to find his colleague's body, Fabius had the spoils of the enemy collected into a heap and burnt as a sacrifice to Jupiter Victor. The consul's body could not be found that day as it was buried under a heap of Gauls; it was discovered the next day and brought back to camp amidst the tears of the soldiers. Fabius laid aside all other business in order to pay the last rites to his dead colleague; the obsequies were conducted with every mark of honour and the funeral oration sounded the well-deserved praises of the deceased consul.

[10.30]During these occurrences in Umbria, Cnaeus Fulvius, the proprætor, was succeeding to the utmost of his wishes in Etruria. Not only did he carry destruction far and wide over the enemy's fields, but he fought a brilliant action with the united forces of Perugia and Clusium in which more than 3000 of the enemy were killed and as many as 20 standards taken. The remains of the Samnite army attempted to escape through the Pelignian territory, but were intercepted by the native troops, and out of 5000 as many as 1000 were killed. Great as the glory of the day on which the battle of Sentinum was fought must appear to any writer who adheres to the truth, it has by some writers been exaggerated beyond all belief. They assert that the enemy's army amounted to 1,000,000 infantry and 46,000 cavalry, together with 1000 war chariots. That, of course, includes the Umbrians and Tuscans who are represented as taking part in the battle. And by way of increasing the Roman strength they tell us that Lucius Volumnius commanded in the action as well as the consuls, and that their legions were supplemented by his army. In the majority of the annalists the victory is assigned only to the two consuls; Volumnius is described as campaigning during that time in Samnium, and after driving a Samnite army on to Mount Tifernus, he succeeded, in spite of the difficulty of the position, in defeating and routing them. Q. Fabius left Decius' army to hold Etruria and led back his own legions to the City to enjoy a triumph over the Gauls, the Etruscans, and the Samnites. In the songs which the soldiers sang in the procession the glorious death of Decius was celebrated quite as much as the victory of Fabius, and they recalled

the father's memory in their praises of the son who had rivalled his father in his devotion and all that it had done for the State. Out of the spoils each soldier received eighty-two ases of bronze, with cloaks and tunics, rewards not to be despised in those days

[10.31]In spite of these defeats neither the Etruscans nor the Samnites remained quiet. After the consul had withdrawn his army the Perusians recommenced hostilities, a force of Samnites descended into the country round Vescia and Formiae, plundering and harrying as they went, whilst another body invaded the district of Aesernum and the region round the Vulturnus. Appius Claudius was sent against these with Decius' old army; Fabius, who had marched into Etruria, slew 4500 of the Perusians, and took 1740 prisoners, who were ransomed at 310 ases per head; the rest of the booty was given to the soldiers. The Samnites, one body of which was pursued by Appius Claudius, the other by L. Volumnius, effected a junction in the Stellate district and took up a position there. A desperate battle was fought, the one army was furious against those who had so often taken up arms against them, the other felt that this was their last hope. The Samnites lost 16,300 killed and 2700 prisoners; on the side of the Romans 2700 fell. As far as military operations went, the year was a prosperous one, but it was rendered an anxious one by a severe pestilence and by alarming portents. In many places showers of earth were reported to have fallen, and a large number of men in the army under Appius Claudius were said to have been struck by lightning. The Sacred Books were consulted in view of these occurrences. During this year Q. Fabius Gurgus, the consul's son, who was an aedile, brought some matrons to trial before the people on the charge of adultery. Out of their fines he obtained sufficient money to build the temple of Venus which stands near the Circus.

The Samnite wars are still with us, those wars which I have been occupied with through these last four books, and which have gone on continuously for six-and-forty years, in fact ever since the consuls, M. Valerius and A. Cornelius, carried the arms of Rome for the first time into Samnium. It is unnecessary now to recount the numberless defeats which overtook both nations, and the toils which they endured through all those years, and yet these things were powerless to break down the resolution or crush the spirit of that people; I will only allude to the events of the past year. During that period the

Samnites, fighting sometimes alone, sometimes in conjunction with other nations, had been defeated by Roman armies under Roman generals on four several occasions, at Sentinum, amongst the Paeligni, at Tifernum, and in the Stellate plains; they had lost the most brilliant general they ever possessed; they now saw their allies - Etruscans, Umbrians, Gauls - overtaken by the same fortune that they had suffered; they were unable any longer to stand either in their own strength or in that afforded by foreign arms. And yet they would not abstain from war; so far were they from being weary of defending their liberty, even though unsuccessfully, that they would rather be worsted than give up trying for victory. What sort of a man must he be who would find the long story of those wars tedious, though he is only narrating or reading it, when they failed to wear out those who were actually engaged in them?

[10.32]Q. Fabius and P. Decius were succeeded in the consulship by L. Postumius Megellus and M. Atilius Regulus. Samniurn was assigned to both of them as the field of operations in consequence of information received that three armies had been raised there, one being destined for Etruria, another was to ravage Campania, and the third was intended for the defence of their frontiers. Illness kept Postumius in Rome, but Atilius marched out at once in accordance with the senate's instructions, with the view of surprising the Samnite armies before they had started on their expeditions. He met the enemy, as though they had had a previous understanding, at a point where he himself was stopped from entering the Samnite country and at the same time barred any movement on their part towards Roman territory or the peaceable lands of her allies. The two camps confronted each other, and the Samnites, with the recklessness that comes of despair, ventured upon an enterprise which the Romans, who had been so often victorious, would hardly have undertaken, namely an attack on the enemy's camp. Their daring attempt did not achieve its end, but it was not altogether fruitless. During a great part of the day there had been so dense a fog that it was not only impossible to see anything beyond the rampart, but even people who were together were unable to see each other. The Samnites, relying on their movements being concealed, came on in the dim twilight - what light there was being obscured by the fog - and reached the outpost in front of the gate who were keeping a careless look-out, and who being thus attacked unawares had neither the strength nor

the courage to offer any resistance. After disposing of the guard they entered the camp through the decuman gate and got possession of the quaestor's tent, the quaestor, L. Opimius Pansa, being killed. Then there was a general call to arms.

[10.33]The consul roused by the tumult ordered two of the allied cohorts, those from Luca and Suessa, which happened to be the nearest, to protect the headquarters' tent, and then he mustered the maniples in the *via principalis*. They got into line almost before they were in proper fighting trim, and they located the enemy by the direction of the shouting rather than by anything that they could see; as to his numbers they were quite unable to form any estimate. Doubtful as to their position they at first retreated, and thus allowed the enemy to advance as far as the middle of the camp. Seeing this the consul asked them whether they were going to be driven outside their rampart, and then try to recover their camp by assaulting it. Then they raised the battle-shout and steadily held their ground until they were able to take the offensive and force the enemy back, which they did persistently without giving him a moment's respite, until they had driven him outside the gate and past the rampart. Further than that they did not venture to go in pursuit, because the bad light made them fear the possibility of a surprise. Content with having cleared the enemy out of the camp they retired within the rampart, having killed about 300. On the Roman side, the outpost who were killed and those who fell round the quaestor's tent amounted to 230. The partial success of this daring maneuver raised the spirits of the Samnites, and they not only prevented the Romans from advancing but they even kept the foraging parties out of their fields, who had consequently to fall back on the pacified district of Sora. The report of this occurrence which reached Rome, and which was a much more sensational one than the facts warranted, compelled the other consul, L. Postumius, to leave the City before his health was quite re-established. He issued a general order for his men to assemble at Sora, and previous to his departure he dedicated the temple to Victory which he had, when curule aedile, built out of the proceeds of fines. On rejoining his army he marched from Sora to his colleague's camp. The Samnites despaired of offering an effectual resistance to two consular armies and withdrew; the consuls then proceeded in different directions to lay waste their fields and storm their cities.

[10.34]Amongst the latter was Milonia, which Postumius unsuccessfully attempted to carry by assault. He then attacked the place by regular approaches, and after his vineae were brought up to the walls he forced an entrance. From ten o'clock in the morning till two in the afternoon fighting went on in all quarters of the town with doubtful result; at last the Romans got possession of the place; 3200 Samnites were killed and 4700 made prisoners, in addition to the rest of the booty. From there the legions marched to Feritrum, but the townsfolk evacuated the place quietly during the night, taking with them all their possessions, everything which could be either driven or carried. Immediately on his reaching the vicinity, the consul approached the walls with his men prepared for action, as though there was going to be as much fighting there as there had been at Milonia. When he found that there was a dead silence in the city and no sign of arms or men was visible in the towers or on the walls, he checked his men, who were eager to get into the deserted fortifications, for fear he might be rushing blindly into a trap. He ordered two troops of cavalry belonging to the Latin contingent to ride round the walls and make a thorough reconnaissance. They discovered one gate open and another near it also open, and on the road leading from these gates traces of the enemy's nocturnal flight. Riding slowly up to the gates they obtained an uninterrupted view of the city through the straight streets, and brought back report to the consul that the city had been evacuated, as was clear from the unmistakable solitude and the things scattered about in the confusion of the night-evidence of their hasty flight. On receiving this information the consul led his army round to that side of the city which the cavalry had examined. Halting the standards near the gates, he ordered five horsemen to enter the city, and after going some distance three were to remain where they were, and two were to return and report to him what they had discovered. They reported that they had reached a point from which a view was obtained in all directions, and everywhere they saw a silent solitude. The consul immediately sent some light-armed cohorts into the city, the rest of the army received orders to form an entrenched camp. The soldiers who had entered the place broke open some of the houses and found a few old and sick people and such property left behind as they found too difficult to transport. This was appropriated, and it was ascertained from the prisoners that several cities in the neighbourhood had mutually agreed to leave their homes, and the

Romans would probably find the same solitude in other cities. What the prisoners had said proved to be true, and the consul took possession of the abandoned towns.

[10.35]The other consul, M. Atilius, found his task by no means so easy. He had received information that the Samnites were besieging Luceria, and he marched to its relief, but the enemy met him at the frontier of the Lucerine territory. Exasperation and rage lent them a strength which made them a match for the Romans. The battle went on with changing fortunes and an indecisive result, but in the end the Romans were in the sorrier plight, for they were unaccustomed to defeat, and it was after the two armies had separated rather than in the battle itself that they realised how much greater the loss was on their side in both killed and wounded. When they were once more within their camp they became a prey to fears which, had they felt them whilst actually fighting, would have brought upon them a signal disaster. They passed an anxious night expecting that the Samnites would make an immediate attack on the camp, or that they would have to engage their victorious foe at daybreak. On the side of the enemy the loss was less, but certainly the courage displayed was not greater. As soon as it began to grow light the Romans were anxious to retire without fighting, but there was only one way and that led past the enemy; if they took that route it would amount to a challenge, for it would look as though they were directly advancing to attack the Samnite camp. The consul issued a general order for the soldiers to arm for battle and follow him outside the rampart. He then gave the necessary instructions to the officers of his staff, the military tribunes, and the prefects of the allies. They all assured him that as far as they were concerned they would do everything that he wished them to do, but the men had lost heart, they had passed a sleepless night amidst the wounded and the groans of the dying, and had the enemy attacked the camp while it was still dark, they were in such a state of fright that they would have deserted their standards. As it was they were only kept from flight by a feeling of shame, in every other respect they were practically beaten men.

Under these circumstances the consul thought he ought to go round and address the soldiers personally. When he came to any who were showing reluctance to arm themselves he asked them why they were so slow and so cowardly; the enemy would come up to their camp unless they met him outside; they would have to fight to defend their

tents if they refused to fight in front of their rampart. Armed and fighting they had a chance of victory, but the men who awaited the enemy unarmed and defenceless would have to suffer either death or slavery. To these taunts and reproaches they replied that they were exhausted with the fighting on the previous day, they had no strength or blood left, and the enemy seemed to be in greater force than ever. Whilst this was going on the hostile army approached, and as they were now closer and could be seen more clearly the men declared that the Samnites were carrying stakes with them, and there was no doubt they intended to shut the camp in with a circumvallation. Then the consul loudly exclaimed that it would indeed be a disgrace if they submitted to such a galling insult from so dastardly a foe. "Shall we," he cried, "be actually blockaded in our camp to perish ignominiously by hunger rather than, if we must die, die bravely at the sword's point? Heaven forbid! Act, every man of you, as you deem worthy of yourselves! I, the consul, M. Atilius, will go against the enemy alone if none will follow and fall amongst the standards of the Samnites sooner than see a Roman camp hedged in by circumvallation." The consul's words were welcomed by all his officers, and the rank and file, ashamed to hold back any longer, slowly put themselves in fighting trim and slowly marched out of camp. They moved in a long irregular column, dejected and to all appearance thoroughly cowed, but the enemy against whom they were advancing felt no more confidence and showed no more spirit than they did. As soon as they caught sight of the Roman standards a murmur ran through the Samnite army from the foremost to the hindmost ranks that what they feared was actually happening, the Romans were coming out to oppose their march, there was no road open even for flight, they must either fall where they were or make their escape over the bodies of their prostrate foes.

[10.36] They piled their knapsacks in the centre and formed up in order of battle. There was by this time only a narrow space between the two armies, and each side were standing motionless waiting for the others to raise the battle-shout and begin the attack. Neither of them had any heart for fighting, and they would have marched off in opposite directions if they were not each apprehensive that the other would attack them on the retreat. In this timid and reluctant mood they commenced a feeble fight, without receiving any order to attack or raising any regular battle-shout, and not a man stirred a foot from

where he stood. Then the consul, in order to infuse some spirit into the combatants, sent a few troops of cavalry to make a demonstration; most of them were thrown from their horses and the rest got into hopeless confusion. A rush was made by the Samnites to overpower those who had been dismounted; this was met by a rush from the Roman ranks to protect their comrades. This made the fighting somewhat more lively, but the Samnites rushed forward with more dash and in greater numbers, whilst the disordered Roman cavalry on their terrified horses were riding down their own supports. The demoralisation which began here extended to the whole army; there was a general flight, and the Samnites had none to fight with but the rearmost of their foes. At this critical moment the consul galloped back to the camp and posted a cavalry detachment before the gate with strict orders to treat as an enemy any one who made for the rampart whether Roman or Samnite. He then stopped his men who were running back to the camp in disorder, and in menacing tones called out, "Where are you going, soldiers? Here, too, you will find armed men, and not one of you shall enter the camp while your consul is alive unless you come as victors; now make your choice whether you would rather fight with your own countrymen or with the enemy." While the consul was speaking, the cavalry closed round the fugitives with levelled spears and peremptorily ordered them to return to the battlefield. Not only did the consul's courage help them to rally, but Fortune also favoured them. As the Samnites were not in close pursuit there was space enough for the standards to wheel round and the whole army to change front from the camp to the enemy. Now the men began to encourage each other, the centurions snatched the standards from the hands of the bearers and carried them forward, pointing out at the same time to their men how few the enemy were, and in what loose order they were coming. In the middle of it all the consul, raising his hands towards heaven and speaking in a loud voice so that he might be well heard, vowed a temple to Jupiter Stator if the Roman army stayed its flight and renewed the battle and defeated and slew the Samnites. All officers and men, infantry and cavalry alike, exerted themselves to the utmost to restore the battle. Even the divine providence seemed to have looked with favour on the Romans, so easily did matters take a favourable turn. The enemy were repulsed from the camp, and in a short time were driven back to the ground where the battle began. Here their movements were hampered by the heap of knapsacks they

had piled up in their centre; to prevent these from being plundered they took up their position round them. But the Roman infantry pressed upon them in front and the cavalry attacked them in rear, so between the two they were all either killed or made prisoners. The latter amounted to 7800, these were all stripped and sent under the yoke. The number of those killed was reported to be 4800. The Romans had not much cause for rejoicing over their victory, for when the consul reckoned up the losses sustained through the two days' fighting the number of missing was returned as 7800. During these incidents in Apulia, the Samnites made an attempt with a second army upon the Roman colony at Interamna, situated on the Latin road. Failing to get possession of the city, they ravaged the fields and proceeded to carry off, along with their other plunder, a number of men and several head of cattle and some colonists whom they had captured. They fell in with the consul, who was returning from his victorious campaign in Luceria, and not only lost their booty, but their long straggling column was quite unprepared for attack and was consequently cut up. The consul issued a notice summoning the owners of the plundered property to Interamna to identify and recover what belonged to them, and leaving his army there, started for Rome to conduct the elections. He requested to be allowed a triumph, but this honour was refused him on the ground that he had lost so many thousands of men, and also because he had sent his prisoners under the yoke without its having been made a condition of their surrender.

[10.37]The other consul, Postumius, finding nothing for his troops to do amongst the Samnites, led them into Etruria and began to lay waste the district of Volsinia. The townsmen came out to defend their borders and a battle ensued not far from their walls; 2800 of the Etruscans were killed, the rest were saved by the proximity of their city. He then passed over into the Rusellan territory; there, not only were the fields harried, but the town itself was successfully assaulted. More than 2000 were made prisoners, and under 2000 killed in the storming of the place. The peace which ensued this year in Etruria was more important and redounded more to the honour of Rome than even the war which led to it. Three very powerful cities, the chief cities in Etruria, Vulsinii, Perugia, and Arretium, sued for peace, and after agreeing to supply the troops with clothing and corn, they obtained the consul's consent to send spokesmen to Rome, with the

result that they obtained a forty years' truce. Each of the cities was at once to pay an indemnity of 500,000 ases. For these services the consul asked the senate to decree him a triumph. The request was made more as a matter of form, to comply with the established custom, than from any hope of obtaining it. He saw that some who were his personal enemies and others who were friends of his colleague refused his request on various grounds, some alleging that he had been too late in taking the field, others that he had transferred his army from Samnium to Etruria without any orders from the senate, whilst a third party were actuated by a desire to solace Atilius for the refusal which he had met with. In face of this opposition he simply said: "Senators, I am not so mindful of your authority as to forget that I am consul. By the same right and authority by which I have conducted wars, now that these wars have been brought to a successful close, Samnium and Etruria subdued, victory and peace secured, I shall celebrate my triumph." And with that he left the senate.

A sharp contention now broke out between the tribunes of the plebs. Some declared that they should interpose to prevent his obtaining a triumph in a way which violated all precedent, others asserted that they should give him their support in spite of their colleagues. The matter was brought before the Assembly, and the consul was invited to be present. In his speech he alluded to the cases of the consuls M. Horatius and L. Valerius and the recent one of Gaius Marcius Rutilus, the father of the man who was censor at the time. All these, he said, had been allowed a triumph, not on the authority of the senate but by an order of the people. He would have brought the question before the people himself had he not been aware that certain tribunes of the plebs who were bound hand and foot to the nobles would veto the proposal. He regarded the goodwill and favour of a unanimous people as tantamount to all the formal orders that were made. Supported by three of the tribunes against the veto of the remaining seven and against the unanimous voice of the senate he celebrated his triumph on the following day amidst a great outburst of popular enthusiasm. The records of this year vary widely from each other. According to Claudius, Postumius, after taking some cities in Samnium, was routed and put to flight in Apulia, he himself being wounded, and was driven with a small body of his troops to Luceria; the victories in Etruria were won by Atilius and it was he who

celebrated the triumph. Fabius tells us that both consuls conducted the campaign in Samnium and at Luceria, and that the army was transferred to Etruria, but he does not say by which consul. He also states that at Luceria the losses were heavy on both sides, and that a temple was vowed to Jupiter Stator in that battle. This same vow Romulus had made many centuries before, but only the fanum, that is the site of the temple, had been consecrated. As the State had become thus doubly pledged, it became necessary to discharge its obligation to the god, and the senate made an order this year for the construction of the temple.

[10.38]The year following was marked by the consulship of L. Papirius Cursor, who had not only inherited his father's glory but enhanced it by his management of a great war and a victory over the Samnites, second only to the one which his father had won. It happened that this nation had taken the same care and pains to adorn their soldiery with all the wealth of splendour as they had done on the occasion of the elder Papirius' victory. They had also called in the aid of the gods by submitting the soldiers to a kind of initiation into an ancient form of oath. A levy was conducted throughout Samnium under a novel regulation; any man within the military age who had not assembled on the captain-general's proclamation, or any one who had departed without permission, was devoted to Jupiter and his life forfeited. The whole of the army was summoned to Aquilonia, and 40,000 men, the full strength of Samnium, were concentrated there. A space, about 200 feet square, almost in the centre of their camp, was boarded off and covered all over with linen cloth. In this enclosure a sacrificial service was conducted, the words being read from an old linen book by an aged priest, Ovius Paccius, who announced that he was taking that form of service from the old ritual of the Samnite religion. It was the form which their ancestors used when they formed their secret design of wresting Capua from the Etruscans. When the sacrifice was completed the captain-general sent a messenger to summon all those who were of noble birth or who were distinguished for their military achievements. They were admitted into the enclosure one by one. As each was admitted he was led up to the altar, more like a victim than like one who was taking part in the service, and he was bound on oath not to divulge what he saw and heard in that place. Then they compelled him to take an oath couched in the most terrible language, imprecating a curse on

himself, his family, and his race if he did not go into battle where the commanders should lead him or if he either himself fled from battle or did not at once slay any one whom he saw fleeing. At first there were some who refused to take this oath; they were massacred beside the altar, and their dead bodies lying amongst the scattered remains of the victims were a plain hint to the rest not to refuse. After the foremost men among the Samnites had been bound by this dread formula, ten were especially named by the captain-general and told each to choose a comrade-in-arms, and these again to choose others until they had made up the number of 16,000. These were called the "linen legion," from the material with which the place where they had been sworn was covered. They were provided with resplendent armour and plumed helmets to distinguish them from the others. The rest of the army consisted of something under 20,000 men, but they were not inferior to the linen legion either in their personal appearance or soldierly qualities or in the excellence of their equipment. This was the number of those in camp at Aquilonia, forming the total strength of Samnium.

[10.39]The consuls left the City. The first to go was Spurius Carvilius, to whom were assigned the legions which M. Atilius, the previous consul, had left in the district of Interamna. With these he advanced into Samnium, and while the enemy were taken up with their superstitious observance and forming secret plans, he stormed and captured the town of Amiternum. Nearly 2800 men were killed there, and 4270 made prisoners. Papirius with a fresh army raised by senatorial decree successfully attacked the city of Duronia. He made fewer prisoners than his colleague, but slew a somewhat greater number. In both towns rich booty was secured. Then the consuls traversed Samnium in different directions; Carvilius, after ravaging the Atinate country, came to Cominium; Papirius reached Aquilonia, where the main army of the Samnites was posted. For some time his troops, while not quite inactive, abstained from any serious fighting. The time was spent in annoying the enemy when he was quiet, and retiring when he showed resistance - in threatening rather than in offering battle. As long as this practice went on day after day, of beginning and then desisting, even the slightest skirmish led to no result. The other Roman camp was separated by an interval of 20 miles, but Carvilius was guided in all his measures by the advice of his distant colleague; his thoughts were dwelling more on Aquilonia,

where the state of affairs was so critical, than on Cominium, which he was actually besieging.

Papirius was at length perfectly ready to fight, and he sent a message to his colleague announcing his intention, if the auspices were favourable, of engaging the enemy the next day, and impressing upon him the necessity of attacking Cominium with his full strength, to give the Samnites no opportunity of sending succour to Aquilonia. The messenger had the day for his Journey, he returned in the night, bringing word back to the consul that his colleague approved of his plan. Immediately after despatching the messenger Papirius ordered a muster of his troops, and addressed them preparatory to the battle. He spoke at some length upon the general character of the war they were engaged in, and especially upon the style of equipment which the enemy had adopted, which he said served for idle pageantry rather than for practical use. Plumes did not inflict wounds, their painted and gilded shields would be penetrated by the Roman javelin, and an army resplendent in dazzling white would be stained with gore when the sword came into play. A Samnite army all in gold and silver had once been annihilated by his father, and those trappings had brought more glory as spoils to the victors than they had brought as armour to the wearers. It might, perhaps, be a special privilege granted to his name and family that the greatest efforts which the Samnites had ever made should be frustrated and defeated under their generalship and that the spoils which they brought back should be sufficiently splendid to serve as decorations for the public places in the City. Treaties so often asked for, so often broken, brought about the intervention of the immortal gods, and if it were permitted to man to form any conjecture as to the feelings of the gods, he believed that they had never been more incensed against any army than against this one of the Samnites. It had taken part in infamous rites and been stained with the mingled blood of men and beasts; it was under the two-fold curse of heaven, filled with dread at the thought of the gods who witnessed the treaties made with Rome and horror-struck at the imprecations which were uttered when an oath was taken to break those treaties, an oath which the soldiers took under compulsion and which they recall with loathing. They dread alike the gods, their fellow-countrymen, and the enemy.

[10.40] These details the consul had gathered from information supplied by deserters, and his mention of them increased the

exasperation of the troops. Assured of the favour of heaven and satisfied that humanly speaking they were more than a match for their foes, they clamoured with one voice to be led to battle, and were intensely disgusted at finding that it was put off till the morrow; they chafed angrily at the delay of a whole day and night. After receiving the reply from his colleague, Papirius rose quietly in the third watch of the night and sent a pullarius to observe the omens. There was not a man, whatever his rank or condition, in the camp who was not seized by the passion for battle, the highest and lowest alike were eagerly looking forward to it; the general was watching the excited looks of the men, the men were looking at their general, the universal excitement extended even to those who were engaged in observing the sacred birds. The chickens refused to eat, but the pullarius ventured to misrepresent matters, and reported to the consul that they had eaten so greedily that the corn dropped from their mouths on to the ground. The consul, delighted at the news, gave out that the omens could not have been more favourable; they were going to engage the enemy under the guidance and blessing of heaven. He then gave the signal for battle. Just as they were taking up their position, a deserter brought word that 20 cohorts of the Samnites, comprising about 400 men each, had gone to Cominium. He instantly despatched a message to his colleague in case he should not be aware of this movement, and ordered the standards to be advanced more rapidly. He had already posted the reserves in their respective positions and told off an officer to take command of each detachment. The right wing of the main army he entrusted to L. Volumnius, the left to L. Scipio, and two other members of his staff, C. Caedicius and T. Trebonius, were placed in command of the cavalry. He gave orders for Spurius Nautius to remove the pack-saddles from the mules and to take them together with three of the auxiliary cohorts by a circuitous route to some rising ground visible from the battlefield, where during the progress of the fight he was to attract attention by raising as great a cloud of dust as possible.

While the consul was busy with these arrangements an altercation began between the pullarii about the omens which had been observed in the morning. Some of the Roman cavalry overheard it and thought it of sufficient importance to justify them in reporting to Spurius Papirius, the consul's nephew, that the omens were being called in question. This young man, born in an age when men were not yet

taught to despise the gods, inquired into the matter in order to make quite sure that what he was reporting was true and then laid it before the consul. He thanked him for the trouble he had taken and bade him have no fears. "But," he continued, "if the man who is watching the omens makes a false report, he brings down the divine wrath on his own head. As far as I am concerned, I have received the formal intimation that the chickens ate eagerly, there could be no more favourable omen for the Roman people and army." He then issued instructions to the centurions to place the pullarius in front of the fighting line. The standards of the Samnites were now advancing, followed by the army in gorgeous array; even to their enemies they presented a magnificent sight. Before the battle-shout was raised or the lines closed a chance javelin struck the pullarius and he fell in front of the standards. When this was reported to the consul he remarked, "The gods are taking their part in the battle, the guilty man has met with his punishment." While the consul was speaking a crow in front of him gave a loud and distinct caw. The consul welcomed the augury and declared that the gods had never more plainly manifested their presence in human affairs. He then ordered the charge to be sounded and the battle-shout to be raised.

[10.41]A savagely fought contest ensued. The two sides were, however, animated by very different feelings. The Romans went into battle eager for the fray, confident of victory, exasperated against the enemy and thirsting for his blood. The Samnites were, most of them, dragged in against their will by sheer compulsion and the terrors of religion, and they adopted defensive rather than aggressive tactics. Accustomed as they had been for so many years to defeat, they would not have sustained even the first shout and charge of the Romans had not a still more awful object of fear possessed their minds and stayed them from flight. They had before their eyes all that paraphernalia of the secret rite - the armed priests, the slaughtered remains of men and beasts scattered about indiscriminately, the altars sprinkled with the blood of the victims and of their murdered countrymen, the awful imprecations, the frightful curses which they had invoked on their family and race - these were the chains which bound them so that they could not flee. They dreaded their own countrymen more than the enemy. The Romans pressed on from both wings and from the centre and cut down men who were paralysed by fear of gods and men. Only a feeble resistance could be

offered by those who were only kept from flight by fear. The carnage had almost extended to the second line where the standards were stationed when there appeared in the side distance a cloud of dust as though raised by the tread of an immense army. It was Sp. Nautius - some say Octavius Maecius - the commander of the auxiliary cohorts. They raised a dust out of all proportion to their numbers, for the camp-followers mounted upon the mules were dragging leafy boughs along the ground. At first the arms and standards gradually became visible through the beclouded light, and then a loftier and thicker cloud of dust gave the appearance of cavalry closing the column. Not only the Samnites but even the Romans were deceived, and the consul endorsed the mistake by shouting to his front rank so that the enemy could hear: "Cominium has fallen, my victorious colleague is coming on the field, do your best to win the victory before the glory of doing so falls to the other army!" He rode along while saying this, and commanded the tribunes and centurions to open their ranks to allow passage for the cavalry. He had previously told Trebonius and Caedicius that when they saw him brandish his spear aloft they should launch the cavalry against the enemy with all the force they could. His orders were carried out to the letter; the legionaries opened their ranks, the cavalry galloped through the open spaces, and with levelled spears charged the enemy's centre. Wherever they attacked they broke the ranks. Volumnius and Scipio followed up the cavalry charge and completed the discomfiture of the Samnites. At last the dread of gods and men had yielded to a greater terror, the "linen cohorts " were routed; those who had taken the oath and those who had not alike fled; the only thing they feared now was the enemy.

The bulk of the infantry who survived the actual battle were driven either into their camp or to Aquilonia, the nobility and cavalry fled to Bovianum. The cavalry were pursued by cavalry, the infantry by infantry; the wings of the Roman army separated, the right directed its course towards the Samnite camp, the left to the city of Aquilonia. The first success fell to Volumnius, who captured the Samnite camp. Scipio met with a more sustained resistance at the city, not because the defeated foe showed more courage there, but because stone walls are more difficult to surmount than the rampart of a camp. They drove the defenders from their walls with showers of stones. Scipio saw that unless his task was completed before the enemy had time to recover from their panic, an attack on a fortified city would be a

somewhat slow affair. He asked his men whether they would be content to allow the enemy's camp to be captured by the other army, whilst they themselves after their victory were repulsed from the gates of the city. There was a universal shout of "No!" On hearing this he held his shield above his head and ran to the gate, the men followed his example, and roofing themselves with their shields burst through into the city. They dislodged the Samnites from the walls on either side of the gate, but as they were only a small body did not venture to penetrate into the interior of the city.

[10.42]The consul was at first unaware of what was going on, and was anxious to recall his troops, for the sun was now rapidly sinking and the approaching night was making every place suspicious and dangerous, even for victorious troops. After he had ridden forward some distance he saw that the camp on his right hand had been captured, and he heard at the same time the mingled clamour of shouts and groans arising in the direction of the city on his left; just then the fighting at the gate was going on. As he approached more closely he saw his men on the walls and recognised that the position was no longer doubtful, since by the reckless daring of a few the opportunity for a brilliant success had been won. He at once ordered the troops whom he had recalled to be brought up and prepared for a regular attack on the city. Those who were within bivouacked near the gate as night was approaching, and during the night the place was evacuated by the enemy. The Samnite losses during the day amounted to 20,340 killed and 3870 made prisoners, whilst 97 standards were taken. It is noticed in the histories that hardly any other general ever appeared in such high spirits during the battle, either owing to his fearless temperament or to the confidence he felt in his final success. It was this dauntless and resolute character which prevented him from abandoning all idea of fighting when the omens were challenged. It was this, too, that made him in the very crisis of the struggle, at the moment when it is customary to vow temples to the gods, make a vow to Jupiter Victor that if he routed the legions of the enemy he would offer him a cup of sweetened wine before he drank anything stronger himself. This vow was acceptable to the gods and they changed the omens into favourable ones.

[10.43]The same good fortune attended the other consul at Cominium. At the approach of daylight he brought his whole force up to the walls so as to enclose the city with a ring of steel, and

stationed strong bodies of troops before the gates to prevent any sortie from being made. Just as he was giving the signal for assault the alarming message reached him from his colleague about the 20 cohorts. This delayed the attack and necessitated the recall of a portion of his troops, who were ready and eager to begin the storm. He ordered D. Brutus Scaeva, one of his staff, to intercept the hostile reinforcements with the first legion and ten auxiliary cohorts with their complement of cavalry. Wherever he fell in with them he was to hold them and stop their advance; if circumstances should make it necessary he was to offer them battle; in any case he was to prevent those troops from reaching Cominium. Then he went on with his preparations for the assault. Orders were issued for scaling ladders to be reared against the walls in all directions and an approach made to the gates under a shield roof. Simultaneously with the smashing in of the gates the storming parties clambered up on the walls on every side. Until they saw their enemy actually on the walls the Samnites had sufficient courage to try to keep them from approaching the city, but when they had to fight not by discharging their missiles from a distance, but at close quarters, when those who had forced their way on to the walls and overcome the disadvantage of being on lower ground were fighting on even terms with an enemy who was no match for them, the defenders abandoned their walls and towers and were driven back into the forum. Here they made a desperate effort to retrieve their fortune, but after a brief struggle they threw down their arms and 11,400 men surrendered after losing 4880 killed. Thus matters went at Cominium as they had gone at Aquilonia.

In the country between these two cities, where a third battle was expected, nothing was seen of the 20 cohorts. When they were still seven miles from Cominium they were recalled by their comrades, and so did not come in for either battle. Just as twilight was setting in, when they had reached a spot from which their camp and Aquilonia were both visible, a noise of shouting from both quarters made them call a halt. Then in the direction of their camp, which had been set on fire by the Romans, flames shooting up far and wide, a more certain indication of disaster, stopped them from going any further. They threw themselves down just where they were under arms, and passed a restless night waiting for and dreading the day. When it began to grow light, whilst they were still uncertain what direction to take, they were espied by the cavalry who had gone in

pursuit of the Samnites in their nocturnal retreat from Aquilonia. The whole body were plainly discernible, with no entrenchments to protect them, no outposts on guard. They were visible, too, from the walls of the city, and in a short time the legionary cohorts were on their track. They made a hasty flight, and the infantry were unable to come up with them, but some 280 in the extreme rear were cut down by the cavalry. A great quantity of arms and 22 standards were left behind in their hurry to escape. The other body who had escaped from Aquilonia reached Bovianum in comparative safety, considering the confusion which marked their retreat.

[10.44]The rejoicings in each of the Roman armies were all the greater because of the success achieved by the other. The consuls, by mutual agreement, gave up the captured cities to be sacked by the soldiery. When they had cleared out the houses they set them on fire and in one day Aquilonia and Cominium were burnt to the ground. Amidst their own mutual congratulations and those of their soldiers, the consuls united their camps. In the presence of the two armies rewards and decorations were bestowed by both Carvilius and Papirius. Papirius had seen his men through many different actions in the open field, around their camp, under city walls, and the rewards he bestowed were well merited. Spurius Nautius, Spurius Papirius, his nephew, four centurions, and a maniple of hastati all received golden bracelets and crowns. Sp. Nautius won his for his success in the maneuver by which he frightened the enemy with the appearance of a large army; the young Papirius owed his reward to the work he did with his cavalry in the battle and in the following night, when he harassed the retreat of the Samnites from Aquilonia; the centurions and men of the maniple were rewarded for having been the first to seize the gate and wall of the city. All the cavalry were presented with ornaments for their helmets and silver bracelets as rewards for their brilliant work in various localities. Subsequently a council of war was held to settle whether the time had come for withdrawing both armies from Samnium, or, at all events, one of them. It was thought best to continue the war, and to carry it on more and more ruthlessly in proportion as the Samnites became weaker, in order that they might hand over to the consuls who succeeded them a thoroughly subdued nation. As the enemy had now no army in a condition to fight in the open field, the war could only be carried on by attacking their cities, and the sack of those which they captured would enrich

the soldiers, whilst the enemy, compelled to fight for their hearths and homes, would gradually become exhausted. In pursuance of this plan the consuls sent despatches to Rome giving an account of their operations and then separated, Papirius marching to Saepinum, whilst Carvilius led his legions to the assault on Velia.

[10.45]The contents of these despatches were listened to with every manifestation of delight, both in the senate and in the Assembly. A four days' thanksgiving was appointed as an expression of the public joy, and festal observances were kept up in every house. These successes were not only of great importance in themselves, but they came most opportunely for Rome, as it so happened that at that very time information was received that Etruria had again commenced hostilities. The question naturally occurred to people's minds, how would it have been possible to withstand Etruria if any reverse had been met with in Samnium? The Etruscans, acting upon a secret understanding with the Samnites, had seized the moment when both consuls and the whole force of Rome were employed against Samnium as a favourable opportunity for recommencing war. Embassies from the allied states were introduced by M. Atilius the praetor into the senate and complained of the ravaging and burning of their fields by their Etruscan neighbours because they would not revolt from Rome. They appealed to the senate to protect them from the outrageous violence of their common foe, and were told in reply that the senate would see to it that their allies had no cause to regret their fidelity, and that the day was near when the Etruscans would be in the same position as the Samnites. Still, the senate would have been somewhat dilatory in dealing with the Etruscan question had not intelligence come to hand that even the Faliscans, who had for many years been on terms of friendship with Rome, had now made common cause with the Etruscans. The proximity of this city to Rome made the senate take a more serious view of the position, and they decided to send the fetials to demand redress. Satisfaction was refused, and by order of the people with the sanction of the senate war was formally declared against the Faliscans. The consuls were ordered to decide by lot which of them should transport his army from Samnium into Etruria.

By this time Carvilius had taken from the Samnites three of their cities, Velia, Palumbinum, and Herculaneum. Velia he took after a few days' siege, Palumbinum on the day he arrived before its walls.

Herculaneum gave him more trouble; after an indecisive battle in which, however, his losses were somewhat the heavier he moved his camp close up to the town and shut up the enemy within their walls. The place was then stormed and captured. In these three captures the number of killed and prisoners amounted to 10,000, the prisoners forming a small majority of the total loss. On the consuls casting lots for their respective commands, Etruria fell to Carvilius, much to the satisfaction of his men, who were now unable to stand the intense cold of Samnium. Papirius met with more resistance at Saepinum. There were frequent encounters, in the open field, on the march, and round the city itself when he was checking the sorties of the enemy. There was no question of siege operations, the enemy met him on equal terms, for the Samnites protected their walls with their arms quite as much as their walls protected them. At last by dint of hard fighting he compelled the enemy to submit to a regular siege, and after pressing the siege with spade and sword he finally effected the capture of the place. The victors were exasperated by the obstinate resistance, and the Samnites suffered heavily, losing no less than 7400 killed, while only 3000 were made prisoners. Owing to the Samnites having stored all their property in a limited number of cities there was a vast amount of plunder, the whole of which was given to the soldiery.

[10.46]Everything was now deep in snow, and it was impossible to remain any longer in the open, so the consul withdrew his army from Samnium. On his approach to Rome a triumph was granted to him by universal consent. This triumph, which he celebrated while still in office, was a very brilliant one for those days. The infantry and cavalry who marched in the procession were conspicuous with their decorations, many were wearing civic, mural, and vallarian crowns. The spoils of the Samnites attracted much attention; their splendour and beauty were compared with those which the consul's father had won, and which were familiar to all through their being used as decorations of public places. Amongst those in the victor's train were some prisoners of high rank distinguished for their own or their fathers' military services; there were also carried in the procession 2,533,000 bronze ases, stated to be the proceeds of the sale of the prisoners, and 1830 pounds of silver taken from the cities. All the silver and bronze was stored in the treasury, none of this was given to the soldiers. This created dissatisfaction amongst the plebs, which

was aggravated by the collection of the war tax to provide the soldiers' pay, for if Papirius had not been so anxious to get the credit of paying the price of the prisoners into the treasury there would have been enough to make a gift to the soldiers and also to furnish their pay. He dedicated the temple of Quirinus. I do not find in any ancient author that it was he who vowed this temple in the crisis of a battle, and certainly he could not have completed it in so short a time; it was vowed by his father when Dictator, and the son dedicated it when consul. and adorned it with the spoils of the enemy. There was such a vast quantity of these that not only were the temple and the Forum adorned with them, but they were distributed amongst the allied peoples and the nearest colonies to decorate their public spaces and temples. After his triumph Papirius led his army into the neighbourhood of Vescia, as that district was still infested by the Samnites, and there he wintered.

During this time Carvilius was making preparations to attack Troilum in Etruria. He allowed 470 of its wealthiest citizens to leave the place after they had paid all enormous sum by way of ransom; the town with the rest of its population he took by storm. Going on from there he carried five forts, positions of great natural strength. In these actions the enemy lost 2400 killed and 2000 prisoners. The Faliscans sued for peace, and he granted them a truce for one year on condition of their supplying a year's pay to his troops, and an indemnity of 100,000 ases of bronze coinage. After these successes he went home to enjoy his triumph, a triumph less illustrious than his colleague's in regard of the Samnite campaign, but fully equal to it considering his series of successes in Etruria. He brought into the treasury 380,000 ases out of the proceeds of the war, the rest he disposed of partly in contracting for the building of a temple to Fortis Fortuna, near the temple of that deity, which King Servius Tullius had dedicated, and partly as a donative to the soldiers, each legionary receiving 102 ases, the centurions and cavalry twice as much. This gift was all the more acceptable to the men after the niggardliness of his colleague. L. Postumius, one of his staff, was indicted before the people, but was protected by the consul's popularity. His prosecutor was M. Scantius, a tribune of the plebs, and the report was that he had evaded trial by being made a staff-officer, proceedings, therefore, could only be threatened without being carried out.

[10.47]The year having now expired, new plebeian tribunes entered upon office, but there was a flaw in their election, and five days later others took their place. The lustrum was closed this year by the censors, P. Cornelius Arvina and C. Marcius Rutilus. The census returns gave the population as numbering 262,321. These were the twenty-sixth pair of censors since the first, the lustrum was the nineteenth. This year, for the first time, those who had been crowned for their deeds in war were allowed to wear their decorations at the Roman Games, and then, too, for the first time, palms were given to the victors after a custom borrowed from Greece. This year also the road from the temple of Mars to Bovillae was paved throughout its length by the curule aediles, who devoted to the purpose the fines levied on cattle-breeders. L. Papirius conducted the consular elections. The consuls elected were Q. Fabius Gurgites, the son of Maximus, and D. Junius Brutus Scaeva. Papirius himself was made praetor. The many incidents which helped to make the year a happy one served to console the citizens for one calamity, a pestilence which raged in the City and country districts alike. The mischief it did was looked upon as a portent. The Sacred Books were consulted to see what end or what remedy would be vouchsafed by the gods. It was ascertained that Aesculapius must be sent for from Epidaurus. Nothing, however, was done that year, owing to the consuls being engrossed with the war, beyond the appointment of a day of public intercession to Aesculapius.

BOOK 21: FROM SAGUNTUM TO THE TREBIA

[21.1]I consider myself at liberty to commence what is only a section of my history with a prefatory remark such as most writers have placed at the very beginning of their works, namely, that the war I am about to describe is the most memorable of any that have ever been waged, I mean the war which the Carthaginians, under Hannibal's leadership, waged with Rome. No states, no nations ever met in arms greater in strength or richer in resources; these Powers themselves had never before been in so high a state of efficiency or better prepared to stand the strain of a long war; they were no strangers to each other's tactics after their experience in the first Punic War; and so variable were the fortunes and so doubtful the issue of the war that those who were ultimately victorious were in the earlier stages brought nearest to ruin. And yet, great as was their strength, the

hatred they felt towards each other was almost greater. The Romans were furious with indignation because the vanquished had dared to take the offensive against their conquerors; the Carthaginians bitterly resented what they regarded as the tyrannical and rapacious conduct of Rome. The prime author of the war was Hamilcar. There was a story widely current that when, after bringing the African War to a close, he was offering sacrifices before transporting his army to Spain, the boy Hannibal, nine years old, was coaxing his father to take him with him, and his father led him up to the altar and made him swear with his hand laid on the victim that as soon as he possibly could he would show himself the enemy of Rome. The loss of Sicily and Sardinia vexed the proud spirit of the man, for he felt that the cession of Sicily had been made hastily in a spirit of despair, and that Sardinia had been filched by the Romans during the troubles in Africa, who, not content with seizing it, had imposed an indemnity as well.

[21.2]Smarting under these wrongs, he made it quite clear from his conduct of the African War which followed immediately upon the conclusion of peace with Rome, and from the way in which he strengthened and extended the rule of Carthage during the nine years' war with Spain, that he was meditating a far greater war than any he was actually engaged in, and that had he lived longer it would have been under his command that the Carthaginians effected the invasion of Italy, which they actually carried out under Hannibal. The death of Hamilcar, occurring as it did most opportunely, and the tender years of Hannibal delayed the war. Hasdrubal, coming between father and son, held the supreme power for eight years. He is said to have become a favourite of Hamilcar's owing to his personal beauty as a boy; afterwards he displayed talents of a very different order, and became his son-in-law. Through this connection he was placed in power by the influence of the Barcine party, which was unduly preponderant with the soldiers and the common people, but his elevation was utterly against the wishes of the nobles. Trusting to policy rather than to arms, he did more to extend the empire of Carthage by forming connections with the petty chieftains and winning over new tribes by making friends of their leading men than by force of arms or by war. But peace brought him no security. A barbarian whose master he had put to death murdered him in broad daylight, and when seized by the bystanders he looked as happy as

though he had escaped. Even when put to the torture, his delight at the success of his attempt mastered his pain and his face wore a smiling expression. Owing to the marvellous tact he had shown in winning over the tribes and incorporating them into his dominions, the Romans had renewed the treaty with Hasdrubal. Under its terms, the River Ebro was to form the boundary between the two empires, and Saguntum, occupying an intermediate position between them, was to be a free city.

[21.3]There was no hesitation shown in filling his place. The soldiers led the way by bringing the young Hannibal forthwith to the palace and proclaiming him their commander-in-chief amidst universal applause. Their action was followed by the plebs. Whilst little more than a boy, Hasdrubal had written to invite Hannibal to come to him in Spain, and the matter had actually been discussed in the senate. The Barcines wanted Hannibal to become familiar with military service; Hanno, the leader of the opposite party, resisted this. "Hasdrubal's request," he said, "appears a reasonable one, and yet I do not think we ought to grant it" This paradoxical utterance aroused the attention of the whole senate. He continued: "The youthful beauty which Hasdrubal surrendered to Hannibal's father he considers he has a fair claim to ask for in return from the son. It ill becomes us, however, to habituate our youths to the lust of our commanders, by way of military training. Are we afraid that it will be too long before Hamilcar's son surveys the extravagant power and the pageant of royalty which his father assumed, and that there will be undue delay in our becoming the slaves of the despot to whose son-in-law our armies have been bequeathed as though they were his patrimony? I, for my part, consider that this youth ought to be kept at home and taught to live in obedience to the laws and the magistrates on an equality with his fellow-citizens; if not, this small fire will some day or other kindle a vast conflagration."

[21.4]Hanno's proposal received but slight support, though almost all the best men in the council were with him, but as usual, numbers carried the day against reason. No sooner had Hannibal landed in Spain than he became a favourite with the whole army. The veterans thought they saw Hamilcar restored to them as he was in his youth; they saw the same determined expression the same piercing eyes, the same cast of features. He soon showed, however, that it was not his father's memory that helped him most to win the affections of the

army. Never was there a character more capable of the two tasks so opposed to each other of commanding and obeying; you could not easily make out whether the army or its general were more attached to him. Whenever courage and resolution were needed Hasdrubal never cared to entrust the command to any one else; and there was no leader in whom the soldiers placed more confidence or under whom they showed more daring. He was fearless in exposing himself to danger and perfectly self-possessed in the presence of danger. No amount of exertion could cause him either bodily or mental fatigue; he was equally indifferent to heat and cold; his eating and drinking were measured by the needs of nature, not by appetite; his hours of sleep were not determined by day or night, whatever time was not taken up with active duties was given to sleep and rest, but that rest was not wooed on a soft couch or in silence, men often saw him lying on the ground amongst the sentinels and outposts, wrapped in his military cloak. His dress was in no way superior to that of his comrades; what did make him conspicuous were his arms and horses. He was by far the foremost both of the cavalry and the infantry, the first to enter the fight and the last to leave the field. But these great merits were matched by great vices - inhuman cruelty, a perfidy worse than Punic, an utter absence of truthfulness, reverence, fear of the gods, respect for oaths, sense of religion. Such was his character, a compound of virtues and vices. For three years he served under Hasdrubal, and during the whole time he never lost an opportunity of gaining by practice or observation the experience necessary for one who was to be a great leader of men.

[21.5] From the day when he was proclaimed commander-in-chief, he seemed to regard Italy as his assigned field of action, and war with Rome as a duty imposed upon him. Feeling that he ought not to delay operations, lest some accident should overtake him as in the case of his father and afterwards of Hasdrubal, he decided to attack the Saguntines. As an attack on them would inevitably set the arms of Rome in motion, he began by invading the Olcades, a tribe who were within the boundaries but not under the dominion of Carthage. He wished to make it appear that Saguntum was not his immediate object, but that he was drawn into a war with her by the force of circumstances, by the conquest, that is, of all her neighbours and the annexation of their territory. Cartala, a wealthy city and the capital of the tribe, was taken by storm and sacked; the smaller cities, fearing a

similar fate, capitulated and agreed to pay an indemnity. His victorious army enriched with plunder was marched into winter quarters in New Carthage. Here, by a lavish distribution of the spoils and the punctual discharge of all arrears of pay, he secured the allegiance of his own people and of the allied contingents.

At the beginning of spring he extended his operations to the Vaccaeii, and two of their cities, Arbocla and Hermandica, were taken by assault. Arbocla held out for a considerable time, owing to the courage and numbers of its defenders; the fugitives from Hermandica joined hands with those of the Olcades who had abandoned their country - this tribe had been subjugated the previous year - and together they stirred up the Carpetani to war. Not far from the Tagus an attack was made upon Hannibal as he was returning from his expedition against the Vaccaeii, and his army, laden as it was with plunder, was thrown into some confusion. Hannibal declined battle and fixed his camp by the side of the river; as soon as there was quiet and silence amongst the enemy, he forded the stream. His entrenchments had been carried just far enough to allow room for the enemy to cross over, and he decided to attack them during their passage of the river. He instructed his cavalry to wait until they had actually entered the water and then to attack them; his forty elephants he stationed on the bank. The Carpetani together with the contingents of the Olcades and Vaccaeii numbered altogether 100,000 men, an irresistible force had they been fighting on level ground. Their innate fearlessness, the confidence inspired by their numbers, their belief that the enemy's retreat was due to fear, all made them look on victory as certain, and the river as the only obstacle to it. Without any word of command having been given, they raised a universal shout and plunged, each man straight in front of him, into the river. A huge force of cavalry descended from the opposite bank, and the two bodies met in mid-stream. The struggle was anything but an equal one. The infantry, feeling their footing insecure, even where the river was fordable, could have been ridden down even by unarmed horsemen, whereas the cavalry, with their bodies and weapons free and their horses steady even in the midst of the current, could fight at close quarters or not, as they chose. A large proportion were swept down the river, some were carried by cross currents to the other side where the enemy were, and were trampled to death by the elephants. Those in the rear thought it safest to return to their

own side, and began to collect together as well as their fears allowed them, but before they had time to recover themselves Hannibal entered the river with his infantry in battle order and drove them in flight from the bank. He followed up his victory by laying waste their fields, and in a few days was able to receive the submission of the Carpetani. There was no part of the country beyond the Ebro which did not now belong to the Carthaginians, with the exception of Saguntum.

[21.6] War had not been formally declared against this city, but there were already grounds for war. The seeds of quarrel were being sown amongst her neighbours, especially amongst the Turdetani. When the man who had sown the seed showed himself ready to aid and abet the quarrel, and his object plainly was not to refer the question to arbitration, but to appeal to force, the Saguntines sent a deputation to Rome to beg for help in a war which was inevitably approaching. The consuls for the time being were P. Cornelius Scipio and Tiberius Sempronius Longus. After introducing the envoys they invited the senate to declare its opinion as to what policy should be adopted. It was decided that commissioners should be sent to Spain to investigate the circumstances, and if they considered it necessary they were to warn Hannibal not to interfere with the Saguntines, who were allies of Rome; then they were to cross over to Africa and lay before the Carthaginian council the complaints which they had made. But before the commission was despatched news came that the siege of Saguntum had, to every one's surprise, actually commenced. The whole position of affairs required to be reconsidered by the senate; some were for assigning Spain and Africa as separate fields of action for the two consuls, and thought that the war ought to be prosecuted by land and sea; others were for confining the war solely to Hannibal in Spain; others again were of opinion that such an immense task ought not to be entered upon hastily, and that they ought to await the return of the commission from Spain. This latter view seemed the safest and was adopted, and the commissioners, P. Valerius Flaccus and Q. Baebius Tamphilus, were despatched without further delay to Hannibal. If he refused to abandon hostilities they were to proceed to Carthage to demand the surrender of the general to answer for his breach of treaty.

[21.7] During these proceedings in Rome the siege of Saguntum was being pressed with the utmost vigour. That city was by far the most

wealthy of all beyond the Ebro; it was situated about a mile from the sea. It is said to have been founded by settlers from the island of Zacynthus, with an admixture of Rutulians from Ardea. In a short time, however, it had attained to great prosperity, partly through its land and sea-borne commerce, partly through the rapid increase of its population, and also through the maintenance of a high standard of political integrity which led it to act with a loyalty towards its allies that brought about its ruin. After carrying his ravages everywhere throughout the territory, Hannibal attacked the city from three separate points. There was an angle of the fortifications which looked down on a more open and level descent than the rest of the ground surrounding the city, and here he decided to bring up his vineae to allow the battering rams to be placed against the walls. But although the ground to a considerable distance from the walls was sufficiently level to admit of the vineae being brought up, they found when they had succeeded in doing this that they made no progress. A huge tower overlooked the place, and the wall, being here more open to attack, had been carried to a greater height than the rest of the fortifications. As the position was one of especial danger, so the resistance offered by a picked body of defenders was of the most resolute character. At first they confined themselves to keeping the enemy back by the discharge of missiles and making it impossible for them to continue their operations in safety. As time went on, however, their weapons no longer flashed on the walls or from the tower, they ventured on a sortie and attacked the outposts and siege works of the enemy. In these irregular encounters the Carthaginians lost nearly as many men as the Saguntines. Hannibal himself, approaching the wall somewhat incautiously, fell with a severe wound in his thigh from a javelin, and such was the confusion and dismay that ensued that the vineae and siege works were all but abandoned.

[21.8]For a few days, until the general's wound was healed, there was a blockade rather than an active siege, and during this interval, though there was a respite from fighting, the construction of siege works and approaches went on uninterruptedly. When the fighting was resumed it was fiercer than ever. In spite of the difficulties of the ground the vineae were advanced and the battering rams placed against the walls. The Carthaginians had the superiority in numbers - there were said to have been 150,000 fighting men - whilst the defenders, obliged to keep watch and ward everywhere, were dissipating their strength and

finding their numbers unequal to the task. The walls were now being pounded by the rams, and in many places had been shaken down. One part where a continuous fall had taken place laid the city open; three towers in succession, and the whole of the wall between them fell with a tremendous crash. The Carthaginians looked upon the town as already captured after that fall, and both sides rushed through the breach as though the wall had only served to protect them from each other. There was nothing of the desultory fighting which goes on when cities are stormed, as each side gets an opportunity of attacking the other. The two bodies of combatants confronted one another in the space between the ruined wall and the houses of the city in as regular formation as though they had been in an open field. On the one side there was the courage of hope, on the other the courage of despair. The Carthaginians believed that with a little effort on their part the city would be theirs; the Saguntines opposed their bodies as a shield for their fatherland now stripped of its walls; not a man relaxed his foothold for fear of letting an enemy in through the spot which he had left open. So the hotter and closer the fighting became the greater grew the number of wounded, for no missile fell ineffectively amongst the crowded ranks. The missile used by the Saguntines was the phalarica, a javelin with a shaft smooth and round up to the head, which, as in the pilum, was an iron point of square section. The shaft was wrapped in tow and then smeared with pitch; the iron head was three feet long and capable of penetrating armour and body alike. Even if it only stuck in the shield and did not reach the body it was a most formidable weapon, for when it was discharged with the tow set on fire the flame was fanned to a fiercer heat by its passage through the air, and it forced the soldier to throw away his shield and left him defenceless against the sword thrusts which followed.

[21.9]The conflict had now gone on for a considerable time without any advantage to either side; the courage of the Saguntines was rising as they found themselves keeping up an unhopd-for resistance, whilst the Carthaginians, unable to conquer, were beginning to look upon themselves as defeated. Suddenly the defenders, raising their battle-shout, forced the enemy back to the debris of the ruined wall; there, stumbling and in disorder, they were forced still further back and finally driven in rout and flight to their camp. Meantime it was announced that envoys had arrived from Rome. Hannibal sent

messengers down to the harbour to meet them and inform them that it would be unsafe for them to advance any further through so many wild tribes now in arms, and also that Hannibal in the present critical position of affairs had no time to receive embassies. It was quite certain that if they were not admitted they would go to Carthage. He therefore forestalled them by sending messengers with a letter addressed to the heads of the Barcine party, to warn his supporters and prevent the other side from making any concessions to Rome.

[21.10]The result was that, beyond being received and heard by the Carthaginian senate, the embassy found its mission a failure. Hanno alone, against the whole senate, spoke in favour of observing the treaty, and his speech was listened to in silence out of respect to his personal authority, not because his hearers approved of his sentiments. He appealed to them in the name of the gods, who are the witnesses and arbiters of treaties, not to provoke a war with Rome in addition to the one with Saguntum. "I urged you," he said, "and warned you not to send Hamilcar's son to the army. That man's spirit, that man's offspring cannot rest; as long as any single representative of the blood and name of Barca survives our treaty with Rome will never remain unimperilled. You have sent to the army, as though supplying fuel to the fire, a young man who is consumed with a passion for sovereign power, and who recognises that the only way to it lies in passing his life surrounded by armed legions and perpetually stirring up fresh wars. It is you, therefore, who have fed this fire which is now scorching you. Your armies are investing Saguntum, which by the terms of the treaty they are forbidden to approach; before long the legions of Rome will invest Carthage, led by the same generals under the same divine guidance under which they avenged our breach of treaty obligations in the late war. Are you strangers to the enemy, to yourselves, to the fortunes of each nation? That worthy commander of yours refused to allow ambassadors who came from allies, on behalf of allies, to enter his camp, and set at naught the law of nations. Those men, repulsed from a place to which even an enemy's envoys are not refused access, have come to us; they ask for the satisfaction which the treaty prescribes; they demand the surrender of the guilty party in order that the State may clear itself from all taint of guilt. The slower they are to take action, the longer they are in commencing war, so much the more persistence and determination, I fear, will they show when war has begun. Remember

the Aegates and Eryx, and all you had to go through for four-and-twenty years. This boy was not commanding then, but his father, Hamilcar - a second Mars as his friends would have us believe. But we broke the treaty then as we are breaking it now; we did not keep our hands off Tarentum or, which is the same thing, off Italy then any more than we are keeping our hands off Saguntum now, and so gods and men combined to defeat us, and the question in dispute, namely, which nation had broken the treaty, was settled by the issue of the war, which, like an impartial judge, left the victory on the side which was in the right. It is against Carthage that Hannibal is now bringing up his vineae and towers, it is Carthage whose walls he is shaking with his battering rams. The ruins of Saguntum - would that I might prove a false prophet - will fall on our heads, and the war which was begun with Saguntum will have to be carried on with Rome.

"Shall we then surrender Hannibal?' some one will say. I am quite aware that as regards him my advice will have little weight, owing to my differences with his father, but whilst I was glad to hear of Hamilcar's death, for if he were alive we should already be involved in war with Rome, I feel nothing but loathing and detestation for this youth, the mad firebrand who is kindling this war. Not only do I hold that he ought to be surrendered as an atonement for the broken treaty, but even if no demand for his surrender were made I consider that he ought to be deported to the farthest corner of the earth, exiled to some spot from which no tidings of him, no mention of his name, could reach us, and where it would be impossible for him to disturb the welfare and tranquillity of our State. This then is what I propose: "That a commission be at once despatched to Rome to inform the senate of our compliance with their demands, and a second to Hannibal ordering him to withdraw his army from Saguntum and then surrendering him to the Romans in accordance with the terms of the treaty, and I also propose that a third body of commissioners be sent to make reparation to the Saguntines."

[21.11]When Hanno sat down no one deemed it necessary to make any reply, so completely was the senate, as a body, on the side of Hannibal. They accused Hanno of speaking in a tone of more uncompromising hostility than Flaccus Valerius, the Roman envoy, had assumed. The reply which it was decided to make to the Roman demands was that the war was started by the Saguntines not by

Hannibal, and that the Roman people would commit an act of injustice if they took the part of the Saguntines against their ancient allies, the Carthaginians. Whilst the Romans were wasting time in despatching commissioners, things were quiet round Saguntum. Hannibal's men were worn out with the fighting and the labours of the siege, and after placing detachments on guard over the vineae and other military engines, he gave his army a few days' rest. He employed this interval in stimulating the courage of his men by exasperating them against the enemy, and firing them by the prospect of rewards. After he had given out in the presence of his assembled troops that the plunder of the city would go to them, they were all in such a state of excitement that had the signal been given then and there it seemed impossible for anything to withstand them. As for the Saguntines, though they had a respite from fighting for some days, neither meeting attacks nor making any, they worked at their defences so continuously by day and night that they completed a fresh wall at the place where the fall of the former wall had laid the town open.

The assault was recommenced with greater vigour than ever. In every direction confused shouts and clamour resounded, so that it was difficult to ascertain where to render assistance most promptly or where it was most needed. Hannibal was present in person to encourage his men, who were bringing up a tower on rollers which overtopped all the fortifications of the city. Catapults and ballistae had been put in position on each of the stories, and after it had been brought up to the walls it swept them clear of the defenders. Seizing his opportunity, Hannibal told off about 500 African troops to undermine the wall with pick-axes, an easy task, as the stones were not fixed with cement but with layers of mud between the courses in the ancient fashion of construction. More of it consequently fell than had been dug away, and through the gaping ruin the columns of armed warriors marched into the city. They seized some high ground, and after massing their catapults and ballistae there they enclosed it with a wall so as to have a fortified position actually within the city which could dominate it like a citadel. The Saguntines on their side carried an inside wall round the portion of the city not yet captured. Both sides kept up their fortifying and fighting with the utmost energy, but by having to defend the interior portion of the city the Saguntines were continually reducing its dimensions. In addition to this there was a growing scarcity of everything as the siege was

prolonged, and the anticipations of outside help were becoming fainter; the Romans, their one hope, were so far away, whilst all immediately round them was in the hands of the enemy. For a few days their drooping spirits were revived by the sudden departure of Hannibal on an expedition against the Oretani and the Carpetani. The rigorous way in which troops were being levied in these two tribes had created great excitement, and they had kept the officers who were superintending the levy practically prisoners. A general revolt was feared, but the unexpected swiftness of Hannibal's movements took them by surprise and they abandoned their hostile attitude.

[21.12]The attack on Saguntum was not slackened; Maharbal, the son of Himilco, whom Hannibal had left in command, carried on operations with such energy that the general's absence was not felt by either friends or foes. He fought several successful actions, and with the aid of three battering rams brought down a considerable portion of the wall, and on Hannibal's return showed him the place all strewn with the newly-fallen wall. The army was at once led to an assault on the citadel; a desperate fight began, with heavy losses on both sides, and a part of the citadel was captured. Attempts were now made in the direction of peace, though with but faint hopes of success. Two men undertook the task, Alco, a Saguntine, and Alorcus, a Spaniard. Alco, thinking that his prayers might have some effect, crossed over without the knowledge of the Saguntines to Hannibal at night. When he found that he gained nothing by his tears, and that the conditions offered were such as a victor exasperated by resistance would insist upon, harsh and severe, he laid aside the character of a pleader and remained with the enemy as a deserter, alleging that any one who advocated peace on such terms would be put to death. The conditions were that restitution should be made to the Turdetani, all the gold and silver should be delivered up, and the inhabitants should depart with one garment each and take up their abode wherever the Carthaginians should order them. As Alco insisted that the Saguntines would not accept peace on these terms, Alorcus, convinced, as he said, that when everything else has gone courage also goes, undertook to mediate a peace on those conditions. At that time he was one of Hannibal's soldiers, but he was recognised as a guest friend by the city of Saguntum. He started on his mission, gave up his weapon openly to the guard, crossed the lines, and was

at his request conducted to the praetor of Saguntum. A crowd, drawn from all classes of society, soon gathered, and after a way had been cleared through the press, Alorcus was admitted to an audience of the senate. He addressed them in the following terms:

[21.13]"If your fellow-townsmen, Alco, had shown the same courage in bringing back to you the terms on which Hannibal will grant peace that he showed in going to Hannibal to beg for peace, this journey of mine would have been unnecessary. I have not come to you either as an advocate for Hannibal or as a deserter. But as he has remained with the enemy either through your fault or his own - his own if his fears were only feigned, yours if those who report what is true have to answer for their lives - I have come to you out of regard to the old ties of hospitality which have so long subsisted between us, that you may not be left in ignorance of the fact that there do exist terms on which you can secure peace and the safety of your lives. Now, that it is for your sake alone and not on behalf of any one else that I say what I am saying before you is proved by the fact that as long as you had the strength to maintain a successful resistance, and as long as you had any hopes of help from Rome, I never breathed a word about making peace. But now that you have no longer anything to hope for from Rome, now that neither your arms nor your walls suffice to protect you, I bring you a peace forced upon you by necessity rather than recommended by the fairness of its conditions. But the hopes, faint as they are, of peace rest upon your accepting as conquered men the terms which Hannibal as conqueror imposes and not looking upon what is taken from you as a positive loss, since everything is at the victor's mercy, but regarding what is left to you as a free gift from him. The city, most of which he has laid in ruins, the whole of which he has all but captured, he takes from you; your fields and lands he leaves you; and he will assign you a site where you can build a new town. He orders all the gold and silver, both that belonging to the State and that owned by private individuals, to be brought to him; your persons and those of your wives and children he preserves inviolate on condition that you consent to leave Saguntum with only two garments apiece and without arms. These are the demands of your victorious enemy, and heavy and bitter as they are, your miserable plight urges you to accept them. I am not without hope that when everything has passed into his power he will relax some of these conditions, but I consider that even as they are

you ought to submit to them rather than permit yourselves to be butchered and your wives and children seized and carried off before your eyes."

[21.14]A large crowd had gradually collected to listen to the speaker, and the popular Assembly had become mingled with the senate, when without a moment's warning the leading citizens withdrew before any reply was given. They collected all the gold and silver from public and private sources and brought it into the forum, where a fire had already been kindled, and flung it into the flames, and most of them thereupon leaped into the fire themselves. The terror and confusion which this occasioned throughout the city was heightened by the noise of a tumult in the direction of the citadel. A tower after much battering had fallen, and through the breach created by its fall a Carthaginian cohort advanced to the attack and signalled to their commander that the customary outposts and guards had disappeared and the city was unprotected. Hannibal thought that he ought to seize the opportunity and act promptly. Attacking it with his full strength, he took the place in a moment. Orders had been given that all the adult males were to be put to death; a cruel order, but under the circumstances inevitable, for whom would it have been possible to spare when they either shut themselves up with their wives and children and burnt their houses over their heads, or if they fought, would not cease fighting till they were killed?

[21.15]An enormous amount of booty was found in the captured city. Although most of it had been deliberately destroyed by the owners, and the enraged soldiers had observed hardly any distinctions of age in the universal slaughter, whilst all the prisoners that were taken were assigned to them, still, it is certain that a considerable sum was realised by the sale of the goods that were seized, and much valuable furniture and apparel was sent to Carthage. Some writers assert that Saguntum was taken in the eighth month of the siege, and that Hannibal led his force from there to New Carthage for the winter, his arrival in Italy occurring five months later. In this case it is impossible for P. Cornelius and Ti. Sempronius to have been the consuls to whom the Saguntine envoys were sent at the beginning of the siege and who afterwards, whilst still in office, fought with Hannibal, one of them at the Ticinus, both shortly afterwards at the Trebia. Either all the incidents occurred within a much shorter period or else it was the capture of Saguntum, not the beginning of the siege,

which occurred when those two entered upon office. For the battle of the Trebia cannot have fallen so late as the year when Cn. Servilius and C. Flaminius were in office, because C. Flaminius entered upon his consulship at Ariminum, his election taking place under the consul Tiberius Sempronius, who came to Rome after the battle of the Trebia to hold the consular elections, and, after they were over, returned to his army in winter quarters.

[21.16]The commissioners who had been sent to Carthage, on their return to Rome, reported that everything breathed a hostile spirit. Almost on the very day they returned the news arrived of the fall of Saguntum, and such was the distress of the senate at the cruel fate of their allies, such was their feeling of shame at not having sent help to them, such their exasperation against the Carthaginians and their alarm for the safety of the State - for it seemed as though the enemy were already at their gates - that they were in no mood for deliberating, shaken as they were by so many conflicting emotions. There were sufficient grounds for alarm. Never had they met a more active or a more warlike enemy, and never had the Roman republic been so lacking in energy or so unprepared for war. The operations against the Sardinians, Corsicans, and Istrians, as well as those against the Illyrians, had been more of an annoyance than a training for the soldiers of Rome; whilst with the Gauls there had been desultory fighting rather than regular warfare. But the Carthaginians, a veteran enemy which for three-and-twenty years had seen hard and rough service amongst the Spanish tribes, and had always been victorious, trained under a general of exceptional ability, were now crossing the Ebro fresh from the sack of a most wealthy city, and were bringing with them all those Spanish tribes, eager for the fray. They would rouse the various Gaulish tribes, who were always ready to take up arms; there would be the whole world to fight against; the battleground would be Italy; the struggle would take place before the walls of Rome.

[21.17]The seat of the campaigns had already been decided; the consuls were now ordered to draw lots. Spain fell to Cornelius, Africa to Sempronius. It was resolved that six legions should be raised for that year, the allies were to furnish such contingents as the consuls should deem necessary, and as large a fleet as possible was to be fitted out; 24,000 Roman infantry were called up and 1800 cavalry; the allies contributed 40,000 infantry and 4400 cavalry, and a fleet of 220 ships

of war and 20 light galleys was launched. The question was then formally submitted to the Assembly, Was it their will and pleasure that war should be declared against the people of Carthage? When this was decided, a special service of intercession was conducted; the procession marched through the streets of the city offering prayers at the various temples that the gods would grant a happy and prosperous issue to the war which the people of Rome had now ordered. The forces were divided between the consuls in the following way: To Sempronius two legions were assigned, each consisting of 4000 infantry and 300 cavalry, and 16,000 infantry and 1800 cavalry from the allied contingents. He was also provided with 160 warships and 12 light galleys. With this combined land and sea force he was sent to Sicily, with instructions to cross over to Africa if the other consul succeeded in preventing the Carthaginian from invading Italy. Cornelius, on the other hand, was provided with a smaller force, as L. Manlius, the praetor, was himself being despatched to Gaul with a fairly strong detachment. Cornelius was weakest in his ships; he had only 60 warships, for it was never supposed that the enemy would come by sea or use his navy for offensive purposes. His land force was made up of two Roman legions, with their complement of cavalry, and 14,000 infantry from the allies with 1600 cavalry. The province of Gaul¹ was held by two Roman legions and 10,000 allied infantry with 600 Roman and 1000 allied cavalry. This force was ultimately employed in the Punic War.

[21.18]When these preparations were completed, the formalities necessary before entering upon war required that a commission should be despatched to Carthage. Those selected were men of age and experience - Q. Fabius, M. Livius, L. Aemilius, C. Licinius, and Q. Baebius. They were instructed to inquire whether it was with the sanction of the government that Hannibal had attacked Saguntum, and if, as seemed most probable, the Carthaginians should admit that it was so and proceed to defend their action, then the Roman envoys were to formally declare war upon Carthage. As soon as they had arrived in Carthage they appeared before the senate. Q. Fabius had, in accordance with his instructions, simply put the question as to the responsibility of the government, when one of the members present said: "The language of your previous deputation was peremptory enough when you demanded the surrender of Hannibal on the assumption that he was attacking Saguntum on his own authority,

but your language now, so far at least, is less provocative, though in effect more overbearing. For on that occasion it was Hannibal whose action you denounced and whose surrender you demanded, now you are seeking to extort from us a confession of guilt and insist upon obtaining instant satisfaction, as from men who admit they are in the wrong. I do not, however, consider that the question is whether the attack on Saguntum was an act of public policy or only that of a private citizen, but whether it was justified by circumstances or not. It is for us to inquire and take proceedings against a citizen when he has done anything on his own authority; the only point for you to discuss is whether his action was compatible with the terms of the treaty. Now, as you wish us to draw a distinction between what our generals do with the sanction of the State and what they do on their own initiative, you must remember that the treaty with us was made by your consul, C. Lutatius, and whilst it contained provisions guarding the interests of the allies of both nations, there was no such provision for the Saguntines, for they were not your allies at the time. But, you will say, by the treaty concluded with Hasdrubal, the Saguntines are exempted from attack. I shall meet that with your own arguments. You told us that you refused to be bound by the treaty which your consul, C. Lutatius, concluded with us, because it did not receive the authorisation of either the senate or the Assembly. A fresh treaty was accordingly made by your government. Now, if no treaties have any binding force for you unless they have been made with the authority of your senate or by order of your Assembly, we, on our side, cannot possibly be bound by Hasdrubal's treaty, which he made without our knowledge. Drop all allusions to Saguntum and the Ebro, and speak out plainly what has long been secretly hatching in your minds." Then the Roman, gathering up his toga, said, "Here we bring you war and peace, take which you please." He was met by a defiant shout bidding him give whichever he preferred, and when, letting the folds of his toga fall, he said that he gave them war, they replied that they accepted war and would carry it on in the same spirit in which they accepted it.

[21.19] This straightforward question and threat of war seemed to be more consonant with the dignity of Rome than a wordy argument about treaties; it seemed so previous to the destruction of Saguntum, and still more so afterwards. For had it been a matter for argument, what ground was there for comparing Hasdrubal's treaty with the

earlier one of Lutatius? In the latter it was expressly stated that it would only be of force if the people approved it, whereas in Hasdrubal's treaty there was no such saving clause. Besides, his treaty had been silently observed for many years during his lifetime, and was so generally approved that, even after its author's death, none of its articles were altered. But even if they took their stand upon the earlier treaty - that of Lutatius - the Saguntines were sufficiently safeguarded by the allies of both parties being exempted from hostile treatment, for nothing was said about "the allies for the time being" or anything to exclude "any who should be hereafter taken into alliance." And since it was open to both parties to form fresh alliances, who would think it a fair arrangement that none should be received into alliance whatever their merits, or that when they had been received they should not be loyally protected, on the understanding that the allies of the Carthaginians should not be induced to revolt, or if they deserted their allies on their own accord were not to be received into alliance by the others?

The Roman envoys in accordance with their instructions went on to Spain for the purpose of visiting the different tribes and drawing them into alliance with Rome, or at least detaching them from the Carthaginians. The first they came to were the Borgusii, who were tired of Punic domination and gave them a favourable reception, and their success here excited a desire for change amongst many of the tribes beyond the Ebro. They came next to the Volciani, and the response they met with became widely known throughout Spain and determined the rest of the tribes against an alliance with Rome. This answer was given by the senior member of their national council in the following terms: "Are you not ashamed, Romans, to ask us to form friendship with you in preference to the Carthaginians, seeing how those who have done so have suffered more through you, their allies, cruelly deserting them than through any injury inflicted on them by the Carthaginians? I advise you to look for allies where the fall of Saguntum has never been heard of; the nations of Spain see in the ruins of Saguntum a sad and emphatic warning against putting any trust in alliances with Rome." They were then peremptorily ordered to quit the territory of the Volciani, and from that time none of the councils throughout Spain gave them a more favourable reply. After this fruitless mission in Spain they crossed over into Gaul.

[21.20] Here a strange and appalling sight met their eyes; the men attended the council fully armed, such was the custom of the country. When the Romans, after extolling the renown and courage of the Roman people and the greatness of their dominion, asked the Gauls not to allow the Carthaginian invaders a passage through their fields and cities, such interruption and laughter broke out that the younger men were with difficulty kept quiet by the magistrates and senior members of the council. They thought it a most stupid and impudent demand to make, that the Gauls, in order to prevent the war from spreading into Italy, should turn it against themselves and expose their own lands to be ravaged instead of other people's. After quiet was restored the envoys were informed that the Romans had rendered them no service, nor had the Carthaginians done them any injury to make them take up arms either on behalf of the Romans or against the Carthaginians. On the other hand, they heard that men of their race were being expelled from Italy, and made to pay tribute to Rome, and subjected to every other indignity. Their experience was the same in all the other councils of Gaul, nowhere did they hear a kindly or even a tolerably peaceable word till they reached Massilia. There all the facts which their allies had carefully and honestly collected were laid before them; they were informed that the interest of the Gauls had already been secured by Hannibal, but even he would not find them very tractable, with their wild and untamable nature, unless the chiefs were also won over with gold, a thing which as a nation they were most eager to procure. After thus traversing Spain and the tribes of Gaul the envoys returned to Rome not long after the consuls had left for their respective commands. They found the whole City in a state of excitement; definite news had been received that the Carthaginians had crossed the Ebro, and every one was looking forward to war.

[21.21] After the capture of Saguntum, Hannibal withdrew into winter quarters at New Carthage. Information reached him there of the proceedings at Rome and Carthage, and he learnt that he was not only the general who was to conduct the war, but also the sole person who was responsible for its outbreak. As further delay would be most inexpedient, he sold and distributed the rest of the plunder, and calling together those of his soldiers who were of Spanish blood, he addressed them as follows: "I think, soldiers, that you yourselves recognise that now that we have reduced all the tribes in Spain we

shall either have to bring our campaigns to an end and disband our armies or else we must transfer our wars to other lands. If we seek to win plunder and glory from other nations, then these tribes will enjoy not only the blessings of peace, but also the fruits of victory. Since, therefore, there await us campaigns far from home, and it is uncertain when you will again see your homes and all that is dear to you, I grant a furlough to every one who wishes to visit his friends. You must reassemble at the commencement of spring, so that we may, with the kindly help of the gods, enter upon a war which will bring us immense plunder and cover us with glory." They all welcomed the opportunity, so spontaneously offered, of visiting their homes after so long an absence, and in view of a still longer absence in the future. The winter's rest, coming after their past exertions, and soon to be followed by greater ones, restored their faculties of mind and body and strengthened them for fresh trials of endurance.

In the early days of spring they reassembled according to orders. After reviewing the whole of the native contingents, Hannibal left for Gades, where he discharged his vows to Hercules, and bound himself by fresh obligations to that deity in case his enterprise should succeed. As Africa would be open to attack from the side of Sicily during his land march through Spain and the two Gauls into Italy, he decided to secure that country with a strong garrison. To supply their place he requisitioned troops from Africa, a light-armed force consisting mainly of slingers. By thus transferring Africans to Spain and Spaniards to Africa, the soldiers of each nationality would be expected to render more efficient service, as being practically under reciprocal obligations. The force he despatched to Africa consisted of 13,850 Spanish infantry furnished with ox-hide bucklers, and 870 Balearic slingers, with a composite body of 1200 cavalry drawn from numerous tribes. This force was destined partly for the defence of Carthage, partly to hold the African territory. At the same time recruiting officers were sent to various communities; some 4000 men of good family were called up who were under orders to be conveyed to Carthage to strengthen its defence, and also to serve as hostages for the loyalty of their people.

[21.22]Spain also had to be provided for, all the more so as Hannibal was fully aware that Roman commissioners had been going all about the country to win over the leading men of the various tribes. He placed it in charge of his energetic and able brother, Hasdrubal, and

assigned him an army mainly composed of African troops - 11,850 native infantry, 300 Ligurians, and 500 Balearics. In addition to this body of infantry there were 450 Libyphoenician cavalry - these are a mixed race of Punic and aboriginal African descent - some 1800 Numidians and Moors, dwellers on the shore of the Mediterranean, and a small mounted contingent of 300 Ilergetes raised in Spain. Finally, that his land force might be complete in all its parts, there were twenty-one elephants. The protection of the coast required a fleet, and as it was natural to suppose that the Romans would again make use of that arm in which they had been victorious before, Hasdrubal had assigned to him a fleet of 57 warships, including 50 quinqueremes, 2 quadriremes, and 5 triremes, but only 32 quinqueremes and the 5 triremes were ready for sea. From Gades he returned to the winter quarters of his army at New Carthage, and from New Carthage he commenced his march on Italy. Passing by the city of Onusa, he marched along the coast to the Ebro. The story runs that whilst halting there he saw in a dream a youth of god-like appearance who said that he had been sent by Jupiter to act as guide to Hannibal on his march to Italy. He was accordingly to follow him and not to lose sight of him or let his eyes wander. At first, filled with awe, he followed him without glancing round him or looking back, but as instinctive curiosity impelled him to wonder what it was that he was forbidden to gaze at behind him, he could no longer command his eyes. He saw behind him a serpent of vast and marvellous bulk, and as it moved along trees and bushes crashed down everywhere before it, whilst in its wake there rolled a thunder-storm. He asked what the monstrous portent meant, and was told that it was the devastation of Italy; he was to go forward without further question and allow his destiny to remain hidden.

[21.23] Gladdened by this vision he proceeded to cross the Ebro, with his army in three divisions, after sending men on in advance to secure by bribes the good-will of the Gauls dwelling about his crossing-place, and also to reconnoitre the passes of the Alps. He brought 90,000 infantry and 12,000 cavalry over the Ebro. His next step was to reduce to submission the Ilergetes, the Bargusii, and the Ausetani, and also the district of Lacetania, which lies at the foot of the Pyrenees. He placed Hanno in charge of the whole coast-line to secure the passes which connect Spain with Gaul, and furnished him with an army of 10,000 infantry to hold the district, and 1000 cavalry.

When his army commenced the passage of the Pyrenees and the barbarians found that there was truth in the rumour that they were being led against Rome, 3000 of the Carpetani deserted. It was understood that they were induced to desert not so much by the prospect of the war as by the length of the march and the impossibility of crossing the Alps. As it would have been hazardous to recall them, or to attempt to detain them by force, in case the quick passions of the rest of the army should be roused, Hannibal sent back to their homes more than 7000 men who, he had personally discovered, were getting tired of the campaign, and at the same time he gave out that the Carpetani had also been sent back by him.

[21.24]Then, to prevent his men from being demoralised by further delay and inactivity, he crossed the Pyrenees with the remainder of his force and fixed his camp at the town of Iliberri. The Gauls were told that it was against Italy that war was being made, but as they had heard that the Spaniards beyond the Pyrenees had been subjugated by force of arms, and strong garrisons placed in their towns, several tribes, fearing for their liberty, were roused to arms and mustered at Ruscino. On receiving the announcement of this movement, Hannibal, fearing delay more than hostilities, sent spokesmen to their chiefs to say that he was anxious for a conference with them, and either they might come nearer to Iliberri, or he would approach Ruscino to facilitate their meeting, for he would gladly receive them in his camp or would himself go to them without loss of time. He had come into Gaul as a friend not a foe, and unless the Gauls compelled him he would not draw his sword till he reached Italy. This was the proposal made through the envoys, but when the Gauls had, without any hesitation, moved their camp up to Iliberri, they were effectually secured by bribes and allowed the army a free and unmolested passage through their territory under the very walls of Ruscino.

[21.25]No intelligence, meanwhile, had reached Rome beyond the fact reported by the Massilian envoys, namely that Hannibal had crossed the Ebro. No sooner was this known than the Boii, who had been tampering with the Insubres, rose in revolt, just as though he had already crossed the Alps, not so much in consequence of their old standing enmity against Rome as of her recent aggressions. Bodies of colonists were being settled on Gaulish territory in the valley of the Po, at Placentia and Cremona, and intense irritation was

produced. Seizing their arms they made an attack on the land, which was being actually surveyed at the time, and created such terror and confusion that not only the agricultural population, but even the three Roman commissioners who were engaged in marking out the holdings, fled to Mutina, not feeling themselves safe behind the walls of Placentia. The commissioners were C. Lutatius, C. Servilius, and M. Annius. There is no doubt as to the name Lutatius, but instead of Annius and Servilius some annalists have Manlius Acilius and C. Herennius, whilst others give P. Cornelius Asina and C. Papirius Maso. There is also doubt as to whether it was the envoys who had been sent to the Boii to remonstrate with them that were maltreated, or the commissioners upon whom an attack was made whilst surveying the ground. The Gauls invested Mutina, but as they were strangers to the art of conducting sieges, and far too indolent to set about the construction of military works, they contented themselves with blockading the town without inflicting any injury on the walls. At last they pretended that they were ready to discuss terms of peace, and the envoys were invited by the Gaulish chieftains to a conference. Here they were arrested, in direct violation not only of international law but of the safe-conduct which had been granted for the occasion. Having made them prisoners the Gauls declared that they would not release them until their hostages were restored to them.

When news came that the envoys were prisoners and Mutina and its garrison in jeopardy, L. Manlius, the praetor, burning with anger, led his army in separate divisions to Mutina. Most of the country was uncultivated at that time and the road went through a forest. He advanced without throwing out scouting parties and fell into an ambush, out of which, after sustaining considerable loss, he made his way with difficulty on to more open ground. Here he entrenched himself, and as the Gauls felt it would be hopeless to attack him there, the courage of his men revived, though it was tolerably certain that as many as 500 had fallen. They recommenced their march, and as long as they were going through open country there was no enemy in view; when they re-entered the forest their rear was attacked and great confusion and panic created. They lost 700 men and six standards. When they at last got out of the trackless and entangled forest there was an end to the terrifying tactics of the Gauls and the wild alarm of the Romans. There was no difficulty in repelling attacks

when they reached the open country and made their way to Tannetum, a place near the Po. Here they hastily entrenched themselves, and, helped by the windings of the river and assisted by the Brixian Gauls, they held their ground against an enemy whose numbers were daily increasing.

[21.26]When the intelligence of this sudden outbreak reached Rome and the senate became aware that they had a Gaulish war to face in addition to the war with Carthage, they ordered C. Atilius, the praetor, to go to the relief of Manlius with a Roman legion and 5000 men who had been recently enlisted by the consul from among the allies. As the enemy, afraid to meet these reinforcements, had retired, Atilius reached Tannetum without any fighting. After raising a fresh legion in place of the one which had been sent away with the praetor, P. Cornelius Scipio set sail with sixty warships and coasted along by the shores of Etruria and Liguria, and from there past the mountains of the Salyes until he reached Marseilles. Here he disembarked his troops at the first mouth of the Rhone to which he came - the river flows into the sea through several mouths - and formed his entrenched camp, hardly able yet to believe that Hannibal had surmounted the obstacle of the Pyrenees. When, however, he understood that he was already contemplating crossing the Rhone, feeling uncertain as to where he would meet him and anxious to give his men time to recover from the effects of the voyage, he sent forward a picked force of 300 cavalry accompanied by Massilian guides and friendly Gauls to explore the country in all directions and if possible to discover the enemy.

Hannibal had overcome the opposition of the native tribes by either fear or bribes and had now reached the territory of the Volcae. They were a powerful tribe, inhabiting the country on both sides of the Rhone, but distrusting their ability to stop Hannibal on the side of the river nearest to him, they determined to make the river a barrier and transported nearly all the population to the other side, on which they prepared to offer armed resistance. The rest of the river population and those of the Volcae even, who still remained in their homes, were induced by presents to collect boats from all sides and to help in constructing others, and their efforts were stimulated by the desire to get rid as soon as possible of the burdensome presence of such a vast host of men. So an enormous number of boats and vessels of every kind, such as they used in their journeys up and down

the river, was got together; new ones were made by the Gauls by hollowing out the trunks of trees, then the soldiers themselves, seeing the abundance of timber and how easily they were made, took to fashioning uncouth canoes, quite content if only they would float and carry burdens and serve to transport themselves and their belongings.

[21.27]Everything was now ready for the crossing, but the whole of the opposite bank was held by mounted and unmounted men prepared to dispute the passage. In order to dislodge them Hannibal sent Hanno, the son of Bomilcar, with a division, consisting mainly of Spaniards, a day's march up the river. He was to seize the first chance of crossing without being observed, and then lead his men by a circuitous route behind the enemy and at the right moment attack them in the rear. The Gauls who were taken as guides informed Hanno that about 25 miles up-stream a small island divided the river in two, and the channel was of less depth in consequence. When they reached the spot they hastily cut down the timber and constructed rafts on which men and horses and other burdens could be ferried across. The Spaniards had no trouble; they threw their clothes on to skins and placing their leather shields on the top they rested on these and so swam across. The rest of the army was ferried over on rafts, and after making a camp near the river they took a day's rest after their labours of boat-making and the nocturnal passage, their general in the meantime waiting anxiously for an opportunity of putting his plan into execution. The next day they set out on their march, and lighting a fire on some rising ground they signalled by the column of smoke that they had crossed the river and were not very far away. As soon as Hannibal received the signal he seized the occasion and at once gave the order to cross the river. The infantry had prepared rafts and boats, the cavalry mostly barges on account of the horses. A line of large boats was moored across the river a short distance up-stream to break the force of the current, and consequently the men in the smaller boats crossed over in smooth water. Most of the horses were towed astern and swam over, others were carried in barges, ready saddled and bridled so as to be available for the cavalry the moment they landed.

[21.28]The Gauls flocked together on the bank with their customary whoops and war songs, waving their shields over their heads and brandishing their javelins. They were somewhat dismayed when they saw what was going on in front of them; the enormous number of

large and small boats, the roar of the river, the confused shouts of the soldiers and boatmen, some of whom were trying to force their way against the current, whilst others on the bank were cheering their comrades who were crossing. Whilst they were watching all this movement with sinking hearts, still more alarming shouts were heard behind them; Hanno had captured their camp. Soon he appeared on the scene, and they were now confronted by danger from opposite quarters - the host of armed men landing from the boats and the sudden attack which was being made on their rear. For a time the Gauls endeavoured to maintain the conflict in both directions, but finding themselves losing ground they forced their way through where there seemed to be least resistance and dispersed to their various villages. Hannibal brought over the rest of his force undisturbed, and, without troubling himself any further about the Gauls, formed his camp.

In the transport of the elephants I believe different plans were adopted; at all events, the accounts of what took place vary considerably. Some say that after they had all been collected on the bank the worst-tempered beast amongst them was teased by his driver, and when he ran away from it into the water the elephant followed him and drew the whole herd after it, and as they got out of their depth they were carried by the current to the opposite bank. The more general account, however, is that they were transported on rafts; as this method would have appeared the safest beforehand so it is most probable that it was the one adopted. They pushed out into the river a raft 200 feet long and 50 feet broad, and to prevent it from being carried down-stream, one end was secured by several stout hawsers to the bank. It was covered with earth like a bridge in order that the animals, taking it for solid ground, would not be afraid to venture on it. A second raft, of the same breadth but only 100 feet long and capable of crossing the river, was made fast to the former. The elephants led by the females were driven along the fixed raft, as if along a road, until they came on to the smaller one. As soon as they were safely on this it was cast off and towed by light boats to the other side of the river. When the first lot were landed others were brought over in the same way. They showed no fear whilst they were being driven along the fixed raft; their fright began when they were being carried into mid-channel on the other raft which had been cast loose. They crowded together, those on the outside backing away

from the water, and showed considerable alarm until their very fears at the sight of the water made them quiet. Some in their excitement fell overboard and threw their drivers, but their mere weight kept them steady, and as they felt their way into shallow water they succeeded in getting safely to land.

[21.29]While the elephants were being ferried across, Hannibal sent 500 Numidian horse towards the Romans to ascertain their numbers and their intentions. This troop of horse encountered the 300 Roman cavalry who, as I have already stated, had been sent forward from the mouth of the Rhone. It was a much more severe fight than might have been expected from the number of combatants. Not only were there many wounded but each side lost about the same number of killed, and the Romans, who were at last completely exhausted, owed their victory to a panic among the Numidians and their consequent flight. Of the victors as many as 160 fell, not all Romans, some were Gauls; whilst the vanquished lost more than 200. This action with which the war commenced was an omen of its final result, but though it portended the final victory of Rome it showed that the victory would not be attained without much bloodshed and repeated defeats. The forces drew off from the field and returned to their respective commanders. Scipio found himself unable to form any definite plans beyond what were suggested to him by the movements of the enemy. Hannibal was undecided whether to resume his march to Italy or to engage the Romans, the first army to oppose him. He was dissuaded from the latter course by the arrival of envoys from the Boii and their chief, Magalus. They came to assure Hannibal of their readiness to act as guides and take their share in the dangers of the expedition, and they gave it as their opinion that he ought to reserve all his strength for the invasion of Italy and not fritter any of it away beforehand. The bulk of his army had not forgotten the previous war and looked forward with dismay to meeting their old enemy, but what appalled them much more was the prospect of an endless journey over the Alps, which rumour said was, to those at all events who had never tried it, a thing to be dreaded.

[21.30]When Hannibal had made up his mind to go forward and lose no time in reaching Italy, his goal, he ordered a muster of his troops and addressed them in tones of mingled rebuke and encouragement. "I am astonished," he said, "to see how hearts that have been always dauntless have now suddenly become a prey to fear. Think of the

many victorious campaigns you have gone through, and remember that you did not leave Spain before you had added to the Carthaginian empire all the tribes in the country washed by two widely remote seas. The Roman people made a demand for all who had taken part in the siege of Saguntum to be given up to them, and you, to avenge the insult, have crossed the Ebro to wipe out the name of Rome and bring freedom to the world. When you commenced your march, from the setting to the rising sun, none of you thought it too much for you, but now when you see that by far the greater part of the way has been accomplished; the passes of the Pyrenees, which were held by most warlike tribes, surmounted; the Rhone, that mighty stream, crossed in the face of so many thousand Gauls, and the rush of its waters checked - now that you are within sight of the Alps, on the other side of which lies Italy, you have become weary and are arresting your march in the very gates of the enemy. What do you imagine the Alps to be other than lofty mountains? Suppose them to be higher than the peaks of the Pyrenees, surely no region in the world can touch the sky or be impassable to man. Even the Alps are inhabited and cultivated, animals are bred and reared there, their gorges and ravines can be traversed by armies. Why, even the envoys whom you see here did not cross the Alps by flying through the air, nor were their ancestors native to the soil. They came into Italy as emigrants looking for a land to settle in, and they crossed the Alps often in immense bodies with their wives and children and all their belongings. What can be inaccessible or insuperable to the soldier who carries nothing with him but his weapons of war? What toils and perils you went through for eight months to effect the capture of Saguntum! And now that Rome, the capital of the world, is your goal, can you deem anything so difficult or so arduous that it should prevent you from reaching it? Many years ago the Gauls captured the place which Carthaginians despair of approaching; either you must confess yourselves inferior in courage and enterprise to a people whom you have conquered again and again, or else you must look forward to finishing your march on the ground between the Tiber and the walls of Rome."

[21.31]After this rousing appeal he dismissed them with orders to prepare themselves by food and rest for the march. The next day they advanced up the left bank of the Rhone towards the central districts of Gaul, not because this was the most direct route to the Alps, but

because he thought that there would be less likelihood of the Romans meeting him, for he had no desire to engage them before he arrived in Italy. Four days' marching brought him to the "Island." Here the Isere and the Rhone, flowing down from different points in the Alps, enclose a considerable extent of land and then unite their channels; the district thus enclosed is called the "Island." The adjacent country was inhabited by the Allobroges, a tribe who even in those days were second to none in Gaul in power and reputation. At the time of Hannibal's visit a quarrel had broken out between two brothers who were each aspiring to the sovereignty. The elder brother, whose name was Brancus, had hitherto been the chief, but was now expelled by a party of the younger men, headed by his brother, who found an appeal to violence more successful than an appeal to right. Hannibal's timely appearance on the scene led to the question being referred to him; he was to decide who was the legitimate claimant to the kingship. He pronounced in favour of the elder brother, who had the support of the senate and the leading men. In return for this service he received assistance in provisions and supplies of all kinds, especially of clothing, a pressing necessity in view of the notorious cold of the Alps. After settling the feud amongst the Allobroges, Hannibal resumed his march. He did not take the direct course to the Alps, but turned to the left towards the Tricastini; then, skirting the territory of the Vocontii, he marched in the direction of the Tricorii. Nowhere did he meet with any difficulty until he arrived at the Durance. This river, which also takes its rise in the Alps, is of all the rivers of Gaul the most difficult to cross. Though carrying down a great volume of water, it does not lend itself to navigation, for it is not kept in by banks, but flows in many separate channels. As it is constantly shifting its bottom and the direction of its currents, the task of fording it is a most hazardous one, whilst the shingle and boulders carried down make the foothold insecure and treacherous. It happened to be swollen by rain at the time, and the men were thrown into much disorder whilst crossing it, whilst their fears and confused shouting added considerably to their difficulties.

[21.32] Three days after Hannibal had left the banks of the Rhone, P. Cornelius Scipio arrived at the deserted camp with his army in battle order, ready to engage at once. When, however, he saw the abandoned lines and realised that it would be no easy matter to overtake his opponent after he had got such a long start, he returned

to his ships. He considered that the easier and safer course would be to meet Hannibal as he came down from the Alps. Spain was the province allotted to him, and to prevent its being entirely denuded of Roman troops he sent his brother Cneius Scipio with the greater part of his army to act against Hasdrubal, not only to keep the old allies and win new ones, but to drive Hasdrubal out of Spain. He himself sailed for Genoa with a very small force, intending to defend Italy with the army lying in the valley of the Po. From the Durance Hannibal's route lay mostly through open level country, and he reached the Alps without meeting with any opposition from the Gauls who inhabited the district. But the sight of the Alps revived the terrors in the minds of his men. Although rumour, which generally magnifies untried dangers, had filled them with gloomy forebodings, the nearer view proved much more fearful. The height of the mountains now so close, the snow which was almost lost in the sky, the wretched huts perched on the rocks, the flocks and herds shrivelled and stunted with the cold, the men wild and unkempt, everything animate and inanimate stiff with frost, together with other sights dreadful beyond description - all helped to increase their alarm.

As the head of the column began to climb the nearest slopes, the natives appeared on the heights above; had they concealed themselves in the ravines and then rushed down they would have caused frightful panic and bloodshed. Hannibal called a halt and sent on some Gauls to examine the ground, and when he learnt that advance was impossible in that direction he formed his camp in the widest part of the valley that he could find; everywhere around the ground was broken and precipitous. The Gauls who had been sent to reconnoitre got into conversation with the natives, as there was little difference between their speech or their manners, and they brought back word to Hannibal that the pass was only occupied in the daytime, at nightfall the natives all dispersed to their homes. Accordingly, at early dawn he began the ascent as though determined to force the pass in broad daylight, and spent the day in movements designed to conceal his real intentions and in fortifying the camp on the spot where they had halted. As soon as he observed that the natives had left the heights and were no longer watching his movements, he gave orders, with the view of deceiving the enemy, for a large number of fires to be lighted, larger in fact than would be required by those remaining in camp. Then, leaving the baggage with

the cavalry and the greater part of the infantry in camp, he himself with a specially selected body of troops in light marching order rapidly moved out of the defile and occupied the heights which the enemy had held.

[21.33]The following day the rest of the army broke camp in the grey dawn and commenced its march. The natives were beginning to assemble at their customary post of observation when they suddenly became aware that some of the enemy were in possession of their stronghold right over their heads, whilst others were advancing on the path beneath. The double impression made on their eyes and imagination kept them for a few moments motionless, but when they saw the column falling into disorder mainly through the horses becoming frightened, they thought that if they increased the confusion and panic it would be sufficient to destroy it. So they charged down from rock to rock, careless as to whether there were paths or not, for they were familiar with the ground. The Carthaginians had to meet this attack at the same time that they were struggling with the difficulties of the way, and as each man was doing his best for himself to get out of the reach of danger, they were fighting more amongst themselves than against the natives. The horses did the most mischief; they were terrified at the wild shouts, which the echoing woods and valleys made all the louder, and when they happened to be struck or wounded they created terrible havoc amongst the men and the different baggage animals. The road was flanked by sheer precipices on each side, and in the crowding together many were pushed over the edge and fell an immense depth. Amongst these were some of the soldiers; the heavily-laden baggage animals rolled over like falling houses. Horrible as the sight was, Hannibal remained quiet and kept his men back for some time, for fear of increasing the alarm and confusion, but when he saw that the column was broken and that the army was in danger of losing all its baggage, in which case he would have brought them safely through to no purpose, he ran down from his higher ground and at once scattered the enemy. At the same time, however, he threw his own men into still greater disorder for the moment, but it was very quickly allayed now that the passage was cleared by the flight of the natives. In a short time the whole army had traversed the pass, not only without any further disturbance, but almost in silence. He then seized a fortified village, the head place of the district, together with some

adjacent hamlets, and from the food and cattle thus secured he provided his army with rations for three days. As the natives, after their first defeat, no longer impeded their march, whilst the road presented little difficulty, they made considerable progress during those three days.

[21.34] They now came to another canton which, considering that it was a mountain district, had a considerable population. Here he narrowly escaped destruction, not in fair and open fighting, but by the practices which he himself employed - falsehood and treachery. The head men from the fortified villages, men of advanced age, came as a deputation to the Carthaginian and told him that they had been taught by the salutary example of other people's misfortunes to seek the friendship of the Carthaginians rather than to feel their strength. They were accordingly prepared to carry out his orders; he would receive provisions and guides, and hostages as a guarantee of good faith. Hannibal felt that he ought not to trust them blindly nor to meet their offer with a flat refusal, in case they should become hostile. So he replied in friendly terms, accepted the hostages whom they placed in his hands, made use of the provisions with which they supplied him on the march, but followed their guides with his army prepared for action, not at all as though he were going through a peaceable or friendly country. The elephants and cavalry were in front, he himself followed with the main body of the infantry, keeping a sharp and anxious look-out in all directions. Just as they reached a part of the pass where it narrowed and was overhung on one side by a wall of rock, the barbarians sprang up from ambush on all sides and assailed the column in front and rear, at close quarters, and at a distance by rolling huge stones down on it. The heaviest attack was made in the rear, and as the infantry faced round to meet it, it became quite obvious that if the rear of the column had not been made exceptionally strong, a terrible disaster must have occurred in that pass. As it was, they were in the greatest danger, and within an ace of total destruction. For whilst Hannibal was hesitating whether to send his infantry on into the narrow part of the pass - for whilst protecting the rear of the cavalry they had no reserves to protect their own rear - the mountaineers, making a flank charge, burst through the middle of the column and held the pass so that Hannibal had to spend that one night without his cavalry or his baggage.

[21.35]The next day, as the savages attacked with less vigour, the column closed up, and the pass was surmounted, not without loss, more, however, of baggage animals than of men. From that time the natives made their appearance in smaller numbers and behaved more like banditti than regular soldiers; they attacked either front or rear just as the ground gave them opportunity, or as the advance or halt of the column presented a chance of surprise. The elephants caused considerable delay, owing to the difficulty of getting them through narrow or precipitous places; on the other hand, they rendered that part of the column safe from attack where they were, for the natives were unaccustomed to the sight of them and had a great dread of going too near them. Nine days from their commencing the ascent they arrived at the highest point of the Alps, after traversing a region mostly without roads and frequently losing their way either through the treachery of their guides or through their own mistakes in trying to find the way for themselves. For two days they remained in camp on the summit, whilst the troops enjoyed a respite from fatigue and fighting. Some of the baggage animals which had fallen amongst the rocks and had afterwards followed the track of the column came into camp. To add to the misfortunes of the worn-out troops, there was a heavy fall of snow - the Pleiads were near their setting - and this new experience created considerable alarm. In the early morning of the third day the army recommenced its heavy march over ground everywhere deep in snow. Hannibal saw in all faces an expression of listlessness and despondency. He rode on in front to a height from which there was a wide and extensive view, and halting his men, he pointed out to them the land of Italy and the rich valley of the Po lying at the foot of the Alps. "You are now," he said, "crossing the barriers not only of Italy, but of Rome itself. Henceforth all will be smooth and easy for you; in one or, at the most, two battles, you will be masters of the capital and stronghold of Italy." Then the army resumed its advance with no annoyance from the enemy beyond occasional attempts at plunder. The remainder of the march, however, was attended with much greater difficulty than they had experienced in the ascent, for the distance to the plains on the Italian side is shorter, and therefore the descent is necessarily steeper. Almost the whole of the way was precipitous, narrow, and slippery, so that they were unable to keep their footing, and if they slipped they could not recover themselves; they kept falling over each other, and the baggage animals rolled over on their drivers.

[21.36]At length they came to a much narrower pass which descended over such sheer cliffs that a light-armed soldier could hardly get down it even by hanging on to projecting roots and branches. The place had always been precipitous, and a landslide had recently carried away the road for 1000 feet. The cavalry came to a halt here as though they had arrived at their journey's end, and whilst Hannibal was wondering what could be causing the delay he was informed that there was no passage. Then he went forward to examine the place and saw that there was nothing for it but to lead the army by a long circuitous route over pathless and untrodden snow. But this, too, soon proved to be impracticable. The old snow had been covered to a moderate depth by a fresh fall, and the first comers planted their feet firmly on the new snow, but when it had become melted under the tread of so many men and beasts there was nothing to walk on but ice covered with slush. Their progress now became one incessant and miserable struggle. The smooth ice allowed no foothold, and as they were going down a steep incline they were still less able to keep on their legs, whilst, once down, they tried in vain to rise, as their hands and knees were continually slipping. There were no stumps or roots about for them to get hold of and support themselves by, so they rolled about helplessly on the glassy ice and slushy snow. The baggage animals as they toiled along cut through occasionally into the lowest layer of snow, and when they stumbled they struck out their hoofs in their struggles to recover themselves and broke through into the hard and congealed ice below, where most of them stuck as though caught in a gin.

[21.37]At last, when men and beasts alike were worn out by their fruitless exertions, a camp was formed on the summit, after the place had been cleared with immense difficulty owing to the quantity of snow that had to be removed. The next thing was to level the rock through which alone a road was practicable. The soldiers were told off to cut through it. They built up against it an enormous pile of tall trees which they had felled and lopped, and when the wind was strong enough to blow up the fire they set light to the pile. When the rock was red hot they poured vinegar upon it to disintegrate it. After thus treating it by fire they opened a way through it with their tools, and eased the steep slope by winding tracks of moderate gradient, so that not only the baggage animals but even the elephants could be led down. Four days were spent over the rock, and the animals were

almost starved to death, for the heights are mostly bare of vegetation and what herbage there is is buried beneath the snow. In the lower levels there were sunny valleys and streams flowing through woods, and spots more deserving of human inhabitants. Here the beasts were turned loose to graze, and the troops, worn out with their engineering, were allowed to rest. In three days more they reached the open plains and found a pleasanter country and pleasanter people living in it

[21.38]Such, in the main, was the way in which they reached Italy, five months, according to some authorities, after leaving New Carthage, fifteen days of which were spent in overcoming the difficulties of the Alps. The authorities are hopelessly at variance as to the number of the troops with which Hannibal entered Italy. The highest estimate assigns him 100,000 infantry and 20,000 cavalry; the lowest puts his strength at 20,000 infantry and 6000 cavalry. L. Cincius Alimentus tells us that he was taken prisoner by Hannibal, and I should be most inclined to accept his authority if he had not confused the numbers by adding in the Gauls and Ligurians; if these are included there were 80,000 infantry and 10,000 cavalry. It is, however, more probable that these joined Hannibal in Italy, and some authorities actually assert this. Cincius also states that he had heard Hannibal say that subsequently to his passage of the Rhone he lost 36,000 men, besides an immense number of horses and other animals. The first people he came to were the Taurini, a semi-Garlic tribe. As tradition is unanimous on this point I am the more surprised that a question should be raised as to what route Hannibal took over the Alps, and that it should be generally supposed that he crossed over the Poenine range, which is said to have derived its name from that circumstance. Coelius asserts that he crossed by the Cremonian range. These two passes, however, would not have brought him to the Taurini but through the Salassi, a mountain tribe, to the Libuan Gauls. It is highly improbable that those routes to Gaul were available at that time, and in any case the Poenine route would have been closed by the semi-German tribes who inhabited the district. And it is perfectly certain, if we accept their authority, that the Seduni and Veragri, who inhabit that range, say that the name of Poenine was not given to it from any passage of the Carthaginians over it but from the deity Poeninus, whose shrine stands on the highest point of the range.

[21.39]It was a very fortunate circumstance for Hannibal at the outset of his campaign that the Taurini, the first people he came to, were at war with the Insubres. But he was unable to bring his army into the field to assist either side, for it was whilst they were recovering from the ills and misfortunes which had gathered upon them that they felt them most. Rest and idleness instead of toil, plenty following upon starvation, cleanliness and comfort after squalor and emaciation, affected their filthy and well-nigh bestialised bodies in various ways. It was this state of things which induced P. Cornelius Scipio, the consul, after he had arrived with his ships at Pisa and taken over from Manlius and Atilius an army of raw levies disheartened by their recent humiliating defeats, to push on with all speed to the Po that he might engage the enemy before he had recovered his strength. But when he reached Placentia Hannibal had already left his encampment and taken by storm one of the cities of the Taurini, their capital, in fact, because they would not voluntarily maintain friendly relations with him. He would have secured the adhesion of the Gauls in the valley of the Po, not by fear but by their own choice, if the sudden arrival of the consul had not taken them by surprise whilst they were waiting for a favourable moment to revolt. Just at the time of Scipio's arrival, Hannibal moved out of the country of the Taurini, for, seeing how undecided the Gauls were as to whose side they should take, he thought that if he were on the spot they would follow him. The two armies were now almost within sight of one another, and the commanders who were confronting each other, though not sufficiently acquainted with each other's military skill, were even then imbued with mutual respect and admiration. Even before the fall of Saguntum the name of Hannibal was on all men's lips in Rome, and in Scipio Hannibal recognised a great leader, seeing that he had been chosen beyond all others to oppose him. This mutual esteem was enhanced by their recent achievements; Scipio, after Hannibal had left him in Gaul, was in time to meet him on his descent from the Alps; Hannibal had not only dared to attempt but had actually accomplished the passage of the Alps. Scipio, however, made the first move by crossing the Po and shifting his camp to the Ticinus. Before leading his men into battle he addressed them in a speech full of encouragement, in the following terms:

[21.40]"If, soldiers, I were leading into battle the army which I had with me in Gaul, there would have been no need for me to address

you. For what encouragement would those cavalry need who had won such a brilliant victory over the enemy's cavalry at the Rhone or those legions of infantry with whom I pursued this same enemy, who by his running away and shirking an engagement acknowledged that I was his conqueror? That army, raised for service in Spain, is campaigning under my brother, Cn. Scipio, who is acting as my deputy in the country which the senate and people of Rome have assigned to it. In order, therefore, that you might have a consul to lead you against Hannibal and the Carthaginians, I have volunteered to command in this battle, and as I am new to you and you to me I must say a few words to you. "Now as to the character of the enemy and the kind of warfare which awaits you. You have to fight, soldiers, with the men whom you defeated in the former war by land and sea, from whom you have exacted a war indemnity for the last twenty years, and from whom you wrested Sicily and Sardinia as the prizes of war. You, therefore, will go into this battle with the exultation of victors, they with the despondency of the vanquished. They are not going to fight now because they are impelled by courage but through sheer necessity; unless indeed you suppose that, after shirking a contest when their army was at its full strength, they have gained more confidence now that they have lost two-thirds of their infantry and cavalry in their passage over the Alps, now that those who survive are fewer than those who have perished. "'Yes,' it may be said, 'they are few in number, but they are strong in courage and physique, and possess a power of endurance and vigour in attack which very few can withstand.' No, they are only semblances or rather ghosts of men, worn out with starvation, cold, filth, and squalor, bruised and enfeebled amongst the rocks and precipices, and, what is more, their limbs are frostbitten, their thews and sinews cramped with cold, their frames shrunk and shrivelled with frost, their weapons battered and shivered, their horses lame and out of condition. This is the cavalry, this the infantry with whom you are going to fight; you will not have an enemy but only the last vestiges of an enemy to meet. My only fear is that when you have fought it will appear to be the Alps that have conquered Hannibal. But perhaps it was right that it should be so, and that the gods, without any human aid, should begin and all but finish this war with a people and their general who have broken treaties, and that to us, who next to the gods have been sinned against, it should be left to complete what they began.

[21.41]"I am not afraid of any one thinking that I am saying this in a spirit of bravado for the sake of putting you in good heart, whilst my real feelings and convictions are far otherwise. I was at perfect liberty to go with my army to Spain, for which country I had actually started, and which was my assigned province. There I should have had my brother to share my plans and dangers; I should have had Hasdrubal rather than Hannibal as my foe, and undoubtedly a less serious war on my hands. But as I was sailing along the coast of Gaul I heard tidings of this enemy, and at once landed, and after sending on cavalry in advance moved up to the Rhone. A cavalry action was fought - that was the only arm I had the opportunity of employing - and I defeated the enemy. His infantry were hurrying away like an army in flight, and as I could not come up with them overland, I returned to my ships with all possible speed, and after making a wide circuit by sea and land have met this dreaded foe almost at the foot of the Alps. Does it seem to you that I have unexpectedly fallen in with him whilst I was anxious to decline a contest and not rather that I am meeting him actually on his track and challenging and dragging him into action? I shall be glad to learn whether the earth has suddenly within the last twenty years produced a different breed of Carthaginians, or whether they are the same as those who fought at the Aegates, and whom you allowed to depart from Eryx on payment of eighteen denarii a head, and whether this Hannibal is, as he gives out, the rival of Hercules in his journeys, or whether he has been left by his father to pay tax and tribute and to be the slave of the Roman people. If his crime at Saguntum were not driving him on, he would surely have some regard, if not for his conquered country, at all events for his house and his father, and the treaties signed by that Hamilcar who at the order of our consul withdrew his garrison from Eryx, who with sighs and groans accepted the hard conditions imposed on the conquered Carthaginians, and who agreed to evacuate Sicily and pay a war indemnity to Rome. And so I would have you, soldiers, fight not merely in the spirit which you are wont to show against other foes, but with feelings of indignant anger as though you saw your own slaves bearing arms against you. When they were shut up in Eryx we might have inflicted the most terrible of human punishments and starved them to death; we might have taken our victorious fleet across to Africa, and in a few days destroyed Carthage without a battle. We granted pardon to their prayers, we allowed them to escape from the blockade, we agreed to terms of

peace with those whom we had conquered, and afterwards when they were in dire straits through the African war we took them under our protection, To requite us for these acts of kindness they are following the lead of a young madman and coming to attack our fatherland. I only wish this struggle were for honour alone and not for safety. It is not about the possession of Sicily and Sardinia, the old subjects of dispute, but for Italy that you have to fight. There is no second army at our back to oppose the enemy if we fall to win, there are no more Alps to delay his advance while a fresh army can be raised for defence. Here it is, soldiers, that we have to resist, just as though we were fighting before the walls of Rome. Every one of you must remember that he is using his arms to protect not himself only but also his wife and little children; nor must his anxiety be confined to his home, he must realise, too, that the senate and people of Rome are watching our exploits today. What our strength and courage are now here, such will be the fortune of our City yonder and of the empire of Rome."

[21.42]Such was the language which the consul used towards the Romans. Hannibal thought that the courage of his men ought to be roused by deeds first rather than by words. After forming his army into a circle to view the spectacle, he placed in the centre some Alpine prisoners in chains, and when some Gaulish arms had been thrown down at their feet he ordered an interpreter to ask if any one of them was willing to fight if he were freed from his chains and received arms and a horse as the reward of victory. All to a man demanded arms and battle, and when the lot was cast to decide who should fight, each wished that he might be the one whom Fortune should select for the combat. As each man's lot fell, he hastily seized his arms full of eagerness and exultant delight, amidst the congratulations of his comrades and danced after the custom of his country. But when they began to fight, such was the state of feeling not only amongst the men who had accepted this condition, but amongst the spectators generally that the good fortune of those who died bravely was lauded quite as much as that of those who were victorious.

[21.43]After his men had been impressed by watching several pairs of combatants Hannibal dismissed them, and afterwards summoned them round him, when he is reported to have made the following speech: "Soldiers, you have seen in the fate of others an example how to conquer or to die. If the feelings with which you watched them

lead you to form a similar estimate of your own fortunes we are victors. That was no idle spectacle but a picture, as it were, of your own condition. Fortune, I am inclined to think has bound you in heavier chains and imposed upon you a sterner necessity than on your captives. You are shut in on the right hand and on the left by two seas, and you have not a single ship in which to make your escape; around you flows the Po, a greater river than the Rhone and a more rapid one; the barrier of the Alps frowns upon you behind, those Alps which you could hardly cross when your strength and vigour were unimpaired. Here, soldiers, on this spot where you have for the first time encountered the enemy you must either conquer or die. The same Fortune which has imposed upon you the necessity of fighting also holds out rewards of victory, rewards as great as any which men are wont to solicit from the immortal gods. Even if we were only going to recover Sicily and Sardinia, possessions which were wrested from our fathers, they would be prizes ample enough to satisfy us. Everything that the Romans now possess, which they have won through so many triumphs, all that they have amassed, will become yours, together with those who own it. Come then, seize your arms and with the help of heaven win this splendid reward. You have spent time enough in hunting cattle on the barren mountains of Lusitania and Celtiberia, and finding no recompense for all your toils and dangers; now the hour has come for you to enter upon rich and lucrative campaigns and to earn rewards which are worth the earning, after your long march over all those mountains and rivers, and through all those nations in arms. Here Fortune has vouchsafed an end to your toils, here she will vouchsafe a reward worthy of all your past services.

"Do not think because the war, being against Rome, bears a great name, that therefore victory will be correspondingly difficult. Many a despised enemy has fought a long and costly fight; nations and kings of high renown have been beaten with a very slight effort. For, setting aside the glory which surrounds the name of Rome, what point is there in which they can be compared to you? To say nothing of your twenty years' campaigning earned on with all your courage, all your good fortune, from the pillars of Hercules, from the shores of the ocean, from the furthest corners of the earth, through the midst of all the most warlike peoples of Spain and Gaul, you have arrived here as victors. The army with which you will fight is made up of raw levies

who were beaten, conquered, and hemmed in by the Gauls this very summer, who are strangers to their general, and he a stranger to them. I, reared as I was, almost born, in the headquarters tent of my father, a most distinguished general, I, who have subjugated Spain and Gaul, who have conquered not only the Alpine tribes, but, what is a much greater task, the Alps themselves - am I to compare myself with this six months' general who has deserted his own army, who, if any one were to point out to him the Romans and the Carthaginians after their standards were removed, would, I am quite certain, not know which army he was in command of as consul? I do not count it a small matter, soldiers, that there is not a man amongst you before whose eyes I have not done many a soldierly deed, or to whom I, who have witnessed and attested his courage, could not recount his own gallant exploits and the time and place where they were performed. I was your pupil before I was your commander, and I shall go into battle surrounded by men whom I have commended and rewarded thousands of times against those who know nothing of each other, who are mutual strangers.

[21.44]"Wherever I turn my eyes I see nothing but courage and strength, a veteran infantry, a cavalry, regular and irregular alike, drawn from the noblest tribes, you, our most faithful and brave allies, you, Carthaginians, who are going to fight for your country, inspired by a most righteous indignation. We are taking the aggressive, we are descending in hostile array into Italy, prepared to fight more bravely and more fearlessly than our foe because he who attacks is animated by stronger hopes and greater courage than he who meets the attack. Besides, we are smarting from a sense of injustice and humiliation. First they demanded me, your general, as their victim, then they insisted that all of you who had taken part in the siege of Saguntum should be surrendered; had you been given up they would have inflicted upon you the most exquisite tortures. That outrageously cruel and tyrannical nation claims everything for itself, makes everything dependent on its will and pleasure; they think it right to dictate with whom we are to make war or peace. They confine and enclose us within mountains and rivers as boundaries, but they do not observe the limits which they themselves have fixed. 'Do not cross the Ebro, see that you have nothing to do with the Saguntines.' 'But Saguntum is not on the Ebro.' 'You must not move a step anywhere.' 'Is it a small matter, your taking from me my oldest

provinces, Sicily and Sardinia? Will you cross over into Spain as well, and if I withdraw from there, will you cross over into Africa? Do I say, will cross over? You have crossed over.' They have sent the two consuls for this year, one to Africa, the other to Spain. There is nothing left to us anywhere except what we claim by force of arms. Those may be allowed to be cowards and dastards who have something to fall back upon, whom their own land, their own territory will receive as they flee through its safe and peaceful roads; you must of necessity be brave men, every alternative between victory and death has been broken off by the resolve of despair, and you are compelled either to conquer, or if Fortune wavers, to meet death in battle rather than in flight. If you have all made up your minds to this, I say again you are victors, no keener weapon has been put into men's hands by the immortal gods than a contempt for death."

[21.45]After the fighting spirit of both armies had been roused by these harangues, the Romans threw a bridge over the Ticinus and constructed a blockhouse for its defence. Whilst they were thus occupied, the Carthaginian sent Maharbal with a troop of 500 Numidian horse to ravage the lands of the allies of Rome, but with orders to spare those of the Gauls as far as possible, and to win over their chiefs to his side. When the bridge was completed the Roman army crossed over in the territory of the Insubres and took up a position five miles from Ictumuli, where Hannibal had his camp. As soon as he saw that a battle was imminent, he hastily recalled Maharbal and his troopers. Feeling that he could never say enough by way of admonition and encouragement to his soldiers, he ordered an assembly, and before the whole army offered definite rewards in the hope of which they were to fight. He said that he would give them land wherever they wished, in Italy, Africa, or Spain, which would be free from all taxation for the recipient and for his children; if any preferred money to land, he would satisfy his desires; if any of the allies wished to become Carthaginian citizens he would give them the opportunity; if any preferred to return to their homes he would take care that their circumstances should be such that they would never wish to exchange them with any of their countrymen. He even promised freedom to the slaves who followed their masters, and to the masters, for every slave freed, two more as compensation. To convince them of his determination to carry out these promises, he held a lamb with his left hand and a flint knife in his right and prayed

to Jupiter and the other gods, that, if he broke his word and forswore himself they would slay him as he had slain the lamb. He then crushed the animal's head with the flint. They all felt then that the gods themselves would guarantee the fulfilment of their hopes, and looked upon the delay in bringing on an action as delay in gaining their desires; with one mind and one voice they clamoured to be led into battle.

[21.46]The Romans were far from showing this alacrity. Amongst other causes of alarm they had been unnerved by some portents which had happened lately. A wolf had entered the camp and after worrying all it met had got away unhurt. A swarm of bees, too, had settled on a tree which overhung the headquarters tent. After the necessary propitiation had been made Scipio moved out with a force of cavalry and light-armed javelin men towards the enemy's camp to get a nearer view and to ascertain the number and nature of his force. He fell in with Hannibal who was also advancing with his cavalry to explore the neighbourhood. Neither body at first saw the other; the first indication of a hostile approach was given by the unusually dense cloud of dust which was raised by the tramp of so many men and horses. Each party halted and made ready for battle. Scipio placed the javelin men and the Gaulish cavalry in the front, the Roman horse and the heavy cavalry of the allies as reserves. Hannibal formed his centre with his regular cavalry, and posted the Numidians on the flanks. Scarcely had the battle shout been raised before the javelin men retired to the second line amongst the reserves. For some time the cavalry kept up an equal fight, but as the foot-soldiers became mixed up with the mounted men they made their horses unmanageable, many were thrown or else dismounted where they saw their comrades in difficulty, until the battle was mainly fought on foot. Then the Numidians on the flanks wheeled round and appeared on the rear of the Romans, creating dismay and panic amongst them. To make matters worse the consul was wounded and in danger; he was rescued by the intervention of his son who was just approaching manhood. This was the youth who afterwards won the glory of bringing this war to a close, and gained the soubriquet of Africanus for his splendid victory over Hannibal and the Carthaginians. The javelin men were the first to be attacked by the Numidians and they fled in disorder, the rest of the force, the cavalry, closed round the consul, shielding him as much by their persons as by their arms, and

returned to camp in orderly retirement. Caelius assigns the honour of saving the consul to a Ligurian slave, but I would rather believe that it was his son; the majority of authors assert this and the tradition is generally accepted.

[21.47] This was the first battle with Hannibal, and the result made it quite clear that the Carthaginian was superior in his cavalry, and consequently that the open plains which stretch from the Po to the Alps were not a suitable battlefield for the Romans. The next night accordingly, the soldiers were ordered to collect their baggage in silence, the army moved away from the Ticinus and marched rapidly to the Po, which they crossed by the pontoon bridge which was still intact, in perfect order and without any molestation by the enemy. They reached Placentia before Hannibal knew for certain that they had left the Ticinus; however, he succeeded in capturing some 600, who were loitering on his side of the Po, and were slowly unfastening the end of the bridge. He was unable to use the bridge for crossing, as the ends had been unfastened and the whole was floating downstream. According to Caelius, Mago with the cavalry and Spanish infantry at once swam across, whilst Hannibal himself took his army across higher up the river where it was fordable, the elephants being stationed in a row from bank to bank to break the force of the current. Those who know the river will hardly believe this for it is highly improbable that the cavalry could have stood against so violent a river without damage to their horses and arms, even supposing that the Spaniards had been carried across by their inflated skins, and it would have required a march of many days to find a ford in the Po where an army loaded with baggage could be taken across. I attach greater weight to those authorities who state that it took them at least two days to find a spot where they could throw a bridge over the river, and that it was there that Mago's cavalry and the Spanish light infantry crossed. Whilst Hannibal was waiting near the river to give audience to deputations from the Gauls, he sent his heavy infantry across, and during this interval Mago and his cavalry advanced a day's march from the river in the direction of the enemy at Placentia. A few days later Hannibal entrenched himself in a position six miles from Placentia, and the next day he drew out his army in battle order in full view of the enemy and gave him the opportunity of fighting.

[21.48] The following night a murderous outbreak took place amongst the Gaulish auxiliaries in the Roman camp; there was,

however, more excitement and confusion than actual loss of life. About 2000 infantry and 200 horsemen massacred the sentinels and deserted to Hannibal. The Carthaginian gave them a kind reception and sent them to their homes with the promise of great rewards if they would enlist the sympathies of their countrymen on his behalf. Scipio saw in this outrage a signal of revolt for all the Gauls, who, infected by the madness of this crime, would at once fly to arms, and though still suffering severely from his wound, he left his position in the fourth watch of the following night, his army marching in perfect silence, and shifted his camp close to the Trebia on to higher ground where the hills were impracticable for cavalry. He was less successful in escaping the notice of the enemy than he had been at the Ticinus, Hannibal sent first the Numidians, then afterwards the whole of his cavalry in pursuit and would have inflicted disaster upon the rear of the column at all events, had not the Numidians been tempted by their desire for plunder to turn aside to the deserted Roman camp. Whilst they were wasting their time in prying into every corner of the camp, without finding anything worth waiting for, the enemy slipped out of their hands, and when they caught sight of the Romans they had already crossed the Trebia and were measuring out the site for their camp. A few stragglers whom they caught on their side the river were killed. Unable any longer to endure the irritation of his wound, which had been aggravated during the march, and also thinking that he ought to wait for his colleague - he had already heard that he had been recalled from Sicily - Scipio selected what seemed the safest position near the river, and formed a standing camp which was strongly entrenched. Hannibal had encamped not far from there, and in spite of his elation at his successful cavalry action he felt considerable anxiety at the shortness of supplies which, owing to his marching through hostile territory where no stores were provided, became more serious day by day. He sent a detachment to the town of Clastidium where the Romans had accumulated large quantities of corn. Whilst they were preparing to attack the place they were led to hope that it would be betrayed to them. Dasius, a Brundisian, was commandant of the garrison, and he was induced by a moderate bribe of 400 gold pieces to betray Clastidium to Hannibal. The place was the granary of the Carthaginians while they were at the Trebia. No cruelty was practiced on the garrison, as Hannibal was anxious to win a reputation for clemency at the outset.

[21.49].The war on the Trebia had for the time being come to a standstill, but military and naval actions were taking place around Sicily and the islands fringing Italy, both under the conduct of Sempronius and also before his arrival. Twenty quinqueremes with a thousand soldiers on board had been despatched by the Carthaginians to Italy, nine of them to Liparae, eight to the island of Vulcanus, and three had been carried by the currents into the Straits of Messina. These were sighted from Messina, and Hiero, the King of Syracuse, who happened to be there at the time waiting for the consul, despatched twelve ships against them, and they were taken without any opposition and brought into the harbour of Messina. It was ascertained from the prisoners, that besides the fleet of twenty ships to which they belonged which had sailed for Italy thirty-five quinqueremes were also on the way to Sicily with the object of stirring up the old allies of Carthage. Their main anxiety was to secure Lilybaeum, and the prisoners were of opinion that the storm which had separated them from the rest had also driven that fleet up to the Aegates. The king communicated this information just as he had received it to M. Aemilius, the praetor, whose province Sicily was, and advised him to throw a strong garrison into Lilybaeum. The praetor at once sent envoys and military tribunes to the neighbouring states to urge them to take measures for self-defence. Lilybaeum especially was engrossed in preparations for war; orders were issued for the seamen to carry ten days' rations on board that there might be no delay in setting sail when the signal was given; and men were despatched along the coast to look out for the approach of the hostile fleet. So it came to pass that although the Carthaginians had purposely lessened the speed of their vessels, so that they might approach Lilybaeum before daylight, they were descried in the offing owing to there being a moon all night, and also because they were coming with their sails set. Instantly the signal was given by the look-out men; in the town there was the cry, "To arms," and the ships were manned. Some of the soldiers were on the walls and guarding the gates, others were on board the ships. As the Carthaginians saw that they would have to deal with people who were anything but unprepared, they stood out from the harbour till daylight, and spent the time in lowering their masts and preparing for action. When it grew light they put out to sea that they might have sufficient room for fighting, and that the enemy's ships might be free to issue from the harbour. The Romans did not decline battle, encouraged as they

were by the recollection of their former conflicts in this very place, and full of confidence in the numbers and courage of their men.

[21.50]When they had sailed out to sea the Romans were eager to come to close quarters and make a hand-to-hand fight of it; the Carthaginians, on the other hand, sought to avoid this and to succeed by maneuvering and not by direct attack; they preferred to make it a battle of ships rather than of soldiers. For their fleet was amply provided with seamen, but only scantily manned by soldiers, and whenever a ship was laid alongside one of the enemy's they were very unequally matched in fighting men. When this became generally known, the spirits of the Romans rose as they realised how many of their military were on board, whilst the Carthaginians lost heart when they remembered how few they had. Seven of their ships were captured in a very short time, the rest took to flight. In the seven ships there were 1700 soldiers and sailors, amongst them three members of the Carthaginian nobility. The Roman fleet returned undamaged into port, with the exception of one which had been rammed, but even that was brought in. Immediately after this battle Tiberius Sempronius, the consul, arrived at Messina before those in the town had heard of it. King Hiero went to meet him at the entrance of the Straits with his fleet fully equipped and manned, and went on board the consul's vessel to congratulate him on having safely arrived with his fleet and his army, and to wish him a prosperous and successful passage to Sicily. He then described the condition of the island and the movements of the Carthaginians, and promised to assist the Romans now in his old age with the same readiness which he had shown as a young man in the former war; he should supply the seamen and soldiers with corn and clothing gratis. He also told the consul that Lilybaeum and the cities on the coast were in great danger, some were anxious to effect a revolution. The consul saw that there must be no delay in his sailing for Lilybaeum; he started at once and the king accompanied him with his fleet.

[21.51]At Lilybaeum Hiero and his fleet bade him farewell, and the consul, after leaving the praetor to see to the defence of the coast of Sicily, crossed over to Malta which was held by the Carthaginians. Hamilcar, the son of Gisgo, who was in command of the garrison, surrendered the island and his men, a little under 2000 in number. A few days later he returned to Lilybaeum, and the prisoners, with the exception of the three nobles, were sold by auction. After satisfying

himself as to the security of that part of Sicily, the consul sailed to the Insulae Vulcani, as he heard that the Carthaginian fleet was anchored there. No enemy, however, was found in the neighbourhood, for they had left for Italy to ravage the coastal districts, and after laying waste the territory of Vibo they were threatening the city. Whilst he was returning to Sicily the news of these depredations reached the consul, and at the same time a despatch was handed to him from the senate informing him of Hannibal's presence in Italy and ordering him to come to his colleague's assistance as soon as possible. With all these causes for anxiety weighing upon him, the consul at once embarked his army and despatched it up the Adriatic to Ariminum. He furnished Sex. Pomponius, his legate, with twenty-five ships of war, and entrusted to him the protection of the Italian coast and the territory of Vibo, and made up the fleet of M. Aemilius, the praetor, to fifty vessels. After making these arrangements for Sicily, he started for Italy with ten ships, and cruising along the coast reached Ariminum. From there he marched to the Trebia and effected a junction with his colleague.

[21.52]The fact that both consuls and all the available strength that Rome possessed were now brought up to oppose Hannibal, was a pretty clear proof that either that force was adequate for the defence of Rome or that all hope of its defence must be abandoned. Nevertheless, one consul, depressed after his cavalry defeat, and also by his wound, would rather that battle should be deferred. The other, whose courage had suffered no check and was therefore all the more eager to fight, was impatient of any delay. The country between the Trebia and the Po was inhabited by Gauls who in this struggle between two mighty peoples showed impartial goodwill to either side, with the view, undoubtedly, of winning the victor's gratitude. The Romans were quite satisfied with this neutrality if only it was maintained and the Gauls kept quiet, but Hannibal was extremely indignant, as he was constantly giving out that he had been invited by the Gauls to win their freedom. Feelings of resentment and, at the same time, a desire to enrich his soldiers with plunder prompted him to send 2000 infantry and 1000 cavalry, made up of Gauls and Numidians, mostly the latter, with orders to ravage the whole country, district after district, right up to the banks of the Po. Though the Gauls had hitherto maintained an impartial attitude, they were

compelled in their need of help to turn from those who had inflicted these outrages to those who they hoped would avenge them. They sent envoys to the consuls to beg the Romans to come to the rescue of a land which was suffering because its people had been too loyal to Rome. Cornelius Scipio did not consider that either the grounds alleged or the circumstances justified his taking action. He regarded that nation with suspicion on account of their many acts of treachery, and even if their past faithlessness could have been forgotten through lapse of time, he could not forget the recent treachery of the Boii. Sempronius, on the other hand, was of opinion that the most effective means of preserving the fidelity of their allies was to defend those who first asked for their help. As his colleague still hesitated, he sent his own cavalry supported by about a thousand javelin men to protect the territory of the Gauls on the other side of the Trebia. They attacked the enemy suddenly whilst they were scattered and in disorder, most of them loaded with plunder, and after creating a great panic amongst them, and inflicting severe losses upon them, they drove them in flight to their camp. The fugitives were driven back by their comrades who poured in great numbers out of the camp, and thus reinforced they renewed the fighting. The battle wavered as each side retired or pursued, and up to the last the action was undecided. The enemy lost more men; the Romans claimed the victory.

[21.53]To no one in the whole army did the victory appear more important or more decisive than to the consul himself. What gave him especial pleasure was that he had proved superior in that arm in which his colleague had been worsted. He saw that the spirits of his men were restored, and that there was no one but his colleague who wished to delay battle; he believed that Scipio was more sick in mind than in body, and that the thought of his wound made him shrink from the dangers of the battlefield. "But we must not be infected by a sick man's lethargy. What will be gained by further delay, or rather, by wasting time? Whom are we expecting as our third consul; what fresh army are we looking for? The camp of the Carthaginians is in Italy, almost in sight of the City. They are not aiming at Sicily and Sardinia, which they lost after their defeats, nor the Spain which lies on this side the Ebro; their sole object is to drive the Romans away from their ancestral soil, from the land on which they were born. What groans our fathers would utter, accustomed as they were to warring round the walls of Carthage, if they could see us, their

descendants, with two consuls and two consular armies, cowering in our camp in the very heart of Italy, whilst the Carthaginian is annexing to his empire all between the Alps and the Apennines." This was the way he spoke when sitting by his incapacitated colleague, this the language he used before his soldiers as though he were haranguing the Assembly. He was urged on, too, by the near approach of the time for the elections, and the fear that the war, if delayed, might pass into the hands of the new consuls, as well as by the chance he had of monopolising all the glory of it while his colleague was on the sick list. In spite, therefore, of the opposition of Cornelius he ordered the soldiers to get ready for the coming battle.

Hannibal saw clearly what was the best course for the enemy to adopt, and had very little hope that the consuls would do anything rash or ill-advised. When, however, he found that what he had previously learnt by hearsay was actually the case, namely, that one of the consuls was a man of impetuous and headstrong character, and that he had become still more so since the recent cavalry action, he had very little doubt in his own mind that he would have a favourable opportunity of giving battle. He was anxious not to lose a moment, in order that he might fight whilst the hostile army was still raw and the better of the two generals was incapacitated by his wound, and also whilst the Gauls were still in a warlike mood, for he knew that most of them would follow him with less alacrity the further they were dragged from their homes. These and similar considerations led him to hope that a battle was imminent, and made him desirous of forcing an engagement if there was any holding back on the other side. He sent out some Gauls to reconnoitre - as Gauls were serving in both armies they could be most safely trusted to find out what he wanted - and when they reported that the Romans had prepared for battle, the Carthaginian began to look out for ground which would admit of an ambuscade.

[21.54]Between the two armies there was a stream with very high banks which were overgrown with marshy grass and the brambles and brushwood which are generally found on waste ground. After riding round the place and satisfying himself from personal observation that it was capable of concealing even cavalry, Hannibal, turning to his brother Mago, said, "This will be the place for you to occupy. Pick out of our whole force of cavalry and infantry a hundred men from each arm, and bring them to me at the first watch, now it

is time for food and rest." He then dismissed his staff. Presently Mago appeared with his 200 picked men. "I see here," said Hannibal, "the very flower of my army, but you must be strong in numbers as well as in courage. Each of you therefore go and choose nine others like himself, from the squadrons and the maniples. Mago will show you the place where you are to lie in ambush, you have an enemy who are blindly ignorant of these practices in war." After sending Mago with his 1000 infantry and 1000 cavalry to take up his position, Hannibal gave orders for the Numidian cavalry to cross the Trebia in the early dawn and ride up to the gates of the Roman camp; then they were to discharge their missiles on the outposts and so goad the enemy on to battle. When the fighting had once started they were gradually to give ground and draw their pursuers to their own side of the river. These were the instructions to the Numidians; the other commanders, both infantry and cavalry, were ordered to see that all their men had breakfast, after which they were to wait for the signal, the men fully armed, the horses saddled and ready. Eager for battle, and having already made up his mind to fight, Sempronius led out the whole of his cavalry to meet the Numidian attack, for it was in his cavalry that he placed most confidence; these were followed by 6000 infantry and at last the whole of his force marched on to the field. It happened to be the season of winter, a snowstorm was raging, and the district, situated between the Alps and the Apennines, was rendered especially cold by the vicinity of rivers and marshes. To make matters worse, men and horses alike had been hurriedly sent forward, without any food, without any protection against the cold, so they had no heat in them and the chilling blasts from the river made the cold still more severe as they approached it in their pursuit of the Numidians. But when they entered the water which had been swollen by the night's rain and was then breast high, their limbs became stiff with cold, and when they emerged on the other side they had hardly strength to hold their weapons; they began to grow faint from fatigue and as the day wore on, from hunger.

[21.55] Hannibal's men, meanwhile, had made fires in front of their tents, oil had been distributed amongst the maniples for them to make their joints and limbs supple and they had time for an ample repast. When it was announced that the enemy had crossed the river they took their arms, feeling alert and active in mind and body, and marched to battle. The Balearic and light-armed infantry were posted

in front of the standards; they numbered about 8000; behind them the heavy-armed infantry, the mainstay and backbone of the army; on the flanks Hannibal distributed the cavalry, and outside them, again, the elephants. When the consul saw his cavalry, who had lost their order in the pursuit, suddenly meeting with an unsuspected resistance from the Numidians, he recalled them by signal and received them within his infantry. There were 18,000 Romans, 20,000 Latin allies, and an auxiliary force of Cenomani, the only Gallic tribe which had remained faithful. These were the forces engaged. The Balearics and light infantry opened the battle, but on being met by the heavier legions they were rapidly withdrawn to the wings, an evolution which at once threw the Roman horse into difficulties, for the 4000 wearied troopers had been unable to offer an effective resistance to 10,000 who were fresh and vigorous, and now in addition they were overwhelmed by what seemed a cloud of missiles from the light infantry. Moreover, the elephants, towering aloft at the ends of the line, terrified the horses not only by their appearance but by their unaccustomed smell, and created widespread panic. The infantry battle, as far as the Romans were concerned, was maintained more by courage than by physical strength, for the Carthaginians, who had shortly before been getting themselves into trim, brought their powers fresh and unimpaired into action, whilst the Romans were fatigued and hungry and stiff with cold. Still, their courage would have kept them up had it been only infantry that they were fighting against. But the light infantry, after repulsing the cavalry, were hurling their missiles on the flanks of the legions; the elephants had now come up against the centre of the Roman line, and Mago and his Numidians, as soon as it had passed their ambushade, rose up in the rear and created a terrible disorder and panic. Yet in spite of all the dangers which surrounded them, the ranks stood firm and immovable for some time, even, contrary to all expectation, against the elephants. Some skirmishers who had been placed where they could attack these animals flung darts at them and drove them off, and rushed after them, stabbing them under their tails, where the skin is soft and easily penetrated.

[21.56]Maddened with pain and terror, they were beginning to rush wildly on their own men, when Hannibal ordered them to be driven away to the left wing against the auxiliary Gauls on the Roman right. There they instantly produced unmistakable panic and flight, and the

Romans had fresh cause for alarm when they saw their auxiliaries routed. They now stood fighting in a square, and about 10,000 of them, unable to escape in any other direction, forced their way through the centre of the African troops and the auxiliary Gauls who supported them and inflicted an immense loss on the enemy. They were prevented by the river from returning to their camp, and the rain made it impossible for them to judge where they could best go to the assistance of their comrades, so they marched away straight to Placentia. Then desperate attempts to escape were made on all sides; some who made for the river were swept away by the current or caught by the enemy while hesitating to cross; others, scattered over the fields in flight, followed the track of the main retreat and sought Placentia; others, fearing the enemy more than the river, crossed it and reached their camp. The driving sleet and the intolerable cold caused the death of many men and baggage animals, and nearly all the elephants perished. The Carthaginians stopped their pursuit at the banks of the Trebia and returned to their camp so benumbed with cold that they hardly felt any joy in their victory. In the night the men who had guarded the camp, and the rest of the soldiers, mostly wounded, crossed the Trebia on rafts without any interference from the Carthaginians, either because the roaring of the storm prevented them from hearing or because they were unable to move through weariness and wounds and pretended that they heard nothing. Whilst the Carthaginians were keeping quiet, Scipio led his army to Placentia and thence across the Po to Cremona, in order that one colony might not be burdened with providing winter quarters for the two armies.

[21.57] This defeat so unnerved people in Rome that they believed the enemy was already advancing to attack the City, and that there was no help to be looked for, no hope of repelling him from their walls and gates. After one consul had been beaten at the Ticinus the other was recalled from Sicily, and now both consuls and both consular armies had been worsted. What fresh generals, men asked, what fresh legions could be brought to the rescue? Amidst this universal panic Sempronius arrived. He had slipped through the enemy's cavalry at immense risk while they were dispersed in quest of plunder, and owed his escape rather to sheer audacity than to cleverness, for he had little hope of eluding them or of successful resistance if he failed to do so. After conducting the elections, which was the pressing need for the moment, he returned to winter quarters. The consuls elected

were Cneius Servilius and C. Flaminius. Even in their winter quarters the Romans were not allowed much quiet; the Numidian horse were roaming in all directions, or where the ground was too rough for them, the Celtiberians and Lusitanians. They were, therefore, cut off from supplies on every side, except what were brought in ships on the Po. Near Placentia there was a place called Emporium, which had been carefully fortified and occupied by a strong garrison. In the hope of capturing the place, Hannibal approached with cavalry and light-armed troops, and as he trusted mainly to secrecy for success, he marched thither by night. But he did not escape the observation of the sentinels, and such a shouting suddenly arose that it was actually heard at Placentia. By daybreak the consul was on the spot with his cavalry, having given orders for the legions of infantry to follow in battle formation. A cavalry action followed in which Hannibal was wounded, and his retirement from the field discomfited the enemy; the position was admirably defended.

After taking only a few days' rest, before his wound was thoroughly healed Hannibal proceeded to attack Victumviae. During the Gaulish war this place had served as an emporium for the Romans; subsequently, as it was a fortified place, a mixed population from the surrounding country had settled there in considerable numbers, and now the terror created by the constant depredations had driven most of the people from the fields into the town. This motley population, excited by the news of the energetic defence of Placentia, flew to arms and went out to meet Hannibal. More like a crowd than an army they met him on his march, and as on the one side there was nothing but an undisciplined mob, and on the other a general and soldiers who had perfect confidence in each other, a small body routed as many as 35,000 men. The next day they surrendered and admitted a Carthaginian garrison within their walls. They had just completed the surrender of their arms in obedience to orders, when instructions were suddenly given to the victors to treat the city as though it had been carried by storm, and no deed of blood, which on such occasions historians are wont to mention, was left undone, so awful was the example set of every form of licentiousness and cruelty and brutal tyranny towards the wretched inhabitants. Such were the winter operations of Hannibal.

[21.58]The soldiers rested whilst the intolerable cold lasted; it did not, however, last long, and at the first doubtful indications of spring

Hannibal left his winter quarters for Etruria with the intention of inducing that nation to join forces with him, either voluntarily or under compulsion. During his passage of the Apennines he was overtaken by a storm of such severity as almost to surpass the horrors of the Alps. The rain was driven by the wind straight into the men's faces, and either they had to drop their weapons or if they tried to struggle against the hurricane it caught them and dashed them to the ground, so they came to a halt. Then they found that it was stopping their respiration so that they could not breathe, and they sat down for a short time with their backs to the wind. The heavens began to reverberate with terrific roar, and amidst the awful din lightning flashed and quivered. Sight and sound alike paralysed them with terror. At last, as the force of the gale increased owing to the rain having ceased, they saw that there was nothing for it but to pitch their camp on the ground where they had been caught by the storm. Now all their labour had to begin over again, for they could neither unroll anything nor fix anything, whatever was fixed did not stand, the wind tore everything into shreds and carried it off. Soon the moisture in the upper air above the cold mountain peaks froze and discharged such a shower of snow and hail that the men, giving up all further attempts, lay down as best they could, buried beneath their coverings rather than protected by them. This was followed by such intense cold that when any one attempted to rise out of that pitiable crowd of prostrate men and beasts it was a long time before he could get up, for his muscles being cramped and stiff with cold, he could hardly bend his limbs. At length, by exercising their arms and legs, they were able to move about, and began to recover their spirits; here and there fires were lighted, and those who were most helpless turned to their colleagues for help. They remained on that spot for two days like a force blockaded; many men and animals perished; of the elephants which survived the battle of the Trebia they lost seven.

[21.59]After descending from the Apennines Hannibal advanced towards Placentia, and after a ten miles' march formed camp. The following day he marched against the enemy with 12,000 infantry and 5000 cavalry. Sempronius had by this time returned from Rome, and he did not decline battle. That day the two camps were three miles distant from each other; the following day they fought, and both sides exhibited the most determined courage, but the action was indecisive. At the first encounter the Romans were so far superior that they not

only conquered in the field, but followed the routed enemy to his camp and soon made an attack upon it. Hannibal stationed a few men to defend the rampart and the gates, the rest he massed in the middle of the camp, and ordered them to be on the alert and wait for the signal to make a sortie. It was now about three o'clock; the Romans were worn out with their fruitless efforts as there was no hope of carrying the camp, and the consul gave the signal to retire. As soon as Hannibal heard it and saw that the fighting had slackened and that the enemy were retiring from the camp, he immediately launched his cavalry against them right and left, and sallied in person with the main strength of his infantry from the middle of the camp. Seldom has there been a more equal fight, and few would have been rendered more memorable by the mutual destruction of both armies had the daylight allowed it to be sufficiently prolonged; as it was, night put an end to a conflict which had been maintained with such determined courage. There was greater fury than bloodshed, and as the fighting had been almost equal on both sides, they separated with equal loss. Not more than 600 infantry and half that number of cavalry fell on either side, but the Roman loss was out of proportion to their numbers; several members of the equestrian order and five military tribunes as well as three prefects of the allies were killed. Immediately after the battle Hannibal withdrew into Liguria, and Sempronius to Luca. Whilst Hannibal was entering Liguria, two Roman quaestors who had been ambushed and captured, C. Fulvius and L. Lucretius, together with three military tribunes and five members of the equestrian order, most of them sons of senators, were given up to him by the Gauls in order that he might feel more confidence in their maintenance of peaceful relations, and their determination to give him active support.

[21.60]While these events were in progress in Italy, Cn. Cornelius Scipio, who had been sent with a fleet and an army to Spain, commenced operations in that country. Starting from the mouth of the Rhone, he sailed round the eastward end of the Pyrenees and brought up at Emporiae. Here he disembarked his army, and beginning with the Laetani, he brought the whole of the maritime populations as far as the Ebro within the sphere of Roman influence by renewing old alliances and forming new ones. He gained in this way a reputation for clemency which extended not only to the maritime populations but to the more warlike tribes in the interior

and the mountain districts. He established peaceable relations with these, and more than that, he secured their support in arms and several strong cohorts were enrolled from amongst them. The country on this side the Ebro was Hanno's province, Hannibal had left him to hold it for Carthage. Considering that he ought to oppose Scipio's further progress before the whole province was under Roman sway, he fixed his camp in full view of the enemy and offered battle. The Roman general, too, thought that battle ought not to be delayed; he knew he would have to fight both Hanno and Hasdrubal, and preferred dealing with each singly rather than meeting them both at once.. The battle was not a hard-fought one. The enemy lost 6000; 2000, including those who were guarding the camp, were made prisoners; the camp itself was carried and the general with some of his chiefs was taken; Cissis, a town near the camp, was successfully attacked. The plunder, however, as it was a small place, was of little value, consisting mainly of the barbarians' household goods and some worthless slaves. The camp, however, enriched the soldiers with the property belonging not only to the army they had defeated but also to the one serving with Hannibal in Italy. They had left almost all their valuable possessions on the other side of the Pyrenees, that they might not have heavy loads to carry.

[21.61]Before he had received definite tidings of this defeat, Hasdrubal had crossed the Ebro with 8000 infantry and 1000 cavalry, hoping to encounter the Romans as soon as they landed, but after hearing of the disaster at Cissis and the capture of the camp, he turned his route to the sea. Not far from Tarracena he found our marines and seamen wandering at will through the fields, success as usual producing carelessness. Sending his cavalry in all directions amongst them, he made a great slaughter and drove them pell-mell to their ships. Afraid to remain any longer in the neighbourhood lest he should be surprised by Scipio, he retreated across the Ebro. On hearing of this fresh enemy Scipio came down by forced marches, and after dealing summary punishment to some of the naval captains, returned by sea to Emporiae, leaving a small garrison in Tarracena. He had scarcely left when Hasdrubal appeared on the scene, and instigated the Ilergetes, who had given hostages to Scipio, to revolt, and in conjunction with the warriors of that tribe ravaged the territories of those tribes who remained loyal to Rome. This roused Scipio from his winter quarters, on which Hasdrubal again

disappeared beyond the Ebro, and Scipio invaded in force the territory of the Ilergetes, after the author of the revolt had left them to their fate. He drove them all into Antanagrum, their capital, which he proceeded to invest, and a few days later he received them into the protection and jurisdiction of Rome, after demanding an increase in the number of hostages and inflicting a heavy fine upon them. From there he advanced against the Ausetani, who lived near the Ebro and were also in alliance with the Carthaginians, and invested their city. The Laetani whilst bringing assistance to their neighbours by night were ambushed not far from the city which they intended to enter. As many as 12,000 were killed, almost all the survivors threw away their arms and fled to their homes in scattered groups all over the country. The only thing which saved the invested city from assault and storm was the severity of the weather. For the thirty days during which the siege lasted the snow was seldom less than four feet deep, and it covered up the mantlets and vineae so completely that it even served as a sufficient protection against the firebrands which the enemy discharged from time to time. At last, after their chief, Amusicus, had escaped to Hasdrubal's quarters, they surrendered and agreed to pay an indemnity of twenty talents. The army returned to its winter quarters at Tarracona.

[21.62] During this winter many portents occurred in Rome and the neighbourhood, or at all events, many were reported and easily gained credence, for when once men's minds have been excited by superstitious fears they easily believe these things. A six-months-old child, of freeborn parents, is said to have shouted "Io Triumphe" in the vegetable market, whilst in the Forum Boarium an ox is reported to have climbed up of its own accord to the third story of a house, and then, frightened by the noisy crowd which gathered, it threw itself down. A phantom navy was seen shining in the sky; the temple of Hope in the vegetable market was struck by lightning; at Lanuvium Juno's spear had moved of itself, and a crow had flown down to her temple and settled upon her couch; in the territory of Amiternum beings in human shape and clothed in white were seen at a distance, but no one came close to them; in the neighbourhood of Picenum there was a shower of stones; at Caere the oracular tablets had shrunk in size; in Gaul a wolf had snatched a sentinel's sword from its scabbard and run off with it. With regard to the other portents, the decemvirs were ordered to consult the Sacred Books, but in the case

of the shower of stones at Picenum a nine days' sacred feast was proclaimed, at the close of which almost the whole community busied itself with the expiation of the others. First of all the City was purified, and full-grown victims were sacrificed to the deities named in the Sacred Books; an offering of forty pounds' weight of gold was conveyed to Juno at Lanuvium, and the matrons dedicated a bronze statue of that goddess on the Aventine. At Caere, where the tablets had shrunk, a lectisternium was enjoined, and a service of intercession was to be rendered to Fortuna on Algidus. In Rome also a lectisternium was ordered for Juventas and a special service of intercession at the temple of Hercules, and afterwards one in which the whole population were to take part at all the shrines. Five full-grown victims were sacrificed to the Genius of Rome, and C. Atilius Serranus, the praetor, received instructions to undertake certain vows which were to be discharged should the commonwealth remain in the same condition for ten years. These ceremonial observances and vows, ordered in obedience to the Sacred Books, did much to allay the religious fears of the people.

[21.63]One of the consuls elect was C. Flaminius, and to him was assigned by lot the command of the legions at Placentia. He wrote to the consul giving orders for the army to be in camp at Ariminum by the 15th of March. The reason was that he might enter upon his office there, for he had not forgotten his old quarrels with the senate, first as tribune of the people, then afterwards about his consulship, the election to which had been declared illegal, and finally about his triumph. He further embittered the senate against him by his support of C. Claudius; he alone of all the members was in favour of the measure which that tribune introduced. Under its provisions no senator, no one whose father had been a senator, was allowed to possess a vessel of more than 300 amphorae burden. This was considered quite large enough for the conveyance of produce from their estates, all profit made by trading was regarded as dishonourable for the patricians. The question excited the keenest opposition and brought Flaminius into the worst possible odium with the nobility through his support of it, but on the other hand made him a popular favourite and procured for him his second consulship. Suspecting, therefore, that they would endeavour to detain him in the City by various devices, such as falsifying the auspices or the delay necessitated by the Latin Festival, or other hindrances to which as

consul he was liable, he gave out that he had to take a journey, and then left the City secretly as a private individual and so reached his province. When this got abroad there was a fresh outburst of indignation on the part of the incensed senate; they declared that he was carrying on war not only with the senate but even with the immortal gods. "On the former occasion," they said, "when he was elected consul against the auspices and we recalled him from the very field of battle, he was disobedient to gods and men. Now he is conscious that he has despised them and has fled from the Capitol and the customary recital of solemn vows. He refuses to approach the temple of Jupiter Optimus Maximus on the day of his entrance upon office, to see and consult the senate, to whom he is so odious and whom he alone of all men detests, to proclaim the Latin Festival and offer sacrifice to Jupiter Latiaris on the Alban Mount, to proceed to the Capitol and after duly taking the auspices recite the prescribed vows, and from thence, vested in the paludamentum and escorted by lictors, go in state to his province. He has stolen away furtively without his insignia of office, without his lictors, just as though he were some menial employed in the camp and had quitted his native soil to go into exile. He thinks it, forsooth, more consonant with the greatness of his office to enter upon it at Ariminum rather than in Rome, and to put on his official dress in some wayside inn rather than at his own hearth and in the presence of his own household gods." It was unanimously decided that he should be recalled, brought back if need be by force, and compelled to discharge, on the spot, all the duties he owed to God and man before he went to the army and to his province. Q. Terentius and M. Antistius were delegated for this task, but they had no more influence with him than the despatch of the senate in his former consulship. A few days afterwards he entered upon office, and whilst offering his sacrifice, the calf, after it was struck, bounded away out of the hands of the sacrificing priests and bespattered many of the bystanders with its blood. Amongst those at a distance from the altar who did not know what the commotion was about there was great excitement; most people regarded it as a most alarming omen. Flaminius took over the two legions from Sempronius, the late consul, and the two from C. Atilius, the praetor, and commenced his march to Etruria through the passes of the Apennines.

BOOK 22: THE DISASTER OF CANNAE

[22.1] Spring was now coming on; Hannibal accordingly moved out of his winter quarters. His previous attempt to cross the Apennines had been frustrated by the insupportable cold; to remain where he was would have been to court danger. The Gauls had rallied to him through the prospect of booty and spoil, but when they found that instead of plundering other people's territory their own had become the seat of war and had to bear the burden of furnishing winter quarters for both sides, they diverted their hatred from the Romans to Hannibal. Plots against his life were frequently hatched by their chiefs, and he owed his safety to their mutual faithlessness, for they betrayed the plots to him in the same spirit of fickleness in which they had formed them. He guarded himself from their attempts by assuming different disguises, at one time wearing a different dress, at another putting on false hair. But these constant alarms were an additional motive for his early departure from his winter quarters. About the same time Cn. Servilius entered upon his consulship at Rome, on the 15th of March. When he had laid before the senate the policy which he proposed to carry out, the indignation against C. Flaminius broke out afresh. "Two consuls had been elected, but as a matter of fact they only had one. What legitimate authority did this man possess? What religious sanctions? Magistrates only take these sanctions with them from home, from the altars of the State, and from their private altars at home after they have celebrated the Latin Festival, offered the sacrifice on the Alban Mount, and duly recited the vows in the Capitol. These sanctions do not follow a private citizen, nor if he has departed without them can he obtain them afresh in all their fulness on a foreign soil."

To add to the general feeling of apprehension, information was received of portents having occurred simultaneously in several places. In Sicily several of the soldiers' darts were covered with flames; in Sardinia the same thing happened to the staff in the hand of an officer who was going his rounds to inspect the sentinels on the wall; the shores had been lit up by numerous fires; a couple of shields had sweated blood; some soldiers had been struck by lightning; an eclipse of the sun had been observed; at Praeneste there had been a shower of red-hot stones; at Arpi shields had been seen in the sky and the sun had appeared to be fighting with the moon; at Capena two moons were visible in the daytime; at Caere the waters

ran mingled with blood, and even the spring of Hercules had bubbled up with drops of blood on the water; at Antium the ears of corn which fell into the reapers' basket were blood-stained; at Falerii the sky seemed to be cleft asunder as with an enormous rift and all over the opening there was a blazing light; the oracular tablets shrank and shrivelled without being touched and one had fallen out with this inscription, "MARS IS SHAKING HIS SPEAR"; and at the same time the statue of Mars on the Appian Way and the images of the Wolves sweated blood. Finally, at Capua the sight was seen of the sky on fire and the moon falling in the midst of a shower of rain. Then credence was given to comparatively trifling portents, such as that certain people's goats were suddenly clothed with wool, a hen turned into a cock, and a cock into a hen. After giving the details exactly as they were reported to him and bringing his informants before the senate, the consul consulted the House as to what religious observances ought to be proclaimed. A decree was passed that to avert the evils which these portents foreboded, sacrifices should be offered, the victims to be both full-grown animals and sucklings, and also that special intercessions should be made at all the shrines for three days. What other ceremonial was necessary was to be carried out in accordance with the instructions of the decemvirs after they had inspected the Sacred Books and ascertained the will of the gods. On their advice it was decreed that the first votive offering should be made to Jupiter in the shape of a golden thunderbolt weighing fifty pounds, gifts of silver to Juno and Minerva, and sacrifices of full-grown victims to Queen Juno on the Aventine and Juno Sospita at Lanuvium, whilst the matrons were to contribute according to their means and bear their gift to Queen Juno on the Aventine. A lectisternium was to be held, and even the freedwomen were to contribute what they could for a gift to the temple of Feronia. When these instructions had been carried out the decemvirs sacrificed full-grown victims in the forum at Ardea, and finally in the middle of December there was a sacrifice at the Temple of Saturn, a lectisternium was ordered (the senators prepared the couch), and a public banquet. For a day and a night the cry of the Saturnalia resounded through the City, and the people were ordered to make that day a festival and observe it as such for ever.

[22.2] While the consul was occupied in these propitiatory ceremonies and also in the enrolment of troops, information reached Hannibal

that Flaminius had arrived at Arretium, and he at once broke up his winter quarters. There were two routes into Etruria, both of which were pointed out to Hannibal; one was considerably longer than the other but a much better road, the shorter route, which he decided to take, passed through the marshes of the Arno, which was at the time in higher flood than usual. He ordered the Spaniards and Africans, the main strength of his veteran army, to lead, and they were to take their own baggage with them, so that, in case of a halt, they might have the necessary supplies; the Gauls were to follow so as to form the centre of the column; the cavalry were to march last, and Mago and his Numidian light horse were to close up the column, mainly to keep the Gauls up to the mark in case they fell out or came to a halt through the fatigue and exertion of so long a march, for as a nation they were unable to stand that kind of thing. Those in front followed wherever the guides led the way, through the deep and almost bottomless pools of water, and though almost sucked in by the mud through which they were half-wading, half-swimming, still kept their ranks. The Gauls could neither recover themselves when they slipped nor when once down had they the strength to struggle out of the pools; depressed and hopeless they had no spirits left to keep up their bodily powers. Some dragged their worn-out limbs painfully along, others gave up the struggle and lay dying amongst the baggage animals which were lying about in all directions. What distressed them most of all was want of sleep, from which they had been suffering for four days and three nights. As everything was covered with water and they had not a dry spot on which to lay their wearied bodies, they piled up the baggage in the water and lay on the top, whilst some snatched a few minutes' needful rest by making couches of the heaps of baggage animals which were everywhere standing out of the water. Hannibal himself, whose eyes were affected by the changeable and inclement spring weather, rode upon the only surviving elephant so that he might be a little higher above the water. Owing, however, to want of sleep and the night mists and the malaria from the marshes, his head became affected, and as neither place nor time admitted of any proper treatment, he completely lost the sight of one eye.

[22.3] After losing many men and beasts under these frightful circumstances, he at last got clear of the marshes, and as soon as he could find some dry ground he pitched his camp. The scouting

parties he had sent out reported that the Roman army was lying in the neighbourhood of Arretium. His next step was to investigate as carefully as he possibly could all that it was material for him to know - what mood the consul was in, what designs he was forming, what the character of the country and the kind of roads it possessed, and what resources it offered for the obtaining of supplies. The district was amongst the most fertile in Italy; the plains of Etruria, which extend from Faesulae to Arretium, are rich in corn and live stock and every kind of produce. The consul's overbearing temper, which had grown steadily worse since his last consulship, made him lose all proper respect and reverence even for the gods, to say nothing of the majesty of the senate and the laws, and this self-willed and obstinate side of his character had been aggravated by the successes he had achieved both at home and in the field. It was perfectly obvious that he would not seek counsel from either God or man, and whatever he did would be done in an impetuous and headstrong manner. By way of making him show these faults of character still more flagrantly, the Carthaginian prepared to irritate and annoy him. He left the Roman camp on his left, and marched in the direction of Faesulae to plunder the central districts of Etruria. Within actual view of the consul he created as widespread a devastation as he possibly could, and from the Roman camp they saw in the distance an extensive scene of fire and .massacre.

Flaminius had no intention of keeping quiet even if the enemy had done so, but now that he saw the possessions of the allies of Rome plundered and pillaged almost before his very eyes, he felt it to be a personal disgrace that an enemy should be roaming at will through Italy and advancing to attack Rome with none to hinder him. All the other members of the council of war were in favour of a policy of safety rather than of display; they urged him to wait for his colleague, that they might unite their forces and act with one mind on a common plan, and pending his arrival they should check the wild excesses of the plundering enemy with cavalry and the light-armed auxiliaries. Enraged at these suggestions he dashed out of the council and ordered the trumpets to give the signal for march and battle; exclaiming at the same time: "We are to sit, I suppose, before the walls of Arretium, because our country and our household gods are here. Now that Hannibal has slipped through our hands, he is to ravage Italy, destroy and burn everything in his way till he reaches

Rome, while we are not to stir from here until the senate summons C. Flaminius from Arretium as they once summoned Camillus from Veii." During this outburst, he ordered the standards to be pulled up with all speed and at the same time mounted his horse. No sooner had he done so than the animal stumbled and fell and threw him over its head. All those who were standing round were appalled by what they took to be an evil omen at the beginning of a campaign, and their alarm was considerably increased by a message brought to the consul that the standard could not be moved though the standard-bearer had exerted his utmost strength. He turned to the messenger and asked him: "Are you bringing a despatch from the senate, also, forbidding me to go on with the campaign? Go, let them dig out the standard if their hands are too benumbed with fear for them to pull it up." Then the column began its march. The superior officers, besides being absolutely opposed to his plans, were thoroughly alarmed by the double portent, but the great body of the soldiers were delighted at the spirit their general had shown; they shared his confidence without knowing on what slender grounds it rested.

[22.4] In order still further to exasperate his enemy and make him eager to avenge the injuries inflicted on the allies of Rome, Hannibal laid waste with all the horrors of war the land between Cortona and Lake Trasumennus. He had now reached a position eminently adapted for surprise tactics, where the lake comes up close under the hills of Cortona. There is only a very narrow road here between the hills and the lake, as though a space had been purposely left for it. Further on there is a small expanse of level ground flanked by hills, and it was here that Hannibal pitched camp, which was only occupied by his Africans and Spaniards, he himself being in command. The Balearics and the rest of the light infantry he sent behind the hills; the cavalry, conveniently screened by some low hills, he stationed at the mouth of the defile, so that when the Romans had entered it they would be completely shut in by the cavalry, the lake, and the hills. Flaminius had reached the lake at sunset. The next morning, in a still uncertain light, he passed through the defile, without sending any scouts on to feel the way, and when the column began to deploy in the wider extent of level ground the only enemy they saw was the one in front, the rest were concealed in their rear and above their heads. When the Carthaginian saw his object achieved and had his enemy shut in between the lake and the hills with his forces surrounding

them, he gave the signal for all to make a simultaneous attack, and they charged straight down upon the point nearest to them. The affair was all the more sudden and unexpected to the Romans because a fog which had risen from the lake was denser on the plain than on the heights; the bodies of the enemy on the various hills could see each other well enough, and it was all the easier for them to charge all at the same time. The shout of battle rose round the Romans before they could see clearly from whence it came, or became aware that they were surrounded. Fighting began in front and flank before they could form line or get their weapons ready or draw their swords.

[22.5]In the universal panic, the consul displayed all the coolness that could be expected under the circumstances. The ranks were broken by each man turning towards the discordant shouts; he re-formed them as well as time and place allowed, and wherever he could be seen or heard, he encouraged his men and bade them stand and fight. "It is not by prayers or entreaties to the gods that you must make your way out," he said, "but by your strength and your courage. It is the sword that cuts a path through the middle of the enemy, and where there is less fear there is generally less danger." But such was the uproar and confusion that neither counsel nor command could be heard, and so far was the soldier from recognising his standard or his company or his place in the rank, that he had hardly sufficient presence of mind to get hold of his weapons and make them available for use, and some who found them a burden rather than a protection were overtaken by the enemy. In such a thick fog ears were of more use than eyes; the men turned their gaze in every direction as they heard the groans of the wounded and the blows on shield or breastplate, and the mingled shouts of triumph and cries of panic. Some who tried to fly ran into a dense body of combatants and could get no further; others who were returning to the fray were swept away by a rush of fugitives. At last, when ineffective charges had been made in every direction and they found themselves completely hemmed in, by the lake and the hills on either side, and by the enemy in front and rear, it became clear to every man that his only hope of safety lay in his own right hand and his sword. Then each began to depend upon himself for guidance and encouragement, and the fighting began afresh, not the orderly battle with its three divisions of principes, hastati, and triarii, where the fighting line is in front of the standards and the rest of the army behind, and where each soldier

is in his own legion and cohort and manipule. Chance massed them together, each man took his place in front or rear as his courage prompted him, and such was the ardour of the combatants, so intent were they on the battle, that not a single man on the field was aware of the earthquake which levelled large portions of many towns in Italy, altered the course of swift streams, brought the sea up into the rivers, and occasioned enormous landslips amongst the mountains.

[22.6]For almost three hours the fighting went on; everywhere a desperate struggle was kept up, but it raged with greater fierceness round the consul. He was followed by the pick of his army, and wherever he saw his men hard pressed and in difficulties he at once went to their help. Distinguished by his armour he was the object of the enemy's fiercest attacks, which his comrades did their utmost to repel, until an Insubrian horseman who knew the consul by sight - his name was Ducarius - cried out to his countrymen, "Here is the man who slew our legions and laid waste our city and our lands! I will offer him in sacrifice to the shades of my foully murdered countrymen." Digging spurs into his horse he charged into the dense masses of the enemy, and slew an armour-bearer who threw himself in the way as he galloped up lance in rest, and then plunged his lance into the consul; but the triarii protected the body with their shields and prevented him from despoiling it. Then began a general flight, neither lake nor mountain stopped the panic-stricken fugitives, they rushed like blind men over cliff and defile, men and arms tumbled pell-mell on one another. A large number, finding no avenue of escape, went into the water up to their shoulders; some in their wild terror even attempted to escape by swimming, an endless and hopeless task in that lake. Either their spirits gave way and they were drowned, or else finding their efforts fruitless, they regained with great difficulty the shallow water at the edge of the lake and were butchered in all directions by the enemy's cavalry who had ridden into the water. About 6000 men who had formed the head of the line of march cut their way through the enemy and cleared the defile, quite unconscious of all that had been going on behind them. They halted on some rising ground, and listened to the shouting below and the clash of arms, but were unable, owing to the fog, to see or find out what the fortunes of the fight were. At last, when the battle was over and the sun's heat had dispelled the fog, mountain and plain revealed in the clear light the disastrous overthrow of the Roman

army and showed only too plainly that all was lost. Fearing lest they should be seen in the distance and cavalry be sent against them, they hurriedly took up their standards and disappeared with all possible speed. Maharbal pursued them through the night with the whole of his mounted force, and on the morrow, as starvation, in addition to all their other miseries, was threatening them, they surrendered to Maharbal, on condition of being allowed to depart with one garment apiece. This promise was kept with Punic faith by Hannibal, and he threw them all into chains.

[22.7] This was the famous battle at Trasumennus, and a disaster for Rome memorable as few others have been. Fifteen thousand Romans were killed in action; 1000 fugitives were scattered all over Etruria and reached the City by divers routes; 2500 of the enemy perished on the field, many in both armies afterwards of their wounds. Other authors give the loss on each side as many times greater, but I refuse to indulge in the idle exaggerations to which writers are far too much given, and what is more, I am supported by the authority of Fabius, who was living during the war. Hannibal dismissed without ransom those prisoners who belonged to the allies and threw the Romans into chains. He then gave orders for the bodies of his own men to be picked out from the heaps of slain and buried; careful search was also made for the body of Flaminius that it might receive honourable interment but it was not found. As soon as the news of this disaster reached Rome the people flocked into the Forum in a great state of panic and confusion. Matrons were wandering about the streets and asking those they met what recent disaster had been reported or what news was there of the army. The throng in the Forum, as numerous as a crowded Assembly, flocked towards the Comitium and the Senate-house and called for the magistrates. At last, shortly before sunset, M. Pomponius, the praetor, announced, "We have been defeated in a great battle." Though nothing more definite was heard from him, the people, full of the reports which they had heard from one another, carried back to their homes the information that the consul had been killed with the greater part of his army; only a few survived, and these were either dispersed in flight throughout Etruria or had been made prisoners by the enemy.

The misfortunes which had befallen the defeated army were not more numerous than the anxieties of those whose relatives had served under C. Flaminius, ignorant as they were of the fate of each

of their friends, and not in the least knowing what to hope for or what to fear. The next day and several days afterwards, a large crowd, containing more women than men, stood at the gates waiting for some one of their friends or for news about them, and they crowded round those they met with eager and anxious inquiries, nor was it possible to get them away, especially from those they knew, until they had got all the details from first to last. Then as they came away from their informants you might see the different expressions on their faces, according as each had received good or bad news, and friends congratulating or consoling them as they wended their way homewards. The women were especially demonstrative in their joy and in their grief. They say that one who suddenly met her son at the gate safe and sound expired in his arms, whilst another who had received false tidings of her son's death and was sitting as a sorrowful mourner in her house, no sooner saw him returning than she died from too great happiness. For several days the praetors kept the senate in session from sunrise to sunset, deliberating under what general or with what forces they could offer effectual resistance to the victorious Carthaginian.

[22.8] Before they had formed any definite plans, a fresh disaster was announced; 4000 cavalry under the command of C. Centenius, the propraeor, had been sent by the consul Servilius to the assistance of his colleague. When they heard of the battle at Trasumennus they marched into Umbria, and here they were surrounded and captured by Hannibal. The news of this occurrence affected men in very different ways. Some, whose thoughts were preoccupied with more serious troubles, looked upon this loss of cavalry as a light matter in comparison with the previous losses; others estimated the importance of the incident not by the magnitude of the loss but by its moral effect. Just as where the constitution is impaired, any malady however slight is felt more than it would be in a strong robust person, so any misfortune which befell the State in its present sick and disordered condition must be measured not by its actual importance but by its effect on a State already exhausted and unable to bear anything which would aggravate its condition. Accordingly the citizens took refuge in a remedy which for a long time had not been made use of or required, namely the appointment of a Dictator. As the consul by whom alone one could be nominated was absent, and it was not easy for a messenger or a despatch to be sent through Italy,

overrun as it was by the arms of Carthage, and as it would have been contrary to all precedent for the people to appoint a Dictator, the Assembly invested Q. Fabius Maximus with dictatorial powers and appointed M. Minucius Rufus to act as his Master of the Horse. They were commissioned by the senate to strengthen the walls and towers of the City and place garrisons in whatever positions they thought best, and cut down the bridges over the various rivers, for now it was a fight for their City and their homes, since they were no longer able to defend Italy.

[22.9] Hannibal marched in a straight course through Umbria as far as Spoletum, and after laying the country round utterly waste, he commenced an attack upon the city which was repulsed with heavy loss. As a single colony was strong enough to defeat his unfortunate attempt he was able to form some conjecture as to the difficulties attending the capture of Rome, and consequently diverted his march into the territory of Picenum, a district which not only abounded in every kind of produce but was richly stored with property which the greedy and needy soldiers seized and plundered without restraint. He remained in camp there for several days during which his soldiers recruited their strength after their winter campaigns and their journey across the marshes, and a battle which though ultimately successful was neither without heavy loss nor easily won. When sufficient time for rest had been allowed to men who delighted much more in plundering and destroying than in ease and idleness, Hannibal resumed his march and devastated the districts of Praetutia and Hadria, then he treated in the same way the country of the Marsi, the Marrucini, and the Peligni and the part of Apulia which was nearest to him, including the cities of Arpi and Luceria. Cn. Servilius had fought some insignificant actions with the Gauls and taken one small town, but when he heard of his colleague's death and the destruction of his army, he was alarmed for the walls of his native City, and marched straight for Rome that he might not be absent at this most critical juncture.

Q. Fabius Maximus was now Dictator for the second time. On the very day of his entrance upon office he summoned a meeting of the senate, and commenced by discussing matters of religion. He made it quite clear to the senators that C. Flaminius' fault lay much more in his neglect of the auspices and of his religious duties than in bad generalship and foolhardiness. The gods themselves, he maintained,

must be consulted as to the necessary measures to avert their displeasure, and he succeeded in getting a decree passed that the decemvirs should be ordered to consult the Sibylline Books, a course which is only adopted when the most alarming portents have been reported. After inspecting the Books of Fate they informed the senate that the vow which had been made to Mars in view of that war had not been duly discharged, and that it must be discharged afresh and on a much greater scale. The Great Games must be vowed to Jupiter, a temple to Venus Erycina and one to Mens; a lectisternium must be held and solemn intercessions made; a Sacred Spring must also be vowed. All these things must be done if the war was to be a successful one and the republic remain in the same position in which it was at the beginning of the war. As Fabius would be wholly occupied with the necessary arrangements for the war, the senate with the full approval of the pontifical college ordered the praetor, M. Aemilius, to take care that all these orders were carried out in good time.

[22.10]After these resolutions had been passed in the senate the praetor consulted the pontifical college as to the proper means of giving effect to them, and L. Cornelius Lentulus, the Pontifex Maximus, decided that the very first step to take was to refer to the people the question of a "Sacred Spring," as this particular form of vow could not be undertaken without the order of the people. The form of procedure was as follows: "Is it," the praetor asked the Assembly, "your will and pleasure that all be done and performed in manner following? That is to say, if the commonwealth of the Romans and the Quirites be preserved, as I pray it may be, safe and sound through these present wars - to wit, the war between Rome and Carthage and the wars with the Gauls now dwelling on the hither side of the Alps - then shall the Romans and Quirites present as an offering whatever the spring shall produce from their flocks and herds, whether it be from swine or sheep or goats or cattle, and all that is not already devoted to any other deity shall be consecrated to Jupiter from such time as the senate and people shall order. Whosoever shall make an offering let him do it at whatsoever time and in whatsoever manner he will, and howsoever he offers it, it shall be accounted to be duly offered. If the animal which should have been sacrificed die, it shall be as though unconsecrated, there shall be no sin. If any man shall hurt or slay a consecrated thing unwittingly

he shall not be held guilty. If a man shall have stolen any such animal, the people shall not bear the guilt, nor he from whom it was stolen. If a man offer his sacrifice unwittingly on a forbidden day, it shall be accounted to be duly offered. Whether he do so by night or day, whether he be slave or freeman, it shall be accounted to be duly offered. If any sacrifice be offered before the senate and people have ordered that it shall be done, the people shall be free and absolved from all guilt therefrom." To the same end the Great Games were vowed at a cost of 333,333 $\frac{1}{3}$ ases, and in addition 300 oxen to Jupiter, and white oxen and the other customary victims to a number of deities. When the vows had been duly pronounced a litany of intercession was ordered, and not only the population of the City but the people from the country districts, whose private interests were being affected by the public distress, went in procession with their wives and children. Then a lectisternium was held for three days under the supervision of the ten keepers of the Sacred Books. Six couches were publicly exhibited; one for Jupiter and Juno, another for Neptune and Minerva, a third for Mars and Venus, a fourth for Apollo and Diana, a fifth for Vulcan and Vesta, and the sixth for Mercury and Ceres. This was followed by the vowing of temples. Q. Fabius Maximus, as Dictator, vowed the temple to Venus Erycina, because it was laid down in the Books of Fate that this vow should be made by the man who possessed the supreme authority in the State. T. Otacilius, the praetor, vowed the temple to Mens.

[22.11] After the various obligations towards the gods had thus been discharged, the Dictator referred to the senate the question of the policy to be adopted with regard to the war, with what legions and how many the senators thought he ought to meet their victorious enemy. They decreed that he should take over the army from Cneius Servilius, and further that he should enrol from amongst the citizens and the allies as many cavalry and infantry as he considered requisite; all else was left to his discretion to take such steps as he thought desirable in the interests of the republic. Fabius said that he would add two legions to the army which Servilius commanded; these were raised by the Master of the Horse and he fixed a day for their assembling at Tibur. A proclamation was also issued that those who were living in towns and strongholds that were not sufficiently fortified should remove into places of safety, and that all the population settled in the districts through which Hannibal was likely

to march should abandon their farms, after first burning their houses and destroying their produce, so that he might not have any supplies to fall back upon. He then marched along the Flaminian road to meet the consul. As soon as he caught sight of the army in the neighbourhood of Ocriculum near the Tiber, and the consul riding forward with some cavalry to meet him, he sent an officer to tell him that he was to come to the Dictator without his lictors. He did so, and the way they met produced a profound sense of the majesty of the dictatorship amongst both citizens and allies, who had almost by this time forgotten that greatest of all offices. Shortly afterwards a despatch was handed in from the City stating that some transports which were carrying supplies for the army in Spain had been captured by the Carthaginian fleet near the port of Cosa. The consul was thereupon ordered to man the ships which were lying off Rome or at Ostia with full complements of seamen and soldiers, and sail in pursuit of the hostile fleet and protect the coast of Italy. A large force was raised in Rome, even freedmen who had children and were of the military age had been sworn in. Out of these city troops, all under thirty-five years of age were placed on board the ships, the rest were left to garrison the City.

[22.12]The Dictator took over the consul's army from Fulvius Flaccus, the second in command, and marched through Sabine territory to Tibur, where he had ordered the newly raised force to assemble by the appointed day. From there he advanced to Praeneste, and taking a cross-country route, came out on the Latin road. From this point he proceeded towards the enemy, showing the utmost care in reconnoitring all the various routes, and determined not to take any risks anywhere, except so far as necessity should compel him. The first day he pitched his camp in view of the enemy not far from Arpi; the Carthaginian lost no time in marching out his men in battle order to give him the chance of fighting. But when he saw that the enemy kept perfectly quiet and that there were no signs of excitement in their camp, he tauntingly remarked that the spirits of the Romans, those sons of Mars, were broken at last, the war was at an end, and they had openly foregone all claim to valour and renown. He then returned into camp. But he was really in a very anxious state of mind, for he saw that he would have to do with a very different type of commander from Flaminius or Sempronius; the Romans had been taught by their defeats and had at last found a general who was a

match for him. It was the wariness not the impetuosity of the Dictator that was the immediate cause of his alarm; he had not yet tested his inflexible resolution. He began to harass and provoke him by frequently shifting his camp and ravaging the fields of the allies of Rome before his very eyes. Sometimes he would march rapidly out of sight and then in some turn of the road take up a concealed position in the hope of entrapping him, should he come down to level ground. Fabius kept on high ground, at a moderate distance from the enemy, so that he never lost sight of him and never closed with him. Unless they were employed on necessary duty, the soldiers were confined to camp. When they went in quest of wood or forage they went in large bodies and only within prescribed limits. A force of cavalry and light infantry told off in readiness against sudden alarms, made everything safe for his own soldiers and dangerous for the scattered foragers of the enemy. He refused to stake everything on a general engagement, whilst slight encounters, fought on safe ground with a retreat close at hand, encouraged his men, who had been demoralised by their previous defeats, and made them less dissatisfied with their own courage and fortunes. But his sound and common-sense tactics were not more distasteful to Hannibal than they were to his own Master of the Horse. Headstrong and impetuous in counsel and with an ungovernable tongue, the only thing that prevented Minucius from making shipwreck of the State was the fact that he was in a subordinate command. At first to a few listeners, afterwards openly amongst the rank and file, he abused Fabius, calling his deliberation indolence and his caution cowardice, attributing to him faults akin to his real virtues, and by disparaging his superior - a vile practice which, through its often proving successful, is steadily on the increase - he tried to exalt himself.

[22.13] From the Hirpini Hannibal went across into Samnium; he ravaged the territory of Beneventum and captured the city of Telesia. He did his best to exasperate the Roman commander, hoping that he would be so incensed by the insults and sufferings inflicted on his allies that he would be able to draw him into an engagement on level ground. Amongst the thousands of allies of Italian nationality who had been taken prisoners by Hannibal at Trasumennus and dismissed to their homes were three Campanian knights, who had been allured by bribes and promises to win over the affections of their countrymen. They sent a message to Hannibal to the effect that if he

would bring his army up to Campania there would be a good chance of his obtaining possession of Capua. Hannibal was undecided whether to trust them or not, for the enterprise was greater than the authority of those who advised it; however, they at last persuaded him to leave Samnium for Campania. He warned them that they must make their repeated promises good by their acts, and after bidding them return to him with more of their countrymen, including some of their chief men, he dismissed them. Some who were familiar with the country told him that if he marched into the neighbourhood of Casinum and occupied the pass, he would prevent the Romans from rendering assistance to their allies. He accordingly ordered a guide to conduct him there. But the difficulty which the Carthaginians found in pronouncing Latin names led to the guide understanding Casilinum instead of Casinum. Quitting his intended route, he came down through the districts of Allifae, Callifae, and Cales on to the plains of Stella. When he looked round and saw the country shut in by mountains and rivers he called the guide and asked him where on earth he was. When he was told that he would that day have his quarters at Casilinum, he saw the mistake and knew that Casinum was far away in quite another country. The guide was scourged and crucified in order to strike terror into the others. After entrenching his camp he sent Maharbal with his cavalry to harry the Falernian land. The work of destruction extended to the Baths of Sinuessa; the Numidians inflicted enormous losses, but the panic and terror which they created spread even further. And yet, though everything was wrapped in the flames of war, the allies did not allow their terrors to warp them from their loyalty, simply because they were under a just and equable rule, and rendered a willing obedience to their superiors - the only true bond of allegiance.

[22.14]When Hannibal had encamped at the Volturnus and the loveliest part of Italy was being reduced to ashes and the smoke was rising everywhere from the burning farms, Fabius continued his march along the Massic range of hills. For a few days the mutinous discontent amongst the troops had subsided, because they inferred from the unusually rapid marching that Fabius was hastening to save Campania from being ravaged and plundered. But when they reached the western extremity of the range and saw the enemy burning the farmsteads of the colonists of Sinuessa and those in the Falernian district, while nothing was said about giving battle, the feeling of

exasperation was again roused, and studiously fanned by Minucius. "Are we come here" he would ask, "to enjoy the sight of our murdered allies and the smoking ruins of their homes? Surely, if nothing else appeals to us, ought we not to feel ashamed of ourselves as we see the sufferings of those whom our fathers sent as colonists to Sinuessa that this frontier might be protected from the Samnite foe, whose homes are being burnt not by our neighbours the Samnites but by a Carthaginian stranger from the ends of the earth who has been allowed to come thus far simply through our dilatoriness and supineness? Have we, alas! so far degenerated from our fathers that we calmly look on while the very country, past which they considered it an affront for a Carthaginian fleet to cruise, has now been filled with Numidian and Moorish invaders? We who only the other day in our indignation at the attack on Saguntum appealed not to men alone, but to treaties and to gods, now quietly watch Hannibal scaling the walls of a Roman colony! The smoke from the burning farms and fields is blown into our faces, our ears are assailed by the cries of our despairing allies who appeal to us for help more than they do to the gods, and here are we marching an army like a herd of cattle through summer pastures and mountain paths hidden from view by woods and clouds! If M. Furius Camillus had chosen this method of wandering over mountain heights and passes to rescue the City from the Gauls which has been adopted by this new Camillus, this peerless Dictator who has been found for us in our troubles, to recover Italy from Hannibal, Rome would still be in the hands of the Gauls, and I very much fear that if we go on dawdling in this way the City which our ancestors have so often saved will only have been saved for Hannibal and the Carthaginians. But on the day that the message came to Veii that Camillus had been nominated Dictator by senate and people, though the Janiculum was quite high enough for him to sit there and watch the enemy, like the man and true Roman that he was, he came down into the plain. and in the very heart of the City where the Busta Gallica are now he cut to pieces the legions of the Gauls, and the next day he did the same beyond Gabii. Why, when years and years ago we were sent under the yoke by the Samnites at the Caudine Forks, was it, pray, by exploring the heights of Samnium or by assailing and besieging Luceria and challenging our victorious foe that L. Papirius Cursor took the yoke off Roman necks and placed it on the haughty Samnite? What else but rapidity of action gave C. Lutatius the victory? The day after he first saw the enemy he

surprised their fleet laden with supplies and hampered by its cargo of stores and equipment. It is mere folly to fancy that the war can be brought to an end by sitting still or making vows to heaven. Your duty is to take your arms and go down and meet the enemy man to man. It is by doing and daring that Rome has increased her dominion not by these counsels of sloth which cowards call caution." Minucius said all this before a host of Roman tribunes and knights, as if he were addressing the Assembly, and his daring words even reached the ears of the soldiery; if they could have voted on the question, there is no doubt that they would have superseded Fabius for Minucius.

[22.15] Fabius kept an equally careful watch upon both sides, upon his own men no less than upon the enemy, and he showed that his resolution was quite unshaken. He was quite aware that his inactivity was making him unpopular not only in his own camp, but even in Rome, nevertheless his determination remained unchanged and he persisted in the same tactics for the rest of the summer, and Hannibal abandoned all hopes of the battle which he had so anxiously sought for. It became necessary for him to look round for a suitable place to winter in, as the country in which he was, a land of orchards and vineyards, was entirely planted with the luxuries rather than the necessities of life, and furnished supplies only for a few months not for the whole year. Hannibal's movements were reported to Fabius by his scouts. As he felt quite certain that he would return by the same pass through which he had entered the district of Falernum, he posted a fairly strong detachment on Mount Callicula and another to garrison Casilinum. The Volturnus runs through the middle of this town and forms the boundary between the districts of Falernum and Campania. He led his army back over the same heights, having previously sent L. Hostilius Mancinus forward with 400 cavalry to reconnoitre. This man was amongst the throng of young officers who had frequently listened to the fierce harangues of the Master of the Horse. At first he advanced cautiously, as a scouting party should do, to get a good view of the enemy from a safe position. But when he saw the Numidians roaming in all directions through the villages, and had even surprised and killed some of them, he thought of nothing but fighting, and completely forgot the Dictator's instructions, which were to go forward as far as he could safely and to retire before the enemy observed him. The Numidians, attacking and retreating in

small bodies, drew him gradually almost up to their camp, his men and horses by this time thoroughly tired. Thereupon Carthalo, the general in command of the cavalry, charged at full speed, and before they came within range of their javelins put the enemy to flight and pursued them without slackening rein for nearly five miles. When Mancinus saw that there was no chance of the enemy giving up the pursuit, or of his escaping them, he rallied his men and faced the Numidians, though completely outnumbered and outmatched. He himself with the best of his riders was cut off, the rest resumed their wild flight and reached Cales and ultimately by different by-paths returned to the Dictator. It so happened that Minucius had rejoined Fabius on this day. He had been sent to strengthen the force holding the defile which contracts into a narrow pass just above Terracina close to the sea. This was to prevent the Carthaginian from utilising the Appian road for a descent upon the territory of Rome, when he left Sinuessa. The Dictator and the Master of the Horse with their joint armies moved their camp on to the route which Hannibal was expected to take. He was encamped two miles distant.

[22.16]The next day the Carthaginian army began its march and filled the whole of the road between the two camps. The Romans had taken up a position immediately below their entrenchments, on unquestionably more advantageous ground, yet the Carthaginian came up with his cavalry and light infantry to challenge his enemy. They made repeated attacks and retirements, but the Roman line kept its ground; the fighting was slack and more satisfactory to the Dictator than to Hannibal; 200 Romans fell, and 800 of the enemy. It now seemed as if Hannibal must be hemmed in. Capua and Samnium and all the rich land of Latium behind them were furnishing the Romans with supplies, while the Carthaginian would have to winter amongst the rocks of Formiae and the sands and marshes of Liternum and in gloomy forests. Hannibal did not fail to observe that his own tactics were being employed against him. As he could not get out through Casilinum, and would have to make for the mountains and cross the ridge of Callicula, he would be liable to be attacked by the Romans whilst he was shut up in the valleys. To guard against this he decided upon a stratagem which, deceiving the eyes of the enemy by its alarming appearance, would enable him to scale the mountains in a night march without fear of interruption. The following was the ruse which he adopted. Torch-wood gathered from

all the country round, and faggots of dry brushwood were tied on the horns of the oxen which he was driving in vast numbers, both broken and unbroken to the plough, amongst the rest of the plunder from the fields. About 2000 oxen were collected for the purpose. To Hasdrubal was assigned the task of setting fire to the bundles on the horns of this herd as soon as darkness set in, then driving them up the mountains and if possible mostly above the passes which were guarded by the Romans.

[22.17]As soon as it was dark, the camp silently broke up; the oxen were driven some distance in front of the column. When they had reached the foot of the mountains where the roads began to narrow, the signal was given and the herds with their flaming horns were driven up the mountain side. The terrifying glare of the flames shooting from their heads and the heat which penetrated to the root of their horns made the oxen rush about as though they were mad. At this sudden scampering about, it seemed as though the woods and mountains were on fire, and all the brushwood round became alight and the incessant but useless shaking of their heads made the flames shoot out all the more, and gave the appearance of men running about in all directions. When the men who were guarding the pass saw fires moving above them high up on the mountains, they thought that their position was turned, and they hastily quitted it. Making their way up to the highest points, they took the direction where there appeared to be the fewest flames, thinking this to be the safest road. Even so, they came across stray oxen separated from the herd, and at first sight they stood still in astonishment at what seemed a preternatural sight of beings breathing fire. When it turned out to be simply a human device they were still more alarmed at what they suspected was an ambushade, and they took to flight. Now they fell in with some of Hannibal's light infantry, but both sides shrank from a fight in the darkness and remained inactive till daylight. In the meantime Hannibal had marched the whole of his army through the pass, and after surprising and scattering some Roman troops in the pass itself, fixed his camp in the district of Allifae.

[22.18]Fabius watched all this confusion and excitement, but as he took it to be an ambushade, and in any case shrank from a battle in the night, he kept his men within their lines. As soon as it was light there was a battle just under the ridge of the mountain where the Carthaginian light infantry were cut off from their main body and

would easily have been crushed by the Romans, who had considerably the advantage in numbers, had not a cohort of Spaniards come up, who had been sent back by Hannibal to their assistance. These men were more accustomed to the mountains and in better training for running amongst rocks and precipices, and being both more lightly made and more lightly armed they could easily by their method of fighting baffle an enemy drawn from the lowlands, heavily armed and accustomed to stationary tactics. At last they drew off from a contest which was anything but an equal one. The Spaniards being almost untouched, the Romans having sustained a heavy loss, each retired to their respective camps. Fabius followed on Hannibal's track through the pass and encamped above Allifae in an elevated position and one of great natural strength. Hannibal retraced his steps as far as the Peligni, ravaging the country as he went, as though his intention was to march through Samnium upon Rome. Fabius continued to move along the heights, keeping between the enemy and the City, neither avoiding nor attacking him. The Carthaginian left the Peligni, and marching back into Apulia, reached Gereonium. This city had been abandoned by its inhabitants because a portion of the walls had fallen into ruin. The Dictator formed an entrenched camp near Larinum. From there he was recalled to Rome on business connected with religion. Before his departure he impressed upon the Master of the Horse, not only as commander-in-chief but as a friend giving good advice and even using entreaties, the necessity of trusting more to prudence than to luck, and following his own example rather than copying Sempronius and Flaminius. He was not to suppose that nothing had been gained now that the summer had been spent in baffling the enemy, even physicians often gained more by not disturbing their patients than by subjecting them to movement and exercises; it was no small advantage to have avoided defeat at the hands of a foe who had been so often victorious and to have obtained a breathing space after such a series of disasters. With these unheeded warnings to the Master of the Horse he started for Rome.

[22.19]At the commencement of this summer war began in Spain both by land and sea. Hasdrubal added ten ships to those which he had received from his brother, equipped and ready for action, and gave Himilco a fleet of forty vessels. He then sailed from New Carthage, keeping near land, and with his army moving parallel along

the coast, ready to engage the enemy whether by sea or land. When Cn. Scipio learnt that his enemy had left his winter quarters he at first adopted the same tactics, but on further consideration he would not venture on a contest by land, owing to the immense reputation of the new auxiliaries. After embarking the pick of his army he proceeded with a fleet of thirty-five ships to meet the enemy. The day after leaving Tarraco he came to anchor at a spot ten miles distant from the mouth of the Ebro. Two despatch boats belonging to Massilia had been sent to reconnoitre, and they brought back word that the Carthaginian fleet was riding at anchor in the mouth of the river and their camp was on the bank. Scipio at once weighed anchor and sailed towards the enemy, intending to strike a sudden panic amongst them by surprising them whilst off their guard and unsuspecting of danger.

There are in Spain many towers situated on high ground which are used both as look-outs and places of defence against pirates. It was from there that the hostile ships were first sighted, and the signal given to Hasdrubal; excitement and confusion prevailed in the camp on shore before it reached the ships at sea, as the splash of the oars and other sounds of advancing ships were not yet heard, and the projecting headlands hid the Roman fleet from view. Suddenly one mounted vidette after another from Hasdrubal galloped up with orders to those who were strolling about on the shore or resting in their tents, and expecting anything rather than the approach of an enemy or battle that day, to embark with all speed and take their arms, for the Roman fleet was now not far from the harbour. This order the mounted men were giving in all directions, and before long Hasdrubal himself appeared with the whole of his army. Everywhere there was noise and confusion, the rowers and the soldiers scrambled on board more like men flying from the shore than men going into action. Hardly were all on board, when some unfastened the mooring ropes and drifted towards their anchors, others cut their cables; everything was done in too much haste and hurry, the work of the seamen was hampered by the preparations which the soldiers were making, and the soldiers were prevented from putting themselves in fighting trim owing to the confusion and panic which prevailed amongst the seamen. By this time the Romans were not only near at hand, they had actually lined up their ships for the attack. The Carthaginians were paralysed quite as much by their own disorder as by the approach of the enemy, and they brought their ships round

for flight, after abandoning a struggle which it would be more true to say was attempted rather than begun. But it was impossible for their widely extended line to enter the mouth of the river all at once, and the ships were run ashore in all directions. Some of those on board got out through the shallow water, others jumped on to the beach, with arms or without, and made good their escape to the army which was drawn up ready for action along the shore. Two Carthaginian ships, however, were captured to begin with and four sunk.

[22.20] Though the Romans saw that the enemy were in force on land and that their army was extended along the shore, they showed no hesitation in following up the enemy's panic-stricken fleet. They secured all the ships which had not staved their prows in on the beach, or grounded with their keels in the mud by fastening hawsers to their sterns and dragging them into deep water. Out of forty vessels twenty-five were captured in this way. This was not, however, the best part of the victory. Its main importance lay in the fact that this one insignificant encounter gave the mastery of the whole of the adjacent sea. The fleet accordingly sailed to Onusa, and there the soldiers disembarked, captured and plundered the place and then marched towards New Carthage. They ravaged the entire country round, and ended by setting fire to the houses which adjoined the walls and gates. Re-embarking laden with plunder, they sailed to Longuntica, where they found a great quantity of esparto grass which Hasdrubal had collected for the use of the navy, and after taking what they could use they burnt the rest. They did not confine themselves to cruising along the coast, but crossed over to the island of Ebusus, where they made a determined but unsuccessful attack upon the capital during the whole of two days. As they found that they were only wasting time on a hopeless enterprise, they took to plundering the country, and sacked and burnt several villages. Here they secured more booty than on the mainland, and after placing it on board, as they were on the point of sailing away, some envoys came to Scipio from the Balearic isles to sue for peace. From this point the fleet sailed back to the eastern side of the province where envoys were assembled from all the tribes in the district of the Ebro, and many even from the remotest parts of Spain. The tribes which actually acknowledged the supremacy of Rome and gave hostages amounted to more than a hundred and twenty. The Romans felt now as much confidence in their army as in their navy, and marched as far as the

pass of Castulo. Hasdrubal retired to Lusitania where he was nearer to the Atlantic.

[22.21]It now seemed as though the remainder of the summer would be undisturbed, and it would have been so as far as the Carthaginians were concerned. But the Spanish temperament is restless and fond of change, and after the Romans had left the pass and retired to the coast, Mandonius and Indibilis, who had previously been chief of the Ibergetes, roused their fellow-tribesmen and proceeded to harry the lands of those who were in peace and alliance with Rome. Scipio despatched a military tribune with some light-armed auxiliaries to disperse them, and after a trifling engagement, for they were undisciplined and without organisation, they were all put to rout, some being killed or taken prisoners, and a large proportion deprived of their arms. This disturbance, however, brought Hasdrubal, who was marching westwards, back to the defence of his allies on the south side of the Ebro. The Carthaginians were in camp amongst the Illegavonians; the Roman camp was at Nova, when unexpected intelligence turned the tide of war in another direction. The Celtiberi, who had sent their chief men as envoys to Scipio and had given hostages, were induced by his representations to take up arms and invade the province of New Carthage with a powerful army. They took three fortified towns by storm, and fought two most successful actions with Hasdrubal himself, killing 15,000 of the enemy and taking 4000 prisoners with numerous standards.

[22.22]This was the position of affairs when P. Scipio, whose command had been extended after he ceased to be consul, came to the province which had been assigned to him by the senate. He brought a reinforcement of thirty ships of war and 8000 troops, also a large convoy of supplies. This fleet, with its enormous column of transports, excited the liveliest delight among the townsmen and their allies when it was seen in the distance and finally reached the port of Tarracona. There the soldiers were landed and Scipio marched up country to meet his brother; thenceforward they carried on the campaign with their united forces and with one heart and purpose. As the Carthaginians were preoccupied with the Celtiberian war, the Scipios had no hesitation in crossing the Ebro and, as no enemy appeared, marching straight to Saguntum, where they had been informed that the hostages who had been surrendered to Hannibal from all parts of Spain were detained in the citadel under a somewhat

weak guard. The fact that they had given these pledges was the only thing that prevented all the tribes of Spain from openly manifesting their leanings towards alliance with Rome; they dreaded lest the price of their defection from Carthage should be the blood of their own children. From this bond Spain was released by the clever but treacherous scheme of one individual.

Abelux was a Spaniard of high birth living at Saguntum, who had at one time been loyal to Carthage, but afterwards, with the usual fickleness of barbarians, as the fortunes of Carthage changed so he changed his allegiance. He considered that any one going over to the enemy without having something valuable to betray was simply a worthless and disreputable individual, and so he made it his one aim to be of the greatest service he could to his new allies. After making a survey of everything which Fortune could possibly put within his reach, he made up his mind to effect the delivery of the hostages; that one thing he thought would do more than anything else to win the friendship of the Spanish chieftains for the Romans. He was quite aware, however, that the guardians of the hostages would take no step without the orders of Bostar, their commanding officer, and so he employed his arts against Bostar himself. Bostar had fixed his camp outside the city quite on the shore that he might bar the approach of the Romans on that side. After obtaining a secret interview with him he warned him, as though he were unaware of it, as to the actual state of affairs. "Up to this time," he said, "fear alone has kept the Spaniards loyal because the Romans were far away; now the Roman camp is on our side the Ebro, a secure stronghold and refuge for all who want to change their allegiance. Those, therefore, who are no longer restrained by fear must be bound to us by kindness and feelings of gratitude." Bostar was greatly surprised, and asked him what boon could suddenly effect such great results. "Send the hostages," was the reply, "back to their homes. That will evoke gratitude from their parents, who are very influential people in their own country, and also from their fellow-countrymen generally. Every one likes to feel that he is trusted; the confidence you place in others generally strengthens their confidence in you. The service of restoring the hostages to their respective homes I claim for myself, that I may contribute to the success of my plan by my own personal efforts, and win for an act gracious in itself still more gratitude."

He succeeded in persuading Bostar, whose intelligence was not on a par with the acuteness which the other Carthaginians showed. After this interview he went secretly to the enemy's outposts, and meeting with some Spanish auxiliaries he was conducted by them into the presence of Scipio, to whom he explained what he proposed to do. Pledges of good faith were mutually exchanged and the place and time for handing over the hostages fixed, after which he returned to Saguntum. The following day he spent in receiving Bostar's instructions for the execution of the project. It was agreed between them that he should go at night in order, as he pretended, to escape the observation of the Roman outposts. He had already arranged with these as to the hour at which he would come, and after awakening those who were in guard of the boys he conducted the hostages, without appearing to be aware of the fact, into the trap which he had himself prepared. The outposts conducted them into the Roman camp; all the remaining details connected with their restoration to their homes were carried out as he had arranged with Bostar, precisely as if the business were being transacted in the name of Carthage. Yet though the service rendered was the same, the gratitude felt towards the Romans was considerably greater than would have been earned by the Carthaginians, who had shown themselves oppressive and tyrannical in the time of their prosperity, and now that they experienced a change of fortune their act might have appeared to be dictated by fear. The Romans, on the other hand, hitherto perfect strangers, had no sooner come into the country than they began with an act of clemency and generosity, and Abellux was considered to have shown his prudence in changing his allies to such good purpose. All now began with surprising unanimity to meditate revolt, and an armed movement would have begun at once had not the winter set in, which compelled the Romans as well as the Carthaginians to retire to their quarters.

[22.23] These were the main incidents of the campaign in Spain during the second summer of the Punic war. In Italy the masterly inaction of Fabius had for a short time stemmed the tide of Roman disasters. It was a cause of grave anxiety to Hannibal, for he fully realised that the Romans had chosen for their commander-in-chief a man who conducted war on rational principles and not by trusting to chance. But amongst his own people, soldiers and civilians alike, his tactics were viewed with contempt, especially after a battle had been

brought about owing to the rashness of the Master of the Horse in the Dictator's absence which would be more correctly described as fortunate rather than as successful. Two incidents occurred which made the Dictator still more unpopular. One was due to the crafty policy of Hannibal. Some deserters had pointed out to him the Dictator's landed property, and after all the surrounding buildings had been levelled to the ground he gave orders for that property to be spared from fire and sword and all hostile treatment whatever in order that it might be thought that there was some secret bargain between them. The second cause of the Dictator's growing unpopularity was something which he himself did, and which at first bore an equivocal aspect because he had acted without the authority of the senate, but ultimately it was universally recognised as redounding very greatly to his credit. In carrying out the exchange of prisoners it had been agreed between the Roman and the Carthaginian commanders, following the precedent of the first Punic war, that whichever side received back more prisoners than they gave should strike a balance by paying two and a half pounds of silver for each soldier they received in excess of those they gave. The Roman prisoners restored were two hundred and forty-seven more than the Carthaginians. The question of this payment had been frequently discussed in the senate, but as Fabius had not consulted that body before making the agreement there was some delay in voting the money. The matter was settled by Fabius sending his son Quintus to Rome to sell the land which had been untouched by the enemy; he thus discharged the obligation of the State at his own private expense. When Hannibal burnt Gereonium after its capture, he left a few houses standing to serve as granaries, and now he was occupying a standing camp before its walls. He was in the habit of sending out two divisions to collect corn, he remained in camp with the third ready to move in any direction where he saw that his foragers were being attacked.

[22.24]The Roman army was at the time in the neighbourhood of Larinum, with Minucius in command, owing, as stated above, to the Dictator having left for the City. The camp had been situated in a lofty and secure position; it was now transferred to the plain, and more energetic measures more in harmony with the general's temperament were being discussed; suggestions were made for an attack either on the dispersed parties of foragers or on the camp now

that it was left with a weak guard. Hannibal soon found out that the tactics of his enemies had changed with the change of generals, and that they would act with more spirit than prudence, and incredible as it may sound, though his enemy was in closer proximity to him, he sent out a whole division of his army to collect corn, keeping the other two in camp. The next thing he did was to move his camp still nearer the enemy, about two miles from Gereonium on rising ground within view of the Romans, so that they might know that he was determined to protect his foragers in case of attack. From this position he was able to see another elevated position still closer to the Roman camp, in fact looking down on it. There was no doubt that if he were to attempt to seize it in broad daylight the enemy, having less distance to go, would be there before him, so he sent a force of Numidians who occupied it during the night. The next day the Romans, seeing how small a number were holding the position, made short work of them and drove them off and then transferred their own camp there. By this time there was but a very small distance between rampart and rampart, and even that was almost entirely filled with Roman troops, who were demonstrating in force to conceal the movements of cavalry and light infantry who had been sent through the camp gate farthest from the enemy to attack his foragers, upon whom they inflicted severe losses. Hannibal did not venture upon a regular battle because his camp was so weakly guarded that it could not have repelled an assault. Borrowing the tactics of Fabius he began to carry on the campaign by remaining in almost complete inaction, and withdrew his camp to its former position before the walls of Gereonium. According to some authors a pitched battle was fought with both armies in regular formation; the Carthaginians were routed at the first onset and driven to their camp; from there a sudden sortie was made and it was the Romans' turn to flee, and the battle was once more restored by the sudden appearance of Numerius Decimus, the Samnite general. Decimus was, as far as wealth and lineage go, the foremost man not only in Bovianum, his native place, but in the whole of Samnium. In obedience to the Dictator's orders he was bringing into camp a force of 8000 foot and 500 horse, and when he appeared in Hannibal's rear both sides thought that it was a reinforcement coming from Rome under Q. Fabius. Hannibal, it is further stated, ordered his men to retire, the Romans followed them up, and with the aid of the Samnites captured two of their fortified positions the same day; 6000 of the enemy were killed and about 5000

of the Romans, yet though the losses were so evenly balanced an idle and foolish report of a splendid victory reached Rome together with a despatch from the Master of the Horse which was still more foolish.

[22.25] This state of affairs led to constant discussions in the senate and the Assembly. Amidst the universal rejoicing the Dictator stood alone; he declared that he did not place the slightest credence in either the report or the despatch, and even if everything was as it was represented, he dreaded success more than failure. On this M. Metilius, tribune of the plebs, said it was really becoming intolerable that the Dictator, not content with standing in the way of any success being achieved when he was on the spot, should now be equally opposed to it after it had been achieved in his absence. "He was deliberately wasting time in his conduct of the war in order to remain longer in office as sole magistrate and retain his supreme command. One consul has fallen in battle, the other has been banished far from Italy under pretext of chasing the Carthaginian fleet; two praetors have their hands full with Sicily and Sardinia, neither of which provinces needs a praetor at all at this time; M. Minucius, Master of the Horse, has been almost kept under guard to prevent him from seeing the enemy or doing anything which savoured of war. And so, good heavens! not only Samnium, where we retreated before the Carthaginians as though it were some territory beyond the Ebro, but even the country of Falernum, have been utterly laid waste, while the Dictator was sitting idly at Casilinum, using the legions of Rome to protect his own property. The Master of the Horse and the army, who were burning to fight, were kept back and almost imprisoned within their lines; they were deprived of their arms as though they were prisoners of war. At length, no sooner had the Dictator departed than, like men delivered from a blockade, they left their entrenchments and routed the enemy and put him to flight. Under these circumstances I was prepared, if the Roman plebs still possessed the spirit they showed in old days, to take the bold step of bringing in a measure to relieve Q. Fabius of his command; as it is I shall propose a resolution couched in very moderate terms - 'that the authority of the Master of the Horse be made equal to that of the Dictator.' But even if this resolution is carried Q. Fabius must not be allowed to rejoin the army before he has appointed a consul in place of C. Flaminius."

As the line which the Dictator was taking was in the highest degree unpopular, he kept away from the Assembly. Even in the senate he produced an unfavourable impression when he spoke in laudatory terms of the enemy and put down the disasters of the past two years to rashness and lack of generalship on the part of the commanders. The Master of the Horse, he said, must be called to account for having fought against his orders. If, he went on to say, the supreme command and direction of the war remained in his hands, he would soon let men know that in the case of a good general Fortune plays a small part, intelligence and military skill are the main factors. To have preserved the army in circumstances of extreme danger without any humiliating defeat was in his opinion a more glorious thing than the slaughter of many thousands of the enemy. But he failed to convince his audience, and after appointing M. Atilius Regulus as consul, he set off by night to rejoin his army. He was anxious to avoid a personal altercation on the question of his authority, and left Rome the day before the proposal was voted upon. At daybreak a meeting of the plebs was held to consider the proposal. Though the general feeling was one of hostility to the Dictator and goodwill towards the Master of the Horse, few were found bold enough to give this feeling utterance and recommend a proposal which after all was acceptable to the plebs as a body, and so, notwithstanding the fact that the great majority were in favour of it, it lacked the support of men of weight and influence. One man was found who came forward to advocate the proposal, C. Terentius Varro, who had been praetor the year before, a man of humble and even mean origin. The tradition is that his father was a butcher who hawked his meat about and employed his son in the menial drudgery of his trade.

[22.26]The money made in this business was left to his son, who hoped that his fortune might help him to a more respectable position in society. He decided to become an advocate, and his appearances in the Forum, where he defended men of the lowest class by noisy and scurrilous attacks upon the property and character of respectable citizens, brought him into notoriety and ultimately into office. After discharging the various duties of the quaestorship, the two aedileships, plebeian and curule, and lastly those of the praetor, he now aspired to the consulship. With this view he cleverly took advantage of the feeling against the Dictator to court the gale of popular favour, and gained for himself the whole credit of carrying

the resolution. Everybody, whether in Rome or in the army, whether friend or foe, with the sole exception of the Dictator himself, looked upon this proposal as intended to cast a slur on him. But he met the injustice done to him by the people, embittered as they were against him, with the same dignified composure with which he had previously treated the charges which his opponents had brought against him before the populace. While still on his way he received a despatch containing the senatorial decree for dividing his command, but as he knew perfectly well that an equal share of military command by no means implied an equal share of military skill, he returned to his army with a spirit undismayed by either his fellow-citizens or the enemy.

[22.27]Owing to his success and popularity Minucius had been almost unbearable before, but now that he had won as great a victory over Fabius as over Hannibal, his boastful arrogance knew no bounds. "The man," he exclaimed, "who was selected as the only general who would be a match for Hannibal has now, by an order of the people, been put on a level with his second in command; the Dictator has to share his powers with the Master of the Horse. There is no precedent for this in our annals, and it has been done in that very State in which Masters of the Horse have been wont to look with dread upon the rods and axes of Dictators. So brilliant have been my good fortune and my merits. If the Dictator persists in that dilatoriness and inaction which have been condemned by the judgment of gods and men, I shall follow my good fortune wherever it may lead me." Accordingly on his first meeting with Q. Fabius, he told him that the very first thing that had to be settled was the method in which they should exercise their divided authority. The best plan, he thought, would be for them each to take supreme command on alternate days, or, if he preferred it, at longer intervals. This would enable whichever general was in command to meet Hannibal with tactics and strength equal to his own should an opportunity arise of striking a blow. Q. Fabius met this proposal with a decided negative. Everything, he argued, which his colleague's rashness might prompt would be at the mercy of Fortune; though his command was shared with another, he was not wholly deprived of it; he would never therefore voluntarily give up what power he still possessed of conducting operations with common sense and prudence, and though he refused to agree to a division of days or periods of

command, he was prepared to divide the army with him and use his best foresight and judgment to preserve what he could as he could not save all. So it was arranged that they should adopt the plan of the consuls and share the legions between them. The first and fourth went to Minucius, Fabius retained the second and third. The cavalry and the contingents supplied by the Latins and the allies were also divided equally between them. The Master of the Horse even insisted upon separate camps.

[22.28]Nothing that was going on amongst his enemies escaped the observation of Hannibal, for ample information was supplied to him by deserters as well as by his scouts. He was doubly delighted, for he felt sure of entrapping by his own peculiar methods the wild rashness of Minucius, and he saw that Fabius' skilful tactics had lost half their strength. Between Minucius' camp and Hannibal's there was some rising ground, and whichever side seized it would undoubtedly be able to render their adversaries' position less secure. Hannibal determined to secure it, and though it would have been worth while doing so without a fight, he preferred to bring on a battle with Minucius, who, he felt quite sure, would hurry up to stop him. The entire intervening country seemed, at a first glance, totally unsuited for surprise tactics, for there were no woods anywhere, no spots covered with brushwood and scrub, but in reality it naturally lent itself to such a purpose, and all the more so because in so bare a valley no stratagem of the kind could be suspected. In its windings there were caverns, some so large as to be capable of concealing two hundred men. Each of these hiding-places was filled with troops, and altogether 5000 horse and foot were placed in concealment. In case, however, the stratagem might be detected by some soldier's thoughtless movements, or the glint of arms in so open a valley, Hannibal sent a small detachment to seize the rising ground already described in order to divert the attention of the enemy. As soon as they were sighted, their small number excited ridicule, and every man begged that he might have the task of dislodging them. Conspicuous amongst his senseless and hot-headed soldiers the general sounded a general call to arms, and poured idle abuse and threats on the enemy. He sent the light infantry first in open skirmishing order, these were followed by the cavalry in close formation, and at last, when he saw that reinforcements were being brought up to the enemy, he advanced with the legions in line. Hannibal on his side sent supports,

both horse and foot, to his men wherever they were hard pressed, and the numbers engaged steadily grew until he had formed his entire army into order of battle and both sides were in full strength. The Roman light infantry moving up the hill from lower ground were the first to be repulsed and forced back to the cavalry who were coming up behind them. They sought refuge behind the front ranks of the legions, who alone amidst the general panic preserved their coolness and presence of mind. Had it been a straightforward fight, man to man, they would to all appearance have been quite a match for their foes, so much had their success, a few days previously, restored their courage. But the sudden appearance of the concealed troops and their combined attack on both flanks and on the rear of the Roman legions created such confusion and alarm that not a man had any spirit left to fight or any hope of escaping by flight.

[22.29] Fabius' attention was first drawn to the cries of alarm, then he observed in the distance the disordered and broken ranks. "Just so," he exclaimed, "Fortune has overtaken his rashness, but not more quickly than I feared. Fabius is his equal in command, but he has found out that Hannibal is his superior both in ability and in success. However, this is not the time for censure or rebuke, advance into the field! Let us wrest victory from the foe, and a confession of error from our fellow-citizens." By this time the rout had spread over a large part of the field, some were killed, others looking round for the means of escape, when suddenly the army of Fabius appeared as though sent down from heaven to their rescue. Before they came within range of their missiles, before they could exchange blows, they checked their comrades in their wild flight and the enemy in their fierce attack. Those who had been scattered hither and thither after their ranks were broken, closed in from all sides and reformed their line; those who had kept together in their retreat wheeled round to face the enemy, and, forming square, at one moment slowly retired, and at another shoulder to shoulder stood their ground. The defeated troops and those who were fresh on the field had now practically become one line, and they were commencing an advance on the enemy when the Carthaginian sounded the retreat, showing clearly that whilst Minucius had been defeated by him he was himself vanquished by Fabius. The greater part of the day had been spent in these varying fortunes of the field. On their return to camp Minucius called his men together and addressed them thus: "Soldiers, I have

often heard it said that the best man is he who himself advises what is the right thing to do; next to him comes the man who follows good advice; but the man who neither himself knows what counsel to give nor obeys the wise counsels of another is of the very lowest order of intelligence. Since the first order of intelligence and capacity has been denied to us let us cling to the second and intermediate one, and whilst we are learning to command, let us make up our minds to obey him who is wise and far sighted. Let us join camp with Fabius. When we have carried the standards to his tent where I shall salute him as 'Father,' a title which the service he has done us and the greatness of his office alike deserve, you soldiers will salute as 'Patrons' those whose arms and right hands protected you a little while ago. If this day has done nothing else for us, it has at all events conferred on us the glory of having grateful hearts."

[22.30]The signal was given and the word passed to collect the baggage; they then proceeded in marching order to the Dictator's camp much to his surprise and to the surprise of all who were round him. When the standards had been stationed in front of his tribunal, the Master of the Horse stepped forward and addressed him as "Father," and the whole of his troops saluted those who were crowding round them as "Patrons." He then proceeded, "I have put you on a level, Dictator, with my parents as far as I can do so in words, but to them I only owe my life, to you I owe my preservation and the safety of all these men. The decree of the plebs, which I feel to be onerous rather than an honour, I am the first to repeal and annul, and with a prayer that it may turn out well for you, for me, and for these armies of yours, for preserved and preserver alike, I place myself again under your auspicious authority and restore to you these legions with their standards. I ask you, as an act of grace, to order me to retain my office and these, each man of them, his place in the ranks." Then each man grasped his neighbour's hand, and the soldiers were dismissed to quarters where they were generously and hospitably entertained by acquaintances and strangers alike, and the day which had a short time ago been dark and gloomy and almost marked by disaster and ruin became a day of joy and gladness. When the report of this action reached Rome and was confirmed by despatches from both commanders, and by letters from the rank and file of both armies, every man did his best to extol Maximus to the skies. His reputation was quite as great with Hannibal and the

Carthaginians; now at last they felt that they were warring with Romans and on Italian soil. For the last two years they had felt such contempt for Roman generals and Roman troops that they could hardly believe that they were at war with that nation of whom they had heard such a terrible report from their fathers. Hannibal on his return from the field is reported to have said, "The cloud which has so long settled on the mountain heights has at last burst upon us in rain and storm."

[22.31] While these events were occurring in Italy, the consul, Cn. Servilius Geminus, with a fleet of 120 vessels, visited Sardinia and Corsica and received hostages from both islands; from there he sailed to Africa. Before landing on the mainland he laid waste the island of Meninx and allowed the inhabitants of Cercina to save their island from a similar visitation by paying an indemnity of ten talents of silver. After this he disembarked his forces on the African coast and sent them, both soldiers and seamen, to ravage the country. They dispersed far and wide just as though they were plundering uninhabited islands, and consequently their recklessness led them into an ambushade. Straggling in small parties, they were surrounded by large numbers of the enemy who knew the country, whilst they were strangers to it, with the result that they were driven in wild flight and with heavy loss back to their ships. After losing as many as a thousand men - amongst them the quaestor Sempronius Blaesus - the fleet hastily put to sea from shores lined with the enemy and held its course to Sicily. Here it was handed over to T. Otacilius, in order that his second in command, P. Sura, might take it back to Rome. Servilius himself proceeded overland through Sicily and crossed the Strait into Italy, in consequence of a despatch from Q. Fabius recalling him and his colleague, M. Atilius, to take over the armies, as his six months' tenure of office had almost expired. All the annalists, with one or two exceptions, state that Fabius acted against Hannibal as Dictator; Caelius adds that he was the first Dictator who was appointed by the people. But Caelius and the rest have forgotten that the right of nominating a Dictator lay with the consul alone, and Servilius, who was the only consul at the time, was in Gaul. The citizens, appalled by three successive defeats, could not endure the thought of delay, and recourse was had to the appointment by the people of a man to act in place of a Dictator ("pro dictatore"). His subsequent achievements, his brilliant reputation as a commander,

and the exaggerations which his descendants introduced into the inscription on his bust easily explain the belief which ultimately gained ground, that Fabius, who had only been pro-dictator, was actually Dictator.

[22.32] Fabius' army was transferred to Atilius, Servilius Geminus took over the one which Minucius had commanded. They lost no time in fortifying their winter quarters, and during the remainder of the autumn conducted their joint operations in the most perfect harmony on the line which Fabius had laid down. When Hannibal left his camp to collect supplies, they were conveniently posted at different spots to harass his main body and cut off stragglers; but they refused to risk a general engagement, though the enemy employed every artifice to bring one on. Hannibal was reduced to such extremities that he would have marched back into Gaul had not his departure looked like flight. No chance whatever would have been left to him of feeding his army in that part of Italy if the succeeding consuls had persevered in the same tactics. When the winter had brought the war to a standstill at Gereonium, envoys from Neapolis arrived in Rome. They brought with them into the Senate-house forty very heavy golden bowls, and addressed the assembled senators in the following terms: "We know that the Roman treasury is being drained by the war, and since this war is being carried on for the towns and fields of the allies quite as much as for the head and stronghold of Italy, the City of Rome and its empire, we Neapolitans have thought it but right to assist the Roman people with the gold which has been left by our ancestors for the enriching of our temples and for a reserve in time of need. If we thought that our personal services would have been of any use we would just as gladly have offered them. The senators and people of Rome will confer a great pleasure upon us if they look upon everything that belongs to the Neapolitans as their own, and deign to accept from us a gift, the value and importance of which lie rather in the cordial goodwill of those who gladly give it than in any intrinsic worth which it may itself possess." A vote of thanks was passed to the envoys for their munificence and their care for the interests of Rome, and one bowl, the smallest, was accepted.

[22.33] About the same time a Carthaginian spy who for two years had escaped detection was caught in Rome, and after both his hands were cut off, he was sent away. Twenty-five slaves who had formed a conspiracy in the Campus Martius were crucified; the informer had

his liberty given to him and 20,000 bronze ases. Ambassadors were sent to Philip, King of Macedon, to demand the surrender of Demetrius of Pharos, who had taken refuge with him after his defeat, and another embassy was despatched to the Ligurians to make a formal complaint as to the assistance they had given the Carthaginian in men and money, and at the same time to get a nearer view of what was going on amongst the Boii and the Insubres. Officials were also sent to Pineus, King of Illyria, to demand payment of the tribute which was now in arrears, or, if he wished for an extension of time, to accept personal securities for its payment. So, though they had an immense war on their shoulders, nothing escaped the attention of the Romans in any part of the world, however distant. A religious difficulty arose about an unfulfilled vow. On the occasion of the mutiny amongst the troops in Gaul two years before, the praetor, L. Manlius, had vowed a temple to Concord, but up to that time no contract had been made for its construction. Two commissioners were appointed for the purpose by M. Aemilius, the City praetor, namely, C. Pupius and Caeso Quinctius Flaminius, and they entered into a contract for the building of the temple within the precinct of the citadel. The senate passed a resolution that Aemilius should also write to the consuls asking one of them, if they approved, to come to Rome to hold the consular elections, and he would give notice of the elections for whatever day they fixed upon. The consuls replied that they could not leave the army in the presence of the enemy without danger to the republic, it would be therefore better for the elections to be held by an interrex than that a consul should be recalled from the front. The senate thought it better for a Dictator to be nominated by the consul for the purpose of holding the elections. L. Veturius Philo was nominated; he appointed Manlius Pomponius Matho his Master of the Horse. Their election was found to be invalid, and they were ordered to resign office after holding it for four days; matters reverted to an interregnum.

[22.34](216 B.C.)Servilius and Regulus had their commands extended for another year. The interreges appointed by the senate were C. Claudius Cento, son of Appius, and P. Cornelius Asina. The latter conducted the elections amidst a bitter struggle between the patricians and the plebs. C. Terentius Varro, a member of their own order, had ingratiated himself with the plebs by his attacks upon the leading men in the State and by all the tricks known to the

demagogue. His success in shaking the influence of Fabius and weakening the authority of the Dictator had invested him with a certain glory in the eyes of the mob, which was heightened by the other's unpopularity, and they did their utmost to raise him to the consulship. The patricians opposed him with their utmost strength, dreading lest it should become a common practice for men to attack them as a means of rising to an equality with them. Q. Baebius Herennius, a relation of Varro's, accused not only the senate, but even the augurs, because they had prevented the Dictator from carrying the elections through, and by thus embittering public opinion against them, he strengthened the feeling in favour of his own candidate. "It was by the nobility," he declared, "who had for many years been trying to get up a war, that Hannibal was brought into Italy, and when the war might have been brought to a close, it was they who were unscrupulously protracting it. The advantage which M. Minucius gained in the absence of Fabius made it abundantly clear that with four legions combined, a successful fight could be maintained, but afterwards two legions had been exposed to slaughter at the hands of the enemy, and then rescued at the very last moment in order that he might be called 'Father' and 'Patron' because he would not allow the Romans to conquer before they had been defeated. Then as to the consuls; though they had it in their power to finish the war they had adopted Fabius' policy and protracted it. This is the secret understanding that has been come to by all the nobles, and we shall never see the end of the war till we have elected as our consul a man who is really a plebeian, that is, one from the ranks. The plebeian nobility have all been initiated into the same mysteries; when they are no longer looked down upon by the patricians, they at once begin to look down upon the plebs. Who does not see that their one aim and object was to bring about an interregnum in order that the elections might be controlled by the patricians? That was the object of the consuls in both staying with the army; then, afterwards, because they had to nominate a Dictator against their will to conduct the elections, they had carried their point by force, and the Dictator's appointment was declared invalid by the augurs. Well, they have got their interregnum; one consulship at all events belongs to the Roman plebs; the people will freely dispose of it and give it to the man who prefers an early victory to prolonged command."

[22.35] Harangues like these kindled intense excitement amongst the plebs. There were three patrician candidates in the field, P. Cornelius Merenda, L. Manlius Vulso, and M. Aemilius Lepidus; two plebeians who were now ennobled, C. Atilius Serranus and Q. Aelius Paetus, one of whom was a pontiff, the other an augur. But the only one elected was C. Terentius Varro, so that the elections for appointing his colleague were in his hands. The nobility saw that his rivals were not strong enough, and they compelled L. Aemilius Paulus to come forward. He had come off with a blasted reputation from the trial in which his colleague had been found guilty, and he narrowly escaped, and for a long time stoutly resisted the proposal to become a candidate owing to his intense dislike of the plebs. On the next election day, after all Varro's opponents had retired, he was given to him not so much to be his colleague as to oppose him on equal terms. The elections of praetors followed; those elected were Manlius Pomponius Matho and P. Furius Philus. To Philus was assigned the jurisdiction over Roman citizens, to Pomponius the decision of suits between citizens and foreigners. Two additional praetors were appointed, M. Claudius Marcellus for Sicily, and L. Postumius Albinus to act in Gaul. These were all elected in their absence, and none of them, with the exception of Varro, were new to office. Several strong and capable men were passed over, for at such a time it seemed undesirable that a magistracy should be entrusted to new and untried men.

[22.36] The armies were increased, but as to what additions were made to the infantry and cavalry, the authorities vary so much, both as to the numbers and nature of the forces, that I should hardly venture to assert anything as positively certain. Some say that 10,000 recruits were called out to make up the losses; others, that four new legions were enrolled so that they might carry on the war with eight legions. Some authorities record that both horse and foot in the legions were made stronger by the addition of 1000 infantry and 100 cavalry to each, so that they contained 5000 infantry and 300 cavalry, whilst the allies furnished double the number of cavalry and an equal number of infantry. Thus, according to these writers, there were 87,200 men in the Roman camp when the battle of Cannae was fought. One thing is quite certain; the struggle was resumed with greater vigour and energy than in former years, because the Dictator had given them reason to hope that the enemy might be conquered.

But before the newly raised legions left the City the decemvirs were ordered to consult the Sacred Books owing to the general alarm which had been created by fresh portents. It was reported that showers of stones had fallen simultaneously on the Aventine in Rome and at Aricia; that the statues of the gods amongst the Sabines had sweated blood, and cold water had flowed from the hot springs. This latter portent created more terror, because it had happened several times. In the colonnade near the Campus several men had been killed by lightning. The proper expiation of these portents was ascertained from the Sacred Books. Some envoys from Paestum brought golden bowls to Rome. Thanks were voted to them as in the case of the Neapolitans, but the gold was not accepted.

[22.37]About the same time a fleet which had been despatched by Hiero arrived at Ostia with a large quantity of supplies. When his officers were introduced into the senate they spoke in the following terms: "The news of the death of the consul C. Flaminius and the destruction of his army caused so much distress and grief to King Hiero that he could not have been more deeply moved by any disaster which could happen either to himself personally or to his kingdom. Although he well knows that the greatness of Rome is almost more to be admired in adversity than in prosperity, still, notwithstanding that, he has sent everything with which good and faithful allies can assist their friends in time of war, and he earnestly intreats the senate not to reject his offer. To begin with, we are bringing, as an omen of good fortune, a golden statue of Victory, weighing two hundred and twenty pounds. We ask you to accept it and keep it as your own for ever. We have also brought 300,000 pecks of wheat and 200,000 of barley that you may not want provisions, and we are prepared to transport as much more as you require to any place that you may decide upon. The king is quite aware that Rome does not employ any legionary soldiers or cavalry except Romans and those belonging to the Latin nation, but he has seen foreigners serving as light infantry in the Roman camp. He has, accordingly, sent 1000 archers and slingers, capable of acting against the Balearics and Moors and other tribes who fight with missile weapons." They supplemented these gifts by suggesting that the praetor to whom Sicily had been assigned should take the fleet over to Africa so that the country of the enemy, too, might be visited by war, and less facilities afforded him for sending reinforcements to Hannibal. The senate requested the

officers to take back the following reply to the king: Hiero was a man of honour and an exemplary ally; he had been consistently loyal all through, and had on every occasion rendered most generous help to Rome, and for that Rome was duly grateful. The gold which had been offered by one or two cities had not been accepted, though the Roman people were very grateful for the offer. They would, however, accept the statue of Victory as an omen for the future, and would give and consecrate a place for her in the Capitol in the temple of Jupiter Optimus Maximus. Enshrined in that stronghold she will be gracious and propitious, constant and steadfast to Rome. The archers and slingers and the corn were handed over to the consuls. The fleet which T. Otacilius had with him in Sicily was strengthened by the addition of twenty-five quinqueremes, and permission was given him to cross over to Africa if he thought it would be in the interest of the republic.

[22.38] After completing the enrolment the consuls waited a few days for the contingents furnished by the Latins and the allies to come in. Then a new departure was made; the soldiers were sworn in by the military tribunes. Up to that day there had only been the military oath binding the men to assemble at the bidding of the consuls and not to disband until they received orders to do so. It had also been the custom among the soldiers, when the infantry were formed into companies of 100, and the cavalry into troops of 10, for all the men in each company or troop to take a voluntary oath to each other that they would not leave their comrades for fear or for flight, and that they would not quit the ranks save to fetch or pick up a weapon, to strike an enemy, or to save a comrade. This voluntary covenant was now changed into a formal oath taken before the tribunes. Before they marched out of the City, Varro delivered several violent harangues, in which he declared that the war had been brought into Italy by the nobles, and would continue to feed on the vitals of the republic if there were more generals like Fabius; he, Varro, would finish off the war the very day he caught sight of the enemy. His colleague, Paulus, made only one speech, in which there was much more truth than the people cared to hear. He passed no strictures on Varro, but he did express surprise that any general, whilst still in the City before he had taken up his command, or become acquainted with either his own army or that of the enemy, or gained any information as to the lie of the country and the nature of the ground,

should know in what way he should conduct the campaign and be able to foretell the day on which he would fight a decisive battle with the enemy. As for himself, Paulus said that he would not anticipate events by disclosing his measures, for, after all, circumstances determined measures for men much more than men made circumstances subservient to measures. He hoped and prayed that such measures as were taken with due caution and foresight might turn out successful; so far rashness, besides being foolish, had proved disastrous. He made it quite clear that he would prefer safe to hasty counsels, and in order to strengthen him in this resolve Fabius is said to have addressed him on his departure in the following terms:

[22.39]" L. Aemilius, if you were like your colleague or, if you had a colleague like yourself - and I would that it were so - my address would be simply a waste of words. For if you were both good consuls, you would, without any suggestions from me, do everything that the interests of the State or your own sense of honour demanded; if you were both alike bad, you would neither listen to anything I had to say, nor take any advice which I might offer. As it is, when I look at your colleague and consider what sort of a man you are, I shall address my remarks to you. I can see that your merits as a man and a citizen will effect nothing if one half of the commonwealth is crippled and evil counsels possess the same force and authority as good ones. You are mistaken, L. Paulus, if you imagine that you will have less difficulty with C. Terentius than with Hannibal; I rather think the former will prove a more dangerous enemy than the latter. With the one you will only have to contend in the field, the opposition of the other you will have to meet everywhere and always. Against Hannibal and his legions you will have your cavalry and infantry, when Varro is in command he will use your own men against you. I do not want to bring ill luck on you by mentioning the ill-starred Flaminius, but this I must say that it was only after he was consul and had entered upon his province and taken up his command that he began to play the madman, but this man was insane before he stood for the consulship and afterwards while canvassing for it, and now that he is consul, before he has seen the camp or the enemy he is madder than ever. If he raises such storms amongst peaceful civilians as he did just now by bragging about battles and battlefields, what will he do, think you, when he is talking to armed men - and those young men - where words at once lead to action. And yet if he carries out his threat and

brings on an action at once, either I am utterly ignorant of military science, of the nature of this war, of the enemy with whom we are dealing, or else some place or other will be rendered more notorious by our defeat than even Trasmennus. As we are alone, this is hardly a time for boasting, and I would rather be thought to have gone too far in despising glory than in seeking it, but as a matter of fact, the only rational method of carrying on war against Hannibal is the one which I have followed. This is not only taught us by experience - experience the teacher of fools - but by reasoning which has been and will continue to be unchanged as long as the conditions remain the same. We are carrying on war in Italy, in our own country on our own soil, everywhere round us are citizens and allies, they are helping us with men, horses, supplies, and they will continue to do so, for they have proved their loyalty thus far to us in our adversity; and time and circumstance are making us more efficient, more circumspect, more self-reliant. Hannibal, on the other hand, is in a foreign and hostile land, far from his home and country, confronted everywhere by opposition and danger; nowhere by land or sea can he find peace; no cities admit him within their gates, no fortified towns; nowhere does he see anything which he can call his own, he has to live on each day's pillage: he has hardly a third of the army with which he crossed the Ebro; he has lost more by famine than by the sword, and even the few he has cannot get enough to support life. Do you doubt then, that if we sit still we shall get the better of a man who is growing weaker day by day, who has neither supplies nor reinforcements nor money? How long has he been sitting before the walls of Gereonium, a poor fortress in Apulia, as though they were the walls of Carthage? But I will not sound my own praises even before you. See how the late consuls, Cn. Servilius and Atilius, fooled him. This, L. Paulus, is the only safe course to adopt, and it is one which your fellow citizens will do more to make difficult and dangerous for you than the enemy will. For your own soldiers will want the same thing as the enemy; Varro though he is a Roman consul will desire just what Hannibal the Carthaginian commander desires. You must hold your own single-handed against both generals. And you will hold your own if you stand your ground firmly against public gossip and private slander, if you remain unmoved by false misrepresentations and your colleague's idle boasting. It is said that truth is far too often eclipsed but never totally extinguished. The man who scorns false glory will possess the true. Let them call you a coward because you are cautious,

a laggard because you are deliberate, unsoldierly because you are a skilful general. I would rather have you give a clever enemy cause for fear than earn the praise of foolish compatriots. Hannibal will only feel contempt for a man who runs all risks, he will be afraid of one who never takes a rash step. I do not advise you to do nothing, but I do advise you to be guided in what you do by common sense and reason and not by chance. Never lose control of your forces and yourself; be always prepared, always on the alert; never fail to seize an opportunity favourable to yourself, and never give a favourable opportunity to the enemy. The man who is not in a hurry will always see his way clearly; haste blunders on blindly."

[22.40]The consul's reply was far from being a cheerful one, for he admitted that the advice given was true, but not easy to put into practice. If a Dictator had found his Master of the Horse unbearable, what power or authority would a consul have against a violent and headstrong colleague? "In my first consulship," he said, "I escaped, badly singed, from the fire of popular fury. I hope and pray that all may end successfully, but if any mischance befalls us I shall expose myself to the weapons of the enemy sooner than to the verdict of the enraged citizens." With these words Paulus, it is said, set forward, escorted by the foremost men amongst the patricians; the plebeian consul was attended by his plebeian friends, more conspicuous for their numbers than for the quality of the men who composed the crowd. When they came into camp the recruits and the old soldiers were formed into one army, and two separate camps were formed, the new camp, which was the smaller one, being nearer to Hannibal, while in the old camp the larger part of the army and the best troops were stationed. M. Atilius, one of the consuls of the previous year, pleaded his age and was sent back to Rome; the other, Geminus Servilius, was placed in command of the smaller camp with one Roman legion and 2000 horse and foot of the allies. Although Hannibal saw that the army opposed to him was half as large again as it had been he was hugely delighted at the advent of the consuls. For not only was there nothing left out of his daily plunder, but there was nothing left anywhere for him to seize, as all the corn, now that the country was unsafe, had been everywhere stored in the cities. Hardly ten days' rations of corn remained, as was afterwards discovered, and the Spaniards were prepared to desert, owing to the

shortness of supplies, if only the Romans had waited till the time was ripe.

[22.41]An incident occurred which still further encouraged Varro's impetuous and headstrong temperament. Parties were sent to drive off the foragers; a confused fight ensued owing to the soldiers rushing forward without any preconcerted plan or orders from their commanders, and the contest went heavily against the Carthaginians. As many as 1700 of them were killed, the loss of the Romans and the allies did not amount to more than 100. The consuls commanded on alternate days, and that day happened to be Paulus' turn. He checked the victors who were pursuing the enemy in great disorder, for he feared an ambushade. Varro was furious, and loudly exclaimed that the enemy had been allowed to slip out of their hands, and if the pursuit had not been stopped the war could have been brought to a close. Hannibal did not very much regret his losses, on the contrary he believed that they would serve as a bait to the impetuosity of the consul and his newly-raised troops, and that he would be more headstrong than ever. What was going on in the enemy's camp was quite as well known to him as what was going on in his own; he was fully aware that there were differences and quarrels between the commanders, and that two-thirds of the army consisted of recruits. The following night he selected what he considered a suitable position for an ambushade, and marched his men out of camp with nothing but their arms, leaving all the property, both public and private, behind in the camp. He then concealed the force behind the hills which enclosed the valley, the infantry to the left and the cavalry to the right, and took the baggage train through the middle of the valley, in the hope of surprising the Romans whilst plundering the apparently deserted camp and hampered with their plunder. Numerous fires were left burning in the camp in order to create the impression that he wished to keep the consuls in their respective positions until he had traversed a considerable distance in his retreat. Fabius had been deceived by the same stratagem the previous year.

[22.42]As it grew light the pickets were seen to have been withdrawn, then on approaching nearer the unusual silence created surprise. When it was definitely learnt that the camp was empty the men rushed in a body to the commanders' quarters with the news that the enemy had fled in such haste that they left the tents standing, and to secure greater secrecy for their flight had also left numerous fires

burning. Then a loud shout arose demanding that the order should be given to advance, and that the men should be led in pursuit, and that the camp should be plundered forthwith. The one consul behaved as though he were one of the clamorous crowd; the other, Paulus, repeatedly asserted the need of caution and circumspection. At last, unable to deal with the mutinous crowd and its leader in any other way, he sent Marius Statilius with his troop of Lucanian horse to reconnoitre. When he had ridden up to the gates of the camp he ordered his men to halt outside the lines, he himself with two of his troopers entered the camp and after a careful and thorough examination he brought back word that there was certainly a trick somewhere, the fires were left on the side of the camp which fronted the Romans, the tents were standing open with all the valuables exposed to view, in some parts he had seen silver lying about on the paths as though it had been put there for plunder. So far from deterring the soldiers from satisfying their greed, as it was intended to do, this report only inflamed it, and a shout arose that if the signal was not given they would go on without their generals. There was no lack of a general, however, for Varro instantly gave the signal to advance. Paulus, who was hanging back, received a report from the keeper of the sacred chickens that they had not given a favourable omen, and he ordered the report to be at once carried to his colleague as he was just marching out of the camp gates. Varro was very much annoyed, but the recollection of the disaster which overtook Flaminius and the naval defeat which the consul Claudius sustained in the first Punic war made him afraid of acting in an irreligious spirit. It seemed as though the gods themselves on that day delayed, if they did actually do away, the fatal doom which was impending over the Romans. For it so happened that whilst the soldiers were ignoring the consul's order for the standards to be carried back into camp, two slaves, one belonging to a trooper from Formiae, the other to one from Sidicinium, who had been captured with the foraging parties when Servilius and Atilius were in command, had that day escaped to their former masters. They were taken before the consul and told him that the whole of Hannibal's army was lying behind the nearest hills. The opportune arrival of these men restored the authority of the consuls, though one of them in his desire to be popular had weakened his authority by his unscrupulous connivance at breaches of discipline.

[22.43]When Hannibal saw that the ill-considered movement which the Romans had commenced was not recklessly carried out to its final stage, and that his ruse had been detected, he returned to camp. Owing to the want of corn he was unable to remain there many days, and fresh plans were continually cropping up, not only amongst the soldiers, who were a medley of all nations, but even in the mind of the general himself. Murmurs gradually swelled into loud and angry protests as the men demanded their arrears of pay, and complained of the starvation which they were enduring, and in addition, a rumour was started that the mercenaries, chiefly those of Spanish nationality, had formed a plot to desert. Even Hannibal himself, it is said, sometimes thought of leaving his infantry behind and hurrying with his cavalry into Gaul. With these plans being discussed and this temper prevailing amongst the men, he decided to move into the warmer parts of Apulia, where the harvest was earlier and where, owing to the greater distance from the enemy, desertion would be rendered more difficult for the fickle-minded part of his force. As on the previous occasion, he ordered camp-fires to be lighted, and a few tents left where they could be easily seen, in order that the Romans, remembering a similar stratagem, might be afraid to move. However, Statilius was again sent to reconnoitre with his Lucanians, and he made a thorough examination of the country beyond the camp and over the mountains. He reported that he had caught a distant view of the enemy in line of march, and the question of pursuit was discussed. As usual, the views of the two consuls were opposed, but almost all present supported Varro, not a single voice was given in favour of Paulus, except that of Servilius, consul in the preceding year. The opinion of the majority of the council prevailed, and so, driven by destiny, they went forward to render Cannae famous in the annals of Roman defeats. It was in the neighbourhood of this village that Hannibal had fixed his camp with his back to the Sirocco which blows from Mount Vultur and fills the arid plains with clouds of dust. This arrangement was a very convenient one for his camp, and it proved to be extremely advantageous afterwards, when he was forming his order of battle, for his own men, with the wind behind them, blowing only on their backs, would fight with an enemy who was blinded by volumes of dust.

[22.44]The consuls followed the Carthaginians, carefully examining the roads as they marched, and when they reached Cannae and had

the enemy in view they formed two entrenched camps separated by the same interval as at Gereonium, and with the same distribution of troops in each camp. The river Aufidus, flowing past the two camps, furnished a supply of water which the soldiers got as they best could, and they generally had to fight for it. The men in the smaller camp, which was on the other side of the river, had less difficulty in obtaining it, as that bank was not held by the enemy. Hannibal now saw his hopes fulfilled, that the consuls would give him an opportunity of fighting on ground naturally adapted for the movements of cavalry, the arm in which he had so far been invincible, and accordingly he placed his army in order of battle, and tried to provoke his foe to action by repeated charges of his Numidians. The Roman camp was again disturbed by a mutinous soldiery and consuls at variance, Paulus bringing up against Varro the fatal rashness of Sempronius and Flaminius, Varro retorting by pointing to Fabius as the favourite model of cowardly and inert commanders, and calling gods and men to witness that it was through no fault of his that Hannibal had acquired, so to speak, a prescriptive right to Italy; he had had his hands tied by his colleague; his soldiers, furious and eager for fight, had had their swords and arms taken away from them. Paulus, on the other hand, declared that if anything happened to the legions flung recklessly and betrayed into an ill-considered and imprudent action, he was free from all responsibility for it, though he would have to share in all the consequences. "See to it," he said to Varro, "that those who are so free and ready with their tongues are equally so with their hands in the day of battle."

[22.45]Whilst time was thus being wasted in disputes instead of deliberation, Hannibal withdrew the bulk of his army, who had been standing most of the day in order of battle, into camp. He sent his Numidians, however, across the river to attack the parties who were getting water for the smaller camp. They had hardly gained the opposite bank when with their shouting and uproar they sent the crowd flying in wild disorder, and galloping on as far as the outpost in front of the rampart, they nearly reached the gates of the camp. It was looked upon as such an insult for a Roman camp to be actually terrorised by irregular auxiliaries that one thing, and one thing alone, held back the Romans from instantly crossing the river and forming their battle line - the supreme command that day rested with Paulus. The following day Varro, whose turn it now was, without any

consultation with his colleague, exhibited the signal for battle and led his forces drawn up for action across the river. Paulus followed, for though he disapproved of the measure, he was bound to support it. After crossing, they strengthened their line with the force in the smaller camp and completed their formation. On the right, which was nearest to the river, the Roman cavalry were posted, then came the infantry; on the extreme left were the cavalry of the allies, their infantry were between them and the Roman legions. The javelin men with the rest of the light-armed auxiliaries formed the front line. The consuls took their stations on the wings, Terentius Varro on the left, Aemilius Paulus on the right.

[22.46]As soon as it grew light Hannibal sent forward the Balearics and the other light infantry. He then crossed the river in person and as each division was brought across he assigned it its place in the line. The Gaulish and Spanish horse he posted near the bank on the left wing in front of the Roman cavalry; the right wing was assigned to the Numidian troopers. The centre consisted of a strong force of infantry, the Gauls and Spaniards in the middle, the Africans at either end of them. You might fancy that the Africans were for the most part a body of Romans from the way they were armed, they were so completely equipped with the arms, some of which they had taken at the Trebia, but the most part at Trasumennus. The Gauls and Spaniards had shields almost of the same shape their swords were totally different, those of the Gauls being very long and without a point, the Spaniard, accustomed to thrust more than to cut, had a short handy sword, pointed like a dagger. These nations, more than any other, inspired terror by the vastness of their stature and their frightful appearance: the Gauls were naked above the waist, the Spaniards had taken up their position wearing white tunics embroidered with purple, of dazzling brilliancy. The total number of infantry in the field was 40,000, and there were 10,000 cavalry. Hasdrubal was in command of the left wing, Maharbal of the right; Hannibal himself with his brother Mago commanded the centre. It was a great convenience to both armies that the sun shone obliquely on them, whether it was that they had purposely so placed themselves, or whether it happened by accident, since the Romans faced the north, the Carthaginians the South. The wind, called by the inhabitants the Vulturnus, was against the Romans, and blew great

clouds of dust into their faces, making it impossible for them to see in front of them.

[22.47]When the battle shout was raised the auxiliaries ran forward, and the battle began with the light infantry. Then the Gauls and Spaniards on the left engaged the Roman cavalry on the right; the battle was not at all like a cavalry fight, for there was no room for maneuvering, the river on the one side and the infantry on the other hemming them in, compelled them to fight face to face. Each side tried to force their way straight forward, till at last the horses were standing in a closely pressed mass, and the riders seized their opponents and tried to drag them from their horses. It had become mainly a struggle of infantry, fierce but short, and the Roman cavalry was repulsed and fled. Just as this battle of the cavalry was finished, the infantry became engaged, and as long as the Gauls and Spaniards kept their ranks unbroken, both sides were equally matched in strength and courage. At length after long and repeated efforts the Romans closed up their ranks, echeloned their front, and by the sheer weight of their deep column bore down the division of the enemy which was stationed in front of Hannibal's line, and was too thin and weak to resist the pressure. Without a moment's pause they followed up their broken and hastily retreating foe till they took to headlong flight. Cutting their way through the mass of fugitives, who offered no resistance, they penetrated as far as the Africans who were stationed on both wings, somewhat further back than the Gauls and Spaniards who had formed the advanced centre. As the latter fell back the whole front became level, and as they continued to give ground it became concave and crescent-shaped, the Africans at either end forming the horns. As the Romans rushed on incautiously between them, they were enfiladed by the two wings, which extended and closed round them in the rear. On this, the Romans, who had fought one battle to no purpose, left the Gauls and Spaniards, whose rear they had been slaughtering, and commenced a fresh struggle with the Africans. The contest was a very one-sided one, for not only were they hemmed in on all sides, but wearied with the previous fighting they were meeting fresh and vigorous opponents.

[22.48]By this time the Roman left wing, where the allied cavalry were fronting the Numidians, had become engaged, but the fighting was slack at first owing to a Carthaginian stratagem. About 500 Numidians, carrying, besides their usual arms and missiles, swords

concealed under their coats of mail, rode out from their own line with their shields slung behind their backs as though they were deserters, and suddenly leaped from their horses and flung their shields and javelins at the feet of their enemy. They were received into their ranks, conducted to the rear, and ordered to remain quiet. While the battle was spreading to the various parts of the field they remained quiet, but when the eyes and minds of all were wholly taken up with the fighting they seized the large Roman shields which were lying everywhere amongst the heaps of slain and commenced a furious attack upon the rear of the Roman line. Slashing away at backs and hips, they made a great slaughter and a still greater panic and confusion. Amidst the rout and panic in one part of the field and the obstinate but hopeless struggle in the other, Hasdrubal, who was in command of that arm, withdrew some Numidians from the centre of the right wing, where the fighting was feebly kept up, and sent them in pursuit of the fugitives, and at the same time sent the Spanish and Gaulish horse to the aid of the Africans, who were by this time more wearied by slaughter than by fighting.

[22.49]Paulus was on the other side of the field. In spite of his having been seriously wounded at the commencement of the action by a bullet from a sling, he frequently encountered Hannibal with a compact body of troops, and in several places restored the battle. The Roman cavalry formed a bodyguard round him, but at last, as he became too weak to manage his horse, they all dismounted. It is stated that when some one reported to Hannibal that the consul had ordered his men to fight on foot, he remarked, "I would rather he handed them over to me bound hand and foot." Now that the victory of the enemy was no longer doubtful this struggle of the dismounted cavalry was such as might be expected when men preferred to die where they stood rather than flee, and the victors, furious at them for delaying the victory, butchered without mercy those whom they could not dislodge. They did, however, repulse a few survivors exhausted with their exertions and their wounds. All were at last scattered, and those who could regained their horses for flight. Cn. Lentulus, a military tribune, saw, as he rode by, the consul covered with blood sitting on a boulder. "Lucius Aemilius," he said, "the one man whom the gods must hold guiltless of this day's disaster, take this horse while you have still some strength left, and I can lift you into the saddle and keep by your side to protect you. Do not make

this day of battle still more fatal by a consul's death, there are enough tears and mourning without that." The consul replied: "Long may you live to do brave deeds, Cornelius, but do not waste in useless pity the few moments left in which to escape from the hands of the enemy. Go, announce publicly to the senate that they must fortify Rome and make its defence strong before the victorious enemy approaches, and tell Q. Fabius privately that I have ever remembered his precepts in life and in death. Suffer me to breathe my last among my slaughtered soldiers, let me not have to defend myself again when I am no longer consul, or appear as the accuser of my colleague and protect my own innocence by throwing the guilt on another." During this conversation a crowd of fugitives came suddenly upon them, followed by the enemy, who, not knowing who the consul was, overwhelmed him with a shower of missiles. Lentulus escaped on horseback in the rush. Then there was flight in all directions; 7000 men escaped to the smaller camp, 10,000 to the larger, and about 2000 to the village of Cannae. These latter were at once surrounded by Carthalo and his cavalry, as the village was quite unfortified. The other consul, who either by accident or design had not joined any of these bodies of fugitives, escaped with about fifty cavalry to Venusia; 45,500 infantry, 2700 cavalry - almost an equal proportion of Romans and allies - are said to have been killed. Amongst the number were both the quaestors attached to the consuls, L. Atilius and L. Furius Bibulcus, twenty-nine military tribunes, several ex-consuls, ex-praetors, and ex-aediles (amongst them are included Cn. Servilius Geminus and M. Minucius, who was Master of the Horse the previous year and, some years before that, consul), and in addition to these, eighty men who had either been senators or filled offices qualifying them for election to the senate and who had volunteered for service with the legions. The prisoners taken in the battle are stated to have amounted to 3000 infantry and 1500 cavalry.

[22.50]Such was the battle of Cannae, a battle as famous as the disastrous one at the Allia; not so serious in its results, owing to the inaction of the enemy, but more serious and more horrible in view of the slaughter of the army. For the flight at the Allia saved the army though it lost the City, whereas at Cannae hardly fifty men shared the consul's flight, nearly the whole army met their death in company with the other consul. As those who had taken refuge in the two camps were only a defenceless crowd without any leaders, the men

in the larger camp sent a message to the others asking them to cross over to them at night when the enemy, tired after the battle and the feasting in honour of their victory, would be buried in sleep. Then they would go in one body to Canusium. Some rejected the proposal with scorn. "Why," they asked, "cannot those who sent the message come themselves, since they are quite as able to join us as we to join them? Because, of course, all the country between us is scoured by the enemy and they prefer to expose other people to that deadly peril rather than themselves." Others did not disapprove of the proposal, but they lacked courage to carry it out. P. Sempronius Tuditanus protested against this cowardice. "Would you," he asked, "rather be taken prisoners by a most avaricious and ruthless foe and a price put upon your heads and your value assessed after you have been asked whether you are a Roman citizen or a Latin ally, in order that another may win honour from your misery and disgrace? Certainly not, if you are really the fellow-countrymen of L. Aemilius, who chose a noble death rather than a life of degradation, and of all the brave men who are lying in heaps around him. But, before daylight overtakes us and the enemy gathers in larger force to bar our path, let us cut our way through the men who in disorder and confusion are clamouring at our gates. Good swords and brave hearts make a way through enemies, however densely they are massed. If you march shoulder to shoulder you will scatter this loose and disorganised force as easily as if nothing opposed you. Come then with me, all you who want to preserve yourselves and the State." With these words he drew his sword, and with his men in close formation marched through the very midst of the enemy. When the Numidians hurled their javelins on the right, the unprotected side, they transferred their shields to their right arms, and so got clear away to the larger camp. As many as 600 escaped on this occasion, and after another large body had joined them they at once left the camp and came through safely to Canusium. This action on the part of defeated men was due to the impulse of natural courage or of accident rather than to any concerted plan of their own or any one's generalship.

[22.51] Hannibal's officers all surrounded him and congratulated him on his victory, and urged that after such a magnificent success he should allow himself and his exhausted men to rest for the remainder of the day and the following night. Maharbal, however, the commandant of the cavalry, thought that they ought not to lose a

moment. "That you may know," he said to Hannibal, "what has been gained by this battle I prophesy that in five days you will be feasting as victor in the Capitol. Follow me; I will go in advance with the cavalry; they will know that you are come before they know that you are coming." To Hannibal the victory seemed too great and too joyous for him to realise all at once. He told Maharbal that he commended his zeal, but he needed time to think out his plans. Maharbal replied: "The gods have not given all their gifts to one man. You know how to win victory, Hannibal, you do not how to use it." That day's delay is believed to have saved the City and the empire. The next day, as soon as it grew light, they set about gathering the spoils on the field and viewing the carnage, which was a ghastly sight even for an enemy. There all those thousands of Romans were lying, infantry and cavalry indiscriminately as chance had brought them together in the battle or the flight. Some covered with blood raised themselves from amongst the dead around them, tortured by their wounds which were nipped by the cold of the morning, and were promptly put an end to by the enemy. Some they found lying with their thighs and knees gashed but still alive; these bared their throats and necks and bade them drain what blood they still had left. Some were discovered with their heads buried in the earth, they had evidently suffocated themselves by making holes in the ground and heaping the soil over their faces. What attracted the attention of all was a Numidian who was dragged alive from under a dead Roman lying across him; his ears and nose were torn, for the Roman with hands too powerless to grasp his weapon had, in his mad rage, torn his enemy with his teeth, and while doing so expired.

[22.52]After most of the day had been spent in collecting the spoils, Hannibal led his men to the attack on the smaller camp and commenced operations by throwing up a breastwork to cut off their water supply from the river. As, however, all the defenders were exhausted by toil and want of sleep, as well as by wounds, the surrender was effected sooner than he had anticipated. They agreed to give up their arms and horses, and to pay for each Roman three hundred "chariot pieces," for each ally two hundred, and for each officer's servant one hundred, on condition that after the money was paid they should be allowed to depart with one garment apiece. Then they admitted the enemy into the camp and were all placed under guard, the Romans and the allies separately. Whilst time was being

spent there, all those in the larger camp, who had sufficient strength and courage, to the number of 4000 infantry and 200 cavalry, made their escape to Canusium, some in a body, others straggling through the fields, which was quite as safe a thing to do. Those who were wounded and those who had been afraid to venture surrendered the camp on the same terms as had been agreed upon in the other camp. An immense amount of booty was secured, and the whole of it was made over to the troops with the exception of the horses and prisoners and whatever silver there might be. Most of this was on the trappings of the horses, for they used very little silver plate at table, at all events when on a campaign. Hannibal then ordered the bodies of his own soldiers to be collected for burial; it is said that there were as many as 8000 of his best troops. Some authors state that he also had a search made for the body of the Roman consul, which he buried. Those who had escaped to Canusium were simply allowed shelter within its walls and houses, but a high-born and wealthy Apulian lady, named Busa, assisted them with corn and clothes and even provisions for their journey. For this munificence the senate, at the close of the war, voted her public honours

[22.53]Although there were four military tribunes on the spot - Fabius Maximus of the first legion, whose father had been lately Dictator, L. Publicius Bibulus and Publius Cornelius Scipio of the second legion, and Appius Claudius Pulcher of the third legion, who had just been aedile - the supreme command was by universal consent vested in P. Scipio, who was quite a youth, and Appius Claudius. They were holding a small council to discuss the state of affairs when P. Furius Philus, the son of an ex-consul, informed them that it was useless for them to cherish ruined hopes; the republic was despaired of and given over for lost; some young nobles with L. Caecilius Metellus at their head were turning their eyes seaward with the intention of abandoning Italy to its fate and transferring their services to some king or other. This evil news, terrible as it was and coming fresh on the top of all their other disasters, paralysed those who were present with wonder and amazement. They thought that a council ought to be summoned to deal with it, but young Scipio, the general destined to end this war, said that it was no business for a council. In such an emergency as that they must dare and act, not deliberate. "Let those," he cried, "who want to save the republic take their arms at once and follow me. No camp is more truly a hostile

camp than one in which such treason is meditated." He started off with a few followers to the house where Metellus was lodging, and finding the young men about whom the report had been made gathered there in council, he held his naked sword over the heads of the conspirators and uttered these words: "I solemnly swear that I will not abandon the Republic of Rome, nor will I suffer any other Roman citizen to do so; if I knowingly break my oath, then do thou, O Jupiter Optimus Maximus, visit me, my home, my family, and my estate with utter destruction. I require you, L. Caecilius, and all who are here present, to take this oath. Whoever will not swear let him know that this sword is drawn against him." They were in as great a state of fear as though they saw the victorious Hannibal amongst them, and all took the oath and surrendered themselves into Scipio's custody.

[22.54]Whilst these things were happening at Canusium, as many as 4500 infantry and cavalry, who had been dispersed in flight over the country, succeeded in reaching the consul at Venusia. The inhabitants received them with every mark of kindness and distributed them all amongst their households to be taken care of. They gave each of the troopers a toga and a tunic and twenty-five "chariot pieces," and to each legionary ten pieces, and whatever arms they required. All hospitality was shown them both by the government and by private citizens, for the people of Venusia were determined not to be outdone in kindness by a lady of Canusium. But the large number of men, which now amounted to something like 10,000, made the burden imposed upon Busa much heavier. For Appius and Scipio, on hearing that the consul was safe, at once sent to him to inquire what amount of foot and horse he had with him, and also whether he wanted the army to be taken to Venusia or to remain at Canusium. Varro transferred his forces to Canusium, and now there was something like a consular army; it seemed as though they would defend themselves successfully behind their walls if not in the open field. The reports which reached Rome left no room for hope that even these remnants of citizens and allies were still surviving; it was asserted that the army with its two consuls had been annihilated and the whole of the forces wiped out. Never before, while the City itself was still safe, had there been such excitement and panic within its walls. I shall not attempt to describe it, nor will I weaken the reality by going into details. After the loss of the consul and the army at

Trasumennus the previous year, it was not wound upon wound but multiplied disaster that was now announced. For according to the reports two consular armies and two consuls were lost; there was no longer any Roman camp, any general, any single soldier in existence; Apulia, Samnium, almost the whole of Italy lay at Hannibal's feet. Certainly there is no other nation that would not have succumbed beneath such a weight of calamity. One might, of course, compare the naval defeat of the Carthaginians at the Aegates, which broke their power to such an extent that they gave up Sicily and Sardinia and submitted to the payment of tribute and a war indemnity; or, again, the battle which they lost in Africa, in which Hannibal himself was crushed. But there is no point of comparison between these and Cannae, unless it be that they were borne with less fortitude.

[22.55]P. Furius Philus and M. Pomponius, the praetors, called a meeting of the senate to take measures for the defence of the City, for no doubt was felt that after wiping out the armies the enemy would set about his one remaining task and advance to attack Rome. In the presence of evils the extent of which, great as they were, was still unknown, they were unable even to form any definite plans, and the cries of wailing women deafened their ears, for as the facts were not yet ascertained the living and the dead were being indiscriminately bewailed in almost every house. Under these circumstances Q. Fabius Maximus gave it as his opinion that swift horsemen should be sent along the Appian and Latin roads to make inquiries of those they met, for there would be sure to be fugitives scattered about the country, and bring back tidings as to what had befallen the consuls and the armies, and if the gods out of compassion for the empire had left any remnant of the Roman nation, to find out where those forces were. And also they might ascertain whither Hannibal had repaired after the battle, what plans he was forming, what he was doing or likely to do. They must get some young and active men to find out these things, and as there were hardly any magistrates in the City, the senators must themselves take steps to calm the agitation and alarm which prevailed. They must keep the matrons out of the public streets and compel them to remain indoors; they must suppress the loud laments for the dead and impose silence on the City; they must see that all who brought tidings were taken to the praetors, and that the citizens should, each in his own house, wait for any news which affected them personally.

Moreover, they must station guards at the gates to prevent any one from leaving the City, and they must make it clear to every man that the only safety he can hope for lies in the City and its walls. When the tumult has once been hushed, then the senate must be again convened and measures discussed for the defence of the City.

[22.56] This proposal was unanimously carried without any discussion. After the crowd was cleared out of the Forum by the magistrates and the senators had gone in various directions to allay the agitation, a despatch at last arrived from C. Terentius Varro. He wrote that L. Aemilius was killed and his army cut to pieces; he himself was at Canusium collecting the wreckage that remained from this awful disaster; there were as many as 10,000 soldiers, irregular, unorganised; the Carthaginian was still at Cannae, bargaining about the prisoners' ransom and the rest of the plunder in a spirit very unlike that of a great and victorious general. The next thing was the publication of the names of those killed, and the City was thrown into such universal mourning that the annual celebration of the festival of Ceres was suspended, because it is forbidden to those in mourning to take part in it, and there was not a single matron who was not a mourner during those days. In order that the same cause might not prevent other sacred observances from being duly honoured, the period of mourning was limited by a senatorial decree to thirty days. When the agitation was quieted and the senate resumed its session, a fresh despatch was received, this time from Sicily. T. Otacilius, the propraetor, announced that Hiero's kingdom was being devastated by a Carthaginian fleet, and when he was preparing to render him the assistance he asked for, he received news that another fully equipped fleet was riding at anchor off the Aegates, and when they heard that he was occupied with the defence of the Syracusan shore they would at once attack Lilybaeum and the rest of the Roman province. If, therefore, the senate wished to retain the king as their ally and keep their hold on Sicily, they must fit out a fleet.

[22.57] When the despatches from the consul and the praetor had been read it was decided that M. Claudius, who was commanding the fleet stationed at Ostia, should be sent to the army at Canusium and instructions forwarded to the consul requesting him to hand over his command to the praetor and come to Rome as soon as he possibly could consistently with his duty to the republic. For, over and above these serious disasters, considerable alarm was created by portents

which occurred. Two Vestal virgins, Opimia and Floronia, were found guilty of unchastity. One was buried alive, as is the custom, at the Colline Gate, the other committed suicide. L. Cantilius, one of the pontifical secretaries, now called "minor pontiffs," who had been guilty with Floronia, was scourged in the Comitium by the Pontifex Maximus so severely that he died under it. This act of wickedness, coming as it did amongst so many calamities, was, as often happens, regarded as a portent, and the decemvirs were ordered to consult the Sacred Books. Q. Fabius Pictor was sent to consult the oracle of Delphi as to what forms of prayer and supplication they were to use to propitiate the gods, and what was to be the end of all these terrible disasters. Meanwhile, in obedience to the Books of Destiny, some strange and unusual sacrifices were made, human sacrifices amongst them. A Gaulish man and a Gaulish woman and a Greek man and a Greek woman were buried alive under the Forum Boarium. They were lowered into a stone vault, which had on a previous occasion also been polluted by human victims, a practice most repulsive to Roman feelings.

When the gods were believed to be duly propitiated, M. Claudius Marcellus sent from Ostia 1500 men who had been enrolled for service with the fleet to garrison Rome; the naval legion (the third) he sent on in advance with the military tribunes to Teanum Sidicinum, and then, handing the fleet over to his colleague, P. Furius Philus, hastened on by forced marches a few days later to Canusium. On the authority of the senate M. Junius was nominated Dictator and Ti. Sempronius Master of the Horse. A levy was ordered, and all from seventeen years upwards were enrolled, some even younger; out of these recruits four legions were formed and 1000 cavalry. They also sent to the Latin confederacy and the other allied states to enlist soldiers according to the terms of their treaties. Armour, weapons, and other things of the kind were ordered to be in readiness, and the ancient spoils gathered from the enemy were taken down from the temples and colonnades. The dearth of freemen necessitated a new kind of enlistment; 8000 sturdy youths from amongst the slaves were armed at the public cost, after they had each been asked whether they were willing to serve or no. These soldiers were preferred, as there would be an opportunity of ransoming them when taken prisoners at a lower price.

[22.58]After his great success at Cannae, Hannibal made his arrangements more as though his victory were a complete and decisive one than as if the war were still going on. The prisoners were brought before him and separated into two groups; the allies were treated as they had been at the Trebia and at Trasumennus, after some kind words they were dismissed without ransom; the Romans, too, were treated as they had never been before, for when they appeared before him he addressed them in quite a friendly way. He had no deadly feud, he told them, with Rome, all he was fighting for was his country's honour as a sovereign power. His fathers had yielded to Roman courage, his one object now was that the Romans should yield to his good fortune and courage. He now gave the prisoners permission to ransom themselves; each horseman at 500 "chariot pieces" and each foot-soldier at 300, and the slaves at 100 per head. This was somewhat more than the cavalry had agreed to when they surrendered, but they were only too glad to accept any terms. It was settled that they should elect ten of their number to go to the senate at Rome, and the only guarantee required was that they should take an oath to return. They were accompanied by Carthalo, a Carthaginian noble, who was to sound the feelings of the senators, and if they were inclined towards peace he was to propose terms. When the delegates had left the camp, one of them, a man of an utterly un-Roman temper, returned to the camp, as if he had forgotten something, and in this way hoped to free himself from his oath. He rejoined his comrades before nightfall. When it was announced that the party were on their way to Rome a lictor was despatched to meet Carthalo and order him in the name of the Dictator to quit the territory of Rome before night.

[22.59]The Dictator admitted the prisoners' delegates to an audience of the senate. Their leader, M. Junius, spoke as follows: "Senators: we are every one of us aware that no State has held its prisoners of war of less account than our own, but, unless we think our case a better one than we have any right to do, we would urge that none have ever fallen into the hands of the enemy who were more deserving of consideration than we are. For we did not give up our arms during the battle from sheer cowardice; standing on the heaps of the slain we kept up the struggle till close on night, and only then did we retire into camp; for the remainder of the day and all through the night we defended our entrenchments; the following day we were surrounded

by the victorious army and cut off from the water, and there was no hope whatever now of our forcing our way through the dense masses of the enemy. We did not think it a crime for some of Rome's soldiers to survive the battle of Cannae, seeing that 50,000 men had been butchered there, and therefore in the very last resort we consented to have a price fixed for our ransom and surrendered to the enemy those arms which were no longer of the slightest use to us. Besides, we had heard that our ancestors had ransomed themselves from the Gauls with gold, and that your fathers, sternly as they set themselves against all conditions of peace, did nevertheless send delegates to Tarentum to arrange the ransom of the prisoners. But neither the battle at the Alia against the Gauls nor that at Heraclea against Pyrrhus was disgraced by the actual losses sustained so much as by the panic and flight which marked them. The plains of Cannae are covered by heaps of Roman dead, and we should not be here now if the enemy had not lacked arms and strength to slay us. There are some amongst us who were never in the battle at all, but were left to guard the camp, and when it was surrendered they fell into the hands of the enemy. I do not envy the fortune or the circumstances of any man, whether he be a fellow-citizen or a fellow-soldier, nor would I wish it to be said that I had glorified myself by depreciating others, but this I will say, not even those who fled from the battle, mostly without arms, and did not stay their flight till they had reached Venusia or Canusium, can claim precedence over us or boast that they are more of a defence to the State than we are. But you will find both in them and in us good and gallant soldiers, only we shall be still more eager to serve our country because it will be through your kindness that we shall have been ransomed and restored to our fatherland. You have enlisted men of all ages and of every condition; I hear that eight thousand slaves are armed. Our number is no less, and it will not cost more to ransom us than it did to purchase them, but if I were to compare ourselves as soldiers with them, I should be offering an insult to the name of Roman. I should think, senators, that in deciding upon a matter like this, you should also take into consideration, if you are disposed to be too severe, to what sort of an enemy you are going to abandon us. Is it to a Pyrrhus, who treated his prisoners as though they were his guests? Is it not rather to a barbarian, and what is worse, a Carthaginian, of whom it is difficult to judge whether he is more rapacious or more cruel? Could you see the chains, the squalor, the disgusting appearance of your fellow-citizens, the sight would, I am

sure, move you no less than if, on the other hand, you beheld your legions lying scattered over the plains of Cannae. You can behold the anxiety and the tears of our kinsmen as they stand in the vestibule of your House and await your reply. If they are in such anxiety and suspense about us and about those who are not here, what, think you, must be the feelings of the men themselves whose life and liberty are at stake? Why, good heavens! even if Hannibal, contrary to his nature, chose to be kind to us, we should still think life not worth living after you had decided that we did not deserve to be ransomed. Years ago the prisoners who were released by Pyrrhus without ransom returned to Rome, but they returned in company with the foremost men of the State who had been sent to effect their ransom. Am I to return to my native country as a citizen not thought worth three hundred coins? Each of us has his own feelings, senators. I know that my life and person are at stake, but I dread more the peril to my good name, in case we depart condemned and repulsed by you; for men will never believe that you grudged the cost."

[22.60]No sooner had he finished than a tearful cry arose from the crowd in the comitium; they stretched their hands towards the Senate-house and implored the senators to give them back their children, their brothers, and their relations. Fear and affection had brought even women amongst the crowd of men who thronged the Forum. After the strangers had withdrawn the debate commenced in the senate. There was great difference of opinion; some said that they ought to be ransomed at the expense of the State, others were of opinion that no public expense ought to be incurred, but they ought not to be prevented from defraying the cost from private sources, and in cases where ready money was not available it should be advanced from the treasury on personal security and mortgages. When it came to the turn of T. Manlius Torquatus, a man of old-fashioned and, some thought, excessive strictness, to give his opinion, he is said to have spoken in these terms: "If the delegates had confined themselves to asking that those who are in the hands of the enemy might be ransomed, I should have stated my opinion in few words without casting reflections on any of them, for all that would have been necessary would be to remind you that you should maintain the custom and usage handed down from our forefathers by setting an example necessary for military discipline. But as it is, since they have almost treated their surrender to the enemy as a thing

to be proud of, and think it right that they should receive more consideration than the prisoners taken in the field or those who reached Venusia and Canusium, or even the consul himself, I will not allow you to remain in ignorance of what actually happened. I only wish that the facts which I am about to allege could be brought before the army at Canusium, which is best able to testify to each man's courage or cowardice, or at least that we had before us P. Sempronius Tuditanus, for if these men had followed him they would at this moment be in the Roman camp, not prisoners in the hands of the foe.

"The enemy had nearly all returned to their camp, tired out with fighting, to make merry over their victory, and these men had the night clear for a sortie. Seven thousand men could easily have made a sortie, even through dense masses of the enemy, but they did not make any attempt to do so on their own initiative, nor would they follow any one else. Nearly the whole night through P. Sempronius Tuditanus was continually warning them and urging them to follow him, whilst only a few of the enemy were watching their camp, whilst all was quiet and silent, whilst the night could still conceal their movements; before it was light they could reach safety and be protected by the cities of our allies. If he had spoken as that military tribune P. Decius spoke in the days of our fathers, or as Calpurnius Flamma, in the first Punic war, when we were young men, spoke to his three hundred volunteers whom he was leading to the capture of a height situated in the very centre of the enemy's position: 'Let us,' he exclaimed, 'die, my men, and by our death rescue our blockaded legions from their peril' - if, I say, P. Sempronius had spoken thus, I should not regard you as men, much less as Romans, if none had come forward as the comrade of so brave a man. But the way he pointed out to you led to safety quite as much as to glory, he would have brought you back to your country, your parents, your wives, and your children. You have not courage enough to save yourselves; what would you do if you had to die for your country? All round you on that day were lying fifty thousand dead, Romans and allies. If so many examples of courage did not inspire you, nothing ever will. If such an awful disaster did not make you hold your lives cheap, none will ever do so. It is whilst you are free men, with all your rights as citizens, that you must show your love for your country, or rather, while it is your country and you are its citizens. Now you are showing that love

too late, your rights forfeited, your citizenship renounced, you have become the slaves of the Carthaginians. Is money going to restore you to the position which you have lost through cowardice and crime? You would not listen to your own countryman Sempronius when he bade you seize your arms and follow him, you did listen shortly afterwards to Hannibal when he bade you give up your arms and betray your camp. But why do I only charge these men with cowardice when I can prove them guilty of actual crime? For not only did they refuse to follow him when he gave them good advice, but they tried to stop him and keep him back, until a body of truly brave men drew their swords and drove back the cowards. P. Sempronius had actually to force his way through his own countrymen before he could do so through the enemy! Would our country care to have such as these for her citizens when, had all those who fought at Cannae been like them, she would not have had amongst them a single citizen worth the name! Out of seven thousand men in arms there were six hundred who had the courage to force their way, and returned to their country free men with arms in their hands. The enemy did not stop these six hundred, how safe the way would have been, do you not think? for a force of almost two legions. You would have to-day, senators, at Canusium 20,000 brave loyal soldiers; but as for these men, how can they possibly be good and loyal citizens? And as to their being 'brave,' they do not even themselves assert that - unless, indeed, some one chooses to imagine that whilst they were trying to stop the others from making the sortie, they were really encouraging them, or that, fully aware that their own timidity and cowardice was the cause of their becoming slaves, they feel no grudge towards the others for having won both safety and glory through their courage. Though they might have got away in the dead of the night, they preferred to skulk in their tents and wait for the daylight and with it the enemy. But you will say, if they lacked courage to leave the camp they had courage enough to defend it bravely; blockaded for several days and nights, they protected the rampart with their arms, and themselves with the rampart; at last, after going to the utmost lengths of endurance and daring, when every support of life failed, and they were so weakened by starvation that they had not strength to bear the weight of their arms, they were in the end conquered by the necessities of nature more than by the force of arms. What are the facts? At daybreak the enemy approached the rampart; within two hours, without trying their fortune in any conflict, they gave up their

arms and themselves. This, you see, was their two days' soldiership. When duty called them to keep their line and fight they fled to their camp, when they ought to have fought at the rampart they surrendered their camp; they are useless alike in the field and in the camp. Am I to ransom you? When you ought to have made your way out of the camp you hesitated and remained there, when it was obligatory for you to remain there and defend the camp with your arms you gave up camp, arms, and yourselves to the enemy. No, senators, I do not think that those men ought to be ransomed any more than I should think it right to surrender to Hannibal the men who forced their way out of the camp through the midst of the enemy and by that supreme act of courage restored themselves to their fatherland."

[22.61]Although most of the senators had relations among the prisoners, there were two considerations which weighed with them at the close of Manlius' speech. One was the practice of the State which from early times had shown very little indulgence to prisoners of war. The other was the amount of money that would be required, for they were anxious that the treasury should not be exhausted, a large sum having been already paid out in purchasing and arming the slaves, and they did not wish to enrich Hannibal who, according to rumour, was in particular need of money. When the melancholy reply was given that the prisoners were not ransomed, the prevailing grief was intensified by the loss of so many citizens, and the delegates were accompanied to the gates by a weeping and protesting crowd. One of them went to his home because he considered himself released from his vow by his pretended return to the camp. When this became known it was reported to the senate, and they unanimously decided that he should be arrested and conveyed to Hannibal under a guard furnished by the State. There is another account extant as to the fate of the prisoners. According to this tradition ten came at first, and there was a debate in the senate as to whether they should be allowed within the City or not; they were admitted on the understanding that the senate would not grant them an audience. As they stayed longer than was generally expected, three other delegates arrived - L. Scribonius, C. Calpurnius, and L. Manlius - and a relative of Scribonius who was a tribune of the plebs made a motion in the senate to ransom the prisoners. The senate decided that they should not be ransomed, and the three who came last returned to Hannibal,

but the ten remained in Rome. They alleged that they had absolved themselves from their oath because after starting on their journey they had returned to Hannibal under the pretext of reviewing the list of the prisoners' names. The question of surrendering them was hotly debated in the senate, and those in favour of this course were beaten by only a few votes. Under the next censors, however, they were so crushed beneath every mark of disgrace and infamy that some of them immediately committed suicide; the others not only avoided the Forum for all their after life, but almost shunned the light of day and the faces of men. It is easier to feel astonishment at such discrepancies amongst our authorities than to determine what is the truth.

How far that disaster surpassed previous ones is shown by one simple fact. Up to that day the loyalty of our allies had remained unshaken, now it began to waver, for no other reason, we may be certain, than that they despaired of the maintenance of our empire. The tribes who revolted to the Carthaginians were the Atellani, the Calatini, the Hirpini, a section of the Apulians, all the Samnite cantons with the exception of the Pentri, all the Bruttii and the Lucanians. In addition to these, the Uzentini and almost the whole of the coast of Magna Graecia, the people of Tarentum Crotona and Locri, as well as all Cisalpine Gaul. Yet, in spite of all their disasters and the revolt of their allies, no one anywhere in Rome mentioned the word "Peace," either before the consul's return or after his arrival when all the memories of their losses were renewed. Such a lofty spirit did the citizens exhibit in those days that though the consul was coming back from a terrible defeat for which they knew he was mainly responsible, he was met by a vast concourse drawn from every class of society, and thanks were formally voted to him because he "had not despaired of the republic." Had he been commander-in-chief of the Carthaginians there was no torture to which he would not have been subjected.

BOOK 23: HANNIBAL AT CAPUA

[23.1]Immediately after the battle of Cannae and the capture and plunder of the Roman camp, Hannibal moved out of Apulia into Samnium, in consequence of an invitation he had received from a man named Statius Trebius, who promised to hand over Compsa to

him if he would visit the territory of the Hirpini. Trebius was a native of Compsa, a man of note amongst his people, but his influence was less than that of the faction of the Mopsii, a family which owed its predominance to the favour and support of Rome. After the report of the battle of Cannae had reached the town, and Trebius was telling everybody that Hannibal was coming, the Mopsian party left the city. It was then peacefully handed over to the Carthaginian and a garrison placed in it. There Hannibal left all his booty and his baggage, and then forming his army into two divisions, gave Mago the command of one and retained the other himself. He gave Mago instructions to receive the submission of the cities in the district which were revolting from Rome and to compel those which were hanging back to revolt, whilst he himself marched through the Campanian district towards the Lower Sea with the view of attacking Neapolis so that he might have a city accessible from the sea. When he entered the confines of Neapolis he placed some of his Numidians wherever he conveniently could in ambuscade, for the roads are mostly deep, with many unseen windings. The others he ordered to ride up to the gates driving ostentatiously before them the plunder they had collected from the fields. As they appeared to be a small and disorganised force, a troop of cavalry came out against them, they were drawn on by the retreating Numidians into the ambuscade and surrounded. Not a man would have escaped had not the proximity of the sea, and some ships, mostly fishing vessels, which they saw not far from the shore, afforded a means of escape to those who were good swimmers. Several young nobles, however, were either taken or killed in the skirmish, amongst them Hegeas, the commandant of the cavalry, who fell whilst following the retreating foe too incautiously. The aspect of the walls deterred the Carthaginian from attacking the city; they by no means offered facilities for an assault.

[23.2] From there he directed his march towards Capua. This city had become demoralised by a long course of prosperity and the indulgence of Fortune, but most of all by the universal corruption produced by the wild excesses of a populace who exercised their liberty without any restraint. Pacuvius Calavius had got the senate of Capua entirely in his own power and that of the populace. He was a noble, and at the same time a favourite with the people, but he had gained his influence and power by resorting to base practices. He happened to be chief magistrate in the year in which the defeat at

Trasumennus occurred, and knowing the hatred which the populace had long felt towards the senate, he thought it highly probable that they would seize their opportunity, create a violent revolution, and, if Hannibal with his victorious army should visit their neighbourhood, murder the senators and hand over Capua to him. Bad as the man was, he was not utterly abandoned, since he preferred to play the autocrat in a commonwealth which was constitutionally sound rather than in one that was ruined, and he knew that no political constitution could be sound where there was no council of state. He embarked on a plan by which he could save the senate and at the same time render it completely subservient to himself and to the populace. He summoned a meeting of the senate and commenced his speech by saying that any idea of a revolt from Rome would have been quite repugnant to him had it not been a necessity, seeing that he had children by the daughter of Appius Claudius and had given his own daughter in marriage to M. Livius in Rome. "But," he went on, "there is a much more serious and formidable danger impending, for the populace are not simply contemplating beginning their revolt from Rome by banishing the senate from the city, they mean to murder the senators and then hand over the city to Hannibal and the Carthaginians. It is in my power to save you from this peril if you will put yourselves in my hands, and, forgetting all our past quarrels, trust me." Overcome by their fears they all placed themselves in his hands. "I will," he then said, "shut you in your House, and whilst appearing myself to participate in their act by approving of designs which I should in vain attempt to oppose, I will discover a way of safety for you. Take any guarantee in this matter which you please." When he had given the guarantee he went out and ordered the doors to be fastened, and left a guard in the vestibule to prevent any one from entering or leaving without his orders.

[23.3]Next, he called an assembly of the people and addressed them thus: "You have often wished, citizens of Capua, that you had the power to execute summary justice on the unscrupulous and infamous senate. You can do so now safely, and none can call you to account. You need not risk your lives in desperate attempts to force the houses of individual senators guarded as they are by their clients and slaves; take them as they now are, locked up in the Senate-house, all by themselves, unarmed. Do not be in a hurry, do nothing rashly. I will put you in a position to pass sentence of life and death so that each

of them in turn may pay the penalty he deserves. But whatever you do see that you do not go too far in satisfying your feelings of resentment, make the security and welfare of the State your first consideration. For, as I understand it, it is these particular senators that you hate, you do not want to go without a senate altogether; for you must either have a king which is an abomination, or a senate, which is the only consultative body that can exist in a free commonwealth. So you have to do two things at once, remove the old senate and choose a fresh one. I shall order the senators to be summoned one by one and I shall take your opinion as to their fate, and whatever decision you arrive at shall be carried out. But before punishment is inflicted on any one found guilty you must choose a strong and energetic man to take his place as senator." He then sat down, and after the names of the senators had been cast into the urn he ordered the man whose name was drawn first to be brought out of the Senate-house. As soon as they heard the name they all shouted that he was a worthless scoundrel and richly deserved to be punished. Then Pacuvius said: "I see clearly what you think of this man, in place of a worthless scoundrel you must choose a worthy and honest man as senator. For a few minutes there was silence as they were unable to suggest a better man. Then one of them, laying aside his diffidence, ventured to suggest a name, and a greater clamour than ever arose. Some said they had never heard of him, others imputed to him shameful vices and humble birth, sordid poverty, and a low class of occupation or trade. A still more violent demonstration awaited the second and third senators who were summoned, and it was obvious that while they intensely disliked the man, they had no one to put in his place. It was no use mentioning the same names again and again, for it only led to everything that was bad being said about them and the succeeding names were those of people much more low born and unknown than those which were first suggested. So the crowd dispersed saying to one another that the evils they were best acquainted with were the easiest to bear.

[23.4]The senate had to thank Pacuvius for its life, and it was much more under his control than under that of the populace. By common consent he now wielded supreme power and needed no armed support. Henceforth the senators, forgetting their rank and independence, flattered the populace, saluted them courteously, invited them as guests, received them at sumptuous banquets,

undertook their cases, always appeared on their side, and when they were trying suits they always decided the actions in a way to secure the favour of the mob. In fact, the proceedings in the senate were exactly as though it had been a popular assembly. The city had always been disposed to luxury and extravagance, not only through the weakness of the character of its citizens, but also through the superabundance of the means of enjoyment and the incitements to every kind of pleasure which land or sea could furnish, and now, owing to the obsequiousness of the nobility and the licence of the populace, it was becoming so demoralised that the sensuality and extravagance which prevailed exceeded all bounds. They treated the laws, the magistrates, the senate with equal contempt, and now after the defeat of Cannae they began to feel contempt for the one thing which they had hitherto held in some respect - the power of Rome. The only circumstances which prevented them from immediately revolting were the old established right of intermarriage which had led to many of their illustrious and powerful families becoming connected with Rome and the fact that several citizens were serving with the Romans. The strongest tie of this nature was the presence of three hundred cavalry, from the noblest families in Capua, in Sicily, whither they had been specially sent by the Roman authorities to garrison the island. The parents and relatives of these troopers succeeded after much difficulty in getting envoys sent to the Roman consul.

[23.5]The consul had not yet started for Canusium; they found him and his scanty, insufficiently armed force still at Venusia, an object calculated to arouse the deepest compassion in trusty allies, and nothing but contempt amongst arrogant and treacherous ones like the Campanians. The consul made matters worse and increased the contempt felt for himself and his fortunes by revealing too plainly and openly the extent of the disaster. When the envoys assured him that the senate and people of Capua were much grieved that any mischance had happened to the Romans and expressed their readiness to supply all that was needed for the war, he replied: "In bidding us requisition from you what we need for the war you have preserved the tone in which we speak to allies instead of suiting your language to the actual state of our circumstances. For what was left us at Cannae that we should wish what is lacking - as though we still possessed something - to be made up by our allies? Are we to ask you

to furnish infantry as though we still possessed any cavalry? Are we to say that we want money, as though that were the only thing we want? Fortune has not even left us anything which we can supplement. Legions, cavalry, arms, standards, men and horses, money, supplies - all have gone either on the battlefield or when the two camps were lost the following day. So then, men of Capua, you have not to help us in the war but almost to undertake the war for us. Call to mind how once when your forefathers were driven in hurried flight within their walls in dread of the Sidicine as well as the Samnite we took them under our protection at Saticula, and how the war which then commenced with the Samnites on your behalf was kept up by us with all its changeful fortunes for nearly a century. Besides all this you must remember that after you had surrendered we gave you a treaty on equal terms, we allowed you to retain your own laws, and - what was, before our defeat at Cannae at all events, the greatest privilege - we granted our citizenship to most of you and made you members of our commonwealth. Under these circumstances, men of Capua, you ought to realise that you have suffered this defeat as much as we have, and to feel that we have a common country to defend. It is not with the Samnites or the Etruscans that we have to do; if they deprived us of our power it would still be Italians who would hold it. But the Carthaginian is dragging after him an army that is not even made up of natives of Africa, he has collected a force from the furthest corners of the earth, from the ocean straits, and the Pillars of Hercules, men devoid of any sense of right, destitute of the condition, and almost of the speech of men. Savage and barbarous by nature and habit, their general has made them still more brutal by building up bridges and barriers with human bodies and - I shudder to say it - teaching them to feed on human flesh. What man, if he were merely a native of Italy, would not be horrified at the thought of looking upon men who feast upon what it is impious even to touch as his lords and masters, looking to Africa and above all to Carthage for his laws, and having to submit to Italy becoming a dependency of the Numidians and the Moors? It will be a splendid thing, men of Capua, if the dominion of Rome, which has collapsed in defeat, should be saved and restored by your loyalty, your strength. I think that in Campania you can raise 30,000 infantry and 4000 cavalry; you have already sufficient money and corn. If you show a loyalty corresponding to your means Hannibal

will not feel that he has conquered or that the Romans are vanquished."

[23.6] After this speech of the consul's, the envoys were dismissed. As they were on their way home, one of their number, Vibius Virrius, told them that the time had come when the Campanians could not only recover the territory wrongfully taken from them by the Romans, but even achieve the dominion over Italy. They could make a treaty with Hannibal on any terms they chose, and there was no disputing the fact that when the war was over and Hannibal after his conquest returned with his army to Africa, the sovereignty over Italy would fall to the Campanians. They all agreed with what Virrius said, and they gave such an account of their interview with the consul as to make everybody think that the very name of Rome was blotted out. The populace and a majority of the senate began at once to prepare for a revolt; it was owing to the exertions of the senior members that the crisis was staved off for a few days. At last the majority carried their point, and the same envoys who had been to the Roman consul were now sent to Hannibal. I find it stated in some annalists that before they started or it was definitely decided to revolt, envoys were sent from Capua to Rome to demand as the condition of their rendering assistance that one consul should be a Campanian, and amidst the indignation which this demand aroused the envoys were ordered to be summarily ejected from the Senate-house, and a lictor told off to conduct them out of the City with orders not to remain a single day on Roman territory. As, however, this demand is too much like one made by the Latins in earlier times, and Caelius amongst others would not have omitted to mention it without good reason, I will not venture to vouch for the truth of the statement.

[23.7] The envoys came to Hannibal and negotiated a peace with him on the following terms: No Carthaginian commander or magistrate was to have any jurisdiction over the citizens of Capua nor was any Campanian citizen to be obliged to serve in any military or other capacity against his will; Capua was to retain its own magistrates and its own laws; and the Carthaginian was to allow them to choose three hundred Romans out of his prisoners of war whom they were to exchange for the Campanian troopers who were serving in Sicily. These were the terms agreed upon, but the Campanians went far beyond the stipulations in their criminal excesses. The populace seized officers in command of our allies and other Roman citizens,

some whilst occupied with their military duties, others whilst engaged in their private business, and ordered them to be shut up in the baths on the presence of keeping them in safe custody; unable to breathe owing to the heat and fumes they died in great agony. Decius Magius was a man who, if his fellow-citizens had been rational, would have gained very great authority with them. He did his best to prevent these crimes and to stop the envoys from going to Hannibal. When he heard that troops were being sent by Hannibal to garrison the city, he protested most earnestly against their being admitted and referred, as warning examples, to the tyranny of Pyrrhus and the wretched servitude into which the Tarentines fell. After they were admitted he urged that they should be expelled, or what was better, if the Capuans wished to clear themselves by a deed which would be remembered from their guilt in revolting from ancient allies and blood-relations, let them put the Carthaginian garrison to death and be once more friends with Rome.

When this was reported to Hannibal - for there was no secrecy about Magius' action - he sent to summon him to his camp. Magius sent a spirited refusal; Hannibal, he said, had no legal authority over a citizen of Capua. The Carthaginian, furious at the rebuff, ordered the man to be thrown into chains and brought to him. Fearing, however, on second thoughts, that the use of force might create a tumult and feelings once aroused might lead to a sudden outbreak, he sent a message to Marius Blossius, the chief magistrate of Capua, that he would be there on the morrow, and started with a small escort for the city. Marius called the people together and gave public notice that they should assemble in a body with their wives and children and go to meet Hannibal. The whole population turned out, not because they were ordered, but because the mob were enthusiastic in favour of Hannibal, and were eager to see a commander famous for so many victories. Decius Magius did not go to meet him, nor did he shut himself up at home, as this might have implied a consciousness of guilt; he strolled leisurely about the Forum with his son and a few of his clients, whilst the whole city was in a state of wild excitement at seeing and welcoming Hannibal. When he had entered the city Hannibal asked that the senate should be convened at once. The leading Campanians, however, implored him not to transact any serious business then, but to give himself up to the joyous celebration of a day which had been made such a happy one by his arrival.

Though he was naturally impulsive in his anger, he would not begin with a refusal, and spent most of the day in viewing the city.

[23.8]He stayed with two brothers, Sthenius and Pacuvius, men distinguished for their high birth and wealth. Pacuvius Calavius, whom we have already mentioned, the leader of the party which brought the city over to the Carthaginians, brought his young son to the house. The youth was closely attached to Decius Magius, and had stood up most resolutely with him for the alliance with Rome and against any terms with the Carthaginians, and neither the changing over of the city to the other side nor the authority of his father had been able to shake his resolution. Pacuvius dragged him away from Magius' side and now sought to obtain Hannibal's pardon for the youth by intercessions rather than by any attempts at exculpation. He was overcome by the father's prayers and tears and went so far as to order him to be invited to a banquet to which none were to be admitted but his hosts and Vibellius Taureas, a distinguished soldier. The banquet began early in the day, and was not at all in accordance with Carthaginian customs or military discipline, but as was natural in a city, still more in a house full of wealth and luxury, the table was furnished with every kind of dainty and delicacy. Young Calavius was the only one who could not be persuaded to drink, though his hosts and occasionally Hannibal invited him; he excused himself on the ground of health, and his father alleged as a further reason his not unnatural excitement under the circumstances. It was nearly sunset when the guests rose. Young Calavius accompanied his father out of the banquet chamber and when they had come to a retired spot in the garden behind the house, he stopped and said: "I have a plan to propose to you, father, by which we shall not only obtain pardon for the Romans for our offence in revolting to Hannibal, but also possess much more influence and prestige in Capua than we have ever done before." When his father asked him in great surprise what his plan was, he threw his toga back from his shoulder and showed him a sword belted on to his side. "Now," he said, "this very moment will I ratify our treaty with Rome in Hannibal's blood. I wanted you to know first, in case you would rather be away when the deed is done."

[23.9]The old man, beside himself with terror at what he saw and heard, as though he were actually witnessing the act his son had spoken of, exclaimed: "I pray and beseech you, my son, by all the sacred bonds which unite parents and children, not to insist upon

doing and suffering everything that is horrible before your father's eyes. It is only a few hours ago that we pledged our faith, swearing by all the gods and joining hand to hand, and do you want us, when we have just separated after friendly talk, to arm those hands, consecrated by such a pledge, against him? Have you risen from the hospitable board to which you were invited by Hannibal with only two others out of all Capua that you may stain that board with your host's blood? I, your father, was able to make Hannibal friendly towards my son, am I powerless to make my son friendly towards Hannibal? But let nothing sacred hold you back, neither the plighted word, nor religious obligation, nor filial affection; dare infamous deeds, if they do not bring ruin as well as guilt upon us. But what then? Are you going to attack Hannibal single-handed? What of that throng of free men and slaves with all their eyes intent on him alone? What of all those right hands? Will they hang down listlessly during that act of madness? Armed hosts cannot bear even to gaze on the face of Hannibal, the Roman people dread it, and will you endure it? Though other help be lacking, will you have the courage to strike me, me your father, when I interpose myself to protect Hannibal? And yet it is through my breast that you must pierce his. Suffer yourself to be deterred here rather than vanquished there. Let my prayers prevail with you as they have already to-day prevailed for you." By this time the youth was in tears, and seeing this, the father flung his arms round him, clung to him with kisses, and persisted in his entreaties until he made his son lay aside his sword and give his word that he would do nothing of the kind. Then the son spoke: "I must pay to my father the dutiful obedience which I owe to my country. I am indeed grieved on your account for you have to bear the guilt of a threefold betrayal of your country; first when you instigated the revolt from Rome, secondly when you urged peace with Hannibal, and now once more when you are the one let and hindrance in the way of restoring Capua to the Romans. Do you, my country, receive this sword with which I armed myself in your defence when I entered the stronghold of the enemy." With these words he flung the sword over the garden wall into the public road, and to allay all suspicions returned to the banqueting room.

[23.10]The following day there was a full meeting of the senate to hear Hannibal. At first his tone was very gracious and winning; he thanked the Capuans for preferring his friendship to alliance with

Rome, and amongst other magnificent promises he assured them that Capua would soon be the head of all Italy and that Rome, in common with all the other nationalities, would have to look to her for their laws. Then his tone changed. There was one man, he thundered, who was outside the friendship of Carthage and the treaty they had made with him, a man that was not, and ought not to be called a Campanian - Decius Magius. He demanded his surrender and asked that this matter should be discussed and a decision arrived at before he left the House. They all voted for surrendering the man, though a great many thought that he did not deserve such a cruel fate and felt that a long step had been taken in the abridgment of their rights and liberties. On leaving the Senate-house Hannibal took his seat on the magistrates' tribunal and ordered Decius Magius to be arrested, brought before him, and put on his defence, alone and unbefriended. The high spirit of the man was still unquelled, he said that by the terms of the treaty this could not be insisted on, but he was at once placed in irons and ordered to be conducted to the camp, followed by a lictor. As long as his head was uncovered he was incessantly haranguing and shouting to the crowds round him: "You have got the liberty, you Campanians, that you asked for. In the middle of the Forum, in the broad daylight, with you looking on, I a man second to none in Capua am being hurried off in chains to death. Could any greater outrage have been committed if the city had been taken? Go and meet Hannibal, decorate your city, make the day of his arrival a public holiday that you may enjoy the spectacle of this triumph over a fellow-citizen! As the mob appeared to be moved by these outbursts, his head was muffled up and orders were given to hurry him more quickly outside the city gate. In this way he was brought into the camp and then at once put on board a ship and sent to Carthage. Hannibal's fear was that if any disturbance broke out in Capua in consequence of such scandalous treatment the senate might repent of having surrendered their foremost citizen, and if they sent to ask for his restoration he would either offend his new allies by refusing the first request they made, or, if he granted it, would have in Capua a fomentor of disorder and sedition. The vessel was driven by a storm to Cyrenae which was then under a monarchy. Here Magius fled for sanctuary to the statue of King Ptolemy, and his guards conveyed him to the King of Alexandria. After he had told him how he had been thrown into chains by Hannibal in defiance of all treaty rights, he was liberated from his fetters and permission

accorded to him to go to Rome or Capua, whichever he preferred. Magius said that he would not be safe at Capua, and as there was at that time war between Rome and Capua, he would be living in Rome more like a deserter than a guest. There was no place where he would sooner live than under the rule of the man whom he had known as the champion and asserter of his freedom.

[23.11] During these occurrences Q. Fabius Pictor returned home from his mission to Delphi. He read the response of the oracle from a manuscript, in which were contained the names of the gods and goddesses to whom supplications were to be made, and the forms to be observed in making them. This was the closing paragraph: "If ye act thus, Romans, your estate will be better and less troubled, your republic will go forward as ye would have it, and the victory in the war will belong to the people of Rome. When your commonwealth is prosperous and safe send to Pythian Apollo a gift from the gains you have earned and honour him with your substance out of the plunder, the booty, and the spoils. Put away from you all wanton and godless living." He translated this from the Greek as he read it, and when he had finished reading he said that as soon as he left the oracle he offered sacrifice with wine and incense to all the deities who were named, and further that he was instructed by the priest to go on board wearing the same laurel garland in which he had visited the oracle and not to lay it aside till he got to Rome. He stated that he had carried out all his instructions most carefully and conscientiously, and had laid the garland on the altar of Apollo. The senate passed a decree that the sacrifices and intercessions which were enjoined should be carefully performed at the earliest opportunity.

During these occurrences in Rome and Italy, Mago, Hamilcar's son, had arrived at Carthage with the news of the victory of Cannae. He had not been sent by his brother immediately after the battle, but had been detained for some days in receiving into alliance Brutian communities as they successively revolted. When he appeared before the senate he unfolded the story of his brother's successes in Italy, how he had fought pitched battles with six commanders-in-chief, four of whom were consuls and two a Dictator and his Master of Horse, and how he had killed about 200,000 of the enemy and taken more than 50,000 prisoners. Out of four consuls two had fallen, of the two survivors one was wounded and the other, after losing the whole of his army, had escaped with fifty men. The Master of the

Horse, whose powers were those of a consul, had been routed and put to flight, and the Dictator, because he had never fought an action, was looked upon as a matchless general. The Bruttians and Apulians, with some of the Samnite and Lucanian communities, had gone over to the Carthaginians. Capua, which was not only the chief city of Campania, but now that the power of Rome had been shattered at Cannae was the head of Italy, had surrendered to Hannibal. For all these great victories he felt that they ought to be truly grateful and public thanksgivings ought to be offered to the immortal gods.

[23.12]As evidence that the joyful tidings he brought were true, he ordered a quantity of gold rings to be piled up in the vestibule of the Senate-house, and they formed such a great heap that, according to some authorities, they measured more than three modii; the more probable account, however, is that they did not amount to more than one modius. He added by way of explanation, to show how great the Roman losses had been, that none but knights, and amongst them only the highest in rank, wore that ornament. The main purport of his speech was that the nearer Hannibal's chances were of bringing the war to a speedy close the more need there was to render him every possible assistance; he was campaigning far from home, in the midst of a hostile country; vast quantities of corn were being consumed and much money expended, and all those battles, whilst they destroyed the armies of the enemy, at the same time wasted very appreciably the forces of the victor. Reinforcements, therefore, must be sent, money must be sent to pay the troops, and supplies of corn to the soldiers who had done such splendid service for Carthage. Amidst the general delight with which Mago's speech was received, Himilco, a member of the Barcine party, thought it a favourable moment for attacking Hanno. "Well, Hanno," he began, "do you still disapprove of our commencing a war against Rome? Give orders for Hannibal to be surrendered, put your veto upon all thanksgivings to the gods after we have received such blessings, let us hear the voice of a Roman senator in the Senate-house of Carthage?"

Then Hanno spoke to the following effect: "Senators, I would have kept silence on the present occasion, for I did not wish on a day of universal rejoicing to say anything which might damp your happiness. But as a senator has asked me whether I still disapprove of the war we have commenced against Rome, silence on my part would show either insolence or cowardice; the one implies forgetfulness of the

respect due to others, the other of one's own self-respect. My reply to Himilco is this: I have never ceased to disapprove of the war, nor shall I ever cease to censure your invincible general until I see the war ended upon conditions that are tolerable. Nothing will banish my regret for the old peace that we have broken except the establishment of a new one. Those details which Mago has proudly enumerated make Himilco and the rest of Hannibal's caucus very happy; they might make me happy too, for a successful war, if we choose to make a wise use of our good fortune, will bring us a more favourable peace. If we let this opportunity slip, when we are in a position to offer rather than submit to terms of peace, I fear that our rejoicing will become extravagant and finally turn out to be groundless. But even now, what is it that you are rejoicing at? 'I have slain the armies of the enemy; send me troops.' What more could you ask for, if you had been defeated? 'I have captured two of the enemy's camps, filled, of course, with plunder and supplies; send me corn and money.' What more could you want if you had been despoiled, stripped of your own camp? And that I may not be the only one to be surprised at your delight - for as I have answered Himilco, I have a perfect right to ask questions in my turn - I should be glad if either Himilco or Mago would tell me, since, you say, the battle of Cannae has all but destroyed the power of Rome and the whole of Italy is admittedly in revolt, whether, in the first place, any single community of the Latin nation has come over to us, and, secondly, whether a single man out of the thirty-five Roman tribes has deserted to Hannibal." Mago answered both questions in the negative. "Then there are still," Hanno continued, "far too many of the enemy left. But I should like to know how much courage and confidence that vast multitude possess."

[23.13]Mago said he did not know. "Nothing," replied Hanno, "is easier to find out. Have the Romans sent any envoys to Hannibal to sue for peace? Has any rumour reached your ears of any one even mentioning the word 'peace' in Rome?" Again Mago replied in the negative. "Well, then," said Hanno, "we have as much work before us in this war as we had on the day when Hannibal first set foot in Italy. Many of us are still alive who can remember with what changeful fortunes the first Punic war was fought. Never did our cause appear to be prospering more by sea and land than immediately before the consulship of C. Lutatius and A. Postumius. But in their

year of office we were utterly defeated off the Aegates. But if (which heaven forbid!) fortune should now turn to any extent, do you hope to obtain when you are defeated a peace which no one offers to give you now that you are victorious? If any one should ask my opinion about offering or accepting terms of peace I would say what I thought. But if the question before us is simply whether Mago's demands should be granted, I do not think that we are concerned with sending supplies to a victorious army, much less do I consider that they ought to be sent if we are being deluded with false and empty hopes." Very few were influenced by Hanno's speech. His well-known dislike of the Barcas deprived his words of weight and they were too much preoccupied with the delightful news they had just heard to listen to anything which would make them feel less cause for joy. They fancied that if they were willing to make a slight effort the war would soon be over. A resolution was accordingly passed with great enthusiasm to reinforce Hannibal with 4000 Numidians, 40 elephants, and 500 talents of silver. Bostar also was sent with Mago into Spain to raise 20,000 infantry and 4000 cavalry to make good the losses of the armies in Italy and Spain.

[23.14]As usual, however, in seasons of prosperity, these measures were executed with great remissness and dilatoriness. The Romans, on the other hand, were kept from being dilatory by their native energy and still more by the necessities of their position. The consul did not fail in any single duty which he had to perform, nor did the Dictator show less energy. The force now available comprised the two legions which had been enrolled by the consuls at the beginning of the year, a levy of slaves and the cohorts which had been raised in the country of Picenum and Cisalpine Gaul. The Dictator decided to still further increase his strength by adopting a measure to which only a country in an almost hopeless state could stoop, when honour must yield to necessity. After duly discharging his religious duties and obtaining the necessary permission to mount his horse, he published an edict that all who had been guilty of capital offences or who were in prison for debt and were willing to serve under him would by his orders be released from punishment and have their debts cancelled. 6000 men were raised in this way, and he armed them with the spoils taken from the Gauls and which had been carried in the triumphal procession of C. Flaminius. He then started from the City with 25,000 men. After taking over Capua, and making another fruitless

appeal to the hopes and fears of Neapolis, Hannibal marched into the territory of Nola. He did not at once treat it in a hostile manner as he was not without hope that the citizens would make a voluntary surrender, but if they delayed, he intended to leave nothing undone which could cause them suffering or terror. The senate, especially its leading members, were faithful supporters of the Roman alliance, the populace as usual were all in favour of revolting to Hannibal; they conjured up the prospect of ravaged fields and a siege with all its hardships and indignities; nor were there wanting men who were actively instigating a revolt. The senate were afraid that if they openly opposed the agitation they would not be able to withstand the popular excitement, and they found a means of putting off the evil day by pretending to go with the mob. They represented that they were in favour of revolting to Hannibal, but nothing was settled as to the conditions on which they were to enter into a new treaty and alliance. Having thus gained time, they sent delegates in great haste to Marcellus Claudius the praetor, who was with his army at Casilinum, to inform him of the critical position of Nola, how their territory was in Hannibal's hand, and the city would be in the possession of the Carthaginians unless it received succour. and how the senate, by telling the populace that they might revolt when they pleased. had made them less in a hurry to do so. Marcellus thanked the delegates and told them to adhere to the same policy and postpone matters till he arrived. He then left Casilinum for Caiatia and from there he marched across the Vulturnus, through the districts of Saticula and Trebia, over the hills above Suessula, and so arrived at Nola.

[23.15]On the approach of the Roman praetor the Carthaginian evacuated the territory of Nola and marched down to the coast close to Neapolis, as he was anxious to secure a seaport town to which there might be a safe passage for ships coming from Africa. When, however, he learnt that Neapolis was held by a Roman officer, M. Junius Silanus, who had been invited by the Neapolitans, he left Naples, as he had left Nola, and went to Nuceria. He spent some time in investing the place, often attacking it, and often making tempting proposals to the chief men of the place and to the leaders of the populace, but all to no purpose. At last famine did its work, and he received the submission of the town, the inhabitants being allowed to depart without arms and with one garment apiece. Then,

to keep up his character of being friendly to all the Italian nationalities except the Romans, he held out honours and rewards to those who consented to remain in his service. Not a single man was tempted by the prospect; they all dispersed, wherever they had friends, or wherever each man's fancy led him, amongst the cities of Campania, mainly Nola and Neapolis. About thirty of their senators, and, as it happened, their principal ones, endeavoured to enter Capua, but were refused admission because they had closed their gates against Hannibal. They accordingly went on to Cumae. The plunder of Nuceria was given to the soldiers, the city itself was burnt.

Marcellus retained his hold on Nola quite as much by the support of its leading men as by the confidence he felt in his troops. Fears were entertained as to the populace and especially L. Bantius. This enterprising young man was at that time almost the most distinguished among the allied cavalry, but the knowledge that he had attempted revolt and his fear of the Roman praetor were driving him on to betray his country or, if he found no means of doing that, to become a deserter. He had been discovered lying half-dead on a heap of bodies on the field of Cannae, and after being taken the utmost care of, Hannibal sent him home loaded with presents. His feelings of gratitude for such kindness made him wish to place the government of Nola in the hands of the Carthaginian, and his anxiety and eagerness for a revolution attracted the observation of the praetor. As it was necessary either to restrain the youth by punishment or to win him by kindness, the praetor chose the latter course, preferring to secure such a brave and enterprising youth as a friend rather than to lose him to the enemy. He invited him to come and see him and spoke to him most kindly. "You can easily understand," he told him, "that many of your countrymen are jealous of you, from the fact that not a single citizen of Nola has pointed out to me your many distinguished military services. But the bravery of a man who has served in a Roman camp cannot be hidden. Many of your fellow-soldiers tell me what a young hero you are, and how many perils and dangers you have undergone in defence of the safety and honour of Rome. I am told that you did not give up the struggle on the field of Cannae until you were buried almost lifeless, beneath a falling mass of men and horses and arms. May you long live to do still more gallant deeds! With me you will gain every honour and reward, and you will find that the more you are in my company the

more will it lead to your profit and promotion." The young man was delighted with these promises. The praetor made him a present of a splendid charger and authorised the quaestor to pay him 500 silver coins; he also instructed his lictors to allow him to pass whenever he wished to see him.

[23.16]The high-spirited youth was so completely captivated by the attention Marcellus paid him that for the future none among the allies of Rome gave her more efficient or more loyal help. Hannibal once more moved his camp from Nuceria to Nola, and when he appeared before its gates the populace again began to look forward to revolting. As the enemy approached Marcellus retired within the walls, not because he feared for his camp, but because he would not give any opportunity to the large number of citizens who were bent on betraying their city. Both armies now began to prepare for battle; the Romans before the walls of Nola and the Carthaginians in front of their camp. Slight skirmishes took place between the city and the camp with varying success, as the generals would not prohibit their men from going forward in small parties to offer defiance to the enemy nor would they give the signal for a general action. Day after day the two armies took up their respective stations in this way, and during this time the leading citizens of Nola informed Marcellus that nocturnal interviews were taking place between the populace and the Carthaginians, and that it had been arranged that when the Roman army had passed out of the gates they should plunder their baggage and kits, then close the gates and man the walls so that having become masters of their city and government they might forthwith admit the Carthaginians instead of the Romans.

On receiving this information Marcellus warmly thanked the Nolan senators and made up his mind to try the fortune of a battle before any disturbances arose in the city. He formed his army into three divisions and stationed them at the three gates which faced the enemy, he ordered the baggage to follow close behind, and the camp-servants, sutlers, and disabled soldiers were to carry stakes. At the centre gate he posted the strongest part of the legions and the Roman cavalry, at the two on either side he stationed the recruits, the light infantry, and the cavalry of the allies. The Nolans were forbidden to approach the walls or gates and a special reserve was placed in charge of the baggage to prevent any attack upon it whilst the legions were engaged in the battle. In this formation they remained standing inside

the gates. Hannibal had his troops drawn up for battle, as he had had for several days, and remained in this position till late in the day. At first it struck him with surprise that the Roman army did not move outside the gates and that not a single soldier appeared on the walls. Then, supposing that the secret interviews had been betrayed and that his friends were afraid to move, he sent back a portion of his troops to their camp with orders to bring all the appliances for attacking the town as soon as possible to the front of the line. He felt fairly confident that if he attacked them whilst thus hesitating the populace would raise some disturbance in the town. Whilst his men were hurrying up to the front ranks, each to his allotted task, and the whole line was approaching the walls, Marcellus ordered the gates to be suddenly flung open, the attack sounded, and the battle shout raised; the infantry, followed by the cavalry, were to attack with all the fury possible. They had already carried enough confusion and alarm into the enemies' centre when P. Valerius Flaccus and C. Aurelius, divisional commanders, burst out from the other two gates and charged. The sutlers and camp-servants and the rest of the troops who were guarding the baggage joined in the shouting, and this made the Carthaginians, who had been despising the fewness of their numbers, think that it was a large army. I would hardly venture to assert, as some authorities do, that 2800 of the enemy were killed, and that the Romans did not lose more than 500. But whether the victory was as great as that or not, I do not think that an action more important in its consequences was fought during the whole war, for it was more difficult for those who conquered to escape being defeated by Hannibal than it was afterwards to conquer him.

[23.17]As there was no hope of his getting possession of Nola, Hannibal withdrew to Acerrae. No sooner had he departed than Marcellus shut the gates and posted guards to prevent any one from leaving the city. He then opened a public inquiry in the forum into the conduct of those who had been holding secret interviews with the enemy. Above seventy were found guilty of treason and beheaded and their property confiscated. Then, after handing the government over to the senate, he left with his entire force and took up a position above Suessula, where he encamped. At first the Carthaginian tried to persuade the men of Acerrae to make a voluntary surrender, but when he found that their loyalty remained unshaken he made preparations for a siege and an assault. The Acerrans possessed more

courage than strength, and when they saw that the blockade was being carried round their walls and that it was hopeless to attempt any further defence, they decided to escape before the enemies' line of circumvallation was closed, and stealing away in the dead of night through any unguarded gaps in the earthworks they fled, regardless of roads or paths, as chance or design led them. They escaped to those cities of Campania which they had every reason to believe had not changed their allegiance. After plundering and burning Acerrae Hannibal marched to Casilinum in consequence of information he received of the Dictator's march on Capua with his legions. He was apprehensive that the proximity of the Roman army might create a counter-revolution in Capua. At that time Casilinum was held by 500 Praenestines with a few Roman and Latin troops, who had gone there when they heard of the disaster at Cannae. The levy at Praeneste had not been completed by the appointed day, and these men started from home too late to be of use at Cannae. They reached Casilinum before news of the disaster arrived, and, joined by Romans and allies, they advanced in great force. Whilst on the march they heard of the battle and its result and returned to Casilinum. Here, suspected by the Campanians and fearing for their own safety, they passed some days in forming and evading plots. When they were satisfied that Capua was in revolt and that Hannibal would be admitted, they massacred the townsmen of Casilinum at night and took possession of the part of the city on this side of the Volturnus - the river divides the city in two - and held it as a Roman garrison. They were joined also by a cohort of Perusians numbering 460 men who were driven to Casilinum by the same intelligence that sent the Praenestines there a few days previously. The force was quite adequate for the small circuit of walls, protected, too, as they were on one side by the river, but the scarcity of corn made even that number appear too large.

[23.18]When Hannibal was now not far from the place he sent on in advance a troop of Gaetulians under an officer named Isalca, to try and get a parley with the inhabitants and persuade them by fair words to open their gates and admit a Carthaginian detachment to hold the town. If they refused, they were to use force and make an attack, wherever it seemed feasible, on the place. When they approached the walls the town was so silent that they thought it was deserted, and taking it for granted that the inhabitants had fled through fear they began to force the gates and break down the bars. Suddenly the gates

were thrown open and two cohorts which had been standing inside ready for action dashed out and made a furious charge, utterly discomfiting the enemy. Maharbal was sent with a stronger force to their assistance, but even he was unable to withstand the impetuosity of the cohorts. At last Hannibal pitched his camp before the walls, and made preparations for assaulting the little town and its small garrison with the combined strength of his entire army. After completing the circle of his investing lines he began to harass and annoy the garrison, and in this way lost some of his most daring soldiers who were hit with missiles from the wall and turrets. On one occasion when the defenders were taking the aggressive in a sortie he nearly cut them off with his elephants and drove them in hasty flight into the city; the loss, considering their numbers, was quite severe enough, and more would have fallen had not night intervened. The next day there was a general desire to begin the assault. The enthusiasm of the men had been kindled by the offer of a "mural crown" of gold and also by the way in which the general himself remonstrated with the men who had taken Saguntum for their slackness in attacking a little fortress situated in open country, and also reminded them one and all of Cannae, Trasumennus, and the Trebia. The vineae were brought up and mines commenced, but the various attempts of the enemy were opposed with equal strength and skill by the defenders, the allies of Rome; they created defences against the vineae, intercepted their mines with counter-mines, and met all their attacks above ground or below with steady resistance until at last Hannibal for very shame gave up his project. He contented himself with fortifying his camp and leaving a small force to defend it, so that it might not be supposed that the siege was entirely abandoned; after which he settled in Capua as his winter quarters.

There he kept his army under shelter for the greater part of the winter. A long and varied experience had inured that army to every form of human suffering, but it had not been habituated to or had any experience of ease and comfort. So it came about that the men whom no pressure of calamity had been able to subdue fell victims to a prosperity too great and pleasures too attractive for them to withstand, and fell all the more utterly the more greedily they plunged into new and untried delights. Sloth, wine, feasting, women, baths, and idle lounging, which became every day more seductive as they

became more habituated to them, so enervated their minds and bodies that they were saved more by the memory of past victories than by any fighting strength they possessed now. Authorities in military matters have regarded the wintering at Capua as a greater mistake on the part of Hannibal than his not marching straight to Rome after his victory at Cannae. For his delay at that time might be looked upon as only postponing his final victory but this may be considered as having deprived him of the strength to win victory. And it certainly did look as if he left Capua with another army altogether; it did not retain a shred of its former discipline. A large number who had become entangled with women went back there, and as soon as they took to tents again and the fatigue of marching and other military toils had to be endured their strength and spirits alike gave way just as though they were raw recruits. From that time all through the summer campaign a large number left the standards without leave, and Capua was the only place where the deserters sought to hide themselves.

[23.19]However, when the mild weather came, Hannibal led his army out of their winter quarters and marched back to Casilinum. Although the assault had been suspended, the uninterrupted investment had reduced the townsfolk and the garrison to the extremity of want. Tiberius Sempronius Gracchus was in command of the Roman camp, as the Dictator had to leave for Rome to take the auspices afresh. Marcellus was equally anxious to assist the besieged garrison, but he was detained by the Vulturnus being in flood, and also by the entreaties of the people of Nola and Acerrae who feared the Campanians in case the Romans withdrew their protection. Gracchus simply watched Casilinum, for the Dictator had given strict orders that no active operations should be undertaken in his absence. He therefore kept quiet, though the reports from Casilinum might easily have been too much for any man's patience. It was stated as a fact that some, unable to endure starvation any longer, had flung themselves from the walls, others had stood there unarmed and exposed their defenceless bodies to the missiles of the enemy. These tidings sorely tried his patience, for he durst not fight against the Dictator's orders, and he saw that he would have to fight if he were seen getting corn into the place, and there was no chance of getting it in without being seen. He gathered in a supply of corn from all the fields round and filled a number of casks with it, and

then sent a messenger to the chief magistrate at Casilinum asking him to pick up the casks which the river carried down. The next night, while all were intently watching the river, after their hopes had been raised by the Roman messenger, the casks floated down in the middle of the stream; and the corn was divided in equal shares amongst them all. The same thing happened on the two following days; they were sent off by night and reached their destination; so far they had escaped the notice of the enemy. Then, owing to the perpetual rain, the river became more rapid than usual and the cross currents carried the casks to the bank which the enemy were guarding. They caught sight of them as they stuck amongst the osier beds which grew on the bank and a report was made to Hannibal in consequence of which greater caution was observed and a closer watch was kept, so that nothing could be sent by the Volturnus to the city without being detected. Nuts, however, were scattered on the river from the Roman camp; these floated down the mid-stream and were caught in baskets. At last things came to such a pitch that the inhabitants tried to chew the leather straps and hides which they tore from their shields, after softening them in boiling water, nor did they refuse mice and other animals; they even dug up from the bottom of their walls grass and roots of all sorts. When the enemy had ploughed up all the grass outside the walls they sowed it with rape, which made Hannibal exclaim: "Am I to sit here before Casilinum until these seeds have grown?" and whereas he had never allowed any terms of surrender to be mentioned in his hearing, he now consented to proposals for the ransom of all the freeborn citizens. The price agreed upon was seven ounces of gold for each person. When their liberty was guaranteed they surrendered, but were kept in custody till all the gold was paid, then in strict observance of the terms they were released. This is much more likely to be true than that after they had left cavalry were sent after them and put them all to death. The great majority were Praenestines. Out of the 570 who formed the garrison not less than half had perished by sword and famine, the rest returned in safety to Praeneste with their commanding officer, M. Anicius, who had formerly been a notary. To commemorate the event his statue was set up in the forum of Praeneste, wearing a coat of mail with a toga over it and having the head veiled. A bronze plate was affixed with this inscription: "Marcus Anicius has discharged the vow he made for the safety of the garrison of Casilinum." The same

inscription was affixed to the three images standing in the temple of Fortune.

[23.20]The town of Casilinum was given back to the Campanians, and a garrison of 700 men from Hannibal's army was placed in it in case the Romans should attack it after Hannibal's departure. The senate decreed that double pay and an exemption for five years from further service should be granted to the Praenestine troops. They were also offered the full Roman citizenship, but they preferred not to change their status as citizens of Praeneste. There is more obscurity as to what happened to the Perusians, as there is no light thrown upon it by any monument of their own or any decree of the senate. The people of Petelia, who alone of all the Bruttii had remained friendly to Rome, were now attacked not only by the Carthaginians, who were overrunning that district, but also by the rest of the Bruttii who had adopted the opposite policy. Finding themselves helpless in the presence of all these dangers, they sent envoys to Rome to ask for support. The senate told them that they must look after themselves, and on hearing this they broke into tears and entreaties and flung themselves on the floor of the vestibule. Their distress excited the deep sympathy of both senate and people, and the praetor, M. Aemilius asked the senators to reconsider their decision. After making a careful survey of the resources of the empire, they were compelled to admit that they were powerless to protect their distant allies. They advised the envoys to return home and now that they had proved their loyalty to the utmost they must adopt such measures as their present circumstances demanded. When the result of their mission was reported to the Petelians, their senate was so overcome by grief and fear that some were in favour of deserting the city and seeking refuge wherever they could, others thought that as they had been abandoned by their old allies they had better join the rest of the Bruttii and surrender to Hannibal. The majority, however, decided that no rash action should be taken, and that the question should be further debated. When the matter came up the next day a calmer tone prevailed and their leading statesmen persuaded them to collect all their produce and possessions from the fields and put the city and the walls into a state of defence.

[23.21]About this time despatches arrived from Sicily and Sardinia. The one sent from T. Otacilius, the propraeor commanding in Sicily, was read in the senate. It stated in effect that P. Furius had reached

Lilybaeum with his fleet; that he himself was seriously wounded and his life in great danger; that the soldiers and sailors had no pay or corn given them from day to day, nor was there any means of procuring any, and he strongly urged that both should be sent as soon as possible, and that, if the senate agreed, one of the new praetors should be sent to succeed him. The despatch from A. Cornelius Mammula dealt with the same difficulty as to pay and corn. The same reply was sent to both; there was no possibility of sending either, and they were instructed to make the best arrangements they could for their fleets and armies. T. Otacilius sent envoys to Hiero, the one man whom Rome could fall back upon, and received in reply as much money as he needed and a six months' supply of corn. In Sicily the allied cities sent generous contributions. Even in Rome, too, the scarcity of money was felt and a measure was carried by M. Minucius, one of the tribunes of the plebs, for the appointment of three finance commissioners. The men appointed were: L. Aemilius Papus, who had been consul and censor; M. Atilius Regulus, who had been twice consul, and L. Scribonius Libo, one of the tribunes of the plebs. Marcus and Caius Atilius, two brothers, were appointed to dedicate the temple of Concord which L. Manlius had vowed during his praetorship. Three new pontiffs were also chosen - Q. Caecilius Metellus, Q. Fabius Maximus, and Q. Fulvius Flaccus - in the place of P. Scantinius who had died, and of L. Aemilius Paulus, the consul, and Q. Aelius Paetus, both of whom fell at Cannae.

[23.22]When the senate had done their best - so far as human wisdom could do so - to make good the losses which Fortune had inflicted in such an uninterrupted series of disasters, they at last turned their attention to the emptiness of the Senate-house and the small number of those who attended the national council. There had been no revision of the roll of the senate since L. Aemilius and C. Flaminius were censors, though there had been such heavy losses amongst the senators during the last five years on the field of battle, as well as from the fatalities and accidents to which all are liable. In compliance with the unanimous wish, the subject was brought forward by the praetor, M. Aemilius, in the absence of the Dictator, who after the loss of Casilinum had rejoined the army. Sp. Carvilius spoke at considerable length about the dearth of senators, and also the very small number of citizens from whom senators could be chosen. He went on to say that for the purpose of filling up the vacancies, and

also of strengthening the union between the Latins and Rome, he should strongly urge that the full citizenship be granted to two senators out of each Latin city, to be approved by the senate, and that these men should be chosen into the senate in the place of those who had died. The senate listened to these proposals with quite as much impatience as they had previously felt at the demand of the Latins. A murmur of indignation went through the House. T. Manlius in particular was heard asserting that there was even still one man of the stock to which that consul belonged who once in the Capitol threatened that he would kill with his own hand any Latin whom he saw sitting in the senate. Q. Fabius Maximus declared that no proposal had ever been mooted in the senate at a more inopportune time than this; it had been thrown out at a moment when the sympathies of their allies were wavering and their loyalty doubtful, and it would make them more restless than ever; those rash inconsiderate words uttered by one man ought to be stifled by the silence of all men. Whatever secret or sacred matter had at any time imposed silence on that House, this most of all must be concealed, buried, forgotten, considered as never having been uttered. All further allusion to the subject was accordingly suppressed. It was ultimately decided to nominate as Dictator a man who had been censor before, and was the oldest man living who had held that office, in order that the roll of senators might be revised. C. Terentius was recalled to nominate the Dictator. Leaving a garrison in Apulia he returned to Rome by forced marches, and the night after his arrival nominated, in accordance with ancient custom M. Fabius Buteo to act as Dictator for six months without any Master of the Horse.

[23.23]Accompanied by his lictors, Fabius mounted the rostra and made the following speech: "I do not approve of there being two Dictators at the same time, a thing wholly unprecedented, nor of there being a Dictator without a Master of the Horse, nor of the censorial powers being entrusted to one individual and that for the second time, nor of the supreme authority being placed in the hands of a Dictator for six months unless he has been created to wield executive powers. These irregularities may perhaps be necessary at this juncture, but I shall fix a limit to them. I shall not remove from the roll any of those whom C. Flaminius and L. Aemilius, the last censors, placed on it, I shall simply order their names to be transcribed and read out, as I do not choose to allow the power of

judging and deciding upon the reputation or character of a senator to rest with any single individual. I shall fill up the places of those who are dead in such a way as to make it clear that preference is given to rank and not to persons." After the names of the old senate had been read out, Fabius began his selection. The first chosen were men who, subsequent to the censorship of L. Aemilius and C. Flaminius, had filled a curule office, but were not yet in the senate, and they were taken according to the order of their previous appointments. They were followed by those who had been aediles, tribunes of the plebs, or quaestors. Last of all came those who had not held office, but had the spoils of an enemy set up in their houses or had received a "civic crown." In this way names were added to the senatorial roll, amidst general approbation. Having completed his task he at once laid down his Dictatorship and descended from the rostra as a private citizen. He ordered the lictors to cease their attendance and mingled with the throng of citizens who were transacting their private business, deliberately idling his time away in order that he might not take the people out of the Forum to escort him home. The public interest in him, however, did not slacken through their having to wait, and a large crowd escorted him to his house. The following night the consul made his way back to the army, without letting the senate know, as he did not want to be detained in the City for the elections.

[23.24]The next day the senate, on being consulted by M. Pomponius, the praetor, passed a decree to write to the Dictator, asking him, if the interests of the State permitted, to come to Rome to conduct the election of fresh consuls. He was to bring with him his Master of the Horse and M. Marcellus, the praetor, so that the senate might learn from them on the spot in what condition the affairs of the Republic were, and form their plans accordingly. On receiving the summons they all came, after leaving officers in command of the legions. The Dictator spoke briefly and modestly about himself; he gave most of the credit to Tiberius Sempronius Gracchus, his Master of the Horse, and then gave notice of the elections. The consuls elected were L. Postumius for the third time - he was elected in his absence, as he was then administering the province of Gaul - and Ti. Sempronius Gracchus, Master of the Horse, and at that time curule aedile also. Then the praetors were elected. They were M. Valerius Laevinus, for the second time, Appius Claudius Pulcher, Q. Fulvius Flaccus, and Q. Mucius Scaevola. After

the various magistrates had been elected the Dictator returned to his army in winter quarters at Teanum. The Master of the Horse was left in Rome; as he would be entering upon office in a few days, it was desirable for him to consult the senate about the enrolment and equipment of the armies for the year.

While these matters were engrossing attention a fresh disaster was announced, for Fortune was heaping one disaster upon another this year. It was reported that L. Postumius, the consul elect, and his army had been annihilated in Gaul. There was a wild forest called by the Gauls Litana, and through this the consul was to conduct his army. The Gauls cut through the trees on both sides of the road in such a way that they remained standing as long as they were undisturbed, but a slight pressure would make them fall. Postumius had two Roman legions, and he had also levied a force from the country bordering on the Upper Sea, sufficiently large to bring the force with which he entered the hostile territory up to 28,000 men. The Gauls had posted themselves round the outskirts of the forest, and as soon as the Roman army entered they pushed the sawn trees on the outside, these fell upon those next to them, which were tottering and hardly able to stand upright, until the whole mass fell in on both sides and buried in one common ruin arms and men and horses. Hardly ten men escaped, for when most of them had been crushed to death by the trunks or broken branches of the trees, the remainder, panic-struck at the unexpected disaster, were killed by the Gauls who surrounded the forest. Out of the whole number only very few were made prisoners, and these, whilst trying to reach a bridge over the river, were intercepted by the Gauls who had already seized it. It was there that Postumius fell whilst fighting most desperately to avoid capture. The Boii stripped the body of its spoils and cut off the head, and bore them in triumph to the most sacred of their temples. According to their custom they cleaned out the skull and covered the scalp with beaten gold; it was then used as a vessel for libations and also as a drinking cup for the priest and ministers of the temple. The plunder, too, which the Gauls secured was as great as their victory, for although most of the animals had been buried beneath the fallen trees, the rest of the booty, not having been scattered in flight, was found strewn along the whole line where the army lay.

[23.25]When the news of this disaster arrived the whole community was in such a state of alarm that the shops were shut up and a solitude

like that of night pervaded the City. Under these circumstances the senate instructed the aediles to make a round of the City and order the citizens to re-open their shops and lay aside the aspect of public mourning. Ti. Sempronius then convened the senate, and addressed them in a consolatory and encouraging tone. "We," he said, "who were not crushed by the overthrow at Cannae must not lose heart at smaller calamities. If we are successful, as I trust we shall be, in our operations against Hannibal and the Carthaginians, we can safely leave the war with the Gauls out of account for the present; the gods and the Roman people will have it in their power to avenge that act of treachery. It is with regard to the Carthaginians and the armies with which the war is to be carried on that we have now to deliberate and decide." He first gave details as to the strength of infantry and cavalry, and the proportion in each of Roman and allied troops, which made up the Dictator's army; Marcellus followed with similar details as to his own force. Then inquiry was made of those who were acquainted with the facts as to the strength of the force with C. Terentius Varro in Apulia. No practical method suggested itself for bringing up the two consular armies to sufficient strength for such an important war. So in spite of the justifiable resentment which was generally felt they decided to discontinue the campaign in Gaul for that year. The Dictator's army was assigned to the consul. It was decided that those of Marcellus' troops who were involved in the flight from Cannae should be transported to Sicily to serve there as long as the war continued in Italy. All the least efficient in the Dictator's army were also to be removed there, no period of service being fixed in their case, except that they must each serve out their time. The two legions raised in the City were allocated to the other consul who should succeed L. Postumius; and it was arranged that he should be elected as soon as favourable auspices could be obtained. The two legions in Sicily were to be recalled at the earliest possible moment, and the consul to whom the legions from the City had been assigned was to take out of those what men he required. C. Terentius had his command extended for another year, and no reduction was to be made in the army with which he was protecting Apulia.

[23.26]Whilst these preparations were going on in Italy, the war in Spain was being carried on with as much energy as ever and, so far, in favour of the Romans. The two Scipios, Publius and Cnaeus, had

divided their forces between them, Cnaeus was to operate on land and Publius by sea. Hasdrubal, the Carthaginian commander, did not feel himself strong enough in either arm, and kept himself safe by taking up strong positions at a distance from the enemy; until, in response to his many earnest appeals for reinforcements, 4000 infantry and 1000 cavalry were sent to him from Africa. Then, recovering his confidence, he moved nearer the enemy, and gave orders for the fleet to be put into readiness to protect the islands and the coast. In the very middle of his preparations for a fresh campaign he was dismayed by news of the desertion of the naval captains. After they had been heavily censured for their cowardice in abandoning the fleet at the Ebro they had never been very loyal either to their general or to the cause of Carthage. These deserters had started an agitation amongst the tribe of the Tartesii and had induced several cities to revolt, and one they had actually taken by storm. The war was now diverted from the Romans to this tribe, and Hasdrubal entered their territories with an invading army. Chalbus, a distinguished general amongst them, was encamped with a strong force before the walls of a city which he had captured a few days before, and Hasdrubal determined to attack him. He sent forward skirmishers to draw the enemy into an engagement and told off a part of his cavalry to lay waste the surrounding country and pick up stragglers. There was confusion in the camp and panic and bloodshed in the fields, but when they had regained the camp from all directions their fears so suddenly left them that they became emboldened, not only to defend their camp, but even to take the aggressive against the enemy. They burst in a body out of their camp, executing war dances after their manner, and this unexpected daring on their part carried terror into the hearts of the enemy, who had shortly before been challenging them. Hasdrubal thereupon withdrew his force to a fairly lofty hill, which was also protected by a river which served as a barrier. He retired his skirmishers and his scattered cavalry also to this same position. Not, however, feeling sufficiently protected by either hill or river he strongly entrenched himself. Several skirmishes took place between the two sides who were alternately frightening and fearing each other, and the Numidian trooper proved to be no match for the Spaniard, nor were the darts of the Moor very effective against the ox-hide shields of the natives, who were quite as rapid in their movements and possessed more strength and courage.

[23.27]When they found that though they rode up to the Carthaginian lines they could not entice the enemy into action, whilst an attack upon the camp was a far from easy matter, they successfully assaulted the town of Ascuá, where Hasdrubal had stored his corn and other supplies on entering their territories, and became masters of all the country round. Now there was no longer any discipline amongst them, whether on the march or in camp. Hasdrubal soon became aware of this, and seeing that success had made them careless, he urged his men to attack them whilst they were scattered away from their standards; he himself meanwhile descended from the hill and marched with his men in attack formation straight to their camp. News of his approach was brought by men rushing in from the look-out stations and outposts and there was a general call to arms. As each man seized his weapons he hurried with the others into battle, without order or formation, or word of command or standards. The foremost of them were already engaged, whilst others were still running up in small groups and some had not yet left the camp. Their reckless daring, however, at first checked the enemy, but soon, finding that whilst loose and scattered themselves, they were charging an enemy in close formation, and that their scanty numbers imperilled their safety, they looked round at one another, and as they were being repulsed in every direction they formed a square. Standing close together with their shields touching they were gradually driven into such a close mass that they had hardly room to use their weapons, and for a great part of the day were simply cut down by the enemy who completely surrounded them. A very few cut their way out and made for the woods and hills. The camp was abandoned in the same panic and the whole tribe made their surrender the following day. But they did not remain quiet long, for just after this battle an order was received from Carthage for Hasdrubal to lead his army as soon as he could into Italy. This became generally known throughout Spain and the result was that there was a universal feeling in favour of Rome. Hasdrubal at once sent a despatch to Carthage pointing out what mischief the mere rumour of his departure had caused, and also that if he did really leave Spain it would pass into the hands of the Romans before he crossed the Ebro. He went on to say that not only had he neither a force nor a general to leave in his place, but the Roman generals were men whom he found it difficult to oppose even when his strength was equal to theirs. If, therefore, they were at all anxious to retain Spain they should send a man with a

powerful army to succeed him, and even though all went well with his successor he would not find it an easy province to govern.

[23.28]Although this despatch made a great impression on the senate, they decided that as Italy demanded their first and closest attention, the arrangements about Hannibal and his forces must not be altered. Himilco was sent with a large and well-appointed army and an augmented fleet to hold and defend Spain by sea and land. As soon as he had brought his military and naval forces across he formed an entrenched camp, hauled his ships up on the beach and surrounded them with a rampart. After providing for the safety of his force he started with a picked body of cavalry, and marching as rapidly as possible, and being equally on the alert whether passing through doubtful or through hostile tribes, succeeded in reaching Hasdrubal. After laying before him the resolutions and instructions of the senate and being in his turn shown in what way the war was to be managed in Spain, he returned to his camp. He owed his safety most of all to the speed at which he travelled, for he had got clear of each tribe before they had time for any united action. Before Hasdrubal commenced his march, he levied contributions on all the tribes under his rule, for he was quite aware that Hannibal had secured a passage through some tribes by paying for it, and had obtained his Gaulish auxiliaries simply by hiring them. To commence such a march without money would hardly bring him to the Alps. The contributions were therefore hurriedly called in and after receiving them he marched down to the Ebro. When the resolutions of the Carthaginians and Hasdrubal's march were reported to the Roman generals, the two Scipios at once put aside all other matters and made preparations to meet him at the outset with their joint forces and stop his further progress. They believed that if Hannibal, who single-handed was almost too much for Italy, were joined by such a general as Hasdrubal and his Spanish army it would mean the end of the Roman empire. With so much to make them anxious they concentrated their forces at the Ebro and crossed the river. They deliberated for some considerable time as to whether they should meet him, army against army, or whether it would be enough for them to hinder his proposed march by attacking the tribes in alliance with the Carthaginians. The latter plan seemed the best, and they made preparations for attacking a city which from its proximity to the river was called Hibera, the wealthiest city in that country. As

soon as Hasdrubal became aware of this, instead of going to the assistance of his allies he proceeded to attack a city which had recently put itself under the protection of Rome. On this the Romans abandoned the siege which they had begun and turned their arms against Hasdrubal himself.

[23.29]For some days they remained encamped at a distance of about five miles from each other, and though frequent skirmishes took place there was no general action. At last on the same day, as though by previous agreement, the signal was given on both sides and they descended with their entire forces on to the plain. The Roman line was in three divisions. Some of the light infantry were posted between the leading ranks of the legions, the rest amongst those behind; the cavalry closed the wings. Hasdrubal strengthened his centre with his Spaniards, on the right wing he posted the Carthaginians, on the left the Africans and the mercenaries, the Numidian horse he stationed in front of the Carthaginian infantry, and the rest of the cavalry in front of the Africans. Not all the Numidian horse, however, were on the right wing, but only those who were trained to manage two horses at the same time like circus-riders and, when the battle was at the hottest, were in the habit of jumping off the wearied horse on to the fresh one, such were the agility of the riders and the docility of the horses.

These were the dispositions on each side, and whilst the two armies were standing ready to engage, their commanders felt almost equally confident of victory, for neither side was much superior to the other either in the numbers or the quality of the troops. With the men themselves it was far otherwise. Though the Romans were fighting far away from their homes their generals had no difficulty in making them realise that they were fighting for Italy and for Rome. They knew that it hung upon the issue of that fight whether they were to see their homes again or not, and they resolutely determined either to conquer or to die. The other army possessed nothing like the same determination, for they were most of them natives of Spain and would rather be defeated in Spain than win the victory and be dragged to Italy. At the first onset, almost before they had hurled their javelins, the centre gave ground, and when the Romans came on in a tremendous charge they turned and fled. The brunt of the fighting now fell upon the wings; the Carthaginians pressed forward on the right, the Africans on the left, and slowly wheeling round

attacked the advancing Roman infantry on both flanks. But the whole force had now concentrated on the centre, and forming front in both directions beat back the attack on their flanks. So two separate actions were going on. The Romans, having already repulsed Hasdrubal's centre, and having the advantage as regarded both the numbers and the strength of their men, proved themselves undoubtedly superior on both fronts. A very large number of the enemy fell in these two attacks, and had not their centre taken to hasty flight almost before the battle began, very few would have survived out of their whole army. The cavalry took no part whatever in the fighting, for no sooner did the Moors and Numidians see the centre of the line giving way than they fled precipitately, leaving the wings exposed, and even driving the elephants before them. Hasdrubal waited to see the final issue of the battle and then escaped out of the slaughter with a few followers. The camp was seized and plundered by the Romans. This battle secured for Rome all the tribes who were wavering and deprived Hasdrubal of all hopes of taking his army to Italy or even of remaining with anything like safety in Spain. When the contents of the despatch from the Scipios was made known in Rome, the gratification felt was not so much on account of the victory as that Hasdrubal's march into Italy was at an end.

[23.30] During these incidents in Spain, Petelia in Bruttium was taken by Himilco, one of Hannibal's lieutenants, after a siege which lasted several months. That victory cost the Carthaginians heavy losses in both killed and wounded, for the defenders only yielded after they had been starved out. They had consumed all their corn and eaten every kind of animal whether ordinarily used as food or not, and at last kept themselves alive by eating leather and grass and roots and the soft bark of trees and leaves picked from shrubs. It was not until they had no longer strength to stand on the walls or to bear the weight of their armour that they were subdued. After the capture of Petelia the Carthaginian marched his army to Consentia. The defence here was less obstinate and the place surrendered in a few days. About the same time an army of Bruttians invested the Greek city of Croton. At one time this city had been a military power, but it had been overtaken by so many and such serious reverses that its whole population was now reduced to less than 2000 souls. The enemy found no difficulty in gaining possession of a city so denuded of defenders; the citadel alone was held, after some had sought refuge

there from the massacre and confusion which followed the capture of the city. Locri also went over to the Bruttians and Carthaginians after the aristocracy of the city had betrayed the populace. The people of Rhegium alone in all that country remained loyal to the Romans and kept their independence to the end.

The same change of feeling extended to Sicily and even the house of Hiero did not altogether shrink from deserting Rome. Gelo, the eldest son of the family, treating with equal contempt his aged father and the alliance with Rome, after the defeat of Cannae, went over to the Carthaginians. He was arming the natives and making friendly overtures to the cities in alliance with Rome and would have brought about a revolution in Sicily had he not been removed by the hand of death, a death so opportune that it cast suspicion even on his father. Such were the serious occurrences in Italy, Africa, Sicily, and Spain during the year (216 B.C.). Towards the close of the year Q. Fabius Maximus asked the senate to allow him to dedicate the temple of Venus Erycina which he had vowed when Dictator. The senate passed a decree that Tiberius Sempronius the consul-elect should immediately upon his entering office propose a resolution to the people that Q. Fabius be one of the two commissioners appointed to dedicate the temple. After the death of M. Aemilius Lepidus, who had been augur and twice consul, his three sons, Lucius, Marcus, and Quintus, celebrated funeral games in his honour for three days and exhibited twenty-two pairs of gladiators in the Forum. The curule aediles, C. Laetorius and Ti. Sempronius Gracchus, consul elect, who during his aedileship had been Master of the Horse, celebrated the Roman Games; the celebration lasted three days. The Plebeian Games given by the aediles Marcus Aurelius Cotta and Marcus Claudius Marcellus were solemnised three times. The third year of the Punic war had run its course when Ti. Sempronius entered on his consulship on March 15. The praetors were Q. Fulvius Flaccus, who had been previously censor and twice consul, and M. Valerius Laevinus; the former exercised jurisdiction over citizens, the latter over foreigners. App. Claudius Pulcher had the province of Sicily allotted to him, Q. Mucius Scaevola that of Sardinia. The people made an order investing M. Marcellus with the powers of a proconsul, because he was the only one out of the Roman commanders who had gained any successes in Italy since the disaster at Cannae.

[23.31]The first day the senate met for business at the Capitol they passed a decree that the war-tax for that year should be doubled, and that half the whole amount should be collected at once to furnish pay for all the soldiers, except those who had been present at Cannae. As regarded the armies they decreed that Ti. Sempronius should fix a day on which the two City legions were to muster at Cales, and that they should march from there to Claudius' camp above Suessula. The legions there, mostly made up from the army which fought at Cannae, were to be transferred by App. Claudius Pulcher to Sicily and the legions in Sicily were to be brought to Rome. M. Claudius Marcellus was sent to take command of the army which had been ordered to assemble at Cales and he received orders to conduct it to Claudius' camp. Ti. Maecilius Croto was sent by App. Claudius to take over the old army and conduct it to Sicily. At first people waited in silent expectation for the consul to hold an Assembly for the election of a colleague, but when they saw that M. Marcellus, whom they particularly wished to have as consul this year after his brilliant success as praetor, was kept out of the way, murmurs began to be heard in the Senate-house. When the consul became aware of this he said, "It is to the interest of the State, senators, that M. Claudius has gone into Campania to effect the exchange of armies, and it is equally to the interest of the State that notice of election should not be given until he has discharged the commission entrusted to him and returned home, so that you may have for your consul the man whom the circumstances of the republic call for and whom you most of all wish for." After this nothing more was said about the election till Marcellus returned.

Meanwhile the two commissioners were appointed for the dedication of temples: T. Otacilius Crassus dedicated the temple to Mens, Q. Fabius Maximus the one to Venus Erycina. Both are on the Capitol, separated only by a water channel. In the case of the three hundred Campanian knights, who after loyally serving their time in Sicily had now come to Rome, a proposal was made to the people that they should receive the full rights of Roman citizenship and should be entered on the roll of the burghers of Cumae, reckoning from the day previous to the revolt of the Campanians from Rome. The main reason for this proposal was their declaration that they did not know to what people they belonged, as they had abandoned their old country and had not yet been admitted as citizens into that to which

they had returned. On Marcellus' return from the army notice was given of the election of a consul in the place of L. Postumius. Marcellus was elected by a quite unanimous vote in order that he might take up his magistracy at once. Whilst he was assuming the duties of the consulship thunder was heard; the augurs were summoned and gave it as their opinion that there was some informality in his election. The patricians spread a report that as that was the first time that two plebeian consuls were elected together, the gods were showing their displeasure. Marcellus resigned his office and Q. Fabius Maximus was appointed in his place; this was his third consulship. This year the sea appeared to be on fire; at Sinuessa a cow brought forth a colt; the statues in the temple of Juno Sospita at Lanuvium sweated blood and a shower of stones fell round the temple. For this portent there were the usual nine days' religious observances; the other portents were duly expiated.

[23.32]The consuls divided the armies between them; the army at Teanum which M. Junius the Dictator had been commanding passed to Fabius, Sempronius took command of the volunteer slaves there and 25,000 troops furnished by the allies; the legions which had returned from Sicily were assigned to M. Valerius the praetor; M. Claudius was sent to the army which was in camp above Suessa to protect Nola; the praetors went to their respective provinces in Sicily and Sardinia. The consuls issued a notice that whenever the senate was summoned the senators and all who had the right of speaking in the senate should meet at the Capena gate. The praetors whose duty it was to hear cases set up their tribunals near the public bathing place and ordered all litigants to answer to their recognisances at that place, and there they administered justice during the year. In the meanwhile the news was brought to Carthage that things had gone badly in Spain and that almost all the communities in that country had gone over to Rome. Mago, Hannibal's brother, was preparing to transport to Italy a force of 12,000 infantry, 1500 cavalry, and 20 elephants, escorted by a fleet of 60 warships. On the receipt of this news, however, some were in favour of Mago, with such a fleet and army as he had, going to Spain instead of Italy, but whilst they were deliberating there was a sudden gleam of hope that Sardinia might be recovered. They were told that "there was only a small Roman army there, the old praetor, A. Cornelius, who knew the province well, was leaving and a fresh one was expected; the Sardinians, too, were tired of their long

subjection, and during the last twelve months the government had been harsh and rapacious and had crushed them with a heavy tax and an unfair exaction of corn. Nothing was wanting but a leader to head their revolt. "This report was brought by some secret agents from their leaders, the prime mover in the matter being Hampsicora, the most influential and wealthy man amongst them at that time. Perturbed by the news from Spain, and at the same time elated by the Sardinian report, they sent Mago with his fleet and army to Spain and selected Hasdrubal to conduct the operations in Sardinia, assigning to him a force about as large as the one they had furnished to Mago.

After they had transacted all the necessary business in Rome the consuls began to prepare for war. Ti. Sempronius gave his soldiers notice of the date when they were to assemble at Sinuessa, and Q. Fabius, after previously consulting the senate, issued a proclamation warning every one to convey the corn from their fields into the fortified cities by the first day of the following June, all those who failed to do so would have their land laid waste, their farms burnt, and they themselves would be sold into slavery. Even the praetors who had been appointed to administer the law were not exempted from military duties. It was decided that Valerius should be sent to Apulia to take over the army from Terentius: when the legions came from Sicily he was to employ them mainly for the defence of that district and send the army of Terentius under one of his lieutenants to Tarentum. A fleet of twenty-five vessels was also supplied him for the protection of the coast between Brundisium and Tarentum. A fleet of equal strength was assigned to Q. Fulvius, the praetor in charge of the City, for the defence of the coast near Rome. C. Terentius, as proconsul, was commissioned to raise a force in the territory of Picenum to defend that part of the country. Lastly, T. Otacilius Crassus was despatched to Sicily, after he had dedicated the temple of Mens, with full powers as propractor to take command of the fleet.

[23.33] This struggle between the most powerful nations in the world was attracting the attention of all men, kings and peoples alike, and especially of Philip, the King of Macedon, as he was comparatively near to Italy, separated from it only by the Ionian Sea. When he first heard the rumour of Hannibal's passage of the Alps, delighted as he was at the outbreak of war between Rome and Carthage, he was still undecided, till their relative strength had been tested, which of the

two he would prefer to have the victory. But after the third battle had been fought and the victory rested with the Carthaginians for the third time, he inclined to the side which Fortune favoured and sent ambassadors to Hannibal. Avoiding the ports of Brundisium and Tarentum which were guarded by Roman ships, they landed near the temple of Juno Lacinia. Whilst traversing Apulia on their way to Capua they fell into the midst of the Roman troops who were defending the district, and were conducted to Valerius Laevinus, the praetor, who was encamped near Luceria. Xenophanes, the head of the legation, explained, without the slightest fear or hesitation, that he had been sent by the king to form a league of friendship with Rome, and that he was conveying his instructions to the consuls and senate and people. Amidst the defection of so many old allies, the praetor was delighted beyond measure at the prospect of a new alliance with so illustrious a monarch, and gave his enemies a most hospitable reception. He assigned them an escort, and pointed out carefully what route they should take, what places and passes were held by the Romans and what by the enemy. Xenophanes passed through the Roman troops into Campania and thence by the nearest route reached Hannibal's camp. He made a treaty of friendship with him on these terms: King Philip was to sail to Italy with as large a fleet as possible - he was, it appears, intending to fit out two hundred ships - and ravage the coast, and carry on war by land and sea to the utmost of his power; when the war was over the whole of Italy, including Rome itself, was to be the possession of the Carthaginians and Hannibal, and all the plunder was to go to Hannibal; when the Carthaginians had thoroughly subdued Italy they were to sail to Greece and make war upon such nations as the king wished; the cities on the mainland and the islands lying off Macedonia were to form part of Philip's kingdom.

[23.34] These were, in effect, the terms on which the treaty was concluded between the Carthaginian general and the King of Macedon. On their return the envoys were accompanied by commissioners sent by Hannibal to obtain the king's ratification of the treaty: they were Gisgo, Bostar, and Mago. They reached the spot near the temple of Juno Lacinia, where they had left their ship moored in a hidden creek, and set sail for Greece. When they were out to sea they were descried by the Roman fleet which was guarding the Calabrian coast. Valerius Flaccus sent some light boats to chase

and bring back the strange vessel. At first the king's men attempted flight, but finding that they were being overhauled they surrendered to the Romans. When they were brought before the admiral of the fleet he questioned them as to who they were, where they had come from, and whither they were sailing. Xenophanes, who had so far been very lucky, began to make up a tale; he said that he had been sent by Philip to Rome and had succeeded in reaching M. Valerius, as he was the only person he could get to safely; he had not been able to go through Campania as it was beset by the enemy's troops. Then the Carthaginian dress and manner of Hannibal's agents aroused suspicion, and on being questioned their speech betrayed them. Their comrades were at once taken aside and terrified by threats, a letter from Hannibal to Philip was discovered, and also the articles of agreement between the King of Macedon and the Carthaginian general. When the investigation was completed, it seemed best to carry the prisoners and their companions as soon as possible to the senate at Rome or to the consuls, wherever they were. Five of the swiftest ships were selected for the purpose and L. Valerius Antias was placed in charge of the expedition with instructions to distribute the envoys amongst the ships under guard and to be careful that no conversation was allowed amongst them or any communication of plans.

During this time A. Cornelius Mammula on leaving his province made a report on the condition of Sardinia. All, he said, were contemplating war and revolt; Q. Mucius, who had succeeded him, had been affected by the unhealthy climate and impure water and had fallen into an illness which was tedious rather than dangerous, and would make him for some considerable time unfit to bear the responsibilities of war. The army, too, which was quartered there, though strong enough for the occupation of a peaceable province, was quite inadequate for the war which seemed likely to break out. The senate made a decree that Q. Fulvius Flaccus should raise a force of 5000 infantry and 400 cavalry and arrange for its immediate transport to Sardinia, and further that he should send whom he considered the most suitable man, invested with full powers, to conduct operations until Mucius recovered his health. He selected T. Manlius Torquatus, who had been twice consul as well as censor, and during his consulship had subdued the Sardinians. About the same time a Carthaginian fleet which had been despatched to Sardinia

under the command of Hasdrubul, surnamed "the Bald," was caught in a storm and driven on the Balearic Isles. So much damage was caused, not only to the rigging but also to the hulls, that the vessels were hauled ashore and a considerable time was spent in repairing them.

[23.35]In Italy the war had been less vigorously conducted since the battle of Cannae; for the strength of the one side was broken and the temper of the other enervated. Under these circumstances the Campanians made an attempt by themselves to become masters of Cumae. They first tried persuasion, but as they could not succeed in inducing them to revolt from Rome, they decided to employ stratagem. All the Campanians held a sacrificial service at stated intervals at Hamae. They informed the Cumans that the Campanian senate was going there, and they asked the Cuman senate also to be present in order to come to a common understanding, so that both peoples might have the same allies and the same enemies. They also promised that they would have an armed force there, to guard against any danger from either Romans or Carthaginians. Although the Cumans suspected a plot, they made no difficulty about going, for they thought that by thus consenting they would be able to conceal a maneuver of their own. The consul Tiberius Sempronius had in the meanwhile purified his army at Sinuessa, the appointed rendezvous, and after crossing the Vulturnus pitched his camp near Liternum. As there was nothing for them to do in camp, he put his men through frequent war maneuvers to accustom the recruits, most of whom were volunteer slaves, to follow the standards and know their places in the ranks when in action. In carrying out these exercises, the general's main object - and he had given similar instructions to the officers - was that there should be no class-feeling in the ranks, through the slaves being twitted with their former condition; the old soldiers were to regard themselves as on a perfect equality with the recruits, the free men with the slaves; all to whom Rome had entrusted her standards and her arms were to be regarded as equally honourable, equally well-born; Fortune had compelled them to adopt this state of things, and now that it was adopted she compelled them to acquiesce to it. The soldiers were quite as anxious to obey these instructions as the officers were to enforce them, and in a short time the men had become so fused together that it was almost forgotten

what condition of life each man had been in before he became a soldier.

While Gracchus was thus occupied messengers from Cumae informed him of the proposals made by the Campanians a few days previously and of their reply, and that the festival was to be held in three days' time, when not only the whole senate would be there but also the Campanian army in camp. Gracchus gave the Cumans orders to remove everything from their fields into the city and to remain within their walls, whilst he himself moved his camp to Cumae the day before the Campanians were to perform their sacrifice. Hamae was about three miles distant. The Campanians had already, as arranged, assembled there in large numbers and not far away Marius Alfius, the "Medixtuticus" (the chief magistrate of the Campanians), was secretly encamped with 14,000 troops, but he was more intent on making preparations for the sacrifice and the stratagem he was to execute during its performance than on fortifying his camp or any other military duty. The ceremonial took place at night and was over by midnight. Gracchus thought this the best time for his purpose, and after stationing guards at the camp gate to prevent any one from conveying information of his design, he ordered his men to refresh themselves and get what sleep they could at four o'clock in the afternoon so that they might be ready to assemble round the standards as soon as it was dark. About the first watch he ordered the advance to be made and the army marched in silence to Hamae, which they reached at midnight. The Campanian camp, as might be expected during a nocturnal festival, was negligently guarded, and he made a simultaneous attack on all sides of it. Some were slain whilst stretched in slumber, others whilst returning unarmed after the ceremony. In the confusion and terror of the night more than 2000 men were killed, including their general, Marius Alfius, and 34 standards seized.

[23.36]After getting possession of the enemies' camp with a loss of less than 100 men, Gracchus speedily retired, fearing an attack from Hannibal, who had his camp at Tifata, overlooking Capua. Nor were his anticipations groundless. No sooner had the news of the disaster reached Capua than Hannibal, expecting to find at Hamae an army, composed mostly of raw recruits and slaves, wildly delighted at their victory, despoiling their vanquished foes and carrying off the plunder, hurried on with all speed past Capua, and ordered all the Campanian

fugitives he met to be escorted to Capua and the wounded to be carried there in wagons. But when he got to Hamae he found the camp abandoned, nothing was to be seen but the traces of the recent slaughter and the bodies of his allies lying about everywhere. Some advised him to march straight to Cumae and attack the place. Nothing would have suited his wishes better for, after his failure to secure Neapolis, he was very anxious to get possession of Cumae that he might have one maritime city at all events. As, however, his soldiers in their hurried march had brought nothing with them beyond their arms he returned to his camp on Tifata. The next day, yielding to the importunities of the Campanians, he marched back to Cumae with all the necessary appliances for attacking the city, and after effectually devastating the neighbourhood, fixed his camp at the distance of one mile from the place. Gracchus still remained in occupation of Cumae, more because he was ashamed to desert the allies who were imploring his protection and that of the Roman people than because he felt sufficiently assured as to his army. The other consul, Fabius, who was encamped at Cales, did not venture to cross the Volturnus; his attention was occupied first with taking fresh auspices and then with the portents which were being announced one after another, and which the soothsayers assured him would be very difficult to avert.

[23.37] Whilst these causes kept Fabius from moving, Sempronius was invested, and the siege works were now actually in operation. A huge wooden tower on wheels had been brought up against the walls and the Roman consul constructed another still higher upon the wall itself, which was fairly high and which served as a platform, after he had placed stout beams across. The besieged garrison protected the walls of the city by hurling stones and sharpened stakes and other missiles from their tower; at last when they saw the other tower brought up to the walls they flung blazing brands over it and caused a large fire. Terrified by the conflagration the crowd of soldiers in it flung themselves down and at the same moment a sortie was made from two of the gates, the outposts of the enemy were overpowered and driven in flight to their camp, so that for that day the Carthaginians were more like a besieged than a besieging force. As many as 1300 Carthaginians were killed and 59 taken prisoners who had been surprised while standing careless and unconcerned round the walls or at the outposts, and least of all fearing a sortie. Before

the enemy had time to recover from their panic Gracchus gave the signal to retire and withdrew with his men inside the walls. The following day, Hannibal, expecting that the consul, elated with his success, would be prepared to fight a regular battle, formed his line on the ground between his camp and the city; when, however, he saw that not a single man moved from his usual post of defence and that no risks were being taken through rash confidence, he returned to Tifata without accomplishing anything. Just at the time when the siege of Cumae was raised Ti. Sempronius, surnamed "Longus," fought a successful action with the Carthaginian Hanno at Grumentum in Lucania. Over 2000 were killed, 280 men and 41 military standards were captured. Driven out of Lucania, Hanno retreated to Bruttium. Amongst the Hirpini, also, three towns which had revolted from Rome, Vercellium, Vescellium, and Sicilinum, were retaken by the praetor M. Valerius, and the authors of the revolt beheaded. Over 5000 prisoners were sold, the rest of the booty was presented to the soldiers, and the army marched back to Luceria.

[23.38] During these incidents amongst the Lucanians and Hirpini, the five ships which were carrying the Macedonian and Carthaginian agents to Rome, after sailing almost round the whole of Italy in their passage from the upper to the lower sea were off Cumae, when Gracchus, uncertain whether they belonged to friends or foes, sent vessels from his own fleet to intercept them. After mutual questionings those on board learnt that the consul was at Cumae. The vessels accordingly were brought into the harbour and the prisoners were brought before the consul and the letters placed in his hands. He read the letters of Philip and Hannibal through and sent everything under seal by land to the senate, the agents he ordered to be taken by sea. The letters and the agents both reached Rome the same day, and when it was ascertained that what the agents said in their examination agreed with the letters, the senate were filled with very gloomy apprehensions. They recognised what a heavy burden a war with Macedon would impose upon them at a time when it was all they could do to bear the weight of the Punic war. They did not, however, so far give way to despondency as not to enter at once upon a discussion as to how they could divert the enemy from Italy by themselves commencing hostilities against him. Orders were given for the agents to be kept in chains and their companions to be sold as slaves; they also decided to equip twenty vessels in addition to the

twenty-five which P. Valerius Flaccus already had under his command. After these had been fitted out and launched, the five ships which had carried the agents were added and thirty vessels left Ostia for Tarentum. Publius Valerius was instructed to place on board the soldiers which had belonged to Varro's army and which were now at Tarentum under the command of L. Apustius, and with his combined fleet of fifty-five vessels he was not only to protect the coast of Italy but try to obtain information about the hostile attitude of Macedon. If Philip's designs should prove to correspond to the captured despatches and the statements of the agents, he was to write to Marcus Valerius, the praetor, to that effect and then, after placing his army under the command of L. Apustius, go to the fleet at Tarentum and sail across to Macedonia at the first opportunity and do his utmost to confine Philip within his own dominions. A decree was made that the money which had been sent to Appius Claudius in Sicily to be returned to King Hiero should now be devoted to the maintenance of the fleet and the expenses of the Macedonian war, and it was conveyed to Tarentum through L. Antistius. Two hundred thousand modii of wheat and barley were sent at the same time by King Hiero.

[23.39] While these various steps were being taken, one of the captured ships which were on their way to Rome escaped during the voyage to Philip, and he then learnt that his agents had been captured together with his despatches. As he did not know what understanding they had come to with Hannibal, or what proposals Hannibal's agents were bringing to him, he despatched a second embassy with the same instructions. Their names were Heraclitus, surnamed Scotinus, Crito of Boeotia, and Sositheus the Magnesian. They accomplished their mission successfully, but the summer passed away before the king could attempt any active measures. So important was the seizure of that one ship with the king's agents on board in delaying the outbreak of the war which now threatened Rome! Fabius at last succeeded in expiating the portents and crossed the Vulturnus; both consuls now resumed the campaign round Capua. Combulteria, Trebula, and Austicula, all of which had revolted to Hannibal, were successfully attacked by Fabius, and the garrisons which Hannibal had placed in them as well as a large number of Campanians were made prisoners. At Nola, the senate were on the side of the Romans, as they had been the year before, and the populace, who were on the side of Hannibal,

were hatching secret plots for the murder of the aristocrats and the betrayal of the city. To prevent them from carrying out their intentions Fabius marched between Capua and Hannibal's camp on Tifata and established himself in Claudius' camp overlooking Suessula. From there he sent M. Marcellus, who was propraetor, with the force under his command to occupy Nola.

[23.40]The active operations in Sardinia which had been dropped owing to the serious illness of Q. Mucius were resumed under the direction of T. Manlius. He hauled ashore his war-ships and furnished the seamen and rowers with arms, so that they might be available for service on land; with these and the army he had taken over from the praetor he made up a force of 22,000 infantry and 1200 cavalry. With this combined force he invaded the hostile territory and fixed his camp at no great distance from Hampsicora's lines. Hampsicora himself happened to be absent; he had paid a visit to the Pelliti-Sardinians in order to arm the younger men amongst them so as to increase his own strength. His son Hostus was in command and in the impetuosity of youth he rashly offered battle, with the result that he was defeated and put to flight. 3000 Sardinians were killed in that battle and 800 taken alive; the rest of the army after wandering in their flight through fields and woods heard that their general had fled to a place called Cornus, the chief town of the district, and thither they directed their flight. That battle would have finished the war had not the Carthaginian fleet under Hasdrubal, which had been driven by a storm down to the Balearic Isles, arrived in time to revive their hopes of renewing the war. When Manlius heard of its arrival he retired upon Carales, and this gave Hampsicora an opportunity of forming a junction with the Carthaginian. Hasdrubal disembarked his force and sent the ships back to Carthage, and then, under Hampsicora's guidance, proceeded to harry and waste the land belonging to the allies of Rome. He would have gone as far as Carales if Manlius had not met him with his army and checked his widespread ravages. At first the two camps faced each other, with only a small space between; then small sorties and skirmishes took place with varying results; at last it came to a battle, a regular action, which lasted for four hours. For a long time the Carthaginians made the issue doubtful, the Sardinians, who were accustomed to defeat, being easily beaten, but at last when they saw the whole field covered with dead and flying Sardinians they too gave way, but when they turned to flee

the Roman wing which had routed the Sardinians wheeled round and hemmed them in. Then it was more of a massacre than a battle. 12,000 of the enemy, Sardinians and Carthaginians, were slain, about 3700 were made prisoners, and 27 military standards were captured.

[23.41]What more than anything else made the battle glorious and memorable was the capture of the commander-in-chief, Hasdrubal, and also of Hanno and Mago, two Carthaginian nobles. Mago was a member of the house of Barca, a near relative of Hannibal; Hanno had taken the lead in the Sardinian revolt and was unquestionably the chief instigator of the war. The battle was no less famous for the fate which overtook the Sardinian generals; Hampsicora's son, Hostus, fell on the field, and when Hampsicora, who was fleeing from the carnage with a few horsemen, heard of his son's death, he was so crushed by the tidings, coming as it did on the top of all the other disasters, that in the dead of night, when none could hinder his purpose, he slew himself with his own hand. The rest of the fugitives found shelter as they had done before in Cornus, but Manlius leading his victorious troops against it effected its capture in a few days. On this the other cities which had espoused the cause of Hampsicora and the Carthaginians gave hostages and surrendered to him. He imposed upon each of them a tribute of money and corn; the amount was proportioned to their resources and also to the share they had taken in the revolt. After this he returned to Carales. There the ships which had been hauled ashore were launched, the troops he had brought with him were re-embarked, and he sailed for Rome. On his arrival he reported to the senate the complete subjugation of Sardinia, and made over the money to the quaestors, the corn to the aediles, and the prisoners to Q. Fulvius, the praetor.

During this time T. Otacilius had crossed with his fleet from Lilybaeum to the coast of Africa and was ravaging the territory of Carthage, when rumours came to him that Hasdrubal had recently sailed from the Balearic Isles to Sardinia. He set sail for that island and fell in with the Carthaginian fleet returning to Africa. A brief action followed on the high seas in which Otacilius took seven ships with their crews. The rest dispersed in a panic far and wide, as though they had been scattered by a storm. It so happened at this time that Bomilcar arrived at Locri with reinforcements of men and elephants and also with supplies. Appius Claudius intended to surprise him, and with this view he led his army hurriedly to Messana as though he were

going to make a circuit of the province, and finding the wind and tide favourable, crossed over to Locri. Bomilcar had already left to join Hanno in Bruttium and the Locrians shut their gates against the Romans; Appius after all his efforts achieved no results and returned to Messana. This same summer Marcellus made frequent excursions from Nola, which he was holding with a garrison, into the territory of the Hirpini and in the neighbourhood of Samnite Caudium. Such utter devastation did he spread everywhere with fire and sword that he revived throughout Samnium the memory of her ancient disasters.

[23.42]Both nations sent envoys simultaneously to Hannibal, who addressed him thus: "We have been the enemies of Rome, Hannibal, from very early times. At first we fought her in our own might as long as our arms, our strength, sufficed to protect us. When we could trust them no more we took our place by the side of King Pyrrhus; when we were abandoned by him we were compelled to accept terms of peace and by those terms we stood for almost fifty years, down to the time of your arrival in Italy. It was your conspicuous courtesy and kindness towards our fellow-countrymen who were your prisoners and whom you sent back to us, quite as much as your courage and success, which have so won our hearts that as long as you, our friend, are safe and prosperous we should not fear - I do not say the Romans, but - even the wrath of heaven, if I may say so without irreverence. But, good heavens! while you are not only safe and victorious but actually here amongst us, when you could almost hear the shrieks of our wives and children and see our blazing houses, we have suffered such repeated devastations this summer that it would seem as if M. Marcellus and not Hannibal had been the victor at Cannae, and as if the Romans had good cause to boast that you have only strength enough for one blow, and that like a bee that has left its sting you are now inert and powerless. For a hundred years we have been at war with Rome and no general, no army from without, has come to our aid save for the two years when Pyrrhus used our soldiers to increase his strength rather than use his strength to defend us. I will not boast of our successes - the two consuls with their armies whom we sent under the yoke, and all the other fortunate or glorious events which we can recall. The trials and sufferings we then went through can be recounted with less bitter feelings than those which are happening today. Then great Dictators with their Masters of the Horse would invade our borders, two consuls and two consular armies found it

necessary to act together against us, and they took every precaution, careful scouting, reserves duly posted, their army in order of battle, when they ravaged our country; now we are the prey of a solitary propractor and a small garrison at Nola! They do not even march in military detachments, but they scour the whole of our country like brigands and more carelessly than if they were roaming about on Roman ground. The reason is simply this: you do not defend us, and our soldiery who could protect us if they were at home are all serving under your standards. I should be utterly ignorant of you and your army if I did not think it an easy task for the man, by whom to my knowledge so many Roman armies have been routed and laid low, to crush these plunderers of our country while they are roving about in disorder and wandering wherever any one is led by hopes of plunder, however futile such hopes may be. They will be the prey of a few Numidians, and you will relieve both us and Nola of its garrison if only you count the men whom you thought worthy of your alliance still worthy of your protection."

[23.43]To all this Hannibal replied: "You Samnites and Hirpini are doing everything at once; you point out your sufferings and ask for protection and complain of being unprotected and neglected. But you ought to have first made your representations, then asked for protection, and if you did not obtain it then only should you have complained that you had sought help in vain. I shall not lead my army into the country of the Hirpini and Samnites because I do not want to be a burden to you, but I shall march into those districts belonging to the allies of Rome which are nearest to me. By plundering these I shall satisfy and enrich my soldiers and shall frighten the enemy sufficiently to make him leave you alone. As to the war with Rome, if Trasumennus was a more famous battle than the Trebia, if Cannae was more famous than Trasumennus, I shall make even the memory of Cannae fade in the light of a greater and more brilliant victory." With this reply and with munificent presents he dismissed the envoys, and then leaving a somewhat small detachment on Tifata marched with the rest of his army to Nola, whither Hanno also came with the reinforcements he had brought from Carthage and the elephants. Encamping at no great distance, he found out, on inquiry, that everything was very different from the impression he had received from the envoys. No one who watched Marcellus' proceedings could ever say that he trusted to Fortune or gave the enemy a chance

through his rashness. Hitherto his plundering expeditions had been made after careful reconnoitring, with strong supports for the marauding parties and a secure retreat. Now when he became aware of the enemy's approach, he kept his force within the fortifications and ordered the senators of Nola to patrol the ramparts and keep a sharp lookout all round and find out what the enemy were doing.

Hanno had come close up to the walls, and, seeing amongst the senators Herennius Bassus and Herius Pettius, asked for an interview with them. Having obtained permission from Marcellus they went out to him. He addressed them through an interpreter. After magnifying the merits and good fortune of Hannibal and dwelling upon the decaying strength and greatness of Rome, he went on to urge that even if Rome were what she once had been, still men who knew by experience how burdensome the Roman government was to their allies and with what indulgence Hannibal had treated all those of his prisoners who belonged to any Italian nation must surely prefer the alliance and friendship of Carthage to those of Rome. If both the consuls and their two armies had been at Nola, they would still be no more a match for Hannibal than they were at Cannae, how then could one praetor with a few raw soldiers defend the place? It was of more importance to them whether the town were taken or surrendered than it was to Hannibal; he would get possession of it in any case as he had got possession of Capua and Nuceria. But what a difference there was between the fate of Capua and that of Nola, they knew best, situated as they were midway between the two places. He did not want to prophesy what would happen to the city if it were captured; he preferred to pledge his word that if they would give up Marcellus and his garrison and the city of Nola no one but themselves should dictate the terms on which they would become allies and friends of Hannibal.

[23.44]Herennius Bassus briefly replied that the friendship between Rome and Nola had now lasted many years, and up to that day neither party had had any reason to regret it. If they had wished to change their allegiance when the change came in their fortunes, it was too late to do so now. If they had thought of surrendering to Hannibal would they have asked for a Roman garrison? They were in perfect accord with those who had come to protect them, and they would continue to be so to the last. This interview destroyed any expectations Hannibal might have formed of securing Nola by

treachery. He therefore drew his lines completely round the town so that a simultaneous attack might be made on all sides. When Marcellus saw that he was close up to the ramparts, he drew up his men inside one of the gates and then burst out in a fierce tumultuous charge. A few were overthrown and killed in the first shock, but as men ran up into the fighting line and the two sides became more equalised, the contest was beginning to be a severe one, and few battles would have been more memorable had not a very heavy storm of rain and wind separated the combatants. They retired for that day after only a brief encounter but in a state of great exasperation, the Romans to the city, the Carthaginians to their camp. Of the latter not more than thirty fell in the first attack; the Romans lost fifty. The rain fell without any intermission all through the night and continued till the third hour of the following day, so, though both sides were eager for battle, they remained that day within their lines. The following day Hannibal sent part of his force on a plundering expedition in the Nolan territory. No sooner was Marcellus aware of it than he formed his line of battle, nor did Hannibal decline the challenge. There was about a mile between his camp and the city, and within that space - it is all level ground round Nola - the armies met. The battle shout raised on both sides brought back the nearest amongst the cohorts who had been sent off to plunder; the Nolans, too, on the other side, took their place in the Roman line. Marcellus addressed a few words of encouragement and thanks to them, and told them to take their station amongst the reserve and help to carry the wounded from the field, they were to keep out of the fighting unless they received the signal from him.

[23.45]The battle was obstinately contested; the generals encouraged the men, and the men fought to the utmost of their strength. Marcellus urged his men to press vigorously on those whom they had vanquished only three days ago, who had been driven in flight from Cumae, and whom he had himself, with another army, defeated the year before. "All his forces," he said, "are not in the field, some are roving through the land bent on plunder, whilst those who are fighting are enervated by the luxury of Capua and have worn themselves out through a whole winter's indulgence in wine and women and every kind of debauchery. They have lost their force and vigour, they have dissipated that strength of mind and body in which they surmounted the Alpine peaks. The men who did that are mere

wrecks now; they can hardly bear the weight of their armour on their limbs while they fight. Capua has proved to be Hannibal's Cannae. All soldierly courage; all military discipline, all glory won in the past, all hopes for the future have been extinguished there." By showing his contempt for the enemy, Marcellus raised the spirits of his men. Hannibal, on the other hand, reproached his own men in much more severe terms. "I recognise," he said, "the same arms and standards here which I saw and used at the Trebia, at Trasumennus, and finally at Cannae, but not the same soldiers. It is quite certain that I led one army into winter quarters at Capua and marched out with quite a different one. Are you, whom two consular armies never withstood, hardly able now to hold your own against a subordinate officer, with his one legion and its contingent of allies? Is Marcellus to challenge us with impunity a second time with his raw recruits and Nolan supports? Where is that soldier of mine who dragged the consul, C. Flaminius, from his horse and struck off his head? Where is the one who slew L. Paulus at Cannae? Has the sword lost its edge; have your right hands lost their power? Or has any other miracle happened? Though but few yourselves, you have been wont to vanquish an enemy that far outnumbered you; now you can hardly stand up against a force far smaller than your own. You used to boast, tongue-valiant as you are, that you would take Rome by storm if any one would lead you. Well, I want you to try your courage and your strength in a smaller task. Carry Nola; it is a city in a plain, with no protection from river or from sea. When ye have loaded yourselves with the plunder of such a wealthy city as this, I will lead you or follow you wherever you wish."

[23.46]Neither his censures nor his promises had any effect in strengthening the morale of his men. When they began to fall back in all directions the spirits of the Romans rose, not only because of their general's cheering words, but also because the Nolans raised encouraging shouts and fired them with the glow of battle, until the Carthaginians fairly turned to flee and were driven to their camp. The Romans were anxious to storm the camp, but Marcellus marched them back to Nola amid the joyous congratulations even of the populace who had before been more inclined to the Carthaginians. More than 5000 of the enemy were killed that day and 600 made prisoners, 18 military standards were taken and two elephants; four had been killed in the battle. The Romans had less than a thousand

killed. The next day was spent by both sides in burying those killed in battle, under an informal truce. Marcellus burnt the spoils taken from the enemy in fulfilment of a vow to Vulcan. Three days later, owing, I fancy, to some disagreement or in hope of more liberal pay, 272 troopers, Numidians and Spaniards, deserted to Marcellus. The Romans often availed themselves of their brave and loyal help in the war. At its close a gift of land was made in Spain to the Spaniards and in Africa to the Numidians as a reward for their valour.

Hanno was sent back into Bruttium with the force he had brought, and Hannibal went into winter quarters in Apulia and encamped in the neighbourhood of Arpi. As soon as Q. Fabius heard that Hannibal had left for Apulia, he had a quantity of corn from Nola and Neapolis conveyed into the camp above Suessula, and after strengthening its defences and leaving a force sufficient to hold the position through the winter months, he moved his own camp nearer to Capua and laid waste its territory with fire and sword. The Campanians had no confidence whatever in their strength, but they were at last compelled to come out of their gates into the open and form an entrenched camp in front of the city. They had 6000 men under arms, the infantry were absolutely useless, but the mounted men were more efficient, so they kept harassing the enemy by cavalry skirmishes. There were several Campanian nobles serving as troopers, amongst them Cerrinus Vibellius, surnamed Taurea. He was a citizen of Capua and by far the finest soldier in the Campanian horse, so much so indeed that when he was serving with the Romans there was only one Roman horseman that enjoyed an equal reputation, and that was Claudius Asellus. Taurea had for a long time been riding up to the enemy's squadrons to see if he could find this man, and at last when there was a moment's silence he asked where Claudius Asellus was. "He has often," he said, "argued with me about our respective merits, let him settle the matter with the sword, and if he is vanquished yield me the spolia opima, or if he is the victor take them from me."

[23.47]When this was reported to Asellus in the camp, he only waited till he could ask the consul whether he would be allowed, against the regulations, to fight his challenger. Permission being granted he at once armed himself and, riding in front of the outposts, called Taurea by name and told him to meet him wherever he pleased. The Romans had already gone out in crowds to watch the duel, and the

Campanians had not only lined the rampart of their camp, but had gathered in large numbers on the fortifications of the city. After a great flourish of words and expressions of mutual defiance they levelled their spears and spurred their horses. As there was plenty of space they kept evading each other's thrusts and the fight went on without either being wounded. Then the Campanian said to the Roman: "This will be a trial of skill between the horses and not their riders unless we leave the open and go down into this hollow lane. There will be no room for swerving aside there, we shall fight at close quarters." Almost before the words were out of his mouth, Claudius leaped his horse into the lane, and Taurea, bolder in words than deeds, shouted, "Never be an ass in a ditch," and this expression became a rustic proverb. After riding some distance along the lane and finding no opponent, Claudius got into the open and returned to camp, saying strong things about the cowardice of his adversary. He was welcomed as victor with cheers and congratulations by his comrades. In the accounts of this duel on horseback some annalists record an additional circumstance - how far there is any truth in it each must judge for himself, but it is at least remarkable. They say that Claudius went in pursuit of Taurea who fled to the city, and galloped in through one open gate and out through another unhurt, the enemy standing dumbfounded at the extraordinary sight.

[23.48]After this incident the Roman camp was undisturbed; the consul even shifted his camp further away that the Campanians might complete their sowing, and he did not inflict any injury on their land until the corn was high enough in the blade to yield fodder. Then he carried it off to Claudius' camp above Suessula and built huts for his men to winter in there. M. Claudius, the proconsul, received orders to keep a force at Nola sufficient to protect the place and send the rest of his troops to Rome to prevent their being a burden to the allies and an expense to the republic. And Ti. Gracchus, having marched his legions from Cumae to Luceria in Apulia, sent the praetor, M. Valerius, to Brundisium with the army he had had at Luceria, and gave him orders to protect the coast of the Sallentine territory and to make such provision as might be necessary with regard to Philip and the Macedonian war. Towards the end of the summer in which the events we have been describing occurred, despatches from P. and Cn. Scipio arrived, giving an account of the great successes they had achieved, but also stating that money to pay

the troops was needed, as also clothing and corn for the army, whilst the seamen were destitute of everything. As regarded the pay, if the treasury were low they (the Scipios) would devise some means by which they could obtain it from the Spaniards, but all the other things must in any case be sent from Rome, otherwise they could neither keep their army nor the province. When the despatches had been read there was no one present who did not admit that the statements were true and the demands fair and just. But other considerations were present to their minds - the enormous land and sea forces they had to keep up; the large fleet that would have to be fitted out if the war with Macedon went forward; the condition of Sicily and Sardinia, which before the war had helped to fill the treasury and were now hardly able to support the armies which were protecting those islands; and, above all, the shrinkage in the revenue. For the war-tax from which the national expenditure was met had diminished with the number of those who paid it after the destruction of the armies at Trasumennus and at Cannae, and if the few survivors had to pay at a very much higher rate, they too, would perish, though not in battle. If, therefore, the State could not be upheld by credit it could not stand by its own resources. After thus reviewing the position of affairs the senate decided that Fulvius, one of the praetors, should appear before the Assembly and point out to the people the pressing needs of the State and ask those who had augmented their patrimonies by making contracts with the government to extend the date of payment for the State, out of which they had made their money, and contract to supply what was needed for the army in Spain on condition that as soon as there was money in the treasury they should be the first to be paid. After making this proposal, the praetor fixed a date for making the contracts for the supply of clothing and corn to the army in Spain, and for furnishing all that was required for the seamen.

[23.49]On the appointed day three syndicates appeared, consisting each of nineteen members, prepared to tender for the contracts. They insisted on two conditions - one was that they should be exempt from military service whilst they were employed on this public business, and the other that the cargoes they shipped should be insured by the government against storm or capture. Both demands were conceded, and the administration of the State was carried on with private money. Such were the moral tone and lofty patriotism which

pervaded all ranks of society! As the contracts had been entered into from a generous and noble spirit, so they were executed with the utmost conscientiousness; the soldiers received as ample supplies as though they had been furnished, as they once were, from a rich treasury. When these supplies reached Spain, the town of Iliturgi, which had gone over to the Romans, was being attacked by three Carthaginian armies under Hasdrubal, Mago, and Hannibal, the son of Bomilcar. Between these three camps the Scipios forced their way into the town after hard fighting and heavy losses. They brought with them a quantity of corn, of which there was a great scarcity, and encouraged the townsfolk to defend their walls with the same courage that they saw the Roman army display when fighting on their behalf. Then they advanced to attack the largest of the three camps, of which Hasdrubal was in command. The other two commanders and their armies saw that the decisive struggle would be fought there and they hastened to its support. As soon as they had emerged from their camps the fighting began. There were 60,000 of the enemy engaged that day and about 16,000 Romans. And yet the victory was such a crushing one that the Romans slew more than their own number of the enemy, made prisoners of more than 3000, captured somewhat less than 1000 horses, 59 military standards, 7 elephants, 5 having been killed in the battle, and got possession of the three camps - all in that one day. After the siege of Iliturgi was thus raised, the Carthaginian armies marched to attack Intibili. They had repaired their losses out of that province which, above all others, was eager for fighting, if only plunder and money were to be got out of it, and which, too, abounded in young men. A pitched battle was again fought with the same result for both sides. Over 13,000 of the enemy were killed, more than 2000 made prisoners, 42 standards and 9 elephants were also taken. And now nearly all the tribes of Spain went over to Rome, and the successes gained in Spain that summer were far greater than those in Italy.

BOOK 24: THE REVOLUTION IN SYRACUSE

[24.1]After his return to Bruttium, Hanno, with the assistance and guidance of the Bruttians, made an attempt on the Greek cities. They were steadfast in their adherence to Rome, and all the more so because they saw that the Bruttians, whom they feared and hated, were taking sides with the Carthaginians. Rhegium was the first place

he attempted, and several days were spent there without any result. Meanwhile the Locrians were hastily carrying their corn and wood and everything else they might want out of the fields into the city, not only for safety, but also that no plunder whatever might be left for the enemy. Every day larger numbers of people poured out of all the gates, till at last only those remained in the city whose duty it was to repair the walls and gates and provide a store of weapons on the ramparts. Against this miscellaneous crowd of all ranks and ages wandering through the fields mostly unarmed, Hamilcar sent his cavalry with orders not to injure any one but simply to scatter them in flight and then cut them off from returning to the city. He had taken up his position upon some high ground where he had a view of the country and the city, and he sent orders to one of the Bruttian cohorts to go up to the walls and invite the principal men of the place to a conference, and if they consented they were to endeavour to persuade them to betray the city, promising them, if they did so, Hannibal's friendship. The conference took place, but no credence was placed in what the Bruttians said, until the Carthaginians showed themselves on the hills and a few who escaped to the city brought the news that the whole population was in the hands of the enemy. Unnerved by terror they replied that they would consult the people, and a meeting was at once convened. All who were restless and discontented preferred a fresh policy and a fresh alliance, whilst those whose kinsfolk had been shut out of the city by the enemy felt as much pledged as though they had given hostages. A few were in favour of maintaining their loyalty to Rome, but they kept silence rather than venture to defend their opinion. A resolution was passed with apparent unanimity in favour of surrendering to the Carthaginians. L. Atilius, the commandant of the garrison, and his men were conducted down to the harbour and placed on board ship for conveyance to Regium; Hamilcar and his Carthaginians were received into the city on the understanding that a treaty with equal rights should be at once concluded. This condition was within a very little of being broken, for the Carthaginians charged the Locrians with treachery in sending away the Romans, whilst the Locrians pleaded that they had escaped. Some cavalry went in pursuit in case the tide in the straits should either delay the departure of the ships or drift them ashore. They did not overtake those whom they were in pursuit of, but they saw some other ships crossing the straits from Messina to Regium. These were Roman soldiers who had been sent

by Claudius to hold the city. So the Carthaginians at once retired from Regium. By Hannibal's orders peace was granted to the Locrians; they were to be independent and live under their own laws; the city was to be open to the Carthaginians, the Locrians were to have sole control of the harbour, and the alliance was to be based on the principle of mutual support: the Carthaginians were to help the Locrians and the Locrians the Carthaginians in peace and in war.

[24.2] Thus the Carthaginians marched back from the straits amidst the protests of the Bruttians, who complained that the cities which they had marked for themselves for plunder had been left unmolested. They determined to act on their own account, and after enrolling and arming 15,000 of their own fighting men they proceeded to attack Croto, a Greek city situated on the coast. They imagined that they would gain an immense accession of strength if they possessed a seaport with a strongly fortified harbour. What troubled them was that they could not quite venture to summon the Carthaginians to their aid lest they should be thought not to have acted as allies ought to act, and again, if the Carthaginian should for the second time be the advocate of peace rather than of war, they were afraid that they would fight in vain against the freedom of Croto as they had against that of Locri. It seemed the best course to send to Hannibal and obtain from him an assurance that on its capture Croto should pass to the Bruttians. Hannibal told them that it was a matter for those on the spot to arrange and referred them to Hanno, for neither he nor Hanno wanted that famous and wealthy city to be plundered, and they hoped that when the Bruttians attacked it and it was seen that the Carthaginians neither assisted nor approved of the attack, the defenders would come over to Hannibal all the sooner.

In Croto there was neither unity of purpose nor of feeling; it seemed as though a disease had attacked all the cities of Italy alike, everywhere the populace were hostile to the aristocracy. The senate of Croto were in favour of the Romans, the populace wanted to place their state in the hands of the Carthaginians. This division of opinion in the city was reported by a deserter to the Bruttians. According to his statements, Aristomachus was the leader of the populace and was urging the surrender of the city, which was extensive and thickly populated, with fortifications covering a large area. The positions where the senators kept watch and ward were few and scattered, wherever the populace kept guard the way lay open into the city. At

the suggestion of the deserter and under his guidance the Bruttians completely invested the town, and at the very first assault were admitted by the populace and took possession of the whole place with the exception of the citadel. This was held by the aristocrats, who had prepared it beforehand as a place of refuge in case anything of this sort should happen. Aristomachus, too, fled there, and gave out that he had advised the surrender of the city to the Carthaginians, not to the Bruttians.

[24.3] Before Pyrrhus' arrival in Italy, the city of Croto had walls which formed a circuit of twelve miles. After the devastation caused by that war hardly half the place was inhabited; the river which used to flow through the middle of the city now ran outside the part where the houses were, and the citadel was at a considerable distance from them. Sixteen miles from this famous city there was a still more famous temple to Juno Lacinia, an object of veneration to all the surrounding communities. There was a grove here enclosed by a dense wood and lofty fir-trees, in the middle of which there was a glade affording delightful pasture. In this glade cattle of every kind, sacred to the goddess, used to feed without any one to look after them, and at nightfall the different herds separated each to their own stalls without any beasts of prey lying in wait for them or any human hands to steal them. These cattle were a source of great profit, and a column of solid gold was made from the money thus gained and dedicated to the goddess. Thus the temple became celebrated for its wealth as well as for its sanctity, and as generally happens in these famous spots, some miracles also were attributed to it. It was commonly reported that an altar stood in the porch of the temple, the ashes on which were never stirred by any wind.

The citadel of Croto, which overhung the sea on one side and on the other faced the land, was formerly protected by its natural position; afterwards it was further protected by a wall, on the side where Dionysius, the Sicilian tyrant, had captured it by stratagem, scaling it on the side away from the sea. It was this citadel that the aristocrats of Croto now occupied, regarding it as a fairly safe stronghold, while the populace in conjunction with the Bruttians besieged them. At last the Bruttians saw that they could never take the place in their own strength, and found themselves compelled to appeal to Hanno for help. He tried to bring the Crotonians to a surrender on condition that they would admit a Bruttian colony and allow their city, wasted

and desolate as it was by war, to recover its ancient populousness. Not a single man amongst them, except Aristomachus, would listen to him. They said that they would sooner die than be mingled with Bruttians and change to alien ceremonies, customs, and laws, and soon even to a foreign speech. Aristomachus, finding himself powerless to persuade them to surrender and not getting any opportunity of betraying the citadel as he had betrayed the city, went off by himself to Hanno. Shortly after some envoys from Locri, who had, with Hanno's permission, obtained access to the citadel, persuaded them to suffer themselves to be transferred to Locri instead of facing the last extremity. They had already sent to Hannibal and obtained his consent to this course. So they left Croto and were conducted to the sea and put on board ship and sailed in a body for Locri. In Apulia even the winter did not pass quietly so far as the Romans and Hannibal were concerned. Sempronius was wintering at Luceria and Hannibal not far from Arpi; skirmishes took place between them as occasion offered or either side saw its opportunity, and these brushes with the enemy made the Romans more efficient every day and more familiar with the cunning methods of their opponents.

[24.4]In Sicily the position of the Romans was totally altered by the death of Hiero and the demise of the crown to his grandson, Hieronymus, who was but a boy and hardly likely to use his own liberty much less his sovereign power with moderation. At such an age and with such a temperament guardians and friends alike sought to plunge him into every kind of excess. Hiero, it is said, seeing what was going to happen, was anxious at the close of his long life to leave Syracuse as a free State, lest the kingdom which had been acquired and built up by wise and honourable statesmanship should go to ruin by being made the sport of a boy tyrant. His project met with the most determined opposition from his daughters. They imagined that whilst the boy retained the name of king, the supreme power would really rest with them and their husbands, Andranodorus and Zoippus, whom the king purposed to leave as the boy's principal guardians. It was no easy matter for a man in his ninetieth year, subject night and day to the coaxing and blandishments of two women, to keep an open mind and make public interests predominant over private ones in his thoughts. So all he could do was to leave fifteen guardians for his son, and he implored them on

his deathbed to maintain unimpaired the loyal relations with Rome which he had cultivated for fifty years, and to see to it that the young man, above all things, followed in his footsteps and adhered to the principles in which he had been brought up. Such were his instructions. When the king had breathed his last the guardians produced the will and brought the boy, who was then about fifteen, before the assembled people. Some who had taken their places in different parts to raise acclamations shouted their approval of the will, the majority, feeling that they had lost a father, feared the worst now that the State was orphaned. Then followed the king's funeral, which was honoured more by the love and affection of his subjects than by any grief amongst his own kindred. Shortly afterwards Andranodorus got rid of the other guardians by giving out that Hieronymus was now a young man and capable of assuming the government; by himself resigning the guardianship which he shared with several others, he concentrated all their powers in his own person.

[24.5] Even a good and sensible prince would have found it difficult to win popularity with the Syracusans as successor to their beloved Hiero. But Hieronymus, as though he were anxious by his own vices to make the loss of his grandfather more keenly felt, showed on his very first appearance in public how everything was changed. Those who had for so many years seen Hiero and his son, Gelo, going about with nothing in their dress or other marks of royalty to distinguish them from the rest of their countrymen, now saw Hieronymus clad in purple, wearing a diadem, surrounded by an armed escort, and sometimes even proceeding from his palace in a chariot drawn by four white horses, after the style of Dionysius the tyrant. Quite in harmony with this extravagant assumption of state and pomp was the contempt he showed for everybody; the insolent tone in which he addressed those who sought audiences of him; the way he made himself difficult of access not only to strangers but even to his guardians; his monstrous lusts; his inhuman cruelty. Such terror seized everybody that some of his guardians anticipated a death of torture by suicide or flight. Three of them, the only ones who had familiar access to the palace, Andranodorus and Zoippus, Hiero's sons-in-law, and a certain Thraso, did not rouse much interest in him when talking of other matters, but as two of them took the side of the Carthaginians and Thraso that of the Romans, their heated

arguments and quarrels attracted the young king's attention. A conspiracy formed against the despot's life was disclosed by a certain Callo, a lad of about the same age as Hieronymus and accustomed from his boyhood to associate with him on terms of perfect familiarity. The informer was able to give the name of one of the conspirators, Theodotus, by whom he had himself been invited to join in the plot. This man was at once arrested and handed over to Andranodorus for torture. He confessed his own complicity without any hesitation, but was silent about the others. At last, when he was racked with tortures too terrible for human endurance, he pretended to be overcome by his sufferings, and instead of disclosing the names of the guilty informed against an innocent man, and falsely accused Thraso of being the ringleader of the plot. Unless, he said, they had had such an influential man to lead them they would never have ventured upon so serious an undertaking. He went on inventing his story amidst groans of anguish and mentioning names just as they occurred to him, taking care to select the most worthless amongst the king's courtiers. It was the mention of Thraso that weighed most in persuading the king of the truth of the story; he accordingly was at once given up for punishment, and the others, as innocent as he was, shared his fate. Though their accomplice was under torture for a long time, not one of the actual conspirators either concealed himself or sought safety in flight, so great was their confidence in the courage and honour of Theodotus, and so great the firmness with which he kept their secret.

[24.6] The one link with Rome had now gone with Thraso, and there was no doubt about the movement towards revolt. Envoys were sent to Hannibal, and he sent back, together with a young noble, also named Hannibal, two other agents, Hippocrates and Epiclydes, natives of Carthage and Carthaginians on the mother's side, but their grandfather was a refugee from Syracuse. Through their agency an alliance was formed between Hannibal and the Syracusan tyrant, and with Hannibal's consent they stayed on with Hieronymus. As soon as Appius Claudius, who was commanding in Sicily heard of this, he sent envoys to the king. When they announced that they had come to renew the alliance which had existed with his grandfather, they were laughed at, and as they were leaving the king asked them in jest what fortune they had met with in the battle of Cannae, for he could hardly believe what Hannibal's envoys told him; he wanted to know

the truth so that he might make up his mind which course to follow as offering the best prospects. The Romans said that they would come back to him when he had learnt to receive embassies seriously, and, after warning him, rather than asking him, not to abandon their alliance lightly, they departed. Hieronymus sent envoys to Carthage to conclude a treaty in the terms of their alliance with Hannibal. It was agreed in this compact that after they had expelled the Romans from Sicily - and that would soon be done if they sent a fleet and an army - the river Himera, which almost equally divides the island, was to be the boundary between the dominions of Syracuse and that of Carthage. Puffed up by the flattery of people who told him to remember not only Hiero but his maternal grandfather, King Pyrrhus, Hieronymus sent a second legation to Hannibal to tell him that he thought it only fair that the whole of Sicily should be ceded to him and that Carthage should claim the empire of Italy as their own. They expressed neither surprise nor displeasure at this fickleness and levity in the hot-headed youth provided only they could keep him from declaring for Rome.

[24.7]But everything was hurrying him headlong into ruin. He had sent Hippocrates and Epicydes in advance, each with 2000 troops, to attempt some cities which were held by Roman garrisons, whilst he himself advanced to Leontini with 15,000 foot and horse, which comprised the rest of his army. The conspirators, all of whom happened to be in the army, took an empty house overlooking the narrow road by which the king usually went down to the forum. Whilst they were all standing in front of the house, fully armed, waiting for the king to pass, one of them, Dinomenes by name, in the royal body-guard, had the task assigned to him of keeping back the crowd in the rear, by some means or other, when the king approached the gate of the house. All was done as had been arranged. Pretending to loosen a knot which was too tight on his foot, Dinomenes stopped the crowd and made so wide a gap in it that when the king was attacked in the absence of his guards he was stabbed in several places before help could reach him. As soon as the shouting and tumult were heard the guard hurled their missiles on Dinomenes who was now unmistakably stopping the way, but he escaped with only two wounds. When they saw the king lying on the ground the attendants fled. Some of the assassins went to the people who had assembled in the forum, rejoicing in their recovered liberty,

others hastened to Syracuse to forestall the designs of Andranodorus and the rest of the king's men. In this critical state of affairs Appius Claudius saw that a war was beginning close at hand, and he sent a despatch to the senate informing them that Sicily was being won over to Carthage and Hannibal. To frustrate the plans being formed at Syracuse, he moved all the garrisons to the frontier between the Roman province and the late king's dominion. At the close of the year Q. Fabius was authorised by the senate to fortify Puteoli, where there had grown up a considerable trade during the war, and also to place a garrison in it. On his way to Rome, where he was to conduct the elections, he gave notice that they would be held on the first election day that he could fix, and then to save time he marched past the City straight to the Campus Martius. That day the first voting fell by lot to the junior century of the tribe of the Anio, and they were giving their vote for T. Otacilius and M. Aemilius Regillus, when Q. Fabius, having obtained silence, made the following address:

[24.8]"If Italy were at peace, or if we had on our hands such a war and such an enemy as to allow room for less care on our part, I should consider any one who sought to check the eagerness with which you have come here to confer honour on the men of your choice as very forgetful of your liberties. But in this war, in dealing with this enemy, none of our generals has ever made a single mistake which has not involved us in the gravest disasters, and therefore it is only right that you should exercise your franchise in the election of consuls with as much circumspection as you show when going armed into battle. Every man must say to himself, 'I am nominating a consul who is to be a match for Hannibal.' It was during this year that Vibellius Taurea, the foremost of the Campanian knights challenged and was met by Asellus Claudius, the finest Roman horseman, at Capua. Against a Gaul, who once offered his defiance on the bridge over the Anio, our ancestors sent T Manlius, a man of undaunted courage and prowess. Not many years later it was in the same spirit of fearless confidence, I will make bold to say, that M. Valerius armed himself against the Gaul who challenged him in the same way to single combat. Just as we desire to have our infantry and cavalry stronger, or if that is impossible at least equal to the enemy, so we should look for a commander equal to his. Even if we choose as our commander the finest general in the republic, still he is only chosen for a year, and immediately after his election he will be pitted against a veteran and

permanent strategist who is not shackled by any limitations of time or authority, or prevented from forming and executing any plans which the necessities of war may require. In our case, on the other hand, the year is gone simply in making preparations and commencing a campaign. I have said enough as to the sort of men you ought to elect as your consuls; let me say a word about the men in whose favour the first vote has already been given. M. Aemilius Regillus is a Flamen or Quirinus; we cannot discharge him from his sacred duties without neglecting our duty to the gods nor can we keep him at home without neglecting proper attention to the war. Otacilius married my sister's daughter and has children by her, but the obligations you have conferred on me and my ancestors are not such that I can place private relationship before the welfare of the State. In a calm sea any sailor, any passenger, can steer the ship, but when a violent storm arises and the vessel is driven by the wind over the raging waters then you want a man who is really a pilot. We are not sailing now in smooth water, already we have almost foundered in the many storms that have overtaken us, and therefore you must use the utmost foresight and caution in choosing the man who is to take the helm.

"As for you, T. Otacilius, we have had some experience of your conduct of comparatively unimportant operations, and you have certainly not shown any grounds for our entrusting you with more important ones. There were three objects for which we equipped the fleet this year which you commanded: it was to ravage the African coast, to render the coast of Italy safe for us, and, what was most important of all, to prevent any reinforcements, money, or supplies from being sent from Carthage to Hannibal. If T. Otacilius has carried out - I will not say all, but - any one of these objects for the State, then by all means elect him consul. But if, whilst you were in command of the fleet, everything required reached Hannibal safe and sound from home, if the coast of Italy has this year been in greater danger than the coast of Africa, what possible reason can you give why they should put you up, most of all, to oppose Hannibal? If you were consul we should have to follow the example of our forefathers and nominate a Dictator, and you could not take it as an insult that somebody amongst all the citizens of Rome was looked upon as a better strategist than yourself. It is of more importance to you, T. Otacilius, than it can be to any one else that you should not have a

burden placed upon your shoulders whose weight would crush you. And to you, my fellow-citizens, I appeal most solemnly to remember what you are about to do. Imagine yourselves standing in your armed ranks on the field of battle; suddenly you are called upon to choose two commanders under whose auspicious generalship you are to fight. In the same spirit choose the consuls today to whom your children must take the oath, at whose edict they must assemble, under whose tutelage and protection they must serve. Trasumennus and Cannae are melancholy precedents to recall, but they are solemn warnings to guard against similar disasters. Usher! call back the century of juniors in the tribe of the Anio to give their votes again."

[24.9]T. Otacilius was in a state of great excitement, loudly exclaiming that Fabius wanted to have his consulship prolonged, and as he persisted in creating a disturbance the consul ordered the lictors to approach him and warned him that as he had marched straight to the Campus without entering the City, the axes were still bound up in the fasces. The voting had in the meantime recommenced, and the first was given in favour of Q. Fabius Maximus as consul for the fourth time and M. Marcellus for the third. All the other centuries voted without exception for the same men. One praetor was re-elected, Q. Fulvius Flaccus, the others were fresh appointments; T. Otacilius Crassus, now praetor for the second time; Q. Fabius, a son of the consul and curule aedile at the time of his election; and P. Cornelius Lentulus. When the election of the praetors was finished the senate passed a resolution that Quintus Fulvius should have the City as his special province, and when the consuls had gone to the war he should command at home. There were two great floods this year; the Tiber inundated the fields, causing widespread destruction of farm-buildings and stock and much loss of life. It was in the fifth year of the second Punic war that Q. Fabius Maximus assumed the consulship for the fourth time and M. Claudius Marcellus for the third time. Their election excited an unusual amount of interest amongst the citizens, for it was many years since there had been such a pair of consuls. Old men remembered that Maximus Rullus had been similarly elected with P. Decius in view of the Gaulish war, and in the same way afterwards Papirius and Carvilius had been chosen consuls to act against the Samnites and Bruttians and also against the Lucanians and Tarentines. Marcellus was elected in his absence whilst he was with the army. Fabius was re-elected when he was on the spot

and actually conducting the election. Irregular as this was, the circumstances at the time, the exigencies of the war, the critical position of the State prevented any one from inquiring into precedents or suspecting the consul of love of power. On the contrary, they praised his greatness of soul, because when he knew that the republic needed its greatest general, and that he was unquestionably himself the one, he thought less of any personal odium which he might incur than of the interest of the republic.

[24.10] On the day when the consuls entered upon office, a meeting of the senate was held in the Capitol. The very first decree passed was that the consuls should either draw lots or arrange between themselves which of them should conduct the election of censors before he left for the army. A second decree extended the command of the former consuls who were with their armies, and they were ordered to remain in their respective provinces; Ti. Gracchus at Luceria, where he was stationed with his army of volunteer slaves; C. Terentius Varro in the district of Picenum; Manius Pomponius in the land of the Gauls. The praetors of the former year were to act as propraeors; Q. Mucius was to hold Sardinia, and M. Valerius was to continue in command of the coast with his headquarters at Brundisium, where he was to be on the watch against any movement on the part of Philip of Macedon. The province of Sicily was assigned to P. Cornelius Lentulus, one of the praetors, and T. Otacilius was to command the same fleet which he had had the previous year, to act against the Carthaginians. Many portents were announced that year, and the more readily men of simple and pious minds believed in them the more numerous were they reported. Right in the inside of the temple of Juno Sospita at Lanuvium some crows had built a nest; in Apulia a green palm-tree had caught fire; at Mantua a pool formed by the overflow of the Mincius presented the appearance of blood; at Cales there was a rain of chalk stones, and at Rome, in the Forum Boarium, one of blood; in the Insteian quarter a subterranean spring flowed with such violence that it carried off some casks and jars in the cellars there as though they had been swept away by a torrent; various objects were struck by lightning, a public hall in the Capitol, the temple of Vulcan in the Campus Martius, some farm buildings in the Sabine territory; and the public road, the walls, and one of the gates of Gabii. Then other marvels were reported; the spear of Mars at Praeneste had moved of its own accord; in Sicily an ox had spoken;

amongst the Marrucini an infant had cried "Io triumphe" in its mother's womb; at Spoletum a woman had been turned into a man; at Hadria an altar had been seen in the sky with men clothed in white standing round it; and lastly at Rome, in the very City itself, a swarm of bees was seen in the Forum and immediately afterwards some people raised the cry "To arms!" declaring that they saw armed legions on the Janiculum, though the people who were on the hill at the time said that they saw no one except those who were usually at work in the gardens there. These portents were expiated by victims of the larger kind in accordance with the directions of the diviners, and solemn intercessions were ordered to be made to all the deities who possessed shrines in Rome.

[24.11]When all had been done to secure "the peace of the gods," the consuls brought before the senate the questions relating to the policy of the State, the conduct of the war, and the amount and disposition of the military and naval forces of the republic. It was decided to place eighteen legions in the field. Each of the consuls was to have two, Gaul, Sicily, and Sardinia were each to be held by two, Q. Fabius, the praetor, was to take command of two in Apulia, and Ti. Gracchus was to keep his two legions of volunteer slaves at Luceria. One legion was left with C. Terentius at Picenum, and one also with M. Valerius at Brundisium for the fleet, and two were to defend the City. To make up this number of legions six new ones had to be raised. The consuls were directed to raise these as quickly as possible, and to fit out a fleet so that with the vessels stationed off the Calabrian coast the navy might that year be increased to 150 vessels of war. After the troops were levied and 100 new vessels launched, Q. Fabius held the election for the appointment of censors; those elected were M. Atilius Regulus and P. Furius Philus. As the rumours of war in Sicily became more frequent, T. Otacilius was directed to sail thither with his fleet. As there was a deficiency of sailors, the consuls, acting upon the instructions of the senate, published an order to meet the case. Every one who had been assessed or whose father had been assessed in the censorship of L. Aemilius and C. Flaminius at from 50,000 to 100,000 ases or whose property had since reached that amount, was to furnish one sailor with six months' pay; those whose assessment was from 100,000 to 300,000 were to supply three sailors with twelve months' pay; from 300,000 to 1,000,000 the contribution was to be five sailors, and above that amount seven. The senators were to furnish

eight sailors and a year's pay. The sailors forthcoming under this order, after being armed and equipped by their masters, went on board with thirty days' rations. This was the first occasion on which a Roman fleet was manned by seamen provided at private cost.

[24.12]The extraordinary scale on which these preparations were made threw the Campanians into a state of consternation; they were in dread lest the Romans should begin their campaigns for the year by besieging Capua. So they sent to Hannibal imploring him to move his army to Capua; fresh armies, they informed him, had been raised in Rome with a view to attacking them, and there was no city whose defection the Romans more bitterly resented than theirs. Owing to the urgency of the message, Hannibal felt he ought to lose no time in case the Romans anticipated him, and leaving Arpi he took up his position in his old camp at Tifata, overlooking Capua. Leaving his Numidians and Spaniards to protect the camp and Capua at the same time, he descended with the rest of his army to Lake Avernus, ostensibly for the purpose of offering sacrifice, but really to make an attempt on Puteoli and the garrison there. As soon as the news of Hannibal's departure from Arpi and his return to Campania reached Maximus, he returned to his army, travelling night and day, and sent orders to Ti. Gracchus to move his forces from Luceria to Beneventum, whilst Q. Fabius, the praetor, the consul's son, was instructed to take Gracchus' place at Luceria. Two praetors started at the same time for Sicily, P. Cornelius to the army and T. Otacilius to take charge of the coast and direct the naval affairs. The others all left for their respective provinces, and those whose command had been extended kept the districts they had held the year before.

[24.13]While Hannibal was at Lake Avernus he was visited by five young nobles from Tarentum who had been made prisoners, some at Trasumennus and the others at Cannae, and afterwards sent to their homes with the same courteous treatment that the Carthaginian had shown to all the allies of Rome. They told him that they had not forgotten his kindness, and out of gratitude had persuaded most of the younger men in Tarentum to choose the friendship and alliance of Hannibal in preference to that of the Romans; they had been sent by their compatriots to ask him to march his army nearer to Tarentum. "If only," they declared, "your standards and camp are visible at Tarentum, there will be no hesitation in making the city over to you. The populace is in the hands of the younger men, and the

government of Tarentum is in the hands of the populace." Hannibal expressed his warm approval of their sentiments, loaded them with splendid promises, and bade them return home to mature their plans. He would himself be with them at the right time. With this hope the Tarentines were dismissed. Hannibal himself was extremely anxious to gain possession of Tarentum; he saw that it was a wealthy and famous city, and, what was more, it was a maritime city on the coast opposite Macedonia, and as the Romans were holding Brundisium, this would be the port that King Philip would make for if he sailed to Italy. After performing the sacred rites which were the object of his coming, and having during his stay laid waste the territory of Cumae as far as the promontory of Misenum, he suddenly marched to Puteoli, hoping to surprise the Roman garrison. There were 6000 troops there, and the place was not only one of great strength, but had also been strongly fortified. The Carthaginian spent three days there in attempting the fortress on every side, and as he met with no success he proceeded to ravage the district round Naples, more out of disappointed rage than in hopes of gaining possession of the city. The populace of Nola, who had long been disaffected towards Rome and at variance with their own senate, were greatly excited by his presence in a territory so close to their own. Their envoys accordingly came to invite Hannibal and brought him a positive assurance that the city would be delivered up to him. Their design was forestalled by the consul Marcellus, who had been summoned by the leading citizens. In one day he marched from Cales to Suessula in spite of the delay involved in crossing the Volturnus, and the following night he threw into Nola 6000 infantry and 500 cavalry as a protection to the senate. While the consul was acting with the utmost energy in making Nola safe against attack, Hannibal was losing time, and after two unsuccessful attempts was less inclined to put faith in the populace of Nola.

[24.14] During this time the consul, Q. Fabius, made an attempt on Casilinum, which was held by a Carthaginian garrison, while, as though they were acting in concert, Hanno, marching from Bruttium with a strong body of horse and foot, reached Beneventum on the one side and Ti. Gracchus, from Luceria, approached it in the opposite direction. He got into the town first, and hearing that Hanno had encamped by the river Caloris about three miles from the city and was ravaging the country, he moved out of the place and

fixed his camp about a mile from the enemy. Here he harangued his troops. His legions were composed mostly of volunteer slaves who had made up their minds to earn their liberty, without murmuring, by another year's service rather than demand it openly. He had, however, on leaving his winter quarters noticed that there were discontented "rumblings going on in the army, men were asking whether they would ever serve as free men. In consequence of this he had sent a despatch to the senate in which he stated that the question was not so much what they wanted as what they deserved; they had rendered him good and gallant service up to that day, and they only fell short of the standard of regular soldiers in the matter of personal freedom. On that point permission had been granted to him to do what he thought best in the interests of the State. So before closing with the enemy he announced that the hour which they had so long hoped for, when they would gain their freedom, had now come. The next day he was going to fight a pitched battle in a free and open plain where there would be full scope for true courage without any fear of ambushade. Whoever brought back the head of an enemy would be at once by his orders declared to be a free man; whoever quitted his place in the ranks he would punish with a slave's death. Every man's fortune was in his own hands. It was not he alone that guaranteed their liberty, but the consul Marcellus also and the whole of the senate whom he had consulted and who had left the question of their liberty to him. He then read the despatch from Marcellus and the resolution passed in the senate. These were greeted with a loud and ringing cheer. They demanded to be led at once to battle and pressed him forthwith to give the signal. Gracchus announced that the battle would take place the next day and then dismissed the men to quarters. The soldiers were in high spirits, those especially who had the prospect of earning their freedom by one day's strenuous work, and they spent the rest of the day in getting their arms and armour ready.

[24.15]When the bugles began to sound the next morning the volunteer slaves were the first to muster in front of the headquarters' tent, armed and ready. As soon as the sun was risen Gracchus led his forces into the field, and the enemy showed no slackness in meeting him. He had 17,000 infantry, mostly Bruttians and Lucanians, and 1200 cavalry, amongst whom were very few Italians, the rest were almost all Numidians and Moors. The battle was a severe and

protracted one; for four hours neither side gained any advantage. Nothing hampered the Romans more than the setting a price upon the heads of their foes, the price of liberty, for no sooner had any one made a furious attack upon an enemy and killed him than he lost time in cutting off his head - a difficult matter in the tumult and turmoil of the battle - and then, as their right hands were occupied in holding the heads all the best soldiers were no longer able to fight, and the battle was left to the slow and the timid. The military tribunes reported to their general that not a man of the enemy was being wounded as he stood, whilst those who had fallen were being butchered and the soldiers were carrying human heads in their right hands instead of swords. Gracchus made them at once give the order to throw down the heads and attack the enemy, and to tell them that their courage was sufficiently clear and conspicuous, and that there would be no question about liberty for brave men. On this the fighting was renewed and even the cavalry were sent against the enemy. The Numidians made a countercharge with great impetuosity, and the fighting became as fierce between the cavalry as it was amongst the infantry, making the issue of the contest again uncertain. The generals on both sides now appealed to their men; the Roman pointed to the Bruttians and Lucanians who had been so often defeated and crushed by their ancestors; the Carthaginian showered contempt upon Roman slaves and soldiers taken out of the workshops. At last Gracchus gave out that there would be no hope whatever of liberty if the enemy were not routed and put to flight that day.

[24.16] These words so kindled their courage that they seemed like different men; they raised the battle shout again and flung themselves on the enemy with such force that their attack could no longer be withstood. The Carthaginian ranks in front of the standards were broken, then the soldiers round the standards were thrown into disorder, and at last their entire army became a scene of confusion. Soon they were unmistakably routed, and they rushed to their camp in such haste and panic that not even in the gates or on the rampart was there any attempt at resistance. The Romans followed almost on their heels and commenced a fresh battle inside the enemies' rampart. Here the combatants had less space to move and the battle was all the more bloody. The prisoners in the camp also helped the Romans, for they snatched up swords amid the confusion and, forming a solid

phalanx, they fell upon the Carthaginians in the rear and stopped their flight. Out of that large army not 2000 men escaped, and amongst these were the greater part of the cavalry who got clear away with their general, all the rest were either killed or made prisoners, and thirty-eight standards were captured. Of the victors hardly 2000 fell. The whole of the plunder, with the exception of the prisoners, was given to the soldiers; whatever cattle the owners claimed within thirty days were also excepted.

On their return to camp, laden with booty, some 4000 of the volunteer slaves who had shown remissness in the fighting and had not joined in the rush into the camp took possession of a hill not far from their own camp as they were afraid of punishment. The next day Gracchus ordered a parade of his army, and these men were brought down by their officers and entered the camp after the rest of the army was mustered. The proconsul first bestowed military rewards on the veterans, according to the courage and activity they had shown in the battle. Then turning to the volunteer slaves he said that he would much rather have praised all alike, whether deserving or undeserving, than that any man should be punished that day. "And," he continued, "I pray that what I am now doing may prove to be for the benefit, happiness, and felicity of yourselves and of the commonwealth - I bid you all be free." At these words they broke out into a storm of cheering; at one moment they embraced and congratulated each other, at another they lifted up their hands to heaven and prayed that every blessing might descend upon the people of Rome and upon Gracchus himself. Gracchus continued: "Before making you all equal as free men I did not want to affix any mark by which the brave soldier could be distinguished from the coward, but now that the State has fulfilled its promise to you I shall not let all distinction between courage and cowardice be lost. I shall require the names to be brought to me of those who, conscious of their skulking in battle, lately seceded from us, and when they have been summoned before me I shall make each of them take an oath that he will never as long as he is with the colours, unless prevented by illness, take his meals other than standing. You will be quite reconciled to this small penalty when you reflect that it would have been impossible to mark you with any lighter stigma for your cowardice."

He then gave orders for the tents and other things to be packed up, and the soldiers carrying their plunder or driving it in front of them with mirth and jest returned to Beneventum in such happy laughing spirits that they seemed to be coming back after a day of revelry rather than after a day of battle. The whole population of Beneventum poured out in crowds to meet them at the gates; they embraced and congratulated the soldiers and invited them to partake of their hospitality. Tables had been spread for them all in the forecourts of the houses; the citizens invited the men and begged Gracchus to allow his troops to enjoy a feast. Gracchus consented on condition that they all banqueted in public view, and each citizen brought out his provision and placed his tables in front of his door. The volunteers, now no longer slaves, wore white caps or fillets of white wool round their heads at the feast; some were reclining, others remained standing, waiting on the others and taking their food at the same time. Gracchus thought the scene worth commemorating, and on his return to Rome he ordered a representation of that celebrated day to be painted in the temple of Liberty; the temple which his father had built and dedicated on the Aventine out of the proceeds of the fines.

[24.17] During these proceedings at Beneventum, Hannibal, after ravaging the Neapolitan territory, shifted his camp to Nola. As soon as the consul became aware of his approach he sent for Pomponius, the proprætor, to join him with the army which was in camp above Suessula, and prepared to meet the enemy without delay. He sent C. Claudius Nero with the best of the cavalry out through the camp gate which was furthest from the enemy, in the dead of night, with instructions to ride round to the rear of the enemy without being observed and follow him slowly, and when he saw the battle begin, throw himself across his rear. Nero was unable to follow out his instructions, whether because he lost his way or because he had not sufficient time is uncertain. The battle commenced in his absence and the Romans undoubtedly had the advantage, but owing to the cavalry not making their appearance in time the general's plans were all upset. Marcellus did not venture to pursue the retreating Carthaginians, and gave the signal for retreat though his soldiers were actually conquering. It is asserted that more than 2000 of the enemy were killed that day, whilst the Romans lost less than 400. About sunset Nero returned with his horses and men tired out to no purpose and

without having even seen the enemy. He was severely censured by the consul who even went so far as to say that it was entirely his fault that they had not inflicted on the enemy in his turn a defeat as crushing as the one at Cannae. The next day the Romans marched into the field, but the Carthaginian remained in camp, thereby tacitly admitting that he was vanquished. The following day he gave up all hope of gaining possession of Nola, his attempts having been always foiled, and proceeded to Tarentum, where he had better hopes of securing the place through treachery.

[24.18]The government showed quite as much energy at home as in the field. Owing to the emptiness of the treasury the censors were released from the task of letting out public works to contract, and they devoted their attention to the regulation of public morals and the castigation of the vices which sprang up during the war, just as constitutions enfeebled by long illness naturally develop other evils. They began by summoning before them those who were reported to have formed plans for abandoning Italy after the defeat of Cannae; the principal person concerned, M. Caecilius Metellus, happened to be praetor at the time. He and the rest who were involved in the charge were put upon their trial, and as they were unable to clear themselves the censors pronounced them guilty of having uttered treasonable language both privately and publicly in order that a conspiracy might be formed for abandoning Italy. Next to these were summoned those who had been too clever in explaining how they were absolved from their oath, the prisoners who imagined that when they had furtively gone back, after once starting, to Hannibal's camp they were released from the oath which they had taken to return. In their case and in that of those above mentioned, all who possessed horses at the cost of the State were deprived of them, and they were all removed from their tribes and disfranchised. Nor were the attentions of the censors confined to the senate or the equestrian order, they took out from the registers of the junior centuries the names of all those who had not served for four years, unless formally exempted or incapacitated by sickness, and the names of above 2000 men were removed from the tribes and the men disfranchised. This drastic procedure of the censors was followed by severe action on the part of the senate. They passed a resolution that all those whom the censors had degraded were to serve as foot soldiers and be sent to the remains of the army of Cannae in Sicily. This class of soldiers

was only to terminate its service when the enemy had been driven out of Italy.

As the censors were now abstaining, owing to the emptiness of the treasury, from making any contracts for repairs to the sacred edifices or for supplying chariot horses or similar objects, they were frequently approached by those who had been in the habit of tendering for these contracts, and urged to conduct all their business and let out the contracts just as if there was money in the treasury. No one, they said, would ask for money from the exchequer till the war was over. Then came the owners of the slaves whom Tiberius Sempronius had manumitted at Beneventum. They stated that they had had notice from the financial commissioners that they were to receive the value of their slaves, but they would not accept it till the war was at an end. While the plebeians were thus showing their readiness to meet the difficulties of an empty exchequer, the moneys of minors and wards and then of widows began to be deposited, those who brought the money believing that their deposits would not be safer or more scrupulously protected anywhere than when they were under the guarantee of the State. Whatever was bought or provided for the minors and widows was paid for by a bill of exchange on the quaestor. This generous spirit on the part of individual citizens spread from the City to the camp, so that not a single horse soldier, not a single centurion would accept pay; whoever did accept it received the opprobrious epithet of "mercenary."

[24.19]It has been stated above that the consul, Q. Fabius, was encamped near Casilinum, which was held by a garrison of 2000 Campanians and 700 of Hannibal's troops. Statius Metius had been sent by Gnaevius Magius of Atella, who was the "medixtuticus" for that year, to take command, and he had armed the populace and the slaves indiscriminately in order to attack the Roman camp while the consul was engaged in the assault on the town. Fabius was perfectly aware of all that was going on, and he sent word to his colleague at Nola that a second army would be needed to hold the Campanians while he was delivering the assault, and either he should come himself and leave a sufficient force at Nola, or, if there was still danger to be apprehended from Hannibal and Nola required his presence, he should recall Tiberius Gracchus from Beneventum. On receipt of this message Marcellus left 2000 men to protect Nola and came with the rest of his army to Casilinum. His arrival put an end to any

movement on the part of the Campanians, and Casilinum was now besieged by both consuls. Many of the Roman soldiers were wounded by rashly venturing too near the walls, and the operations were by no means successful. Fabius thought that the enterprise, which was of small importance though quite as difficult as more important ones, ought to be abandoned, and that they ought to go where more serious business awaited them. Marcellus urged that while there were many things which a great general ought not to undertake, still, when he had undertaken them, he ought not to let them drop, as in either case it had great influence on public opinion. He succeeded in preventing the siege from being abandoned. Now the assault commenced in earnest, and when the vineae and siege works and artillery of every kind were brought against the walls, the Campanians begged Fabius to be allowed to depart under safe conduct to Capua. After a few had got outside the town Marcellus occupied the gate through which they were leaving, and an indiscriminate slaughter began, first amongst those near the gate and then, after the troops burst in, in the city itself. About fifty of the Campanians had already passed out and they fled to Fabius, under whose protection they reached Capua. During these parleys, and the delay occasioned by those who appealed for protection, the besiegers found their opportunity and Casilinum was taken. The Campanians and those of Hannibal's troops who were made prisoners were sent to Rome and shut up in prison; the mass of the townsfolk were distributed amongst the neighbouring communities to be kept in custody.

[24.20] Just at the time when the consuls were withdrawing from Casilinum after their success, Gracchus sent some cohorts, which he had raised in Lucania under an officer of the allies, on a plundering expedition in the enemy's territory. Whilst they were scattered in all directions Hanno attacked them and inflicted on them as great a loss as he had suffered at Beneventum, after which he hurriedly retreated into Bruttium lest Gracchus should be on his track. Marcellus went back to Nola, Fabius marched into Samnium to lay waste the country and to recover by force of arms the cities which had revolted. His hand fell most heavily on Caudium; the crops were burnt far and wide, cattle and men were driven away as plunder, their towns were taken by assault; Compulteria, Telesia, Compsa, and after these Fugifulae and Orbitanium, amongst the Lucanians Blandae and the

Apulian town of Aecae, were all captured. In these places 25,000 of the enemy were either killed or made prisoners and 370 deserters were taken, whom the consul sent on to Rome; they were all scourged in the Comitium and then flung from the rock. All these successes were gained by Q. Fabius within a few days. Marcellus was compelled to remain quiet at Nola owing to illness. The praetor, Q. Fabius, was also meeting with success; he was operating in the country round Luceria and captured the town of Acuca, after which he established a standing camp at Ardaneae.

While the Roman generals were thus engaged elsewhere Hannibal had reached Tarentum, utterly ruining and destroying everything as he advanced. It was not till he was in the territory of Tarentum that his army began to advance peaceably; no injury was inflicted, no foragers or plunderers left the line of march, and it was quite apparent that this self-restraint on the part of the general and his men was solely with a view to winning the sympathies of the Tarentines. When, however, he went up to the walls and there was no such movement as he expected at the sight of his army, he went into camp about a mile from the city. Three days before his arrival M. Valerius, the propraetor, who was in command of the fleet at Brundisium, had sent M. Livius to Tarentum. He speedily embodied a force out of the young nobility, and posted detachments at the gates and on the walls wherever it seemed necessary, and by being ever on the alert day and night gave no chance to either the enemy or the untrustworthy allies of making any attempt themselves or hoping for anything from Hannibal. After spending some days there fruitlessly and finding that none of those who had paid him a visit at Lake Avernus either came in person or sent any messenger or letter, he recognised that he had been misled by empty promises and withdrew his army. He still abstained from doing any injury to the Tarentine territory, although this affectation of mildness had done him no good so far. He still clung to the hope of undermining their loyalty to Rome. When he came to Salapia the summer was now over, and as the place seemed suitable for winter quarters he provisioned it with corn collected from the country round Metapontum and Heraclea. From this centre the Numidians and Moors were sent on marauding expeditions through the Sallentine district and the pasture lands bordering on Apulia; they brought away mostly quantities of horses, not much

plunder of other kinds, and as many as 4000 of these were distributed amongst the troopers to be trained.

[24.21] A war was threatening in Sicily which could by no means be treated lightly, for the death of the tyrant had rather furnished the Syracusans with able and energetic leaders than produced any change in their political sentiments. The senate accordingly placed the other consul, M. Marcellus, in charge of that province. Immediately after the death of Hieronymus a disturbance broke out among the soldiery at Leontini; they loudly demanded that the murder of the king should be atoned for by the blood of the conspirators. When, however, the words, so delightful to hear, "the restoration of liberty," were constantly uttered, and they were led to hope that they would receive a largesse out of the royal treasure and would henceforth serve under more able generals, when, too, the foul crimes and still fouler lusts of the late tyrant were recounted to them, their feelings were so completely changed that they allowed the body of the king, whose loss they had regretted, to lie unburied. The rest of the conspirators remained behind to secure the army, whilst Theodotus and Sosis, mounting the king's horses, rode at full speed to Syracuse to crush the royalists while still ignorant of all that had happened. Rumour, however, which on such occasions travels more quickly than anything else, reached the city before them, and also one of the royal servants had brought the news. Thus forewarned, Andranodorus had occupied with strong garrisons the Island, the citadel, and all the other suitable positions. Theodotus and Sosis rode in through the Hexapylon after sunset when it was growing dark and displayed the blood-stained robe of the king and the diadem that had adorned his head. Then they rode on through the Tycha, and summoning the people to liberty and to arms bade them assemble in the Achradina. Some of the population ran out into the streets, others stood in the doorways, others looked out from the windows and the roofs inquiring what was the matter. Lights were visible everywhere and the whole city was in an uproar. Those who had arms mustered in the open spaces of the city; those who had none tore down the spoils of the Gauls and Illyrians which the Roman people had given to Hiero and which he had hung up in the temple of Olympian Jupiter, and as they did so prayed to the deity that he would of his grace and mercy lend them those consecrated arms to use in defence of the shrines of the gods and in defence of their liberty. The citizens were

joined by the troops who had been posted in the different parts of the city. Amongst the other places in the Island Andranodorus had strongly occupied the public granary. This place, enclosed by a wall of large stone blocks and fortified like a citadel, was held by a body of young men told off for its defence, and they sent messengers to the Achradina to say that the granaries and the corn stored there were in the possession of the senate.

[24.22]As soon as it was light the whole population, armed and unarmed, assembled at the Senate-house in the Achradina. There, in front of the temple of Concord, which was situated there, Polyaenus, one of the prominent citizens, made a speech which breathed of freedom but at the same time counselled moderation. "Men," he said, "who have experienced the fear and the humiliation of slavery are stung to rage against an evil which they know well. What disasters civil discord brings in its train, you, Syracusans, have heard from your fathers rather than witnessed yourselves. I praise your action in so promptly taking up arms, I shall praise you more if you do not use them unless compelled to do so as a last resort. I should advise you to send envoys at once to Andranodorus and warn him to submit to the authority of the senate and people, to open the gates of the Island, and surrender the fort. If he chooses to usurp the sovereignty of which he has been appointed guardian, then I tell you you must show much more determination in recovering your liberties from him than you did from Hieronymus."

Envoys were accordingly sent. A meeting of the senate was then held. During the reign of Hiero this body had continued to act as the great council of the nation, but after his death it had never up to that day been summoned or consulted about any matter whatever. Andranodorus, on the arrival of the envoys, was much impressed by the unanimity of the people and also by the seizure of various points in the city, especially in the Island, the most strongly fortified position in which had been betrayed to his opponents. But his wife, Demarata, a daughter of Hiero, with all the spirit of a princess and the ambition of a woman, called him aside from the envoys and reminded him of an oft-quoted saying of Dionysius the tyrant that one ought to relinquish sovereign power when dragged by the heels not when mounted on a horse. It was easy for any one who wished to resign in a moment a great position, but to create and secure it was a difficult and arduous task. She advised him to ask the envoys for time for

consultation, and to employ that time in summoning the troops from Leontini; if he promised to give them the royal treasure, he would have everything in his own power. These feminine suggestions Andranodorus did not wholly reject, nor did he at once adopt them. He thought the safest way of gaining power was to yield for the time being, so he told the envoys to take back word that he should submit to the authority of the senate and people. The next day as soon as it was light he opened the gates of the Island and entered the forum in the Achradina. He went up to the altar of Concord, from which the day before Polyaenus had addressed the people; and began his speech by apologising for his delay. "I have," he went on, "it is true, closed the gates, but not because I regard my interests as separate from those of the State, but because I felt misgivings, when once the sword was drawn, as to how far the thirst for blood might carry you, whether you would be content with the death of the tyrant, which amply secures your liberty, or whether every one who had been connected with the palace by relationship or by official position was to be put to death as being involved in another's guilt. As soon as I saw that those who freed their country meant to keep it free and that all were consulting the public good, I had no hesitation in giving back to my country my person and all that had been entrusted to my protection now that he who committed them to me has perished through his own madness." Then turning to the king's assassins and addressing Theodotus and Sosis by name, he said, "You have wrought a deed that will be remembered but, believe me, your reputation has yet to be made, and unless you strive for peace and concord there is a most serious danger ahead; the State will perish in its freedom."

[24.23]With these words he laid the keys of the gates and of the royal treasury at their feet. The assembly was then dismissed for the day and the joyful citizens accompanied by their wives and children offered thanksgivings at all the temples. The next day the election was held for the appointment of praetors. Amongst the first to be elected was Andranodorus, the rest were mostly men who had taken part in the tyrant's death; two were elected in their absence, Sopater and Dinomenes. These two, on hearing what had happened at Syracuse, brought that part of the royal treasure which was at Leontini and delivered it into the charge of specially appointed quaestors, that portion which was in the Island was also handed over to them in Achradina. That part of the wall which shut off the Island

from the city by a needlessly strong barrier was with the unanimous approval of the citizens thrown down, and all the other measures taken were in harmony with the general desire for liberty. As soon as Hippocrates and Epicydes heard of the tyrant's death, which Hippocrates had tried to conceal by putting the messenger to death, finding themselves deserted by their soldiers they returned to Syracuse, as this seemed the safest course under the circumstances. To avoid attracting observation or being suspected of plotting a counter-revolution, they approached the praetors, and through them were admitted to an audience of the senate. They declared publicly that they had been sent by Hannibal to Hieronymus as to a friend and ally; they had obeyed the commands of the men whom their general Hannibal had wished them to obey, and now they were anxious to return to Hannibal. The journey, however, was not a safe one, for the Romans were to be found in every part of Sicily; they requested therefore that they might have an escort to conduct them to Socri in Italy, in this way the Syracusans would confer a great obligation on Hannibal with very little trouble to themselves. The request was very readily granted, for they were anxious to see the last of the king's generals who were not only able commanders but also needy and daring adventurers. But Hippocrates and Epicydes did not execute their purpose with the promptness which seemed necessary. These young men, thorough soldiers themselves and living in familiar intercourse with soldiers, went about amongst the troops, amongst the deserters, consisting to a large extent of Roman seamen, and even amongst the dregs of the populace, spreading libellous charges against the senate and the aristocracy, whom they accused of secretly plotting and contriving to bring Syracuse under the suzerainty of Rome under the pretence of renewing the alliance. Then, they hinted, the small faction which had been the prime agents in renewing the treaty would be the masters of the city.

[24.24] These slanders were listened to and believed in by the crowds which flocked to Syracuse in greater numbers every day, and not only Epicydes but even Andranodorus began to entertain hopes of a successful revolution. The latter was constantly being warned by his wife that now was the time to seize the reins of power whilst a new and unorganised liberty had thrown everything into confusion, while a soldiery, battenning on the royal donative, was ready to his hand, and while Hannibal's emissaries, generals who could handle troops, were

able to aid his enterprise. Wearied out at last by her importunity he communicated his design to Themistus, the husband of Gelo's daughter, and a few days later he incautiously disclosed it to a certain Aristo, a tragic actor to whom he had been in the habit of confiding other secrets. Aristo was a man of respectable family and position, nor did his profession in any way disgrace him, for among the Greeks nothing of that kind is a thing to be ashamed of. This being his character, he thought that his country had the first and strongest claim on his loyalty, and he laid an information before the praetors. As soon as they ascertained by decisive evidence that it was no merely trumped up affair they consulted the elder senators and on their authority placed a guard at the door and slew Themistus and Andranodorus as they entered the Senate-house. A disturbance was raised at what appeared an atrocious crime by those who were ignorant of the reason, and the praetors, having at last obtained silence, introduced the informer into the senate. The man gave all the details of the story in regular order. The conspiracy was first started at the time of the marriage of Gelo's daughter Harmonia to Themistus; some of the African and Spanish auxiliary troops had been told off to murder the praetor and the rest of the principal citizens and had been promised their property by way of reward; further, a band of mercenaries, in the pay of Andranodorus, were in readiness to seize the Island a second time. Then he put before their eyes the several parts which each were to play and the whole organisation of the conspiracy with the men and the arms that were to be employed. The senate were quite convinced that the death of these men was as justly deserved as that of Hieronymus, but clamours arose from the crowd in front of the Senate-house, who were divided in their sympathies and doubtful as to what was going on. As they pressed forward with threatening shouts into the vestibule, the sight of the conspirators' bodies so appalled them that they became silent and followed the rest of the population who were proceeding calmly to hold an assembly. Sopater was commissioned by the senate and by his colleagues to explain the position of affairs.

[24.25]He began by reviewing the past life of the dead conspirators, as though he were putting them on their trial, and showed how all the scandalous and impious crimes that had been committed since Hiero's death were the work of Andranodorus and Themistus. "For what," he asked, "could a boy like Hieronymus, who was hardly in

his teens, have done on his own initiative? His guardians and masters reigned unmolested because the odium fell on another; they ought to have perished before Hieronymus or at all events when he did. Yet these, men, deservedly marked out for death, committed fresh crimes after the tyrant's decease; at first openly, when Andranodorus closed the gates of the Island and, by declaring himself heir to the crown, seized, as though he were the rightful owner, what he had held simply as trustee. Then, when he was abandoned by all in the Island and kept at bay by the whole body of the citizens who held the Achradina, he tried by secret craft to attain the sovereignty which he had failed to secure by open violence. He could not be turned from his purpose even by the favour shown him and the honour conferred, when he who was plotting against liberty was elected praetor with those who had won their country's freedom. But it was really the wives who were responsible and who, being of royal blood, had filled their husbands with a passion for royalty, for one of the men had married Hiero's daughter, the other a daughter of Gelo." At these words shouts rose from the whole assembly declaring that neither of these women ought to live, and that no single member of the royal family ought to survive. Such is the character of the mob; either they are cringing slaves or ruthless tyrants. As for the liberty which lies between these extremes, they are incapable of losing it without losing their self-respect, or possessing it without falling into licentious excesses. Nor are there, as a rule, wanting men, willing tools, to pander to their passions and excite their bitter and vindictive feelings to bloodshed and murder. It was just in this spirit that the praetors at once brought forward a motion which was adopted almost before it was proposed, that all the blood royal should be exterminated. Emissaries from the praetors put to death Demarata and Harmonia, the daughters of Hiero and Gelo and the wives of Andranodorus and Themistus.

[24.26] There was another daughter of Hiero's, Heraclia, the wife of Zoippus, a man whom Hieronymus had sent on an embassy to Ptolemy, and who had chosen to remain in voluntary exile. As soon as she learned that the executioners were coming to her she fled for sanctuary into the private chapel where the household gods were, accompanied by her unmarried daughters with their hair dishevelled and everything in their appearance which could appeal to pity. This silent appeal she strengthened by remonstrances and prayers. She

implored the executioners by the memory of her father Hiero and her brother Gelo not to allow an innocent woman like her to fall a victim to the hatred felt for Hieronymus. "All that I have gained by his reign is my husband's exile; in his lifetime my sisters' fortunes were very different from mine and now that he has been killed our interests are not the same. Why! had Andranodorus' designs succeeded, her sister would have shared her husband's throne and the rest would have been her slaves. Is there one of you who doubts that if any one were to announce to Zoippus the assassination of Hieronymus and the recovery of liberty for Syracuse, he would not at once take ship and return to his native land? How are all human hopes falsified! Now his country is free and his wife and children are battling for their lives, and in what are they opposing freedom and law? What danger is there for any man in a lonely, all but widowed woman and daughters who are living in orphanhood? Ah, but even if there is no danger to be feared from us, we are of the hated royal birth. Then banish us far from Syracuse and Sicily, order us to be transported to Alexandria, send the wife to her husband, the daughters to their father."

She saw that ears and hearts were deaf to her appeals and that some were getting their swords ready without further loss of time. Then, no longer praying for herself, she implored them, to spare her daughters; their tender age even an exasperated enemy would respect. "Do not," she cried, "in wreaking vengeance on tyrants, imitate the crimes which have made them so hated." In the midst of her cries they dragged her out of the chapel and killed her. Then they attacked the daughters who were bespattered with their mother's blood. Distracted by grief and terror they dashed like mad things out of the chapel, and, could they have escaped into the street, they would have created a tumult all through the city. Even as it was, in the confined space of the house they for some time eluded all those armed men without being hurt, and freed themselves from those who got hold of them, though they had to struggle out of so many strong hands. At last, exhausted by wounds, while the whole place was covered by their blood, they fell lifeless to the ground. Their fate, pitiable in any case, was made still more so by an evil chance, for very soon after all was over a messenger came to forbid their being killed. The popular sentiment had changed to the side of mercy, and mercy soon passed into self-accusing anger for they had been so hasty to punish that

they had left no time for repentance or for their passions to cool down. Angry remonstrances were heard everywhere against the praetors, and the people insisted upon an election to fill the places of Andranodorus and Themistus, a proceeding by no means to the liking of the other praetors.

[24.27]When the day fixed for the election arrived, to the surprise of all, a man from the back of the crowd proposed Epicydes, then another nominated Hippocrates. The voices of their supporters become more and more numerous and evidently carried with them the assent of the people. As a matter of fact the gathering was a very mixed one; there were not only citizens, but a crowd of soldiers present, and a large proportion of deserters, ripe for a complete revolution, were mingled with them. The praetors pretended at first not to hear and tried hard to delay the proceedings; at last, powerless before a unanimous assembly, and dreading a seditious outbreak, they declared them to be duly elected praetors. They did not reveal their designs immediately they were appointed, though they were extremely annoyed at envoys having gone to Appius Claudius to arrange a ten days' truce, and at others having been sent, after it was arranged, to discuss the renewal of the ancient treaty. The Romans had at the time a fleet of a hundred vessels at Murgantia awaiting the issue of the disturbances which the massacre of the royal family had created in Syracuse and the effect upon the people of their new and untried freedom. During that time the Syracusan envoys had been sent by Appius to Marcellus on his arrival in Sicily, and Marcellus, after hearing the proposed terms of peace, thought that the matter could be arranged and accordingly sent envoys to Syracuse to discuss publicly with the praetors the question of renewing the treaty. But now there was nothing like the same state of quiet and tranquillity in the city. As soon as news came that a Carthaginian fleet was off Pachynum, Hippocrates and Epicydes, throwing off all fear, went about amongst the mercenaries and then amongst the deserters declaring that Syracuse was being betrayed to the Romans. When Appius brought his ships to anchor at the mouth of the harbour in the hope of increasing the confidence of those who belonged to the other party, these groundless insinuations received to all appearance strong confirmation, and at the first sight of the fleet the people ran down to the harbour in a state of great excitement to prevent them from making any attempt to land.

[24.28]As affairs were in such a disturbed condition it was decided to hold an assembly. Here the most divergent views were expressed and things seemed to be approaching an outbreak of civil war when one of their foremost citizens, Apollonides, rose and made what was under the circumstances a wise and patriotic speech. "No city," he said, "has ever had a brighter prospect of permanent security or a stronger chance of being utterly ruined than we have at the present moment. If we are all agreed in our policy, whether it take the side of Rome or the side of Carthage, no state will be in a more prosperous and happy condition; if we all pull different ways, the war between the Carthaginians and the Romans will not be a more bitter one than between the Syracusans themselves, shut up as they are within the same walls, each side with its own army, its own munitions of war, its own general. We must then do our very utmost to secure unanimity. Which alliance will be the more advantageous to us is a much less important question, and much less depends upon it, but still I think that we ought to be guided by the authority of Hiero in choosing our allies rather than by that of Hieronymus; in any case we ought to prefer a tried friendship of fifty years' standing to one of which we now know nothing and once found untrustworthy. There is also another serious consideration - we can decline to come to terms with the Carthaginians without having to fear immediate hostilities with them, but with the Romans it is a question of either peace or an immediate declaration of war." The absence of personal ambition and party spirit from this speech gave it all the greater weight, and a council of war was at once summoned, in which the praetors and a select number of senators were joined by the officers and commanders of the auxiliaries. There were frequent heated discussions, but finally, as there appeared to be no possible means of carrying on a war with Rome, it was decided to conclude a peace and to send an embassy along with the envoys who had come from Marcellus to obtain its ratification.

[24.29]Not many days elapsed before a deputation came from Leontini begging for a force to protect their territory. This request seemed to afford a most favourable opportunity for relieving the city of a number of insubordinate and disorderly characters and getting rid of their leaders. Hippocrates received orders to march the deserters to Leontini, with these and a large body of mercenaries he made up a force of 4000 men. The expedition was welcomed both

by those who were despatched and those who were despatching them: the former saw the opportunity, long hoped for, of effecting a revolution; the latter were thankful that the dregs of the city were being cleared out. It was, however, only a temporary alleviation of the disease, which afterwards became all the more aggravated. For Hippocrates began to devastate the country adjacent to the Roman province; at first making stealthy raids, then, when Appius had sent a detachment to protect the fields of the allies of Rome, he made an attack with his entire force upon one of the outposts and inflicted heavy loss. When Marcellus was informed of this he promptly sent envoys to Syracuse to say that the peace they had guaranteed was broken, and that an occasion of war would never be wanting until Hippocrates and Epicydes had been banished far away, not only from Syracuse, but from Sicily. Epicydes feared that if he remained he should be held responsible for the misdeeds of his absent brother, and also should be unable to do his share in stirring up war, so he left for Leontini, and finding the people there sufficiently exasperated against Rome, he tried to detach them from Syracuse as well. "The Syracusans," he said, "have concluded a peace with Rome on condition that all the communities which were under their kings should remain under their rule; they are no longer content to be free themselves unless they can rule and tyrannise over others. You must make them understand that the Leontines also think it right that they should be free, and that for two reasons; it was on Leontine soil that the tyrant fell, and it was at Leontini that the cry of liberty was first raised, and from Leontini the people flocked to Syracuse, after deserting the royal leaders. Either that provision of the treaty must be struck out, or if it is insisted upon, the treaty must not be accepted." They had no difficulty in persuading the people, and when the Syracusan envoys made their protest against the massacre of the Roman outpost and demanded that Hippocrates and Epicydes should go to Locri or any other place which they preferred so long as they left Sicily, they received the defiant reply that the Leontines had given no mandate to the Syracusans to conclude a treaty with Rome, nor were they bound by any compacts which other people made. The Syracusans reported this to the Romans, and said that the Leontines were not under their control, "in which case," they added, "the Romans may carry on war with them without any infringement of their treaty with us, nor shall we stand aloof in such a war, if it is clearly understood that when they have been subjugated they will

again form part of our dominions in accordance with the terms of the treaty."

[24.30]Marcellus advanced with his whole force against Leontini and summoned Appius to attack it on the opposite side. The men were so furious at the butchery of the outpost while negotiations were actually going on that they carried the place at the first assault. When Hippocrates and Epicydes saw that the enemy were getting possession of the walls and bursting in the gates, they retreated with a small following to the citadel, and during the night made their escape secretly to Herbesus. The Syracusans had already started with an army of 8000 men, and were met at the river Myla with the news that the city was captured. The rest of the message was mostly false: their informant told them that there had been an indiscriminate massacre of soldiers and civilians, and he thought that not a single adult was left alive; the city had been looted and the property of the wealthy citizens given to the troops. On receiving this shocking intelligence the army halted; there was great excitement in all ranks, and the generals, Sosis and Dinomenes, consulted as to what was to be done. What lent a certain plausibility to the story and afforded apparent grounds for alarm was the scourging and beheading of as many as two thousand deserters, but otherwise not one of the Leontines or the regular troops had been injured after the city was taken and every man's property was restored to him beyond what had been destroyed in the first confusion of the assault. The men could not be induced to continue their march to Leontini, though they loudly protested that their comrades had been given up to massacre, nor would they consent to remain where they were and wait for more definite intelligence. The praetors saw that they were inclined to mutiny, but they did not believe that the excitement would last long if those who were leading them in their folly were put out of the way. They conducted the army to Megara and rode on with a small body of cavalry to Herbesus, hoping in the general panic to secure the betrayal of the place. As this attempt failed, they resolved to resort to force, and the following day marched from Megara with the intention of attacking Herbesus with their full strength. Now that all hope was cut off, Hippocrates and Epicydes thought that their only course, and that not at first sight a very safe one, was to give themselves up to the soldiers, who knew them well, and were highly incensed at the story of the massacre. So they went to meet the army. It so happened

that the front ranks consisted of a body of 600 Cretans who had served under these very men in Hieronymus's army and had had experience of Hannibal's kindness, having been taken prisoners with other auxiliary troops at Trasumennus and afterwards released. When Hippocrates and Epicydes recognised them by their standards and the fashion of their arms they held out olive branches and other suppliant emblems and begged them to receive and protect them and not give them up to the Syracusans, who would surrender them to the Romans to be butchered.

[24.31]"Be of good heart," came back the answering shout, "we will share all your fortunes." During this colloquy the standards had halted and the whole army was stopped, but the generals had not yet learnt the cause of the delay. As soon as the rumour spread that Hippocrates and Epicydes were there, and cries of joy from the whole army showed unmistakably how glad they were that they had come, the praetors rode up to the front and sternly demanded: "What is the meaning of this conduct? What audacity is this on the part of the Cretans, that they should dare to hold interviews with an enemy and admit him against orders into their ranks? "They ordered Hippocrates to be arrested and thrown into chains. At this order such angry protests were made by the Cretans, and then by others, that the praetors saw that if they went any further their lives would be in danger. Perplexed and anxious they issued orders to return to Megara, and sent messengers to Syracuse to report as to the situation they were in. Upon men who were ready to suspect everybody Hippocrates practiced a fresh deceit. He sent some of the Cretans to lurk near the roads, and read a despatch which he had put together himself, giving out that it had been intercepted. It bore the address, "The praetors of Syracuse to the consul Marcellus," and after the usual salutation went on to say, "You have acted rightly and properly in not sparing a single Leontine, but all the mercenaries are making common cause and Syracuse will never be at peace as long as there are any foreign auxiliaries either in the city or in our army. Do your best, therefore, to get into your power those who are with our praetors in camp at Megara and by their punishment secure liberty at last for Syracuse." After the reading of this letter there was a general rush to arms and such angry shouts were raised that the praetors, appalled by the tumult, rode off to Syracuse. Not even their flight quieted the disturbance, and the Syracusan soldiers were being

attacked by the mercenaries, nor would a single man have escaped their violence had not Epicydes and Hippocrates withstood their rage, not from any feeling of pity or humanity, but the fear of cutting off all hopes of their return. Besides, by thus protecting the soldiers they would have them as faithful adherents as well as hostages, and they would at the same time win over their friends and relations in the first place by doing so great a service and afterwards by keeping them as guarantees of loyalty. Having learnt by experience how easy it is to excite the senseless mob, they got hold of one of the men who had been in Leontini when it was captured, and bribed him to carry intelligence to Syracuse similar to what they had been told at Myla, and to rouse the passions of the populace by personally vouching for the truth of his story and silencing all doubts by declaring that he had been an eyewitness of what he narrated.

[24.32] This man not only obtained credence with the mob, but after being introduced into the senate actually produced an impression on that body. Some of those present who were by no means lacking in sense openly averred that it was a very good thing that the Romans had displayed their rapacity and cruelty at Leontini for, had they entered Syracuse, they would have behaved in the same way or even worse, since there was more to feed their rapacity. It was the unanimous opinion that the gates should be shut and the city put in a state of defence, but they were not unanimous in their fears and hates. To the whole of the soldiery and to a large proportion of the population the Romans were the objects of detestation; the praetor and a few of the aristocracy were anxious to guard against a nearer and more pressing danger, though they too were excited by the false intelligence. For as a matter of fact, Hippocrates and Epicydes were already at the Hexapylon, and conversations were going on amongst the relations of the Syracusan soldiers about opening the gates and letting their common country be defended from any attack by the Romans. One of the gates of the Hexapylon had already been thrown open and the troops were beginning to be admitted when the praetors appeared on the scene. At first they used commands and threats, then they brought their personal authority to bear, and at last, finding all their efforts useless, they resorted to entreaties, regardless of their dignity, and implored the citizens not to betray their country to men who had once danced attendance on a tyrant and were now corrupting the army. But the ears of the maddened people were deaf

to their appeals and the gates were battered as much from within as from without. After they had all been burst open the army was admitted through the whole length of the Hexapylon. The praetors and the younger citizens took refuge in the Achradina. The enemies' numbers were swelled by the mercenaries, the deserters, and all the late king's guards who had been left in Syracuse, with the result that the Achradina was captured at the first attempt, and all the praetors who had failed to make their escape in the confusion were put to death. Night put an end to the massacre. The following day the slaves were called up to receive the cap of freedom and all who were in gaol were released. This motley crowd elected Hippocrates and Epicydes praetors, and Syracuse, after its short-lived gleam of liberty, fell back into its old bondage.

[24.33]When the Romans received information of what was going on they at once broke their camp at Leontini and marched to Syracuse. Some envoys had been sent by Appius to pass through the harbour on board a quinquereme, and a quadrireme which had sailed in advance of them was captured, the envoys themselves making their escape with great difficulty. It soon became apparent that not only the laws of peace but even the laws of war were no longer respected. The Roman army had encamped at the Olympium - a temple of Jupiter - about a mile and a half from the city. It was decided to send envoys again from there; and Hippocrates and Epicydes met them with their attendants outside the gate, to prevent them from entering the city. The spokesman of the Romans said they were not bringing war to the Syracusans but help and succour, both for those who had been cowed by terror and for those who were enduring a servitude worse than exile, worse even than death itself. "The Romans," he said, "will not allow the infamous massacre of their allies to go unavenged. If, therefore, those who have taken refuge with us are at liberty to return home unmolested, if the ringleaders of the massacre are given up and if Syracuse is allowed once more to enjoy her liberty and her laws, there is no need of arms; but if these things are not done we shall visit with all the horrors of war those, whoever they are, who stand in the way of our demands being fulfilled." To this Epicydes replied: "If we had been the persons to whom your demands are addressed we should have replied to them; when the government of Syracuse is in the hands of those to whom you were sent, then you can return again. If you provoke us to war you will

learn by experience that to attack Syracuse is not quite the same thing as attacking Leontini." With these words he left the envoys and closed the gates. Then a simultaneous attack by sea and land was commenced on Syracuse. The land attack was directed against the Hexapylon; that by sea against Achradina, the walls of which are washed by the waves. As they had carried Leontini at the first assault owing to the panic they created, so the Romans felt confident that they would find some point where they could penetrate into the wide and scattered city, and they brought up the whole of their siege artillery against the walls.

[24.34]An assault begun so vigorously would have undoubtedly succeeded had it not been for one man living at the time in Syracuse. That man was Archimedes. Unrivalled as he was as an observer of the heavens and the stars, he was still more wonderful as the inventor and creator of military works and engines by which with very little trouble he was able to baffle the most laborious efforts of the enemy. The city wall ran over hills of varying altitude, for the most part lofty and difficult of access, but in some places low and admitting of approach from the level of the valleys. This wall he furnished with artillery of every kind, according to the requirements of the different positions. Marcellus with sixty quinqueremes attacked the wall of Achradina, which as above stated is washed by the sea. In the other ships were archers, slingers, and even light infantry, whose missile is an awkward one to return for those who are not expert at it, so they hardly allowed any one to remain on the walls without being wounded. As they needed space to hurl their missiles, they kept their ships some distance from the walls. The other quinqueremes were fastened together in pairs, the oars on the inside being shipped so as to allow of the sides being brought together; they were propelled like one ship by the outside set of oars, and when thus fastened together they carried towers built up in stories and other machinery for battering the wall.

To meet this naval attack Archimedes placed on the ramparts engines of various sizes. The ships at a distance he bombarded with immense stones, the nearer ones he raked with lighter and therefore more numerous missiles; lastly he pierced the entire height of the walls with loopholes about eighteen inches wide so that his men might discharge their missiles without exposing themselves. Through these openings they aimed arrows and small so-called "scorpions" at the

enemy. Some of the ships which came in still more closely in order to be beneath the range of the artillery were attacked in the following way. A huge beam swinging on a pivot projected from the wall and a strong chain hanging from the end had an iron grappling hook fastened to it. This was lowered on to the prow of a ship and a heavy lead weight brought the other end of the beam to the ground, raising the prow into the air and making the vessel rest on its stern. Then the weight being removed, the prow was suddenly dashed on to the water as though it had fallen from the wall, to the great consternation of the sailors; the shock was so great that if it fell straight it shipped a considerable amount of water. In this way the naval assault was foiled, and all the hopes of the besiegers now rested upon an attack from the side of the land, delivered with their entire strength. But here too Hiero had for many years devoted money and pains to fitting up military engines of every kind, guided and directed by the unapproachable skill of Archimedes. The nature of the ground also helped the defence. The rock on which the foundations of the wall mostly rested was for the greater part of its length so steep that not only when stones were hurled from the engines but even when rolled down with their own weight they fell with terrible effect on the enemy. The same cause made any approach to the foot of the walls difficult and the foothold precarious. A council of war was accordingly held and it was decided, since all their attempts were frustrated, to desist from active operations and confine themselves simply to a blockade, and cut off all supplies from the enemy both by land and sea.

[24.35]Marcellus in the meanwhile proceeded with about one-third of his army to recover the cities which in the general disturbance had seceded to the Carthaginians. Helorum and Herbesus at once made their submission, Megara was taken by assault and sacked and then completely destroyed in order to strike terror into the rest, especially Syracuse. Himilco, who had been for a considerable time cruising with his fleet off the promontory of Pachynus, returned to Carthage as soon as he heard that Syracuse had been seized by Hippocrates. Supported by the envoys from Hippocrates and by a despatch from Hannibal in which he said that the time had arrived for winning back Sicily in the most glorious way, and by the weight of his own personal presence, he had no difficulty in persuading the government to send to Sicily as large a force as they could of both infantry and cavalry.

Sailing back to the island he landed at Heraclea an army of 20,000 infantry, 3000 cavalry, and twelve elephants, a very much stronger force than he had with him at Pachynus. Immediately on his arrival he took Heraclea and a few days later Agrigentum. Other cities which had taken the side of Carthage were now so hopeful of expelling the Romans from Sicily that even the spirits of the blockaded Syracusans began to rise. Their generals considered that a portion of their army would be adequate for the defence of the city, and accordingly divided their force; Epicydes was to superintend the defence of the city, whilst Hippocrates was to conduct the campaign against the Roman consul in conjunction with Himilco. Hippocrates marched out of the city in the night through an unguarded part of the Roman lines and selected a site for his camp near the city of Acrillae. Marcellus came upon them while they were entrenching themselves. He had marched hastily to Agrigentum in the hope of reaching it before the enemy, but, finding it already occupied, was returning to his position before Syracuse and expected least of all to find a Syracusan force at that time and in that place. Knowing that he was no match with the troops he had for Himilco and his Carthaginians, he had advanced with the utmost caution, keeping a sharp look-out and guarding against any possible surprise.

[24.36]Whilst thus on the alert he fell in with Hippocrates, and the preparations he had made to meet the Carthaginians served him in good stead against the Syracusans. He caught them whilst forming their camp, dispersed and in disorder, and for the most part unarmed. The whole of their infantry were cut off, the cavalry offered but slight resistance and escaped with Hippocrates to Acrae. That battle checked the Sicilians in their revolt from Rome and Marcellus returned to Syracuse. A few days later Himilco, who had been joined by Hippocrates, fixed his camp by the river Anapus, about eight miles from Syracuse. A Carthaginian fleet of fifty-five vessels of war sailed about the same time into the great harbour of Syracuse from the high seas; and a Roman fleet, also, of thirty quinqueremes, landed the first legion at Panormus. It looked as if the war had been wholly diverted from Italy, so completely were both peoples devoting their attention to Sicily. Himilco fully expected that the legion which had been landed at Panormus would fall into his hands on its march to Syracuse, but he was disappointed as it did not take the route he expected. Whilst he marched inland, the legion proceeded along the

coast, accompanied by the fleet, and joined Appius Claudius who had come to meet it with a portion of his force. Now the Carthaginians despaired of relieving Syracuse and left it to its fate. Bomilcar did not feel sufficient confidence in his fleet as the Romans had one of double the number, and he saw that by remaining there inactive he was only aggravating the scarcity which prevailed amongst his allies, so he put out to sea and sailed across to Africa. Himilco had followed upon Marcellus' track to Syracuse, hoping for a chance of fighting before he was joined by superior forces; and as no opportunity of doing so occurred and he saw that the enemy were in great strength and safe within their lines round Syracuse he marched away, not caring to waste time by looking on in idleness at the investment of his allies. He also wished to be free to march wherever any hope of defection from Rome summoned him that he might by his presence encourage those whose sympathies were with Carthage. He began with the capture of Murgantia, where the populace betrayed the Roman garrison, and where a large quantity of corn and provisions of all kinds had been stored for the use of the Romans.

[24.37] Other cities took courage from this example of defection, and the Roman garrisons were either expelled from their strongholds or treacherously overpowered. Henna, situated on a lofty position precipitous on all sides was naturally impregnable, and it had also a strong Roman garrison and a commandant who was not at all a suitable man for traitors to approach. L. Pinarius was a keen soldier and trusted more to his own vigilance and alertness than to the fidelity of the Sicilians. The numerous betrayals and defections which reached his ears and the massacre of Roman garrisons made him more than ever careful to take every possible precaution. So by day and night alike, everything was in readiness, every position occupied by guards and sentinels, and the soldiers never laid aside their arms or left their posts. The chief citizens of Henna had already come to an understanding: with Himilco about betraying the garrison, and when they observed all this vigilance and recognised that the Romans were not open to any treacherous surprise, they saw that they would have to use forcible measures. "The city and its stronghold," they said, "are under our authority; if as free men we accepted the Roman alliance we did not hand ourselves over to be kept in custody as slaves. We think it right, therefore, that the keys of the gates should be given up to us; the strongest bond between good allies is to trust

one another's loyalty; it is only if we remain friends with Rome voluntarily and not by constraint that your people can feel grateful to us." To this the Roman commandant replied: "I have been placed in charge here by my commanding officer, it is from him that I have received the keys of the gates and the custody of the citadel; I do not hold these things at my own disposal or at the disposal of the citizens of Henna, but at the disposal of the man who committed them to my charge. To quit one's post is with the Romans a capital offence, and fathers have even punished it as such in the case of their own children. The consul Marcellus is not far away, send to him, he has the right and authority to act in the matter." They said that they should not send, and if argument failed they would seek some other method of vindicating their liberty. To this Pinarius answered: "Well if you think it too much trouble to send to the consul, you can, at all events, give me an opportunity of consulting the people, that it may be made clear whether this demand proceeds from a few or from the whole body of the citizens." They agreed to convene a meeting of the assembly the following day.

[24.38]After he had returned from the interview to the citadel, he called his men together and addressed them as follows: "I think, soldiers, you have heard what has happened lately and how the Roman garrisons have been surprised and overwhelmed by the Sicilians. That treachery you have escaped, in the first place by the good providence of the gods and next by your own steady courage and by your persistent watchfulness and remaining under arms night and day. I only hope the rest of our time may be spent without suffering or inflicting things too horrible to speak about. The precautions we have so far taken have been against secret treachery; as that has proved unsuccessful they are now openly demanding the keys of the gates; and no sooner will they be delivered than Henna will be in the power of the Carthaginians, and we here shall be butchered with greater cruelty than the garrison of Murgantia. I have succeeded with difficulty in getting one night allowed for deliberation so that I could inform you of the impending peril. At daybreak they are going to hold an assembly of the people at which they will fling charges against me and stir up the populace against you. So tomorrow Henna will run with blood, either yours or that of its own citizens. If you are not beforehand with them, there is no hope for you; if you are, there is no danger. Victory will fall to him who first draws the

sword. So all be on the alert and wait attentively for the signal. I shall be in the assembly and will spin out the time by speaking and arguing till everything is perfectly ready, and when I give the signal with my toga, raise a loud shout and make an attack on the crowd from all sides and cut everything down with the sword, and take care that nothing survives from which either open violence or treachery is to be feared." Then he continued, "You, Mother Ceres and Proserpina, and all ye deities, celestial and infernal, who have your dwelling in this city and these sacred lakes and groves - I pray and beseech you to be gracious and merciful to us if we are indeed purposing to do this deed not that we may inflict but that we may escape treachery and murder. I should say more to you, soldiers, if you were going to fight with an armed foe; it is those who are unarmed and unsuspecting whom you will slay till you are weary of slaughter. The consul's camp, too, is in the neighbourhood, so nothing need be feared from Himilco and the Carthaginians."

[24.39]After this speech he dismissed them to seek refreshment and rest. The next morning some of them were posted in various places to block the streets and close the exits from the theatre, the majority took their stand round the theatre and on the ground above it; they had frequently watched the proceedings of the assembly from there, and so their appearance aroused no suspicion. The Roman commandant was introduced to the assembly by the magistrates. He said that it was the consul and not he who had the right and the power to decide the matter, and went pretty much over the same ground as on the day before. At first one or two voices were heard and then several, demanding the surrender of the keys, till the whole assembly broke out into loud and threatening shouts, and seemed on the point of making a murderous attack upon him as he still hesitated and delayed. Then, at last, he gave the agreed signal with his toga, and the soldiers, who had long been ready and waiting, raised a shout and rushed down upon the crowd, while others blocked the exits from the densely packed theatre. Hemmed in and caged, the men of Henna were ruthlessly cut down and lay about in heaps; not only where the dead were piled up, but where in trying to escape they scrambled over each other's heads and fell one upon another, the wounded stumbling over the unwounded, the living over the dead. Then the soldiers dispersed in all directions and the city was filled with dead bodies and people fleeing for their lives, for the soldiers slew the defenceless

crowd with as much fury as though they were fighting against an equal foe, and glowing with all the ardour of battle.

So Henna was saved for Rome by a deed which was criminal if it was not unavoidable. Marcellus not only passed no censure on the transaction, but even bestowed the plundered property of the citizens upon his troops, thinking that by the terror thus inspired the Sicilians would be deferred from any longer betraying their garrisons. The news of this occurrence spread through Sicily almost in a day, for the city, lying in the middle of the island, was no less famous for the natural strength of its position than it was for the sacred associations which connected every part of it with the old story of the Rape of Proserpine. It was universally felt that a foul and murderous outrage had been offered to the abode of gods as well as to the dwellings of men, and many who had before been wavering now went over to the Carthaginians. Hippocrates and Himilco, who had brought up their forces to Henna on the invitation of the would-be betrayers, finding themselves unable to effect anything retired, the former to Murgantia, the latter to Agrigentum. Marcellus marched back to Leontini, and after collecting supplies of corn and other provisions for the camp he left a small detachment to hold the city and returned to the blockade of Syracuse. He gave Appius Claudius leave to go to Rome to carry on his candidature for the consulship, and placed T. Quinctius Crispinus in his stead in command of the fleet and the old camp, whilst he himself constructed and fortified winter quarters in a place called Leon about five miles from Hexapylon. These were the main incidents in the Sicilian campaign up to the beginning of the winter.

[24.40]The war with Philip which had been for some time apprehended actually broke out this summer. The praetor, M. Valerius, who had his base at Brundisium and was cruising off the Calabrian coast, received information from Oricum that Philip had made an attempt on Apollonia by sending a fleet of 120 light vessels up the river Aous, and then finding that matters were moving too slowly, he had brought up his army by night to Oricum, and as the place lay in a plain and was not strong enough to defend itself either by its fortifications or its garrison, it was taken at the first assault. His informants begged him to send help and to keep off one who was unmistakably an enemy to Rome from injuring the cities on the coast which were in danger solely because they lay opposite to Italy. M.

Valerius complied with their request, and leaving a small garrison of 2000 men under P. Valerius, set sail with his fleet ready for action, and such soldiers as the warships had not room for he placed on the cargo boats. On the second day he reached Oricum, and as the king on his departure had only left a weak force to hold it, it was taken with very little fighting. Whilst he was there envoys came to him from Apollonia with the announcement that they were undergoing a siege because they refused to break with Rome, and unless the Romans protected them, they should be unable to withstand the Macedonian any longer. Valerius promised to do what they wanted and he sent a picked force of 2000 men on warships to the mouth of the river under the command of Q. Naevius Crista, an active and experienced soldier. He disembarked his men and sent the ships back to rejoin the fleet at Oricum, whilst he marched a some distance from the river, where he would be least likely to meet any of the king's troops, and entered the city by night, without being observed by any of the enemy. The following day they rested to give him an opportunity of making a thorough inspection of the armed force of Apollonia and the strength of the city. He was much encouraged by the result of his inspection and also by the account which his scouts gave of the indolence and negligence which prevailed amongst the enemy. Marching out of the city in the dead of the night, without the slightest noise or confusion, he got within the enemy's camp, which was so unguarded and open that it is credibly stated that more than a thousand men were inside the lines before they were detected, and if they had only refrained from using their swords they could actually have reached the king's tent. The slaughter of those nearest the camp gates aroused the enemy, and such universal panic and terror ensued that no one seized his weapons or made any attempt to drive out the invaders. Even the king himself, suddenly awakened from sleep, fled half-dressed, in a state not decent for a common soldier, to say nothing of a king, and escaped to his ships in the river. The rest fled wildly in the same direction. The losses in killed and prisoners were under three thousand, the prisoners being much the most numerous. After the camp had been plundered the Apollonians removed the catapults, the ballistae, and the other siege artillery, which had been put in readiness for the assault, into the city for the defence of their own walls if such an emergency should ever occur again; all the other booty was given to the Romans. As soon as the news of this action reached Oricum, Valerius sent the fleet to the mouth of the river to

prevent any attempt on the part of Philip to escape by sea. The king did not feel sufficient confidence in risking a contest either by sea or land, and hauled his ships ashore or burnt them and made his way to Macedonia by land, the greater part of his army having lost their arms and all their belongings. M. Valerius wintered with his fleet at Oricum.

[24.41]The fighting went on in Spain this year with varying success. Before the Romans crossed the Ebro Mago and Hasdrubal defeated enormous forces of Spaniards. All Spain west of the Ebro would have abandoned the side of Rome had not P. Cornelius Scipio hurriedly crossed the Ebro and by his timely appearance confirmed the wavering allies. The Romans first fixed their camp at Castrum Album, a place made famous by the death of the great Hamilcar, and had accumulated supplies of corn there. The country round, however, was infested by the enemy, and his cavalry had attacked the Romans while on the march with impunity; they lost as many as 2000 men who had fallen behind or were straying from the line of march. They decided to withdraw to a less hostile part and entrenched themselves at the Mount of Victory. Cn. Scipio joined them here with his entire force, and Hasdrubal, the son of Gisgo, came up also with a complete army. There were now three Carthaginian generals and they all encamped on the other side of the river opposite the Roman camp. Publius Scipio went out with some light cavalry to reconnoitre, but in spite of all his precautions he did not remain unobserved, and would have been overpowered in the open plain had he not seized some rising ground that was near. Here he was surrounded and it was only his brother's timely arrival that rescued him. Castulo, a powerful and famous city of Spain, and in such close alliance with Carthage that Hannibal took a wife from there, seceded to Rome. The Carthaginians commenced an attack upon Illiturgis, owing to the presence of a Roman garrison there, and it looked as if they would certainly reduce it by famine. Cn. Scipio went to the assistance of the besieged with a legion in light marching order, and fighting his way between the two Carthaginian camps, entered the town after inflicting heavy losses upon the besiegers. The following day he made a sortie and was equally successful. Above 12,000 men were killed in the two battles and more than a thousand were made prisoners; thirty-six standards were also captured. In this way the siege of Illiturgis was raised. Their next move was to Bigerra - also in alliance

with Rome - which they proceeded to attack, but on Cn. Scipio's appearance they retired without striking a blow.

[24.42]The Carthaginian camp was next shifted to Munda, and the Romans instantly followed them. Here a pitched battle was fought for four hours and the Romans were winning a splendid victory when the signal was given to retire. Cn. Scipio was wounded in the thigh with a javelin and the soldiers round him were in great fear lest the wound should prove fatal. There was not the smallest doubt that if that delay had not occurred the Carthaginian camp could have been captured that same day, for the men and the elephants, too, had been driven back to their lines, and thirty-nine of the latter had been transfixed by the heavy Roman javelins. It is stated that 12,000 men were killed in this battle and about 3000 made prisoners, whilst fifty-seven standards were taken. From there the Carthaginians retreated to Auringis, the Romans following them up slowly and allowing them no time to recover from their defeats. There another battle was fought, and Scipio was carried into the field on a litter. The victory was decisive, though not half as many of the enemy were killed as on the previous occasion, for there were fewer left to fight. But the Spaniards have a natural instinct for repairing the losses in war, and when Mago was sent by his brother to raise troops, they very soon filled up the gaps in the army and encouraged their generals to try another battle. Though they were mostly fresh soldiers, yet as they had to defend a cause which had been repeatedly worsted in so short a time, they fought with the same spirit and the same result as those before them had done. More than 8000 men were killed, not less than 1000 made prisoners, and fifty-eight standards were captured. Most of the spoil had belonged to Gauls, there were a large number of golden armlets and chains, and two distinguished Gaulish chieftains, Moeniacoepo and Vismaro, fell in the battle. Eight elephants were captured and three killed. As things were going so prosperously in Spain, the Romans at last began to feel ashamed of having left Saguntum, the primary cause of the war, in the possession of the enemy for almost eight years. So after expelling the Carthaginian garrison they recovered the town and restored it to all the former inhabitants whom the ravages of war had spared. The Turdetani, who had brought about the war between Saguntum and Carthage, were reduced to subjection and sold as slaves; their city was utterly destroyed.

[24.43]Such was the course of events in Spain in the year when Q. Fabius and M. Claudius were consuls. Immediately the new tribunes of the plebs entered office, M. Metellus, one of their number, indicted the censors, P. Furius and M. Atilius, and demanded that they should be put on their trial before the people. His reason for taking this course was that the year before they had deprived him of his horse, degraded him from his tribe, and disfranchised him on the ground that he was involved in the plot which had been formed after the battle of Cannae for abandoning Italy. The other nine tribunes, however, interposed their veto against their being tried whilst holding office, and the matter fell through. The death of P. Furius prevented them from completing the lustrum and M. Atilius resigned office. The consular elections were held under the presidency of Q. Fabius Maximus, the consul. Both consuls were elected in their absence - Q. Fabius Maximus, the son of the consul, and Tiberius Sempronius Gracchus, for the second time. The praetors elected were M. Atilius and three who were at the time curule aediles, namely, P. Sempronius Tuditanus, Cnaeus Fulvius Centimalus, and M. Aemilius Lepidus. It is recorded that the scenic games were celebrated for the first time this year by the curule aediles and that the celebration lasted four days. The aedile Tuditanus was the officer who led his men through the midst of the enemy after the defeat at Cannae when all the others were paralysed with terror. As soon as the elections were over, the consuls elect were, on the advice of Q. Fabius, recalled to Rome to enter upon their duties. After they had returned they consulted the senate on the conduct of the war, the allocation of provinces to themselves and the praetors, the armies to be raised, and the men who were to command them.

[24.44]The following was the distribution of the provinces and the armies. The operations against Hannibal were entrusted to the two consuls, and Sempronius was to retain the army he had been commanding. Fabius was to take over his father's army. Each consisted of two legions. M. Aemilius, the praetor, who had the jurisdiction over aliens, was to have Luceria for his province and the two legions which Q. Fabius, the newly elected consul, had been commanding as praetor; P. Sempronius Tuditanus received Ariminum as his province and Cn. Fulvius, Suessula, each likewise with two legions, Fulvius being in command of the City legions and Tuditanus taking over those from Manius Pomponius. The

commands were extended in the following cases: M. Claudius was to retain that part of Sicily which had constituted Hiero's kingdom, Lentulus as proprætor was to administer the old province; Titus Otacilius was to continue in command of the fleet, no fresh troops being supplied him, and M. Valerius was to operate in Greece and Macedonia with the legion and ships which he had; Q. Mucius was to continue in command of his old army of two legions in Sardinia, and C. Terentius was to keep his one legion at Picenum. Orders were given for two legions to be raised in the City and 20,000 men to be furnished by the allies.

These were the generals and the troops that were to be the bulwark of Rome against the many wars, some actually going on, some anticipated, that were threatening the existence of her dominion. After raising the City contingent, and recruiting fresh drafts for other legions, the two consuls before they left the City set about the expiation of certain portents which had been announced. Part of the City wall and some of the gates had been struck by lightning, as had also the temple of Jupiter at Aricia. Other things which people imagined they had seen or heard were believed to be true; warships were supposed to have been seen in the river at Tarracina, whilst there were none there; a clashing of arms was heard in the temple of Jupiter Vicilinus in the neighbourhood of Compsa, and the river at Amiternum was said to have run with blood. When these portents had been expiated in accordance with the directions of the pontiffs, the consuls left for the front; Sempronius for Lucania, Fabius for Apulia. Old Fabius came into his son's camp at Suessula as his lieutenant. The son went out to meet him with the twelve lictors preceding him in single file. The old man rode past eleven of them, all of whom out of respect for him remained silent, whereupon the consul ordered the remaining lictor who was immediately in front of him to do his duty. The man thereupon called to Fabius to dismount, and he springing from his horse said to his son, "I wanted to find out, my son, whether you sufficiently realised that you are consul."

[24.45] One night, Dasius Altinius of Arpi paid a stealthy visit to this camp, accompanied by three slaves, and offered for a fitting reward to betray Arpi. Fabius referred the matter to the council of war, and some thought he ought to be treated as a deserter, scourged and beheaded. They said he was a trimmer, an enemy to both sides, for, after the defeat of Cannæ, as though loyalty depended on success,

he had gone over to Hannibal and had drawn Arpi over with him, and now that the cause of Rome was, in the teeth of all his hopes and wishes, springing up, as it were, again from its roots, he was promising a fresh treason by way of indemnifying those whom he betrayed before. He openly espoused one side while all his sympathies were with the other, faithless as an ally, contemptible as an enemy; like the man who would have betrayed Falerii, or the man who offered to poison Pyrrhus, let him be made a third warning to all renegades. The consul's father took a different view. "Some men," he said, "oblivious of times and seasons, pass judgment upon everything as calmly and impartially in the excitement of war as though they were at peace. The more important matter for us to discuss and decide is how we can possibly prevent our allies from deserting us, but this is the last thing we are thinking about; we are talking about the duty of making an example of any one who sees his error and looks back with regret to the old alliance. But if a man is at liberty to forsake Rome, but not at liberty to return to her, who can fail to see that in a short time the Roman empire, bereft of its allies, will find every part of Italy bound by treaty to Carthage? Still I am not going to advise that any confidence be placed in Altinius; I shall suggest a middle course in dealing with him. I should recommend that he be treated neither as an enemy nor as a friend, but be interned in some city we can trust not far from our camp and kept there during the war. When that is over, then we should discuss whether he deserves punishment for his former disloyalty more than he merits pardon for his coming back to us now. Fabius' suggestions met with general approval, and Altinius was handed over to some officials from Cales together with those who accompanied him. He had brought with him a considerable amount of gold, and this was ordered to be taken care of for him. At Cales he was free to move about in the daytime, but was always followed by a guard, who kept him in confinement at night. At Arpi he was missed from home and a search was commenced, rumours soon ran through the city and naturally caused intense excitement, seeing they had lost their leader. Fears were entertained of a revolution, and messengers were at once despatched to Hannibal. The Carthaginian was not at all concerned at what had happened; he had long suspected the man and doubted his loyalty, and he had now a plausible reason for seizing and selling the property of a very rich man. But, in order to create a belief that he was swayed more by anger than by avarice, he aggravated his

rapacity by an act of atrocious cruelty. He sent for the wife and children, and after questioning them first about the circumstances under which Altinius had disappeared, and then about the amount of gold and silver which he had left at home, and so finding out all he wanted to know, he had them burnt alive.

[24.46]Fabius broke up his camp at Suessula and decided to begin by an attack on Arpi. He encamped about half a mile from it, and on examining from a near position the situation of the city and its fortifications, he saw one part where it was most strongly fortified and, therefore, less carefully guarded, and at this point he determined to deliver his assault. After seeing that everything required for the storm was in readiness, he selected out of the whole army the pick of the centurions and placed them under the command of tribunes who were distinguished for courage. He then furnished them with six hundred of the rank and file, a number which he deemed quite sufficient for his purpose, and gave them orders to carry scaling ladders to that point when they heard the bugles sound the fourth watch. There was a low narrow gate which led into an unfrequented street running through a lonely part of the city. His orders were that they were first to scale the wall with their ladders, and then open the gate or break the bolts and bars from the inside and when they were in possession of that quarter of the city they were to give a signal on the bugle, so that the rest of the troops might be brought up, and he would have everything in order and ready. His instructions were carried out to the letter, and what seemed likely to prove a hindrance turned out to be of the greatest help in concealing their movements. A rain storm which began at midnight drove all the sentries and outposts to seek shelter in the houses, and the roar of the rain which at first came down like a deluge prevented the noise of those who were at work on the gate from being heard. Then when the sound of the rain fell upon the ear more gently and regularly, it soothed most of the defenders to sleep. As soon. as they were in possession of the gate, they placed the buglers at equal distances along the street and ordered them to sound the signal to give notice to the consul. This having been done as previously arranged, the consul ordered a general advance, and shortly before daylight he entered the city through the broken down gate.

[24.47]Now at last the enemy was roused; there was a lull in the storm and daylight was approaching. Hannibal's garrison in the city

amounted to about 5000 men, and the citizens themselves had raised a force of 3000. These the Carthaginians put in front to meet the enemy, that there might be no attempt at treachery in their rear. The fighting began in the dark in the narrow streets, the Romans having occupied not only the streets near the gate but the houses also, that they might not be assailed from the roofs. Gradually as it grew light some of the citizen troops and some of the Romans recognised one another, and entered into conversation. The Roman soldiers asked what it was that the Arpinians wanted, what wrong had Rome done them, what good service had Carthage rendered them that they, Italians-bred and born, should fight against their old friends the Romans on behalf of foreigners and barbarians, and wish to make Italy a tributary province of Africa. The people of Arpi urged in their excuse that they knew nothing of what was going on, they had in fact been sold by their leaders to the Carthaginians, they had been victimised and enslaved by a small oligarchy. When a beginning had been once made the conversations became more and more general; at last the praetor of Arpi was conducted by his friends to the consul, and after they had given each other mutual assurances, surrounded by the troops under their standards, the citizens suddenly turned against the Carthaginians and fought for the Romans. A body of Spaniards also, numbering something less than a thousand, transferred their services to the consul upon the sole condition that the Carthaginian garrison should be allowed to depart uninjured. The gates were opened for them and they were dismissed, according to the stipulation, in perfect safety, and went to Hannibal at Salapia. Thus Arpi was restored to the Romans without the loss of a single life, except in the case of one man who had long ago been a traitor and had recently deserted. The Spaniards were ordered to receive double rations, and the republic availed itself on very many occasions of their courage and fidelity.

While one of the consuls was in Apulia and the other in Lucania some hundred and twelve Campanian nobles left Capua by permission of the magistrates for the purpose, as they alleged, of carrying away plunder from the enemy's territory. They really, however, rode off to the Roman camp above Suessula, and when they came up to the outposts they told them that they wished for an interview with the commander, Cn. Fulvius. On being informed of their request he gave orders for ten of their number to be conducted to him, after they had

laid aside their arms. When he heard what they wanted, which was simply that, after the recapture of Capua, their property might be restored to them, he received them all under his protection. The other praetor took the town of Atrinum by storm. More than 7000 were taken prisoners and a considerable quantity of bronze and silver coinage seized. At Rome there was a dreadful fire which lasted for two nights and a day. All the buildings between the Salinae and the Porta Carmentalis, including the Aequimaelium, the Vicus Jugarius, and the temples of Fortune and Mater Matuta were burnt to the ground. The fire travelled for a considerable distance outside the gate and destroyed much property and many sacred objects.

[24.48]The two Scipios, Publius and Cnaeus, after their successful operations in Spain, in the course of which they won back many old allies and gained new ones, during the year began to hope for similar results in Africa. Syphax, king of the Numidians, had suddenly taken up a hostile attitude towards Carthage. The Scipios sent three centurions on a mission to him, with instructions to conclude a friendly alliance with him and to assure him that if he would go on persistently harassing the Carthaginians he would confer an obligation on the senate and people of Rome, and it would be their endeavour to repay the debt of gratitude at a fitting time end with large interest. The barbarian was delighted at the mission and held frequent conversations with the centurions upon the methods of warfare. As he listened to the seasoned soldiers he found out how many things he was ignorant of, and how great the contrast was between his own practice and their discipline and organisation. He asked that whilst two of them carried back the report of their mission to their commanders, the third might remain with him as a military instructor. He explained that the Numidians made very poor infantry soldiers, they were only useful as mounted troops; he explained that this was the style of warfare which his ancestors had adopted from the very earliest times, it was the style to which he had been trained from his boyhood. They had an enemy who depended mainly upon his infantry, and if he wished to meet him with equal strength he must provide himself also with infantry. His kingdom contained an abundant population fit for the purpose, but he did not know the proper method of arming and equipping and drilling them. All was disorderly and haphazard, just like a crowd collected together by chance.

The envoys replied that for the time being they would do what he wished, on the distinct understanding that if their commanders did not approve of the arrangement he would at once send back the one who remained. This man's name was Statorius. The king sent some Numidians to accompany the two Romans to Spain and obtain sanction for the arrangement from the commanders. He also charged them to take immediate steps to persuade the Numidians who were acting as auxiliaries with the Carthaginian troops to come over to the Romans. Out of the large number of young men which the country contained Statorius enrolled a force of infantry for the king. These he formed into companies pretty much on the Roman model, and by drilling and exercising them he taught them to follow their standards and keep their ranks. He also made them so familiar with the work of entrenchment and other regular military tasks that the king placed quite as much confidence in his infantry as in his cavalry, and in a pitched battle fought on a level plain he proved superior to the Carthaginians. The presence of the king's envoys in Spain proved very serviceable to the Romans, for on the news of their arrival numerous desertions took place amongst the Numidians. So between Syphax and the Romans friendly relations were established. As soon as the Carthaginians heard what was going on, they sent envoys to Gala, who reigned in the other part of Numidia over a tribe called Maesuli.

[24.49]Gala had a son called Masinissa, seventeen years old, but a youth of such a strong character that even then it was evident that he would make the kingdom greater and wealthier than he received it. The envoys pointed out to Gala that since Syphax had joined the Romans in order to strengthen his hands, by their alliance, against the kings and peoples of Africa, the best thing for him to do would be to unite with the Carthaginians as soon as possible, before Syphax crossed into Spain or the Romans into Africa. Syphax, they said, could easily be crushed, for he had got nothing out of the Roman alliance except the name. Gala's son asked to be entrusted with the management of the war and easily persuaded his father to send an army, which in conjunction with the Carthaginians conquered Syphax in a great battle, in which it is stated that 30,000 men were killed. Syphax with a few of his horse fled from the field to the Maurusii, a tribe of Numidians who dwell at almost the furthest point of Africa near the ocean, opposite Gades. At the news of his arrival

the barbarians flocked to him from all sides and in a short time he armed an immense force. Whilst he was preparing to cross over with them into Spain, which was only separated by a narrow strait, Masinissa arrived with his victorious army, and won a great reputation by the way in which he concluded the war against Syphax without any help from the Carthaginians. In Spain nothing of any importance took place except that the Romans secured for themselves the services of the Celtiberians by offering them the same pay which the Carthaginians had agreed to pay. They also sent to Italy three hundred of the leading Spanish nobility to win over their countrymen who were serving with Hannibal. That is the solitary incident in Spain worth recording for the year, and its interest lies in the fact that the Romans had never had a mercenary soldier in their camp until they employed the Celtiberians.

BOOK 25: THE FALL OF SYRACUSE

[25.1] While these operations in Spain and Africa were going on, Hannibal spent the whole summer in the Sallentine territory in the hope of securing the city of Tarentum by treachery, and whilst he was there some unimportant towns seceded to him. Out of the twelve communities in Bruttium who had gone over to the Carthaginians the year before, two, namely Consentia and Thurii, returned to their old allegiance to Rome, and more would have done so had it not been for T. Pomponius Veientanus, an officer of allies. He had made several successful raids in Bruttium and had in consequence begun to be regarded as a regularly commissioned general. With the raw and undisciplined army which he had got together he engaged Hanno. In that battle a great number of men, who were simply a confused crowd of peasants and slaves, were killed or made prisoners; the least important loss was that of the officer himself, who was made prisoner. For not only was he responsible for such a reckless and ill-advised battle, but in his capacity as a public contractor he had previously been guilty of all sorts of dishonest practices and robbed both the State and the City guilds. The consul Sempronius fought several trifling actions in Lucania, none of which are worth recording, and took some unimportant towns belonging to the Lucanians.

The longer the war continued, and the more men's minds as well as their fortunes were affected by the alternations of success and failure,

so much the more did the citizens become the victims of superstitions, and those for the most part foreign ones. It seemed as though either the characters of men or the nature of the gods had undergone a sudden change. The Roman ritual was growing into disuse not only in secret and in private houses; even in public places, in the Forum and the Capitol, crowds of women were to be seen who were offering neither sacrifices nor prayers in accordance with ancient usage. Unauthorised sacrificers and diviners had got possession of men's minds and the numbers of their dupes were swelled by the crowds of country people whom poverty or fear had driven into the City, and whose fields had lain untilled owing to the length of the war or had been desolated by the enemy. These impostors found their profit in trading upon the ignorance of others, and they practiced their calling with as much effrontery as if they had been duly authorised by the State. Respectable citizens protested in private against the state of things, and ultimately the matter became a public scandal and formal complaint was made to the senate. The aediles and commissioners of police were severely reprimanded by the senate for not preventing these abuses, but when they attempted to remove the crowds from the Forum and destroy the altars and other preparations for their rites they narrowly escaped being roughly handled. As the mischief appeared to be too much for the inferior magistrates to deal with, M. Aemilius, the City praetor, was entrusted with the task of delivering the people from these superstitions. He read the resolution of the senate before the Assembly and gave notice that all those who had in their possession any manuals of divination or forms of prayers or sacrificial ritual in writing were to bring all their books and writings to him before the first of April, and no one was to use any strange or foreign form of sacrifice in any public or consecrated place.

[25.2]Several officials connected with the State religion died this year: L. Cornelius Lentulus the chief pontiff, C. Papirius, son of C. Masso, one of the pontiffs, P. Furius Philus the augur, and C. Papirius, son of L. Maso, one of the Keepers of the Sacred Books. M. Cornelius Cethegus was appointed chief pontiff in place of Lentulus, and Cn. Servilius Caepio in place of Papirius. L. Quintius Flaminius was appointed augur and L. Cornelius Lentulus Keeper of the Sacred Books. The time for the consular elections was now drawing near, and as it was decided not to recall the consuls who were engaged in

the war, Tiberius Sempronius nominated C. Claudius Cento Dictator for the purpose of conducting the elections. He appointed Q. Fulvius Flaccus as his Master of the Horse. The elections were completed on the first day; the Dictator returned as duly elected consuls Q. Fulvius Flaccus, Master of the Horse, and Appius Claudius Pulcher, who was at the time praetor in Sicily. Then the praetors were elected; Cn. Fulvius Flaccus, C. Claudius Nero, M. Junius Silanus, and P. Cornelius Sulla. When the elections were over the Dictator resigned. The curule aediles for the year were M. Cornelius Cethegus and P. Cornelius Scipio, who was subsequently known as Africanus. When the latter offered himself as a candidate, the tribunes of the plebs objected to him, and said that he could not be allowed to stand because he had not yet reached the legal age. His reply was: "If the Quirites are unanimous in their desire to appoint me aedile, I am quite old enough." On this the people hurried to give their tribal votes for him with such eagerness that the tribunes abandoned their opposition. The new aediles discharged their functions with great munificence; the Roman Games were celebrated on a grand scale considering their resources at the time; they were repeated a second day and a congius of oil was distributed in each street. L. Villius Tappulus and M. Fundanius Fundulus, the plebeian aediles, summoned several matrons before the people on a charge of misconduct; some of them were convicted and sent into exile. The celebration of the Plebeian Games lasted two days and there was a solemn banquet in the Capitol on the occasion of the Games.

[25.3]Q. Fulvius Flaccus and Appius Claudius entered on their consulship, the former for the third time. The praetors drew lots for their provinces; P. Cornelius Sulla had assigned to him both the home and foreign jurisdiction, which had previously been held separately; Apulia fell to Cn. Fulvius Flaccus; Suessula to C. Claudius Nero; Etruria to M. Junius Silanus. Two legions were decreed for each of the consuls in the operations against Hannibal; one consul took over the army from Q. Fabius, the consul of the previous year, the other that of Fulvius Centumalus. With regard to the praetors, Fulvius Flaccus was to have the legions which were at Luceria under Aemilius, Claudius Nero those which were serving in Picenum under C. Terentius, and they were each to raise their force to its full complement. The City legions raised the previous year were assigned to M. Junius to meet any movement from Etruria. Ti. Sempronius

Gracchus and P. Sempronius Tuditanus had their commands extended in their respective provinces of Lucania and Cis-Alpine Gaul, as also had P. Lentulus in the Roman province of Sicily and M. Marcellus in Syracuse and that part of the island over which Hiero had reigned. The command of the fleet was left in the hands of T. Otacilius, the operations in Greece in those of M. Valerius, the campaign in Sardinia was still to be under the conduct of Q. Mucius Scaevola, whilst the two Scipios were to continue their work in Spain. In addition to the existing armies two fresh legions were raised in the City by the consuls, thus bringing up the total number to twenty-three legions for the year.

The enrolment was interrupted by the conduct of M. Postumius Pyrgensis which might have endangered the stability of the republic. This man was a public contractor and for many years had had only one man to match him in dishonesty and greed, and that was T. Pomponius Veientanus, whom the Carthaginians under Hanno got hold of while he was recklessly raiding Lucania. The State had made itself responsible where supplies intended for the armies were lost through storms at sea, and these men invented stories of shipwrecks, and when they did not invent, the shipwrecks which they reported were due to their dishonesty, not to accident. They placed small and worthless cargoes on old shattered ships, which they sank when out at sea, the sailors being taken into boats which were kept in readiness, and then they made a false declaration as to the cargo, putting it at many times its real value. This fraud had been disclosed to M. Aemilius, the praetor, and he laid the matter before the senate, but they had taken no action because they were anxious not to offend the body of public contractors at such a time as that. The people, however, took a much severer view of the case, and at length two tribunes of the plebs, Spurius Carvilius and L. Carvilius, seeing the public indignation and disgust aroused, demanded that a fine of 200,000 ascs should be imposed on them. When the day came for the question to be decided, the plebs were present in such great numbers that the space on the Capitol hardly held them, and after the case had been gone through, the only hope left to the defence was the chance of C. Servilius Casca, a tribune of the plebs and a near relative of Postumius, interposing his veto before the tribes proceeded to vote. When the evidence had been given, the tribunes ordered the people to withdraw and the voting urn was brought in, in order that it might

be determined in what tribe the Latins were to vote. While this was being done the contractors urged Casca to stop the proceedings for the day, and the people loudly opposed that step. Casca happened to be sitting in front at the end of the tribunal seats, and he was labouring under the conflicting emotions of fear and shame. Seeing that no dependence was to be placed upon him, the contractors determined to create a disturbance and rushed in a compact body into the space left vacant by the withdrawal of the Assembly, loudly abusing both the people and the tribunes. As there was every prospect of a hand-to-hand fight the consul Fulvius said to the tribunes: "Do you not see that your authority has gone, and that there will certainly be a riot if you do not dismiss the meeting?"

[25.4] After the Assembly of the plebs was dismissed a meeting of the senate was called, and the consuls brought forward the question of "the disturbance of a meeting of the plebs through the violence and audacity of the public contractors." "M. Furius Camillus," they said, "whose exile was followed by the downfall of Rome, submitted to condemnation at the hands of the irate citizens; before his time the decemvirs - whose laws are in force today - and after him many of our foremost citizens have bowed to the sentence of the people. Whereas Postumius Pyrgensis has deprived the people of their right to vote, broken up a meeting of the plebs, destroyed the authority of the tribunes, levied war upon the people of Rome, made forcible seizure of a position in the City to cut off the plebs from its tribunes, and prevented the tribes from being called to vote. There was nothing to restrain men from fighting and bloodshed except the forbearance of the magistrates, who for the time being yielded to the furious audacity of a few men and allowed themselves and the Roman people to be successfully defied, and, rather than give any occasion for a conflict to those who were seeking one, they voluntarily closed the elections which the accused was going to stop by armed force." This indictment was listened to by all good citizens with feelings of indignation proportioned to the atrocity of the outrage, and the senate passed a decree affirming that "that violent conduct was an offence against the republic and set a most vicious precedent." Immediately on this the two Carvili dropped the proposal for a fine and indicted Postumius for high treason, and ordered him to find sureties for his appearance on the day of trial, or failing that to be at once arrested and taken to prison. He found sureties, but did not

appear. The resolution proposed by the tribunes and adopted by the plebs was in the following terms: "If M. Postumius does not enter an appearance before the first day of May and when cited into court does not answer his name on that day, and has not been lawfully excused from so appearing, he shall be deemed to be an exile, his goods shall be sold, and he himself placed under outlawry." Then all those who had taken the lead in the riotous disturbance were one by one indicted on the same charge and ordered to find sureties. Those who did not find them and afterwards even those who could find them were alike cast into prison. Most of them, to escape the danger, went into exile.

[25.5]Such was the issue of the dishonesty of the State contractors, and their daring attempt to screen themselves. The next thing was the election of the chief pontiff. The new pontiff, M. Cornelius Cethegus, conducted the election, which was very keenly contested. There were three candidates: Q. Fulvius Flaccus, the consul, who had previously been twice consul as well as censor; T. Manlius Torquatus, who could also point to two consulships and the censorship; and P. Licinius Crassus, who was about to stand for the curule aedileship. This young man defeated his old and distinguished competitors; before him there had been no one for a hundred and twenty years, with the sole exception of P. Cornelius Calussa, who had been elected chief pontiff without having first sat in a curule chair. The consuls found the levying of troops a difficult task, for there were not sufficient men of the required age to answer both purposes, that of raising the new City legions and also bringing the existing armies up to their full strength. The senate, however, would not allow them to give up the attempt, and ordered two commissions, each consisting of three members, to be appointed, one to work within a radius of fifty miles from the City, the other outside that radius. They were to inspect all the villages, market towns, and boroughs, and ascertain the total number of free-born men in each, and were to make soldiers of all who appeared strong enough to bear arms, even though they were below the military age. The tribunes of the plebs might, if they thought good, make a proposal to the people that those who had taken the military oath when under seventeen years of age should have their pay reckoned to them on the same scale as if they had been enlisted at seventeen, or older. The commissions so appointed recruited all the free-born men in the country districts. About this

time a despatch was read in the senate from M. Marcellus in Sicily, in which he put forward the request made to him by the soldiers who were serving with P. Lentulus. These were the remains of the army of Cannae, they had been sent away to Sicily, as has been stated above, and were not to be brought back to Italy before the Punic war had come to an end.

[25.6]The principal officers of the cavalry, with the centurions of highest rank and the pick of the legionaries, had been allowed by Lentulus to send a deputation to M. Marcellus in Italy. One was allowed to speak on behalf of the rest, and this is what he said: "We should have approached you, Marcellus, when you were consul, in Italy, as soon as that severe if not unjust resolution of the senate was passed concerning us, had we not hoped that after being sent into a province thrown into confusion by the death of its kings, to take part in a serious war against Sicilians and Carthaginians combined, we should have made reparation to the senate by our blood and our wounds in the same way that those who were taken by Pyrrhus at Heraclea, within the memory of our fathers, made reparation by fighting against Pyrrhus afterwards. And yet, what have we done, senators, that you should be wrath with us then or that we should deserve your anger now? I seem to myself to be gazing on the faces of both the consuls and of the whole senate when I look at you, Marcellus; if we had had you as our consul at Cannae, both we and the republic would have met with better fortune.

"Allow me, I pray you, before I complain of our treatment, to clear ourselves of the guilt which is laid to our charge. If it was not through the anger of the gods or through the ordering of that destiny by whose laws the chain of human affairs is immutably linked together, but by the fault of man that we perished at Cannae, whose fault, pray, was it? The fault of the soldiers or of their commanders? As a soldier I will never say a word about my commander, though I know that he was specially thanked by the senate because he did not despair of the republic, and has had his command extended every year since his flight from Cannae. Those of the survivors from that disaster, who were our military tribunes at the time, solicited and obtained office, as we have heard, and are in command of provinces. Do you lightly forgive yourselves and your children, senators, whilst you reserve your anger for poor wretches like us? While it was no disgrace for the consul and the foremost men in the State to flee when all hope was

lost, did you send us, the common soldiers, to meet certain death in the battle field? At the Alia almost the entire army fled, at the Caudine Forks they delivered up their arms to the enemy without even attempting to fight, not to mention other shameful defeats that our armies have suffered. But so far were those armies from having any humiliation inflicted upon them, that the City of Rome was recovered by the very army which had fled from the Alia to Veii, and the Caudine legions who had returned to Rome without their arms were sent back armed to Samnium, and made that same enemy pass under the yoke who had enjoyed seeing them undergo that humiliation. Can any man charge the army at Cannae with flight or cowardice when more than 50,000 men fell there, when the consul fled with only seventy horsemen, when not one survives who fought there except those whom the enemy, wearied with slaughter, left alone. When the ransom of the prisoners was vetoed we were universally praised because we had saved ourselves for our country, because we returned to the consul at Venusia and presented the appearance of a regular army. But as it is, we are in a worse case than those prisoners in our fathers' days; for all that they had to endure was a change in their arms, in their military status, in their quarters in camp, and these they recovered by the one service they rendered to the State in fighting a successful battle. Not one of them was sent into exile, not one was deprived of the prospect of obtaining his discharge, and above all they had the chance of putting an end either to their life or their disgrace by fighting the enemy. But we, against whom no charge can be brought except that it is through our fault that a single Roman soldier is left alive after the battle of Cannae - we, I say, have not only been sent far away from our native soil and from Italy, but we have been placed out of reach of the enemy, we are to grow old in exile, with no hope, no chance, of wiping out our shame, or of appeasing our fellow-citizens, or even of dying an honourable death. We are not asking for an end to our ignominy or for the rewards of valour, we only ask to be allowed to prove our mettle and to show our courage. We ask for labours and dangers, for a chance of doing our duty as men and as soldiers. This is the second year of the war in Sicily with all its hard-fought battles. The Carthaginians are capturing some cities, the Romans are taking others, infantry and cavalry meet in the shock of battle, at Syracuse a great struggle is going on by land and sea, we hear the shouts of the combatants and the clash of their arms, and we are sitting idly by, as though we had neither weapons nor

hands to use them. The legions of slaves have fought many pitched battles under Tiberius Sempronius; they have as their reward freedom and citizenship, we implore you to treat us at least as slaves who have been purchased for this war, and to allow us to meet and fight the enemy and so win our freedom. Are you willing to make proof of our courage by sea or by land, in the open field or against city walls? We ask for whatever brings the hardest toil and the greatest danger, if only what ought to have been done at Cannae may be done as soon as we can do it, now. For all our life since has been but one long agony of shame."

[25.7]When he had finished speaking they prostrated themselves at the knees of Marcellus. He told them that he had not the authority or the power to grant their request, but said that he would write to the senate and would be guided entirely by their decision. The despatch was delivered into the hands of the new consuls and read by them to the senate. After discussing its contents, the senate decided that they saw no reason why the safety of the republic should be entrusted to soldiers who had deserted their comrades at Cannae. If M. Claudius, the *propraetor*, thought otherwise, he was to act as he thought best in the interests of the State, but only on this condition, that none of them should get their discharge or receive any reward for valour or be conveyed back to Italy as long as the enemy remained on Italian soil. After this an election was held by the City praetor, in accordance with a decision of the senate and a resolution of the plebs, for the appointment of special commissioners of works. Five commissioners were chosen to undertake the repair of the walls and towers of the City, and two boards, each consisting of three members, were selected; one to inspect the contents of the temples and to make an inventory of the offerings; the other to rebuild the temples of Fortune and Mater Matuta inside the Porta Carmentalis and the temple of Spes outside, all of which had been destroyed by fire the previous year. Frightful storms occurred: on the Alban Mount it rained stones incessantly for two days. Many places were struck by lightning, two buildings in the Capitol, the rampart of the camp above Suessula in many places, two sentinels being killed. The wall and some of the towers at Cumae were not only struck, but even thrown down by the lightning. At Reate a huge rock was seen to fly about, and the sun was unusually red, in fact the colour of blood. By reason of these portents a day was

set apart for special intercessions, and for several days the consuls devoted their attention to religious matters, and special services were held for nine days. The betrayal of Tarentum had long been an object of hope with Hannibal and of suspicion with the Romans, and now an incident which occurred outside its walls hastened its capture. Phileas had been a long time in Rome, ostensibly as the Tarentine envoy. He was a restless character and chafed under the inaction in which he seemed likely to spend the greater part of his life. The hostages from Tarentum and Thurii were kept in the Hall of Liberty, but not under strict surveillance, because it was neither for their own interest nor for that of their city to play the Romans false. Phileas found means of access to them and had frequent interviews, in which he won them over to his design, and by bribing two of the watchmen he brought them out of confinement as soon as it was dark, and they made their secret escape from Rome. As soon as it was light their flight became known throughout the City, and a party was sent in pursuit. They were caught at Tarracina and brought back; then they were marched into the Comitium and, with the approval of the people, scourged with rods and thrown from the Rock.

[25.8]The cruelty of this punishment produced a feeling of bitter resentment in the two most important Greek cities in Italy, not only amongst the population at large, but especially amongst those who were connected by ties of relationship or friendship with the men who had met with such a horrible fate. Amongst these there were thirteen young nobles of Tarentum who entered into a conspiracy; the ringleaders were Nico and Philemenus. Before taking any action they thought that they ought to have an interview with Hannibal. They left the city by night on the pretence that they were going on a hunting expedition and took the direction of his camp. When they were not far from it, the others concealed themselves in a wood near the road while Nico and Philemenus went on to the outposts. They were seized, as they intended to be, and were conducted to Hannibal. After explaining to him the motives which had prompted them and the nature of the step they were contemplating they were warmly thanked and loaded with promises, and Hannibal advised them to drive to the city some cattle belonging to the Carthaginians which had been turned out to pasture, so that they might make their fellow-townsmen believe that they had really gone out, as they said, to get plunder. He promised that they should be safe and unmolested while

so engaged. Every one saw the plunder which the young men had brought, and as they did the same thing over and over again people wondered less at their daring. At their next interview with Hannibal they obtained from him a solemn promise that the Tarentines should preserve their freedom and retain their own laws and all that belonged to them, they were to pay no taxes or tribute to Carthage, nor be required to admit a Carthaginian garrison against their will. The Roman garrison was to be at the mercy of the Carthaginians. When this understanding had been arrived at, Philemenus made a regular habit of leaving the city and returning to it by night. He was noted for his passion for hunting and he had his dogs and other requisites for the sport with him. Generally he brought back something which had purposely been placed in his way and gave it either to the commanders or the men on guard. They imagined that he chose night time for his expeditions through fear of the enemy. When they had become so accustomed to his movements that the gate was opened at whatever hour of the night he gave the signal by whistling, Hannibal thought the time had come for action. He was three days' march distant, and in order to lessen any surprise that might be felt at his remaining encamped on one and the same spot so long he feigned illness. The Romans who were garrisoning Tarentum had ceased to view his remaining there with suspicion.

[25.9]When he had made up his mind to march to Tarentum, he picked out a force of 10,000 infantry and cavalry, who, from their agility and the lightness of their armour, would be most suitable for a dash upon the city. At the fourth watch of the night he made his advance and sent forward about eighty Numidian troopers with orders to patrol the roads in the neighbourhood and keep a sharp look out so that none of the rustics might espy his movements from a distance. Those in front of them they were to bring back, any whom they met they were to kill in order that the inhabitants of the district might take them for a marauding force rather than an army. Marching his men rapidly forward he encamped about fifteen miles from Tarentum, and without saying a word as to where they were going he called his men together and warned them all to keep in the line of march and not to allow any one to fall out or leave the ranks. They were above all things to listen to orders with attention and not to do anything that they were not told to do. He would tell them, when the time came, what he wanted them to do. Almost at the same hour a

rumour reached Tarentum that a small body of Numidian horse were ravaging their fields and creating a panic far and wide amongst the peasantry. This news did not disturb the Roman commandant farther than that he ordered a portion of his cavalry to ride out the next morning early to drive off the enemy. As to guarding against any other contingency, so little care was shown that this movement on the part of the Numidians was actually taken as a proof that Hannibal and his army had not stirred from their camp.

Hannibal resumed his advance soon after dark; Philemenus leading the way with the usual load of game on his shoulders, the rest of the conspirators waiting inside the town to carry out their part in the plot. The arrangement was that Philemenus should carry his prey through the wicket gate which he always used and at the same time admit some armed men; Hannibal was to approach the Temenide gate from another direction. This gate was on the landward part of the city and looked eastwards near the public cemetery inside the walls. As he approached the gate Hannibal gave the signal by showing a light, the signal was answered in the same way by Nico; then both lights were extinguished. Hannibal marched up to the gate in silence; Nico made a sudden attack upon the sentinels who were sleeping soundly in their beds and killed them, then he opened the gate. Hannibal entered with his infantry, but the cavalry were ordered to remain outside, ready to meet any attack in the open plain. In the other direction Philemenus also reached the wicket gate which he had been in the habit of using, and whilst he was calling out that they could hardly stand the weight of the huge beast they were carrying, his voice and well-known signal roused the sentry and the gate was opened. Two young men carrying a wild boar entered, Philemenus and a lightly equipped huntsman followed close after, and whilst the sentinel, astonished at its size, turned unsuspectingly towards those who were carrying it, Philemenus ran him through with a hunting spear. Then about thirty armed men ran in and massacred the rest of the sentinels and broke open the large gate adjoining and the army at once entered in fighting order and marched in perfect silence to the forum where they joined Hannibal. The Carthaginian general formed 2000 of his Gauls into three divisions, furnishing each with Tarentines to guide them, and sent them into different parts of the city with orders to occupy the main streets, and if a tumult arose they were to cut down the Romans and spare the townsfolk. To secure this latter object he gave

instructions to the conspirators to tell any of their people whom they saw at a distance to keep quiet and silent and fear nothing.

[25.10]By this time there was as much shouting and uproar as usually happens when a city is taken, but nobody knew for certain what had happened. The Tarentines thought that the Roman garrison had started to pillage the town; the Romans were under the impression that the townsfolk had got up a disturbance with some treacherous design. The commandant, awakened by the tumult, hurried away to the harbour, and getting into a boat was rowed round to the citadel. To add to the confusion the sound of a trumpet was heard from the theatre. It was a Roman trumpet which the conspirators had procured for the purpose, and being blown by a Greek who did not know how to use it, no one could make out who gave the signal or for whom it was intended. When it began to grow light, the Romans recognised the arms of the Carthaginians and Gauls, and all doubt was removed; the Greeks, too, seeing the bodies of the Romans lying about everywhere, became aware that the city had been taken by Hannibal. When the light grew clearer and the Romans who survived the massacre had taken refuge in the citadel, the tumult having somewhat subsided, Hannibal ordered the Tarentines to assemble without their arms. After they had all assembled, with the exception of those who had accompanied the Romans into the citadel to share their fate whatever it might be, Hannibal addressed some kind words to them, and reminded them of the way he had treated their compatriots whom he had taken in the battle of Cannae. He went on to inveigh bitterly against the tyranny of Roman domination, and ended by ordering them each to return to their homes and write their names over their doors; if any houses were not so inscribed he should at once give the signal for them to be plundered, and if any one placed an inscription on a house occupied by a Roman - they were in a separate quarter - he should treat him as an enemy. The people were dismissed, and after the inscriptions had been placed on the doors, so that the houses could be distinguished from those of the enemy, the signal was given and the troops dispersed in all directions to plunder the Roman houses. There was a considerable amount of plunder seized.

[25.11]The next day he advanced to attack the citadel. It was protected by lofty cliffs on the side of the sea which surrounded the greater part of it like a peninsula, and on the side of the city it was

enclosed by a wall and a very deep moat; Hannibal saw at once that it could successfully defy any attack either by storm or by siege works. As he did not wish to be delayed from undertaking more important operations by having to protect the Tarentines nor to leave them without adequate defence against any attacks which the Romans might make at their pleasure from the citadel, he decided to cut off communication between the city and the citadel by earthworks. He rather hoped, too, that the Romans might attempt to interfere whilst these were being constructed and give him a chance of fighting, and in case they made a sortie in force he might inflict such heavy loss upon them and so weaken them that the Tarentines could easily hold their own against them unaided. No sooner was the work commenced than the Romans suddenly flung open the citadel gates and attacked the working party. The detachment who were on guard along the front allowed themselves to be driven in, and the Romans, emboldened by success, followed them up in greater numbers and to a greater distance. Then a signal was given and the Carthaginians whom Hannibal had drawn up in readiness rushed upon them from all sides. The Romans could not withstand their attack, but their flight was checked by the narrow space and the obstructions caused by the work which had been begun and the preparations made for continuing it. A great many flung themselves headlong into the fosse, and more were killed in the flight than in the fighting. After this the work proceeded without molestation. An enormous fosse was dug and on its inner side a breastwork and parapet thrown up, and a little further off in the same direction he made preparations for adding a wall, so that the town could protect itself against the Romans without his aid. He left, however, a small detachment to garrison the place and also help to complete the wall, while he himself with the rest of his force fixed his camp by the river Galaesus about five miles from Tarentum. Returning from this position to inspect the work, and finding it much more advanced than he expected, he became hopeful of successfully attacking the citadel. It was not, like other similar places, protected by its lofty position, as it stood on level ground and was separated from the city by a moat and a wall. While the attack was being pressed with siege works, machines, and artillery of every kind, reinforcements arrived from Metapontum, and thus strengthened, the Romans were encouraged to make a night attack upon the enemies' works. Some they broke up, others they burnt, and that was the end of Hannibal's attempts to storm the walls. His only

hope now was to invest the citadel, but that seemed useless, for standing as it did on a promontory and overlooking the mouth of the harbour, those who held it could make free use of the sea. The city, on the other hand, was cut off from all sea-borne supplies, and the besiegers were more likely to starve than the besieged.

Hannibal called the principal men of the place together and explained all the difficulties of the situation. He told them that he saw no way of carrying a citadel so strongly fortified by storm, and there was nothing to hope for from a blockade as long as the enemy were masters of the sea. If he had ships, so that all supplies could be stopped from reaching them, they would then have to evacuate the citadel or surrender. The Tarentines quite agreed with him, but they thought that the man who gave the advice ought to help in carrying it out. If he sent for Carthaginian vessels from Sicily the thing could be done, but their own ships were locked up in a narrow bay; so how could they escape into the open sea as long as the enemy held the mouth of the harbour? "They shall escape," Hannibal replied. "Many things which nature makes difficult become easy to the man who uses his brains. You have a city situated in a flat country; broad and level roads lead in all directions. I will transport your ships without much trouble on wagons and along the road which leads from the harbour through the heart of the city to the sea. Then the sea which the enemy are now masters of will be ours, we shall invest the citadel by sea on the one side, by land on the other, or rather I would say we shall very soon capture it, either after the enemy have evacuated it or with the enemy inside as well." These words excited not only hopes of success but also an intense feeling of admiration for the general. Wagons were speedily collected from all sides and fastened together; machines were employed for hauling the ships ashore, and the surface of the road was made good so that the wagons could be drawn more easily and the transport effected with less difficulty. Then draught animals and men were got together, and the work promptly began. After a few days a completely equipped fleet sailed round the citadel and cast anchor off the very mouth of the harbour. Such was the condition of affairs which Hannibal left behind him at Tarentum when he returned to his winter quarters. Authorities, however, are divided on the question whether the defection of Tarentum occurred this year or last, but the majority, including those

who lived nearest to the time of the events, assert that it happened this year.

[25.12] The consuls and praetors were detained in Rome by the Latin Festival until the 27th of April. That day the sacred rites were completed on the Alban Mount, and they all set out for their various provinces. Subsequently the need of fresh religious observances was brought to their notice in consequence of the prophetic utterances of Marcius. This Marcius was a famous seer and his prophecies had come to light the previous year when by order of the senate an inspection was made of all books of a similar character. They first came into the hands of M. Aemilius who, as City praetor, was in charge of the business, and he at once handed them to the new praetor, Sulla. One of the two referred to events which had already happened before it saw the light, and the authority thus acquired by its fulfilment gained more credence for the other, which had yet to be fulfilled. In the first the disaster of Cannae was foretold in words to this effect:

"Thou who art sprung from Trojan blood, beware
The stream by Canna. Let not aliens born
Force thee to battle on the fatal plain
Of Diomed. But thou wilt give no heed
To this my rede until that all the plain
Be watered by thy blood, and mighty hosts
The stream shall bear into the boundless deep
From off the fruitful earth, and they who till
Its soil shall be for food to birds and beasts
And fishes. Such is Great Jove's word to me."

Those who had fought there recognised the truth of the description - the plains of Argive Diomed and the river Canna and the very picture of the disaster. Then the second prophecy was read. It was not only more obscure than the first because the future is more uncertain than the past, but it was also more unintelligible owing to its phraseology. It ran as follows:

"If, Romans, ye would drive the foemen forth
Who come from far to mar your land, then see
That Games be held as each fourth year comes round
In honour of Apollo and your State
Shall bear its part and all your folk shall share

The holy work, each for himself and his.
Your praetor, who shall justice do for each
And all, shall have the charge. Then let there be
Ten chosen who shall offer sacrifice
In Grecian fashion. This if ye will do
Then shall ye evermore rejoice and all
Your State shall prosper; yea, the god shall bring
Your foes to nought, who now eat up your land."

They spent one day interpreting this prophecy. The day following, the senate passed a resolution that the Ten should inspect the sacred books with reference to the institution of Games to Apollo and the proper form of sacrifice. After they had made their investigations and reported to the senate, a resolution was passed "that Games be vowed and celebrated in honour of Apollo, and that when they were finished, 12,000 ases were to be given to the praetor for the expenses of the sacrifice and two victims of large size." A second resolution was passed that "the Ten should sacrifice according to Greek ritual the following victims: to Apollo, an ox with gilded horns and two white she-goats with gilded horns, and to Latona a heifer with gilded horns." When the praetor was about to celebrate the Games in the Circus Maximus he gave notice that during the Games the people should contribute a gift to Apollo, according to each man's convenience. Such is the origin of the Apollinarian Games, which were instituted for the cause of victory and not, as is generally thought, in the interests of the public health. The people wore garlands whilst witnessing them, the matrons offered up intercessions; feasting went on in the forecourts of the houses with open doors, and the day was observed with every kind of ceremonious rite.

[25.13]Hannibal was still in the neighbourhood of Tarentum and both the consuls were in Samnium apparently making preparations for besieging Capua. Famine, generally the result of a long siege, was already beginning to press upon the Campanians, as they had been prevented by the Roman armies from sowing their crops. They sent a message to Hannibal asking him to give orders for corn to be conveyed to Capua from places in the neighbourhood before the consuls sent their legions into their fields and all the roads were rendered impassable by the enemy. Hannibal ordered Hanno who was in Bruttium to march his army into Campania and see to it that

the people of Capua were plentifully supplied with corn. Hanno accordingly marched into Campania and, carefully avoiding the consuls who were both encamped in Samnium, he selected a position for his camp on some rising ground about three miles from Beneventum. He then issued orders for the corn which had been stored in the friendly cities round to be carried to his camp, and assigned detachments to guard the convoys. A message was despatched to Capua stating the day on which they were to appear in the camp to receive the corn, bringing with them all the vehicles and beasts they could collect. The Campanians carried out his instructions with the same slackness and carelessness that they showed in everything else. Hardly more than four hundred country carts were sent and a few draught cattle. Hanno scolded them severely, telling them that even the hunger which rouses the energies of dumb animals failed to stimulate them to exertion. He then fixed another day for them to come for corn provided with much more efficient means of transport.

Everything was reported to the people of Beneventum exactly as it happened. They at once sent a deputation of ten of their principal citizens to the consuls, both of whom were near Bovianum. On hearing what was going on at Capua they arranged that one of them should march into Campania. Fulvius, to whom that province had been assigned, made a night march and entered Beneventum. He was now in Hanno's immediate neighbourhood and was informed that he had left with a portion of his army on a foraging expedition, that corn was supplied to Capua under the superintendence of the head of his commissariat, that two thousand wagons with a disorderly and unarmed crowd had arrived at his camp, that haste and confusion prevailed everywhere, and that the rustics had invaded the camp from all the country round and destroyed all semblance of military order and all chance of military discipline. When he had satisfied himself that this information was correct, he issued an order for his men to get ready their standards and arms against nightfall - and nothing else - as they would have to attack the Carthaginian camp. Leaving their kits and all their baggage in Beneventum, they started at the fourth watch and reached the camp just before dawn. Their appearance created such alarm that, had the camp been on level ground, it could undoubtedly have been carried at the first assault. Its elevated position and its entrenchments saved it; in no direction could it be

approached except by steep and difficult climbing. When day broke a hot fight commenced; the Carthaginians did not confine themselves to defending their lines; but being on more even ground themselves they threw down the enemy who were struggling up the heights.

[25.14] Courage and resolution, however, overcame all difficulties, and in some places the Romans had forced their way to the breastwork and fosse, but with heavy loss in killed and wounded, when the consul, calling round him the superior officers, told them that they must desist from the hazardous attempt. He thought it would be wiser to march back to Beneventum for that day, and on the next day to bring their camp close up to the enemy's camp, so that the Campanians could not quit it and Hanno would be unable to return to it. To make more certain of this, he prepared to send for his colleague and his army and direct their joint operations against Hanno and the Campanians. The "retire" was already being sounded when the general's plans were shattered by the angry shouts of the soldiers who spurned such feeble tactics. The Paelignian cohort happened to be in closest touch with the enemy, and their commanding officer, Vibius Accaus, snatched up a standard and flung it across the enemies' rampart, at the same time invoking a curse on himself and his cohort if the enemy got possession of the standard. He was the first to dash over fosse and rampart into the camp. Now the Paelignians were fighting inside the lines, and Valerius Flaccus, the commanding officer of the third legion, was rating the Romans for their cowardice in letting the allies have the glory of capturing the camp, when T. Pedanius, a centurion in command of the leading maniples' took a standard out of the bearer's hands and shouted, "This standard and this centurion will be inside the rampart in a moment, let those follow who will prevent its capture by the enemy." His own maniples followed him as he sprang across the fosse, then the whole of the legion pressed hard after. By this time even the consul, when he saw them climbing over the rampart, changed his mind, and instead of recalling the troops began to urge them on by pointing to the dangerous position of their gallant allies and their own fellow citizens. Every man did his best to push on; over smooth and rough ground alike, amidst missiles showered upon them from all directions, against the desperate resistance of the enemy who thrust their persons and their weapons in the way, they advanced step by step and broke into the camp. Many who were

wounded, even those who were faint from loss of blood, struggled on that they might fall within the enemies' camp. In this way the camp was taken, and taken too as quickly as though it lay on level ground, entirely unfortified. It was no longer a fight but a massacre, for they were all crowded together inside the lines. Over 10,000 of the enemy were killed and over 7000 made prisoners, including the Campanians who had come for corn, and all the wagons and draught animals were captured. There was also an immense quantity of plunder which Hanno, who had been raiding everywhere, had carried off from the fields of the allies of Rome. After totally destroying the enemies' camp they returned to Beneventum. There the two consuls - Appius Claudius had arrived a few days before - sold and distributed the spoil. Those to whose exertions the capture of the camp was due were rewarded, especially Accaus the Paelignian and T. Pedanius the centurion who headed the first legion. Hanno was at Cominium-Ocritum with a small foraging party when he heard of the disaster to his camp, and he retreated to Bruttium in a way which suggested flight rather than an orderly march.

[25.15]When the Campanians, in their turn, heard of the disaster which had overtaken them and their allies, they sent to Hannibal to inform him that the two consuls were at Beneventum, a day's march from Capua, and that the war had all but reached their walls and gates. If he did not come with all speed to their help Capua would fall into the hands of the enemy more rapidly than Arpi had done. Not even Tarentum, much less its citadel, ought to be of so much importance in his eyes as to make him give up to Rome, abandoned and defenceless, the Capua which he always used to say was as great as Carthage. Hannibal promised that he would take care of Capua, and sent a force of 2000 cavalry by whose aid they would be able to keep their fields from being devastated. The Romans, meanwhile, amongst their other cares, had not lost sight of the citadel of Tarentum and its beleaguered garrison. P. Cornelius, one of the praetors, had, acting on the instructions of the senate, sent his lieutenant, C. Servilius, to purchase corn in Etruria, and after loading some ships sailed to Tarentum and made his way through the enemies' guard ships into the harbour. His arrival produced such a change that the very men who, having lost almost all hope, had been frequently invited by the enemy in their colloquies with them to go over to them, now actually invited and tried to persuade the enemy to come over to them.

Soldiers, too, had been sent from Metapontum, so the garrison was now strong enough for the defence of the citadel. The Metapontines, on the other hand, relieved from their fears by the departure of the Romans, promptly went over to Hannibal. The people of Thurii, on the same part of the coast, took the same step. Their action was due in some measure to the defection of Tarentum and Metapontum, but it was due quite as much to their feeling of exasperation against the Romans at the recent massacre of their hostages. It was the relations and friends of these who sent messengers with despatches to Hannibal and Mago, who were in the neighbourhood, promising to put the city in their power if they would march up to the walls. M. Atinius was in command at Thurii with a small garrison, and they thought that he would easily be drawn into a precipitate engagement, not because he trusted to his own small garrison, but because he relied upon the soldiery of Thurii, whom he had carefully drilled and armed against such an emergency.

After the Carthaginian generals had entered the country of Thurii they divided their forces: Hanno proceeded with the infantry in battle order up to the city; Mago and his cavalry halted and took up a position behind some hills admirably adapted for concealing his movements. Atinius understood from his scouts that the hostile force consisted entirely of infantry, accordingly he went into battle quite unaware of the treachery of the citizens or the maneuver of the enemy. The contest was a very spiritless one, only a few Romans were in the fighting line, and the Thurians were awaiting the issue rather than helping to decide it. The Carthaginian line purposely fell back in order to draw their unsuspecting enemy behind the hill where the cavalry were waiting. No sooner had they reached the place than the cavalry dashed forward with their battle cry. The Thurians, an ill-disciplined crowd, disloyal to the side on which they fought, were at once put to flight; the Romans kept up the fight for some time in spite of their being attacked on one side by the infantry and on the other by the cavalry, but at last they, too, turned and fled to the city. There a body of the traitors admitted the stream of their fellow townsmen through the open gate, but when they saw the Romans routed and running towards the city they shouted that the Carthaginians were at their heels and the enemy would enter the city pell mell with the Romans unless they instantly closed the gates. The Romans accordingly were shut out for slaughter by the enemy,

Atinius and a few others being alone allowed to enter. A heated discussion thereupon arose amongst the townsmen; some were for maintaining their loyalty to Rome, others thought they ought to yield to fate and surrender the city to the victors. As usual, evil counsels and the desire to be on the winning side carried the day. Atinius and his men were conducted down to the sea and placed on board ship, not because they were Romans, but because, after Atinius' mild and impartial administration, they wished to provide for his safety. Then the Carthaginians were admitted into the city. The consuls left Beneventum and marched their legions into the territory of Capua, partly to destroy the crops of corn which were now in the blade, and partly with the view of making an attack upon the city. They thought that they would make their consulship illustrious by the destruction of so wealthy and prosperous a city and at the same time they would wipe out a great stain from the republic which had allowed the defection of so close a neighbour to go for three years unpunished. They could not, however, leave Beneventum unguarded. If, as they felt certain would be the case, Hannibal came to Capua to help his friends, it would be necessary, in view of the sudden emergency, to provide against the attacks of his cavalry. They sent orders, therefore, to Tiberius Gracchus, who was in Lucania, to come to Beneventum with his cavalry and light infantry, and to leave some one in command of the legions in the standing camp who were protecting Lucania.

[25.16] Before he left Lucania a most ill-omened portent happened to Gracchus whilst he was offering sacrifice. The sacrifice itself was just finished when two snakes glided unobserved up to the reserved parts of the victim and devoured the liver; as soon as they were seen they suddenly disappeared. On the advice of the augurs a fresh sacrifice was offered and the parts reserved with greater care, but according to the tradition the same thing happened a second and even a third time; the snakes glided up and after tasting the liver slipped away untouched. The augurs warned the commander that the portent concerned him and they bade him be on his guard against secret foes and secret plots. But no foresight could avert the impending doom. There was a Lucanian named Flavus, the head of that section of the Lucanians who stood by Rome - one section had gone over to Hannibal - and they elected him praetor. He had already been a year in office when suddenly he changed his mind and began to look out for an opportunity of ingratiating himself with the Carthaginians. He

did not think it enough to go over himself and draw the Lucanians with him into revolt, unless he could make his league with the enemy sure by the life-blood of the very man who was his guest-friend, and betray the Roman commander. He had a secret interview with Mago, who was commanding in Bruttium, and obtained his solemn pledge that if he would betray the Roman commander to the Carthaginians the Lucanians should be taken into friendship and allowed to live as a free people under their own laws. He then took Mago to the spot where he said he would bring Gracchus with a small escort. Mago was to bring foot and horse fully armed to the place and place a large force in concealment. After the spot had been thoroughly examined and an investigation made of every part, a day was fixed for carrying out the project. Flavus went to the Roman commander and told him that he had an important enterprise on hand and required Gracchus' help for its accomplishment. He had persuaded the chief magistrates of all the communities which in the general disturbance of Italy had seceded to the Carthaginians to return to friendship with Rome, since the cause of Rome which had been all but ruined at Cannae was every day becoming stronger and more popular, whilst the strength of Hannibal was waning and had almost reached the vanishing point. The Romans, he knew, would not be implacable to those who had formerly offended, there had never been a nation more ready to listen to prayers and more quick to grant forgiveness. How often had they pardoned even their own ancestors after their repeated renewal of hostilities! This was the language he had addressed to them. "But," he went on, "they would rather hear all this from Gracchus himself in person, and touch his right hand, and carry away with them that pledge of good faith." He explained that he had mentioned a place to those whom he had taken into confidence not far from the Roman camp, and only a few words would be needed so to arrange matters there that the entire Lucanian nation would become faithful allies of Rome.

Gracchus, impressed by the apparent sincerity of the man's language and the proposal he made, and carried away by his smooth and plausible address, started from camp with his lictors and a troop of cavalry under the guidance of his guest-friend. He rode straight into the snare; suddenly enemies showed themselves on all sides, and to take away all doubt as to his being betrayed Flavus joined them. Missiles were hurled from every quarter upon Gracchus and his

cavalry. He sprung from his horse, and ordered the rest to do the same, and called upon them to make the one thing which Fortune had left them glorious by their courage. "For what is left," he cried, "to a little band surrounded by an enormous host in a valley shut in by forest and mountain, except death? The one question is, are you going to offer yourselves like cattle to be butchered without striking a blow, or are you going to turn all your thoughts from passively awaiting the end and make a fierce and furious onslaught, doing and daring, until you fall, covered with your enemies blood, amidst the heaped-up bodies and arms of your dying foes? Make, every one of you, for the Lucanian traitor and renegade! The man who sends him beforehand as a victim to the gods below will find in his own death a glorious honour and unspeakable consolation." Whilst saying this he wound his paludamentum round his left arm - for they had not even brought their shields with them - and charged the enemy. There was more fighting than might have been expected from the number of the combatants. The Romans were most exposed to the darts, and as they were hurled from the higher ground all round they were pierced by them. Gracchus was now left without any defence and the Carthaginians tried to take him alive, but catching sight of his Lucanian guest-friend amongst the enemy, he made such a furious onslaught on their serried ranks that it became impossible to save his life without incurring heavy loss. Mago sent his dead body to Hannibal and ordered it and the captured fasces to be placed before the general's tribunal. If this is the true story, Gracchus perished in Lucania at the place called the "Old Fields."

[25.17] There are some who point to a place in the neighbourhood of Beneventum, near the river Calor, as the scene of his death. He had left the camp with his lictors and three attendants to bathe in the river, whilst the enemy were concealed in osier beds on the bank, and whilst naked and defenceless was killed, after vainly endeavouring to drive off the enemy by stones from the bed of the river. Others say that, acting on the advice of the augurs, he had gone about half a mile from the camp for the purpose of averting the above-mentioned portents in a place free from defilement, when he was surrounded by two squadrons of Numidians who happened to have taken up their position there. So little agreement is there as to the place and circumstances of the death of this brilliant and famous man. And there are different versions of the account of his funeral. Some say

that his men buried him in his own camp; others say that he was buried by Hannibal, and this is the more generally accepted account. According to this version, a funeral pyre was erected on the open space in front of the camp and the whole army fully accoutred went through various evolutions with Spanish dances and the movements of limbs and weapons peculiar to each tribe, Hannibal doing honour to the dead in every way by his acts and words. This is the account given by those who say that his death took place in Lucania. If you choose to believe those who place it at the river Calor, it would appear that the enemy only got possession of the head; this was sent to Hannibal, and he at once despatched Carthalo to carry it to Cn. Cornelius, the quaestor, who carried out the obsequies in the Roman camp, the people of Beneventum taking their part in the ceremony as well as the soldiers.

[25.18]The consuls had invaded the territory of Capua and were devastating it far and wide when great alarm and confusion were caused by a sudden sortie of the townsmen supported by Mago and his troopers. They hurriedly recalled to the standards the men who were scattered in all directions, but they had hardly time to form their line before they were routed and lost more than 1500 men. The self-confidence and arrogance of the people of Capua were immensely strengthened by this success and they were continually challenging the Romans to fight. But that one engagement brought about by want of caution and foresight put the consuls much more on their guard. An incident occurred, however, which put heart into the Romans and lessened the confidence of the other side, an insignificant one it is true, but in war nothing is so insignificant as not sometimes to involve serious consequences. T. Quinctius Crispinus had a friend in Capua called Badius, and their friendship was a very close and intimate one. The intimacy had been formed before the defection of Capua when Badius was lying ill in Rome at Crispinus' house and received the kindest and most careful attention from his host. One day this Badius walked up to the sentinels on duty before the camp gate and asked them to call Crispinus. Crispinus, on receiving the message, imagined that he had not forgotten the old ties of friendship even though public treaties were torn up, and that he wanted a friendly and familiar talk, and accordingly he went on a short distance from his comrades. As soon as they came in sight of one another Badius called out: "I, Badius, challenge you, Crispinus, to battle. Let

us mount our horses and, when the others have withdrawn, decide who of us is the better fighter." Crispinus replied that neither he nor his challenger lacked enemies upon whom they could display their courage, but as for himself, even if he met Badius on the field of battle, he would avoid him sooner than pollute his right hand with a friend's blood. Then he turned round and was in the act of departing when Badius became more insolent and began to taunt him with effeminacy and cowardice and hurled at him abusive epithets which he himself more properly deserved. He said that he was an enemy masquerading as a friend and pretending to spare a man for whom he knew he was no match. If he were under the impression that when the bonds which held states together were broken the bonds of private friendship were not broken at the same time, then he, Badius of Capua, openly renounced in the hearing of both armies the friendship of T. Quinctius Crispinus the Roman. "There is," he went on, "no fellowship, no bond of alliance between foe and foe, between me and the man who has come to attack my home, my country, and my country's gods. If you are a man, meet me!" For a long time Crispinus hesitated, but the men of his troop at last prevailed upon him not to let the Campanian insult him with impunity, and so, only waiting till he could ask his commanders if they would allow him, against regulations, to fight an enemy who challenged him, he mounted his horse with their permission and called upon Badius by name to come out and fight. The Campanian showed no hesitation; they spurred their horses against each other and met. Crispinus with his lance wounded Badius in his left shoulder above his shield. He fell from his horse and Crispinus leaped down from the saddle to despatch him as he lay. Badius, before he was overpowered, escaped to his comrades, leaving shield and horse behind. Crispinus, proudly displaying his spoils, the horse and shield which he had taken, was conducted amid the cheers and congratulations of the soldiers to the consuls. Here he was addressed in terms of high praise and loaded with gifts.

[25.19]Hannibal left the neighbourhood of Beneventum and encamped close to Capua. Three days afterwards he led out his force to battle, feeling quite certain that as the Campanians had fought a successful action a short time before in his absence, the Romans would be far less able to withstand him and the army which had been so often victorious. As soon as the battle commenced the Roman line

was in difficulties, chiefly owing to the attack of cavalry, as they were almost overwhelmed by their darts. The signal was given for the Roman cavalry to charge the enemy at full gallop, and now it had become simply a cavalry engagement when the sight of Sempronius' army in the distance commanded by Cn. Cornelius created equal alarm on both sides, as each feared that a fresh enemy was coming on. The signal to retire was given in both armies as if by mutual consent, and the combatants separated on almost equal terms and returned to camp. The loss on the Roman side was, however, somewhat the greater owing to the cavalry attack at the beginning. In order to draw Hannibal away from Capua the consuls left in the night after the battle for different destinations; Fulvius went into the neighbourhood of Cumae and Claudius into Lucania. On being informed the next day that the Roman camp was evacuated, and that they had gone in two divisions by different routes, Hannibal was at first undecided which he should follow; he decided to follow Appius. After leading his enemy about just as he pleased, Appius returned by a circuitous route to Capua.

Another chance of achieving success in this country presented itself to Hannibal. There was a certain M. Centenius, surnamed Paenula, who was conspicuous among the centurions of the first rank for his physical stature and his courage. After completing his period of service he was introduced by P. Cornelius Sulla, the praetor, to the senate. He requested the senators to allow him 5000 men; he was well acquainted with the enemy and the country where he was operating and would very soon do something worth the doing; the tactics by which our generals and their armies had been outwitted up to that time he would employ against the man who invented them. Stupid as the promise was it was quite as stupidly given credence to, as though the qualifications of a soldier were the same as those of a general. Instead of 5000 he was given 8000 men, half of them Romans and half troops furnished by the allies. He himself, too, picked up a considerable number of volunteers in the country through which he was marching, and he arrived in Lucania with double the army he started with. Here Hannibal had come to a halt after his fruitless pursuit of Claudius. The result could not be doubtful, seeing it was a contest between armies one of which consisted of veterans habituated to victory, the other a hastily raised and half-armed force. As soon as they caught sight of each other, neither side declined

battle and they at once got into fighting order. For more than two hours, however, in spite of the utterly unequal conditions, the Roman army kept up the fighting as long as their leader stood his ground. At last, out of regard for his former reputation and also fearing the disgrace he would incur if he survived a defeat brought on by his own headlong folly, he rushed upon the weapons of the foe and fell, and the Roman army was instantly routed. But even when they fled they found no way of escape, for all avenues were closed by the cavalry, so that out of that multitude of men only a thousand escaped, all the rest perished in one way or another.

[25.20]The consuls now resumed the siege of Capua in earnest, and everything necessary for the task was brought together and got into readiness. Corn was stored at Casilinum; at the mouth of the Volturnus, where the town of Vulturum now stands, a fort was constructed and a garrison was placed in it and in Puteoli also, which Fabius had previously fortified, so that they might command both the river and the adjacent sea. The corn which had lately been sent from Sardinia as well as that which M. Junius had purchased in Etruria was conveyed from Ostia into these two maritime fortresses, that the army might have a supply throughout the winter. Meantime the disaster which had overtaken Centenius in Lucania was aggravated by another which resulted from the death of Gracchus. The volunteer slaves who had done excellent service when he was alive to lead them, looked upon his death as discharging them from further military duties and accordingly disbanded themselves. Hannibal was anxious not to neglect Capua or desert friends who were in such a critical position, but after his easy victory through the foolhardiness of one Roman general he was watching for an opportunity of crushing another. Envoys from Apulia had informed him that Cn. Fulvius, who was attacking some of their cities which had seceded to him, had at first conducted his operations with care and prudence, but afterwards, intoxicated with success and loaded with plunder, he and his men had given themselves up to such idleness and self-indulgence that all military discipline had disappeared. Hannibal knew by repeated experience, and especially within the last few days, what state an army gets into under an incompetent commander and he at once moved into Apulia.

[25.21]Fulvius and his legions were in the neighbourhood of Heraclea. When they heard that the enemy were approaching they

were almost on the point of dragging up the standards and going into battle without waiting for orders. In fact the one thing that restrained them more than anything else was the confidence they felt of being able to choose their own time for fighting. The following night, when Hannibal became aware that the camp was in a state of tumult and that most of the men were defying their commander and insisting that he should give the signal, and that there was a general cry, "To arms!" he was quite certain that the opportunity was presented of a successful battle. He quietly disposed some three thousand of his light infantry in the surrounding homesteads and in the woods and copses. They were all to spring from their concealment at the same moment when the signal was given, and Mago had orders to place about two thousand cavalry along all the roads which he thought the direction of the flight might take. After making these dispositions during the night, he marched out to battle at dawn. Fulvius did not hesitate, though he was not drawn on so much by any hopes of success on his own part as by the blind impetuosity of his men. The same recklessness which sent them on to the field appeared in the formation of their line. They went forward in a haphazard way and took their places in the ranks just where they chose, and left them again as their caprices or fears dictated. The first legion and the left wing of the allies were drawn up in front and the line was extended far beyond its proper length. The officers called out that it possessed neither strength nor depth and wherever the enemy made their attack they would break through, but the men would not even listen to, much less attend to anything that was for their good. And now Hannibal was upon them; a general so different from their own, with an army so different and in such different order! As might be expected, the Romans were unable to withstand the very first attack; their general, quite as foolish and reckless as Centenius, though not to be compared with him in courage, no sooner saw the day going against him and his men in confusion than he seized a horse and made his escape with about two hundred of his cavalry. The rest of the army, repulsed in front and then surrounded in rear and flanks, was so completely cut up that out of 12,000 men not more than 2000 escaped. The camp was taken.

[25.22]The news of these disasters, one after another, created very great grief and alarm amongst the citizens in Rome, still, as they knew that the consuls were so far successful where success was most

important, they were not so much disturbed by the tidings as they might have been. The senate despatched C. Laetorius and M. Metilius with instructions to the consuls, telling them to carefully get together the remains of the two armies and to see to it that the survivors were not driven by fear and despair to surrender to the enemy, as had happened after the disaster at Cannae. They were also to find out who had deserted amongst the volunteer slaves. Publius Cornelius also was charged with this latter task, as he was with the raising of fresh troops, and he caused notices to be published through the market-towns and boroughs, ordering that search should be made for the volunteer slaves, and that they should be brought back to their standards. These instructions were all most carefully carried out. Appius Claudius placed D. Junius in command at the mouth of the Volturnus, and M. Aurelius Cotta at Puteoli; whenever the vessels arrived from Etruria and Sardinia they were at once to have the corn sent on to the camp. Claudius then returned to Capua and found his colleague Q. Fulvius bringing everything from Casilinum and making preparations to attack the city. Both of them now commenced the investment of the place, and they summoned the praetor, Claudius Nero, who was in Claudius' old camp at Suessula. He, too, leaving a small force to hold the position, came down with the rest of his army to Capua. So three commanders had their headquarters now established round Capua, and three armies working on different sides were preparing to ring the city round with fosse and dyke. They erected blockhouses at certain intervals, and battles took place in several places at once with the Campanians as they tried to stop the work, the result being that at last the Campanians kept within their walls and gates.

Before, however, the circle of investment was completed, envoys were despatched to Hannibal to remonstrate with him for having abandoned Capua which was now almost restored to the Romans, and to implore him to bring them succour now, at all events, as they were no longer merely besieged but completely blockaded. A despatch was sent to the consuls by P. Cornelius bidding them give an opportunity to the inhabitants, before they completed the investment, of leaving the place and carrying away their property with them. Those who left before the 15th of March would be free and remain in possession of all their property; after that date those who left and those who remained would be alike treated as enemies. When

this offer was announced to the Campanians they treated it not only with scorn but with gratuitous insults and threats as well. Shortly before this Hannibal had left Herdonea for Tarentum in the hope of acquiring the place either by treachery or by force, and as he failed to do so he bent his course towards Brundisium, under the impression that the town would surrender. It was whilst he was spending time here to no purpose that the envoys from Capua came to him with their remonstrances and appeals. Hannibal answered them in high-sounding words; "he had raised the siege of Capua once already, and the consuls would not wait for his approach even now." Dismissed with this hope the envoys had considerable difficulty in getting back to Capua, surrounded as it now was with a double fosse and rampart.

[25.23]Just when the circumvallation of Capua was being completed the siege of Syracuse came to an end. This result was due in a large measure to the energy and courage of the general and his army, but it had been helped on by domestic treachery. At the commencement of the spring Marcellus was undecided whether to turn the stress of war to Agrigentum against Himilco and Hippocrates, or whether he should press the siege of Syracuse. He saw that this place could not be carried by assault, as it was unassailable by sea or land owing to its position, nor could it be reduced by famine, since it was nourished by a free supply of provisions from Carthage. However, he determined to leave nothing untried. There were with the Romans some leading members of the Syracusan nobility who had been expelled when the defection took place, and Marcellus told these refugees to sound the feelings of the men of their own party, and give them an assurance that if Syracuse were surrendered they should be free and live under their own laws. It was impossible to get any chance of interviews, for the fact of many being suspected made all more careful and watchful, so that no attempt of the kind should escape detection. A slave belonging to the exiles was admitted into the city as a deserter, and after getting a few men together, broached the subject in conversation. Subsequently some were hidden under the nets in a fishing boat and in that way taken round to the Roman camp where they had conversations with the refugees. Different people, one after another, did the same thing, until at last there were as many as eighty concerned in the matter. When all the arrangements for surrender had been made, information was given to Epicydes by

a certain Attalus who resented not having been intrusted with the secret, and they were all tortured to death.

This hope, which had proved so illusory, was soon succeeded by another. A certain Damippus, a Lacedaemonian, had been sent from Syracuse on a mission to King Philip and was captured by some Roman ships. Epicydes was particularly anxious to ransom this man, and Marcellus raised no objection, as just at that time the Romans were bidding for the friendship of the Aetolians with whom the Lacedaemonians were in alliance. Those who were sent to discuss the terms of the ransom thought that the most central place for the conference, and the one most convenient to both sides, was a spot near the tower called Galeagra, at the Trogilian port. As they went to and fro there several times, one of the Romans took a near view of the wall, counted the stones and formed an estimate in his mind of the thickness of each stone. Having thus calculated the height of the wall as well as he could by conjecture, and finding it lower than he or any one else had supposed and capable of being scaled by a ladder of even moderate length, he made a report to the consul. Marcellus attached considerable importance to his suggestion, but as that part of the wall, being lower, was for that very reason more carefully guarded, it was impossible to approach it and they had to watch their opportunity, which soon came. A deserter brought word that the townspeople were keeping the festival of Diana which lasted three days, and that, through lack of other things, owing to the siege, they were celebrating the feast mostly with wine, which Epicydes had distributed amongst the populace, and the leading citizens amongst the tribes. On hearing this, Marcellus talked the matter over with a few of the military tribunes, and through them selected the centurions and private soldiers who were fittest for such a daring enterprise. Scaling ladders were quietly got ready, and then all the rest of the men were ordered to seek refreshment and rest as soon as they could, as a nocturnal expedition was in front of them. As soon as he thought the time had come when, after feasting all day, the men would have their fill of wine and be in their first sleep, the consul ordered one maniple to carry scaling ladders, and about a thousand men were silently marched in a narrow column up to the spot. They got up on to the wall without any confusion or noise and others at once followed in order; even those who felt nervous were reassured by the daring of those in front.

[25.24]By this time a thousand men had got possession of that section of the wall. They went on as far as the Hexapylon without meeting a soul, as the majority of those on guard in the bastions were either stupid with wine after their revels or were drinking themselves drunk. They killed a few, however, whom they surprised in their beds. When they reached the Hexapylon they gave the signal, and the rest of the troops marched up to the walls bringing more scaling ladders with them. The postern gate near the Hexapylon was giving way to the violence of the blows, and the agreed signal was given from the wall. They no longer attempted to conceal their movements, but commenced an open attack, as they had now reached Epipolae, where there was a large force on guard, and their object was now to frighten rather than elude the enemy. They succeeded perfectly. For no sooner were the notes of the trumpets heard and the shouts of those who held the wall and a part of the city, than the men on guard thought that every part was taken, and some fled along the wall, others leaped from it, and a crowd of panic-struck citizens took to headlong flight. A great many, however, were ignorant of the great disaster that had befallen them, for everybody was heavy with, wine and sleep, and in a city of such vast extent what was happening in one part was not known to the population generally.

At daybreak Marcellus forced the gates of the Hexapylon and entered the city with his entire force, rousing the citizens who all betook themselves to arms, prepared to render what help they could to a city which was all but captured. Epicydes made a hurried march from the Island - its local name is Nasos - under the impression that a few men had succeeded in scaling the walls owing to the negligence of the guards and that he would soon drive them out. He told the terrified fugitives whom he met that they were adding to the confusion and making things out to be more serious and alarming than they really were. When, however, he saw every place round Epipolae full of armed men, he simply discharged a few missiles at the enemy and marched back to the Achradina, not so much through fear of the strength and numbers of the enemy as of some opening for treason from within, which might close the gates of Achradina and the Island against him in the confusion. When Marcellus mounted the fortifications and saw from his higher ground the city below him, the fairest city of the time, he is said to have shed tears at the sight, partly through joy at his great achievement, partly at the memory of its

ancient glories. He thought of the Athenian fleets which had been sunk in that harbour, of the two great armies with their famous generals which had been annihilated there, of all of its many powerful kings and tyrants, above all, of Hiero, whose memory was so fresh, and who, in addition to all his endowments of fortune and character, had distinguished himself by his services to Rome. As all this passed through his mind and with it the thought that in one short hour all he saw round him would be burnt and reduced to ashes, he decided, before advancing against Achradina, to send the Syracusans, who, as already stated, were with the Roman troops, into the city to try if kind words could induce the enemy to surrender the place.

[25.25]The gates and walls of Achradina were mostly held by the deserters who were hopeless of obtaining mercy on any terms, and they allowed no one to approach the walls or to speak to them. So Marcellus, finding that his project had failed, ordered the troops to return to Euryalus. This was a hill in the furthest part of the city, away from the sea, and overlooking the road which leads into the country and the inland part of the island. It was, therefore, admirably adapted for the reception of supplies from the interior. The command of the citadel here had been entrusted by Epicydes to Philodemus an Argive. Sosis, one of the regicides, had been sent by Marcellus to open up negotiations, but after a long conversation in which he found himself put off with evasive replies he reported to Marcellus that Philodemus was taking time for consideration. He continued to procrastinate from day to day, to allow time for Hippocrates and Himilco to bring up their legions, feeling quite sure that if he had them in his stronghold the Romans would be shut up within the walls and annihilated. As Marcellus saw that Euryalus could not be taken by either treachery or force, he established his camp between Neapolis and Tyche - parts of the city, and almost cities in themselves - as he was afraid if he entered the more populous parts he would not be able to keep his soldiers from dispersing in their eagerness for plunder. Envoys came to him from these two places with olive branches and woollen fillets, imploring him that they might be spared from fire and sword. Marcellus held a council of war to consider this request, or rather this entreaty, and in accordance with the wish of all present he gave notice to the soldiers that they were not to lay hands on any free citizen; everything else they were at liberty to appropriate. Instead of fosse and rampart the camp was protected by the private

houses which served it for walls, and sentinels and pickets were posted at the gates of the houses which stood open to the street to secure the camp against attack while the soldiers were dispersed in the city. After this the signal was given and the soldiers ran in all directions, breaking open the house doors and filling everything with uproar and panic, but they refrained from bloodshed. There was no limit to the work of rapine until they had cleared the houses of all the goods and possessions which had been accumulating during the long spell of prosperity. Whilst this was going on, Philodemus saw that there was no hope of succour, and after getting the promise of a safe conduct for him to return to Epicydes, he withdrew his garrison and handed the position over to the Romans. Whilst everybody was preoccupied with the tumult in the captured part of the city, Bomilcar seized the opportunity to escape. The night was a tempestuous one, and the Roman fleet were unable to keep their anchorage off the harbour, so he slipped out with thirty-five ships, and finding the sea clear set sail for Carthage, leaving fifty-five ships for Epicydes and the Syracusans. After making the Carthaginians realise the critical state of affairs at Syracuse he returned with a hundred ships a few days later and was rewarded - so they say - by Epicydes with gifts from Hiero's treasury.

[25.26]The capture of Euryalus and its occupation by a Roman garrison relieved Marcellus of one cause of anxiety; he had no longer to dread an attack from the rear which might have created confusion amongst his men, shut in and hampered as they were by walls. His next move was against Achradina. He established three separate camps in suitable positions and sat down before the place, hoping to reduce it by famine. For some days the outposts were undisturbed, when the sudden arrival of Hippocrates and Himilco led to a general attack upon the Roman lines. Hippocrates had formed an entrenched camp at the Great Harbour, and after giving a signal to the troops in Achradina he made an attack on the old camp of the Romans which Crispinus commanded. Epicydes made a sortie against Marcellus and the Carthaginian fleet which lay between the city and the Roman camp was brought ashore and so prevented Crispinus from sending any help to Marcellus. The excitement which the enemy caused was, however, much more alarming than the fighting, for Crispinus not only drove Hippocrates back from his entrenchments, but actually went in pursuit as he fled hurriedly away, whilst Marcellus drove

Epicyles back into the city. And now, apparently, ample provision was made against danger arising from any sudden attacks in the future.

To add to their troubles both sides were visited by pestilence, a calamity almost heavy enough to turn them from all thoughts of war. It was the time of autumn and the locality was naturally unhealthy, more so, however, outside the city than within it, and the insupportable heat affected the constitutions of almost all who were in the two camps. In the beginning people fell ill and died through the effects of the season and the unhealthy locality; later, the nursing of the sick and contact with them spread the disease, so that either those who had caught it died neglected and abandoned, or else they carried off with them those who were waiting on them and nursing them, and who had thus become infected. Deaths and funerals were a daily spectacle; on all sides, day and night, were heard the wailings for the dead. At last familiarity with misery so brutalised men that not only would they not follow the dead with tears and the lamentations which custom demanded, but they actually refused to carry them out for burial, and the lifeless bodies were left lying about before the eyes of those who were awaiting a similar death. So what with fear and the foul and deadly miasma arising from the bodies, the dead proved fatal to the sick and the sick equally fatal to those in health. Men preferred to die by the sword; some, single-handed, attacked the enemies' outposts. The epidemic was much more prevalent in the Carthaginian camp than in that of the Romans, for their long investment of Syracuse had made them more accustomed to the climate and to the water. The Sicilians who were in the hostile ranks deserted as soon as they saw that the disease was spreading through the unhealthiness of the place, and went off to their own cities. The Carthaginians, who had nowhere to go to, perished to a man together with their generals, Hippocrates and Himilco. When the disease assumed such serious proportions Marcellus transferred his men to the city, and those who had been weakened by sickness were restored by shade and shelter. Still, many of the Roman soldiers, too, were carried off by that pestilence.

[25.27]When the land army of the Carthaginians had been thus wiped out, the Sicilians who had been with Hippocrates took possession of two walled towns, not large ones certainly, but made safe by their situation and strong fortifications. One was three miles from

Syracuse, the other fifteen. They carried supplies to these towns from their own states and asked for reinforcements. Bomilcar had in the meantime paid a second visit to Carthage with his fleet and had drawn such a picture of the state of things in Syracuse as to lead the government to hope that they might not only render effectual assistance to their friends, but even succeed in capturing the Romans inside that city, which they had in some measure captured. He persuaded them to despatch as many cargo ships as they could, laden with stores of all kinds, and also to augment his force of fighting ships. The result was that he left Carthage with 130 ships of war and 700 transports. The winds were favourable for him whilst sailing for Sicily, but they prevented him from rounding the promontory of Pachinus. The news of Bomilcar's approach and then his unexpected delay excited first hope and then fear amongst the Syracusans and just the reverse among the Romans. Epicydes was afraid that if the east wind lasted much longer the Carthaginian fleet would return to Africa, and he handed Achradina over to the commanders of the mercenaries and put off to meet Bomilcar. He found him at anchor with his ships headed for the African coast and anxious to avoid a naval engagement, not because he was inferior in the strength or number of his ships - he really had more than the Romans - but because the winds were more favourable to them than to him; Epicydes, however, persuaded him to try his chance in a sea fight. When Marcellus became aware that an army of Sicilians was being raised from the whole of the island, and that a Carthaginian fleet was approaching with vast supplies, he determined, though inferior in the number of ships to prevent Bomilcar from reaching Syracuse, lest he should be shut in by sea and land whilst he was confined and hampered in a hostile city. The two fleets lay facing each other off the promontory of Pachinus, ready to engage as soon as the sea was calm enough to allow them to sail into deep water. As soon as the east wind, which had been blowing strongly for some days, dropped Bomilcar made the first move. It seemed as though he was making for the open sea in order the better to round the promontory, but when he saw the Roman ships sailing straight for him he crowded on all sail and skirting the coast of Sicily made for Tarentum, having previously sent a message to Heraclea ordering the transports to return to Africa. Finding all his hopes suddenly crushed, Epicydes did not care to go back to a city which was in a state of siege and a

large part of which was already taken. He sailed for Agrigentum, to watch events rather than to control them.

[25.28]When the news of what had happened reached the camp of the Sicilians, viz. that Epicydes had left Syracuse and that the island had been abandoned by the Carthaginians and almost surrendered a second time to the Romans, they sent envoys to Marcellus to treat for the surrender of the city, having previously sounded in frequent interviews the feelings of those who were undergoing the siege. They were practically united on these two points, that all that had been included in the king's dominions should belong to Rome, and that all else was to be retained by the Sicilians together with their liberty and their laws. They then invited those who had been left in charge by Epicydes to a conference, the envoys telling them that the army of the Sicilians had sent them to them as well as to Marcellus, so that those who were within and those who were outside of the beleaguered city might share the same fortune, and neither should make separate terms for themselves. Admission was granted to them that they might converse with their friends and relatives. After explaining the nature of their understanding with Marcellus and holding out a prospect of safety, they persuaded them to join in an attack upon those to whom Epicydes had committed the government - Polyclitus, Philistio, and Epicydes, surnamed Sindon. They were put to death and the citizens were summoned to a public meeting. Here the envoys complained bitterly of the straits they were in for food, and the other evils which they had been in the habit of grumbling about in secret; they said that although they had so much to distress them, they must not throw the blame on Fortune; it was in their own power to decide how long they would endure it. The motives which led the Romans to attack Syracuse were those of affection, not animosity. When they heard that the reins of government had been seized by Hippocrates and Epicydes, who had been first creatures of Hannibal and then of Hieronymus, they set their armies in motion and began the siege, not for the purpose of destroying the city but of crushing those who were tyrannising over it. But now that Hippocrates was disposed of and Epicydes shut out from Syracuse and his officers put to death, what was there left to prevent the Romans from wishing that Syracuse should be free from all harm, just as they would have wished it had Hiero, that eminently loyal friend of Rome, been still alive? There was, then, no danger either to

the city or its people other than what would arise from their own action if they let slip that chance of reconciliation with Rome. There would never be another so favourable as the one they had at that moment, just when it was plain to all that Syracuse had been delivered from an impotent tyranny.

[25.29] This address was received with universal approval. It was, however, decided to elect magistrates before sending the envoys. From amongst the magistrates so elected they selected the envoys who were to be sent to Marcellus. Their leader addressed him in the following terms: "It is not we, the people of Syracuse, who have revolted from you, but Hieronymus, who acted much more wickedly towards us than towards you. And when peace had been restored by the tyrant's death it was no Syracusan, but the king's creatures Hippocrates and Epicydes, who disturbed it, by crushing us on the one hand by fear, on the other by treachery. No man can say that there was ever a time during which we enjoyed liberty when we were not at peace with you. Now, at all events, no sooner have we become our own masters through the death of the oppressors of Syracuse than we come to you to give up our arms, to surrender ourselves, our city and its fortifications, to accept any condition which you may lay upon us. To you, Marcellus, the gods have vouchsafed the glory of capturing the noblest and fairest of Grecian cities. Whatever memorable achievement we have wrought by sea or land enhances the splendour of your triumph. Would you wish that it should be only a glorious tradition how great a city you have captured, rather than that it should be a spectacle for the eyes of posterity to rest upon? That it should exhibit to all who visit it by land or sea the trophies we have won from Athenians and Carthaginians, which are now the trophies you have won from us? That you should hand down to your house an unharmed Syracuse to be kept under the patronage and protection of all who bear the name of Marcellus? Let not the memory of Hieronymus weigh more with you than that of Hiero. He was your friend for a far longer time than the other was your enemy. You found in him a real benefactor; this man's madness only availed to his own destruction." As far as the Romans were concerned they could have gained all they wanted in perfect security. It was amongst the besieged themselves that war existed with all its perils. The deserters, thinking that they were being betrayed, communicated their fears to the mercenaries; they all flew to arms, and beginning

with the murder of the magistrates they commenced a general massacre of the citizens, killing in their desperate madness everybody they met, and plundering all they could lay hands on. Then, that they might not be without officers, they elected six, three to command in Achradina and three in Nasos. When the tumult had somewhat subsided and the mercenaries found out on inquiry what agreement had been come to with the Romans, the truth began to dawn upon them, and they realised that their case was quite distinct from that of the deserters.

[25.30]The envoys came back from their interview with Marcellus just at the right moment, and were able to assure them that their suspicions were groundless and that the Romans saw no reason why they should visit them with punishment. One of the three commanders in Achradina was a Spaniard named Moericus, and amongst those who accompanied the envoys a soldier from the Spanish auxiliaries had designedly been introduced. When they had entered Achradina this man obtained a private interview with Moericus and described to him the state of affairs in Spain, which he had quite recently left, and how everything there was under the power of Rome. If Moericus chose to make himself of use to the Romans, he might be a leading man among his countrymen, and either take service under the Roman standard or return to his own country, whichever he chose. But if on the other hand he preferred to remain under siege, what hope had he of relief, shut in as he was by sea and land? Moericus was impressed by the force of these arguments, and after it had been decided to send envoys to Marcellus, he sent his brother as one of them. The same Spanish soldier conducted him by himself to Marcellus. In this interview the details were settled and Marcellus pledged himself to observe the conditions, after which the envoys returned to Achradina. In order to avoid the least chance of suspicion Moericus made it known that he disapproved of envoys going to and fro, and gave orders that none were to be admitted and none sent. Also, with a view to greater security, he thought that the conduct of the defence ought to be properly distributed amongst the three commanders, so that each might be responsible for his own section of the fortifications. They all agreed. In the division, his command extended from the fountain of Arethusa to the mouth of the Great Harbour, and he managed to let the Romans know that. So Marcellus ordered a cargo ship filled with troops to be towed by a

quadrireme to the Island, and the men to land near the gate adjoining the fountain. This order was carried out in the fourth watch, and Moericus, as previously arranged, admitted the soldiers through the gate. At dawn Marcellus attacked Achradina with his full strength, and not only those who were actually holding it, but the troops in Nasos also, left their posts and ran to defend Achradina from the assault of the Romans. In the confusion of the attack some swift vessels, which had previously been brought round to Nasos, landed troops. These making an unexpected attack upon the half-manned posts, and rushing through the gates, still open, out of which the garrison had just sallied to defend Achradina, had little trouble in capturing a position which had been abandoned owing to the flight of its defenders. There were none who did less to defend the place or to maintain their ground with any spirit than the deserters; they did not even trust their own comrades, and fled in the middle of the fighting. When Marcellus learnt that Nasos was captured and one district of Achradina occupied, and that Moericus with his men had joined the Romans, he ordered the retreat to be sounded, for he was afraid that the royal treasure, the fame of which exceeded the reality, might fall into the hands of plunderers.

[25.31]The impetuosity of the soldiers being thus checked and time and opportunity given for the deserters in Achradina to effect their escape, the Syracusans were at last relieved of their apprehensions and opened the gates. They at once sent a deputation to Marcellus with the one request that they and their children might remain unharmed. He called a council of war, to which he summoned the Syracusan refugees in the Roman camp, and made the following reply to the deputation: "The crimes committed against the people of Rome during these last few years by those who have held Syracuse quite outweigh all the good services which Hiero rendered us during his fifty years' reign. Most of these, it is true, have recoiled on the heads of those who were guilty of them, and they have punished themselves for their breach of treaties far more severely than the Roman people could have wished. I have been for three years investing Syracuse, not that Rome may make the city her slave, but that the leaders of deserters and renegades may not keep it in a state of oppression and bondage. What the Syracusans could have done has been shown by those amongst them who have been living within the Roman lines, by the Spaniard Moericus who brought over his

men, and last of all by the belated but courageous resolution which the Syracusans have now taken. After all the toils and dangers which have endured for so long a time round the walls of Syracuse by sea and land, the fact that I have been able to capture the city is nothing like such a reward as I should have received had I been able to save it." After giving this reply he sent the quaestor with an escort to Nasos to receive the royal treasure into his custody. Achradina was given up for plunder to the soldiers, after guards had been placed at the houses of the refugees who were within the Roman lines.

Amongst many horrible instances of fury and rapacity the fate of Archimedes stands out. It is recorded that amidst all the uproar and terror created by the soldiers who were rushing about the captured city in search of plunder, he was quietly absorbed in some geometrical figures which he had drawn on the sand, and was killed by a soldier who did not know who he was. Marcellus was much grieved and took care that his funeral was properly conducted; and after his relations had been discovered they were honoured and protected by the name and memory of Archimedes. Such, in the main, were the circumstances under which Syracuse was captured, and the amount of plunder was almost greater than if Carthage had been taken, the city which was waging war on equal terms with Rome. A few days prior to the capture of Syracuse, T. Otacilius crossed over from Lilybaeum to Utica with eighty quinqueremes. He entered the harbour before daylight and captured some transports laden with corn, and then landing his men ravaged a considerable portion of the country round Utica and carried back to his ships every description of plunder. He returned to Lilybaeum three days after he had started with a hundred and thirty transports laden with corn and booty. The corn he at once sent on to Syracuse; had it not been for that timely assistance, victors and vanquished alike would have been in danger of a very serious famine.

[25.32]For two years nothing very remarkable had happened in Spain; the contest was carried on by diplomacy more than by arms. This summer the Roman commanders on leaving their winter quarters united their forces. A council of war was called and they came to a unanimous decision that as up to that time all they had done was to keep Hasdrubal from marching to Italy, it was now high time to make an effort to finish the war. During the winter they had raised a force of 20,000 Celtiberians, and with this reinforcement they considered

themselves strong enough for the task. The enemies' force consisted of three armies. Hasdrubal, the son of Gisgo, had united his army with Mago, and their joint camp was about a five days' march from the Romans. Somewhat nearer to them was Hasdrubal, the son of Hamilcar, an old commander in Spain, who was in camp at a city called Amtorgis. The Roman commanders wanted to dispose of him first, and they believed that they had more than enough strength for the purpose; the only doubt in their minds was whether, after his defeat, the other Hasdrubal and Mago would not retreat into the trackless forest and mountains and keep up a guerilla warfare. The best plan, they thought, would be to form their force into two armies and finish the war in Spain at one stroke. They arranged accordingly that P. Cornelius was to advance against Mago and Hasdrubal with two-thirds of the army of Romans and allied troops, and Cn. Cornelius with the remaining third of the old army and the recently raised Celtiberians was to oppose the Barcine Hasdrubal. Both generals with their armies advanced together as far as the town of Amtorgis where they encamped in full view of the enemy with the river between them. Here Cn. Scipio took his stand with the force above mentioned, while Publius Scipio went on to execute his share of the operations.

[25.33]When Hasdrubal became aware that the Romans formed only a small portion of the army and that they were depending entirely upon their Celtiberian auxiliaries, he determined to detach the latter from their Roman service. He was quite at home with every form of treachery known to barbarians, and especially those practised by the tribes amongst whom he had for so many years been campaigning. Both camps were full of Spaniards, who had no difficulty in understanding each other's language, and secret interviews were held, in the course of which he made an agreement with the Celtiberian chieftains, by the offer of a large bribe, that they should withdraw their forces. They did not look upon this as very atrocious conduct, for it was not a question of turning their arms against the Romans, and though the money was quite equal to the pay they received in war, it was given them to abstain from war. Then, too, the mere rest from the toils of the campaign, the thought of returning home, the delight of seeing their friends and their possessions were universally welcomed. So the mass of the troops were quite as easily persuaded as their chiefs, and they had nothing to fear from the Romans who

were too few in number to keep them back by force. This is a thing against which Roman generals will always have to be on their guard, and instances such as these ought to serve as warnings that they must not depend upon foreign auxiliaries to such an extent as not to have in their camp a preponderance of that solidity and fighting power which native troops can alone supply. The Celtiberians took up their standards and marched off. The Romans asked them why they were going, and appealed to them to stay where they were, but the only answer they got was that they were called away by a war at home. When Scipio saw that his allies could not be detained by either appeals or force and that without them he was no match for the enemy, whilst a junction with his brother was out of the question, he determined to retreat as far as he could; this seemed the only safe measure to adopt. His one object was to avoid an encounter on open ground with the enemy who had crossed the river and were pressing closely at his heels.

[25.34]P. Scipio was at the same time placed in a position quite as alarming but fraught with much greater danger by the appearance of a new enemy. This was young Masinissa, at that time an ally of the Carthaginians, but afterwards raised to fame and power by his friendship with Rome. He first sought to check Scipio's advance with a body of Numidian horse, and he kept up incessant attacks upon him day and night. He not only cut off all who had wandered too far from camp in search of wood and fodder, but he actually rode up to the camp and charged into the middle of the outposts and pickets, creating alarm and confusion everywhere. In the night he frequently upset the camp by making a sudden rush at the gates and the stockade; there was no place and no time at which the Romans were free from anxiety and fear, and they were compelled to keep within their lines, unable to obtain anything they wanted. It was fast becoming a regular siege and would evidently become a still closer one if Indebilis, who was reported to be approaching with 7500 Suesetani, should join the Carthaginians. Cautious and prudent general though he was, Scipio was compelled by his position to take the hazardous step of making a night march to oppose Indebilis' advance and to fight him wherever he met him. Leaving a small force to guard the camp and placing Tiberius Fonteius in command, he started at midnight and encountered the enemy. They fought in order of march rather than of battle; the Romans, however, had the

advantage, in spite of its being an irregular battle. But the Numidian horse, whom Scipio thought he had eluded, swept round both flanks and created the greatest alarm. A fresh action had now begun against the Numidians when a third enemy appeared; the Carthaginian generals had come up and were attacking the rear. The Romans had to face a battle on both flanks and on their rear, and could not make up their minds against what enemy to make their main attack or in what direction to close their line and charge. Whilst their commander was fighting and encouraging his men and exposing himself in the hottest of the turmoil he was run through by a lance in his left side. The massed body of the enemy who had charged the closed ranks round their general, as soon as they saw Scipio falling lifeless from his horse were wild with joy and ran in all directions shouting that the Roman commander had fallen. The news spread over the whole field, and the enemy at once regarded themselves as unquestionably victorious, while the Romans equally felt themselves vanquished. With the loss of the general there began at once a flight from the field. It was not difficult to break through the Numidians and other light-armed troops, but it was almost impossible to make one's escape amidst such numbers of cavalry and of foot soldiers who rivalled horses in speed. Almost more were killed in flight than in battle, and not a man would have survived had not the day been rapidly drawing to a close so that night put an end to the carnage.

[25.35]The Carthaginian generals were not slow to take advantage of their success. After allowing their men the needful rest, they proceeded straight from the battle-field by forced marches to Hasdrubal, fully expecting that when they had joined forces the war could be brought to a close. When they reached his camp, the generals and the soldiers, in high spirits over their recent victory, exchanged hearty congratulations at the destruction of so great a commander and his entire army, and looked forward with confidence to winning another victory as complete. The report of the terrible disaster had not reached the Romans, but there was a gloomy silence, a secret foreboding, such as usually happens when men feel a presentiment of coming misfortune. The general, who saw himself deserted by his allies and knew that the forces of the enemy were so largely augmented, was led still further by his own conjectures and inferences to suspect the occurrence of some disaster much sooner than to entertain any hopes of success. "How," he asked himself,

"could Hasdrubal and Mago have brought up their army without opposition if they had not brought their own share of the war to a successful close? How could his brother have failed to stop them or to follow them up so that if he could not prevent their forming a junction he could at least have united his own forces with those of his brother?" Filled with these anxieties he believed that the only safe course for him for the time being was to retreat from his present position as far as he could. He accordingly accomplished a considerable march in a single night, unobserved by the enemy and therefore unmolested. When it grew light the enemy became aware of his departure, and sending on the Numidians in advance, commenced the pursuit with the utmost speed of which they were capable. The Numidians came up with them before nightfall, and by making repeated charges on flank and rear compelled them to come to a halt and defend themselves. Scipio, however, urged them to fight as well as they could and keep moving forward before they were overtaken by the infantry.

[25.36]As, however, what with fighting and halting, they had for some time been making very little progress and night was close at hand, Scipio called his men off from battle, massed them in close order, and led them to some rising ground, not, indeed, a very safe position, especially for unnerved troops, but still somewhat more elevated than the ground round it. The baggage and the cavalry were placed in the centre and the infantry drawn up round them, and at first they had no difficulty in repelling the attacks of the Numidians. But when the three commanders appeared in full force with three regular armies it was obvious that they would be unable to defend the position by arms alone in the absence of entrenchments. The general began to look round him and consider whether it were in any way possible to surround himself with an earthwork. But the hill was so bare and the ground so rocky that there was no brushwood to cut for a stockade nor earth for constructing a rampart or carrying a fosse or for any other work. No part was naturally so steep or precipitous as to render the approach or ascent difficult for the enemy; the whole surface of the hill rose in a gentle slope. In order, however, to present to the enemy something which might look like a rampart they tied together their saddles and the packs which the animals carried and piled them up all round them as if they were building up a rampart to the usual height, and where there were not enough saddles they made

it up by throwing all the kits and packages of every kind into the gaps, as a barricade.

When the Carthaginian armies came up, their column had no difficulty in mounting the hill, but they stopped short at the sight of the novel defence as though it were something uncanny. Their officers shouted out on all sides: "Why are you stopping? Why do you not tear down and demolish that juggler's trick, which is hardly strong enough to stop women and children? The enemy, hiding behind his baggage, is caught and held!" But in spite of the taunts and sarcasms of the officers, it was anything but easy either to clamber over or to push away the heavy obstacles in front of them, or to cut through the tightly packed saddles, buried as they were beneath the baggage. After a considerable time they succeeded in forcing away the heavy obstacles and opened a way for the troops, and when they had done this in several places the camp was rushed on all sides and captured; the little band of defenders were slaughtered by the masses of the enemy, helpless in the hands of their victors. Still a good many found refuge in the neighbouring woods and escaped to P. Scipio's camp where Ti. Fonteius was in command. Some traditions assert that Cn. Scipio was killed in the first onset of the enemy on the hill; according to others he escaped to a tower near the camp, and as they were unable to break down the door with all their efforts, they lighted fires against it, and after it was burnt away they slew all inside including the commander. Cn. Scipio was killed after he had been eight years in Spain, and twenty-nine days after his brother's death. The grief felt at their death was as great throughout Spain as it was in Rome. The City had to mourn not only for them, but for the loss of its armies, the defection of the province, and the blow inflicted on the republic; in Spain it was the generals themselves whose loss was so bitterly felt, more so in the case of Cnaeus, because he had held his command there for a longer time; he too was the first to win popularity amongst the people, the first to show what Roman justice and Roman self-control and moderation really meant.

[25.37]With the destruction of the armies it seemed as though Spain must be lost. But one man restored the fallen fortunes of the State. There was in the army a Lucius Marcius, the son of Septimius, a Roman knight, an active and energetic youth whose character and abilities were somewhat superior to the position in which he had been born. His many natural gifts had been developed by Scipio's training,

under whom he had learnt all the arts of war. Out of the fugitive soldiers whom he had rallied, and some whom he had drawn from the garrisons in Spain, he had formed quite a respectable army, and with it had joined Ti. Fonteius, Scipio's lieutenant. After they had entrenched themselves in a camp on this side of the Ebrot his soldiers decided to hold a regular election for the purpose of choosing a general to command the united armies, and they relieved each other on sentinel and outpost duty so that every man might give his vote. So far did the Roman knight surpass all others in the authority and respect which he possessed with the soldiers that the whole army unanimously conferred the supreme command on L. Marcius. After this he spent the whole of the time - and short enough it was - in strengthening the defences of the camp and storing supplies in it, and the soldiers carried out all his commands with alacrity and in anything but a despondent mood. But when the news arrived that Hasdrubal - Gisco's son - had crossed the Ebro and was coming to stamp out the remains of the war and the soldiers saw the signal for battle put out by their new general they gave way completely. The recollection of the men who had so lately commanded them, the proud confidence which they had always felt in their generals and their armies when they went into battle quite unnerved them; they all burst into tears and smote their heads; some raised their hands to heaven and reproached the gods; others lay on the ground and invoked the names of their old commanders. Nothing could check these wild outbursts of grief, though the centurions tried to rouse their men, and Marcius himself went about calming them and at the same time reproaching them for their unmanly conduct. "Why," he asked them, "have you given way to womanish and idle tears instead of bracing yourselves up to defend yourselves and the republic and not allowing your commanders' death to go unavenged?"

Suddenly a shout was heard and the sound of trumpets, for the enemy was now close up to the rampart. In an instant their grief changed to fury, they rushed to arms, and racing to the gates like madmen they dashed upon the enemy who were coming on carelessly and in disorder. The sudden and unlooked for movement created a panic among the Carthaginians. They wondered whence all these enemies had arisen, after their army had been all but annihilated, what gave such daring and self-confidence to men who had been

vanquished and put to flight, who had come forward as their commander now that the two Scipios were killed, who was over the camp, who had given the signal for battle. Bewildered and astounded at all these utterly unlooked-for surprises they at first slowly retired, then as the attack became heavier and more insistent they turned and fled. There would have been either a frightful slaughter amongst the fugitives or a rash and dangerous attack on the part of the pursuers if Marcius had not hurriedly given the signal to retire and kept back the excited troops by throwing himself in front of the foremost and even holding some back with his hands. Then he marched them back to camp still thirsting for blood. When the Carthaginians saw that none were pursuing them after the first repulse from the rampart they imagined that they had been afraid to go any further, their feelings of contempt returned, and they marched at a leisurely pace back to their camp. They showed as much carelessness in guarding their own camp as they had shown in attacking the Roman, for although their enemy was near them they regarded them as only the wreckage of two armies which had been destroyed a few days before. Whilst they were, in consequence of this, neglectful of everything, Marcius, who had become thoroughly aware of it, thought out a plan, at first glance hazardous rather than bold, which was to assume the aggressive and attack the enemy's camp. He thought it would be easier to storm Hasdrubal's camp whilst he was alone than to defend his own, in case the three commanders united their forces once more. Besides, if he succeeded he would have gone far to retrieve their late disasters; if he failed the enemy could no longer despise him, since he would have been the first to attack.

[25.38]His plan seemed a desperate one, considering the position he was in, and might easily be upset by some unforeseen incident creating a panic in the night. To guard against these dangers as far as possible, he thought it well to address some words of encouragement to his men. He called them together and made the following speech to them: "My loyalty and affection for my old commanders whether living or dead, as well as the situation in which we now find ourselves, ought to convince every one of you, soldiers, that this command, honourable as you rightly deem it to be, is, as a matter of fact, a position of very grave anxiety. For at a moment when I was hardly sufficient master of myself - did not fear dull the sense of pain - to find any comfort in my distress, I saw myself compelled to take

thought alone for you all, the hardest thing in the world in a time of grief. Even when I have to consider how I can possibly preserve for my country you who are all that remain out of two armies, it is still a grief to have to divert my thoughts from a sorrow that is ever with me. Bitter memories vex me; the two Scipios haunt me in anxious thoughts by day and in dreams at night; they rouse me from my slumbers and forbid me to suffer them or their soldiers - your own comrades who never for eight years knew defeat in these lands - or the republic, to remain unavenged. They call upon me to follow their example and act on the principles they laid down; as no man obeyed them more faithfully while they lived, so now that they are gone they would have me think that what they would have done on any occasion that arose is the best thing for me also to do. And I would have you, my soldiers, not follow them with tears and laments as though they had ceased to be, for they live and are strong in the glory of all that they have done, but go into battle thinking of them as if they were here to encourage you and give you the signal. Surely it was nothing else than their image before your eyes which brought about that memorable battle yesterday, in which you showed your enemy that the Roman name did not perish with the Scipios, and that a people whose strength and courage even Cannae could not crush will rise superior to the hardest blows of fortune.

"Well, as you showed such daring yesterday on your own account, I want now to see if you will show as much daring at the bidding of your commander. When I gave the signal yesterday to recall you from your hot pursuit of your disordered foe it was from no wish to damp your courage but to reserve it for a greater and more glorious occasion, when you will shortly be able, prepared and armed, to fall upon the enemy when he is off his guard, without his arms and even wrapped in slumbers. And in thus hoping, I am not trusting simply to chance, but have good grounds for what I say. If any one were to ask you how, few as you are, you managed to defend your camp against a mighty host, how after your defeat you were able to repel those who had defeated you from your rampart, you would, I am sure, reply that this was the very danger you feared, and therefore you strengthened your defences in every possible way and held yourselves at your posts in readiness. And such is generally the case; men are least safe when their circumstances give them no cause for fear; what you think of no importance you leave open and unguarded. There is

nothing which the enemy are less afraid of than that we who were lately surrounded and attacked should of our own motion attack their camp. Let us venture where no one can believe we will venture. The fact that it is thought too difficult will make it all the easier. I will lead you out in a silent march at the third watch of the night. I have ascertained that they have no proper arrangement of sentinels and pickets. When once our shout is heard in their gates the camp will be carried at the first rush. Then, whilst they are heavy with sleep, panic-struck at the unlooked-for tumult, and surprised defenceless in their beds, that slaughter will take place amongst them from which you were, to your intense disappointment, recalled yesterday.

"I know that the plan seems a daring one, but in difficult circumstances which leave little to hope for the boldest measures are always the safest. If, when the critical moment comes, you hang back ever so little and do not catch the opportunity as it flies past, you will look for it in vain when once you have let it go. There is one army near us, two more are not very far away. If we attack them now, there is some hope for us; you have already tried your strength against theirs. If we put off the day, and after yesterday's sortie are no longer regarded with contempt, there is the danger of all the generals and their armies uniting. In that case, shall we withstand the three generals, the three armies, which Cn. Scipio did not withstand when his army was in its full strength? As our generals perished owing to their forces being divided, so the enemy can be crushed in detail while they are divided. There is no other way of carrying on war; let us, then, wait for nothing beyond the opportunity of the coming night. Now go, trusting to the help of the gods and get food and rest so that, fresh and vigorous, you may break into the enemies' camp in the same courageous spirit in which you defended your own." They were delighted to hear this new plan from their new general, and the more daring it was the more it pleased them. The rest of the day was spent in getting their arms ready and in looking after themselves. At the fourth watch they began to move.

[25.39]The other Carthaginian forces were about six miles beyond the camp nearest to the Romans. Between them lay a valley thickly wooded, and on some ground about half-way through the wood a Roman cohort, adopting Punic tactics, concealed themselves with some cavalry. After the road was thus occupied midway, the rest of the force marched in silence to the enemy nearest to them, and as

there were no outposts in front of the gates and no guard mounted they penetrated without any opposition into the camp just as if they were entering their own. Then the signals were sounded and the battle shout raised. Some slew the enemy while half asleep, others threw firebrands on to their huts, which were thatched with dry straw, others held the gates to intercept the fugitives. The fire, the shouting, and the slaughter, all combined, bereft the enemy almost of their senses and prevented them from either hearing one another on taking any measures for their safety. Without arms themselves they fell amongst troops of armed men; some rushed to the gates, others, finding the ways blocked, sprang over the rampart, and all who escaped in this way fled at once to the other camp, where they were met by the cohort and the cavalry running out from their concealment and all cut down to a man. Even if any one had escaped from the carnage the Romans, after taking that camp, ran on so swiftly to the other one that no one could get there before them to announce the disaster.

When they got to the second camp they found neglect and disorder everywhere, partly owing to its greater distance from them and partly because some of the defenders had dispersed in quest of fodder and wood and plunder. At the outposts the arms were actually piled, the soldiers, all unarmed, were sitting and lying about on the ground or walking up and down in front of the gates and rampart. In this state of careless disorder they were assailed by the Romans who were tired by their recent fighting and flushed with victory. It was impossible to hold the gates against them, and once within the gates a desperate battle began. At the first alarm there was a rush from all parts of the camp, and there would have been a long and obstinate struggle if the Carthaginians had not seen in the blood-stained shields of the Romans plain traces of the former contest, which filled them with dismay and terror. They all turned and fled wherever they could find the way open to escape, and all but those who had been already killed were driven out of the camp. So in a night and a day two of the enemies' camps had been carried under the leadership of L. Marcius. According to Claudius, who translated the annals of Acilius from Greek into Latin, as many as 37,000 of the enemy were slain, 1830 being prisoners, besides an immense amount of plunder. The latter included a silver shield one hundred and thirty-seven pounds in weight, together with a statuette of Hasdrubal. Valerius Antias relates

that only Mago's camp was taken, when the enemy lost 7000 killed; in the other battle when the Romans made the sortie and fought with Hasdrubal 10,000 were killed and 4380 made prisoners. Piso says that 5000 men were killed when Mago was ambushed while recklessly pursuing our men. All these authors dwell upon the greatness of Marcius, and they exaggerate the glory he really won by describing a supernatural incident. Whilst he was addressing his troops they say that a flame shot from his head, without his being aware of it, to the great terror of the soldiers standing round. It is also stated that there was in the temple on the Capitol before it was burnt a shield called "the Marcian" with a statuette of Hasdrubal, as memorials of his victory. For some time after this, matters were quiet in Spain, neither side after the defeats they had suffered being anxious to risk a decisive action.

[25.40]While these events were occurring in Spain, Marcellus, after the capture of Syracuse, settled the affairs of Sicily with so much justice and integrity as to enhance not merely his own reputation but the greatness and dignity of Rome as well. He removed to Rome the ornaments of the city, the statues and pictures in which Syracuse abounded; they were, it is true, spoils taken from the enemy and acquired by the laws of war, but that was the beginning of our admiration for Greek works of art, which has led to the present reckless spoliation of every kind of treasure, sacred and profane alike. This has at last recoiled upon the gods of Rome, upon that temple especially which Marcellus so splendidly adorned. For the shrines near the Capena Gate, which Marcellus dedicated, used to be visited by strangers on account of the very beautiful specimens of that class of ornament; but very few are to be seen today. Whilst Marcellus was settling the affairs of Sicily, deputations from nearly all the communities in the island visited him. The treatment they received varied with their circumstances. Those who had not revolted or had returned to our friendship prior to the capture of Syracuse were welcomed and honoured as loyal allies; those who after its capture had surrendered through fear, had to accept the terms which the victor imposes on the vanquished. The Romans, however, had considerable remnants of the war still on their hands round Agrigentum. There were still left in the field the generals Epicycles and Hanno who had commanded in the late war, and a fresh general who had been sent in place of Hippocrates by Hannibal, a man of

Libyphoenician nationality, called Hippacritanus - his fellow-countrymen called him Muttines - a man of energy and enterprise, who had had a thorough military training under that master of war, Hannibal. He was furnished by Epicydes and Hanno with a force of Numidians, and with these troopers he committed such extensive depredations on the lands of those who were hostile and was so active in keeping his friends loyal by always bringing them help at the right moment, that in a short time all Sicily had heard of him and there was no one from whom the supporters of Carthage expected greater things.

Up to that time Epicydes and Hanno had been compelled to keep within the fortifications of Agrigentum; now, however, in a spirit of self-confidence quite as much as in compliance with the advice of Muttines, they ventured outside and fixed their camp by the Himera. No sooner was this reported to Marcellus than he promptly moved up and encamped about four miles from the enemy with the intention of waiting for any action he might take. But no time was allowed him for either delay or deliberation; Muttines crossed the river and charged his enemy's outposts, creating the greatest terror and confusion. The next day there was almost a regular battle and he drove the Romans within their lines. Then he was recalled by tidings of a mutiny which had broken out amongst the Numidians in Hanno's camp. Nearly three hundred of them had gone off to Heraclea Minoa. When he left the camp to reason with them and recall them, he is said to have most earnestly advised the generals not to engage the enemy in his absence. They both resented this; more especially Hanno who had long been jealous of Muttines' reputation. "Is Muttines," he exclaimed, "to dictate to me; a low-born African to give orders to a Carthaginian general bearing the commission of the senate and people?" Epicydes wished to wait, but he brought him over to his view, that they should cross the river and offer battle, for, he argued, if they waited for Muttines, and then fought a successful action, he would undoubtedly get all the credit for it.

[25.41] Marcellus was of course intensely indignant at the idea of the man who had turned Hannibal, flushed with his victory at Cannae, aside from Nola now giving way before enemies whom he had defeated by sea and land, and he ordered his men to seize their arms at once and march out in order of battle. Whilst he was forming his lines, ten Numidians from the opposing army galloped up to him at

full speed with the announcement that their countrymen would take no part in the fighting, first because they sympathised with the three hundred mutineers who had gone to Heraclea, and secondly because they saw that their leader had been got rid of on the very day of battle by generals who wanted to cast a cloud on his reputation. Deceitful as that nation usually is, they kept their promise on that occasion. The news flew quickly through the ranks that the cavalry of whom they stood in greatest fear had left the enemy in the lurch, and their courage rose accordingly. The enemy, on the other hand, were in a great state of alarm because, not only were they losing the support of their strongest arm, but there was a chance of their being attacked by their own cavalry. So there was not much of a conflict, the action was decided by the first battle shout and charge. When the opposing lines met, the Numidians were standing quietly on the wings; when they saw their own side turn tail they joined them in their flight for a short distance, but when they saw them making in all haste for Agrigentum they dispersed to all the neighbouring cities for fear of having to stand a siege. Several thousand men were killed and eight elephants captured. This was the last battle Marcellus fought in Sicily. After his victory he returned to Syracuse. As the year was now almost at an end, the senate decreed that the praetor P. Cornelius should send instructions to the consuls at Capua for one of them, if they approved, to come to Rome to appoint new magistrates while Hannibal was at a distance and no very critical operations were going on at Capua. After receiving the despatch the consuls came to a mutual arrangement that Claudius should conduct the elections and Fulvius remain at Capua. The new consuls were Cn. Fulvius Centimalus and P. Sulpicius Galba, the son of Servius, a man who had never before filled a curule office. The election of praetors followed; those elected were L. Cornelius Lentulus, M. Cornelius Cethegus, C. Sulpicius, and C. Calpurnius Piso. Piso took over the urban jurisdiction, Sicily was allotted to Sulpicius, Apulia to Cethegus, Sardinia to Lentulus. The consuls had their commands extended for another year.

BOOK 26: THE FATE OF CAPUA

[26.1]The new consuls, Cn. Fulvius Centimalus and P. Sulpicius Galba, entered upon office on the 15th of March, and at once convened a meeting of the senate in the Capitol to discuss questions

of State, the conduct of the war and the distribution of the provinces and the armies. The retiring consuls - Q. Fulvius and Appius Claudius - retained their commands and were instructed to prosecute the siege of Capua unremittingly until they had effected its capture. The recovery of this city was the main concern of the Romans now. What determined them was not only the bitter resentment which its defection had evoked, a feeling which was never more justified in the case of any city, but also the certainty they felt that, as in its revolt it had drawn many communities with it, owing to its greatness and strength, so its recapture would create amongst these communities a feeling of respect for the power whose sovereignty they had formerly acknowledged. The praetors of the past year, M. Junius in Etruria and P. Sempronius in Gaul, had their commands extended and were each to retain the two legions they had. M. Marcellus was to act as proconsul and finish the war in Sicily with the army which he had. If he needed reinforcements he was to take them from the troops which P. Cornelius was commanding in Sicily, but none were to be selected from those who had been forbidden by the senate to take a furlough or return home before the end of the war. The province of Sicily was assigned to C. Sulpicius, and he was to take over the two legions which were with P. Cornelius; any reinforcements he needed were to be supplied from the army of Cn. Fulvius which had been so disgracefully routed and cut up the previous year in Apulia. The soldiers who had so disgraced themselves were placed under the same conditions with regard to length of service as the survivors of Cannae. As an additional brand of ignominy the men of both these armies were forbidden to winter in towns or to construct winter quarters for themselves within ten miles of any town. The two legions which Q. Mucius had commanded in Sardinia were given to L. Cornelius, and any additional force he might require was to be raised by the consuls. T. Otacilius and M. Valerius were ordered to cruise off the coasts of Sicily and Greece respectively with the fleets and soldiers they had previously commanded. The former had a hundred ships with two legions on board; the latter, fifty ships and one legion. The total strength of the Roman armies engaged on land and sea this year amounted to twenty-five legions.

[26.2].At the beginning of the year a despatch from L. Marcius was laid before the senate. The senators fully appreciated the successful way in which he had conducted his operations, but a good many of

them were indignant at the honorific title he had assumed. The superscription of the letter was "The propractor to the senate," though the imperium had not been conferred upon him by an order of the people nor with the sanction of the senate. An evil precedent had been set, they said, when a commander was chosen by his army, and the solemn procedure at elections, after the auspices were duly taken, was transferred to camps and provinces far away from the magistrates and the laws, and left to the caprice of the soldiers. Some thought the senate ought to take the matter up, but it was thought better to adjourn the consideration of it until the horsemen who had brought the despatch had left the City. With regard to the food and clothing of the army, they ordered a reply to be sent to the effect that both these matters would be attended to by the senate. They refused, however, to allow the despatch to be addressed "To the propractor L. Marcius," lest it should appear that the question which was to be discussed had been prejudged. After the messengers had been dismissed the consuls gave this question priority over everything else, and it was unanimously agreed that the tribunes should consult the plebs as soon as possible as to whom they wished to have sent to Spain with the imperium as commander-in-chief to take over the army which Cn. Scipio had commanded. The tribunes undertook to do so, and due notice of the question was given to the Assembly. But the citizens were preoccupied with a controversy of a very different nature. C. Sempronius Blaesus had fixed a day for bringing Cn. Fulvius to trial for losing his army in Apulia, and made a very bitter attack upon him beforehand in the Assembly. "Many commanders," he said, "have through rashness and inexperience led their armies into most dangerous positions, but Cn. Fulvius is the only one who has demoralised his army by every form of vice before betraying them. They may with perfect truth be said to have been destroyed before they saw the enemy; they owed their defeat to their own commander, not to Hannibal.

"Now no man, when he is going to vote, takes sufficient trouble to find out what sort of a man it is to whom he is entrusting the supreme command of the army. Think of the difference between Tiberius Sempronius and Cn. Fulvius. Tiberius Sempronius had an army of slaves given to him, but in a short time, thanks to the discipline he maintained and the wise use he made of his authority, there was not a man amongst them who when he was in the field of battle gave a

thought to his birth or his condition. Those men were a protection to our allies and a terror to our enemies. They snatched, as though from the very jaws of Hannibal, cities like Cumae and Beneventum and restored them to Rome. Cn. Fulvius, on the other hand, had an army of Roman citizens, born of respectable parents, brought up as free men, and he infected them with the vices of slaves, and made them such that they were insolent and riotous amongst our allies, weaklings and cowards in face of the enemy; they could not stand even the war-cry of the Carthaginians, let alone their charge. Good heavens! no wonder the soldiers gave ground, when their commander was the first to run away; the wonder is that any stood their ground and fell, and that all did not accompany Cn. Fulvius in his panic and flight. C. Flaminius, L. Paulus, L. Postumius, and the two Scipios, Cnaeus and Publius, all chose to fall in battle rather than desert their armies, when they were hemmed in by the foe. Cn. Fulvius came back to Rome as the all-but solitary herald of the annihilation of his army. After the army had fled from the field of Cannae it was deported to Sicily, not to return till the enemy had evacuated Italy, and a similar decree was recently passed in the case of Fulvius' legions. But, shame to relate, the commander himself remained unpunished after his flight from a battle brought on by his own headstrong folly; he is free to pass the rest of his life where he passed it in youth - in stews and brothels - whilst his soldiers, whose only fault is that they copied their commander, are practically sent into exile and have to undergo a service of disgrace. So unequal are the liberties enjoyed in Rome by the rich and the poor, the men of rank and the men of the people."

[26.3]In his defence Fulvius threw all the blame upon his men. They clamoured, he said, for battle, and he led them out, not at the moment, for it was late in the day, but on the following morning. Though they were drawn up on favourable ground, at an early hour they found either the terror of the enemy's name or the strength of his attack too much for them. When they were all flying in disorder he was swept away by the rush as Varro was at Cannae and as many other commanders have been at different times. What help would he have given to the republic by staying there alone? unless indeed his death would have warded off other national disasters. His failure was not due to lack of supplies, or to incautiously taking up a position on unfavourable ground; he had not been ambushed through insufficient reconnoitring; he had been beaten in a fair fight on an

open field. Men's tempers, on whichever side they were, were beyond his control, a man's natural disposition made him either brave or cowardly. The speeches of the prosecutor and the defendant occupied two days, on the third day the witnesses were produced. Besides all the other serious charges brought against him, a great many men stated on oath that the panic and flight began with the praetor, and that when the soldiers found that they were left to themselves, and thought that their commander had good ground for fear, they too turned their backs and fled. The prosecutor had in the first instance asked for a fine, but the evidence which had been given roused the anger of the people to such an extent that they insisted upon a capital charge being laid. This led to a fresh contest. As the prosecutor during the first two days had limited the penalty to a fine and only on the third day made the charge a capital one, the defendant appealed to the other tribunes, but they refused to interfere with their colleague. It was open to him by ancient custom to proceed either by statute law or by customary precedent, whichever he preferred, until he had obtained judgment, whether the penalty were a capital or a pecuniary one. On this Sempronius announced that he should prosecute C. Fulvius on the charge of treason and requested the City praetor to convene the Assembly for the purpose on the appointed day. Then the accused tried another way of escape. His brother Quintus was in high favour with the people at the time, owing to his former successes and the general conviction that he would soon take Capua, and the defendant hoped that he might be present at his trial. Quintus wrote to the senate for their permission, appealing to their compassion and begging to be allowed to defend his brother's life, but they told him in reply that it would militate against the interests of the State for him to leave Capua. Just before the day of trial Cn. Fulvius went into exile at Tarquinii. The plebs affirmed by resolution his legal status as exile and all the consequences it involved.

[26.4]Meanwhile the whole stress of the war bore on Capua. The blockade was proving more effective than direct assault; the common people and the slaves could not endure the famine, nor could they send messengers to Hannibal owing to the strict watch which was kept. At last a Numidian was found who promised to get through with the despatches, and he succeeded. He escaped through the Roman lines by night, and this encouraged the Capuans to attempt

sorties in all directions while they still had some strength left. Numerous cavalry encounters took place in which they generally had the advantage, but their infantry got the worst of it. The gratification which the Romans derived from their infantry successes was considerably damped by their finding themselves beaten in any arm by an enemy whom they had invested and almost conquered. At length they devised a clever plan by which they could make up for their inferiority in the mounted arm. Young men of exceptional speed and agility were selected from all the legions and supplied with bucklers somewhat shorter than those used by the cavalry. Each was furnished with seven javelins, four feet long and tipped with iron heads similar to those on the darts of the velites. The troopers each took one of these upon his horse and trained them to ride behind and leap down briskly at a given signal. As soon as their daily training had given them sufficient confidence, the cavalry advanced against the Capuans, who were drawn up on the level ground between the Roman camp and the city walls. As soon as they came within range the signal was given and the velites sprang down to the ground. The line of infantry thus formed made a sudden attack on the Capuan horse; shower after shower of javelins was flung at the men and horses all along the line. A great many were wounded, and the novel and unexpected form of attack created widespread consternation. Seeing the enemy shaken the Roman cavalry charged home, and in the rout that followed they drove them with much loss right up to their gates. From that time the Romans had the superiority in their cavalry also. The velites were subsequently incorporated in the legions. This plan of combining infantry and cavalry in one force is said to have originated with one of the centurions - Q. Navius, and he received special honour from his commander in consequence.

[26.5]Such was the position of affairs at Capua. During this time Hannibal was drawn in two directions; he was anxious to get possession of the citadel of Tarentum and he was equally anxious to retain his hold on Capua. Regard for Capua however carried the day, for he saw that it was the spot to which all eyes were turned, of friends and foes alike, and its fate would show conclusively, one way or the other, the consequences of defection from Rome. Leaving therefore his baggage and heavy-armed troops in Bruttium, he hurried into Campania with a force of horse and foot selected for their capacity for rapid marching. Swift as his advance was, however,

three and thirty elephants followed him. He took up his position in a secluded valley at the back of Mount Tifata which overlooked Capua. On his march he captured the fortified post of Calatia. He then turned his attention to the besiegers of Capua, and sent a message to the city telling them at what time he intended to attack the Roman lines, so that they might be ready to make a sortie and pour in full strength out of all their gates. The investing force was thrown into a state of great alarm, for while Hannibal was delivering his assault on one side, the whole of the forces of Capua, mounted and unmounted, supported by the Punic garrison under Bostar and Hanno were making a vigorous sortie on the other. Realising their critical position and the danger of leaving a portion of their lines unprotected by concentrating their defence in any one direction, the Romans divided their force; Appius Claudius confronted the Capuans, Fulvius was opposed to Hannibal; the proprætor C. Nero with the cavalry of the six legions held the road to Suessula, and C. Fulvius Flaccus with the cavalry of the allies took up a position towards the Volturnus. There was not only the usual shouting and uproar when the battle commenced; the din of horses and men and arms was aggravated by the non-combatant population of Capua. They crowded on to the walls, and by clashing brazen vessels together, as people do in the dead of the night when there is an eclipse of the moon, they made such a dreadful noise that it even distracted the attention of the combatants.

Appius had no difficulty in driving the Capuans from his earthworks, but Fulvius had to meet a much heavier attack from Hannibal and his Carthaginians on the other side. Here the sixth legion gave way and a cohort of Spaniards with three elephants succeeded in getting up to the breastwork. They had penetrated the Roman line, and whilst they saw their chance of breaking through into the camp they saw also the danger of being cut off from their supports. When Fulvius saw the disorder of the legion and the danger which threatened the camp, he called upon Q. Navius and other centurions of the first rank to charge the enemy's cohort which was fighting just under the breastwork. "It is a most critical moment," he told them; "either you must allow the enemy to go on, in which case they will break into the camp with less difficulty than they found in breaking through the closed ranks of the legion, or you must dispose of them whilst they are still below the breastwork. It will not be a hard fight;

they are a small body, cut off from their support; and the very fact of the Roman line being broken will be an advantage if both sections close on the enemy's flanks, who would then be hemmed and exposed to a double attack." On hearing this Navius took the standard of the second maniple of hastati from the bearer and advanced with it against the enemy, threatening at the same time to throw it into their midst if his men did not promptly follow him and take their share in the fighting. He was a huge man and his armour set him off, and as he lifted the standard high in the air, he attracted all eyes. But when he was close to the Spaniards they hurled their javelins at him from all sides, and almost the whole of their line turned their attention to this one man. Neither the number of the enemy, however, nor the force of their missiles were able to check the gallant fellow's onset.

[26.6]M. Atilius now brought up the leading maniple of the sixth legion against the Spanish cohort; L. Porcius Licinius and T. Popilius, who were in command of the camp, were keeping up a fierce struggle in front of the breastwork, and killed some of the elephants whilst they were actually clambering over it. Their bodies rolled down into the fosse and filled it up, making a bridge for the passage of the enemy, and a terrible carnage began over the prostrate elephants. On the other side of the camp the Capuans and their Punic garrison had by this time been repulsed, and the fighting went on right up to the city gate which leads to the Volturnus. The efforts of the Romans to break in were frustrated not so much by the arms of the defenders as by the ballistae and scorpions which were mounted over the gate and kept the assailants at a distance by the missiles they discharged. A further check was given them by a wound received by Appius Claudius; he was struck by a heavy javelin in the upper part of the chest under the left shoulder, whilst he was riding along the front encouraging his men. A great many of the enemy were however killed outside the gate; the rest were driven in hasty flight into the city. When Hannibal saw the destruction of his Spanish cohort and the energy with which the Romans were defending their lines, he gave up the attack and recalled the standards. The retiring column of infantry was followed by the cavalry who were to protect the rear in case the enemy harassed their retreat. The legions were burning to pursue them, but Fulvius ordered the "retire" to be sounded, as he considered that he had gained quite enough in making both the

Capuans and Hannibal himself realise how little he could do in their defence.

Some authors who describe this battle say that 8000 of Hannibal's men were killed that day and 3000 Capuans, and that 15 standards were taken from the Carthaginians and 18 from the Capuans. In other accounts I find that the affair was nothing like so serious, there was more excitement and confusion than actual fighting. According to these writers the Numidians and Spaniards broke unexpectedly into the Roman lines with the elephants, and these animals, trotting all over the camp, upset the tents and created terrible uproar and panic during which the baggage animals broke their tethers and bolted. To add to the confusion Hannibal sent some men got up as Italians, who could speak Latin, to tell the defenders in the name of the consul that as the camp was lost each man must do his best to escape to the nearest mountains. The trick was, however, soon detected and frustrated with heavy loss to the enemy, and the elephants were driven out of the camp with firebrands. In any case, however it began or ended, this was the last battle fought before Capua surrendered. The "medix tuticus," the supreme magistrate of Capua, happened for that year to be Seppius Loesius, a man of humble birth and slender fortune. The story goes that owing to a portent which had occurred in his mother's household she consulted a soothsayer on behalf of her little boy, and he told her that the highest official position in Capua would come to her son. As she was not aware of anything which would justify such expectations she replied, "You are indeed describing a desperate state of things in Capua when you say that such an honour will come to my son." Her jesting reply to what was a true prediction turned out itself to be true, for it was only when famine and sword were pressing them sorely and all hope of further resistance was disappearing that Loesius accepted the post. He was the last Capuan to hold it, and he only did so under protest; Capua, he declared, was abandoned and betrayed by all her foremost citizens.

[26.7] Finding that his enemy could not be drawn into an engagement and that it was impossible to break through their lines and relieve Capua, Hannibal decided to abandon his attempt and march away from the place, for he was afraid of being cut off from his supplies by the new consuls. He was anxiously turning over in his mind the question of his future movements when the idea occurred to him of

marching upon Rome, the head and guiding spirit of the whole war. He had always set his heart upon this, and men blamed him for letting the opportunity slip, immediately after the battle of Cannae; he himself admitted that he had made a mistake in not doing so. He was not without hope of seizing some part of the City in the confusion caused by his unexpected appearance, and if Rome were in danger, he expected that both the consuls - or at all events, one of them - would at once quit their hold on Capua. Then, as they would be weakened by their forces being divided, they would give either him or the Capuans the opportunity of fighting a successful action. One thing made him anxious, the possibility of the Capuans surrendering as soon as he had withdrawn. Amongst his men there was a Numidian who was ready for any desperate enterprise, and he induced this man, by the offer of a reward, to carry a despatch and enter the Roman lines in the guise of a deserter, then steal away on the opposite side and enter Capua. He wrote in a very encouraging strain, and pointed out that his departure would be the means of saving them, as it would draw off the Roman generals from their attack on Capua to defend Rome. They were not to be despondent, a few days' patience would completely break up the siege. He then ordered the boats which were on the Volturnus to be seized and brought up to a fort which he had previously constructed to secure the passage of the river. He was informed that there was a sufficient number of them to admit of his entire army being taken across in one night. Ten days' rations were supplied to the men; they marched down to the river, and all his legions were across before day-break.

[26.8]Fulvius Flaccus was informed by deserters of this project before it was put into execution, and at once sent intelligence of it to the senate. The news was received with varying feelings as men's temperaments differed. Naturally, at such a crisis, a meeting of the senate was instantly convened. Publius Cornelius Asina was for recalling all the generals and armies from every part of Italy for the defence of the City, regardless of Capua or any other object they had in view. Fabius Maximus considered that it would be a disgrace for them to quit their hold on Capua and allow themselves to be scared by Hannibal and marched up and down at his beck and menaces. "Do you suppose," he asked the senators, "that the man who did not venture to approach the City after his victory at Cannae, really hopes to capture it now that he has been driven away from Capua? His

object in coming here is not to attack Rome but to raise the siege of Capua. The army which is now in the City will be sufficient for our defence, for it will be aided by Jupiter and the other gods who have witnessed Hannibal's violation of treaty engagements." P. Valerius Flaccus advocated a middle course, which was ultimately adopted. He recommended that a despatch should be sent to the generals commanding at Capua, telling them what defensive force the City possessed. They themselves would know what troops Hannibal was bringing and how large an army was required to maintain the siege of Capua. If one of the generals commanding could be sent with a part of the army to Rome without interfering with the effective conduct of the siege by the other general, Claudius and Fulvius might arrange which of them should continue the investment of Capua and which should go to Rome to prevent their own city from being invested. When this decision of the senate reached Capua, the proconsul Q. Fulvius, whose colleague had been obliged to leave for Rome owing to his wound, selected a force out of the three armies and crossed the Volturnus with 15,000 infantry and 1000 cavalry. When he had definitely ascertained that Hannibal was advancing by the Latin Road, he sent men on in advance through the burghs situated on the Appian Way and also to some lying near it, to warn the inhabitants to have supplies stored in readiness in their towns and to bring them in from the outlying fields to the line of march. They were further to call in their fighting men to defend their homes, and each municipality was to provide for its own protection.

[26.9]After crossing the Volturnus Hannibal fixed his camp a short distance from the river, and the next day he marched past Cales into the Sidicine territory. One day was devoted to laying waste the district, and then he proceeded along the Latin Road through the lands of Suessa, Allifae, and Casinum up to the walls of the last-mentioned place. Here he remained encamped for two days and ravaged the whole of the surrounding country. From there he went on past Interamna and Aquinum into the territory of Fregellae as far as the Liris. Here he found that the bridge had been destroyed by the people of Fregellae in order to delay his advance. Fulvius too had been delayed at the Volturnus, owing to Hannibal having burnt his boats, and he had considerable difficulty in procuring rafts for the transport of his troops, owing to the lack of timber. When, however, he had once crossed, the remainder of his march was uninterrupted,

as he found ample supplies of provisions waiting for him in each city he came to, and also put out by the side of the road in the country districts. His men, too, in their eagerness urged one another to march more quickly, for they were going to defend their homes. A messenger who had travelled from Fregellae for a day and a night without stopping created great alarm in Rome, and the excitement was increased by people running about the City with wildly exaggerated accounts of the news he had brought. The wailing cry of the matrons was heard everywhere, not only in private houses but even in the temples. Here they knelt and swept the temple-floors with their dishevelled hair and lifted up their hands to heaven in piteous entreaty to the gods that they would deliver the City of Rome out of the hands of the enemy and preserve its mothers and children from injury and outrage. The senators remained in session in the Forum so as to be at hand should the magistrates wish to consult them. Some received orders and went off to execute their commissions, others offered their services in case they could be of use anywhere. Troops were posted at the Capitol, on the walls, round about the City and even as far as the Alban Mount and the fortress of Aesula. In the midst of all this excitement word was brought that the proconsul Q. Fulvius was on his way from Capua with an army. As proconsul he could not hold command in the City, the senate therefore passed a decree conferring upon him consular powers. After completely destroying the territory of Fregellae in revenge for the destruction of the bridge over the Liris, Hannibal continued his march through the districts of Frusinum, Ferentinum and Anagnia into the neighbourhood of Labicum. He then crossed Algidus and marched on Tusculum, but he was refused admittance, so he turned to the right below Tusculum towards Gabii, and still descending, came into the district of Pupinia where he encamped, eight miles from Rome. The nearer his approach the greater was the slaughter of those who were fleeing to the City at the hands of the Numidians who rode in front of the main body. Many, too, of all ages and conditions were made prisoners.

[26.10]In the midst of this turmoil and excitement Fulvius Flaccus entered Rome with his army. He passed through the Porta Capena and marched right through the City past the Cavinae and the Esquiliae, and out again through the Colline Gate, entrenching himself on ground between the Colline and Esquiline Gates. Here

the plebeian aediles furnished him with provisions. The consuls, attended by the senate, visited him in his camp, and a council was held to consider what measures the supreme interests of the republic demanded. It was decided that the consuls should form entrenched camps in the vicinity of the Colline and Esquiline Gates, the City praetor taking command of the Citadel and the Capitol, and that the senate should remain in permanent session in the Forum in case any sudden emergency should need to be provided against. Hannibal had now moved his camp to the Anio at a distance of three miles from the City. From this position, he advanced with a body of 2000 cavalry towards the Colline Gate as far as the temple of Hercules, and from that point he rode up and made as close an inspection as he could of the walls and the situation of the City. Flaccus was furious with indignation at this calm and leisurely proceeding and sent some cavalry with orders to clear the enemy and drive them back to their camp. There were some 1200 Numidian deserters stationed on the Aventine at the time, and the consuls sent orders to them to ride through the City to the Esquiliae, as they considered none more fitted to fight amongst the hollows and garden walls and sepulchres and enclosed paths all around that part of the City. When those on guard at the Citadel and the Capitol saw them trotting down the Publician hill they shouted out that the Aventine was taken. This caused so much confusion and panic that, had not the Carthaginian camp been outside the City, the terrified population would have poured out of the gates. As it was, they took refuge in the houses and various buildings, and seeing some of their own people walking in the streets, they took them for enemies and attacked them with stones and missiles. It was impossible to calm the excitement or to rectify the mistake, as the streets were packed with crowds of country people with their cattle, whom the sudden danger had driven into the City. The cavalry action was successful and the enemy were driven off. It became necessary, however, to quell the disturbances which, without the slightest reason, were breaking out in many quarters, and the senate decided that all who had been Dictators, consuls or censors should be invested with the imperium until the enemy had retired from the walls. During the remainder of the day and throughout the night, many such disturbances arose and were promptly repressed.

[26.11] The following day Hannibal crossed the Anio and led out the whole of his force to battle; Flaccus and the consuls did not decline

the challenge. When both sides were drawn up to decide an action in which Rome was the victor's prize, a tremendous hailstorm threw the two armies into such disorder that they had difficulty in holding their arms. They retired to their respective camps, fearing everything rather than their enemy. The following day, when the armies were drawn up in the same position, a similar storm separated them. On each occasion, after they were once more in camp, the weather cleared up in an extraordinary way. The Carthaginians looked upon the occasion as preternatural, and the story runs that Hannibal was heard to say that at one time he lacked the will, at another the opportunity, of becoming master of Rome. His hopes were further damped by two incidents, one of some importance, the other less so. The more important was his receiving information that while he was actually in arms near the walls of Rome a force had marched out fully equipped, under their standards, to reinforce the army in Spain. The other incident, which he learnt from a prisoner, was the sale by auction of the spot on which he had fixed his camp, and the fact that, in spite of his occupation of it, there was no abatement in the price. That any one should have been found in Rome to buy the ground which he was holding in possession as spoil of war, seemed to Hannibal such an insulting piece of arrogance that he instantly summoned a crier and made him give notice of the sale of the silversmiths' shops round the Forum of Rome.

These incidents led to his withdrawal from Rome, and he retired as far as the river Tutia, six miles distant from the City. From there he marched to the grove of Feronia and the temple, which was celebrated in those days for its wealth. The people of Capena and other cities round used to bring their first-fruits and other offerings, according to their ability, and they had also embellished it with a considerable quantity of gold and silver. Now the temple was despoiled of all its treasures. Great heaps of metal, where the soldiers, struck by remorse, had thrown pieces of uncoined brass, were found there after Hannibal's departure. All writers are agreed as to the plundering of this temple. Coelius tell us that Hannibal diverted his march to it while he was going from Eretum to Rome, after marching from Amiternum by Reate and Cutiliae. According to this writer, on leaving Capua, Hannibal entered Samnium, and from there passed to the Peligni; then, marching past the town of Sulmo, he crossed the frontiers of the Marrucini and then advanced through the Alban

territory to the country of the Marsi, and from there to Amiternum and the hamlet of Foruli. There can be no uncertainty as to the route he took, for the traces of that great commander and his large army could not have been lost in so short a space of time; the only point at issue is whether that was the route he took when he marched to Rome or whether he followed it on his return to Campania.

[26.12]The energy with which the Romans pressed the siege of Capua was far greater than that which Hannibal exhibited in its defence, for he hurried away through Lucania to Bruttium in the hope of surprising Regium. Though the siege was in no way relaxed during Fulvius' absence, his return made a sensible difference in the conduct of operations, and it was a matter of general surprise that Hannibal had not returned at the same time. The Capuans gradually learnt through their conversations with the besiegers that they were abandoned and left to themselves, and that the Carthaginians had given up all hope of saving Capua. In accordance with a resolution of the senate, the proconsul issued an edict which was published in the city, that any Campanian burgher who went over to the Romans before a certain day would be amnestied. Not a single man went over; their fears prevented them from trusting the Romans, for they had in their revolt committed crimes too great for any hope of pardon. But whilst no one would provide for his own safety by going over to the enemy, there was nothing done for the public safety in the way of wise or prudent counsel. The nobility had deserted their public duties; it was impossible to get together a meeting of the senate. The supreme magistracy was held by a man who conferred no honour on his office; on the contrary, his unfitness detracted from its authority and power. None of the nobility were to be seen in the forum, or indeed anywhere in public; they shut themselves up at home waiting for their country's downfall and their own destruction. All responsibility was thrown upon the commandants of the Punic garrison, Bostar and Hanno, and they were much more concerned for their own safety than for that of their supporters in the city. A communication was drawn up for the purpose of forwarding it to Hannibal, in which he was directly charged with surrendering Capua into the enemy's hands and exposing his garrison to every kind of torture. He had gone off, so the despatch hinted, to be out of the way, lest Capua should be taken before his eyes, The Romans could not be drawn off from besieging Capua even when an attack was

threatened on their city; so much more determination did the Romans show as enemies, than the Carthaginians as friends. If Hannibal would return to Capua and turn the whole tide of war in that direction, then the garrison were prepared to make an attack on the besiegers. He had not crossed the Alps to make war with Regium or Tarentum; where the legions of Rome were, there ought the armies of Carthage to be. That was how he had conquered at Cannae, and at Thrasymentus, by meeting the enemy face to face, army to army, and trying his fortune in battle.

This was the main drift of the despatch. It was handed to some Numidians who had undertaken to carry it on promise of a reward. They had come into Fulvius' camp as deserters, intending to seize a favourable opportunity of slipping away, and the famine from which Capua had long been suffering was a very good reason why they should desert. A Campanian woman, however, the mistress of one of these deserters, suddenly appeared in the camp and informed the Roman commander that the Numidians had come in as part of a pre-arranged plot, and were really carrying a despatch to Hannibal, and that she was prepared to prove it, as one of them had disclosed the affair to her. When this man was brought forward, he at first stoutly denied all knowledge of the woman, but gradually he gave way before the truth, especially when he saw that instruments of torture were being sent for and got ready, and at last made a complete confession. The despatch was produced, and further evidence came to light, as it was found that other Numidians were at large in the Roman camp under the guise of deserters. Above seventy of them were arrested and together with the recent arrivals were all scourged, and their hands were cut off, after which they were sent back to Capua. The sight of this terrible punishment broke the spirit of the Capuans.

[26.13]The people went in a body to the senate house and insisted on Loesius summoning the senate. They openly threatened the nobles who had so long absented themselves from the senate, that they would go round to their houses and drag them all by main force into the streets. These threats resulted in a full meeting of the senate. The general opinion was in favour of sending a deputation to the Roman commander, but Vibius Virrius, the prime author of the revolt from Rome, when asked his opinion, told those who were talking about a deputation and terms of peace and surrender that they were forgetting what they would have done had they had the Romans in

their power, or what, as circumstances now were, they would have to suffer. "Why!," he exclaimed, "do you imagine that our surrender now will be like the one we made in old days when, in order to get help against the Samnites, we surrendered ourselves and all that belonged to us to Rome? Have you already forgotten at what a critical moment for Rome we revolted from her? How we put to death with every torture and indignity the garrison which we could easily have sent away? What numerous and desperate sorties we have made against our besiegers, how we have assaulted their lines and called Hannibal in to crush them? Have you forgotten this last act of ours when we sent him to attack Rome?"

"Now look at the other side, consider their determined hostility to us and see if you have anything to hope for. Though there was a foreign enemy on Italian soil, and that enemy Hannibal, though the flames of war were being kindled in every quarter, they neglected everything, even Hannibal himself, and sent both the consuls, each with an army, to Capua. For two years now have they hemmed us in with their lines of circumvallation, and are wearing us down with famine. They have endured as much as we have in the extremity of peril, the utmost severity of toil; often have they been slaughtered about their entrenchments, and all but driven out of them. But I pass over these things; the labours and dangers of a siege are an old and common experience. But to show their rage and implacable hatred against us I will remind you of these incidents: Hannibal assaulted their lines with an enormous force of infantry and cavalry, and partly captured them, but they did not raise the siege; he crossed the Volturnus and desolated the district of Calenum with fire; the sufferings of their allies failed to call off the Romans; he ordered a general advance on Rome itself, they disregarded the threatening storm; he crossed the Anio and encamped within three miles of the City, and at last rode up to its walls and gates and made as though he would take their city from them if they did not loose their hold on Capua; they did not loose their hold. When wild beasts are mad with rage you can still divert their blind fury by approaching their lairs and young ones which they will hasten to defend. The Romans were not diverted from Capua by the prospect of their city being besieged, or by the terrified cries of their wives and children which could almost be heard here, or by the threatened desecration of their hearths and altars, of the shrines of their gods and the tombs of their ancestors. So eager

are they to visit us with punishment, so greedily do they thirst for our blood. And, perhaps, rightly; we should have done the same had fortune favoured us.

"Heaven, however, has ordered otherwise, and so, though I am bound to meet my death in any case, I can, whilst I am still free, escape the insults and the tortures which the enemy is preparing for me, I can dispose of myself by a death as peaceful as it is honourable. I refuse to look upon Appius Claudius and Q. Fulvius exulting in all the insolence of victory; I refuse to be dragged in chains through the streets of Rome to grace their triumph, and then in the dungeon or bound to the stake, with my back torn with the scourge, pass under the headsman's axe. I will not see my city plundered and burnt, and the matrons and maidens and noble boys of Capua ravished and outraged. Alba, the mother city of Rome, was rased by the Romans to its foundations in order that no memorial of their origin and of the stock whence they sprung might survive; much less can I believe that they will spare Capua which they hate more bitterly than they hate Carthage. So, for those of you who intend to meet your fate before you witness all these horrors I have prepared a banquet today at my house. When you have taken your fill of food and wine, the same goblet that is handed to me will be passed round to you. That draught will free our bodies from torture, our spirits from insult, our eyes and ears from seeing and hearing all the suffering and outrage which await the vanquished. Men will be in readiness to place our lifeless bodies on a vast pile which will be kindled in the court-yard of the house. This is the only path to death which is honourable and worthy of free men. Even the enemy will admire our courage, and Hannibal will know that the allies whom he has abandoned and betrayed were, after all, brave men."

[26.14] This speech of Virrius was received with approbation by many who had not the courage to carry out what they approved of. The majority of the senators were not without hope that the clemency of the Roman people so often experienced in former wars would be once more extended to them, and they determined to send envoys to make a formal surrender of Capua. About seven-and-twenty accompanied Virrius home and banqueted with him. When they had as far as possible deadened their feelings with wine against the sense of impending evil, they all partook of the poisoned cup. Then they rose from table and grasped each other's hands and took a last

embrace of one another, weeping for their own and their country's doom. Some remained that they might be cremated together on the same funeral pyre, others departed for their homes. The congestion of the veins caused by the food and wine they had taken made the action of the poison somewhat slow, and most of them lingered through the whole night and part of the following day. All however, expired before the gates were opened to the enemy. The following day, the gate called "the Gate of Jupiter," opposite the Roman camp, was opened by the proconsul's order. One legion was admitted through it and two squadrons of allied cavalry, with C. Fulvius in command. First he took care that all the weapons of war in Capua were brought to him; then, after stationing guards at all the gates to prevent any exit or escape, he arrested the Punic garrison and ordered the senate to go to the Roman commanders. On their arrival in the camp they were manacled, and ordered to send word for all the gold and silver they possessed to be brought to the quaestors. This amounted to 2072 pounds of gold and 31,200 pounds of silver. Twenty-five senators were sent to be kept in custody at Cales, and twenty-eight who were proved to have been mainly instrumental in bringing about the revolt were sent to Teanum

[26.15]As to the punishment to be meted out to the senators of Capua, Claudius and Fulvius were anything but unanimous. Claudius was prepared to grant them pardon, but Fulvius took a much sterner line. Appius Claudius wished to refer the whole question to the senate at Rome. He maintained that it was but right that the senators should have an opportunity of investigating all the circumstances and finding out whether the Capuans had made any of the allies or the Latins or the municipal burghs privy to their designs, and if so, whether any of these had given them assistance in the war. Fulvius, on the other hand, declared that the very last thing they ought to do was to harass their faithful allies by vague charges and put them at the mercy of informers who were perfectly indifferent as to what they said or what they did. Any such investigation therefore he should stifle. After this interchange of views they parted, Appius feeling no doubt that in spite of his violent language his comrade would, in such an important matter, await instructions from Rome. Fulvius, determined to forestall any such obstacle to his designs, dismissed the council and ordered the military tribunes and the officers of the allies to select 2000 horsemen and warn them to be in readiness by the time the

third watch was sounded. Starting with this force in the night, he reached Teanum at day-break and rode straight into the forum. A crowd had collected at the first entry of the cavalry, and Fulvius ordered the chief magistrate of the district to be summoned, and on his appearance commanded him to produce the Capuans who were in his custody. They were all brought forward and then scourged and beheaded. Then putting spurs to his horse he rode to Cales. When he had taken his seat on the tribunal and the Capuans who had been brought out were being bound to the stake, a mounted messenger arrived post-haste from Rome and handed Fulvius a despatch from the praetor C. Calpurnius containing the decree of the senate. The spectators guessed the nature of the contents, and those standing round the tribunal expressed their belief - a belief which soon found expression throughout the Assembly - that the whole question of the treatment of the Capuan prisoners was to be left to the senate. Fulvius thought so too; he took the letter and without opening it placed it in his breast and then ordered his marshal to tell the lictor to carry out the law. Thus, those who were at Cales were also executed. Now he read the despatch and the decree of the senate. But it was too late to prevent a deed accomplished, which had been hurried on as quickly as possible in order that it might not be prevented. Just as Fulvius was leaving the tribunal a Capuan named Taurea Vibellius strode through the middle of the crowd and addressed him by name. Fulvius resumed his seat, wondering what the man wanted. "Order me too," he cried, to be put to death so that you may boast of having caused the death of a braver man than yourself." Fulvius declared that the man was certainly out of his mind, and added that even if he wished to kill him he was prevented from doing so by the decree of the senate. Then Vibellius exclaimed, "Now that my native city has been taken, my friends and relations lost to me, my wife and children slain by my own hand to save them from insult and outrage, and since even the opportunity of dying as my fellow-countrymen here have died is refused me, let me seek in courage a release from the life which has become so hateful to me." With these words he drew out a sword which he had concealed in his garment, and plunging it into his heart fell dying at the general's feet.

[26.16]As the execution of the Capuans and most of the other steps taken were carried out by the instructions of Fulvius alone, some authors assert that Appius Claudius died immediately after the

surrender of Capua. According to this account, Taurea did not come voluntarily to Cales, nor did he perish by his own hand; when he had been tied to the stake along with the others he shouted repeatedly, and as owing to the noise they could not hear what he was saying, Fulvius ordered silence. Then Taurea said, as I have already related, that he was being done to death by a man who was far from being his equal in courage. At these words, the marshal, on the proconsul's order gave this direction to the lictor: "Lictor, let this brave man have more of the rod, and execute the law upon him first of all." Some authors assert that the decree of the senate was read before the men were beheaded, but there was a proviso in it to the effect that if he thought fit, he might refer the question to the senate, and Fulvius took this to mean that he was at liberty to decide as to what would be the best course in the interests of the republic. After Fulvius returned to Capua, he received the submission of Atella and Calatia. Here too the ringleaders in the revolt were punished; seventy of the leading senators were put to death, and three hundred Campanian nobles thrown into prison. Others who were distributed amongst the various Latin cities to be kept in custody perished from various causes; the rest of the population of Capua were sold as slaves. The question now was what was to be done with the city and its territory. Some were of opinion that a city so strong, so near to Rome and so hostile to it, ought to be utterly destroyed. Utilitarian considerations however prevailed. The territory was generally allowed to be the first in Italy in point of productiveness, and the only reason why the city was spared was that there might be a place for the tillers of the soil to live in. A motley throng of peasants, freedmen, small tradesmen and artisans were told off to occupy the place; the whole of the territory with the buildings on it became the property of the Roman State. It was settled that Capua itself should be simply a lodgment and a shelter, a city merely in name; there was to be no corporate life, no senate, no council of the plebs, no magistrates; the population were without any right of public assembly or self-government; they had no common interest and were incapable of taking any common action. The administration of justice was in the hands of a praetor who was to be sent annually from Rome. In this way matters were arranged at Capua in pursuance of a policy which commends itself from every point of view. Sternly and swiftly was punishment meted out to those who had been most guilty, the civic population was scattered far and wide with no hope of return, the unoffending walls

and houses were spared from the ravages of fire and demolition. The preservation of the city, whilst it was a material advantage to Rome, afforded to the friendly communities a striking proof of her lenity; the whole of Campania and all the surrounding nationalities would have been horror-struck at the destruction of such a famous and wealthy city. The enemy, on the other hand, was made to realise the power of Rome to punish those who were faithless to her, and the powerlessness of Hannibal to protect those who had gone over to him.

[26.17]Now that the senate was relieved from its anxiety about Capua, it was able to turn its attention to Spain. A force of 6000 infantry and 300 cavalry was placed at Nero's disposal, and he selected it from the two legions he had had with him at Capua; an equal number of infantry and 600 cavalry were to be furnished by the allies. He embarked his army at Puteoli and landed at Tarraco. Here he hauled his ships ashore and furnished the crews with arms, thus augmenting his strength. With this composite force he marched to the Ebro and took over the army there from Ti. Fonteius and L. Marcius. He then advanced against the enemy. Hasdrubal - Hamilcar's son - was encamped at the Lapides Atri (the "Black Boulders"). This is a place in the Auretanian country between the towns of Iliturgis and Mentissa. Nero occupied the two exits of the pass. Hasdrubal, finding himself shut in, sent a herald to promise in his name that he would deport the whole of his army from Spain if he were allowed to leave his position. The Roman general was glad to accept the offer, and Hasdrubal asked for an interview the following day. At this conference they were to draw up in writing the terms upon which the various citadels were to be handed over, and the date at which the garrisons were to be withdrawn, on the understanding that they should take with them all their goods and chattels.

His request was granted, and Hasdrubal ordered the most heavily armed portion of his army to get out of the pass as best they could as soon as darkness set in. He was careful to see that not very many went out that night, as a small body would make but little noise and be more likely to escape observation. They would also find their way more easily through the narrow and difficult foot-paths. The next day he kept the appointment, but so much time was taken up in discussing and writing down a number of things which had nothing

to do with the matters they had agreed to discuss, that the whole day was lost and the business adjourned till the morrow. So another opportunity was afforded him of sending off a fresh body of troops by night. The discussion was not brought to a close the next day, and so it went on; several days were occupied in discussing terms, and the nights in despatching the Carthaginians secretly from their camp. When the greater part of the army had escaped, Hasdrubal no longer kept to the conditions which he had himself proposed, and there was less and less desire to come to terms as his sincerity diminished with his fears. Almost the entire force of infantry had now got out of the defile when, at daybreak, a dense fog covered the valley and the whole of the surrounding country. No sooner did Hasdrubal become aware of this than he sent a message to Nero begging that the interview might be put off for that day as it was a day on which the Carthaginians were forbidden by their religion to transact any important business. Even this did not arouse any suspicion of trickery. On learning that he would be excused for that day, Hasdrubal promptly left his camp with the cavalry and elephants, and by keeping his movements secret, emerged into safety. About ten o'clock the sun dispersed the mist, and the Romans saw that the hostile camp was deserted. Then, recognising at last the trick which the Carthaginian had played upon him and how he had been befooled, Nero hurriedly prepared to follow him and force him to an engagement. The enemy, however, declined battle; only a few skirmishes took place between the Carthaginian rear and the Roman advanced guard.

[26.18]The Spanish tribes who had revolted after the defeat of the two Scipios showed no signs of returning to their allegiance; there were not, however, any fresh instances. After the recovery of Capua the public interest both in senate and people centered in Spain quite as much as in Italy; and it was decided that the army serving there should be increased and a commander-in-chief appointed. There was, however, much uncertainty felt as to whom they ought to appoint. Two consummate generals had fallen within thirty days of each other, and the selection of a man to take their place demanded exceptional care. Various names were proposed, and at last it was arranged that the matter should be left to the people, and a proconsul for Spain formally elected. The consuls fixed a day for the election. They were in hopes that those who felt themselves qualified for such an

important command would become candidates. They were, however, disappointed, and the disappointment renewed the grief of the people, as they thought of the defeats they had sustained and the generals they had lost. The citizens were depressed, almost in despair, nevertheless they went out to the Campus Martius on the day fixed for the election. All turned their eyes to the magistrates and watched the expression of the leaders of the republic as they looked enquiringly at one another. Everywhere men were saying that the State was in such a hopeless condition that no one dared to accept the command in Spain. Suddenly, Publius Cornelius Scipio, the son of the Scipio who had fallen in Spain, a young man barely twenty-four years old, took his stand upon a slight eminence where he could be seen and heard, and announced himself as a candidate. All eyes were turned towards him, and the delighted cheers with which his announcement was received were at once interpreted as an omen of his future good fortune and success. On proceeding to vote, not only the centuries but even the individual voters were unanimous to a man in favour of entrusting P. Scipio with the supreme command in Spain. When, however, the election was decided and their enthusiasm had had time to cool down, there was a sudden silence as the people began to reflect on what they had done, and ask themselves whether their personal affection for him might not have got the better of their judgment. What gave them the greatest concern was his youth. Some, too, recalled with dread the fortune that had attended his house, and regarded as ominous of evil even the name of the man who was quitting two bereaved families in order to carry on a campaign round the tombs of his uncle and his father.

[26.19] Seeing how the step which they had taken so impetuously now filled them with anxiety, Scipio called the voters together and spoke to them about his age and the command which they had entrusted to him, and the war which he had to conduct. He spoke in such lofty and glowing words that he evoked their enthusiasm once more, and inspired them with more hopeful confidence than is usually called out by faith in men's promises or by reasonable anticipations of success. Scipio won people's admiration not only by the sterling qualities which he possessed, but also by his cleverness in displaying them, a cleverness which he had developed from early youth. In his public life he generally spoke and acted as though he were guided either by visions of the night or by some divine inspiration, whether

it was that he was really open to superstitious influences or that he claimed oracular sanction for his commands and counsels in order to secure prompt adoption. He sought to create this impression on men's minds from the beginning, from the day when he assumed the toga virilis, for he never undertook any important business, either public or private, without first going to the Capitol, where he sat for some time in the temple in privacy and alone. This custom, which he kept up all through his life, gave rise to a widespread belief, whether designedly upon his part or not, that he was of divine origin, and the story was told of him which was commonly related of Alexander - a story as silly as it was fabulous - that he was begotten by an enormous serpent which had been often seen in his mother's bedroom, but on any one's approach, suddenly uncoiled itself and disappeared. The belief in these marvels was never scoffed at by him; on the contrary, it was strengthened by deliberate policy on his part in refusing to deny or to admit that anything of the kind ever occurred. There were many other traits in this young man's character, some of which were genuine, others the result of studied acting, which created a greater admiration for him than usually falls to the lot of man.

It was the confidence with which he had in this way inspired his fellow-citizens that led them to entrust to him, young as he was, a task of enormous difficulty, and a command which involved the gravest responsibilities. The force which he had formed out of the old army in Spain, and that which sailed from Puteoli with C. Nero, were further reinforced by 10,000 infantry and 1000 cavalry. M. Junius Silanus was appointed as his second in command. Setting sail from the mouth of the Tiber with a fleet of thirty vessels, all quinqueremes, he coasted along the Etruscan shore, crossed the Gulf of Gaul, and after rounding the Pyrenaean Promontory brought up at Emporiae, a Greek city, founded by settlers from Phocaea. Here he disembarked his troops and proceeded overland to Tarraco, leaving orders for his fleet to follow his movements. At Tarraco he was met by deputations which had been sent from all the friendly tribes as soon as they knew of his coming. The vessels were hauled ashore, and the four Massilian triremes which had acted as convoy were sent home. The deputations informed Scipio of the unsettlement amongst their tribes due to the varying fortunes of the war. He replied in a bold and assured tone, full of self-confidence,

but no expression savouring of presumption or arrogance escaped him, everything he said was marked by perfect dignity and sincerity.

[26.20]Tarraco was now his headquarters. From there he paid visits to the friendly tribes, and also inspected the winter quarters of the army. He praised them warmly for having maintained their hold on the province after sustaining two such terrible blows, and also for keeping the enemy to the south of the Ebro, thereby depriving them of any advantages from their victories, and also affording protection to their own friends. Marcius, whom he kept with him, he treated with so much honour that it was perfectly obvious that Scipio had not the slightest fear of his reputation being dimmed by anybody. Soon afterwards Silanus succeeded Nero and the new troops were sent into winter quarters. After making all the necessary visits and inspections and completing the preparations for the next campaign Scipio returned to Tarraco. His reputation was quite as great among the enemy as among his own countrymen; there was amongst the former a foreboding, a vague sense of fear which was all the stronger because no reason for it could be given. The Carthaginian armies withdrew into their respective winter-quarters: Hasdrubal, the son of Gisco, to Gades on the coast, Mago into the interior above the forest of Castulo, Hasdrubal, the son of Hamilcar, near the Ebro in the neighbourhood of Saguntum. This summer, marked by two important events, the recovery of Capua and the despatch of Scipio to Spain, was drawing to a close when a Carthaginian fleet was sent from Sicily to Tarentum to intercept supplies from the Roman garrison in the citadel. It certainly succeeded in blocking all access to the citadel from the sea, but the longer it remained the greater was the scarcity amongst the townspeople as compared with that amongst the Romans in the citadel. For though the coast was clear and open access was secured to the harbour by the Carthaginian fleet, it was impossible to convey to the population of the city as much corn as was consumed by the crowd of sailors, drawn from every class, on board the fleet. The garrison in the citadel, on the other hand, being only a small body, were able to exist on what they had previously laid in, without any external supply. At length the ships were sent away, and their departure was hailed with more delight than their arrival had been. But the scarcity was not in the slightest degree lessened, for when their protection was withdrawn, corn could not be brought in at all.

[26.21]Towards the end of this summer M. Marcellus left Sicily for Rome. On his arrival in the City he was granted an audience of the senate in the Temple of Bellona. After giving a report of his campaign and gently protesting on his own behalf and on that of his soldiers against not being allowed to bring them home, though he had completely pacified the province, he requested to be allowed to enter the City in triumph. After a lengthy debate his request was refused. On the one hand, it was argued, it was most inconsistent to refuse him a triumph now that he was on the spot after the way in which the news of his successes in Sicily had been received, and public thanksgivings and special rites ordered while he was still in his province. Against this it was alleged that as the senate had ordered him to hand over his army to his successor, it was a proof that a state of war still existed in the province, and he could not enjoy a triumph since he had not brought the war to a close, nor was his army present to testify as to whether he deserved a triumph or not. They decided upon a middle course, he was to be allowed an ovation. The tribunes of the plebs were authorised by the senate to propose as an ordinance to the people "that for the day on which he entered the City in ovation M. Marcellus should retain his command."

The day previous to this he celebrated his triumph on the Alban Mount. From there he marched into the City in ovation. An enormous quantity of spoil was carried before him together with a model of Syracuse at the time of its capture. Catapults and ballistae and all the engines of war taken from the city were exhibited in the procession, as were also the works of art which had been accumulated in royal profusion during the long years of peace. These included a number of articles in silver and bronze, pieces of furniture, costly garments and many famous statues with which Syracuse, like all the principal cities of Greece, had been adorned. To signalise his victories over the Carthaginians eight elephants were led in the procession. Not the least conspicuous feature of the spectacle was the sight of Sosis the Syracusan and Moericus the Spaniard who marched in front wearing golden crowns. The former had guided the nocturnal entry into Syracuse, the latter had been the agent in the surrender of Nasos and its garrison. Each of these men received the full Roman citizenship and 500 jugera of land. Sosis was to take his allotment in that part of the Syracusan territory which had belonged to the king or to those who had taken up arms against Rome, and he

was allowed to choose any house in Syracuse which had been the property of those who had been put to death under the laws of war. A further order was made that Moericus and the Spaniards should have assigned to them a city and lands in Sicily out of the possessions of those who had revolted from Rome. M. Cornelius was commissioned to select the city and territory for them, where he thought best, and 400 jugera in the same district were also decreed as a gift to Belligenes through whose instrumentality Moericus had been induced to change sides. After Marcellus' departure from Sicily a Carthaginian fleet landed a force of 8000 infantry and 3000 Numidian horse. The cities of Murgentia and Ergetium revolted to them, and their example was followed by Hybla and Macella and some other less important places. Muttines and his Numidians were also roaming all through the island and laying waste the fields of Rome's allies with fire. To add to these troubles the Roman army bitterly resented not being withdrawn from the province with their commander and also not being allowed to winter in the towns. Consequently they were very remiss in their military duties; in fact it was only the absence of a leader that prevented them from breaking out into open mutiny. In spite of these difficulties the praetor M. Cornelius succeeded by remonstrances and reassurances in calming the temper of his men, and then reduced all the revolted cities to submission. In pursuance of the senate's orders he selected Murgentia, one of those cities, for the settlement of Moericus and his Spaniards.

[26.22]As both the consuls had Apulia for their province, and as there was less danger from Hannibal and his Carthaginians, they received instructions to ballot for Apulia and Macedonia. Macedonia fell to Sulpicius, and he superseded Laevinus. Fulvius was recalled to conduct the consular elections in Rome. The Veturian century of juniors was the first to vote, and they declared for T. Manlius Torquatus and T. Otacilius, the latter being at the time absent from Rome. The voters began to press round Manlius to congratulate him, regarding his election as a certainty, but he at once proceeded, surrounded by a large crowd, to the consul's tribunal and begged to be allowed to make a brief speech and also asked that the century which had voted might be recalled. When all were on the tiptoe of expectation to learn what he wanted, he began by excusing himself on the score of his eyesight. "A man must have little sense of shame," he continued "whether he be pilot of a ship or commander of an

army, who asks that the lives and fortunes of others should be committed to him when, in all he does, he has to depend upon other people's eyes. If, therefore, you approve, order the Veturian century of juniors to cast their vote again, and to remember, whilst they are choosing their consuls, the war in Italy and the critical position of the republic. Your ears can hardly yet have recovered from the uproar and confusion caused by the enemy a few months ago, when he brought the flames of war almost up to the very walls of Rome." The century replied with a general shout that they had not changed their minds, they should vote as before. Then Torquatus said, "I shall not be able to tolerate your manners and conduct, nor will you submit to my authority. Go back and vote again, and bear in mind that the Carthaginians are carrying war in Italy, and that their leader is Hannibal." Then the century, swayed by the speaker's personal authority and by the murmurs of admiration which they heard all around them, begged the consul to call up the Veturian century of seniors, as they wished to consult their elders and be guided by their advice in the choice of consuls. They were accordingly called up and an interval was allowed for the two bodies to consult privately in the ovile. The seniors maintained that the choice really lay between three men, two of them already full of honours - Q. Fabius and M. Marcellus - and, if they particularly wished a new man to be appointed consul to act against the Carthaginians, M. Valerius Laevinus, who had conducted operations against Philip both by sea and land with conspicuous success. So they discussed the claims of these three, and after the seniors had withdrawn the juniors proceeded to vote. They gave their vote in favour of M. Marcellus Claudius, resplendent with the glory of his conquest of Sicily, and, as the second consul, M. Valerius. Neither of them had put in a personal appearance. The other centuries all followed the leading century. People nowadays may laugh at the admirers of antiquity. I for my part do not believe it possible, even if there ever existed a commonwealth of wise men such as philosophers dream of but have never really known, that there could be an aristocracy more grave or more temperate in their desire for power or a people with purer manners and a higher moral tone. That a century of juniors should have been anxious to consult their seniors as to whom they were to place in supreme authority is a thing hardly credible in these days, when we see in what contempt children hold the authority of their parents.

[26.23]Then followed the election of praetors. The successful candidates were P. Manlius Vulso, L. Manlius Acidinus, C. Laetorius and L. Cincius Alimentus. When the elections were over news came of the death of T. Otacilius in Sicily. He was the man whom the people would have given to T. Manlius as his colleague in the consulship, if the order of the proceedings had not been interrupted. The Games of Apollo had been exhibited the previous year, and when the question of their repetition the next year was moved by the praetor Calpurnius, the senate passed a decree that they should be observed for all time. Some portents were observed this year and duly reported. The statue of victory which stood on the roof of the temple of Concord was struck by lightning and thrown down on to the statues of Victory which stood above the facade in front of the pediment, and here it was caught and prevented from falling lower. At Anagnia and Fregellae the walls and gates were reported to have been struck. In the forum of Subertum streams of blood had flowed for a whole day. At Eretium there was a shower of stones and at Reate a mule had produced offspring. These portents were expiated by sacrifices of full-grown victims; a day was appointed for special intercessions and the people were ordered to join in solemn rites for nine days. Some members of the national priesthood died this year, and others were appointed in their stead. Manlius Aemilius Numida, one of the Keepers of the Sacred Books, was succeeded by M. Aemilius Lepidus. C. Livius was appointed pontiff in the room of M. Pomponius Matho, and M. Servilius, augur, in the place of Spurius Carvilius Maximus. The death of the pontiff T. Otacilius Crassus did not occur before the close of the year, so no one was appointed in his place. C. Claudius, one of the Flamens of Jupiter, was guilty of irregularity in laying the selected parts of the victim on the altar and consequently resigned his office.

[26.24]M. Valerius Laevinus had been holding private interviews with some of the leading Aetolians with the view of ascertaining their political leanings. It was arranged that a meeting of their national council should be convened to meet him, and thither he proceeded with some fast-sailing vessels. He commenced his address to the assembly by alluding to the captures of Syracuse and Capua as instances of the success which had attended the arms of Rome in Sicily and Italy, and then proceeded: "It is the practice of the Romans, a practice handed down from their ancestors, to cultivate the

friendship of other nations; some of them they have received into citizenship on the same footing as themselves; others they have allowed to remain under such favourable conditions that they preferred alliance to full citizenship. You, Aetolians, will be held in all the greater honour because you will have been the first of all the oversea nations to establish friendly relations with us. Philip and the Macedonians you find to be troublesome neighbours; I have already dealt a fatal blow to their ambitions and aggressiveness, and I shall reduce them to such a pass that they will not only evacuate those cities which they have wrested from you, but will have enough to do to defend Macedonia itself. The Acarnanians, too, whose secession from your league you feel so keenly, I shall bring back to the old terms by which your rights and suzerainty over them were guaranteed." These assertions and promises of the Roman commander were supported by Scopas, the chief magistrate of Aetolia at the time, and by Dorimachus, a leading man amongst them, both of whom from their official position spoke with authority. They were less reserved, and adopted a more confident tone as they extolled the power and greatness of Rome. What weighed most, however, with the Assembly was the hope of becoming masters of Acarnania.

The terms on which they were to become the friends and allies of Rome were reduced to writing and an additional clause was inserted that if it was their will and pleasure the Eleans and Lacedaemonians as well as Attalus, Pleuratus and Scerdilaedus might be included in the treaty. Attalus was king of Pergamum in Asia Minor; Pleuratus, king of the Thracians; Scerdilaedus, king of the Illyrians. The Aetolians were at once to commence war with Philip on land, and the Roman general would assist them with not less than twenty-five quinqueremes. The territories, buildings and walls of all the cities as far as Corcyra were to become the property of the Aetolians, all the other booty was to go to the Romans, who were also to be responsible for Acarnania passing under the dominion of the Aetolians. Should the Aetolians make peace with Philip, one of the conditions was to be that he would abstain from hostilities against Rome and her allies and dependencies. Similarly, if the Romans made a treaty with him it was to be a provision that he should not be allowed to make war upon the Aetolians and their allies. These were the agreed conditions, and after a lapse of two years, copies of the

treaty were deposited by the Aetolians at Olympia, and by the Romans in the Capitol, in order that the sacred memorials round them might be a perpetual witness to their obligation. The reason for this delay was that the Aetolian envoys had been detained for a considerable time in Rome. No time, however, was lost in commencing hostilities, and Laevinus attacked Zacynthus. This is a small island adjacent to Aetolia, and it contains one city of the same name as the island; this city, with the exception of its citadel, Laevinus captured. He also took two cities belonging to the Acarnanians - Oeniadae and Nasos - and handed them over to the Aetolians. After this he withdrew to Corcyra, feeling satisfied that Philip had enough on his hands with the war on his frontiers to prevent him from thinking about Italy and the Carthaginians and his compact with Hannibal.

[26.25] Philip was wintering in Pella when the news of the defection of the Aetolians reached him. He had intended to march into Greece at the beginning of the spring, and with the view of keeping the Illyrians and the cities adjacent to his western frontier quiet he made a sudden invasion into the territories of Oricum and Apollonia. The men of Apollonia came out to give battle, but he drove them back in great panic to their walls. After devastating the neighbouring district of Illyria, he turned swiftly into Pelagonia and captured Sintia, a city of the Dardani, which gave them easy access into Macedonia. After these rapid incursions he turned his attention to the war which the Aetolians, in conjunction with the Romans, were commencing against him. Marching through Pelagonia, Lyncus and Bottiaea he descended into Thessaly, whose population he hoped to rouse to joint action with him against the Aetolians. Leaving Perseus with a force of 4000 men to hold the pass into Thessaly against them he returned to Macedonia, before engaging in the more serious contest, and from there marched into Thrace to attack the Maedi. This tribe were in the habit of making incursions into Macedonia whenever they found the king occupied with some distant war and his kingdom unprotected. To break their aggressiveness he devastated their country, and attacked Iamphoryna, their chief city and stronghold.

When Scopas heard that the king had gone into Thessaly, and was engaged in hostilities there, he called up all the fighting men of Aetolia and prepared to invade Acarnania. The Acarnanians were inferior to their enemy in strength; they were also aware that

Oeniadae and Nasos were lost, and above all, that the arms of Rome were turned against them. Under these circumstances they entered upon the struggle more in a spirit of rage and despair than with prudence and method. Their wives and children and all men over sixty years of age were sent into the adjoining country of Epirus. All who were between fifteen and sixty bound themselves by oath not to return home unless they were victorious, and if any one left the field, defeated, no man should receive him into any city or house or admit him to his table or his hearth. They drew up a form of words, invoking a terrible curse upon any of their countrymen who should prove recreants, and a most solemn appeal to their hosts, the Epirotes, to respect their oath. They also begged them to bury those of their countrymen who fell in battle in one common grave and place over it this inscription: "Here lie the Acarnanians who met their death whilst fighting for their country against the violence and injustice of the Aetolians." In this determined and desperate mood, they fixed their camp on the extreme limit of their borders and awaited the enemy. Messengers were despatched to Philip to announce their critical situation, and in spite of his recapture of Iamphoryna and other successes in Thrace he was compelled to abandon his northern campaign and go to their assistance. Rumours of the oath which the Acarnanians had taken arrested the advance of the Aetolians; the news of Philip's approach compelled them to withdraw into the interior of their country. Philip had made a forced march to prevent the Acarnanians from being crushed, but he did not advance beyond Dium, and on learning that the Aetolians had retired he returned to Pella.

[26.26] At the beginning of spring Laevinus set sail from Corcyra and after rounding the promontory of Leucata reached Naupactus. He announced that he was going on to attack Anticyra, so that Scopas and the Aetolians might be ready for him there. Anticyra is situated in Locris, on the left hand as you enter the Corinthian Gulf, and is only a short distance either by sea or land from Naupactus. In three days the attack began in both directions; the naval attack was the heavier one because the ships were furnished with artillery and engines of every kind, and it was the Romans who were delivering the attack on this side. In a few days the place surrendered and was made over to the Aetolians; the booty in accordance with the treaty became the property of the Romans. During the siege a despatch was

handed to Laevinus informing him that he had been made consul, and that P. Sulpicius was coming to succeed him. Whilst he was there he was overtaken by a tedious illness, and consequently arrived in Rome much later than was expected. M. Marcellus entered upon his consulship on March 15, and in order to comply with traditional usage summoned a meeting of the senate on the same day. The meeting was a purely formal one; he announced that in his colleague's absence he should not submit any proposals either in respect of the policy of the State or the assignment of provinces. "I am quite aware," he told the senators, "that there are a large body of Sicilians quartered in the country houses of my detractors round the City. I have no intention of preventing them from publishing here in Rome the charges which have been got up by my enemies; on the contrary, I was prepared to give them an immediate opportunity of appearing before the senate had they not pretended to be afraid of speaking about a consul in his colleague's absence. When, however, my colleague has come I shall not allow any business to be discussed before the Sicilians have been brought into the senate house. M. Cornelius has issued what is practically a formal summons throughout the island in order that as many as possible might come to Rome to lay their complaints against me. He has filled the City with letters containing false information about a state of war existing in Sicily, solely that he may tarnish my reputation." The consul's speech won for him the reputation of being a man of moderation and self-control. The senate adjourned, and it seemed as though there would be a total suspension of business pending the other consul's arrival. As usual, idleness led to discontent and grumbling. The plebs were loud in their complaints about the way the war dragged on, the devastation of the land round the City wherever Hannibal and his army moved, the exhaustion of Italy by the constant levies, the almost annual destruction of their armies. And now the new consuls were both of them fond of war, far too enterprising and ambitious, quite capable, even in a time of peace and quiet, of getting up a war, and now that war was actually going on all the less likely to allow the citizens any respite or breathing space.

[26.27]All this talk was suddenly interrupted by a fire which broke out in the night in several places round the Forum on the eve of the Quinquatrus. Seven shops which were afterwards replaced by five were burning at the same time, as well as the offices where the New

Banks now stand. Soon after, private buildings - the Basilicae did not yet exist - the Lautumiae, the Fish Market and the Hall of Vesta were alight. It was with the utmost difficulty that the Temple of Vesta was saved, mainly through the exertions of thirteen slaves, who were afterwards manumitted at the public cost. The fire raged all through the next day and there was not the smallest doubt that it was the work of incendiaries, for fires started simultaneously in several different places. The senate accordingly authorised the consul to give public notice that whoever disclosed the names of those through whose agency the conflagration had been started should, if he were a freeman, receive a reward, if a slave, his liberty. Tempted by the offer of a reward, a slave belonging to the Capuan family of the Calavii, called Manus, gave information to the effect that his masters, together with five young Capuan nobles, whose fathers had been beheaded by Q. Fulvius, had caused the fire and were prepared to commit every description of crime if they were not arrested. They and their slaves were at once apprehended. At first they endeavoured to throw suspicion upon the informer and his statement. It was asserted that after being beaten by his master, the day before he gave information, he had run away and had made out of an occurrence which was really accidental the foundation of a false charge. When, however, the accused and accuser were brought face to face and the slaves were examined under torture, they all confessed. The masters as well as the slaves who had been their accessories were all executed. The informer was rewarded with his liberty and 20,000 ases.

When Laevinus was passing Capua on his way to Rome he was surrounded by a crowd of the inhabitants who implored him with tears to allow them to go to Rome and try if they could not awaken the compassion of the senate and persuade them not to allow Q. Flaccus to ruin them utterly and efface their name. Flaccus declared that he had no personal feeling against the Capuans, it was as public enemies that he regarded them, and should continue to do so as long as he knew that they maintained their present attitude towards Rome. He had shut them up, he said, within their walls, because if they got out anywhere they would prowl about the country like wild beasts, and mangle and murder whatever came in their way. Some had deserted to Hannibal, others had gone off to burn down Rome. The consul would see in the half-burnt Forum the result of their crime. They had tried to destroy the temple of Vesta, with its perpetual fire,

and the image which was concealed in the sacred shrine - that image which Fate had decreed to be the pledge and guarantee of Roman dominion. He considered that it would be anything but safe to give the Capuans a chance of entering the City. After hearing this Laevinus made the Capuans take an oath to Flaccus that they would return within five days after receiving the reply of the senate. Then he ordered them to follow him to Rome. Surrounded by this crowd and by a number of Sicilians who had also met him, he entered the City. It seemed just as though he were bringing in a body of accusers against the two commanders who had distinguished themselves by the destruction of two famous cities and who would now have to defend themselves against those they had vanquished.

[26.28]The first questions, however, which the two consuls brought before the senate were those relating to foreign policy and the allocation of the various commands. Laevinus made his report on the situation in Macedonia and Greece, and the unrest amongst the Aetolians, the Acarnanians and the Locrians. He also gave details as to his own military and naval movements, and stated that he had driven Philip, who was meditating an attack on the Aetolians, back into the interior of his kingdom. The legion could now be safely withdrawn, as the fleet was sufficient to protect Italy from any attempt on the part of the king. After this statement about himself and the province of which he had had charge, he and his colleague raised the question of the various commands. The senate made the following dispositions. One consul was to operate in Italy against Hannibal; the other was to succeed T. Otacilius in command of the fleet and also to administer Sicily with L. Cincius as praetor. They were to take over the armies in Etruria and Gaul, each of which comprised two legions. The two City legions which the consul Sulpicius had commanded the previous year were sent to Gaul, and the consul who was to act in Italy was to appoint to the command in Gaul. C. Calpurnius had his office of propraeor extended for a year, and was sent into Etruria, Q. Fulvius also received a year's extension of his command at Capua. The composite force of citizens and allies was reduced, one strong legion being formed out of the two; this consisted of 5000 infantry and 300 cavalry, those who had served longest being sent home. The army of the allies was reduced to 7000 infantry and 300 cavalry, the same rule being observed as to the release of the veterans who had seen the longest service. In the case

of the retiring consul, Cn. Fulvius, no change was made; he retained his army and his province, Apulia, for another year. His late colleague, P. Sulpicius, received orders to disband his entire army with the exception of the naval force. Similarly the army which M. Cornelius had commanded was to be sent home from Sicily. The men of Cannae, who practically represented two legions, were still to remain in the island, under the command of the praetor L. Cincius. L. Cornelius had commanded the same number of legions the previous year in Sardinia, and these were now transferred to the praetor P. Manlius Vulso. The consuls received instructions to see that in raising the City legions, none were enrolled who had been in the army of M. Valerius, or in that of Q. Fulvius. So the total number of Roman legions in active service that year was not to exceed one-and-twenty.

[26.29]When the senate had finished making the appointments, the consuls were ordered to ballot for their commands. Sicily and the fleet fell to Marcellus, Italy and the campaign against Hannibal to Laevinus. This result utterly appalled the Sicilians, to whom it seemed as though all the horrors of the capture of Syracuse were to be repeated. They were standing in full view of the consuls, waiting anxiously for the result of the balloting, and when they saw how it was decided, they broke out into loud laments and cries of distress, which drew the eyes of all upon them for the moment, and became the subject of much comment afterwards. Clothing themselves in mourning garb they visited the houses of the senators and assured each of them in turn that if Marcellus went back to Sicily with the power and authority of a consul they would every one of them abandon his city and quit the island for ever. He had, they said, before shown himself vindictive and implacable towards them; what would he do now, furious as he was at the Sicilians who had come to Rome to complain of him? It would be better for the island to be buried beneath the fires of Aetna or plunged in the depths of the sea than to be given up to such an enemy to wreak his rage and vengeance on it. These remonstrances of the Sicilians were made to individual nobles in their own homes, and gave rise to lively discussions, in which sympathy with the sufferers and hostile sentiments towards Marcellus were freely expressed. At last they reached the senate. The consuls were requested to consult that body as to the advisability of a rearrangement of the provinces. In addressing the House Marcellus

said that had the Sicilians been already admitted to an audience he would have taken a different line, but as matters stood, he did not wish it to be open to any one to say that they were afraid to lay their complaints against the man in whose power they would shortly be placed. If, therefore, it made no difference to his colleague he was prepared to exchange provinces with him. He begged the senate not to make any order, for since it would have been unfair to him for his colleague to have chosen his province without recourse to the ballot, how much more unfair and even humiliating to him would it be now to have the province which had fallen to him formally transferred to his colleague! After indicating their wish, without embodying it in a decree, the senate adjourned, and the consuls themselves arranged to exchange provinces. Marcellus was being hurried on by his destiny to meet Hannibal, in order that, as he was the first Roman general to win the distinction of a successful action with him after so many disastrous ones, so he would be the last to contribute to the Carthaginian's reputation by his own fall, and that just at the time when the war was going most favourably for the Romans.

[26.30]When the exchange of provinces had been decided, the Sicilians were introduced into the senate. After expatiating at some length upon the unbroken loyalty of Hiero to Rome, and claiming the credit of it for the people rather than for the king, they proceeded: "There were many reasons for the hatred we felt towards Hieronymus and afterwards towards Hippocrates and Epicydes, but the principal one was their abandoning Rome for Hannibal. It was this that led some of the foremost of our younger men to assassinate Hieronymus close to the senate-house, and also induced some seventy who belonged to our noblest houses to form a plot for the destruction of Epicydes and Hippocrates. As Marcellus failed to support them by bringing up his army to Syracuse at the time he promised, the plot was disclosed by an informer, and they were all put to death by the tyrants. Marcellus was really responsible for the tyranny, owing to his ruthless sacking of Leontium. From that time the Syracusan leaders never ceased to go over to Marcellus and undertake to deliver up the city to him whenever he wished. He would rather have taken it by storm, but when all his attempts by sea and land failed, and he saw that the thing was impossible, he chose as agents of the surrender an artisan called Sosis and the Spaniard Moericus, rather than let the leaders of the city, who had so often

offered in vain to do so, undertake the task. No doubt he considered that he would thus have more justification for plundering and massacring the friends of Rome. Even if the revolt to Hannibal had been the act of senate and people and not simply of Hieronymus; if it had been the government of Syracuse who closed the gates against Marcellus, and not the tyrants Hippocrates and Epicydes who had ousted the government; if we had warred against Rome in the spirit and temper of the Carthaginians, what greater severity could Marcellus have shown towards us than that which he actually practiced, unless he had blotted Syracuse out from the face of the earth? At all events, nothing has been left to us beyond our walls and our houses stripped of everything, and the defaced and despoiled temples of our gods, from which even the gods themselves and their votive offerings have been carried off. Many have been deprived of their land, so that they have not even the bare soil on which to support themselves, and all who belong to them, with the remains of their wrecked fortunes. We beg and entreat you, senators, if you cannot order all that we have lost to be restored to us, at least to insist upon the restitution of what can be found and identified." After they had stated their grievances, Laevinus ordered them to withdraw, that their position might be discussed. "Let them stop," exclaimed Marcellus, "that I may make my reply in their presence, since we who conduct war on your behalf, senators, must do so on condition of those whom we have vanquished coming forward as our accusers. Two cities have been taken this year: let Capua call Fabius to account, and Syracuse, Marcellus."

[26.31]When they had been brought back into the senate-house, Marcellus made the following speech: "I have not so far forgotten, senators, the majesty of Rome or the dignity of my office as to stoop to defend myself, as consul, against the charges of these Greeks, if they concerned me alone. The question is not so much what I have done as what they ought to have suffered. Had they not been enemies it is a matter of indifference whether I maltreated Syracuse now or in Hiero's lifetime. But if they have proved false to us, opened their gates to the enemy, threatened our envoys with drawn swords, shut their city and walls against us and called in a Carthaginian army to protect them against us, who is there who can feel any indignation at their having suffered hostile violence after having practiced it? I declined the offers of their leaders to deliver up the city, and looked

upon Sosis and the Spaniard Moericus as much more suitable persons to be trusted in a matter of such importance. As you make their humble station in life a reproach to others, you do not yourselves belong to the lowest class in Syracuse, and yet who amongst you promised to open your gates and admit my armed force into your city? Those who did this are the objects of your hatred and execration; not even in this place do you shrink from insulting them, showing thereby how far you yourselves were from contemplating anything of the kind. That low social position, senators, which these men make a ground of reproach, proves most clearly that I discouraged no man who was willing to render effectual help to the commonwealth. Before commencing the siege of Syracuse, I made various attempts at a peaceful settlement, first by sending envoys and then by personal interviews with the leaders. It was only when I found that no reverence for the persons of my envoys protected them from violence and that I was unable to get any reply from the leaders with whom I conferred at their gates, that I took action and finally took the city by storm, after a vast expenditure of toil and exertion by sea and land. As to the incidents attending its capture, these men would be more justified in laying their complaints before Hannibal and his vanquished Carthaginians than before the senate of the people who vanquished them. If, senators, I had intended to conceal my spoliation of Syracuse I should never have adorned the City of Rome with its spoils. With regard to what I, as conqueror, took away or bestowed in individual cases, I am quite satisfied that I acted in accordance with the laws of war, according to the deserts of each individual. Whether you approve of my action or not is a question that concerns the State more than it concerns me. I only did my duty, but it will be a serious matter for the republic, if by rescinding my acts you make other generals in the future more remiss in doing their duty. And since you have heard what both the Sicilians and I have had to say in each other's presence, we will leave the House together in order that the senate may be able to discuss the matter more freely in my absence." The Sicilians were accordingly dismissed; Marcellus proceeded to the Capitol to enrol troops.

[26.32]The other consul, Laevinus, then consulted the senate as to what reply was to be given to the petition of the Sicilians. There was a long debate and great divergence of opinion. Many of those present supported the view expressed by T. Manlius Torquatus. They were

of opinion that hostilities ought to have been directed against the tyrants, who were the common enemies of Syracuse and of Rome. The city ought to have been allowed to surrender, not taken by storm, and when surrendered it ought to have had its own laws and liberties guaranteed to it, instead of being ruined by war after it had been worn out by a deplorable servitude under its tyrants. The struggle between the tyrants and the Roman general in which Syracuse was the prize of victory had resulted in the utter destruction of a most famous and beautiful city, the granary and treasury of the Roman people. The commonwealth had frequently experienced its generosity, especially in the present Punic war, and the City had been embellished by its munificent gifts. If Hiero, that loyal supporter of the power of Rome, could rise from the dead, with what face would any one dare to show him either Rome or Syracuse? In the one - his own city - he would see universal spoliation and a large part of it burnt, and as he approached the other he would see just outside its walls, almost within its gates, the spoils of his country. This was the line of argument urged by those who sought to create a feeling against the consul and evoke sympathy for the Sicilians. The majority, however, did not take such an unfavourable view of his conduct, and a decree was passed confirming the acts of Marcellus both during the war and after his victory, and declaring that the senate would for the future make the interests of the Syracusans their charge and would instruct Laevinus to safeguard the property of the citizens so far as he could without inflicting any loss on the State. Two senators were sent to the Capitol to request the consul to come back, and after the Sicilians had again been brought in, the decree was read to them. Some kind words were addressed to the envoys and they were dismissed. Before they left the House they flung themselves on their knees before Marcellus and implored him to forgive them for what they had said in their anxiety to gain sympathy and relief in their distress. They also begged him to take them and their city under his protection, and look upon them as his clients. The consul promised that he would do so, and after a few gracious words dismissed them.

[26.33]The Capuans were then admitted to an audience. Their case was a harder one, and their appeal for mercy was all the stronger. They could not deny that they deserved punishment, and there were no tyrants on whom they could throw the blame, but they considered that they had paid an adequate penalty after so many of their senators

had been carried off by poison, and so many had died under the axe. Some of their nobles, they said, were still living, who had not been driven by the consciousness of guilt into doing away with themselves, nor had the victor in his wrath condemned them to death. These men begged that they and their families might be set at liberty, and some portion of their goods restored to them. They were for the most part Roman citizens, connected with Roman families by intermarriage. After the envoys had withdrawn, there was some doubt as to whether they ought to summon Q. Fulvius from Capua - the consul Claudius had died soon after its capture - in order that the matter might be debated in the presence of the general whose proceedings were being called in question. This had just been done in the case of Marcellus and the Sicilians. When, however, some senators were seen sitting in the House who had been through the whole of the siege - M. Atilius Regulus and Caius the brother of Flaccus, both on his staff, and Q. Minucius and L. Veturius Philo, who had been members of Claudius' staff - they would not have Q. Fulvius recalled, nor the hearing of the Capuans adjourned. Amongst those who had been at Capua, the man whose opinion carried most weight was M. Atilius, and he was asked what course he would advise. He replied: "I believe I was present at the military council which met after the fall of Capua, when the consuls made enquiry as to which of the Capuans had assisted our republic. They discovered only two, and those were women. One was Vestia Oppia of Atella, who was living in Capua and who offered sacrifices daily for the welfare and triumph of Rome; the other was Cluvia Pacula, at one time a woman of loose character, who secretly supplied the starving prisoners with food. The rest of the Capuans were just as hostile to us as the Carthaginians themselves, and those whom Q. Fulvius executed were selected rather on account of their higher rank than of their greater guilt. I do not quite see how the senate is competent to deal with the Capuans, who are Roman citizens, without an order of the people. After the revolt of the Satricans, the course adopted by our ancestors was for a tribune of the plebs, M. Antistius, to bring the matter first before the Assembly, and a resolution was passed empowering the senate to decide what should be done to them. I therefore advise that we arrange with the tribunes of the plebs for one or more of them to propose a resolution to that body empowering us to settle the fate of the Capuans." L. Atilius, tribune of the plebs, was authorised by the senate to put the question in the following terms: "Whereas the inhabitants of Capua,

Atella and Calatia, and also the dwellers in the valley of the Sabatus have yielded themselves to the proconsul Fulvius to be at the arbitrament and disposal of the people of Rome, and whereas they have surrendered divers persons together with themselves, as also their land and city with all things therein, sacred and profane, together with their goods and chattels and whatsoever else they had in possession, I demand of you Quirites to know what it is your will and pleasure shall be done in regard of all these persons and things?" The resolution of the Assembly ran thus: "What the senate, or the greater part of those who are present, shall, on oath, decree and determine, that we will and order shall be done."

[26.34]The plebs having thus resolved, the senate made the following orders: First they restored their liberty and property to Oppia and Cluvia; if they wished to ask the senate for a further reward, they were to come to Rome. Separate decrees were made in the case of each of the Capuan families; it is not worth while giving a complete enumeration. Some were to have their property confiscated, they themselves with their wives and children were to be sold, with the exception of those of their daughters who had married outside the territory before they passed under the power of Rome. Others were to be thrown into chains, and their fate settled afterwards. In the case of the rest, the question whether their property should be confiscated or not depended upon the amount at which they were assessed. Where property was restored it was to include all the captured live stock except the horses, all the slaves except the adult males, and everything which was not attached to the soil. It was further decreed that the populations of Capua, Atella, Calatia and the valley of the Sabatus should all retain their liberty, except those who themselves, or whose parents had been with the enemy, but none of them could become a Roman citizen or a member of the Latin League. None of those who had been in Capua during the siege could remain in the city or its neighbourhood beyond a certain date; a place of residence was assigned to them beyond the Tiber at some distance from it. Those who had not been in Capua during the war, nor in any revolted Campanian city, were to be settled to the north of the Liris in the direction of Rome; those who had gone over to the side of Rome before Hannibal came to Capua were to be removed to this side of the Volturnus, and no one was to possess any land or building within fifteen miles of the sea. Those who had been deported beyond the

Tiber were forbidden to acquire or to hold either for themselves or their posterity landed property anywhere except in the territories of Veii, Sutrium and Nepete, and in no case was such holding to exceed fifty jugera. The property of all the senators and of all who had held any magistracy in Capua, Atella and Calatia was ordered to be sold in Capua, and those persons whom it had been decided to sell into slavery were sent to Rome and sold there. The disposal of the images and bronze statues which were alleged to have been taken from the enemy, and the question which of them were sacred and which profane, were referred to the Pontifical College. After hearing these decrees, the Capuans were dismissed in a much more sorrowful state of mind than that in which they had come. It was no longer Q. Fulvius' cruelty to them, but the injustice of the gods and their accursed fate that they denounced.

[26.35] After the departure of the Sicilian and Capuan envoys, the enrolment of the new legions was completed. Then came the question of providing the fleet with its proper complement of rowers. There was not a sufficient number of men available, nor was there any money at the time in the treasury with which to procure them or to pay them. In view of this state of things the consuls issued an order requiring private individuals to furnish seamen in proportion to their income and their rank, as they had done on a previous occasion, and also to supply them with thirty days' provision and pay. This order excited such a widespread feeling of indignation and resentment that if the people had had a leader they would have risen in insurrection. The consuls, they said, after ruining the Sicilians and Capuans, had seized upon the Roman plebs as their next victim to mangle and destroy. "After being drained by the war-tax," they complained, "for so many years, we have nothing left but the bare and wasted soil. Our houses have been burnt by the enemy, our slaves who tilled our fields have been appropriated by the State, first buying them for a few coppers to make soldiers of them, and now requisitioning them for seamen. Whatever silver or gold we had has been taken to pay the rowers and furnish the annual war-tax. No resort to force, no exercise of authority can compel us to give what we do not possess. Let the consuls sell our goods, then let them glut their rage on our bodies which are all we have left; nothing remains with which we can even ransom ourselves." Language of this kind was used not only in private conversation, but openly in the Forum, before the very eyes of the

consuls. A vast crowd had gathered round the tribunal, uttering angry cries, and the consuls were powerless to allay the agitation either by fair speeches or by threats. Ultimately they announced that they would give them three days to think the matter over, and they themselves devoted that time to seeing whether they could not find some way out of the difficulty. The next day they called the senate together to consider the matter, and many arguments were advanced to prove that the plebs were acting fairly and reasonably in their protest. At last the discussion came round to this point, that whether fair or unfair the burden must fall on the individual citizens. From what source, it was asked, could they procure seamen and sailors, when there was no money in the treasury, and how could they keep their hold on Sicily, or render the shores of Italy safe against any attempt by Philip, if they had no fleet?

[26.36]As there seemed to be no solution of the difficulty and a kind of mental torpor appeared to beset the senate, the consul Laevinus came to the rescue. "As the magistrates," he said, "take precedence of the senate and the senate of the people in honour and dignity; so they ought to lead the way in discharging unpleasant and difficult tasks. If, in laying any obligation on an inferior, you have first decided that it is binding on you and those connected with you, you will find that all are more ready to obey you. They do not feel an expense to be burdensome when they see each of their leaders bearing more than his due share of it. We want the Roman people to have fleets and to equip them, we want each citizen to furnish rowers and not to shirk his duty; then let us impose the burden on ourselves first of all. Let us, every one of us, bring our gold and silver and bronze money, tomorrow, to the treasury, only reserving the rings for ourselves, our wives and our children, and the bullae for our boys. Those who have wives and daughters may keep an ounce of gold for each of them. With regard to silver, those who have occupied curule chairs should keep the plating on their horse-trappings and two pounds of silver that they may have a dish and saltcellar for the gods. All the other senators should keep only one pound of silver. In the case of bronze coin let us retain 5000 ases for each household. All the rest of our gold and silver and money let us place in the hands of the commissioners of the treasury. No formal resolution should be passed; our contributions must be strictly voluntary; and our mutual rivalry to assist the commonwealth may stir up the equestrian order

to emulate us, and after them, the plebs. This is the only course which we consuls have been able to devise after our lengthy discussion, and we beg you to adopt it with the help of the gods. As long as the commonwealth is safe, each man's property is safe under its protection, but if you desert it, it will be in vain that you try to keep what you have." These suggestions were so favourably received that the consuls were even thanked for them. No sooner did the senate adjourn, than they each brought their gold and silver and bronze to the treasury, and they were so eager to be among the first to have their names inscribed in the public register that the commissioners were not able to take over the amounts or the clerks to enter them fast enough. The equestrian order showed quite as much zeal as the senate, and the plebs were not behind the equestrian order. In this way, without any formal order or compulsion by the magistrates, the full complement of rowers was made up, and the State put in a position to pay them. As the preparations for war were now complete the consuls started for their respective provinces.

[26.37]At no period of the war were the Carthaginians and the Romans alike subjected to greater vicissitudes of fortune, or to more rapid alternations of hope and fear. In the provinces, the disasters in Spain on the one hand and the successes in Sicily on the other filled the Romans with mingled feelings of sorrow and joy. In Italy the loss of Tarentum was felt to be a grievous blow, but the unexpected stand by the garrison in the citadel made all hearts glad, and the sudden panic at the prospect of Rome being besieged and stormed gave way to universal rejoicings when Capua was taken a few days later. In the campaign overseas a kind of balance was struck. Philip began hostilities at an inopportune moment for Rome, but in the new alliance with the Aetolians and Attalus, king of Pergamum, it seemed as though Fortune were giving a pledge of Rome's dominion in the East. The Carthaginians, again, felt that the capture of Tarentum was a set-off against the loss of Capua, and though they prided themselves on having marched unopposed up to the walls of Rome they were mortified at the futility of their enterprise, and humiliated by the contempt shown for them when a Roman army marched out on its way to Spain whilst they were actually lying under the very walls. Even in Spain itself, where the destruction of two great generals with their armies had raised their hopes of finally expelling the Romans and finishing the war, the higher their hopes had been,

the greater the disgust they felt at their victory being robbed of all its importance by L. Marcius, who was not even a regular general. So whilst Fortune was holding the scales evenly and everything was in suspense, both sides felt the same hopes and fears as though the war were only just beginning.

[26.38]Hannibal's principal cause of anxiety was the effect produced by the fall of Capua. It was generally felt that the Romans had shown greater determination in attacking than he had in defending the place, and this alienated many of the Italian communities from him. He could not occupy them all with garrisons unless he was prepared to weaken his army by detaching numerous small units from it; a course at that time highly inexpedient. On the other hand he did not dare to withdraw any of his garrisons and so leave the loyalty of his allies to depend upon their hopes and fears. His temperament, prone as it was to rapacity and cruelty, led him to plunder the places which he was unable to defend, in order that they might be left to the enemy waste and barren. This evil policy had evil results for him, for it aroused horror and loathing not only amongst the actual sufferers but amongst all who heard of them. The Roman consul was not slow in sounding the feelings of those cities where any hope of recovering them had shown itself. Amongst these was the city of Salapia. Two of its most prominent citizens were Dasius and Blattius. Dasius was friendly to Hannibal; Blattius favoured the interests of Rome as far as he safely could, and had sent secret messages to Marcellus holding out hopes that the city might be surrendered. But the thing could not be carried through without the help of Dasius. For a long time he hesitated, but at last he addressed himself to Dasius, not so much in the hope of success as because no better plan presented itself. Dasius was opposed to the project, and by way of injuring his political rival disclosed the affair to Hannibal. Hannibal summoned them both before his tribunal. When they appeared, he was occupied with business, intending to go into their case as soon as he was at liberty, and the two men, accuser and accused, stood waiting, apart from the crowd. Whilst thus waiting Blattius approached Dasius on the subject of the surrender. At this open and barefaced conduct, Dasius called out that the surrender of the city was being mooted under the very eyes of Hannibal. Hannibal and those round him felt that the very audacity of the thing made the charge improbable, and regarded it as due to spite and jealousy, since it was easy to invent such an

accusation in the absence of witnesses. They were accordingly dismissed. Blatius, however, did not desist from his venturesome project. He was perpetually urging the matter and showing what a beneficial thing it would be for them both and for their city. At last he succeeded in effecting the surrender of the city with its garrison of 5000 Numidians. But the surrender could only be effected with a heavy loss of life. The garrison were by far the finest cavalry in the Carthaginian army, and although they were taken by surprise and could make no use of their horses in the city, they seized their arms in the confusion and attempted to cut their way out. When they found escape impossible they fought to the last man. Not more than fifty fell into the hands of the enemy alive. The loss of this troop of horse was a heavier blow to Hannibal than the loss of Salapia; never from that time was the Carthaginian superior in cavalry, hitherto by far his most efficient arm.

[26.39] During this period the privations of the Roman garrison in the citadel of Tarentum had become almost insupportable; the men and their commandant M. Livius placed all their hopes in the arrival of supplies sent from Sicily. To secure a safe passage for these along the coast of Italy, a squadron of about twenty vessels was stationed at Regium. The fleet and the transports were under the command of D. Quinctius. He was a man of humble birth, but his many deeds of gallantry had gained him a high military reputation. He had only five ships to begin with, the largest of these - two triremes - had been assigned to him by Marcellus; subsequently, owing to the effective use he made of these, three quinqueremes were added to his command, and at last, by compelling the allied cities, Regium, Vellicia and Paestum to furnish the ships which they were bound by treaty to supply, he made up the above-mentioned squadron of twenty vessels. As this fleet was setting out from Regium, and was opposite Sapiortis, a place about fifteen miles from Tarentum, it fell in with a Tarentine fleet, also of twenty ships, under the command of Democrates. The Roman commander, not anticipating a fight, had all sail set; he had, however, got together his full complement of rowers while he was in the neighbourhood of Croton and Sybaris, and his fleet was excellently equipped and manned, considering the size of the vessels. It so happened that the wind completely died down just as the enemy came into sight, and there was ample time to lower the sails and get the rowers and soldiers into readiness for the

approaching conflict. Seldom have two regular fleets gone into action with such determination as these small flotillas, for they were fighting for larger issues than their own success. The Tarentines hoped that as they had already recovered their city from the Romans after the lapse of nearly a century, so they might now rescue their citadel, by cutting off the enemy's supplies after they had deprived them of the mastery of the sea. The Romans were eager to show, by retaining their hold on the citadel, that Tarentum had not been lost in fair fight. but by a foul and treacherous stroke. So, when the signal was given on each side, they rowed with their prows straight at each other; there was no backing or maneuvering, nor did they let go of any ship when once they had grappled and boarded. They fought at such close quarters that they not only discharged missiles, but even used their swords in hand-to-hand fighting. The prows were locked together and remained so while the hinder part of the vessel was pushed about by the oars of hostile ships. The vessels were so crowded together that hardly any missile failed to reach its aim or fell into the water. They pressed forward front to front like a line of infantry, and the combatants made their way from ship to ship. Conspicuous amongst all was the fight between the two ships which had led their respective lines and were the first to engage.

Quinctius himself was in the Roman ship, and in the Tarentine vessel was a man named Nico Perco, who hated the Romans for private as well as public grounds, and who was equally hated by them, for he was one of the party who betrayed Tarentum to Hannibal. Whilst Quinctius was fighting and encouraging his men, Nico took him unawares and ran him through with his spear. He fell headlong over the prow, and the victorious Tarentine springing on to the ship dislodged the enemy, who were thrown into confusion by the loss of their leader. The foreship was now in the hands of the Tarentines, and the Romans in a compact body were with difficulty defending the hinder part of the vessel, when another of the hostile triremes suddenly appeared astern. Between the two the Roman ship was captured. The sight of the admiral's ship in the enemy's hands created a panic, and the remainder of the fleet fled in all directions; some were sunk, others were hurriedly rowed to land and were seized by the people of Thurium and Metapontum. Very few of the transports which were following with supplies fell into the enemy's hands; the rest, shifting their sails to meet the changing winds, were carried out

to sea. An affair took place at Tarentum during this time which led to a very different result. A foraging force of 4000 Tarentines were dispersed through the fields, and Livius, the Roman commandant, who was always looking out for a chance of striking a blow, sent C. Persius, an able and energetic officer, with 2500 men from the citadel to attack them. He fell upon them while they were dispersed in scattered groups all through the fields, and after inflicting great and widespread slaughter, drove the few who escaped in headlong flight through their half-opened gates into the town. So matters were equalised as far as Tarentum was concerned; the Romans were victorious by land, and the Tarentines by sea. Both were alike disappointed in their hopes of obtaining the corn which had been within their view.

[26.40]Laevinus' arrival in Sicily had been looked forward to by all the friendly cities, both those who had been old allies of Rome, and those who had recently joined her. His first and most important task was the settlement of the affairs of Syracuse, which, as peace had only quite recently been established, were still in confusion. When he had accomplished this task he marched to Agrigentum, where the embers of war were still smouldering, and a Carthaginian garrison still in occupation. Fortune favoured his enterprise. Hanno was in command, but the Carthaginians placed their chief reliance on Muttines and his Numidians. He was scouring the island from end to end and carrying off plunder from the friends of Rome; neither force nor stratagem could keep him from entering Agrigentum and leaving it on his raids whenever he chose. His reputation as a dashing officer was beginning to eclipse that of the commandant himself, and at last created so much jealousy that even the successes he gained were unwelcome to Hanno, because of the man who gained them. It ended in his giving the command of the cavalry to his own son in the hope that by depriving Muttines of his post he would also destroy his influence with the Numidians. It had just the opposite effect, for the ill-feeling created only made Muttines more popular, and he showed his resentment at the injustice done to him by at once entering into secret negotiations with Laevinus for the surrender of the city. When his emissaries had come to an understanding with the consul and arranged the plan of operations, the Numidians seized the gate leading to the sea after driving off or massacring the men on guard, and admitted a Roman force which was in readiness into the city. As

they were marching in serried ranks into the forum and the heart of the city, amidst great confusion, Hanno, thinking it was only a riotous disturbance caused by the Numidians, such as had often happened before, went to allay the tumult. When, however, he saw in the distance a larger body of troops than the Numidians amounted to, and when the well-known battle shout of the Romans reached his ears, he at once took to flight before a missile could reach him. Escaping with Epicydes through a gate on the other side of the city, and attended by a small escort, he reached the shore. Here they were fortunate enough to find a small ship, in which they sailed across to Africa, abandoning Sicily, for which they had fought through so many years, to their victorious enemy. The mixed population of Sicilians and Carthaginians whom they had left behind, made no attempt at resistance, but rushed away in wild flight, and, as the exits were all closed, they were slaughtered round the gates. When he had gained possession of the place, Laevinus ordered the men who had been at the head of affairs in Agrigentum to be scourged and beheaded; the rest of the population he sold with the plunder, and sent all the money to Rome.

When the fate of the Agrigentines became generally known throughout Sicily, all the cities at once declared for Rome. In a short time twenty towns were clandestinely surrendered and six taken by storm, and as many as forty voluntarily surrendered on terms. The consul meted out rewards and punishments to the chief men in these cities, according to each man's deserts, and now that the Sicilians had at last laid arms aside he obliged them to turn their attention to agriculture. That fertile island was not only capable of supporting its own population, but had on many occasions relieved the scarcity in Rome, and the consul intended that it should do so again if necessary. Agathyrna had become the seat of a motley population, numbering some 4000 men, made up of all sorts of characters - refugees, insolvent debtors - most of them had committed capital offences at the time when they were living in their own cities and under their own laws and afterwards when similarity of fortunes arising from various causes had drawn them together at Agathyrna. Laevinus did not think it safe to leave these men behind in the island, as a material for fresh disturbances, whilst things were settling down under the newly established peace. The Regians too would find a body so experienced in brigandage as they were, very useful; accordingly

Laevinus transported them all to Italy. As far as Sicily was concerned, the state of war was put an end to this year.

[26.41]At the commencement of spring P. Scipio issued orders for the allied contingents to muster at Tarraco. He then launched his ships and led the fleet and transports to the mouth of the Ebro, where he had also ordered the legions to concentrate from their winter quarters. He then left Tarraco, with an allied contingent of 5000 men for the army. On his arrival he felt that he ought to address some words of encouragement to his men, especially to the veterans who had gone through such terrible disasters. He accordingly ordered a parade and addressed the troops in the following words: "No commander before my time, who was new to his troops, has been in a position to express well-deserved thanks to his men before he made use of their services. Fortune laid me under obligations to you before I saw my province or my camp, first because of the devoted affection you showed towards my father and my uncle during their lifetime and after their death, and then again, because of the courage with which you kept your hold on the province when it was apparently lost after their terrible defeat, and so retained it unimpaired for Rome and for me their successor. It must be our aim and object now with the help of heaven not so much to maintain our own footing in Spain as to prevent the Carthaginians from maintaining theirs. We must not remain stationary here, defending the bank of the Ebro against the enemy's passage of the river; we must cross over ourselves and shift the seat of war. To some of you at least, I fear that this plan may seem too large and bold when you remember the defeats we have lately sustained, and when you think of my youth. No man is less likely to forget those fatal battles in Spain than I am, for my father and my uncle were killed within thirty days of each other, so that my family was visited by one death upon another.

"But though I am almost heart-broken at the orphanhood and desolation of our house, the good fortune and courage of our race forbid me to despair of the State. It has been our lot and destiny to conquer in all great wars only after we have been defeated. Not to mention the earlier wars - Porsena and the Gauls and the Samnites - I will take these two Punic wars. How many fleets and generals and armies were lost in the first war! And what about this war? In all our defeats I was either present in person, or where I was not, I felt them

more keenly than any one. The Trebia, Lake Thrasymentus, Cannae - what are they but records of Roman consuls and their armies cut to pieces? Add to these the defection of Italy, of the greatest part of Sicily, of Sardinia, and then the crowning terror and panic - the Carthaginian camp pitched between the Anio and the walls of Rome, and the sight of the victorious Hannibal almost within our gates. In the midst of this utter collapse one thing stood unshaken and unimpaired, the courage of the Roman people; it and it alone raised up and sustained all that lay prostrate in the dust. You, my soldiers, under the conduct and auspices of my father were the first to retrieve the defeat of Cannae by barring the way to Hasdrubal when he was marching to the Alps and Italy. Had he joined forces with his brother the name of Rome would have perished; this success of yours held us up under those defeats. Now, by the goodness of heaven, everything is going in our favour; the situation in Italy and Sicily is becoming better and more hopeful day by day. In Sicily, Syracuse and Agrigentum have been captured, the enemy has been everywhere expelled and the whole of the island acknowledges the sovereignty of Rome. In Italy, Arpi has been recovered and Capua taken, Hannibal in his hurried flight has traversed the whole breadth of Italy from Rome to the furthest corners of Bruttium, and his one prayer is that he may be allowed to make a safe retreat and get away from the land of his enemies. At a time when one defeat followed close on the heels of another, and heaven itself seemed to be fighting on Hannibal's side, you, my soldiers, together with my two parents - let me honour them both with the same appellation - upheld in this country the tottering fortunes of Rome. What then can be more foolish than for you to fail in courage now when all is going on prosperously and happily there? As to recent events, I could wish that they had caused as little pain to me as to you.

"The immortal gods who watch over the fortunes of the dominions of Rome, and who moved the electors in their centuries to insist with one voice upon the supreme command being given to me - the gods, I say, are assuring us through auguries and auspices and even through visions of the night that all will go successfully and happily with us. My own heart too, hitherto my truest prophet, presages that Spain will be ours and that ere long all who bear the name of Carthage will be driven away from this soil and will cover sea and land in their shameful flight. What my breast thus divines is confirmed by solid

reasoning from facts. Owing to the maltreatment they have received their allies are sending envoys to us to appeal for protection. Their three generals are at variance, almost in active opposition to each other, and after breaking up their army into three separate divisions have marched away into different parts of the country. The same misfortune has overtaken them which was so disastrous to us, they are being deserted by their allies as we were by the Celtiberians, and the army which proved so fatal to my father and my uncle they have split up into separate bodies. Their domestic quarrel will not let them act in unison, and now that they are divided they will not be able to withstand us. Welcome, soldiers, the omen of the name I bear, be loyal to a Scipio who is the offspring of your late commander, the scion of a stock which has been cut down. Come on then, my veterans, and lead a new army and a new commander across the Ebro into the lands which you have so often traversed and where you have given so many proofs of your prowess and your courage. You recognise a likeness to my father and my uncle in figure, face, and expression, I will soon show you that I am like them also in character and fidelity and courage, so that each of you may say that the Scipio who was his old commander has either come to life again or reappeared in his son."

[26.42]After kindling the spirits of his men by this speech, he crossed the Ebro with 25,000 infantry and 2500 cavalry, leaving M. Silanus in charge of the country north of the Ebro with 3000 infantry and 300 cavalry. As the Carthaginian armies had all taken different routes, some of his staff urged him to attack the one which was nearest, but he thought that if he did that there would be a danger of their all concentrating against him, and he would be no match for the three together. He decided to begin with an attack on New Carthage, a city not only rich in its own resources, but also with the enemy's war-stores, their arms, their war-chest and hostages drawn from every part of Spain. It possessed an additional advantage in its situation, as it afforded a convenient base for the invasion of Africa, and commanded a harbour capable of holding any fleet however large, and, as far as I know, the only one of the kind on that part of the coast which abuts on our sea. No one knew of his intended march except C. Laelius, who was sent round with his fleet and instructed to regulate the pace of his vessels so that he might enter the harbour at the same time that the army showed itself. Seven days after leaving

the Ebro, the land and sea forces reached New Carthage simultaneously. The Roman camp was fixed opposite the north side of the city, and to guard against attacks from the rear was strengthened by a double rampart; the front was protected by the nature of the ground. The following is the situation of New Carthage. There is a bay about half-way down the coast of Spain, opening to the south-west and stretching inland about two-and-a-half miles. A small island at the mouth of the harbour forms a breakwater and shelters it from all winds, except those from the south-west. From the innermost part of the bay stretches a promontory on the slopes of which the city stands, surrounded on the east; and south by the sea. On the west it is enclosed by a shallow sheet of water which extends northward and varies in depth with the rise and fall of the tide. A neck of land about a quarter of a mile in length connects the city with the mainland. The Roman commander did not throw an earthwork across this isthmus, though it would have cost him very little trouble to do so; whether it was that he wished to impress the enemy with his confidence in his strength, or because he wished to have an unimpeded retirement in his frequent advances against the city.

[26.43]When the necessary intrenchments were completed he drew up the vessels in the harbour as though he were going to blockade the place by sea. Then he was rowed round the fleet and warned the captains to be careful in keeping a look-out by night, as an enemy when first besieged makes counter-attacks in all directions. On his return to camp he explained to his soldiers his plan of operations and his reasons for beginning the campaign with an attack upon a solitary city in preference to anything else. After they were mustered on parade he made the following speech to them: "Soldiers, if any one supposes that you have been brought here for the sole purpose of attacking this city, he is making more account of the work before you than of the advantage you will reap from it. You are going, it is true, to attack the walls of a single city, but in the capture of this one city you will have secured the whole of Spain. Here are the hostages taken from all the nobles and kings and tribes, and when once these are in your power, everything which the Carthaginians now hold will be given up to you. Here is the enemy's war-chest, without which they cannot keep up the war, seeing that they have to pay their mercenaries, and the money will be of the utmost service to us in

gaining over the barbarians. Here are their artillery, their armoury, the whole of their engines of war, which will at once provide you with all you want, and leave the enemy destitute of all he needs. And what is more, we shall become masters, not only of a most wealthy and beautiful city, but also of a most commodious harbour, from which all that is requisite for the purposes of war, both by sea and land, will be supplied. Great as our gains will be, the deprivations which the enemy suffers will be still greater. Here is their stronghold, their granary, their treasure, their arsenal - everything is stored here. Here is their direct route from Africa. This is their only naval base between the Pyrenees and Gades; from this Africa threatens the whole of Spain. But I see that you are all perfectly ready; let us pass over to the assault on New Carthage, with our full strength and a courage that knows no fear." The men all shouted with one voice, that they would carry out his orders, and he marched them up to the city. Then he ordered a general attack to be made by the army and the fleet.

[26.44]When Mago, the Carthaginian commander, saw that an attack was being prepared both by land and sea, he made the following disposition of his forces. Two thousand townsmen were posted in the direction of the Roman camp; the citadel was occupied by 500 soldiers; 500 more were stationed in the higher part of the city, towards the east. The rest of the townsmen were ordered to be in readiness to meet any sudden emergency and to hasten in whatever direction the shouting of the enemy might summon them. Then the gate was thrown open and those who had been drawn up in the street leading to their enemy's camp were sent forward. The Romans, at the direction of their general, retired a short distance in order to be nearer to the supports which were to be sent up. At first the lines stood confronting each other in equal strength; but as the successive reinforcements came up they not only turned the enemy to flight, but pressed upon them so closely as they fled in disorder that if the "retire" had not sounded they would in all probability have burst into the city pell-mell with the fugitives. The confusion and terror of the battlefield spread right through the city; many of the pickets fled from their stations panic-struck; the defenders of the walls leaped down the shortest way they could and deserted the fortifications. Scipio had taken his stand on an eminence which they called Mercury's Hill, and from here he became aware that the walls were in many places without defenders. He at once called out the whole force in the camp

to the attack, and ordered the scaling ladders to be brought up. Covered by the shields of three powerful young men - for missiles of every description were flying from the battlements - he went up close to the walls, encouraging his men, giving the necessary orders, and, what did most to stimulate their efforts, observing with his own eyes each man's courage or cowardice. So they rushed on, regardless of missiles and wounds, and neither the walls nor the men upon them could prevent them from striving who should be the first to mount. At the same time the ships commenced an attack upon that part of the city which faced the sea. Here, however, there was too much noise and confusion to admit of a regular assault, for what with bringing up the vessels and hauling out the scaling ladders, and clambering ashore as quickly as they could, the men only got in one another's way through their hurry and eagerness.

[26.45]Whilst this was going on the Carthaginian general had manned the walls with his regular soldiers, and they were amply supplied with missiles, great heaps of which had been stored in readiness. But neither the men, nor their missiles, nor anything else proved such a sure defence as the walls themselves. Very few of the ladders were long enough to reach to the top of the wall, and the longer the ladders the weaker they were. The consequence was that whilst each man who reached the top was unable to get on to the wall, the others who came up behind him were unable to advance and the ladder was broken by the mere weight of men. Some who were on ladders which stood the strain grew dizzy from the height and fell to the ground. As men and ladders were crashing down in all directions and the spirits and courage of the enemy were rising with their success, the signal was sounded for retiring. This led the besieged to hope that they would not only gain a respite from their hard and wearisome struggle for the time being, but would also be safe for the future, as they believed that the city could not be taken by escalade and storm, whilst the construction of siege works would be a difficult matter and would allow time for succours to be sent. The noise and tumult of this first attempt had hardly subsided when Scipio ordered fresh troops to take the ladders from those who were exhausted and wounded and make a more determined attack upon the city. He had ascertained from the fishermen of Tarraco, who were in the habit of crossing these waters in light skiffs and when these ran aground of wading ashore through the shallows, that it was easy at low water to

approach the walls on foot. It was now reported to him that the tide was on the ebb; and he at once took about 500 men with him and marched down to the water. It was about midday, and not only was the falling tide drawing the water seaward, but a strong northerly wind which had sprung up was driving it in the same direction, and the lagoon had become so shallow that in some places it was waist-deep and in others only reached to the knee. This state of things, which Scipio had ascertained by careful investigation and reasoning, he ascribed to the direct intervention of the gods, who he said were turning the sea into a highway for the Romans, and by withdrawing its waters were opening up a path which had never before been trodden by mortal feet. He bade his men follow the guidance of Neptune and make their way through the middle of the lagoon up to the walls.

[26.46] Those who were making the attack on the land side were in very great difficulties. Not only were they baffled by the height of the walls, but as they approached them they were open to showers of missiles on both hands, so that their sides were more exposed than their front. In the other direction, however, the 500 found their passage through the lake and their ascent from there to the foot of the walls an easy matter. No fortifications had been constructed on this side, as it was considered to be sufficiently protected by the lake and by the nature of the ground, nor were there any outposts or pickets on guard against any attack, as all were intent on rendering assistance where danger was actually visible. They entered the city without meeting any opposition, and at once marched full speed to the gate round which all the fighting had gathered. All had their attention absorbed in the struggle; even the eyes and ears of the combatants, as of those who were watching and cheering them on, were so riveted on the fighting that not a single man was aware that the city behind him was captured until the missiles began to fall upon them from the rear. Now that they had the enemy in front and rear they gave up the defence, the walls were seized, the gate was battered from both sides, smashed to pieces, and carried out of the way to allow a free passage to the troops. A large number surmounted the walls and inflicted heavy slaughter on the townsmen, but those who entered through the gate marched in unbroken ranks through the heart of the city into the forum. From this point Scipio saw the enemy retreating in two directions; one body was making for a hill to the

east of the city, which was being held by a detachment of 500 men; the others were going to the citadel where Mago, together with the men who had been driven from the walls, had taken refuge. Sending a force to storm the hill, he led the rest of his troops against the citadel. The hill was taken at the first charge, and Mago, seeing that the whole of the city was in occupation of the enemy, and that his own position was hopeless, surrendered the citadel and its defenders. Until the citadel was surrendered the carnage went on everywhere throughout the city, no adult male who was met with was spared, but on its surrender the signal was given and an end put to the slaughter. The victors then turned their attention to the plunder, of which there was a vast amount of every kind.

[26.47]As many as 10,000 freemen were made prisoners. Those who were citizens were set free and Scipio gave them back their city and all the property which the war had left them. There were some 2000 artisans; these Scipio allotted to the public service, and held out to them hopes of recovering their liberty if they did their best in the tasks which the war demanded. The rest of the able-bodied population and the sturdiest of the slaves he assigned to the fleet to make up the complement of rowers. He also augmented his fleet by five vessels which he had seized. Besides all this population there were the Spanish hostages; these he treated with as much consideration as though they had been children of the allies of Rome. An enormous amount of munitions of war was also secured; 120 catapults of the largest size and 281 smaller ones, 23 of the heavier ballistae and 52 lighter ones, together with an immense number of scorpions of various calibre, as well as missiles and other arms. 73 military standards were also captured. A vast quantity of gold and silver was brought to the general, including 287 golden bowls, almost all of which were at least a pound in weight, 18,300 pounds of silver plate and coinage, the former comprising a large number of vessels. This was all weighed and counted and then made over to the quaestor C. Flaminius, as were also 10,000 bushels of wheat and 270 pecks of barley. In the harbour 63 transports were captured, some of them with their cargoes of corn and arms, as well as bronze, iron, sails, esparto grass, and other articles required for the fleet. Amidst such an enormous supply of military and naval stores, the actual city itself was regarded as the least important capture of all.

[26.48] Leaving C. Laelius with the marines in charge of the city, Scipio led his legions the same day back into camp. They were well-nigh worn out; they had fought in the open field, had undergone much toil and danger in the capture of the city, and after capturing it had sustained a conflict on unfavourable ground with those who had taken refuge in the citadel. So he gave them one day's respite from all military duties and ordered them to seek refreshment and rest. The next day he issued orders for all the soldiers and marines to appear on parade that he might address them. First he offered up a thanksgiving to the immortal gods because they had not only made him master in a single day of the wealthiest city in all Spain, but had also brought together beforehand into the place all the resources of Africa and Spain, so that whilst nothing was left to the enemy he and his men had a superabundance of everything. Then he praised the courage of his troops, whom, he said, nothing had daunted, neither the sortie of the enemy, nor the height of the walls, nor the untried depth of the lagoon, nor the fort on the hill, nor the unusual strength of the citadel. Nothing had prevented them from surmounting every obstacle and forcing their way everywhere. Though every man amongst them deserved all the rewards he could give, the glory of the mural crown belonged especially to him who was the first to scale the wall, and the man who considered that he deserved it should claim it.

Two men came forward, Q. Tiberilius, a centurion of the fourth legion, and Sextus Digitius, one of the marines. The contention between them was not so heated as the excitement with which each body advocated the claim of its own representative. C. Laelius, the commander of the fleet, supported the marine, M. Sempronius Tuditanus took the part of his legionaries. As the dispute was almost becoming a mutiny, Scipio announced that he would allow three arbitrators to be named who should investigate the case and take evidence and give their decision as to which had been the first to scale the wall and enter the town. C. Laelius and M. Sempronius were named by their respective parties, and Scipio added the name of P. Cornelius Caudinus, who belonged to neither party, and bade the three sit at once and try the case judicially. As they proceeded, the dispute became hotter than ever, for the two men whose dignity and authority had helped to restrain the excitement were now withdrawn to the tribunal. At last Laelius left his colleagues and stepped down in front of the tribunal to Scipio and pointed out to him that the

proceedings were being carried on in defiance of all order and self-restraint, and the men were almost coming to blows. And even if there were no resort to violence the precedent that was being set was none the less detestable, since men were trying to win the reward of valour by falsehood and perjury. On the one side were the soldiers of the legion, on the other those of the fleet, all alike ready to swear by all the gods to what they wanted rather than to what they knew to be true, and prepared to involve in the guilt of perjury not themselves only, but the military standards, the eagles and their solemn oath of allegiance. Laelius added that he was making these representations to him at the wish of P. Cornelius and M. Sempronius. Scipio approved of the step Laelius had taken and summoned the troops to assembly. He then announced that he had definitely ascertained that Q. Tiberilius and Sextius Digitius had both surmounted the wall at the same moment, and he should honour their bravery by presenting them each with a mural crown. Then he bestowed rewards upon the rest according to each man's merit. C. Laelius, the commander of the fleet, was singled out for special distinction, and in the praises which he lavished upon him he placed him on an equality with himself, finally presenting him with a golden crown and thirty oxen.

[26.49]After this he ordered the hostages from the various Spanish states to be summoned into his presence. It is difficult to give their number, for I find in one place 300 mentioned and in another 3724. There is a similar discrepancy amongst the authorities on other points. One author asserts that the Carthaginian garrison amounted to 10,000 men, another puts it at 7000, whilst a third estimates it as not more than 2000. In one place you will find that there were 10,000 prisoners, in another the number is said to have exceeded 25,000. If I followed the Greek author Silenus I should give the number of scorpions large and small as 60; according to Valerius Antias there were 6000 large ones and 13,000 small ones; so wildly do men invent. It is even a matter of dispute who were in command. Most authorities agree that Laelius was in command of the fleet, but there are some who say that it was M. Junius Silanus. Antias tells us that Arines was the Carthaginian commandant when the garrison surrendered, other writers say it was Mago. Nor are authors agreed as to the number of ships that were captured, or the weight of gold and silver, or the amount of money that was brought into the treasury. If we are to make a choice, the numbers midway between these extremes are

probably nearest the truth. When the hostages appeared Scipio began by reassuring them and dispelling their fears. They had, he told them, passed under the power of Rome, and the Romans preferred to hold men by the bonds of kindness rather than by those of fear. They would rather have foreign nations united to them on terms of alliance and mutual good faith than kept down in hard and hopeless servitude. He then ascertained the names of the States from which they came and made an inventory of the number belonging to each State. Messengers were then despatched to their homes, bidding their friends to come and take charge of those who belonged to them - where envoys from any of these States happened to be present he restored their own relations to them on the spot; the care of the rest he entrusted to C. Flaminius the quaestor, with injunctions to show them all kindness and protection. Whilst he was thus engaged a high-born lady, wife of Mandonius the brother of Indibilis, chief of the Iltergetes, came forward from the crowd of hostages and flinging herself in tears at the general's feet implored him to impress more strongly on their guards the duty of treating the women with tenderness and consideration. Scipio assured her that nothing would be wanting in this respect. Then she continued: "We do not set great store on those things, for what is there that is not good enough for the condition that we are in? I am too old to fear the injury to which our sex is exposed, but it is for others that I am anxious as I look at these young girls." Round her stood the daughters of Indibilis and other maidens of equal rank in the flower of their youthful beauty, and they all looked up to her as a mother. Scipio replied: "For the sake of the discipline which I in common with all Romans uphold, I should take care that nothing which is anywhere held sacred be violated amongst us; your virtue and nobility of soul, which even in misfortune is not forgetful of matronly decorum, make me now still more careful in this matter." He then delivered them into the charge of a man of tried integrity, with strict injunctions to protect their innocence and modesty as carefully as though they were the wives and mothers of his own guests.

[26.50] Soon afterwards an adult maiden who had been captured was brought to him by the soldiers, a girl of such exceptional beauty that she attracted the eyes of all wherever she moved. On enquiring as to her country and parentage, Scipio learnt, amongst other things, that she had been betrothed to a young Celtiberian noble named Aluccius.

He at once sent for her parents and also for her betrothed, who, he learnt, was pining to death through love of her. On the arrival of the latter Scipio addressed him in more studied terms than a father would use. "A young man myself," he said, "I am addressing myself to a young man, so we may lay aside all reserve. When your betrothed had been taken by my soldiers and brought to me, I was informed that she was very dear to you, and her beauty made me believe it. Were I allowed the pleasures suitable to my age, especially those of chaste and lawful love, instead of being preoccupied with affairs of state, I should wish that I might be forgiven for loving too ardently. Now I have the power to indulge another's love, namely yours. Your betrothed has received the same respectful treatment since she has been in my power that she would have met with from her own parents. She has been reserved for you, in order that she might be given to you as a gift inviolate and worthy of us both. In return for that boon I stipulate for this one reward - that you will be a friend to Rome. If you believe me to be an upright and honourable man such as the nations here found my father and uncle to be, you may rest assured that there are many in Rome like us, and you may be perfectly certain that nowhere in the world can any people be named whom you would less wish to have as a foe to you and yours, or whom you would more desire as a friend."

The young man was overcome with bashfulness and joy. He grasped Scipio's hand, and besought all the gods to recompense him, for it was quite impossible for him to make any return adequate to his own feelings, or the kindness Scipio had shown him. Then the girl's parents and relatives were called. They had brought a large amount of gold for her ransom, and when she was freely given back to them, they begged Scipio to accept it as a gift from them; his doing so, they declared, would evoke as much gratitude as the restoration of the maiden unhurt. As they urged their request with great importunity, Scipio said that he would accept it, and ordered it to be laid at his feet. Calling Aluccius, he said to him: "In addition to the dowry which you are to receive from your future father-in-law you will now receive this from me as a wedding present." He then told him to take up the gold and keep it. Delighted with the present and the honourable treatment he had received, the young man resumed home, and filled the ears of his countrymen with justly-earned praises of Scipio. A young man had come among them, he declared, in all ways like the

gods, winning his way everywhere by his generosity and goodness of heart as much as by the might of his arms. He began to enlist a body of his retainers, and in a few days returned to Scipio with a picked force of 1400 mounted men.

[26.51] Scipio kept Laelius with him to advise as to the disposal of the prisoners, the hostages and the booty, and when all had been arranged, he assigned him one of the captured quinqueremes, and placing on board Mago and some fifteen senators who had been made prisoners with him, he sent Laelius to Rome to report his victory. He had himself decided to spend a few days in New Carthage, and he employed this time in exercising his military and naval forces. On the first day the legions, fully equipped, went through various evolutions over a space of four miles; the second day was employed in rubbing up and sharpening their weapons in front of their tents; the third day they engaged in regular battle. practice with single-sticks and darts, the points of which were muffled with balls of cork or lead; the fourth day they rested, and on the fifth they were again exercised under arms. This alternation of exercise and rest was kept up as long as they remained in Carthage. The rowers and marines put out to sea when the weather was calm and tested the speed and handiness of their ships in a sham fight. These maneuvers going on outside the city on land and sea sharpened the men both physically and mentally for war; the city itself resounded with the din of warlike constructions carried on by the artisans of every kind who were kept together in the Government workshops. The general devoted his attention equally to everything. At one time he was present with the fleet watching a naval encounter; at another he was exercising his legions; then he would be giving some hours to an inspection of the work which was going on in the shops and in the arsenal and dockyards, where the vast number of artisans were vying with each other as to who could work the hardest. After starting these various undertakings and seeing that the damaged portions of the walls were repaired, he started for Tarraco, leaving a detachment in the city for its protection. On his way he was met by numerous delegations; some of them he dismissed, after giving his reply while still on the march; others he put off till he reached Tarraco, where he had given notice to all the allies, old and new, to meet him. Almost all the tribes south of the Ebro obeyed the summons, as did many also from the northern province. The Carthaginian generals did their

best to suppress any rumours of the fall of New Carthage, then when the facts came out too clearly to be either suppressed or perverted, they tried to minimise its importance. It was by a sudden ruse, almost by stealth, they said, that one city out of the whole of Spain had been filched from them in a single day; a young swaggerer elated with this trifling success had in the intoxication of his delight made believe that it was a great victory. But when he learnt that three generals and three victorious armies were bearing down upon him he would be painfully reminded of the deaths which had already visited his family. This was what they told people generally, but they themselves were perfectly aware how much their strength was in every way weakened by the loss of New Carthage.

BOOK 27: SCIPIO IN SPAIN

[27.1]Such was the position of affairs in Spain. In Italy the consul Marcellus recovered Salapia, which was betrayed to him, and gained forcible possession of two places belonging to the Samnites - Marmoreae and Heles. 3000 of Hannibal's troops who had been left to garrison these towns were destroyed. The plunder, of which there was a considerable quantity, was given to the soldiers; 60,000 bushels of wheat and 28,000 of barley were also found there. The satisfaction derived from this success was, however, more than counterbalanced by a defeat which was sustained a few days later not far from Herdonea. This city had revolted from Rome after the disaster of Cannae, and Cn. Fulvius, the proconsul, was encamped before it in the hope of recovering it. He had chosen a position for his camp which was not sufficiently protected, and the camp itself was not in a proper state of defence. Naturally a careless general, he was still less cautious now that he had reason to hope that the inhabitants were weakening in their allegiance to the Carthaginians, since the news had reached them of Hannibal's withdrawal into Bruttium after losing Salapia. This was all duly reported to Hannibal by emissaries from Herdonea, and the intelligence made him anxious to save a friendly city and at the same time hopeful of catching his enemy when off his guard. In order to forestall any rumours of his approach he proceeded to Herdonea by forced marches, and as he approached the place he formed his men in battle order with the view of intimidating the enemy. The Roman commander - his equal in courage, but far inferior to him in tactical skill and in numbers - hastily formed his

line and engaged. The action was begun most vigorously by the fifth legion and the allies on the left wing. Hannibal, however, had instructed his cavalry to wait until the attention of the infantry was completely taken up with the battle and then to ride round the lines; one division to attack the Roman camp, the other the rear of the Roman line. He told his staff that he had defeated a Cn. Fulvius, a praetor, on the same ground two years before, and as the names were the same, so the result of the fight would be the same. His anticipations were realised, for after the lines had closed and many of the Romans had fallen in the hand-to-hand fighting, though the ranks still held their ground with the standards, the tumultuous cavalry charge in the rear threw into disorder first the sixth legion stationed in the second line, and then, as the Numidians pressed on, the fifth legion and finally the front ranks with their standards. Some were scattered in flight, others were cut down between the two bodies of assailants. It was here that Cn. Fulvius fell together with eleven military tribunes. As to the number of those killed, who could definitely state it, when I find in one author the number given as 13,000, in another not more than 7000? The victor took possession of the camp and its spoil. As he learnt that Herdonea was prepared to go over to the Romans and would not remain faithful after his withdrawal, he transported the whole population to Metapontum and Thurii and burnt the place. Its leading citizens who were discovered to have held secret conferences with Fulvius were put to death. Those Romans who escaped from the fatal field fled by various routes, almost wholly weaponless, to Marcellus in Samnium.

[27.2]Marcellus was not particularly disturbed by this serious disaster. He sent a despatch to the senate informing them of the loss of the general and his army at Herdonea and adding that he himself was the same Marcellus who had beaten Hannibal when flushed with his victory at Cannae, that he intended to meet him and would soon put an end to any pleasure he might feel at his recent success. In Rome itself there was great mourning for what had happened and great apprehension as to what might happen in the future. The consul marched out of Samnium and advanced as far as Numistro in Lucania. Here he encamped on level ground in full view of Hannibal, who was occupying a hill. To show the confidence he felt, he was the first to offer battle, and when Hannibal saw the standards emerging from the gates of the camp, he did not decline the challenge. They

formed their lines so that the Carthaginian rested his right on the hill, while the Roman left was protected by the town. The troops who were first engaged were, on the Roman side, the first legion and the right wing of the allies; those under Hannibal comprised the Spanish infantry and the Balearic slingers. When the action had commenced the elephants were driven on to the field. The contest was prolonged from the third hour of the day until nightfall, and when the front lines were worn out, the third legion relieved the first and the left wing of the allies took the place of the right. Fresh troops also came into action on the other side, with the result that instead of a spiritless and exhausted struggle a fierce fight broke out anew between men who were fresh in mind and body. Night, however, separated the combatants whilst the victory was yet undecided." The following day the Romans remained under arms from sunrise till well on in the day, ready to renew the contest. But as no enemy showed himself, they began to gather the spoils of the field, and after collecting the bodies of the slain into one heap, they burnt them. Hannibal broke up his camp quietly at night and withdrew into Apulia. When daylight revealed the enemies' flight, Marcellus made up his mind to follow in his track. He left the wounded with a small guard at Numistro under the charge of L. Furius Purpurio, one of his military tribunes, and came up with Hannibal at Venusia. Here for some days there were skirmishes between the outposts and slight actions in which both cavalry and infantry took part, but no regular battle. In nearly every case the Romans had the advantage. Both armies traversed Apulia without fighting any important action, Hannibal marching by night always on the look-out for a chance of surprise or ambush, Marcellus never moving but in daylight, and then only after careful reconnoitring.

[27.3]At Capua, in the meantime, Flaccus was occupied with the sale of the property of the principal citizens and the farming of the revenues from that part of the territory which had become Roman domain-land; the impost being paid in corn. As though there was never to be wanting some reason or other for treating the Capuans with severity, disclosures were made of a fresh crime which had been hatched in secret. Fulvius had moved his men out of the houses in Capua, partly through fear lest his army should be demoralised by the attractions of the city, as Hannibal's had been, and partly that there might be houses to go with the land which was being let. The troops

were ordered to construct military huts just outside the walls and gates. Most of these they made of wattle or planking; some used plaited osiers and covered them with straw, as though deliberately designing them to feed a conflagration. One hundred and seventy Capuans with the brothers Blossius at their head formed a plot to set fire to all these huts simultaneously in the night. Some slaves belonging to the Blossian household betrayed the secret. On receiving the information the proconsul at once ordered the gates to be shut and the troops to arm. All those involved in the crime were arrested, examined under torture, found guilty, and summarily executed. The informers received their freedom and 10,000 ases each. The people of Nuceria and Acerrae having complained that they had nowhere to live, as Acerrae was partly destroyed by fire and Nuceria completely demolished, Fulvius sent them to Rome to appear before the senate. Permission was given to the Acerrans to rebuild those houses which had been burnt, and as the people of Nuceria had expressed their desire to settle at Atella, the Atellans were ordered to remove to Calatia. In spite of the many important incidents, some favourable, some unfavourable, which were occupying the public attention, the citadel of Tarentum was not lost sight of. M. Ogulnius and P. Aquilius were appointed commissioners for the purchase of corn in Etruria, and a force of 1000 men drawn from the home army, with an equal number from the allied contingents, conveyed it to Tarentum.

[27.4]The summer was now drawing to a close, and the date of the consular elections was near at hand. Marcellus wrote to say that it would be against the interests of the republic to lose touch with Hannibal, as he was being pressed steadily back, and avoided anything like a battle. The senate were reluctant to recall him just when he was most effectively employed; at the same time they were anxious lest there should be no consuls for the coming year. They decided that the best course would be to recall the consul Valerius from Sicily, though he was outside the borders of Italy. The senate instructed L. Manlius the City praetor to write to him to that effect, and at the same time to send on the despatch from M. Marcellus that he might understand the reason for the senate recalling him rather than his colleague from his province. It was about this time that envoys from King Syphax came to Rome. They enumerated the successful battles which the king had fought against the

Carthaginians, and declared that there was no people to whom he was a more uncompromising foe than the people of Carthage, and none towards whom he felt more friendly than the people of Rome. He had already sent envoys to the two Scipios in Spain, now he wished to ask for the friendship of Rome from the fountain-head. The senate not only gave the envoys a gracious reply, but they in their turn sent envoys and presents to the king - the men selected for the mission being L. Genucius, P. Poetelius, and P. Popillius. The presents they took with them were a purple toga and a purple tunic, an ivory chair and a golden bowl weighing five pounds. After their visit to Syphax they were commissioned to visit other petty kings in Africa and carry as a present to each of them a toga praetexta and a golden bowl, three pounds in weight. M. Atilius and Manlius Acilius were also despatched to Alexandria, to Ptolemy and Cleopatra, to remind them of the alliance already existing, and to renew the friendly relations with Rome. The presents they carried to the king were a purple toga and a purple tunic and an ivory chair; to the queen they gave an embroidered palla and a purple cloak. During the summer in which these incidents occurred numerous portents were reported from the neighbouring cities and country districts. A lamb is said to have been yeaned at Tusculum with its udder full of milk; the summit of the temple of Jupiter was struck by lightning and nearly the whole of the roof stripped off; the ground in front of the gate of Anagnia was similarly struck almost at the same time and continued burning for a day and a night without anything to feed the fire; at Anagnia Compitum the birds had deserted their nests in the grove of Diana; at Tarracina snakes of an extraordinary size leaped out of the sea like sporting fishes close to the harbour; at Tarquinii a pig had been farrowed with the face of a man; in the district of Capena four statues near the Grove of Feronia had sweated blood for a day and a night. The pontiffs decreed that these portents should be expiated by the sacrifice of oxen; a day was appointed for solemn intercessions to be offered up at all the shrines in Rome, and on the following day similar intercessions were to be offered in Campania, at the grove of Feronia.

[27.5] On receiving his letter of recall the consul M. Valerius handed over the army and the administration of the province to the praetor Cincius, and gave instructions to M. Valerius Messala, the commander of the fleet, to sail with a part of his force to Africa and harry the coast and at the same time find out what he could about

the plans and preparations of Carthage. Then he left with ten vessels for Rome, which he reached after a good voyage. Immediately on his arrival he summoned a meeting of the senate and laid before them a report of his administration. For nearly sixty years, he said, Sicily had been the scene of war both by land and sea, and the Romans had suffered many serious defeats there. Now he had completely reduced the province, there was not a Carthaginian in the island, nor was there a single Sicilian amongst those who had been driven away who had not now returned. They had all been repatriated, and were settled in their own cities and ploughing their own fields. Once more the desolated land was under tillage, the land which enriched its cultivators with its produce and formed an unfailing bulwark against scarcity for Rome in times of war and peace, alike. When the consul had addressed the senate, Muttines and others who had done good service to Rome were introduced, and the promises which the consul had made were redeemed by the bestowal of honours and rewards upon them. A resolution was carried in the Assembly, with the sanction of the senate, conferring the full Roman citizenship on Muttines. M. Valerius, meanwhile, having reached the African shore with his fifty ships before daybreak, made a sudden descent on the territory of Utica. Extending his depredations far and wide he secured plunder of every kind including a large number of prisoners. With these spoils he returned to his ships and sailed back to Sicily, entering the port of Lilybaeum, within a fortnight of his departure. The prisoners were subjected to a close examination, and the following facts were elicited and duly forwarded to Laevinus that he might understand the position in Africa: 5000 Numidians were at Carthage with Gala's son, Masinissa, a young man of great energy and enterprise; other mercenary troops were being raised throughout Africa to be sent over to Spain to reinforce Hasdrubal, so that he might have as large a force as possible with which to cross over into Italy and join his brother, Hannibal. The Carthaginians, believed that in adopting this plan they were sure of victory. In addition to these preparations an immense fleet was being fitted out to recover Sicily, and it was expected to appear off the island in a short time.

The consul communicated this intelligence to the senate, and they were so impressed by its importance that they thought the consul ought not to wait for the elections, but return at once to his province after naming a Dictator to preside over the elections. Matters were

delayed somewhat by the debate which followed. The consul said that when he reached Sicily he would nominate M. Valerius Messalla, who was at that time commanding the fleet, as Dictator; the senators on the other hand asserted that no one who was outside Roman soil, i.e., who was beyond the frontiers of Italy, could be nominated Dictator: M. Lucretius, one of the tribunes of the plebs, took the sense of the House upon the question, and the senate made a decree, requiring the consul, previously to his departure from the City, to put the question to the people, whom they wished to have nominated Dictator, and then to nominate the man whom the people had chosen. If the consul declined to do this, then the praetor was to put the question, and if he refused, then the tribunes were to bring the matter before the people. As the consul refused to submit to the people what was within his own rights, and had inhibited the praetor from doing so either, it fell to the tribunes to put the question, and the plebs resolved that Q. Fulvius, who was then at Capua, should be nominated. But the day before the Assembly met, the consul left secretly in the night for Sicily, and the senate, thus left in the lurch, ordered a despatch to be sent to Marcellus, urging him to come to the aid of the Commonwealth which his colleague had deserted, and nominate the man whom the people had resolved to have as Dictator. Q. Fulvius was accordingly nominated Dictator by the consul M. Claudius, and under the same resolution of the plebs P. Licinius Crassus, the Pontifex Maximus, was named by Q. Fulvius as his Master of the Horse.

[27.6]On the Dictator's arrival in Rome he sent C. Sempronius Blaesus, who had been his second in command in Capua, to the army in Etruria, to relieve C. Calpurnius, to whom he had sent written instructions to take over the command of his own army at Capua. He fixed the earliest possible date for the elections, but they could not be closed owing to a difference between the tribunes and the Dictator. The junior century of the Galerian tribe had obtained the first place in the order of voting, and they had declared for Q. Fulvius and Q. Fabius. The other centuries, summoned in their order, would have gone the same way, had not two of the tribunes of the plebs - Caius Arrenius and his brother Lucius - intervened. They said that it was infringing the rights of his fellow-citizens for a magistrate to extend his period of office, and it was a still greater offence for the man who was conducting the elections to allow himself to be elected.

If, therefore, the Dictator accepted votes for himself, they should place their veto on the proceedings, but if the names of any others than himself were put up, they would not stop the election. The Dictator defended the procedure by alleging the authority of the senate and a resolution of the Assembly as precedents. "When Cneius Servilius," he said, "was consul and the other consul had fallen in battle at Lake Thrasymentus, this question was referred by authority of the senate to the plebs, and they passed a resolution that as long as there was war in Italy the people had the right to reappoint as consuls, any who had been consuls, as often as they pleased. I have an old precedent for my action in this instance in the case of L. Postumius Megellus, who was elected consul together with C. Junius Bubulcus at the very election over which he was presiding as interrex, and a recent one in the case of Q. Fabius Maximus, who would certainly never have allowed himself to be re-elected if it had not been in the interest of the State."

A long discussion followed, and at last an agreement was come to between the Dictator and the tribunes that they would abide by the opinion of the senate. In view of the critical position of the State, the senate saw that the conduct of affairs ought to be in the hands of old and tried men of ability and experience in war, and that there ought to be no delay in the elections. The tribunes gave way and the elections were held. Q. Fabius Maximus was returned as consul for the fifth time, and Q. Fulvius Flaccus for the fourth time. The elections of praetors followed, the successful candidates being: L. Veturius Philo, T. Quinctius Crispinus, C. Hostilius Tubulus and C. Aurunculeius. As soon as the magistrates were appointed for the year, Q. Fulvius laid down his office. At the close of this summer a Carthaginian fleet of forty vessels under the command of Hamilcar sailed across to Sardinia and laid waste the territory of Olbia. On the appearance of the praetor P. Manlius Volso with his army, they sailed round to the other side of the island and devastated the district of Caralita, after which they returned to Africa with every description of plunder. Several Roman priests died this year and others were appointed in their place. C. Servilius was made pontiff in place of T. Otacilius Crassus. Tiberius Sempronius Longus, son of Tiberius, was appointed augur in place of T. Otacilius Crassus, Tiberius Sempronius Longus, son of Tiberius, was similarly appointed one of the Keepers of the Sacred Books in place of Ti. Sempronius Longus,

son of Tiberius. The deaths took place also of M. Marcius, the Rex Sacrorum, and M. Aemilius Papus, the Curio Maximus; these vacancies were not filled up during the year. The censors appointed this year were L. Veturius Philo and P. Licinius Crassus, the Pontifex Maximus. Licinius Crassus had not been either consul or praetor before he was made censor, he went straight from the aedileship to the censorship. These censors, however, did not revise the roll of senators, nor did they transact any public business whatever; the death of L. Veturius put an end to their censorship, for Licinius at once resigned office. The curule aediles, L. Veturius and P. Licinius Varus, celebrated the Roman Games for one day. The plebeian aediles, Q. Catius and L. Porcius Licinius, devoted the money derived from fines to the casting of bronze statues for the temple of Ceres; they also celebrated the Plebeian Games with great splendour, considering the resources available at the time.

[27.7]At the close of the year C. Laelius arrived in Rome, thirty-four days after leaving Tarraco. His entrance into the City with his train of prisoners was watched by a great crowd of spectators. The next day he appeared before the senate and reported that Carthage, the capital city of Spain, had been captured in a single day, whilst several revolted cities had been recovered and new ones received into alliance. The information gained from the prisoners tallied with that conveyed in the despatches of M. Valerius Messalla. What produced the greatest impression on the senate was the threatened march of Hasdrubal into Italy, which could hardly hold its ground against Hannibal and his arms. When Laelius was brought before the Assembly he repeated the statements already made in the senate. A day of solemn thanksgiving for P. Scipio's victories was decreed, and C. Laelius was ordered to return as soon as possible to Spain with the ships he had brought over. Following many authorities, I have referred the capture of New Carthage to this year, though I am quite aware that some writers place it in the following year. This, however, appears improbable, as Scipio could hardly have spent a whole year in Spain without doing anything. The new consuls entered office on March 15th, and on the same day the senate assigned them their province. They were both to command in Italy; Tarentum was to be the objective for Fabius; Fulvius was to operate in Lucania and Bruttium. M. Claudius Marcellus had his command extended for a year. The praetors balloted for their provinces; C. Hostilius Tubulus

obtained the City jurisdiction; L. Venturius Philo the alien jurisdiction together with Gaul; Capua fell to T. Quinctius Crispinus, and Sardinia to C. Aurunculeius. The following was the distribution of the armies. The two legions which M. Valerius Laevinus had in Sicily were assigned to Fulvius, those which C. Calpurnius had commanded in Etruria were transferred to Q. Fabius; C. Calpurnius was to remain in Etruria and the City force was to form his command; T. Quinctius was to retain the army which Quintus Fulvius had had; C. Hostilius was to take over his province and army from the *propraetor* C. Laetorius who was at the time at Ariminum. The legions who had been serving with the consul were assigned to M. Marcellus. M. Valerius and L. Cincius had their term in Sicily extended, and the army of Cannae was placed under their command; they were required to bring it up to full strength out of any that remained of Cn. Fulvius' legions. These were hunted up and sent by the consuls into Sicily, where they were subjected to the same humiliating conditions as the defeated of Cannae and those belonging to Cn. Fulvius' army who had already been sent to Sicily as a punishment by the senate. The legions with which P. Manlius Vulso had held Sardinia were placed under C. Aurunculeius and remained in the island. P. Sulpicius retained his command for another year with instructions to employ the same legion and fleet against Macedonia which he had previously had. Orders were issued for thirty *quinqueremes* to be despatched from Sicily to the consul at Tarentum, the rest of the fleet was to sail to Africa and ravage the coast, under the command of M. Valerius Laevinus, or if he did not go himself he was to send either L. Cincius or M. Valerius Messalla. There were no changes in Spain except that Scipio and Silanus had their commands extended, not for a year but until such time as they should be recalled by the senate. Such were the distribution of the provinces and the military commands for the year.

[27.8] While the public attention was fixed on more important matters an old controversy was revived on the occasion of the election of a Curio Maximus, in place of M. Aemilius. There was one candidate, a plebeian, C. Mamilius Atellus, and the patricians contended that no votes ought to be counted for him, as none but a patrician had ever yet held that dignity. The tribunes, on being appealed to, referred the matter to the senate, the senate left it to the decision of the people. C. Mamilius Atellus was accordingly the first plebeian to be elected

Curio Maximus. P. Licinius, the Pontifex Maximus, compelled C. Valerius Flaccus to be consecrated, against his will, a Flamen of Jupiter. C. Laetorius was appointed one of the Keepers of the Sacred Books in place of Q. Mucius Scaevola, deceased. Had not the bad repute into which Valerius had fallen given place to a good and honourable character, I should have preferred to keep silence as to the cause of his forcible consecration. It was in consequence of his careless and dissolute life as a young man, which had estranged his own brother Lucius and his other relations, that the Pontifex Maximus made him a Flamen. When his thoughts became wholly occupied with the performance of his sacred duties he threw off his former character so completely that amongst all the young men in Rome, none held a higher place in the esteem and approbation of the leading patricians, whether personal friends or strangers to him. Encouraged by this general feeling he gained sufficient self-confidence to revive a custom which, owing to the low character of former Flamens, had long fallen into disuse; he took his seat in the senate. As soon as he appeared L. Licinius the praetor had him removed. He claimed it as the ancient privilege of the priesthood and pleaded that it was conferred together with the toga praetexta and curule chair as belonging to the Flamen's office. The praetor refused to rest the question upon obsolete precedents drawn from the annalists and appealed to recent usage. No Flamen of Jupiter, he argued, had exercised that right within the memory of their fathers or their grandfathers. The tribunes, when appealed to, gave it as their opinion that as it was through the supineness and negligence of individual Flamens that the practice had fallen into abeyance, the priesthood ought not to be deprived of its rights. They led the Flamen into the senate amid the warm approval of the House and without any opposition even from the praetor, though every one felt that Flaccus had gained his seat more through the purity and integrity of his life than through any right inherent in his office.

Before the consuls left for their provinces they raised two legions in the City to supply the necessary drafts for the armies. The old City army was made over by the consul Fulvius to his brother Caius for service in Etruria, the legions which were in Etruria being sent to Rome. The consul Fabius ordered his son Quintus to take to M. Valerius, the proconsul in Sicily, the remains, so far as they had been got together, of the army of Fulvius. They amounted to 4344 men.

He was at the same time to receive from the proconsul two legions and thirty quinqueremes. The withdrawal of these legions from the island did not weaken the occupying force in either numbers or efficiency, for besides the two old legions which had now been brought up to full strength, the proconsul had a large body of Numidian deserters, mounted and unmounted, and he also enlisted those Sicilians who had served with Epicydes and the Carthaginians, and were seasoned soldiers. By strengthening each of the Roman legions with these foreign auxiliaries he gave them the appearance of two complete armies. One of these he placed under L. Cincius, for the protection of that part of the island which had constituted the kingdom of Hiero; the other he retained under his own command for the defence of the rest of Sicily. He also broke up his fleet of seventy ships so as to make it available for the defence of the entire coast-line of the island. Escorted by Muttines' cavalry he made a tour of the island in order to inspect the land and note which parts were cultivated and which were uncultivated, and commend or rebuke the owners accordingly. Owing to his care and attention there was so large a yield of corn that he was able to send some to Rome, and also accumulate a store at Catina to furnish supplies for the army which was to pass the summer at Tarentum.

[27.9]The deportation of the soldiers to Sicily, most of whom belonged to the Latin and the allied nationalities, very nearly caused a great rising; so often do small occasions involve serious consequences. Meetings were held amongst the Latins and the allied communities in which they complained loudly that for ten years they had been drained by levies and war-taxes; every year they fought only to sustain a great defeat, those who were not killed in battle were carried off by sickness. A fellow-citizen who was enlisted by the Romans was more lost to them than one who had been made prisoner by the Carthaginians, for the latter was sent back to his home without ransom, the former was sent out of Italy into what was really exile rather than military service. There the men who had fought at Cannae had been for eight years wearing out their lives, and there they would die before the enemy, who had never been stronger than he was today, quitted Italian soil. If the old soldiers were not to return, and fresh ones were always being enlisted, there would soon be nobody left. They would be compelled therefore, before they reached the last stage of depopulation and famine, to refuse to Rome

what the necessities of their situation would very soon make it impossible to grant. If the Romans saw that this was the unanimous determination of their allies, they would assuredly begin to think about making peace with Carthage. Otherwise Italy would never be free from war as long as Hannibal was alive. Such was the general tone of the meetings. There were at the time thirty colonies belonging to Rome. Twelve of these announced to the consuls through their representatives in Rome that they had no means from which to furnish either men or money. The colonies in question were Ardea, Nepete, Sutrium, Alba, Carseoli, Sora, Suessa, Cercei, Setia, Cales, Narnia and Interamna.

The consuls, startled by this unprecedented step, wanted to frighten them out of such a detestable course, and thought that they would succeed better by uncompromising sternness than by adopting gentle methods. "You colonists," they said, "have dared to address us, the consuls, in language which we cannot bring ourselves to repeat openly in the senate, for it is not simply a refusal of military obligations, but an open revolt against Rome. You must go back to your respective colonies at once, while your treason is still confined to words, and consult your people. You are not Capuans or Tarentines, but Romans, from Rome you sprang, from Rome you have been planted in colonies on land taken from the enemy, in order that you may augment her dominion. Whatever duties children owe to their parents, you owe to Rome, if indeed you feel a spark of affection for her or cherish any memories of your mother country. So you must begin your deliberations afresh, for what you are now so recklessly contemplating means the betrayal of the sovereignty of Rome and the surrender of victory into the hands of Hannibal." Such were the arguments which each of the consuls advanced at considerable length, but they produced no impression. The envoys said that there was no reply for them to take home, nor was there any other policy for their senate to consider since there was not a man left for conscription nor any money for his pay. As the consuls saw that their determination was unshaken they brought the matter before the senate. Here such general consternation and alarm were felt that most of the senators declared that the empire was doomed, other colonies would take the same course, as would also the allies; all had agreed together to betray the City of Rome to Hannibal.

[27.10]The consuls spoke in reassuring terms to the senate. They declared that the other colonies were as loyal and dutiful as ever, and even those colonies which had forgotten their duty would learn to respect the empire if representatives of the government were sent amongst them, with words of admonishment and rebuke, not of supplication or entreaty. The senate left it to the consuls to take such action as they deemed best in the interests of the State. After sounding the temper of the other colonies, they summoned their delegates to Rome and questioned them as to whether they had soldiers in readiness in accordance with the terms of their constitution. M. Sextilius of Fregellae, acting as spokesman for the eighteen colonies, replied that the stipulated number of soldiers were ready for service; if more were needed they would furnish more, and do their utmost to carry out the wishes and commands of the Roman people. They had no insufficiency of resources, they had more than a sufficiency of loyalty and goodwill. The consuls told them in reply that they felt they could not praise their conduct as they deserved unless the senate as a body thanked them, and with this, bade them follow them into the House. A resolution was adopted by the senate and read to them, couched in the most complimentary and laudatory terms possible. The consuls were then charged to introduce them to the Assembly and, among the other splendid services which they had rendered to them and their ancestors, to make special mention of this fresh obligation which they had conferred on the Republic. Though so many generations have passed away, their names ought not to be passed over in silence nor their due meed of praise withheld. Signia, Norba, Saticula, Fregellae, Lucerium, Venusia, Brundisium, Hadria, Formae and Ariminum; on the Tyrrhenian Sea, Pontia, Paestum, Cosa; and the inland colonies, Beneventum, Aesernum, Spoletum, Placentia and Cremona - these were the colonies by whose aid and succour the dominion of Rome was upheld, it was these who were publicly thanked in the senate and before the Assembly. The senate forbade all mention of the other colonies who had proved false to the empire; the consuls were to ignore their representatives, neither retaining them nor dismissing them nor addressing them, but leaving them severely alone. This silent rebuke seemed most in accordance with the dignity of the Roman people. The other preparations for war now occupied the attention of the consuls. It was decided that the "vicesimary gold" which was kept as a reserve for extreme emergencies in the secret treasury should now be brought out. Four

thousand pounds of gold were produced. Of this 550 pounds were given to each of the consuls and to the proconsuls M. Marcellus and P. Sulpicius. A similar amount was given to the praetor L. Veturius, who had drawn in the lottery the province of Gaul, and a special grant of 100 pounds was placed in the hands of the consul Fabius, to be carried into the citadel of Tarentum. The rest was made use of in purchasing, for cash at contract prices, clothing for the army in Spain, whose successful operations were enhancing their own and their general's reputation.

[27.11]It was further decided that before the consul left the City certain portents should be expiated. Various places had been struck by lightning: the statue of Jupiter on the Alban Mount and a tree near his temple, a grove at Ostia, the city wall and temple of Fortune at Capua and the wall and one of the gates at Sinuessa. Some people asserted that the water at Alba had run blood and that in the sanctuary of the temple of Fors Fortuna in Rome a statuette in the diadem of the goddess had fallen of itself on to her hand. It was confidently believed that at Privernum an ox had spoken and that a vulture had flown down on to a booth in the crowded forum. At Sinuessa it was reported that a child was born of doubtful sex, these are commonly called androgyni - a word like many others borrowed from the Greek, a language which readily admits compound words - also that it had rained milk and that a boy had been born with an elephant's head. These portents were expiated by sacrifices of full-grown victims, and a day was appointed for special intercessions at all the shrines. It was further decreed that the praetor C. Hostilius should vow and celebrate the Games of Apollo in strict accordance with the practice of recent years. During this interval the consul Q. Fulvius convened the Assembly for the election of censors. Two men were elected, neither of whom had attained the dignity of consul - M. Cornelius Cethegus and P. Sempronius Tuditanus. A measure was adopted by the plebs, with the sanction of the senate, authorising these censors to let the territory of Capua to individual occupiers. The revision of the senatorial roll was delayed through a difference between them as to who ought to be chosen as leader of the senate. The selection had fallen to Sempronius; Cornelius, however, insisted that they ought to follow the traditional usage in accordance with which the man who had been the first of all his surviving contemporaries to be appointed censor was always chosen as leader

of the senate and in this case it was T. Manlius Torquatus. Sempronius replied that the gods who had given him by lot the right of choosing had also given him the right to make a free choice; he should therefore act on his own discretion and choose Q. Fabius Maximus, the man whom he claimed as foremost of all the Romans, a claim he would make good before Hannibal himself. After a lengthy argument his colleague gave way and Sempronius selected Q. Fabius Maximus as leader of the senate. The revision of the roll was then proceeded with, eight names being struck off, amongst them that of M. Caecilius Metellus, the author of the infamous proposal to abandon Italy after Cannae. For the same reason some were struck out of the equestrian order, but there were very few on whom the taint of that disgrace rested. All those who had belonged to the cavalry of the legions of Cannae, which were in Italy at the time - and there was a considerable number of them - were deprived of their regulation horses. This punishment was made still heavier by an extension of their compulsory service. The years they had served with the horses furnished by the State were not to count, they were to serve their ten years from that date with their own horses. A large number of men were discovered who ought to have served, and all those who had reached the age of seventeen at the commencement of the war and had not done any military service were degraded to the *aerarii*. The censors next signed contracts for the rebuilding of the places round the Forum which had been destroyed by fire. These comprised seven shops, the fish market and the Hall of Vestal.

[27.12]After despatching their business in Rome the consuls started for the war. Fulvius was the first to leave and went on in advance to Capua. After a few days Fabius followed, and in a personal interview with his colleague strongly urged him, as he had Marcellus by letter, to do his utmost to keep Hannibal on the defensive while he himself was attacking Tarentum. He pointed out that the enemy had now been driven back on all sides, and if he were deprived of that city there would be no position where he could make a stand, no sure place for retreat, there would be no longer anything to keep him in Italy. He also sent a message to the commandant of the garrison which Laevinus had stationed in Regium as a check against the Bruttii. This was a force of 8000 men, the majority drawn, as stated above, from Agathyrna in Sicily, and all accustomed to live by rapine; their numbers had been swelled by deserters from Bruttium, who

were quite their equals in recklessness and love of desperate adventures. Fabius ordered the commandant to take this force into Bruttium and lay waste the country and then attack the city of Caulonia. They carried out their orders with alacrity and zest, and after plundering and scattering the peasants, they made a furious attack on the citadel. The consul's letter and his own belief that no Roman general was so good a match for Hannibal as himself stirred Marcellus into action. As soon as there was plenty of forage in the fields he broke up his winter quarters and confronted Hannibal at Canusium. The Carthaginian was trying to induce the Canusians to revolt, but as soon as he heard of the approach of Marcellus, he moved away. As the country was open, affording no cover for an ambushade, he began to withdraw into a more wooded district. Marcellus followed at his heels, fixed his camp close to Hannibal's, and the moment he had completed his entrenchments he led his legions out to battle. Hannibal saw no necessity for risking a general engagement, and sent out detached troops of cavalry and bodies of slingers to skirmish. He was, however, drawn into the battle which he had tried to avoid, for after he had been marching all night, Marcellus caught him up in level and open country, and prevented him from fortifying his camp by attacking the entrenching parties on all sides. A pitched battle ensued in which the whole strength of both armies was engaged, and at the approach of nightfall they separated on equal terms. Both the camps, separated by only a small interval, were hastily fortified before dark. As soon as it began to grow light on the morrow Marcellus marched his men on to the field and Hannibal accepted the challenge. He said much to encourage his men, bidding them remember Thrasymenus and Cannae, and tame the insolence of their foe, who was incessantly pressing them and following on their heels, preventing them from fortifying their camp, giving them no breathing space, no time to look round. Day after day two objects met their eyes at the same time, the rising sun and the Roman battle-line on the plain. If the enemy got away with heavy loss after one battle, he would conduct his operations more quietly and deliberately. Animated by their general's words and exasperated at the defiant way in which the enemy challenged and provoked them, they began the battle with great spirit. After more than two hours' fighting the allied contingent on the Roman right including the special levies, began to give way. As soon as Marcellus saw this he brought the 10th legion up to the front. They were slow in coming up, and as the

others were becoming unsteady and falling back, the whole line was gradually thrown into disorder and ultimately routed. Their fears got the better of them and they took to flight. 2700 Romans and allies fell in the battle and during the pursuit; amongst them were four centurions and two military tribunes, M. Licinius and M. Helvius. Four standards were lost out of the wing which began the fight, and two from the legion which came up in support.

[27.13]When they were once more in camp, Marcellus addressed such an impassioned and stinging remonstrance to his men that they suffered more from the words of their angry general than in the adverse struggle which they had kept up the livelong day. "As matters are," he said, "I am devoutly thankful to heaven that the enemy did not actually attack the camp while you in your panic were dashing into the gates and over the rampart; you would most certainly have abandoned your camp in the same wild terror in which you deserted the field. What is the meaning of this panic, this terror? What has suddenly come to you that you should forget who you are and with whom you are fighting? These surely are precisely the same enemies as those whom you spent last summer in defeating and pursuing, whom you have been closely following up these last few days, whilst they fled before you night and day, whom you have worn out in skirmishes, whom as late as yesterday you prevented from either advancing or encamping. I pass over incidents for which you may possibly take credit to yourselves and will only mention one circumstance which ought to fill you with shame and remorse. Last night, as you know, you drew off from the field after holding your own against the enemy. How has the situation changed during the night or throughout the day? Have your forces been weakened or his strengthened? But really, I do not seem to myself to be speaking to my army or to Roman soldiers, it is only your bodies and weapons that are the same. Do you imagine if you had had the spirit of Romans that the enemy would have seen your backs or captured a single standard from either maniples or cohort? So far he has prided himself upon the Roman legions he has cut up, you have been the first to confer upon him today the glory of having put a Roman army to flight."

Then there arose a general cry of supplication; the men begged him to pardon them for that day's work, and to make use of his soldiers' courage whenever and wherever he would. "Very well, soldiers," he

said, "I will make proof of it and lead you to battle tomorrow, so that you may win the pardon you crave as victors rather as vanquished." He ordered the cohorts who had lost their standards to be put on barley rations, and the centurions of the maniples whose standards were lost were ordered to stand away from their fellows without their military cloaks and girdles and with their swords drawn. All the troops, mounted and unmounted, were ordered to assemble under arms the following day. They were then dismissed and all acknowledged that they had been justly and deservedly censured, and that in the whole army there was not one who had that day shown himself a man except their commander. They felt bound to make satisfaction to him either by their deaths or by a brilliant victory. The next morning they appeared equipped and armed according to orders. The general expressed his approval and announced that those who had been the first to flee and the cohorts which had lost their standards would be placed in the forefront of the battle. He went on to say that all must fight and conquer, and that they must, one and all, do their utmost to prevent the rumour of yesterday's flight from reaching Rome before the news of that day's victory. They were then ordered to strengthen themselves with food, so that if the fight was prolonged they might hold out. After all had been said and done to raise their courage, they marched to battle.

[27.14]When this was reported to Hannibal, he remarked, "Evidently we have to do with an enemy who cannot endure either good fortune or bad. If he is victorious he follows up the vanquished in fierce pursuit; if he is defeated he renews the struggle with his conquerors." Then he ordered the advance to be sounded, and led his men on to the field. The fighting was much hotter than on the previous day; the Carthaginians did their utmost to maintain the prestige they had gained, the Romans were equally determined to wipe out the disgrace of their defeat. The contingents who had formed the Roman left and the cohorts who had lost their standards were fighting in the front line, and the twentieth legion was stationed on their right. L. Cornelius Lentulus and C. Claudius Nero commanded the wings; Marcellus remained in the centre to encourage his men and mark how they bore themselves in battle. Hannibal's front line consisted of his Spanish troops, the flower of his army. After a long and undecided struggle he ordered the elephants to be brought up into the fighting line, in the hope that they would create confusion and panic among

the enemy. At first they threw the front ranks into disorder, trampling some underfoot and scattering those round in wild alarm. One flank was thus exposed, and the rout would have spread much farther had not C. Decimius Flavus, one of the military tribunes, snatched the standard of the foremost maniple of hastati and called on them to follow him. He took them to where the animals trotting close to one another were creating the greatest tumult, and told his men to hurl their javelins at them. Owing to the short distance and the huge mark presented by the beasts, crowded as they were together, every missile went home. They were not all hit, but those in whose flanks the javelins were sticking turned the uninjured ones to flight, for these animals cannot be depended upon. Not only the men who first attacked them, but every soldier within reach hurled his javelin at them as they galloped back into the Carthaginian ranks, where they caused much more destruction than they had caused amongst the enemy. They dashed about much more recklessly and did far greater damage when driven by their fears, than when directed by their drivers. Where the line was broken by their charge, the Roman standards at once advanced, and the broken and demoralised enemy was put to rout without much fighting. Marcellus sent his cavalry after the fugitives, and the pursuit did not slacken till they had been driven in wild panic to their camp. To add to their confusion and terror two of the elephants had fallen and blocked up the camp gate, and the men had to scramble into their camp over fosse and rampart. It was here that they suffered the heaviest loss; 8000 men were killed and five elephants. The victory was anything but a bloodless one for the Romans; out of the two legions some 1700 men were killed and 1300 of the allied contingents, besides a very large number of wounded in both divisions. The following night Hannibal shifted his camp. Marcellus, though anxious to follow him, was unable to do so owing to the enormous number of wounded. Reconnoitring parties who were sent out to watch his movements reported that he had taken the direction of Bruttium.

[27.15]About this time the Hirpini, the Lucani and the Vulcienes surrendered to the consul Q. Fulvius, and delivered up the garrisons which Hannibal had placed in their cities. He accepted their submission graciously, and only reproached them for the mistake they had made in the past. This led the Bruttians to hope that similar indulgence might be shown to them, and they sent the two men who

were of highest rank amongst them. Vivius and his brother Paccius, to ask for favourable terms of surrender. The consul Q. Fabius carried by storm the town of Manduria, in the country of the Sallentines. 3000 prisoners were secured and a considerable amount of plunder. From there he marched to Tarentum, and fixed his camp at the very mouth of the harbour. Some of the ships which Laevinus had had for the purpose of keeping the sea open for supplies he loaded with the engines and apparatus necessary for battering the walls; others he made use of for carrying artillery and stores and projectiles of every kind. Only the transports which were propelled by oars were there made use of, so that whilst some of the troops could bring up their engines and scaling ladders close to the walls, others could beat off the defenders from the walls by attacking them at a distance from the ships. These vessels were so fitted up that they could attack the city from the open sea without any interference from the enemy, as the Carthaginian fleet had sailed across to Corcyra to assist Philip in his campaign against the Aetolians. The force besieging Caulo, hearing of Hannibal's approach and fearing a surprise, withdrew to a position on the hills which was safe from any immediate attack.

While Fabius was besieging Tarentum an incident, of slight importance in itself, helped him to achieve a great success. The Tarentines had been furnished by Hannibal with a garrison of Bruttian troops. One of their officers was deeply in love with a young woman who had a brother in Fabius' army. She had written to tell him of the intimacy that had sprung up between her and a stranger who was rich and held a high position amongst his countrymen. The brother was led to hope that through his sister's means her lover might be led on to any lengths, and he communicated his anticipations to the consul. The idea did not seem at all an unreasonable one, and he received instructions to cross the lines and enter Tarentum as a deserter. After being introduced to the officer by his sister and getting on friendly terms with him, he cautiously sounded his disposition without betraying his real object. When he had satisfied himself as to the weakness of his character he called in his sister's aid, and through her coaxing and blandishments the man was persuaded to betray the position which he was in charge of. When the time and method of carrying out the project were arranged, a soldier was despatched from the city at night to make his way

through the outposts and report to the consul what had been done and what arrangements had been made.

At the first watch Fabius gave the signal for action to the troops in the citadel and those who were guarding the harbour, and then marched right round the harbour and took up his position without being observed on the east side of the town. Then he ordered the trumpets to sound at the same moment from the citadel, the harbour and the ships which had been brought up from the open sea. The greatest shouting and uproar was designedly raised in just those parts where there was least danger of an attack. The consul meanwhile kept his men perfectly quiet. Democrates, who had formerly commanded the fleet, happened to be in charge of that part of the defences. Finding all quiet round him whilst elsewhere there was shouting and tumult as though the city had been taken, he feared to remain where he was in case the consul should storm the place and break in somewhere else. So he led his men up to the citadel from which the most alarming noise proceeded. From the time that had elapsed and the silence which followed the excited shouts and calls to arms, Fabius judged that the garrison had withdrawn from that part of the fortifications. He at once ordered the scaling ladders to be carried to that part of the walls where he understood from the traitor that the Brutii were mounting guard. With their aid and connivance that section of the fortifications was carried, and the Romans made their way into the town after breaking down the nearest gate to allow the main body of their comrades to march in. Raising their battle shout they went on to the forum; which they reached about sunrise without meeting a single armed enemy. All the defenders who had been engaged at the citadel and the harbour now combined to attack them.

[27.16]The fighting in the forum commenced with an impetuosity which was not sustained. The Tarentine was no match for the Roman either in courage or weapons or military training or bodily strength and vigour. They hurled their javelins, and that was all; almost before they came to close quarters they turned and fled through the streets, seeking shelter in their own homes and in their friends' houses. Two of their leaders, Nico and Democrates, fell fighting bravely; Philemenus, who had been the prime agent in delivering the city up to Hannibal, rode at full speed out of the battle, but though his riderless horse was recognised soon afterwards whilst straying about the city, his body was nowhere found. It was commonly believed that

he had been pitched headlong from his horse down an unprotected well. Carthalo the commandant of the garrison, had laid down his arms and was going to the consul to remind him of the old tie of hospitality between their fathers when he was killed by a soldier who met him. Those found with arms and those who had none were massacred indiscriminately, Carthaginians and Tarentines met the same fate. Many even of the Bruttians were killed in different parts of the town, either by mistake or to satisfy an old-standing hate, or to suppress any rumour of its capture through treachery, by making it appear as though it had been taken by storm. After the carnage followed the sack of the city. It is said that 30,000 slaves were captured together with an enormous quantity of silver plate and bullion, 83 pounds' weight of gold and a collection of statues and pictures almost equal to that which had adorned Syracuse. Fabius, however, showed a nobler spirit than Marcellus had exhibited in Sicily; he kept his hands off that kind of spoil. When his secretary asked him what he wished to have done with some colossal statues - they were deities, each represented in his appropriate dress and in a fighting attitude - he ordered them to be left to the Tarentines who had felt their wrath. The wall which separated the city from the citadel was completely demolished.

Hannibal had in the meanwhile received the surrender of the force which was investing Caulo. As soon as he heard that Tarentum was being attacked he hurried to its relief, marching night and day. On receiving the news of its capture, he remarked, "The Romans too have their Hannibal, we have lost Tarentum by the same practices by which we gained it." To prevent his retirement from appearing like a flight he encamped at a distance of about five miles from the city, and after staying there for a few days he fell back on Metapontum. From this place he sent two of the townsmen with a letter to Fabius at Tarentum. It was written by the civic authorities, and stated that they were prepared to surrender Metapontum and its Carthaginian garrison if the consul would pledge his word that they should not suffer for their conduct in the past. Fabius believed the letter to be genuine and handed the bearers a reply addressed to their chiefs, fixing the date of his arrival at Metapontum. This was taken to Hannibal. Naturally delighted to find that even Fabius was not proof against his stratagems, he disposed his force in ambuscade not far from Metapontum. Before leaving Tarentum Fabius consulted the

sacred chickens, and on two occasions they gave an unfavourable omen. He also consulted the gods of sacrifice, and after they had inspected the victim the augurs warned him to be on his guard against plots and ambushes on the part of the enemy. As he did not come at the appointed time, the Metapontines were again sent to him to hasten his movements, and were promptly arrested. Terrified at the prospect of examination under torture, they disclosed the plot.

[27.17]P. Scipio had spent the whole winter in winning over the various Spanish tribes, either by bribes or by restoring those of their countrymen who had been taken as hostages or prisoners. At the commencement of summer Edesco, a famous Spanish chieftain, came to visit him. His wife and children were in the hands of the Romans, but that was not the only reason why he came. He was influenced by the change which Fortune apparently was bringing about over the whole of Spain in favour of Rome as against Carthage. The same motive actuated Indibilis and Mandonius, who were beyond question the most powerful chiefs in Spain. They abandoned Hasdrubal, with the whole of their contingent, and withdrew to the hills above his camp and keeping along the ridge of mountains made their way safely to the Roman headquarters. When Hasdrubal saw that the enemy were receiving such accessions of strength whilst his own forces were shrinking in equal proportion, he realised that unless he made some bold move, the wastage would continue, so he made up his mind to seize the first opportunity of fighting. Scipio was still more anxious for a battle; his confidence had grown with success, and he was unwilling to wait till the hostile armies had formed a junction, preferring to engage each separately rather than all united. In case, however, he might have to fight with their combined armies, he had augmented his strength by a somewhat ingenious method. As the whole of the Spanish coast was now clear of the enemy's ships, he had no further use for his own fleet, and after beaching the vessels at Tarraco he brought up the crews to reinforce his land army. Of arms and armament he had more than enough, what with those taken in the capture of New Carthage, and those which the large body of artisans had fabricated for him subsequently. Laelius, in whose absence he would not undertake anything of importance, had now returned from Rome, so in the early days of spring he left Tarraco with his composite army and marched straight for the enemy.

The country through which he passed was everywhere peaceful; each tribe as he approached gave him a friendly reception and escorted him to their frontiers. On his route he was met by Indibilis and Mandonius. The former, speaking for himself and his companion, addressed Scipio in grave and dignified language, very unlike the rough and heedless speech of barbarians. Instead of claiming credit for having seized the first opportunity of going over to the side of Rome he rather pleaded that he had no alternative. He was quite aware, he said, that the name of deserter was an object of loathing to the old friends and of suspicion to the new ones, nor did he find fault with this way of looking at it as long as the twofold odium attached not merely to the name but to the motive. Then after dwelling on the services they had both rendered to the Carthaginian generals and the rapacity and insolence which the latter had exhibited and the innumerable wrongs inflicted on them and their fellow-countrymen, he continued: "Hitherto we have been associated with them so far as our bodily presence is concerned, but our hearts and minds have long been where we believe justice and right are cherished. Now we come as suppliants to the gods who cannot permit violence and injustice, and we implore you, Scipio, not to regard our change of sides, as either a crime or a merit; put us to the test from this day forward, and as you find us, so judge and appraise our conduct." The Roman general replied that this was just what he intended to do; he should not regard as deserters men who did not consider an alliance binding where no law, human or divine, was respected. Thereupon their wives and children were brought out and restored to them amid tears of joy. For that day they were the guests of the Romans, on the morrow a definite treaty of alliance was concluded, and they were sent off to bring up their troops. On their return they shared the Roman camp and acted as guides until they reached the enemy.

[27.18]

[27.21]The question of depriving Marcellus of his command was debated in the Circus Flaminius before an enormous gathering in which all orders of the State were represented. The tribune of the plebs launched his accusations, not only against Marcellus, but against the nobility as a whole. It was due to their crooked policy and lack of energy, he said, that Hannibal had for ten years been holding Italy as his province; he had, in fact, passed more of his life there than in Carthage. The Roman people were now reaping the fruits of the

extension of Marcellus' command, his army after its double defeat was now passing the summer comfortably housed in Venusia. Marcellus made such a crushing reply to the tribune's speech by simply recounting all that he had done that not only was the proposal to deprive him of his command rejected, but the next day all the centuries with absolute unanimity elected him consul. T. Quinctius Crispinus, who was praetor at the time, was assigned to him as his colleague. The next day came the election of praetors. Those elected were P. Licinius Crassus Dives, the Pontifex Maximus, P. Licinius Varus, Sextus Julius Caesar and Q. Claudius. In the middle of the elections considerable anxiety was created by the intelligence that Etruria had revolted. C. Calpurnius, who was acting in that province as propraeor, had written to say that the movement was started at Arretium. Marcellus, the consul elect, was hastily despatched thither to ascertain the position of affairs, and if he thought it sufficiently serious to require the presence of his army he was to transfer his operations from Apulia to Etruria. The Etruscans were sufficiently intimidated by these measures to keep quiet. Envoys came from Tarentum to ask for terms of peace under which they might retain their liberties and their laws. The senate directed them to come again as soon as Fabius arrived in Rome. The Roman Games and the Plebeian Games were celebrated this year, each for one day. The curule aediles were L. Cornelius Caudinus and Servius Sulpicius Galba; the plebeian aediles, C. Servilius and Q. Caecilius Metellus. It was asserted that Servilius had no legal right to be either tribune of the plebs or aedile, because there was sufficient evidence that his father, who was supposed to have been killed by the Boii near Mutina ten years previously when acting as agrarian commissioner, was really alive and a prisoner in the hands of the enemy.

[27.22]It was now the eleventh year of the Punic War when M. Marcellus and T. Quinctius Crispinus entered upon their duties as consuls. Reckoning the consulship to which Marcellus had been elected, but in which, owing to some flaw in his election, he did not act, this was the fifth time he had held the office. Italy was assigned to both consuls as their province and the two armies which the previous consuls had had, and a third which Marcellus had commanded and which was at the time in Venusia, were all placed at their disposal so that they could select which of the three they chose. The remaining one would then be given to the commander to whom

Tarentum and the Sallentini should be allotted. The other spheres were allocated as follows: P. Licinius Varus was placed in charge of the city jurisdiction, P. Licinius Crassus the Pontifex Maximus had the jurisdiction over aliens and also wherever the senate might determine. Sicily was allotted to Sextus Julius Caesar, Tarentum to Q. Claudius the Flamen. Q. Fulvius Flaccus had his command extended for a year and was to hold the district of Capua, which T. Quinctius had previously held as praetor, with one legion. C. Hostilius Tubulus also had his command extended, he was to succeed C. Calpurnius as propraeor with two legions in Etruria. A similar extension of command was granted to L. Veturius Philo, who was to remain in Gaul as propraeor with the two legions he had previously commanded. The same order was made in the case of C. Aurunculeius, who had administered Sardinia as praetor; the fifty ships which P. Scipio was to send from Spain were assigned to him for the protection of his province. P. Scipio and M. Silanus were confirmed in their commands for another year. Out of the ships which Scipio had brought with him from Italy or captured from the Carthaginians - eighty in all - he was instructed to send fifty to Sardinia, as there were rumours of extensive naval preparations at Carthage. It was said that they were fitting out 200 ships to menace the whole of the Italian, Sicilian and Sardinian coasts. In Sicily it was arranged that the army of Cannae should be given to Sextus Caesar whilst M. Valerius Laevinus, whose command had also been extended, was to retain the fleet of seventy ships which was stationed off Sicily, and augment it with the thirty vessels which had lain at Tarentum during the past year. This fleet of one hundred ships he was to employ, if he thought good, in harrying the African seaboard. P. Sulpicius was to continue to hold Macedonia and Greece in check with the fleet which he had. There was no change in the case of the two legions which were quartered in the City. The consuls were commissioned to raise fresh troops where it was necessary, in order to bring up the legions to their proper strength. Thus one-and-twenty legions were under arms to defend the Roman empire. P. Licinius Varus, the City praetor, was charged with the task of refitting the thirty old warships which were laid up at Ostia, and manning with their full complement twenty new ones, so that he might have a fleet of fifty ships for the protection of that part of the coast which was nearest to Rome. C. Calpurnius received strict orders not to move his army from Arretium before the arrival of Tubulus who was to

succeed him; Tubulus was also enjoined to be especially on his guard in case any revolutionary projects were formed.

[27.23]The praetors left for their provinces, but the consuls were detained by religious matters; several portents had been announced, and the omens drawn from the sacrificial victims were mostly unfavourable. News came from Campania that two temples in Capua - those of Fortune and Mars - as well as several sepulchral monuments had been struck by lightning. To such an extent does a depraved superstition see the work of the gods in the most insignificant trifles, that it was seriously reported that rats had gnawed the gold in the temple of Jupiter in Cumae. At Casinum a swarm of bees had settled in the forum; at Ostia a gate and part of the wall had been struck by lightning; at Caere a vulture had flown into the temple of Jupiter, and at Vulsinii the waters of the lake had run with blood. In consequence of these portents a day of special intercession was ordered. For several days full-grown victims had been sacrificed without giving any propitious indications, and it was long before the "peace of the gods" could be secured. It was on the heads of the consuls that the direful mischance prognosticated by these portents fell, the State remained unharmed. The Games of Apollo had been celebrated for the first time in the consulship of Q. Fulvius and Appius Claudius under the superintendence of the City praetor, P. Cornelius Sulla. Subsequently all the City praetors celebrated them in turn, but they used to vow them for one year only, and there was no fixed day for their celebration. This year a serious epidemic attacked both the City and the country districts, but it resulted more frequently in protracted than in fatal illness. In consequence of this epidemic special intercessions were appointed at all the chapels throughout the City, and P. Licinius Varus, the City praetor, was instructed to propose a measure to the people providing that the Games of Apollo should always be celebrated on the same day. He was the first to celebrate them under this rule, and the day fixed for their celebration was July 5th, which was henceforth observed as the day.

[27.24]Day by day the reports from Arretium became more serious and caused increasing anxiety to the senate. Written instructions were sent to C. Hostilius, bidding him lose no time in taking hostages from the townspeople, and C. Terentius Varro was sent with powers to receive them from him and conduct them to Rome. As soon as he arrived, Hostilius ordered one of his legions which was encamped

before the city to enter it in military order, and he then disposed the men in suitable positions. This done, he summoned the senators into the forum and ordered them to give hostages for their good behaviour. They asked for forty-eight hours for consideration, but he insisted upon their producing the hostages at once, and threatened in case of refusal to seize all their children the next day. He then issued orders to the military tribunes and prefects of allies and centurions to keep a strict watch on the gates, and to allow no one to leave the city during the night. There was too much slackness and delay in carrying out these instructions; before the guards were posted at the gates seven of the principal senators with their children slipped out before it was dark. Early on the morrow, when the senators began to assemble in the forum, the absence of these men was discovered, and their property was sold. The rest of the senators offered their own children to the number of one hundred and twenty; the offer was accepted, and they were entrusted to C. Terentius to be conveyed to Rome. The report he gave to the senate made matters look still more serious. It seemed as though a rising throughout Etruria was imminent. C. Terentius was accordingly ordered to proceed to Arretium with one of the two City legions and occupy the place in force, C. Hostilius with the rest of the army was to traverse the entire province and see that no opening was afforded for revolutionary disturbances. When C. Terentius and his legion reached Arretium, he demanded the keys of the gates. The magistrates replied that they could not find them, but he was convinced that they had been deliberately carried off and not lost through carelessness, so he had fresh locks fitted on all the gates, and took especial precautions to have everything under his own control. He earnestly impressed upon Hostilius the need of vigilance, and warned him that all hope of Etruria remaining quiet depended upon his taking such precautions as to make any movement of disaffection impossible.

[27.25] There was an animated debate in the senate as to the treatment to be meted out to the Tarentines. Fabius was present, and stood up for those whom he had subjugated; others took the opposite line, the majority regarded their guilt as equal to that of Capua and deserving equally severe punishment. At last a resolution was adopted embodying the proposal of Manlius Acilius, viz. that the town should be garrisoned and the entire population confined within their walls until Italy was in a less disturbed state, when the whole question could

be reconsidered. An equally warm discussion arose in connection with M. Livius who had commanded the force in the citadel. Some were for passing a formal vote of censure on him for having, through his negligence, allowed the place to be betrayed to the enemy. Others considered that he ought to be rewarded for having successfully defended the citadel for five years, and having done more than any one else to effect the recapture of Tarentum. A third party, taking a middle course, urged that it was for the censors, not the senate, to take cognisance of his action. This view was supported by Fabius, who remarked that he quite admitted what Livius' friends were constantly asserting in that House, that it was owing to his efforts that Tarentum had been retaken, for there would have been no recapture had it not previously been lost. One of the consuls, T. Quinctius Crispinus, left with reinforcements for the army in Lucania which Q. Fulvius Flaccus had commanded. Marcellus was detained by religious difficulties which one after another presented themselves. In the war with the Gauls he had vowed during the battle of Clastidium a temple to Honos and Virtus, but he was prevented from dedicating it by the pontiffs. They said that one shrine could not be lawfully dedicated to two deities, because in case it were struck by lightning, or some other portent occurred in it, there would be a difficulty about the expiation, since it could not be known which deity was to be propitiated; one victim could not be sacrificed to two deities except in the case of certain specified deities. A second temple was hastily built to Virtus, but this was not dedicated by Marcellus. At last he started with reinforcements for the army which he had left the previous year at Venusia. Seeing how Tarentum had enhanced Fabius' reputation, Crispinus determined to attempt the capture of Locri in Bruttium. He had sent to Sicily for all kinds of artillery and military engines, and had also collected a number of ships to attack that part of the city which faced the sea. As, however, Hannibal had brought up his army to Lacinium, he abandoned the siege, and hearing that his colleague had moved out by Venusia, he was anxious to join forces with him. With this view he marched back into Apulia, and the two consuls encamped within three miles of each other in a place between Venusia and Bantia. As all was now quiet at Locri Hannibal moved up into their neighbourhood. But the consuls were quite sanguine of success; they drew out their armies for battle almost every day, feeling perfectly certain that if the enemy would try his

chance against two consular armies, the war would be brought to a close.

[27.26]Hannibal had already fought two battles with Marcellus during the past year, in one he had been victorious, the other he lost. After this experience he felt that if he had to meet him again there was as much ground for fear as for hope, and he was therefore far from feeling himself equal to the two consuls together. He decided to employ his old tactics and looked out for a position suitable for an ambushade. Both sides, however, confined themselves to skirmishes, with varying success, and the consuls thought that as the summer was being spun out in this way there was no reason why the siege of Locri should not be resumed. So they sent written instructions to L. Cincius to take his fleet from Sicily to Locri, and as the walls of that city were open to a land attack also, they ordered a portion of the army which was garrisoning Tarentum to be marched there. These plans were disclosed to Hannibal by some people from Thurium, and he sent a force to block the road from Tarentum. 3000 cavalry and 2000 infantry were concealed under a hill above Petelia. The Romans, marching on without reconnoitring, fell into the trap, and 2000 were killed and 1500 taken prisoners. The rest fled through the fields and woods back to Tarentum. Between the Carthaginian camp and that of the Romans there was a wooded hill which neither side had taken possession of, for the Romans did not know what that side of it was like which fronted the enemy, and Hannibal regarded it as better adapted for an ambushade than for a camp. He accordingly sent a force of Numidians during the night to conceal themselves in the wood, and there they remained the following day without stirring from their position, so that neither they nor their arms were visible. It was being everywhere remarked in the Roman camp that the hill ought to be seized and strengthened with defences, for if Hannibal seized it they would have the enemy, so to speak, over their heads. The idea impressed Marcellus, and he said to his colleague: "Why do we not go with a few horsemen and examine the place? When we have seen it for ourselves we shall know better what to do." Crispinus assented, and they started with 220 mounted men, 40 of whom were from Fregellae, the rest were Etruscans. They were accompanied by two military tribunes, M. Marcellus, a son of the consul, and A. Manlius, and also by two prefects of allies, L. Arrenius and Manius Aulius. Some writers assert that whilst Marcellus was sacrificing on

that day, the liver of the first victim was found to have no head; in the second all the usual parts were present, but the head appeared abnormally large. The *haruspex* was seriously alarmed at finding after misshaped and stunted parts such an excess of growth.

[27.27] Marcellus, however, was seized with such a keen desire of engaging Hannibal that he never thought that their respective camps were near enough to each other. As he was crossing the rampart on his way to the hill he signalled to the soldiers to be at their posts, ready to get the baggage together and follow him in case he decided that the hill which he was going to reconnoitre was suitable for a camp. There was a narrow stretch of level ground in front of the camp, and from there a road led up to the hill which was open and visible from all sides. The Numidians posted a *vidette* to keep a look out, not in the least anticipating such a serious encounter as followed, but simply in the hope of intercepting any who had strayed too far from their camp after wood or fodder. This man gave the signal for them to rise from their concealment. Those who were in front of the Romans further up the hill did not show themselves until those who were to close the road behind them had worked round their rear. Then they sprang up on all sides, and with a loud shout charged down. Though the consuls were hemmed in, unable to force their way to the hill which was occupied, and with their retreat cut off by those in their rear, still the conflict might have kept up for a longer time if the Etruscans, who were the first to flee, had not created a panic among the rest. The Fregellans, however, though abandoned by the Etruscans, maintained the conflict as long as the consuls were unwounded and able to cheer them on and take their part in the fighting. But when both the consuls were wounded, when they saw Marcellus fall dying from his horse, run through with a lance, then the little band of survivors fled in company with Crispinus, who had been hit by two darts, and young Marcellus, who was himself wounded. Aulus Manlius was killed, and Manius Aulus; the other prefect of allies, Arrenius, was taken prisoner. Five of the consuls' lictors fell into the hands of the enemy, the rest were either killed or escaped with the consul. Forty-three of the cavalry fell either in the battle or the pursuit, eighteen were made prisoners. There was great excitement in the camp, and they were hurriedly preparing to go to the consuls' assistance when they saw one consul and the son of the other coming back wounded with the scanty remnant who had

survived the disastrous expedition. The death of Marcellus was to be deplored for many reasons, especially because, with an imprudence not to be expected at his age - he was more than sixty - and altogether out of keeping with the caution of a veteran general, he had flung into headlong danger not only himself but his colleague as well, and almost the entire commonwealth. I should make too long a digression about one solitary fact, if I were to go through all the accounts of the death of Marcellus. I will only cite one authority, Coelius. He gives three different versions of what happened, one handed down by tradition, another copied from the funeral oration delivered by his son who was on the spot, and a third which Coelius gives as the ascertained result of his own researches. Amidst the variations of the story, however, most authorities agree that he left the camp to reconnoitre the position, and all agree that he was ambushed.

[27.28]Hannibal felt convinced that the enemy would be thoroughly cowed by the death of one consul and the disablement of the other, and he determined not to lose the opportunity thus afforded him. He at once transferred his camp to the hill where the action had been fought, and here he interred the body of Marcellus, which had been found. Crispinus, unnerved by the death of his colleague and his own wound, left his position in the dead of night and fixed his camp on the first mountains he came to, in a lofty position protected on every side. And now the two commanders showed great wariness, the one trying to deceive his opponent, the other taking every precaution against him. When the body of Marcellus was discovered, Hannibal took possession of his rings. Fearing that the signet might be used for purposes of forgery, Crispinus sent couriers to all the cities round, warning them that his colleague was killed and his ring in the possession of the enemy, so that they were not to trust any missives sent in the name of Marcellus. Soon after the consul's messenger had arrived at Salapia, a despatch was received from Hannibal purporting to come from Marcellus, and stating that he would come to Salapia the night after they received the letter, and the soldiers of the garrison were to hold themselves in readiness in case their services should be required. The Salapians saw through the ruse, and supposed that he was seeking an opportunity for punishing them, not only for their desertion of the Carthaginian cause, but also for the slaughter of his cavalry. They sent back the messenger, who was a Roman deserter,

that he might not be cognisant of the measures which they decided to take, and then made their dispositions. The townsmen took their places on the walls and other commanding positions, the patrols and sentries for the night were strengthened and kept a most careful look out, and the pick of the garrison were formed up near the gate to which the enemy were expected to come.

Hannibal approached the city about the fourth watch. The head of the column was formed of Roman deserters; they carried Roman weapons, their armour was Roman, and they were all speaking Latin. When they reached the gate, they called up the sentinels and told them to open the gate as the consul was there. The sentinels, pretending to be just wakened up, bustled about in hurry and confusion and began slowly and laboriously to open the gate. It was closed by a portcullis, and by means of levers and ropes they raised it just high enough for a man to pass upright under it. The passage was hardly sufficiently clear when the deserters rushed through the gate, each trying who should be first. About 600 were inside, when suddenly the rope which held it was let go, and the portcullis fell with a great crash. The Salapians attacked the deserters, who were marching carelessly along with their shields hung from their shoulders, as though friends; others on the gate tower and the walls kept off the enemy outside with stones and long poles and javelins. So Hannibal, finding himself caught in his own trap, drew off and proceeded to raise the siege of Locri. Cincius was making a most determined attack upon the place with siege works and artillery of every kind which he had brought from Sicily, and Mago was beginning to despair of holding the place when his hopes were suddenly revived by the news of Marcellus' death. Then came a messenger with the tidings that Hannibal had sent his Numidian cavalry on in advance, and was following as rapidly as he could with his infantry. As soon as the signal was given from the look-out of the approach of the Numidians, Mago flung the city gate open and made a vigorous sortie. Owing to the suddenness of his attack which was quite unlooked for, rather than to his fighting strength, the battle was for some time an even one, but when the Numidians came up, such a panic seized the Romans that they abandoned the siege works and the engines with which they were battering the walls, and fled in disorder to the sea and to their ships. Thus by the arrival of Hannibal, the siege of Locri was raised.

[27.29]As soon as Crispinus found that Hannibal had withdrawn to Bruttium he ordered M. Marcellus to take the army which his late colleague had commanded back to Venusia. Though hardly able to bear the motion of the litter owing to his serious wounds, he started with his legions for Capua. In a despatch which he sent to the senate, after alluding to his colleague's death and the critical condition he himself was in, he explained that he could not go to Rome for the elections because he did not think he could bear the fatigue of the journey, and also because he was anxious about Tarentum in case Hannibal should leave Bruttium and direct his armies against it. He also requested that some men of wisdom and experience might be sent to him, as it was necessary for him to confer with them as to the policy of the Republic. The reading of this despatch evoked a feeling of deep regret at the death of the one consul and serious apprehensions for the life of the other. In accordance with his wish they sent young Q. Fabius to the army at Venusia, and three representatives to the consul, viz. Sextus Julius Caesar, L. Licinius Pollio and L. Cincius Alimentus who had returned from Sicily a few days previously. Their instructions were to tell the consul that if he could not come to Rome to conduct the elections, he was to nominate a Dictator in Roman territory for the purpose. If the consul had gone to Tarentum, the praetor Q. Claudius was required to withdraw the legions stationed there, and march with them into that district in which he could protect the greatest number of cities belonging to the allies of Rome. During the summer M. Valerius sailed across to Africa with a fleet of a hundred vessels. Landing his men near the city of Clupea, he ravaged the country far and wide without meeting with any resistance. The news of the approach of a Carthaginian fleet caused the pillagers to return in haste to their ships. This fleet consisted of eighty-three ships, and the Roman commander successfully engaged it not far from Clupea. After capturing eighteen ships and putting the rest to flight, he returned to Lilybaeum with a great quantity of booty. In the course of the summer Philip lent armed assistance to the Achaeans, who had implored his aid against Machanidas, tyrant of the Lacedaemonians, and against the Aetolians. Machanidas was harassing them with a border warfare, and the Aetolians had crossed the narrow sea between Naupactus and Patrae - the local name of the latter is Rhion - and were making forays in Achaia. There were rumours also of an intention on the part of Attalus, king of Asia, to visit Europe, as the

Aetolians had at the last meeting of their national council made him one of their two supreme magistrates.

[27.30] This being the position of affairs, Philip moved southward into Greece. The Aetolians under the command of Pyrrhias, who had been elected Attalus' colleague, met Philip at the city of Lamia. They were supported by a contingent furnished by Attalus, and also by about 1000 men whom P. Sulpicius had sent from his fleet. Philip won two battles against Pyrrhias, and in each battle the enemy lost not less than 1000 men. From that time the Aetolians were afraid to meet him in the field and remained inside the walls of Lamia. Philip accordingly marched his army to Phalara. This place lies on the Maliac Gulf, and was formerly the seat of a considerable population, owing to its splendid harbour, the safe anchorages in the neighbourhood, and other maritime and commercial advantages. Whilst he was here he was visited by embassies from Ptolemy king of Egypt, and from Rhodes and Athens and Chios, with the view of bringing about a reconciliation between him and the Aetolians. Amyntandor, king of the Athamanians, a neighbour of the Aetolians, was also acting on their behalf as peacemaker. But the general concern was not so much for the Aetolians, who were more warlike than the rest of the Greeks, as for the liberty of Greece, which would be seriously endangered if Philip and his kingdom took an active part in Greek politics. The question of peace was held over for discussion in the meeting of the Achaean League. The place and time for this meeting were settled, and in the meantime a thirty days' armistice was arranged. From Phalara the king proceeded through Thessaly and Boeotia to Chalcis in Euboea, in order to prevent Attalus, who he understood was sailing thither, from landing on the island. Leaving a force there in case Attalus should sail across in the meantime, he went on with a small body of cavalry and light infantry to Argos. Here the presidency of the Heraean and Nemean Games was conferred upon him by the popular vote, on the ground that the kings of Macedon trace their origin to Argos. As soon as the Heraean Games were over he went off to Aegium to the meeting of the League which had been fixed some time previously.

The discussion turned upon the question of putting a stop to the war with the Aetolians, so that neither the Romans nor Attalus might have any reason for entering Greece. But everything was upset by the Aetolians almost before the armistice had expired, after they learnt

that Attalus had reached Aegina and that a Roman fleet was anchored off Naupactus. They had been invited to attend the meeting of the League, and the deputations who had been trying to secure peace at Phalara were also present. They began by complaining of certain trivial infringements of the armistice, and ended by declaring that hostilities could never cease until the Achaeans restored Pylos to the Messenians, and Atintania was given back to Rome, and the Ardiaei to Scerdilaedus and Pleuratus. Philip was naturally indignant at those whom he had defeated proposing terms of peace to him, their conqueror. He reminded the assembly that when the question of peace was referred to him and an armistice was granted, it was not with any expectation that the Aetolians would remain quiet, but solely in order that all the allies might bear him witness that whilst he was seeking a basis for peace, the other side were determined to find a pretext for war. Since there was no chance of peace being established, he dismissed the council and returned to Argos, as the time for the Nemean Games was approaching and he wished to add to their popularity by his presence. He left a force of 4000 men to protect the Achaeans, and at the same time took over from them five ships of war. He intended to add these to the fleet recently sent from Carthage; with these vessels and the ships which Prusias was despatching from Bithynia he had made up his mind to offer battle to the Romans who were masters of the sea in that part of the world.

[27.31]While the king was preoccupied with the preparations for the Games, and was allowing himself more recreation than was possible in a time of active warfare, P. Sulpicius, setting sail from Naupactus, brought up his fleet between Sicyon and Corinth, and spread devastation far and wide over that wonderfully fertile land. This news brought Philip away from the Games. He hurried off with his cavalry, leaving the infantry to follow, and caught the Romans whilst they were dispersed through the fields in all directions, laden with plunder, and utterly unsuspecting of danger. They were driven to their ships, and the Roman fleet returned to Naupactus, far from happy at the result of their raid. Philip returned to see the close of the Games, and their splendour was enhanced by the news of his victory, for whatever its importance it was still a victory over the Romans. What added to the universal enjoyment of the festival was the way in which he gratified the people by laying aside his diadem and purple robe and the rest of his royal state so as to be, as far as appearance went,

on a level with the rest. Nothing is more grateful than this to the citizens of a free State. He would indeed have given them every reason to hope that their liberties would remain unimpaired if he had not sullied and disgraced all by his insufferable debauchery. Accompanied by one or two boon companions, he ranged as he pleased through homes and families, day and night, and by stooping to the status of a private citizen he attracted less notice and was therefore under less restraint. The liberty with which he had cheated others he turned in his own case to unbridled licence, and he did not always effect his purpose by money or blandishments but even resorted to criminal violence. It was a dangerous thing for husbands and fathers to place obstacles in the way of the king's lusts by any untimely scruples on their part. A lady called Polycratia, the wife of Aratus, one of the leading men amongst the Achaeans, was taken away from her husband and carried off to Macedon under a promise from the king to marry her. In the midst of these debaucheries the sacred festival of the Nemean Games came to a close. A few days afterwards Philip marched to Dymae to expel the Aetolian garrison which the Eleans had invited and admitted into their city. Here the king was met by the Achaeans under Cyliadas their captain general, who were burning with resentment against the Eleans for having deserted the Achaean League, and furious against the Aetolians for having, as they believed, brought the arms of Rome against them. The combined force left Dymae and crossed the Larisus, which separates the territory of Elia from that of Dymae.

[27.32] The first day of their advance in the enemy's country was spent in plunder and destruction. The next day they marched in battle array towards the city, the cavalry having been sent forward to provoke the Aetolians to fight, which they were perfectly ready to do. The invaders were unaware that Sulpicius had sailed across from Naupactus to Cyllene with fifteen ships and landed 4000 men who had entered Elis in the night. As soon as they recognised the standards and arms of Rome amongst the Aetolians and Eleans, the unlooked-for sight filled them with great alarm. At first the king wanted to retire his men, but they were already engaged with the Aetolians and Trallians - an Illyrian tribe - and as he saw that they were being hard pressed, he charged the Roman cohort with his cavalry. His horse was wounded by a javelin and fell, throwing the king over its head, and a fierce contest began, on both sides, the

Romans making desperate efforts to reach him and his own men doing their best to protect him. Compelled as he was to fight on foot amongst mounted men, he showed conspicuous courage. The struggle became at length an unequal one, many were falling round him and many were wounded, and he was seized by his own men and placed on another horse on which he fled. That day he fixed his camp about five miles from Elis; the following day he led the whole of his force to a fortified place called Pyrgon. This was a fort belonging to the Eleans, and he had been informed that a large number of peasants with their cattle had taken refuge there through fear of being plundered. Destitute as they were of organisation and arms, the mere fact of his approach filled them with terror and they were all made prisoners. This booty was some compensation for his humiliating defeat at Elis. Whilst he was distributing the spoil and the captives - there were 4000 prisoners and 20,000 head of cattle large and small - a messenger arrived from Macedonia stating that a certain Eropus had taken Lychnidon after bribing the commandant of the garrison, that he was in possession of some villages belonging to the Dassaretii and was also making the Dardanians restless. Philip at once abandoned hostilities with the Aetolians and prepared to return home. He left a force of 2500 of all arms under the command of Menippus and Polyphantas to protect his allies, and taking his route through Achaia and Boeotia, and across Euboea, he arrived at Demetrias in Thessaly on the tenth day after his departure from Dymae.

[27.33] There he was met by still more alarming tidings; the Dardanians were pouring into Macedonia and were already in occupation of the Orestides district, they had even descended into the Argestaeon Plain. The report was current that Philip had been killed; the rumour was due to the fact that in the encounter with the plundering parties from the Roman fleet at Sicyon, his horse flung him against a tree and one of the horns of his helmet was broken off by a projecting branch. This was afterwards picked up by an Aetolian and taken to Scerdilaedus, who recognised it. Hence the rumour. After the king had left Achaia Sulpicius sailed to Aegina and Scipio in Spain joined forces with Attalus. The Achaeans in conjunction with the Aetolians and Eleans fought a successful action not far from Messene. Attalus and Sulpicius went into winter quarters in Aegina. At the close of this year the consul T. Quinctius died of his wounds,

having previously nominated T. Manlius Torquatus Dictator to conduct the elections. Some say he died in Tarentum, others, in Campania. This accident of two consuls being killed in a quite unimportant action had never occurred in any previous war, and it left the republic, so to speak, in a state of orphanhood. The Dictator named C. Servilius, who was curule aedile at the time, his Master of the Horse. On the first day of their session the senate instructed the Dictator to celebrate the Great Games. M. Aemilius, who was city praetor at the time, had celebrated them in the consulship of C. Flaminius and Cnaeus Servilius, and had made a vow that they should be celebrated in five years' time. The Dictator celebrated them accordingly, and made a vow that they should be repeated at the following lustrum. Meanwhile, as the two consular armies had no generals and were in such close proximity to the enemy, both senate and people were anxious that all other business should be postponed, and consuls elected as soon as possible. It was felt that, above all, men ought to be elected whose courage and skill would be proof against the wiles of the Carthaginian, for all through the war the hot and hasty temperament of different commanders had proved disastrous, and in that very year the consuls had been led by their eagerness to come to grips with the enemy into snares of which they did not suspect the existence. The gods, however, out of pity for the name of Rome, spared the unoffending armies and visited the rashness of the consuls on their own heads.

[27.34]When the patricians began to look round and see who would make the best consuls, one man stood out conspicuously - C. Claudius Nero. The question was, who was to be his colleague? He was regarded as a man of exceptional ability but too impulsive and venturesome for such a war as the present one, or such an enemy as Hannibal, and they felt that his impetuous temperament needed to be restrained by a cool and prudent colleague. Their thoughts turned to M. Livius. He had been consul several years previously, and after laying down his consulship had been impeached before the Assembly and found guilty. This disgrace he felt so keenly that he removed into the country, and for many years was a stranger to the City and to all public gatherings. It was about eight years after his condemnation that the consuls M. Claudius Marcellus and M. Valerius Laevinus brought him back to the City, but his squalid garments, his neglected hair and beard, his whole appearance showed pretty clearly that he

had not forgotten the humiliation. The censors L. Veturius and P. Licinius made him trim his hair and beard and lay aside his squalid garments and take his place in the senate and discharge other public duties. Even then he contented himself with a simple "aye" or "no" to the question before the House, and in the event of a division with a silent vote, until the case of his kinsman Marcus Livius Macatus came up, when the attack upon his relative's fair fame compelled him to rise in his place and address the House. The voice which after so long an interval was once more heard was listened to with deep attention, and the senators remarked to one another that the people had wronged an innocent man to the great detriment of the commonwealth, which in the stress of a grievous war had been unable to avail itself of the help and counsel of such a man as that. Neither Q. Fabius nor M. Valerius Laevinus could be assigned to C. Nero as his colleague because it was illegal for two patricians to be elected, and the same difficulty existed in the case of T. Manlius, who had moreover already refused a consulship and would continue to refuse it. If they gave him M. Livius as colleague, they felt that they would have a splendid pair of consuls. This suggestion put forward by the senators was approved by the great body of the people. There was only one among all the citizens who rejected it and that was the man on whom the honour was to be conferred. He accused them of inconsistency. "When he appeared in mourning garments at his trial they felt no pity for him, now, in spite of his refusal, they would have him put on the white robe of the candidate. They heaped penalties and honours on the same man. If they thought that he was a good citizen, why had they condemned him as a criminal? If they had found him to be a criminal, why were they entrusting him with a second consulship after he had misused the first?" The senators severely censured him for complaining and protesting in this way, and reminded him of M. Furius Camillus who after being recalled from exile restored his country to its ancient seat. "We ought to treat our country," they told him, "like our parents, and disarm its severity by patience and submission." By their united efforts they succeeded in making him consul with C. Claudius Nero.

[27.35] Three days later came the election of praetors. Those elected were L. Porcius Licinius, C. Mamilius and the two Catos, C. Hostilius and A. Hostilius. When the elections were over and the Games concluded, the Dictator and the Master of the Horse resigned office.

C. Terentius Varro was sent into Etruria as *propraetor* to relieve C. Hostilius, who was to take over the command of the army at Tarentum which the consul T. Quinctius had had. L. Manlius was to go to Greece and find out what was going on there. As the Olympian Games were to be held this summer, and as a very large gathering would be there, he was, if he could get through the enemy's forces, to be present at them and inform those Sicilians who had fled there from the war and any citizens of Tarentum who had been banished by Hannibal that they might return home and rest assured that the Roman people would restore to them all that they possessed before the war. As the coming year seemed to be fraught with most serious dangers, and the State was for the moment without consuls, all eyes were turned to the consuls-elect, and it was universally hoped that they would lose no time in balloting for their provinces and deciding what enemy each of them would have to meet. On the initiative of Q. Fabius Maximus a resolution was earned in the senate insisting upon their becoming reconciled to each other. Their quarrel was only too notorious, and was embittered by Livius' resentment at the insulting treatment he had received, for he felt that his honour had been sullied by his prosecution. This made him all the more implacable; he said that there was no need for any reconciliation, each would act with greater energy and alertness if he knew that failure to do so would give his enemy an advantage. However, the senate successfully exerted their authority, and they were induced to lay aside their private differences and conduct the affairs of State with one mind and one policy. Their provinces were not contiguous as in former years, but widely separated, at the extremities of Italy. One was to act against Hannibal in Bruttium and Lucania, the other in Gaul against Hasdrubal, who was reported to be now nearing the Alps. The consul to whose lot Gaul should fall was to choose either the army which was in Gaul or the one in Etruria, and would receive in addition the army of the City. The one to whom Bruttium fell was to raise fresh legions in the City and select one of the two consular armies of the previous year. The other one Q. Fabius was to take over as *proconsul*, in which capacity he was to act for the year. C. Hostilius, who had already been removed from Etruria to Tarentum, was now again to change from Tarentum to Capua. One legion was given him, the one which Fulvius had commanded.

[27.36]Hasdrubal's appearance in Italy was looked forward to with daily increasing anxiety. The first news came from the Massilians, who reported that he had passed into Gaul, and that there was widespread excitement amongst the natives owing to a rumour that he had brought a large amount of gold for the payment of auxiliary troops. The Massilian envoys were accompanied on their return by Sextus Antistius and M. Raecius, who were sent to make further investigations. These reported that they had sent emissaries, accompanied by some Massilians who had friends amongst, the Gaulish chieftains, to gain information and that they had definitely ascertained that Hasdrubal intended to cross the Alps the next spring with an enormous army. The only thing that kept him from advancing at once was that the Alps were insurmountable in winter. P. Aelius Paetus was appointed and consecrated augur in place of M. Marcellus, and Cnaeus Cornelius Dolabella was consecrated "King of Sacrifices" in place of M. Marcius, who had been dead for two years. The lustrum was closed by the censors P. Sempronius Tuditanus and M. Cornelius Cethegus. The census returns gave the number of citizens as 137,108, a considerably smaller number than the one before the beginning of the war. For the first time since Hannibal had invaded Italy the comitium is stated to have been covered over and the Roman Games were celebrated for one day by the curule aediles Q. Metellus and C. Servilius. The Plebeian Games also were celebrated for two days by the plebeian aediles C. Mamilius and M. Caecilius Metellus. They also gave three statues to the temple of Ceres, and a banquet was held in honour of Jupiter on the occasion of the Games. The consuls then entered upon office; C. Claudius Nero for the first time, M. Livius for the second. As they had balloted for their provinces they ordered the praetors to ballot for theirs. The urban jurisdiction fell to C. Hostilius, and the jurisdiction over aliens was also committed to him in order that three praetors might be available for foreign service. A. Hostilius was allotted to Sardinia, C. Mamilius to Sicily and L. Porcius to Gaul. The total military strength amounted to twenty-three legions and were thus distributed: each of the consuls had two; four were in Spain; each of the three praetors had two in Sardinia, Sicily and Gaul respectively; C. Terentius had two in Etruria; Quintus Fulvius had two in Bruttium; Q. Claudius had two in the neighbourhood of Tarentum and the Sallentine district; C. Hostilius Tubulus had one at Capua; and two were raised

in the City for home defence. The people appointed the military tribunes for the first four legions; the consuls commissioned the rest.

[27.37]Prior to the departure of the consuls religious observances were kept up for nine days owing to the fall of a shower of stones at Veii. As usual, no sooner was one portent announced than reports were brought in of others. At Menturnae the temple of Jupiter and the sacred grove of Marica were struck with lightning, as were also the wall of Atella and one of the gates. The people of Menturnae reported a second and more appalling portent; a stream of blood had flowed in at their gate. At Capua a wolf had entered the gate by night and mauled one of the watch. These portents were expiated by the sacrifice of full-grown victims, and special intercessions for the whole of one day were ordered by the pontiffs. Subsequently a second nine days' observance was ordered in consequence of a shower of stones which fell in the Armilustrum. No sooner were men's fears allayed by these expiatory rites than a fresh report came, this time from Frusino, to the effect that a child had been born there in size and appearance equal to one four years old, and what was still more startling, like the case at Sinuessa two years previously, it was impossible to say whether it was male or female. The diviners who had been summoned from Etruria said that this was a dreadful portent, and the thing must be banished from Roman soil, kept from any contact with the earth, and buried in the sea. They enclosed it alive in a box, took it out to sea, and dropped it overboard.

The pontiffs also decreed that three bands of maidens, each consisting of nine, should go through the City singing a hymn. This hymn was composed by the poet Livius, and while they were practicing it in the temple of Jupiter Stator, the shrine of Queen Juno on the Aventine was struck by lightning. The diviners were consulted, and they declared that this portent concerned the matrons and that the goddess must be appeased by a gift. The curule aediles issued an edict summoning to the Capitol all the matrons whose homes were in Rome or within a distance of ten miles. When they were assembled they selected twenty-five of their number to receive their offerings; these they contributed out of their dowries. From the sum thus collected a golden basin was made and carried as an oblation to the Aventine, where the matrons offered a pure and chaste sacrifice. Immediately afterwards the Keepers of the Sacred Books gave notice of a day for further sacrificial rites in honour of this deity. The

following was the order of their observance. Two white heifers were led from the temple of Apollo through the Carmental Gate into the City; after them were borne two images of the goddess, made of cypress wood. Then twenty-seven maidens, vested in long robes, walked in procession singing a hymn in her honour, which was perhaps admired in those rude days, but which would be considered very uncouth and unpleasing if it were recited now. After the train of maidens came the ten Keepers of the Sacred Books wearing the toga praetexta, and with laurel wreaths round their brows. From the Carmental Gate the procession marched along the Vicus Jugarius into the Forum, where it stopped. Here the girls, all holding a cord, commenced a solemn dance while they sang, beating time with their feet to the sound of their voices. They then resumed their course along the Vicus Tuscus and the Velabrum, through the Forum Boarium, and up the Clivus Publicius till they reached the temple of Juno. Here the two heifers were sacrificed by the Ten Keepers, and the cypress images were carried into the shrine.

[27.38]After the deities had been duly appeased, the consuls proceeded with the levy and conducted it with a rigour and exactitude such as no one could remember in former years. The appearance of a fresh enemy in Italy redoubled the apprehensions generally felt as to the issue of the war, and at the same time there was a smaller population from which to obtain the men required. Even the maritime colonies which were declared to have been solemnly and formally exempted from military service were called upon to furnish soldiers, and on their refusal a day was fixed on which they were to appear before the senate and state, each for themselves, the grounds on which they claimed exemption. On the appointed day representatives attended from Ostia, Alsium, Antium, Anxur, Menturnae, Sinuessa, and from Sena on the upper sea. Each community produced its title to exemption, but as the enemy was in Italy, the claim was disallowed in the case of all but two - Antium and Ostia - and in the case of these, the men of military age were compelled to take an oath that they would not sleep outside their walls for more than thirty nights as long as the enemy was in Italy. Everybody was of opinion that the consuls ought to take the field at the earliest possible moment; for Hasdrubal must be met on his descent from the Alps, otherwise he might foment a rising amongst the Cisalpine Gauls and in Etruria, and Hannibal must be kept fully

employed, so as to prevent his leaving Bruttium and meeting his brother. Still Livius delayed. He did not feel confidence in the troops assigned to him, and complained that his colleague had his choice of three splendid armies. He also suggested the recall to the standards of the volunteer slaves. The senate gave the consuls full powers to obtain reinforcements in any way they thought best, to select what men they wanted from all the armies and to exchange and transfer troops from one province to another as they thought best in the interest of the State. The consuls acted in perfect harmony in carrying out all these measures. The volunteer slaves were incorporated in the nineteenth and twentieth legions. Some authorities assert that Publius Scipio sent M. Livius strong reinforcements from Spain including 8000 Gauls and Spaniards, 2000 legionaries, and 1000 Numidian and Spanish horse, and that this force was transported to Italy by M. Lucretius. It is further stated that C. Mamilius sent 3000 bowmen and slingers from Sicily.

[27.39]The excitement and alarm in Rome were heightened by a despatch from L. Porcius, the propraetor commanding in Gaul. He announced that Hasdrubal had left his winter quarters and was actually crossing the Alps. He was to be joined by a force of 8000 men raised and equipped amongst the Ligurians, unless a Roman army were sent into Liguria to occupy the attention of the Gauls. Porcius added that he would himself advance as far as he safely could with such a weak army. The receipt of this despatch made the consuls hurry on the enlistment, and on its completion they left for their provinces at an earlier date than they had fixed. Their intention was that each of them should keep his enemy in his own province and not allow the brothers to unite or concentrate their forces. They were materially assisted by a miscalculation which Hannibal made. He quite expected his brother to cross the Alps during the summer, but remembering his own experience in the passage first of the Rhone and then of the Alps, and how for five months he had had to carry on an exhausting struggle against man and against nature, he had no idea that Hasdrubal's passage would be as easy and rapid as it really was. Owing to this mistake he was too late in moving out of his winter quarters. Hasdrubal, however, had a more expeditious march and met with fewer difficulties than either he or anyone else expected. Not only did the Arverni and the other Gallic and Alpine tribes give him a friendly reception, but they followed his standard. He was,

moreover, marching mainly over roads made by his brother where before there were none, and as the Alps had now been traversed to and fro for twelve years he found the natives less savage. Previously they had never visited strange lands nor been accustomed to seeing strangers in their own country; they had held no intercourse with the rest of the world. Not knowing at first the destination of the Carthaginian general, they imagined that he wanted their rocks and strongholds and intended to carry off their men and cattle as plunder. Then when they heard about the Punic War with which Italy had been alight for twelve years, they quite understood that the Alps were only a passage from one country to another, and that the struggle lay between two mighty cities, separated by a vast stretch of sea and land, which were contending for power and dominion. This was the reason why the Alps lay open to Hasdrubal. But whatever advantage he gained by the rapidity of his march was forfeited by the time he wasted at Placentia, where he commenced a fruitless investment instead of attempting a direct assault. Lying as it did in flat open country he thought that the town would be taken without difficulty, and that the capture of such an important colony would deter the others from offering any resistance. Not only was his own advance hampered by this investment, but he also retarded Hannibal's movements, who, on learning of his brother's unexpectedly rapid march, had quitted his winter quarters, for Hannibal knew what a slow business sieges usually are and had not forgotten his own unsuccessful attempt on that very colony after his victory at the Trebia.

[27.40]The consuls left for the front, each by a separate route, and their departure was watched with feelings of painful anxiety. Men realised that the republic had two wars on its hands simultaneously; they recalled the disasters which followed upon Hannibal's appearance in Italy, and wondered what gods would be so propitious to the City and the empire as to grant victory over two enemies at once in widely distant fields. Up till now heaven had preserved it by balancing victories against defeats. When the cause of Rome had been brought to the ground in Italy at Thrasymenus and at Cannae, the successes in Spain raised it up once more; when reverse after reverse had been sustained in Spain and the State lost its two generals and the greater part of both their armies, the many successes achieved in Italy and Sicily stayed the collapse of the battered republic, whilst

the distance at which that unsuccessful war was waged in the remotest corner of the world afforded in itself a breathing space. Now they had two wars on hand, both in Italy; two generals who bore illustrious names were closing round Rome; the whole weight of the peril, the whole burden of the conflict had settled down on one spot. The one who was first victorious would in a few days unite his forces with the other. Such were the gloomy forebodings, and they were deepened by the recollections of the past year made so mournful by the death of both consuls. In this depressed and anxious mood the population escorted the consuls to the gates of the City, as they left for their respective provinces. There is an utterance recorded of M. Livius which shows his bitter feeling towards his fellow-citizens. When on his departure Q. Fabius warned him against giving battle before he knew the sort of enemy he had to meet, Livius is said to have replied that he would fight as soon as he caught sight of the enemy. When asked why he was in such a hurry he said: "Either I shall win special distinction from conquering such an enemy or a well-earned if not very honourable pleasure from the defeat of my fellow-citizens." Before the consul Claudius Nero arrived in his province, Hannibal, who was marching just outside the frontiers of the territory of Larinum on his way to the Sallentini, was attacked by C. Hostilius Tubulus. His light infantry created considerable disorder amongst the enemy, who were not prepared for action; 4000 of them were slain, and nine standards captured. Q. Claudius had quartered his troops in various cities in the Sallentine district, and on hearing of the enemy's approach he quitted his winter quarters and took the field against him. Not wishing to meet both armies at once, Hannibal left the neighbourhood by night, and withdrew into Bruttium. Claudius marched back into the Sallentine territory, and Hostilius while on his way to Capua met the consul Claudius Nero near Venusia. Here a corps d'elite was selected from both armies, consisting of 40,000 infantry and 2500 cavalry, which the consul intended to employ against Hannibal. The rest of the troops Hostilius was ordered to take to Capua and then hand them over to Q. Fulvius the proconsul.

[27.41]Hannibal assembled the whole of his force, those in winter quarters and those on garrison duty in Bruttium, and marched to Grumentum in Lucania, with the intention of recovering the towns whose inhabitants had been led by their fears to go over to Rome.

The Roman consul marched to the same place from Venusia, making careful reconnaissances as he advanced, and fixed his camp about a mile and a half from the enemy. The rampart of the Carthaginian camp seemed to be almost touching the walls of Grumentum; there was really half a mile between them. Between the two hostile camps the ground was level; on the Carthaginian left and the Roman right stretched a line of bare hills which did not arouse any suspicion on either side, as they were quite devoid of vegetation and afforded no hollows where an ambushade could be concealed. In the plain between the camps small skirmishes took place between the advanced posts, the one object of the Roman evidently being to prevent the retirement of the enemy; Hannibal, who was anxious to get away, marched on to the field with his whole force marshalled for battle. The consul, adopting his enemy's tactics with all the more chance of success since there could be no fears of an ambushade on such open ground, told off five cohorts strengthened with five maniples of Roman troops to mount the hill by night and take their station in the dip on the other side. He placed T. Claudius Asellus a military tribune and P. Claudius a prefect of allies in command of the party, and gave them instructions as to the moment when they were to rise from ambush and attack the enemy. At dawn of the following day he led out the whole of his force, horse and foot, to battle. Soon after Hannibal, too, gave the signal for action, and his camp rang with the shouts of his men as they ran to arms. Scrambling through the gates of the camp, mounted and unmounted men each trying to be first they raced over the plain in scattered groups towards the enemy. When the consul saw them in this disorder he ordered C. Aurunculeius, military tribune of the third legion, to send the cavalry attached to his legion at full gallop against the enemy, for, as he said, they were scattered over the plain like a flock of sheep and could be ridden down and trampled under foot before they could close their ranks.

[27.42]Hannibal had not left his camp, when he heard the noise of the battle. He lost not a moment in leading his force against the enemy. The Roman cavalry had already created a panic amongst the foremost of their assailants, the first legion and the allied contingent on the left wing were coming into action, the enemy in no sort of formation were fighting with infantry or cavalry as they happened to meet them. As their reinforcements and supports came up the

fighting became more general, and Hannibal would have succeeded in getting his men into order in spite of the confusion and panic - a task almost impossible for any but veteran troops under a veteran commander - if they had not heard in their rear the shouts of the cohorts and maniples running down the hill, and saw themselves in danger of being cut off from their camp. The panic spread and flight became general in all parts of the field. The nearness of their camp made their flight easy, and for this reason their losses were comparatively small, considering that the cavalry were pressing on their rear and the cohorts charging along an easy road down the hill were attacking their flank. Still, over 8000 men were killed and 700 made prisoners, nine standards were captured, and of the elephants which had proved useless in the confusion and hurry of the fight four were killed and two captured. About 500 Roman and allies fell. The next day the Carthaginians remained quiet. The Roman general marched in battle order on to the field, but when he saw that no standards were advancing from the opposing camp he ordered his men to gather the spoils of the slain and collect the bodies of their comrades and bury them in one common grave. Then for several days in succession he marched up so close to the gates that it seemed as though he were going to attack the camp, until Hannibal made up his mind to depart. Leaving numerous fires burning and tents standing on the side of the camp facing the Romans, and a few Numidians who were to show themselves on the rampart and at the gates, he set out with the intention of marching into Apulia. As soon as it grew light, the Roman army approached the rampart and the Numidians made themselves visible on the ramparts and at the gates. After deceiving their enemy for some time they rode off at full speed to join their comrades. When the consul found that the camp was silent and that even the few who had been patrolling it at dawn were nowhere visible, he sent two troopers into the camp to reconnoitre. They brought back word that they had examined it and found it safe everywhere, on which he ordered the troops to enter. He waited while the soldiers secured the plunder, and then the signal was given to retire; long before nightfall he had his soldiers back in camp. Very early next morning he started in pursuit and, guided by the local information supplied to him and the traces of their retreat, he succeeded, by making forced marches, in coming up with the enemy not far from Venusia. There a second irregular action took place in which the Carthaginians lost 2000 men. After this Hannibal decided

to give no further opportunity of fighting and, in a series of night marches over the mountains, made for Metapontum. Hanno was in command of the garrison here, and he was sent with a few troops into Bruttium to raise a fresh army there. The rest of his force Hannibal incorporated with his own, and retracing his steps reached Venusia, and from there went on to Canusium. Nero never lost touch with him, and while he was following him to Metapontum he sent Q. Fulvius into Lucania, so that that country might not be left without a defending force.

[27.43] After Hasdrubal had raised the siege of Placentia, he sent off four Gaulish and two Numidian troopers with despatches to Hannibal. They had passed through the midst of the enemy, and almost traversed the length of Italy, and were following Hannibal's retreat to Metapontum when they missed the road and were brought to Tarentum. Here they were caught by a Roman foraging party dispersed amongst the fields, and conducted to the proprætor Q. Claudius. At first they tried to mislead him by evasive answers, but the fear of torture compelled them to confess the truth, and they informed him that they were the bearers of despatches from Hasdrubal to Hannibal. They and the despatches, with seals intact, were handed over to L. Verginius, one of the military tribunes. He was furnished with an escort of two troops of Samnite cavalry, and ordered to conduct the six troopers to the consul Claudius Nero. After the despatches had been translated to him, and the prisoners had been examined, the consul saw that the regulation which confined each consul to the province and the army and the enemy which had been designated for him by the senate would not in the present instance be beneficial to the republic. He would have to venture upon a startling innovation, and though at the outset it might create as much alarm among his own countrymen as amongst the enemy, it would, when carried through, turn their great fear into great rejoicing. Hasdrubal's despatches he sent on to the senate together with one from himself explaining his project. As Hasdrubal had written to say that he would meet his brother in Umbria, he advised the senators to recall the Roman legion from Capua, raise troops in Rome, and with this City force oppose the enemy at Narnia. This was what he wrote to the senate. But he also sent couriers into the districts through which he intended to march - Larinum, Marrucina, Frentanum and Praetutia - to warn the inhabitants to collect all the

supplies from the towns and the country districts and have them in readiness on the line of march to feed the troops. They were also to bring their horses and other draught animals so that there might be an ample supply of vehicles for the men who fell out through fatigue. Out of the whole of his army he selected a force of 6000 infantry and 1000 cavalry, the flower of the Roman and allied contingents, and gave out that he intended to seize the nearest city in Lucania with its Carthaginian garrison, so that all should be ready to march. Starting by night, he turned off in the direction of Picenum. Leaving Q. Cadius, his second in command, in charge of the camp he marched as rapidly as he could to join his colleague.

[27.44]The excitement and alarm in Rome were quite as great as they had been two years previously, when the Carthaginian camp was visible from the walls and gates of the City. People could not make up their minds whether the consul's daring march was more to be lauded or censured, and it was evident that they would await the result before pronouncing for or against it - a most unfair way of judging. "The camp," they said, "is left, near an enemy like Hannibal, with no general, with an army from which its main strength, the flower of its soldiery, has been withdrawn. Pretending to march into Lucania, the consul has taken the road to Picenum and Gaul, leaving the safety of his camp dependent upon the ignorance of the enemy as to what direction he and his division have taken. What will happen if they find that out, if Hannibal with his whole army decides to start in pursuit of Nero with his 6000 men, or attacks the camp, left as it is to be plundered, without defence, without a general with full powers or one who can take the auspices?" The former disasters in this war, the recollection of the two consuls killed the previous year, filled them with dread. "All those things," it was said, "happened when the enemy had only one commander and one army in Italy; now there are two distinct wars going on, two immense armies, and practically two Hannibals in Italy, for Hasdrubal too is a son of Hamilcar and is quite as able and energetic a commander as his brother. He has been trained in war against Rome for many years in Spain, and distinguished himself by the double victory in which he annihilated two Roman armies and their illustrious captains. In the rapidity of his march from Spain, and the way in which he has roused the tribes of Gaul to arms, he can boast of far greater success than even Hannibal himself, for he got together an army in those very districts in which

his brother lost the greater part of his force by cold and hunger, the most miserable of all deaths." Those who were acquainted with recent events in Spain went on to say that he would meet in Nero a general who was no stranger to him, for he was the general whom Hasdrubal, when intercepted in a narrow pass, had duped and baffled as though he were a child by making illusory proposals for peace. In this way they exaggerated the strength of the enemy and depreciated their own, their fears made them look on the darkest side of everything.

[27.45]When Nero had placed a sufficient distance between himself and the enemy to make it safe for him to reveal his design, he made a brief address to his men. "No commander," he said, "has ever formed a project apparently more risky but really less so than mine. I am leading you to certain victory. My colleague did not enter upon this campaign until he had obtained from the senate such a force of infantry and cavalry as he deemed sufficient, a force indeed more numerous and better equipped than if he were advancing against Hannibal himself. However small the addition you are now making to it, it will be enough to turn the scale. When once the news spreads on the battle-field - and I will take care that it does not spread sooner - that a second consul has arrived with a second army, it will make victory no longer doubtful. Rumour decides battles; slight impulses sway men's hopes and fears; if we are successful you yourselves will reap almost all the glory of it, for it is always the last weight added that has the credit of turning the balance. You see for yourselves what admiring and enthusiastic crowds welcome you as you march along." And indeed they did advance amidst vows and prayers and blessings from the lines of men and women who were gathered everywhere out of the fields and homesteads. They were called the defenders of the republic, the vindicators of the City and sovereignty of Rome; upon their swords and strong right hands depended all security and liberty for the people and their children. The bystanders prayed to all the gods and goddesses to grant them a safe and prosperous march, a successful battle and an early victory over their foes. As they were now following them with anxious hearts, so they prayed that they might fulfil the vows which they were making when they went forth with joy to meet them flushed with the pride of victory. Then they invited the soldiers to take what they had brought for them, each begging and entreating them to take from his hands rather than from

any one else's what would be of use to them and their draught animals, and loading them with presents of all sorts. The soldiers showed the utmost moderation and refused to accept anything that was not absolutely necessary. They did not interrupt their march or leave the ranks or even halt to take food; day and night they went steadily on, hardly allowing themselves the rest which nature demanded. The consul sent messages in advance to announce his coming to his colleague, and to enquire whether it would be better to come secretly or openly, by night or by day, and also whether they were to occupy the same camp or separate ones. It was thought better that he should come by night.

[27.46]The consul Livius had issued a secret order by means of the tessera that the tribunes should take in the tribunes who were coming; the centurions, the centurions; the cavalry, their mounted comrades; and the legionaries, the infantry. It was not desirable to extend the camp, his object was to keep the enemy in ignorance of the other consul's arrival. The crowding together of a larger number of men in the restricted space afforded by the tents was rendered all the easier because Claudius' army, in their hurried march, had brought hardly anything with them except their arms. On the march, however, their numbers had been augmented by volunteers, partly old soldiers who had served their time and partly young men who were anxious to join. Claudius enlisted those whose appearance and strength seemed to qualify them for service. Livius' camp was in the neighbourhood of Sena, and Hasdrubal was about half a mile distant. When he found that he was nearing the place, the consul halted where he was screened by the mountains, so as not to enter the camp before night. Then the men entered in silence and were conducted to the tents, each by a man of his own rank, where they received the warmest of welcomes and most hospitable entertainment. Next day a council of war was held, at which the praetor L. Porcius Licinus was present. His camp was now contiguous with that of the consuls; before their arrival he had adopted every possible device to baffle the Carthaginian by marching along the heights and seizing the passes, so as to check his advance, and also by harassing his columns whilst on the march. Many of those present at the council were in favour of postponing battle in order that Nero might recruit his troops worn out with the length of the march and want of sleep, and also might have a few days for getting to know his enemy. Nero tried to dissuade

them from this course, and earnestly implored them not to endanger the success of his plan after he had made it perfectly safe by the rapidity of his march. Hannibal's activity, he argued, was so to speak paralysed by a mistake which he would not be long in rectifying; he had neither attacked the camp in the absence of its commander, nor had he made up his mind to follow him on his march. Before he moved, it was possible to destroy Hasdrubal's army and march back into Apulia. "To give the enemy time by putting off the engagement would be to betray their camp in Apulia to Hannibal and give him a clear road into Gaul, so that he would be able to form a junction with Hasdrubal when and where he pleased. The signal for action must be given at once, and we must march on to the field and profit by the mistakes which both our enemies are making, the distant one and the one close at hand. That one does not know that he has to deal with a smaller army than he supposes, this one is not aware that he has to meet a larger and stronger one than he imagines." As soon as the council broke up, the red ensign was displayed and the army at once took the field.

[27.47]The enemy were already standing in front of their camp, in battle order. But there was a pause. Hasdrubal had ridden to the front with a handful of cavalry, when he noticed in the hostile ranks some well-worn shields which he had not seen before, and some unusually lean horses; the numbers, too, seemed greater than usual. Suspecting the truth he hastily withdrew his troops into camp and sent men down to the river from which the Romans obtained water, to catch if they could some of the watering parties and see whether they were especially sunburnt, as is generally the case after a long march. He ordered, at the same time, mounted patrols to ride round the consul's camp and observe whether the lines had been extended in any direction and to notice at the same time whether the bugle-call was sounded once or twice in the camp. They reported that both the camps - M. Livius' camp and that of L. Porcius - were just as they had been, no addition had been made, and this misled him. But they also informed him that the bugle-call was sounded once in the praetor's camp and twice in the consul's, and this perturbed the veteran commander, familiar as he was with the habits of the Romans. He concluded that both the consuls were there and was anxiously wondering how the one consul had got away from Hannibal. Least of all could he suspect what had actually occurred,

namely that Hannibal had been so completely outwitted that he did not know the whereabouts of the commander and the army whose camp had been so close to his own. As his brother had not ventured to follow the consul, he felt quite certain that he had sustained a serious defeat, and he felt the gravest apprehensions lest he should have come too late to save a desperate situation, and lest the Romans should enjoy the same good fortune in Italy which they had met with in Spain. Then again he was convinced that his letter had never reached Hannibal, but had been intercepted by the consul who then hastened to crush him. Amidst these gloomy forebodings he ordered the camp fires to be extinguished, and gave the signal at the first watch for all the baggage to be collected in silence. The army then left the camp. In the hurry and confusion of the night march the guides, who had not been kept under very close observation, slipped away; one hid himself in a place selected beforehand, the other swam across the Metaurus at a spot well known to him. The column deprived of its guides marched on aimlessly across country, and many, worn out by sleeplessness flung themselves down to rest, those who remained with the standards becoming fewer and fewer. Until daylight showed him his route, Hasdrubal ordered the head of the column to advance cautiously, but finding that owing to the bends and turns of the river he had made little progress, he made arrangements for crossing it as soon as daybreak should show him a convenient place. But he was unable to find one, for the further he marched from the sea, the higher were the banks which confined the stream, and by thus wasting the day he gave his enemy time to follow him.

[27.48]Nero with the whole of the cavalry was the first to come up, then Porcius followed with the light infantry. They began to harass their wearied enemy by repeated charges on all sides, until Hasdrubal stopped a march which began to resemble a flight, and decided to form camp on a hill which commanded the river. At this juncture Livius appeared with the heavy infantry, not in order of march, but deployed and armed for immediate battle. All their forces were now massed together, and the line was formed; Claudius Nero taking command of the right wing, Livius of the left, while the centre was assigned to the praetor. When Hasdrubal saw that he must give up all idea of entrenching himself and prepare to fight, he stationed the elephants in the front, the Gauls near them on the left to oppose

Claudius, not so much because he trusted them as because he hoped they would frighten the enemy, while on the right, where he commanded in person, he posted the Spaniards in whom as veteran troops he placed most confidence. The Ligurians were stationed in the centre behind the elephants. His formation was greater in depth than length and the Gauls were covered by a hill which extended across their front. That part of the line which Hasdrubal and his Spaniards held engaged the Roman left; the whole of the Roman right was shut out from the fighting, the hill in front prevented them from making either a frontal or a flank attack. The struggle between Livius and Hasdrubal was a fierce one, and both sides lost heavily. Here were the two captains, the greater part of the Roman infantry and cavalry, the Spaniards who were veteran soldiers and used to the Roman methods of fighting, and also the Ligurians, a people hardened by warfare. To this part of the field the elephants too had been driven, and at their first onset they threw the front ranks into confusion and forced the standards to give way. Then as the fighting became hotter and the noise and shouting more furious, it became impossible to control them, they rushed about between the two armies as though they did not know to which side they belonged, just like ships drifting rudderless. Nero made fruitless efforts to scale the hill in front of him, calling out repeatedly to his men, "Why have we made so long a march at such break-neck speed?" When he found it impossible to reach the enemy in that direction, he detached some cohorts from his right wing where he saw that they were more likely to stand on guard than to take any part in the fighting, led them past the rear of his division and to the surprise of his own men as much as of the enemy commenced an attack upon the enemy's flank. So rapidly was this maneuver executed, that almost as soon as they showed themselves on the flank, they were attacking the rear of the enemy. Thus attacked on every side, front, flank and rear, Spaniards and Ligurians alike were simply massacred where they stood. At last the carnage reached the Gauls. Here there was very little fighting, for a great many had fallen out during the night and were lying asleep everywhere in the fields, and those who were still with the standards were worn out by the long march and want of sleep, and being quite unable to stand fatigue could hardly sustain the weight of their armour. It was now mid-day, and the heat and thirst made them gasp for breath, until they were cut down or made prisoners without offering any resistance.

[27.49] More elephants were killed by their drivers than by the enemy. They had a carpenter's chisel and a mallet, and when the maddened beasts rushed among their own side the driver placed the chisel between the ears just where the head is joined to the neck and drove it home with all his might. This was the quickest method that had been discovered of putting these huge animals to death when there was no hope of controlling them, and Hasdrubal was the first to introduce it. Often had this commander distinguished himself in other battles, but never more than in this one. He kept up the spirits of his men as they fought by words of encouragement and by sharing their dangers; when, weary and dispirited, they would no longer fight, he rekindled their courage by his entreaties and reproaches; he rallied those in flight and often revived the battle where it had been abandoned. At last when the fortune of the day was decisively with the enemy he refused to survive that great army which had followed him, drawn by the magic of his name, and setting spurs to his horse dashed against a Roman cohort. There he fell fighting - a death worthy of Hamilcar's son and Hannibal's brother. Never during the whole of the war had so many of the enemy perished in a single battle. The death of the commander and the destruction of his army were regarded as an adequate repayment for the disaster of Cannae. 56,000 of the enemy were killed, 5400 taken prisoners, and a great quantity of plunder was secured, especially of gold and silver. Above 3000 Romans who had been captured by the enemy were recovered, and this was some consolation for the losses incurred in the battle. For the victory was by no means a bloodless one; about 8000 Romans and allies were killed. So satiated were the victors with bloodshed and carnage that when it was reported to Livius on the following day that the Cisalpine Gauls and Ligurians who had taken no part in the battle or had escaped from the field were marching off in a body without general or standards or any one to give the word of command, and that a single squadron of cavalry could wipe out the whole lot, the consul replied: "Let some survive to carry the news of their defeat and our victory."

[27.50] The night after the battle Nero started off at a more rapid pace than he had come, and in six days reached his camp and was once more in touch with Hannibal. His march was not watched by the same crowds as before, because no messengers preceded him, but his return was welcomed with such extravagant delight that people were

almost beside themselves for joy. As to the state of feeling in Rome, it is impossible to describe it, or to picture the anxiety with which the citizens waited for the result of the battle or the enthusiasm which the report of the victory aroused. Never from the day when the news came that Nero had commenced his march had any senator left the House, or the people the Forum from sunrise to sunset. The matrons, as they could give no active help, betook themselves to prayers and intercessions; they thronged all the shrines and assailed the gods with supplications and vows. Whilst the citizens were in this state of anxious suspense, a vague rumour was started to the effect that two troopers belonging to Narnia had gone from the battle-field to the camp there which was holding the road to Umbria with the announcement that the enemy had been cut to pieces. People listened to the rumour, but they could not take it in, the news was too great, too joyful for them to realise or to accept as true, and the very speed at which it had travelled made it less credible, for the battle was reported as having taken place only two days previously. Then followed a despatch from L. Manlius Acidinus, reporting the arrival of the two troopers in his camp. When this despatch was carried through the Forum to the praetor's tribunal the senators left their seats, and such was the excitement of the people as they pushed and struggled round the door of the senate-house that the courier could not get near it. He was dragged away by the crowd, who demanded with loud shouts that the despatch should be read from the rostra before it was read in the senate-house. At last the magistrates succeeded in forcing back and restraining the populace, and it became possible for all to share in the joyous news they were so impatient to learn. The despatch was read first in the senate-house, and then in the Assembly. It was listened to with different feelings according to each man's temperament; some regarded the news as absolutely true, others would not believe it till they had the consul's despatch and the report of the envoys.

[27.51] Word was brought that the envoys were approaching. Everybody young and old alike ran out to meet them, each eager to drink in the good tidings with eyes and ears, and the crowd extended as far as the Mulvian bridge. The envoys were L. Veturius Philo, P. Licinius Varus and Q. Caecilius Metellus. They made their way to the Forum surrounded by a crowd which represented every class of the population, and besieged by questions on all sides as to what had

really happened. No sooner did any one hear that the army of the enemy and its commander had been slain whilst the consuls and their army were safe, than he hastened to make others sharers of his joy. The senate-house was reached with difficulty, and with much greater difficulty was the crowd prevented from invading the space reserved for the senators. Here the despatch was read, and then the envoys were conducted to the Assembly. After the despatch was read, L. Veturius gave fuller details and his narrative was received with bursts of applause, which finally swelled into universal cheers, the Assembly being hardly able to contain itself for joy. Some ran to the temples to give thanks to heaven, others hurried home that their wives and children might hear the good news. The senate decreed a three days' thanksgiving "because the consuls, M. Livius and C. Claudius Nero, had preserved their own armies in safety and destroyed the army of the enemy and its commander." C. Hostilius, the praetor, issued the order for its observance. The services were attended by men and women alike, the temples were crowded all through the three days, and the matrons in their most splendid robes, accompanied by their children, offered their thanksgivings to the gods, as free from anxiety and fear as though the war were over. This victory also relieved the financial position. People ventured to do business just as in a time of peace, buying and selling, lending and repaying loans. After Nero had returned to camp he gave orders for Hasdrubal's head, which he had kept and brought with him, to be thrown in front of the enemies' outpost, and the African prisoners to be exhibited just as they were in chains. Two of them were released with orders to go to Hannibal and report all that had happened. Stunned by the blow which had fallen on his country and on his family, it is said that Hannibal declared that he recognised the doom which awaited Carthage. He broke up his camp, and decided to concentrate in Bruttium, the remotest corner of Italy, all his supporters whom he could no longer protect, whilst scattered in the different cities. The whole population of Metapontum had to leave their homes together with all the Lucanians who acknowledged his supremacy, and were transported into Bruttian territory.

BOOK 28: THE FINAL CONQUEST OF SPAIN

[28.1] Though Hasdrubal's invasion had shifted the burden of war to Italy and brought corresponding relief to Spain, war was suddenly

renewed in that country which was quite as formidable as the previous one. At the time of Hasdrubal's departure Spain was divided between Rome and Carthage as follows: Hasdrubal Gisgo had retreated to the ocean littoral near Gades, the Mediterranean coastline and almost the whole of Eastern Spain was held by Scipio on behalf of Rome. A new general took Hasdrubal's place, named Hanno, who brought over a fresh army, and marched into Celtiberia, which lies between the Mediterranean and the ocean, and here he soon raised a very considerable army. Scipio sent M. Silanus against him with a force of not more than 10,000 infantry and 500 cavalry. Silanus marched with all the speed he could, but his progress was impeded by the bad state of the roads and by the narrow mountain passes, obstacles which are met with in most parts of Spain. In spite of these difficulties he outstripped not only any natives who might have carried tidings, but even any floating rumours of his advance, and with the assistance of some Celtiberian deserters who acted as guides he succeeded in finding the enemy. When he was about ten miles distant, he was informed by his guides that there were two camps near the road on which he was marching; the one on the left was occupied by the Celtiberians, a newly raised army about 9000 strong, the one on the right by the Carthaginians. The latter was carefully guarded by outposts, pickets and all the usual precautions against surprise; the Celtiberian camp was without any discipline, and all precautions were neglected as might be expected of barbarians and raw levies who felt all the less fear because they were in their own country. Silanus decided to attack that one first, and kept his men as much to the left as possible, so as not to be seen by the Carthaginian outposts. After sending on his scouts he advanced rapidly against the enemy.

[28.2]He was now about three miles away and none of the enemy had yet noticed his advance, the rocks and thickets which covered the whole of this hilly district concealed his movements. Before making his final advance, he ordered his men to halt in a valley where they were effectually hidden and take food. The scouting parties resumed and confirmed the statements of the deserters, on which the Romans, after placing the baggage in the centre and arming themselves for the combat, advanced in order of battle. The enemy caught sight of these when they were a mile distant and hurriedly prepared to meet them. As soon as Mago heard the shouting and confusion he galloped

across from his camp to take command. There were in the Celtiberian army 4000 men with shields and 200 cavalry, making up a regular legion. These were his main strength and he stationed them in the front; the rest who were lightly armed he posted in reserve. In this formation he led them out of the camp, but they had hardly crossed the rampart when the Romans hurled their javelins at them. The Spaniards stooped to avoid them, and then sprang up to discharge their own, which the Romans who were in their usual close order received on their overlapping shields; then they closed up foot to foot and fought with their swords. The Celtiberians, accustomed to rapid evolutions, found their agility useless on the broken ground, but the Romans, who were used to stationary fighting, found no inconvenience from it beyond the fact that their ranks were sometimes broken when moving through narrow places or patches of brushwood. Then they had to fight singly or in pairs, as if they were fighting duels.

These very obstacles, however, by impeding the enemy's flight, gave them up, as though bound hand and foot, to the sword. Almost all the heavy infantry of the Celtiberians had fallen when the Carthaginian light infantry, who had now come from the other camp, shared their fate. Not more than 2000 infantry escaped; the cavalry, which had hardly taken any part in the battle, together with Mago also got away. The other general, Hanno, was taken prisoner, together with those who were the last to appear in the field when the battle was already lost. Mago, with almost the whole of his cavalry and his veteran infantry, joined Hasdrubal at Gades ten days after the battle. The Celtiberian levies dispersed amongst the neighbouring forests and so reached their homes. So far the war had not been a serious one, but there was all the material for a much greater conflagration had it been possible to induce the other tribes to join the Celtiberians in arms; that possibility was by this most timely victory destroyed. Scipio therefore eulogised Silanus in generous terms, and felt hopeful of bringing the war to a termination if he on his part acted with sufficient promptitude. He advanced, accordingly, into the remote corner of Spain where all the remaining strength of Carthage was concentrated under Hasdrubal. He happened at the time to be encamped in the district of Baetica for the purpose of securing the fidelity of his allies, but on Scipio's advance he suddenly moved away and in a march which closely resembled a flight retreated

to Gades on the coast. Feeling, however, quite certain that as long as he kept his army together he would be the object of attack, he arranged, before he crossed over to Gades, for the whole of his force to be distributed amongst the various cities, so that they could defend the walls whilst the walls protected them.

[28.3]When Scipio became aware of this breaking up of the hostile forces, he saw that to carry his arms from city to city would involve a loss of time far greater than the results gained, and consequently marched back again. Not wishing, however, to leave that district in the enemy's hands, he sent his brother Lucius with 10,000 infantry and 1000 cavalry to attack the richest city in that part of the country; the natives call it Orongi. It is situated in the country of the Maessesses, one of the tribes of Southern Spain; the soil is fertile, and there are also silver mines. Hasdrubal had used it as his base from which to make his incursions on the inland tribes. Lucius Scipio encamped in the neighbourhood of the city, but before investing it, he sent men up to the gates to hold a parley with the townsmen and endeavour to persuade them to put the friendship rather than the strength of the Romans to the proof. As nothing in the shape of a peaceable answer was resumed, he surrounded the place with a double line of circumvallation and formed his army into three divisions, so that one division at a time could be in action while the other two were resting, and thus a continuous attack might be kept up. When the first division advanced to the storm there was a desperate fight; they had the utmost difficulty in approaching the walls and bringing up the scaling-ladders owing to the rain of missiles showered down upon them. Even when they had planted the ladders against the walls and began to mount them, they were thrust down by forks made for the purpose, iron hooks were let down upon others so that they were in danger of being dragged off the ladders and suspended in mid-air. Scipio saw that what made the struggle indecisive was simply the insufficient number of his men and that the defenders had the advantage because they were fighting from their walls. He withdrew the division which was engaged, and brought up the two others. In face of this fresh attack the defenders, worn out with meeting the former assault, retreated hastily from the walls, and the Carthaginian garrison, fearing that the city had been betrayed, left their various posts and formed into one body. This alarmed the townsmen, who dreaded lest the enemy when once inside the city

should massacre every one, whether Carthaginian or Spaniard. They flung open one of the gates and burst out of the town, holding their shields in front of them in case missiles should be hurled on them from a distance, and showing their empty right hands to make it plain that they had thrown away their swords. Their action was misinterpreted either owing to the distance at which they were seen, or because treachery was suspected, and a fierce attack was made upon the flying crowd, who were cut down as though they were a hostile army. The Romans marched in through the open gate whilst other gates were demolished with axes and mallets, and as each cavalry man entered he galloped in accordance with instructions to the forum. The cavalry were supported by a detachment of triarii; the legionaries occupied the rest of the city. There was no plundering and, except in the case of armed resistance, no bloodshed. All the Carthaginians and about a thousand of the townsmen who had closed the gates were placed under guard, the town was handed over to the rest of the population and their property restored to them. About 2000 of the enemy fell in the assault upon the city; not more than 90 of the Romans.

[28.4]The capture of this city was a source of great gratification to those who had effected it, as it was also to the commander-in-chief and the rest of the army. The entry of the troops was a noteworthy sight owing to the immense number of prisoners who preceded them. Scipio bestowed the highest commendation on his brother, and declared that the capture of Orongis was as great an achievement as his own capture of New Carthage. The winter was now coming on, and as the season would not admit of his making an attempt on Gades or pursuing Hasdrubal's army, dispersed as it was throughout the province, Scipio brought his entire force back into Hither Spain. After dismissing the legions to their winter quarters, he sent his brother to Rome with Hanno and the other prisoners of high rank, and then retired to Tarraco. The Roman fleet under the command of the proconsul M. Valerius Laevinus sailed during the year to Africa, and committed widespread devastation round Utica and Carthage; plunder was carried off under the very walls of Utica and on the frontiers of Carthage. On their return to Sicily they fell in with a Carthaginian fleet of seventy vessels. Out of these seventeen were captured, four were sunk, the rest scattered in flight. The Roman army, victorious alike on land and sea, returned to Lilybaeum with an

enormous amount of plunder of every kind. Now that the enemy's ships had been driven off and the sea rendered safe, large supplies of corn were conveyed to Rome.

[28.5]It was in the beginning of this summer that the proconsul P. Sulpicius and King Attalus who, as already stated, had wintered at Aegina, sailed for Lemnos with their combined fleets, the Roman vessels numbering twenty-five and the king's ships, thirty-five. In order to be in readiness to meet his enemies by land or sea, Philip went down to Demetrias on the coast and issued orders for his army to assemble at Larissa by a given day. When they heard of the king's arrival at Demetrias, deputations from all his allies visited him there. The Aetolians, emboldened by their alliance with Rome and the arrival of Attalus, were ravaging their neighbours' lands. Great alarm was created amongst the Acarnanians, the Boeotians and the inhabitants of Euboea, and the Achaeans had further cause for apprehension, for, in addition to their war with the Aetolians, they were threatened by Machanidas the tyrant of Lacedaemon, who had encamped not far from the Argive frontiers. The deputations informed the king of the state of things, and one and all begged him to render them assistance against the dangers which were threatening by land and sea. The condition of his own kingdom was far from tranquil; reports were brought to him announcing that Scerdilaedus and Pleuratus were again active and that Thracian tribes, especially the Maedi, were prepared to invade Macedonia as soon as the king was involved in a distant war. The Boeotians and the States in the interior of Greece reported that the Aetolians had closed the pass of Thermopylae at its narrowest part with a fosse and rampart to prevent him from carrying succour to the cities of his allies. Even a lethargic leader would have been roused to activity by all these disturbances round him. He dismissed the deputations with a definite promise that he would furnish assistance to them all as time and circumstances allowed. For the moment the most pressing care was the city of Peparethos, as King Attalus, who had sailed thither from Lemnos, was reported to be plundering and destroying all the country round. Philip sent a detachment to protect the place. He also sent Polyphantas with a small force into Boeotia, and Menippus, one of his generals, with 1000 peltasts to Chalcis. This force was supplemented by 500 Agrianians, in order that the whole of the island might be protected. Philip himself proceeded to Scotusa and ordered

the Macedonian troops at Larissa to march there. Information was brought to him here that the national council of the Aetolians had been summoned to meet at Heraclea and that Attalus would be present to consult with them as to the conduct of the war. Philip accordingly proceeded thither by forced marches, but did not reach the place till the council was broken up. He destroyed the crops, however, which were almost ripe, especially round the gulf of the Aenianes, and then led his army back to Scotusa. Leaving the bulk of his forces there he returned to Demetrias with his household troops. With the view of meeting any movement on the part of the enemy, he sent men into Phocis, Euboea and Peparethos to select elevated positions on which beacon fires might be lighted, and himself fixed an observation post on Tisaecos, a peak of immense height. In this way he hoped to receive instant notice from the distant fires of any movement on the part of the enemy. The Roman general and Attalus sailed from Peparethos to Nicaea, and from there to the city of Oreus in Euboea. This is the first city in Euboea which you pass on your left hand as you leave the Gulf of Demetrias for Chalcis and the Euripus. It was arranged between Attalus and Sulpicius that the Romans should attack by sea and the king's troops by land.

[28.6]It was not till the fourth day after their arrival that they commenced the attack, the interval having been spent in secret conferences with Plator, whom Philip had made commandant of the garrison. The city has two citadels, one overlooking the sea, the other in the heart of the city. From the latter a subterranean passage leads down to the sea, and at one time terminated in a tower five stories high, which formed an imposing defence. Here a violent contest took place, for the tower was plentifully stored with missiles of every kind, and the engines and artillery had been brought up from the ships for use against the walls. Whilst every one's attention was engrossed by the struggle going on here, Plator admitted the Romans through the gate of the seaward citadel, and this was captured at once. Then the defenders, finding themselves forced back into the city, tried to gain the other citadel. Men who were posted here for the purpose closed the gates against them, and thus shut out from both citadels they were killed or made prisoners. The Macedonian garrison stood in a close phalanx under the wall of the citadel, neither attempting to flee nor taking an active part in the fighting. Plator persuaded Sulpicius to let them go and they were placed on board and landed at Demetrium in

Phthiotis. Plator himself joined Attalus. Encouraged by his easy success at Oreus, Sulpicius sailed at once with his victorious fleet to Chalcis, but here the result by no means answered his expectations. The sea which is wide and open at each end of the Euripus contracts here into a narrow channel, which at first sight presents the appearance of a double harbour with two mouths opposite each other. But it would be difficult to find a more dangerous roadstead for a fleet. Sudden tempestuous winds sweep down from the lofty mountains on both sides, and the Euripus does not, as is commonly asserted, ebb and flow seven times a day at regular intervals, but its waters, driven haphazard like the wind first in one direction and then in another, rush along like a torrent down the side of a precipitous mountain, so that ships are never in quiet waters day or night. After Sulpicius had anchored his fleet in these treacherous waters, he found that the town was protected on the one side by the sea, and on the other, the land side, by very strong fortifications, whilst the strength of its garrison and the loyalty of the officers, so different from the duplicity and treason at Oreus, made it impregnable. After surveying the difficulties of his position, the Roman commander acted wisely in desisting from his rash enterprise, and without any further loss of time sailed away to Cynos in Locris, a place situated about a mile from the sea, which served as the emporium of the Opuntians.

[28.7]The beacon fires at Oreus had given Philip warning, but through the treachery of Plator they were lighted too late, and in any case Philip's inferiority in naval strength would have made it extremely difficult for him to reach the island. In consequence of this delay he made no effort for its relief, but he hastened to the relief of Chalcis as soon as he got the signal. Although this city is also situated on the island, it is separated from the mainland by such a narrow strait as to allow of its being connected by a bridge, and it is therefore more easy to approach it by land than by sea. Philip marched from Demetrias to Scotusa; he left that place at midnight, and after routing the Aetolians who were holding the pass of Thermopylae drove them in confusion to Heraclea. He finally reached Elatia in Phocis, having covered more than sixty miles in one day. Almost on the very same day the city of the Opuntians was taken and sacked by Attalus. Sulpicius had left the spoils to him, because Oreus had been sacked by the Romans a few days previously, when the king's troops were elsewhere. Whilst the Roman fleet was lying off Oreus, Attalus was

busily occupied in extorting contributions from the principal citizens of Opus, utterly unaware of Philip's approach. So rapid was the Macedonian advance that had not some Cretans who had gone foraging further than usual caught sight of the hostile column in the distance, Attalus would have been completely surprised. As it was he fled, without stopping to arm, in wild disorder to his ships, and the men were actually pushing their vessels off when Philip appeared, and even from the water's edge created great alarm amongst the crews. Then he returned to Opus, storming at gods and men because the chance of a great success had been almost snatched out of his hands. He was just as furious with the Opuntians, for, though they might have held out till his arrival, no sooner did they see the enemy than they voluntarily surrendered.

After settling matters at Opus, he went on to Thronium. Attalus had sailed to Oreus, but on learning that Prusias, the king of Bithynia, had violated the frontiers of his dominions he dropped all his projects in Greece, including the Aetolian war, and sailed to Asia. Sulpicius took his fleet back to Aegina, whence he had started in the beginning of spring. Philip captured Thronium with no more difficulty than Attalus had experienced at Opus. The population of this city consisted of refugees from Thebes in Phthiotis. When the place was captured by Philip, they escaped and put themselves under the protection of the Aetolians, who assigned for their abode a city which had been ruined and abandoned in the previous war with Philip. After his capture of Thronium he advanced to the capture of Tithronon and Drymia, small unimportant towns in Doris. Ultimately he reached Elatia, where it was arranged that the embassies from Ptolemy and the Rhodians should meet him. Here they were discussing the question of bringing the Aetolian war to a close - the ambassadors had been present at the recent council of the Romans and Aetolians at Heraclea - when news was brought that Machanidas had decided to attack the Eleans in the midst of their preparations for the Olympic Games. Philip thought it his duty to prevent this, and accordingly dismissed the ambassadors after assuring them that he was responsible for the war and would place no obstacles in the way of peace, provided its terms were fair and honourable. He then set off with his army in light marching order, and passed through Boeotia to Megara, and from there he descended to Corinth. Here he collected supplies, and then advanced towards

Phlius and Pheneos. When he had reached Heraea he heard that Machanidas, alarmed at his rapid approach, had made a hurried return to Lacedaemon. On receiving this intelligence he repaired to Aegium, in order to be present at the meeting of the Achaean League; he also expected to find there the Carthaginian fleet, which he had sent for in the hope of doing something by sea. The Carthaginians had left that place a few days previously for Oxeae and then, when they heard that Attalus and the Romans had left Oreus, they sought shelter in the harbours of Acarnania, fearing lest if they were attacked within the strait of Rhium, the neck of the Gulf of Corinth, they should be overpowered.

[28.8] Philip was extremely disappointed and vexed at finding that in spite of his rapid movements he was always too late to do anything, and that Fortune mocked his energy and activity by snatching away every opportunity from before his eyes. However, he concealed his disappointment in the presence of the council, and spoke in a very confident tone. Appealing to gods and men he declared that at no time or place had he ever failed to go with all possible speed wherever the clash of hostile arms was heard. It would be difficult, he continued, to estimate whether the enemy's anxiety to flee or his own eagerness to fight played the greater part in the war. In this way Attalus got away from Opus, and Sulpicius from Chalcis, and now Machanidas had slipped out of his hands. But flight did not always mean victory, and it was impossible to regard as serious a war in which when once you have come into touch with the enemy, you have conquered. The most important thing was the enemy's own admission that they were no match for him, and in a short time he would win a decisive victory, the enemy would find the result of the battle no better than they had anticipated. His allies were delighted with his speech. He then made over Heraea and Triphylia to the Achaeans, and on their bringing forward satisfactory evidence that Aliphera in Megalopolis had formed part of their territory, he restored that place also to them. Subsequently with some vessels furnished by the Achaeans - three quadriremes and as many biremes - he sailed to Anticyra. He had previously sent into the Gulf of Corinth seven quinqueremes and more than twenty light vessels, intending to strengthen the Carthaginian fleet, and with these he proceeded to Eruthrae in Aetolia near Eupalium, where he disembarked. The Aetolians were aware of his landing, for all the men

who were in the fields or in the neighbouring forts of Potidania or Apollonia fled to the woods and the mountains; their flocks and herds which they were unable in their haste to drive away Philip secured and placed on board. The whole of the plunder was despatched in charge of Nicias the praetor of the Achaeans to Aegium; Philip, sending his army overland through Boeotia, went himself to Corinth, and from there to Cenchreae. Here he re-embarked, and sailing past the coast of Attica, round the headland of Sunium and almost through the hostile fleets, arrived at Chalcis. In his address to the citizens he spoke in the highest terms of their loyalty and courage in refusing to be moved by either threats or promises, and he urged them, in case they were attacked, to show the same determination to be true to their ally if they thought their own position preferable to that of Opus or Oreus. From Chalcis he sailed to Oreus, where he entrusted the administration and defence of the city to those magnates who had fled on the capture of the place rather than betray it to the Romans. Then he returned to Demetrias, the place from which he had started to render assistance to his allies. He now proceeded to lay down the keels of 100 war-ships at Cassandrea, and a large number of shipwrights were assembled for their construction. As matters were now quiet in Greece, owing to the departure of Attalus and the effective assistance which Philip had given to his allies in their difficulties, he returned to Macedonia to commence operations against the Maedi.

[28.9] Just at the close of this summer Quintus Fabius, the son of Maximus, who was on the staff of the consul M. Livius, came to Rome to inform the senate that the consul considered L. Porcius and his legions sufficient for the defence of Gaul, in which case he, Livius, and his consular army might be safely withdrawn. The senate recalled not only Livius, but his colleague as well, but the instructions given to each differed. M. Livius was ordered to bring his troops back, but Nero's legions were to remain in their province, confronting Hannibal. The consuls had been in correspondence with each other and had agreed that as they had been of the same mind in their conduct of public affairs, so, though coming from opposite directions, they should approach the City at the same time. Whichever should be the first to reach Praeneste was to wait there for his colleague, and, as it happened, they both arrived there on the same day. After despatching a summons for the senate to meet at the

temple of Bellona in three days' time they went on together towards the City. The whole population turned out to meet them with shouts of welcome, and each tried to grasp the consuls' hands; congratulations and thanks were showered upon them for having, by their efforts, rendered the commonwealth safe. When the senate was assembled they followed the precedent set by all victorious generals and laid before the House a report of their military operations. Then they made request that in recognition of their energetic and successful conduct of public affairs special honours should be rendered to the gods and they, the consuls, should be allowed to enter the City in triumph. The senators passed a decree that their request should be granted out of gratitude to the gods in the first place, and then, next to the gods, out of gratitude to the consuls. A solemn thanksgiving was decreed on their behalf, and each of them was allowed to enjoy a triumph.

As they had been in perfect agreement as to the management of their campaign, they decided that they would not have separate triumphs, and the following arrangement was made: As the victory had been won in the province assigned to Livius, and as it had fallen to him to take the auspices on the day of battle, and further, as his army had been brought back to Rome, whilst Nero's army was unable to leave its province, it was decided that Livius should ride in the chariot at the head of his soldiers, and C. Claudius Nero alone on horseback. The triumph thus shared between them enhanced the glory of both, but especially of the one who allowed his comrade to surpass him in honour as much as he himself surpassed him in merit. "That horseman," men said to one another, "traversed Italy from end to end in six days, and at the very time when Hannibal believed him to be confronting him in Apulia he was fighting a pitched battle with Hasdrubal in Gaul. So one consul had checked the advance of two generals, two great captains from the opposite corners of Italy, by opposing his strategy to the one and meeting the other in person. The mere name of Nero had sufficed to keep Hannibal quiet in his camp, and as to Hasdrubal, what brought about his defeat and destruction but Nero's arrival in the field? The one consul may ride in a chariot with as many horses as he pleases, the real triumph belongs to the other who is borne on horseback through the City; even if he went on foot Nero's renown would never die, whether through the glory he acquired in war, or the contempt he showed for

it in his triumph." These and similar remarks from the spectators followed Nero till he reached the Capitol. The money they brought into the treasury amounted to 300,000 sesterces and 80,000 of bronze coinage. M. Livius' largesse to his soldiers amounted to fifty-six ases per man, and C. Nero promised to give the same amount to his men as soon as he rejoined his army. It is remarked that in their jests and songs the soldiers on that day celebrated the name of C. Claudius Nero more frequently than that of their own consul; and that the members of the equestrian order were full of praises for L. Veturius and Q. Caecilius, and urged the plebs to make them consuls for the coming year. The consuls added considerably to the weight of this recommendation when on the morrow they informed the Assembly with what courage and fidelity the two officers had served them.

[28.10]The time was approaching for the elections and it was decided that they should be conducted by a Dictator. C. Claudius Nero named his colleague M. Livius as Dictator, and he nominated Q. Caecilius as his Master of the Horse. L. Veturius and Q. Caecilius were both elected consuls. Then came the election of praetors; those appointed were C. Servilius, M. Caecilius Metellus, Tiberius Claudius Asellus and Q. Mamilius Turrinus, who was a plebeian aedile at the time. When the elections were over, the Dictator laid down his office and after disbanding his army went on a mission to Etruria. He had been commissioned by the senate to hold an enquiry as to which cantons in Etruria had entertained the design of deserting to Hasdrubal as soon as he appeared, and also which of them had assisted him with supplies, or men, or in any other way. Such were the events of the year at home and abroad. The Roman Games were celebrated in full on three successive days by the curule aediles, Cnaeus Servilius Caepio and Servilius Cornelius Lentulus; similarly the Plebeian Games were celebrated by the plebeian aediles, M. Pomponius Matho and Q. Mamilius Turrinus. It was now the thirteenth year of the Punic War. Both the consuls, L. Veturius Philo and Q. Caecilius Metellus, had the same province - Bruttium - assigned to them, that they might jointly carry on operations against Hannibal. The praetors balloted for their provinces. M. Caecilius Metellus obtained the City jurisdiction; Q. Mamilius, that over aliens. Sicily fell to C. Servilius, and Sardinia to Ti. Claudius.

The armies were distributed as follows: One of the consuls took over Nero's army; the other, that which Q. Claudius had commanded;

each consisted of two legions. M. Livius, who was acting as proconsul for the year, took over from C. Terentius the two legions of volunteer slaves in Etruria. It was also decreed that Q. Mamilius, to whom the jurisdiction over aliens had been allotted, should transfer his judicial business to his colleague, and hold Gaul with the army which L. Porcius had commanded as *propraetor*; he was also instructed to ravage the fields of those Gauls who had gone over to the Carthaginians on the arrival of Hasdrubal. C. Servilius was to protect Sicily, as C. Mamilius had done, with the two legions of the survivors of Cannae. The old army in Sardinia, under A. Hostilius, was recalled, and the consuls enrolled a new legion which Tiberius Claudius was to take with him to the island. A year's extension of command was granted to Q. Claudius, that he might remain in charge at Tarentum, and to C. Hostilius Tubero, that he might continue to act at Capua. M. Valerius, who had been charged with the defence of the Sicilian seaboard, was ordered to hand over thirty ships to the praetor C. Servilius, and return to Rome with the rest of his fleet.

[28.11] In the anxiety caused by the strain of such a serious war when men referred every occurrence, fortunate or the reverse, to the direct action of the gods, numerous portents were announced. At Tarracina the temple of Jupiter, at Satricum that of Mater Matuta were struck by lightning. At the latter place quite as much alarm was created by the appearance of two snakes which glided straight through the doors into the temple of Jupiter. From Antium it was reported that the ears of corn seemed to those who were reaping them to be covered with blood. At Caere a pig had been farrowed with two heads, and a lamb yeaned which was both male and female. Two suns were said to have been seen at Alba, and at Fregellae it had become light during the night. In the precinct of Rome an ox was said to have spoken; the altar of Neptune in the Circus Flaminius was asserted to have been bathed in perspiration, and the temples of Ceres, Salus and Quirinus were all struck by lightning. The consuls received orders to expiate the portents by sacrificing full-grown victims and to appoint a day of solemn intercession. These measures were carried out in accordance with the senatorial resolution. What was a much more terrifying experience than all the portents reported from the country or seen in the City, was the extinction of the fire in the temple of Vesta. The vestal who was in charge of the fire that night was severely flogged by order of P. Licinius, the Pontifex Maximus. Though this was no

portent sent by the gods, but merely the result of human carelessness, it was decided to sacrifice full-grown victims and hold a service of solemn supplication in the temple of Vestal.

Before the consuls left for the seat of war, they were advised by the senate "to see to it that the plebeians were reinstated on their holdings. Through the goodness of the gods the burden of war had now been shifted from the City of Rome and from Latium, and men could dwell in the country parts without fear, it was by no means fitting that they should be more concerned for the cultivation of Sicily than for that of Italy." The people found it, however, anything but an easy matter. The small holders had been carried off by the war, there was hardly any servile labour available, the cattle had been driven off as plunder, and the homesteads had been either stripped or burnt. Still, at the authoritative behest of the consuls a considerable number did return to their farms. What led to the senate taking up this question was the presence of deputations from Placentia and Cremona, who came to complain of the invasion and wasting of their country by their neighbours, the Gauls. A large proportion of their settlers, they said, had disappeared, their cities were almost without inhabitants, and the countryside was a deserted wilderness. The praetor Mamilius was charged with the defence of these colonies; the consuls, acting on a resolution of the senate, published an edict requiring all those who were citizens of Cremona and Placentia to return to their homes before a certain day. At last, towards the beginning of spring, they left for the seat of war. The consul Q. Caecilius took over the army from C. Nero, and L. Veturius, the one which Q. Claudius had commanded, and this he brought up to its full strength with the fresh levies which he had raised. They led their armies into the district of Consentia, and ravaged it in all directions. As they were returning laden with plunder they were attacked in a narrow pass by a force of Bruttians and Numidian javelin-men, and not only the plunder but the troops themselves were in danger. There was, however, more alarm and confusion than real fighting. The plunder was sent forward and the legions succeeded in getting into a position free from danger. They advanced into Lucania, and the whole of the district returned to its allegiance to Rome without offering any resistance.

[28.12]No action was fought with Hannibal this year, for after the blow which had fallen upon him and upon his country, he made no

forward movement, nor did the Romans care to disturb him, such was their impression of the powers which that single general possessed, even while his cause was everywhere round him crumbling into ruin. I am inclined to think that he deserves our admiration more in adversity than in the time of his greatest successes. For thirteen years he had been carrying on war with varying fortune in an enemy's country far from home. His army was not made up of his own fellow-countrymen, it was a mixed assemblage of various nationalities who had nothing in common, neither laws nor customs, nor language, who differed in appearance, dress and arms, who were strangers to one another in their religious observances, who hardly recognised the same gods. And yet he had united them so closely together that no disturbance ever broke out, either amongst the soldiers themselves or against their commander, though very often money and supplies were lacking and it was through want of these that numerous incidents of a disgraceful character had occurred between the generals and their soldiers in the First Punic War. He had rested all his hopes of victory on Hasdrubal and his army, and after that army had been wiped out he withdrew into Bruttium and abandoned the rest of Italy to the Romans. Is it not a matter of surprise that no mutiny broke out in his camp? For in addition to all his other difficulties, there was no prospect of feeding his army except from the resources of Bruttium, and even if the whole of that country had been in cultivation it would have afforded but meager support for so large an army. But as it was, a large part of the population had been diverted from the tillage of the soil by the war and by their traditional and innate love of brigandage. He received no assistance from home, for the government was mainly concerned about keeping their hold on Spain, just as though everything in Italy was going on successfully.

The situation in Spain was in some respects similar, in others completely dissimilar to the state of affairs in Italy. It was similar in so far as the Carthaginians after their defeat and the loss of their general had been driven into the most distant parts of Spain to the shores of the ocean. It was dissimilar because the natural features of the country and the character of the inhabitants made Spain more fitted than Italy, more fitted, in fact, than any country in the world for the constant renewal of hostilities. Though it was the first province, at all events on the continent, into which the Romans made

their way, it was, owing to this cause, the very last to be completely subjugated, and this only in our own days under the conduct and auspices of Augustus Caesar. Hasdrubal Gisgo, who, next to the Barcine family, was the greatest and most brilliant general that held command in this war, was encouraged by Mago to renew hostilities. He left Gades, and traversing Further Spain, raised a force of 50,000 infantry and 4500 cavalry. As to the strength of his cavalry the authorities are generally agreed, but some writers assert that the infantry force which he led to Silpia amounted to 70,000 men. Near this city the two Carthaginian commanders encamped on a wide and open plain, determined to accept battle if offered.

[28.13]When intelligence was brought to Scipio of the muster of this large army, he did not consider that he could meet it with his Roman legions unless he employed his native auxiliaries to give at all events the appearance of greater strength. At the same time he felt that he ought not to depend too much upon them, for if they changed sides it might lead to the same disaster as that which had overtaken his father and his uncle. Culchas, whose authority extended over twenty-eight towns, had promised to raise a force of infantry and cavalry during the winter, and Silanus was sent to bring them up. Then breaking up his quarters at Tarraco, Scipio marched down to Castulo, picking up small contingents furnished by the friendly tribes which lay on his line of march. There Silanus joined him with 3000 infantry and 500 cavalry. His entire army, Romans and allied contingents, infantry and cavalry, amounted now to 55,000 men. With this force he advanced to meet the enemy and took up his position near Baecula. Whilst his men were entrenching their camp they were attacked by Mago and Masinissa with the whole of their cavalry and would have been thrown into great disorder had not Scipio made a charge with a body of horse which he had placed in concealment behind a hill. These speedily routed those of the assailants who had ridden close up to the lines and were actually attacking the entrenching parties; with the others, however, who kept their ranks and were advancing in steady order the conflict was more sustained, and for a considerable time remained undecided. But when the cohorts of light infantry came in from the outposts, and the men at work on the intrenchments had seized their arms and, fresh for action, were in ever increasing numbers relieving their wearied comrades until a considerable body of armed men were hastening

from the camp to do battle, the Carthaginians and Numidians retreated. At first they retired in order though hurriedly and kept their ranks, but when the Romans pressed their attacks home and resistance was no longer possible, they broke and fled as best they could. Though this action did much to raise the spirits of the Romans and depress those of the enemy, there were for several days incessant skirmishes between the cavalry and light infantry on both sides.

[28.14] After the strength of each side had been sufficiently tested in these encounters Hasdrubal led out his army to battle, on which the Romans did the same. Each army remained standing in front of its camp, neither caring to begin the fight. Towards sunset the two armies, first the Carthaginian and then the Roman, marched back to camp. This went on for some days; the Carthaginians were always the first to get into line and the first to receive the order to retire when they were tired out with standing. No forward movement took place on either side, no missile was discharged, no battle-shout raised. The Romans were posted in the centre on the one side, the Carthaginians in the centre of the other; the flanks on both armies were composed of Spanish troops. In front of the Carthaginian line were the elephants which looked in the distance like towers. It was generally supposed in both camps that they would fight in the order in which they had been standing, and that the main battle would be between the Romans and Carthaginians in the centre, the principals in the war and fairly matched in courage and in arms. When Scipio found that this was assumed as a matter of course, he carefully altered his dispositions for the day on which he intended to fight. The previous evening he sent a tessera through the camp ordering the men to take their breakfast and see that their horses were fed before daybreak, the cavalry were at the same time to be fully armed with their horses ready, bitted and saddled. Day had scarcely broken when he sent the whole of his cavalry with the light infantry against the Carthaginian outposts, and at once followed them up with the heavy infantry of the legions under his personal command. Contrary to universal expectation he had made his wings the strongest part of his army by posting the Roman troops there, the auxiliaries occupied the centre.

The shouts of the cavalry roused Hasdrubal and he rushed out of his tent. When he saw the melee in front of the rampart and the disordered state of his men, and in the distance the glittering standards of the legions and the whole plain covered with the enemy,

he at once sent the whole of his mounted force against the hostile cavalry. He then led his infantry out of the camp, and formed his battle line without any change in the existing order. The cavalry fight had now been going on for some time without either side gaining the advantage. Nor could any decision be arrived at, for as each side was in turn driven back they retreated into safety amongst their infantry. But when the main bodies were within half a mile of each other, Scipio recalled his cavalry and ordered them to pass to the rear of the infantry, whose ranks opened out to give them passage, he then formed them into two divisions, and posted one as a support behind each of the wings. Then when the moment for executing his maneuver arrived he ordered the Spaniards in the centre to make a slow advance, and sent word to Silanus and Marcius that they were to extend to the left as they had seen him extend to the right, and engage the enemy with their light cavalry and infantry before the centers had time to close. Each wing was thus lengthened by three infantry cohorts and three troops of horse, besides velites, and in this formation they advanced against the enemy at a run, the others following en echelon. The line curved inwards towards the centre because of the slower advance of the Spaniards. The wings were already engaged whilst the Carthaginians and African veterans, the main strength of their army, had not yet had the chance of discharging a single missile. They did not dare to leave their place in the line and help their comrades for fear of leaving the centre open to the advance of the enemy. The wings were being pressed by a double attack, the cavalry and light infantry had wheeled round and were making a flank charge, whilst the cohorts were pressing their front in order to sever them from their centre.

[28.15]The struggle had now become a very one-sided one in all parts of the field. Not only were untrained Balearics and raw Spanish levies face to face with the Roman and Latin legionaries but as the day went on, the physical strength of Hasdrubal's army began to give way. Surprised by the sudden attack in the early morning they had been compelled to go into battle before they could strengthen themselves with food. It was with this view that Scipio had deliberately delayed the fight till late in the day, for it was not until the seventh hour that the attack began on the wings, and it was some time after that before the battle reached the centre, so that, what with the heat of the day, the fatigue of standing under arms, and the hunger and thirst from

which they were suffering, they were worn out before they closed with the enemy. Thus exhausted they leaned on their shields as they stood. To complete their discomfiture the elephants, scared by the sudden onsets of the cavalry and the rapid movements of the light infantry, rushed from the wings into the centre of the line. Wearied and depressed, the enemy began to retreat, keeping their ranks however, just as if they had been ordered to retire. But when the victors saw that matters were going in their favour they made still more furious attacks in all parts of the field, which the enemy were almost powerless to withstand, though Hasdrubal tried to rally them and keep them from giving way by calling out that the hill in their rear would afford them a safe retreat if they would retire in good order. Their fears, however, got the better of their sense of shame, and when those nearest to the enemy gave way, their example was suddenly followed by all and there was a universal flight. Their first halt was on the lower slope of the hill, and as the Romans hesitated about mounting the hill, they began to re-form their ranks, but when they saw them steadily advancing they again fled and were driven back in disorder to their camp. The Romans were not far from the rampart and would have carried the camp in their onset had not the brilliant sunshine which often glows between heavy showers been succeeded by such a storm that the victors could hardly get back to their camp, and some were even deterred by superstitious fears from attempting anything further for the day. Although the night and the storm invited the Carthaginians, exhausted as they were by their toil and many of them by their wounds, to take the rest they so sorely needed, yet their fears and the danger they were in allowed them no respite. Fully expecting an attack on their camp as soon as it was light they strengthened their rampart with large stones collected from all the valleys round, hoping to find in their intrenchments the defence which their arms had failed to afford them. The desertion of their allies, however, decided them to seek safety in flight rather than risk another battle. The first to abandon them was Attenes, chief of the Turdetani; he went over with a considerable body of his countrymen, and this was followed by the surrender of two fortified towns with their garrisons to the Romans. For fear of the evil spreading and the spirit of disaffection becoming general, Hasdrubal shifted his camp the following night.

[28.16]When the outposts brought intelligence of the enemy's departure Scipio sent on his cavalry and followed with his entire army. Such was the rapidity of the pursuit that had they followed in Hasdrubal's direct track they must have caught him up. But, acting on the advice of their guides, they took a shorter route to the river Baetis, so that they might be able to attack him if he attempted its passage. Finding the river closed to him, Hasdrubal turned his course towards the ocean, and his hurried march, which in its haste and confusion looked like a flight gave him a considerable start on the Roman legions. Their cavalry and light infantry harassed and retarded him by attacking him in flank and rear, and whilst he was continually forced to halt to repel first the cavalry and then infantry skirmishers, the legions came up. Now it was no longer a battle but sheer butchery, until the general himself set the example of flight and escaped to the nearest hills with some 6000 men, many of them without arms. The rest were killed or made prisoners. The Carthaginians hastily improvised an intrenched camp on the highest point of the hills, and as the Romans found it useless to attempt the precipitous ascent, they had no difficulty in making themselves safe. But a bare and sterile height was hardly a place in which to stand even a few days' siege, and there were numerous desertions. At last Hasdrubal sent for ships - he was not far from the sea - and fled in the night, leaving his army to its fate. As soon as Scipio heard of his flight he left Silanus to keep up the investment of the Carthaginian camp with 10,000 infantry and 1000 cavalry, whilst he himself with the rest of his force returned to Tarraco. During his seventy days' march to this place, he took steps to ascertain the attitude of the various chiefs and tribes towards Rome, so that they might be recompensed as they deserved. After his departure Masinissa came to a secret understanding with Silanus, and crossed over with a small following to Africa, to induce his people to support him in his new policy. The reasons which determined him on this sudden change were not evident at the time, but the loyalty which he subsequently displayed throughout his long life to its close proved beyond question that his motives at the beginning were carefully weighed. After Mago had sailed to Gades in the ships which Hasdrubal had sent back for him, the rest of the army abandoned by their generals broke up, some deserting to the Romans, others dispersing amongst the neighbouring tribes. No body of troops remained worth consideration either for numbers or fighting strength. Such, in the

main, was the way in which under the conduct and auspices of Publius Scipio the Carthaginians were expelled from Spain, fourteen years from the commencement of the war, and five years after Scipio assumed supreme command. Not long after Mago's departure Silanus joined Scipio at Tarraco, and reported that the war was at an end.

[28.17] Lucius Scipio was sent to Rome in charge of numerous prisoners of high rank to announce the subjugation of Spain. Everybody else welcomed this brilliant success with feelings of delight and exultation, but the one man who had achieved it and whose thirst for solid and lasting renown was insatiable looked upon his conquest of Spain as only a small instalment of what his lofty ambition led him to hope for. Already he was looking to Africa and the great city of Carthage as destined to crown his glory and immortalise his name. This was the goal before him and he thought it best to prepare the way to it by gaining over the kings and tribes in Africa. He began by approaching Syphax, king of the Masaesulians, a tribe of Moorish nationality. They lived opposite that part of the Spanish coast where New Carthage lies. At that time there existed a treaty of alliance between their king and Carthage, but Scipio did not imagine that Syphax would regard the sanctity of treaties more scrupulously than they are generally regarded by barbarians whose fidelity depends upon the caprices of fortune. Accordingly he sent C. Laelius to him with presents to win him over. The barbarian was delighted with the presents, and, as he saw that the cause of Rome was everywhere successful, whilst the Carthaginians had failed in Italy and entirely disappeared from Spain, he consented to become friendly to Rome, but insisted that the mutual ratification of the treaty should take place in the presence of the Roman general. All that Laelius could obtain from the king was a safe-conduct, and with that he returned to Scipio. In furtherance of his designs on Africa it was of supreme importance for him to secure Syphax; he was the most powerful of the native princes, and had even attempted hostilities against Carthage; moreover, his frontiers were only separated from Spain by a narrow strait.

Scipio thought it worth while running considerable risk in order to accomplish his end, and as it could not be effected in any other way, he made arrangements for visiting Syphax. Leaving the defence of Spain in the hands of L. Marcius at Tarraco and M. Silanus at New

Carthage, to which latter place he had proceeded by forced marches from Tarraco, he sailed across to Africa accompanied by C. Laelius. He only took two quinqueremes, and as the sea was calm most of the passage was made by rowing, though a light breeze occasionally assisted them. It so happened that Hasdrubal after his expulsion from Spain entered the harbour at the same time. He had brought his seven triremes to anchor and was preparing to land when the two quinqueremes were sighted. No one entertained the smallest doubt that they belonged to the enemy and could easily be overpowered by superior numbers before they gained the harbour. The efforts of the soldiers and sailors, however, to get their arms ready and the ships into trim amidst much noise and confusion were rendered futile by a freshening breeze from the sea, which filled the sails of the quinqueremes and carried them into port before the Carthaginians could get up their anchors. As they were now in the king's harbour, no one ventured to make any further attempt to molest them. So Hasdrubal, who was the first to land. and Scipio and Laelius, who disembarked soon afterwards, all made their way to the king.

[28.18]Syphax regarded it as an exceptional honour - as indeed it was - for the captains of the two most powerful nations of their time to come to him seeking his friendship and alliance. He invited them both to be his guests, and as Fortune had willed that they should be under the same roof and at the same hearth he tried to induce them to confer together with the view of removing all causes of quarrel. Scipio declined on the ground that he had no personal quarrel with the Carthaginian and he was powerless to discuss affairs of State without the orders of the senate. The king was anxious that it should not seem as if one of his guests was excluded from his table, and he did his utmost to persuade Scipio to be present. He raised no objection, and they both dined with the king, and at his particular request occupied the same couch. Such was Scipio's charm of manner and innate tact in dealing with everybody that he completely won over not only Syphax, who as a barbarian was unaccustomed to Roman manners, but even his deadly enemy. Hasdrubal openly avowed that "he admired Scipio more now that he had made his personal acquaintance than after his military successes, and he had no doubt that Syphax and his kingdom were already at the disposal of Rome, such skill did the Roman possess in winning men. The question for the Carthaginians was not how Spain had been lost, but

how Africa was to be retained. It was not from a love of travel or a passion for sailing along pleasant shores that a great Roman commander had quitted his newly subjugated province and his armies and crossed over with two vessels to Africa, the land of his enemies, and trusted himself to the untried honour of a king. His real motive was the hope of becoming master of Africa; this project he had long been pondering over; he openly complained that 'Scipio was not conducting war in Africa as Hannibal was in Italy.'" After the treaty with Syphax was concluded Scipio set sail from Africa and, after a four days' passage in which he was buffeted by changeable and mostly stormy winds, reached the harbour of New Carthage.

[28.19]Spain was now quiet as far as war with Carthage was concerned, but it was quite evident that some communities conscious of wrong-doing were kept quiet more by their fears than by any feeling of loyalty to Rome. Amongst these Iliturgi and Castulo were foremost in importance and foremost in guilt. As long as Roman arms were successful Castulo remained true to her alliance; after the Scipios and their armies were destroyed they revolted to Carthage. Iliturgi had gone further, for the inhabitants had betrayed and put to death those who had sought refuge with them after those disasters, thus aggravating their treason by crime. To take action against these cities immediately on his arrival in Spain, whilst the issue was still undecided, might have been justifiable but hardly wise. Now, however, that matters were settled, it was felt that the hour of punishment had arrived. Scipio sent orders to L. Marcius to take a third part of his force to Castulo and at once invest the place, and with the remainder he himself marched to Iliturgi where he arrived after a five days' march. The gates were closed and every preparation had been made to repel an assault; the townsmen were quite conscious of the punishment they deserved, and any formal declaration of war was, therefore, unnecessary. Scipio made this the subject of his address to his soldiers. "The Spaniards," he said, "by closing their gates have shown how well they deserve the punishment which they fear. We must treat them with much greater severity than we treated the Carthaginians; with the latter we contend for glory and dominion, with hardly any feeling of anger, but from the former we have to exact the penalty for cruelty, treachery and murder. The time has come for you to avenge the atrocious massacre of your fellow-soldiers and the treachery meditated against yourselves had you been

carried there in your flight. You will make it clear for all time by this awful example that no one must ever consider a Roman citizen or a Roman soldier a fit subject for ill-treatment, whatever his condition may be."

Roused by their general's words the men began to prepare for the assault, storming parties were picked out of all the maniples and supplied with ladders, and the army was formed into two divisions, one being placed under the command of Laelius, so that the town might be attacked from opposite sides and a twofold terror created. The defenders were stimulated to a determined and prolonged resistance not by their general or their chiefs but by the fear which came from a consciousness of guilt. With their past crime in mind they warned each other that the enemy was seeking not victory so much as vengeance. The question was not how to escape from death but where to meet it, whether, sword in hand, on the battlefield where the fortune of war often raises up the vanquished and flings the victor to the ground, or amidst the ashes of their city before the eyes of their captive wives and children after being torn with the lash and subjected to shameful and horrible tortures. With this prospect before them every man who could carry arms took his part in the fighting, and even the women and children working beyond their strength supplied missiles to the combatants, and carried stones up to the walls for those who were strengthening the defences. Not only was their liberty at stake - that motive only inspires the brave - but they had before their eyes the very extremity of torture and a shameful death. As they looked at each other and saw that each was trying to outdo all the rest in toil and danger, their courage was fired, and they offered such a furious resistance that the army which had conquered Spain was again and again repulsed from the walls of one solitary city, and fell back in confusion after a contest which brought it no honour. Scipio was afraid that the futile efforts of his troops might raise the enemies' courage and depress his own men, and he decided to take his part in the fighting and his share of the danger. Reproaching his soldiers for their cowardice he ordered the ladders to be brought up and threatened to mount himself if the rest hung back. He had already reached the foot of the wall and was in imminent danger when shouts arose on all sides from the soldiers who were anxious for their commander's safety, and the ladders were at once planted against the wall. Laelius now delivered his attack from

the other side of the town. This broke the back of the resistance; the walls were cleared of their defenders and seized by the Romans, and in the tumult the citadel also was captured on that side where it was considered impregnable.

[28.20] Its capture was effected by some African deserters who were serving with the Romans. Whilst the attention of the townsmen was directed to defending the positions which appeared to be in danger and the assailants were mounting their ladders wherever they could approach the walls, these men noticed that the highest part of the city, which was protected by precipitous cliffs, was left unfortified and undefended. These Africans, men of light make and through constant training extremely agile, were furnished with iron hooks, and where the projections of the cliff gave them a footing they climbed it, when they came to a place where it was too steep or too smooth they fixed the hooks in at moderate intervals and used them as steps, those in front pulling up those behind, and those below pushing up those above them. In this way, they managed to reach the top, and no sooner had they done so than they ran down with loud shouts into the city which the Romans had already captured. And now the hatred and resentment which had prompted the attack on the city showed itself. No one thought of making prisoners or securing plunder though everything was at the mercy of the spoilers; the scene was one of indiscriminate butchery, non-combatants together with those in arms, women equally with men were all alike massacred; the ruthless savagery extended even to the slaughter of infants. Then they flung lighted brands on the houses and what the fire could not consume was completely demolished. So bent were they upon obliterating every vestige of the city, and blotting out all record of their foes. From there Scipio marched to Castulo. This place was being defended by natives from the surrounding towns and also by the remains of the Carthaginian army who had gathered there after their flight. But Scipio's approach had been preceded by the news of the fall of Iliturgi, and this spread dismay and despair everywhere. The interests of the Carthaginians and of the Spaniards were quite distinct, each party consulted for its own safety without regard to the other, and what was at first mutual suspicion soon led to an open rupture between them. Cerdubelus openly advised the Spaniards to surrender, Himilco, the Carthaginian commander, counselled resistance. Cerdubelus came to a secret understanding

with the Roman general, and betrayed the city and the Carthaginians into his hands. More clemency was shown in this victory; the town was not so deeply involved in guilt and the voluntary surrender went far to soften any feelings of resentment.

[28.21]After this Marcius was sent to reduce to submission any tribes that had not yet been subjugated. Scipio returned to New Carthage to discharge his vows and to exhibit the gladiatorial spectacle which he had prepared in honour of the memory of his father and his uncle. The gladiators on this occasion were not drawn from the class from which the trainers usually take them - slaves and men who sell their blood - but were all volunteers and gave their services gratuitously. Some had been sent by their chiefs to give an exhibition of the instinctive courage of their race, others professed their willingness to fight out of compliment to their general, others again were drawn by a spirit of rivalry to challenge one another to single combat. There were several who had outstanding quarrels with one another and who agreed to seize this opportunity of deciding them by the sword on the agreed condition that the vanquished was to be at the disposal of the victor. It was not only obscure individuals who were doing this. Two distinguished members of the native nobility, Corbis and Orsua, first cousins to each other, who were disputing the primacy of a city called Ibes gave out that they intended to settle their dispute with the sword. Corbis was the elder of the two, but Orsua's father had been the last to hold that dignity, having succeeded his brother. Scipio wanted them to discuss the question calmly and peaceably, but as they had refused to do so at the request of their own relations, they told him that they would not accept the arbitrament of any one, whether god or man except Mars, and to him alone would they appeal. The elder relied upon his strength, the younger on his youth; they both preferred to fight to the death rather than that one should be subject to the commands of the other. They presented a striking spectacle to the army and an equally striking proof of the mischief which the passion for power works amongst men. The elder cousin by his familiarity with arms and his dexterity easily prevailed over the rough untrained strength of the younger. The gladiatorial contests were followed by funeral games with all the pomp which the resources of the province and the camp could furnish.

[28.22]Meantime Scipio's lieutenants were by no means inactive. Marcius crossed the Baetis, called by the natives the Certis, and

received the surrender of two cities without striking a blow. Astapa was a city which had always been on the side of Carthage. But it was not this that created a strong feeling of resentment so much as its extraordinary hatred against the Romans, far more than was justified by the necessities of war. Neither the situation nor the fortifications of the city were such as to inspire its inhabitants with confidence, but their love of brigandage induced them to make raids on the territories of their neighbours who were allies of Rome. In these excursions they made a practice of capturing any Roman soldiers or camp sutlers or traders whom they came across. As it was dangerous to travel in small parties, large companies used to travel together and one of these whilst crossing the frontier was surprised by the brigands who were lying in ambush, and all were killed. When the Roman army advanced to attack the place, the inhabitants, fully aware of the chastisement which their crime merited, felt quite certain that the enemy were too much incensed to allow of any hope of safety in surrender. Despairing of protection either in their walls or their arms, they resolved upon a deed equally cruel and horrible to themselves and to those who belonged to them. Collecting the more valuable of their possessions they piled them up into a heap in a selected place in their forum. On this pile they ordered their wives and children to take their seats and then heaped round them a quantity of wood, on the top of which they threw dead brushwood. Fifty armed men were told off to guard their possessions and the persons of those who were dearer than their possessions, and the following instructions were given them: "Remain on guard as long as the battle is doubtful, but if you see that is going against us, and the city is on the point of being captured, you know that those whom you see going into action will never return alive, and we implore you by all the gods celestial and infernal in the name of liberty, liberty which will end in either an honourable death or a dishonourable servitude, that you leave nothing on which a savage enemy can vent his rage. Fire and sword are in your hands. Better that faithful and loving hands should make away with what is doomed to die than that the enemy should add mockery and scorn to murder." These admonitions were followed by a dire curse on any one who was turned from his purpose by hope of life or by softheartedness.

Then they flung open the gates and burst out in a tumultuous charge. There was no advanced post strong enough to check them, for the

last thing to be feared was that the besieged would venture outside their walls. One or two troops of horse and some light infantry were sent against them from the camp, and a fierce irregular fight ensued in which the troopers who had been first to come into collision with the enemy were routed, and this created a panic amongst the light infantry. The attack would have been pushed even to the foot of the rampart if the pick of the legions had not made the most of the few minutes allowed them for getting into line. As it was, there was at first some wavering amongst the front ranks, for the enemy, blinded by rage, rushed with mad recklessness upon wounds and death. Then the veterans who came up in support, unshaken by the frantic onset, cut down the front ranks and stayed the advance of those behind. When in their turn they tried to force the enemy back they found that not a man would give ground, they were all resolved to die where they stood. On this the Romans extended their lines, which their superiority in numbers enabled them to do easily, until they outflanked the enemy, who fighting in a compact body were killed to a man.

[28.23]The wholesale slaughter was at any rate the work of an exasperated soldiery who met their armed foes in the shock of open battle. But a much more horrible butchery took place in the city, where a weak and defenceless crowd of women and children were massacred by their own people, and their still writhing bodies flung on to the lighted pile which was again almost extinguished by the streams of blood. And last of all the men themselves, exhausted by the pitiful slaughter of those dear to them, flung themselves arms and all into the midst of the flames. All had perished by the time the Romans came on the scene. At first they stood horror-struck at such a fearful sight, then, seeing the melted gold and silver flowing amongst the other articles which made up the heap, the greediness common to human nature impelled them to try and snatch what they could out of the fire. Some were caught by the flames, others were scorched by the heated air, for those in front could not retreat owing to the crowd pressing on behind. Thus Astapa was destroyed without yielding any plunder to the soldiers. After accepting the surrender of the remaining cities in that district Marcius led his victorious army back to Scipio at New Carthage. Just at this time some deserters came from Gades and promised to deliver up the city with its Carthaginian garrison and the commandant and also the ships in the harbour. After

his flight Mago had taken up his quarters in that city, and with the help of the ships which he had assembled he had got together a considerable force, partly from the opposite coast of Africa and partly through the agency of Hanno from the Spanish tribes round. After guarantees of good faith had been given on both sides, Scipio sent Marcius with the cohorts of light infantry and Laelius with seven triremes and one quinquereme to conduct joint operations against the place by sea and land.

[28.24]Scipio was overtaken by a serious illness, which rumour, however, made still more serious, as each man from the innate love of exaggeration added some fresh detail to what he had already heard. The whole of Spain, especially the remoter parts, was much agitated at the news, and it was easy to judge what an amount of trouble would have been caused by his actual death from seeing what storms arose from the groundless rumour of it. Friendly states did not preserve their fidelity, the army did not remain loyal. Mandonius and Indibilis had made up their minds, that after the expulsion of the Carthaginians the sovereignty of Spain would pass to them. When they found that their hopes were frustrated they called out their countrymen, the Lacetani, and raised a force amongst the Celiberians with which they ravaged the country of the Suessitanians and the Sedetanians, who were allies of Rome. A disturbance of a different kind, an act of madness on the part of the Romans themselves, occurred in the camp at Sucro. It was held by a force of 8000 men who were stationed there to protect the tribes on this side the Ebro. The vague rumours about their commander's life were not however the primary cause of their movement. A long period of inactivity had, as usual, demoralised them, and they chafed against the restraints of peace after being accustomed to live on the plunder captured from the enemy. At first their discontent was confined to murmurs amongst themselves. "If there is war going on in the province," they said, "what are we doing here amongst a peaceable population? If the war is at an end why are we not taken back to Rome?" Then they demanded their arrears of pay with an insolence quite inconsistent with military discipline or the respect which soldiers should show towards their officers. The men at the outposts insulted the tribunes as they went their rounds of inspection, and some went off during the night to plunder the peaceable inhabitants in the neighbourhood, till at last they used to quit their standards in

broad daylight without leave. They did everything just as their caprice and fancy dictated, no attention was paid to rules or discipline or to the orders of their officers. One thing alone helped to keep up the outward aspect of a Roman camp and that was the hope which the men entertained that the tribunes would become infected with their madness and take part in their mutiny. In this hope they allowed them to administer justice from their tribunals, they went to them for the watchword and the orders of the day, and relieved guard at the proper intervals. Thus after depriving them of any real authority they kept up the appearance of obedience, whilst they were actually their own commanders. When they found that the tribunes censured and reprobated their proceedings and endeavoured to repress them, and openly declared that they would have nothing to do with their insensate folly, they broke out into open mutiny. They drove the tribunes from their official seats, and then out of the camp, and amidst universal acclamation placed the supreme command in the hands of the chief ringleaders of the mutiny, two common soldiers whose names were C. Albius of Cales and C. Atrius, an Umbrian. These men were by no means content to wear the insignia of the military tribunes, they had the audacity to affect those of the chief magistrates, the fasces and the axes. It never occurred to them that those symbols which they had carried before them to strike fear into others were impending over their own backs and necks. The false belief that Scipio was dead blinded them; they felt certain that the spread of this report would kindle the flames of war throughout the whole of Spain. In the general turmoil they imagined that they would be able to levy contributions on the allies of Rome and plunder the cities round them, and when crime and outrage were being committed everywhere, what they had done would not be noticed in the universal confusion.

[28.25] They were every hour expecting fresh details of Scipio's death, and even news of his funeral. None came however and the idle rumours by degrees died away. Then they began to look for those who started the report, but each in turn kept out of the way, preferring to be thought credulous rather than suspected of inventing such a story. Abandoned by their followers, the ringleaders looked with dread upon the insignia they had assumed, and fully expected that in return for this idle show of power they would draw down upon themselves the weight of the true and legitimate authority.

While the mutiny was thus at a standstill, definite information was brought that Scipio was alive and this was soon followed by the further intelligence that his health was restored. This intelligence was brought by a party of seven military tribunes, whom Scipio had sent to Sucro. At first their presence was strongly resented, but the quiet talks they had with those they happened to know had a calming effect; they visited the soldiers in their tents, and chatted with the groups which gathered round the tribunals or in front of the headquarters tent. They made no reference to the treason the soldiers had been guilty of, but only questioned them as to the causes of the sudden outbreak. They were told in reply that the men did not get their pay punctually, nor their due share of credit for the part they had played in the campaign. It was by their courage, they asserted, that the Roman name was preserved and the province saved for the republic after the destruction of the two armies and their commanders, at the time when the Iliturgans committed their foul crime. And though they had received the just recompense for their treason, no one had been found to reward the Roman soldiers for their meritorious services.

In reply to these and similar complaints the tribunes told the men that their requests were reasonable and they would lay them before the general. They were glad that these were nothing worse or harder to set right, and the men might rest assured that P. Scipio, after the favour the gods had shown him, and, indeed, the whole State, would show their gratitude. Scipio was experienced in war, but unfamiliar with the storms of internal disturbances. Two things made him anxious, the possibility of the army exceeding all measure in its insubordination, or of his inflicting punishments which would be excessive. For the present he decided to go on as he had begun, and handle the matter gently. Collectors were sent among the tributary states so that the soldiers might hope to receive their pay soon. An order was shortly after issued for them to assemble at New Carthage for that purpose; they might go in a body or successively in single detachments as they preferred. The unrest was already dying down when the sudden cessation of hostilities on the part of the revolted Spaniards completely stopped it. When Mandonius and Indibilis heard that Scipio was still alive, they gave up their enterprise and retired within their frontiers, and the mutineers could no longer find any one either amongst their own countrymen or amongst the natives

who would associate himself with their mad scheme. After carefully considering every possible plan they saw that the only way of escaping the consequences of their evil counsels, and that not a very hopeful way, was to submit themselves either to the just displeasure of their general or to his clemency, which they were not without hopes of experiencing. They argued that he had ever pardoned the enemies of his country after armed conflict, whereas during their mutiny not a wound had been received or a drop of blood shed, it had been free from all cruelty and did not deserve a cruel punishment. So ready are men with reasons when they wish to palliate their own misconduct. There was considerable hesitation as to whether they should go to receive their pay separately cohort by cohort. or all together. The latter course seemed the safer and they decided upon it.

[28.26]Whilst they were discussing these points a council of war was being held over them in New Carthage. The members were divided; some thought it sufficient to proceed only against the ringleaders, who did not number more than five-and-thirty; others regarded it as an act of high treason rather than a mutiny and held that such a bad example could only be dealt with by the punishment of the many who were implicated. The more merciful view, that punishment should only fall on those with whom the mischief originated, finally prevailed; for the troops generally a severe reprimand was considered sufficient. On the breaking up of the council the army stationed in Carthage was informed that an expedition was to be made against Mandonius and Indibilis, and that rations were to be prepared for several days in advance. The object was to make it appear that this was the business for which the council had been held. The seven tribunes who had been sent to Sucro to quell the mutiny now returned in advance of the troops, and each handed in the names of five ringleaders. Suitable men had been told off to meet the culprits with smiles and pleasant words, and invite them to their houses, and when they had drunk themselves into a state of stupor place them in fetters. When the men were now not far from New Carthage they were informed by people who met them that the whole of the army at Carthage were starting on the morrow with M. Silanus against the Lacetaniens. This news did not completely dispel the secret fears which haunted their minds, still they were greatly rejoiced to hear it,

as they imagined that now that their commander would be alone, they would have him in their power, instead of their being in his.

The sun was setting when they entered the city, and they found the other army making all preparations for their march. It had been arranged beforehand how they were to be received, they were told that their commander was glad that they had arrived when they did, just before the other army left. They then dispersed for food and rest, and the ringleaders were conducted by the men selected for the purpose to their houses, where they were entertained, and where the tribunes arrested and manacled them without any disturbance. At the fourth watch the baggage train of the army began to move for its pretended march; at daybreak the standards went forward, but the whole army was halted as soon as it reached the gate, and guards were posted round all the gates to prevent any one from leaving the city. The newly arrived troops were then summoned to an assembly, and they ran into the forum and crowded threateningly round their general's tribunal, expecting to intimidate him by their shouts. At the moment when he ascended his tribunal the troops who had marched back from the gate and were fully armed surrounded the unarmed crowd. Now their rebellious spirit was completely cowed, and, as they afterwards admitted, the thing that they were most afraid of was the colour and vigour of their chief whom they expected to see looking weak and ill, and the expression in his face such as they had never witnessed before, not even in the heat of battle. For some time he sat in silence, until he received information that the ringleaders had been brought down to the forum and everything was in readiness.

[28.27]After the usher had obtained silence he made the following speech: "I never supposed that I should want words in which to address my army, not that I ever trained myself to speak rather than to act, but that having lived a camp life from boyhood I have learnt to understand the soldier's character. As to what I am to say to you now, words and ideas alike fail me; I do not even know by what title I am to address you. Am I to call you Roman citizens - you who have revolted against your country? Can I call you soldiers when you have renounced the authority and auspices of your general, and broken the solemn obligations of your military oath? Your appearance, your features, your dress, your demeanour I recognise as those of my fellow-countrymen, but I see that your actions, your language, your designs, your spirit and temper are those of your country's foes. What

difference is there between your hopes and aims and those of the Iltergetes and the Lacetanians? And yet they chose men of kingly rank, Mandonius and Indibilis, to lead them in their madness, whilst you delegated the auspices and the supreme command to Atrius, an Umbrian, and Albius, a man from Cales. Do tell me, soldiers, that you did not all join in that or approve of its being done. I will gladly believe that only a few were guilty of such insensate folly, if you assure me that this is so. For the crime is of such a nature that had it involved the whole army it could only have been expiated by a frightful sacrifice.

"It is painful for me to speak thus, opening up, as it were, wounds, but unless they are handled and probed they cannot be healed. After the expulsion of the Carthaginians from Spain I did not believe that there were anywhere people who wished me dead, such had been my conduct towards friends and enemies alike. And yet, alas so greatly was I mistaken that even in my own army the report of my death was not only credited but eagerly looked for. I would not for a moment wish to lay this to the charge of you all, for if I thought that the whole of my army wished for my death, I would die here before your eyes. My life would have no attraction for me if it were hateful to my fellow-countrymen and my soldiers. But every multitude is like the sea which left to itself is naturally motionless, till winds and gales excite it. So it is with calm and storms amongst you, the cause and origin of your madness is to be found in your ringleaders, who infected you with their frenzy. For you do not seem even now to be aware to what lengths of folly you have gone or what criminal recklessness you have been guilty of towards me, towards your country, your parents and your children, towards the gods who were witnesses of your military oath, towards the auspices under which you served, towards the traditions of the army and the discipline of our ancestors, towards the majesty inherent in supreme authority. About myself I prefer to be silent; you may have lent a thoughtless rather than a willing ear to the report of my death; I may be a man whose rule might be naturally expected to prove irksome to his army. But your country - what has it deserved of you that you should make common cause with Mandonius and Indibilis for its betrayal? What have the Roman people done that you should deprive the tribunes whom they elected of their authority, and bestow it on private individuals? And not content with having such men for tribunes you,

a Roman army, have transferred the fasces of your commander to men who never possessed a single slave to be at their command! The headquarters tent was occupied by an Albius and an Atrius; at their doors the trumpet sounded; to them you went for orders; they were seated on P. Scipio's tribunal; the lictor was in attendance and cleared the way before them; in front of them the axes and fasces were borne! When there is a shower of stones, or buildings are struck by lightning, or animals produce monstrous offspring, you consider these things as portents. We have here a portent which no victims, no intercessions can expiate but the blood of those who have dared such an awful crime.

[28.28]"Though no crime is dictated by rational motives, I should still like to know what was in your mind, what was your intention, so far as such wickedness admitted of any. Years ago a legion which was sent to garrison Regium murdered the principal men of the place and kept possession of that wealthy city for ten years. For this crime the entire legion of 4000 men were beheaded at Rome in the Forum. But they did not choose for their leader an Umbrian who was little more than a camp-follower, an Atrius whose very name is an evil omen. They followed D. Vibellius, a military tribune. Nor did they join hands with Pyrrhus, or with the Samnites and Lucanians, the enemies of Rome, but you communicated your plans to Mandonius and Indibilis and prepared to join them in arms. They were content to do as the Campanians did when they wrested Capua from the Tuscans, its old inhabitants, or as the Mamertines did when they seized Messana in Sicily; they intended to make Regium their future home without any idea of attacking Rome or the allies of Rome. Did you intend to make Sucro your permanent abode? If, after subjugating Spain, I had gone away and left you here you would have rightly complained to gods and men that you had not returned to your wives and children. But you may have banished from your minds all thought of them, as you have in the case of your country and in my own case. I want to trace the course which your criminal project would have taken, though stopping short of the extreme of madness. As long as I was alive and retained intact the army with which in one day I captured New Carthage and defeated and routed four Carthaginian armies, would you really have wrested the province of Spain from the hands of Rome, you, a force of some 8000 men, every

one of you of less account at all events than the Albius and Atrius whom you made your masters?

"I put aside and ignore my own honour and reputation, and assume that I was in no way injured by your too easily crediting the story of my death. But what then? Supposing I had died, would the commonwealth have died with me, would the sovereignty of Rome have shared my fate? No, Jupiter Optimus Maximus would never have allowed a City built for eternity, built under the auspices and sanction of the gods, to be as short-lived as this fragile mortal body of mine. C. Flaminius, Aemilius Paulus, Sempronius Gracchus, Postumius Albinus, M. Marcellus, T. Quinctius Crispinus, Cnaeus Fulvius, and my own relations, the two Scipios, all of them distinguished generals, have been carried off in this single war, and yet Rome lives on and will live on though a thousand more should perish through sickness or the sword. Would then the republic have been interred in my solitary grave? Why even you yourselves, after the defeat and death of my father and my uncle, chose Septimus Marcius to lead you against the Carthaginians, flushed as they were with their recent victory. I am speaking as though Spain would have been left without a general; but would not the sovereignty of the empire have been amply vindicated by M. Silanus, who came into the province invested with the same power and authority as I myself with my brother Lucius and C. Laelius as his lieutenants? Can any comparison be made between their army and you, between their rank and experience and those of the men you have chosen, between the cause for which they are fighting and the one which you have taken up? And if you were superior to them all would you bear arms in company with the Carthaginians against your country, against your fellow-citizens? What injury have they done to you?"

[28.29]"Coriolanus was once driven to make war on his country by an iniquitous sentence which condemned him to dishonoured and forlorn exile, but his affection as a son recalled him from the crime which he was meditating as a citizen. What have you suffered to call out this bitter hostility? Did you proclaim war against your country, did you desert the people of Rome in favour of the Ilergetes, did you trample underfoot all law, human and divine, simply because your pay was a few days in arrear owing to your general's illness? There is no doubt about it, soldiers, you were seized with madness; the bodily illness from which I suffered was not one whit more severe than the

mental malady which overtook you. I shrink with horror from dwelling upon the credit men gave to rumours, the hopes they entertained, the ambitious schemes they formed. Let all be forgotten, if possible, or if not that, let silence at least draw a veil over all. I admit that my words have appeared stern and unfeeling to you, but how much more unfeeling, think you, has your conduct been than anything I have said? You imagine that it is right and proper for me to tolerate your actions, and yet you have not patience to hear them mentioned. Bad as they are however, I will not reproach you with them any longer; I only wish you may forget them as easily as I shall. As for the army as a body, if you sincerely repent of your wrongdoing you give me satisfaction enough and more than enough. Albius of Cales and Atrius of Umbria with the other ringleaders in this detestable mutiny will expiate their crime with their blood. The sight of their punishment ought to give you satisfaction rather than pain, if indeed you have recovered your sanity, for their designs would have proved more mischievous and destructive to you than to any one else." He had hardly finished speaking when, at a preconcerted signal, the eyes and ears of his audience were assailed by everything which could terrify and appal. The army which was on guard all round the assembly clashed their swords against their shields, and the voice of the usher was heard calling over the names of those who had been sentenced in the council or war. These were stripped to the waist and conducted into the middle of the assembly; all the apparatus of punishment was at once brought out; they were tied to the stake, scourged and finally beheaded. The spectators were so benumbed by terror that no voice was raised against the severity of the punishment, not even a groan was heard. Then the bodies were all dragged away, and after the place was cleansed, the soldiers were summoned each by name to take the oath of obedience to P. Scipio before the military tribunes. Then they each received the pay due to them. Such was the end and issue of the mutiny which started amongst the soldiers at Sucro.

[28.30]Hanno, Mago's lieutenant, had been despatched during this time, with a small body of Africans to hire troops among the Spanish tribes, and succeeded in raising 4000 men. Soon afterwards, his camp was captured by L. Marcus, most of his men were killed in the assault, some during their flight by the pursuing cavalry; Hanno himself escaped with a handful of his men. Whilst this was going on

at the Baetis Laelius sailed westward and brought up at Carteia, a city situated on that part of the coast where the Straits begin to widen into the ocean. Some men had come into the Roman camp with a voluntary offer to surrender the city of Gades, but the plot was discovered before it was ripe. All the conspirators were arrested and Mago handed them over to the custody of Adherbal for conveyance to Carthage. Adherbal placed them on board a quinquereme which was sent on in advance as it was a slower vessel than the eight triremes with which he followed shortly after. The quinquereme was just entering the Straits when Laelius sailed out of the harbour of Carteia in another quinquereme followed by seven triremes. He bore straight down upon Adherbal, feeling quite sure that the quinquereme could not be brought round, as it was caught by the current sweeping through the channel.

Surprised by this unsuspected attack, the Carthaginian general hesitated for a few moments whether to follow his quinquereme or turn his prows against the enemy. This hesitation put it out of his power to decline the contest, for they were now within range of one another's missiles, and the enemy were pressing on him on all sides. The strength of the tide prevented them from steering their ships as they wished. There was no semblance of a naval battle, no freedom of action, no room for tactics or maneuvers. The tidal currents completely dominated the action and carried the ships against their own side and against the enemy indiscriminately, in spite of all the efforts of the rowers. You might see a ship which was endeavouring to escape carried stem foremost against the victors, whilst the one pursuing it, if it got into an opposing current, was swept back as though it were the one in flight. And when they were actually engaged and one ship was making for another in order to ram it, it would swerve from its course and receive a side-blow from the other's beak, whilst the one which was coming broadside on would suddenly be swung round and present its prow. So the varying struggle of the triremes went on, directed and controlled by Chance. The Roman quinquereme answered the helm better, either because its weight made it steadier, or because it had more banks of oars to cut through the waves. It sank two triremes, and sweeping rapidly past a third sheared off all the oars on one side, and it would have disabled the rest if Adherbal had not got clear away with the remaining five, and crowding all sail reached Africa.

[28.31]After his victory Laelius returned to Carteia where he learnt what had been going on at Gades, how the plot had been discovered and the conspirators sent to Carthage. As the purpose for which he had come was thus frustrated he sent word to L. Marcius, saying that if they did not wish to waste their time by sitting before Gades, they ought both to rejoin their commander-in-chief. Marcius quite agreed, and they both returned in a few days to New Carthage. On their departure Mago breathed more freely after having been threatened by the double danger from land and sea, and on receiving intelligence of the renewal of hostilities by the Ilergetes, he once more entertained hopes of reconquering Spain. Messengers were despatched to Carthage, to lay before the senate a highly coloured account of the mutiny in the Roman camp and the defection of the allies of Rome, and at the same time strongly urge that assistance should be sent to him in order that he might win back the heritage left him by his ancestors, the sovereignty of Spain. Mandonius and Indibilis had retired for some time within their borders and were quietly waiting till they knew what was decided with regard to the mutiny. They felt no doubt that if Scipio pardoned the offence of his own fellow-countrymen, he would exercise clemency towards them also. But when the severity of the punishment became generally known they were convinced that equal measure would be meted out to them, and so they decided to resume hostilities. They summoned their tribesmen once more to arms, and called out the auxiliaries who had joined them before, and with a force of 20,000 infantry and 2500 cavalry they crossed their frontiers and marched to their old camping ground in Sedetania.

[28.32]By his punctual payment of arrears to all alike, the guilty as well as the innocent, and by his affable tone and bearing towards every one, Scipio soon regained the affection of his soldiers. Before he broke up his quarters at New Carthage, he called his troops together and after denouncing at some length the treachery of the two chiefs in recommencing war went on to say that the temper in which he was going to avenge that crime was very different from the spirit in which he had recently healed the fault of his misled fellow-citizens. Then he felt as if he were tearing his own vitals, when with groans and tears he expiated either the thoughtlessness or the guilt of 8000 men at the cost of thirty lives. Now it was in a cheerful and confident spirit that he was marching to the destruction of the

Ilergetes. They were not natives of the same soil with him, nor was there any treaty bond between them; the only bond was that of honour and friendship, and that they had themselves broken by their crime. When he looked at his own army he saw that they were all either Roman citizens or Latin allies, but what affected him most was the fact that there was hardly a single soldier amongst them who had not been brought from Italy, either by his uncle Cnaeus Scipio, who was the first Roman general to come into that province, or by his father or else by himself. They were all of them accustomed to the name and auspices of the Scipios, and he wanted to take them back with him to their country to enjoy a well-earned triumph. Should he become a candidate for the consulship he hoped that they would support him, as the honour conferred on him would belong to them all. As to the expedition in front of them the man who regarded it as a war must have forgotten all that he had hitherto done. Mago, who had fled with a few ships to an island surrounded by an ocean; beyond the limits of the world of men, was, he assured them, more of a concern to him than the Ilergetes were, for a Carthaginian general and a Carthaginian garrison, however small, were still there, but here there were only brigands and brigand chiefs. They may be strong enough to plunder their neighbours' fields and burn their houses and carry off their flocks and herds but they have no courage for a pitched battle and an open field; when they have to fight they will trust more to their swiftness for flight than to their weapons. It was not, therefore, because he saw that there was any danger from them, or any prospect of serious war that he was marching to crush the Ilergetes before his departure from the province, but because such a criminal revolt must not go unpunished, and also because it must not be said that a single enemy has been left behind in a province which by such courage and good fortune has been reduced to submission. "Follow me then," he said, in conclusion, "with the kind help of heaven, not to make war - for you have to do with an enemy who is no match for you - but to inflict punishment upon men steeped in crime."

[28.33]The men were then dismissed with orders to make their preparations for the next day's departure. Ten days after leaving New Carthage he reached the Ebro, and within four days of his passage of the river he came within view of the enemy. In front of his camp there was a level stretch of ground shut in on either side by

mountains. Scipio ordered some cattle taken mostly from the enemy's fields to be driven towards the hostile camp in order to rouse the savagery of the barbarians. Laelius was instructed to remain with his cavalry in concealment behind a projecting mountain spur, and when the light infantry who went to guard the cattle had drawn the enemy into a skirmish he was to charge from his hiding-place. The battle soon began, the Spaniards on catching sight of the cattle rushed out to secure them, and the skirmishers attacked them while occupied with their plunder. At first the two sides harassed one another with missiles, then they discharged light darts, which are more likely to provoke than to decide a battle, and at last they drew their swords. It would have been a steady hand-to-hand fight if the cavalry had not come up. They not only made a frontal attack, riding down all in their way, but some galloped round the foot of the mountain so as to cut off the retreat of the enemy. There was more slaughter than usually occurs in skirmishes of this kind, and the barbarians were infuriated rather than disheartened at their want of success.

In order, therefore, to show that they were not defeated, they marched out to battle the next morning at daybreak. There was not room for them all in the narrow valley, described above; two divisions of their infantry and the whole of their cavalry occupied the plain and the rest of their infantry were posted on the slope of a hill. Scipio saw that the confined space would give him an advantage. Fighting on a narrow front was more adapted to Roman than to Spanish tactics, and as the enemy had brought his line into a position where he could not employ all his strength, Scipio adopted a novel stratagem. As there was no room for him to outflank the enemy with his own cavalry, and as the enemy's cavalry which was massed with the infantry would be useless where it was, he gave Laelius orders to make a detour along the hills, escaping observation as far as possible, and keep the cavalry action distinct from the infantry battle. Scipio led the whole of his infantry against the enemy with a front of four cohorts, as it was impossible to extend further. He did not lose a moment in beginning the fight, for he hoped that in the heat of battle his cavalry might execute their maneuver unnoticed. Nor were the enemy aware of their movements till they heard the sounds of battle in their rear. So two separate contests were going on through the whole length of the valley, one between the infantry and the other between the cavalry, and the narrow width of the valley prevented

the two armies from assisting each other or acting in concert. The Spanish infantry, who had gone into action trusting to the support of their cavalry, were cut to pieces and the cavalry, unable to stand the attack of the Roman infantry after their own had all fallen, and taken in rear by Laelius and his cavalry, closed up and for a time stood their ground and kept up their resistance, but at last all were killed to a man. Not a single combatant out of the cavalry and infantry which fought in the valley remained alive. The third division which had been standing on the mountain side, looking on in safety instead of participating in the fight, had room and time enough to make good their retreat. Amongst them were the two chieftains, who escaped in the confusion before the entire army was surrounded.

[28.34]The Spanish camp was captured the same day and in addition to the rest of the booty 3000 prisoners were secured. As many as 2000 Romans and allies fell in the battle; the wounded amounted to more than 3000. The victory would not have been so costly had the battle been fought in a wider plain where flight would have been easier. Indibilis laid aside all idea of continuing the war, and thought that the safest course, considering his hopeless position, would be to throw himself on Scipio's well-known clemency and honour. He sent his brother Mandonius to him. Throwing himself on his knees before the victor he put everything down to the fatal frenzy of the time, which like some pestilential contagion had infected not only the Ibergetes and Lacetanians but even a Roman army with madness. He declared that he and his brother and the rest of their countrymen were in such a condition that they would, if he thought it right, give back their lives to the same P. Scipio from whom they had received them, or, if they were spared a second time, they would devote the whole of their lives to the one man to whom they owed them. Previously they had trusted to the strength of their cause and had not made trial of his clemency, now that their cause was hopeless they put all their trust in their conqueror's mercy. It was the traditional practice of the Romans, in the case of a conquered nation with whom no friendly relations had previously existed either through treaty or community of rights and laws, not to accept their submission or allow any terms of peace until all their possessions sacred and profane had been surrendered, hostages given, their arms taken away and garrisons placed in their cities. In the present instance however, Scipio, after sternly reprimanding Mandonius and the absent Indibilis

at considerable length, said that their lives were justly forfeited by their crime, but that through his own kindness and that of the Roman people, they would be spared. He would not, however, demand hostages, since these were only a security for those who feared a fresh outbreak of hostilities, nor would he take away their arms, he would leave their minds at rest. But if they revolted it was not unoffending hostages but they themselves who would feel the weight of his arm; he would inflict punishment not upon a defenceless but upon an armed foe. He would leave it to them whether they preferred the favour or the wrath of Rome; they had experience of both. So Mandonius was dismissed, the only condition imposed upon him being a pecuniary indemnity sufficient to furnish the pay which was owing to the troops. After sending Marcus on in advance into Southern Spain, Scipio stayed where he was for a few days until the Ilergetes paid over the indemnity and then, setting out with a light-armed force, overtook Marcus who was already nearing the ocean.

[28.35]The negotiations which had been begun with Masinissa were delayed for various reasons. He wanted in any case to meet Scipio personally and to grasp his hand in confirmation of the league between them, and this was the reason why Scipio undertook at that time such a long and out-of-the-way journey. Masinissa was at Gades, and on being informed by Marcus that Scipio was coming, he represented to Mago that his horses were getting out of condition through being confined in so small an island, and were causing a general scarcity from which all alike suffered, whilst his cavalry were becoming enervated through inaction. He persuaded the Carthaginian commander to allow him to cross to the mainland for the purpose of plundering the adjacent country. When he had landed he sent three Numidian chieftains to Scipio to fix the time and place of the interview. Two were to be detained by Scipio as hostages, the third was to be sent back to conduct Masinissa to the place that had been decided upon. They came to the conference, each with a small escort. From what he had heard of his achievements the Numidian had already conceived a great admiration for the Roman commander and had pictured him in imagination as a man of grand and imposing presence. But when he saw him he felt a deeper veneration for him. The majesty, natural to Scipio, was heightened by his flowing hair and the simplicity of his general appearance, which was devoid of all adornment and decoration, and in the highest degree manly and

soldierly. He was at the most vigorous time of life, and his recovery from his recent illness had given him a freshness and clearness of complexion which renewed the bloom of youth.

Almost speechless with astonishment at this his first meeting with him, the Numidian began by thanking him for having sent his nephew home. From that moment, he declared, he had looked for such an opportunity as this of expressing his gratitude, and now that one was offered him by the kindness of heaven he would not let it slip. He was desirous of rendering such service to Scipio and to Rome that no one of foreign birth might ever be found to have afforded more zealous assistance. This had long been his wish, but Spain was a strange and unknown land to him, and he had been unable to carry out his purpose there; it would, however, be easy to do it in the land of his birth, where he had been brought up in the expectation of succeeding to his father's throne. If the Romans sent Scipio as their general into Africa, he felt pretty certain that the time of Carthage would be very short. Scipio watched him and listened to him with great pleasure. He knew that Masinissa was the master-spirit in all the enemy's cavalry, and the youth's whole bearing showed high courage. After they had pledged their faith to each other, Scipio returned to Tarraco. Masinissa was allowed by the Romans to carry off plunder from the adjacent fields, in order that he might not be thought to have sailed across to the mainland without sufficient cause. After this he returned to Gades.

[28.36]Mago's hopes had been raised by the mutiny in the Roman camp and the revolt of Indibilis. Now he despaired of effecting anything in Spain and made preparations for his departure. Whilst he was so employed a despatch came from the Carthaginian senate ordering him to take the fleet which he had at Gades over to Italy, and after raising as large a force as possible of Gauls and Ligurians in that country to form a junction with Hannibal and not allow the war which had been begun with so much energy and even more success to drag on lifelessly. Money was brought to him from Carthage for the purpose, and he also requisitioned as much as he could from the people in Gades. Not only their public treasury but even their temples were plundered, and they were all compelled to contribute their private stores of gold and silver. Sailing along the Spanish coast, he landed a force not far from New Carthage, and plundered the nearest fields, after which he brought up his fleet at the city. During

the day he kept his men on board, and did not disembark them till night. He then took them to that part of the city wall where the Romans had effected the capture of the place; thinking that the city was held by a weak garrison and that there would be a movement amongst some of the townsmen who hoped for a change of masters. The country people, however, who were fleeing from their fields had brought news of the depredations and approach of the enemy. His fleet had also been seen during the day, and it was obvious that they would not have taken their station before the city without some special reason. An armed force was accordingly drawn up outside the gate which faced the sea. The enemy approached the walls in disorder, soldiers and seamen were mixed together, and there was much more noise and tumult than fighting strength. Suddenly the gate was thrown open and the Romans burst out with a cheer; the enemy were thrown into confusion, turned their backs at the very first discharge of missiles and were pursued with heavy loss down to the shore. If the ships had not been brought up close to the beach and so afforded a means of escape, not a single fugitive would have survived. On the ships, too, there was hurry and confusion; the crews drew up the ladders, lest the enemy should clamber on board with their comrades, and cut the cables and hawsers so as not to lose time in weighing anchor. Many who tried to swim to the ships could not see in the darkness what direction to take or what dangers to avoid, and perished miserably. The next day, after the fleet had regained the ocean, it was discovered that 800 men had been killed between the wall and the shore and as many as 2000 arms of different kinds picked up.

[28.37] On his return to Gades, Mago found the gates closed against him, so he anchored off Cimbii, a place not far from Gades, and sent envoys to lodge a complaint against the gates being closed to him, an ally and a friend. They excused themselves by saying that it was done by a gathering of the townsmen who were incensed at some acts of pillage committed by the soldiers during the embarkation. He invited their sufetes - the title of their supreme magistrate - together with the city treasurer to a conference, and when they were come he ordered them to be scourged and crucified. From there he sailed to Pityusa, an island about a hundred miles distant from the mainland, which had at the time a Phoenician population. Here the fleet naturally met with a friendly reception, and not only were supplies furnished on a

generous scale but he received reinforcements for his fleet in the shape of arms and men. Thus encouraged, the Carthaginian sailed on to the Balearic Isles, a voyage of about fifty miles. There are two islands so called; the larger one was better supplied with arms and contained a more numerous population; it also possessed a harbour where Mago thought he could conveniently shelter his fleet for the winter, as the autumn was now closing. But his fleet met with quite as hostile a reception as if the island had been inhabited by Romans. The sling which the Balearics make most use of today was at that time their sole weapon, and no nation comes near them in the skill with which they handle it. When the Carthaginians tried to approach the land such a shower of stones fell upon them like a violent hailstorm that they did not venture inside the harbour. Putting out once more to sea they approached the smaller island, which possessed a fertile soil, but fewer resources in men and arms. Here they landed and encamped in a strong position commanding the harbour, from which they became masters of the island without meeting any resistance. They raised a force of 2000 auxiliaries which they sent to Carthage and then beached their ships for the winter. After Mago's departure Gades surrendered to the Romans.

[28.38]Such is the record of Scipio's command in Spain. After handing over the charge of the province to the proconsuls L. Lentulus and L. Manlius Acidinus, he set sail with ten ships for Rome. On his arrival a meeting of the senate was held at the temple of Bellona, at which he gave a report of all he had done in Spain, how many pitched battles he had fought, how many towns he had captured, and what tribes he had brought under the dominion of Rome. He asserted that when he arrived in Spain he found four Carthaginian armies opposed to him; when he left, there was not a single Carthaginian in the country. He was not without hope that a triumph might be accorded to him for his services; he did not, however, press his demand for one, as it was quite understood that no one had up to that time enjoyed a triumph who was not invested with a magistracy. After the senate had been dismissed, he made his entry into the City and had borne before him 14,342 pounds of silver and a great quantity of silver coins, all of which he deposited in the treasury. L. Veturius Philo now proceeded to hold the consular elections, and all the centuries voted amidst much enthusiasm for Scipio. Publius Licinius Crassus, the Pontifex Maximus, was elected

as his colleague. It is recorded that a larger number of voters took part in that election than at any other time during the war. They had come from all parts, not only to give their votes, but also to get sight of Scipio; they flocked in crowds round his house, and at the Capitol when he sacrificed the hecatomb which he had vowed to Jupiter in Spain. They assured themselves that as C. Lutatius had brought the First Punic War to a close, so Scipio would terminate this one, and as he had driven the Carthaginians out of Spain, so he would drive them out of Italy. They were marking out Africa as his province just as though the war in Italy was at an end. Then followed the election of praetors. Two of those elected - Spurius Lucretius and Cnaeus Octavius - were plebeian aediles at the time; the others - Cnaeus Servilius Caepio and L. Aemilius Papus - were not holding any office. It was in the fourteenth year of the Second Punic War (B.C. 205) that P. Cornelius Scipio and P. Licinius Crassus entered on their consulship. In the assignment of the consular provinces Scipio with his colleague's consent took Sicily without recourse to the ballot, because Crassus, as Pontifex Maximus, was prevented by his sacred duties from leaving Italy; he therefore took Bruttium. The praetors then balloted for their provinces. The City jurisdiction fell to Cnaeus Servilius; Spurius Lucretius received Ariminum, as the province of Gaul was then called; Sicily fell to L. Aemilius and Sardinia to Cnaeus Octavius.

[28.39]The senate held a session in the Capitol. A resolution was passed on the motion of P. Scipio that he should celebrate the Games which he had vowed during the mutiny and defray the cost out of the money which he had brought into the treasury. Then he introduced a deputation from Saguntum, the senior member of which addressed the House in the following terms: "Although there is no form of suffering, senators, which we have not endured in order to keep our faith with you to the last, still the kindness which you and your generals have shown to us has made us forget our misery. For us you have undertaken war and for fourteen years have carried it on with such determination that often you have brought yourselves and often reduced the Carthaginians to the last extremities. Though you had in the heart of Italy such a terrible war and such an enemy as Hannibal, you nevertheless sent a consul with his army to Spain to collect, as it were, the remains of our wreckage. From the day that the two Scipios, Publius and C. Cornelius, came into the province they never at any

moment failed to do good to us and injury to our enemies. First of all, they restored our city to us, and sent men all over Spain to find out those of us who had been sold into slavery and set them free. When our fortunes, from being utterly miserable, had become almost enviable, your two generals Publius and C. Cornelius met with their deaths, a loss which we felt even more bitterly than you. It seemed at the time as though we had been brought back from distant exile to our old home only to see for the second time our own ruin and our country's destruction. It did not require a Carthaginian general or army to effect our annihilation, the Turduli, our inveterate enemies who had been the cause of our former collapse, would have been quite able to extinguish us. And just when we had lost all hope, you suddenly sent P. Scipio, whom we are more fortunate than all our fellow-citizens in seeing here today. We shall carry back to our people the news that we have seen, as your consul-elect, the one man in whom we placed all our hopes of safety. City after city has been taken by him from your enemies throughout Spain, and in every instance he picked out the Saguntines from the mass of prisoners and sent them home. And lastly the Turdetani, such deadly enemies to us that had their strength remained unimpaired Saguntum must have fallen, even they have been brought so low by his arms that they are no longer to be feared by us, nor, if I may dare to say so, by our posterity. The tribe in whose favour Hannibal destroyed Saguntum have had their own city destroyed before our eyes. We take tribute from their land, but it is not the profit, but the revenge that we enjoy most.

"For these blessings, the greatest that we could hope for or ask heaven to grant, the senate and people of Saguntum have sent this deputation to convey their grateful thanks. We are at the same time to convey their congratulations to you on having been so successful these last years in Spain and Italy that you have subjugated the one country by the might of your arms, not only as far as the Ebro, but even to its most distant shores which the ocean bounds, whilst in the other you have left the Carthaginian nothing outside the rampart of his camp. To the great Guardian of your stronghold in the Capitol, Jupiter Optimus Maximus, we are bidden not only to render thanks for these boons, but also, if you allow us, to offer and carry to him in the Capitol this gift of a golden crown, as a memorial of your victories. We pray that you will sanction this and further, if it seem good to you, that you will ratify and confirm for all time the

advantages which your generals have conferred upon us." The senate replied to the effect that the destruction and restoration of Saguntum would both alike be a proof to all the world of the faith which each side had kept to the other. Their generals had acted wisely and properly and in accordance with the wishes of the senate in restoring Saguntum and rescuing its citizens from slavery, and all other acts of kindness which they had performed were such as the senate wished to have done. They accorded permission to the envoys to place their gift in the Capitol. Free quarters and hospitality were provided for them at the cost of the State, and orders were given for each to be presented with a sum of not less than 10,000 ases. The other deputations were then admitted to an audience of the senate. The Saguntines also asked to be allowed to make a tour through Italy as far as they could with safety, and guides were furnished them and letters sent to the different towns requesting them to give the Spaniards a hospitable reception

[28.40]The next question before the senate concerned the raising of troops and the distribution of the various commands. There was a rumour that Africa was to form a new province and be allotted to Scipio without having recourse to the ballot. Scipio himself, no longer contented with a moderate share of glory, was telling people that he had been returned as consul not simply to carry on the war but to bring it to an end, and the only way of doing that was for him to take an army over to Africa. In the event of the senate's opposition he asserted openly that he would carry his proposal by the authority of the people. The project was most distasteful to the leaders of the senate, and as the rest of the senators, afraid of becoming unpopular, refused to speak out, Q. Fabius Maximus was asked for his opinion. This he gave in the following speech: "I am quite aware, senators, that many of you regard the question before us today as already decided, and consider that any one who discusses the destination of Africa as though it were still an open question is wasting words. I do not quite understand, however, how Africa can have been definitely assigned as the province of our gallant and energetic consul, when neither the senate nor the people have decided that it shall be included amongst the provinces for the year. If it has been so assigned then I think the consul is quite wrong in inviting a sham discussion upon a measure that has been decided upon; he is not only

stultifying the senate as a body, but each individual senator who is called upon in turn for his opinion.

"In expressing my dissent from those who think that we ought at once to invade Africa, I am quite conscious that I expose myself to two imputations. For one thing my action will be set down to my cautious nature. Young men may call it timidity and indolence if they please, as long as we have no cause to regret that though the counsels of others have seemed at first sight more attractive, experience shows that mine are better. The other charge against me will be that I am actuated by motives of malevolence and envy against the ever-growing glory of our most gallant consul. If my past life, my character, my dictatorship and five consulships, the glory I have acquired as a citizen and as a soldier, a glory so great as to produce surfeit rather than a desire for more - if these do not shield me from this imputation at least let my age free me from it. What rivalry can exist between myself and a man who is not even as old as my son? When I was Dictator, in the full maturity of my powers and engaged in most important operations my authority was by an unheard-of innovation divided with the Master of the Horse. Yet no one ever heard a word of protest from me either in the senate or in the Assembly, even when he was pursuing me with abuse. It was through my actions rather than my words that I wished the man whom others considered my equal to be compelled to admit his inferiority to me. And am I, who have received all the honours that the State can confer, to enter into competition with one who is in the full flower of his youth? And simply that if Africa is refused to him, it may be granted to me, tired as I am not only of public business but of life itself? No, I must live and die with the glory that I have won. I have prevented Hannibal from conquering in order that he might be conquered by those of you who are in the full vigour of your powers."

[28.41]"It is but fair, Publius Cornelius, that whilst in my own case I have never preferred my own reputation to the interests of the State, you should pardon me for not regarding even your glory as more important than the welfare of the commonwealth. I admit that if there were no war in Italy or only an enemy from whose defeat no glory was to be gained, then the man who would keep you in Italy though acting in the public interest might appear to be depriving you of the chance of winning glory in a foreign war. But as our enemy Hannibal has been holding Italy for fourteen years with an

undefeated army, you will surely not despise the glory of expelling from Italy during your consulship the enemy who has been the cause of so many defeats, so many deaths, and of leaving it on record that it is you who have terminated this war, as C. Lutatius has the lasting glory of bringing the First Punic War to a close? Unless, indeed, Hasdrubal was a finer general than Hannibal, or the last war a more serious one than this one, or the victory which closed it a greater and more brilliant one than this will be, should it fall to our lot to conquer whilst you are consul. Would you rather have drawn Hamilcar away from Drepana and Eryx, than expel Hannibal and his Carthaginians from Italy? Even though you should cling to the glory you have acquired more than to what you hope for, you will not pride yourself upon having delivered Spain from war rather than Italy. Hannibal is not yet such an enemy that the man who prefers to fight against another foe would not be thought to fear rather than to despise him. Why do you not gird yourself to this task? Why do you not march straight from here to where Hannibal is and carry the war thither instead of taking a roundabout course in the hope that when you have crossed over into Africa he will follow you? You are anxious to win the crowning glory of bringing the Punic War to an end; your natural course will be to defend your own country before you go to attack the enemy's. Let there be peace in Italy before there is war in Africa; let our own fears be banished before we make others tremble. If both objects can be achieved under your generalship and auspices, then when you have conquered Hannibal here, go on and capture Carthage. If one of the two victories must be left for your successors, the former is the greater and more glorious one and will necessarily lead to the latter. As matters now are, the public exchequer is unable to support two armies in Italy and also in Africa, we have nothing left from which to equip a fleet and furnish it with supplies, and over and above all this who can fail to see what great dangers would be incurred? P. Licinius, let us suppose, is conducting the campaign in Italy and P. Scipio one in Africa. Well, supposing - may all the gods avert the omen which I shudder at the mention of! but what has happened may happen again - supposing, I say, that Hannibal wins a victory and marches on Rome, are we to wait till then before recalling you from Africa, as we recalled Q. Fulvius from Capua? What, if even in Africa the fortunes of war prove equally favourable for both sides? Take warning from the fate of your own house, your father and uncle destroyed with their armies within a month of each other in the

country where they had raised the name of Rome and the glory of your family high among the nations through their successful operations by land and sea. The daylight would fail me if I attempted to enumerate the kings and captains who by their rash invasion of their enemy's territory have brought the most crushing defeat on themselves and their armies. Athens, a city most sensible and wise, listened to the advice of a young man of high birth and equally high ability, and sent a great fleet to Sicily before it had disposed of the war at home, and in one naval battle the flourishing republic was, for ever ruined."

[28.42]"I will not take instances from distant lands and remote times. This very Africa we are speaking about and the fate of Atilius Regulus form a conspicuous example of the fickleness of fortune. "When you, Scipio, have a view of Africa from the sea will not your conquest of Spain seem mere child's play? What resemblance is there between them? You began by coasting along the shores of Italy and Gaul over a sea free from any hostile fleet, and you brought up at Emporiae, a friendly city. After disembarking your troops you led them through a perfectly safe country to Tarraco, to the friends and allies of Rome, and from Tarraco your route led through the midst of Roman garrisons. Round the Ebro lay the armies of your father and your uncle, whose courage had been raised by defeat and who were burning to avenge the loss of their commanders. Their leader was, it is true, irregularly chosen by the vote of the soldiery to meet the emergency, but had he belonged to an ennobled family and been duly appointed he would have rivalled distinguished generals in his mastery of the art of war. Then you were able to attack New Carthage without the slightest interruption; not one out of the three Carthaginian armies attempted to defend their allies. The rest of your operations, though I am far from depreciating them, are not to be compared with a war in Africa. There no harbour is open to our fleet, no district which will receive us peaceably, no city in alliance with us, no king friendly to us, no spot which we can use as a base of operations. Wherever you turn your eyes, you see hostility and menace.

"Do you put your trust in Syphax and his Numidians? Be satisfied with having trusted them once. Rashness does not always succeed and duplicity prepares the way for confidence through trifles, so that when the occasion calls for it, it may succeed in securing some great

advantage. Your father and your uncle were not defeated until the treachery of their Celtiberian auxiliaries left them victims to the enemy. You yourself were not exposed to anything like the danger from the Carthaginian commanders, Mago and Hasdrubal, that you were from Indibilis and Mandonius after you had accepted their alliance. Can you trust the Numidians after the experience you have had of the disloyalty of your own troops? Syphax and Masinissa would both prefer that they rather than the Carthaginians should be the leading powers in Africa, but failing that, they would rather have the Carthaginians than any one else. At this moment mutual rivalry and numberless grounds of complaint are embittering them against one another, because external dangers are far distant; but once let them see the arms of Rome and a foreign army, and they will hasten side by side to extinguish, as it were, a conflagration which threatens them both. Those Carthaginians defended Spain in a very different way from that in which they would defend their country's walls, the temples of their gods, their hearths and homes, when their trembling wives will follow them and their little children cling to them as they march out to battle. What, moreover, if, feeling quite assured of the united support of Africa, the fidelity of their royal allies and the strength of their walls, and seeing that you and your army are no longer here to protect Italy, the Carthaginians should send over a fresh army from Africa, or order Mago, who, we understand, has left the Balearic Isles and is sailing along the Ligurian coast, to form a junction with Hannibal? Surely we should be in the same state of alarm as we were at the appearance in Italy of Hasdrubal, after you had allowed him to slip through your hands - you, who are going to blockade not Carthage only but the whole of Africa with your army! You will say that you defeated him. Then I regret all the more, both on your account and on behalf of the republic, that you allowed him after his defeat to invade Italy.

"Allow us to ascribe all that has gone happily for you and for the dominion of Rome to your wise counsels, and all misfortunes to the uncertain chances of war - the more talent and courage you claim for yourself the more will your native country and all Italy desire to keep such a doughty defender at home. Even you cannot disguise the fact that where Hannibal is, there is the centre and mainstay of the war, for you are giving out that the one reason for your going to Africa is to draw Hannibal there. Whether there then or here, you still have

Hannibal to deal with. And will you, I should like to know, be in a stronger position in Africa, single-handed, than here with your own army and your colleague's acting together? What a difference that makes is shown by the recent instance of the consuls Claudius and Livius. Where, pray, is Hannibal more likely to be supplied with men and arms? In the most remote corner of Bruttium where he has so long been vainly asking for reinforcements from home, or in the country round Carthage and on the soil of Africa which is entirely occupied by his allies? What an extraordinary idea that is of yours to fight where your forces are reduced by one-half and those of the enemy largely augmented, rather than in a country where with two armies you would engage only one, and that, too, exhausted by so many battles, and such long and burdensome service. Just think how different your plan is from your father's. On his election as consul he proceeded to Spain, then left his province and returned to Italy in order to meet Hannibal on his descent from the Alps; you are preparing to leave Italy while Hannibal is actually here, not in the interest of the republic but because you think it a grand and glorious thing to do. Just in the same way you, a general of the Roman people, left your province and your army without any legal authority, without any instructions from the senate, and entrusted to a couple of ships the fortunes of the State and the majesty of the empire which were for the time bound up with your own safety. I hold the view that P. Cornelius Scipio was elected consul not for his own private ends, but for us and the commonwealth, and that armies are raised to guard this city and the soil of Italy, and not for consuls to transport to any part of the world they please in the arrogant style of kings and despots."

[28.43] This speech of Fabius, so appropriate to the circumstances under which it was delivered, and backed up by the weight of his character and his long-established reputation for prudence, produced a great effect upon most of those present, especially upon the seniors. Seeing that the majority approved of the sage counsels of age in preference to the impetuous temper of youth, Scipio is reported to have made the following reply: "Senators, at the beginning of his speech, Q. Fabius admitted that what he had to say might lay him under a suspicion of jealousy. Personally, I should not dare to accuse so great a man of that weakness, but either through the inadequacy of his defence or the impossibility of making a successful one, he has

utterly failed to clear himself of the charge. For in his anxiety to dispel the suspicion, he spoke about his distinctions and his reputation in such exaggerated terms as to give the impression that I was in danger of finding a rival in the lowest of the Romans, not in him who, because he stands above all others - a position which I frankly confess I am striving to attain, denies the possibility of any rivalry between us. He has represented himself as an old man full of honours, and me as a youth not even as old as his son, as if the passion for glory did not extend beyond the span of human life and find its chief satisfaction in the memory of future generations. I am quite certain that it is the lot of all great men to compare themselves not with their contemporaries alone, but also with the illustrious of all ages. I admit, Quintus Fabius, that I am desirous not only of equalling your renown but - forgive my saying so - of surpassing it, if I can. Let not your feeling towards me, or mine towards my juniors, be such that we would prevent any of our fellow-citizens from reaching our level. That would not only injure the victims of our envy, it would be a loss to the State, and almost to the human race.

"The speaker dwelt upon the danger to which I should be exposed if I landed in Africa, showing apparently solicitude not only for the commonwealth and its army but even for me. What has led to this sudden anxiety on my account? When my father and my uncle were killed and their armies all but annihilated; when Spain was lost; when four Carthaginian armies and their generals were holding the whole country down by the terror of their arms; when you were looking for a man to take the supreme command in that war and no one appeared, no one came forward to offer himself but me; when the Roman people conferred the supreme command on me before I had reached my twenty-fifth year - why did no one then say anything about my age, the strength of the enemy, the difficulties of the campaign or the recent disaster which had overtaken my father and my uncle? Has some calamity occurred recently in Africa greater than the one which happened then in Spain? Are there larger armies and better and more numerous commanders in Africa now than there were then in Spain? Was I then at a riper age for undertaking a great war than I am today? Is Spain a more convenient field for operations against the Carthaginians than Africa? Now that I have scattered four Carthaginian armies in flight, reduced so many cities by force or fear, and subjugated every part down to the shores of the ocean, petty

kings and savage tribes alike; now that I have reconquered the whole of Spain so completely that no vestige of war anywhere remains, it is an easy task to make light of my services, as easy, in fact, as it will be, when I have returned victorious from Africa, to make light of those very difficulties which are now painted in such dark colours in order to keep me here.

"Fabius says that no part of Africa is accessible, that there are no harbours open to us. He tells us that M. Atilius Regulus was made prisoner in Africa, as though he had met with misfortune as soon as he landed. He forgets that that very commander, unfortunate as he was afterwards, did find some harbours in Africa open to him, and for the first twelve months won some brilliant victories, and as far as the Carthaginian generals were concerned, remained undefeated to the last. You will not, therefore, deter me by quoting that instance. Even if that disaster had occurred in this war instead of in the last one, quite recently and not forty years ago - even then why should I be prevented from invading Africa because Regulus was made prisoner any more than I was prevented from going to Spain after the two Scipios were killed? I should be sorry to believe that Xanthippus, the Lacedaemonian, was born to be a greater blessing to Carthage than I am to be to my country, and my confidence is strengthened by seeing what tremendous issues depend upon one man's courage. We have had to listen even to stories about the Athenians, how they neglected the war at their doors in order to go to Sicily. Well, since you are at leisure to tell us tales about Greece why do you not mention Agathocles, king of Syracuse, who after Sicily had long been wasted by the flames of the Punic War sailed across to this same Africa and turned the tide of war back to the country from which it had started?"

[28.44]"Put what need is there of instances drawn from other lands and other times to remind us how much depends upon taking the aggressive and removing danger from ourselves by making it recoil upon others? It makes all the difference in the world whether you are devastating the territory of another nation or seeing your own destroyed by fire and sword. It shows more courage to attack than to repel attacks. Then again, the unknown always inspires terror, but when you have entered your enemy's country you have a nearer view of his strength and weakness. Hannibal never hoped that so many communities would go over to him after Cannae; how much less

could the Carthaginians, faithless allies, harsh and tyrannical masters as they are, count upon the firmness and stability of their African empire! So far, even when deserted by our allies, we stood in our own strength, the soldiery of Rome. The Carthaginians have no citizen army, their soldiers are all mercenaries, ready to change sides on the smallest provocation. If only nothing stops me, you will hear that I have landed, that Africa is wrapped in the flames of war, that Hannibal is tearing himself away from Italy, that Carthage is besieged - all at one stroke. You may look for more cheerful and more frequent news from Africa than you received from Spain. Everything inspires me with hope - the Fortune which waits on Rome, the gods who witnessed the treaty which the enemy has broken, the two princes Syphax and Masinissa, whose fidelity I shall so far trust as to protect myself from any perfidy they may attempt. Many advantages which at this distance are not apparent will be disclosed as the war goes on. A man proves his capacity for leadership by seizing every opportunity that presents itself, and making every contingency subserve his plans. I shall have the adversary whom you, Q. Fabius assign to me - Hannibal - but I would rather draw him away than that he should keep me here; I would compel him to fight in his own country, and Carthage shall be the prize of victory rather than the half-ruined strongholds of Bruttium.

"And now as to any injury that may befall the republic during my voyage or whilst I am disembarking my men on the shores of Africa or during my advance on Carthage. As the consul, P. Licinius, is also Pontifex Maximus, and cannot be absent from his sacred duties, it is impossible for him to ballot for so distant a province. Would it not be almost an insult to say that he cannot accomplish the task, after Hannibal's power has been shaken and almost shattered, which you, Q. Fabius, were able to accomplish when Hannibal in the hour of victory was flying about in every part of Italy? And even if the war should not be brought to a more speedy termination by the plan which I suggest, the dignity of Rome and her prestige amongst foreign kings and nations would surely require us to show that we possess sufficient courage not only to defend Italy but to carry our arms even as far as Africa. We must not let the idea get abroad that no Roman general durst do what Hannibal has done, or that whilst in the First Punic War, when the struggle was for Sicily, Africa was frequently attacked by our fleets and armies, in this war, when the

struggle is for Italy, Africa is left in peace. Let Italy, which has been so long harassed, have some rest at last; let Africa take its turn of fire and ruin; let a Roman camp threaten the gates of Carthage rather than that we should see the enemy's lines from our walls. Let Africa be the seat of war henceforth; let us roll back there all the terror and the flight, all the wasting of our lands and the defection of our allies, all the other miseries of war which have been assailing us for the last fourteen years. Enough has been said as to the republic and the present war and the allocation of provinces. It would be a long and uninteresting discussion if I were to follow the example of Q. Fabius, and as he has depreciated my services in Spain, so I were to pour ridicule on his glory and extol my own. I will do neither the one nor the other, senators, and if, young as I am, I cannot have the advantage over an old man in anything else, I will at least prove his superior in moderation and restraint of language. My life and my conduct of affairs have been such that I am quite content to accept in silence the judgment which you have spontaneously formed."

[28.45]Scipio was listened to with impatience, for it was generally believed that if he did not succeed in inducing the senate to decree that Africa should be his province, he would at once bring the question before the Assembly. So Q. Fabius, who had held four consulships, challenged Scipio to say openly before the senate whether he left the decision as to the provinces in their hands, and was prepared to abide by it, or whether he was going to refer it to the people. Scipio replied that he should act as he thought best in the interests of the State. On this Fabius observed: "It was not because I did not know what you would say or how you would act that I made my request, for you openly avow that you are sounding the House rather than consulting it, and that if we do not at once assign you the province which you want, you have a resolution ready to put to the Assembly." (Then, turning to the tribunes) "I demand of you, tribunes of the plebs, that you support me in my refusal to vote, for even if the decision is in my favour the consul is not going to recognise it." Then a discussion arose between the consul and the tribunes, he asserting that there was no just ground for their intervening and supporting a senator in his refusal to vote, when called upon to do so. The tribunes gave their decision in the following terms: "If the consul submits to the senate the allocation of the provinces their decision shall be binding and final, and we will not

allow any reference to the people. If he does not so submit it, we shall support any senator in his refusal to vote when called upon to do so." The consul asked for a day's grace in order to consult his colleague. The following day he submitted the matter to the decision of the senate. The decree made respecting the provinces was that one consul should take Sicily and the thirty warships which C. Servilius had had the previous year, permission being granted him to sail to Africa, if he thought such a course would be in the interests of the State; the other consul was to take Bruttium and the operations against Hannibal, with either the army which had served under L. Veturius, or the one which Q. Caecilius had commanded. These two were to ballot and arrange which of them was to act in Bruttium with the two legions which the consul would not require, and the one to whom that field should fall was to have his command extended for a year. With the exception of the consuls and praetors, all who were to take charge of armies and provinces had their commands extended for a year. It fell to Q. Caecilius to act with the consul against Hannibal in Bruttium.

Scipio exhibited the Games amidst the applause of a large and enthusiastic crowd of spectators. M. Pomponius Matho and Q. Cadius were sent on a mission to Delphi to carry thither the offering made from the plunder of Hasdrubal's camp. It was a golden crown of 200 pounds' weight, and there were facsimiles of the pieces of spoil made in silver weighing in the aggregate 1000 pounds. Scipio did not succeed in obtaining permission to levy troops and indeed he did not press the point, but he was allowed to enlist volunteers. As he had stated that his fleet would not be a charge on the State he was given liberty to accept any materials contributed by the allies for the construction of his ships. The cantons of Etruria were the first to promise assistance, each according to its means. Caere contributed corn and provisions of all kinds for the crews; Populonia, iron; Tarquinii, cloth for the sails; Volaterrae, timber for the hulls and corn; Arretium, 3000 shields and as many helmets, whilst they were ready to supply as many as 50,000 darts, javelins and long spears. They also offered to furnish all the axes, spades, sickles, gabions and hand-mills required for forty warships as well as 120,000 pecks of wheat and provision for the sailing-masters and the rowers on the voyage. Perugia, Clusium and Russellae sent pine-wood for the timbers of the ships and a large quantity of corn. The Umbrian communities as well

as the inhabitants of Nursia, Reate and Amiternum and the whole of the Sabine country promised to furnish men. Numerous contingents from the Marsi, the Paeligni and the Marrucini volunteered to serve on board the fleet. Camerinum, a city leagued on a basis of equal rights with Rome, sent a cohort of six hundred men-at-arms. The keels of thirty ships - twenty quinqueremes and ten quadriremes - were laid down, and Scipio pressed on the work so rapidly that forty-five days after the timber had been brought from the forests, the ships were launched with their tackle and armament complete.

[28.46] Scipio sailed to Sicily with 7000 volunteers on board his thirty warships, and P. Licinius proceeded to Bruttium. Of the two consular armies stationed there he selected the one which the former consul L. Veturius had commanded. He allowed Metellus to keep the legions he was in command of, as he thought he would do better with men accustomed to his leadership. The praetors also departed for their several provinces. As money was needed for the war the quaestors received instructions to sell that part of the Capuan territory which extends from the Fossa Graeca to the coast, and evidence was asked for of any cases where land had been appropriated by a citizen of Capua, that it might be included in the Roman stateland. The informer was to receive a gratuity of ten per cent. of the value of the land. The City praetor, Cnaeus Servilius, was also to see that the citizens of Capua were residing where the senate had given them permission to reside, and any who were living elsewhere were to be punished. During the summer Mago who had been wintering in Minorca embarked with a force of 12,000 infantry and 2000 cavalry, and set sail for Italy with about thirty warships and a large number of transports. The coast was quite unguarded and he surprised and captured Genua. From there he went on to the Ligurian coast on the chance of rousing the Gauls. One of their tribes - the Ingauni - were at the time engaged in a war with the Epanterii, an Alpine tribe. After storing his plunder in Savo and leaving ten vessels as guardships, Mago sent the remainder of his ships to Carthage to protect the coast, as it was rumoured that Scipio intended to invade Africa, and then he formed an alliance with the Ingauni, from whom he expected more support than from the mountaineers, and commenced to attack the latter. His army grew in numbers every day; the Gauls, drawn by the spell of his name, flocked to him from all parts. The movement became known in Rome through a despatch from Spurius Lucretius,

and the senate were filled with the gravest apprehensions. It seemed as though the joy with which they heard of the destruction of Hasdrubal and his army two years before would be completely stultified by the outbreak of a fresh war in the same quarter, quite as serious as the former one, the only difference being in the commander. They sent orders to the proconsul M. Livius to move the army of Etruria up to Ariminum, and the City praetor, Cnaeus Servilius, was empowered, in case he thought it advisable, to order the City legions to be employed elsewhere and give the command to the man whom he thought most capable. M. Valerius Laevinus led these legions to Arretium. About this time Cnaeus Octavius who was commanding in Sardinia captured as many as eighty Carthaginian transports in the neighbourhood. According to Coelius' account they were loaded with corn and supplies for Hannibal; Valerius, however, says that they were carrying the plunder from Etruria and the Ligurian and Epanterian prisoners to Carthage. Hardly anything worth recording took place in Bruttium this year. A pestilence attacked the Romans and the Carthaginians and was equally fatal to both, but in addition to the epidemic, the Carthaginians were suffering from scarcity of food. Hannibal spent the summer near the temple of Juno Lacinia, where he built and dedicated an altar with a long inscription recording his exploits in Phoenician and also in Greek.

BOOK 29: SCIPIO IN AFRICA

[29.1]On his arrival in Sicily Scipio organised the volunteers into maniples and centuries, and selected three hundred of the most robust and active whom he kept about his person. They did not carry arms, and did not know why they were unarmed, and why they were not included in the centuries. Then he picked out of the whole military population of Sicily three hundred of the noblest and wealthiest and formed them into a cavalry corps to take with him into Africa. He fixed a day on which they were to present themselves fully equipped with horses and arms. The prospect of a campaign far from home with its many toils and great dangers both by land and sea appalled the young fellows as well as their parents and relations. When the appointed day arrived they all appeared fully armed and accounted. Scipio then told them that it had come to his knowledge that some of the Sicilian cavalry were looking forward with dread to

their expedition as one full of difficulties and hardships. If any of them felt like that he would rather that they owned it at once than that the republic should have reluctant and inefficient soldiers who were always grumbling. They should speak out their mind, he would listen to them without any feeling of resentment. One of them ventured to say that if he were free to choose he would rather not go, whereupon Scipio replied: "Since, young man, you have not concealed your real sentiments I will provide a substitute for you; you will give up to him your horse and your arms and other military outfit and take him with you at once to train him and instruct him in the management of a horse and the use of arms." The man was delighted to get off on these terms and Scipio handed over to him one of the three hundred whom he was keeping unarmed. When the others saw the trooper exempted in this way with the commander's approval they, every one of them, excused themselves and accepted a substitute. By this means the Romans replaced the three hundred Sicilian cavalry without any expense to the State. The Sicilians had all the care of their training, for the general's orders were that any one who did not carry this out would have to go on active service himself. It is said that this turned out a splendid squadron of cavalry and did good work for the republic in many battles.

Then he inspected the legions and picked out the men who had seen most service, particularly those who had been under Marcellus, as he considered that these had been trained in the best school, and after their protracted investment of Syracuse were thoroughly familiar with the methods of attacking fortified places. In fact Scipio was not contemplating any small operations, he had already fixed his mind on the capture and destruction of Carthage. He then distributed his army amongst the fortified towns and ordered the Sicilians to supply corn, thus husbanding what had been brought from Italy. The old ships were refitted and C. Laelius was sent with them to plunder the African coast; the new ones he beached at Panormus, as owing to their hasty construction they had been built of unseasoned wood and he wished them to be on dry land through the winter. When his preparations for war were completed, Scipio visited Syracuse. This city had not yet recovered its tranquillity after the violent convulsions of the war. Certain men of Italian nationality had seized the property of some Syracusans at the time of the capture, and though the senate had ordered its restitution they still retained it. After making fruitless

efforts to recover it, the Greeks came to Scipio for redress. He felt that confidence in the honesty of the government was of the very first importance, and by issuing a proclamation and pronouncing judgment against those who persisted in keeping possession he succeeded in restoring their property to the Syracusans. This action on his part was gratefully appreciated not only by the owners themselves but by all the cities of Sicily, and they exerted themselves more than ever to assist him.

During this summer an extensive war broke out in Spain at the instigation of Indibilis, whose sole motive was his intense admiration for Scipio which made him think lightly of other commanders. The people looked upon him as the only general the Romans had left to them, all the others having been killed by Hannibal. Indibilis told the Spaniards that it was owing to this there was no one else who could be sent to Spain after the two Scipios were killed, and when the war began to press more heavily on Italy he was recalled home as the only man who could oppose Hannibal. The Roman generals in Spain were nothing but names and the veteran army had been withdrawn; now there was confusion everywhere, and an untrained mob of raw recruits. Never again would Spain have such a chance of recovering its liberty. Up to that time it had been in bondage to either the Romans or the Carthaginians, nor always to one alone, occasionally to both at the same time. The Carthaginians had been expelled by the Romans, the Romans could be expelled by the Spaniards if they were unanimous, and then with their country freed for ever from foreign domination they could return to the traditions and rites of their forefathers. By arguments of this kind he succeeded in rousing his own people and their neighbours, the Ausetani. Other tribes round joined them and in a few days 30,000 infantry and about 4000 cavalry mustered in the Sedetanian territory, the appointed rendezvous.

[29.2].The Roman commanders, L. Lentulus and L. Manlius Acidinus, were determined not to let the war spread through any remissness on their part. They united their forces and marched with their combined strength through the Ausetanian territory, inflicting no injury on either the hostile or the peaceable districts, until they came to where the enemy was encamped. They fixed their own camp at a distance of three miles from that of the enemy, and sent envoys to persuade him to lay down his arms. When, however, the Spanish horse attacked a party of foragers, cavalry supports were at once

hurried up from the Roman outposts, and a skirmish took place without any special advantage to either side. On the morrow the whole of the Spanish army marched under arms and in battle formation to within a mile of the Roman camp. The Ausetani formed the centre, the Ilergetes were on the right and the left was made up of various nameless tribes. Between the wings and the centre open spaces were left, wide enough to allow of the cavalry charging through when the right moment arrived. The Roman line was formed in the usual way, except that they so far copied the enemy as to leave spaces between the legions for their cavalry also to pass through. Lentulus, however, saw that this disposition would be of advantage to that side only who were the first to send their cavalry through the wide gaps in the opposing line. Accordingly he gave the military tribune, Servius Cornelius, orders to send his cavalry at full speed through the openings. He himself, finding that his infantry were making no progress, and that the twelfth legion, who were on the left, opposed to the Ilergetes, were beginning to give ground, brought up the thirteenth legion who were in reserve to their support. As soon as the battle was restored in this quarter he rode up to L. Manlius, who was at the front encouraging his men and bringing up assistance wherever it was required, and pointed out to him that all was safe on his left and that S. Cornelius, acting under his orders, would soon envelop the enemy with a whirlwind of cavalry. He had hardly said this when the Roman cavalry charging into the middle of the enemy threw his infantry into confusion, and at the same time barred the passage for the Spanish horse. These, finding themselves unable to act as cavalry, dismounted and fought on foot. When the Roman commanders saw the enemy's ranks in disorder, confusion and panic spreading and the standards swaying to and fro, they appealed to their men to break up the enemy while thus shaken and not let them reform their line. The barbarians would not have withstood the furious attack which followed had not Indibilis and his dismounted cavalry placed themselves in front to screen the infantry. There was very violent fighting for some time, neither side giving way. The king though half dead kept his ground till he was pinned to the earth by a javelin, and then those who were fighting round him were at last overwhelmed beneath showers of missiles. A general flight began and the carnage was all the greater because the troopers had no time to recover their horses, and the Romans never relaxed the pursuit until they had stripped the enemy of his camp. 13,000 Spaniards were

killed on that day and about 1800 prisoners taken. Of the Romans and allies a little more than 200 fell, mainly on the left wing. The Spaniards who had been routed on the field or driven out of their camp, dispersed amongst the fields, and finally returned to their respective communities.

[29.3]After this Mandonius summoned a meeting of the national council, at which loud complaints were uttered about the disasters they had incurred, and the authors of the war were strongly denounced. It was resolved to send envoys to make a formal surrender and offer to give up their arms. They threw all the blame on Indibilis for starting the war, and on the other chieftains also, most of whom had fallen in the battle. The reply they received was that their surrender would only be accepted on condition of their giving up Mandonius alive and the other instigators of the war; failing this, the Roman army would march into the country of the Ilergetes and Ausetani, and into the territories of other nations one after another. When this reply was reported to the council, Mandonius and the other chiefs were at once arrested and handed over for punishment. Peace was re-established amongst the Spanish tribes. They were required to furnish double pay for the troops that year, a six months' supply of corn, and cloaks and togas for the army. Hostages were also demanded from about thirty tribes. In this way the revolt in Spain was crushed without any serious disturbance, and all the terror of our arms was turned towards Africa. C. Laelius reached Hippo Regius in the night, and at daybreak his soldiers and the crews of the vessels were sent ashore for the purpose of ravaging the surrounding country. As the inhabitants were all peacefully pursuing their avocations and suspecting no danger, considerable mischief was done amongst them. Wild alarm was spread through Carthage by the breathless fugitives, who declared that a Roman fleet had arrived under the command of Scipio; the report of his having crossed over to Sicily had already got abroad. As no one was quite clear as to how many ships had been sighted, or what was the strength of the force that was landed, they were led by their fears to exaggerate everything. When they had recovered from the first shock of alarm they were filled with consternation and grief. "Has Fortune," they asked, "so completely changed that the nation which in the pride of victory had an army before the walls of Rome, and after making so many of the enemy's armies bite the dust, forced or persuaded into submission all

the peoples of Italy should now in the recoil of war have to witness the desolation of Africa and the siege of Carthage without having anything like the resources which the Romans have wherewith to meet these troubles? In the Roman plebs and in Latium they are supplied with a soldiery which is always growing more efficient and more numerous to replace all the armies they have lost, whilst our common people are utterly unwarlike whether in town or country. We have to hire mercenaries from amongst the Africans, upon whom no dependence can be placed, who are as fickle as the wind. The native sovereigns are hostile now; Syphax has quite turned against us since his interview with Scipio; Masinissa has openly declared himself our bitterest enemy. Nowhere does there appear the slightest prospect of help. Mago has not created any outbreak in Gaul nor has he effected a junction with Hannibal; Hannibal himself is weakening, both in prestige and in strength."

[29.4]The Carthaginians were recalled from the gloomy reflections into which the dire news had plunged them by the pressure of immediate danger and the necessity of devising means to meet it. They decided to raise a hasty levy from the town and country population alike, to send officers to enlist African mercenaries, to strengthen the defences of the city, to accumulate stores of corn, to prepare a supply of weapons and armour, to fit out ships and despatch them against the Roman fleet at Hippo. In the midst of these preparations news came that it was Laelius, not Scipio, who was in command, that the force he had brought was only sufficient to make a raid and that the main strength of the war was still in Sicily. So they breathed freely once more, and began to send deputations to Syphax and the other princes with the view of consolidating their alliance. They even sent envoys to Philip with the promise of two hundred talents of silver to induce him to invade either Sicily or Italy. Instructions were also sent to their generals in Italy to keep Scipio fully employed at home and so prevent him from leaving the country. To Mago they sent not only instructions but also 25 warships, a force of 6000 infantry, 800 cavalry and 7 elephants. A large amount of money was also forwarded to him to enable him to raise a body of mercenaries, with which he might be able to move nearer Rome and form a junction with Hannibal. Such were the preparations and plans of Carthage. While Laelius was carrying off the enormous quantity of booty which he had taken from the defenceless and unprotected

peasantry, Masinissa, who had heard of the arrival of the Roman fleet, came with a small escort to visit him. He complained of the want of energy shown by Scipio. Why, he asked, had he not brought his army to Africa just at a time when the Carthaginians were in a state of dismay and consternation, and Syphax was preoccupied with war with his neighbours? He was quite certain that if time were allowed him for arranging matters as he wished, Syphax would be anything but a true friend to the Romans. Laelius must urge Scipio to push on without delay and he, Masinissa, though driven from his kingdom would assist him with a force of horse and foot, which would be by no means contemptible. Laelius himself, too, must not stay in Africa, there was reason to believe that a fleet had sailed from Carthage with which in Scipio's absence it would not be safe to engage. After this conversation Masinissa took his departure, and the following day Laelius left Hippo with his ships laden with plunder and returned to Sicily where he laid Masinissa's instructions before Scipio.

[29.5] It was about this time that the ships which had been despatched from Carthage to Mago appeared off the coast at a place situated between the Ingauni and Genua. Mago's fleet happened to be anchored there at the time, and as soon as he learnt the nature of the instructions brought to him and that he was to gather together as large a force as possible, he at once summoned a council of the Gallic and Ligurian chieftains, the two nationalities of which the large population of that country was composed. When they were assembled he told them that his mission was to restore them to liberty, and as they could see for themselves reinforcements were being sent to him from home. But it depended upon them what numbers and strength would be available for the war. There were two Roman armies in the field, one in Gaul, the other in Etruria, and he knew as a matter of fact that Spurius Lucretius would unite his forces with M. Livius. A good many thousands of men must be armed if they were to offer an effectual resistance to two Roman generals and two armies. The Gauls assured him that they were perfectly willing to do their part, but as one Roman camp was on their territory and the other just within the frontier of Etruria, almost within sight of them, any attempt to assist the Carthaginians openly would subject their country to an invasion from both sides. Mago must ask from the Gauls only such assistance as they could furnish secretly. As for the Ligurians, the Roman camp was a long way from their cities, they

were therefore free to act as they chose, it was right that they should arm their men and take their fair share in the war. The Ligurians raised no objection, they only asked for an interval of two months in which to raise their force. Mago in the meantime after sending the Gauls home began to hire mercenary troops secretly throughout their country, and clandestine supplies were sent to him from the different communities. M. Livius marched his army of volunteer slaves from Etruria into Gaul and after joining hands with Lucretius made preparations for opposing any movement which Mago might make in the direction of Rome. If on the other hand the Carthaginians remained quiet in that corner of the Alps he would also stay where he was, near Ariminum, to defend Italy.

[29.6]Scipio's eagerness to carry out his project was quickened by the report which C. Laelius brought back of his conversation with Masinissa, and the troops, too, were very keen to make the voyage when they saw the whole of Laelius' fleet loaded with plunder taken from the enemy. His larger purpose, however, was crossed by a smaller undertaking, namely the conquest of Locri, one of the cities which in the general defection of Italy had gone over to the Carthaginians. The hope of achieving this object had arisen from a very trivial incident. The struggle in Bruttium had assumed the character of brigandage much more than that of regular warfare. The Numidians had commenced the practice, and the Bruttians followed their example, not so much because of their alliance with the Carthaginians as because it was their traditional and natural method of carrying on war. At last even the Romans were infected by the passion for plunder and, as far as their generals allowed them, used to make predatory incursions on the enemy's fields. A party of Locrians who had left the shelter of their city were caught by them in one of these raids and carried off to Regium, and amongst them were some artisans who had been working for the Carthaginians in the citadel of Locri. Many of the Locrian nobles who had been expelled by their opponents when the city was surrendered to Hannibal had retired to Regium and were living there at the time. They recognised these artisans and naturally after their long absence wanted to know what was going on at home. After replying to all their questions the prisoners said that if they were ransomed and sent back they believed that they could betray the citadel to them, as they lived there and were implicitly trusted by the Carthaginians. The

nobles, filled as they were, with a yearning for home and burning to take vengeance on their opponents, came to an understanding with them as to how the project was to be executed and what signals those in the citadel were to look out for. They then promptly ransomed them and sent them back. Their next step was to proceed to Syracuse, where some of the refugees were staying, and interview Scipio. They told him what the prisoners had promised to do, and he felt that there was a reasonable prospect of success. Two military tribunes, M. Sergius and P. Matienus, accompanied them back to Regium with orders to take 3000 men from the garrison there and march to Locri. Written instructions were also sent to the proprætor Q. Pleminius to take command of the expedition.

The troops started from Regium carrying with them ladders specially constructed to reach the lofty elevation of the citadel and about midnight they arrived at the place from which they were to give the signal agreed upon. The conspirators were on the look out, and when they observed the signal they lowered ladders which they had made for the purpose, and in this way the assailants were able to mount at several different points simultaneously. Before any shouting arose they attacked the men on guard who, suspecting no danger, were asleep. Their dying groans were the first sounds that were heard, then there was the consternation of men suddenly awakened and not knowing the cause of the tumult, and at last when they discovered it they roused the rest and every man shouted his loudest, "To arms! the enemy is in the citadel and the sentinels are being killed!" The Romans, who were far outnumbered, would have been overpowered had not the shouts of those outside bewildered the garrison, whilst everything seemed more terrible in the confusion and panic of a nocturnal assault. The Carthaginians in their alarm imagined that the citadel was filled by the enemy, and abandoning all further resistance fled to the other citadel which was situated not far from the first. The city itself, which lay between the two as the prize of victory, was held by the townsmen. Sorties were made from each citadel and skirmishes went on day by day. Q. Pleminius commanded the Roman garrison and Hamilcar the Carthaginian. The numbers on each side were augmented by reinforcements from neighbouring positions. At last Hannibal himself moved up and the Romans would not have held out had not the population, embittered by the tyranny and rapacity of the Carthaginians, taken their side.

[29.7]When information reached Scipio as to the serious state of affairs at Locri and Hannibal's approach, he feared for the garrison, which would be in great danger owing to the difficulty of withdrawal. Leaving his brother Lucius in command of a detachment at Messina, he set sail as soon as the tide turned and allowed a favourable voyage. Hannibal had reached the river Bulotus, at a point not far from Locri, and had sent instructions from there to Hamilcar, ordering him to commence a violent attack on the Romans and Locrians, whilst he himself would deliver an assault on the opposite side of the city, which would be left unguarded as everyone's attention would be devoted to the attack which Hamilcar was making. He arrived before the city at daybreak and found the fighting already begun, but he would not confine himself in the citadel where his men, crowded together, would hamper one another's movements, and he had not brought scaling ladders for an attempt on the walls. After giving orders for the baggage to be piled, he displayed his army in battle formation with the view of intimidating the enemy. Whilst ladders were being got ready and preparations made for an assault he rode round the walls with his Numidians to see where an approach could best be made. As he was advancing towards the wall, one of those who happened to be close to him was struck by a missile from a scorpion, and, alarmed at the danger to which his men were exposed, he ordered the retreat to be sounded and entrenched himself in a position far beyond the range of any missiles. The Roman fleet arrived from Messina sufficiently early in the day to allow of the whole force disembarking and entering the city before sunset. The next day the Carthaginians began the fighting from the citadel, whilst Hannibal advanced to the walls with the scaling ladders and all other apparatus in readiness for the assault. Suddenly a gate was flung open, and the Romans sallied out against him - the last thing he was expecting. In their sudden charge they killed as many as 200, and Hannibal, finding that the consul was commanding in person, retired the rest of his force to his camp. He sent word to those in the citadel that they must provide for their own safety. During the night he broke up his camp and departed, and the men in the citadel, after setting their quarters on fire in order to delay any pursuit by the confusion thus created, followed and overtook their main body with a speed which looked very much like flight.

[29.8]When Scipio discovered that the citadel had been evacuated and the camp abandoned, he summoned the Locrians to an assembly and bitterly reproached them for their defection. The authors of the revolt were executed and their property assigned to the leaders of the other party as a reward for their exceptional loyalty to Rome. As regarded the political status of Locri he said that he would make no change, they were to send representatives to Rome, and what the senate thought right, that would be their fate. He added that he was quite sure that although they had behaved so badly to Rome, they would be better off under the Romans, incensed as they were against them, than under their friends, the Carthaginians. Leaving the detachment which had captured the citadel, with Pleminius in command, to protect the city, he returned with the troops he had brought to Messana. After their secession from Rome the Locrians had met with such tyrannical and brutal treatment from the Carthaginians, that they could have submitted to ordinary ill-usage not only with patience but almost with cheerfulness. But, as a matter of fact, Pleminius so far surpassed Hamilcar, his soldiers so far surpassed the Carthaginians in criminality and greed that they seemed to be rivalling one another in vice, not in courage. Nothing that can make the power of the strong hateful to the weak and defenceless was left undone by the general and his men in their conduct towards the townsmen. Unspeakable outrages were inflicted on their persons, their wives and their children. Their rapacity did not shrink even from sacrilege; not content with plundering the other temples it is recorded that they laid hands on the treasury of Proserpine, which had always been undisturbed, except by Pyrrhus, and even he restored the plunder and made a costly offering to expiate his sacrilegious deed. As on that occasion the king's ships, tempest tossed and shattered, brought to land nothing that was uninjured, except the sacred money of the goddess, so now by a disaster of a different kind the same money drove all who were contaminated by the violation of her temple to such a pitch of frenzy that general was turned against general, and soldier against soldier in all the madness of mortal strife.

[29.9]Pleminius was in supreme command, and he had with him the troops he had brought from Regium, the rest were under the military tribunes. One of his men was running off with a silver cup which he had stolen from a house, and the owners were running after him. He happened to meet Sergius and Matienus, the military tribunes, who

ordered the cup to be taken from him. A dispute arose, angry shouts were raised, and at last a regular fight began between the soldiers of Pleminius and those of the military tribunes. As first one and then another ran up and joined his own side, the number and noise of the combatants went on increasing. Pleminius' party were worsted and ran to their commander with loud and angry shouts, showing him their wounds and blood-stained armour, and repeating the insulting language which had been used about him in the quarrel. He was furious, and rushing out of his house summoned the tribunes before him, and ordered them to be stripped and the rods got ready. This took some time, for they struggled and appealed for help to their men, who, excited by their recent victory, ran up from all parts as though they had been summoned to arms to repel an attack. When they saw the persons of their tribunes actually outraged by the rods they were kindled into ungovernable fury, and without the slightest respect for the majesty of office or even for humanity, they grossly maltreated the lictors, and then having separated Pleminius from his men and hemmed him in, they slit his nose and ears and left him half dead. All this was reported to Scipio at Messina, and a few days later he came in a six-banked galley to Locri, where he held a formal enquiry into the causes of the disturbance. Pleminius was acquitted and retained his post; the tribunes were declared to be guilty and thrown into chains with a view to their being sent to Rome. Scipio then returned to Messina, and from there proceeded to Syracuse. Pleminius was beside himself with rage. He considered that Scipio had treated his wrongs far too lightly, and that the only man who could assess the penalty was the man who had suffered the outrage. The tribunes were dragged before him, and after undergoing every torture which the human body can endure, were put to death. Even then his cruelty was not satiated and he ordered the bodies to be cast forth unburied. He exercised the same savage cruelty upon the leading citizens of Locri, who he learnt had gone to Scipio to complain of his misconduct. The shocking proofs he had already given of his lust and greed amongst the allies of Rome were now multiplied in his fury, and the shame and odium they created recoiled not only on him but on his commander-in-chief as well.

[29.10]The date of the elections was approaching, when a despatch was received from the consul P. Licinius. In it he stated that both he and his army were suffering from serious illness, and they could not

have held their position if the enemy had not been visited with equal or even greater severity. As, therefore, he could not himself come, he would, if the senate approved, nominate Quintus Caecilius Metellus as Dictator to conduct the elections. He suggested that it would be advisable in the public interest for Q. Caecilius' army to be disbanded, as there was no immediate use for them now that Hannibal had gone into winter quarters and the epidemic had attacked their camp with such violence that unless they were soon disbanded, not a single man, judging from appearances, would survive. The senate left it to the consul to take such steps as he thought most consistent with his duty to the commonwealth. About this time the citizens were much exercised by a religious question which had lately come up. Owing to the unusual number of showers of stones which had fallen during the year, an inspection had been made of the Sibylline Books, and some oracular verses had been discovered which announced that whenever a foreign foe should carry war into Italy he could be driven out and conquered if the Mater Idaea were brought from Pessinus to Rome. The discovery of this prediction produced all the greater impression on the senators because the deputation who had taken the gift to Delphi reported on their return that when they sacrificed to the Pythian Apollo the indications presented by the victims were entirely favourable, and further, that the response of the oracle was to the effect that a far grander victory was awaiting Rome than the one from whose spoils they had brought the gift to Delphi. They regarded the hopes thus raised as confirmed by the action of Scipio in demanding Africa as his province as though he had a presentiment that this would bring the war to an end. In order, therefore, to secure all the sooner the victory which the Fates the omens and the oracles alike foreshadowed, they began to think out the best way of transporting the goddess to Rome.

[29.11]Up to that time the Roman people had no allies amongst the communities in Asia. They had not forgotten however, that when they were suffering from a serious epidemic they had sent to fetch Aesculapius from Greece though they had no treaty with that country, and now that King Attalus had formed a friendly league with them against their common enemy, Philip, they hoped that he would do what he could in the interest of Rome. Accordingly, they decided to send a mission to him; those selected for the purpose being M. Valerius Laevinus who had been twice consul and had also been in

charge of the operations in Greece, M. Caecilius Metellus an ex-praetor, S. Sulpicius Galba, formerly aedile, and two who had been quaestors, Cnaeus Tremellius Flaccus and M. Valerius Falto. It was arranged that they should sail with five quinqueremes in order that they might present an appearance worthy of the people of Rome when they visited those states which were to be favourably impressed with the greatness of the Roman name. On their way to Asia the commissioners landed at Delphi, and at once went to consult the oracle and ascertain what hopes it held out to them and their country of accomplishing their task. The response which they are said to have received was that they would attain their object through King Attalus and when they had conveyed the goddess to Rome they were to take care that the best and noblest men in Rome should accord her a fitting reception. They went on to the royal residence in Pergamum, and here the king gave them a friendly welcome and conducted them to Pessinus in Phrygia. He then handed over to them the sacred stone which the natives declared to be "the Mother of the Gods," and bade them carry it to Rome. M. Valerius Falto was sent on in advance to announce that the goddess was on her way, and that the best and noblest man in Rome must be sought out to receive her with all due honour. The consul commanding in Bruttium nominated Q. Caecilius Metellus as Dictator to conduct the elections and his army was disbanded; L. Veturius Philo was Master of the Horse. The new consuls were M. Cornelius Cethegus and P. Sempronius Tuditanus; the latter was elected in his absence as he was commanding in Greece. Then followed the election of praetors, those elected being Tiberius Claudius Nero, M. Marcius Ralla, L. Scribonius Libo and M. Pomponius Matho. When the elections were over, the Dictator resigned his office. The Roman Games were celebrated three times, the Plebeian Games, seven times. The curule aediles were the two Corneli, Cnaeus and Lucius. Lucius was in charge of the province of Spain; he was elected in his absence, and though absent, discharged the duties of his office. Tiberius Claudius Asellus and M. Junius Pennus were the plebeian aediles. The temple of Virtus near the Porta Capena was dedicated by M. Marcellus this year; it had been vowed by his father at Clastidium in Gaul seventeen years previously. M. Aemilius Regillus, Flamen of Mars, died this year.

[29.12] Little attention had been paid to affairs in Greece for the last two years. As a result, Philip, finding that the Aetolians had been

abandoned by the Romans to whom alone they looked for help, compelled them to sue for peace and accept whatever terms he chose. Had he not devoted all his strength to secure this result as soon as possible, his operations against them would have been interrupted by the proconsul P. Sempronius who had succeeded Sulpicius and commanded a force of 10,000 infantry, 1000 cavalry and 35 ships of war, a considerable force to bring to the assistance of our allies. Hardly had the peace been concluded when news reached the king that the Romans were at Dyrrachium and that the Parthini and neighbouring tribes had risen and were besieging Dimallum. The Romans had diverted their force to this place, for as the Aetolians had concluded the treaty with the king without their consent, they showed their resentment by refusing the help which they were sent to give them. On receiving this intelligence Philip, anxious to prevent the movement from spreading, hastened to Apollonia. Sempronius had withdrawn to this place after sending Laetorius with a portion of his force and fifteen ships to Aetolia to see how matters stood there and, if possible, upset the peace. Philip ravaged the country round Apollonia, and brought his forces up to the city in order to give the Romans an opportunity of fighting. As, however, he saw that they kept within their walls, and feeling doubtful as to his ability to attack the place, he withdrew into his kingdom. An additional motive for his retirement was his desire to establish peace with them as he had with the Aetolians, or if not peace at all events a truce, and consequently he avoided irritating them by further hostilities.

The Epirotes were by this time tired of the long-continued war and after sounding the Romans sent envoys to Philip with proposals for a general settlement and assuring him that there was no doubt as to its being arranged if he would confer with Sempronius. The king was by no means averse from the proposal, and readily consented to visit Epirus. Phoenice, an important city in Epirus, was chosen as the place of meeting, and there the king, after a preliminary interview with Aeropus, Dardas and Philip, the chief magistrates of the Epirotes, met Sempronius. There were present at the conference Amynder, king of the Athamanians, as well as the chief magistrates of the Epirotes and Acarnanians. The Epirote magistrate, Philip, opened the discussion by appealing to the king and the Roman general to put a stop to the war out of consideration for the Epirotes. The conditions of peace as stated by Sempronius were that the

Parthini together with the towns of Dimallum, Bargullum and Eugenum should belong to Rome, and Atintania should be annexed by Macedon, if Philip obtained the sanction of the senate to the arrangement. When the terms were settled the king included Prusias, king of Bithynia, and also the Achaeus, the Boeotians, the Thessalians, the Acarnanians and the Epirotes as parties to the agreement. The Romans on their side extended its provisions to the Ilienses, King Attalus, Pleuratus, Nabis, tyrant of the Lacedaemonians, the Eleans, the Messenians and the Athenians. The clauses were then reduced to writing and duly sealed. A two months' armistice was agreed upon to allow of envoys being sent to Rome to obtain from the Assembly the ratification of the treaty. All the tribes voted for it; they were glad to be relieved for the time from the pressure of other wars now that their efforts were directed towards Africa. After the conclusion of peace, P. Sempronius left for Rome to take up the duties of his consulship.

[29.13]P. Sempronius and M. Cornelius entered upon their consulship in the fifteenth year of the Punic War. To the latter was decreed the province of Etruria with the standing army there; Sempronius received Bruttium and had to enrol fresh troops. Of the praetors, M. Marcius took over the City jurisdiction, L. Scribonius Libo was charged with the jurisdiction over aliens and also the administration of Gaul, Sicily fell to M. Pomponius Matho, and Sardinia to Tiberius Claudius Nero. P. Scipio had his command extended for twelve months with the army and fleet which he already had. P. Licinius was to remain in Bruttium with two legions as long as the consul thought it advisable for him to retain his command there. M. Livius and Sp. Lucretius were also to retain the legions with which they had been protecting Gaul against Mago. Cnaeus Octavius was to hand over his legion and the command in Sardinia to Nero and take charge of a fleet of forty ships for the protection of the coast within the limits fixed by the senate. The remains of the army of Cannae, amounting to two legions, were assigned to M. Pomponius, the praetor commanding in Sicily. T. Quinctius was to hold Tarentum and C. Hostilius Tubulus Capua with the existing garrisons - both with the rank of propraeor. With regard to the command in Spain it was left to the people to decide upon the two proconsuls who were to be sent into that province and they were unanimous in retaining L. Cornelius Lentulus and L. Manlius Acidinus in command there.

The consuls proceeded with the enlistment, as ordered by the senate, for the purpose of raising fresh legions for Bruttium and bringing the other armies up to full strength.

[29.14]Although Africa had not been officially placed among the provinces - the senators, I think, kept it secret to prevent the Carthaginians from getting information beforehand - the citizens fully expected that Africa would be the scene of hostilities this year, and that the end of the Punic War was not far off. In this state of excitement men's minds were filled with superstition and the ready credence given to announcement of portents increased their number. Two suns were said to have been seen; there were intervals of daylight during the night; a meteor was seen to shoot from east to west; a gate at Tarracina and at Anagnia a gate and several portions of the wall were struck by lightning; in the temple of Juno Sospita at Lanuvium a crash followed by a dreadful roar was heard. To expiate these portents special intercessions were offered for a whole day, and in consequence of a shower of stones a nine days' solemnity of prayer and sacrifice was observed. The reception of Mater Idaea was also being anxiously discussed. M. Valerius, the member of the deputation who had come in advance, had reported that she would be in Italy almost immediately and a fresh messenger had brought word that she was already at Tarracina. The attention of the senate was engrossed by a very difficult question; they had to decide who was the best and noblest man in the State. Every one felt that to gain this distinction would be for him a real victory, far outweighing any official position or honourable distinction which either patricians or plebeians could confer. Of all the great and good men in the State they adjudged the best and noblest to be P. Scipio, the son of the Cnaeus Scipio who had fallen in Spain; a young man not yet old enough to be quaestor. What special merits of his induced the senate to come to this conclusion I should have been glad to record for posterity had the writers who lived nearest to those days handed them down. As it is I will not obtrude my conjectures upon a matter hidden in the mists of antiquity.

P. Scipio was ordered to go to Ostia, accompanied by all the matrons, to meet the goddess. He was to receive her as she left the vessel, and when brought to land he was to place her in the hands of the matrons who were to bear her to her destination. As soon as the ship appeared off the mouth of the Tiber he put out to sea in accordance with his

instructions, received the goddess from the hands of her priestesses, and brought her to land. Here she was received by the foremost matrons of the City, amongst whom the name of Claudia Quinta stands out pre-eminently. According to the traditional account her reputation had previously been doubtful, but this sacred function surrounded her with a halo of chastity in the eyes of posterity. The matrons, each taking their turn in bearing the sacred image, carried the goddess into the temple of Victory on the Palatine. All the citizens flocked out to meet them, censers in which incense was burning were placed before the doors in the streets through which she was borne, and from all lips arose the prayer that she would of her own free will and favour be pleased to enter Rome. The day on which this event took place was 12th April, and was observed as a festival; the people came in crowds to make their offerings to the deity; a lectisternium was held and Games were constituted which were known afterwards as the Megalesian.

[29.15] Whilst steps were being taken to complete the drafts for the legions in the provinces, some of the senators suggested that the time had come to deal with a state of things, which, however they might have put up with it at a time of critical emergency, was intolerable now that the goodness of the gods had removed their fears. Amid the close attention of the House they stated that "the twelve Latin colonies which refused to furnish soldiers when Q. Fabius and Q. Fulvius were our consuls have now for almost six years been enjoying an exemption from military service, as though an honourable distinction had been conferred upon them. In the meanwhile our good and faithful allies have, as a reward for their fidelity and devotion, been completely exhausted by the levies which they have raised year after year." These words not only recalled to the memory of the senate a fact which they had almost forgotten, but they called forth a strong feeling of resentment. Accordingly, they insisted on taking this as the first business before the House, and made the following decree: "The consuls shall summon to Rome the chief magistrates and the ten leading councillors of each of the offending colonies, namely, Nepete, Sutrium, Ardea, Cales, Alba, Carseoli, Sora, Suessa, Setia, Cerceii, Narnia, and Interamna. They shall order each colony to supply a contingent of infantry twice as numerous as the largest they have raised since the Carthaginians appeared in Italy, and 120 cavalry in addition. In case any colony cannot make up the

required number of mounted men they shall be allowed to substitute three foot-soldiers for each horseman deficient. Both the cavalry and infantry are to be selected from the wealthiest citizens, and sent wherever reinforcements are required outside the limits of Italy. If any of them refuse to comply with this demand, we order that the magistrates and representatives of that colony be detained, and no audience of the senate shall be granted until they have done what is required of them. In addition to these requirements a property tax of one tenth per cent. shall be imposed on those colonies to be paid annually, and the assessment shall be made similarly to the one in force in Rome. The Roman censors are to supply the censors of the colonies with the necessary schedule of instructions, and the latter must bring their lists to Rome and verify their accuracy on oath before going out of office."

In pursuance of this resolution of the senate the magistrates and chief councillors of those colonies were summoned to Rome. When the consuls ordered them to furnish the necessary supplies of men and money they broke out into loud and angry remonstrances. It was impossible, they said, for so many soldiers to be raised, they would have the utmost difficulty in getting as many as they were bound to supply under the old conditions. They entreated that they might be allowed to appear and plead their cause before the senate, and protested that they had done nothing to justify this ruinous treatment. Even if it meant death to them, no fault which they might have committed, no angry threats on the part of Rome could make them raise more men than they possessed. The consuls were inflexible and ordered the representatives to remain in Rome whilst the magistrates returned home to levy the men. They were told that unless the required number of men was brought to Rome the senate would grant them no audience. As there was no hope of approaching the senate and begging for more favourable treatment, they proceeded with the enlistment throughout the twelve colonies, and it presented no difficulty owing to the increase in the number of men of military age through the long exemption.

[29.16] Another matter which had been lost sight of for a similar length of time was brought up by M. Valerius Laevinus. It was only just and right, he said, that the sums which were contributed by private individuals in the year when he and M. Claudius were the consuls should at last be repaid. No one ought to be surprised that

he was particularly anxious for the State to meet its obligations honourably, for, apart from the fact that it specially concerned the consul for that year, it was he himself who advocated these contributions at a time when the treasury was exhausted, and the plebeians were unable to pay their war-tax. The senators were glad to be reminded of the incident, and the consuls were instructed to submit a resolution to the House. They made a decree that the loans should be repaid in three instalments, the first, immediately by the consuls then in office, the second and third by the consuls who should be in office in two and four years' time, respectively. A subject was afterwards brought up which absorbed all other interests, namely the terrible state of things at Locri. Up to that time nothing had been heard of it, but since the arrival of the delegates it had become generally known. Deep resentment was felt at the criminal conduct of Pleminius, but still more at the partiality or the indifference shown by Scipio. The delegates from Locri, presenting a picture of grief and misery, approached the consuls, who were on their tribunals in the comitium, and holding out in Greek fashion olive-branches as tokens of suppliants prostrated themselves on the ground with tears and groans. In reply to the consuls' enquiry as to who they were, they stated that they were Locrians, and that they had experienced at the hands of Pleminius and his Roman soldiers such treatment as the Roman people would not wish even the Carthaginians to undergo. They craved permission to appear before the senate and unfold their tale of woe.

[29.17]An audience was granted them, and the senior delegate addressed the senate in the following terms: "Whatever importance, senators, you attach to our complaints must, I am well aware, depend very largely upon your knowing accurately the circumstances under which Locri was betrayed to Hannibal, and after the expulsion of his garrison was again brought under your suzerainty. For if our senate and people were in no way responsible for the defection, and it can be shown that our return to your obedience was brought about not only with our full consent, but even by our own efforts and courage, then you will feel all the more indignation at such shameful outrages having been inflicted by your officer and soldiers upon good and faithful allies. I think, however, that we ought to put off for another time any explanation of our double change of sides, for two reasons. One is that the matter ought to be discussed when P. Scipio is

present, as he recaptured Locri and was an eyewitness of all our acts, both good and bad, and another reason is that, however bad we may be, we ought not to have suffered as we have done. We do not deny, senators, that when we had the Carthaginian garrison in our citadel we had to submit to many acts of insolence and cruelty at the hands of Hamilcar and his Numidians and Africans, but what were they compared with what we are going through today? I pray, senators, that you will not take offence at what I am most reluctantly compelled to say. The whole world is waiting in feverish expectation to see whether you or the Carthaginians are to be the lords of the earth. If the choice between Roman and Punic supremacy depended upon the way in which the Carthaginians have treated us Locrians as compared with what we are suffering today from your soldiers, there is not one of us who would not prefer their rule to yours. And yet in spite of all this, see what our feeling towards you has been. When we were suffering comparatively slight injuries from the Carthaginians we betook ourselves to your commander; now that we are suffering from your troops injuries worse than any enemy would inflict it is before you and no one else that we lay our complaint. If you, senators, do not show any regard for our misery, there is nothing left which we can pray for, even to the immortal gods themselves."

Q. Pleminius was sent with a body of troops to recover Locri from the Carthaginians and was left with his troops in the city. In this officer of yours - the extremity of misery gives me courage to speak freely - there is nothing human except his face and appearance, there is no trace of the Roman save in his garb and speech; he is a wild beast, a monster such as were fabled to haunt the waters which divide us from Sicily, to the destruction of navigators. If he were content with wreaking his own villainy and lust and rapacity upon your allies, we might fill up this one gulf, deep as it is, by patient endurance, but as it is, he has been so eager to spread licentiousness and wickedness indiscriminately that he has made every centurion and every private soldier into a Pleminius. They all alike rob, plunder, beat, wound, kill, outrage matrons, maidens and boys torn from their parent's arms. Each day witnesses a fresh storm, a fresh sack of our city; everywhere, day and night, it is echoing with the shrieks of women who are being seized and carried off. Any one who knows what is going on might wonder how we are able to endure it all, or why they have not become weary of their crimes. I cannot go into details, nor is it worth your

while to hear what each of us has suffered; I will give you a general description. There is not a single house in Locri, I venture to assert, not a single individual who has escaped ill-treatment; there is no form of villainy or lust or rapacity which has not been practiced upon everyone who was a suitable victim. It is difficult to decide which is the worst misfortune for a city, to be captured by an enemy in war, or to be crushed by force and violence by a sanguinary tyrant. All the horrors which attend the capture of a city we have suffered and are suffering to the utmost; all the tortures which ruthless and cruel tyrants inflict on their down-trodden subjects Pleminius has inflicted on us, our children and our wives."

[29.18]"There is one matter about which our religious instincts compel us to make a special complaint, and we should be glad if you would hear what has happened, and if you so decide, take steps to clear your State from the taint of sacrilege. We have seen with what pious care you not only worship your own gods, but even recognise those of other nations. Now there is in our city a shrine sacred to Proserpine, and I believe some rumours of the sanctity of that temple reached your ears during your war with Pyrrhus. On his return voyage from Sicily he touched at Locri and added to the atrocities which he had committed against us for our loyalty to you by plundering the treasury of Proserpine, which up to that day had never been disturbed. He placed the money on board his fleet, and continued his journey overland. What happened, senators? The very next day his fleet was shattered by a terrible storm and the ships which were carrying the sacred gold were all cast ashore on our coast. Taught by this great disaster that there are gods after all, the arrogant monarch gave orders for all the money to be collected and carried back to Proserpine's treasury. In spite of this nothing ever prospered with him afterwards, he was driven out of Italy and in a foolhardy attempt to enter Argos by night he met with an ignoble and dishonourable death. Your commander and the military tribunes had heard of this incident and of countless others which were related to them not so much to increase the feeling of dread as to give proofs of the direct and manifest power of the goddess, a power which we and our ancestors had often experienced. Notwithstanding this, they dared to lay sacrilegious hands on that inviolate treasure and to attain themselves and their houses and your soldiers with the guilt of their unhallowed plunder. We implore you therefore, senators, by all you

hold sacred, not to employ these men in any military service till you have expiated their crime, lest their sacrilege should be atoned for, not by their blood alone but also by disaster to the commonwealth.

Even now the wrath of the goddess is not slow to visit your officers and soldiers. Frequently have they already engaged in pitched battles; Pleminius leading the one side, the military tribunes the other. They have fought quite as furiously with one another as they ever fought with the Carthaginians, and in their frenzy would have given Hannibal an opportunity of recapturing Locri if we had not sent for Scipio. Do not suppose that whilst the guilt of sacrilege drove the soldiers mad, the goddess did not manifest her wrath by punishing the leaders. It is just here where she manifested it most clearly. The tribunes were beaten with rods by their superior officer, afterwards he was caught unawares by them and, in addition to being hacked all over, his nose and ears were sliced off and he was left for dead. At length, recovering from his wounds, he placed the tribunes in irons and then, after flogging them and subjecting them to all the tortures that are inflicted on slaves, he put them to death and after they were dead forbade them to be buried. In this way is the goddess inflicting retribution upon the despoilers of her temple, nor will she cease to vex them with every kind of madness until the sacred hoard has once more been deposited in the shrine. Once when our ancestors were hard pressed in the war with Croto, they decided, as the temple was outside the city walls, to carry the treasure into the city. A voice was heard at night proceeding from the shrine and uttering a warning: 'Lay no hand upon it! The goddess will protect her temple.' Deterred by religious fears from moving the treasure, they wanted to build a wall round the temple. After it had been carried up some distance it suddenly collapsed. Often in the past has the goddess protected her temple and the seat of her presence, or else as at the present time she has exacted a heavy atonement from those who have violated it. But our wrongs she cannot avenge, nor can any one but you, senators; it is your honour that we invoke and your protection beneath which we seek shelter. To allow Locri to remain under that commander and those troops is, as far as we are concerned, the same as handing us over for punishment to all the rage of Hannibal and his Carthaginians. We do not ask you to accept what we say at once, in the absence of the accused or without hearing his defence. Let him appear, let him hear the charges against him, and let him rebut them.

If there be any single crime that one man can be guilty of towards another, which that man has failed to commit against us, then we are willing to go through all our sufferings, if it is in our power to do so, once more, and ready to pronounce him void of all offence towards gods and men."

[29.19]At the close of the delegate's speech, Q. Fabius enquired whether they had laid their complaints before Scipio. They stated in reply that they had sent a deputation to him, but he was fully occupied with his preparations for war and had either sailed or was going to sail in a very few days for Africa. They had had proof of the high favour in which Pleminius stood with his commander-in-chief, for after investigating the circumstances which led to the dispute between him and the military tribunes Scipio had thrown the tribunes into chains and allowed his subordinate to retain his command though he was equally or even more guilty. They were then ordered to withdraw, and in the discussion which followed both Pleminius and Scipio were very severely handled by the leaders of the House, especially by Quintus Fabius. He declared that Scipio was born to destroy all military discipline. It was the same in Spain; more men had been lost there in mutiny than in battle. His conduct was that of some foreign tyrant, first indulging the licence of the soldiers and then punishing them. Fabius closed his attack with the following drastic resolution: "I move that Pleminius be brought to Rome to plead his cause in chains, and if the charges which the Locrians have brought against him are substantiated, that he be put to death in prison and his property confiscated. With regard to Publius Scipio, as he has left his province without orders, I move that he be recalled, and that it be referred to the tribunes of the plebs to bring in a bill before the Assembly to relieve him of his command. As to the Locrians, I move that they be brought back into the House, and that we assure them in reply to their complaint that the senate and the people alike disapprove of what has been done, and that we recognise them as good and trusty allies and friends. And, further, that their wives and children and all that has been taken away from them be restored, and that all the money abstracted from Proserpine's treasury be collected, and double the amount put back. The question of expiation must be referred to the pontifical college, who must decide what expiatory rites are to be observed, what deities are to be propitiated and what victims are to be sacrificed in cases where sacred treasures have been

violated. The soldiers at Locri must be transferred to Sicily and four Latin cohorts sent to garrison the place." Owing to the heated debate between Scipio's supporters and opponents the votes could not be collected that day. Not only had he to bear the odium of Pleminius' criminal brutality towards the Locrians, but the Roman commander was even taunted with his style of dress as being un-Roman and even unsoldierly. It was asserted that he walked about the gymnasium in a Greek mantle and Greek slippers and spent his time amongst rhetoricians and athletes and that the whole of his staff were enjoying the attractions of Syracuse and living a life of similar self-indulgence and effeminacy. They had completely lost sight of Hannibal and the Carthaginians; the entire army was demoralised and out of hand; like the one formerly at Sucro or the one now at Locri, they were more dreaded by their allies than by the enemy.

[29.20] Though there was sufficient truth in these charges to give them an air of probability, Q. Metellus carried the majority with him. Whilst agreeing with the rest of Fabius' speech, he dissented from what he said about Scipio. Scipio, he said, had only the other day been chosen by his fellow-citizens, young as he was, to command the expedition which was to recover Spain, and after he had recovered it, was elected consul to bring the Punic War to a close. All hopes were now centered in him as the man who was destined to subjugate Africa and rid Italy of Hannibal. How, he asked, could they with any propriety order him to be peremptorily recalled, like another Q. Pleminius, without being heard in his defence, especially when the Locrians admitted that the cruelties of which they complained took place at a time when Scipio was not even on the spot and when nothing could be definitely brought against him, beyond undue leniency or shrinking from cruelty in sparing his subordinate officers? He moved a resolution that M. Pomponius, the praetor to whom Sicily had been allotted, should depart for his province in three days' time; that the consuls should select at their discretion ten members of the senate who would accompany the praetor, as well as two tribunes of the plebs and one of the aediles. With these as his assessors he should conduct an investigation, and if the acts of which the Locrians complained should prove to have been done under the orders or with the consent of Scipio, they should order him to quit his province. If he had already landed in Africa, the tribunes and the aedile with two of the ten senators whom the praetor considered

fittest for the task should proceed thither, the tribunes and the aedile to bring Scipio back and the two senators to take command of the army until a fresh general arrived. If on the other hand M. Pomponius and his ten assessors ascertained that what had been done was neither by the orders nor with the concurrence of Scipio, he was to retain his command and carry on the war as he proposed. This resolution proposed by Metellus was adopted by the senate, and the tribunes of the plebs were asked to arrange which of them should accompany the praetor. The pontifical college was consulted as to the necessary expiations for the desecration and robbery of Proserpine's temple. The plebeian tribunes who accompanied the praetor were M. Claudius Marcellus and M. Cincius Alimentus. A plebeian aedile was assigned to them so that in case Scipio refused to obey the praetor or had already landed in Africa, the tribunes might, by virtue of their sacrosanct authority, order the aedile to arrest him and bring him back with them. They decided to go to Locri first and then on to Messana.

[29.21]As to Pleminius two stories are current. One is to the effect that when he heard of the decision arrived at in Rome he started to go into exile at Naples, and on his way was met by Q. Metellus, one of the ten senators, who arrested him and brought him back to Regium. According to the other account Scipio himself sent an officer with thirty men of highest rank amongst his cavalry and threw Pleminius and the prime movers of the outbreak into chains. They were all handed over by Scipio's orders or those of the officer to the people of Regium for safe keeping. The praetor and the rest of the commission, on their arrival at Locri, made the religious question their first care, in accordance with their instructions. All the sacred money in the possession of Pleminius and his soldiers was collected together, and together with what they had brought with them was placed in the temple, and then expiatory sacrifices were offered. After this the praetor summoned the troops to assembly, and issued an order of the day threatening severe punishment to any soldier who stayed behind in the city or carried away anything that did not belong to him. He then ordered the standards to be borne outside the city, and fixed his camp in the open country. The Locrians were given full liberty to take whatever they recognised as their own property, and make a claim for whatever could not be found. Above all he insisted upon the immediate restoration of all free persons to their homes,

any one who neglected to restore them would be very severely punished.

The praetor's next business was to convene an assembly of the Locrians, and here he announced that the senate and people of Rome gave them back their constitution and their laws. Whoever wished to prosecute Pleminius or any one else was to follow the praetor to Regium. If their government wished to charge Scipio with either ordering or approving of the crimes against gods and men which had been perpetrated in Locri they were to send representatives to Messana, where, with the aid of his assessors, he should hold an enquiry. The Locrians expressed their gratitude to the praetor and the other members of the commission, and to the senate and people of Rome. They announced their intention of prosecuting Pleminius, but as to Scipio, "though he had not been much troubled about the injuries inflicted on their city, they would rather have him their friend than their enemy. They were quite convinced that it was neither by the orders nor with the approval of P. Scipio that such infamous crimes were committed; his fault was that he either reposed too much confidence in Pleminius or felt too much distrust in the Locrians. Some men are so constituted that whilst they would not have crimes committed they lack the resolution to inflict punishment when they have been committed." The praetor and his council were greatly relieved at not having to call Scipio to account; Pleminius and thirty-two others they found guilty and sent them in chains to Rome. The commission then went to Scipio to find out by personal observation whether there was any truth in the common rumours about Scipio's style of dress and love of pleasure, in order to be able to report to Rome.

[29.22]Whilst they were on their way to Syracuse Scipio prepared to justify himself, not by words but by acts. He gave orders for the whole of the army to muster at Syracuse and the fleet to be prepared for action as though he had to engage the Carthaginians that day both by land and sea. When the commission had landed he received them courteously, and the following day he invited them to watch the maneuvers of his land and sea forces, the troops performing their evolutions as in battle, whilst the ships in the harbour engaged in a sham sea-fight. Then the praetor and the commissioners were taken for a tour of inspection round the arsenals and magazines and the other preparations for war, and the impression made by the whole

and by each separate detail was such as to convince them that if that general and that army could not conquer Carthage, no one ever could. They bade him sail for Africa with the blessing of heaven, and fulfil as speedily as possible the hopes and expectations in which the centuries had unanimously chosen him as their consul. They left in such joyous spirits that they seemed to be taking back the announcement of a victory, and not simply reporting the magnificent preparations for war. Pleminius and his fellow criminals were thrown into prison as soon as they reached Rome. When they were first brought before the people by the tribunes the minds of all were too full of the sufferings of the Locrians to leave any room for pity. But after they had been brought forward several times the feeling against them became gradually less embittered, the mutilation which Pleminius had suffered and the thought of the absent Scipio who had befriended him disposed the populace in his favour. However, before the trial was over he died in prison. Clodius Licinius in the Third Book of his Roman History says that Pleminius bribed some men to set fire to various parts of the City during the Games which Scipio Africanus was celebrating, in fulfilment of a vow, during his second consulship, to give him an opportunity of breaking out of gaol and making his escape. The plot was discovered, and he was by order of the senate consigned to the Tullianum. No proceedings took place with regard to Scipio except in the senate, where all the commissioners and the tribunes spoke in such glowing terms of the general and his fleet and army that the senate resolved that an expedition should start for Africa as soon as possible. They gave Scipio permission to select from the armies in Sicily what troops he would like to take with him, and what he would leave in occupation of the island.

[29.23] During these occurrences in Rome, the Carthaginians had established look-out stations on all the headlands and waited anxiously for the news which each successive courier brought; the whole winter was passed in a state of alarm. They formed an alliance with King Syphax, a step which they considered would materially aid in protecting Africa against invasion, for it was in reliance upon his cooperation that the Roman general would attempt a landing. Hasdrubal Gisgo had, as we have already mentioned, formed ties of hospitality with the king when on his departure from Spain he met Scipio at his court. There was some talk of a closer connection

through the king's marriage with Hasdrubal's daughter, and with a view to realising this project and fixing a day for the nuptials - for the girl was of a marriageable age - Hasdrubal paid Syphax a visit. When he saw that the prince was passionately desirous of the match - the Numidians are of all barbarians the most ardent lovers - he sent for the maiden from Carthage and hastened on the wedding. The gratification felt at the match was heightened by the action of the king in strengthening his domestic tie with Carthage by a political alliance. A treaty was drawn up and ratified on oath between Carthage and the king, in which the contracting parties bound themselves to have the same friends and the same enemies. Hasdrubal, however, had not forgotten the treaty which Scipio had formed with Syphax, nor the capricious and fickle character of the barbarians with whom he had to deal, and his great feat was that if once Scipio landed in Africa this marriage would prove a very slight restraint upon the king. So whilst the king was in the first transports of passion and obedient to the persuasive endearments of his bride, he seized the opportunity of inducing Syphax to send envoys to Scipio advising Scipio not to sail to Africa on the faith of his former promises, as he was now connected with a Carthaginian family through his marriage with Hasdrubal's daughter; Scipio would remember meeting her father at his court. They were to inform Scipio that he had also made a formal alliance with Carthage, and it was his wish that the Romans should conduct their operations against Carthage at a distance from Africa as they had hitherto done. Otherwise he might be involved in the dispute and compelled to support one side and abandon his alliance with the other. If Scipio refused to keep clear of Africa, and led his army against Carthage, Syphax would feel himself under the necessity of fighting in defence of the land of his birth, and in defence of his wife's native city and her father and her home.

[29.24]Furnished with these instructions the king's envoys repaired to Syracuse to interview Scipio. He recognised that he was deprived of the valuable support which he had hoped for in his African campaign, but he decided to send the envoys back at once before their mission became generally known. He gave them a letter for the king in which he reminded him of the personal ties between them, and the alliance he had formed with Rome, and solemnly warned him against breaking those ties or violating the solemn engagements he had undertaken, and so offending the gods who had witnessed and

would avenge them. The visit of the Numidians could not, however, be kept secret, for they strolled about the city and were seen at headquarters, and there was a danger of the real object of their visit becoming all the more widely known through the efforts made to conceal it, and of the army being discouraged at the prospect of having to fight the king and the Carthaginians at the same time. To prevent this Scipio determined to keep them from the truth by preoccupying their minds with falsehood. The troops were summoned to assembly and Scipio told them that there must be no further delay. The friendly princes were urging him to start for Africa as soon as possible; Masinissa himself had already gone to Laelius to complain of the way in which time was being wasted, and now Syphax had sent envoys to express his surprise at the delay and to demand that the army should be sent to Africa or, if there was a change of plan, that he should be informed of it in order that he might take measures to safeguard himself and his kingdom. As therefore all the preparations were completed and circumstances did not admit of any further delay, it was his intention to order the fleet to Lilybaeum, to muster the whole of his infantry and cavalry there and on the very first day which promised a favourable voyage set sail, with the blessing of heaven, for Africa. He then wrote to M. Pomponius requesting him, if he thought it advisable, to come to Lilybaeum that they might consult together as to what legions should be selected and what ought to be the total strength of the invading force. Orders were also sent all round the coast for every transport vessel to be requisitioned and brought to Lilybaeum. When the whole of the military and naval forces in Sicily were assembled there, the town could not afford accommodation for all the men, nor could the harbour hold all the ships, and such enthusiasm prevailed in all ranks that it seemed as though instead of marching to war they were to reap the fruits of a victory already won. This was particularly the case with the survivors of Cannae, who felt quite certain that under no other leader would they be able to do such service for the commonwealth as would put an end to their ignominious condition. Scipio was far from despising these men, he was quite aware that the defeat at Cannae was not brought about by any cowardice on their part, and he knew, too, that there were no soldiers in the Roman army who had had such a long experience in every kind of fighting, and in the conduct of sieges. They formed the fifth and sixth legions. After announcing to them that he would take them with him to Africa, he

inspected them man by man, and those whom he did not consider suitable he left behind, replacing them from the men whom he had brought from Italy. In this way he brought up the strength of each legion to 6200 men and 300 cavalry. He selected the Latin contingent also, both horse and foot, out of the army of Cannae.

[29.25]As to the number of troops put on board there is considerable divergence among the authorities. I find that some state it to have amounted to 10,000 infantry and 2200 cavalry; others give 16,000 infantry and 1600 cavalry; others again double this estimate and put the total of infantry and cavalry at 32,000 men. Some writers give no definite number, and in a matter so uncertain I prefer to include myself amongst them. Coelius declines, it is true, to give any definite number, but he exaggerates to such an extent as to give the impression of a countless multitude; the very birds, he says, fell to the ground stunned by the shouting of the soldiers, and such a mighty host embarked that it seemed as though there was not a single man left in either Italy or Sicily. To avoid confusion Scipio personally superintended the embarkation. C. Laelius who was in command of the fleet had previously sent all the seamen to their posts and kept them there while the soldiers went on board. The praetor, M. Pomponius, was responsible for the shipping of the stores; forty-five days' provisions, including fifteen days' supply of cooked food, were put on board. When all were now on board, boats were sent round to take off the pilots and captains and two men from each ship who were to assemble in the forum and receive their orders. When all were present, his first enquiry was as to the supply of water for the men and horses, whether they had put on board sufficient to last as long as the corn. They assured him that there was water in the ships sufficient to last for forty-five days. He then impressed upon the soldiers the necessity of keeping quiet and maintaining discipline and not interfering with the sailors in the discharge of their duties. He further informed them that he and Lucius Scipio would command the right division of twenty ships of war, whilst C. Laelius, prefect of the fleet, in conjunction with M. Porcius Cato, who was quaestor at the time, would be in charge of the left line containing the same number, and would protect the transports. The warships would show single lights at night, the transports would have two, while the commander's ship would be distinguished by three lights. He gave the pilots instructions to make for Emporia. This was an extremely

fertile district, and supplies of all kinds were to be found there in abundance. The natives, as usually happens in a fruitful country, were unwarlike, and would probably be overpowered before assistance could reach them from Carthage. After issuing these orders he dismissed them to their ships, and on the morrow at the given signal they were, with the blessing of heaven, to set sail.

[29.26]Many Roman fleets had put out from Sicily and from that very port, but not even during the First Punic War - in the present war the majority were simply raiding expeditions - had any afforded a more striking picture at its departure. And yet, if you only take into account the number of vessels, it must be remembered that two consuls with their respective armies had left that port on a previous occasion and the warships in their fleets were almost as numerous as the transports with which Scipio was now making his passage, for in addition to the forty ships of war he was carrying his army in four hundred transports. Several causes conspired to invest the occasion with unique interest. The Romans regarded the present war as a more serious one than the former because it was going on in Italy, and had involved the destruction of so many armies with their generals. Scipio, again, had become the most popular general of his time for his gallant deeds of arms, and his unvarying good fortune had immensely raised his reputation as a soldier. His design of invading Africa had never before been attempted by any commander, and it was generally believed that he would succeed in drawing Hannibal away from Italy and finish the war on African soil. A vast crowd of spectators had gathered in the harbour; besides the population of Lilybaeum, all the deputations from the different cities in the island who had come to pay their respects to Scipio as well as those who had accompanied M. Pomponius, the governor of the province, were present. The legions which were to remain in Sicily also marched down to bid their comrades God-speed, and the throng which crowded the harbour was as grand a spectacle to those afloat as the fleet itself was to those ashore.

[29.27]When the moment for departure came, Scipio ordered the herald to proclaim silence throughout the fleet and put up the following prayer: "Ye gods and goddesses of sea and land, I pray and beseech you to vouchsafe a favourable issue to all that has been done or is being done now or will be done hereafter under my command. May all turn out happily for the burghers and plebs of Rome, for our

allies of the Latin name, for all who have the cause of Rome at heart, and for all who are marching beneath my standard, under my auspices and command, by land or sea or stream. Grant us your gracious help in all our doings, crown our efforts with success. Bring these my soldiers and myself safe home again, victorious over our conquered foes, adorned with their spoils, loaded with booty and exulting in triumph. Enable us to avenge ourselves on our enemies and grant to the people of Rome and to me the power to inflict exemplary chastisement on the city of Carthage, and to retaliate upon her all the injury that her people have sought to do to us." As he finished he threw the raw entrails of the victim into the sea with the accustomed ritual. Then he ordered the trumpeter to sound the signal for departure, and as the wind which was favourable to them freshened they were quickly carried out of sight. In the afternoon they were enveloped in so thick a fog that they had difficulty in keeping their ships from fouling one another, and as they got out to sea the wind dropped. During the night a similar fog prevailed, which dispersed after sunrise, and at the same the wind freshened. At last they descried land, and a few minutes later the pilot informed Scipio that they were not more than five miles from the coast of Africa, and that the headland of Mercurius was plainly visible. If he would give orders for him to steer for it, the man assured him, the whole of the fleet would soon be in port. When he caught sight of land Scipio offered a prayer that this first view of Africa might bring good to himself and to the republic. He then gave orders for the fleet to make for an anchorage further south. They went before the wind which was still in the same quarter, but a fog which came up about the same time as on the day before blotted out the view of the land and made the wind fall. As night came on everything became obscure, and to avoid all risk of the ships coming into collision or being driven ashore it was decided to cast anchor. When it grew light, the wind again freshened from the same quarter, and the dispersal of the fog revealed the entire coastline of Africa. Scipio enquired the name of the nearest headland, and on learning that was called Pulchrum ("Cape Beautiful") he remarked, "I accept the omen, steer for it." The fleet brought up there and the whole of the force was landed. This description of the voyage as favourable and unaccompanied by any confusion or alarms rests upon the statements of numerous Greek and Latin authorities. According to Coelius, though the fleet was not actually submerged by the waves, it was exposed to every possible danger from sea and

sky, and was at last driven from the African coast to the island of Aegimurus, and from here with great difficulty succeeded in getting on the right course. He adds that as the ships were leaking badly and all but sinking, the soldiers took to the boats without orders just as though they were shipwrecked and escaped to land without arms and in the utmost disorder.

[29.28]When the disembarkation was completed, the Romans measured out a site for their camp on some rising ground close by. The sight of a hostile fleet, followed by the bustle and excitement of the landing, created consternation and alarm, not only in the fields and farms on the coast, but in the cities as well. Not only were the roads filled everywhere by crowds of men and troops of women and children, but the peasantry were driving their live stock inland, so that you would say that Africa was being suddenly depopulated. The terror which these fugitives created in the cities was greater even than what they themselves felt, especially in Carthage, where the confusion was almost as great as if it had been actually captured. Since the days of the consuls M. Atilius Regulus and L. Manlius, almost fifty years ago, they had never seen a Roman army other than those employed on raiding expeditions, who picked up what they could in the fields and always got back to their ships before the countrymen could assemble together to meet them. This made the excitement and alarm in the city all the greater. And no wonder, for there was neither an effective army nor a general whom they could oppose to Scipio. Hasdrubal, the son of Gisgo, was by far the most prominent man in the State, distinguished alike by his birth, his military reputation and his wealth, and now by his connection with royalty. But the Carthaginians had not forgotten that he had been defeated and routed in several battles by this very Scipio, and that as a general he was no more a match for him than the irregular levies which made up his force were a match for the army of Rome. There was a general call to arms, as though they were anticipating an immediate assault; the gates were hastily closed, troops stationed on the walls, outposts and sentinels posted, and the night was passed under arms. The next day, a body of cavalry, 1000 strong, who had been sent down to the sea to reconnoitre and harass the Romans during the disembarkation, came upon the Roman outposts. Scipio, meanwhile, after sending the fleet to Utica, had advanced a short distance from the shore and

seized the nearest heights, where he stationed some of his cavalry as outposts; the rest he sent to plunder the fields.

[29.29]In the skirmish which ensued, the Romans killed some of the enemy in the actual fighting, but the greater number were slain in the pursuit, amongst them the young Hanno, who was in command. Scipio ravaged the surrounding fields and captured a fairly opulent city in the immediate neighbourhood. In addition to the plunder which was at once put on board the transports and sent to Sicily, he made prisoners of some 8000 men, freemen and slaves. What cheered the whole army most of all at the outset of their campaign was the arrival of Masinissa, who, according to some writers, was accompanied by a mounted force of 200 men; most authorities, however, assert that it numbered 2000. As this monarch was by far the greatest of his contemporaries and rendered most important service to Rome, it may be worth while to digress from the order of our narrative and give a brief account of the various fortunes he experienced in the loss and subsequent recovery of the throne of his ancestors. Whilst he was fighting for the Carthaginians in Spain, his father Gala died. In accordance with the Numidian custom the crown passed to the late king's brother Oezalces, a man advanced in years. He died not long afterwards and the elder of his two sons, Capussa - the other was quite a boy - succeeded to the throne. But as he wore the crown by right of descent rather than through any influence or authority he possessed with his subjects, a certain Mazaetullus prepared to dispute his claim. This man was also of royal blood and belonged to a family which had always been foes to the reigning house, and had kept up a constant struggle with varying fortunes against the occupants of the throne. He succeeded in rousing his countrymen, over whom, owing to the king's unpopularity, he had considerable influence, and taking the field against him, compelled him to fight for his crown. Capussa fell in the action, together with many of his principal supporters; the whole of the Maesulian tribe submitted to Mazaetullus. He would not, however, accept the title of king, this he bestowed on the boy Lacumazes, the sole survivor of the royal house. and contented himself with the modest title of Protector. With a view to an alliance with Carthage he married a Carthaginian lady of noble birth, a niece of Hannibal's, and widow of Oezalces. He also sent envoys to Syphax and renewed the old ties of

hospitality with him, thus securing on all sides support for the coming struggle with Masinissa.

[29.30] On hearing of his uncle's death, followed by that of his cousin, Masinissa left Spain for Mauretania. Baga was king at the time, and Masinissa, by his earnest and humble entreaties, obtained from him a force of 4000 Moors to serve as an escort as he could not induce him to supply enough for warlike operations. With this escort he reached the frontiers of Numidia, having sent messengers in advance to his father's friends and his own. Here about 500 Numidians joined him, and, as had been arranged, his escort of Moors returned to their king. His adherents were fewer than he expected, too few, in fact, with which to venture on so great an enterprise. Thinking, however, that by active personal effort he might collect a force which would enable him to achieve something, he advanced to Thapsus, where he met Lacumazes, who was on his way to Syphax. The king's escort retreated hurriedly into the town, and Masinissa captured the place at the first assault. Some of the royal troops surrendered, others who offered resistance were killed, but the great majority escaped with their boy-king in the confusion and continued their journey to Syphax. The news of this initial success, slight though it was, brought the Numidians over to Masinissa, and from the fields and hamlets on all sides the old soldiers of Gala flocked to his standard and urged the young leader to win back his ancestral throne. Mazaetullus had considerably the advantage in point of numbers; he had the army with which he had defeated Capussa as well as some of the troops who had gone over to him after the king's death, and Lacumazes had brought very large reinforcements from Syphax. His total force amounted to 15,000 infantry and 10,000 cavalry, but, though so inferior in both arms, Masinissa engaged him. The courage of the veterans and the skill of their commander, trained as he had been in the wars in Spain, carried the day; the king and the Protector with a mere handful of Masaesulians escaped into Carthaginian territory. Thus Masinissa won back the throne of his ancestors. As he saw, however, that a much more serious contest awaited him with Syphax, he thought it best to effect a reconciliation with his cousin, and sent to the boy to assure him that if he would place himself in Masinissa's hands he would experience the same honourable treatment that Oezalces received from Gala. He also pledged his word to Mazaetullus that he should not suffer for what he had done, and,

more than that, that all his property should be restored to him. Both Lacumazes and Mazaetullus preferred a moderate share of fortune at home to a life of exile, and in spite of all the efforts of the Carthaginians went over to Masinissa.

[29.31].Hasdrubal happened to be on a visit to Syphax at the time. The Numidian did not consider it a matter of much importance to him whether the Maesulian throne was occupied by Lacumazes or Masinissa, but Hasdrubal warned him that he was making a very great mistake if he supposed that Masinissa would be content with the same frontiers as his father Gala. "That man," he said, "possessed much more ability and much more force of character than any one of that nation had hitherto shown. In Spain he had often exhibited to friends and foes alike proofs of a courage rare amongst men. Unless Syphax and the Carthaginians stifled that rising flame, they would soon be involved in a conflagration which nothing could check. As yet his power was weak and insecure, he was nursing a realm whose wounds had not yet closed." By continually urging these considerations, Hasdrubal persuaded him to move his army up to the frontiers of Maesulia and fix his camp on territory which he claimed as beyond question forming part of his dominions, a claim which Gala had contested not only by argument, but by force of arms. He advised him in case any one offered opposition - and he only wished they would - to be prepared to fight; if they for fear of him retired he must advance into the heart of the kingdom. The Maesulii would either submit to him without a struggle or they would find themselves hopelessly outmatched in arms. Encouraged by these representations Syphax commenced war with Masinissa, and in the very first battle defeated and routed the Maesulians. Masinissa with a few horsemen escaped from the field and fled to a mountain range called by the natives Bellum. Several households with their tent-wagons and cattle - their sole wealth - followed the king; the bulk of the population submitted to Syphax. The mountain district which the fugitives had taken possession of was grassy and well watered, and as it afforded excellent pasturage for cattle it provided ample sustenance for men who lived on flesh and milk. From these heights they harried the whole country round, at first in stealthy nocturnal incursions, and afterwards in open brigandage. They ravaged the Carthaginian territory mainly, because it offered more plunder and depredation was a safer work there than amongst the Numidians. At last they

reached such a pitch of audacity that they carried their plunder down to the sea and sold it to traders who brought their ships up for the purpose. More Carthaginians fell or were made prisoners in these forays than often happens in regular warfare. The authorities at Carthage complained loudly of all this to Syphax and pressed him to follow up these remnants of the war. Angry as he was, however, he hardly thought it part of his duties as a king to hunt down a robber at large on the mountains.

[29.32] Boncar, one of the king's officers, a keen and energetic soldier, was selected for the task. He was supplied with 4000 infantry and 200 horsemen and he had a good prospect of gaining rewards if he brought back Masinissa's head, or - what would afford measureless gratification - captured him alive. Making a surprise attack on the plunderers when they were suspecting no danger, he cut off an enormous number of men and cattle from their armed escort and drove Masinissa himself with a few followers up to the summit of the mountain. He now regarded serious hostilities as at an end, and after despatching his capture of men and cattle to the king, sent back also the bulk of his troops whom he considered unnecessary for what remained of the fighting, retaining only 500 infantry and 200 mounted men. With these he hastened in pursuit of Masinissa who had left the heights and, catching him in a narrow valley, he blocked both entrances and inflicted a very severe loss on the Maesulii. Masinissa with not more than fifty troopers got away through steep mountain tracks unknown to his pursuers. Boncar, however, kept on his track and overtook him in the open country near Clupea where he surrounded him so completely that the whole party were killed with the exception of four who with Masinissa, himself wounded, slipped out of his hands during the fray. Their flight was observed and the cavalry were sent in pursuit. They spread over the plain, some making a short cut to head off the five fugitives, whose flight brought them to a large river. Dreading the enemy more than the river, they spurred their horses without a moment's hesitation into the water, and the rapid current carried them down stream. Two were drowned before their pursuers' eyes, and it was believed that Masinissa had perished. He, however, with the two survivors, landed amongst the bush on the other side. This was the end of Boncar's pursuit, as he would not venture into the river and did not believe that there was any one now left for him to follow. He returned to the king with the

baseless story of Masinissa's death, and messengers were sent to carry the good news to Carthage. The report soon spread throughout Africa, and affected men's minds in very different ways. Masinissa was resting in a secret cave and treating his wound with herbs, and for some days kept himself alive on what his two troopers brought in from their forays. As soon as his wound was sufficiently healed to allow him to bear the movements of the horse he started with extraordinary boldness on a fresh attempt to recover his kingdom. During his journey he did not collect more than forty horsemen, but when he reached the Maesulii and made his identity known, his appearance created intense excitement. His former popularity and the un hoped-for delight of seeing him safe and sound, after they had believed him dead, had such an effect that in a few days 6000 infantry and 4000 cavalry had gathered round his standard. He was now in possession of his kingdom, and began to devastate the tribes who were friendly to Carthage, and the territory of the Maesulii, which formed part of the dominions of Syphax. Having thus provoked Syphax into hostilities, Masinissa took up a position on some mountain heights between Cirto and Hippo, a situation which was every way advantageous.

[29.33]Syphax looked upon the struggle as too serious a one to be entrusted to his lieutenants. He placed one division of his army under his son Vermina with instructions to march round the back of the mountain and attack the enemy in the rear while he himself occupied his attention in front. Vermina started in the night as he was to fall on the enemy unawares; Syphax broke camp and marched out in broad daylight with the obvious intention of giving regular battle. When sufficient time had elapsed for Vermina to reach his objective, Syphax led his men over a part of the mountain which afforded a gentle slope and made straight for the enemy, trusting to his superiority in numbers and the success of the attack in the rear. Masinissa prepared to meet the attack with confidence owing to his vastly superior position. The battle was fiercely and for a long time evenly contested; Masinissa had the advantage of the ground and finer soldiers, Syphax, that of great superiority in numbers. His masses of men, which had been formed into two divisions, one pressing the enemy in front, the other surrounding his rear, gave Syphax a decisive victory. Flight was impossible as they were hemmed in on both sides, and almost the whole force of infantry and

cavalry were killed or made prisoners. Some two hundred horsemen had gathered as a bodyguard round Masinissa, and he divided them into three troops with orders to cut their way through at different points and after they had got clear away to rejoin him at a spot he named. He himself charged through the enemy and escaped in the direction he intended, but two of the troops found escape impossible, one surrendered, the other after an obstinate resistance was buried beneath the enemy's missiles. Masinissa found Vermina almost at his heels, but by continually doubling first to one side and then to the other he eluded his pursuit until at last he forced him to abandon the exhausting and hopeless chase. Accompanied by sixty troopers he reached the Lesser Syrtis. Here, in the proud consciousness of his many heroic efforts to recover his father's throne, he passed his time between the Carthaginian Emporia and the tribe of the Garamantes until the appearance of Scipio and the Roman fleet in Africa. This leads me to believe that when Masinissa came to Scipio it was with a small rather than with a large body of troops; the former would be much more suitable to the fortunes of an exile, the latter to those of a reigning prince.

[29.34]After the loss of their cavalry corps and its commander, the Carthaginians raised a fresh force which they placed under Hamilcar's son Hanno. They had sent repeated messages to both Hasdrubal and Syphax and at last sent a special embassy to each of them, appealing to Hasdrubal to succour his native city which was all but invested, and imploring Syphax to come to the aid of Carthage and indeed of the whole of Africa. Scipio at the time was encamped about a mile from Utica, having moved up from the coast where for a few days he had occupied an intrenched position close to his fleet. The mounted troops which had been supplied to Hanno were by no means strong enough to harass the enemy or even to protect the country from his depredations, and his first and most pressing task was to increase its strength. Though he did not reject recruits from other tribes, his levy consisted mainly of Numidians, by far the finest cavalry in Africa. When he had brought his corps up to about 4000 men, he took possession of a town called Salaeca, about fifteen miles from the Roman camp. This was reported to Scipio, and he exclaimed, "What? Cavalry in houses in the summer! Let there be more of them as long as they have such a leader!" Realising that the less energy the enemy showed, the less hesitation ought he himself to show, he instructed

Masinissa and his cavalry to ride up to the enemy's quarters and draw them into action: when their whole force was engaged and he was being outnumbered he was to retire slowly, and when the moment arrived Scipio would come to his support. The Roman general waited until Masinissa had had sufficient time to draw the enemy, and then followed with his cavalry, his approach being concealed by some low hills which fortunately flanked his route.

Masinissa, in accordance with his instructions, rode right up to the gates and, when the enemy appeared, retired as though afraid to meet him; this simulated fear made the enemy all the more confident, until he was tempted into a rash pursuit. The Carthaginians had not yet all emerged from the city, and their general had more than enough to do in forcing some who were heavy with wine and sleep to seize their weapons and bridle their horses and preventing others from rushing out of the gates in scattered disorder, with no attempt at formation and even without their standards. The first who incautiously galloped out fell into Masinissa's hands, but they soon poured out in a compact body and in greater numbers, and the fighting became more equal. At last, when the whole of the Carthaginian cavalry were in the field, Masinissa could not longer bear the weight of their attack. His men did not, however, take to flight but retired slowly before the enemy's charges until their commander had brought them as far as the rising ground which concealed the Roman cavalry. Then these latter charged from behind the hill, horses and men alike fresh, and threw themselves, in front and flank and rear, upon Hanno and his Africans, who were tired out with the fight and the pursuit. Masinissa at the same time wheeled round and recommenced fighting. About 1000 who were in the front ranks, unable to effect a retreat, were surrounded and killed, amongst them Hanno himself; the rest, appalled at their leader's death, fled precipitately, and were pursued by the victors for more than thirty miles. As many as 2000 were either killed or made prisoners, and it is pretty certain that amongst them there were not less than 200 Carthaginians, including some of their wealthiest and noblest families

[29.35] On the very day on which this action was fought, it happened that the ships which had carried the plunder to Sicily returned with supplies, as though they had divined that they would have to carry back a second cargo of spoils of war. Not all the authorities state that two Carthaginian generals of the same name were killed in two

separate actions, they were afraid, I think, of being misled into repeating the same incident twice over. Coelius at all events, and Valerius tell us that Hanno was taken prisoner. Scipio distributed amongst the cavalry and their officers rewards proportioned to the service each had rendered; Masinissa was distinguished above the rest by some splendid presents. After placing a strong garrison in Salaeca he continued his advance with the rest of his army, and not only stripped the fields along his line of march, but captured various towns and villages as well, spreading terror far and wide. After a week's marching he returned to camp with a long train of men and cattle and all sorts of booty, and the ships were sent off for the second time heavily loaded with the spoils of war. He now abandoned his plundering expeditions and devoted all his strength to an attack on Utica, intending if he took it to make that the base of his future operations. His naval contingent was employed against the side of the city which faced the sea, while his land army operated from some rising ground which commanded the walls. Some artillery and siege engines he had brought with him, and some had been sent with the supplies from Sicily, new ones were also being constructed in an arsenal where a large number of artisans trained in this work were assembled. Under the pressure of such a vigorous investment all the hopes of the people of Utica rested on Carthage, and all the hopes of the Carthaginians rested on Hasdrubal and on whatever assistance he could obtain from Syphax. In their anxiety for relief everything seemed to be moving too slowly. Hasdrubal had been doing his utmost to obtain troops, and had actually assembled a force of 30,000 infantry and 3000 cavalry, but he did not venture to move nearer the enemy till Syphax joined him. He came with 50,000 infantry and 10,000 cavalry, and with their united forces they at once advanced from Carthage and took up a position not far from Utica and the Roman lines. Their approach led to one important result at least: after prosecuting the siege of Utica with all the resources at his command Scipio abandoned any further attempts on the place, and as winter was coming on he constructed an intrenched camp on a tongue of land which projected into the sea and was connected by a narrow isthmus with the mainland. He enclosed the military and naval camps within the same lines. The legions were stationed in the middle of the headland; the ships, which had been beached, and their crews occupied the northern side; the low ground on the south side was

allotted to the cavalry. Such were the incidents in the African campaign down to the end of the autumn.

[29.36]In addition to the corn which had been accumulated from the plunder of all the country round, and the supplies which had been conveyed from Sicily and Italy, a large quantity was sent by the *propraetor* Cnaeus Octavius which he had obtained from Ti. Claudius, the governor of Sardinia. The existing granaries being all full, new ones were built. The army was in need of clothing and Octavius received instructions to confer with the governor as to whether any could be made and despatched from that island. The matter was promptly attended to and in a short time 1200 togas and 12,000 tunics were sent off. During this summer the consul P. Sempronius, who was commanding in Bruttium, was marching near Croto when he fell in with Hannibal. An irregular battle ensued, as both armies were in column of march and did not deploy into line. The Romans were repulsed, and though it was more of a melee than a battle no fewer than 1200 of the consul's army were killed. They retreated in confusion to their camp, but the enemy did not venture to attack it. The consul, however, marched away in the silence of the night after despatching a message to the *proconsul* P. Licinius to bring up his legions. With their united forces the two commanders marched back to meet Hannibal. There was no hesitation on either side, the consul's confidence was restored by the doubling of his strength, and the enemy's courage was raised by his recent victory. P. Sempronius stationed his own legions in front, those of P. Licinius were placed in reserve. At the commencement of the battle the consul vowed a temple to *Fortuna Primigenia* in case he routed the enemy, and his prayer was granted. The Carthaginians were routed and put to flight, above 4000 were killed, nearly 300 were made prisoners and 40 horses and 11 standards were captured. Daunted by his failure, Hannibal withdrew to Croto. Etruria, at the other end of Italy, was almost wholly in sympathy with Mago, hoping to effect a revolution with his help. The consul M. Cornelius kept his hold on the province more by the terror created by his judicial proceedings than by force of arms. He conducted the investigations which the senate had commissioned him to make without any respect of persons, and many Etrurian nobles who had personally interviewed Mago or been in correspondence with him about the defection of their cantons were brought up and condemned to death; others

knowing themselves to be equally guilty went into exile and were sentenced in their absence. As their persons were beyond arrest, their property only could be confiscated as an earnest of their future punishment.

[29.37] While the consuls were thus occupied in their widely separated spheres of action, the censors, M. Livius and C. Claudius, were busy in Rome. They revised the roll of senators, and Q. Fabius Maximus was again chosen as Leader of the House. Seven names were struck off the roll, but none of them had ever filled a curule chair. The censors insisted upon the exact fulfilment of the contracts which had been made for the repair of public buildings, and they made additional contracts for the construction of a road from the Forum Boarium to the temple of Venus with public seats on each side of it and also for the building of a temple to Mater Magna on the Palatine. They also imposed a new tax in the shape of a duty on salt. In Rome and throughout Italy it had been sold at a sextans, and the contractors were bound to sell it at the old price in Rome but allowed to charge a higher price in the country towns and markets. It was commonly believed that one of the censors had devised this tax to spite the people because he had once been unjustly condemned by them, and it was said that the rise in the price of salt pressed most heavily on those tribes who had been instrumental in procuring his condemnation. It was owing to this that Livius got the name of Salinator. The lustrum was closed later than usual because the censors had sent commissioners into the provinces to ascertain the number of Roman citizens who were serving in the armies. Including these, the total number as shown in the census amounted to 214,000. The lustrum was closed by C. Claudius Nero. This year, for the first time, a return was furnished of the population of the twelve colonies, the censors of the colonies themselves furnishing the lists so that the military strength and financial position of each might be permanently recorded in the archives of the State. Then followed the revision of the equites. It so happened that both the censors had government horses. When they came to the Pollian tribe, which contained the name of M. Livius, the usher hesitated about citing the censor himself. "Cite M. Livius," exclaimed Nero and then, whether it was that the old enmity still survived or that he was pluming himself upon an ill-timed strictness, he turned to Livius and ordered him to sell his horse as he had been condemned by the verdict of the people. When

they were going through the Arniensian tribe and came to his colleague's name, Livius ordered C. Claudius Nero to sell his horse for two reasons, first because he had borne false witness against him, and secondly because he had not been sincere in his reconciliation with him. Thus at the close of their censorship a dispute arose equally discreditable to both, each besmirching the other's good name at the cost of his own.

After C. C. Nero had made the usual affidavit that he had acted in accordance with the laws, he went up to the treasury and amongst the names of those whom he left disfranchised he placed that of his colleague. He was followed by M. Livius who took still more dramatic action. With the exception of the Maecian tribe, who had neither condemned him nor afterwards, in spite of his condemnation, made him either consul or censor, Livius reduced to the status of *aerarii* the whole of the remaining tribes of the Roman people on the ground that they had condemned an innocent man, and afterwards had made him consul and censor. He argued that they must admit that either they were acting wrongfully as judges in the first instance, or afterwards as electors. Amongst the thirty-four tribes, C. C. Nero, he said, would be disfranchised, and if there were any precedent for disfranchising the same man twice he would have inserted his name specially. This rivalry between the censors in affixing a stigma on each other was deplorable, but the sharp lesson administered to the people for their inconstancy was just what a censor ought to have given and befitted the seriousness of the times. As the censors had fallen into disfavour one of the tribunes of the plebs, Cnaeus Baebius, thought it a good opportunity for advancing himself at their expense, and appointed a day for their impeachment. The project was defeated by the unanimous vote of the senate, who were determined that the censorship should not for the future be at the mercy of popular caprice.

[29.38] During the summer Clamptia in Bruttium was taken by storm by the consul; Consentia, Pandosia and some other unimportant places surrendered voluntarily. As the time for the elections was approaching it was thought best to summon Cornelius from Etruria as there were no active hostilities there, and he conducted the elections. The new consuls were Cnaeus Servilius Caepio and Caius Servilius Geminus. At the election of praetors which followed, those returned were P. Cornelius Lentulus, P. Quintilius Varus, P. Aelius

Paetus and P. Villius Tappulus; the last two were plebeian aediles at the time. When the elections were over the consul returned to Etruria. Some deaths took place among the priests this year, and appointments were made to fill the vacancies. Tiberius Veturius Philo was appointed Flamen of Mars in place of M. Aemilius Regillus who died in the preceding year. M. Pomponius Matho, who had been both augur and keeper of the Sacred Books, was succeeded by M. Aurelius Cotta in the latter office and as augur by Tiberius Sempronius Gracchus, a very young man, a very unusual thing at that time in appointments to the priesthood. Golden chariots were placed in the Capitol by the curule aediles, C. Livius and M. Servilius Geminus. The Roman Games were celebrated for two days by the aediles P. Aelius and P. Villius. There was also a feast in honour of Jupiter on the occasion of the Games.

BOOK 30: CLOSE OF THE HANNIBALIC WAR

[30.1]It was now the sixteenth year of the Punic War. The new consuls, Cnaeus Servilius and Caius Servilius, laid before the senate the questions of the general policy of the republic, the conduct of the war and the assignment of the provinces. It was resolved that the consuls should come to an arrangement, or failing that decide by ballot, which of them should oppose Hannibal in Bruttium whilst the other should have Etruria and the Ligurians as his province. The one to whom Bruttium fell was to take over the army from P. Sempronius, and Sempronius, whose command was extended for a year as proconsul, was to relieve P. Licinius; the latter was to return to Rome. Licinius was not only a fine soldier but he was in every respect one of the most accomplished citizens of the time; he combined in himself all the advantages which nature or fortune could bestow; he was an exceptionally handsome man and possessed remarkable physical strength; he was considered a most eloquent speaker, whether he was pleading a cause or defending or attacking a measure in the senate or before the Assembly, and he was thoroughly conversant with pontifical law. And his recent consulship had established his reputation as a military leader. Arrangements similar to those in Bruttium were also made in Etruria and Liguria; M. Cornelius was to hand over his army to the new consul and hold the province of Gaul with the legions which L. Scribonius had commanded the previous year. Then the consuls balloted for their

provinces; Bruttium fell to Caepio, Etruria to Servilius Geminus. The balloting for the praetors' provinces followed; Aelius Paetus obtained the City jurisdiction, P. Lentulus drew Sardinia, P. Villius Sicily, and Quintilius Varus Ariminum with the two legions which had formed Lucretius Spurius' command. Lucretius had his command extended for a year to allow of his rebuilding Genua, which had been destroyed by Mago. Scipio's command was extended until the war in Africa was brought to a close. A decree was also made that, as he had entered upon his province of Africa, solemn intercessions should be offered up that the expedition might be to the advantage of the Roman people, of the general himself and of his army.

[30.2]3000 men were raised for service in Sicily, as all the troops in that province had been taken to Africa and it had been decided that Sicily should be protected by forty ships until the fleet returned from Africa. Villius took with him thirteen new ships, the rest were the old ones in Sicily which were refitted. M. Pomponius, who had been praetor the year before, was appointed to take charge of this fleet, and placed on board the new levies he had brought from Italy. A fleet of equal strength was assigned to Cnaeus Octavius, who also had been praetor the previous year and was now invested with similar powers for the protection of the Sardinian coast. The praetor Lentulus was ordered to furnish 2000 men for service with the fleet. In view of the uncertainty as to where the Carthaginian fleet would land, though they would be sure to seek some unguarded spot, M. Marcius was furnished with forty ships to watch the coast of Italy. The consuls were authorised by the senate to raise 3000 men for this fleet and also two legions to defend the City against all contingencies. The province of Spain was left in the hands of the former commanders, L. Lentulus and L. Manlius Acidinus, who retained their old legions. Altogether there were 20 legions and 160 ships of war on active service this year. The praetors were ordered to go to their respective provinces. Before the consuls left the City they received the commands of the senate to celebrate the Great Games which the vow of the Dictator T. Manlius Torquatus required to be celebrated every five years, if the condition of the republic remained unaltered. Numerous stories of portents filled men's minds with superstitious terrors. It was said that crows picked with their beaks some of the gold on the Capitol and actually ate it, and rats gnawed a golden crown at Antium. The whole of the country round Capua

was covered by an immense flight of locusts, and no one knew whence they had come. At Reate a foal was born with five feet; at Anagnia fiery meteors were seen in different parts of the sky and these were followed by a huge blazing torch; at Frusino a thin bow encircled the sun, which afterwards grew to such a size that it extended beyond the bow; at Arpinum there was a subsidence of the ground and a vast chasm was formed. Whilst one of the consuls was sacrificing, the liver of the first victim was found to be without a head. These portents were expiated by sacrifices of full-grown animals, the college of pontiffs intimated the deities to whom they were to be offered.

[30.3]When this business was completed the consuls and praetors departed to their various provinces. They were all, however, interested in Africa, as much so indeed as if the ballot had assigned it to them, whether it was that they saw that the issue of the war and their country's fate would be decided there, or that they wished to do a service to Scipio as the man to whom all eyes were turned. So it was that not only from Sardinia, as above stated, but from Sicily itself and from Spain, clothing, corn, even arms as well as supplies of all kinds were forwarded to him from the Sicilian harbours. Throughout the winter there had been no pause in the numerous operations which Scipio was conducting on all sides. He maintained the investment of Utica; his camp was in full view of Hasdrubal; the Carthaginians had launched their ships, their fleet was fully equipped and ready to intercept his supplies. Nevertheless he had not lost sight of his purpose to win Syphax, in case his passion for his bride should have cooled through unstinted enjoyment. Syphax was anxious for peace and proposed as conditions that the Romans should evacuate Africa, and the Carthaginians Italy, but he gave Scipio to understand that if the war continued he should not desert his allies. I believe that the negotiations were conducted through intermediaries - and most of the authorities take this view - rather than that Syphax, as Antias Valerius asserts, came to the Roman camp to confer personally with Scipio. At first the Roman commander would hardly allow these terms to be mentioned; afterwards, however, in order that his men might have a plausible reason for visiting the enemies' camp he did not reject then so decidedly, and held out hopes that after frequent discussions they might come to an agreement. The winter quarters of the Carthaginians, constructed as they were of materials collected

haphazard from the country round, were almost wholly built of wood. The Numidians in particular lived in huts made of wattled reeds and roofed with grass matting; they were dispersed all over the camp in no order or arrangement, and some even lay outside the lines. When this was reported to Scipio, he was hopeful of burning the camp down if an opportunity presented itself.

[30.4]The envoys who were sent to Syphax were accompanied by some first-rank centurions, men of tried courage and sagacity, who were disguised as camp-servants. Whilst the envoys were in conference these men strolled about the camp noting all the adits and exits, the general arrangement of the camp, the positions of the Carthaginians and Numidians, respectively, and the distance between Hasdrubal's camp and that of Syphax. They also watched the methods adopted in posting the watches and guards, to see whether a surprise attack would be better made by night or by day. The conferences were pretty frequent, and different men were purposely sent each time in order that these details might become known to a larger number. As the discussions went on with increasing frequency, Syphax, and through him the Carthaginians, fully expected that peace would be attained with a few days. Suddenly the Roman envoys announced that they had been forbidden to return to headquarters unless a definite reply were given. Syphax must either say what he had made up his mind to do or, if it was necessary for him to consult Hasdrubal and the Carthaginians, he should do so; the time had come for either a peace settlement or an energetic resumption of hostilities. Whilst Syphax was consulting Hasdrubal and the Carthaginians, the Roman spies had time to visit every part of the camp, and Scipio was able to make all his arrangements. The prospect of peace had, as usually happens, made Syphax and the Carthaginians less on the alert to guard against any hostile attempt which might be made in the meantime. At last a reply came, but as the Romans were supposed to be anxious for peace, the opportunity was taken of adding some unacceptable conditions. This was just what Scipio wanted to justify him in breaking off the armistice. He told the king's messenger that he would refer the matter to his council, and the next day he gave his reply to the effect that not a single member of the council beside himself was in favour of peace. The messenger was to take word that the only hope of peace for Syphax lay in his abandoning the cause of the Carthaginians. Thus Scipio put an end to the truce in order that

he might be free to carry out his plans without any breach of faith. He launched his ships - it was now the commencement of spring - and placed his engines and artillery on board as though he were going to attack Utica from the sea. He also sent 2000 men to hold the hill commanding the city which he had previously occupied, partly with a view of diverting the enemy's attention from his real design, and partly to prevent his camp from being attacked from the city, as it would be left with only a weak guard while he was marching against Syphax and Hasdrubal.

[30.5]After making these arrangements he summoned a council of war and ordered the spies to report what they had discovered, and at the same time requested Masinissa who knew all about the enemy to give the council any information he could. He then laid before them his own plan of operations for the coming night and directed the tribunes to lead the troops out of camp as soon as the trumpets sounded on the break-up of the council. In obedience to his order the march out began at sunset. About the first watch the column of march was deployed into line of battle. After advancing in this order at an easy pace for seven miles they reached the hostile camp about midnight. Scipio assigned a portion of his force, including Masinissa and his Numidians, to Laelius with instructions to attack Syphax and fire his camp. Then he took Laelius and Masinissa apart and appealed to them each separately to make up by extra care and diligence for the confusion inseparable from a night attack. He told them that he should attack Hasdrubal and the Carthaginian camp, but would wait until he saw the king's camp on fire. He had not to wait long, for when the fire was cast on the nearest huts it very soon caught the next ones and then running along in all directions spread over the whole camp. Such an extensive fire breaking out at night naturally produced alarm and confusion, but Syphax's men thinking it was due to accident and not to the enemy rushed out without arms to try and extinguish it. They found themselves at once confronted by an armed foe, mainly Numidians whom Masinissa, thoroughly acquainted with the arrangement of the camp, had posted in places where they could block all the avenues. Some were caught by the flames, whilst half asleep in their beds, numbers who had fled precipitately, scrambling over one another were trampled to death in the camp gates.

[30.6]In the Carthaginian camp the first to see the glowing flames were the watch, then others awakened by the tumult observed them,

and all fell into the same mistake of supposing that it was an accidental outbreak. They took the cries proceeding from wounded combatants as due to the nocturnal alarm, and so were unable to realise what had actually happened. Not in the least suspecting the presence of an enemy, they rushed out, each through the gate nearest to him, without any weapons carrying out what might help to extinguish the flames, and so came right on the Roman army. They were all cut down, for the enemy gave no quarter, that none might escape and give the alarm. In the confusion the gates were left unguarded, and Scipio at once seized them and fire was flung upon the nearest huts. The flames broke out at first in different places but, creeping from hut to hut, in a very few moments wrapped the whole camp in one vast conflagration. Men and animals alike scorched with the heat blocked the passages to the gates and fell crushed by each other. Those whom the fire did not overtake perished by the sword and the two camps were involved in one common destruction. Both the generals, however, saved themselves, and out of all those thousands only 2000 infantry and 500 cavalry made good their escape, the majority being wounded or suffering from the fire. Forty thousand men perished either from the fire or the enemy, over 5000 were taken alive, including many Carthaginian nobles of whom eleven were senators; 174 standards were captured, 2700 horses and 6 elephants, 8 others having been killed or burnt to death. An enormous quantity of arms was secured, these the general devoted to Vulcan, and they were all burnt.

[30.7]Hasdrubal, who was accompanied in his flight by a small body of horse, made for the nearest city, where he was subsequently joined by all who survived, but fearing that it might be surrendered to Scipio, he left it in the night. Soon after his departure the gates were opened to admit the Romans, and as the surrender was a voluntary one the place suffered no hostile treatment. Two cities were taken and sacked soon afterwards, and the loot found there with what had been rescued from the burning camp was all given to the soldiers. Syphax established himself in a fortified position about eight miles distant; Hasdrubal hastened to Carthage, fearing lest the recent disaster should frighten the senate into a more yielding mood. So great in fact was the alarm that people expected Scipio to leave Utica alone and instantly commence the siege of Carthage. The sufetes - a magistrate corresponding to our consul - convened a meeting of the senate.

Here three proposals were made. One was to send envoys to Scipio to negotiate a peace; another, to recall Hannibal to protect his country from the ruin which threatened it; the third, which showed a firmness worthy of Romans in adversity, urged the reinforcement of the army to its proper strength and an appeal to Syphax not to abandon hostilities. The last proposal, which was supported by Hasdrubal and the whole of the Barcine party, was adopted. Recruiting began at once in the city and the country districts, and a deputation was sent to Syphax, who was already doing his utmost to repair his losses and renew hostilities. He was urged on by his wife, who did not now trust to the endearments and caresses with which she had formerly swayed her lover, but with prayers and piteous appeals and eyes bathed in tears she conjured him not to betray her father and her country, or allow Carthage to be devastated by the flames which had consumed his camp. The deputation gave him encouragement and hope by informing him that they had met near a city called Obba a body of 4000 Celtiberian mercenaries who had been raised in Spain, a splendid force, and that Hasdrubal would appear ere long with a formidable army. He answered them in friendly terms, and then took them to see a large number of Numidian peasants to whom he had just given arms and horses, and assured them that he would call out all the fighting men in his kingdom. He was well aware, he said, that he owed his defeat to fire, and not to the chances of battle; it was only the man who was vanquished by arms that was inferior in war. Such was the tenor of his reply to the deputation. A few days later, Hasdrubal and Syphax joined forces; their united strength amounted to about 30,000 men.

[30.8]Just as though the war were at end, so far as Syphax and the Carthaginians were concerned, Scipio pressed on the siege of Utica and was already bringing his engines up to the walls when he received intelligence of the enemy's activity. Leaving a small force to keep up the appearance of an investment by land and sea, he marched with the main body of his army to meet his foes. His first position was on a hill some four miles distant from the king's camp. The next day he marched his cavalry down into what are called the Magni Campi, a stretch of level country extending from the foot of the hill, and spent the day in riding up to the enemies' outposts and harassing them with skirmishes. For the next two days both sides kept up this desultory fighting without any result worth mentioning; on the fourth day both

sides came down to battle. The Roman commander drew up his principes behind the leading maniples of the hastati, and the triarii as reserves; the Italian cavalry were stationed on the right wing, Masinissa and the Numidians on the left. Syphax and Hasdrubal placed the Numidian cavalry opposite the Italian, and the Carthaginian horse fronted Masinissa, whilst the Celtiberians formed the centre to meet the charge of the legions. In this formation they closed. The Numidians and Carthaginians on the two wings were routed at the first charge; the former consisting mostly of peasants could not withstand the Roman horse, nor could the Carthaginians, also raw levies, hold their own against Masinissa, whose recent victory had made him more formidable than ever. Though exposed on both flanks the Celtiberians stood their ground, for as they did not know the country, flight offered no chance of safety, nor could they hope for any quarter from Scipio after carrying their mercenary arms into Africa to attack the man who had done so much for them and their countrymen. Completely enveloped by their foes they died fighting to the last, and fell one after another on the ground where they stood. Whilst the attention of all was turned to them, Syphax and Hasdrubal gained time to make their escape. The victors, wearied with slaughter more than with fighting, were at last overtaken by the night.

[30.9] On the morrow Scipio sent Laelius with the whole of the Roman and Numidian cavalry and some light-armed infantry in pursuit of Syphax and Hasdrubal. The cities in the neighbourhood, all of which were subject to Carthage, he attacked successively with his main body; some he won by appealing to their hopes and fears, some he took by storm. Carthage was in a state of terrible panic, they felt quite sure that when he had subjugated all their neighbours in the rapid progress of his arms, he would make a sudden attack on Carthage. The walls were repaired and protected by outworks, and each man carried off from the fields, on his own account, what would enable him to endure a long siege. Few ventured to mention the word "peace" in the senate, many were in favour of recalling Hannibal, the majority were of opinion that the fleet which was intended to intercept supplies should be sent to destroy the ships anchored off Utica, possibly the naval camp as well, which was insufficiently guarded. This proposal found most favour, at the same time they decided to send to Hannibal, "for even," it was argued, "supposing

that the naval operations were completely successful, the siege of Utica would be only partly raised, and then there was the defence of Carthage - they had no general but Hannibal, no army but his that could undertake that task." The next day the ships were launched, and at the same time a party of delegates set sail for Italy. The critical state of affairs acted as strong stimulus, everything was done with feverish energy, any one who showed hesitation or slackness was regarded as a traitor to the safety of all. As Scipio was making slow progress, his army being encumbered with the spoils of many cities, he sent the prisoners and the rest of the booty to his old camp at Utica. As Carthage was now his objective, he seized Tyneta, from which the garrison had fled, a place about fifteen miles from Carthage, protected by its natural situation as well as by defensive works. It is visible from Carthage and its walls afford a view of the sea which surrounds that city.

[30.10]Whilst the Romans were busily engaged in intrenching they saw the hostile fleet sailing from Carthage to Utica. They at once ceased work, orders were given to march, and the army made a rapid advance, fearing lest the ships should be caught with their prows turned shorewards for siege operations, in utter unreadiness for a naval battle. "How" they asked themselves, "can a mobile and fully armed fleet in perfect sailing order be successfully resisted by ships loaded with artillery and war machines, or converted into transports, or brought up so close to the walls as to allow of scaling parties using them instead of an agger and gangways?" Under the circumstances Scipio abandoned the usual tactics. Bringing the warships which could have protected the others into the rearmost position close inshore, he lined up the transports in front of them four deep to serve as a wall against the enemy's attack. To prevent the lines from being broken by violent charges he laid masts and yard-arms from ship to ship and secured them by stout ropes which bound them together like one continuous chain. He then fastened planks upon the top of these, so making a free passage along the whole line, and under these bridges the despatch-boats had room to run out against the enemy and retire into safety. After making these hurried arrangements as complete as time would allow, he placed about 1000 picked men on board the transports and an immense quantity of missile weapons, so that however long the fighting went on there might be enough. Thus ready and eager, they waited for the enemy.

If the Carthaginians had moved more rapidly they would have found hurry and confusion everywhere, and they might have destroyed the fleet in the first onset. They were, however, disheartened by the defeat of their land forces, and now they did not feel confidence even on the sea, the element where they were strongest. After sailing slowly all through the day they brought up towards sunset at a harbour called by the natives Rusocmon. The following day, they put out to sea in line of battle, expecting the Romans to come out and attack them. After they had been stationary for a long time and no movement on the part of the enemy was visible, they at last commenced an attack on the transports. There was nothing in the least resembling a naval action, it looked almost exactly as if ships were attacking walls. The transports were considerably higher than their opponents, and consequently the missiles from the Carthaginian vessels, which had to be hurled from below, were mostly ineffective; those from the transports thrown from above fell with more force, their weight adding to the blow. The despatch-boats and light vessels which ran out through the intervals under the plank gangways were many of them run down by the momentum and bulk of the warships, and in time they became a hindrance to those fighting on the transports, who were often obliged to desist for fear of hitting them while they were mixed up with the enemy's ships. At last the Carthaginians began to throw poles with grappling-hooks at the end - the soldiers call them harpagones - on to the Roman ships, and it was impossible to cut away either the poles or the chains by which they were suspended. When a warship had hooked one of the transports it was rowed astern, and you would see the ropes which fastened the transports one to another give way, and sometimes a whole line of transports would be dragged off together. In this way all the gangways connecting the first line of transports were broken up, and there was hardly any place left where the defenders could spring back into the second line. Six transports were towed off to Carthage. Here the rejoicing was greater than the circumstances of the case warranted, but what made it all the more welcome was the fact that the Roman fleet had narrowly escaped destruction, an escape due to the Carthaginian commander's slackness and the timely arrival of Scipio. Amid such continual disasters and mourning this was an unhopd-for cause of congratulation.

[30.11] Meantime Laelius and Masinissa, after a fifteen days' march, entered Numidia, and the Maesulians, delighted to see their king whose absence they had so long regretted, placed him once more on his ancestral throne. All the garrisons with which Syphax had held the country were expelled and he was confined within the limits of his former dominions. He had no intention, however, of remaining quiet; he was goaded on by his wife, whom he passionately loved, and by her father, and he had such an abundance of men and horses that the mere sight of the resources afforded by a realm which had enjoyed many years of prosperity would have stimulated the ambition of even a less barbarous and impulsive nature than Syphax possessed. He assembled all who were fit for war, and after distributing horses, armour and weapons amongst them he formed the mounted men into squadrons and the infantry into cohorts, a plan which he had learnt in the old days from the centurions. With this army, quite as numerous as the one he had had before but consisting almost entirely of raw and untrained levies, he marched off to meet his enemies, and fixed his camp in their vicinity. At first he sent small bodies of cavalry from the outposts to make a cautious reconnaissance; compelled to retire by showers of darts they galloped back to their comrades. Sorties were made on both sides alternately, and indignant at being repulsed, larger bodies came up. This acts as an incentive in cavalry skirmishes when the winning side find their comrades flocking to them in hopes of victory and rage at the prospect of defeat brings supports to those who are losing. So it was then, the fighting had been begun by a few, but the love of battle at last brought the whole of the cavalry on both sides into the field. As long as the cavalry only were engaged the Romans had great difficulty in withstanding the immense numbers of Maesulians whom Syphax was sending forward. Suddenly, however, the Roman light infantry ran out between the cavalry who made way for them, and this gave steadiness to the line and checked the rush of the enemy. The latter slackened speed and then came to a halt, and were soon thrown into confusion by this unaccustomed mode of fighting. At last they gave ground not only before the infantry but before the cavalry also, to whom the support of their infantry had given fresh courage. By this time the legions were coming up, but the Maesulians did not wait for their attack, the mere sight of the standards and arms was enough, such was the effect either of the recollection of their past defeats or of the fear which the enemy now inspired.

[30.12] Syphax was riding up to the hostile squadrons in the hope that either a sense of honour or his own personal danger might check the flight of his men, when his horse was severely wounded and he was thrown, overpowered and made prisoner, and carried off to Laelius. Masinissa was especially delighted to see him as a captive. Cirta was Syphax's capital, and a considerable number escaped to that city. The losses sustained were insignificant compared with the importance of the victory, for the fighting had been confined to the cavalry. There were not more than 5000 killed, and in the storming of the camp, whither the mass of troops had fled after losing their king, less than half that number were made prisoners. Masinissa told Laelius that nothing would delight him more for the moment than to visit as conqueror his ancestral dominions which had after so many years been recovered, but prompt action was as necessary in success as in defeat. He suggested that he should be allowed to go on with the cavalry and the vanquished Syphax to Cirta, which he would be able to surprise amidst the general confusion and alarm; Laelius might follow with the infantry by easy stages. Laelius gave his consent and Masinissa advanced to Cirta and ordered the leading citizens to be invited to a conference. They were ignorant of what had happened to the king, and though Masinissa told them all that had occurred he found threats and persuasion equally unavailing until the king was brought before them in chains. At this painful and humiliating spectacle there was an outburst of grief, the defences were abandoned, and there was a unanimous resolve to seek the victor's favour by opening the gates to him. After placing guards round all the gates and at suitable places in the fortifications he galloped up to the palace to take possession of it.

As he was entering the vestibule, on the very threshold in fact, he was met by Sophonisba, the wife of Syphax and daughter of the Carthaginian Hasdrubal. When she saw him surrounded by an armed escort, and conspicuous by his arms and general appearance, she rightly guessed that he was the king, and throwing herself at his feet, exclaimed: "Your courage and good fortune aided by the gods have given you absolute power over us. But if a captive may utter words of supplication before one who is master of her fate, if she may touch his victorious right hand, then I pray and beseech you by the kingly greatness in which we too not long ago were clothed, by the name of Numidian which you and Syphax alike bear, by the tutelary deities of

this royal abode who, I pray, may receive you with fairer omens than those with which they sent him hence, grant this favour at least to your suppliant that you yourself decide your captive's fate whatever it may be, and do not leave me to fall under the cruel tyranny of a Roman. Had I been simply the wife of Syphax I would still choose to trust to the honour of a Numidian, born under the same African sky as myself, rather than that of an alien and a foreigner. But I am a Carthaginian, the daughter of Hasdrubal, and you see what I have to fear. If no other way is possible then I implore you to save me by death from falling into Roman hands." Sophonisba was in the bloom of youth and in all the splendour of her beauty, and as she held Masinissa's hand and begged him to give his word that she should not be surrendered to the Romans, her tone became one of blandishment rather than entreaty. A slave to passion like all his countrymen, the victor at once fell in love with his captive. He gave her his solemn assurance that he would do what she wished him to do and then retired into the palace. Here he considered in what way he could redeem his promise, and as he saw no practical way of doing so he allowed his passion to dictate to him as a method equally reckless and indecent. Without a moment's delay he made preparations for celebrating his nuptials on that very day, so that neither Laelius nor Scipio might be free to treat as a prisoner one who was now Masinissa's wife. When the marriage ceremony was over Laelius appeared on the scene, and, far from concealing his disapproval of what had been done, he actually attempted to drag her from her bridegroom's arms and send her with Syphax and the other prisoners to Scipio. However, Masinissa's remonstrances so far prevailed that it was left to Scipio to decide which of the two kings should be the happy possessor of Sophonisba. After Laelius had sent Syphax and the other prisoners away, he recovered, with Masinissa's aid, the remaining cities in Numidia which were still held by the king's garrisons.

[30.13]When the news arrived that Syphax was being brought into camp, the whole army turned out as though to watch a triumphal procession. The king himself, in chains, was the first to appear, he was followed by a crowd of Numidian nobles. As they passed the soldiers each in turn sought to magnify their victory by exaggerating the greatness of Syphax and the military reputation of his nation. "This is the king," they said, "whose greatness has been so far

acknowledged by the most powerful States in the world - Rome and Carthage - that Scipio left his army in Spain and sailed with two triremes to Africa to secure his alliance, whilst the Carthaginian Hasdrubal not only visited him in his kingdom, but even gave him his daughter in marriage. He has had the Roman and the Carthaginian commanders both in his power at the same time. As each side has sought peace and friendship from the immortal gods by sacrifices duly offered, so each side alike has sought peace and friendships from him. He was powerful enough to expel Masinissa from his kingdom, and he reduced him to such a condition that he owed his life to the report of his death and to his concealment in the forest, where he lived on what he could catch there like a wild beast." Amidst these remarks of the bystanders, the king was conducted to the headquarters tent. As Scipio compared the earlier fortunes of the man with his present condition and recalled to mind his own hospitable relations with him, the mutually pledged right hands, the political and personal bonds between them, he was greatly moved. Syphax, too, thought of these things, but they gave him courage in addressing his conqueror. Scipio questioned him as to his object in first denouncing his alliance with Rome and then starting an unprovoked war against her. He admitted that he had done wrong and behaved like a madman but his taking up arms against Rome was not the beginning of his madness, it was the last act. He first exhibited his folly, his utter disregard of all private ties and public obligations, when he admitted a Carthaginian bride into his house. The torches which illuminated these nuptials had set his palace in a blaze. That fury of a woman, that scourge, had used every endearment to alienate and warp his feelings, and would not rest till she had with her own impious hands armed him against his host and friend. However, broken and ruined as he was, he had this to console him in his misery - that pestilential fury had entered the household of his bitterest foe. Masinissa was not wiser or more consistent than he had been, his youth made him even less cautious; at all events that marriage proved him to be more foolish and headstrong.

[30.14] This was the language of a man animated, not only by hatred towards an enemy, but also by the sting of hopeless love, knowing as he did that the woman he loved was in the house of his rival. Scipio was deeply distressed at what he heard. Proof of the charges was found in the hurrying on of the nuptials almost amid the clash of

arms without consulting or even waiting for Laelius. Masinissa had acted with such precipitancy that the very first day he saw his prisoner he married her, and the rites were actually performed before the tutelary deities of his enemy's house. This conduct appeared all the more shocking to Scipio because when he himself was in Spain, young as he was, no captive girl had ever moved him by her beauty. Whilst he was thinking all this over, Laelius and Masinissa appeared. He extended the same gracious and friendly welcome to both, and in the presence of a large number of his officers addressed them in most laudatory terms. Then he took Masinissa quietly aside and spoke to him as follows: "I think, Masinissa, that you must have seen some good qualities in me when you went to Spain to establish friendly relations with me, and also when, afterwards, you trusted yourself and all your fortunes to me in Africa. Now, among all the virtues which attracted you there is none upon which I pride myself so much as upon my continence and the control of my passions. I wish, Masinissa, that you would add these to the other noble features of your own character. At our time of life we are not, believe me, so much in danger from armed foes as from the seductive pleasures which tempt us on every side. The man who has curbed and subjugated these by his self-control has won for himself greater glory and a greater victory than we have won over Syphax. The courage and energy you have displayed in my absence I have gladly dwelt upon and gratefully remember; the rest of your conduct I prefer that you should reflect upon when alone, rather than that I should make you blush by alluding to it. Syphax has been defeated and made prisoner under the auspices of the people of Rome, and this being so, his wife, his kingdom, his territory, his towns with all their inhabitants, whatever in short Syphax possessed, belong now to Rome as the spoils of war. Even if his wife were not a Carthaginian, if we did not know that her father is in command of the enemy's forces, it would still be our duty to send her with her husband to Rome, and leave it to the senate and people to decide the fate of one who is alleged to have estranged our ally and precipitated him in arms against us. Conquer your feelings and be on your guard against letting one vice mar the many good qualities you possess and sully the grace of all your services by a fault which is out of all proportion to its cause."

[30.15] On hearing this Masinissa blushed furiously and even shed tears. He said that he would comply with the general's wishes, and begged him to take into consideration, as far as he could, the pledge he had rashly given, for he had promised that he would not let her pass into any one's power. Then he left the headquarters tent and retired to his own in a state of distraction. Dismissing all his attendants he remained there some time, giving vent to continual sighs and groans which were quite audible to those outside. At last with a deep groan he called one of his slaves in whom he placed complete confidence and who had in his keeping the poison which kings usually have in reserve against the vicissitudes of Fortune. After mixing it in a cup he told him to take it to Sophonisba, and at the same time tell her that Masinissa would have gladly fulfilled the first promise that he made to his wife, but as those who have the power were depriving him of the right to do so, he was fulfilling the second - that she should not fall into the hands of the Romans alive. The thought of her father, her country, and the two kings who had wedded her would decide her how to act. When the servant came with the poison and the message to Sophonisba, she said, "I accept this wedding gift, no unwelcome one if my husband can do nothing more for his wife. But tell him that I should have died more happily had not my marriage bed stood so near my grave." The high spirit of these words was sustained by the fearless way in which, without the slightest sign of trepidation, she drank the potion. When the news reached Scipio he was afraid that the young man, wild with grief, would take some still more desperate step, so he at once sent for him, and tried to console him. at the same time gently censuring him for having atoned for one act of madness by committing another and making the affair more tragic than it need have been. The next day, with the view of diverting his thoughts, Scipio mounted the tribunal and ordered the assembly to be sounded. Addressing Masinissa as king and eulogising him in the highest possible terms, he presented him with a golden crown, curule chair, an ivory sceptre and also with a purple-bordered toga and a tunic embroidered with palms. He enhanced the value of these gifts by informing him that the Romans considered no honour more splendid than that of a triumph, and that no more magnificent insignia were borne by triumphing generals than those which the Roman people deemed Masinissa, alone of all foreigners, worthy to possess. Laelius was the next to be commended, he was presented with a golden crown. Other soldiers

received rewards according to their services. The honours which had had been conferred on the king went far to assuage his grief, and he was encouraged to hope for the speedy possession of the whole of Numidia now that Syphax was out of the way.

[30.16]Laelius was sent in charge of Syphax and the other prisoners to Rome, and envoys from Masinissa accompanied him. Scipio returned to his camp at Tyneta and completed the fortifications which he had commenced. The rejoicing of the Carthaginians over the temporary success of their naval attack was short-lived and evanescent, for when they heard of the capture of Syphax, on whom they had rested their hopes almost more than on Hasdrubal and his army, they completely lost heart. The war party could no longer gain a hearing and the senate sent the "Thirty Seniors" to Scipio to sue for peace. This body was the most august council in their state and controlled to a very large extent even the senate itself. When they reached the headquarters tent in the Roman camp, they made a profound obeisance and prostrated themselves - a practice, I believe, which they brought with them from their original home. Their language corresponded to their abject posture. They made no excuse for themselves, but threw the responsibility for the war on Hannibal and his supporters. They craved pardon for a city which had been twice ruined by the recklessness of its citizens and could only be preserved in safety by the good-will of its enemy. What Rome sought, they pleaded, was the homage and submission of the vanquished, not their annihilation. They professed themselves ready to execute any commands which he chose to give. Scipio replied that he had come to Africa in the hope - a hope which his successes had confirmed - of taking back to Rome a complete victory, and not merely proposals for peace. Still, though victory was almost within his grasp, he would not refuse to grant terms of peace, that all nations might know that Rome was actuated by the spirit of justice, whether she was undertaking a war or putting an end to one.

He stated the terms of peace, which were the surrender of all prisoners, deserters and refugees; the withdrawal of the armies from Italy and Gaul; the abandonment of all action in Spain; the evacuation of all the islands lying between Italy and Africa and the surrender of their entire navy with the exception of twenty vessels. They were also to provide 500,000 pecks of wheat and 300,000 of barley, but the actual amount of the money indemnity is doubtful. In some authors

I find 5000 talents, in others 5000 pounds of silver mentioned; some only say that double pay for the troops was demanded. "You will be allowed," he added, "three days to consider whether you will agree to peace on these terms. If you decide to do so, arrange an armistice with me, and send envoys to the senate in Rome." The Carthaginians were then dismissed. As their object was to gain time to allow of Hannibal's sailing across to Africa they resolved that no conditions of peace should be rejected, and accordingly they sent delegates to conclude an armistice with Scipio, and a deputation was also sent to Rome to sue for peace, the latter taking with them a few prisoners and deserters for the sake of appearance, in order that peace might more be readily granted.

[30.17]Several days previously Laelius arrived in Rome with Syphax and the Numidian prisoners. He made a report to the senate of all that had been done in Africa and there were great rejoicings at the present position of affairs and sanguine hopes for the future. After discussing the matter the senate decided that Syphax should be interned at Alba and that Laelius should stay in Rome until the Carthaginian delegates arrived. A four days' thanksgiving was ordered. On the adjournment of the House, P. Aelius, the praetor, forthwith convened a meeting of the Assembly, and mounted the rostrum, accompanied by C. Laelius. When the people heard that the armies of Carthage had been routed, a far-famed king defeated and made prisoner, and a victorious progress made throughout Numidia, they could no longer restrain their feelings and expressed their unbounded joy in shouts and other demonstrations of delight. Seeing the people in this mood the praetor at once gave orders for the sacristans to throw open the holy places throughout the City in order that the people might have the whole day for going round the shrines to offer up their adoration and thanksgivings to the gods.

The next day he introduced Masinissa's envoys to the senate. They first of all congratulated the senate upon Scipio's successes in Africa and then expressed thanks on behalf of Masinissa for Scipio's action in not only conferring upon him the title of king, but also in giving practical effect to it by restoring to him his ancestral dominion where now that Syphax was disposed of he would, if the senate so decided, reign free from all fear of opposition. He was grateful for the way in which Scipio had spoken of him before his officers and for the splendid insignia with which he had been honoured and which he

had done his best to prove himself worthy of and would continue to do so. They petitioned the senate to confirm by a formal decree the royal title and the other favours and dignities which Scipio had conferred upon him. And as an additional boon, Masinissa begged, if he was not asking too much, that they would release the Numidian prisoners who were under guard in Rome; that, he considered, would increase his prestige with his subjects. The reply given to the envoys was to the effect that the senate congratulated the king as much as themselves upon the successes in Africa; Scipio had acted rightly and in perfect order in recognising Masinissa as king, and the senators warmly approved of all he had done to meet Masinissa's wishes. They passed a decree that the presents which the envoys were to take to the king should comprise two purple cloaks with a golden clasp on each and two tunics embroidered with the laticlave; two richly caparisoned horses and a set of equestrian armour with cuirasses for each; two tents and military furniture such as the consuls are usually provided with. The praetor received instructions to see that these things were sent to the king. The envoys each received presents to the value of 5000 ases, and each member of their suite to the value of 1000 ases. Besides these, two suits of apparel were given to each of the envoys, and one to each of their suite and also to each of the Numidian prisoners who were to be restored to the king. During their stay in Rome a house was placed at their disposal and they were treated as guests of the State.

[30.18] During this summer P. Quintilius Varus the praetor and M. Cornelius the proconsul fought a regular engagement with Mago. The praetor's legions formed the fighting line; Cornelius kept his in reserve, but rode to the front and took command of one wing, the praetor leading the other, and both of them exhorted the soldiers to make a furious charge on the enemy. When they failed to make any impression upon them, Quintilius said to Cornelius, "As you see, the battle is progressing too slowly; the enemy finding themselves offering an unhoped-for resistance have steeled themselves against fear, there is danger of this fear passing into audacity. We must let loose a hurricane of cavalry against them if we want to shake them and make them give ground. Either, then, you must keep up the fighting at the front and I will bring the cavalry into action, or I will remain here and direct the operations of the first line while you launch the cavalry of the four legions against the enemy." The

proconsul left it to the praetor to decide what he would do. Quintilius, accordingly, accompanied by his son Marcus, an enterprising and energetic youth, rode off to the cavalry, ordered them to mount and sent them at once against the enemy. The effect of their charge was heightened by the battle-shout of the legions, and the hostile lines would not have stood their ground, had not Mago, at the first movement of the cavalry, promptly brought his elephants into action. The appearance of these animals, their trumpeting and smell so terrified the horses as to render the assistance of the cavalry futile. When engaged at close quarters and able to use sword and lance the Roman cavalryman was the better fighter, but when carried away by a frightened horse, he was a better target for the Numidian darts. As for the infantry, the twelfth legion had lost a large proportion of their men and were holding their ground more to avoid the disgrace of retreat than from any hope of offering effectual resistance. Nor would they have held it any longer if the thirteenth legion which was in reserve had not been brought up and taken part in the doubtful conflict. To oppose this fresh legion Mago brought up his reserves also. These were Gauls, and the hastati of the eleventh legion had not much trouble in putting them to rout. They then closed up and attacked the elephants who were creating confusion in the Roman infantry ranks. Showering their darts upon them as they crowded together, and hardly ever failing to hit, they drove them all back upon the Carthaginian lines, after four had fallen, severely wounded.

At last the enemy began to give ground, and the whole of the Roman infantry, when they saw the elephants turning against their own side, rushed forward to increase the confusion and panic. As long as Mago kept his station in front, his men retreated slowly and in good order, but when they saw him fall, seriously wounded and carried almost fainting from the field, there was a general flight. The losses of the enemy amounted to 5000 men, and 22 standards were taken. The victory was a far from bloodless one for the Romans, they lost 2300 men in the praetor's army, mostly from the twelfth legion, and amongst them two military tribunes, M. Cosconius and M. Maevius. The thirteenth legion, the last to take part in the action, also had its losses; C. Helvius, a military tribune, fell whilst restoring the battle, and twenty-two members of the cavalry corps, belonging to distinguished families, together with some of the centurions were

trampled to death by the elephants. The battle would have lasted longer had not Mago's wound given the Romans the victory.

[30.19]Mago withdrew during the night and marching as rapidly as his wound would allow reached that part of the Ligurian coast which is inhabited by the Ingauni. Here he was met by the deputation from Carthage which had landed a few days previously at Genua. They informed him that he must sail for Africa at the earliest possible moment; his brother Hannibal, to whom similar instructions had been given, was on the point of doing so. Carthage was not in a position to retain her hold upon Gaul and Italy. The commands of the senate and the dangers threatening his country decided Mago's course, and moreover there was the risk of an attack from the victorious enemy if he delayed, and also of the desertion of the Ligurians who, seeing Italy abandoned by the Carthaginians, would go over to those in whose power they would ultimately be. He hoped too that a sea voyage would be less trying to his wound than the jolting of the march had been, and that everything would contribute to his recovery. He embarked his men and set sail, but he had not cleared Sardinia when he died of his wound. Some of his ships which had parted company with the rest when out at sea were captured by the Roman fleet which was lying off Sardinia. Such was the course of events in the Alpine districts of Italy. The consul C. Servilius had done nothing worth recording in Etruria, nor after his departure for Gaul. In the latter country he had rescued his father C. Servilius and also C. Lutatius after sixteen years of servitude, the result of their capture by the Boii at Tannetum. With his father on one side of him and Lutatius on the other he returned to Rome honoured more on personal than public grounds. A measure was proposed to the people relieving him from penalties for having illegally acted as tribune of the plebs and plebeian aedile while his father who had filled a curule chair was, unknown to him, still alive. When the bill of indemnity was passed he returned to his province. The consul Cnaeus Servilius in Bruttium received the surrender of several places, now that they saw that the Punic War was drawing to a close. Amongst these were Consentia, Aufugium, Bergae, Besidiae, Oriculum, Lymphaeum, Argentanum, and Clampetia. He also fought a battle with Hannibal in the neighbourhood of Croto, of which no clear account exists. According to Valerius Antias, 5000 of the enemy were killed, but either this is an unblushing fiction, or its omission in the annalists

shows great carelessness. At all events nothing further was done by Hannibal in Italy, for the delegation summoning him to Africa happened to arrive from Carthage about the same time as the one to Mago.

[30.20]It is said that he gnashed his teeth, groaned, and almost shed tears when he heard what the delegates had to say. After they had delivered their instructions, he exclaimed, "The men who tried to drag me back by cutting off my supplies of men and money are now recalling me not by crooked means but plainly and openly. So you see, it is not the Roman people who have been so often routed and cut to pieces that have vanquished Hannibal, but the Carthaginian senate by their detraction and envy. It is not Scipio who will pride himself and exult over the disgrace of my return so much as Hanno who has crushed my house, since he could do it in no other way, beneath the ruins for Carthage." He had divined what would happen, and had got his ships ready in anticipation. The unserviceable portion of his troops he got rid of by distributing them ostensibly as garrisons amongst the few towns which, more out of fear than loyalty, still adhered to him. The main strength of his army he transported to Africa. Many who were natives of Italy refused to follow him, and withdrew into the temple of Juno Lacinia, a shrine which up to that day had remained inviolate. There, actually within the sacred precinct, they were foully murdered. Seldom, according to the accounts, has any one left his native country to go into exile in such gloomy sorrow as Hannibal manifested when quitting the country of his foes. It is stated that he often looked back to the shores of Italy, accusing gods and men and even cursing himself for not having led his soldiers reeking with blood from the victorious field of Cannae straight to Rome. Scipio, he said, who whilst consul had never seen a Carthaginian in Italy, had dared to go to Africa, whereas he who had slain 100,000 men at Thrasymenus and at Cannae had wasted his strength round Casilinum and Cumae and Nola. Amid these accusations and regrets he was borne away from his long occupation of Italy.

[30.21]The news of Mago's departure reached Rome at the same time as that of Hannibal. The joy with which the intelligence of this twofold relief was received was, however, chastened by the fact that their generals had, through lack of either courage or strength, failed to detain them, though they had received express instructions from

the senate to that effect. There was also a feeling of anxiety as to what the issue would be now that the whole brunt of the war fell upon one army and one commander. Just at this time, a commission arrived from Saguntum bringing some Carthaginians who had landed in Spain for the purpose of hiring auxiliaries, and whom they had captured together with the money they had brought. 250 pounds of silver and 800 pounds of gold were deposited in the vestibule of the senate-house. After the men had been handed over and thrown into prison, the gold and silver was returned to the Saguntines. A vote of thanks was accorded to them, they were presented with gifts and also provided with ships in which to return to Spain. Following upon this incident some of the senior senators reminded the House of a great omission. "Men," they said, "are much more alive to their misfortunes than to the good things that come to them. We remember what panic and terror we felt when Hannibal descended upon Italy. What defeats and mourning followed! The enemy's camp was visible from the City - what prayers we one and all put up! How often in our councils have we heard the plaint of men lifting up their hands to heaven and asking whether the day would ever come when they would see Italy freed from an enemy's presence and flourishing in peace and prosperity! At last, after sixteen years of war, the gods have granted us this boon, and yet there are none who ask that thanks should be offered to them. Men do not receive even a present blessing with grateful hearts, much less are they likely to remember past benefits." A general shout arose from all parts of the House calling upon the praetor P. Aelius to submit a motion. It was decreed that a five days' thanksgiving should be offered at all the shrines and a hundred and twenty full-grown victims sacrificed. Laelius had by this time left Rome with Masinissa's envoys. On tidings being received that the Carthaginian peace deputation had been seen at Puteoli and would come on from there by land it was decided to recall Laelius in order that he might be present at the interview. Q. Fulvius Gillo, one of Scipio's staff-officers, conducted the Carthaginians to Rome. As they were forbidden to enter the City they were domiciled in a country house belonging to the State, and an audience of the senate was granted them in the temple of Bellona.

[30.22] Their speech to the senate was much the same as the one they had made to Scipio; they disclaimed any responsibility for the war on the part of the government and threw the entire blame on Hannibal.

"He had no orders from their senate to cross the Ebro, much less the Alps. It was on his own authority that he had made war not only on Rome but even on Saguntum; any one who took a just view would recognise that the treaty with Rome remained unbroken to that day. Their instructions accordingly were simply that they should ask to be allowed to continue on the same terms of peace as those which had been settled on the last occasion with C. Lutatius." In accordance with the traditional usage the praetor gave any one who wished permission to interrogate the envoys, and the senior members who had taken part in arranging the former treaties put various questions. The envoys, who were almost all young men, said that they had no recollection of what happened. Then loud protests broke out from all parts of the House; the senators declared that it was an instance of Punic treachery, men were selected to ask for a renewal of the old treaty who did not even remember its terms.

[30.23]The envoys were then ordered to withdraw and the senators were asked for their opinions. M. Livius advised that as the consul C. Servilius was the nearest he should be summoned to Rome in order that he might be present during the debate. No more important subject could be discussed than the one before them, and it did not seem to him compatible with the dignity of the Roman people that the discussion should take place in the absence of both the consuls. Q. Metellus, who had been consul three years previously and had also been Dictator, gave it as his opinion that as P. Scipio, after destroying their armies and devastating their land, had driven the enemy to the necessity of suing for peace, there was no one in the world who could form a truer judgment as to their real intention in opening negotiations than the man who was at that moment carrying the war up to the gates of Carthage. In his opinion they ought to take Scipio's advice and no other as to whether the offer of peace ought to be accepted or rejected. M. Valerius Laevinus, who had filled two consulships, declared that they had come as spies and not as envoys, and he urged that they should be ordered to leave Italy and escorted by a guard to their ships, and that written instructions should be sent to Scipio not to relax hostilities. Laelius and Fulvius supported this proposal and stated that Scipio thought that the only hope of peace lay in Mago and Hannibal not being recalled, but the Carthaginians would adopt every subterfuge whilst waiting for their generals and their armies, and would then continue the war, ignoring treaties

however recent, and in defiance of all the gods. These statements led the senate to adopt Laevinus' proposal. The envoys were dismissed with no prospect of peace and the curtest of replies.

[30.24] The consul Cnaeus Servilius, fully persuaded that the credit of restoring peace in Italy was due to him, and that it was he who had driven Hannibal out of the country, followed the Carthaginian commander to Sicily, intending to sail from there to Africa. When this became known in Rome the senate decided that the praetor should write to him and inform him that the senate thought it right that he should remain in Italy. The praetor said that Servilius would pay no attention to a letter from him, and on this it was resolved to appoint P. Sulpicius Dictator, and he by virtue of his superior authority recalled the consul to Italy. The Dictator spent the remainder of the year in visiting, accompanied by M. Servilius, his Master of the Horse, the different cities of Italy which had fallen away from Rome during the war, and holding an enquiry in each case. During the armistice a hundred transports carrying supplies and escorted by twenty warships were despatched from Sardinia by Lentulus the praetor and reached Africa without any damage either from the enemy or from storms. Cnaeus Octavius sailed from Sicily with two hundred transports and thirty warships, but was not equally fortunate. He had a favourable voyage until he was almost within sight of Africa, when he was becalmed; then a south-westerly wind sprang up which scattered his ships in all directions. Thanks to the extraordinary efforts of the rowers against the adverse waves, Octavius succeeded in making the Promontory of Apollo. The greater part of the transports were driven to Aegimurus, an island which forms a breakwater to the bay on which Carthage is situated and about thirty miles distant from the city. Other were carried up to the city itself as far as the *Aquae Calidae* ("hot-springs"). All this was visible from Carthage, and a crowd gathered from all parts of the city in the forum. The magistrates convened the senate; the people who were in the vestibule of the senate-house protested against so much booty being allowed to slip out of their hands and out of their sight. Some objected that this would be a breach of faith whilst peace negotiations were going on, others were for respecting the truce which had not yet expired. The popular assembly was so mixed up with the senate that they almost formed one body, and they unanimously decided that Hasdrubal should proceed to Aegimurum

with fifty ships of war and pick up the Roman ships which were scattered along the coast or in the harbours. Those transports which had been abandoned by their crews at Aegimurum were towed to Carthage, and subsequently others were brought in from Aquae Calidae.

[30.25]The envoys had not yet come back from Rome, and it was not known whether the senate had decided for peace or for war. What did most to arouse Scipio's indignation was the fact that all hopes of peace were destroyed and all respect for the truce flouted by the very men who had asked for a truce and were suing for peace. He at once sent L. Baebius, M. Servilius and L. Fabius to Carthage to protest. As they were in danger of ill-treatment from the mob and saw that they might be prevented from returning, they requested the magistrates who had protected them from violence to send ships to escort them. Two triremes were supplied to them, and when they reached the mouth of the Bagradas, from which the Roman camp was visible, the ships returned to Carthage. The Carthaginian fleet was lying off Utica, and whether it was in consequence of a secret message from Carthage, or whether Hanno, who was in command, acted on his own responsibility without the connivance of his government, in any case, three quadriremes from the fleet made a sudden attack upon the Roman quinquereme as it was rounding the promontory. They were, however, unable to ram it owing to its superior speed, and its greater height prevented any attempt to board it. As long as the missiles lasted, the quinquereme made a brilliant defence, but when these failed nothing could have saved it but the nearness of the land and the numbers of men who had come down from the camp to the shore to watch. The rowers drove the ships on to the beach with their utmost strength; the vessel was wrecked, but the passengers escaped uninjured. Thus, by one misdeed after another, all doubt was removed as to the truce having been broken when Laelius and the Carthaginians arrived on their return from Rome. Scipio informed them that in spite of the fact that the Carthaginians had broken not only the truce which they had pledged themselves to observe, but even the law of nations in their treatment of the envoys, he should himself take no action in their case which would be inconsistent with the traditional maxims of Rome or contrary to his own principles. He then dismissed them and prepared to resume operations. Hannibal was now nearing the land and he ordered a sailor to climb the mast

and find out what part of the country they were making for. The man reported that they were heading for a ruined sepulchre. Hannibal regarding it as an evil omen ordered the pilot to sail past the place and brought up the fleet at Leptis, where he disembarked his force.

[30.26]The above-described events all happened during this year, the subsequent ones belong to the year following when M. Servilius the Master of the Horse and Tiberius Claudius Nero were the consuls. Towards the close of the year a deputation came from the Greek cities in alliance with us to complain that their country had been devastated and the envoys who had been sent to demand redress were not allowed to approach Philip. They also brought information that 4000 men under Sopater had sailed for Africa to assist the Carthaginians, taking a considerable sum of money with them. The senate decided to send to Philip and inform him that they regarded these proceedings as a violation of the treaty. C. Terentius Varro, C. Mamilius and M. Aurelius were entrusted with this mission, and they were furnished with three quinqueremes. The year was rendered memorable by an enormous fire, in which the houses on the Clivus Publicius were burnt to the ground, and also by a great flood. Food, however, was extremely cheap, for not only was the whole of Italy open, now that it was left in peace, but a great quantity of corn had been sent from Spain, which the curule aediles, M. Valerius Falto and M. Fabius Buteo, distributed to the people, ward by ward, at four ases the peck. The death occurred this year of Quintus Fabius Maximus at a very advanced age, if it be true, as some authorities assert, that he had been augur for sixty-two years. He was a man who deserved the great surname he bore, even if he had been the first to bear it. He surpassed his father in his distinctions, and equalled his grandfather Rullus. Rullus had won more victories and fought greater battles, but his grandson had Hannibal for an opponent and that made up for everything. He was held to be cautious rather than energetic, and though it may be a question whether he was naturally slow in action or whether he adopted these tactics as especially suitable to the character of the war, nothing is more certain than that, as Ennius says, "one man by his slowness restored the State." He had been both augur and pontifex; his son Q. Fabius Maximus succeeded him as augur, Ser. Sulpicius Galba as pontifex. The Roman and the Plebeian Games were celebrated by the aediles M. Sextius Sabinus and Cnaeus Tremellius Flaccus, the former for one day, the latter were repeated

for three days. These two aediles were elected praetors together with C. Livius Salinator and C. Aurelius Cotta. Authorities are divided as to who presided over the elections, whether the consul C. Servilius did so or whether, owing to his being detained in Etruria by the conspiracy trials which the senate had ordered him to conduct, he named a Dictator to preside.

[30.27] In the beginning of the following year the consuls M. Servilius and Tiberius Claudius convened the senate in the Capitol to decide the allocation of the provinces. As they both wanted Africa they were anxious to ballot for that province and for Italy. Mainly, however, owing to the efforts of Q. Metellus, nothing was decided about Africa; the consuls were instructed to arrange with the tribunes of the plebs for a vote of the people to be taken as to whom they wished to conduct the war in Africa. The tribes were unanimously in favour of P. Scipio. In spite of this the senate decreed that the two consuls should ballot, and Africa was drawn by Ti. Claudius, who was to take across a fleet of fifty vessels - all quinquereemes - and exercise the same powers as Scipio. Etruria fell to M. Servilius. C. Servilius who had held that province had his command extended in case the senate should require his presence in Rome. The praetors were distributed as follows: M. Sextius received Gaul and P. Quintilius Varus was to hand over two legions which he had there; C. Livius was to hold Bruttium with the two legions which P. Sempronius had commanded there the year before; Cnaeus Tremellius was sent to Sicily and took over the two legions from P. Villius Tappulus, the praetor of the previous year; Villius in the capacity of propraeor was furnished with twenty warships and 1000 men for the protection of the Sicilian coast; M. Pomponius was to send 1500 men to Rome in the twenty remaining ships. The City jurisdiction passed into the hands of C. Aurelius Cotta. The other commands were unchanged. Sixteen legions were considered sufficient this year for the defence of the dominion of Rome. In order that all things might be undertaken and carried out with the favour of the gods, it was decided that before the consuls took the field they should celebrate the Games and offer the sacrifices which T. Manlius the Dictator had vowed during the consulship of M. Claudius Marcellus and T. Quinctius, if the republic should maintain its position unimpaired for five years. The Games were celebrated in the Circus, the celebration lasting four days, and the victims vowed to the several deities were duly sacrificed.

[30.28]All through this time there was a growing tension of feeling, hopes and fears alike were becoming stronger. Men could not make up their minds whether they had more to rejoice over in the fact that at the end of sixteen years Hannibal had finally evacuated Italy and left the unchallenged possession of it to Rome, or more to fear from his having landed in Africa with his military strength unimpaired. "The seat of danger," they said, "is changed, but not the danger itself. Quintus Fabius, who has just died, foretold how great the struggle would be when he declared in oracular tones that Hannibal would be a more formidable foe in his own country than he had been on alien soil. Scipio has not to do with Syphax, whose subjects are undisciplined barbarians and whose army was generally led by Statorius, who was little more than a camp menial, nor with Syphax's elusive father-in-law, Hasdrubal nor with a half-armed mob of peasants hastily collected from the fields. It is Hannibal whom he has to meet, who was all but born in the headquarters of his father, that bravest of generals; reared and brought up in the midst of arms, a soldier whilst still a boy, and when hardly out of his teens in high command. He has passed the prime of his manhood in victory after victory and has filled Spain and Gaul and Italy from the Alps to the southern sea with memorials of mighty deeds. The men he is leading are his contemporaries in arms, steeled by innumerable hardships such as it is hardly credible that men can have gone through, bespattered, times without number, with Roman blood, laden with spoils stripped from the bodies, not of common soldiers only, but even of commanders-in-chief. Scipio will meet many on the field of battle who with their own hands have slain the praetors, the commanders, the consuls of Rome, and who are now decorated with mural and vallarian wreaths after roaming at will through the camps and cities of Rome which they captured. All the fasces borne before Roman magistrates today are not so many in number as those which Hannibal might have had borne before him, taken on the field of battle when the commander-in-chief was slain." By dwelling on such gloomy prognostications they increased their fears and anxieties. And there was another ground for apprehension. They had been accustomed to seeing war going on first in one part of Italy and then in another without much hope of its being soon brought to a close. Now, however, all thoughts were turned on Scipio and Hannibal, they seemed as though purposely pitted against each other for a final and decisive struggle. Even those who felt the greatest confidence in

Scipio and entertained the strongest hopes that he would be victorious became more nervous and anxious as they realised that the fateful hour was approaching. The Carthaginians were in a very similar mood. When they thought of Hannibal and the greatness of the deeds he had done they regretted that they had sued for peace, but when they reflected that they had been twice worsted in the open field, that Syphax was a prisoner, that they had been driven out of Spain and then out of Italy, and that all this was the result of one man's resolute courage, and that man Scipio, they dreaded him as though he had been destined from his birth to be their ruin.

[30.29].Hannibal had reached Hadrumentum where he remained a few days for his men to recover from the effects of the voyage, when breathless couriers announced that all the country round Carthage was occupied by Roman arms. He at once hurried by forced marches to Zama. Zama is a five days' march from Carthage. The scouts whom he had sent forward to reconnoitre were captured by the Roman outposts and conducted to Scipio. Scipio placed them in charge of the military tribunes and gave orders for them to be taken round the camp where they were to look at everything they wished to see without fear. After asking them whether they had examined all to their satisfaction, he sent them back with an escort to Hannibal. The report they gave was anything but pleasant hearing for him, for as it happened Masinissa had on that very day come in with a force of 6000 infantry and 4000 cavalry. What gave him most uneasiness was the confidence of the enemy which he saw too clearly was not without good grounds. So, although he had been the cause of the war, though his arrival had upset the truce and diminished the hope of any peace being arranged, he still thought that he would be in a better position to obtain terms if he were to ask for peace while his strength was still unbroken than after a defeat. Accordingly he sent a request to Scipio to grant him an interview. Whether he did this on his own initiative or in obedience to the orders of his government I am unable to say definitely. Valerius Antius says that he was defeated by Scipio in the first battle with a loss of 12,000 killed and 1700 taken prisoners, and that after this he went in company with ten delegates to Scipio's camp. However this may be, Scipio did not refuse the proposed interview, and by common agreement the two commanders advanced their camps towards each other that they might meet more easily. Scipio took up his position not far from the

city of Naragarra on ground which, in addition to other advantages, afforded a supply of water within range of missiles from the Roman lines. Hannibal selected some rising ground about four miles away, a safe and advantageous position, except that water had to be obtained from a distance. A spot was selected midway between the camps, which, to prevent any possibility of treachery, afforded a view on all sides.

[30.30].When their respective escorts had withdrawn to an equal distance, the two leaders advanced to meet each other, each accompanied by an interpreter - the greatest commanders not only of their own age but of all who are recorded in history before their day, the peers of the most famous kings and commanders that the world had seen. For a few moments they gazed upon one another in silent admiration. Hannibal was the first to speak. "If," he said, "Destiny has so willed it that I, who was the first to make war on Rome and who have so often had the final victory almost within my grasp, should now be the first to come to ask for peace, I congratulate myself that Fate has appointed you, above all others, as the one from whom I am to ask it. Amongst your many brilliant distinctions this will not be your smallest title to fame, that Hannibal, to whom the gods have given the victory over so many Roman generals, has yielded to you, that it has fallen to your lot to put an end to a war which has been more memorable for your defeats than for ours. This is indeed the irony of fortune, that after taking up arms when your father was consul, and having him for my opponent in my first battle, it should be his son to whom I come unarmed to ask for peace. It would have been far better had the gods endowed our fathers with such a disposition that you would have been contented with the sovereignty of Italy, whilst we were contented with Africa. As it is, even for you, Sicily and Sardinia are no adequate compensation for the loss of so many fleets, so many armies, and so many splendid generals. But it is easier to regret the past than to repair it. We coveted what belonged to others, consequently we had to fight for our own possessions; not only has war assailed you in Italy and us in Africa, but you have seen the arms and standards of an enemy almost within your gates and on your walls while we hear in Carthage the murmur of the Roman camp. So the thing which we detest most of all, which you would have wished for before everything, has actually come about, the question of peace is raised when your fortunes are in the

ascendant. We who are most concerned in securing peace are the ones to propose it, and we have full powers to treat, whatever we do here our governments will ratify. All we need is a temper to discuss things calmly. As far as I am concerned, coming back to a country which I left as a boy, years and a chequered experience of good and evil fortune have so disillusioned me that I prefer to take reason rather than Fortune as my guide. As for you, your youth and unbroken success will make you, I fear, impatient of peaceful counsels. It is not easy for the man whom Fortune never deceives to reflect on the uncertainties and accidents of life. What I was at Thrasymenus and at Cannae, that you are today. You were hardly old enough to bear arms when you were placed in high command, and in all your enterprises, even the most daring, Fortune has never played you false. You avenged the deaths of your father and your uncle, and that disaster to your house became the occasion of your winning a glorious reputation for courage and filial piety. You recovered the lost provinces of Spain after driving four Carthaginian armies out of the country. Then you were elected consul, and whilst your predecessors had hardly spirit enough to protect Italy, you crossed over to Africa, and after destroying two armies and capturing and burning two camps within an hour, taking the powerful monarch Syphax prisoner, and robbing his dominions and ours of numerous cities you have at last dragged me away from Italy after I had kept my hold upon it for sixteen years. It is quite possible that in your present mood you should prefer victory to an equitable peace; I, too, know the ambition which aims at what is great rather than at what is expedient; on me, too, a fortune such as yours once shone. But if in the midst of success the gods should also give us wisdom, we ought to reflect not only on what has happened in the past but also upon what may happen in the future. To take only one instance, I myself am a sufficient example of the fickleness of fortune. Only the other day I had placed my camp between your city and the Anio and was advancing my standards against the walls of Rome - here you see me, bereaved of my two brothers, brave soldiers and brilliant generals as they were, in front of the walls of my native place which is all but invested, and begging on behalf of my city that it may be spared the fate with which I have threatened yours. The greater a man's good fortune the less ought he to count upon it. Success attends you and has deserted us, and this will make peace all the more splendid to you who grant it; to us who ask for it it is a stern necessity rather than an

honourable surrender. Peace once established is a better and safer thing than hoping for victory; that is in your hands, this in the hands of the gods. Do not expose so many years' good fortune to the hazard of a single hour. You think of your own strength, but think too of the part which fortune plays and the even chances of battle. On both sides there will be swords and men to use them, nowhere does the event less answer expectation than in war. Victory will not add so much to the glory which you can now win by granting peace, as defeat will take away from it. The chances of a single hour can annihilate all the honours you have gained and all you can hope for. If you cement a peace, P. Cornelius, you are master of all, otherwise you will have to accept whatever fortune the gods send you. M. Atilius Regulus on this very soil would have afforded an almost unique instance of the success which waits on merit, had he in the hour of victory granted peace to our fathers when they asked for it. But as he would set no bounds to his prosperity, nor curb his elation at his good fortune, the height to which he aspired only made his fall the more terrible.

"It is for him who grants peace, not for him who seeks it, to name the terms, but perhaps it may not be presumptuous in us to assess our own penalty. We consent to everything remaining yours for which we went to war - Sicily, Sardinia, Spain and all the islands that lie between Africa and Italy. We Carthaginians, confined within the shores of Africa, are content, since such is the will of the gods, to see you ruling all outside our frontiers by sea and land as your dominions. I am bound to admit that the lack of sincerity lately shown in the request for peace and in the non-observance of the truce justified your suspicions as to the good faith of Carthage. But, Scipio, the loyal observance of peace depends largely upon the character of those through whom it is sought. I hear that your senate have sometimes even refused to grant it because the ambassadors were not of sufficient rank. Now it is Hannibal who seeks it, and I should not ask for it if I did not believe it to be advantageous to us, and because I believe it to be so I shall keep it inviolate. As I was responsible for beginning the war and as I conducted it in a way which no one found fault with until the gods were jealous of my success, so I shall do my utmost to prevent any one from being discontented with the peace which I shall have been the means of procuring."

[30.31]To these arguments the Roman commander made the following reply: "I was quite aware, Hannibal, that it was the hope of

your arrival that led the Carthaginians to break the truce and cloud all prospect of peace. In fact, you yourself admit as much, since you are eliminating from the terms formerly proposed all that has not already been long in our power. However, as you are anxious that your countrymen should realise what a great relief you are bringing them, I must make it my care that they shall not have the conditions they formerly agreed to struck out today as a reward for their perfidy. You do not deserve to have the old proposals still open and yet you are seeking to profit by dishonesty! Our fathers were not the aggressors in the war for Sicily, nor were we the aggressors in Spain, but the dangers which threatened our Mamertine allies in the one case and the destruction of Saguntum in the other made our case a righteous one and justified our arms. That you provoked the war in each case you yourself admit, and the gods bear witness to the fact; they guided the former war to a just and righteous issue, and they are doing and will do the same with this one. As for myself, I do not forget what weak creatures we men are; I do not ignore the influence which Fortune exercises and the countless accidents to which all our doings are liable. Had you of your own free will evacuated Italy and embarked your army before I sailed for Africa and then come with proposals for peace, I admit that I should have acted in a high-handed and arbitrary spirit if I had rejected them. But now that I have dragged you to Africa like a reluctant and tricky defendant I am not bound to show you the slightest consideration. So then, if in addition to the terms on which peace might have been concluded previously, there is the further condition of an indemnity for the attack on our transports and the ill-treatment of our envoys during the armistice, I shall have something to lay before the councils. If you consider this unacceptable. then prepare for war as you have been unable to endure peace." Thus, no understanding was arrived at and the commanders rejoined their armies. They reported that the discussion had been fruitless, that the matter must be decided by arms, and the result left to the gods.

[30.32]On their return to their camps, the commanders-in-chief each issued an order of the day to their troops. "They were to get their arms ready and brace up their courage for a final and decisive struggle; if success attended them they would be victors not for a day only but for all time; they would know before the next day closed whether Rome or Carthage was to give laws to the nations. For not

Africa and Italy only - the whole world will be the prize of victory. Great as is the prize, the peril in case of defeat will be as great. "For no escape lay open to the Romans in a strange and unknown land; and Carthage was making her last effort, if that failed, her destruction was imminent. On the morrow they went out to battle - the two most brilliant generals and the two strongest armies that the two most powerful nations possessed - to crown on that day the many honours they had won, or for ever lose them. The soldiers were filled with alternate hopes and fears as they gazed at their own and then at the opposing lines and measured their comparative strength with the eye rather than the mind, cheerful and despondent in turn. The encouragement which they could not give to themselves their generals gave them in their exhortations. The Carthaginian reminded his men of their sixteen years' successes on Italian soil, of all the Roman generals who had fallen and all the armies that had been destroyed, and as he came to each soldier who had distinguished himself in any battle, he recounted his gallant deeds. Scipio recalled the conquest of Spain and the recent battles in Africa and showed up the enemies' confession of weakness, since their fears compelled them to sue for peace and their innate faithlessness prevented them from abiding by it. He turned to his own purpose the conference with Hannibal, which being private allowed free scope for invention. He drew an omen and declared that the gods had vouchsafed the same auspices to them as those under which their fathers fought at the Aegates. The end of the war and of their labours, he assured them, had come; the spoils of Carthage were in their hands, and the return home to their wives and children and household gods. He spoke with uplifted head and a face so radiant that you might suppose he had already won the victory.

[30.33]Then he drew up his men, the hastati in front, behind them the principes, the triarii closing the rear. He did not form the cohorts in line before their respective standards, but placed a considerable interval between the maniples in order that there might be space for the enemy elephants to be driven through without breaking the ranks. Laelius, who had been one of his staff-officers and was now by special appointment of the senate acting as quaestor, was in command of the Italian cavalry on the left wing, Masinissa and his Numidians being posted on the right. The velites, the light infantry of those days, were stationed at the head of the lanes between the

columns of maniples with instructions to retire when the elephants charged and shelter themselves behind the lines of maniples, or else run to the right and left behind the standards and so allow the monsters to rush on to meet the darts from both sides. To make his line look more menacing Hannibal posted his elephants in front. He had eighty altogether, a larger number, than he had ever brought into action before. Behind them were the auxiliaries, Ligurians and Gauls, with an admixture of Balearics and Moors. The second line was made up of Carthaginians and Africans together with a legion of Macedonians. A short distance behind these were posted his Italian troops in reserve. These were mainly Bruttians who had followed him from Italy more from the compulsion of necessity than of their own free will. Like Scipio, Hannibal covered his flanks with his cavalry, the Carthaginians on the right, the Numidians on the left.

Different words of encouragement were required in an army composed of such diverse elements, where the soldiers had nothing in common, neither language nor custom nor laws nor arms nor dress, nor even the motive which brought them into the ranks. To the auxiliaries he held out the attraction of the pay which they would receive, and the far greater inducement of the booty they would secure. In the case of the Gauls he appealed to their instinctive and peculiar hatred of the Romans. The Ligurians, drawn from wild mountain fastnesses, were told to look upon the fruitful plains of Italy as the rewards of victory. The Moors and Numidians were threatened by the prospect of being under the unbridled tyranny of Masinissa. Each nationality was swayed by its hopes or fears. The Carthaginians had placed before their eyes, their city walls, their homes, their fathers' sepulchres, their wives and children, the alternative of either slavery and destruction or the empire of the world. There was no middle course, they had either everything to hope for or everything to fear. Whilst the commander-in-chief was thus addressing the Carthaginians, and the officers of the various nationalities were conveying his words to their own people and to the aliens mingled with them mostly through interpreters, the trumpets and horns of the Romans were sounded and such a clangor arose that the elephants, mostly those in front of the left wing, turned upon the Moors and Numidians behind them. Masinissa had no difficulty in turning this disorder into flight and so clearing the Carthaginian left of its cavalry. A few of the animals, however, showed no fear and

were urged forward upon the ranks of velites, amongst whom, in spite of the many wounds they received, they did considerable execution. The velites, to avoid being trampled to death, sprang back to the maniples and thus allowed a path for the elephants, from both sides of which they rained their darts on the beasts. The leading maniples also kept up a fusillade of missiles until these animals too were driven out of the Roman lines on to their own side and put the Carthaginian cavalry, who were covering the right flank, to flight. When Laelius saw the enemy's horse in confusion he at once took advantage of it.

[30.34]When the infantry lines closed, the Carthaginians were exposed on both flanks, owing to the flight of the cavalry, and were losing both confidence and strength. Other circumstances, too, seemingly trivial in themselves but of considerable importance in battle, gave the Romans an advantage. Their cheers formed one united shout and were therefore fuller and more intimidating; those of the enemy, uttered in many languages, were only dissonant cries. The Romans kept their foothold as they fought and pressed the enemy by the sheer weight of their arms and bodies; on the other side there was much more agility and nimbleness of foot than actual fighting strength. As a consequence, the Romans made the enemy give ground in their very first charge, then pushing them back with their shields and elbows and moving forward on to the ground from which they had dislodged them, they made a considerable advance as though meeting with no resistance. When those in the rear became aware of the forward movement they too pressed on those in front thereby considerably increasing the weight of the thrust. This retirement on the part of the enemy's auxiliaries was not checked by the Africans and Carthaginians who formed the second line. In fact, so far were they from supporting them that they too fell back, fearing lest the enemy, after overcoming the obstinate resistance of the first line, should reach them. On this the auxiliaries suddenly broke and turned tail; some took refuge within the second line, others, not allowed to do so, began to cut down those who refused to admit them after refusing to support them. There were now two battles going on, the Carthaginians had to fight with the enemy, and at the same time with their own troops. Still, they would not admit these maddened fugitives within their ranks, they closed up and drove them to the wings and out beyond the fighting ground, fearing lest their

fresh and unweakened lines should be demoralised by the intrusion of panic-struck and wounded men.

The ground where the auxiliaries had been stationed had become blocked with such heaps of bodies and arms that it was almost more difficult to cross it than it had been to make way through the masses of the enemy. The hastati who formed the first line followed up the enemy, each man advancing as best he could over the heaps of bodies and arms and the slippery bloodstained ground until the standards and maniples were all in confusion. Even the standards of the principes began to sway to and fro when they saw how irregular the line in front had become. As soon as Scipio observed this he ordered the call to be sounded for the hastati to retire, and after withdrawing the wounded to the rear he brought up the principes and triarii to the wings, in order that the hastati in the centre might be supported and protected on both flanks. Thus the battle began entirely afresh, as the Romans had at last got to their real enemies, who were a match for them in their arms, their experience and their military reputation, and who had as much to hope for and to fear as themselves. The Romans, however, had the superiority in numbers and in confidence, since their cavalry had already routed the elephants and they were fighting with the enemy's second line after defeating his first.

[30.35]Laelius and Masinissa, who had followed up the defeated cavalry a considerable distance, now returned from the pursuit at the right moment and attacked the enemy in the rear. This at last decided the action. The enemy were routed, many were surrounded and killed in action, those who dispersed in flight over the open country were killed by the cavalry who were in possession of every part. Above 20,000 of the Carthaginians and their allies perished on that day and almost as many were made prisoners. 132 standards were secured and 11 elephants. The victors lost 1500 men. Hannibal escaped in the melee with a few horsemen and fled to Hadrumentum. Before quitting the field he had done everything possible in the battle itself and in the preparation for it. Scipio himself acknowledged and all experienced soldiers agreed that Hannibal had shown singular skill in the disposition of his troops. He placed his elephants in front so that their irregular charge and irresistible force might make it impossible for the Romans to keep their ranks and maintain the order of their formation, in which their strength and confidence mainly lay. Then he posted the mercenaries in front of his Carthaginians, in order that

this motley force drawn from all nations, held together not by a spirit of loyalty but by their pay, might not find it easy to run away. Having to sustain the first onset they might wear down the impetuosity of the enemy, and if they did nothing else they might blunt his sword by their wounds. Then came the Carthaginian and African troops, the mainstay of his hopes. They were equal in all respects to their adversaries and even had the advantage inasmuch as they would come fresh into action against a foe weakened by wounds and fatigue. As to the Italian troops, he had his doubts as to whether they would turn out friends or foes and withdrew them consequently into the rearmost line. After giving this final proof of his great abilities, Hannibal fled, as has been stated, to Hadrumetum. From here he was summoned to Carthage, to which city he returned thirty-six years after he had left it as a boy. He told the senate frankly that he had lost not a battle merely but the whole war, and that their only chance of safety lay in obtaining peace.

[30.36]From the battlefield Scipio proceeded at once to storm the enemies' camp, where an immense quantity of plunder was secured. He then returned to his ships, having received intelligence that P. Lentulus had arrived off Utica with 50 warships and 100 transports loaded with supplies of every kind. Laelius was sent to carry the news of the victory to Scipio, who, thinking that the panic in Carthage ought to be increased by threatening the city on all sides, ordered Octavius to march the legions thither overland while he himself sailed from Utica with his old fleet strengthened by the division which Lentulus had brought, and steered for the harbour of Carthage. As he was approaching it he was met by a vessel hung with bands of white wool and branches of olive. In it there were the ten foremost men of the State, who, on Hannibal's advice, had been sent as an embassy to sue for peace. As soon as they were near the stern of the general's vessel they held up the suppliant emblems, and made imploring appeals to Scipio for his pity and protection. The only answer vouchsafed them was that they were to go to Tunis, as Scipio was about to move his army to that place. Keeping on his course he entered the harbour of Carthage in order to survey the situation of the city, not so much for the purpose of acquiring information as of discouraging the enemy. He then sailed back to Utica and recalled Octavius thither also. As the latter was on his way to Tunis he was informed that Vermina, the son of Syphax, was coming to the aid of

the Carthaginians with a force consisting mainly of cavalry. Octavius attacked the Numidians whilst on the march with a portion of his infantry and the whole of his cavalry. The action took place on December 17, and soon ended in the utter rout of the Numidians. As they were completely surrounded by the Roman cavalry all avenues of escape were closed; 15,000 were killed and 1200 taken prisoners, 1500 horses were also secured and 72 standards. The prince himself escaped with a few horsemen. The Romans then reoccupied their old position at Tunis, and here an embassy consisting of thirty delegates had an interview with Scipio. Though they adopted a much humbler tone than on the previous occasion, as indeed their desperate condition demanded, they were listened to with much less sympathy on account of their recent breach of faith. At first the council of war, moved by a righteous indignation, were in favour of the complete destruction of Carthage. When, however, they reflected on the greatness of the task and the length of time which the investment of so strong and well-fortified a city would occupy, they felt considerable hesitation. Scipio himself too was afraid that his successor might come and claim the glory of terminating the war, after the way had been prepared for it by another man's toils and dangers. So there was a unanimous verdict in favour of peace being made.

[30.37]The next day the envoys were again summoned before the council and severely taken to task for their want of truth and honesty, and they were admonished to lay to heart the lesson taught by their numerous defeats and to believe in the power of the gods and the sanctity of oaths. The conditions of peace were then stated to them. They were to be a free State, living under their own laws; all the cities, all the territory and all the frontiers that they had held before the war they were to continue to hold, and the Romans would on that day cease from all further depredations. They were to restore to the Romans all the deserters, refugees and prisoners, to deliver up their warships, retaining only ten triremes and all their trained elephants, at the same time undertaking not to train any more. They were not to make war either within or beyond the frontiers of Africa without the permission of Rome. They were to restore all his possessions to Masinissa and make a treaty with him. Pending the return of the envoys from Rome they were to supply corn and pay to the auxiliaries in the Roman army. They were also to pay a war indemnity of 10,000

talents of silver, the payment to be in equal annual instalments, extending over fifty years. One hundred hostages were to be handed over, to be selected by Scipio between the ages of fourteen and thirty years. Finally, he undertook to grant them an armistice if the transports which had been seized during the previous truce were restored with all that they contained. Otherwise there would be no armistice, nor any hopes of peace.

When the envoys brought these terms back and laid them before the Assembly, Gisgo came forward and protested against any proposals for peace. The populace, alike opposed to peace and incapable of war, were giving him a favourable hearing when Hannibal, indignant at such arguments being urged at such a crisis, seized him and dragged him by main force off the platform. This was an unusual sight in a free community, and the people were loud in their disapproval. The soldier, taken aback by the free expression of opinion on the part of his fellow-citizens, said, "I left you when I was nine years old, and now after thirty-six years' absence I have returned. The art of war which I have been taught from my boyhood, first as a private soldier and then in high command, I think I am fairly well acquainted with. The rules and laws and customs of civic life and of the forum I must learn from you." After this apology for his inexperience, he discussed the terms of peace and showed that they were not unreasonable and that their acceptance was a necessity. The greatest difficulty of all concerned the transports seized during the armistice, for nothing was to be found but the ships themselves, and any investigation would be difficult, as those who would be charged were the opponents of peace. It was decided that the ships should be restored and that in any case search should be made for the crews. It was left to Scipio to put a value on whatever else was missing and the Carthaginians were to pay the amount in cash. According to some writers, Hannibal went down to the coast straight from the battlefield, and going on board a ship which was in readiness, set sail immediately for the court of King Antiochus, and when Scipio insisted before all else upon his surrender, he was told that Hannibal was not in Africa.

[30.38]After the return of the envoys to Scipio the quaestors received instructions to make an inventory from the public registers of all the government property in the transports, and all the private property was to be notified by the owners. Twenty-five thousand pounds of

silver were required to be paid down as an equivalent for the pecuniary value, and a three months' armistice granted to the Carthaginians. A further stipulation was made that as long as the armistice was in force, they should not send envoys to any place but Rome, and if any envoys came to Carthage they were not to allow them to leave until the Roman commander had been informed of the object of their visit. The Carthaginians envoys were accompanied to Rome by L. Veturius Philo, M. Marcius Ralla and L. Scipio the commander-in-chief's brother. During this time the supplies which arrived from Sicily and Sardinia made provisions so cheap that the traders left the corn for the sailors in return for its freight. The first news of the resumption of hostilities by Carthage created considerable uneasiness in Rome. Tiberius Claudius was ordered to take a fleet without loss of time to Sicily and from there to Africa; the other consul was ordered to remain in the City until the position of affairs in Africa was definitely known. Tib. Claudius was extremely slow in getting his fleet ready and putting out to sea, for the senate had decided that Scipio rather than he, though consul, should be empowered to fix the terms on which peace should be granted. The general alarm at the tidings from Africa was increased by rumours of various portents. At Cumae the sun's disk was seen to diminish in size and there was a shower of stones; in the district of Veliternum the ground subsided and immense caverns were formed in which trees were swallowed up; at Aricia the forum and the shops round it were struck by lightning, as were also portions of the walls of Frusino and one of the gates; there was also a shower of stones on the Palatine. The latter portent was expiated, according to the traditional usage, by continuous prayer and sacrifice for nine days, the others by sacrifice of full-grown victims. In the middle of all these troubles there was an extraordinarily heavy rainfall which was also regarded as supernatural. The Tiber rose so high that the Circus was flooded and arrangements were made to celebrate the Games of Apollo outside the Colline Gate at the temple of Venus Erucina. On the actual day, however, the sky suddenly cleared and the procession which had started for the Colline Gate was recalled and conducted to the Circus as it was announced that the water had subsided. The return of the solemn spectacle to its proper place added to the public joy and also to the number of spectators.

[30.39]At last the consul took his departure from the City. He was, however, caught in a violent storm between the ports of Cosa and Loretum, and was in the greatest danger, but he succeeded in making the harbour of Populonia, where he remained at anchor till the tempest wore itself out. From there he sailed to Elba, then on to Corsica and from there to Sardinia. Here, whilst rounding the Montes Insani, he was caught in a much more violent storm and off a much more dangerous coast. His fleet was scattered, many of his vessels were dismantled and sprang leaks, some were totally wrecked. With his fleet thus tempest-tossed and shattered he found shelter at Caralis. Whilst he was repairing his ships here winter overtook him. His year of office expired, and as he received no extension of command he brought his fleet back to Rome in a private capacity. Before leaving for his province M. Servilius named C. Servilius Dictator in order to avoid being recalled to conduct the elections. The Dictator appointed P. Aelius Paetus Master of the Horse. In spite of various dates being fixed for the elections the weather prevented them from being held. Consequently, when the magistrates went out of office on March 14 no new ones had been appointed and the republic was without any curule magistrates. The pontifex T. Manlius Torquatus died this year and his place was filled by C. Sulpicius Galba. The Roman Games were celebrated three times by the curule aediles L. Licinius Lucullus and Q. Fulvius. Some of the secretaries and messengers of the aediles were found guilty on the evidence of witnesses of abstracting money from the aediles' chest and Lucullus was seriously compromised in the matter. The plebeian aediles, P. Aelius Tubero and L. Laetorius, were found to have been irregularly appointed and resigned office. Before this happened, however, they had celebrated the Plebeian Games and the festival of Jupiter and had also placed in the Capitol three statues made out of the silver paid in fines. The Dictator and the Master of the Horse were authorised by the senate to celebrate the Games in honour of Ceres.

[30.40]On the arrival of the Roman commissioners from Africa, simultaneously with that of the Carthaginians, the senate met at the temple of Bellona. L. Veturius Philo reported that Carthage had made her last effort, a battle had been fought with Hannibal and an end had at last been put to this disastrous war. This announcement was received by the senators with huge delight, and Veturius reported a

further success though comparatively an unimportant one, namely the defeat of Vermina, the son of Syphax. He was ordered to go to the Assembly and make the people sharers in the good news. Amidst universal congratulations all the temples in the City were thrown open and public thanksgivings were ordered for three days. The envoys from Carthage and those from Philip who had also arrived, requested an audience of the senate. The Dictator, at the instance of the senate, informed them that the new consuls would grant them one. The elections were then held and Cnaeus Cornelius Lentulus and P. Aelius Paetus were made consuls. The praetors elected were M. Junius Pennus, to whom the City jurisdiction was allotted; M. Valerius Falto, to whom Bruttium fell; M. Fabius Buteo, who received Sardinia, and P. Aelius Tubero, to whom the ballot gave Sicily. As to the consuls' provinces it was agreed that nothing should be done until Philip's envoys and those from Carthage had obtained an audience. No sooner was one war at an end than there was the prospect of another commencing. The consul Cnaeus Lentulus was keenly desirous of obtaining Africa as his province; if the war should continue, he looked forward to an easy victory; if it were coming to an end he was anxious to have the glory of terminating so great a struggle. He gave out that he would not allow any business to be transacted until Africa had been decreed to him as his province. His colleague being a moderate and sensible man gave way, he saw that to attempt to wrest Scipio's glory from him would be not only unjust but hopeless. Two of the tribunes of the plebs - Q. Minucius Thermus and Manlius Acilius Glabrio - declared that Cnaeus Cornelius was attempting to do what Tiberius Claudius had failed to do, and that after the senate had authorised the question of the supreme command in Africa to be referred to the Assembly, the thirty-five tribes had unanimously decreed it to Scipio. After numerous debates both in the senate and in the assembly it was finally settled to leave the matter to the senate. It was arranged that the senators should vote on oath, and their decision was that the consuls should come to a mutual understanding, or failing that, should resort to the ballot, as to which of them should have Italy and which should take command of the fleet of fifty vessels. The one to whom the fleet was assigned was to sail to Sicily, and if it proved impossible to make peace with Carthage, he was to proceed to Africa. The consul was to act by sea; Scipio, retaining his full powers, was to conduct the campaign on land. If the terms of peace were agreed upon the

tribunes of the plebs were to ask the people whether it was their will that peace should be granted by the consul or by Scipio. And also if the victorious army was to be brought away from Africa, they were to decide who should bring it. Should the people resolve that peace was to be concluded through Scipio and that he was also to bring the army back, then the consul was not to sail for Africa. The other consul, who had Italy for his province, was to take over two legions from the praetor M. Sextius.

[30.41] Scipio received an extension of his command and retained the armies he had in Africa. The two legions in Bruttium which had been under C. Livius were transferred to the praetor M. Valerius Falto and the two legions in Sicily under Cnaeus Tremellius were to be taken over by the praetor P. Aelius. The legion in Sardinia, commanded by the propraetor P. Lentulus, was assigned to M. Fabius. M. Servilius, the consul of the previous year, was continued in command of his two legions in Etruria. With regard to Spain, L. Cornelius Lentulus and L. Manlius Acidinus had been there for some years and the consuls were to arrange with the tribunes to ask the Assembly to decide who should command in Spain. The general appointed was to form one legion of Romans out of the two armies and fifteen cohorts of Latin allies, with which to hold the province, and L. Cornelius and L. Manlius were to bring the old soldiers home. Whichever consul received Africa as his province was to select fifty ships out of the two fleets, i.e., the one which Cnaeus Octavius was commanding in African waters and the one with which P. Villius was guarding the Sicilian seaboard. P. Scipio was to keep the forty warships which he had. Should the consul wish Cn. Octavius to continue in command of his fleet, he would take rank as propraetor; if he gave the command to Laelius, then Octavius was to leave for Rome and bring back the ships which the consul did not want. Ten warships were also assigned to M. Fabius for Sardinia. In addition to the above-mentioned troops the consuls were ordered to raise two City legions so that there might be fourteen legions and one hundred ships of war at the disposal of the republic for the year.

[30.42] Then the admission of the embassies from Philip and the Carthaginians was discussed. It was decided that the Macedonians should be introduced first. Their address dealt with various points. They began by disclaiming all responsibility for the depredations on the friendly countries of which the Roman envoys had complained

to the king. Then they themselves brought charges against the allies of Rome and a much more serious one against M. Aurelius, one of the three envoys, who they said had stayed behind and after raising a body of troops commenced hostilities against them in violation of treaty rights, and fought several engagements with their commanders. They ended with a demand that the Macedonians with their general Sopater who had served as mercenaries under Hannibal and were then prisoners in chains should be restored to them. In reply, M. Furius, who had been sent from Macedonia by Aurelius to represent him, pointed out that Aurelius had certainly been left behind, but it was for the purpose of preventing the allies of Rome from being driven to secede to the king in consequence of the injuries and depredations from which they were suffering. He had not overstepped their frontiers; he had made it his business to see that no hordes of plunderers crossed those frontiers with impunity. Sopater, who was one of the purple-clad nobles who stood near the throne and was related to the monarch, had recently been sent to Africa to assist Hannibal and Carthage with money and also with a force of 4000 Macedonians.

On being questioned as to these matters the Macedonians gave unsatisfactory and evasive replies, and consequently the answer they received from the senate was anything but favourable. They were told that their king was looking for war, and if he went on as he was doing, he would very soon find it. He had been guilty of a twofold breach of treaty, for he had committed wanton aggression on the allies of Rome by hostile arms and he had also aided the enemies of Rome with men and money. Scipio was acting rightly and legitimately in treating those taken in arms against Rome as enemies and keeping them in chains. M. Aurelius also was acting in the interests of the State - and the senate thanked him for it - when he afforded armed protection to the allies of Rome since treaty rights were powerless for their defence. With this stern reply the Macedonian envoys were dismissed. Then the Carthaginians were called in. As soon as their age and rank were recognised, for they were quite the foremost men in the State, the senators remarked that now it was really a question of peace. Conspicuous amongst them all was Hasdrubal, on whom his countrymen had bestowed the sobriquet of "Haedus." He had always been an advocate of peace and an opponent of the Barcine party. This gave his words additional weight when he disavowed all

responsibility for the war on behalf of his government and fastened it on a few ambitious and grasping individuals.

His speech was discursive and eloquent. He repudiated some of the charges, others he admitted lest unabashed denials of established facts might lead to less consideration being shown. He warned the senators to use their good fortune in a spirit of moderation and self-restraint. "If," he continued, "the Carthaginians had listened to Hanno and myself and had been willing to take advantage of their opportunity, they would have dictated the terms of peace which now they are seeking from you. Seldom are good fortune and good sense granted to men at the same time. What makes Rome invincible is the fact that her people do not lose their sound judgment in the hour of prosperity. And indeed it would be a matter for surprise were it otherwise, for those to whom good fortune is a novelty go mad with unrestrained delight because they are unused to it, but to you Romans the joy of victory is a usual, I might almost say a commonplace experience. It is by clemency towards the conquered more than by conquest itself that you have extended your dominion." The others spoke in language more calculated to evoke compassion. They reminded their audience of the powerful and influential position from which Carthage had fallen. Those, they said, who lately held almost the whole world subject to their arms had nothing now left to them but their city walls. Confined within these they saw nothing on land or sea which owned their sway. Even their city and their hearths and homes they would only keep if the Roman people were willing to spare them; if not, they lost everything. As it became evident that the senators were moved with compassion, one of them, exasperated by the perfidy of the Carthaginians, is said to have called out, "By what gods will you swear to observe the treaty, since you have been false to those by whom you swore before?" "By the same as before," Hasdrubal replied, "since they visit their wrath on those who violate treaties."

[30.43]Whilst all were in favour of peace the consul Cnaeus Lentulus, who was in command of the fleet, prevented the House from passing any resolution. Thereupon, two tribunes of the plebs, Manius Acilius and Q. Minucius, at once brought the questions before the people: Was it their will and pleasure that the senate should pass a decree for the conclusion of peace with Carthage? Who was to grant the peace? and Who was to bring away the army from Africa? On the question

of peace all the tribes voted in the affirmative; they also made an order that Scipio should grant the peace and bring the army home. In pursuance of this decision the senate decreed that P. Scipio should, in agreement with the ten commissioners, make peace with the people of Carthage on such terms as he thought right. On this the Carthaginians expressed their thanks to the senators, and begged that they might be allowed to enter the City and converse with their fellow-countrymen who were detained as State-prisoners. These were members of the nobility, some of them their own friends and relations, and others there were for whom they had messages from their friends at home. When this was arranged they made a further request that they might be allowed to ransom any of the prisoners whom they wished. They were told to furnish the names, and they gave in about two hundred. The senate then passed a resolution that a commission should be appointed to take back to P. Scipio in Africa two hundred of the prisoners whom the Carthaginians had selected and to inform him that if peace were established he was to restore them to the Carthaginians without ransom. When the fetials received orders to proceed to Africa for the purpose of striking the treaty they requested the senate to define the procedure. The senate accordingly decided upon this formula: "The fetials shall take with them their own flints and their own herbs; when a Roman praetor orders them to strike the treaty they shall demand the sacred herbs from him." The herbs given to the fetials are usually taken from the Citadel. The Carthaginian envoys were at length dismissed and returned to Scipio. They concluded peace with him on the terms mentioned above, and delivered up their warships, their elephants, the deserters and refugees and 4000 prisoners including Q. Terentius Calleo, a senator. Scipio ordered the ships to be taken out to sea and burnt. Some authorities state that there were 500 vessels, comprising every class propelled by oars. The sight of all those vessels suddenly bursting into flames caused as much grief to the people as if Carthage itself were burning. The deserters were dealt with much more severely than the fugitives; those belonging to the Latin contingents were beheaded, the Romans were crucified.

[30.44]The last time peace was concluded with Carthage was in the consulship of Q. Lutatius and A. Manlius, forty years previously. Twenty-three years afterwards the war began in the consulship of P. Cornelius and Tiberius Sempronius. It ended in the consulship of

Cnaeus Cornelius and P. Aelius Paetus, seventeen years later. Tradition tells of a remark which Scipio is said to have frequently made to the effect that it was owing to the jealous ambition of Tiberius Claudius and afterwards to that of Cnaeus Cornelius that the war did not end with the destruction of Carthage. Carthage found a difficulty in meeting the first instalment of the war indemnity as her treasury was exhausted. There was lamentation and weeping in the senate and in the middle of it all Hannibal is said to have been seen smiling. Hasdrubal Haedus rebuked him for his mirth amid the nation's tears. "If," Hannibal replied, "you could discern my inmost thoughts as plainly as you can tell the expression of my countenance you would easily discover that this laughter which you find fault with does not proceed from a merry heart but from one almost demented with misery. All the same, it is very far from being so ill-timed as those foolish and misplaced tears of yours. The proper time to weep was when we were deprived of our arms, when our ships were burnt, when we were interdicted from all war beyond our frontiers. That is the wound that will prove fatal. There is not the slightest reason for supposing that the Romans are consulting your peace and quietness. No great State can remain quiet; if it has no enemy abroad it finds one at home, just as excessively strong men, whilst seemingly safe from outside mischief, fall victims to the burden of their own strength. Of course we only feel public calamities so far as they affect us personally, and nothing in them gives us a sharper pang than the loss of money. When the spoils of victory were being dragged away from Carthage when you saw yourselves left naked and defenceless amidst an Africa in arms, nobody uttered a groan; now because you have to contribute to the indemnity from your private fortunes you lament as loudly as though you were present at your country's funeral. I greatly fear that you will very soon find that it is the least of your misfortunes which you are shedding tears over today." Such was the way in which Hannibal spoke to the Carthaginians. Scipio summoned his troops to assembly, and in the presence of the whole army rewarded Masinissa by adding to his ancestral realm the town of Cirta and the other cities and districts which had belonged to the dominion of Syphax and had passed under the rule of Rome. Cnaeus Octavius received instructions to take the fleet to Sicily and hand it over to the consul Cnaeus Cornelius. Scipio told the Carthaginian envoys to start for Rome in order that the arrangements he had made in consultation

with the ten commissioners might receive the sanction of the senate and the formal order of the people.

[30.45]As peace was now established on land and sea Scipio embarked his army and sailed to Lilybaeum. From there he sent the greater part of his army on in the ships, whilst he himself travelled through Italy. The country was rejoicing quite as much over the restoration of peace as over the victory he had won, and he made his way to Rome through multitudes who poured out from the cities to do him honour, and crowds of peasants who blocked the roads in the country districts. The triumphal procession in which he rode into the City was the most brilliant that had ever been seen. The weight of silver which he brought into the treasury amounted to 123,000 pounds. Out of the booty he distributed forty ases to each soldier. Syphax had died shortly before at Tibur whither he had been transferred from Alba, but his removal, if it detracted from the interest of the spectacle, in no way dimmed the glory of the triumphing general. His death, however, provided another spectacle, for he received a public funeral. Polybius, an authority of considerable weight, says that this king was led in the procession. Q. Terentius Culleo marched behind Scipio wearing the cap of liberty, and in all his after-life honoured as was meet the author of his freedom. As to the sobriquet of Africanus, whether it was conferred upon him by the devotion of his soldiers or by the popular breath, or whether as in the recent instances of Sylla the Fortunate and Pompey the Great it originated in the flattery of his friends, I cannot say for certain. At all events, he was the first commander-in-chief who was ennobled by the name of the people he had conquered. Since his time men who have won far smaller victories have in imitation of him left splendid inscriptions on their busts and illustrious names to their families.

BOOK 31: ROME AND MACEDON

[31.1]I, too, feel as much relief in having reached the end of the Punic War as if I had taken a personal part in its toils and dangers. It ill befits one who has had the courage to promise a complete history of Rome to find the separate sections of such an extensive work fatiguing. But when I consider that the sixty-three years from the beginning of the First Punic War to the end of the Second take up as

many books as the four hundred and eighty-seven years from the foundation of the City to the consulship of Appius Claudius under whom the First Punic War commenced, I see that I am like people who are tempted by the shallow water along the beach to wade out to sea; the further I progress, the greater the depth, as though it were a bottomless sea, into which I am carried. I imagined that as I completed one part after another the task before me would diminish; as it is, it almost becomes greater. The peace with Carthage was very soon followed by war with Macedonia. There is no comparison between them as regards the critical nature of the contest, or the personality of the commander or the fighting quality of the troops. But the Macedonian war was, if anything, more noteworthy owing to the brilliant reputation of the former kings, the ancient fame of the nation and the vast extent of its dominion when it held sway over a large part of Europe and a still larger part of Asia. The war with Philip which had commenced some ten years previously had been suspended for the last three years, and both the war and its cessation were due to the action of the Aetolians. The peace with Carthage now left the Romans free. They were angry with Philip for his attacking the Aetolians and the other friendly States in Greece while he was nominally at peace with Rome, and also for his having given assistance in both men and money to Hannibal and Carthage. He had ravaged the Athenian territory and driven the inhabitants into the city, and it was their request for help which decided the Romans to recommence the war.

[31.2]] Just about the same time envoys arrived from King Attalus and also from Rhodes with the information that Philip was trying to gain the States of Asia Minor. The reply made to both deputations was that the situation in Asia was engaging the attention of the senate. The question of war with Macedonia was referred to the consuls, who were at the time in their respective provinces. In the meanwhile, C. Claudius Nero, M. Aemilius Lepidus and P. Sempronius Tuditanus were sent on a mission to Ptolemy, king of Egypt, to announce the final defeat of Hannibal and the Carthaginians and to thank the king for having remained a staunch friend to Rome at a critical time, when even her nearest allies deserted her. They were further to request him, in case Philip's aggressions compelled them to declare war against him, that he would maintain his old friendly attitude towards the Romans. During this period P. Aelius, the consul who was

commanding in Gaul, learnt that the Boii, prior to his arrival, had been raiding the territories of friendly tribes. He hastily raised a force of two legions in view of this disturbance and strengthened it with four cohorts from his own army. This force, thus hurriedly collected, he entrusted to C. Ampius, a prefect of allies, and ordered him to march through the canton of Umbria called Sapinia and invade the country of the Boii. He himself marched over the mountains by an open road. Ampius crossed the enemy's frontier, and after devastating his country without meeting any resistance, he selected a position at the fortified post of Mutilum as a suitable place for cutting the corn which was now ripe. He commenced the task without previously examining the neighbourhood or posting armed parties in sufficient strength to protect the foragers, who had laid aside their weapons and were intent on their work. Suddenly he and his foragers were surprised by the Gauls who appeared on all sides. The panic and disorder extended to the men on guard; 7000 men who were dispersed through the cornfields were killed, amongst them C. Ampius himself, the rest fled to the camp. The following night the soldiers, as they had no regular commander, decided to act for themselves, and leaving most of their possessions behind made their way through almost impassable forests to the consul. Beyond ravaging the Boian country and making a league with the Ligurian Ingauni the consul did nothing worth mentioning in his province before his return to Rome.

[31.3]At the first meeting of the senate after his return there was a general demand that the action of Philip and the grievances of the friendly States should take precedence of all other business. The question was at once put in a crowded House and a decree was made that the consul P. Aelius should send the man whom he thought best, with full command to take over the fleet which Cn. Octavius was bringing back from Africa and proceed to Macedonia. He selected M. Valerius Laevinus, who was sent with the rank of propractor. Laevinus took thirty-eight of Octavius' ships which were lying at anchor off Vibo and with these he sailed for Macedonia. He was met by M. Aurelius, who gave him details about the strength of the land and sea forces which the king had got together and the extent to which he was securing armed assistance not only from the cities on the mainland, but also from the islands in the Aegean, partly by his own personal influence, partly through his agents. Aurelius pointed

out that the Romans would have to display far greater energy in the prosecution of this war, or else Philip, encouraged by their slackness, would venture on the same enterprise which Pyrrhus, whose kingdom was considerably smaller, had ventured on before. It was decided that Aurelius should send this information in a despatch to the consuls and the senate.

[31.4] Towards the close of the year the question was brought up as to the holdings which were to be assigned to the veteran soldiers who had served with Scipio in Africa. The senator decreed that M. Junius, the City praetor, should at his discretion appoint ten commissioners for the purpose of measuring and allotting that portion of the Samnite and Apulian territory which had become State domain. The commissioners were P. Servilius, Q. Caecilius Marcellus, the two Servilii, Caius and Marcus - who were known as "The Twins" - the two Hostilii Catones, Lucius and Aulus, P. Villius Tappulus, M. Fulvius Flaccus, P. Aelius Paetus and T. Quinctius Flaminius. The elections were conducted by the consul P. Aelius. The consuls-elect were P. Sulpicius Galba and C. Aurelius Cotta. The new praetors were Q. Minucius Rufus, L. Furius Purpureo, Q. Fulvius Gillo and C. Sergius Plancus. The Roman Scenic Games were celebrated this year with unusual splendour by the curule aediles, L. Valerius Flaccus and T. Quinctius Flaminius, and were repeated for a second day. They also distributed to the people with strict impartiality and to the general satisfaction a vast quantity of corn which Scipio had sent from Africa. It was sold at four ases the modius. The Plebeian Games were also exhibited on three separate occasions by the aediles L. Apustius Fullo and Q. Minucius Rufus; the latter after serving his aedileship was one of the newly-elected praetors. The Festival of Jupiter was also celebrated.

[31.5] In the 551st year from the foundation of the City, during the consulship of P. Sulpicius Galba and C. Aurelius and within a few months of the conclusion of peace with Carthage, the war with King Philip began. On March 15, the day on which the consuls entered office, P. Sulpicius made this the first business before the senate. A decree was made that the consuls should sacrifice full-grown victims to those deities whom they might decide upon, and should offer up the following prayer: "May the will and purpose of the senate and people of Rome as regards the commonwealth and the entrance upon a new war have a prosperous and happy issue both for the Roman

people and for the Latin allies!" After the sacrifice and prayer the consuls were to consult the senate as to the policy to be pursued and the allocation of provinces. Just at this time the war-spirit was stimulated by the receipt of the despatches from M. Aurelius and M. Valerius Laevinus as well as by a fresh embassy from Athens which announced that the king was nearing their frontiers and would soon be master of their territory and of their city as well if Rome did not come to the rescue. The consuls reported the due performance of the sacrifices and the declaration of the augurs that the gods had listened to their prayer, for the victims had given favourable omens and portended victory, triumph, and an enlargement of the dominion of Rome. Then the despatches from Valerius and Aurelius were read and an audience given to the Athenian envoys. A resolution was passed by the senate that thanks be given to their allies for remaining loyal in spite of continual attempts to seduce them and even when threatened with a siege. With regard to giving active assistance the senate deferred a definite answer until the consuls had balloted for their provinces, and the one to whom the Macedonian province fell had submitted to the people the question of declaring war against Philip of Macedon.

[31.6] This province fell to P. Sulpicius, and he gave notice that he should propose to the Assembly that "owing to the lawless actions and armed attacks committed against the allies of Rome, it is the will and order of the Roman people that war be proclaimed against Philip, King of Macedonia, and against his people, the Macedonians." The other consul, Aurelius, received Italy for his province. Then the praetors balloted for their respective commands. C. Sergius Plancus drew the City; Q. Fulvius Gillo, Sicily; Q. Minucius Rufus, Bruttium, and L. Furius, Gaul. The proposed declaration of war against Macedonia was almost unanimously rejected at the first meeting of the Assembly. The length and exhausting demands of the late war had made men weary of fighting and they shrank from incurring further toils and dangers. One of the tribunes of the plebs, Q. Baebius, too, had adopted the old plan of abusing the patricians for perpetually sowing the seeds of fresh wars to prevent the plebeians from ever enjoying any rest. The patricians were extremely angry and the tribune was bitterly attacked in the senate, each of the senators in turn urging the consul to call another meeting of the Assembly to consider the proposal afresh and at the same time to rebuke the

people for their want of spirit and show them what loss and disgrace would be entailed by the postponement of that war.

[31.7]The Assembly was duly convened in the Campus Martius, and before the question was put to the vote, the consul addressed the centuries in the following terms: "You seem to be unaware, Quirites, that what you have to decide is not whether you will have peace or war; Philip will not leave you any option as to that, he is preparing war on an enormous scale both by land and sea. The only question is whether you will transport the legions into Macedonia or wait for the enemy in Italy. You have learnt by experience, if not before, at all events in the late Punic War, what a difference it makes which you decide upon. When Saguntum was besieged and our allies were imploring us for help, who doubts that if we had sent prompt assistance, as our fathers did to the Mamertines, we should have confined within the borders of Spain that war which, most disastrously for ourselves, we allowed through procrastination to enter Italy. Why, this very Philip had entered into an agreement with Hannibal through his agents and in his despatches that he would invade Italy, and there is not the smallest doubt that we kept him in Macedonia by sending Laevinus with a fleet to take the offensive against him. Are we hesitating to do now what we did then, when we had Hannibal for our enemy in Italy - now that Hannibal has been driven out of Italy and out of Carthage, and Carthage itself is completely vanquished? If we allow the king to make proof of our slackness by storming Athens as we allowed Hannibal to do by storming Saguntum, it will not be in five months - the time Hannibal took from Saguntum - but in five days after he sails from Corinth that he will set foot in Italy.

"Perhaps you do not put Philip on a par with Hannibal or consider the Macedonians equal to the Carthaginians. At all events you will consider him the equal of Pyrrhus. Equal, do I say? How greatly the one man surpasses the other, how superior is the one nation to the other! Epirus always has been and is today a very small accession to the kingdom of Macedonia. The whole of the Peloponnese is under the sway of Philip, not excepting even Argos, famous for the death of Pyrrhus, quite as much as for its ancient glory. Now compare our position. Consider the flourishing state of Italy when all those generals and armies were safe and sound which have been since swept away by the Punic War. And yet when Pyrrhus attacked it, he

shook it to its foundations and all but reached Rome itself in his victorious career! Not only did the Tarentines revolt from us and the whole of that coastal district of Italy called Magna Graecia, which you would naturally suppose would follow a leader of the same language and nationality as themselves, but the Lucanians, the Bruttians and the Samnites did the same. Do you suppose that if Philip landed in Italy, these nations would remain quiet and true to us? They showed their loyalty, I suppose, in the Punic War. No, those nations will never fall to revolt from us, unless there is no longer any one to whom they can revolt. If you had thought it too much to go to Africa you would have had Hannibal and his Carthaginians in Italy today. Let Macedonia rather than Italy be the seat of war, let it be the enemy's cities and fields that are devastated with fire and sword. We have learnt by this time that our arms are more potent and more successful abroad than they are at home. Go to the poll with the help of the gods, and confirm the decision of the senate. It is not your consul only who urges you to take this course, the immortal gods also bid you do it, for when I was offering up the sacrifices and praying that this war might end happily for the senate, for myself, for you, for our allies and Latin confederates, for our fleets and armies, the gods vouchsafed every cheering and happy omen."

[31.8]After this speech they separated for the voting. The result was in favour of the consul's proposal, they resolved on war. Thereupon, the consuls, acting on a resolution of the senate, ordered special prayers and supplications for three days, and at all the shrines intercessions were offered up that the war which the Roman people had ordered against Philip might have a happy and prosperous issue. The fetials were consulted by the consul as to whether it was necessary for the declaration of war to be conveyed personally to King Philip, or whether it would be sufficient if it were published in one of his frontier garrison towns. They declared that either mode of procedure would be correct. The senate left it to the consul to select at his discretion one of them, not being a member of the senate, to make the declaration of war. The next business was the formation of the armies for the consuls and praetors. The consuls were ordered to disband the old armies and, each of them, to raise two fresh legions. As the conduct of the new war, which was felt to be a very serious one, was entrusted to Sulpicius, he was allowed to reenlist as volunteers as many as he could out of the army which P. Scipio had

brought back from Africa, but on no account to compel any of the veterans to join against his will. The consuls were to give to each of the praetors, L. Furius Purpurio and Q. Minucius Rufus, 5000 men from the Latin contingents as an army of occupation for their provinces, the one in Gaul, the other in Bruttium. Q. Fulvius Gallo also was ordered to select men belonging to the Latin and allied contingents from the army which the consul P. Aelius had commanded, beginning with those who had seen the shortest service until he had made up a force of 5000 men. This army was for the defence of Sicily. M. Valerius Falto, who had had Campania for his province during the previous year, was to make a similar selection from the army in Sardinia, which province he was to take charge of as propraetor. The consuls received instructions to raise two legions in the City as a reserve to be sent wherever there was need for their services, as many of the Italian nationalities had taken the side of Carthage in the late war, and were seething with anger.

[31.9]In the midst of these preparations for war a deputation came from King Ptolemy to bring information that the Athenians had sought his aid against Philip. Although both States were allies of Rome, the king would not - so the deputies stated - send either fleet or army to Greece to protect or attack any one without the consent of Rome. If the Romans were at liberty to defend their allies he should remain quietly in his kingdom; if on the other hand the Romans preferred to remain inactive he would himself send such assistance as would easily protect the Athenians against Philip. The senate passed a vote of thanks to the king and assured the deputation that it was the intention of the Roman people to protect their allies; if the need arose they would point it out to the king, and they were fully aware that the resources of his kingdom would prove a steady and loyal support for their commonwealth. To each of the deputies the senate presented 5000 ases. While the consuls were raising troops and preparing for war, the citizens were occupied with religious observances, especially those which were usual when a fresh war began. The special intercessions and prayers at all the shrines had been duly offered, but that nothing might be omitted the consul to whom Macedonia was allotted was authorised to vow Games in honour of Jupiter and an offering to his temple. This matter was delayed through the action of the Pontifex Maximus, Licinius, who laid it down that no vow ought to be made unless the sum required

to discharge it was paid, because the money so appropriated could not be used in connection with the war, and ought to be at once set apart and not mixed up with other money. Unless this were done, the vow could not be duly discharged. Although the pontiff's authority and the reasons he gave had great weight, the consul was instructed to refer the question to the whole pontifical college as to whether a vow could be properly undertaken when the expense incurred was left uncertain. The pontiffs declared that it could, and would be made with even greater propriety under these conditions. The consul recited the words of the vow after the Pontifex Maximus in the same form in which vows to be discharged after an interval of five years were usually recited, the exception being that the senate was to determine the cost of its fulfilment at the time when it was discharged. Up to this time when the Games and offerings were vowed a definite sum had always been named; this was the first instance where the cost was not fixed at the time.

[31.10]Whilst all men's minds were turned to the Macedonian war, rumours suddenly arose of an outbreak of the Gauls, the last thing that was apprehended. The Insubres and Cenomani in conjunction with the Boii, who had induced the Celines and Ilvates and the other Ligurian tribes to join them, had taken up arms under Hamilcar, a Carthaginian general, who had held a command in Hasdrubal's army and had remained in the country. They had stormed and sacked Placentia and in their blind rage had destroyed most of the city by fire, hardly 2000 men being left amid the smoking ruins. Thence, crossing the Po, they advanced with the intention of sacking Cremona. Hearing of the disaster which had overtaken their neighbours the townsmen had time to close their gates and man their walls so that they might, at all events, be able to stand a siege and send a message to the Roman praetor before the final assault. I. Furius Purpureo was in charge of that province at the time, and acting under the resolution of the senate had disbanded his army, retaining only 5000 from the Latin and allied contingents. With this force he was encamped in the neighbourhood of Ariminum. In a despatch to the senate he described the serious condition of his province; of the two military colonies which had weathered the terrible storm of the Punic War one was taken and destroyed by the enemy and the other was being attacked. His own army could not render assistance to the colonists in their distress unless he was willing to expose his 5000

allied troops to be massacred by the 40,000 of the enemy - that number was under arms - and by incurring such a fatal disaster himself raise the courage of the enemy who were exulting over the destruction of a Roman colony.

[31.11]After the despatch had been read the senate decreed that the consul C. Aurelius should order his army to muster at Ariminum on the day which he had previously fixed for their muster in Etruria. If the state of public affairs allowed, he was to go in person to suppress the disturbance, otherwise, he was to send instructions to L. Furius requesting him, as soon as the legions reached him, to send his 5000 of the allied contingent to replace them in Etruria, and then raise the siege of Cremona. The senate also decided to send a mission to Carthage and to Masinissa in Numidia. Their instructions for Carthage were to inform the government that Hamilcar, one of their citizens who had come with either Hasdrubal's or Mago's army, had been left behind and in defiance of the treaty had persuaded the Gauls and Ligurians to take up arms against Rome. If they wished to remain at peace they must recall him and surrender him to the Romans. The commissioners were also to announce that the deserters had not all been given up, a great many of them were stated to be openly walking about in Carthage; it was the duty of the authorities to find them out and arrest them in order that they might be handed over in accordance with the treaty. These were their instructions for Carthage. To Masinissa they were to convey the senate's congratulations on his having recovered his ancestral kingdom and still more upon his having extended it by the annexation of the richest portion of Syphax's dominions. They were also to inform him that a war had been undertaken against Philip in consequence of his having lent the Carthaginians active assistance, and when Italy was wrapped in the flames of war he had inflicted injuries on the allies of Rome. She was thus compelled to send ships and armies to Greece, and by thus dividing her forces Philip was primarily the cause of the delay in sending an expedition to Africa. The commissioners were further to request Masinissa to assist in that war by sending a contingent of Numidian horse. Some splendid presents were placed in their charge for the king - gold and silver vases, a purple robe, a tunica palmata together with an ivory sceptre, also a toga praetexta together with a curule chair. They were instructed to assure him that if he required anything for the security

and extension of his kingdom and would intimate what he wanted, the Roman people would do their utmost to meet his wishes in return for the services he had rendered.

A deputation from Syphax's son, Vermina, also appeared before the senate. They made excuses for his mistakes on the ground of his youth and threw all the blame on the faithlessness of the Carthaginians. Masinissa had once been the enemy and had now become the friend of Rome; Vermina, too, they said, would make every effort not to be outdone in friendly offices to Rome either by Masinissa or by any one else. They ended by petitioning the senate to confer on him the title of "king, ally and friend." The reply which the deputation received was to the effect that "Syphax, his father, had suddenly without any reason become an enemy to the people of Rome after being their ally and friend, and that Vermina himself had commenced his military education by an attack on the Romans. He must therefore sue for peace before he could have any title to be styled 'king, ally and friend.' The Roman people were accustomed to confer that honourable distinction in return for great services which kings have rendered to them. The Roman envoys would shortly be in Africa and the senate would empower them to grant peace to Vermina on certain conditions, providing that he left the fixing of those conditions absolutely to the Roman people. If he wanted anything added or cancelled or altered in the terms he must make a fresh appeal to the senate." The men who were sent to conduct these negotiations were C. Terentius Varro, Sp. Lucretius and Cn. Octavius; and they had each a quinquereme placed at their disposal.

[31.12]A despatch was read in the House from Q. Minucius, the praetor commanding in Bruttium, in which he stated that money had been stolen by night from the treasury of Proserpine at Locri and there was no clue to the perpetrators of the crime. The senate were extremely angry at finding that acts of sacrilege were still going on and that not even the example of Pleminius, notorious alike for the guilt and the punishment which so swiftly followed, acted in any way as a deterrent. C. Aurelius was instructed to write to the praetor and tell him that the senate wished an enquiry to be made into the circumstances of the robbery on the same lines as the one which the praetor M. Pomponius had conducted three years previously. Whatever money was discovered was to be replaced, and the deficit made up; and should it be thought necessary expiatory sacrifices were

to be offered in accordance with the instructions of the pontiffs on the previous occasions. Their anxiety to atone for the violation of the temple was made all the keener by the simultaneous announcements of portents from numerous localities. In Lucania it was alleged that the heavens had been on fire; at Privernum the sun had been glowing red through the whole of a cloudless day; at the temple of Juno Sospita in Lanuvium a terrible noise was heard in the night. Numerous monstrous births were also reported amongst the Sabines a child was born of doubtful sex; another similar case was discovered where the child was already sixteen years old; at Frusino a lamb was yeaned with a head like a pig; at Sinuessa a pig was littered with a human head, and on the public domain-land in Lucania a foal appeared with five feet. These were all regarded as horrid and monstrous products of a nature which had gone astray to produce strange and hybrid growths; the hermaphrodites were looked upon as of especially evil omen and were ordered to be at once carried out to sea just as quite recently in the consulships of C. Claudius and M. Nero similar ill-omened births had been disposed of. At the same time the senate ordered the decemvirs to consult the Sacred Books about this portent. Following the instructions found there, they ordered the same ceremonies to be observed as on the occasion of its last appearance. A hymn was to be sung through the City by three choirs, each consisting of nine maidens, and a gift was to be carried to Queen Juno. The consul C. Aurelius saw that the instructions of the Keepers of the Sacred Books were carried out. The hymn in our fathers' days was composed by Livius, on this occasion by P. Licinius Tegula.

[31.13]When all the acts of expiation had been duly performed, and the sacrilege at Locri had been investigated by Q. Minucius, and the money, recovered from the sale of the goods of the guilty persons, had been replaced in the treasury, the consuls were now anxious to start for their provinces, but a delay arose. A number of persons had lent money to the State during the consulship of M. Valerius and M. Claudius, and the repayment of the third instalment was due this year. The consuls informed them that the money in the treasury would hardly meet the cost of the new war, which would have to be carried on with a large fleet and large armies and that there was no means of paying them for the present. They appealed to the senate and pleaded that if the State chose to use the money which was lent for the Punic

War to defray the cost of the Macedonian War also, and one war arose out of another, it would simply mean that their money would be confiscated in return for the service they had rendered as though it had really been an injury. The senate acknowledged that they had a grievance. The creditors' demands were just, but the State was unable to meet its liabilities and the senate decided upon a course which was fair to both sides and of practical utility. Many of the applicants had stated that there was land everywhere for sale and they wanted to become purchasers; the senate accordingly made a decree that they should have the option of taking any part of the public domain-land within fifty miles of the City. The consuls would value the land and impose a nominal tax of one as per jugerum as acknowledgment of its being public land, and when the State could pay its debts any of them who wished to have his money rather than the land could have it and restore the land to the people. They gladly accepted these terms, and the land thus occupied was called *trientabulus* because it was given in lieu of a third part of their loan.

[31.14]After the recital of the customary prayers in the Capitol P. Sulpicius was invested by his lictors with the *paludamentum* and left the City for Brundisium. Here he incorporated into his legions the veterans who had volunteered out of the African army, and also selected the vessels out of the fleet under Cn. Cornelius. Then he set sail, and the next day he landed in, Greece. Here he was met by an embassy from Athens who begged him to raise the siege which that city was undergoing. C. Claudius Cento was at once despatched thither with 20 warships and 1000 men. The king was not personally directing the siege, he was just then attacking Abydos, after trying his strength in naval encounters with the Rhodians and with Attalus, and in neither battle had he been successful. But his was not a nature to accept defeat quietly, and now that he had leagued himself with Antiochus, king of Syria, he was more determined on war than ever. They had agreed to divide the rich kingdom of Egypt between them, and on hearing of the death of Ptolemy they both prepared to attack it. The Athenians, who retain nothing of their ancient greatness but their pride, had become involved in hostilities with Philip through a quite unimportant incident. During the celebration of the Eleusinian Mysteries two young Acarnanians who had not been initiated entered the temple of Ceres with the rest of the crowd, quite unaware of the sacrilegious nature of their action. They were betrayed by the silly

questions which they asked, and were brought before the temple authorities. Though it was quite evident that they had sinned in ignorance, they were put to death as though guilty of a horrible crime. The Acarnanians reported this hostile and barbarous act to Philip and obtained his consent to their making war on Athens supported by a Macedonian contingent. Their army began by laying the land of Attica waste with fire and sword, after which they returned to Acarnania with plunder of every description. So far there was only anger and exasperation on both sides, subsequently, by a decree of the citizens, Athens made a formal declaration of war. For when King Attalus and the Rhodians who were following up Philip in his retreat to Macedonia had reached Aegina, the king sailed across to the Piraeus for the purpose of renewing and confirming his alliance with the Athenians. The whole body of the citizens came out to meet him with their wives and children; the priests in their sacred robes received him as he entered the city; even the gods themselves were almost summoned from their shrines to welcome him.

[31.15]The people were at once summoned to an assembly, in order that the king might lay his wishes before them. It was, however, thought to be more in accordance with his dignity that he should put what he wanted into writing, rather than let his blushes be called up by having to recount his services to the city or his modesty be shocked by the fulsome flattery of the applauding crowd. Accordingly he drew up a written statement which was read in the assembly, in which he enumerated the benefits he had conferred on their city and described his contest with Philip, and urged them in conclusion to take their part in the war while they had him and the Rhodians and, now especially, the Romans to support them. If they hung back now they would never have such an opportunity again. Then the envoys from Rhodes were heard; they had quite lately done a good turn for the Athenians, for they had recaptured and sent back to Athens four Athenian warships which the Macedonians had taken. War against Philip was unanimously decided upon. Extraordinary honours were paid to King Attalus and also to the Rhodians. A proposal was carried to add to the old ten tribes a new one to be called the Attalis tribe. The people of Rhodes were presented with a golden crown in recognition of their bravery, and the full citizenship was granted to them just they had previously granted it to the Athenians. After this Attalus rejoined his fleet at Aegina and the

Rhodians sailed to Cia, and from there made their way home through the Cyclades. All the islands joined them with the exception of Andros, Paros and Cythnos which were held by Macedonian garrisons. Attalus had sent messengers to Aetolia and was waiting for the envoys who were coming from there; their non-arrival kept him inactive for some time. He could not induce the Aetolians to take up arms, they were only too glad to remain at peace with Philip on any terms. But had he in conjunction with the Rhodians vigorously opposed Philip, they might have won the glorious title of Liberators of Greece. Instead of this, they allowed him to cross the Hellespont a second time and seize an excellent position in Thrace where he could concentrate his forces, and thus they gave fresh life to the war and surrendered the glory of bringing it to a close the Romans.

[31.16]Philip showed a more kingly spirit. Though he had not held his own against Attalus and the Rhodians he was not alarmed even at the prospect of a war with Rome. Philocles, one of his generals, was sent with a force of 2000 infantry and 200 cavalry to ravage the lands of the Athenians, and Heraclides was placed in charge of the fleet with instructions to sail for Maronea. Philip himself marched thither overland with 2000 men in light marching order, and took the place at the first assault. Aenos gave him a good deal of trouble, but he finally effected its capture through the treachery of Callimedes, who was holding the place for Ptolemy. Cypsela, Doriscos and Serrheum were taken in rapid succession and he then advanced to the Chersonese where Elaeus and Alopeconnesus voluntarily surrendered. Callipolis and Madytos fell through treachery; together with some other unimportant fortified places. The people of Abydos would not even admit his envoys and closed their gates against the king. The siege of this place detained Philip for a considerable time, and if Attalus and the Rhodians had shown the smallest energy they might have saved the place. Attalus sent only 300 men to assist in the defence and the Rhodians despatched one quadrireme out of their fleet which was lying at anchor off Tenedos. Later on, when they could hardly hold out any longer, Attalus himself sailed to Tenedos, and after raising their hopes by his approach did not afford his allies any assistance either by land or sea.

[31.17]The Abydenes in the first instance placed engines all along their walls and in this way not only prevented any approach by land, but also made the anchorage of the hostile ships unsafe. When,

however, a portion of the wall was battered into ruins and the enemies' mines had been carried up to an inner wall which the defenders had hastily constructed, they sent envoys to the king to arrange terms for the surrender of the city. They proposed that the Rhodian quadrireme with its crew and the contingent which Attalus had sent should be allowed to depart and that the inhabitants should be permitted to leave the city with simply the clothes they were wearing. Philip replied that there was not the slightest hope of peace unless they surrendered unconditionally. When this reply was brought back it created such an outburst of indignation and rage that the citizens formed the same frenzied resolution as the Saguntines had done in former years. They gave orders for all the matrons to be shut up in the temple of Diana, the freeborn boys and girls, even infants with their nurses to be collected in the gymnasium, all gold and silver to be taken to the forum, all costly apparel to be placed on board the vessels from Rhodes and Cyzicus which were lying in the harbour, and altars set up in the middle of the city, round which the priests were to be assembled with victims for sacrifice. Here a body of men, selected for the purpose, took an oath dictated to them by the priests, to carry out the desperate measure which had been decided upon. As soon as they saw that their comrades who were fighting in front of the levelled wall were all killed, they were to put the wives and children to death, throw the gold and silver and the apparel on board the ships into the sea and set fire wherever they possibly could to all the public buildings and private houses, and the most horrible curses were invoked on them if they broke their oath. Following them, all the men of military age solemnly swore that none should leave the battle alive, except as victor. So faithful were they to their oath and with such desperation did they fight, that before night could put an end to the battle, Philip withdrew from the conflict appalled by their frenzied courage. The leading citizens, to whom the more cruel part had been assigned, finding that there were only a few survivors, and they wounded and exhausted, sent the priests, wearing supplicatory fillets, as soon as it was light to Philip to make a surrender of the city.

[31.18]Before the surrender actually took place, the Roman envoys who had been sent to Alexandria heard of the siege of Abydos, and the youngest of the three, M. Aemilius, went at the suggestion of his colleagues to Philip. He remonstrated against the war that had been

made on Attalus and the Rhodians, and especially against the attack on Abydos. On the king replying that Attalus and the Rhodians had been the aggressors he asked, "Were the people of Abydos also the first to take up arms?" To one who seldom heard the truth this language seemed too bold to address to a king. "Your youth, your good looks and, above all, the fact of your being a Roman make you too venturesome. It is my wish that you should remember treaty obligations and keep the peace with me, but if you begin the attack, I too am quite ready to fight, and you will find the kingdom and name of Macedon no less renowned in war than those of Rome." After dismissing thus the envoy Philip took possession of the gold and silver which had been collected, but he lost all chance of making prisoners. For such a madness fell on the people that they believed that all who had met their death in battle had been suddenly betrayed, and they accused one another of perjury, especially the priests, for they were surrendering to the enemy those whom they had devoted to death. Seized by one sudden impulse they all rushed off to kill their wives and children, and then they inflicted death upon themselves in every possible form. The king was utterly astounded at this outburst of madness and called off his men from the assault, telling them that he would allow the people of Abydos three days in which to die. During this interval the vanquished wrought more horrors upon themselves than the victors would have done, however infuriated they might have been. Not a single man fell into the hands of the enemy alive, save those for whom chains or some other cause beyond their control made death impossible. After leaving a force in occupation of Abydos, Philip returned to his kingdom. As the destruction of Saguntum strengthened Hannibal's resolve to war against Rome, so the fall of Abydos encouraged Philip to do the same. On his way he was met by couriers who announced that the consul was now in Epirus and was wintering his troops in Apollonia and his naval force at Corcyra.

[31.19]The envoys who had been sent to Africa to report the action of Hamilcar in assuming the leadership of the Gauls were informed by the Carthaginian government that they could do nothing more than sentence him to banishment and confiscate his property; all the refugees and deserters whom after careful search they had been able to discover had been given up, and they intended to send envoys to Rome to give satisfactory assurances on this point. They sent 200,000

modii of wheat to Rome and a similar amount to the army in Macedonia. From Carthage the legates proceeded to Numidia to visit the two kings. The presents destined for Masinissa were given to him and the message delivered from the senate. He offered to furnish 2000 horse, but only 1000 were accepted, and he personally superintended their embarkation. With them he sent to Macedonia 2,000,000 modii of wheat and the same quantity of barley. The third mission was to Vermina. He came to meet them at the frontier of his kingdom and left it to them to put in writing what conditions of peace they wanted, assuring them that any peace with Rome he should look upon as fair and advantageous. The terms were handed to him, and he was instructed to send commissioners to Rome to obtain their ratification.

[31.20]About this time L. Cornelius Lentulus returned from Spain where he had been acting as proconsul. After giving a report of the successful operations which he had conducted there for several years, he asked to be allowed to enter the City in triumph. The senate were of opinion that his services quite deserved a triumph, but they reminded him that there was no precedent for a general who had not been Dictator or consul or praetor enjoying a triumph, and he had held his command in Spain as proconsul, not as consul or praetor. However, they went so far as to allow him to enter the City in ovation, in spite of the opposition of Tiberius Sempronius Longus, one of the tribunes of the plebs, who said that there was no precedent or customary authority for that any more than for the other. In the end he gave way before the unanimous feeling of the senate, and after they had passed their resolution, Lentulus enjoyed his ovation. 43,000 pounds of silver and 2450 pounds of gold, captured from the enemy, were carried in the procession. Out of the spoil he distributed 120 ases to each of his men.

[31.21]By this time the consular army in Gaul had been transferred from Arretium to Ariminum, and the 5000 men of the Latin contingent had moved from Gaul into Etruria. L. Furius accordingly left Ariminum and hastened by forced marches to Cremona which the Gauls were at the time besieging. He fixed his camp a mile and a half distant from the enemy and would have had a chance of winning a brilliant victory if he had led his men straight from their march against the Gaulish camp. The Gauls were scattered over the fields in all directions and the camp had been left insufficiently guarded.

But he was afraid that his men would be too much fatigued after their rapid march, and the shouts of the Gauls recalled their comrades, who, leaving the plunder which they had gathered behind, ran back to their camp. The next day they marched out to battle. The Romans were not slow in accepting the challenge, but they had hardly time to complete their formation, so rapidly did the enemy come on. Furius had formed the allied troops into two divisions, and the right division was stationed in the first line, the two Roman legions forming the reserve. M. Furius was in command of this division, M. Caecilius commanded the legions and L. Valerius Flaccus the cavalry. These were all staff-officers. The praetor kept two of his staff with him - C. Laetorius and P. Titinius - to assist him in surveying the field and meeting any sudden attempt of the enemy.

At first the Gauls brought their whole strength to bear in one direction, hoping to be able to overwhelm the right wing and smash it up. Failing in this, they endeavoured to work round the flanks and envelop the enemy's line, which, considering their numbers and the fewness of their opponents, seemed an easy task. When the praetor saw this maneuver he extended his front by bringing up the two legions in reserve to the right and left of the allied troops, and he also vowed a temple to Diovis, in case he routed the enemy that day. He then ordered L. Valerius to launch the Roman cavalry against one wing of the Gauls and the allied cavalry against the other to check the enveloping movement. As soon as he saw that the Gauls had weakened their centre by diverting troops to the wings, he ordered his infantry to advance in close order at the charge and break through the opposing ranks. This was decisive; the wings were repulsed by the cavalry and the centre by the infantry. As they were being cut down in all parts of the field, the Gauls turned, and in wild flight sought shelter in their camp. The cavalry followed in hot pursuit and the infantry soon came up and attacked the camp. Not 6000 men succeeded in making their escape; more than 35,000 were killed or made prisoners; 70 standards were taken together with 200 Gaulish carts loaded with spoil. The Carthaginian general Hamilcar fell in that battle as well as three Gaulish nobles who were in command. 2000 men whom the Gauls had taken at Placentia were set at liberty and restored to their homes.

[31.22]It was a great victory and caused great joy in Rome. When the despatch arrived a three days' thanksgiving was decreed. The Romans

and allies lost 2000 men, mostly belonging to the right division against which the enormous mass of the enemy made their first attack. Although the praetor had practically brought the war to a close, the consul C. Aurelius after finishing the necessary business in Rome proceeded to Gaul and took over the victorious army from the praetor. The other consul reached his province quite late in the autumn and wintered in the neighbourhood of Apollonia. As stated above, C. Claudius was sent to Athens with twenty triremes out of the fleet which was laid up at Corcyra. When they entered the Piraeus they brought great comfort and hope to their allies who were now in a state of great despondency. The depredations committed on their fields by the troops at Corinth, who came through Megara, now ceased, and the pirates from Chalcis who had infested the sea and harried the maritime districts of Athens no longer ventured beyond Sunium and in fact would not trust themselves outside the Euripus. In addition to the Roman ships there were three quadriremes from Rhodes and three Athenian undecked vessels which had been fitted out to protect their coast. As a chance of an important success offered itself to C. Claudius he thought that it would be sufficient for the present if this fleet protected the city and territory of Athens.

[31.23]Some refugees from Chalcis who had been expelled by the king's adherents reported that the place could be seized without any serious resistance, for as there was no enemy to be feared in the neighbourhood the Macedonians were strolling about everywhere, and the townsmen, trusting to the Macedonians for protection, made no attempt to guard the city. On this information C. Claudius proceeded to Chalcis, and although he reached Sunium early enough to allow of his entering the strait of Euboea the same day, he kept his fleet at anchor till nightfall that his approach might not be observed. As soon as it was dark he sailed on over a calm sea and reached Chalcis a little before dawn. He selected the least populous part of the city for his attempt, and finding the guards at some points asleep and other places without any guard at all, he directed a small body of soldiers to place their scaling-ladders against the nearest tower, which was taken with the wall on either side of it. Then they advanced along the wall to where the buildings were numerous, killing the guards on their way, till they reached the gate which they broke down and so admitted the main body of troops. Dispersing in all directions they filled the city with tumult, and, to add to the confusion, the buildings

round the forum were set on fire. They burnt the king's granaries and the arsenal with an immense number of military engines and artillery. This was followed by an indiscriminate slaughter of those who offered resistance and those who tried to escape, and at last every man capable of bearing arms was either killed or put to flight. Amongst the former was Sopater, an Acarnanian, the commandant of the garrison. All the plunder was collected in the forum and then placed on board the ships. The gaol too was broken open by the Rhodians, and the prisoners of war whom Philip had immured there as being the safest place of custody were released. After the statues of the king had been thrown down and mutilated the signal for embarkation was given, and they sailed back to the Piraeus. Had there been a sufficient force of Roman soldiery to allow of Chalcis being occupied without interfering with the protection of Athens, Chalcis and the Euripus would have been wrested from the king; a most important success at the very outset of the war. For the Euripus is the key to Greece by sea as the pass of Thermopylae is by land.

[31.24]Philip was in Demetrias at the time. When the disaster that had overtaken a friendly city was announced to him, he determined, as he was too late to save it, to do the next best thing and avenge it. With a force of 5000 infantry in light marching order and 300 cavalry he went almost at a run to Chalcis, not for a moment doubting that he would be able to take the Romans by surprise. Finding that there was nothing to see but the uninviting spectacle of a smoking and ruined city in which hardly enough men were left to bury the victims of the war, he hurried away at the same speed and crossing the Euripus by the bridge marched through Boeotia to Athens, thinking that as he had shown as much enterprise as the Romans he would have the same success. And he would have had, if a scout had not observed the king's army on the march from a watch-tower. This man was what the Greeks call a hemerodromos, because these men cover enormous distances in a single day, and running on in advance he reached Athens at midnight. Here there was the same somnolence and negligence which had brought about the loss of Chalcis a few days before. Roused by the breathless messenger, the Athenian commander-in-chief and Dioxippus the prefect of the cohort of mercenaries mustered their soldiers in the forum and ordered the trumpets to sound the alarm from the citadel so that all might know

that the enemy was at hand. There was a general rush to the gates and the walls.

Some hours later, though considerably before daybreak. Philip approached the city. When he saw the numerous lights and heard the noise of men hurrying to and fro in the inevitable confusion, he halted his force and ordered them to lie down and rest. As his attempt at a surprise had failed he prepared for an open assault and made his advance on the side of the Dipylon. This gate, placed as a mouth to the city, is considerably larger and wider than the rest, and the road on both sides of it is broad, so that the townsmen were able to form their line right up to it from the forum, whilst the road beyond it stretching for about a mile as far as the Academy allowed plenty of room for the infantry and cavalry of the enemy. After forming their line inside the gate, the Athenians, together with the detachment which Attalus had left and Dioxippus' cohort, sallied forth. As soon as he saw them Philip thought he had them in his power and would be able to satisfy his long-cherished desire for their destruction, for there was not one of the Greek States that he was more furious against than he was against Athens. After exhorting his men to keep their eyes on him as they fought and to remember that where the king was, there the standards and the fighting line ought to be, he put spurs to his horse, animated not only by raging anger but also by a love of ostentation. He thought it a splendid thing to be seen fighting by the immense crowd who thronged the walls to view the spectacle. Galloping forward in front of his lines with a few horsemen he charged into the middle of the enemy and created as much alarm amongst them as he inspired his own men with enthusiasm. Many he wounded at close quarters, others by the missiles he flung, and he drove them back to their gate where he inflicted greater losses as they crowded through the confined space. Recklessly as he pursued them, he was still able to draw off in safety because those who were on the turrets of the gate forbore to throw their javelins for fear of hitting their own comrades who were mixed up with the enemy. After this the Athenians kept within their walls, and Philip after giving the signal for retirement fixed his camp at Cynosarges where there was a temple of Hercules and a gymnasium with a grove round it. But Cynosarges and the Lyceum and every sacred and delightful place round the city was burnt. Not only were buildings destroyed but even

the tombs, nothing belonging to either gods or men was spared in his uncontrollable fury.

[31.25]The following day the closed gates were suddenly thrown open to admit a body of troops sent by Attalus and the Romans from the Piraeus. The king now removed his camp to a distance of about three miles from the city. From there he marched to Eleusis in the hope of securing by a coup-de-main the temple of the fort which surrounded it and protected it on all sides. When, however, he found that the defenders were quite on the alert, and that the fleet was on its way from the Piraeus to render assistance, he abandoned his project and marched to Megara, and then straight to Corinth. On learning that the Council of the Achaeans was sitting at Argos he made his appearance in the assembly quite unexpectedly. They were at the time discussing the question of war with Nabis, tyrant of the Lacedaemonians. When the supreme command was transferred from Philopoemen to Cycliades, who was by no means his equal as a general, Nabis, finding that the Achaeans had dismissed their mercenaries, resumed hostilities, and after devastating his neighbours' fields was now threatening their cities. To oppose this enemy the council were deliberating as to what proportion of troops should be furnished by each State. Philip promised to relieve them from all anxiety so far as Nabis and the Lacedaemonians were concerned; he would not only protect the soil of his allies from their ravages, but he would at once roll back all the terror of war upon Laconia itself by marching his army thither. When these words were greeted with loud applause he went on to say, "If, however, your interests are to be protected by my arms it is only fair that my own should not be left undefended. Furnish me then, if you approve, with such a force as shall suffice to garrison Oreus, Chalcis and Corinth, so that with all safe in my rear I may make war upon Nabis and the Lacedaemonians free from misgivings." The Achaeans were not slow to detect his motive in making such a generous promise and offering aid against the Lacedaemonians. They saw that his real aim was to draw the fighting strength of the Achaeans out of the Peloponnese as hostages and so bind the nation to a war with Rome. Cycliades, seeing that further argument would be irrelevant, simply observed that the laws of the Achaeans did not allow discussion on any matters other than those which the council had been convened to consider. After a decree had been passed for raising an army to act against

Nabis, he dismissed the council over which he had presided with courage and independence. Before that day he had been looked upon as a strong supporter of the king. Philip, whose high hopes were thus suddenly dashed, succeeded in enlisting a few volunteers, after which he returned to Corinth and from there to Attica.

[31.26]During the time that Philip was in Achaia, Philocles, one of his generals, started from Euboea with 2000 Thracians and Macedonians for the purpose of ravaging the Athenian territory. He crossed the forest of Cithaeron in the neighbourhood of Eleusis, and there he divided his forces. Half were sent forward to harry and plunder the fields in all directions, the other half he concealed in a position suitable for an ambushade so that if an attack were made from the fort at Eleusis upon his plunderers he might take the assailants by surprise. His ruse, however, was detected, so he recalled the scattered pillagers and made a regular attack upon the fort. After a fruitless attempt in which many of his men were wounded he retired and joined forces with Philip who was on his way from Achaea. The king himself made an attempt on the same fort but the arrival of the Roman ships from the Piraeus and the presence of a reinforcement which had been thrown into the place compelled him to abandon the undertaking. He then sent Philocles with a part of his army to Athens, and with the rest he proceeded to the Piraeus in order that while Philocles kept the Athenians within their city by approaching the walls and threatening an assault, he might seize the opportunity of storming the Piraeus whilst it was left with a feeble guard. But the assault on the Piraeus proved to be quite as difficult as the one on Eleusis, as practically the same troops defended both. Leaving the Piraeus he hurried up to Athens. Here a force of infantry and cavalry from the city attacked him within the dilapidated Long Walls which connect the Piraeus with Athens and he was repulsed. Seeing that any attempt on the city was hopeless he divided his army with Philocles and set himself to complete the devastation of the country. His former work of destruction had been confined mainly to the sepulchres round the city; now he determined to leave nothing free from profanation and gave orders for the temples which the people had consecrated in every deme to be destroyed and set on fire. The land of Attica was famous for that class of building as well as for the abundance of native marble and the genius of its architects, and therefore it afforded abundant material for this destructive fury. He

was not satisfied with overthrowing the temples with their statues, he even ordered the blocks of stone to be broken in pieces lest if they retained their shape they might form imposing ruins. When there was nothing left on which his rage, still insatiate, could wreak itself he left the enemy's territories for Boeotia and did nothing more worth mentioning in Greece.

[31.27]The consul Sulpicius was at the time encamped by the river Apsus in a position lying between Apollonia and Dyrrhachium. He recalled L. Apustius and sent him with a portion of his force to ravage the enemy's frontiers. After devastating the borders of Macedon and capturing at the first assault the fortified posts of Corrhagum, Gerrunium and Orgessus, Apustius came to Antipatrea, a place situated in a gorge between two mountain ranges. He first invited the chief men of the city to a conference, and tried to persuade them to trust themselves to the Romans. Confident in the size of their city, its fortifications, and its strong position, they treated his overtures with contempt. He then resorted to force and carried the place by assault. After putting the adult males to death and allowing the soldiers to appropriate all the plunder he levelled the walls and burnt the city. Fear of similar treatment brought about the surrender of Codrion - a fairly strong and fortified town - without offering any resistance. A detachment was left there to garrison the place, and Cnidus - a name better known as that of a city in Asia - was taken by storm. As Apustius was on his way back to the consul with a considerable amount of plunder he was attacked during his passage of the river by Athenagoras, one of the king's prefects, and his rear was thrown into confusion. On hearing the shouting and tumult he galloped back, made his men face about and throw their kits into the centre of the column, and formed his line. The king's soldiers did not stand the charge of the Romans, many were killed and more taken prisoners. Apustius brought back his army safely to the consul, and was at once sent off to rejoin the fleet.

[31.28]As the commencement of the war was marked by this successful expedition, various princes and leading men from the countries bordering on Macedonia visited the Roman camp; amongst them Pleuratus, the son of Scerdilaedus, Amynder, king of the Athamanians, and Bato, the son of Longarus, who represented the Dardanians. Longarus had been warring on his own account with Demetrius, Philip's father. In reply to their offers of help the consul

said that he would avail himself of the services of the Dardanians and of Pleuratus when he led his army into Macedonia. With Amynder he arranged that he should induce the Aetolians to take part in the war. Envoys from Attalus had also come, and he instructed them to ask the king to meet the Roman fleet at Aegina where it was wintering and in conjunction with it to harass Philip, as he had previously done, by naval operations. Emissaries were also sent to the Rhodians urging them to take their share in the war. Philip, who had now arrived in Macedonia, showed no less energy in making preparations for the war. His son Perseus, a mere boy, to whom he had assigned some members of his council to direct and advise him, was sent to hold the pass which leads to Pelagonia. Sciathos and Peparethos, cities of some importance, were destroyed that they might not enrich the hostile fleet with plunder. He sent envoys to the Aetolians to prevent that people, excited at the arrival of the Romans, from breaking faith with him.

[31.29]The meeting of the Aetolian League which they call the Pan-Aetolium was to be held on a certain day. The king's envoys hastened their journey in order to be in time for it and Lucius Furius Purpurio was also present as representing the consul, as was also a deputation from Athens. The Macedonians were allowed to speak first, as the treaty with them was the latest that had been made. They said that as no new circumstances had arisen they had nothing new to urge in support of the existing treaty. The Aetolians, having learnt by experience how little they had to gain by alliance with the Romans, had made peace with Philip, and they were bound to keep it now that it was made. "Would you prefer," asked one of the envoys, "to copy the unscrupulousness - or shall I call it the levity? - of the Romans? When your ambassadors were in Rome, the reply they received was 'Why do you come to us, Aetolians, after you have made peace with Philip without our consent?' And now the very same men insist upon your joining them in war against Philip. Formerly they pretended that they had taken up arms against him on your account and for your protection, now they forbid you to be at peace with Philip. In the first Punic war they went to Sicily, ostensibly to help Messana; in the second, to deliver Syracuse from Carthaginian tyranny and restore her freedom. Now Messana and Syracuse and in fact the whole of Sicily are tributary to them: they have reduced the island to a province in which they exercise absolute power of life and death. You imagine,

I suppose, that the Sicilians enjoy the same rights as you, and that as you hold your council at Naupactus under your own laws, presided over by magistrates of your own choice, and with full power of forming alliances or declaring war as you please, so it is with the councils which meet in the cities of Sicily, in Syracuse or Messana or Lilybaeum. No: a Roman governor manages their meetings; it is at his summons that they have to assemble; they see him issuing his edicts from his lofty tribunal like a despot, and surrounded by his lictors; their backs are threatened with the rod, their necks with the axe, and every year they have a different master allotted them. Nor ought they, nor can they wonder at this when they see the cities of Italy, such as Regium, Tarentum and Capua, lying prostrate beneath the same tyranny, to say nothing of those close to Rome out of whose ruin she has grown to greatness.

Capua does indeed survive as the sepulchre and memorial of the Campanian nation, the people themselves are either dead and buried, or else cast forth as exiles. It is a headless and limbless city without a senate, without a plebs, without magistrates, an unnatural portent in the land. To leave it as a habitation for men was an act of greater cruelty than its utter destruction would have been. If men of an alien race, separated from you more widely by language, customs and laws than by intervening sea and land, obtain a hold here, it is folly and madness to hope that anything will remain as it is now. You think that Philip's sovereignty is a danger to your liberty. It was your own doing that he took up arms against you, and his sole aim was to have a settled peace with you. All that he asks today is that you will keep that peace unbroken. Once make foreign legions familiar with these shores and bow your necks to the yoke, then you will seek in vain and too late for Philip's support as your ally; you will have the Romans for your masters. Aetolians, Acarnanians, Macedonians are united and disunited by slight and purely temporary causes; with foreigners and barbarians, all Greeks ever have been and ever will be at war. For they are our enemies by nature, and nature is unchanging; their hostility is not due to causes which vary from day to day. But I will end where I began. Three years ago you decided on this very spot to make peace with Philip. You are the same men that you were then, he is the same that he was, the Romans who were opposed to it then are just those who want to upset it now. Fortune has altered nothing, I do not see why you should alter your minds."

[31.30]The Macedonians were followed, at the instance of the Romans, by the Athenians, who after the shocking way they had been treated, had every justification for protesting against Philip's barbarous cruelty. They mourned over the piteous devastation and pillaging of their fields, but it was not because they had suffered hostile treatment from an enemy that they complained. There were certain rights of war which could be justly exercised and therefore must be justly submitted to; the burning of crops, the destruction of dwellings, the carrying off of men and cattle as plunder, cause suffering to those who endure them, but are not felt to be an indignity. What they did complain of was that the man who called the Romans foreigners and barbarians had so completely outraged all law, human and divine, that in his first ravages he made impious war upon the infernal deities, and in his subsequent ones he defied the powers above. All the sepulchres and monuments within their borders were destroyed, the dead in all their graves laid bare, their bones no longer covered by the earth. There were shrines which their ancestors in the day when they dwelt in separate demes had consecrated in their little fortified posts and villages, and which even when they had been enrolled as citizens of one city they did not abandon or neglect. All these temples Philip had enveloped in sacrilegious flames, the images of their gods, blackened, burnt, mutilated, were lying among the prostrate pillars of their temples. What he had made the land of Attica, once so fair in its beauty and its wealth, such, if he were allowed, would he make Aetolia and the whole of Greece. Even Athens itself would have been similarly disfigured if the Romans had not come to the rescue, for the same impious rage was driving him to attack the gods who dwell in the city, Minerva the protectress of the citadel, the Ceres of Eleusis and the Jupiter and Minerva of the Piraeus. But he had been repulsed by force of arms, not only from their temples, but even from the walls of the city, and had turned his savage fury against those shrines whose sanctity was their only protection. They closed with an earnest appeal to the Aetolians that they would out of compassion to the Athenians take part in the war, under the leadership of the immortal gods and of the Romans who next to the gods possessed the greatest power and might.

[31.31]Then the Roman legate spoke as follows: "The Macedonians and then the Athenians have compelled me to alter entirely the

address I was going to make. I came to protest against Philip's wrongful action against all those cities of our allies, but the Macedonians by the charges they have brought against Rome have made me a defendant rather than an accuser. The Athenians, again, by their recital of his impious and inhuman crimes against the gods above and those below, have left nothing more for me or for any one else to bring up against him. Consider that the same things have been said by the inhabitants of Chios and Abydos, by the Aeneans, the Maronites, the Thasians, by the natives of Paros and Samos, of Larissa and Messene, and by the people over there in Achaia, and that those upon whom he was able to inflict most injury have made the gravest and most serious charges. As to those actions which he has brought up against us as crimes, I frankly admit that if they do not deserve praise they cannot be defended. He mentioned, as instances, Regium, Capua and Syracuse. In the case of Regium, the inhabitants themselves begged us during the war with Pyrrhus to send a legion for their protection, and the soldiers, forming a criminal conspiracy, took forcible possession of the town which they were sent to defend. Did we therefore approve their action? Did we not on the contrary take military measures against the criminals, and when we had them within our power did we not compel them to make satisfaction to our allies by scourgings and executions, and then did we not restore to the Regians their city, their lands and all their possessions, together with their liberty and their laws? As to Syracuse, when it was oppressed by foreign tyrants - a still greater indignity - we came to its help and spent three weary years in making attacks by sea and land upon its almost impregnable fortifications. And though the Syracusans themselves would rather have remained under that servile tyranny than let their city be taken by us, we captured it, and the same arms which effected its capture won and secured its freedom. At the same time we do not deny that Sicily is one of our provinces, and the communities which took the side of the Carthaginians and in full sympathy with them urged war against us are now tributary, and pay us the tenth of all their produce. We do not deny this; on the contrary we with you and the whole world know that each has been treated in accordance with its deserts. It was the same with Capua. Do you suppose that we regret the punishment meted out to the Capuans, a punishment which they themselves cannot make a ground of complaint? It was on their behalf that we remained at war with the Samnites for nearly seventy years, during which time we suffered

severe defeats; we were united with them by treaty, then by intermarriage, and at last by common citizenship. And yet these men were the first of all the Italian nationalities to take advantage of our difficulties and revolt to Hannibal after massacring our garrison, and then in revenge for our besieging them sent him to attack Rome. If neither their city nor a single inhabitant had survived, who could feel any indignation at their fate or charge us with having adopted harsher measures than they deserved? Those whom a consciousness of guilt drove to suicide were more numerous than those who were punished by us, and though we deprived the survivors of their city and territory we gave them land and a place to dwell in. The city itself had not injured us, and we left it standing uninjured, so much so that any one who sees it today would find no trace of its having been stormed and captured.

But why do I speak of Capua when even to conquered Carthage we have given peace and liberty? The danger is rather that by showing too much leniency to the conquered we should incite them all the more to try the fortune of war against us. So much in defence of our conduct. With respect to the charges against Philip - the bloodshed in his own family, the murders of his kinsmen and friends, his lust almost more inhuman than his cruelty - you who live nearest to Macedonia know most about them. As regards you Aetolians, it was on your behalf that we undertook war against him; you made peace with him without any reference to us. Perhaps you will say that as we were fully occupied with the Punic War, you were compelled to accept terms of peace from the man whose power was at that time in the ascendant, to which we should reply that it was only after you had laid aside hostilities that we too abandoned them, as greater matters claimed our attention. Now, however, that through the favour of the gods the Punic War is over, we have thrown our whole strength on Macedonia and the opportunity offers itself for you to regain our friendship and support, unless indeed you prefer to perish with Philip rather than conquer with the Romans."

[31.32]At the conclusion of this speech the unanimous feeling was in favour of the Romans. Damocritus, the chief magistrate of the Aetolians, who was currently reported to have been bribed by the king, refused to support either side. "In a matter of such serious consequence," he said, "nothing is so fatal to wise counsels as doing things in a hurry. This is followed by quick repentance which,

however, is too late, and quite unavailing; decisions hastily and precipitately formed cannot be recalled, nor can the mischief be undone." He thought that an interval ought to be allowed for mature deliberation, and the time could be fixed there and then. As they were forbidden by law to discuss questions of peace and war anywhere but in the Pan-Aetolian Council, they ought at once to pass a decree exempting the chief magistrate from all penalties, if he summoned a council when he thought the time had come to submit the question of peace and war, and the decrees of that council should have the same force and validity as though they had been passed in a regular Pan-Aetolian Council. After the matter was adjourned the envoys were dismissed, and Damocritus said that the decision come to was in the highest degree favourable to the nation, for whichever side had the better fortune in the war, that side they would be able to join. Such were the proceedings in the Pan-Aetolian Council.

[31.33]Philip was making vigorous preparations both by land and sea. He concentrated his naval strength at Demetrias in Thessaly, as he expected that Attalus and the Roman fleet would move from Aegina at the beginning of the spring. Heraclides was continued in command of the fleet and coast-line. The gathering of his land forces he conducted in person, encouraged by the belief that he had deprived the Romans of two important auxiliaries, the Aetolians on the one side and the Dardanians on the other, as the pass at Pelagonia was closed by his son Perseus. By this time the consul was not preparing for war but actually engaged in it. He led his army through the country of the Dessaretii, and the corn which they had brought from their winter quarters they were carrying with them untouched, as the fields through which they marched supplied all that they wanted. Some of the towns and villages on his route surrendered voluntarily, others through fear, some were taken by storm, others were found to be abandoned, the inhabitants having fled to the neighbouring mountains. He formed a standing camp at Lyncus near the river Bevus, and from there he sent parties to collect corn from the granaries of the Dessaretii.

Philip saw that there was consternation everywhere and that the population were in a state of panic, but he did not know what part the consul was making for, and accordingly he sent a cavalry detachment to reconnoitre and find out in what direction the enemy were marching. The consul was equally in the dark, he knew that the

king had moved out of his winter quarters, but was ignorant of his whereabouts, so he too sent out cavalry to reconnoitre. After each party had wandered for a considerable time along unknown roads amongst the Dassaretii, they at last took the same road. When the noise of men and horses was heard in the distance, they both became aware that an enemy was approaching. So before they came in sight of one another they put their horses and weapons in readiness, and as soon as they saw their enemy they charged. They were not unfairly matched in numbers and courage, for each corps consisted of picked men, and for some hours they kept up an even fight, until the exhaustion of men and horses put a stop to the battle without either side gaining the victory. Forty of the Macedonians fell and thirty-five of the Romans. Neither side gained any information as to the whereabouts of their opponents' camp, which they could carry back either to the consul or to the king. This information was ultimately conveyed by deserters, a class of persons whom want of principle renders useful in all wars for finding out things about the enemy.

[31.34]With the view of doing more to win the affections of his men and make them more ready to meet danger on his behalf, Philip paid special attention to the burial of the men who had fallen in the cavalry action and ordered the bodies to be brought into camp that all might see the honour paid to the dead. But nothing is so uncertain or so difficult to gauge as the temper of a mass of people. The very thing which was expected to make them keener to face any conflict only inspired them with hesitancy and fear. Philip's men had been accustomed to fighting with Greeks and Illyrians and had only seen wounds inflicted by javelins and arrows and in rare instances by lances. But when they saw bodies dismembered with the Spanish sword, arms cut off from the shoulder, heads struck off from the trunk, bowels exposed and other horrible wounds, they recognised the style of weapon and the kind of man against whom they had to fight, and a shudder of horror ran through the ranks. Even the king himself felt apprehensive, though he had not yet met the Romans in a pitched battle, and in order to augment his forces he recalled his son and the troops who were stationed in the Pelagonian pass, thus leaving the road open to Pleuratus and the Dardanians for the invasion of Macedonia. He now advanced against the enemy with an army of 20,000 infantry and 4000 cavalry, and came to a hill near Athacus where he strongly intrenched himself about a mile from the

Roman camp. It is said that as he looked down on it and gazed with admiration on the appearance of the camp as a whole and its various sections marked off by the rows of tents and the roads crossing each other, he exclaimed, "No one can possibly take that for a camp of barbarians." For two whole days the king and the consul kept their respective armies in camp, each waiting for the other to attack. On the third day the Roman general led out his whole force to battle.

[31.35]The king, however, was afraid of hazarding a general engagement so soon, and contented himself with sending forward a detachment of 400 Trallians - an Illyrian tribe, as we have explained above - and 300 Cretan infantry with an equal number of cavalry under Athenagoras, one of the nobles of his court, to challenge the enemies' cavalry. The Romans, whose main line was about half a mile distant, sent forward their velites and about two squadrons of cavalry, so that the number of their mounted and unmounted men was equal to that of the enemy. The king's troops expected the style of fighting to be that with which they were familiar; the cavalry would make alternate charges and retirements, at one moment using their missiles, then galloping to the rear; the swift-footed Illyrians would be employed in sudden onsets and rushes; the Cretans would discharge their arrows on the enemy as he dashed forward to attack. But this order of combat was completely upset by the method of the Roman attack, which was as sustained as it was fierce. They fought as steadily as though it had been a regular engagement; the velites after discharging their javelins came to close quarters with their swords; the cavalry, when once they had reached the enemy, halted their horses and fought, some on horseback whilst others dismounted and took their places amongst the infantry. Under these conditions Philip's cavalry, unaccustomed to a stationary combat, were no match for the Roman horse, and his infantry, trained to skirmish in loose order and unprotected by armour, were at the mercy of the velites who with their swords and shields were equally prepared for defence and attack. Incapable of sustaining the conflict and trusting solely to their mobility they fled hack to their camp.

[31.36]After one day's interval the king decided to bring the whole of his cavalry and light-armed troops into action. During the night he concealed a body of caetrati, whom they call peltasts, in a position between the two camps well adapted for an ambush, and instructed Athenagoras and his cavalry in case the main battle went favourably

to push their advantage, but if not, to give ground slowly and draw the enemy to the place where the ambush was set. The cavalry did retire, but the officers of the corps of caetrati did not wait long enough for the signal, and by sending their men forward before the right moment lost their chance of success. The Romans, victorious in the open battle and safe from the danger of ambuscade, returned to camp. The next day the consul went out to battle with his whole force. In front of his line were posted some elephants which the Romans were using for the first time, having captured some in the Punic war. When he saw that the enemy were keeping quiet within their lines, he mounted some rising ground close to their rampart and taunted them with their timidity. Even then no chance of fighting was offered him, and as foraging was by no means safe while the camps were in such close proximity since Philip's cavalry would attack his men when they were dispersed amongst the fields, he shifted his camp to a place called Ottolobum, about eight miles off, to allow of his foraging more safely owing to the greater distance. As long as the Romans were cutting corn in the neighbourhood of their camp the king kept his men within their lines in order that the enemy might grow more venturesome and careless. When he saw them scattered far afield he set off with the whole of his cavalry and the Cretan auxiliaries at such a rapid pace that only the fleetest of the infantrymen could keep up with the troopers. On reaching a position between the foragers and their camp he divided his force. One division was sent in pursuit of the scattered foragers, with orders not to leave a single man alive; with the other he beset the various roads by which the enemy would have to return to their camp. Now men were fleeing and being cut down in all directions, and no one had yet reached the Roman camp with tidings of the disaster because those who fled thither fell into the hands of the king's troops who were waiting for them; more were killed by those who were blocking the roads than by those who had been sent in pursuit. At last some who had managed to elude the enemy brought, in their excitement, more confusion into the camp than definite information.

[31.37]The consul ordered his cavalry to go wherever they could to the rescue of their comrades and at the same time led the legions out of the camp and marched in close order against the enemy. Some of the cavalry lost their way in the fields owing to the various cries that were raised in different places, others came face to face with the

enemy and fighting began at many points simultaneously. It was hottest where the king's stationary troops were posted, for owing to their numbers, both horse and foot, they almost formed a regular army, and as they held the road most of the Romans encountered them. The Macedonians, too, had the advantage of the king's presence to encourage them, whilst the Cretan auxiliaries, in close order and prepared for fighting, made sudden onsets and wounded many of their opponents, who were dispersed without any order or formation. If they had kept their pursuit within bounds they would not only have come off with flying colours in the actual contest, but they would have gone far to influence the course of the war. As it was, they were carried away by thirst for blood and fell in with the advancing Roman cohorts and their military tribunes; the cavalry, too, as soon as they saw the standards of their comrades, turned their horses against the foe who was now in disorder, and in a moment the fortune of the day was reversed, those who had been the pursuers now turned and fled. Many were killed in hand-to-hand fighting, many whilst fleeing; they did not all perish by the sword, some were driven into bogs and were sucked down together with their horses in the bottomless mud. Even the king was in danger, for he was flung to earth by his wounded and maddened horse and all but overpowered as he lay. He owed his safety to a trooper who instantly leaped down and put the king on his own horse, but as he could not keep up on foot with the cavalry in their flight he was speared by the enemy, who had ridden up to where the king fell. Philip galloped round the swamp and made his way in headlong flight through paths and pathless places until he reached his camp in safety, where most of the men had given him up for lost. Two hundred Macedonians perished in that battle, about a hundred prisoners were taken and eighty well-equipped horses were secured together with the spoils of their fallen riders.

[31.38] There have been some who blamed the king's rashness and the consul's want of energy on that day. They said that Philip ought to have remained quiet, for he knew that the enemy would in a few days have cleared all the country round of corn and would have come to the extremity of want. The consul, on the other hand, after routing the enemy's cavalry and light infantry and almost capturing the king himself, ought to have marched at once to the enemy's camp; the enemy were too much demoralised to make any stand and the war

could have been finished in a moment. As in most cases, this was easier to say than to do. Had the king engaged with the whole of his infantry it is possible that he might have lost his camp after they had been completely defeated and fled from the field to their camp, and then continued their flight as the enemy broke through their intrenchments. But as the infantry force in camp remained intact and the outposts and guards were all at their stations, what would the consul have gained beyond imitating the rashness of the king in his wild pursuit of the routed horses? Nor could any fault be found with the king in his plan of attacking the foragers whilst dispersed through the fields, had he been contented with that success. That he should have tempted fortune as he did is the less surprising since a report was current that Pleuratus and the Dardanians had already invaded Macedonia with an immense force. With this force assailing him in the rear he might well believe that the Romans would finish the war without striking a blow. After the two unsuccessful cavalry actions Philip thought that he would be running considerable risk in remaining any longer in his standing camp. As he wanted to conceal his departure from the enemy he sent a flag of truce just after sunset to ask for an armistice for the purpose of burying the dead. Having thus deceived the enemy he marched out at the second watch in perfect silence, leaving numerous fires alight all through the camp.

[31.39]The consul was resting when the news was brought to him of the arrival of the herald and the reason of his coming. All his reply was that an interview would be granted on the following morning. This was just what Philip wanted, as it gave him the night and a part of the following day in which to get the start of his opponent. He took the road over the mountains, which he knew that the Roman general would not attempt with his heavy column. At daybreak the consul granted the armistice and dismissed the herald and not long afterwards became aware that the enemy had disappeared. Not knowing in what direction to follow him he spent some days in camp, collecting corn. Then he marched to Stuberra and gathered out of Pelagonia the corn which was in the fields. From there he advanced to Pluinna without, so far, discovering the route which the enemy had taken. Philip at first fixed his camp at Bryanium and then advancing by cross-roads created a sudden alarm amongst the enemy. The Romans in consequence left Pluinna and encamped by the river Oosphagus. The king pitched his camp not far away by a river which

the natives call Erigonus, and carried his intrenchment along the bank. Then, having definitely ascertained that the Romans intended to march to Eordaea, he determined to anticipate them and occupied a narrow pass with the object of making it impossible for the enemy to pass through it. He barricaded it in various ways, in some parts with rampart, in others with fosse, in other places with piled-up stones to serve as a wall, and elsewhere with tree-trunks as the nature of the ground or the materials allowed, until, as he believed, he had made a road which was naturally difficult, absolutely impassable by the obstacles which he had placed across every exit. The country was mostly forest, difficult for troops to work in, especially for the Macedonian phalanx, for unless they can make a kind of chevaux de frise with the extraordinarily long spears which they hold in front of their shields - and this requires a free and open space - they are of no use whatever. The Thracians with their pikes, which were also of an enormous length, were hampered and obstructed by the branches on all sides. The Cretan cohort was the only one that was of any service, and this only to a very limited extent, for though when attacked by an unprotected horse and rider they could discharge their arrows with effect, there was not sufficient force in their missiles to penetrate the Roman shields nor was there any exposed part of the body at which they could take aim. Finding therefore that mode of attack useless, they pelted the enemy with the stones which were lying all over the ravine. This caused more noise than injury, but the drumming on their shields checked the advance of the Romans for a few minutes. They soon ceased to pay any attention to them, and some of them forming a shield-roof over their heads forced their way through the enemy in front, while others by making a short circuit gained the crest of the hill and drove the Macedonians from their posts of observation. Escape was almost impossible on such difficult ground, and the greater number were slain.

[31.40] Thus the pass was surmounted with less trouble than they had anticipated, and they entered the district of Eordaea. After ravaging the fields in all directions, the consul moved into Elimia. Here he made an attack on Orestis and approached the town of Celetrum. This was situated on a peninsula, the walls were surrounded by a lake and there was only one road to the adjacent country over a narrow neck of land. At first the townsmen, relying upon their position, closed their gates and rejected the summons to surrender. When,

however, they saw the standards advancing and the legions marching under their shield-roof up to the gate and the narrow neck of land covered by the hostile column, their hearts failed them and they surrendered without risking a battle. From Celetrum he advanced into Dassaretia and took the city of Pelion by assault. The slaves and the rest of the booty he carried off, but the free citizens he set at liberty without ransom, and he restored their town to them after placing a strong garrison in it. It was well adapted from its position to serve as a base for his operations against Macedonia. After thus scouring the enemy's country, the consul returned to friendly territories and led his force back to Apollonia, which had been his starting-point for the campaign. Philip had been called away by the Aetolians, the Athamanians, the Dardanians and the numerous wars which had broken out in various quarters. The Dardanians were already retiring from Macedonia when he sent Athenagoras with the light infantry and the greater part of the cavalry to attack them from the rear as they retreated, and by harassing their rear make them less eager to send their armies away from home. As to the Aetolians, Damocritus their supreme magistrate, who had advised them at Naupactus to delay resolving upon war, had at their next meeting urged them strongly to take up arms after all that had happened - the cavalry action at Ottolabrum, the invasion of Macedonia by the Dardanians and Pleuratus in conjunction with the Illyrians, and especially the arrival of the Roman fleet at Oreum and the certainty of Macedonia, beset by all those States, being blockaded at sea.

[31.41] These considerations brought Damocritus and the Aetolians back to the side of the Romans, and in conjunction with Amynder king of the Athamanians they proceeded to invest Cercinium. The townsmen had closed their gates, whether spontaneously or under compulsion is not clear, as Philip's troops were holding the place. However, in a few days Cercinium was taken and burnt, and those who survived the wholesale slaughter, slaves and citizens alike, were carried off with the rest of the booty. Dread of a similar fate drove the inhabitants of all the cities round Lake Boebeis to abandon their homes and take to the mountains. There being no further chance of plunder, the Aetolians left that part of the country and proceeded to go into Perrhaebia. Here they took Cyretiae by storm and ruthlessly sacked it. The population of Maloea surrendered voluntarily and were admitted into the Aetolian League. Leaving Perrhaebia, Amynder

advised them to attack Gomphi, as it was close to Athamania and there was every probability of its being carried without much fighting. The Aetolians, however, wanted plunder and made for the fertile plains of Thessaly. Amynander accompanied them, though he did not approve of the disorderly way in which they carried on their depredations nor of their careless method of pitching their camp on any chance ground without taking the trouble to select a good position or throw up proper intrenchments. He was afraid that their recklessness and carelessness might bring disaster to him and his men, and when he saw them fixing their camp on flat open ground below the hill on which the city of Phaeca stood, he took possession of some rising ground little more than a mile away which needed very slight fortifying to make it safe. Except that they continued their depredations the Aetolians seemed to have almost forgotten that they were in an enemy's country; some were roaming about unarmed, others were turning day into night with wine and sleep, leaving the camp altogether unguarded.

Suddenly, when no one expected him, Philip came on the scene. Some who rushed back from the fields announced his appearance, and Damocritus and the other generals were in dire consternation. It happened to be midday, when most of the soldiers were asleep after their heavy meal. Their officers roused them, ordered some to arm themselves and sent off others to recall the plundering parties dispersed over the fields. So great was the hurry and confusion that some of the cavalry went off without their swords and most of them had not put on their body-armour. Sent out thus hurriedly, barely amounting to 600 horse and foot they met the king's cavalry, who were superior to them in numbers, equipment and moral. They were naturally routed at the first shock, and after showing hardly any fight, broke into a cowardly flight and made for their camp. Many whom the cavalry cut off from the main body of the fugitives were either killed or captured.

[31.42].His men were already coming up to the enemy's rampart when Philip ordered the retreat to be sounded, for horses and men alike were tired, not so much by fighting as by the length and extraordinary celerity of their march. Orders were given to the cavalry to get water and take their dinner a troop at a time, and the light infantry to do the same, a maniple at a time; the others he kept in position under arms waiting for the main body of infantry, who

owing to the weight of their armour had marched more slowly. When these arrived they were ordered to plant their standards and put their arms down in front of them and then take a hasty meal, while two or three at the most were sent from each company to fetch water. The cavalry and light infantry were in the meantime standing ready for instant action in case of any movement on the part of the enemy. By this time the crowds of Aetolians who had been dispersed in the fields had regained their camp, and troops were posted about the gates and rampart as though they were prepared to defend their lines. As long as they saw that the enemy were quiet and they felt safe, they were quite courageous, but as soon as the Macedonians got into motion and began to advance towards their camp fully prepared for battle, they all promptly deserted their posts and made their escape through the gate in the rear of the camp to the eminence on which the Athamanian camp stood. Philip felt quite certain that he could have deprived the Athamanians also of their camp, had sufficient light remained, but the day had been consumed, first in the battle and then in plundering the Aetolian camp. So he took up his position on the level ground near the hill, prepared to attack at dawn. But the Aetolians, who had not recovered from the panic in which they had abandoned their camp, fled in various directions during the night. Amynander proved of the greatest assistance to them; under his leading the Athamanians who were familiar with the paths over the mountain summits conducted them into Aetolia by ways unknown to the enemy who was following in pursuit. A few who had lost their way in the scattered flight fell into the hands of the cavalry whom Philip on finding that the camp was abandoned had sent to harass their retreat.

[31.43]Athenagoras, Philip's lieutenant, in the meanwhile caught up the Dardanians as they were retiring within their frontiers and created considerable confusion in the rear of their column. They faced about and formed in line of battle, and a regular engagement ensued in which neither side gained the advantage. When the Dardanians began again to go forward the king's cavalry continued to harass them, as they had no troops of the same kind to protect them, and their equipment rendered them immobile. The ground, too, was in favour of the assailants. Very few were actually killed, but there were many wounded; no prisoners were taken because they were cautious about leaving their ranks and kept up the retreating fight in close order.

Thus Philip through his bold initiative as much as by its successful results kept the two nations in check by his well-timed movements and so made good the losses he had sustained in the war with Rome. An incident which occurred subsequently gave him a further advantage by diminishing the number of his Aetolian enemies. Scopas, one of their principal men, who had been sent by King Ptolemy from Alexandria with a considerable amount of gold, conveyed to Egypt a mercenary army consisting of 6000 infantry and 500 cavalry. He would not have left a single man of military age in Aetolia if Damocritus had not kept some of them at home by sternly reminding them of the war which was imminent and the defenceless condition of a country deprived of its manhood. It is uncertain whether his action was dictated by patriotism or by personal enmity to Scopas who had not bribed him. Such were the various undertakings in which the Romans and Philip were engaged during this summer.

[31.44]It was in the early part of this summer that the fleet under L. Apustius left Corcyra and after rounding the Cape of Malea was joined by Attalus off Scyllaeum, a place situated in the district of Hermione. On this the Athenians, who had for a long time been afraid to show their hostility to Philip too openly, now at the prospect of immediate assistance gave full vent to their rage against him. There is never any lack of tongues there to stir up the populace. People of this sort thrive on the applause of the mob, and are found in all free States, particularly in Athens where oratory had so much influence. A proposal was introduced and at once adopted by the people that all the statues and busts of Philip and of all his ancestors, male and female alike, with the inscriptions on them should be removed and destroyed; the festivals, sacrifices and priests which had been instituted in honour of him or of his predecessors should be abolished; even the localities in which anything had been set up, or where there was any inscription to perpetuate his name, were to be placed under a curse, and nothing which it was right to erect or consecrate on undesecrated ground could be erected or consecrated in these places. On every occasion on which the official priests offered up prayers for the people of Athens and the armies and fleets of their allies, they were always to invoke solemn curses on Philip, his children and his realm, all his forces, military and naval, and on the whole nation of the Macedonians. It was further decreed that if any

one should in future introduce any measure calculated to brand Philip with ignominy the Athenians should at once adopt it, and if any one by word or deed tried to vindicate him or do him honour the man who slew him would be justified in doing so. Finally it was enacted that all the decrees which had been formerly made against Pisistratus should be in force against Philip. As far as words went the Athenians made war on Philip, but it was only in these that their strength lay.

[31.45]When Attalus and the Romans arrived at the Piraeus they stayed there a few days and then left for Andros with a heavy cargo of decrees quite as extravagant in their praises of their friends as in their expressions of wrath against their enemy. They brought up in the harbour of Gaurelum, and a party was sent ashore to test the feelings of the citizens and find out whether they preferred to surrender voluntarily or to await an assault. They replied that they were not their own masters, as the place was held by Philip's troops. Thereupon the forces were landed and all the usual preparations for an assault were made, Attalus approached the city on one side and the Roman commander on the other. The novel sight of the Roman arms and standards and the spirit with which the soldiers without the slightest hesitation mounted the walls utterly appalled the Greeks, who promptly fled to the citadel, leaving the enemy in possession of the city. There they held out for two days, trusting more to the strength of the place than to their own arms; on the third they, together with the garrison, surrendered the town and citadel on condition of being allowed to retire with one garment apiece to Delium in Boeotia. The city itself was made over by the Romans to Attalus; they themselves carried off the plunder and all that adorned the city. Anxious not to have the island a solitude, Attalus persuaded nearly all the Macedonians, as well as some of the Andrians, to remain there. Subsequently those who had, in accordance with the terms of surrender, migrated to Delium were induced by the king's promises to return, for the love of country made them more ready to trust his word.

From Andros the fleets sailed to Cythnos. Here they spent some days in a fruitless attack on the city, and as it seemed hardly worth while to continue their efforts, they sailed away. At Prasiae, a place on the mainland of Attica, the Issaeans joined the Roman fleet with twenty fast sailing-vessels. They were sent off to ravage the Carystian country; pending their return the rest of the fleet lay at Geraestus, a

well-known port in Euboea. Then they all set sail for the open sea, and leaving Scyros on their right, reached Icus. Here a violent gale from the north detained them for a few days, and as soon as the weather moderated they sailed across to Sciathos, a city which had been devastated and plundered by Philip. The soldiers dispersed through the fields and brought back to the ships a supply of corn and whatever other food they could find. There was no plunder, nor had the Greeks done anything to deserve being plundered. From there they directed their course to Cassandrea, and touched at Mendae, a village on the coast. Rounding the cape they were purposing to bring their ships right up to the walls when they were caught and scattered by a violent storm in which the vessels almost foundered. It was with difficulty that they gained the land after losing most of their tackle. This storm was also a presage of their land operations, for after they had collected their vessels and landed their troops they were repulsed in their attack on the city with heavy loss, owing to the strength of the garrison which held the place for Philip. After this failure they withdrew to Canaestrum in Pallene, and from there sailing round the promontory of Torone they headed for Acanthus. After ravaging the territory they took the city by assault and sacked it. As their ships were by this time heavily laden with booty they did not go any further, and retracing their course they reached Sciathus, and from Sciathus they sailed to Euboea.

[31.46]. Leaving the rest of the fleet there they entered the Maliac Gulf with ten swift vessels to discuss the conduct of the war with the Aetolians. Pyrrhias the Aetolian was the head of the deputation which came to Heraclea to share their views with Attalus and the Roman commander. Attalus was requested to furnish a thousand soldiers, as under the terms of the treaty he was bound to supply that number if they made war on Philip. The demand was refused on the ground that the Aetolians had declined to march out and ravage the Macedonian country at the time that Philip was burning everything round Pergamum, sacred and profane, and so draw him off to look after his own interests. So the Aetolians were dismissed with expectations rather than with actual assistance, as the Romans confined themselves to promises. Apustius returned with Attalus to the fleet. Plans were now discussed for attacking Oreus. This was a strongly fortified city and, after the former attempt upon it, had been held by a strong garrison. After the capture of Andros twenty

Rhodian vessels commanded by Agesimbrotus, all decked ships, joined the Roman fleet. This squadron was sent to take its station off Zelasium, a promontory in Phthia beyond Demetrias, where it would be admirably placed for meeting any movement on the part of the Macedonian ships. Heraclides, the king's admiral, was anchored at Demetrias, waiting for any chance which the enemy's negligence might offer him rather than venturing on open battle.

The Romans and Attalus attacked Oreus on different sides; the former directed their assault against the citadel which faced the sea, whilst Attalus directed his towards the hollow between the two citadels where a wall separates one portion of the city from the other. And as they attacked at different points, so they employed different methods. The Romans brought their vineae and battering rams close up to the wall, protecting themselves with their shield-roof; the king's troops poured in a hail of missiles from their ballistae and catapults of every description. They hurled huge pieces of rock, and constructed mines and made use of every expedient which they had found useful in the former siege. The Macedonians, however, who were defending city and citadel were not only in greater force but they not forgotten Philip's censures for their former misconduct nor his threatenings and promises in the respect of the future, and so they exhibited more courage and resolution. The Roman general found that more time was being spent there than he expected and that there was a better prospect of success in a regular investment than in a sudden assault. Other operations might be conducted during the siege, so, leaving a sufficient force to complete the investment, he sailed to the nearest point on the mainland, and suddenly appearing before Larissa - not the well-known city in Thessaly, but another, called Cremaste - he captured all the city but the citadel. Attalus, too, surprised Aegleion, where the inhabitants were not in the least apprehending an attack from an enemy who was engaged in the siege of another city. By this time the siege-works round Oreus had begun to tell upon the place and the garrison were weakened by their losses and exhausted by the incessant labour of watches and guards by night and day alike. A part of the wall had been loosened by the blows of the battering-rams and had fallen down in several places. The Romans broke through the breach during the night and forced their way into the citadel commanding the harbour. On receiving a signal from the Romans in the citadel Attalus entered the city at daybreak

where a large portion of the wall lay in ruins. The garrison and townsmen fled to the other citadel and in two days' time surrendered. The city fell to Attalus, the prisoners to the Romans.

[31.47]The autumnal equinox was now at hand, and the straits of Euboea, which are called Coela, are considered dangerous to navigation. As they were anxious to get away before the winter storms began, the fleets sailed back to the Piraeus, their starting-point for the war. Leaving thirty ships there Apustius sailed with the remainder past Malea to Corcyra. Atticus was detained by the celebration of the Eleusinian Mysteries at which he wished to be present, and when they were over he withdrew into Asia after sending Agesimbrotus and the Rhodians home. Such were the operations against Philip and his allies conducted by the Roman consul and his lieutenant with the assistance of King Attalus and the Rhodians. When the other consul, C. Aurelius, came into his province he found the war brought to a close, and he did not conceal his chagrin at the praetor's activity in his absence. He sent him into Etruria and then took his legions into the enemy's country to plunder it: an expedition from which he returned with more booty than glory. L. Furius, finding no scope for his activity in Etruria, and bent upon obtaining a triumph for his victories in Gaul, which he thought he might more easily do while the angry and jealous consul was out of the way, suddenly returned to Rome and convened a meeting of the senate in the temple of Bellona. After giving a report of what he had done, he asked to be allowed to enter the City in triumph.

[31.48]A considerable number of the senators supported him in view of the great services he had rendered, and also on personal grounds. The older members were for refusing him a triumph, partly because the army which he had employed had been assigned to another commander, and partly because in his eagerness to snatch the chance of a triumph he had quitted his province, an act contrary to all precedent. The consulars, in particular, insisted that he ought to have waited for the consul, for he could then have fixed his camp near the city and so have afforded sufficient protection to the colony to hold the enemy in hand without fighting until the consul came. What he failed to do, the senate ought to do, namely, wait for the consul; after hearing what the consul and the praetor had to say, they would form a truer judgment about the case. Many of those present urged that the senate ought not to consider anything beyond the praetor's

success and the question whether he had achieved it as a magistrate with full powers and under his own auspices. "Two colonies," it was argued, "had been planted as barriers to check risings amongst the Gauls. One had been plundered and burnt, and the conflagration was threatening the other colony which was so near it, like a fire running from house to house. What was the praetor to do? If no action ought to have been taken in the consul's absence, either the senate was at fault in furnishing the praetor with an army - for as it had decided that the campaign should be fought by the consul's army and not by the praetor's which was far away, so it could have passed a special resolution to the effect that it should be fought under the consul and not under the praetor - or else the consul was in the wrong in not joining his army at Ariminum, after he had ordered it to move from Etruria into Gaul, so that he might take his part in the war, which you say ought not to have been undertaken without him. The critical moments in war do not wait upon the procrastination and delays of commanders, and you sometimes have to fight, not because you wish to do so, but because the enemy compels you. We ought to keep in view the battle itself and its consequences. The enemy were routed and cut to pieces; their camp taken and plundered; one colony relieved from siege; those of the other colony who had been made prisoners recovered and restored to their homes and friends; the war was finished in a single battle. Not to men only was that victory a cause of rejoicing; thanksgivings for three days ought to be offered to the immortal gods because L. Furius had upheld the cause of the republic well and happily, not because he had acted ill and rashly. War with the Gauls was the destined prerogative of the house of the Furii."

[31.49]Through speeches of this kind delivered by him and his friends, the personal influence of the praetor, who was on the spot, outweighed the dignity and authority of the absent consul, and by an overwhelming majority a triumph was decreed to L. Furius. So L. Furius as praetor celebrated a triumph over the Gauls during his magistracy. He brought into the treasury 320,000 ases and 100,500 pounds of silver. No prisoners were led in procession before his chariot, nor were any spoils exhibited, nor was he followed by his soldiers. It was obvious that everything except the actual victory was at the disposal of the consul. The Games which Scipio had vowed when he was proconsul in Africa were celebrated with great

splendour. A decree was made for the allotment of land to his soldiers; each man was to receive two jugera for every year he had served in Spain or in Africa, and the decemviri managed the allotment. Commissioners were also appointed to fill up the number of colonists at Venusia, as the strength of that colony had been diminished in the war with Hannibal. C. Terentius Varro, T. Quinctius Flaminius and P. Cornelius, the son of Cnaeus Scipio, were the commissioners who undertook the task. During this year C. Cornelius Cethegus who was holding Spain as propraetor routed a large army of the enemy in the Sedetan district. 15,000 Spaniards are said to have been killed in that battle and seventy-eight standards taken. On his return to Rome to conduct the elections, C. Aurelius did not, as was anticipated, make it a ground of complaint that the senate had not awaited his return or given him the opportunity of discussing the matter with the praetor. What he did complain of was the way in which the senate had passed the decree granting the triumph without hearing any of those who had taken part in the war or indeed any one at all except the man who was to enjoy the triumph. "Our ancestors," he said, "laid it down that the lieutenants-general, the military tribunes, the centurions and the soldiers should be present in order that the people of Rome might have visible proof of the victory won by the man for whom such an honour was decreed. Was there a single soldier out of the army which fought with the Gauls, or even a single camp-follower from whom the senate might have enquired as to the truth or falsehood of the praetor's report?" After making this protest he fixed the day for the elections. The new consuls were L. Cornelius Lentulus and P. Villius Tappulus. Then followed the election of praetors. Those returned were L. Quinctius Flaminius, L. Valerius Flaccus, L. Villius Tappulus and Cn. Baebius Tamphilus.

Provisions were remarkably cheap that year. A great quantity of corn had been brought from Africa and the curule aediles, M. Claudius Marcellus and Sex. Aelius Paetus, distributed it to the people at two ases the modius. They also celebrated the Roman Games on a splendid scale and repeated them a second day. Five bronze statues from the proceeds of fines were placed by them in the treasury. The Plebeian Games were celebrated three times by the aediles, L. Terentius Massiliota and Cn. Baebius Tamphilus, the latter being praetor-designate. Funeral Games were also exhibited in the Forum

for four days on the occasion of the death of M. Valerius Laevinus by his sons, Publius and Marcus; they also gave a gladiatorial spectacle in which five-and-twenty pairs fought together. One of the Keepers of the Sacred Books, M. Aurelius Cotta, died and Manlius Acilius Glabrio was appointed to succeed him. It so happened that the curule aediles who were elected were both unable to take up their duties at once; Gaius Cornelius Cethegus was elected while absent in Spain where he held command; C. Valerius Flaccus was in Rome when he was elected, but as he was a Flamen of Jupiter he could not take the oaths, and it was not permitted to hold any magistracy for more than five days without doing so. Flaccus asked that this condition might be waived in his case and the senate decreed that if an aedile should provide some one, with the approval of the consuls, to take the oaths for him, the consuls might if they thought good arrange with the tribunes for the matter to be referred to the plebs. L. Valerius Flaccus, praetor-designate, was brought forward to take the oaths for his brother. The tribunes brought the matter before the plebs, and the plebs decided that it should be just as though the aedile himself had taken them. In the case of the other aedile, the tribunes requested the plebs to appoint two men to command the armies in Spain, and the plebs resolved that the curule aedile C. Cornelius should come home to take up his duties and that L. Manlius Acidinus should retire from his province after having held it for many years. They then made an order that Cn. Cornelius Lentulus and T. Stertinius should have the full powers of proconsuls in Spain.

BOOK 32: THE SECOND MACEDONIAN WAR

[32.1]The consuls and praetors went into office on March 15 and at once balloted for their commands. Italy fell to L. Lentulus and Macedonia to P. Villius. The praetors were distributed as follows: L. Quinctius received the City jurisdiction; Cn. Baebius, Ariminum; L. Valerius, Sicily; L. Villius, Sardinia. The consul Lentulus received instructions to raise fresh legions; Villius took over the army from P. Sulpicius and it was left to him to bring it up to whatever strength he thought necessary. The legions which C. Aurelius had commanded as consul were assigned to Baebius on the understanding that he was to retain them until the consul relieved him with his new army, and on his arrival all the time-expired soldiers were to be sent home. Out of the allied contingent only 5000 men were kept on active service, a

sufficient number, it was thought, to hold the country round Ariminum. Two of the former praetors had their commands extended - C. Sergius, for the purpose of allotting the land to the soldiers who had been serving for many years in Spain, and Q. Minucius in order that he might complete the investigation of the conspiracies in Bruttium which he had been hitherto conducting so carefully and impartially. Those who had been convicted of the sacrilege and sent in chains to Rome he was to send to Locri for execution, and he was also to see that what had been abstracted from Proserpine's shrine was replaced with the due expiatory rites. In consequence of complaints made by representatives from Ardea that the customary portions of the victims sacrificed on the Alban Mount had not been given to that city, the pontiffs decreed that the Latin Festival should be held afresh. Reports came from Suessa that two of the city gates and the wall between them had been struck by lightning. Messengers from Formiae announced that the same thing had happened to the temple of Jupiter there, others from Ostia reported that the temple of Jupiter there also had been struck, others again from Velitrae brought word that the temples of Apollo and Sancus had been struck, and that hair had appeared on the statue in the temple of Hercules. Q. Minucius, the *propraetor* in Bruttium, wrote to say that a foal had been born with five feet, and three chickens with three feet each. A despatch was received from P. Sulpicius, the *proconsul* in Macedonia, in which among other things he stated that laurel leaves had shot forth on the stern of a warship. In the case of the other portents the senate decided that the consuls should sacrifice full-grown victims to those deities who they thought ought to receive them, but with regard to the last-mentioned portent the *haruspices* were called into the senate to advise. In accordance with their directions a day of special intercessions was ordered and prayers and sacrifices were offered at all the shrines.

[32.2] This year the Carthaginians conveyed to Rome the first instalment of the war indemnity. It was paid in silver and the *quaestors* reported that it was not up to standard value, and on assaying it found that one-fourth was alloy. The Carthaginians made up the deficiency by borrowing money in Rome. They petitioned the senate to allow their hostages to be restored, and a hundred were given back to them. Hopes were held out of the restoration of the remainder if Carthage was true to her obligations. A further request

which they put forward was that the hostages who were still detained might be moved from Norba where they were very uncomfortable, and placed elsewhere. It was agreed that they should be removed to Signia and Ferentinum. A deputation from Gades came with a request that no prefect might be sent there, as this would be in contravention of the agreement made with L. Marcius Septimus when they placed themselves under the protection of Rome. Their request was granted. Delegates also came from Narnia who stated that their colony was short of its proper number and that some of inferior status had found their way amongst them, and were giving themselves out to be colonists. The consul L. Cornelius was instructed to appoint three commissioners to deal with the case. Those appointed were the two Aelii - Publius and Sextus, both of whom had the cognomen of Paetus - and Cn. Cornelius Lentulus. The colonists at Cosa also requested an augmentation of their number, but their request was refused.

[32.3]After despatching the necessary business in Rome the consuls left for their respective provinces. On his arrival in Macedonia, P. Villius was confronted by a serious mutiny amongst the troops, which had not been checked at the beginning, though they had for some time been seething with irritation. These were the 2000 who, after Hannibal's final defeat had been transferred from Africa to Sicily and then in less than a year to Macedonia. They were regarded as volunteers but they maintained that they had been taken there without their consent, they had been placed on board by the tribunes in spite of their protests. But in any case, whether their service was compulsory or voluntary they claimed that they had served their time and that it was only right that they should be discharged. They had not seen Italy for many years, they had spent the best years of their life under arms in Sicily and Africa and Macedonia, and now they were worn out with their toils and hardships, their many wounds had drained their blood. The consul told them that if they asked for their release in a proper way there was reasonable ground for granting it, but that did not justify them nor would anything else justify them in breaking out into mutiny. If therefore they were willing to remain with the standards and obey orders he would write to the senate about disbanding them. They would be much more likely to attain their object by moderation than by contumacy.

[32.4]At this time Philip was pressing the siege of Thaumaci with the utmost energy. His mounds were completed and his vineae in full working order and he was on the point of bringing his battering-rams up to the walls when the sudden arrival of a body of Aetolians compelled him to desist. Under the leadership of Archidamus they made their way through the Macedonian guard and entered the town. Day and night they made constant sorties, at one time attacking the outposts, at another, the siege-works of the Macedonians. The nature of the country helped them. To one approaching Thaumaci from the south by Thermopylae and round the Malian Gulf and through the country of Lamia, the place stands out on a height overlooking what they call Thessalia Coele. When you have made your way by winding paths over the broken ground and come up to the city itself, the whole plain of Thessaly suddenly stretches out before you like a vast sea beyond the limits of vision. From the wonderful view which it affords comes its name of Thaumaci. The city was protected not only by its elevated position but also by the precipitous sides of the height on which it stood. In the face of these difficulties Philip did not think its capture worth all the toil and danger involved and accordingly gave up the task. The winter had already begun when he withdrew from the place and returned to his winter quarters.

[32.5]Everybody else made the most of the short rest allowed in seeking relaxation for mind and body, but the respite which Philip gained from the ceaseless strain of marches and battles only left him the more free for anxious thought as he contemplated the issues of the war as a whole. He viewed with alarm the enemy who was pressing on him by land and sea, and he felt grave misgivings as to the intentions of his allies and even of his own subjects, lest the former should prove false to him in the hope of gaining the friendship of Rome and the latter break out in insurrection against his rule. To make sure of the Achaeans he sent envoys to require them to renew the oath of fidelity which they had undertaken to renew annually, and also to announce his intention of restoring to the Achaeans the cities of Orchomenos and Heraea and the district of Triphylia and to the Megalopolitans the city of Aliphera, as they maintained that it had never belonged to Triphylia, but was one of the places from which by direction of the council of the Arcadians the population had been drawn to found Megalopolis, and therefore it ought to be restored to them. By adopting this course he sought to

consolidate his alliance with the Achaeans. His hold upon his own subjects was strengthened by the action he took in the case of Heraclides. He had made a friend of this man, but when he saw that he was making himself intensely disliked, and that many charges had been brought against him, he threw him into prison to the great joy of the Macedonians. His preparations for war were as carefully and thoroughly made as any he had ever made before. He constantly exercised the Macedonians and mercenary troops and at the commencement of the spring he sent Athenagoras with all the foreign auxiliaries and light infantry through Epirus into Chaonia to seize the pass at Antigonea, which the Greeks call Stena. A few days later he followed with the heavy troops, and after surveying all the positions in the country he considered that the most suitable place for an entrenched camp was one before the river Aous. This runs through a narrow ravine between two mountains which bear the local names of Meropus and Asnaus, and affords a very narrow path along its bank. He gave orders to Athenagoras to occupy Asnaus with his light infantry and intrench himself; and he himself fixed his camp on Meropus. Where there were precipitous cliffs, small outposts mounted guard, the more accessible parts he fortified with fosse or rampart or towers. A large quantity of artillery was disposed in suitable places to keep the enemy at a distance by missiles. The king's tent was pitched on a most conspicuous height in front of the lines to overawe the enemy and to give his own men confidence.

[32.6].The consul had wintered in Corcyra, and on receiving intelligence through Charops, an Epirote, as to the pass which the king and his army had occupied, he sailed across to the mainland at the opening of the spring and at once marched towards the enemy. When he was about five miles from the king's camp he left the legions in an entrenched position and went forward with some light troops to reconnoitre. The following day he held a council of war to decide whether he should attempt to force the pass in spite of the immense difficulty and danger to be faced, or whether he should lead his force round by the same route which Sulpicius had taken the year before, when he invaded Macedonia. This question had been debated for several days when a messenger came to report the election of T. Quinctius to the consulship and the assignment to him of Macedonia as his province, and the fact that he was hastening to take possession of his province and had already reached Corcyra. According to

Valerius Antias, Villius, finding a frontal attack impossible as every approach was blocked by the king's troops, entered the ravine and marched along the river. Hastily throwing a bridge across to the other side where the king's troops lay, he crossed over and attacked; the king's army were routed and put to flight and despoiled of their camp. 12,000 of the enemy were killed in the battle, 2200 prisoners taken, 132 standards and 230 horses captured. All the Greek and Latin writers, so far as I have consulted them, say that nothing noteworthy was done by Villius and that the consul who succeeded him took over the whole war from the outset.

[32.7].During these occurrences in Macedonia the other consul, L. Lentulus, who had remained in Rome, conducted the election of censors. Amidst several candidates of distinction the choice of the electors fell upon P. Cornelius Scipio Africanus and P. Aelius Paetus. They worked together in perfect harmony, and revised the roll of the senate without disqualifying a single member. They also leased out to contractors the customs dues at Capua and Puteoli and the harbour dues at the Castra Hannibalis, where a town now stands. Here they sent 300 colonists - the number fixed by the senate - and also sold the land belonging to Capua which lay at the foot of Mount Tifata. L. Manlius Acidinus, who left Spain about this time, was prevented by P. Porcius, a tribune of the plebs, from enjoying an ovation on his return, though the senate had granted it to him. He entered the City in an unofficial capacity, and brought into the treasury 1200 pounds' weight of silver and 30 pounds of gold. During the year Cn. Baebius Tamphilus, who had succeeded C. Aurelius in the command in Gaul, invaded the country of the Insubrian Gauls, but owing to his want of caution he was surprised, and very nearly lost the whole of his army. His actual losses amounted to 6700 men, and this great defeat occurred in a quarter which was no longer a cause of apprehension. This incident called L. Lentulus out of the City. As soon as he reached the province, which was filled with disturbance, he took over the command of the demoralised army and after severely censuring the praetor ordered him to quit the province and go back to Rome. The consul himself, however, did nothing of any importance, as he was recalled to Rome to conduct the elections. These were delayed by two of the tribunes of the plebs, M. Fulvius and Manius Curius, who would not allow T. Quinctius Flaminius to be a candidate for the consulship as he was only quaestor at the time. They alleged that the

offices of aedile and praetor were now looked down upon, the nobility did not rise through the successive posts of honour before trying for the consulship and so give proof of their efficiency, but passing over the intermediate steps made the highest immediately follow the lowest. The question passed from the Campus Martius to the senate, who passed a resolution to the effect that when any one was a candidate for an office of dignity which he might lawfully hold, it was right in such a case that the people should have the power to elect whom they would. The tribunes deferred to the authority of the senate. The consuls elected were Sex. Aelius Paetus and T. Quinctius Flaminius. At the subsequent election of praetors the following were returned: L. Cornelius Merula, M. Claudius Marcellus, M. Porcius Cato and C. Helvius. These had been plebeian aediles, and exhibited the Plebeian Games and celebrated the festival of Jupiter. The curule aediles - C. Valerius Flaccus, one of the Flamens of Jupiter, and C. Cornelius Cethegus - celebrated the Roman Games with great splendour. Two pontiffs - both members of the house of the Sulpicii, Servius and Caius - died this year. Their places were filled up by M. Aemilius Lepidus and Cnaeus Cornelius Scipio.

[32.8].On assuming office the new consuls convened the senate in the Capitol, and it was decreed that the consuls might either arrange between themselves about the two provinces of Macedonia and Italy, or they might ballot for them. The one to whom Macedonia fell was to raise 3000 Roman infantry and 300 cavalry in order to bring the legions up to their proper strength, and also 5000 men from the Latins and the allies and 500 cavalry. The army for the other consul was to be an entirely new one. L. Lentulus, the consul of the previous year, had his command extended and he received orders not to leave his province or bring away his veteran army until the consul arrived with the new legions. The result of the balloting was that Italy fell to Aelius and Macedonia to Quinctius. Amongst the praetors, L. Cornelius Merula received the jurisdiction in the City; M. Claudius, Sicily; M. Porcius, Sardinia, and C. Helvius, Gaul. The enrolment of troops followed, for in addition to the consular armies the praetors were required to levy forces. Marcellus enlisted 4000 Latin and allied infantry and 300 cavalry for service in Sicily, Cato raised 2000 foot and 200 horse of the same class for Sardinia, so that both these praetors on reaching their provinces might disband the old cavalry and infantry. When these dispositions were completed, the consuls

introduced a mission from Attalus to the senate. They announced that the king was assisting Rome with the whole of his military and naval strength and had up to that day done his utmost to carry out faithfully the behests of the Roman consuls, but he feared that he would not be at liberty to do this any longer; Antiochus had invaded his kingdom while it was left defenceless both by sea and land. He therefore requested the senate, if they wished to avail themselves of his fleet and his services in the Macedonian war, that either they themselves would send a force to protect his kingdom, or if they did not wish to do so, that they would allow him to return home and defend his dominions with his fleet and the rest of his forces. The senate instructed the consuls to convey the following reply to the delegates: "The assistance which King Attalus has given the Roman commanders with his fleet and other forces has been very gratifying to the senate. They will not themselves send assistance to Attalus against Antiochus since he is on terms of alliance and friendship with Rome, nor will they detain the auxiliaries which Attalus is furnishing longer than suits the king's convenience. When the Romans have made use of the resources of others they have always left liberty of action to others. If any wish to render active assistance to the Romans, it rests with them to take the first step as it does to take the last. The senate will send envoys to Antiochus to inform him that the Roman people are making use of Attalus' ships and men against their common enemy, Philip, and Antiochus will give gratification to the senate if he desists from hostilities and leaves Attalus' dominions alone. It is only just and right that monarchs who are allies and friends of Rome should also keep the peace towards each other."

[32.9]The consul T. Quinctius, in raising troops, took care to choose mainly those who had done good service in Spain or in Africa and who were men of tried courage. Anxious as he was to go to his province, he was delayed in Rome by the announcement of portents and the necessity of expiating them. Several places had been struck by lightning - the high road at Veii, the forum and the temple of Jupiter at Lanuvium, the temple of Hercules at Ardea, and at Capua walls and towers and the temple called Alba. At Arretium the sky appeared to be on fire. At Velitrae the earth subsided over a space of three jugera, leaving a huge chasm. At Suessa it was reported that a lamb had been born with two heads, and at Sinuessa a pig with a human head. In consequence of these portents a day of special

intercessions was proclaimed and the consuls arranged for the prayers and sacrifices. After thus placating the gods the consuls left for their respective provinces. Aelius took the praetor Helvius with him into Gaul and handed over to him the army which he had received from L. Lentulus, to be disbanded, whilst he himself prepared to continue the war with the legions he brought with him. He did not however do anything worth recording. The other consul, T. Quinctius, left Brundisium earlier than his predecessors had been in the habit of doing and sailed for Corcyra with an army of 8000 infantry and 800 cavalry. From there he crossed over in a quinquereme to the nearest part of the coast of Epirus, and proceeded by forced marches to the Roman camp. He sent Villius home and then waited a few days until his troops which were following him from Corcyra joined him. Meanwhile he held a council of war on the question whether he should march straight to the enemy's lines and force them, or whether, without attempting a task of such difficulty and danger, it would not be better to make a safe circuit through the Dessaretii and the country of Lyncus and enter Macedonia from that side. The latter proposal would have been adopted had not Quinctius feared that if he moved further from the sea his enemy might slip out of his hands, and seek safety as he had done before in forests and deserts, in which case the summer would be gone without any decisive result being arrived at. It was decided, therefore, in any case to attack the enemy where he was, in spite of the unfavourable ground over which the attack had to be made. But it was easier to decide that an attack should be made than to form a clear idea of how it should be made. For forty days they remained inactive in full view of the enemy.

[32.10] This led Philip to hope that he might arrange a peace through the mediation of the Epirotes. A national council was held at which Pausanias, their captain-general, and Alexander, the commander of their cavalry, were chosen to undertake the task, and they arranged a conference between the king and the consul at a point where the Aous contracts to its narrowest width. The sum and substance of the consul's demands were that the king should withdraw his garrisons from the various States, that he should restore to those of them whose cities and fields he had plundered all that they could recover, and make compensation for the rest upon a fair valuation. In reply Philip asserted that the cities were differently circumstanced. Those

which he had himself taken he would liberate, but as to those which had been bequeathed to him by his predecessors he would not give up what he had inherited as his lawful possession. If any of the States with whom he had been at war made complaint of the losses they had sustained he would submit the question to arbitration before any neutral nation whom they chose. To this the consul replied that in this matter at all events there was no need whatever for any arbitration, for who could fail to see that the responsibility for all wrongs lay with the aggressor, and in every case Philip had been the aggressor without having received any provocation? The discussion then turned upon the question, which communities were to be liberated. The consul mentioned the Thessalians to begin with. Philip was so furious at this suggestion that he exclaimed, "What heavier condition, T. Quinctius, could you impose upon a defeated foe?" and with these words hastily left the conference. It was with difficulty that the two armies were prevented from fighting with missiles, separated as they were by the breadth of the river. The next day the patrols on either side engaged in numerous skirmishes over the broad plain between the camps. Then the king's troops retired and the Romans in their eagerness for battle followed them on to confined and broken ground. They had the advantage in their order and discipline and in the nature of their armour which afforded protection to the whole person; the Macedonians were helped by the strength of their position, which enabled catapults and ballistae to be posted on almost every rock as though on a city wall. After many on both sides had been wounded and some had even fallen as in a regular battle, night put an end to the fighting.

[32.11]At this juncture a shepherd was brought to the consul who had been sent by Charopus, the leading man in Epirus. He said that he had been in the habit of pasturing his flock in the defile which was then occupied by the king's camp, and knew every track and turn on the mountains. If the consul cared to send a party with him he would lead them by a route which was not difficult or dangerous to a place where they would be over the enemy's head. On hearing this the consul sent to Charopus to find out whether he thought that the rustic was to be trusted in a matter of such importance. Charopus sent back word that he might trust him so far as to keep everything in his own hands, and not be at the mercy of his guide. Whilst wishing rather than daring to trust the man, and with mingled feelings of joy

and fear, he was so far swayed by the authority of Charopus as to try the chance which offered. In order to dispel all suspicion of his intended movement, he kept up continuously, for two days, attacks upon every part of the enemy's position, bringing up fresh forces to relieve those who were worn out with fighting. In the meantime he selected 4000 infantry and 300 cavalry and placed this picked force in charge of a military tribune with orders to take the cavalry as far as the ground allowed, and when it became impassable for mounted men he was to post them somewhere on level ground; the infantry were to follow the path indicated by the guide. When, as he promised, they reached a position above the enemy they were to give a signal by smoke and not raise the battle-shout until the consul had received the signal and could judge that the battle had begun. The consul ordered them to march by night - it happened to be moonlight all night - and to take their food and rest in the daytime. The guide was promised a very large reward if he proved faithful, he was, however, bound before being handed over to the tribune. After despatching this force the Roman commander subjected the Macedonian outposts to more vigorous pressure on all sides.

[32.12]The detached force reached the height which was their objective on the third day, and signalled by a column of smoke that they had seized and were holding it. Thereupon the consul, having formed his army into three divisions, advanced up the bottom of the ravine with his main strength and sent his right and left wings against the camp. The enemy showed no less alertness in meeting the attack. Eager to come to blows they moved out of their lines, and as long as they fought in the open, the Romans were vastly superior in courage and training and arms. But after losing many men in killed and wounded the king's troops retired upon positions strongly fortified or naturally secure, and then it was the turn of the Romans to be in difficulties, as they were advancing over dangerous ground where the narrow space made retreat almost impossible. Nor would they have been able to retire without paying heavily for their rashness had not the Macedonians heard shouts and found that a battle had begun in their rear. This unforeseen danger drove them frantic with terror, some fled in disorder, others who stood their ground, not so much because they had the courage to fight, as because there was no place for escape, were surrounded by the enemy who were pressing on in front and rear. The whole army might have been annihilated had the

victors been able to keep up the pursuit, but the cavalry were hampered by the rough and confined ground and the infantry by the weight of their armour. The king galloped off the field without looking behind him. After he had ridden some five miles, and rightly suspected from the nature of the country that the enemy would find it impossible to follow him, he came to a halt on some rising ground and sent his escort in all directions over hill and dale to rally his scattered troops. Out of the whole force his losses did not amount to more than 2000, and all the rest, as if in obedience to a signal, collected together and marched off in a strong column for Thessaly. After continuing the pursuit as far as they could with safety, cutting down the fugitives and despoiling the dead, they plundered the king's camp which even in the absence of defenders was difficult to approach. During the night they remained in camp, and the next day the consul followed the enemy through the gorge at the bottom of which the river wound its way.

[32.13]On the first day of his retreat the king reached a place called Pyrrhus' Camp in Molossian Triphylia. The next day he gained the Lyncon range, a tremendous march for his army, but their fears urged them on. This range is in Epirus and divides it from Macedonia on the north and Thessaly on the east. The mountain sides are clothed with dense forests and the summits form a wide table-land with perennial streams. Here the king remained encamped for several days, unable to make up his mind whether to go straight back to his kingdom or whether it would be possible for him first to make an incursion into Thessaly. He decided to march his army down into Thessaly and proceeded by the nearest route to Tricca, from which place he visited the surrounding cities in rapid succession. The men who were able to follow him were compelled to quit their homes and the towns were burnt. All the property they could carry with them they were allowed to take away, the rest became the booty of the soldiers. There was no cruelty that they could have suffered from an enemy greater than that which they experienced from their allies. These measures were extremely distasteful to Philip, but as the country would soon be in possession of the enemy he was determined to keep the persons, at all events, of his allies out of their hands. The towns which were thus devastated were Phacium, Iresiae, Euhydrium, Eretria and Palaepharsalus. At Pherae the gates were closed against him, and as a siege would have caused considerable

delay and he had no time to lose, he gave up the attempt and marched into Macedonia.

His retreat was hastened by the news of the approach of the Aetolians. When they heard of the battle which had taken place near the Aous, the Aetolians ravaged the country nearest to them round Sperchiaie, and Macra Come, as it is called, and then crossing the frontiers of Thessaly they gained possession of Cymene and Angea at the first assault. Whilst they were devastating the fields round Metropolis the townsmen who had mustered in force to defend their walls inflicted a repulse upon them. In an attack upon Callithera they met with similar resistance, but after an obstinate struggle they drove the defenders back within their walls. As there was no hope whatever of their effecting the capture of the place, they had to content themselves with this success. They next attacked the villages of Theuma and Celathara, which they plundered. Acharrae they gained by surrender; at Xyniae the terrified peasants fled and after thus abandoning their homes fell in with a detachment of Aetolians who were marching to Thaumaci to protect their foragers. The unarmed and helpless crowd were slaughtered by the armed soldiery and the abandoned Xyniae was sacked. Then the Aetolians took Cyphaera, a stronghold commanding Dolopia. These successful operations were rapidly carried out in a few days.

[32.14]Amynder and the Athamanians, on hearing of the Roman victory, did not remain inactive. As he felt little confidence in his soldiers Amynder begged the consul to lend him a small detachment with which to attack Gomphi. He began by seizing Phaeca, a place lying between Gomphi and the pass over Pindus which divides Athamania from Thessaly. Then he marched to the attack on Gomphi. For several days the inhabitants defended their city most vigorously, but when the scaling-ladders were at last placed against the walls their fears drove them to surrender. The fall of Gomphi created the liveliest alarm throughout Thessaly. The garrisons of Argenta, Pherinium, Timarum, Ligynae, Stimo and Lampsus surrendered in rapid succession together with other unimportant fortified posts in the neighbourhood. Whilst the Athamanians and the Aetolians, delivered from the Macedonian peril, were thus making their gain out of the victory which others had won, and Thessaly, doubtful whom to count as friend or foe, was being devastated by three armies at once, the consul marched

through the defile which the flight of the enemy had left open to him and entered the country of Epirus. He knew perfectly well which side the Epirotes, with the exception of Charopas, had favoured, but as he saw that they were anxious to repair their past mistakes by doing their utmost to carry out his commands, he measured them by their present rather than their former attitude, and through his clemency and readiness to forgive he secured their attachment for the future. After despatching instructions to Corcyra for the transports to come into the Ambracian Gulf he advanced by easy stages for four days and fixed his camp at the foot of the Cercetian range of mountains. Amynder was requested to bring up his troops to the same place, not so much because his assistance was required as because the consul wished to have them as his guides into Thessaly. Most of the Epirotes were allowed to volunteer for service also.

[32.15]The first Thessalian city to be attacked was Phalorium. It was garrisoned by 2000 Macedonians, and as far as arms and fortifications could protect them they offered a most determined resistance. The consul believed that failure to withstand the Roman arms in this first instance would decide the attitude of the Thessalians generally, and he pressed the attack day and night without intermission. At last the resolution of the Macedonians was overcome and Phalorium was taken. On this envoys came from Metropolis and Cierium to surrender their cities and to ask that their offence might be condoned. Their request was granted, but Phalorium was sacked and burnt. He then advanced against Aeginium, but when he saw that the place was practically impregnable even with a small force to defend it, he contented himself with discharging a few missiles on the nearest outpost and diverted his march toward Gomphi. As he had spared the fields of the Epirotes his army was now without the necessities of life, and on his descent into the plain of Thessaly he sent to find out whether the transports had reached Leucas or the Ambracian Gulf, and then despatched bodies of troops one after another in turn to Ambracia to procure corn. Though the route from Gomphi to Ambracia is a difficult and awkward one, it is very short, and in a few days the camp was replenished with stores of all kinds which had been brought up from the coast. His next objective was Atrax. This city lies on the Peneus about ten miles from Larissa and was founded by emigrants from Perrhaebia. The Thessalians felt no alarm at the appearance of the Romans, and Philip himself did not venture to

advance into Thessaly but remained encamped in Tempe, so that he could send help as occasion required to any place attempted by the Romans.

[32.16]Just about the time when the consul began his campaign against Philip by fixing his camp in the pass leading from Epirus, his brother L. Quinctius, to whom the senate had entrusted the charge of the fleet and the command of the coast-line, sailed to Corcyra with two quinqueremes. When he heard that the fleet had left, he decided to lose no time and followed it up to the island of Zama. Here he sent back Lucius Apustius, whom he had succeeded, and went on to Malea. The voyage was a slow one, the vessels which were accompanying him, laden with provisions, having mostly to be taken in tow. From Malea he proceeded with three swift quinqueremes to the Piraeus, leaving orders for the rest of the fleet to follow him as quickly as they could, and here he took over the ships which had been left by L. Apustius for the protection of Athens. At the same time two fleets sailed from Asia, one of twenty-three quinqueremes with Attalus, the other a Rhodian fleet of twenty decked ships, under Agesimbrotus. These fleets united off Andros and from there sailed to Euboea, which is only separated by a narrow strait. They began by laying waste the fields of the Carystians, but when Carystus was strengthened by reinforcements which were hurried up they sailed away to Eretria. On hearing that Attalus had arrived there, L. Quinctius proceeded thither with the squadron in the Piraeus after leaving orders for the rest of his fleet as they arrived to sail for Euboea.

A very fierce attack on Eretria now commenced. The vessels in the three fleets carried all kinds of siege engines and artillery, and the country around afforded an abundant supply of timber for the construction of fresh works. At first the townsmen defended themselves with considerable energy, but they gradually became worn out and many were wounded, and when they saw a portion of the walls levelled by the enemy's machines, they began to think about surrendering. But the garrison consisted of Macedonians and the townsmen were as much afraid of these as they were of the Romans. Philocles, Philip's lieutenant, also sent word that he would come to their assistance in time if they would hold out. Thus their hopes and fears constrained them to lengthen out the time beyond either their wishes or their strength. At last they heard that Philocles had been

defeated and was in hasty flight to Chalcis, and they at once sent spokesmen to Attalus to ask for mercy and protection. Hoping for peace they slackened their defence and contented themselves with guarding that part where the wall had been levelled. Quinctius, however, delivered an assault by night in the quarter where they least expected it and captured the city. The whole of the townsmen with their wives and children took refuge in the citadel and finally surrendered. There was not much gold and silver, but the statues and pictures by old-time artists and similar objects were discovered in greater quantities than might have been expected from the size and wealth of the city.

[32.17]Carystus was the next place to be attacked. Here before the troops were landed the entire population abandoned the city and took refuge in the citadel. Then they sent envoys to make terms with the Roman general. The townsmen were at once granted life and liberty; the Macedonians were allowed to depart after giving up their arms and paying a sum equivalent to 300 drachmae per man. After ransoming themselves at this sum they departed for Boeotia. After thus, within a few days, capturing two important cities in Euboea, the fleets rounded Sunium, a promontory in Attica, and brought up at Cenchreae, the commercial port of Corinth. Meanwhile the consul had on his hands a siege which proved to be more tedious and costly than any one anticipated, and the defence was conducted in a way he was quite unprepared for. He took it for granted that all his efforts would be devoted to the demolition of the walls and when once he had opened the way into the city the flight and slaughter of the enemy would follow as they usually do when cities are taken by assault. But after a portion of the wall had been battered down by the rams and the soldiers began to march over the debris into the city they found themselves at the beginning of a fresh task. The Macedonian garrison, a large body of picked men, considered it a special distinction to defend the city by their arms and courage rather than by walls, and they formed in close order, their front resting on a column of unusual depth. As soon as they saw the Romans clambering over the ruins of the wall they drove them back over ground covered with obstacles and ill-adapted for retirement.

The consul was intensely mortified, for he looked upon this humiliating repulse as not only helping to prolong the siege of one solitary city, but also as likely to influence the future course of the

war which, in his opinion, depended to a great extent upon unimportant incidents. After clearing the ground where the shattered wall lay in heaps he brought up a movable tower of immense height carrying a large number of men on its numerous stages, and sent on cohort after cohort to break through, if possible, the massed body of Macedonians, which they call the phalanx. But in the narrow space - for the breach in the wall was by no means a wide one - the kind of weapon he used and his style of fighting gave the enemy an advantage. When the serried Macedonian ranks presented their enormously long spears it was like a shield-wall, and when the Romans after fruitlessly hurling their javelins, drew their swords they could not get to close quarters, nor could they hack off the spear-heads; if they did succeed in cutting or breaking any off, the splintered shafts kept their places amongst the points of the uninjured ones and the palisade remained unbroken. Another thing which helped the enemy was the protection of their flanks by that part of the wall which was sound; they had not to attack or retire over a wide stretch of ground, which generally disorders the ranks. An accident which happened to the tower gave them still greater confidence. As it was being moved over ground not thoroughly beaten down, one of the wheels sank in and gave the tower such a list that it seemed to the enemy to be falling over.

[32.18] Though he was making no progress, what vexed the consul most was that he was allowing a comparison to be made between the tactics and weapons of the contending armies; he recognised that there was no near prospect of a successful assault, and no means of wintering so far from the sea in a country utterly wasted by the ravages of war, and under these circumstances he raised the siege. There was no harbour on the whole of the Acarnanian and Aetolian coast-line which would admit all the transports employed in provisioning the troops and at the same time furnish covered winter-quarters for the legionaries. Anticyra in Phocis, facing the Corinthian Gulf, seemed the most suitable place, as it was not far from Thessaly and the positions held by the enemy, and only separated from the Peloponnese by a narrow strip of sea. There he would have Aetolia and Acarnania behind him, and Locris and Boeotia on either side of him. Phanotea in Phocis was taken without any fighting; Anticyra only made a brief resistance; the captures of Ambrysus and Hyampolis speedily followed. Owing to the position of Daulis on a

lofty hill, its capture could not be effected by escalade or direct assault. By harassing the defending garrison with missiles and, when they made sorties, skirmishing against them, alternately advancing and retiring without attempting anything decisive, he brought them to such a pitch of carelessness and contempt for their opponents that when they retired within their gates the Romans rushed in with them and took the place by storm. Other unimportant strongholds fell into Roman hands more through fear than through force of arms. Elatea closed its gates against him and there seemed little probability of its admitting either a Roman general or a Roman army unless it were compelled to do so by force.

[32.19]While the consul was engaged in the siege of Elatea, the hope of achieving a greater success brightened before him, namely, of inducing the Achaeans to abandon their alliance with Philip and enter into friendly relations with Rome. Cycliadas, the leader of the Macedonian party, had been expelled, and Aristaenus, a favourer of the Roman alliance, was chief magistrate. The Roman fleet in conjunction with those of Attalus and Rhodes were anchored at Cenchreae, preparing to make a joint attack on Corinth. The consul thought that, before commencing operations, it would be better to send an embassy to the Achaeans and give an undertaking that if they would abandon the king and go over to the Romans, Corinth should be incorporated in the Achaean league. At the consul's suggestion, envoys were accordingly sent by his brother Lucius, and by Attalus, the Rhodians and the Athenians. A meeting of the council was convened at Sicyon. The Achaeans, however, were far from clear as to what course they ought to pursue. They were in fear of Nabis the Lacedaemonian, their dangerous and relentless enemy, they dreaded the arms of Rome, and they were under many obligations to the Macedonians for their kind services both in bygone years and recently. But the king himself they viewed with suspicion on account of his faithlessness and cruelty; his action at the time they attached no importance to, and saw clearly that after the war he would be more of a tyrant than ever. They were quite at a loss what view to express, either in the senates of their respective States or in the general council of the League; even when thinking the matter over by themselves, they could not make up their minds as to what it was they really wanted or what was best for them. Whilst the councillors were in this state of indecision the envoys were introduced and requested to state

their case. The Roman envoy, L. Calpurnius, was the first to speak. He was followed by the representatives of King Attalus, and then came the delegates from Rhodes. The emissaries of Philip were the next to speak, and the Athenians came last of all, that they might reply to the Macedonians. These last attacked the king with almost greater bitterness than any of the others, for none had suffered more or undergone such harsh treatment. The whole day was taken up with the continuous speeches of all these deputations, and at sunset the council broke up.

[32.20]The next day they were called together again. When, in accordance with Greek usage, the usher announced that the magistrates gave permission to speak to any one who wished to lay his views before the council, there was a long silence, each looking for some one else to speak. Nor was this surprising, when men who had been turning over in their minds proposals flatly opposed to each other until their brains had come to a standstill, were still further bewildered by speeches lasting the whole day through, in which the difficulties on both sides were set forth in tones of warning. At last, Aristaenus, the president, determined not to adjourn the council without discussion, said: "Where, Achaeans, are those lively disputes which go on at your dinner-tables and at the street corners, in which whenever Philip or the Romans are mentioned you can scarcely keep your hands off each other? Now, in a council convened for this special purpose, when you have heard the representatives of both sides, when the magistrates submit the question to discussion, when the usher invites you to express your views, you have become dumb. If care for the common safety fails to do so, cannot the party spirit which makes you take one side or the other, extort a word from any one? especially as no one is so dense as not to see that this is the moment, before any decree is passed, for speaking and advocating the course which commends itself to any one as the best. When a decree has once been made, every one will have to uphold it as a good and salutary measure, even those who previously opposed it." This appeal from the president not only failed to induce a single speaker to come forward, it did not even call forth a single cheer or murmur in that great assembly, where so many States were represented.

[32.21]Then Aristaenus resumed: "Leaders of the Achaeans, you are not lacking in counsel any more than you are in the power of speech, but each of you is unwilling to endanger his own safety in consulting

for the safety of all. Possibly I, too, should keep silence, were I only a private citizen, but as it is, I see that either the president ought not to have introduced the envoys into the council, or after he had introduced them they ought not to be dismissed without some reply being made to them. But how can I give them any reply except in accordance with the decree which you make? And since none of you who have been summoned to this council is willing or has the courage to express his opinion, let us examine the speeches which the envoys delivered yesterday as though they were made by members of this council, let us regard them not as making selfish demands in their own interest, but as recommending a policy which they believe to be advantageous to us. The Romans, the Rhodians and Attalus all ask for our alliance and friendship and consider that it is only just and right that we should give them assistance in the war they are waging against Philip. Philip, on the other hand, reminds us of the fact that we are his allies and have pledged our oath to him. At one time he demands our active support, at another he assures us that he is content for us to remain neutral. Has it not occurred to any one why those who are not yet our allies ask more from us than those who are our allies? This is not due to excess of modesty in Philip or to the lack of it in the Romans. It is the fortune of war which imparts confidence to the demands of one side and takes it away from those of the other. As far as Philip is concerned we see nothing belonging to him except his envoy. As for the Romans, their fleet lies at Cenchreae, laden with the spoils of the cities of Euboea, and we see the consul with his legions overrunning Phocis and Locris which are only separated from us by a narrow strip of sea. Do you wonder why Philip's envoy, Cleomedon, spoke in so diffident a tone when he urged us to take up arms against the Romans on behalf of his king? He impressed upon us the sanctity of the same treaty and oath, but if we were to ask of him, by virtue of the same treaty and oath, that Philip should defend us from Nabis and the Lacedaemonians, he would not be able to find a force adequate for our protection or even an answer to our request, any more than Philip himself could have done last year. For when he attempted to draw our fighting-men away into Euboea by promising that he would make war on Nabis, and saw that we would not sanction such an employment of our soldiers or allow ourselves to be involved in a war with Rome, he forgot all about the treaty which he is now making so much of, and left us to be despoiled and wasted by Nabis and the Lacedaemonians.

To me, indeed, the arguments that Cleomedon used appeared inconsistent with each other. He made light of a war with Rome and said that the issue would be the same as that of the former war. If so, then why does Philip keep away and ask for our assistance instead of coming in person and protecting us from Nabis and the Romans? 'Us,' do I say? Why, if this be so, did he allow Eretria and Carystus to be taken? why, all those cities in Thessaly? why, Locris and Phocis? Why is he allowing Elatea to be attacked now? Why did he evacuate the passes leading into Epirus and the unsurmountable barriers commanding the river Aous? And when he had abandoned them, why did he march off into the heart of his kingdom? If he deliberately left his allies to the mercies of their enemies how can he object to these allies taking measures for their own safety? If his action was dictated by fear he must pardon us for our fears. If he retreated because he was worsted shall we Achaeans, Cleomedon, withstand the arms of Rome when you Macedonians could not withstand them? You tell us that the Romans are not in greater strength or employing greater forces in this war than in the last one; are we to take your word for it, rather than look at the actual facts? On that occasion they only sent their fleet to help the Aetolians; they did not put a consul in command nor did they employ a consular army. The maritime cities belonging to Philip's allies were in a state of consternation and alarm, but the inland districts were so safe from the arms of Rome that Philip laid waste the land of the Aetolians while they were vainly imploring the Romans for help. Now, however, the Romans have brought the war with Carthage to a close, that war which for sixteen years they have had to endure, whilst it preyed, so to speak, on the vitals of Italy, and they have not simply sent a detachment to aid the Aetolians, they have themselves assumed command of the war and are attacking Macedonia by land and sea. Their third consul is now conducting operations with the utmost energy. Sulpicius met the king in Macedonia itself, routed him, put him to flight, and ravaged the richest part of his realm, and now, when he was holding the passes which form the key of Epirus, secured as he thought by his positions, his fortified lines and his army, Quinctius has deprived him of his camp, pursued him as he fled into Thessaly, stormed the cities of his allies and driven out his garrisons almost within sight of Philip himself.

Suppose there is no truth in what the Athenian delegate has said about the king's brutality and greed and lust, suppose that the crimes committed in Attica against all the gods, supernal and infernal, do not concern us, still less the sufferings of Chios and Abydos, which are a long way off; let us forget our own wounds, the robberies and murders at Messene in the heart of the Peloponnesus, the king's assassination of his host almost at the banquet-table, the deaths of the two Arati of Sicyon, father and son - the king was in the habit of speaking of the hapless old man as though he were his father - the abduction of the son's wife into Macedonia as a victim to Philip's lusts, and all the other outrages on matrons and maids - let all these be consigned to oblivion. Let us even imagine that we have not to do with Philip whose cruelty has struck you dumb (for what other reason can there be for you who have been summoned to the council keeping silence?), but with Antigonos, a gentle and just-minded monarch who has been the greatest benefactor to us all. Do you suppose that he would demand of us that we should do what cannot possibly be done? The Peloponnesus, remember, is a peninsula connected with the mainland by the narrow strip of land called the Isthmus, open and exposed above all to a naval attack. If a fleet of 100 decked ships and 50 undecked ships with lighter draught, and 30 Isaean cutters should begin to ravage our coast and attack the cities which stand exposed almost on the shore, we should, I suppose, withdraw into the inland cities just as if we were not caught by the flames of a war within our frontiers which is fastening upon our vitals. When Nabis and the Lacedaemonians are pressing us by land and the Roman fleet by sea, from what quarter am I to appeal to our alliance with the king and implore the Macedonians to help us? Shall we protect with our own arms the threatened cities against the Romans? How splendidly we protected Dymae in the last war! The disasters of others afford ample warning to us, let us not seek how we may become a warning to others.

Because the Romans are asking for your friendship voluntarily, take care that you do not disdain what you ought to have desired and done your best to obtain. Do you imagine that they are entrapped in a strange land and driven by their fears into wishing to lurk under the shadow of your assistance and seek the refuge of an alliance with you in order that they may have the entry of your harbours and make use of your supplies? The sea is under their control, whatever shores they

visit they at once bring under their dominion, what they deign to ask for they can obtain by force. It is because they wish to spare you that they do not allow you to take a step which would destroy you. As to the middle course which Cleomedon pointed out as the safest, namely, that you should keep quiet and abstain from hostilities, that is not a middle course, it is no course at all. We have either to accept or reject the proffered alliance with Rome; otherwise we shall win the gratitude of neither side, but like men who wait upon the event, leave our policy at the mercy of Fortune, and what is this but to become a prey of the conqueror? What you ought to have sought with the utmost solicitude is now spontaneously offered; beware lest you scorn the offer. Either alternative is open to you today, it will not be open always. The opportunity will not long remain, nor will it often recur. For a long time you have wished rather than ventured to free yourselves from Philip. The men who would win your liberty for you without any risk or effort on your part have crossed the seas with mighty fleets and armies. If you reject their alliance you are hardly in your right senses, but you will be compelled to have them as either friends or enemies."

[32.22]At the close of the president's speech a hum of voices ran through the assembly, some approving, others fiercely attacking those who approved. Soon not only individual members but the collective representatives of each State were engaged in mutual altercations, and at last the chief magistrates of the League, the *damiurgi* as they are called, ten in number, were disputing with quite as much heat as the rest of the assembly. Five of them declared that they would submit a proposal for alliance with Rome and take the votes on it; the other five protested that it was forbidden by law for the magistrates to propose or for the council to adopt any resolution adverse to the existing alliance with Philip. So the second day was wasted in wrangling. Only one day now remained for the legal session of the council, for the law required its decree to be made on the third day. As the time approached, party feeling ran so high that fathers could hardly keep their hands off their children. *Risias*, a delegate from *Pallene*, had a son called *Memnon* who was one of the *damiurgi* who were opposed to the resolution being moved and voted upon. For a long time he appealed to his son to permit the Achaeans to take measures for their common safety and not by his obstinacy bring ruin on the whole nation. When he found that his appeal had no effect he

swore that he would count him not as a son but as an enemy and would put him to death with his own hand. The threat proved effectual and the next day Memnon joined those who were in favour of the resolution. As they were now in a majority they put the resolution amidst the unmistakable approval of almost all the States, a clear indication of what the final decision would be. Before it was actually carried, the representatives of Dymae and Megalopolis and some of those from Argos rose and left the council. This did not occasion surprise or disapproval considering the position in which they were placed. The Megalopolitans after being expelled by the Lacedaemonians in the days of their grandfathers had been reinstated by Antigonus. Dymae had been taken and sacked by the Romans and the inhabitants sold into slavery, and Philip had issued orders for them to be ransomed wherever they could be found, and had restored them to liberty and to their city. The Argives, who believed that the kings of Macedonia had sprung from them, had, most of them, been long attached to Philip by ties of personal friendship. For these reasons they withdrew from the council when it showed itself in favour of making an alliance with Rome, and their secession was considered excusable in view of the great obligations they were under for the kindness recently shown to them.

[32.23] On being called upon to vote, the remaining Achaean States desired the immediate conclusion of an alliance with Attalus and the Rhodians. As an alliance with Rome could not be made without a resolution of the Roman people the question was adjourned until envoys could be sent there. Meantime it was decided that three representatives should be sent to L. Quinctius and that the whole of the Achaean army should be brought up to Corinth as Quinctius had already begun to attack the city, now that he had taken Cenchreae. The Achaeans fixed their camp in the direction of the gate which leads to Sicyon, the Romans on the other side of the city which looks towards Cenetreae, Attalus brought his army through the Isthmus and attacked the city on the side of Lechaem, the port on the Gulf of Corinth. At first the attack did not show much spirit, as hopes were entertained of internal discord between the townsmen and Philip's garrison. When however it was seen that all were at one in meeting the assault, the Macedonians as energetic as though they were defending their native soil, the Corinthians obeying the orders of Androsthenes, the commandant, as loyally as though he were a

fellow-citizen, placed in command by themselves, then the assailants placed all their hopes in their arms and their siege-works. In spite of the difficulties of approach, mounds were built up against the walls on all side. On the side where the Romans were working, the battering-rams had destroyed some part of the wall and the Macedonians came up in force to defend the breach. A furious conflict began and the Romans were easily driven out by the overwhelming numbers of the defenders. Then the Achaeans and Attalus came up in support and made the contest a more equal one. and it seemed pretty certain that they would not have much difficulty in forcing the Macedonians and the Greeks to give way. There was a large body of Italian deserters, consisting partly of those from Hannibal's army who had entered Philip's service to escape punishment at the hands of the Romans and partly of seamen who had left the fleet for the prospect of the more respectable military life. These men, despairing of their lives in case the Romans conquered, were inflamed with madness more than with courage. Opposite Sicyon lies the promontory of Acraean Juno, as she is called, which juts out into the sea; the distance across from Corinth is about seven miles. To this point Philocles, one of the king's generals, brought a force of 1500 men through Boeotia. Vessels from Corinth were in readiness to carry this detachment to Lechaeum. Attalus advised that the siege should be raised at once and the siege-works burnt, but the Roman commander showed great resolution and was for persisting in the attempt. When however he saw Philip's troops strongly posted in front of all the gates and realised that it would be difficult to withstand their attacks in case they made sorties, he fell in with Attalus' view. The operation was accordingly abandoned and the Achaeans were sent home. The rest of the troops re-embarked, Attalus sailed for the Piraeus and the Romans for Corcyra.

[32.24]While the naval forces were thus engaged, the consul encamped before Elatea in Phocis. He began by inviting the leading citizens to a conference and tried to induce them to surrender, but they told him that matters were not in their hands, the king's troops were stronger and more numerous than the townsmen. On this he proceeded to attack the city on all sides with arms and siege artillery. After the battering-rams had been brought up, a length of wall between two towers was thrown down with a terrific crash and roar,

leaving the city exposed. A Roman cohort at once advanced through the opening thus made, and the defenders leaving their different posts rushed from all parts of the city to the threatened spot. Whilst the Romans were clambering over the ruins of the wall others were fixing their scaling-ladders against the walls which were still standing, and the attention of the enemy being diverted in one direction, walls in other parts were successfully scaled and the assailants descended into the city. The noise of the tumult so terrified the enemy that they left the place which they had been so vigorously defending and fled every one to the citadel, followed by crowds of non-combatants. Having thus gained possession of the city, the consul gave it up to plunder. He then sent a message to those in the citadel promising to spare the lives of Philip's troops if they gave up their arms, and also to restore to the Elateans their freedom. When the necessary guarantees had been given, he secured the citadel after a few days.

[32.25]The appearance of Philocles in Achaia not only raised the siege of Corinth but brought about the loss of Argos, which was betrayed by the leaders of the city acting with the full concurrence of the population. It was customary with them on the day of the elections for the presiding magistrates, as an omen of good fortunes, to commence the proceedings by uttering the names of Jupiter, Apollo and Hercules, and a law had been made ordering Philip's name to be added. After the alliance with Rome had been made the usher did not add his name and the people broke out into angry murmurs, and soon shouts were heard demanding the restoration of Philip's name and the honours which were his by law, till at last the name was uttered amidst tremendous cheers. Replying upon this proof of his popularity, Philip's partisans invited Philocles, and during the night he seized a hill which commanded the city; the stronghold was called Larissa.. Posting a detachment there, he marched down in order of battle to the forum which lay at the foot of the hill. Here he found a body of troops drawn up to dispute his progress. It was an Achaean force which had recently been thrown into the city, consisting of 500 men selected from all the cities under the command of Aenesidemus of Dymae. Philocles sent a spokesman to them, bidding them evacuate the place, since they were no match even for the Macedonian supporters in the town, still less so now that they had the Macedonians with them, those Macedonians against whom even the Romans could not make a stand at Corinth. At first his warning

made no impression on either the commander or his men, but soon afterwards when they saw a large body of Argives in arms marching against them from another side, they saw that their fate was sealed, though had their commander persisted in his defence of the place they were evidently prepared to fight to the death. Aenesidemus, however, was unwilling that the flower of the Achaean soldiery should be lost together with the city, and he came to an understanding with Philocles that they should be allowed to depart. He himself, however, remained standing under arms together with a few of his personal followers. Philocles sent to ask him what his intention was, and without moving a step and holding his shield in front of him he replied that he would die fighting in defence of the city entrusted to him. The general then ordered the Thracians to shower their darts upon them, and the whole party were killed. Thus, even after the alliance between the Achaeans and the Romans had been cemented two of the most important cities, Argos and Corinth, were in the king's hands. Such were the operations of the naval and military forces of Rome, during this summer, in Greece.

[32.26]In Gaul nothing of any importance was accomplished by the consul Sex. Aelius, though he had two armies in the province. He retained the one which L. Cornelius had commanded and which ought to have been disbanded, and placed C. Helvius in command of it, the other army he brought with him into the province. Almost the whole of his year of office was spent in compelling the former inhabitants of Cremona and Placentia to return to the homes from which they had been dispersed by the accidents of war. While things were unexpectedly quiet in Gaul this year, the districts round the City very nearly became the scene of a rising among the slaves. The Carthaginian hostages were under guard at Setia. As children of the nobility they were attended by a large body of slaves whose numbers had been swelled by many whom the Setians themselves had purchased from among the prisoners taken in the recent war in Africa. When they had set their conspiracy on foot they sent some of their number to gain over the slaves in the country round Setia and then in the districts of Norba and Cerceii. Their preparations being now sufficiently advanced they arranged to seize the opportunity of the Games which were shortly to take place at Setia and attack the people while their attention was absorbed in the spectacle. Then in

the midst of the excitement and bloodshed the slaves were to seize Setia and then secure Norba and Cerceii.

Information of this monstrous affair was brought to Rome and laid before L. Cornelius, the City praetor. Two slaves came to him before daybreak and gave him a full account of what had been done and what was contemplated. After issuing instructions for them to be detained in his house he convened the senate and communicated the intelligence which the informers had brought. He received instructions to start off at once to investigate and crush the conspiracy. Accompanied by five assessors he compelled all whom he found in the fields to take the military oath, arm themselves and follow him. In this informal levy he collected an armed force of about 2000 men with which he reached Setia, all of them being perfectly ignorant of his destination. Here he promptly seized the ringleaders, and this led to a general flight of slaves from the town. Parties were sent through the fields to hunt them down. . . . The service rendered by the two slaves who gave the information and by one who was a freeman was of the utmost value. To the latter the senate ordered a gratuity of 100,000 ases, to each of the slaves 5000 ases and their liberty, the owners being compensated out of the public treasury. Not long afterwards news arrived that some slaves, the remains of that conspiracy, were intending to seize Praeneste. L. Cornelius proceeded thither and inflicted punishment on nearly 2000 who had been involved in the plot. Fears were entertained by the citizens lest the Carthaginian hostages and prisoners of war should have been prime movers in the affair. Strict watch was accordingly kept in Rome in all the different wards, the subordinate magistrates were required to visit the posts and the superintendents of gaols were to see that the public prison at the quarries was more strictly guarded. Instructions were also sent by the praetor to the Latin communities for the hostages to be kept in privacy and not allowed to appear in public; the prisoners were to be manacled with fetters not less than ten pounds in weight, and not to be confined in custody anywhere but in the State prisons.

[32.27] During the year a delegation from King Attalus deposited in the Capitol a golden crown weighing 246 pounds. They also tendered his thanks to the senate for the intervention of the Roman envoys, as owing to their representations Antiochus had withdrawn his army from Attalus' territories. In the course of the summer 200 mounted

men, 10 elephants and 200,000 modii of wheat were sent by Masinissa to the army in Greece. From Sicily and Sardinia also a large quantity of provisions and clothing were despatched for the army. M. Marcellus was administering Sicily; M. Porcius Cato, Sardinia. The latter was a man of integrity and blameless life, but was considered somewhat too severe in his repression of usury. The moneylenders were banished from the island, and the sums which the inhabitants had contributed towards keeping up the state and dignity of the praetors were either cut down or totally abolished. The consul Sex. Aelius came back from Gaul to conduct the elections; C. Cornelius Cethegus and Q. Minucius Rufus were the new consuls. Two days later followed the election of praetors. In consequence of the increase in the provinces and the extension of the dominion of Rome, six praetors were elected this year for the first time, viz., L. Manlius Volso, C. Sempronius Tuditanus, M. Sergius Silus, M. Helvius, M. Minucius Rufus and L. Atilius. Amongst these Sempronius and Helvius were the plebeian aediles; the curule aediles were Q. Minucius Thermus and Tiberius Sempronius Longus. The Roman Games were celebrated four times during the year.

[32.28]The first business before the new consuls was the settlement of the provinces both praetorian and consular. As the praetors' spheres of administration could be determined by ballot they were the first to be dealt with. The City jurisdiction fell to Sergius, the alien jurisdiction to Minucius; Atilius drew Sardinia; Manlius, Sicily; Sempronius, Hither Spain; and Helvius, Further Spain. Whilst the consuls were arranging to ballot for Italy and Macedonia, two of the tribunes of the plebs, L. Oppius and Q. Fulvius, objected to their doing so. Macedonia, they alleged, was a distant province, and nothing up to that time had stood in the way of a successful war more than the fact that when operations had hardly commenced the former consul was always recalled just as he was opening his campaign. This was the fourth year since war had been declared against Macedonia. Sempronius had spent most of the year in trying to find the king and his army. Villius had actually come into touch with the enemy but was recalled before any decisive action had been fought. Quinctius had been detained in Rome for the greater part of the year by matters connected with religion, but had he reached his province earlier or had the winter begun later his conduct of affairs showed that he could have brought the war to a close. He had now almost gone into winter

quarters, but it was asserted that he had given such a complexion to the war that if his successor did not interfere with him he would finish it in the summer. By using language of this kind they so far succeeded that the consuls promised to accept the decision of the senate if the tribunes would do the same. As both parties left the senate free to act, a decree was made that Italy should be administered by both consuls and T. Quinctius confirmed in his command until such time as the senate should appoint his successor. Each of the consuls had two legions assigned to him, and with these they were to carry on the war against the Cis-Alpine Gauls who had revolted from Rome. Reinforcements were also voted for Quinctius to be employed against Macedonia, comprising 6000 foot and 300 horse and also 3000 seamen. L. Q. Flaminius retained his place as commander of the fleet. Each of the praetors who were to act in Spain received 8000 infantry furnished by the Latins and allies and 400 cavalry; these were to take the place of the old army which was to be sent home. They were also to determine the boundaries of the two provinces of Hither and Further Spain. P. Sulpicius and P. Villius who had formerly been in Macedonia as consuls were appointed to Quinctius' staff.

[32.29]Before the consuls and praetors left for their respective provinces steps were taken to expiate various portents which had been announced. The temples of Vulcan and Summanus in Rome and one of the gates with a portion of the wall at Fregellae were struck by lightning; at Frusino the sky became lit up during the night; at Aesula a two-headed lamb with five feet was born; at Formiae two wolves entered the town and mauled several people who fell in their way; at Rome a wolf entered the City and even made his way into the Capitol. C. Atinius, one of the tribunes of the plebs, carried a proposal for founding five colonies on the coast, two at the mouths of the Volturnus and Lirernus, one at Puteoli, one at the Castrum Salerni, and finally Buxentum. It was decided that each colony should consist of 300 households, and three commissioners were appointed to supervise the settlement. They were to hold office for three years. The commissioners were M. Servilius Geminus, Q. Minucius Thermus and Tiberius Sempronius Longus. When they had raised the required force and completed all the necessary business, both sacred and secular, both the consuls left for Gaul. Cornelius took the direct road to the Insubres, who in conjunction with the Cenomani were in

arms; Q. Minucius bent his course to the left side of Italy towards the Adriatic, and marching his army to Genua began operations in the direction of Liguria. Two fortified towns, Clastidium and Litubium, both belonging to the Ligurians, and two of their communities, the Celeiates and the Cerdiciates, surrendered. All the tribes on this side the Po were now reduced except the Boii in Gaul and the Ilvates in Liguria. It was stated that 15 fortified towns and 20,000 men surrendered.

[32.30]From there he led his legions into the country of the Boii, whose army had not long before crossed the Po. They had heard that the consuls intended to attack with their united legions, and in order that they too might consolidate their strength by union they had formed a junction with the Insubres and Cenomani. When a report reached them that one of the consuls was firing the fields of the Boii, a sharp difference of opinion arose; the Boii demanded that all should render assistance to those who were hard pressed, the Insubres declared that they would not leave their own country defenceless. Their forces were accordingly divided; the Boii went off to protect their country, the Insubres and Cenomani took up a position on the bank of the Mincius. On the same river, two miles lower down, Cornelius fixed his camp. From there he sent to make enquiries in Brixia, their capital. and in their villages, and from what he learnt he was quite satisfied that it was not with the sanction of their elders that the younger men had taken up arms, nor had the national council authorised any assistance being given to the revolted Insubrians. On learning this he invited their chiefs to a conference and tried to induce them to break with the Insubres and either return home or go over to the Romans. He was unable to gain their consent to the latter proposal, but they gave him assurances that they would take no part in the fighting, unless occasion should arise, in which case they would assist the Romans. The Insubres were kept in ignorance of this compact, but they felt somewhat suspicious as to the intentions of their allies, and in forming their line they did not venture to entrust them with a position on either wing lest they should abandon their ground through treachery and involve the whole army in disaster. They were accordingly stationed in the rear as a reserve. At the outset of the battle the consul vowed a temple to Juno Sospita in case the enemy were routed that day, and the shouts of the soldiers assured their commander that they would enable him to fulfil his vow. Then

they charged, and the Insubres did not stand against the first shock. Some authors say that the Cenomani attacked them from behind while the battle was going on and that the twofold attack threw them into complete disorder, 35,000 men being killed and 5200 made prisoners, including the Carthaginian general Hamilcar, the prime instigator of the war. 130 standards were taken and numerous wagons. Those of the Gauls who had followed the Insubres in their revolt surrendered to the Romans.

[32.31]The consul Minucius had carried his plundering expeditions throughout the country of the Boii, but when he heard that they had deserted the Insubres and returned to defend their country, he kept within his camp, intending to meet them in a general engagement. The Boii would not have declined battle if the news of the defeat of the Insubrians had not broken their spirit. They abandoned their leader and their camp and dispersed to their villages, each man prepared to defend his own property. This made their antagonist change his plans, for as there was no longer any hope of forcing decision in a single action he resumed the plundering of their fields, and burnt their villages and farms. It was at this time that Clastidium was burnt. The Ilvates were now the only Ligurian tribe which had not submitted, and he led the legion against them. They too, however, surrendered when they had learnt the defeat of the Insubrians and also that the Boii were so discouraged that they would not venture to hazard an engagement. The despatches from the two consuls announcing their successes reached Rome about the same time. The City praetor, M. Sergius, read them in the senate and was authorised by that body to read them in the Assembly. A four days' thanksgiving was ordered.

[32.32]Winter had now set in and T. Quinctius, after the capture of Elatea, had quartered his troops in Phocis and Locris. Political dissensions broke out in Opus, the one party summoned the Aetolians, who were the nearer, to their aid, the other party called in the Romans. The Aetolians were the first to arrive on the scene, but the other party, the wealthier and more influential one, refused them admittance and after despatching a message to the Roman general held the city pending his arrival. The citadel was garrisoned by Philip's troops and neither the threats of the Opuntians nor the authoritative tone of the Roman commander availed to turn them out. The place would have been attacked at once had not a herald

arrived from the king asking for a place and time to be appointed for an interview. After considerable hesitation the request was granted. Quinctius' reluctance was not due to his not wishing to have the credit of bringing the war to a close by arms and by negotiations, for he did not yet know whether one of the new consuls might not be sent out as his successor or whether he would be continued in his command, a decision which he had charged his friends and relations to do their utmost to secure. He thought, however, that a conference would suit his purpose and leave him at liberty to turn it in favour of war if he remained in command, or of peace if he had to leave.

They selected a spot on the shore of the Maliac Gulf near Nicaea. The king proceeded thither from Demetrias in a war-vessel escorted by five swift barques. He was accompanied by some of the Macedonian magnates and also by a distinguished Aetolian refugee, named Cyliadas. With the Roman commander were King Amynder. Dionysodorus, one of Attalus' staff, Agesimbrotus, commandant of the Rhodian fleet, Phaeneas, the chief magistrate of the Aetolians, and two Achaeans, Aristaenus and Xenophon. Surrounded by this group of notables the Roman general advanced to the edge of the beach, and on the king coming forward to the head of his ship, which was lying at anchor, he called out to him, "If you would step ashore we should both address and hear one another more comfortably." The king refused to do this, on which Quinctius asked, "What on earth are you afraid of?" In a proud and kingly tone Philip replied, "I fear no one but the immortal gods; but I do not trust all those I see about, and least of all the Aetolians." "That," answered Quinctius, "is a danger to which all who go into conference with an enemy are equally exposed, if, that is, no faith is kept." "Yes, T. Quinctius," was Philip's rejoinder "but the rewards of treachery, should any be meditated, are not the same for both sides; Philip and Phaeneas are not equal in value. The Aetolians would not find it so difficult to substitute another magistrate, as the Macedonians would to replace their king." After this no more was said.

[32.33]The Roman commander thought it only right that the one who had asked for the conference should begin the conversation, the king considered that the discussion should be opened by the men who proposed terms of peace, not by the one who was to accept them. Thereupon the Roman observed that what he had to say would be quite simple and straightforward; he should merely state those

conditions without which peace would be impossible. "The king must withdraw his garrisons from all the cities in Greece; the prisoners and deserters must be handed back to the allies of Rome; those places in Illyria which he had seized after the conclusion of peace in Epirus must be restored to Rome; the cities which he had taken forcible possession of after the death of Ptolemy Philopator must be given back to Ptolemy, the king of Egypt. These," he said, "are my conditions and those of the people of Rome, but it is right and proper that the demands of our allies should also be heard." The representative of King Attalus demanded the restoration of the ships and prisoners that had been taken in the sea-fight off Chius, and also that the Nicephorium and the temple of Venus which the king had plundered and desolated should be restored to their former condition. The Rhodians demanded the cession of Peraea, a district on the mainland opposite their island and formerly under their sway, and insisted upon the withdrawal of Philip's garrisons from Iasos, Bargyliae and Euromus, as well as from Sestos and Abydos on the Hellespont, the restoration of Perinthus to the Byzantines with the re-establishment of their old political relations and the freedom of all the markets and ports in Asia. Phaeneas, as representing the Aetolians, demanded, almost in the same terms as the Romans, the evacuation of Greece and the restoration of the cities which had formerly been under the rule of the Aetolians.

He was followed by a leading Aetolian, named Alexander, who was, for an Aetolian, an eloquent speaker. He had long remained silent, he said, not because he thought that the conference would lead to any result, but simply because he did not want to interrupt any of the speakers who represented his allies. "Philip," he continued, "is not straightforward in discussing terms of peace nor has he shown true courage in the way he has conducted war. In negotiation he is deceitful and tricky, in war he does not encounter his enemy on fair ground or fight a set battle. He keeps out of his adversary's way, plunders and burns his cities, and when vanquished destroys what should be the prizes of the victors. The former kings of Macedonia did not behave in this way; they trusted to their battle-line, and spared the cities as far as possible that their dominions might be all the richer. What sort of policy is that of destroying the very things which a man is fighting to secure, and leaving nothing for himself but the mere war? Last year Philip laid waste more cities in Thessaly, though

they belonged to his allies, than any enemy that Thessaly ever had. Even from us Aetolians he has taken more cities since he became our ally than he did while he was our enemy. He seized Lysimachia after expelling the Aetolian garrison and its commandant; in the same way he completely destroyed Cius, a member of our league. By similar treachery he is now master of Thebes, Phthiae, Echinus. Larisa and Pharsalus."

[32.34]Stung by Alexander's speech, Philip moved his ship nearer to the land in order that he might be better heard, and commenced a speech mainly directed against the Aetolians. He was, however, hotly interrupted at the outset by Phaeneas, who exclaimed: "Matters are not to be settled by words. Either you must conquer in war or you must obey those who are better than you." "That," replied Philip, "is obvious, even to a blind man" - a mocking allusion to Phaeneas' defective vision. He was by nature more given to jesting than a king ought to be, and even in the midst of serious business did not sufficiently restrain his laughter. He went on to express his indignation at the Aetolians ordering him, just as if they were Romans, to evacuate Greece, when they could not tell within what boundaries Greece lies. Even in Aetolia itself the Agraei, the Apodoti and the Amphiloichi, who form a considerable part of its population, are not included in Greece. "Have they," he continued, "any right to complain of my not leaving their allies alone, when they themselves keep up the ancient custom, as though it were a legal obligation, of allowing their younger men to bear arms against their own allies, the sanction of their government alone wanting? Thus it very frequently happens that opposing armies have contingents drawn from Aetolia on both sides. As to Cius, I did not actually storm it, but I lent assistance to Prusias, my ally and friend, in his attack on the place. Lysimachia I claimed from the Thracians, but as I had to give my whole attention to this war and was unable to guard it, the Thracians still hold it.

So much for the Aetolians. With regard to Attalus and the Rhodians, in strict justice I owe them nothing, for the war was started not by me but by them. Still, to show my esteem for the Romans, I will restore Peraea to the Rhodians and the ships to Attalus with all the prisoners that can be found. Touching the restoration of the Nicephorium and the temple of Venus, what reply can I give to this demand further than to say that I will undertake the care and expense

of replanting - the only way in which woods and groves that have been cut down can be restored - since such demands it is the pleasure of kings to make and grant to each other?" The close of his speech was a reply to the Achaeans. After enumerating the services rendered to that nation, first by Antigonus and then by himself, he ordered the decrees to be read, which they had passed in his favour, showering upon him all honours human and divine, and then confronted them with the one they had lately passed in which they resolved to break with him. Whilst bitterly reproaching them for their faithlessness, he nevertheless promised to restore Argos to them. The position of Corinth he should discuss with the Roman general, and he should at the same time ask him whether he thought it fair that he should renounce all claim to the cities which he had himself captured and held by the rights of war, and even to those which he had inherited from his ancestors.

[32.35]The Achaeans and the Aetolians were preparing to reply, but as it was almost sunset the conference was adjourned to the morrow. Philip returned to his anchorage and the Romans and allies to their camps. Nicaea had been fixed upon for the next meeting and Quinctius arrived there punctually on the following day, but there was no Philip anywhere, nor did any message arrive from him for several hours. At last, when they had given up all hope of his coming, his ships suddenly appeared. He explained that as such heavy and humiliating demands were made upon him and he was at a loss how to act, he had spent the day in deliberation. It was generally believed that he had purposely delayed the proceedings till late in the day in order that no time might be left for the Achaeans and Aetolians to make their reply. This suspicion was confirmed when he requested that, in order to avoid waste of time in recriminations and bring the matter to a final issue, the others might be allowed to withdraw, and he and the Roman general left to confer together. At first this was demurred to, as it would look as if the allies were shut out from the conference, but as he persisted in his demand, it was agreed to by all that the others should withdraw and the Roman commander accompanied by a military tribune, Appius Claudius, should go forward to the edge of the beach whilst the king attended by two of his suite came ashore. There they conversed for some time in private. It is not known what report of the interview Philip gave to his people, but the statement which Quinctius made to the allies was to the effect

that Philip was prepared to cede to the Romans the whole of the Illyrian coast and deliver up the refugees and any prisoners there might be; to return to Attalus his ships and their captured crews; to restore to the Rhodians the district they call Peraea, but he would not evacuate Iasos and Bargyliae; to the Aetolians he would restore Pharsalus and Larisa but not Thebes; to the Achaeans he would cede not only Argos but Corinth as well. Not one of the parties concerned was satisfied with these proposals, for they said that they were losing more than they were gaining, and unless Philip withdrew his garrisons from the whole of Greece, grounds of quarrel would never be wanting.

[32.36] All the members of the council were loud in their protests and remonstrances, and the noise reached Philip who was standing at some distance. He asked Quintius to postpone the whole business till the next day; he was quite certain that either he would bring them over to his view, or fall in with theirs. The sea-shore at Thronium was fixed upon for the conference and they assembled there at an early hour. Philip began by urging Quintius and all who were present not to insist upon destroying all hopes of peace. He then asked for time to enable him to send ambassadors to the Roman senate, he would either obtain peace on the terms he proposed or accept whatever conditions the senate offered. This suggestion met with no acceptance whatever, they said that his only object was to gain time to collect his forces. Quintius observed that this might have been true if it had been summer, and the season suitable for a campaign, but as winter was now closing in nothing would be lost by allowing him sufficient time to send his ambassadors. No agreement that he might have made with the king would be valid without the ratification of the senate, and whilst the winter necessarily put a stop to military operations, it would be possible to find what conditions of peace the senate would sanction. The rest of the negotiators fell in with this view and a two months' armistice was arranged. The different States decided to send each one envoy to lay the facts before the senate so that they might not be misled by Philip's false statements. It was further agreed that before the armistice could come into force, the king's garrisons must be withdrawn from Phocis and Locris. To give greater importance to the mission Quintius sent in company with them Amynder, king of the Athamanians, Q. Fabius, his sister-in-law's son, Q. Fulvius and Appius Claudius.

[32.37]On their arrival in Rome the delegates of the allies were received in audience before those from Philip. Their address to the senate was mainly taken up with personal attacks on the king, but what weighed most with the senate was their description of that part of the world and the distribution of sea and land. From this they showed clearly that as long as Philip held Demetrias in Thessaly, Chalcis in Euboea, and Corinth in Achaia Greece could not be free; Philip himself with as much truth as insolence called these the fetters of Greece. The king's envoys were then introduced and had commenced a somewhat lengthy address when they were interrupted by the pointed question: "Is he prepared to evacuate those three cities?" They replied that they were not mentioned in their instructions. On this they were dismissed and the negotiations broken off, the question of peace or war being left entirely to Quinctius. As it was quite evident that the senate were not averse from war, and as Quinctius himself was more anxious for victory than for peace, he refused any further interview with Philip, and said that he would not admit any envoys from him unless they came to announce that he was withdrawing entirely from Greece.

[32.38]When Philip saw that matters must be decided on the battlefield, he called in his forces from all quarters. His main anxiety was about the cities in Achaia, which were so far away, and he was more uneasy about Argos than about Corinth. He thought the best course would be to place it in the hands of Nabis, the tyrant of Lacedaemon, as a deposit to be restored to him should he be victorious, or should he meet with reverses to remain under the tyrant's rule. He wrote to Philocles, who was governor of Corinth and Argos, bidding him discuss the matter with Nabis. Philocles took a present with him, and as a further pledge of future friendship between the king and the tyrant he informed Nabis that Philip wished to form a matrimonial alliance between his daughters and Nabis' sons. At first the tyrant refused to accept the city unless the Argives themselves, by a formal decree, summoned him to their assistance. When, however, he heard that at a crowded meeting of their Assembly the Argives were pouring contempt and even execration on his name, he considered that he had got a sufficient justification for plundering them and he told Philocles that he might deliver up the city whenever he chose. The tyrant was admitted into the place in the night without arousing any suspicion; at daybreak all the

commanding positions were occupied and the gates closed. A few of the principal citizens had escaped at the beginning of the tumult and their property was seized; those who still remained had all their gold and silver taken away and very heavy fines were imposed upon them. Those who paid up promptly were dismissed without insult or injury, those who were suspected of concealing or withholding anything were flogged and tortured like slaves. A meeting of their Assembly was then summoned in which he promulgated two measures, one for the cancelling of debts and another for the division of land - two firebrands with which the revolutionaries were to inflame the lower classes against the aristocracy.

[32.39]When the city of the Argives was once in his power, the tyrant no longer troubled himself about the man who had made it over to him or the conditions on which he had accepted it. He despatched emissaries to Quinctius in Elatea and to Attalus who was wintering in Aegina, to inform them that he was master of Argos. They were also to intimate to Quinctius that if he would come to Argos, Nabis felt confident that a complete understanding would be arrived at. Quinctius' policy was to deprive Philip of all support, and he consented to visit Nabis, and at the same time sent word to Attalus to meet him in Sicyon. Just at this time his brother Lucius happened to bring up ten triremes from his winter quarters at Corcyra, and with these Quinctius sailed from Anticyra to Sicyon. Attalus was already there, and when they met he remarked that the tyrant ought to go to the Roman commander and not the Roman commander to the tyrant. Quinctius agreed with him, and declined to enter Argos. Not far from that city is a place called Mycenica, and this was decided upon as the scene of the conference. Quinctius went with his brother and a few military tribunes, Attalus was attended by his suite, Nicostratus the chief magistrate of the Achaeans was also present with representatives of the allied States. They found Nabis waiting for them with the whole of his force. He marched almost to the middle of the space separating the two camps, fully armed and escorted by an armed bodyguard; Quinctius unarmed, and the king also unarmed and accompanied by Nicostratus and one of his suite, came forward to meet him. Nabis began by apologising for having come to the conference in arms and with an armed escort, though he saw that the king and the Roman commander were unarmed. He was not afraid, he said, of them, but of the refugees from Argos. Then

they began to discuss the terms on which friendly relations might be established. The Romans made two demands: first, that Nabis should put a stop to hostilities against the Achaeans and, secondly, that he should furnish assistance against Philip. This he promised to furnish; instead of a definite peace, an armistice was arranged with the Achaeans, to remain in force until the war with Philip was over.

[32.40]Attalus then opened a discussion on the question of Argos, which he contended had been treacherously betrayed by Philocles and was now forcibly retained by Nabis. Nabis replied that he had been invited by the Argives to go to their defence. Attalus insisted upon a meeting of the Argive Assembly being summoned in order that the truth might be ascertained. The tyrant raised no objection to this, but when the king declared that the troops ought to be withdrawn from the city and the Assembly left at liberty, without any Lacedaemonian being present, to state what the Argives really wanted, Nabis refused to withdraw his men. The discussion led to no result. A force of 600 Cretans was furnished by the tyrant to the Romans, and an armistice for four months arranged between Nicostratus the Achaean president and the tyrant of the Lacedaemonians, after which the conference broke up. From there Quinctius proceeded to Corinth and marched up to the gate with the Cretan cohort in order that Philocles, the commandant, might see that Nabis had broken with Philip. Philocles had an interview with the Roman general who pressed him to change sides at once and surrender the city, and in his reply he gave the impression of postponing rather than refusing compliance. From Corinth Quinctius went on to Anticyra and sent his brother to learn the attitude of the Acarnanians. From Argos Attalus proceeded to Sicyon, and this city paid him still greater honour than they had done before, whilst he on his part determined not to pass by his allies and friends without some token of his generosity. He had previously secured for them at considerable cost some land which was consecrated to Apollo, and now he made them a gift of ten talents of silver and a thousand medimni of corn. He then resumed to his ships at Cenchreae. Nabis, too, went back to Lacedaemon, after leaving a strong garrison at Argos. He had despoiled the men and now he sent his wife there to despoil the women. She invited the ladies of rank to her house, sometimes alone, sometimes in family parties, and in this

way succeeded by blandishments and threats in getting from them not only their gold but even their wardrobes and all their finery.

BOOK 33: THE SECOND MACEDONIAN WAR

[33.1]The above-described events took place in the winter. At the commencement of spring Quinctius, anxious to make the Boeotians, who were uncertain which side to take, into a Roman dependency, summoned Attalus to Elatia, and marching through Phocis fixed his camp at a point five miles from Thebes, the Boeotian capital. The following day, escorted by a single manipule and accompanied by Attalus and the various deputations who had flocked to him from all quarters, he proceeded to the city. The hastati of the legion, numbering 2000 men, were ordered to follow him at a distance of one mile. About half-way he was met by Antiphilus, the captain-general of the Boeotians; the population of the city were on the walls, anxiously watching the approach of the Roman general and the king. They saw few arms and few soldiers with them, the hastati, who were following a mile behind, were hidden by the windings of the road and the undulating nature of the terrain. As he came nearer to the city he slackened his pace, as though he were saluting the crowds who had come out to meet him, but really to allow the hastati to catch him up. The townsfolk pushing along in a mass in front of the lictor did not see the armed column which had hurried up until they reached the general's quarters. Then they were utterly dismayed, as they believed that the city had been betrayed and captured through the treachery of Antiphilus. It was quite clear that the Council of Boeotia which was summoned for the next day would have no chance of unfettered deliberation. They concealed their vexation, since to have exhibited it would have been useless and dangerous.

[33.2]Attalus was the first to speak in the council. He began by recounting the services which he had rendered to Greece as a whole and in particular to the Boeotians. But he was too old and infirm to stand the strain of public speaking, and suddenly became silent and fell down. Whilst they were removing the king, who had lost the use of one side, the proceedings were suspended. Aristaenus, the chief magistrate of the Achaeans, was the next to speak, and he spoke with all the more weight because he gave the Boeotians the same advice which he had given to the Achaeans. Quinctius himself added a few

remarks, in which he dwelt more upon the good faith of the Romans and their sense of honour than upon their arms and resources. Dicaearchus of Plataea next brought forward a motion in favour of alliance with Rome. When its terms had been recited no one ventured to oppose it, consequently it was passed by the unanimous vote of the cities of Boeotia. After the council broke up Quinctius only stayed in Thebes as long as Attalus' sudden attack made it necessary, and as soon as he saw that there was no immediate danger to life but only powerlessness in the limbs, he left him to undergo the necessary treatment and returned to Elatia. The Boeotians, like the Achaeans before them, were thus admitted as allies, and as he was leaving everything behind in peaceful security, he was able to devote all his thoughts to Philip and the means of bringing the war to a close.

[33.3]After his envoys had returned from their fruitless mission to Rome, Philip decided to raise troops in every town in his kingdom. Owing to the perpetual wars which had for so many generations drained the manhood of Macedonia there was a serious lack of men of military age, and under Philip's own rule vast numbers had perished in the naval battles against the Rhodians and Attalus and in the campaigns against the Romans. Under these circumstances he even enrolled youths of sixteen and recalled to the colours men who had served their time, provided they had any stamina left. After his army was brought up to its proper strength he concentrated the whole of his forces at Dium and formed a standing camp there in which he drilled and exercised his soldiers day by day whilst waiting for the enemy. During this time Quinctius left Elatia and marched by way of Thronium and Scarphea to Thermopylae. The Aetolian Council had been summoned to meet at Heraclea to decide the strength of the contingent which was to follow the Roman general to war, and he waited at Thermopylae for a couple of days to learn the result. When he had been informed of their decision he started, and marching past Xyniae fixed his camp where the frontiers of Acarnania and Thessaly meet. Here he waited for the Aetolian contingent, who came up without any loss of time under the command of Phaeneas. They numbered 600 infantry and 400 cavalry. To remove any doubt as to why he had waited he resumed his march as soon as they arrived. On his advance through Phthiotis he was joined by 500 Cretans from Gortynium and 300 Apollonians, armed like the Cretans, and not long after by Amynder with 1200

Athamanian infantry. As soon as Philip ascertained that the Romans had started from Elatia he realised that a struggle lay before him which would decide the fate of his kingdom, and he thought it well to address words of encouragement to his soldiers. After repeating the familiar phrases about the virtues of their ancestors and the military reputation of the Macedonians, he dwelt more especially on the considerations which tended to depress their courage and then on those from which they ought to derive consolation and hope.

[33.4]Against the three defeats sustained by the Macedonian phalanx at the Aous he set the repulse of the Romans at Atrax. On the former occasion, when they failed to maintain their hold on the pass leading into Epirus, he pointed out that the fault lay, first, with those who had been careless in their outpost duties and then in the behaviour of the light infantry and the mercenaries in the actual battle. But the Macedonian phalanx stood its ground, and on favourable ground and in a fair field would always remain unbeaten. The phalanx consisted of 16,000 men, the flower of the military strength of his dominions. There were in addition 2000 caetrati, whom they call " peltasts," and contingents of the same strength were furnished by the Thracians and by the Trallians, an Illyrian tribe. Besides these there were about 1500 hired troops drawn from various nationalities. and a body of cavalry numbering 2000 troopers. With this force the king awaited his enemies. The Roman army was almost equal in numbers, in cavalry alone were they superior, owing to the accession of the Aetolians.

[33.5]Quinctius had been led to hope that Thebes in Phthiotis would be betrayed to him by Timon, the first man in the city, and accordingly he marched thither. He rode up to the walls with a small body of cavalry and light infantry, but his expectations were so far frustrated by a sortie from the city that he would have been in imminent danger had not infantry and cavalry from the camp come to his assistance in time. When he found that his hopes were illusory and that there was no prospect of their being realised he desisted from any further attempt for the time. Definite information having reached him, however, that the king was now in Thessaly, though his exact whereabouts was unknown, he sent his men into the fields round to cut down and prepare stakes for a stockade. Both the Macedonians and the Greeks made use of stockades, but they did not adapt their materials either for convenience in carrying or for

defensive strength. The trees they cut down were too large and too branching for the soldiery to carry together with their arms, and when they had put them in position and fenced their camp with them the demolition of their rampart was an easy matter. The large trunks stood up apart from one another and the numerous stout branches afforded a good hold, so that two, or at the most three, men by pulling together would bring a tree down, making at once a gap as wide as a gate, and there was nothing at hand with which to block the opening. On the other hand, the stakes which the Romans cut were light and generally forked with three, or at the most four, branches, so that, with his arms slung at his back, the Roman soldier could carry several of them together comfortably. Then again they fix them so close together in the ground and interlace the branches in such a way that it is impossible to discover to which particular tree any of the outside branches belong, and these are made so sharp and so closely intertwined that there is no room left for inserting the hand, nothing can be got hold of to be dragged away, nor if there were would the enemy succeed in doing so because the branches are hooked together like the links of a chain. If one happens to be pulled out, it leaves only a small opening and it is very easy to put another in its place.

[33.6]Quinctius resumed his march on the following day, but as the soldiers were carrying the timber for a stockade, so that they might be ready to form an entrenched camp anywhere, the day's march was not a long one. The position he selected was about six miles from Pherae, and after fixing his camp he sent out reconnoitring parties to find out in what part of Thessaly the enemy was, and what were his intentions. Philip was in the neighbourhood of Larisa and had already received information that the Romans had left Thebes for Pherae. He, too, was anxious to bring matters to a decision and determined to make straight for the enemy, and finally fixed his camp some four miles from Pherae. The next day light infantry from both sides moved out to seize some hills which commanded the city, but when they caught sight of one another they halted and sent to their respective camps for instructions as to what they were to do now that they had come unexpectedly upon the enemy. As they awaited their return without moving the day passed without any fighting and these detachments were recalled to camp. The next day there was a cavalry action near those hills, in which Philip's troops were routed and driven back to their camp; a success in which the Aetolians had the

greatest share. Both sides were greatly hampered in their movements by the nature of the ground, which was thickly planted with trees, and by the gardens which are usually found in suburban districts, the roads being enclosed between walls and in some cases blocked. Both commanders alike determined to get out of the neighbourhood, and as though by mutual agreement they both made for Scotusa: Philip, in the hope of obtaining a supply of corn there; Quinctius, with the intention of forestalling his adversary and destroying his corn. The armies marched the whole day without once getting sight of each other owing to a continuous range of hills which lay between them. The Romans encamped at Eretria in Phthiotis, Philip fixed his camp by the river Onchestus. The next day Philip encamped at Melambium in the territory of Scotusa and Quinctius at Thetideum in the neighbourhood of Pharsalia, but not even then did either side know for certain where their enemy was. The third day heavy clouds came up, followed by a darkness as black as night which kept the Romans in their camp for fear of a surprise attack.

[33.7]Eager to press on, Philip was not in the least deterred by the clouds which had descended to the earth after the rain, and he ordered the standard-bearers to march out. But so thick a fog had blotted out the daylight that the standard-bearers could not see their way, nor could the men see their standards. Misled by the confused shouts, the column was thrown into as great disorder as if it had lost its way in a night march. When they had surmounted the range of hills called Cynoscephalae, where they left a strong force of infantry and cavalry in occupation, they formed their camp. The Roman general was still in camp at Thetideum; he sent out, however, ten squadrons of cavalry and a thousand velites to reconnoitre and warned them to be on their guard against an ambushade, which owing to the darkened daylight might not be detected even in open country. When they reached the heights where the enemy were posted both sides stood stock-still as though paralysed by mutual fear. As soon as their alarm at the unexpected sight subsided they sent messages to their generals in camp and did not hesitate any longer to engage. The action was begun by the advanced patrols, and then as the supports came up the fighting became general. The Romans were by no means a match for their opponents, and they sent message after message to their general to inform him that they were being overpowered. A reinforcement of 500 cavalry and 2000 infantry, mostly Aetolians,

under two military tribunes, was hastily despatched and restored the battle, which was going against the Romans. This turn of fortune threw the Macedonians into difficulties and they sent to their king for help. But as owing to the darkness a battle was the last thing he had looked for on that day, and as a large number of men of all ranks had been sent out to forage, he was for a considerable time at a loss what to do. The messages became more and more importunate, and as the fog had now cleared away and revealed the situation of the Macedonians who had been driven to the topmost height and were finding more safety in their position than in their arms, Philip felt that he ought to risk a general and decisive engagement rather than let a part of his force be lost through want of support. Accordingly he sent Athenagoras, the commander of the mercenaries, with the whole of the foreign contingent, except the Thracians, and also the Macedonian and Thessalian cavalry. Their appearance resulted in the Romans being dislodged from the hill and compelled to retreat to lower ground. That they were not driven in disorderly flight was mainly owing to the Aetolian cavalry, which at that time was the best in Greece, though in infantry they were inferior to their neighbours.

[33.8] This affair was reported to the king as a more important success than the facts warranted. Messenger after messenger ran back from the field shouting that the Romans were in flight, and though the king, reluctant and hesitating, declared that the action had been begun rashly and that neither the time nor the place suited him, he was at last driven into bringing the whole of his forces into the field. The Roman commander did the same, more because no other course was open to him than because he wished to seize the opportunity of a battle. He posted the elephants in front of his right wing, which he kept in reserve; the left, with the whole of the light infantry, he led in person against the enemy. As they advanced he reminded them that they were going to fight with the same Macedonians as those whom in spite of the difficult ground they had driven out of the pass leading into Epirus, protected though they were by the mountains and the river, and had thoroughly defeated; the same as those whom they had vanquished under P. Sulpicius when they tried to stop their march on Eordaea. The kingdom of Macedonia, he declared, stood by its prestige, not by its strength, and even its prestige had at last disappeared. By this time he had come up to his detachments who were standing at the bottom of the valley. They at once renewed the

fight and by a fierce attack compelled the enemy to give ground. Philip with his caetrati and the infantry of his right wing, the finest body in his army, which they call "the phalanx," went at the enemy almost at a run; Nicanor, one of his courtiers, was ordered to follow at once with the rest of his force. As soon as he reached the top of the hill and saw a few of the enemy's bodies and weapons lying about, he concluded that there had been a battle there and that the Romans had been repulsed, and when he further saw that fighting was going on near the enemy's camp he was in a state of great exultation. Soon, however, when his men came back in flight and it was his turn to be alarmed, he was for a few moments anxiously debating whether he ought not to recall his troops to camp. Then, as the enemy were approaching, and especially as his own men were being cut down as they fled and could not be saved unless they were defended by fresh troops, and also as retreat was no longer safe, he found himself compelled to take the supreme risk, though half his force had not yet come up. The cavalry and light infantry who had been in action he stationed on his right; the caetrati and the men of the phalanx were ordered to lay aside their spears, the length of which only embarrassed them, and make use of their swords. To prevent his line from being quickly broken he halved the front and gave twice the depth to the files, so that the depth might be greater than the width. He also ordered the ranks to close up so that man might be in touch with man and arms with arms.

[33.9]After the Roman troops who had been engaged had retired through the intervals between the leading maniples, Quinctius ordered the trumpets to sound the advance. Seldom, it is said, has such a battle-shout been raised at the beginning of an action, for both armies happened to shout at the same moment, not only those actually engaged, but even the Roman reserves and the Macedonians who were just then appearing on the field. On the right the king, aided mainly by the higher ground on which he was fighting, had the advantage. On the left, where that part of the phalanx which formed the rear was only just coming up, all was confusion and disorder. The centre stood and looked on as though it were watching a fight in which it had no concern. The newly-arrived part of the phalanx, in column instead of in line of battle, in marching rather than in fighting formation, had hardly reached the crest of the hill. Though Quinctius saw that his men were giving ground on the left he sent the elephants

against these unformed troops and followed up with a charge, rightly judging that the rout of a part would involve the rest. The result was not long in doubt; the Macedonians in front, terrified by the animals, instantly turned tail, and when these were repulsed the rest followed them. One of the military tribunes, seeing the position, suddenly made up his mind what to do, and leaving that part of his line which was undoubtedly winning, wheeled round with twenty maniples and attacked the enemy's right from behind. No army when attacked in the rear can fail to be shaken, but the inevitable confusion was increased by the inability of the Macedonian phalanx, a heavy and immobile formation, to face round on a new front. To make matters worse, they were at a serious disadvantage from the ground, for in following their repulsed enemy down the hill they had left the height for the enemy to make use of in his enveloping movement. Assailed on both sides they lost heavily, and in a short time they flung away their arms and took to flight.

[33.10] With a small body of horse and foot Philip occupied the highest point on the hills in order to see what fortune his left wing had met with. When he became aware of their disorderly flight and saw the Roman standards and arms flashing on all the hills he too left the field. Quinctius, who was pressing on the retiring foe, saw the Macedonians suddenly holding their spears upright, and as he was doubtful as to what they intended by this unfamiliar maneuver he held up the pursuit for a few minutes. On learning that it was the Macedonian signal of surrender, he made up his mind to spare them. The soldiers, however, unaware that the enemy were no longer resisting and ignorant of their general's intention, commenced an attack upon them, and when those in front had been cut down the rest scattered in flight. Philip himself rode off at a hard gallop in the direction of Tempe and drew rein at Gomphi, where he remained for a day to pick up any survivors from the battle. The Romans broke into the hostile camp in hopes of plunder, but they found that it had to a large extent been cleared out by the Aetolians. 8000 of the enemy perished that day; 5000 were made prisoners. Of the victors about 700 fell. If we are to believe Valerius, who is given to boundless exaggeration, 40,000 of the enemy were killed and - here his invention is not so wild - 5700 made prisoners and 249 standards captured. Claudius too writes that 32,000 of the enemy were killed and 4300 made prisoners. We have taken the smaller number, not because it is

the smaller, but because we have followed Polybius, who is no untrustworthy authority on Roman history especially when the scene of it is in Greece.

[33.11]After collecting together the fugitives who had been scattered in the various stages of the battle and had followed him in his flight, Philip despatched men to burn his papers at Larisa, that they might not fall into the enemy's hands, and then retreated into Macedonia. Quinctius sold some of the prisoners and a part of the booty and gave the rest to the soldiers, after which he proceeded to Larisa, not knowing for certain in what direction the king had gone or what movements he was contemplating. Whilst he was there a herald arrived from the king ostensibly to ask for an armistice for the purpose of burying those who had fallen in the battle, but really to ask for permission to open negotiations for peace. Both requests were granted by the Roman general, who also sent a message to the king bidding him not to lose heart. This gave great offence to the Aetolians, who were intensely mortified and said that the commander had been changed by his victory. Before the battle, so they alleged, he used to consult his allies on all matters great and small, but now they were excluded from all his counsels; he was acting solely on his own judgment. He was looking out for an opportunity of ingratiating himself personally with Philip so that after the Aetolians had borne the whole burden of the hardships and sufferings of the war the Roman might secure for himself all the credit and advantages of peace. As a matter of fact Quinctius certainly did show the Aetolians less consideration, but they were quite ignorant of his reason for treating them with neglect. They believed that he was looking for bribes from Philip, though he was a man who never yielded to the temptation of money; but it was not without good reason that he was disgusted with the Aetolians for their insatiable appetite for plunder and their arrogance in claiming for themselves the credit of the victory, a piece of vanity which offended all men's ears. Besides, if Philip were out of the way and the kingdom of Macedonia hopelessly crushed he recognised that the Aetolians must be regarded as the dominant power in Greece. Dictated by these considerations his conduct was deliberately designed to humiliate and belittle them in the eyes of Greece.

[33.12]The enemy were granted a fifteen days' armistice and arrangements were made for a conference with Philip. Before the

date fixed for it Quinctius called his allies into consultation and laid before them the conditions of peace which he thought ought to be imposed. Amynder briefly stated his view, which was that the terms should be such that Greece should be sufficiently strong, even in the absence of the Romans, to protect her liberty and prevent the peace from being broken. The Aetolians spoke in a more vindictive tone. After a brief allusion to the correctness of Quinctius' attitude in calling in those who had been his allies in war to advise with him on the question of peace, they went on to assure him that he was totally mistaken if he supposed that he would leave either peace with Rome or liberty for Greece on a sure basis unless Philip were either put to death or expelled from his kingdom. Either of these alternatives was easy for him if he chose to make full use of his victory. Quinctius replied that in uttering these sentiments the Aetolians were losing sight of the settled policy of Rome and convicting themselves of inconsistency. In all the former councils and conferences when discussing the question of peace they had never advocated the destruction of Macedonia, and the Romans, whose policy from the earliest times had been to show mercy to the conquered, had furnished a conspicuous proof of this in the peace which had been granted to Hannibal and the Carthaginians. Leaving the Carthaginians, however, out of account, how often had he himself had conferences with Philip? But never had the question of his abdication been raised. Had his defeat in battle made the war one of extermination? "An enemy in arms one is bound to meet with ruthless hostility; towards the conquered the greatest minds show the greatest clemency. You think that kings of Macedon are a danger to the liberties of Greece. If that nation and kingdom were swept away, Thracians, Illyrians, Gauls, savage and barbarous tribes, would pour into Macedonia and then into Greece. Do not, by removing the danger closest to you, open the door to greater and more serious ones." Here he was interrupted by Phaeneas, the president of the Aetolian league, who solemnly declared amid great excitement that if Philip escaped then, he would soon prove a still more dangerous enemy. "Cease your uproar," said Quinctius, "when we have to deliberate. Peace will not be settled upon such terms as to make it possible to recommence war."

[33.13]The council broke up, and on the morrow Philip went to the spot fixed for the conference, which was in the pass leading into

Tempe. The day following a meeting of the Romans and all their allies was convened, before which he appeared. He showed great prudence in deliberately abstaining from any allusion to those conditions which were regarded as essential, instead of letting them be forced from him in the discussion. All the concessions which in the former conference the Romans had insisted upon or the allies had demanded he said he would agree to, everything else he would leave to the decision of the senate. This would seem to have precluded any further demands even from those most hostile to him, and yet Phaeneas broke the general silence by asking, "What? Philip! Do you at last restore to us Larisa, Cremaste, Echinus and Phthiotic Thebes?" On Philip replying that he placed no difficulty in the way of their resuming possession of these places, a dispute arose between Quinctius and the Aetolians over Thebes. Quinctius asserted that it belonged to Rome by the right of war, for before the war broke out he marched there and invited the citizens to enter into friendly relations with him, and whilst they were at full liberty to abandon Philip they preferred his allegiance to that of the Romans. Phaeneas retorted that it was only just and equitable, considering the part they had taken in the war, that all which the Aetolians possessed before the war should be restored to them. It was provided by treaty from the very first that the spoils of war, including all movable goods and all livestock and prisoners, should go to the Romans; the conquered cities and territories to the Aetolians. "You yourselves," replied Quinctius, "broke that treaty when you left us and made peace with Philip. If it were still in force, it would only apply to the cities which have been captured; the cities of Thessaly have passed into our power of their own free will." This declaration was approved by all the allies, but created a bitter feeling amongst the Aetolians at the time, and soon led to a war which proved most disastrous to them. It was agreed that Philip should give up his son Demetrius and some of "the friends of the king" as hostages and also pay an indemnity of 200 talents. With regard to the other matters, he was to send an embassy to Rome and a four months' truce was granted him to enable him to do so. In case the senate declined to grant terms of peace the agreement was to be cancelled and the hostages and money returned to Philip. The main reason for Quinctius desiring an early peace is alleged to have been the warlike designs of Antiochus and his threatened invasion of Europe.

[33.14]At this very time, and according to some accounts on the very day on which the battle of Cynoscephalae was fought, the Achaeans routed Androstenes, one of Philip's generals, in a pitched battle at Corinth. Philip intended to hold that city as a menace to the States of Greece, and after inviting the leading citizens to a conference on the pretext of settling what force of cavalry the Corinthians could furnish for the war, he had detained them all as hostages. The force in occupation consisted of 500 Macedonians and 800 auxiliaries of various nationalities. In addition to these he had sent 1000 Macedonians and 1200 Illyrians and also Thracian and Cretan contingents (these tribes fought on both sides), amounting to 800 in all. There were in addition 1000 heavy-armed troops, consisting of Boeotians, Thessalians and Acarnanians. A draft from Corinth itself made up the whole force to 6000 men, and Androstenes felt himself strong enough to give battle. The Achaean captain-general, Nicostratus, was at Sicyon with 2000 infantry and 200 cavalry, but seeing that he was inferior in both the number and the quality of his troops, he did not venture outside the walls. The king's troops overran and ravaged the territories of Pellene, Phlius and Cleonae. At last, to show their contempt for the timidity of their enemy, they invaded the territory of Sicyon and, sailing along the Achaean seaboard, harried and wasted the land. Their confidence, as is usually the case, made them careless, and their raids were conducted with an absence of all precautions. Seeing a possibility of a successful surprise attack, Nicostratus sent secret information to all the cities round as to what force each city should contribute and on what day they should all muster at Apelauros, a place in Stymphalia. All being in readiness on the appointed day he made a night march through the district of Phlius to Cleonae, no one knowing what his object was. He had with him 5000 infantry, of which . . . were light-armed troops, and also 300 cavalry. With this force he waited for the return of the scouting patrols whom he had sent out to ascertain in what direction the enemy had dispersed themselves.

[33.15]Androstenes, in perfect ignorance of all this, marched out from Corinth and encamped by the Nemea, a stream which divides the territory of Corinth from that of Sicyon. Here, leaving half his army in camp, he formed the other half and the whole of the cavalry into three divisions and ordered them to make simultaneous raids in the territories of Pellene, Sicyon and Phlius. The three divisions

marched off on their separate errands. As soon as intelligence of this was brought to Nicostratus at Cleonae, he promptly sent a strong detachment of mercenaries to seize the pass leading to Corinth. He followed with his army in two columns, the cavalry forming an advanced guard. In one column marched the mercenaries and light infantry; in the other the hoplites, the main strength of all Greek armies. When they were not far from the hostile camp some of the Thracians began to attack the parties of the enemy scattered in the fields. The camp was filled with sudden alarm and the commander was surprised and bewildered. He had never seen the enemy, unless it were a few here and there on the hills before Sicyon, as they did not venture on the lower ground, and he never supposed that they would leave their position at Cleonae and take the aggressive against him. The dispersed parties were recalled to camp by sound of trumpet, and, ordering the soldiers to seize their arms with all speed, he hurried out, of the camp with a weak force and formed his line on the river bank. The other troops had hardly had time to collect and form, and did not withstand the first charge, but the Macedonians, who formed the bulk of the fighting line, made the victory for a long time doubtful. At length, with their flank exposed by the flight of the rest of the army and subjected to two separate attacks from the light infantry on their flank and the hoplites and heavy armed on their front, they began to give ground, and, as the pressure increased, turned and fled. The greater number flung away their arms and, abandoning all hope of holding their camp, made for Corinth. Against these Nicostratus sent his mercenaries in pursuit, and despatched the cavalry and Thracian auxiliaries to attack the plundering parties round Sicyon. Here too there was great slaughter, almost more, in fact, than in the actual battle. Some who had been ravaging the country round Pellene and Phlius were returning to camp, in no military formation and unaware of all that had happened, when they fell in with the enemy patrols where they had expected to find their own. Others, seeing men running in all directions, suspected what had happened and fled with such precipitation that they lost themselves and even the peasantry were able to cut them off. 1500 men fell on that day and 300 prisoners were secured. The whole of Achaia was delivered from a great fear.

[33.16]Acarnania was the only Greek State that still adhered to the Macedonian alliance. Before the battle of Cynoscephalae L.

Quinctius had invited their chiefs to a conference at Corcyra, where he induced them to take the first step towards a change of policy. The two main reasons for their fidelity were their innate sense of loyalty and their fear and dislike of the Aetolians. A national council was convened at Leucas. It was by no means generally attended, nor did those who were present agree as to the course to be pursued. The leaders, however, including the presiding magistrate, succeeded in getting a party motion carried in favour of an alliance with Rome. The cities which had not sent representatives resented this strongly, and amidst the national excitement two of their leading men, Androcles and Echedemus, emissaries of Philip, had sufficient influence not only to obtain the cancelling of the decree, but even to secure the condemnation of its authors, Archelaus and Bianor, on a charge of treason and the dismissal from office of Zeuxidas, who as president had allowed the motion to be put. The condemned men took a hazardous but, as events turned out, a successful step. Their friends advised them to bow to circumstances and go to the Romans at Corcyra, but they resolved to present themselves before the people and either calm the popular indignation or submit to whatever fortune might have in store for them. When they entered the crowded council chamber there were at first murmurs of astonishment, but soon the respect inspired by the high position they once held and the compassion felt for their present misfortunes evoked silent sympathy. Permission having been given them to speak, they at first adopted a suppliant tone, but when it came to meeting the charges against them they defended themselves with all the confidence of innocent men, and at last they ventured to complain mildly of the treatment they had received and remonstrated against the injustice and cruelty which had been meted out to them. The feelings of their audience were so stirred that all the decrees made against them were rescinded by a large majority. Nevertheless it was decided to go back to the alliance with Philip and renounce friendly relations with Rome.

[33.17] These decrees were passed at Leucas, the capital of Acarnania and the seat of the national council. When this sudden change of feeling was reported to Flamininus at Corcyra, he at once set sail for Leucas and brought up at a spot called the Heraeum. He then advanced towards the city with every description of artillery and siege engines, thinking that at the first shock of alarm the defenders would

lose heart. As soon as he saw that there were no signs of their asking for peace he began to set up the vineae and towers and bring the battering-rams up to the walls. Acarnania as a whole lies between Aetolia and Epirus and looks westward towards the Sicilian Sea. Leucadia, which is now an island separated from Acarnania by a canal of moderate depth, was then a peninsula, connected with the western shore of Acarnania by a narrow isthmus half a mile long, and at no point more than 120 paces broad. The city of Leucas is situated at the head of this isthmus, resting on a hill which faces eastward towards Acarnania; the lowest part of the city lies on the sea front and is level. This makes it open to attack both by land and sea, for the shallow waters are more like a lagoon than like the sea, and the soil of the surrounding plain can easily be thrown up for lines of investment and siege works. Many parts of the wall were in consequence undermined or shaken down by the battering-rams. But the advantage which the situation of the city gave to the assailants was counterbalanced by the indomitable spirit of the defenders. Ever on the alert, night and day they repaired the shattered walls, barricaded the breaches, made constant sorties and defended their walls by arms more than their walls defended them. The siege would have been protracted longer than the Romans anticipated had not some refugees of Italian nationality who were living in Leucas admitted soldiers from the citadel. Once admitted, they ran down with great tumult from the higher ground and found the Leucadians drawn up in battle formation in the forum, who offered a stout resistance. In the meanwhile the walls had in many places been successfully escalated, and over the heaps of stones and debris a way was made into the city. By this time the general himself had enveloped the combatants with considerable force, and whilst some perished between the two bodies of assailants others threw down their arms and surrendered. A few days later, on hearing of the battle of Cynoscephalae; the whole of Acarnania submitted to the Roman general.

[33.18]In every direction alike Philip's fortunes were sinking. Just at this time the Rhodians determined to win back from him the district on the mainland known as Peraea, which had been held by their forefathers. An expedition was despatched under the command of Pausistratus, consisting of 1300 Achaean infantry and about 1800 miscellaneous troops drawn from various nations - Gauls and

Pisuetæ; Nisuetæ, Tamians and Trahi from Africa, and Laudicenes from Asia. With this force Pausistratus seized Tendeba, an extremely advantageous position situated in the territory of Stratonice, the king's troops who had held it being unaware of his advance. Here he was joined by a body of 1000 Achæan infantry and 400 cavalry specially raised for this campaign. They were commanded by Theoxenus. Dinocrates, one of the king's lieutenants, marched to Tendeba with a view of recovering the place, and from there to Astragon, another fortified position in the same district. All the scattered garrisons were recalled, and with these and a contingent of Thessalians from Stratonice itself he went on to Abanda where the enemy lay. The Rhodians were quite ready for battle, and as the camps lay near one another they at once took the field. Dinocrates posted his 500 Macedonians on his right and the Agrianians on his left, and formed his centre from the troops of the various garrisons, mostly Carians, whilst the flanks were covered by the Macedonian horse and the Cretan and Thracian irregulars. The Rhodians had the Achæans on their right and a picked force of mercenaries on their left; the centre was held by a mixed force drawn from several nationalities; their cavalry and such light infantry as they had protected their flanks.

On that day the two armies only stood on the banks of the stream, which was then running low, and after discharging a few missiles at each other returned to camp. The following day they were marshalled in the same order, and the action which followed was a much more keenly contested one than might have been expected from the numbers engaged. There were not more than 3000 infantry and about 100 cavalry on each side, but they were fairly matched not only in numbers and equipment, but also in courage and tenacity. The battle was begun by the Achæans, who crossed the rivulet and attacked the Agrianians, and they were followed by the whole line, who went over the brook at the double. For a long time the struggle remained doubtful, till the Achæans, who numbered . . ., compelled the 400 to give ground. With the enemy's left pushed back, they concentrated their attack on his right. As long as the Macedonian ranks were unbroken and the phalanx kept its close formation they could not be moved, but when their left was exposed and they tried to bring their spears round to face the enemy who were making a flank attack, they at once got into confusion and fell foul of one another, then they

turned and at last, flinging away their arms, broke into headlong flight. The fugitives made for Bargyliae, and Dinocrates also fled thither. The Rhodians kept up the pursuit for the remainder of the day and then returned to camp. Had they gone on to Stratonice straight from the battle-field the city would in all probability have been taken, but they lost the chance of doing this by wasting their time in recovering the fortified posts and villages in Peraea. During this interval those in command at Stratonice regained their courage, and before long Dinocrates with the survivors from the battle entered the place. The city was subsequently besieged and assaulted, but all to no purpose, nor could it be secured until some years later, when it was made over to the Rhodians by Antiochus. These incidents occurred almost simultaneously in Thessaly, Achaia and Asia.

[33.19] Emboldened by the successive Macedonian defeats, the Dardanians began to lay waste the northern part of the realm. Although Philip had almost the whole world against him and Fortune was driving him and his people out of every place in turn, he felt that to be expelled from Macedonia itself would be worse than death. No sooner, therefore, did he hear of the Dardanian invasion than he hurriedly levied troops in all the cities of his kingdom and with a force of 6000 infantry and 500 cavalry he came upon the enemy unexpectedly near Stobi in Paeonia. A great many men fell in the battle, a greater number amongst the fields, where they were dispersed in the hope of plunder. Where there was no obstacle to flight they were in no mood to risk the chance of a battle, and so they retired within their own borders. The success of this expedition, so different from the state of things elsewhere, revived the spirits of his men. After this he returned to Thessalonica. The close of the Punic War took place at a favourable moment, for it removed the danger of having a second war on hand at the same time, namely the war against Philip. Still more opportune was the victory over Philip at a time when Antiochus was already taking hostile action from Syria. Not only was it easier to meet each singly than if they had joined forces, but Spain was giving trouble at the same time and a warlike movement on a large scale was taking place in that country. During the previous summer Antiochus had reduced all the cities in Coelo-Syria which had been under Ptolemy's sway, and though he had now withdrawn into winter quarters he displayed as great activity as he

had done during the summer. He had called up the whole strength of his kingdom and had amassed enormous forces, both military and naval. At the commencement of spring he had sent his two sons, Ardys and Mithridates, with an army to Sardis with instructions to wait for him there whilst he started by sea with a fleet of a hundred decked ships and two hundred smaller vessels, including swift pinnaces and Cyprian barques. His object was twofold: to attempt the reduction of the cities along the whole coastline of Cilicia, Lycia and Caria which owed allegiance to Ptolemy, and also to assist Philip - the war with him was not over - both by land and sea.

[33.20]The Rhodians have given many splendid proofs of their courage in maintaining their loyalty to Rome and in defending the liberties of Greece, but never did they afford a finer instance of it than at this time. Undismayed by the vastness of the impending war they sent a message to the king forbidding him to sail beyond the promontory of Chelidonia in Cilicia, a place rendered famous by its being mentioned in an ancient treaty between the Athenians and the kings of Persia. If he did not keep his fleet and his forces within that limit, they informed him that they should oppose him, not because of any personal enmity to him, but because they would not allow him to join forces with Philip and so hinder the Romans in their work of liberating Greece. Antiochus was at the time investing Coracesium. He had so far secured Zephyrium, Soli, Aphrodisias and Corycus, and after rounding Anemurium - another Cilician headland - had captured Selinus. All these towns and other fortified places on this coast had submitted to him either voluntarily or under the stress of fear, but Coracesium unexpectedly shut its gates against him. During this delay the Rhodian envoys obtained an audience of him. The tenor of their instructions was of a nature to rouse the king's wrath, but he curbed his anger and told them that he should send envoys to Rhodes with instructions to renew the old ties which he and his ancestors had formed with that State, and also to reassure them as to the object of his approach, which would bring no injury or loss either to them or to their allies. The embassy which he had sent to Rome had just returned, and as the issue of the war with Philip was still uncertain the senate had wisely given them a favourable reception. Antiochus alleged the gracious reply of the senate and the resolution they passed, so complimentary to him, as a proof that he had no intention of breaking off his friendly relations with Rome. Whilst the

king's envoys were urging these considerations in a meeting of the citizens of Rhodes, news came that the war had been brought to a close at Cynoscephalae. On receipt of this intelligence the Rhodians, having nothing more to fear from Philip, abandoned their design of opposing Antiochus with their fleet. They did not, however, abandon the other object, the defence of the liberties of the States in alliance with Ptolemy which Antiochus was now threatening. To some they gave active assistance, others they forewarned of the movements of the enemy; it was thus that Caunos, Myndus, Halicarnassus and Samos owed their liberty to Rhodes. It is not worth while to go in detail into the events which happened in this part of the world, seeing that it is almost beyond my powers to deal with those especially connected with the war with Rome.

[33.21]It was at this time that Attalus, who owing to his illness had been carried from Thebes to Pergamum, died there in his seventy-second year after a reign of forty-four years. Beyond his wealth Fortune had bestowed nothing on this man which could lead him to hope that he would ever be king. But by making a wise use of his riches and at the same time employing them on a magnificent scale he gradually began to be regarded, first in his own estimation and then in the eyes of his friends, as not unworthy of the crown. In one decisive battle he defeated the Gauls - a nation all the more dreaded because they had migrated into Asia comparatively recently - and after this victory he assumed the royal title and ever after justified it by a corresponding greatness of soul. He governed his subjects with absolute justice and showed exceptional loyalty to his allies; affectionate towards his wife and his children, four of whom survived him, he was considerate and generous to his friends and left his kingdom so settled and secure that the possession of it descended to the third generation of his posterity. This was the state of things in Greece, Asia and Macedonia, when just as the campaign against Philip was brought to a close and before peace had been definitely established a serious war broke out in Further Spain. M. Helvius was administering the province, and he wrote to the senate to inform them that the tribal chiefs Culchas and Luxinius were in arms. Fifteen fortified towns were taking part with Culchas, whilst Luxinius was supported by the strong cities of Carmo and Bardo, the Malacini and Sexetani on the coast and the whole of Baeturia. In addition to these the tribes which had not yet disclosed their intentions were prepared

to rise as soon as their neighbours moved. After M. Sergius, the city praetor, had read this despatch in the senate a decree was passed ordering that after the new praetors were elected the one who obtained Spain as his province should as soon as possible ask for the senate's instructions as to the military operations there.

[33.22]The consuls arrived in Rome both at the same time and convened the senate at the temple of Bellona. On their demanding a triumph for their military successes, they were opposed by two of the tribunes of the plebs, who insisted on the proposal being submitted to the House by each consul separately. They would not permit a joint proposal to be made on the ground that in that case equal honours would be conferred when the services were far from equal. Q. Minucius replied that Italy had been assigned to them both and he and his colleague had conducted their operations with one mind and one policy. C. Cornelius added that when the Boii crossed the Po to assist the Insubres and the Cenomanni it was through his colleague's action in laying waste their fields and villages that they were compelled to return and defend their own country. The tribunes admitted that the achievements of C. Cethegus were such that there could be no more hesitation about according him a triumph than about paying honours to the immortal gods. Neither Cethegus, however, nor any other citizen possessed so much influence and power that he could, after obtaining a well-deserved triumph for himself, grant the same honour to a colleague who did not deserve it, and whose request for it was an affront. Q. Minucius, they declared, had fought some insignificant actions, hardly worth talking about, amongst the Ligurians and had lost a large number of men in Gaul. Two military tribunes, T. Juventius and Cneius Ligurius, both attached to the fourth legion, had fallen in an unsuccessful battle in company with many other brave men, both citizens and allies. A few towns and villages had ostensibly surrendered for the time being, without giving any guarantee of good faith. These altercations between the consuls and the tribunes took up two days. At last the pertinacity of the tribunes won the day and the consuls submitted their requests separately.

[33.23]A triumph was unanimously decreed to C. Cethegus. His popularity was still further enhanced by delegates from Cremona and Placentia, who gratefully described how he had delivered them from the horrors of a siege, and in the case of most of those who had fallen

into the enemy's hands from actual slavery. Q. Minucius put his motion merely tentatively, and on finding the whole senate opposed to him gave out that by virtue of his rights as consul, and in accordance with the precedent set by many illustrious men, he should triumph on the Alban Mount. C. Cethegus celebrated his triumph while he was still in office. Many military standards were carried in the procession, many spoils in captured wagons and many noble Gauls were led before his chariot. Some authorities aver that the Carthaginian general Hamilcar was amongst them. But the eyes of all were turned chiefly to a crowd of colonists from Cremona and Placentia who followed the consul's chariot wearing the cap of liberty. The amount of specie carried in the procession was 237,500 ascs and 79,000 silver denarii. Each of the soldiers received a bonus of 70 ascs and double the amount was given to each centurion and horseman. Q. Minucius celebrated his victories over the Ligurians and the Boii on the Alban Mount. Though this triumph was less of a distinction than the other in respect of the scene and glory of his achievements, and though everybody was aware that its cost was not defrayed from the public treasury, still it about equalled it in the number of standards and wagons and spoils. Even the amount of money almost reached the same figure; there were 254,000 ascs and 53,200 silver denarii. He gave to each of his soldiers the same sums as his colleague had given

[33.24]After the triumph came the elections. The new consuls were L. Furius Purpurio and M. Claudius Marcellus. The praetors elected the day following were Q. Fabius Buteo, Tiberius Sempronius Longus, Q. Minucius Thermus, Manius Acilius Glabrio, L. Apustius Fullo and C. Laelius. About the end of the year despatches arrived from T. Quinctius stating that he had fought a pitched battle with Philip in Thessaly, and that the enemy had been routed and put to flight. These despatches were read by Sergius first in the senate and then, with the sanction of the senate, at a meeting of the citizens. A five days' thanksgiving was appointed for this success. The joint delegation from T. Quinctius and Philip arrived soon afterwards. The Macedonians were conducted to the Government building in the Campus Martius, where they were accommodated as guests of the State. The senate received them in audience in the temple of Bellona; no long speeches were made, for the delegates simply stated that the king was prepared to act in accordance with the wishes of the senate.

Following the traditional usage, ten commissioners were appointed to advise with T. Quinctius as to the terms on which peace was to be granted to Philip, and a clause was added to the decree providing that among the members of the commission should be included P. Sulpicius and P. Villius, to whom Macedonia had been assigned as their province when they were consuls. On the same day a petition was presented by the inhabitants of Cosa praying that their numbers might be enlarged, and an order was made for a thousand fresh colonists to be enrolled, no one to be included in the number who had been an enemy alien since the consulship of P. Cornelius and Tiberius Sempronius.

[33.25]The Roman Games in the Circus Maximus and the scenic plays on the stage were exhibited by the curule aediles, P. Cornelius Scipio and Cneius Manlius Vulso, on a more splendid scale than usual, and amid greater hilarity on the part of the spectators owing to the recent successes in the field. Three times they were repeated in every detail. The Plebeian Games were repeated seven times. The latter were exhibited by Manius Acilius Glabrio and C. Laelius, and out of the proceeds of fines they set up bronze statues of Ceres, Liber and Libera. The first business before the new consuls, L. Furius and M. Claudius Marcellus, after taking office was the allotment of the provinces. The senate was preparing to decree Italy as the province for both, but the consuls tried hard to get Macedonia allotted as well as Italy. Marcellus, who was the more anxious of the two to obtain Macedonia, declared that the peace with Philip was illusory and that if the Roman army were withdrawn he would resume hostilities. This made the senate hesitate in coming to a decision, and the consul would probably have gained his point had not two tribunes of the plebs, Q. Marcius Ralla and C. Atinius Labeo, threatened to interpose their veto unless the plebs were first consulted as to whether it was their will and pleasure that peace should be made with Philip. The question was submitted to the plebs in the Capitol, and the whole of the thirty-five tribes voted in the affirmative. The satisfaction felt at the peaceful settlement with Macedonia was all the more welcome owing to the gloomy news from Spain and the publication of a despatch stating that the proconsul, C. Sempronius Tuditanus, acting in Hither Spain had been defeated and his army routed and put to flight. Many men of high rank had fallen in the battle, and Tuditanus himself was seriously wounded and died soon after being carried off

the field. Italy was assigned to both the consuls as their province, together with the legions which the previous consuls had had, and they were to raise four new legions, two to garrison the City and two to be at the disposal of the senate. T. Quinctius Flaminius was to remain in his province with the army which he had, and the previous extension of his command was deemed sufficient.

[33.26]The praetors next balloted for their provinces. L. Apustius Fullo obtained the City jurisdiction, M. Acilius Glabrio the jurisdiction in causes between citizens and aliens. Q. Fabius Buteo received Further Spain and Q. Minucius Thermus, Hither Spain. C. Laelius was allotted Sicily and Tiberius Sempronius Longus, Sardinia. The consuls were ordered to furnish the two praetors who were to proceed to Spain with one legion each from the four new legions they were raising and also 4000 allied infantry and 300 cavalry. These two praetors were ordered to proceed to their provinces at the earliest possible moment. The Spanish war, which was practically a fresh war, because the natives had resorted to arms on their own account without any Carthaginian army or general to support them, broke out five years after the former war had been brought to a close simultaneously with the Punic War. Before the praetors started for Spain, or the consuls left the City, they were charged with the expiation of the various portents that had been announced. P. Villius, a Roman knight who was on his way to the Sabine country, was killed, together with his horse, by a flash of lightning. The temple of Ferona near Capenae was similarly struck. At the temple of Moneta two spear-heads burst into flame. A wolf entered the City through the Porta Esquilina, the busiest part of the City, and ran down to the Forum; it then ran through the Tuscan and Cermalian wards, and finally escaped through the Porta Capena almost untouched. These portents were expiated by the sacrifice of full-grown victims.

[33.27]During this interval Cneius Cornelius Blasio, who had administered Hither Spain before Tuditanus, was authorised by the senate to enter the City in ovation. Before him were borne 1515 pounds of gold and 20,000 of silver, and also 34,500 silver denarii. L. Stertinus, who made no effort to obtain a triumph, brought away from Further Spain 50,000 pounds of silver for the public treasury, and with the proceeds from the sale of the spoil he erected two gateways in the Forum Boarium in front of the temples of Fortuna and Mater Matuta, and one in the Circus Maximus. On these three

structures he placed gilded statues. The above were the principal events during the winter. T. Quinctius was in winter quarters at Elatia. Amidst the numerous requests which he received from the friendly States was one from the Boeotians begging that, those of their countrymen who had been fighting for Philip might be restored to them. Quinctius readily granted their request, not because he thought that they deserved it, but because he was anxious, in view of Antiochus' suspicious movements, to win the support and sympathy of the Grecian States. After they had been restored it became at once apparent how little gratitude he had evoked among the Boeotians, for they sent delegates to thank Philip for the return of their countrymen, as though it were he who had made the concession and not Quinctius and the Romans. And at the next election they chose a person called Brachylles as the Boeotarch, for no other reason than because he had commanded the Boeotian contingent which had served under Philip, thus passing over men like Zeuxippus and Pisistratus and others who had brought about the alliance with Rome. Annoyed as these men were at the time, they were still more apprehensive as to the future, for if these things could go on while a Roman army was lying almost at their gates, what would happen to them, they asked, when the Romans had left for Italy and Philip was close at hand to help his friends and take his revenge upon his opponents?

[33.28]As Brachylles was the main supporter of the king they determined to get rid of him while the arms of Rome were in their neighbourhood. The hour chosen was when he was returning from a State banquet in a state of intoxication, escorted by an effeminate crew who had been carousing in the banquet hall. He was set upon by six armed men, three of whom were Italians and three Aetolians, and killed on the spot. His companions fled screaming for help, and the whole city was thrown into uproar, men running in all directions with lanterns and torches. The assassins had meanwhile escaped through the nearest gate. At daybreak the next morning the population gathered in the theatre in such numbers as to give the appearance of a formal assembly convened by edict or by the public crier. Openly all men were saying that he had been murdered by his retinue and the dissolute wretches who accompanied him, but in their hearts they fixed upon Zeuxippus as the instigator of the crime. For the time being, however, it was decided that those who had been with him should be arrested and examined under torture. While search

was being made for them Zeuxippus, determined to clear himself of any suspicion of complicity, came calm and undismayed into the gathering and said that people were mistaken who supposed that such an atrocious murder could have been committed by such effeminate creatures. He adduced many strong arguments to support this view, and some who heard him were convinced that if he were an accomplice he would never have appeared before the people or made any allusion to the murder when no one had challenged him to do so. Others were quite certain that by thus unblushingly meeting the charge he was endeavouring to divert suspicion from himself. After a short time those who were really innocent were put to the torture, and though they themselves knew nothing about it they treated the universal opinion as though it amounted to proof and named Zeuxippus and Pisistratus without alleging any evidence as to their actually knowing what had happened. Zeuxippus, however, with a person called Stratonidas escaped by night to Tanagra, fearing his own conscience more than the statements of men who were unconscious of the true state of the case. Pisistratus paid no regard to the informers and remained in Thebes.

Zeuxippus had a slave with him who had acted as messenger and intermediary all through the affair. Pisistratus was afraid that this man might turn informer, and it was through this very fear that the slave was compelled to make the disclosure. He sent a letter to Zeuxippus warning him to do away with the slave as he was privy to all they had done, and he did not believe him to be so capable of concealing the thing as he had been of carrying it out. The bearer was ordered to give the letter to Zeuxippus as soon as possible, and as he had no opportunity of giving it at once he handed it to this very slave, whom he regarded as the most faithful of all to his master, telling him at the same time that it was from Pisistratus about a matter which greatly concerned Zeuxippus. The slave assured the bearer that he would deliver it forthwith, but being conscience stricken he opened it, and after reading it through fled to Thebes and laid the evidence before the magistrates. Warned by the flight of the slave, Zeuxippus withdrew to Anthedon, as he considered that a safer place to live in. Pisistratus and the others were examined under torture and afterwards executed.

[33.29] This murder roused Thebes and the whole of Boeotia to an intensely bitter hatred against the Romans; they were quite convinced

that Zeuxippus, the foremost man amongst them, would not have been a party to such a crime if he had not been countenanced by the Roman general. To go to war was impossible; they had neither forces nor a leader, but they did the next thing to it, they took to brigandage and assassination. They made away with soldiers who were billeted on them, and others on furlough who were going about on various errands in their winter quarters. Some were caught in the high roads by men who lay in wait for them, others were led on false pretences to lonely inns and then seized and murdered. These crimes were committed from greed quite as much as from hatred, because the men carried silver in their belts for making purchases. As more and more men were amongst the missing every day, the whole of Boeotia acquired an evil reputation, and the men were more afraid to go outside their camp than if they had been in an enemy's country. On this, Quinctius sent officers to the different cities to investigate the murders. Most of them were found to have been committed round Lake Copais; here bodies were dug out of the mud and recovered from the shallows with stones or amphorae fastened to them, to sink them deeper by their weight. Many murders also took place at Acraephia and Coronea. Quinctius issued orders for those who were guilty to be given up to him, and he levied a fine of 500 talents upon the Boeotians for the 500 soldiers who had been murdered.

Neither of these orders was complied with. The cities simply excused themselves by saying that their government had not sanctioned any of these deeds. Quinctius thereupon sent a deputation to visit Athens and Achaia and explain to them that it was in a just and holy cause that he was going to punish the Boeotians by arms. Appius Claudius received orders to march to Acraephia with half the force, and he himself with the other half invested Coronea after having waste the country round. All the country through which the two divisions advanced from Elatia was devastated. The Boeotians, completely cowed by the losses they were sustaining and seeing fear and flight everywhere, sent envoys, but as they were not admitted into the camp, the Athenian and Achaean envoys came to their support. The mediation of the Achaeans was the more effectual of the two, because in case they failed to obtain peace for the Boeotians they were resolved to fight by the side of the Romans. Through their representations, the Boeotians were allowed to approach the Roman general and lay their case before him. Peace was granted them on

condition that they surrendered the guilty parties and paid a fine of 30 talents, and the siege was raised.

[33.30]A few days later the ten commissioners arrived from Rome. On their advice peace was granted to Philip on the following terms: All the Greek communities in Europe and Asia were to be free and independent; Philip was to withdraw his garrisons from those which had been under his rule and after their evacuation hand them over to the Romans before the date fixed for the Isthmian Games. He was also to withdraw his garrisons from the following cities in Asia: Euromus, Pedasae, Bargyliae, Iasos, Myrina, Abydos, Thasos and Perinthus, for it was decided that these too should be free. With regard to the freedom of Cios, Quinctius undertook to communicate the decision of the senate and the commissioners to Prusias, King of Bithynia. The king was also to restore all prisoners and deserters to the Romans, and all his decked ships, save five, were to be surrendered, but he could retain his royal galley, which was all but unmanageable owing to its size and was propelled by sixteen banks of oars. His army was never to exceed 5000 men and he was not allowed to have a single elephant, nor was he permitted to make war beyond his frontiers without the express sanction of the senate. The indemnity which he was required to pay amounted to 1000 talents, half of it to be paid at once and the remainder in ten annual instalments. Valerius Antias asserts that an annual tribute of 4000 lbs. of silver was imposed on the king for ten years. Claudius says that the annual tribute amounted to 4200 lbs. of silver and extended over thirty years, with an immediate payment of 2000 lbs. He also says that an additional clause in the treaty expressly provided that Philip should not make war upon Eumenes, who had succeeded his father Attalus upon the throne. As a guarantee of the observance of these conditions hostages were taken by the Romans, amongst whom was Philip's son, Demetrius. Valerius Antias further states that the island of Aegina and the elephants were given to Attalus, and that Stratonice and the other cities in Caria which Philip had held were given to the Rhodians, and the islands of Lemnos, Imbros, Delos and Scyros to the Athenians.

[33.31]Almost all the States of Greece welcomed peace on these terms. The Aetolians formed a solitary exception. They did not venture upon open opposition, but they criticised the commissioners' decision bitterly in private. It was, they said, a mere form of words

vaguely suggesting the delusive image of pretended liberty. Why, they asked, were some cities to be given to the Romans without being named, and others which were named to retain their freedom, unless it was thought that the cities in Asia might be safely left free because of their remoteness, whilst those in Greece which are not even named might be appropriated, viz. Corinth, Chalcis, Oreus, together with Eretria and Demetrias? Nor was this charge altogether groundless, for there was much hesitation as to three of those cities. In the decree of the senate which the commissioners had brought with them the rest of the cities in Greece and Asia were unequivocally declared free, but in the case of Corinth, Chalcis and Demetrias the commissioners were instructed to do and determine as the interests of the commonwealth and the circumstances of the time and their own sense of duty required. It was Antiochus they had in their minds; they were convinced that as soon as he deemed his strength adequate he would invade Europe, and they did not intend to leave it open to him to occupy cities which would form such favourable bases of operations. Quinctius proceeded with the ten commissioners to Anticyra, and from there sailed across to Corinth. Here the commissioners discussed for days the measures for securing the freedom of Greece. Again and again Quinctius urged that the whole of Greece must be declared free if they wanted to stop the tongues of the Achaeans and inspire all with a true affection for Rome and an appreciation of her greatness - if, in fact, they desired to convince the Greeks that they had crossed the seas with the sole purpose of winning their freedom and not of transferring Philip's dominion over them to themselves. The commissioners took no exception to his insistence on making the cities free, but they argued that it would be safer for the cities themselves to remain for a time under the protection of Roman garrisons rather than have to accept Antiochus as their master in the place of Philip. At last they came to a decision; the city of Corinth was to be restored to the Achaeans, but a garrison was to be placed in Acrocorinthus, and Chalcis and Demetrias were to be retained until the menace of Antiochus was removed.

[33.32]The date fixed for the Isthmian Games was now close at hand. These Games always drew vast crowds, owing partly to the innate love of the nation for a spectacle in which they watched contests of every kind, competitions of artistic skill, and trials of strength and speed, and partly owing to the fact that its situation between two seas

made it the common emporium of Greece and Asia, where supplies were to be obtained of everything necessary or useful to man. But on this occasion it was not the usual attractions alone that drew the people from every part of Greece; they were in a state of keen expectancy, wondering what would be the future position of the country, and what fortune awaited themselves. All sorts of conjectures were formed and openly expressed as to what the Romans would do, but hardly anybody persuaded himself that they would withdraw from Greece altogether.

When the spectators had taken their seats, a herald, accompanied by a trumpeter, stepped forward into the middle of the arena, where the Games are usually opened by the customary formalities, and after a blast from the trumpet had produced silence, made the following announcement: "THE SENATE OF ROME AND T. QUINCTIUS, THEIR GENERAL, HAVING CONQUERED KING PHILIP AND THE MACEDONIANS DO NOW DECREE AND ORDAIN THAT THESE STATES SHALL BE FREE, SHALL BE RELEASED FROM THE PAYMENT OF TRIBUTE, AND SHALL LIVE UNDER THEIR OWN LAWS, NAMELY THE CORINTHIANS; THE PHOCIANS; ALL THE LOCRIANS TOGETHER WITH THE ISLAND OF EUBOEA; THE MAGNESIANS; THE THESSALIANS; THE PERRHAEBIANS, AND THE ACHAEANS OF PHTHIOTIS."

This list comprised all those States which had been under the sway of Philip. When the herald had finished his proclamation the feeling of joy was too great for men to take it all in. They hardly ventured to trust their ears, and gazed wonderingly on one another, as though it were an empty dream. Not trusting their ears, they asked those nearest how their own interests were affected, and as everyone was eager not only to hear but also to see the man who had proclaimed their freedom, the herald was recalled and repeated his message. Then they realised that the joyful news was true, and from the applause and cheers which arose it was perfectly evident that none of life's blessings was dearer to the multitude than liberty. The Games were then hurried through; no man's eyes or ears were any longer fixed on them, so completely had the one master joy supplanted all other pleasurable sensations.

[33.33]At the close of the Games, almost the entire assemblage ran to the spot where the Roman general was seated, and the rush of the

crowd who were trying to touch his hand and throw garlands and ribbons became almost dangerous. He was about thirty-three years old at the time, and not only the robustness of his manhood but the delight of reaping such a harvest of glory gave him strength. The universal rejoicing was not simply a temporary excitement; for many days it found expression in thoughts and words of gratitude. "There is," people said, "one nation which at its own cost, through its own exertions, at its own risk has gone to war on behalf of the liberty of others. It renders this service not to those across its frontiers, or to the peoples of neighbouring States or to those who dwell on the same mainland, but it crosses the seas in order that nowhere in the wide world may injustice and tyranny exist, but that right and equity and law may be everywhere supreme. By this single proclamation of the herald all the cities in Greece and Asia recover their liberty. To have formed this design shows a daring spirit; to have brought it to fulfilment is a proof of exceptional courage and extraordinary good fortune."

[33.34]Immediately after the Isthmian Games Quinctius and the ten commissioners gave audience to the ambassadors from the different monarchs and self-governing communities. The first to be heard were those from Antiochus. They spoke to very much the same effect as they had before spoken in Rome, making insincere and empty professions of friendship, but they did not receive the same ambiguous answer as on the former occasion, when the business with Philip was not yet settled. Antiochus was openly and unequivocally warned to evacuate all the cities in Asia which had belonged to either Philip or Ptolemy, to leave the free States alone, and never to make aggressions on them, as all the cities through the length and breadth of Greece must continue to enjoy peace and liberty. He was especially warned not to lead his forces into Europe or go there himself. On the dismissal of the king's ambassadors a convention of those from the different cities and States was held and the proceedings were expedited by the reading out of the names in the decree of the ten commissioners. The people of Orestis, a district in Macedonia, had their old constitution restored to them as a reward for having been the first to revolt from Philip. The Magnetes, the Perrhaebians and the Dolopians were also declared free. The Thessalians received their freedom and also a grant of the Achaean portion of Phthiotis exclusive of Thebes and Pharsalus. The demand of the Aetolians that

Pharsalus and Leucas should be restored to them in accordance with treaty rights was referred to the senate, but the commissioners acting under the authority of their decree united Phocis and Locris thus reverting to the former state of things. Corinth, Triphylia and Heraea - also in the Peloponnesus - were restored to the Achaean league. The commissioners intended to make a grant of Oreus and Eretria to Eumenes, Attalus' son, but as Quinctius raised objections this one point was left to the decision of the senate, and that body declared these places and also Carystus to be free cities. Lychnis and Parthus were given to Pleuratus; both these Illyrian cities had been subject to Philip. Amynder was told to keep the forts which he had taken from Philip during the war.

[33.35]After the convention had broken up the commissioners divided amongst themselves the work that lay before them and separated, each proceeding to effect the liberty of the cities within his own district. P. Lentulus went to Bargyliae; L. Stertinus to Hephaestia, Thasos and the cities in Thrace; P. Villius and L. Terentius went to interview Antiochus; and Cn. Cornelius visited Philip. After settling minor points in accordance with his instructions, he asked the king whether he would listen patiently to advice that might be not only useful to him but salutary as well. Philip replied that he should be grateful for any suggestion he might make which would be to his interest. Cornelius then strongly urged him, now that he had obtained peace, to send a mission to Rome to establish relations of friendship and alliance. By doing this he would remove, in case of any hostile movement on the part of Antiochus, the possibility of appearing to be waiting for an opportunity of recommencing hostilities. This meeting with Philip took place at Tempe. He assured Cornelius that he would send delegates forthwith, and Cornelius then went on to Thermopylae, where what was called the Pylaic council - a gathering from all parts of Greece - met on stated days. He appeared before the council, and urged the Aetolians especially to continue staunch and loyal friends to Rome. Some of their leaders mildly remonstrated against the change in the feelings of the Romans towards them since their victory; others took a much stronger line and declared that without the aid of the Aetolians Philip could not have been vanquished, nor could the Romans ever have landed in Greece. To prevent matters from coming to an open quarrel, the Roman commander abstained from replying to these

charges and simply assured them that if they would send an embassy to Rome they would gain everything that was fair and reasonable. On his authority, therefore, they passed a resolution that a mission should be despatched. Such were the incidents that marked the close of the war with Philip.

[33.36]Whilst these events were happening in Greece and Macedonia and Asia, Etruria very nearly became the scene of war owing to a conspiracy of the slaves. For the purpose of investigating and crushing this movement, Manius Acilius Glabrio, to whom as praetor the mixed jurisdiction over citizens and aliens had been assigned, was sent into Etruria with one of the two legions stationed in the City. A body of the conspirators was defeated in open battle and many of them were killed or taken prisoners; the ringleaders were scourged and crucified; the others sent back to their masters. The consuls left for their provinces. Marcellus entered the territory of the Boii, and whilst he was entrenching his camp on some rising ground, his men worn out with marching all day long, Corolamus, one of the Boian chiefs, attacked him with a large force and killed as many as 3000. Several men of high rank fell in this tumultuary battle; amongst them Tiberius Sempronius Gracchus and M. Junius Silanus, prefects of the allies, and two military tribunes in the second legion - M. Ogulnius and P. Claudius. The Romans, however, succeeded by great exertions in completing their lines and held the camp against the attacks of the enemy, which his initial success rendered all the more fierce. Marcellus remained in his camp for some time, in order that his wounded might be cured and that his men might have time to recover their spirits after such heavy losses.

The Boians, quite incapable of supporting the weariness of delay, dispersed everywhere to their villages and strongholds. Suddenly Marcellus crossed the Po and invaded the Comum territory, where the Insubres had induced the natives to take up arms and were now encamped. The Boian Gauls, full of confidence after the recent fight, joined battle with him while he was actually on the march, and at first attacked with such violence that they forced the front ranks to give way. Fearing that if they once began to give ground it might end in a complete repulse, Marcellus brought up a cohort of Marsians and launched all the troops of the Latin cavalry against the enemy. After they had by successive charges held up the determined onset of the Gauls the rest of the Roman line recovered its steadiness and resisted

all attempts to break it. At last they took the offensive in a furious charge which the Gauls were unable to stand; they turned and fled in disorder. According to Valerius Antias over 40,000 men were killed in that battle, 801 standards captured, together with 732 wagons and a large number of gold chains. Claudius tells us that one of these, a very heavy one, was deposited as an offering in the temple of Jupiter on the Capitol. The Gaulish camp was stormed and plundered on the same day as the battle took place, and a few days later the town of Comum was captured. Subsequently twenty-eight fortified places went over to the consul. It is a question amongst the various historians whether it was against the Boii or the Insubres that the consul marched in the first place, and whether he wiped out his unsuccessful action by a successful one afterwards or whether the victory at Comum was marred by his later disaster amongst the Boii.

[33.37] Soon after these instances of Fortune's caprice, the other consul, L. Furius Purpurio, invaded the Boian territory from the Sabinian canton in Umbria. He was approaching the fortress of Mutelus, but fearing that he might be cut off by the Boii and Ligurians, he led his army back over the way he had come, and by making a wide detour through open and therefore safe country ultimately joined his colleague. With their united armies they traversed the Boian country as far as the town of Felsina, systematically plundering as they advanced. That place, with all the fortified positions in the country round, surrendered, as did most of the tribe; the younger men remained in arms for the sake of plunder and had retreated into the depths of the forest. Then the two armies advanced against the Ligurians. The Boii, who were still in arms, expected that as they were supposed to be a long way off the Roman army would be more careless in keeping its formation on the march, and they followed it through secret paths in the forest with the intention of making a surprise attack. As they did not catch it up, they suddenly crossed the Po in ships and devastated the lands of the Laevi and Libui. On their way back along the Ligurian frontier they fell in with the Roman armies whilst they were loaded with plunder. The battle began more quickly and more furiously than if the time and place had previously been determined and all preparations made for battle. Here was a striking instance of the way in which passion stimulates courage, for the Romans were so determined to kill rather than simply to win a victory that they left hardly a man alive to carry

the news of the battle. When the despatch announcing this success reached Rome a three days' thanksgiving was ordered for the victory. Marcellus arrived in Rome soon afterwards and a triumph was unanimously accorded to him by the senate. He celebrated his triumph over the Insubres and the Comensians while still in office. The anticipation of a triumph over the Boii he resigned to his colleague, because he personally had been unsuccessful against them, only in conjunction with his colleague had he been victorious. A large amount of spoil was carried in the wagons taken from the enemy, including numerous standards. The specie amounted to 320,000 ases and 234,000 silver denarii. Each legionary received a gratuity of 80 ases; the cavalry and centurions each three times as much.

[33.38].During this year Antiochus, who had spent the winter in Ephesus, endeavoured to reduce all the cities in Asia to their old condition of dependence. With the exception of Smyrna and Lampsacus, he thought that they would all accept the yoke without difficulty, since they either lay in open level country or were weakly defended by their walls and their soldiery. Smyrna and Lampsacus asserted their right to be free and there was danger, should their claim be allowed, of other cities in Aeolis and Ionia following the example of Smyrna, and those on the Hellespont the example of Lampsacus. Accordingly he despatched a force from Ephesus to invest Smyrna and ordered the troops in Abydos to march to Lampsacus, only a small detachment being left to hold the place. But it was not only the threat of arms that he made use of, he sent envoys to make friendly overtures to the citizens, and whilst gently rebuking their rashness and obstinacy lead them to hope that in a short time they would have what they wanted. It was, however, perfectly clear to them and to all the world that they would enjoy their liberty as the free gift of the king and not because they had seized a favourable opportunity of winning it. They told the envoys in reply that Antiochus must be neither surprised nor angry if they did not patiently resign themselves to the indefinite postponement of their hopes of liberty.

At the beginning of spring he set sail from Ephesus for the Hellespont and ordered his land army to proceed from Abydos to the Chersonese. He united his naval and military powers at Madytos, a city in the Chersonese, and as they had shut their gates against him he completely invested the place, and was on the point of bringing up his siege engines when the city surrendered. The fear which

Antiochus thus inspired led the inhabitants of Sestos and the other cities in the Chersonese to make a voluntary surrender. His next objective was Lysimachia. When he arrived here with the whole of his land and sea forces he found the place deserted and little more than a heap of ruins, for some years previously the Thracians had captured and plundered the city and then burnt it. Finding it in this condition, Antiochus was seized by a desire to restore a city of such celebrity and so favourably situated, and he at once set about the various tasks which this involved. The houses and walls were rebuilt, some of the former inhabitants who had been made slaves were ransomed, others who were scattered as refugees throughout the Chersonese and the shores of the Hellespont were discovered and brought together, and new colonists were attracted by the prospect of the advantages they would receive. In fact every method was adopted of repopulating the city. To remove at the same time all apprehensions of trouble from the Thracians he proceeded with one half of his army to devastate the neighbouring districts of Thrace, the other half and all the ships' crews he left to go on with the work of restoration.

[33.39]Very shortly after this L. Cornelius, who had been sent by the senate to settle the differences between Antiochus and Ptolemy, made a halt at Selymbria, and three of the ten commissioners went to Lysimachia: P. Lentulus from Bargyliae, P. Villius and L. Terentius from Thasos. They were joined there by L. Cornelius from Selymbria, and a few days later by Antiochus, who returned from Thrace. The first meeting with the commissioners and the invitation which Antiochus gave them were kindly and hospitable, but when it came to discussing their instructions and the position of affairs in Asia a good deal of temper was shown on both sides. The Romans told Antiochus plainly that everything he had done since his fleet set sail from Syria met with the disapproval of the senate and they considered it right that all the cities which had been subject to Ptolemy should be restored to him. With regard to those cities which had formed part of Philip's possessions and which while he was preoccupied with the war against Rome Antiochus had seized the opportunity of appropriating himself, it was simply intolerable that after the Romans had sustained such risks and hardships by sea and land for all those years Antiochus should carry off the prizes of war. Granting that it was possible for the Romans to take no notice of his

appearance in Asia as being no concern of theirs, what about his entrance into Europe with the whole of his army and navy? What difference was there between that and an open declaration of war against Rome? Even if he had landed in Italy he would say that he did not mean war, but the Romans were not going to wait until he was in a position to do that.

[33.40]In his reply Antiochus expressed his surprise that the Romans should go so carefully into the question as to what Antiochus ought to do, whilst they never stopped to consider what limits were to be set to their own advance by land and sea. Asia was no concern of the senate, and they had no more right to ask what Antiochus was doing in Asia than he had to ask what the Roman people were doing in Italy. As for Ptolemy and their complaint that he had appropriated his cities, he and Ptolemy were on perfectly friendly terms and arrangements were being made for them to be connected by marriage shortly. He had not sought to take advantage of Philip's misfortunes nor had he come into Europe with any hostile intent against the Romans. After the defeat of Lysimachus all that belonged to him passed by the right of war to Seleucus, and therefore he counted it part of his dominion. Ptolemy, and after him Philip, alienated some of these places at a time when his (Antiochus') ancestors were devoting their care and attention to other matters. Could there be a shadow of doubt that the Chersonese and that part of Thrace which lies round Lysimachia once belonged to Lysimachus? To recover the ancient right over these was the object of his coming and also to rebuild from its foundations the city of Lysimachia, which had been destroyed by the Thracians, in order that his son Seleucus might have it as the seat of empire.

[33.41]After this discussion had been going on for some days, an unauthenticated rumour reached them that Ptolemy was dead. This prevented any decision from being arrived at; both parties pretended that they had heard nothing about it, and L. Cornelius, whose mission extended to both Antiochus and Ptolemy, asked for a short adjournment to allow of his obtaining an interview with Ptolemy. His object was to land in Egypt before the new occupant of the throne could initiate any change of policy. Antiochus, on the other hand, felt certain that if he took possession of Egypt at once it would be his own, and so, taking his leave of the Roman commissioners and leaving his son to complete the restoration of Lysimachia, he sailed

with the whole of his fleet to Ephesus. From there he despatched envoys to Quinctius to lull his suspicion and to assure him that he was not contemplating any new departure. Coasting along the Asiatic shores he reached Patarae in Lycia and there he learnt that Ptolemy was alive. He now abandoned all intention of sailing to Egypt, but continued his voyage as far as Cyprus. When he had rounded the promontory of Chelidoniae he was for some time delayed in Pamphylia near the river Eurymedon by a mutiny amongst the crews. After continuing his voyage as far as the co-called "heads" of the river Saros he was overtaken by a terrible storm which engulfed nearly the whole of his fleet. Many of the ships were wrecked, many ran aground, a large number foundered so suddenly that none could swim to land. There was a very great loss of life; not only nameless crowds of sailors and soldiers, but many distinguished men, friends of the king, were amongst the victims. Antiochus collected the remains of his shattered fleet, but as he was in no condition to make an attempt on Cyprus he returned to Seleucia, much poorer in men and material resources than when he started on his expedition. Here he had the ships beached, for winter was close at hand, after which he went to Antioch for the winter. Such was the position of affairs with regard to the two monarchs.

[33.42] This year for the first time three *epulones* were appointed, namely C. Licinius Lucullus, one of the tribunes of the plebs who had got the law passed under which they were appointed, and with him P. Manlius and P. Portius Laeca. They were allowed by law to wear the *toga praetexta* like the priests. But a serious dispute broke out this year between the whole body of priests and the City quaestors, Q. Fabius Labeo and P. Aurelius. The senate had decided that the last repayment of the money subscribed for the Punic War should be made to those who had contributed and money was needed for the purpose. As the augurs and pontiffs had not made any contribution during the war, the quaestors demanded payment from them. They appealed in vain to the tribunes of the plebs, and were compelled to pay their quota for every year of the war. Two pontiffs died during the year; they were succeeded by the consul, M. Marcellus, in place of C. Sempronius Tuditanus, who had died while acting as praetor in Spain, and L. Valerius Flaccus in place of M. Cornelius Cethegus. The augur Q. Fabius Maximus also died while quite young, before he

could hold any magistracy; no successor was appointed during the year.

The consular elections were conducted by M. Marcellus; the new consuls were L. Valerius Flaccus and M. Porcius Cato. The praetors elected were Cn. Manlius Volso, Ap. Claudius Nero P. Porcius Laeca, C. Fabricius Luscinus, C. Atinius Labeo and P. Manlius. The curule aediles, M. Fulvius Nobilior and C. Flaminius, sold during the year a million modii of wheat to the people at two ases the modius. This wheat was sent by the Sicilians out of regard to C. Flaminius and in honour of his father's memory. The Roman Games were celebrated with great splendour and repeated on three different days. The plebeian aediles, Cn. Domitius Ahenobarbus and C. Scribonius Curio, brought several farmers of State lands before the popular tribunal; three of these were convicted, and out of the fines imposed they built a temple to Faunus on the Island. The Plebeian Games lasted two days and there was the usual banquet.

[33.43] On March 15, the day when they entered upon office, the new consuls consulted the senate as to the allocation of provinces. The senate decided that since the war in Spain was spreading to such a serious extent as to require the presence of a consul and a consular army, Hither Spain should be one of the two consular provinces. The consuls were instructed to come to a mutual arrangement or else ballot for that province and Italy. Whichever of them drew Spain was to take with him two legions, 15,000 allied infantry and 800 cavalry and a fleet of 20 ships of war. The other consul was to raise two legions; that was looked upon as sufficient to hold Gaul after the crushing blow dealt to the Insubres and the Boii the previous year. Cato drew Spain, Valerius Italy. The praetors now balloted for their provinces. C. Fabricius Luscinus received the City jurisdiction; C. Atinius Labeo the jurisdiction over aliens; Cn. Manlius Volso, Sicily; Ap. Claudius Nero, Further Spain; P. Porcius Laeca, Pisae, in order to threaten the Ligurians from the rear. P. Manlius was assigned to the consul to assist him in Hither Spain. Owing to the suspicious attitude of Antiochus and of the Aetolians, and also of Nabis and the Lacedaemonians, T. Quinctius was continued in his command with the two legions he had had before. Any reinforcements required to bring them up to full strength were to be raised by the consuls and despatched to Macedonia. In addition to the legion which Q. Fabius had had, Appius Claudius was authorised to raise 2000 infantry and

200 cavalry. The same number of infantry and cavalry were assigned to P. Manlius for employment in Hither Spain as well as the legion which had served under the praetor Q. Minucius. Out of the army in Gaul 10,000 infantry and 500 cavalry were decreed to P. Portius Laeca to operate in Etruria round Pisae. Tiberius Sempronius Longus had his command in Sardinia extended.

[33.44]Such was the distribution of the provinces. Before the consuls left the City they were required, in accordance with a decree of the pontiffs, to proclaim a Sacred Spring. This was in fulfilment of a vow made by the praetor A. Cornelius Mammula at the desire of the senate and by order of the people twenty-one years previously in the consulship of Cn. Servilius and C. Flaminius. C. Claudius Pulcher, the son of Appius, was at the same time appointed augur in place of Q. Fabius Maximus, who had died the year before. Whilst general surprise was felt that nothing was being done about the war which had broken out in Spain, a despatch arrived from Q. Minucius announcing that he had successfully engaged the Spanish generals Budar and Baesadines, and that the enemy had lost 12,000 men, Budar being made prisoner and the rest routed and put to flight. When the despatch was read less apprehension was felt about the two Spains, where a very serious war had been anticipated. The general anxiety now centered on Antiochus, especially after the return of the ten commissioners. After giving their report on the negotiations with Philip and the terms on which peace had been made with him, they made it evident that a war on at least as great a scale with Antiochus was imminent. He had, so they informed the senate, landed in Europe with an enormous fleet and a splendid army, and if his attention had not been diverted by a groundless hope based upon a still more groundless rumour, to the invasion of Egypt, Greece would very soon have been in the blaze of war. Even the Aetolians, a nation naturally restless and now intensely embittered against the Romans, would no longer remain quiet. And there was another most formidable mischief with its roots in the very vitals of Greece - Nabis, who was for the time being tyrant of Lacedaemon, but who if he were allowed would soon become tyrant of the whole of Greece, a man who in greed and brutality rivalled the most notorious tyrants in history. If, after the Roman armies had been carried back to Italy, he were allowed to hold Argos as a stronghold threatening the whole of the Peloponnese, the deliverance of Greece from Philip would have

been effected in vain; in any case instead of a distant monarch as their lord they would have a tyrant at their doors.

[33.45]After listening to these statements made by men of such weight and judgment, who, moreover, had made their report after personal investigation, the senate were of opinion that though the policy to be pursued towards Antiochus was the more important question before them, still, as the king, whatever his reason might be, had retired into Syria, it seemed better to consider first what to do about the tyrant. After a lengthy discussion as to whether there were sufficient grounds for a formal declaration of war or whether it would be enough to leave it to T. Quinctius to act, as far as Nabis was concerned, in whatever way he thought best in the interests of the State, the matter was finally left in his hands. Whether they took prompt steps or whether they delayed action it did not seem to them to be of vital importance to the commonwealth. A much more pressing question was what Hannibal and Carthage were likely to do in case of war with Antiochus. The members of the party opposed to Hannibal were constantly writing to their friends in Rome. According to their account, messengers and letters were being sent by Hannibal to Antiochus and emissaries from the king were holding secret conferences with him. Just as there were wild beasts which no skill could tame, so this man was untamable and implacable. He complained that his countrymen were becoming enervated through ease and self-indulgence, and slumbering in indolence and sloth, and said that nothing could rouse them but the clash of arms. People were all the more ready to believe these assertions when they remembered that it was this man who was responsible for the beginning quite as much as for the conduct of the late war. His recent action had also called forth strong resentment amongst many of the magnates.

[33.46]The order of judges exercised supreme power in Carthage at that time, owing mainly to the fact that they held office for life. The property, reputation and life of everyone were in their power. Whoever offended one of the order had an enemy in every member, and when the judges were hostile there was always a prosecutor to be found amongst them. Whilst these men were exercising this unbridled despotism, for they used their power without any regard to the rights of their fellow-citizens, Hannibal, who had been appointed one of the presiding magistrates, ordered the quaestor to be summoned before him. The quaestor paid no attention to the

summons; he belonged to the opposite party and, moreover, as the quaestors were generally advanced to the all-powerful order of judges he gave himself the airs of a man who was sure of promotion. Resenting this indignity Hannibal sent an officer to arrest the quaestor, and after he was brought into the assembly Hannibal denounced not only the quaestor but the whole of the judicial order, whose insolence and excessive power utterly subverted the laws and the authority of the magistrates who had to enforce them. When he saw that his words were making a favourable impression and that the insolence and tyranny of that order were recognised as dangerous to the liberty of the meanest citizen, he at once proposed and carried a law enacting that the judges should be elected annually and that none should hold office for two consecutive years. Whatever popularity, however, he gained amongst the masses by his action was counterbalanced by the offence given to a large number of the aristocracy. A further step which he took in the public interest aroused intense hostility to him personally. The public revenues were being frittered away, partly through careless management and partly through being fraudulently appropriated by some of the political leaders and superior magistrates. The result was that there was not money enough to meet the annual payment of the indemnity to Rome, and there seemed every likelihood of a heavy tax being imposed upon the individual citizens.

[33.47]When Hannibal had informed himself as to the amount of the national income from all sources, the objects for which calls upon it were made, what proportion was absorbed by the regular needs of the State and how much had been embezzled, he stated publicly in the assembly that if the balance were called up the government would be rich enough to meet the demands of Rome without any tax falling on individual citizens. And he was as good as his word. Those who had for years been battenning on their pilferings from the national treasury were as furious as if it was the seizure of their personal property and not the forcible recovery of what they had stolen that was contemplated. In their rage they began to urge on the Romans, who were on their own account looking out for an opportunity of visiting their hate upon him. For a long time this policy found an opponent in P. Scipio Africanus. He considered it quite beneath the dignity of the Roman people to support the attacks of Hannibal's accusers or to allow the authority of the government to be mixed up

with the party politics of Carthage, or not content with having defeated Hannibal in open war to treat him as though he were a criminal against whom they were to appear as prosecutors. At last, however, his opponents carried their point and delegates were sent to Carthage to point out to the senate there that Hannibal was concerting plans with Antiochus for commencing war. Cn. Servilius, M. Claudius Marcellus and Q. Terentius Culleo formed the delegation. On their arrival in Carthage they were advised by Hannibal's enemies to give out that people who asked the reason of their coming should be told that they had come to adjust the differences between Masinissa and the government of Carthage. This explanation was generally believed. Hannibal alone was not deceived, he knew that he was the object at which the Romans were aiming, and that the underlying motive of the peace with Carthage was that he might be left as the sole victim of their undying hostility. He decided to bow before the storm, and after making every preparation for flight he showed himself during the day in the forum to allay suspicion and as soon as it was dark he went in his official dress to the gate, accompanied by two attendants who were unaware of his design.

[33.48]When the horses which he had ordered were ready, he rode during the night to Byzacium - the name of a country district - and the next day reached his castle on the coast between Acylla and Thapsus. There a ship was awaiting him, prepared for immediate departure. It was in this way that Hannibal withdrew from Africa, the country for whose misfortunes he had felt much more pity than for his own. That same day he landed in the island of Cercina. Here he found some Phoenician merchant ships lying in the harbour, and on his leaving his vessel there was a general rush to greet him. In reply to inquiries he gave out that he was on a mission to Tyre. Fearing, however, that one or other of these ships might leave in the night for Thapsus or Hadrumentum and report his appearance in Cercina, he ordered preparations for a sacrifice to be prepared and the ships' captains to be invited to the solemnity. He also gave directions for the sails and yards to be collected from the ships that they might serve as awnings to shade them at their feast, as it happened to be the middle of the summer. The entertainment was as sumptuous as time and circumstances permitted, and the conviviality was prolonged far into the night, much wine being consumed. As soon as he had an

opportunity of escaping the observation of those in the harbour Hannibal set sail. The rest were all asleep and it was not till late the next day that they rose from their torpor, stupid with the effects of intoxication, and then had to spend several hours in getting the tackle of their vessels back into its place. At Hannibal's house in Carthage the usual crowd had collected in large numbers in the vestibule. When it became generally known that he was not to be found, the crowd surged into the forum demanding the appearance of their foremost citizen. Some, guessing the truth, suggested that he had fled, others - and these were the loudest and most numerous - said that he had been put to death through Roman treachery, and you might note the different expressions in their faces, as would be expected in a city torn by violent political partisanship. Then came the news that he had been seen in Cercina.

[33.49]The Roman delegates informed the council of Carthage that the senate had definitely ascertained that it was mainly at Hannibal's instigation that Philip had made war on Rome, and now letters and messengers were being despatched to Antiochus and the Aetolians, and plans had been formed for driving Carthage into revolt. It was to Antiochus that he had gone, and nowhere else, and he would never rest until he had stirred up war throughout the whole world. If the Carthaginians wanted to satisfy the Roman people that none of his proceedings was in accordance with their wishes or sanctioned by their government, they must see that he did not go unpunished. The Carthaginians replied that they would do whatever the Romans thought right. After a fair voyage Hannibal reached Tyre, and the founders of Carthage welcomed as from a second fatherland the man who had achieved every possible distinction. After a short stay here he continued his voyage to Antiochia. Here he heard that the king had left for Asia, and he had an interview with his son, who was at the time celebrating the Games at Daphne, and who gave him a most friendly welcome. Anxious to lose no time he at once resumed his voyage and found the king at Ephesus, still unable to make up his mind on the question of war with Rome. Hannibal's arrival was not the least important factor in bringing him to a decision. The Aetolians, too, were now growing averse from their alliance with Rome. They had sent a mission to Rome to demand the restitution of Pharsalus, Leucas and certain other cities under the terms of the former treaty, and the senate referred them to Quintius.

BOOK 34: CLOSE OF THE MACEDONIAN WAR

[34.1]While the State was preoccupied by serious wars, some hardly yet over and others threatening, an incident occurred which though unimportant in itself resulted in a violent party conflict. Two of the tribunes of the plebs, M. Fundanius and L. Valerius, had brought in a proposal to repeal the Oppian Law. This law had been made on the motion of M. Oppius, a tribune of the plebs, during the consulship of Q. Fabius and Tiberius Sempronius, when the strain of the Punic War was most severely felt. It forbade any woman to have in her possession more than half an ounce of gold, to wear a dress of various colours or to ride in a two-horsed vehicle within a mile of the City or of any Roman town unless she was going to take part in some religious function. The two Brutuses - M. Junius and T. Junius - both tribunes of the plebs, defended the law and declared that they would not allow it to be repealed; many of the nobility came forward to speak in favour of the repeal or against it; the Capitol was crowded with supporters and opponents of the proposal; the matrons could not be kept indoors either by the authority of the magistrates or the orders of their husbands or their own sense of propriety. They filled all the streets and blocked the approaches to the Forum; they implored the men who were on their way thither to allow the women to resume their former adornments now that the commonwealth was flourishing and private fortunes increasing every day. Their numbers were daily augmented by those who came up from the country towns. At last they ventured to approach the consuls and praetors and other magistrates with their demands. One of the consuls at all events was inexorably opposed to their request - M. Porcius Cato. He spoke as follows in defence of the law:

[34.2]"If we had, each one of us, made it a rule to uphold the rights and authority of the husband in our own households we should not now have this trouble with the whole body of our women. As things are now our liberty of action, which has been checked and rendered powerless by female despotism at home, is actually crushed and trampled on here in the Forum, and because we were unable to withstand them individually we have now to dread their united strength. I used to think that it was a fabulous story which tells us that in a certain island the whole of the male sex was extirpated by a conspiracy amongst the women; there is no class of women from whom the gravest dangers may not arise, if once you allow intrigues,

plots, secret cabals to go on. I can hardly make up my mind which is worse, the affair itself or the disastrous precedent set up. The latter concerns us as consuls and magistrates; the former has to do more with you, Quirites. Whether the measure before you is for the good of the commonwealth or not is for you to determine by your votes; this tumult amongst the women, whether a spontaneous movement or due to your instigation, M. Fundanius and L. Valerius, certainly points to failure on the part of the magistrates, but whether it reflects more on you tribunes or on the consuls I do not know. It brings the greater discredit on you if you have carried your tribunitian agitation so far as to create unrest among the women, but more disgrace upon us if we have to submit to laws being imposed upon us through fear of a secession on their part, as we had to do formerly on occasions of the secession of the plebs. It was not without a feeling of shame that I made my way into the Forum through a regular army of women. Had not my respect for the dignity and modesty of some amongst them, more than any consideration for them as a whole, restrained me from letting them be publicly rebuked by a consul, I should have said, 'What is this habit you have formed of running abroad and blocking the streets and accosting men who are strangers to you? Could you not each of you put the very same question to your husbands at home? Surely you do not make yourselves more attractive in public than in private, to other women's husbands more than to your own? If matrons were kept by their natural modesty within the limits of their rights, it would be most unbecoming for you to trouble yourselves even at home about the laws which may be passed or repealed here.' Our ancestors would have no woman transact even private business except through her guardian, they placed them under the tutelage of parents or brothers or husbands. We suffer them now to dabble in politics and mix themselves up with the business of the Forum and public debates and election contests. What are they doing now in the public roads and at the street corners but recommending to the plebs the proposal of their tribunes and voting for the repeal of the law. Give the reins to a headstrong nature, to a creature that has not been tamed, and then hope that they will themselves set bounds to their licence if you do not do it yourselves. This is the smallest of those restrictions which have been imposed upon women by ancestral custom or by laws, and which they submit to with such impatience. What they really want is unrestricted

freedom, or to speak the truth, licence, and if they win on this occasion what is there that they will not attempt?

[34.3]"Call to mind all the regulations respecting women by which our ancestors curbed their licence and made them obedient to their husbands, and yet in spite of all those restrictions you can scarcely hold them in. If you allow them to pull away these restraints and wrench them out one after another, and finally put themselves on an equality with their husbands, do you imagine that you will be able to tolerate them? From the moment that they become your fellows they will become your masters. But surely, you say, what they object to is having a new restriction imposed upon them, they are not deprecating the assertion of a right but the infliction of a wrong. No, they are demanding the abrogation of a law which you enacted by your suffrages and which the practical experience of all these years has approved and justified. This they would have you repeal; that means that by rescinding this they would have you weaken all. No law is equally agreeable to everybody, the only question is whether it is beneficial on the whole and good for the majority. If everyone who feels himself personally aggrieved by a law is to destroy it and get rid of it, what is gained by the whole body of citizens making laws which those against whom they are enacted can in a short time repeal? I want, however, to learn the reason why these excited matrons have run out into the streets and scarcely keep away from the Forum and the Assembly. Is it that those taken prisoners by Hannibal - their fathers and husbands and children and brothers - may be ransomed? The republic is a long way from this misfortune, and may it ever remain so! Still, when this did happen, you refused to do so in spite of their dutiful entreaties. But, you may say, it is not dutiful affection and solicitude for those they love that has brought them together; they are going to welcome Mater Idaea on her way from Phrygian Pessinus. What pretext in the least degree respectable is put forward for this female insurrection? 'That we may shine,' they say, 'in gold and purple, that we may ride in carriages on festal and ordinary days alike, as though in triumph for having defeated and repealed a law after capturing and forcing from you your votes.'

[34.4]"You have often heard me complain of the expensive habits of women and often, too, of those of men, not only private citizens but even magistrates, and I have often said that the community suffers from two opposite vices - avarice and luxury - pestilential diseases

which have proved the ruin of all great empires. The brighter and better the fortunes of the republic become day by day, and the greater the growth of its dominion - and now we are penetrating into Greece and Asia, regions filled with everything that can tempt appetite or excite desire, and are even laying hands on the treasures of kings - so much the more do I dread the prospect of these things taking us captive rather than we them. It was a bad day for this City, believe me, when the statues were brought from Syracuse. I hear far too many people praising and admiring those which adorn Athens and Corinth and laughing at the clay images of our gods standing in front of their temples. I for my part prefer these gods who are propitious to us, and I trust that they will continue to be so as long as we allow them to remain in their present abodes.

In the days of our forefathers Pyrrhus attempted, through his ambassador Cineas, to tamper with the loyalty of women as well as men by means of bribes. The Law of Oppius in restraint of female extravagance had not then been passed, still not a single woman accepted a bribe. What do you think was the reason? The same reason which our forefathers had for not making any law on the subject; there was no extravagance to be restrained. Diseases must be recognised before remedies are applied, and so the passion for self-indulgence must be in existence before the laws which are to curb it. What called out the Licinian Law which restricted estates to 500 jugera except the keen desire of adding field to field? What led to the passing of the Cincian Law concerning presents and fees except the condition of the plebeians who had become tributaries and taxpayers to the senate? It is not therefore in the least surprising that neither the Oppian nor any other law was in those days required to set limits to the expensive habits of women when they refused to accept the gold and purple that was freely offered to them. If Cineas were to go in these days about the City with his gifts, he would find women standing in the streets quite ready to accept them.

There are some desires of which I cannot penetrate either the motive or the reason. That what is permitted to another should be forbidden to you may naturally create a feeling of shame or indignation, but when all are upon the same level as far as dress is concerned why should any one of you fear that you will not attract notice? The very last things to be ashamed of are thriftiness and poverty, but this law relieves you of both since you do not possess what it forbids you to

possess. The wealthy woman says, 'This levelling down is just what I do not tolerate. Why am I not to be admired and looked at for my gold and purple? Why is the poverty of others disguised under this appearance of law so that they may be thought to have possessed, had the law allowed it, what it was quite out of their power to possess?'

Do you want, Quirites, to plunge your wives into a rivalry of this nature, where the rich desire to have what no one else can afford, and the poor, that they may not be despised for their poverty, stretch their expenses beyond their means? Depend upon it, as soon as a woman begins to be ashamed of what she ought not to be ashamed of she will cease to feel shame at what she ought to be ashamed of. She who is in a position to do so will get what she wants with her own money, she who cannot do this will ask her husband. The husband is in a pitiable plight whether he yields or refuses; in the latter case he will see another giving what he refused to give. Now they are soliciting other women's husbands, and what is worse they are soliciting votes for the repeal of a law, and are getting them from some, against the interest of you and your property and your children. When once the law has ceased to fix a limit to your wife's expenses, you will never fix one. Do not imagine that things will be the same as they were before the law was made. It is safer for an evil-doer not to be prosecuted than for him to be tried and then acquitted, and luxury and extravagance would have been more tolerable had they never been interfered with than they will be now, just like wild beasts which have been irritated by their chains and then released. I give my vote against every attempt to repeal the law, and pray that all the gods may give your action a fortunate result."

[34.5]After this the tribunes of the plebs who had announced their intention of vetoing the repeal spoke briefly to the same effect. Then L. Valerius made the following speech in defence of his proposal: "If it had been only private citizens who came forward to argue in favour of, or against, the measure we have brought in, I should have awaited your votes in silence as I should have considered that enough had been said on either side. But now, when a man of such weight of character as M. Porcius, our consul, is opposing our bill, not simply by exerting his personal authority which, even had he remained silent, would have had very great influence, but also in a long and carefully thought out speech, it is necessary to make a brief reply. He spent, it

is true, more time in castigating the matrons than in arguing against the bill, and he even left it doubtful whether the action of the matrons which he censured was due to their own initiative or to our instigation. I shall defend the measure and not ourselves, for that was thrown out as a suggestion rather than as an actual charge. Because we are now enjoying the blessings of peace and the commonwealth is flourishing and happy, the matrons are making a public request to you that you will repeal a law which was passed against them under the pressure of a time of war. He denounces this action of theirs as a plot, a seditious movement, and he sometimes calls it a female secession. I know how these and other strong expressions are selected to bolster up a case, and we all know that, though naturally of a gentle disposition, Cato is a powerful speaker and sometimes almost menacing. What innovation have the matrons been guilty of by publicly assembling in such numbers for a cause which touches them so closely? Have they never appeared in public before? I will quote your own 'Origines' against you. Hear how often they have done this and always to the benefit of the State.

"At the very beginning, during the reign of Romulus, after the capture of the Capitol by the Sabines, when a pitched battle had begun in the Forum, was not the conflict stopped by the matrons rushing between the lines? And when after the expulsion of the kings the Volscian legions under their leader Caius Marcius had fixed their camp at the fifth milestone from the City, was it not the matrons who warded off that enemy by whom otherwise this City would have been laid in ruins? When it had been captured by the Gauls, how was it ransomed? By the matrons, of course, who by general agreement brought their contributions to the treasury. And without searching for ancient precedents, was it not the case that in the late war when money was needed the treasury was assisted by the money of the widows? Even when new deities were invited to help us in the hour of our distress did not the matrons go in a body down to the shore to receive Mater Idaea? You say that they were actuated by different motives then. It is not my purpose to establish the identity of motives, it is sufficient to clear them from the charge of strange unheard-of conduct. And yet, in matters which concern men and women alike, their action occasioned surprise to no one; why then should we be surprised at their taking the same action in a cause which especially interests them? But what have they done? We must,

believe me, have the ears of tyrants if, whilst masters condescend to listen to the prayers of their slaves we deem it an indignity to be asked a favour by honourable women.

[34.6]"I come now to the matter of debate. Here the consul adopted a twofold line of argument, for he protested against any law being repealed and in particular against the repeal of this law which had been passed to restrain female extravagance. His defence of the laws as a whole seemed to me such as a consul ought to make and his strictures on luxury were quite in keeping with his strict and severe moral code. Unless, therefore, we show the weakness of both lines of argument there is some risk of your being led into error. As to laws which have been made not for a temporary emergency, but for all time as being of permanent utility, I admit that none of them ought to be repealed except where experience has shown it to be hurtful or political changes have rendered it useless. But I see that the laws which have been necessitated by particular crises are, if I may say so, mortal and subject to change with the changing times. Laws made in times of peace war generally repeals, those made during war peace rescinds, just as in the management of a ship some things are useful in fair weather and others in foul. As these two classes of laws are distinct in their nature, to which class would the law which we are repealing appear to belong? Is it an ancient law of the kings, coeval with the City, or, which is the next thing to it, did the decemviri who were appointed to codify the laws inscribe it on the Twelve Tables as an enactment without which our forefathers thought that the honour and dignity of our matrons could not be preserved, and if we repeal it shall we have reason to fear that we shall destroy with it the self-respect and purity of our women? Who does not know that this is quite a recent law passed twenty years ago in the consulship of Q. Fabius and Tiberius Sempronius? If the matrons led exemplary lives without it, what danger can there possibly be of their plunging into luxury if it is repealed? If that law had been passed with the sole motive of limiting female excesses there might be some ground for apprehension that the repeal might encourage them, but the circumstances under which it was passed will reveal its object.

Hannibal was in Italy; he had won the victory of Cannae; he was now master of Tarentum, Arpi and Capua; there was every likelihood that he would bring his army up to Rome. Our allies had fallen away from us, we had no reserves from which to make good our losses, no

seamen to render our navy effective, and no money in the treasury. We had to arm the slaves and they were bought from their owners on condition that the purchase money should be paid at the end of the war; the contractors undertook to supply corn and everything else required for the war, to be paid for at the same date. We gave up our slaves to act as rowers in numbers proportionate to our assessment and placed all our gold and silver at the service of the State, the senators setting the example. Widows and minors invested their money in the public funds and a law was passed fixing the maximum of gold and silver coinage which we were to keep in our houses. Was it at such a crisis as this that the matrons were so given to luxury that the Oppian Law was needed to restrain them, when, owing to their being in mourning, the sacrificial rites of Ceres had been intermitted and the senate in consequence ordered the mourning to be terminated in thirty days? Who does not see that the poverty and wretched condition of the citizens, every one of whom had to devote his money to the needs of the commonwealth, were the real enactors of that law which was to remain in force as long as the reason for its enactment remained in force? If every decree made by the senate and every order made by the people to meet the emergency is to remain in force for all time, why are we repaying to private citizens the sums they advanced? Why are we making public contracts on the basis of immediate payment? Why are slaves not being purchased to serve as soldiers, and each of us giving up our slaves to serve as rowers as we did then?

[34.7]"All orders of society, all men will feel the change for the better in the condition of the republic; are our wives alone to be debarred from the enjoyment of peace and prosperity? We, their husbands, shall wear purple, the toga praetexta will mark those holding magisterial and priestly offices, our children will wear it, with its purple border; the right to wear it belongs to the magistrates in the military colonies and the municipal towns. Nor is it only in their lifetime that they enjoy this distinction; when they die they are cremated in it. You husbands are at liberty to wear a purple wrap over your dress, will you refuse to allow your wives to wear a purple mantle? Are the trappings of your horses to be more gorgeous than the dress of your wives? Purple fabrics, however, become frayed and worn out, and in their case I recognise some reason, though a very unfair one, for his opposition; but what is there to offend with regard

to gold, which suffers no waste except on the cost of working it? On the contrary, it rather protects us in the time of need and forms a resource available for either public or private requirements, as you have learnt by experience. Cato said that there was no individual rivalry amongst them since none possessed what might make others jealous. No, but most certainly there is general grief and indignation felt among them when they see the wives of our Latin allies permitted to wear ornaments which they have been deprived of, when they see them resplendent in gold and purple and driving through the City while they have to follow on foot, just as though the seat of empire was in the Latin cities and not in their own. This would be enough to hurt the feelings of men, what then think you must be the feelings of poor little women who are affected by small things? Magistracies, priestly functions, triumphs, military decorations and rewards, spoils of war - none of these fall to their lot. Neatness, elegance, personal adornment, attractive appearance and looks - these are the distinctions they covet, in these they delight and pride themselves; these things our ancestors called the ornament of women. What do they lay aside when they are in mourning except their gold and purple, to resume them when they go out of mourning? How do they prepare themselves for days of public rejoicing and thanksgiving beyond assuming richer personal adornment? I suppose you think that if you repeal the Oppian Law, and should wish to forbid anything which the law forbids now, it will not be in your power to do so, and that some will lose all legal rights over their daughters and wives and sisters. No; women are never freed from subjection as long as their husbands and fathers are alive; they deprecate the freedom which orphanhood and widowhood bring. They would rather leave their personal adornment to your decision than to that of the law. It is your duty to act as their guardians and protectors and not treat them as slaves; you ought to wish to be called fathers and husbands, instead of lords and masters. The consul made use of invidious language when he spoke of female sedition and secession. Do you really think there is any danger of their seizing the Sacred Mount as the exasperated plebs once did, or of their taking possession of the Aventine? Whatever decision you come to, they in their weakness will have to submit to it. The greater your power, so much the more moderate ought you to be in exercising it."

[34.8]After these speeches in support of and against the law the women poured out into the streets the next day in much greater force and went in a body to the house of the two Brutuses, who were vetoing their colleagues' proposal, and beset all the doors, nor would they desist till the tribunes had abandoned their opposition. There was no doubt now that the tribes would be unanimous in rescinding the law. It was abrogated twenty years after it had been made. After this matter was settled Cato at once left the City and with twenty-five ships of war, five of which belonged to the allies, sailed to the port of Luna, where the army had also received orders to muster. He had published an edict through the whole length of the coast requiring ships of every description to be assembled at Luna, and there he left orders that they should follow him to the Port of the Pyrenees, it being his intention to advance against the enemy with his full naval strength. Sailing past the Ligurian coast and the Gulf of Gaul, they assembled there by the appointed day. Cato sailed on to Rhoda and expelled the Spanish garrison who were holding the fort. From Rhoda a favourable wind brought him to Emporiae. Here he disembarked the whole of his force with the exception of the crews of the vessels.

[34.9]At that time Emporiae consisted of two towns divided by a wall. One was inhabited by Greeks who had, like the people of Massilia, originally come from Phocaea; the other contained a Spanish population. As the Greek town was almost entirely open to the sea its walls were less than half a mile in circuit; the Spanish town, further back from the sea, had walls with a circuit of three miles. A third element in the population was formed by some Roman colonists who had been settled there by the deified Caesar after the final defeat of Pompey's sons. At the present day all have been fused into one municipal body by the grant of Roman citizenship, in the first instance to the Spaniards and then to the Greeks. Anyone who saw how the Greeks were exposed to attacks on the one side from the open sea and from the Spaniards on the other side might wonder what there was that afforded them protection. Discipline was the guardian of their weakness, a quality which among stronger nations is best maintained by fear. They kept that portion of the wall which faced inland extremely well fortified, only one gate was situated on that side and it was always guarded night and day by one of the magistrates. During the night one-third of the citizens were on duty

on the walls, not simply as a matter of routine or regulation, they kept up their watches and patrols as if an enemy were at their gates. No Spaniards were allowed within their city, nor did they themselves venture outside their walls without proper precautions. The exits to the sea were open to all. They never went out through the gate which faced the Spanish town unless a large number went together, and it was generally the body who had mounted guard on the walls the night before. The object of their going outside this gate was as follows: the Spaniards, unfamiliar with the sea, were glad to purchase the goods which the Greeks received from abroad and at the same time to sell the products of their fields to them. Owing to the need of this mutual intercourse the Spanish city was always open to the Greeks. An additional security was found in the friendship of Rome, under whose shelter they lay and to which they were quite as loyal as the Massilians, though their strength and resources were so much less. On this occasion they gave the consul and his army a hearty welcome. Cato made a short stay there, and while he was gaining intelligence as to the strength and position of the enemy he spent the interval in exercising his troops, that they might not waste their time. It happened to be the time of the year when the Spaniards had their corn stored in the barns. Cato forbade the army contractors to supply any corn to the troops, and sent them back to Rome with the remark, "War feeds itself." Then, advancing from Emporiae, he laid the enemy's fields waste with fire and sword, and spread terror and flight in all directions.

[34.10]During this time M. Helvius, who was on his way from Further Spain with a force of 6000 men sent by the praetor Appius Claudius to escort him, fell in with an immense body of Celtiberians near the town of Iliturgi. Valerius states that they amounted to 20,000 men and that 12,000 were killed, the town of Iliturgi taken and all the adult males put to the sword. After this Helvius reached Cato's camp and as the country was now safe he sent his escort back to Further Spain and on his arrival at Rome celebrated his victory by entering the City in ovation. He brought into the treasury 732 pounds' weight of uncoined silver, 17,023 Spanish denarii, and 11,943 of Oscan silver. The reason why the senate refused him a triumph was that he had fought under another man's auspices and in another man's province. Moreover he did not return till two years after he had given up his command, for after handing over the administration to his

successor, Q. Minucius, he was detained in the province by a long and dangerous illness. In consequence of this he entered the City only two months before Q. Minucius celebrated his triumph. The latter brought home 34,800 pounds' weight of silver, 73,000 denarii, and 278,000 of Oscan silver.

[34.11]The consul in Spain was encamped not far from Emporiae. Here he was approached by three envoys from Bilistages, the chief of the Iltergetes, one of them the chief's son. They reported that their strongholds were being attacked and they were hopeless of making a successful resistance unless the Roman general sent a force: 3000 men would be sufficient; the enemy would not stay to fight if such a large body of troops came into the field. The consul told them that he was greatly concerned for their danger and their fears, but his numbers were by no means sufficient to allow of his reducing his strength by dividing his forces while the enemy were so near and he was daily expecting to have to fight a pitched battle with them. On hearing this the envoys flung themselves in tears at the consul's feet and implored him not to desert them in an hour of such sore distress. Where could they, they cried, go if they were repulsed by the Romans? They had no allies, no hope of succour anywhere else in the world. They could have avoided this danger had they been willing to break faith and make common cause with the rest of their countrymen. No threats, no intimidation had moved them so long as they hoped to find sufficient help and support from the Romans. If there was none to be had, if their request was refused by the consul, they called gods and men to witness that, against their will and through sheer compulsion, they would have to desert the cause of Rome lest they should suffer what the Saguntines had suffered. They would rather perish with the rest of the Spaniards than meet their fate alone.

[34.12]The envoys were dismissed for the day without receiving any reply. The consul passed an anxious night trying to decide between the two alternatives: he did not want to desert his allies nor did he want to weaken his army, a course which might possibly delay the decisive conflict, or, if it should come on, endanger his success. He finally made up his mind not to part with any of his troops lest the enemy should inflict some humiliation upon him, and he decided to hold out the hope of assistance to his allies instead of actually giving it. He reflected that promises have often been as effective as

performance, especially in war; to the man who believes that he has help to fall back upon it is just the same as if he had it, his very belief nerves him to hope and to dare. The next day he gave his reply to the envoys, and assured them that though he was afraid of weakening his force for the benefit of others, he nevertheless made more account of the critical and dangerous position they were in than he did of his own. He then ordered a third of the men in each cohort to cook the food, which they were to take on board in good time, and orders were at the same time issued for the ships to be ready to sail in three days' time. He told two of the envoys to report these measures to Bilistages and the Ilergetes; the third, the chief's son, he succeeded, by his affability and the presents he gave him, in keeping with him. The envoys did not leave until they saw the soldiers actually on board, then, no longer feeling any doubts, they spread far and wide amongst friends and foes the news of the approach of Roman succour.

[34.13]When the consul had kept up appearances long enough he recalled the soldiers from the ships, and as the season for active operations was now approaching, he fixed his camp at a distance of three miles from Emporiae. From this position he sent his men into the enemy's fields in quest of plunder, first in one quarter and then in another as occasion served, leaving only a small guard in the camp. They generally started at night in order to cover as great a distance from the camp as possible and also to take the enemy by surprise. This kind of thing was a training for the new levies and led to the capture of numerous prisoners, till the enemy no longer ventured outside the defences of their forts. When he had thoroughly tested the temper of his own men and that of the enemy he ordered the military tribunes and prefects of the allies, as well as all the cavalry and centurions, to appear on parade and addressed them as follows: "You have often wished for the time when you might have an opportunity of displaying your courage; that time has now come. So far your operations have resembled those of marauders rather than of warriors, now you shall join issue with the enemy in a regular battle. Henceforth you will be allowed, instead of ravaging fields, to drain cities of their wealth. When the Carthaginian commanders and armies were in Spain, our fathers had not a single soldier here, and yet they insisted upon a clause being added to the treaty fixing the Ebro as the boundary of their dominion. Now, when a consul, two praetors and three Roman armies are occupying Spain, and not a

single Carthaginian has been seen in this province for the last ten years, our dominion on this side of the Ebro has been lost to us. It is your duty to win this back by your arms and courage and to compel a nation, which starts a war in a spirit of recklessness rather than of steady determination, to submit once more to the yoke which it has cast off." After these words of encouragement he announced that he should lead them that night against the enemy's camp. They were then dismissed to take food and rest.

[34.14]After attending to the auspices the consul started at midnight in order that he might take up the position which he intended to secure before the enemy were aware of his movements. He led his troops round to the rear of the enemy's camp and formed them into line at daybreak, after which he sent three cohorts right up to the hostile rampart. Startled by the appearance of the Romans behind their lines, the barbarians flew to arms. Meanwhile the consul briefly addressed his men. "There is no hope," he said, "anywhere but in courage, and indeed I have taken care that there shall not be. Between us and our camp is the enemy, and behind us enemy country. The noblest course is also the safest, and that is to rest all your hopes in your valour." Then he ordered the cohorts to be recalled that their feigned retreat might draw the natives out of their camp. His anticipations were realised. They thought that the Romans had retired through fear, and bursting out of their camp they covered with their numbers the whole of the ground between their camp and the Roman line of battle. Whilst they were hurriedly forming their ranks the consul, whose dispositions were completed, commenced the attack. The cavalry on the two wings were the first to get into action, but those on the right were immediately repulsed and their hasty retirement created alarm amongst the infantry. On seeing this, the consul ordered two picked cohorts to be taken round the enemy's right and to show themselves in his rear before the infantry became engaged. This menace to the enemy made the battle a more even one; still, the right wing, both cavalry and infantry, had become so demoralised that the consul seized some of them with his own hand and turned them towards the foe. As long as the action was confined to the discharge of missiles it was equally contested on both sides, but now the Roman right where the panic and flight began was with difficulty holding its ground; the left, on the other hand, was pressing back the barbarians in front, and the cohorts in the rear were creating

a panic amongst them. When they had discharged their iron javelins and fire darts they drew their swords and the fighting became more furious. They were no longer wounded by chance hits from a distance, but foot to foot with the foe they had only their strength and courage to trust to.

[34.15] Finding that his men were becoming exhausted, the consul rekindled their courage by bringing up the reserves from the second line. The front was re-formed, and these fresh troops attacking the wearied enemy with fresh weapons made a fierce charge in a dense body and broke their lines, and once broken they soon scattered in flight and rushed through the fields in the direction of their camp. When Cato saw the whole battleground filled with fugitives he galloped back to the second legion which was stationed in reserve, ordered the standards to be borne before him and the whole legion to follow him at the double to attack the hostile camp. When a man in his eagerness ran out of his rank the consul rode up and struck him with his *sparus* and ordered the military tribunes and centurions to chastise him. The attack on the camp had already begun, but the Romans were unable to reach the stockade, as they were held up by stones and stakes and every description of missile. The appearance of the fresh legion put heart into the assailants and made the enemy fight still more desperately in front of their breastwork. The consul surveyed the whole position that he might find out where there was the weakest resistance and therefore the best chance of breaking through. He saw that the defenders were in least force at the left-hand gate of their camp, and to this point he directed the *hastati* and *principes* of the second legion. The defenders who were holding the gate could not withstand their charge, and when the others saw the enemy within their lines they abandoned all further attempts to retain their camp and flung away their arms and standards. Many were killed at the gates, jammed together by the crowding in the narrow space, and whilst the soldiers of the second legion were cutting the enemy from behind, the rest plundered the camp. Valerius Antias says that more than 40,000 of the enemy were killed that day. Cato, who certainly does not depreciate his own merits, says that many were killed, but does not give the actual numbers.

[34.16] (He is considered to have done three things on that day which deserve praise. One was his leading his army round the hostile camp into a position far from his ships and his own camp where his men

had nothing to trust to but their courage, and also joining battle with the enemy on both sides of him. The second was his maneuver of throwing the cohorts on the enemy's rear. The third was his order to the second legion to advance in battle formation right up to the gate of the camp while the rest of his troops were scattered in pursuit of the enemy.) After this battle the consul's victorious advance was uninterrupted. When the signal had been given to retire and he had withdrawn his men loaded with spoil into camp, he allowed them a few hours' rest and then led them off to harry the fields. As the enemy had been scattered in flight they extended their depredations over a wider extent of country, and this action contributed no less than the battle to force the inhabitants of Spanish Emporiae and the settlers amongst them to surrender; many from other communities who had taken refuge in Emporiae also surrendered. The consul addressed them all in kind terms and dismissed them to their homes. He at once resumed his advance, and wherever his army marched delegates from the various communities met him to make their surrender. By the time he reached Tarraco the whole of Spain on this side the Ebro had been subjugated and the soldiers belonging to the Roman and allied troops who had through various mishaps been made prisoners in Spain were brought by the natives as a gift to the consul. Then a rumour was spread that the consul intended to take his army into Turdetania, and it was even reported - quite falsely - that he had actually marched against the secluded dwellers in the mountains. On this idle and absolutely groundless rumour seven fortified places belonging to the Bergistani revolted. The consul reduced them to submission without any serious fighting. After he had returned to Tarraco and before he made any further advance these same people again revolted and again they were subdued, but they were not treated so leniently. They were all sold into slavery to prevent any further disturbance of peace.

[34.17]In the meantime the praetor, P. Manlius, marched into Turdetania with the army which he had taken over from his predecessor Q. Minucius and, in addition, the force which Appius Claudius Nero had commanded in Further Spain. The Turdetani are considered the least warlike of all the Spanish tribes; nevertheless, trusting to their numbers, they ventured to oppose the Roman armies. A cavalry charge threw them at once into disorder; the infantry encounter was hardly a contest, the seasoned troops, familiar

with the tactics of the enemy, left no doubt as to the issue of the fight. Still, that battle did not end the war. The Turduli hired a force of 10,000 Celtiberian mercenaries and prepared to carry on hostilities with foreign arms. While this was going on, the consul, seriously perturbed by the rising of the Bergistani, and convinced that all the other tribes would do the same whenever they had the chance, disarmed the whole of the Spanish population on this side of the Ebro. This step aroused such bitter feeling that many of them destroyed themselves, for they were a brave and high-spirited nation, and did not think life worth living without the possession of arms. On this being reported to the consul he summoned the senators in all the cities to meet him. "It is not," he told them, "more in our interest than in yours that you should abstain from hostilities; hitherto your wars have always involved more suffering for the Spaniards than toil and trouble for the Romans. I know of only one way in which this can be prevented, and that is to put it out of your power to commence hostilities. I am anxious to attain that result with as little harshness as possible. You must help me in this matter with your advice. I shall adopt no plan more gladly than the one which you yourselves suggest." As they remained silent, he said he would give them a few days for deliberation. After they had been summoned to a second conference, at which they still remained silent, he levelled the walls of all their cities in a single day, and during his advance against those which were still refractory he received the submission of all the cities in each district into which he came. The sole exception was Segestica, and this important and wealthy city he took by storm.

[34.18]The subjugation of the enemy was a more difficult task for Cato than it had been for those generals who had entered Spain for the first time. The Spaniards went over to them because they were sick of the domination of Carthage, but Cato had, so to speak, to reclaim them like slaves who had asserted and enjoyed freedom. He found commotion everywhere, some tribes were in arms, others were having their cities besieged to drive them into revolt, and had it not been for his timely succour their powers of resistance must have been exhausted. But the consul was a man of such force and energy that he took up and executed single-handed the greatest and smallest tasks alike; he not only thought out and gave directions as to what was best to be done, but he carried most of his measures through personally. Over no one in the army did he exercise severer discipline than over

himself; in his frugal mode of life, in his incessant vigilance and hard work he rivalled the meanest of his soldiers. The only privilege he enjoyed in his army was his rank and authority.

[34.19]The Turdetani, as I have already stated, were employing Celtiberian mercenaries, and this added to the praetor's difficulties in his campaign against them. He wrote to Cato for assistance and the consul marched his legions thither, and found on arrival that the Celtiberians and the Turdetani were occupying separate camps. With the Turdetanian patrols encounters commenced at once and the Romans always came off victorious, however desultory the fighting. The Celtiberians were treated differently; the consul ordered the military tribunes to go to them and give them the choice of three courses: to go over to the Romans and receive double the pay that they were to get from the Turdetanians, or to depart to their homes under a guarantee from the Roman Government that they should not suffer for having joined their enemies, or, if they were in any case bent on war, to fix a time and place where they could decide the matter by arms. The Celtiberians asked for a day's grace for consultation. A council was held, but owing to the presence of the Turdetani and the confusion and disorder which prevailed, no decision could be arrived at. Whilst the question of war or peace was still in suspense the Romans were bringing provisions from the fields and fortified villages of the enemy, and often entered their entrenchments as many as ten at a time, just as though there was a tacit truce admitting of general intercourse. As the consul could not induce the enemy to fight, he sent some light-armed cohorts on a plundering expedition into a part of the country which had not yet suffered spoliation. He next marched to Segestia with the view of attacking it, as he heard that all the baggage and personal belongings of the Celtiberians had been left there. As, however, nothing would make them move, he returned with an escort of seven cohorts to the Ebro, after discharging the arrears of pay to his own men and to the praetor's army as well. The whole of his army he left in the praetor's camp.

[34.20]Small as the force was which he had with him, the consul captured several towns; the Sedetani, the Ausetani, and the Suessetani went over to him. The Lacetani, a remote forest tribe, remained in arms, partly through their native love of fighting and partly through the fear of retribution from the tribes friendly to Rome, amongst

whom they had made plundering raids whilst the consul was occupied with the war against the Turdetani. It was for this reason that the consul brought up to attack them not only his Roman cohorts but also the troops of the friendly tribes who had their own accounts to settle with them. Their town was considerably greater in length than in breadth. The consul halted his men a little less than half a mile from the place. Leaving some picked cohorts on guard with strict orders not to move from the spot till he returned to them, he led the rest of his force round to the further side of the town. His auxiliaries were mostly Suessetani, and he ordered them to advance up to the walls for the assault. As soon as the Lacetani recognised their arms and standards and remembered how often they had raided their fields with impunity and routed and scattered them in battle they flung open their gates and all in a body rushed upon them. The Suessetani did not wait for their battle-shout, much less their charge. The consul expected this, and on seeing what had happened he galloped close under the enemy's walls back to his cohorts and hurried them up to a part of the town where all was silence and solitude, as the defenders had gone off in pursuit of the Suessetani. The whole place passed into his hands before the Lacetani returned. Finding that they had nothing left them but their arms, they soon surrendered.

[34.21] The victorious consul at once led his army against Vergium, a fortified place which served mainly as a haunt and shelter for brigands who were in the habit of raiding the peaceable districts of the province. Vergestanus, the chief, came over to the consul and on his own behalf and that of his fellow-townsmen disavowed any complicity with them. He and his friends could take no part in public affairs, when the brigands had been once admitted they made themselves masters of the whole place. The consul directed him to return home and make up some plausible reason for his absence. Then, when he saw the Romans approaching the walls and the brigands fully occupied in defending them, he was not to forget to seize the citadel with his sympathisers. Vergestanus carried out his instructions and the brigands found themselves menaced by a double danger, on the one side by the Romans who were scaling the walls and on the other by the seizure of the citadel. When the consul had gained possession of the town he gave orders for those who had held the citadel to be set at liberty, together with all their relations, and to

retain their property; the rest of the townsfolk be made over to the quaestor to be sold as slaves, and the brigands were summarily executed. After the province was pacified Cato organised the working of the iron and silver mines so satisfactorily that they produced a considerable revenue, and the province in consequence became constantly richer. For these successful operations the senators decreed a three days' thanksgiving.

[34.22] During this summer the other consul, L. Valerius Flaccus, fought a successful action in Gaul with a body of Boii near the forest of Litanae; 8000 Gauls are stated to have been killed; the rest, abandoning all further resistance, dispersed to their homes. During the remainder of the summer the consul kept his army around the Po in the neighbourhood of Placentia and Cremona, and repaired the ravages which had been made in war. Such was the position of affairs in Spain and Italy. In Greece T. Quinctius had made such use of his time through the winter that, with the exception of the Aetolians who had not received the rewards of victory which they expected and were quite incapable of remaining quiet for any length of time, the whole of Greece was supremely happy in the enjoyment of the blessings of peace and liberty, and was filled with admiration at the moderation and justice and self-control which the Roman general displayed in the hour of victory no less than at the courage and ability he had shown in war.

At this juncture there was handed to him the decree of the senate declaring war on Nabis the Lacedaemonian. After reading it he summoned a meeting of delegates from every State in Greece to be held in Corinth. It was attended by representatives from all quarters, even the Aetolians put in an appearance. The consul addressed the gathering in the following terms: "The war against Philip was conducted by the Romans and the Greeks with a common aim and united action, though each had their own grounds of quarrel. He had broken off friendly relations with Rome by first assisting her enemies the Carthaginians and then by attacking her allies in this country. Towards you his conduct has been such that, if we could have forgotten our own wrongs, those inflicted on you would have been a sufficient justification for war. Today's deliberation, however, solely concerns yourselves. The question I am laying before you is whether you are willing that Argos, which as you know has been taken possession of by Nabis, should remain under his rule, or whether you

think it right that a city of such antiquity and renown, situated in the heart of Greece, should be restored to liberty and placed in the same condition as all the other cities in the Peloponnese and the mainland of Greece. This question, as you see, is one that you must decide wholly for yourselves; it in no way touches the Romans except so far as the servitude of any one city deprives them of the full and untarnished glory of effecting the liberation of Greece."

[34.23]After the Roman commander's speech others were asked to express their views. The Athenian delegate began by expressing the utmost gratitude for the services which the Romans had rendered to Greece. He pointed out that they had given assistance against Philip in answer to most pressing appeals, but their offer of help against Nabis was purely spontaneous, and he expressed strong indignation against remarks which some had made who had tried to belittle these great services and thrown out dark hints about the future when they ought rather to have expressed their grateful acknowledgments for the past. It was obvious that this was a hit at the Aetolians, and Alexander, their foremost citizen, replied with a bitter attack upon the Athenians, who, he said, had in old days been the first champions of liberty and were now betraying the common cause and trying to curry favour for themselves. He then protested against the action of the Achaeans in first fighting under Philip's banner and then, when his fortunes declined, turning renegades and after capturing Corinth scheming to get possession of Argos. The Aetolians, he declared, were the first to oppose Philip, they had always been allies of Rome, and though it was laid down in the treaty that after Philip was conquered their cities and territories should be restored, they were fraudulently kept out of Echinus and Pharsalus. He accused the Romans of hypocrisy, for after their ostentatious and empty proclamation of liberty to Greece they were holding Chalcis and Demetrias with their garrisons, although while Philip hesitated to withdraw his garrisons from those cities they were always protesting that as long as Demetrias, Chalcis and Corinth were held by him Greece could never be free. And now they were putting forward Argos and Nabis as an excuse for keeping their armies in Greece. Let them carry their armies back to Italy, the Aetolians would guarantee that Nabis would withdraw his garrison from Argos either voluntarily or for a consideration, otherwise they would forcibly compel him to submit to the will of a united Greece.

[34.24]This pretentious harangue called up Aristaenus, the captain-general of the Achaean League. "I pray," he began, "that Jupiter Optimus Maximus and Queen Juno, the tutelary deities of Argos, may never allow that city to be a bone of contention between the tyrant of Lacedaemon and the robbers of Aetolia, or suffer more after you have recovered it than it did when he captured it. No intervening sea protects us from these brigands. What, then, will be our fate, T. Quinctius, if they make a stronghold for themselves in the very heart of Greece? They have nothing Greek about them but the language, any more than they have anything human about them but the form and appearance of men; their customs and rites are more horrid than those of any barbarians, nay, even than those of savage beasts. We ask you therefore, Romans, to rescue Argos from Nabis and settle the affairs of Greece in such a way that you may leave this country at peace and security even against the robber practices of the Aetolians." A general outcry against the Aetolians arose, and the Roman commander said that he would have replied to their charges had he not seen that the delegates were all so incensed against them that they needed to be calmed rather than excited further. He should now put the question, "What do you decide as to war with Nabis, if he does not restore Argos to the Achaeans?" There was a unanimous decision in favour of war, and he impressed upon them the duty of each city sending a contingent in proportion to their strength. He also sent an envoy to the Aetolians, not so much in the expectation of compliance with his demands as to make them disclose their real sentiments, and in this he succeeded.

[34.25]The military tribunes received orders to bring up the army from Elatia. Envoys from Antiochus arrived about the same time to negotiate an alliance; Quinctius told them that he could express no opinion in the absence of the ten commissioners; the envoys would have to go to Rome and consult the senate. On the arrival of the troops from Elatia he proceeded to Argos. Near Cleonae he was met by Aristaenus with 10,000 Achaean infantry and the united armies encamped not far from that place, and the following day marched down into the plain of Argos and selected a site for their camp some four miles distant from the city. The commander of the Lacedaemonian garrison was Pythagoras, son-in-law and also brother-in-law of the tyrant. Just before the arrival of the Romans he had considerably strengthened the defences of the citadels - Argos

possessed two - and other points which appeared weak or vulnerable. Whilst carrying out these tasks, however, he was quite unable to disguise the alarm he felt at the appearance of the Romans, and his fears of a foreign foe were aggravated by disturbances at home. There was an Argive named Damocles, a young man of more courage than prudence. He got hold of those who seemed likely to support him, and after binding them by an oath discussed the question of expelling the garrison, and in his efforts to strengthen the conspiracy was somewhat incautious in testing the sincerity of those whom he addressed. While he was conferring with his supporters one of the commandant's officials summoned him to appear before him. Seeing that his designs were betrayed, he appealed to his fellow-conspirators who were present to take arms with him rather than be tortured to death. He went off accordingly with a few followers to the forum, calling upon all who had the safety of their State at heart to follow him as the champion of their liberty. He did not induce a single person to move, for they saw that there was no chance of success at the time nor any hope of sufficient support. While thus appealing loudly to the bystanders he was surrounded by the Lacedaemonians and killed together with his supporters. Others were arrested afterwards, and many of these were put to death; a few were imprisoned. During the following night several were lowered by cords from the walls and fled to the Romans.

[34.26] These men assured Quinctius that if the Roman army had been at their gates the movement would have succeeded, and if he moved his camp nearer to the city the Argives would rise. He sent forward some light troops, cavalry and infantry, and the Lacedaemonians sallied out to meet them. They met near the Cylarabis, a gymnasium not three hundred paces from the city, and the Lacedaemonians were without much trouble driven back behind their walls. The Roman general then fixed his camp at the spot where the battle had taken place and remained there for a day on the watch in case any fresh movement was started. When he saw that the citizens were paralysed by fear, he summoned a council of war to consider the question of attacking Argos. All with the exception of Aristaenus were agreed that as Argos was the sole cause of the war, so it ought certainly to be the starting-point. This was very far from what Quinctius wanted, and when Aristaenus spoke in opposition to the unanimous sense of the council he listened to him with

unmistakable signs of approval. He wound up the discussion by stating that it was on behalf of the Argives that war had been begun, and he could not imagine anything less consistent than to leave the real enemy alone and attack Argos. As far as he was concerned he should direct all his efforts against Lacedaemon and its tyrant, the head and front of the war.

After the council broke up he sent some cohorts of light troops, infantry and cavalry, to collect corn. All that was ripe was cut and carried off; what was still green was trampled down and spoilt to prevent the enemy from using it. Then he commenced his march, and after crossing Mount Parthenius and leaving Tegea on his right he encamped on the third day at Caryae, and here he awaited the allied contingents before entering the enemy's country; 1500 Macedonian troops came in from Philip and 400 Thessalian cavalry. He had now an adequate force, but he was still detained as he was waiting for the corn which had been requisitioned from the cities in the neighbourhood. A large naval force was also concentrating; L. Quinctius had arrived from Leucas with 40 ships; there were 18 decked ships from Rhodes; Eumenes was cruising amongst the Cyclades with 10 decked ships, 30 despatch-boats and various others of smaller build. Even refugees from Lacedaemon itself, driven away by the tyrant's violence and disregard of all law, gathered in large numbers at the Roman camp in the hope of recovering their country. The number of those expelled by the various tyrants who for several generations held Lacedaemon was very considerable. The principal man among the refugees was Agesipolis, and the sovereignty of Lacedaemon belonged by right to his family. He had been expelled when only an infant by Lycurgus, who became tyrant after the death of Cleomenes, the first of the Lacedaemonian tyrants.

[34.27]Although Nabis was confronted by so serious a war both by land and sea, and a just comparison of his own strength with that of the enemy left him hardly any hope of success, he did not give up the struggle. He called up 1000 picked troops from Crete in addition to the 1000 he had already; there were 10,000 of his own subjects under arms including the garrisons in the country districts, and he also fortified the city of Sparta with rampart and fosse. To prevent any internal disturbance he kept the citizens in check by the fear of ruthless punishment, as he could not expect them to desire a tyrant's safety and success. There were certain citizens whom he suspected,

and after marching all his forces on to a level space called the Dromos he then assembled the Lacedaemonians in front of him, ordering them to lay down their arms, and surrounding them with his armed bodyguard. He then explained briefly why he ought to be excused for feeling grave apprehensions and taking strict precautions at such a critical time, and he pointed out that it was in their own interest that any persons whom the present state of affairs brought under suspicion should be prevented from doing mischief rather than punished for having done it. He should therefore keep certain persons in custody until the storm which was threatening had passed over. If he was sufficiently on his guard against domestic treason he would have all the less cause to fear a foreign foe, and when the enemy had been repulsed they would at once be set at liberty. He then directed the names of some eighty of the principal men of military age to be called over, and as each answered to his name he ordered him into custody. During the night they were all put to death. The Helots are a class who from early times have occupied the fortified villages in the country districts and worked on the land. Some of these were now charged with attempted desertion and after being whipped through all the streets were put to death. The terror thus created so completely quelled the population that all attempts at revolution were at an end. Nabis kept his troops within their lines, as he did not feel himself a match for the enemy in the field and he was afraid to leave the city in such a state of suspense and uncertainty.

[34.28]As his preparations were now completed, Quinticius broke up his camp and on the second day reached Sellasia on the river Oenus, the place where Antigonus, King of Macedon, was said to have fought with Cleomenes, tyrant of the Lacedaemonians. On hearing that the descent into the valley was by a difficult and narrow path, he sent an advance party by a short circuit over the heights to make a road, and thus by a fairly broad and open route he arrived at the Eurotas, which flows almost under the very walls of Sparta. Whilst the Romans were measuring out the site of their camp, and Quinticius had ridden forward with some infantry and cavalry, they were attacked by the tyrant's auxiliary troops. They were not prepared for anything of the kind, as they had met with no opposition on their march; the country through which they passed might have been a friendly territory. For some time there was considerable confusion, the cavalry calling for help from the infantry and the infantry from

the cavalry, no man feeling any confidence in himself. At last the standards of the legions appeared in sight, and then those who a moment before had been spreading alarm were now driven in disorder back to the city. The Romans fell back just beyond the range of missiles from the walls and stood for some time in line of battle, but as none of the enemy came out against them they returned to camp. The next day Quinctius led his army along the river past the city to the foot of Mount Menelaus. The legionary cohorts marched in front and the light infantry and the cavalry closed the column. Nabis was keeping his mercenaries, his sole hope, drawn up under their standards inside the city wall, ready to attack the Roman rear.

As soon as the end of the column had gone by they made the same tumultuous dash as on the previous day from different points. Appius was in command of the rear and had told his men beforehand what to expect. He rapidly faced about, and bringing the whole column into line presented an unbroken front to the enemy. So the two armies met one another in battle order, and for some time there was a regular action. At length Nabis' men began to waver and finally took to flight. The rout would not have been so complete had not the Achaeans who were pursuing them been familiar with the country. They inflicted heavy losses upon them and deprived most of the scattered fugitives of their arms. Quinctius fixed his camp near Amyclae. This city lay in a populous and fertile district and he laid the whole of it waste. None of the enemy, however, ventured outside their gates, and he shifted his camp to the bank of the Eurotas and from there he carried devastation throughout the district which stretched from the foot of Taygetus to the sea.

[34.29]Lucius Quinctius in the meantime was securing the towns on the coast, in some cases by voluntary surrender, in others by threats or force. Gytheum was the great seaport of Lacedaemonia, and when he learnt that the Romans were in camp at no great distance from the sea Lucius determined to attack it with his united strength. In those days it was a strong city with a large mixed population of citizens and aliens and was thoroughly equipped with all the apparatus for war. Lucius was attempting a far from easy task, and very opportunely for him Eumenes and the Rhodian fleet appeared on the scene. The immense number of seamen which had been drawn from the three fleets constructed in a few days all that was required for an attack upon the city, which was fortified on its landward as well as its

seaward side. The testudines had been brought up and the wall was being undermined; in other places it was being battered by the rams. One turret had been brought down by repeated blows and the wall adjacent had fallen with it. To draw off the enemy from the breach thus caused, the Romans delivered an assault from the harbour, where the ground was more level, while at the same time they attempted to fight their way over the ruins of the wall. They had almost succeeded in penetrating at this point when the assault was suddenly stopped as a prospect presented itself of the city being surrendered, a prospect, however, which soon vanished. Two men, Dexagoridas and Gorgopas, shared the command of the city between them. Dexagoridas had sent to the Roman general to say that he would deliver up the city. After the time and manner of procedure had been settled he was put to death by Gorgopas as a traitor, and the latter, now in sole command, offered a more determined resistance. The assault would have become much more difficult had not Quintius appeared with a body of 4000 picked troops. When he had shown himself with his army drawn up on the brow of a hill not far from the city, whilst Lucius on the other side was pressing the assault with his siege works both by land and Sea, Gorgopas was driven to despair and compelled to take the very course which in the case of another he had punished with death. After stipulating for the withdrawal of the soldiers who had formed his garrison he handed the city over to Quintius. Before the surrender of Gytheum, Pythagoras, who had been left in command at Argos, transferred the custody of the city to Timocrates of Pellene and joined Nabis at Sparta with 1000 mercenary troops and 2000 Argives.

[34.30]Nabis was thoroughly alarmed at the appearance of the Roman fleet and the loss of the towns on the coast, but as long as Gytheum was held by his men he accepted the situation though with faint hopes of success. When, however, he heard that it too had passed into the hands of the Romans he realised the hopelessness of his position with the enemy all round his frontiers and the sea entirely closed to him. He saw that he must yield to circumstances, and accordingly he sent a herald to the Roman camp to find out whether they would allow him to send envoys to them. His request was granted, and Pythagoras was sent to the general for the sole purpose of asking him to meet the tyrant in conference. The military council was convened and they were unanimously of opinion that a

conference should be granted and the time and place were settled. The two principals proceeded to some rising ground midway between their camp accompanied by small escorts. Here the escorts were left well in view of the troops on both sides and Nabis went forward with some of his bodyguard, whilst Quinctius advanced to meet him accompanied by his brother, Eumenes, Sosilaus the Rhodian, Aristaenus, the captain-general of the Achaeans, and the military tribunes.

[34.31]It was left to the tyrant to decide whether he would speak first or not, and he began the discussion in the following speech: "Titus Quinctius and all who are present: If I could have discovered for myself the reason why you have declared war against me or actually commenced it, I should have awaited in silence the issue of my fortunes. But as things are now I cannot control myself sufficiently to refrain from asking, before I perish, why I am to perish. If you were what the Carthaginians are reported to be, a people for whom the honourable observance of treaties possesses no sanctity, I should not be surprised at your considering it a matter of small moment in what way you treat me. But when I look at you I see that you are Romans who hold treaties to be the most solemn of all religious obligations, and fidelity to allies the most sacred of human duties. When I look at myself I hope I am still the man who in common with the rest of the Lacedaemonians is bound to you by an age-long treaty of alliance and who renewed in the recent war with Philip the personal tie of friendship. But, you say, I have violated and destroyed it by holding the city of the Argives. How shall I justify this? By appealing to facts or to the circumstances of the time? As to the facts I have a double defence, for it was the townsmen themselves who invoked my aid and put the place in my hands; I did not occupy it by force, I accepted it and that too when Philip's partisans were in power, not when it was your ally. The circumstance of time clears me too, because it was when I was actually holding Argos that the alliance between us was formed, and the stipulation was not that I should withdraw my garrison from Argos, but only that I should furnish assistance to you in the war. In this question of Argos I most certainly have the best of the argument both on the ground of equity and justice - for I took a city which belonged not to you but to your enemy, not by force but at the wish of the inhabitants - and also on

the strength of your own admission, for under the terms of peace you left Argos to me.

But however that may be, the title of 'tyrant' and the arbitrary acts of a tyrant, such as summoning slaves to freedom and settling the poverty-stricken masses on the land, are alleged against me. As to the title I can make this reply, whatever my character is I am the same man with whom you yourself, T. Quinctius, entered into alliance. Then, I remember, you called me 'king,' now I see that you have dubbed me 'tyrant.' Now, if I had altered the designation of my rule, I should have to defend my inconsistency; as you are altering it, you must justify yours. As to my augmenting the civil population by freeing the slaves and dividing up the land amongst the poor and needy, I can defend myself against this charge also by pleading the time at which I did it. Whatever these measures were I had carried them out when you contracted alliance with me and accepted my assistance in the war with Philip. But even supposing that I had carried them out to-day, I do not ask how I could have injured you or disturbed the amity between us, I content myself with asserting that I have acted in accordance with our ancestral laws and customs. Do not weigh what is done in Lacedaemon by your own institutions. There is no necessity for going into details. You select your cavalry as you do your infantry, according to their assessment; you will have a few preminent for their wealth and the mass of the population subject to them. Our legislator would not have the government in the hands of a small class such as you designate your senate, nor would he allow any one order to be preponderant in the State; he believed that an equality of rank and fortune was necessary in order that there might be a large number of men to bear arms for their country. I have spoken at greater length, I confess, than is usual with my countrymen. It could have been put very briefly - I have done nothing since I formed a league of amity with you which should make you regret it."

[34.32]To this the Roman commander replied: "It is not with you that we entered into friendship and alliance, but with Philip, the rightful and legitimate king of Lacedaemon. His right to the crown has been usurped by the tyrants who ruled there while we were preoccupied by, first, the Punic War, then with wars in Gaul and elsewhere, just as you have usurped it during this war with Macedon. What greater inconsistency could there be than for those who waged war against Philip for the liberation of Greece to form a league of unity with a

tyrant, and a tyrant, too, who has always treated his subjects with the utmost oppression and cruelty? In fact, even if you had not seized and were not now holding Argos by dishonest practices, it would still have been incumbent on us, whilst liberating the rest of Greece, to restore Lacedaemon also to her old free constitution and to those laws which you spoke about just now as though you put yourself on a par with Lycurgus. Are we to make it our care that your garrisons shall be withdrawn from Iasos and Bargyliae and at the same time leave Argos and Lacedaemon, two of the most famous cities and at one time the lights of Greece, prostrate beneath your feet, and so let their servitude sully our title as the liberators of Greece? You say the sympathies of the Argives were with Philip. Well, we release you from any obligation to be angry with them so far as we are concerned. We have sufficient evidence that the blame for that rests upon some two or at the most three persons, not upon the citizens as a body, just, in fact, as the invitation given to you and your troops and your admission into the citadel was in no way whatever the act of their government. We know that the Thessalians and Phocians and Locrians were unanimous in their support of Philip, and yet we have given them their freedom in common with the rest of Greece; what, pray, do you suppose we shall do in the case of the Argives, who as a State were innocent of any complicity with him?

You said that the enfranchisement of the slaves and the assignment of land to the needy were brought up as charges against you, and they are certainly serious ones, but what are they in comparison with the crimes committed by you and your adherents day by day? Produce an assembly where men are free to speak their minds, at either Argos or Lacedaemon, if you want to hear a true description of your unbridled tyranny. Not to mention earlier instances, what about the massacre which that son-in-law of yours, Pythagoras, perpetrated in Argos almost before my very eyes? What about the murders you yourself committed when I was close to your frontiers? Come now, order those prisoners to be produced whom you arrested in the Assembly after promising in the hearing of all present that they should be kept in custody. Let their unhappy relatives know that those whom they are mourning are still alive. But you say, 'Even if these things are so, what have they got to do with you Romans?' Would you use this language to the liberators of Greece? To those who, to effect this liberation have crossed the sea and carried on war

by sea and land? 'At all events,' you say, 'I have not injured you directly or violated your friendship and alliance.' How many instances do you want me to allege of your having done this? I do not want to bring many forward, I will sum them up briefly. What acts, then, constitute a violation of friendship? These two, most of all - to treat my allies as enemies, and to make common cause with my enemies. Both of these things you have done. Though you were our ally you seized by force a city in alliance with us, namely Messene, which had been admitted to our friendship and enjoyed precisely the same privileges as Lacedaemon. And further, you not only concluded an alliance with Philip, our enemy, but you actually established a relationship with him through Philocles, one of his viceroys. In open hostility to us, you infested the sea round Malea with your piratical barques, and have seized and put to death almost more Roman citizens than Philip, so that our transports, which were supplying our armies, found coasting along the Macedonian shores safer than rounding the Cape of Malea. Forbear henceforth, if you please, to talk about your loyal observance of treaties; drop the language of a citizen and speak as a tyrant and an enemy."

[34.33]Aristaenus followed. He advised and even implored Nabis to take the course which was safest for himself and his fortunes while he had the opportunity. He alluded by name to several who after ruling as tyrants in the surrounding cities had been deposed on the restoration of liberty and had passed a safe and even an honoured old age amongst their fellow-citizens. Further discussion was put an end to by the approach of night. The next day Nabis said that he would evacuate Argos and withdraw his garrison whenever the Romans wished, and would also surrender the prisoners and deserters. Should any further demands be made, he requested that they might be put in writing in order that he might consult his friends about them. Time was allowed him for the purpose, and Quinticius on his side also called the friendly cities into council. The majority were in favour of continuing the war and getting rid of the tyrant; for they felt certain that the freedom of Greece would never be safe otherwise. They declared that it would have been better not to commence war against him than to abandon it after it had begun, for Nabis would be in a much stronger position if he could assume that his usurpation was sanctioned by Rome, and his example would incite

many in other cities to plot against the liberties of their fellow-citizens.

The general himself was more inclined to peace. He saw clearly that if the enemy were driven within his walls there was nothing for it but a siege, and a long one too, for it was not Gytheum they would have to attack - that place had, however, been surrendered, not stormed - but Lacedaemon, a city exceptionally strong in men and arms. His one hope had been, so he told the council, that on the approach of his army a revolutionary outbreak might occur, but though the citizens saw the standards carried up to the gates no one stirred. He went on to inform them that Villius had returned from his mission to Antiochus and reported that they could no longer depend upon maintaining peace with him, as he had landed in Europe with a far larger force, both military and naval, than on the former occasion. If he, Quinctius, employed his army in investing Lacedaemon, what other troops, he asked, would he have available for war against so strong and powerful a monarch? This was what he gave out in public; his secret motive was the fear that when the new consuls balloted for their provinces Greece might fall to one of them, and the war which he had begun so victoriously might be brought to a triumphant close by his successor.

[34.34]As his arguments failed to make any impression on the allies he tried another course, and by apparently falling in with their view he brought them over to his own. "Well and good," he continued, "let us undertake the siege of Lacedaemon, if such is your resolve. Do not close your eyes, however, to the fact that the investment of a city is a slow business and often wearies out the besiegers sooner than the besieged, and you must now face the certainty of having to pass the winter round the walls of Lacedaemon. If these tedious processes only involved toil and danger I should urge you to prepare yourselves in mind and body to sustain them. But a vast outlay will be necessary for the siege works and engines and artillery which will be required for the investment of so great a city, and supplies for you and for us will have to be collected against the winter. So, to prevent your suddenly finding yourselves in difficulties, and abandoning to your shame a task after you have undertaken it, I am of opinion that you ought to write to your respective cities and find out what they really intend doing and what resources they possess. Of auxiliary troops I have enough and more than enough, the greater our number the

greater our requirements. The enemy's territory contains nothing now but the bare soil, and besides, winter will be here, making it difficult to bring supplies from a distance." This speech at once reminded them of the evils they had to take account of in their own cities, the indolence, the jealousy, the malicious way in which those remaining at home spoke about those on active service, the unrestrained liberty which hindered united action, the low state of their national exchequers and the niggardliness displayed by individuals in contributing towards public expenses. So they quickly changed their minds and left it to the commander-in-chief to do what he thought best in the interest of Rome and the allies.

[34.35] After consultation with his staff officers and military tribunes, Quintius put into writing the conditions on which peace was to be made with the tyrant. There was to be a truce for six months between Nabis and his opponents - the Romans, Eumenes and the Rhodians. T. Quintius and Nabis were each to send forthwith commissioners to Rome to secure the confirmation of the peace by the senate. The armistice was to commence from the day on which the document containing the conditions was handed to Nabis, and within ten days from that date he was to withdraw all his garrisons from Argos and the other towns in Argive territory and the places were to be handed over, evacuated and free, to the Romans. No slaves were to be removed from those places, whether they had belonged to the king or the public authorities or private individuals, and if any had previously been so removed they were to be duly restored to their owners. Nabis was to return the ships he had taken from the maritime cities, and he himself was not to possess any vessel beyond two light barques with not more than sixteen oars. All the cities allied with Rome were to have their prisoners and deserters restored to them, and all the property which the people of Messene could collect together and identify was to be given back to them. Further, he was to allow the Lacedaemonian refugees to have their wives and children with them, provided that no woman should be forced to join her husband whilst in exile against her will. Such of the tyrant's mercenaries as had gone back to their homes or deserted to the Romans were to have all their property restored to them. He was not to possess a single city in Crete, those which he had held he was to deliver up to the Romans, nor was he to form alliances with or make war against any of the Cretan cities, or anyone else. All the cities

which he had to surrender, and all who had voluntarily accepted the suzerainty of Rome, were to be relieved of the presence of his garrisons; neither he nor his subjects were in any way to interfere with them. He was not to build a walled town or fortified post either on his own soil or elsewhere. As a guarantee for the due observance of these conditions he was to give five hostages to be selected by the Roman commander - one being his own son - and he was to pay an indemnity of 100 talents of silver at once and an annual instalment of 50 talents for the next eight years.

[34.36]After the Roman camp had been moved nearer the city, these conditions were sent to Lacedaemon. None of them, of course, were very agreeable to the tyrant, though he was relieved to find that nothing was said about repatriating the refugees, but what he resented most of all was being deprived of his ships and his seaports. The sea had been a great source of profit to him as long as he could infest the whole Maleatic coastline with his pirate ships, and, moreover, the men drawn from the maritime cities furnished him with by far the finest of his troops. He had discussed the conditions privately with his friends, but as courtiers are untrustworthy in all other matters, so are they especially in keeping secrets, and the consul's demands soon became generally known. They were not objected to so strongly by the great body of the citizens as they were by the different individuals who were immediately affected by them. Those who had married the wives of the political exiles and those who had appropriated any of their property were as indignant as though they were to lose what belonged to themselves, instead of restoring what belonged to others. The slaves who had been freed by the tyrant saw not only their liberty gone but an even worse slavery awaiting them if they had to pass into the power of their enraged masters. The mercenary troops were angry at losing their pay when peace was established, and they saw no chance of returning to their own cities, which were as bitterly opposed to the supporters of tyrants as to the tyrants themselves.

[34.37]They began by gathering together and discussing their grievances, and at last they flew to arms. The tyrant saw from this outbreak that the populace were sufficiently excited for his purpose, and he called a public assembly. As he went separately through the consul's demands and added some of his own invention which were more burdensome and humiliating, each item called forth angry

protests, at one time from the whole assembly, at another from separate groups. When he had finished he asked the people what answer they wished him to give, or what action he was to take. The whole assembly almost with one voice forbade him to return any answer and insisted that the war should go on. As usual with the crowd they encouraged one another by saying that they hoped for the best and that Fortune helped the brave. Encouraged by the general voice, the tyrant gave out that Antiochus and the Aetolians would assist them, and he meanwhile had enough troops to stand a siege. Nobody now still talked of peace, and unable to remain quiet any longer they ran off to attack the enemy's advanced posts. The offensive movements of small bodies of skirmishers and the discharge of their missiles removed any doubt from the minds of the Romans that war was inevitable. For four days slight actions took place without any decisive result, but on the fifth day the fighting almost amounted to a regular battle and the Lacedaemonians were driven back into their town in such a state of demoralisation that some of the Roman soldiers in hot pursuit entered the city at places where at that time there was no wall.

[34.38]As the fear thus inspired had checked all further offensive on the part of the enemy, Quinctius saw that there was nothing left but to invest the place, and after despatching officers to bring up the whole of the naval contingent from Gytheum, he proceeded with his military tribunes to ride round the city and examine its position. Sparta had formerly been unwalled, but in recent years the various tyrants had protected those parts which were level and exposed by a wall; the higher and less accessible positions were defended by permanent military posts instead of fortifications. When the consul had made a thorough inspection of the place he saw that he would have to employ the whole of his force in the attack. Accordingly he completely invested the city with Roman and allied troops, mounted and unmounted; in fact, his entire military and naval strength, amounting to 50,000 men. Some were carrying scaling ladders, others fire, others the different things with which to attack and still more to appal the enemy. Orders were issued for all to raise the battle-shout and rush straight forward to the assault at the same moment so that the Lacedaemonians, threatened on every side, would not know where first to meet the attack or where assistance would be most required. Quinctius formed his main army into three divisions: the

first was to deliver the assault in the neighbourhood of the Phoebeum; the second towards the Dictynneum; the third at the place called the Heptagoniae. All these points were unprotected by walls. Though the city was now encompassed on every side by so menacing a foe the tyrant was most energetic in its defence; wherever shouts arose on some sudden onset, when breathless messengers came asking for help, he either hurried to the threatened spot himself or sent others to assist. When, however, demoralisation and panic had set in everywhere, he completely lost his nerve, and was unable either to give the necessary orders or to listen to the messages that came; he not only lost all power of judgment, but was almost beside himself.

[34.39]As long as they were in the narrow streets the Lacedaemonians stood their ground against the Romans, and three separate actions were going on at different places, but as the struggle became more intense it became more unequal. The Lacedaemonians were carrying on the fight with missiles, against which the Romans were easily able to protect themselves by their large shields, and whilst some fell harmlessly others came with little force. Owing to the confined space and the crowding together they had no room to run before hurling their missiles to give them greater force, nor could they keep a firm and steady footing while they tried to throw them. None of the darts which the enemy flung penetrated the bodies and very few the shields of the Romans. Some wounds were caused by the enemy who were on higher ground around them, but soon their advance exposed them to an unlooked-for attack from the houses, not only darts but even tiles being hurled upon them. On this they held their shields above their heads and closed up so that with shield joined to shield there might be no room for a chance missile or even for one thrown at close range to penetrate. In this testudo formation they went on.

For a short time the Romans were held up by the narrowness of the streets as they and the enemy were closely packed together, but when they got into a broader thoroughfare they pushed the enemy back and were able to advance, and the violence of their attack made further resistance impossible. When the Lacedaemonians had once turned to flight and were making for the higher parts of the city, Nabis, in a state of distraction as though the city was actually taken, was looking round for some way of escape, but Pythagoras, who in all other respects was showing the spirit and leadership of a general,

was now the one man who saved the city from capture. He gave orders for the buildings nearest the walls to be set alight and they instantly burst into flames, the townsmen, who at other times would naturally have helped to extinguish them, fanning the conflagration. The roofs collapsed upon the Romans, broken tiles and pieces of burning wood struck the soldiers, the flames spread far and wide, and the smoke caused them alarm out of all proportion to the danger incurred. Those who were still outside the city making the final assault fell back from the walls; those who were already within, afraid of being cut off by the outbreak of fire in their rear, retired, and Quintius, seeing the state of matters, sounded the retreat. Recalled from the assault when the city was all but captured, they returned to camp.

[34.40]Quintius came to the conclusion that he would gain more from playing on the enemy's fears than by what he had hitherto achieved, and he kept them in a constant state of alarm for three successive days by harassing them with attacks and throwing up barriers at certain points to close the avenues of escape. Driven at last to submission by this perpetual menace, the tyrant sent Pythagoras once more to open negotiations. At first Quintius refused to see him and ordered him to quit the camp, but when he assumed a suppliant tone and fell on his knees, the consul granted him an audience. He began by leaving everything at the absolute discretion of the Romans, but he gained nothing by taking this line, which was regarded as idle and leading to no result. Finally it was arranged that, conditionally upon the acceptance of the terms which had a few days previously been presented in writing, there should be a suspension of hostilities; the money and the hostages were accepted. While the siege was going on message after message reached Argos announcing the imminent capture of Lacedaemon, and the spirits of the population were raised higher by the departure of Pythagoras with the main strength of his garrison. Feeling contempt for the few still remaining, they expelled them from the citadel under the direction of a man called Archippus. Timocrates of Pellene was allowed to leave under a safe-conduct owing to the clemency and moderation he had shown as commandant. After granting peace to the tyrant, and dismissing Eumenes and the Rhodians and sending his brother Lucius back to the fleet, Quintius went to Argos, where he found everybody very happy.

[34.41]The famous Nemean Games, the most popular of all their festivals, had been suspended by the Argives owing to the sufferings of the war, but on the arrival of the Roman commander with his army they manifested their delight by ordering the Games to be celebrated and making the general himself the president. There were many circumstances which enhanced their joy - those of their fellow-citizens whom Pythagoras had lately removed and those whom Nabis had previously carried off had now been brought back from Lacedaemon; those who had succeeded in escaping after the discovery of the plot by Pythagoras and the consequent bloodshed had returned home; once more after a long interval they had their liberty restored, and they saw with their own eyes the Romans who were the authors of its restoration and who for their sake had undertaken the war with the tyrant. Moreover, on the very day the Nemean Games were exhibited the voice of the herald confirmed by public proclamation "the liberty of the Argives." The satisfaction which the Achaeans felt at the restoration of Argos to their league was considerably impaired by the fact that Lacedaemon was left in servitude to the tyrant, who remained as a thorn in their side. As for the Aetolians, they were perpetually harping upon the subject at every meeting of their council. They declared that the war was not at an end till Philip had evacuated every city in Greece; Lacedaemon was left to the tyrant, but her rightful king, who was in the Roman camp, and the noblest of her citizens would have to live in exile; Rome had made herself the minister to his tyranny. Quinctius led his forces back to Elatia, which had been his starting-point for the Spartan War. Some authorities state that the tyrant did not conduct operations by making sorties from the town, but after fixing his camp face to face with that of the Romans and waiting for a considerable time in expectation of assistance from the Aetolians, he was in the end compelled to give battle owing to the Romans attacking his foragers. In that battle they state that he was defeated and lost his camp and so was driven to ask for peace, after losing 14,000 in killed and wounded and more than 4000 who were made prisoners.

[34.42]The despatch from T. Quinctius reporting his operations at Lacedaemon and one from M. Porcius, the consul in Spain, reached Rome almost simultaneously. A three days' thanksgiving was ordered by the senate on behalf of each of them. The consul, L. Valerius, who after routing the Boii near the Litanean forest had no further trouble

in his province, returned to Rome for the elections. The new consuls were P. Cornelius Scipio Africanus and Tiberius Sempronius Longus. Their fathers had both been consuls in the first year of the Second Punic War. The election of praetors followed. Those elected were P. Cornelius Scipio, the two Cornelii - Merenda and Blasio - Cneius Domitius Ahenobarbus, Sextus Digitius, and T. Juventius Thalna. After the elections were over the consul went back to his province. During the year the people of Ferentinum tried to claim the right of those Latins who had been enrolled in Roman colonies to be deemed Roman citizens. Those who had given in their names had been assigned to the colonies of Puteoli, Salernum and Buxentum, and on the strength of this assumed the status of Roman citizens. The senate decided that they were not Roman citizens.

[34.43]At the beginning of the year of office of the new consuls the envoys from Nabis arrived in Rome. An audience of the senate was granted them outside the City in the temple of Apollo. They asked that the treaty of peace which had been arranged with T. Quinctius might be confirmed, and their request was granted. When the allocation of provinces came under discussion there was a large attendance of senators, and the general opinion was that as the wars in Spain and Macedonia had come to an end Italy should be assigned to both consuls as their province. Scipio was of opinion that one consul was enough for Italy, the other ought to have Macedonia assigned to him. He pointed out that a serious war was impending with Antiochus, who had deliberately landed in Europe. What, Scipio asked, did they suppose he would do when he was invited to commence hostilities by the Aetolians on the one side, who were undoubtedly hostile, and on the other side urged on by Hannibal, the commander so renowned for the defeats he had inflicted on the Romans? While the consular provinces were being discussed the praetors balloted for their provinces. Cneius Domitius received the urban jurisdiction and T. Juventius that over aliens. To P. Cornelius was allotted Further Spain, and Hither Spain to Sextus Digitius. Of the two Cornelii, Blasio was appointed to Sicily and Merenda to Sardinia. It was decided not to send a fresh army to Macedonia, the one which was there was to be brought back by Quinctius and disbanded, as was also the army with M. Porcius Cato in Spain. Italy was decreed as the province of both consuls, and they were empowered to raise two legions in the City in order that after the

disbandment of the two armies which the senate had decreed there might be in all eight Roman legions.

[34.44]In the previous year a Sacred Spring had been observed, and the Pontifex Maximus P. Licinius reported to the pontifical college that its observance had not been properly carried out. The college authorised him to bring the matter to the notice of the senate, and they decided that there should be an entirely fresh observance under the direction of the pontiffs. The Great Games, which had been vowed at the same time, were also ordered to be celebrated, and the usual outlay incurred upon them. The victims to be offered included all the cattle born between 1st March and 1st May during the consulship of P. Cornelius and Tiberius Sempronius. Then came the election of the censors. The new censors, Sextus Aelius Paetus and C. Cornelius Cethegus, selected, as their predecessors had done, P. Scipio as leader of the senate. Only three senators in all were removed from the roll, none of whom had enjoyed curule honours. Another thing which added immensely to their popularity with the patricians was the order they issued to the curule aediles, requiring them to reserve special places for the senators at the Roman Games; previously they sat amongst the crowd. Very few of the equestrian order were deprived of their horses, nor did the censors treat any order in the State harshly. The Hall of Liberty and the Villa Publica were also restored and enlarged by these censors. The Sacred Spring and the Games, vowed by Servius Sulpicius Galba, were duly carried out. Q. Pleminius, who for his many crimes against gods and men at Locri had been thrown into prison, seized the opportunity whilst all were preoccupied with the spectacle of the Games to get together a number of men who were to set the City on fire at various points during the night so that he might break out of gaol during the confusion created. The plot was disclosed by some of his accomplices and the information laid before the senate. Pleminius was thrown into the lowest dungeon and put to death.

[34.45]During the year a number of Roman citizens were settled as colonists in Puteoli, Volturnum and Liternum; three hundred were assigned to each place. Similar settlements were made in Salernum and Buxentum. The commissioners who supervised the emigration were Tiberius Sempronius Longus who was consul at the time, M. Servilius and Q. Minucius Thermus. The land distributed amongst them had formed part of the domain of Capua. A colony of Roman

citizens was also established at Sipontum on land which had belonged to Arpi. The commissioners in this case were D. Junius Brutus, M Baebius Tamphilus and M. Helvius. Roman citizens were also sent as colonists to Tempa and Croto; the territory of the former had been taken from the Brutii, who had expelled the Greeks from it; Croto was still held by the Greeks. The commissioners for the colonisation at Croto were Cneius Octavius, L. Aemilius Paulus and C. Laetorius; those for Tempa were L. Cornelius Merula and C. Salonijs. Some portents appeared in Rome this year and others were announced from various places. In the Forum, the Comitium and the Capitol drops of blood were seen; there were several showers of mud, and the head of the statue of Vulcan appeared to be on fire. It was reported that the river Nar had flowed with milk, that boys of respectable parents at Ariminum had been born without eyes or nose, and one in the district of Picenum without hands or feet. These portents were expiated as directed by the pontiffs. Sacrifices were also offered for nine days in consequence of a report from the people of Hadria that a shower of stones had fallen on their soil.

[34.46]L. Valerius, who was still in command in Gaul, fought a hotly contested action with the Insubrians and the Boii; the latter had crossed the Po in order to rouse the Insubrians to arms. His colleague M. Porcius Cato celebrated his triumph over the Spaniards during this period. In the procession there were carried 25,000 pounds of unwrought silver, 12,300 silver denarii, 540 of Oscan coinage, and 1200 pounds' weighs of gold. To each of the infantry soldiers he distributed 270 ases and treble the amount to the cavalry. On arriving in his province Tiberius Sempronius marched his troops first of all into the country of the Boii. Boiorix was their chief at the time, and after he and his two brothers had induced the whole nation to resume hostilities he fixed his camp in an exposed position in the open country to show that they were prepared to fight if they were invaded. When the consul became aware of the numbers and confidence of the enemy he sent to his colleague asking him, if he thought he could do so, to hasten to his assistance, and he would by one means or another delay an action till he came. The same reason which led the consul to delay made the Gauls seek an early decision, for their confidence was increased by their enemy's hesitation and they determined to engage him before the two consuls united their forces. For two days, however, they merely stood ready for battle in case

there was any advance from the Roman camp; on the third day they went up to the rampart and attacked the camp simultaneously on all sides.

The consul ordered his men instantly to seize their weapons, and for a few minutes kept them standing under arms, partly to encourage the unthinking confidence of the enemy and also to allow of his distributing the troops at the different gates from which each body was to make the sortie. The two legions were ordered to advance through the principal gates, but the Gauls blocked the exits in such dense masses that they could not emerge. The struggle went on for a long time in the confined space; it was not so much fighting with their right hands and swords as pushing with their shields and bodies, the Romans trying to force a way for their standards, the Gauls endeavouring to get into the camp, or at all events to keep the Romans from getting out. Neither the one side nor the other could make any advance until Q. Victorius, a centurion of the first rank, and C. Atilius, a military tribune, the former belonging to the second legion, the latter to the fourth, did what had often been tried in desperate struggles, and snatching the standards from the bearers flung them amongst the enemy. In their effort to recover the standards the men of the second legion were the first to force their way out of the camp.

[34.47] They were now fighting outside the rampart while the fourth legion were still held up in their gate. Suddenly a new alarm arose on the opposite side of the camp. The Gauls had broken through the quaestorian gate, and after meeting with the most obstinate resistance had killed the quaestor, L. Postumius Tympanus, M. Atinius and P. Sempronius, praefects of allies, and nearly 200 men. This side of the camp was in the enemy's hands until one of the "special cohorts" which had been sent by the consul to defend the quaestorian gate drove them out of the camp after killing many of them, and stopped those who were breaking in. Almost at the same moment the fourth legion, with two of the special cohorts, forced their way out of another gate. So there were three separate actions going on simultaneously on different sides of the camp, and the confused shouts which arose called off the attention of the combatants from their own struggle to the doubtful position of their comrades. Up to noonday the battle was fought with equal strength on both sides, and almost equal hopes of victory. But the heat and the exertion told

upon the Gauls with their soft and perspiring bodies, utterly incapable as they were of enduring thirst, and compelled them to beat a retreat. The few who still stood their ground were charged by the Romans and driven in rout to their camp. Then the consul gave the signal to retire; most of the men obeyed it, but some in their eagerness for battle and in the hope of securing the hostile camp pushed on to the rampart. The Gauls, deriding this weak force, rushed in a body out of their camp. Now it was the Romans who were routed, and those who refused to return to camp at the consul's order were driven thither by their fears. So first on one side and then on the other victory and flight alternated. The Gauls, however, lost as many as 11,000 men, the Romans 5000.

[34.48]They retired into the most distant part of their country; the consul led his legions to Placentia. Some writers assert that Scipio formed a junction with his colleague and marched through the fields of the Boii and the Ligurians, plundering as he went, until the forests and marshes forbade further progress; others, on the contrary, state that he returned to Rome to conduct the elections without doing anything worth recording. T. Quinctius had returned to his former quarters at Elatia, and he spent the whole winter in administering justice and reforming the judicial procedure. He also made changes in the political arrangements which had been imposed on the cities by the lawless tyranny of Nabis and his lieutenants, and which by augmenting the power of his own party crushed the rights and liberties of the others. At the beginning of spring he went to Corinth, where he had summoned a general meeting of the allies. Representatives from all the States were present, so that it was practically a Pan-Hellenic council. He began his address by reminding them of the friendly relations which had from the first existed between the Romans and the Greeks as a nation and the work which had been done by himself and the commanders who had been in Macedonia before him. His speech was listened to with universal approbation except where he alluded to the treatment of Nabis. It was felt by those present to be quite inconsistent with the part of a Liberator of Greece to leave the tyrant as a scourge to his own country and a terror to all the surrounding States.

[34.49]Quinctius was quite aware of their feelings on this question, and he frankly admitted that he would not have listened to any overtures of peace if this course would not have involved the

destruction of Lacedaemon. As matters were, since Nabis could not be crushed without ruining a city of the first importance it seemed better to leave him weakened and almost entirely deprived of any power to injure others rather than allow this city to succumb from the effect of remedies too strong for it and perish in the very process of recovering its liberty. After this review of the past he went on to announce his intention of leaving for Italy, taking the whole of his army with him. He told them that in less than ten days they would hear that the troops in occupation of Demetrias and Chalcis had been withdrawn, and they would see with their own eyes Acrocorinthus evacuated and handed over to the Achaeans immediately. This would show the whole world whether it was the Romans who were in the habit of telling lies or the Aetolians, who in their public speeches had spread abroad the notion that it was a mistake to entrust their liberties to Rome and that they had only changed their Macedonian for Roman masters. But that people never cared in the least what they said or what they did. He advised the other States to measure their friends by their deeds and not by their words, and so learn whom to trust and whom to beware of. They must use their liberty in moderation; under proper restraints liberty was a blessing to individuals and communities alike; in excess it was a danger to others and led to recklessness and violence on the part of those who possessed it. The nobility, together with the various classes of society in the different cities, must study to preserve internal harmony, and the States as a whole must endeavour after mutual concord. As long as they were of one mind neither king nor tyrant would ever be strong enough to hurt them, but discord and sedition gave every advantage to those who were seeking to destroy their liberty, since the party which was worsted in a domestic struggle would rather join hands with a foreigner than submit to a fellow-citizen. It must be their care to defend and maintain the freedom which had been won for them by foreign arms and restored to them on the faith of a foreign power. Then the Roman people would know that the gift of liberty had been made to those who were worthy of it and that their boon had been well bestowed.

[34.50] These sentiments, such as a father might have uttered called forth tears of joy from all who heard them, and for some time the voice of the speaker was drowned amidst the expressions of approval and the exhortations which the audience addressed to each other to

let these words sink into their hearts and minds as though they were the words of an oracle. At last, when silence was restored, he asked them to find out any Roman citizens who were living as slaves amongst them and send them within two months' time to him in Thessaly. They would not, he felt sure, think it right or honourable for their liberators to be in the position of slaves in the land which they had liberated. They all exclaimed that among the other things for which they were grateful they thanked him especially for reminding them of so sacred and imperative a duty. There was an immense number who had been made prisoners in the Punic War, and as they were not ransomed by their countrymen Hannibal sold them as slaves. That they were very numerous is evident from what Polybius says. He asserts that this undertaking cost the Achaeans 100 talents, as they fixed the price to be paid to the owners at 500 denarii a head. On this reckoning Achaia must have held 1200 of them; you can estimate proportionally what was the probable number throughout Greece. The assembly was still sitting when, on looking round, they saw the troops coming from Acrocorinthus; they marched straight through to the gate and left the city. The general followed them amidst universal applause and shouts of "Saviour and Liberator." Then taking his final leave of them he returned to Elatia by the same route by which he had come. From there he despatched Appius Claudius with the whole of his forces, they were to march through Thessaly and Epirus to Oricum and wait for him there, as he intended to sail from there with his army to Italy. His brother Lucius, who was in command of the fleet, received written instructions to collect ships from every part of the Greek coast.

[34.51]He then proceeded to Chalcis and withdrew the forces in occupation not only from that city, but from Oreus and Eretria as well. Here he summoned a convention of all the cities in Euboea, and after reminding them of the condition in which he found them and the condition in which he was leaving them, sent them back to their homes. Going on to Demetrias, he withdrew his troops from that place amidst the same enthusiasm on the part of the citizens as at Corinth and Chalcis. He then resumed his progress into Thessaly, where the cities had not only to be liberated but also brought back from confusion and chaos into some tolerable form of government. This state of confusion arose from the disorders of the time and the violence and lawlessness introduced by Philip, but it was due quite as

much to the quarrelsome character of the people, who never conducted public proceedings of any kind, whether elections or conventions or councils, without tumult and riot. Quinctius selected the senate and the judges mostly from the propertied classes and placed power in the hands of those whose interest it was to keep everything in peace and security.

[34.52]After thus traversing Thessaly he went on through Epirus to Oricum, his starting place for Italy. From this point the whole of his army was carried across to Brundisium, and from Brundisium they marched through the whole length of Italy to the City in what was almost a triumphal procession, of which the captured spoils formed as large a part as the troops themselves. On his reaching Rome the senate met outside the City to receive his report and they gladly decreed the triumph he had so well earned. Its celebration lasted three days. On the first day he had carried through the City the arms and armour and the bronze and marble statues; those taken from Philip were more numerous than those which he had secured in the various cities. On the second day all the gold and silver, coined and uncoined, were borne in the procession. There were 18,000 pounds of uncoined and unwrought silver and 270 of silver plate, including vessels of every description, most of them embossed and some exquisitely artistic. There were also some made of bronze. In addition to these there were ten silver shields. Of the silver coinage 84,000 were Attic pieces, known as tetrachma, each nearly equal in weight to four denarii. The gold weighed 3714 pounds, including one shield made entirely of gold, and there were 14,514 coins from Philip's mint. In the third day's procession were carried 114 golden coronets, the gifts of various cities, and before the victor's chariot went the sacrificial victims and many noble prisoners and hostages, amongst the latter Philip's son Demetrius and Armenes the son of the Lacedaemonian tyrant. Then came Quinctius himself in his chariot followed by a long train of soldiers, as the whole of his army had been brought back from the province. Each infantryman received a largess of 250 ases, each centurion twice as much, and each cavalryman treble the amount. A striking feature in the procession was furnished by those who had been rescued from slavery, and who with shaven heads followed their deliverer.

[34.53]At the close of the year Q. Aelius Tubero, a tribune of the plebs, acting on a resolution of the senate, brought a proposal before

the plebs, which was adopted, for the settlement of two Latin colonies, one in Bruttium and the other in the territory of Thurium. The commissioners who were to supervise the settlement were appointed for three years. Those who were to make the arrangements in Bruttium were Q. Naevius, M. Minucius Rufus and M. Furius Crassipes; those put in charge of the Thurium settlement were A. Manlius, Q. Aelius and L. Apustius. The elections in which they were chosen were held by the City praetor, Cn. Domitius, in the Capitol. A number of temples were dedicated this year. One was the temple of Juno Matuta in the Forum Olitorium. This had been vowed four years previously and its building contracted for by C. Cornelius during his consulship, and he dedicated it when he was censor. Another was the temple of Faunus; the aediles C. Scribonius and Cn. Domitius had contracted for its building two years before out of the money raised by fines, and Cn. Domitius dedicated it when he was City praetor. Q. Marcus Rulla dedicated a temple to Fortuna Primigenia on the Quirinal, having been made duumvir for the purpose. P. Sempronius Sophus had vowed it in the Punic War ten years previously, when he was consul, and he had made the contract for it during his censorship. C. Servilius also dedicated a temple to Jupiter on the Island, which had been vowed six years before in a war with the Gauls by the praetor L. Furius Purpurio, who when consul signed the contract for its construction.

[34.54]P. Scipio returned from his province of Gaul to conduct the elections. The new consuls were L. Cornelius Merula and Q. Minucius Thermus. The praetors were elected on the following day; they were L. Cornelius Scipio, M. Fulvius Nobilior, C. Scribonius, M. Valerius Messala, L. Porcius Licinus and C. Flaminius. Atilius Serranus and L. Scribonius Libo were the first aediles who made the Megalesia scenic Games. It was when these same aediles exhibited the Roman Games that the senate for the first time sat apart from the people. This, like all innovations, excited much comment. Some regarded it as a tribute which had long been due to the highest order in the State; others considered that whatever enhanced the greatness of the patricians detracted from the dignity of the people, and that all such distinctions as mark off the different orders in the State impair the concord and liberty which all ought equally to enjoy. For 557 years the spectators had sat promiscuously, what, people asked, had happened all of a sudden that the patricians refused to have the

plebeians amongst them? Why should a rich man object to a poor man sitting by his side? It was a piece of unheard-of arrogance neither adopted nor wished for by any other senate in the world. Even Africanus himself, who when consul was responsible for the change, was said to have regretted it. So distasteful is any departure from ancient usage; so much do men prefer to stand in the old ways except where they are clearly condemned by experience.

[34.55]At the beginning of the year of office of the new consuls there were such frequent reports of the occurrence of earthquakes that men grew tired not only of the subject itself, but also of the suspension of business which was ordered on account of it. No meeting of the senate could be held nor any public proceedings conducted, as the consuls were entirely occupied with sacrifices and expiations. At last the decemvirs received instructions to consult the Sacred Books, and in accordance with their injunctions a three days' intercession was proclaimed. Prayers were offered at all the shrines, the suppliants wearing laurel wreaths, and a notice was issued requiring all the members of a family to offer up their prayers together. The senate authorised the consuls to publish an edict forbidding anyone to report an earthquake on any day on which business had been suspended on account of one already reported. After this the consuls balloted for their provinces. Gaul fell to Cornelius and Liguria to Minucius. The praetors' ballot resulted in C. Scribonius receiving the City jurisdiction, M. Valerius that over aliens, L. Cornelius Sicily, L. Porcius Sardinia, C. Flaminius Hither Spain and M. Fulvius Further Spain.

[34.56]The consuls were not looking forward to any war during their year of office, when a despatch arrived from M. Cincius, the commandant of Pisae, announcing a rising in Liguria. Warlike resolutions had been passed in all the councils of the nation, and 20,000 Ligurians were now in arms. They had ravaged the country round Luna, and after crossing the frontiers of Pisae had traversed the whole length of the coast. Minucius, to whom the province of Liguria had been allotted, acting on the instructions of the senate, mounted the Rostra and issued an edict for the two City legions which had been enrolled the year before to muster in ten days' time at Arretium, their place would be taken by two legions which he was going to raise. He also notified the magistrates and officers of those Latin and allied communities which were bound to furnish troops

that they should attend upon him in the Capitol. Here he arranged with them what contingent each city should supply in proportion to the number of men they had of military age, the total being fixed at 15,000 infantry and 500 cavalry. They were then instructed to start for home at once and raise their troops without a moment's delay. Fulvius and Flaminius were each reinforced with Roman troops to the number of 3000 infantry and 100 cavalry and also 5000 infantry and 200 cavalry furnished by the Latins and allies, and the praetors were ordered to disband the old soldiers as soon as they arrived in their provinces. Large numbers of the soldiers in the City legions urged the tribunes of the plebs to investigate the cases of the men who pleaded either length of service or ill-health as reasons why they should not be called up. This matter was quite thrown aside by a despatch from Tiberius Sempronius, in which he stated that a body of 10,000 Ligurians had appeared in the neighbourhood of Placentia and had wasted the country with fire and sword up to the very walls of the colony and the banks of the Po, and the Boii also were contemplating a revival of hostilities.

In view of this announcement the senate decreed that a state of emergency had arisen, and that they disapproved of the tribunes investigating the soldiers' grievance and so preventing them from assembling in obedience to the edict. They further ordered that the men of the allied contingents who had served under P. Cornelius and Tiberius Sempronius and had been disbanded by them should reassemble on the day which L. Cornelius named and in whatever place in Etruria he notified to them. Whilst on his way to his province the consul was to enlist and arm and take with him whatever men he thought fit in the towns and country districts through which he passed, and he was empowered to disband any of them whenever he wanted to do so.

[34.57]After the consuls had raised the necessary troops and left for their provinces, T. Quinctius requested the senate to listen to his report of the arrangements which he had made in concert with the ten commissioners, and if they thought good to ratify and confirm them. They would, he said, be in a better position to do this if they heard the statements of the envoys who had come from every State in Greece as well as those who had come from the three kings. These deputations were introduced to the senate by the City praetor, Caius Scribonius, and they all met with a favourable reception. As the

negotiations with Antiochus were somewhat protracted they were entrusted to the ten commissioners, some of whom had been with the king either in Asia or in Lysimachia. T. Quinctius was authorised to hear the envoys in the presence of the commissioners and make such a reply as was consistent with the interests and the honour of the Roman people. Menippus and Hegesianax were the leaders of the embassy, and the former was the spokesman. He professed himself at a loss to understand what difficulty or complications his mission could create as he had simply come to ask that friendly relations might be established and an alliance formed. There were three kinds of treaties by means of which States and monarchs came to terms with one another. In one case the conditions were dictated to those who had been vanquished in war, for when everything had been surrendered to the one who was the stronger in arms he had the absolute right to say what they might retain and of what they were to be deprived. In the second case powers who have been equally matched in war form a league of peace and amity on equal terms, for then they arrive at a mutual understanding in respect of claims for indemnity, and where proprietorship has been disturbed by the war, matters are adjusted either in accordance with the former legal status or as is most convenient to the contracting parties. The third class of treaties comprises those made by States which have never been enemies and who unite in forming a league of friendship; no conditions are either imposed or accepted, for these only exist between victors and vanquished. It was this latter kind of league that Antiochus was seeking, and he (the speaker) was surprised that the Romans should think it just and fair to impose conditions upon the king as to which of the cities in Asia they decided should be free and autonomous and which should pay tribute, and in the case of some forbidding the king to garrison them. These were terms on which to make peace with Philip their enemy, not a treaty of alliance with Antiochus, who was their friend.

[34.58]The following was Quinctius' reply: "Since it pleases you to draw these distinctions and to enumerate the various ways in which friendly relations can be established, I too will lay down the two conditions apart from which, you may tell your king, no friendship with Rome can be established. One is this - if he does not wish us to concern ourselves with the cities of Asia, he must himself keep his hands off every part of Europe. The other is this - if instead of

confining himself within the frontiers of Asia he crosses over into Europe, the Romans will be perfectly justified in protecting their friendship with those cities where it exists and in winning new ones." Hegesianax replied: "Surely it is an unworthy suggestion to say that Antiochus is excluded from the cities of Thrace and the Chersonese which his great-grandfather Seleucus won most gloriously after defeating Lysimachus, who fell in the battle, and some of which Antiochus himself recovered by force of arms from the Thracians who had taken possession of them, whilst others which had been deserted, like Lysimachia, he repeopled with tillers of the soil, and where they had been burnt or laid in ruin he rebuilt them at a vast expense. What resemblance could there be between the renunciation by Antiochus of his right to cities which had been acquired or recovered in this way and the non-interference of the Romans in Asia, which had never belonged to them? Antiochus was asking for the friendship of Rome, but it was such a friendship as would bring him honour, not shame." On this Quintius observed: "As it is a question of honour - a question which ought to be the sole, or at all events the primary, one for the foremost nation in the world and for a monarch so great as yours, which course appears to you the more honourable, to desire the freedom of all the Greek cities wherever they are or to keep them tributary and in bondage? If Antiochus thinks that he is acting honourably in claiming the lordship of cities which his great-grandfather held by the right of war, a right which his father and grandfather never asserted, the Roman people also consider that their sense of honour and consistency forbid them to abandon their championship of the liberties of Greece. As they liberated Greece from Philip, so it is their intention to liberate the Greek cities in Asia from Antiochus. Colonies were not founded in Aeolis and Ionia to be in bondage to monarchs, but that their stock might multiply and a nation of ancient lineage be propagated throughout the world."

[34.59]As Hegesianax hesitated and could not deny that the cause of liberty carried a more honourable title than that of slavery, P. Sulpicius, the senior of the ten commissioners, said: "Let us have no more beating about the bush; choose one of the two conditions which Quintius has just put forward so clearly; choose or drop this idle plea of friendship." "It is not our wish," said Menippus, "nor is it in our power to enter into any compact by which the sovereign rule

of Antiochus will be impaired." The next day Quinctius introduced to the senate all the deputations from Greece and Asia, in order that they might learn the attitude of the Romans and that of Antiochus towards the cities of Greece. He laid his own demands before them and then those of the king, and told them to report to their governments that the Romans would show the same courage and fidelity in vindicating their liberties against Antiochus, if he did not quit Europe, which they had shown in liberating them from Philip. On this Menippus earnestly begged Quinctius and the senate not to precipitate a decision which might, when once taken, throw the world into confusion. He asked them to take time for reflection and allow the king to do the same. When the conditions were reported to him, he would take them into consideration and would obtain some modification of them or make some concessions for the sake of peace. So the whole matter was postponed and it was decided that the same commissioners should be sent to the king who had been with him at Lysimachia, namely P. Sulpicius, P. Villius and P. Aelius.

[34.60]Scarcely had they started on their mission when envoys came from Carthage with the intelligence that Antiochus was undoubtedly preparing for war with the advice and assistance of Hannibal, and apprehensions were felt as to the outbreak of a war with Carthage at the same time. As was stated above, Hannibal, a fugitive from his native country, had reached the court of Antiochus, where he was treated with great distinction, the only motive for this being that the king had long been meditating a war with Rome, and no one could be more qualified to discuss the subject with him than the Carthaginian commander. He had never wavered in his opinion that the war should be conducted on Italian soil; Italy would furnish both supplies and men to a foreign foe. But, he argued, if that country remained undisturbed and Rome were free to employ the strength and resources of Italy beyond its frontiers, no monarch, no nation could meet her on equal terms. He wanted 100 decked ships and a force of 10,000 infantry and 1000 cavalry; he would take the fleet to Africa first as he felt confident of being able to persuade the Carthaginians to enter upon another war, and if they hung back he would raise up war against Rome in some part of Italy. The king should cross over into Europe with the rest of his army and keep his troops somewhere in Greece, not actually sailing for Italy, but

prepared to do so; this would give a sufficient impression of the magnitude of the war.

[34.61]When he had brought the king over to his view, he thought he ought to prepare his countrymen, but he would not run the risk of sending a written communication lest it should be intercepted and his plans discovered. During his visit to Ephesus he had picked up a Tyrian servant named Aristo and, as he had experience of the intelligent way in which he executed less important commissions, Hannibal decided to make use of him. By means of bribes and lavish promises, which the king himself endorsed, he was induced to go to Carthage with instructions. Hannibal supplied him with a list of those whom it was necessary to interview, and he also provided him with secret signs by which they might know that he had really been commissioned by Hannibal. As the man was constantly going about Carthage, Hannibal's enemies found out the reason for his visit quite as soon as his friends, and the matter became the subject of conversation at social gatherings and in the clubs. At last it gave rise to discussion in the senate, where various speakers asserted that nothing was gained by Hannibal's banishment if he was able to form treasonable designs, and by carrying on an agitation amongst the citizens threaten the peace and security of the State. They declared that one Aristo, a Tyrian stranger, had come furnished with instructions from Hannibal and Antiochus, that men who were well known were holding furtive colloquies with him every day, and that a mischief was being secretly hatched which would soon break out and bring about universal ruin. There was a general outcry and all present demanded that Aristo should be summoned and questioned as to the object of his visit, and unless he explained it, sent with a deputation to Rome. "We have suffered enough," they said, "for one man's recklessness; if private citizens offend it will be at their own risk, the State must be preserved from the taint and even from the suspicion of guilt."

When Aristo appeared he endeavoured to clear himself by relying mainly on the fact that he had brought nothing in the shape of a letter to anyone. Still he did not give a satisfactory explanation of the object of his visit, and what caused him most embarrassment was the allegation that his interviews were confined to the members of the Barcine party. On this a heated discussion arose, one side demanding his arrest and detention as a spy, the other asserting that there was

no ground for such irregular action, and it would form a bad precedent if visitors from abroad were to be apprehended for no reason whatever. The same thing would happen to the Carthaginians at Tyre and the other commercial cities which they so largely frequented. The debate was adjourned. Aristo, having to do with Carthaginians, adopted a Carthaginian stratagem. Early in the evening he hung up a placard in the busiest part of the city over the tribunal where the magistrates sat day by day. In the third watch of the night he boarded a vessel and fled away. When the suffetes took their seats the next morning to administer justice they saw the placard, took it down and read it. It stated that Aristo's instructions were not intended for private citizens; they were public and addressed to the "elders" - for so they designated their senate. As this involved the whole government there was less eagerness to investigate the few cases where suspicion fell. It was, however, decided that a deputation should be sent to Rome to report the affair to the consuls and the senate and at the same time lay a complaint against Masinissa.

[34.62]When Masinissa saw that the Carthaginians were falling into bad odour with Rome and at variance amongst themselves - the leaders of the Barcine party suspected by the senate owing to their interviews with Aristo, and the senate suspected by the people in consequence of the notice which Aristo had put up - he thought it a good opportunity for attacking them. The coastal district which skirts the Lower Syrtis is called Emporia. It is a very fertile country and there is one city in it - Leptis - which alone paid Carthage tribute to the extent of a talent a day. This district Masinissa overran and ravaged from end to end and occupied parts of it, so that it appeared doubtful whether it belonged to him or to the Carthaginians. On learning that they had sent envoys to Rome to meet the charges which had been made against them, and also to complain of his conduct, he too sent a deputation to strengthen the suspicions against Carthage and also to question the right of that government to exact tribute from the district which he had invaded. The Carthaginians were received in audience first, and their account of the Tyrian stranger made the senate feel anxious lest they should be involved in war with both Antiochus and Carthage at the same time. What strengthened their suspicions most of all was the fact that after deciding to arrest Aristo and send him to Rome they had neglected to keep either him or his ship under guard. Then came the argument

with Masinissa's representatives as to the territory in dispute. The Carthaginians rested their case on the adjudication of Scipio, as the district lay within the frontiers of what, after his victory, he declared to be Carthaginian territory, and they also relied on Masinissa's own admission. When Aphthires was a fugitive from his kingdom and was roaming with a body of Numidians in the neighbourhood of Cyrenae, Masinissa who was pursuing him asked permission to traverse that district, showing thereby that he had no doubt as to its belonging to Carthage.

The Numidians contended that false statements had been made as to Scipio's delimitation. If the origin of any rights they claimed was inquired into, what ground in all Africa really belonged to the Carthaginians? When they landed on its shores and sought a settlement they were granted as much land on which to build their city as they could enclose within an ox-hide cut into strips. Whatever ground they had gained outside Bursa they had gained by violence and robbery. As to the territory in question, it was impossible for them to prove that it had been in their possession from the beginning or even for any considerable length of time. The Carthaginians and the kings of Numidia laid alternate claims to it as opportunity offered; it always became the possession of those who for the time being were the strongest in arms. They begged the senate to let matters remain in the same state in which they were before Carthage became the enemy or Masinissa the friend and ally of Rome, and not to prevent him who was able to hold it from doing so. The reply given to both parties was to the effect that the senate would send a commission to Africa to settle the dispute on the spot. The commissioners were P. Scipio Africanus, C. Cornelius Cethegus and M. Minucius Rufus. After surveying the locality and hearing both sides they decided for neither of them and left the whole question in abeyance. Whether they did this of their own motion or whether they had received instructions to do so is uncertain. What is certain is that under the circumstances it was a matter of expediency that the question should remain unsettled. Had it not been so Scipio, either through his knowledge of the facts or his personal influence with both the contending parties, could have settled it by a nod.

BOOK 35: ANTIOCHUS IN GREECE

[35.1] In the opening months of the year in which the above events occurred several unimportant engagements took place in Spain between Sextus Digitius, the praetor, and the numerous cantons which after the departure of M. Cato had recommenced hostilities. These were on the whole so costly to the Romans that the force which the praetor handed over to his successor was hardly half what he had received. There would undoubtedly have been a general rising throughout Spain had not the other praetor, P. Cornelius Scipio, fought several successful actions beyond the Ebro and so cowed the natives that no less than fifty towns went over to him. This was whilst he was praetor. As pro-praetor he inflicted a severe defeat on the Lusitanians. They had devastated Further Spain and were on their way home with an immense quantity of plunder when he attacked them on the march and fought from the third hour of the day to the eighth without arriving at any decision. He was inferior in numbers, but in everything else he had the advantage, for he was with close and serried ranks attacking a long column hampered by many herds of cattle, and his soldiers were fresh while the enemy were wearied with their long march. They had started in the third hour of the night on a march which was prolonged through three hours of daylight and they were forced to accept battle without taking any rest. So it was only in the first stage of the battle that they showed any spirit or energy. At first they threw the Romans into some disorder, but soon the fighting became even. In the crisis of the struggle the praetor vowed that he would celebrate Games to Jupiter if he should rout and destroy the enemy. At length the Roman attack became more insistent and the Lusitanians began to give ground. Finally they broke and fled, and in the hot pursuit which followed as many as 12,000 of the enemy were killed, 540 prisoners taken, nearly all mounted troops, and 134 standards captured. The losses in the Roman army amounted to 73. The scene of the action was not far from the city of Ilipa, and P. Cornelius led his victorious army, enriched with spoil, to that place. The whole of the booty was laid out in front of the city and the owners were allowed to claim their property. The rest was made over to the quaestor to be sold and the proceeds distributed to the soldiers.

[35.2] C. Flaminius had not left Rome when these things happened in Spain. Naturally he and his friends talked much more about the

defeats than about the successes, and as a widespread war had broken out in his province and he was going to take over from Sex. Digitius a miserable remnant of an army, and that utterly demoralised, he had tried to induce the senate to assign to him one of the City legions. From this and from the force which the senate had empowered him to raise he could select 6200 infantry and 300 cavalry, and with that legion - for there was not much to be expected from Digitius' army - he said he could manage very well. The senior members of the House said that their decisions must not depend upon rumours started by private individuals in the interest of particular magistrates, and that no importance should be attached to anything but the despatches of the praetors from their provinces or the reports which their officers brought home. If there was a sudden rising in Spain they considered that emergency troops ought to be promptly raised by the praetor outside Italy. What they had in their minds was that these troops should be raised in Spain. Valerius Antias asserts that C. Flaminius went to Sicily to enlist men, and that whilst on his way from there to Spain he was carried by a storm to Africa, where he administered the military oath to soldiers who had belonged to the army of P. Africanus.

[35.3] In Italy, too, the Ligurian war was growing more serious. Pisae was now surrounded by 40,000 men, and their numbers were being swelled daily by crowds who were attracted by the love of fighting and the hope of plunder. Minucius arrived in Arretium on the day which he had appointed for the assembling of his soldiers. From there he marched in close order to Pisae, and though the enemy had moved their camp across the river to a position not more than a mile distant from the place, he succeeded in entering the city, which his arrival undoubtedly saved. The day following he, too, crossed the river and fixed his camp about half a mile distant from that of the enemy. From this position he sent out skirmishers, and so protected the land of the friendly tribes from depredation. As his troops were new levies, drawn from various classes and not yet sufficiently acquainted with each other to feel mutual confidence, he did not venture to challenge a regular engagement. The Ligurians, relying on their numbers, marched out and offered battle, prepared for a decisive conflict, and even detached bodies to go in all directions beyond their frontiers to secure plunder. When they had collected a

vast quantity of cattle and other booty an armed escort was ready to take it to their forts and villages.

[35.4]As the Ligurian operations were confined to Pisae the other consul led his army through the furthest limits of Liguria into the country of the Boii. Here totally different tactics were pursued; it was the consul who offered battle and the enemy who declined it. As they met with no opposition the Romans dispersed on plundering forays, the Boii preferring to let their property be carried off with impunity rather than risk a battle in its defence. After the whole country had been laid waste with fire and sword the consul left the enemy's territory and marched in the direction of Mutina, taking as little precaution against attack as though he were in a friendly country. When the Boii found that their enemy had withdrawn from their frontiers, they followed noiselessly, looking out for a suitable place for a surprise attack. Passing by the Roman camp in the night, they seized a pass through which the Romans would have to go. This movement did not escape observation, and the consul, who had been in the habit of marching in the dead of the night, decided to wait for daylight so that the dangers incident to a tumultuary battle might not be augmented by darkness. Though it was quite light when he started, he sent on a squadron of cavalry to reconnoitre. On receiving their report as to the strength and position of the enemy he ordered the whole of the baggage to be collected together, and the triarii were told off to surround it with a breastwork. With the rest of his army in battle formation he advanced against the enemy. The Gauls did the same when they found that their stratagem was exposed and that they would have to fight an open and regular battle.

[35.5]The action began about eight o'clock. The left wing of the allied cavalry and the "special" corps were fighting in the front line, and two generals of consular rank - M. Marcellus and Tiberius Sempronius; the latter had been consul the previous year - were in command of them. The consul Merula was at one moment at the front and at another holding back the legions who were in reserve, lest in their eagerness they should go forward before the signal was given. Two military tribunes, Q. Minucius and P. Minucius, received orders to take the cavalry of these two legions outside the line and when the signal was given to deliver an attack from the open. Whilst the consul was making these dispositions a message came from Ti. Sempronius Longus informing him that the special corps were not

able to withstand the onslaught of the Gauls, a great many had been killed, and the survivors, wearied out and dispirited, had lost all heart for fighting. He asked the consul, therefore, if he approved, to send up one of the legions before they were humiliated by defeat. The second legion was sent up and the special corps was withdrawn. The battle was now restored, as the legion came up with its men fresh and its maniples complete. As the left division was withdrawn from the fighting the right came up into the front line. The hot sun was blazing down on the Gauls, who were incapable of standing the heat; nevertheless they sustained the attacks of the Roman army in mass formation, leaning against each other or on their shields. On perceiving this the consul ordered C. Livius Salinator, the allied cavalry leader, to send his men at a hard gallop against them, and the cavalry of the legions to act as supports. This hurricane of cavalry confused, disordered, and finally broke up the Gaulish lines, but they did not turn to flee. Their officers began to stop any attempt at flight by striking the waverers with their spears and forcing them back into their ranks, but the cavalry, riding in amongst them, did not allow them to do this. The consul urged his men on; only a little more effort was needed, he said; victory was within their grasp, they saw how disordered and demoralised the enemy were, and they must press the attack. If they allowed them to re-form their ranks, the battle would begin all over again with doubtful result. He ordered the standard-bearers to advance, and with one united effort they at last forced the enemy to give way. When once the Gauls were scattered in flight the cavalry of the legions was sent in pursuit. Fourteen thousand of the Boii were killed in that day's fighting, 1902 taken prisoners, as well as 721 of their cavalry, including three officers; 212 standards were also captured and 63 military wagons. Nor was the victory a bloodless one for the Romans; they and the allied contingents together lost over 5000 men, including 23 centurions, four praefects of allies and three military tribunes in the second legion - M. Genucius, Q. Marcius and M. Marcius.

[35.6]Despatches from the two consuls arrived in Rome almost on the same day. The one from L. Cornelius contained his report of the battle at Mutina; that from Q. Minucius, at Pisae, stated that the conduct of the elections had fallen to his lot, but the whole position in Liguria was so uncertain that it was impossible for him to leave without bringing ruin on the friendly tribes and injury to the interests

of the republic. He suggested that if the senate thought proper they should send word to his colleague, who had practically brought the war in Gaul to a close, requesting him to return to Rome for the elections. If Cornelius objected on the ground that it was not part of his allotted duties, he was ready to do whatever the senate decided upon. But he begged them to give long and careful consideration to the question whether it would be more in the interest of the State that an interrex should be appointed than that he should leave his province in such a condition. The senate instructed C. Scribonius to send two commissioners of senatorial rank to L. Cornelius to show him the despatch which his colleague had sent to the senate, and to inform him that unless he came to Rome for the election of the new magistrates the senate would consent to the appointment of an interrex rather than call away Q. Minucius from a war which had hardly begun. The commissioners brought back word that L. Cornelius would come to Rome for the election of the new magistrates. The despatch which he had sent after his engagement with the Boii gave rise to a debate in the senate. M. Claudius had written unofficially to the majority of the senators stating that it was the good fortune of Rome and the valour of the soldiers that they had to thank for any success that had been gained. All the consul had done was to lose a large number of his men and let the enemy slip out of his hands when he had the chance of annihilating them. His losses were mainly due to the delay in bringing up the reserves to relieve the first line, who were being overpowered. The enemy were able to escape because he was too late in giving the order to the legionary cavalry, and so prevented them from following up the fugitives.

[35.7]The senate agreed that no hasty decision should be come to on this matter and the debate was adjourned for a fuller meeting of the House. There was another pressing question to be dealt with. The citizens were suffering from money-lenders, and though numerous laws had been made in restraint of avarice they were evaded through the fraudulent transferring of the bills to subjects of the allied States who were not bound by these laws. In this way debtors were being overwhelmed by unlimited interest. After a discussion as to the best method of checking this practice it was decided to fix a date, and all members of the allied States who had after that date lent money to Roman citizens were required to make a return of the amounts so

lent, and the debtor was to be at liberty to choose under which laws the creditor might exercise his rights. The appointed day was that of the Ferialia, which had just been celebrated. From the returns sent in it was found that the debts contracted under this fraudulent system amounted to a considerable sum, and M. Sempronius, one of the tribunes of the plebs, was authorised by the senate to propose a measure, which the plebs adopted, providing that debts contracted with members of the Latin and allied communities should come under the same laws as those contracted with Roman citizens. These were the main military and political events in Italy. In Spain the war was by no means so serious as rumour represented. C. Flaminius in Hither Spain took the fortified town of Inlucia in the country of the Oretani. He then drew his troops into winter quarters, and during the winter several unimportant actions were fought to repel raiding parties, who resembled banditti rather than hostile troops. He was not always successful, however, and sustained losses. More important operations were carried on by M. Fulvius. He fought a pitched battle near Toletum with a combined force of Vaccaci, Vettones and Celtiberians, defeated and routed them and took Hilernus their king prisoner.

[35.8]Meanwhile the date of the elections was approaching, and L. Cornelius, after handing over his command to M. Claudius, went to Rome. After expatiating in the senate upon his services and the state in which he had left the province, he took the senators to task for not having paid due honour to the immortal gods, now that such a serious war had been terminated by a single victorious battle. He then asked the House to decree a public thanksgiving, and at the same time a triumph for him. Before the question was put, however, Q. Metellus, who had filled the offices of consul and dictator, said that the despatch which L. Cornelius had sent to the senate and the letter which M. Marcellus had sent to most of the senators were in conflict with one another, and the discussion of this question had been adjourned in order that it might take place when the writers of these letters were present. He had been expecting, therefore, that the consul, who knew that his lieutenant had made statements reflecting on him, would bring him with him when he had to come to Rome, especially as the army ought really to have been handed over to Tiberius Sempronius, who had the imperium, and not to a staff officer. It seemed now as if the man had been purposely kept out of

the way who could have repeated his written statements face to face with his opponent and established them if possible, while any groundless charge he made could have been disproved until at last the truth had been clearly ascertained. He gave it as his opinion, therefore, that none of the decrees which the consul asked for should, for the present at all events, be made. As the consul still persisted in asking the senate to decree a public thanksgiving and authorise him to ride in triumph through the City, two of the tribunes of the plebs, M. Titinius and C. Titinius, said that they would exercise their right of veto if a resolution of the senate were passed to that effect.

[35.9]The censors who had been elected during the previous year were Sextus Aelius Paetus and C. Cornelius Cethegus. Cornelius closed the lustrum. The assessment returns gave the number of citizens as 243,704. There was an enormous rainfall that year and the low-lying parts of the City were inundated by the Tiber. Near the Porta Flumentana some buildings collapsed and fell in ruins. The Porta Coelimontana was struck by lightning and the wall adjacent was struck in several places. At Aricia and Lanuvium and on the Aventine there were showers of stones. It was reported from Capua that a huge swarm of wasps flew into the forum and settled in the temple of Mars, and that they were carefully collected and burnt. In consequence of these portents the Keepers of the Sacred Books were ordered to consult them. Sacrifices were offered for nine days, public intercessions were appointed and the City underwent lustration. During this time M. Porcius Cato dedicated the chapel of Victoria Virgo near the temple of Victory, which he had vowed two years previously. During the year a Latin colony was settled at the Castrum Frentinum in the territory of Thurium. The commissioners who superintended the colonisation were A. Manlius Volso, L. Apustius Fullo and Q. Aelius Tubero, the latter of whom had brought in the bill for its settlement. The colonists comprised 3000 infantry and 300 cavalry, a small number in proportion to the amount of land available. Thirty jugera might have been allotted to each infantryman and 60 to each of the cavalry, but on the advice of Apustius a third of the land was reserved, which could, were it desired, be assigned to fresh colonists. The infantry received 20 jugera and the cavalry 40 each.

[35.10]The year was now drawing to a close and the canvassing for the consular elections was keener than had ever been known before.

There were many strong candidates, both patrician and plebeian, in the field. The patrician candidates were P. Cornelius, the son of Cneius Scipio, who had lately returned from his province in Spain with a brilliant record; L. Quinctius Flaminius, who had commanded the fleet off Greece, and Cn. Manlius Volso. The plebeian candidates were C. Laelius, Cn. Domitius, C. Livius Salinator and Manius Acilius. But all men's eyes were turned to Quinctius and Cornelius, for as they were both patricians they were competing for the same place and they each possessed strong recommendations, for each had covered himself with military glory. But it was the brothers of the two candidates who most of all made the contest such an exciting one, for they were the two most brilliant commanders of their day. Scipio had the more splendid reputation, but its very splendour exposed him all the more to jealousy; Quinctius' reputation was of more recent growth, as his triumph had been celebrated during the year. Moreover, the former had been continually before the public eye for nearly ten years, a circumstance which tends to diminish the reverence felt for great men as people become surfeited with their praises. He had been made consul for the second time after his final defeat of Hannibal, and also censor. In the case of Quinctius, all his claims to popular favour were founded upon his recent successes; since his triumph he had not sought for nor received anything from the people. He said that he was canvassing for his own brother, not for a step-brother; for one who had as lieutenant shared with him the management of the war; whilst he commanded on land his brother commanded at sea. By these arguments he succeeded in beating his competitor, though his competitor was supported by his brother Africanus, by the house of the Cornelii - it was a Cornelius who was conducting the election - and by the splendid testimonial which the senate gave when they pronounced Africanus to be the best man among all the citizens and most worthy to receive the Mater Idaea on her arrival from Pessinus. L. Quinctius and Cneius Domitius Ahenobarbus were the two elected, so that even in the case of the plebeian candidate C. Laelius, Scipio, who had been working for him, was unable to secure his return. The next day the praetors were elected. The successful candidates were L. Scribonius Libo, M. Fulvius Centumalus, A. Atilius Serranus, M. Baebius Tamphilus, L. Valerius Tappo and Q. Salonius Sarra. M. Aemilius Lepidus and L. Aemilius Paulus distinguished themselves as aediles this year. They inflicted fines on

a large number of graziers, and out of the proceeds they had gold-plated shields made, which they placed on the pediment of the temple of Jupiter. They also built an arcade outside the Porta Trigemina, and in connection with it a wharf on the Tiber, and a second arcade leading from the Porta Fontinalis to the altar of Mars in the Campus Martius.

[35.11]For a considerable time nothing worth recording had happened in Liguria, but at the close of the year affairs assumed a very serious aspect. The consul's camp was attacked and the attack was repulsed with great difficulty, and when, not long after, the Roman army was marching through a pass a Ligurian army seized the mouth of the pass. As the exit was blocked the consul decided to go back and countermarched his men. But the entrance behind them had been also occupied by a portion of the enemy forces, and the disaster of Candium not only occurred to the minds of the soldiers but almost presented itself before their eyes. Amongst his auxiliary troops the consul had about 800 Numidian horse. Their commander assured the consul that he would break through on whichever side he chose if only he could tell him in which direction lay the most numerous villages, as he would attack them and instantly fire the houses so that the alarm thus created might compel the Ligurians to leave their position in the pass and help their countrymen. The consul highly approved of his plan and promised to reward him richly. The Numidians mounted their horses and began to ride towards the enemy's outposts without showing any aggressiveness. Nothing could at first sight look more contemptible than the appearance they presented; horses and men were alike thin and diminutive; the riders were without body armour and, except for the javelins they carried, unarmed; the horses had no bridles and their pacing was most ungainly, trotting as they did with head and neck stuck straight out. The contempt which they aroused they did their best to increase; they fell from their horses and presented a ridiculous spectacle. Consequently the men at the outposts who had at first been on the alert, prepared to meet an attack, now laid their arms aside and sat down to watch the show. The Numidians rode forward and then galloped back, but always got a little nearer to the mouth of the pass, as though they were carried forward by their horses which they were incapable of managing. At last, digging in their spurs, they made a dash through the enemy's outposts, and emerging into open country

set fire to all the dwellings near the road and then to the first village they came to, laying it all waste with fire and sword. The sight of the smoke, the cries of the terrified villagers and the hasty flight of the old men and the children produced great excitement in the Ligurian camp, and without waiting for orders or concerted action every man ran off to protect his property and in a moment the camp was deserted. The consul, extricated from the blockade, reached his destination.

[35.12]Neither the Boii nor the Spaniards, however, with whom Rome had been warring that year, were such bitter enemies as the Aetolians. After the Roman armies had evacuated Greece they expected that Antiochus would take possession of that part of Europe vacated, and that neither Philip nor Nabis would remain inactive. When they saw no movement anywhere they decided that to prevent their designs from being thwarted by delay they must do something to produce agitation and confusion, and accordingly a council was convened at Naupactus. Here Thoas, their chief magistrate, complained of their unjust treatment by the Romans and the position in which the Aetolians were placed, for after a victory which was won through them, they, of all the States and cities in Greece, had been shown the least consideration. He advised that envoys should be sent to each of the three kings to find out their intentions and to urge such arguments on each as would goad them into a war with Rome. Democritus was sent to Nabis, Nicander to Philip, and Dicaearchus, the brother of Thoas, to Antiochus. Democritus pointed out to the tyrant that by the loss of his maritime cities the very sinews of his power were cut; it was from them that he drew his soldiers, his ships and his crews. Little more than a prisoner within his own walls, he saw the Achaeans fording it over the Peloponnese; he would never have another opportunity of winning back his dominion if he let this one go by; there was no Roman army in Greece, and they would never think it worth their while to send their legions back again for the sake of Gytheum and the other Laconian cities on the coast. Such were the arguments used to influence the tyrant, so that when Antiochus landed in Greece the consciousness of having broken his amity with Rome through his ill-treatment of her allies might force him to join arms with the Syrian monarch.

Nicander took much the same line in his interview with Philip. He spoke with all the greater force because the king had been brought down from a loftier position than the tyrant and had lost more of his power. He reminded the king of the former prestige of Macedonia and the world-wide victories of his nation. Nicander assured him that the policy recommended was a safe one both in its initiation and its execution. On the one hand he was not asking Philip to take any action before Antiochus was in Greece with his army, on the other there was every prospect of final success. With what possible force could the Romans hold their own against him when leagued with Antiochus and the Aetolians after he had, without the help of Antiochus, maintained such a protracted struggle against the Romans and against the Aetolians, who were at the time a more formidable enemy than the Romans? He also spoke about Hannibal as a foe to Rome from his birth, who had slain more of her generals and soldiers than still survived. Such were the arguments employed with Philip. Those advanced by Dicaearchus in his interview with Antiochus were different. The spoils of war, he said, won from Philip belonged to the Romans, but the victory over him to the Aetolians; they and they alone had granted the Romans an entrance into Greece and provided them with the strength which secured victory. He went on to enumerate the amount of infantry and cavalry which they were prepared to furnish to Antiochus, the localities which would be available for his land army and the harbours which could receive his fleet. Then, as Philip and Nabis were not present to check him, he falsely represented them as prepared for immediate hostilities and ready to seize the very first opportunity of recovering what they had lost in war. In this way the Aetolians tried to stir up war against Rome throughout the world.

[35.13]The kings, however, took no action, or at all events their action was too late. Nabis promptly sent emissaries to all the coast towns to foment a rising; some of their leading citizens he won over by bribes, others who remained steadfast to the cause of Rome he put to death. T. Quinctius had entrusted the Achaeans with the defence of the coast towns and they lost no time in sending envoys to the tyrant to remind him of his treaty with Rome and to warn him against disturbing the peace which he had so ardently sought for. They also sent succours to Gytheum, which the tyrant was already attacking, and sent a report to Rome of what was happening. During

the winter Antiochus went to Raphia in Phenicia to be present at the marriage of his daughter to Ptolemy, the king of Egypt, and at the close of the winter returned through Cilicia to Ephesus. After sending his son Antiochus into Syria to watch the more distant frontiers of his kingdom in case any disturbance should take place in his rear, he left Ephesus and marched with the whole of his land army against the Pisidians in the neighbourhood of Sida. Whilst he was thus engaged the Roman commissioners, P. Sulpicius and P. Villius, who, as I have already stated, had been sent to interview him, received instructions to visit Eumenes first, and after landing at Elea they went up to Pergamum, where the king's palace was situated. Eumenes welcomed the prospect of a war with Antiochus, for he felt certain that if a monarch so much more powerful than himself were left in peace he would prove a troublesome neighbour, and if there was war Antiochus would be no more a match for the Romans than Philip had been, and would either be altogether got rid of or so completely defeated as to submit to terms of peace. In this case much taken from Antiochus would be added to his dominions, and then he would easily be able to defend himself without any assistance from Rome. Even at the worst, Eumenes thought it better to meet any misfortune with the Romans as his allies than, standing alone, have to accept the supremacy of Antiochus, or if he refused, be compelled to do so by force. For these reasons he did his utmost by personal influence and by argument to urge the Romans to war.

[35.14]Owing to illness Sulpicius stopped at Pergamum, whilst Villius went on to Ephesus, as he heard that the king had commenced hostilities in Pisidia. He made a short stay there, and as Hannibal happened to be there at the time he made a point of paying frequent visits to him in order to ascertain his future plans and if possible remove any apprehension from his mind as to danger threatening him from Rome. Nothing else was discussed in these interviews, but they had one result, which though really undesigned might have been deliberately aimed at, for they lowered Hannibal's authority with the king and cast suspicion upon all that he said or did. Claudius, following Acilius who wrote in Greek, says that Publius Scipio Africanus was one of the commissioners, and that he had conversations with Hannibal. One of these he reports. Africanus asked Hannibal whom he considered to be the greatest commander, and the reply was, "Alexander of Macedon, for with a small force he

routed innumerable armies and traversed the most distant shores of the world which no man ever hoped to visit." Africanus then asked him whom he would put second, and Hannibal replied, "Pyrrhus; he was the first who taught how to lay out a camp, and moreover no one ever showed more cleverness in the choice of positions and the disposition of troops. He possessed, too, the art of winning popularity to such an extent that the nations of Italy preferred the rule of a foreign king to that of the Roman people who had so long held the foremost place in that country." On Scipio's again asking him whom he regarded as the third, Hannibal, without any hesitation, replied, "Myself." Scipio smiled and asked, "What would you say if you had vanquished me?" "In that case," replied Hannibal, "I should say that I surpassed Alexander and Pyrrhus, and all other commanders in the world." Scipio was delighted with the turn which the speaker had with true Carthaginian adroitness given to his answer, and the unexpected flattery it conveyed, because Hannibal had set him apart from the ordinary run of military captains as an incomparable commander.

[35.15]From Ephesus Villius went on to Apamea. On being informed of the Roman commissioner's arrival, Antiochus proceeded thither also. The conversations between them were almost on the same lines as those which Quinctius had held with the king's envoys in Rome. The conference was broken off in consequence of intelligence received of the death of the king's son, who, as already stated, had been sent to Syria. There was great mourning in the court, and the young man's loss was deeply regretted. He had already given proof of such qualities that it was certain, if his life had been spared, he would have shown himself a great and just monarch. The more universally he had made himself beloved, the stronger the suspicions which were felt about his death. The king, it was said, looked upon the heir-apparent as a menace to his old age, and so had him taken off by poison through the agency of certain eunuchs, a class of men whose services kings are glad to employ in crimes of this kind. Another motive which was attributed to the king strengthened this suspicion, for as he had given Lysimachia to his son Seleucus he had no similar residence to which he could remove Antiochus under pretence of conferring an honour upon him. The court, however, presented all the outward signs of mourning for several days, and the Roman commissioner, not wishing to be in the way at such an

unseasonable time, withdrew to Pergamum. The king abandoned the war which he had begun and returned to Ephesus. There, with his palace closed on account of the mourning, he held secret counsels with his favourite courtier, a man called Minnio. Minnio, utterly ignorant of the outside world and measuring the king's power by his campaigns in Syria and Asia, was fully convinced that Antiochus would prove no less superior to the Romans in war than he was in the justice of his cause, as the demands of the Romans were unjustifiable. As the king avoided all further discussion with the commissioners, either because he found that nothing was to be gained from them or owing to the depression due to his recent bereavement, Minnio said that he would act as spokesman on the king's behalf, and induced Antiochus to invite the commissioners up from Pergamum. Sulpicius had now recovered, so they both proceeded to Ephesus.

[35.16].Minnio apologised for the non-appearance of the king and the negotiations proceeded in his absence. Minnio opened the discussion in a carefully prepared speech, in which he said: "I see that you Romans claim the fair-sounding epithet of 'Liberators of the cities of Greece.' But your acts do not correspond to your words; you lay down one law for Antiochus, and another for yourselves. For how are the inhabitants of Smyrna and Lampsacus more Greek than those of Neapolis and Regium and Tarentum, from whom you demand tribute and ships by virtue of your treaty with them? Why do you send year by year a quaestor with full powers of life and death to Syracuse and the other Greek cities of Sicily? The only reason that you could give would, of course, be that you imposed these terms upon them after subjugating them by force. Then accept the same reason from Antiochus in the case of Smyrna and Lampsacus and the cities of Ionia and Aeolis. They were conquered by his ancestors and made to pay tribute and taxes, and he claims the rights which have come down to him from ancient times. I should be glad, therefore, if you would answer him on these points, if, that is, you are prepared to discuss them fairly, and are not simply seeking a pretext for war."

Sulpicius replied: "If these are the only arguments that can be advanced in support of his case, Antiochus has shown a discreet modesty in letting them be brought forward by anybody rather than by himself. For what possible resemblance can there be between the circumstances of the two groups of cities which you have mentioned?

From the day when Regium, Tarentum, and Neapolis passed into our hands we have demanded the fulfilment of their treaty obligations by an unbroken tenor of right which has always been asserted and never intermitted. Those communities have never, either of themselves or through anyone else, made any change in those obligations; would you venture to assert that the same holds good of the cities of Asia, and that after once becoming subject to the ancestors of Antiochus they have remained in the uninterrupted possession of your monarchy? Can you deny that some of them have been subject to Philip, others to Ptolemy, others again have for many years enjoyed an independence which no one has ever challenged? Granting that they at some time or other under the pressure of misfortune lost their freedom, does that give you the right after so many ages to claim them as your vassals? If so, we accomplished nothing when we delivered Greece from Philip; his successors can reassert their right to Corinth, Chalcis, and the whole of Thessaly. But why do I defend the cause of States which they themselves should more properly defend in the hearing of the king and themselves?"

[35.17]He then ordered the representatives of the States to be called in. Eumenes, who quite expected that whatever strength Antiochus lost would prove an accession to his own dominions, had prepared the representatives beforehand and told them what to say. Several were brought in, and as they each stated their grievances and put forward their demands quite regardless as to whether these were fair or not, they changed the discussion into a heated altercation. Unable either to make or to obtain any concessions, the commissioners resumed to Rome leaving everything as unsettled as when they came. On their departure the king held a council of war. Here each speaker tried to outdo the rest in violence of language, for the more bitter he showed himself against the Romans the better his chance of winning the king's favour. One of them denounced the Roman demands as arrogant: "They tried to impose on Antiochus, the greatest monarch in Asia, as though he were the defeated Nabis, and yet even Nabis they allowed to remain as sovereign over his own country and to retain Lacedaemon, whilst they consider it an offence if Smyrna and Lampsacus are under the sway of Antiochus." Others argued that those cities were for so great a monarch slight and insignificant grounds of war, but unjust demands always began with small matters, unless indeed they were to suppose that when the Persians demanded

earth and water from the Lacedaemonians they were actually in need of a clod of earth and a draught of water. A similar attempt was now being made by the Romans in respect of these two cities, and as soon as others saw that these had shaken off the yoke they too would go over to the people who posed as liberators. Even if liberty were not in itself preferable to servitude, everyone, whatever his present condition may be, finds the prospect of change more attractive.

[35.18] There was amongst those present an Acarnanian named Alexander. He had formerly been one of Philip's friends, but had latterly attached himself to the wealthier and more magnificent court of Antiochus. As he was thoroughly familiar with the state of affairs in Greece and possessed some knowledge of the Roman character he had come to be on such intimate terms with Antiochus that he even took part in his private councils. As though the question under discussion was not whether war should be declared or not, but simply where and how it should be conducted, he said that he looked forward to certain victory if the king would cross over into Europe and fix the seat of war in some part of Greece. He would first of all find the Aetolians, who live in the centre of Greece, in arms, ready to take their places in the front and face all the dangers and hardships of war. Then, in what might be called the right and left wing of Greece, Nabis was ready in the Peloponnesus to do his utmost to recover Argos and the maritime cities from which the Romans had expelled him and shut him up within his own walls. In Macedonia Philip would take up arms the moment he heard the war-trumpet sound; he knew his spirit, he knew his temper, he knew that he had been revolving in his mind vast schemes of revenge, chafing like wild beasts that are fastened up by bars or chains. He remembered, too, how often during the war Philip had besought all the gods to give him the help of Antiochus; if this prayer were now granted he would not lose an hour in recommencing war. Only there must be no delay, no holding back, for victory depended upon their being the first to secure allies and to seize the most advantageous positions. Hannibal, too, ought to be sent to Africa at once to create a diversion and divide the Roman forces.

[35.19] Hannibal had not been invited to the council. He had aroused the king's suspicions by his interviews with Villius, and no respect or regard was now shown to him. For some time he bore this affront in silence; then, thinking it better to inquire the reason for this sudden

estrangement and at the same time to clear himself from any suspicion, he chose a fitting moment and put a direct question to the king as to the reason for his disfavour. When he heard what the reason was, he said, "When I was a small boy, Antiochus, my father Hamilcar took me up to the altar whilst he was offering sacrifice and made me solemnly swear that I would never be a friend to Rome. Under this oath I have fought for six-and-thirty years; when peace was settled this oath drove me from my native country and brought me a homeless wanderer to your court. If you cheat my hopes, this oath will lead me wherever I can find support, wherever I learn that there are arms, and I shall find some enemies of Rome, though I have to seek them through the wide world. If, therefore, it pleases your courtiers to advance in your favour by aspersing me, let them seek some other ground for advancing themselves at my expense. I hate the Romans and the Romans hate me. My father Hamilcar and all the gods are witness that I am speaking the truth. When, then, you are making plans for a war against Rome, count Hannibal amongst the first of your friends; if circumstances constrain you to remain at peace, seek someone else to share your counsels." This speech had a great effect upon the king and it brought about a reconciliation with Hannibal. The king left the council, resolved on war.

[35.20]In Rome people spoke of Antiochus as the enemy, but beyond this attitude of mind they were making no preparations for war. Both the consuls had Italy assigned to them as their province on the understanding that they were either to come to a mutual agreement or leave it to the ballot as to which of them should preside at the elections. The one to whom this duty did not fall was to be prepared to take the legions wherever they were needed beyond the shores of Italy. He was empowered to raise two fresh legions as well as 20,000 infantry and 800 cavalry from the Latins and allied States. The two legions which L. Cornelius had as consul the year before were assigned to the other consul, together with 15,000 allied infantry and 500 cavalry drawn from the same army. Q. Minucius retained his command and the army which he had in Liguria. and was ordered to bring it up to full strength by raising 4000 Roman infantry and 150 cavalry, whilst the allies were to furnish him with 5000 infantry and 250 cavalry. The duty of taking the legions wherever the senate thought fit outside Italy fell to Cn. Domitius; L. Quinctius obtained Gaul as his province and also the conduct of the elections. The result

of the balloting amongst the praetors was as follows: M. Fulvius Centumanus received the civic and L. Scribonius Libo the alien jurisdiction; L. Valerius Tappo drew Sicily; Q. Salonus Sarra, Sardinia; M. Baebius Tamphilus, Hither Spain; A. Atilius Serranus, Further Spain. The two latter, however, had their commands transferred first by a resolution of the senate and then by a confirmatory resolution of the plebs; A. Atilius had the fleet and Macedonia assigned to him, and Baebius was appointed to the command in Bruttium. Flaminius and Fulvius were left in command in the two Spains. Baebius received for his operations in Bruttium the two legions which had previously been quartered in the City and also 15,000 infantry and 500 cavalry to be supplied by the allies. Atilius was ordered to construct 30 quinqueremes, to take from the dockyards any old ships that might be serviceable and to impress crews. The consuls were required to supply him with 1000 Roman and 2000 allied infantry. It was stated that these two praetors with their land and sea armies were to act against Nabis who was now openly attacking the allies of Rome. The arrival of the commissioners who had been sent to Antiochus was, however, expected, and the senate forbade Cn. Domitius to leave the City till they returned.

[35.21]The praetors Fulvius and Scribonius, whose department was the administration of justice, were charged with the task of fitting out 100 quinqueremes in addition to the fleet which Atilius was to command. Before the consul and the praetors left to take up their appointments solemn intercessions were made on account of various portents. A report came from Picenum that a she-goat had produced six kids at one birth; at Arretium a boy had been born with only one hand; at Amiternum there was a shower of earth; at Formiae the wall and one of the gates were struck with lightning. But the most appalling report was that an ox belonging to Cn. Domitius had uttered the words "Roma, cave tibi" ("Rome, be on thy guard!"). With respect to the other portents public supplications were offered up, but in the case of the ox the haruspices ordered it to be carefully kept and fed. The flooded Tiber made a more serious attack upon the City than in the previous year and destroyed two bridges and numerous buildings, most of them in the neighbourhood of the Porta Flumentana. A huge mass of rock, undermined either by the heavy rains or by an earthquake not felt at the time, fell from the Capitol into the Vicus Jugarius and crushed a number of people. In the

country districts cattle and sheep were carried off by the floods in all directions and many farmhouses were laid in ruins. Before the consul L. Quinctius reached his province Q. Minucius fought a pitched battle with the Ligurians near Pisae. He killed 9000 of the enemy and drove the rest in flight to their camp, which was attacked and defended with furious fighting until nightfall. During the night the Ligurians stole away in silence, and at daybreak the Romans entered the deserted camp. They found less plunder than might have been expected, as the Ligurians made a practice of sending what they seized in the fields to their homes. After this Minucius gave them no respite; advancing from Pisae he laid waste their fortified villages and homesteads, and the Roman soldiers loaded themselves with the plunder which the Ligurians had carried off from Etruria and sent to their homes.

[35.22]]ust about this time the commissioners returned from their visit to the kings. The intelligence they brought back disclosed no grounds for immediate hostilities except in the case of the tyrant of Lacedaemon, who, as the Achaean delegates also stated, was attacking the coastal district of Lacedaemon in defiance of the treaty. Atilius was sent with the fleet to Greece to protect the allies. As there was no pressing danger from Antiochus, it was decided that both the consuls should start for their provinces. Domitius marched against the Boii from Ariminium, the nearest point, Quinctius made his advance through Liguria. The two armies on their respective routes devastated the country far and wide. A few of the Boian cavalry with their officers went over to the Romans, they were followed by all the older men, and at last every man of rank or wealth, up to the number of 500, deserted to the consul. The Romans were successful in both the Spanish provinces this year. C. Flaminius laid siege to and captured Licabrum, a wealthy and strongly fortified place, and took as prisoner Conribilo, a chieftain of high rank. The proconsul, M. Fulvius, fought two successful actions and stormed many fortified places, together with two towns, Vescelia and Helo; others surrendered voluntarily. Then he marched against the Oretani, and after becoming master of two towns, Noliba and Cusibis, he advanced as far as the Tagus. Here there was a small but strongly fortified city, Toletum, and whilst he was attacking it the Vettones sent a large army to relieve it. Fulvius defeated them in a pitched battle, and after putting them to rout invested and captured the place.

[35.23] These actual wars, however, preoccupied the thoughts of the senate far less than the threatening prospect of war with Antiochus. Although they received from time to time full information through their commissioners, there were vague and unauthorised rumours afloat in which truth was largely blended with falsehood. Amongst other things it was reported that as soon as Antiochus reached Aetolia he would send his fleet on to Sicily. Atilius had already been sent with his fleet to Greece, but as the senate, if it was to retain its hold upon the friendly States, was bound to assert its authority as well as send troops, T. Quinctius, Cn. Octavius, Cn. Servilius and P. Villius were despatched on a special mission to Greece, and a decree was made ordering M. Baebius to transfer his legions from Bruttium to Tarentum and Brundisium, and if circumstances made it necessary transport them to Macedonia. M. Fulvius was ordered to send a fleet of twenty ships to protect Sicily, its commander to possess full powers. The command was vested in L. Oppius Salinator; he had been plebeian aedile the previous year. Fulvius was also to send to his colleague L. Valerius and inform him that fears were entertained of Antiochus sending his fleet to Sicily, and the senate had therefore decided that he should strengthen his army by raising an emergency force of 12,000 foot and 400 horse for the defence of that part of the Sicilian coast which faced Greece. The praetor took the men for the force from the adjacent islands as well as from Sicily itself, and placed garrisons in all the towns on the eastern coast. These rumours were strengthened by the arrival of Attalus, the brother of Eumenes, who brought word that Antiochus had crossed the Hellespont with his army, and that the Aetolians, who were thoroughly prepared, were in arms immediately on his arrival. Thanks were formally accorded to Eumenes as well as to Attalus. The latter was treated as the guest of the State and suitably lodged; he was also presented with two horses, two sets of equestrian armour, silver vases up to a hundred and gold vases up to twenty pounds' weight.

[35.24] As messenger after messenger brought word that war was imminent, it was felt to be a matter of importance that the consular elections should take place at as early a date as possible. The senate therefore resolved that M. Fulvius should at once write to the consul informing him that the senate wished him to hand over his command to his staff and return to Rome. On his way he was to send on his edict giving notice of the consular elections. The consul carried out

these instructions and returned to Rome. There was a keen contest this year, as three patricians were competing for the one vacancy, namely P. Cornelius Scipio, the son of Cn. Scipio, who had been defeated the previous year; L. Cornelius Scipio, and Cn. Manlius Volso. As a proof that the honour had only been deferred and not refused to a man of his eminence, the consulship was bestowed on P. Scipio and the plebeian who was assigned to him as colleague was Manius Acilius Glabrio. Those who were elected as praetors the next day were L. Aemilius Paullus, M. Aemilius Lepidus, M. Junius Brutus, A. Cornelius Mammula, C. Livius and L. Oppius, the two latter both having the cognomen Salinator. Oppius was in command of the fleet of twenty sail which had gone to Sicily. Whilst the new magistrates were balloting for their respective provinces Baebius received instructions to sail with the whole of his force from Brundisium to Epirus and to remain near Apollonia; M. Fulvius was commissioned to construct fifty new quinqueremes.

[35.25]Whilst the Roman Government were thus preparing to check any attempt on the part of Antiochus, Nabis was already pushing on hostilities and devoting his whole strength to the investment of Gytheum. The Achaeans had sent succour to the besieged city, and in revenge he devastated their territory. They did not venture upon open hostilities till their delegates had returned from Rome and they had learnt the decision of the senate. On their return they summoned a council to meet at Sicyon and sent to ask T. Quinctius to advise them as to what they ought to do. The members of the council were unanimously in favour of immediate action, but when a letter was read from T. Quinctius in which he advised them to wait for the Roman praetor and the fleet there was some hesitation felt. Some of the leaders adhered to their opinion, others thought that after consulting T. Quinctius they ought to act on his advice. The great majority, however, waited to hear what line Philopoemen would take. He was at the time their chief magistrate, and surpassed all his contemporaries in sound common sense and force of character. He began by commending the wisdom of the regulation which the Achaeans had adopted forbidding their chief magistrate to express his own view when the discussion turned on war. He then urged them to come to a speedy decision as to what they wanted; their chief magistrate would carry out their decision faithfully and carefully, and as far as human wisdom could avail would do his utmost to prevent

their regretting it whether it were in favour of peace or war. This speech did more to incite them to war than if he had betrayed his desire for it by open advocacy. The council passed a unanimous vote in favour of hostilities, but left the date and conduct of operations absolutely to the chief magistrate. Philopoemen himself was of the opinion which Quinctius had already expressed, that they ought to wait for the Roman fleet which could protect Gytheum by sea, but he was afraid that the position did not admit of delay and that not only Gytheum but also the force sent to defend it might be lost. Accordingly, he ordered the Achaean vessels to put to sea.

[35.26]The tyrant had, as one of the conditions of peace, surrendered his old fleet to the Romans, but he had collected a small naval force, consisting of three decked ships with some barques and despatch-boats, to prevent any assistance reaching the besieged city by sea. In order to test the hardiness of these new vessels and make everything fit for battle, he made them put out to sea every day, and the sailors and soldiers were exercised in sham fights, for he regarded the prospect of a successful siege as dependent upon his intercepting all relief attempted by sea. Though the chief magistrate of the Achaeans could vie with the most famous commanders in military skill and experience he was totally inexperienced in naval matters. He was a native of Arcadia, an inland country, and knew nothing of the outside world with the exception of Crete where he had commanded a force of auxiliary troops. There was an old quadrireme which had been captured eighty years ago when it was conveying Nicaea, the wife of Craterus, from Naupactus to Corinth. Attracted by what he had heard of this ship - for it had been in its day a famous unit of the royal fleet - he ordered it to be brought from Aegium, though it was now very rotten and its timbers were parting through age. Whilst this vessel, with Tisus of Patrae, the fleet commander, on board, was leading the armament it was met by the Lacedaemonian ships which were coming from Gytheum. At the very first shock against a new and firm ship the old vessel, which was leaking at every joint, completely broke up and all on board were made prisoners. The rest of the fleet, after seeing the commander's vessel lost, fled away as fast as their oars could carry them. Philopoemen himself escaped in a light scouting boat and did not end his flight till he had reached Patrae. This incident did not in the least depress the spirits of a man who was a thorough soldier and had had a very chequered experience; on

the contrary, he declared that if he had made an unfortunate mistake in naval matters of which he knew nothing he had all the more reason to hope for success in things with which experience had made him thoroughly familiar, and he promised that he would make the tyrant's rejoicing over his victory a short-lived one.

[35.27] Greatly elated by his victory, Nabis felt no further apprehension of danger from the sea, and he now decided to close all access on the land side by an effective disposition of his troops. He withdrew a third of the army which was investing Gytheum and encamped at Pleiae in a position which commanded both Leucae and Acriae, as the enemy would probably advance in that direction. Only a few of the troops in this camp had tents, the mass of the soldiers constructed wattled huts with reeds and leafy branches to shelter them from the sun. Before he came within sight of the enemy Philopoemen decided to make a novel kind of attack and take him unawares. Collecting some small craft in a secluded creek on the Argive coast he manned them with light infantry, mostly caetrati, who were armed with slings and darts and other light equipment. Sailing close inshore he reached a headland near the enemy's camp, where he disembarked his men and made a night march to Patrae along paths with which he was familiar. The enemy's sentinels, fearing no immediate danger, were asleep and Philopoemen's men flung burning brands on the huts from every side of the camp. Many perished in the fire before they were aware of the enemy's presence, and those who had become aware of it were unable to render any assistance. Between fire and sword the destruction was complete, very few escaped death from the one or the other, and those who did escape fled to the camp before Gytheum. Immediately after dealing this blow to the enemy Philopoemen led his force to Tripolis in Laconia, close to the Megalopolitan territory, and before the tyrant could send troops from Gytheum to protect the fields, he succeeded in carrying off a vast quantity of booty both in men and cattle.

He then assembled the army of the league at Tegea and also convened a special meeting of the Achaeans and their allies at which the leading men from Epirus and Acarnania were present. As his troops were now sufficiently recovered from the humiliation of their naval defeat and the enemy were correspondingly depressed he decided to march on Lacedaemon, as that seemed the only means of drawing off the enemy from the siege of Gytheum. His first halt on

enemy territory was at Caryae, and on the very day he encamped here Gytheum was taken. Unaware of what had happened he continued his advance as far as Barnosthenes, a mountain ten miles distant from Lacedaemon. After taking Gytheum Nabis returned with his army equipped for rapid marching, and hurrying past Lacedaemon he seized a position known as Pyrrhus' Camp, which he felt quite certain that the Achaeans were making for. From there he advanced to meet them. Owing to the narrowness of the road they extended in a column nearly five miles long. The cavalry and the greater part of the auxiliary troops were in the hinder part of the column, as Philopoemen thought that the tyrant would probably attack his rear with the mercenaries, on whom he mainly depended. Two unexpected circumstances occurred which gave Philopoemen cause for anxiety; the position he had hoped to secure was already occupied and he saw that the enemy were intending to attack the head of the column. He did not see how it was possible for his hoplites to advance in battle order over such broken ground without the support of the light troops.

[35.28]Philopoemen possessed exceptional skill in the conduct of a march and the selection of positions; he had made these the objects of special attention in peace as well as in war. It was his habit, when he was travelling and had come to a mountain pass difficult to traverse, to study the ground in all directions. If he was alone he would think the matter over, if he were accompanied he would ask those with him what they would do if an enemy showed himself there, what tactics they would employ according as the attack was made upon their front, or on either flank or on their rear; the enemy in battle order might possibly come upon them whilst they were deployed for action or possibly whilst they were in column of march, unprepared for attack. He used to think out for himself and question others as to some position which he intended to secure, what numbers and what weapons - for these differed considerably - he ought to employ; where he ought to deposit the baggage and the soldiers' kits; where the non-combatants ought to be placed; what ought to be the strength and nature of the baggage guard; and whether it would be better to go forward or for the army to retrace its steps. He used also to consider very carefully the sites he ought to select for his camp, the amount of ground to be enclosed, the supply of water, fodder and wood, the safest route to take on the morrow

and the best formation in which to march. He had exercised his mind on these problems from earliest manhood to such an extent that there was no device for meeting them with which he was not familiar. On the present occasion he first of all halted the column, and then sent up to the front the Cretan auxiliaries and the so-called Tarentine horse, and the rest of the cavalry were ordered to follow them. He then took possession of a rock which overhung a mountain torrent, so that he might have a water supply. Here he collected the camp-followers and the whole of the baggage and surrounded them with a guard. His entrenchments were such as the nature of the position allowed, and the setting up of the tents on such rough and uneven ground presented considerable difficulty. The enemy were half a mile distant, both sides watered at the same stream under the protection of the light infantry, and as usually happens when the camps are near one another, night intervened before the forces engaged. It was quite certain, however, that there would be a battle between the detachments who were guarding the water-carriers, and in view of this Philopoemen during the night posted in a valley out of the enemy's view as large a force of his caetrati as the ground would conceal.

[35.29]At daybreak the Cretan light infantry and the Tarentines commenced an action on the river bank; Telemnastus of Crete commanding his countrymen, and Lycortas of Megalopolis the cavalry. The enemy, too, had Cretan auxiliaries and Tarentine horse covering their watering-parties, and as the same class of troops were fighting with the same weapons on either side the issue was for some time doubtful. As the action proceeded the tyrant's troops proved superior owing to their numbers, and moreover Philopoemen had instructed his officers to offer only a slight resistance and then pretend to flee and so draw the enemy on to the spot where his ambush was set. As the enemy became disordered in the pursuit, a great many were killed and wounded before they caught sight of their hidden foe. The caetrati were crouching in the best formation that the narrow space admitted of, and the intervals between their companies allowed their own fugitives to pass through. Then they sprang up fresh and vigorous, in perfect order, to attack an enemy who, scattered in disorderly pursuit, were also exhausted by the strain of fighting and the wounds which many of them had received. The result was decisive, the soldiers of the tyrant turned and fled at a

much greater speed than when they were the pursuers, and were driven into their camp. Many were killed or made prisoners in the flight, and the camp itself would have been in great danger had not Philopoemen sounded the "retire." He feared the broken ground, so dangerous to any who advanced without caution, more than he feared the enemy. From his knowledge of the tyrant's character Philopoemen guessed what a state of alarm he would be in after this battle and sent one of his men to him in the guise of a deserter. This man told him that he had found out that the Achaeans intended to advance the following day to the Eurotas - this river almost washes the walls of Lacedaemon - in order to intercept him and prevent him from withdrawing into the city and also stop supplies from being conveyed from the city to the camp. They also, he told him, were going to try and create a rising against him amongst the citizens. Though the deserter's story was not fully accepted it afforded the tyrant, now thoroughly frightened, a plausible excuse for quitting his present position. He gave Pythagoras instructions to remain the next day on guard before the camp with the cavalry and auxiliaries whilst he himself, with the main strength of his army, marched out as though for action and gave the standard-bearers orders to quicken their pace and make for the city.

[35.30]When Philopoemen saw them moving hurriedly along a steep and narrow road he sent his Cretan auxiliaries and the whole of his cavalry against the force which was guarding the camp. Seeing the enemy approaching, and finding that the main army had left them to themselves, they tried to retire into their camp, but as the entire Achaean army was advancing in battle order they dreaded lest they should be captured with their camp, and accordingly started after their main body which was some distance ahead. The Achaean caetrati at once attacked and plundered the camp, whilst the rest of the army went off in pursuit of the enemy. The route they had taken was such that even if there had been no enemy to be feared, their column could only have got through with great difficulty, but now, when the rearmost ranks were being assailed and cries of terror penetrated to the head of the column, it was every man for himself; they flung away their arms and fled into the forest which skirted the road on both sides. In an instant the road was blocked with heaps of weapons, mostly spears, which, falling with their heads towards the enemy, formed a kind of stockade across the road. Philopoemen

ordered the auxiliaries to press the pursuit as much as possible, since flight would be a difficult matter, for cavalry at all events. The heavy infantry he led in person by a more open road to the Eurotas. Here he encamped just before sunset and waited for the light troops whom he had left in pursuit of the enemy. They came in at the first watch with the news that the tyrant had entered the city with a small body of troops; the rest of his army were without arms, scattered in the forest. He told them to take food and rest. The rest of the army, having come earlier into camp, had already done so and were now refreshed after a short sleep. Selecting some of their number and telling them to take nothing but their swords, he posted them on two of the roads which led from the city, one to Pharae and the other to Barnosthenes, as he expected that the fugitives would return by these roads. His expectation was justified, for the Lacedaemonians as long as daylight remained went along the sequestered tracks in the heart of the forest, but when it grew dusk and they caught sight of the lights in the enemy's camp they kept out of sight on hidden paths. After they had got past it, and thought all was safe, they came out into the open road. Here they were caught by the enemy who were waiting for them, and so numerous were the prisoners and the slain in all directions that hardly a quarter of their whole army escaped. Now that Philopoemen had shut the tyrant up in his city he spent nearly a month in devastating the Lacedaemonian fields, and after thus weakening and almost shattering the tyrant's power he returned home. The Achaeans in view of his brilliant success put him on a par with the Roman general, and considered him as his superior so far as the Laconian war was concerned.

[35.31].While this war between the Achaeans and the tyrant was going on the Roman envoys were visiting the cities of their allies, for they felt some apprehension lest the Aetolians might have induced some of them to go over to Antiochus. They did not trouble themselves much about the Achaeans; as they were in declared hostility to Nabis it was thought that they might be depended upon throughout. Athens was the first place they visited, from there they proceeded to Chalcis, and thence to Thessaly, where they addressed a largely attended council of the Thessalians. They then went on to Demetrias, where a council of the Magnetes was assembled. Here they had to be careful as to what they said, for some of the leading men were in opposition to Rome and gave wholehearted support to

Antiochus and the Aetolians. Their attitude was due to the fact that when it was learnt that Philip's son, who had been detained as a hostage, was released and the tribute imposed upon him remitted, it was stated, amongst other false rumours, that the Romans intended to restore Demetrias to him also. Rather than let that happen Eurylochus, the president of the Magnetes, and some of his party were anxious that the arrival of Antiochus and the Aetolians should bring about a complete change of policy. In meeting this hostile spirit the Roman envoys had to be on their guard lest while removing this groundless suspicion they should so far destroy Philip's hopes as to make an enemy of a man who was for every reason of more importance to them than the Magnetes were. The envoys confined themselves to pointing out that the whole of Greece was under obligations to Rome for the boon of liberty, Magnesia so especially. Not only had a Macedonian garrison been stationed there, but Philip had built a palace there so that they were forced to have their lord and master always before their eyes. But all that Rome had done for them would be useless if the Aetolians brought Antiochus into that palace and they had to have a new unknown king in place of one whom they had known and had experience of.

Their supreme magistrate was called "Magnetarch," and Eurylochus was holding that office at the time. Feeling secure in the power which his office gave him, he said that he and the Magnetes could not be silent about the report which was widely current that Demetrias was to be given back to Philip. To prevent this the Magnetes were prepared to make every effort and face every danger. Carried away by excitement he threw out the ill-advised remark that even then Demetrias was only free in appearance, in reality everything was at the nod and beck of Rome. These words were received with murmurs and protests; some in the assembly approved, but others were filled with indignation at his having dared to speak in that way. As for Quinctius, he was so angry that he lifted up his hands towards heaven and called upon the gods to witness the ingratitude and perfidy of the Magnetes. This exclamation created universal alarm and Zeno, one of their leading men, who had gained great influence amongst them, partly by the refinement which characterised his private life and partly because he had always been a staunch friend to Rome, implored Quinctius and other envoys not to make the whole city responsible for one man's madness; it was at his own risk that anyone behaved

like a madman. The Magnetes were indebted to Titus Quinctius and the Roman people for more than their liberty - for everything, in fact, which men hold dear and sacred; there was nothing which a man could ask the gods to give him that they had not received from them. They would sooner lay frenzied hands upon themselves than violate their friendship with Rome.

[35.32].His speech was followed by urgent entreaties from the whole assembly. Eurylochus left hurriedly, and making his way secretly to the city gate fled to Aetolia, for the Aetolians were now throwing off the mask more and more every day from their hostile intentions. Thoas, the foremost man amongst them, happened to return from his mission to Antiochus just at this time, bringing with him an envoy from the king in the person of Menippus. Before the meeting of the national council these two men had filled all ears with descriptions of the land and sea forces which Antiochus had collected. They declared that a great host of infantry and cavalry were on their way, elephants had been brought from India and - what they thought would most of all impress the popular mind - he was bringing gold enough to buy up the Romans themselves. It was obvious what effect this sort of talk would have on the council, for their arrival and all their proceedings were duly reported to the Roman envoy. Although events had almost taken a decisive turn, Quinctius thought it might not be altogether useless if some representatives of the friendly cities attended the council who would have the courage to speak frankly in reply to the king's envoy and remind the Aetolians of their treaty engagements with Rome. The Athenians seemed best fitted for the task on account of the prestige which their city enjoyed and also because of their old alliance with the Aetolians. Quinctius therefore requested them to send delegates to the Pan-Aetolian Council.

Thoas opened the proceedings by giving a report of his negotiations. He was followed by Menippus, who asserted that the best thing for all the peoples of Greece and Asia would have been for Antiochus to have intervened whilst Philip's power was still unimpaired, everyone would then have kept what belonged to him, and everything would not have been completely at the mercy of Rome. "Even now," he continued, "if only you resolutely carry out the designs you have formed, he will be able with the help of the gods and the assistance of the Aetolians to restore the fortunes of Greece, drooping though they are, to their old place in the world. That, however, must rest on

liberty, and a liberty which stands in its own strength and is not dependent on the will of another." The Athenians, who had received permission to speak their minds after the king's delegate, made no allusion to the king, but simply reminded the Aetolians of their alliance with Rome and the services which T. Quinctius had rendered to the whole of Greece. They warned them against wrecking that friendship by hasty and precipitate action; bold and hot-headed counsels were attractive at first sight, difficult to put into practice, disastrous in their results. The Roman envoys and Quinctius himself were not far away, it would be better to discuss the question at issue in friendly debate than to throw Europe and Asia into a deadly struggle of arms.

[35.33]The great mass of the assembly, eager for a change of policy, were wholly on the side of Antiochus and were even opposed to admitting the Romans into the council. Mainly, however, through the influence of the elders amongst their leading men, it was decided that a meeting of the council should be summoned to hear them. When the Athenians returned and reported this decision Quinctius felt that he ought to go to Aetolia, as he might do something to change their purpose, if not the whole world would see that the responsibility for the war rested solely on the Aetolians and that Rome was taking up arms in a just and necessary cause. Quinctius began his address to the council by tracing the history of the league between the Aetolians and Rome and pointing out how frequently they had infringed its provisions. He then dealt briefly with the rights of the cities which were the subject of controversy and showed how much better it would be, if they thought they had a fair case, to send a deputation to Rome to argue their cause or bring it before the senate, whichever they preferred, instead of a war between Rome and Antiochus at the instigation of the Aetolians, a war which would create a world-wide disturbance and utterly ruin Greece. None would feel the fatal result of such a war sooner than those who set it in motion. The Roman was a true prophet, but he spoke in vain. Without allowing time for deliberation by adjourning the council or even waiting for the Romans to retire, Thoas and the rest of his supporters got a decree passed amidst the cheers of the assembly for inviting Antiochus to give liberty to Greece and arbitrate between the Romans and the Aetolians. The insolence of this decree was aggravated by the personal effrontery of Damocritus their chief magistrate. When

Quinctius asked him for a copy of the decree, Damocritus, without the slightest regard for his official position, told him that a more pressing matter demanded his immediate attention, he would shortly give him his reply and the decree from his camps in Italy on the banks of the Tiber. Such was the madness which at that time possessed the Aetolians and their magistrates.

[35.34]Quinctius and the other legates returned to Corinth. The Aetolians, who were continually receiving intelligence about Antiochus' movements, wished to make it appear that they were doing nothing themselves and simply waiting for his arrival; consequently they did not hold a council of the whole league after the Romans had left. Through their "Apokleti," however - the designation they give to their inner council - they were discussing the best means of effecting a revolution in Greece. It was everywhere understood that the leading men and the aristocracy in the various States were partisans of Rome and perfectly contented with things as they were, whilst the mass of the populations and all whose circumstances were not what they wished them to be were eager for change. On the day of their meeting the Aetolians decided upon a project alike audacious and impudent, namely the occupation of Demetrias, Chalcis and Lacedaemon. One of their leaders was sent to each of these cities: Thoas went to Chalcis, Alexamenus to Lacedaemon, Diocles to Demetrias. Eurylochus, whose flight and the reason for it have been already described, came to the assistance of Diocles, as in no other way did he see any prospect of returning home. He wrote to his friends and relatives and the members of his party, and they brought his wife and children dressed in mourning and carrying suppliant emblems into the assembly, which was crowded. They appealed to those present individually and implored the assembly as a whole not to allow a man innocent and uncondemned to waste his life in exile. The simple and unsuspecting were moved by pity, the evil-minded and seditious by the prospect of profiting by the confusion which the Aetolian agitation would cause. Everyone voted for his recall. This preparatory step having been taken, Diocles, who was at that time in command of the cavalry, started with the whole of his force, ostensibly to escort the exile home. He covered an immense distance, marching through the day and the night, and when he was six miles from the city he went on in advance at daybreak with three picked troops, the rest being under

orders to follow. As they approached the gate he bade his men dismount and lead their horses as though they were accompanying their commander on his journey instead of acting as a military force. Leaving one troop at the gate to prevent the cavalry who were coming up from being shut out, he took Eurylochus, holding him by the hand, through the heart of the city and the forum to his house amidst the congratulations of many who came to meet them. In a short time the city was filled with cavalry - and the commanding positions were seized. Then parties were told off to go to the houses of the leaders of the opposition and put them to death. In this way Demetrias was gained by the Aetolians.

[35.35]Against the city of Lacedaemon no force was to be employed. The tyrant was to be caught by treachery. After being despoiled of his maritime towns by the Romans and now actually shut up within his walls by the Achaeans, it was taken for granted that whoever was the first to kill him would win the gratitude of the Lacedaemonians. The Aetolians had a good excuse for sending to him, for he had been insistently demanding that help should be sent to him by those at whose instigation he had recommenced war. Alexamenus was supplied with 1000 infantry and 30 men selected from the cavalry. These latter had been solemnly warned by Damocritus in the Inner Council, which is described above, not to suppose that they were sent to fight against the Achaeans or for any purpose which they might fix upon in their own minds. Whatever plan circumstances might compel Alexamenus suddenly to adopt, that plan, however unexpected, hazardous or daring it might be, they must be prepared to execute with unquestioning obedience, and they must so regard it as though it were the only object which they had been sent from home to accomplish. With these men thus primed Alexamenus went to the tyrant, and his visit at once filled him with hope. He told him that Antiochus had already landed in Europe and would soon be in Greece, he would cover sea and land with arms and men; the Romans would find out that it was not with Philip that they had to deal; the numbers of his infantry and cavalry and ships could not be counted; the mere sight of the line of elephants would bring the war to a close. He assured him that the Aetolians were prepared to go to Lacedaemon with the whole of their army when circumstances demanded, but they wanted Antiochus to see a considerable body of their troops on his arrival. He also advised Nabis to be careful not to

let the troops which he still had become enervated through idleness and an indoor life; he should take them out and by exercising them under arms make them keener and hardier; the toil and exertion would become lighter by practice, and their commander could make it far from distasteful by his geniality and kindness.

From that time they were frequently marched out to the plain stretching from the city to the Eurotas. The tyrant's bodyguard were usually in the centre of the line; he himself with three horsemen at the most, of whom Alexamenus was generally one, rode along the front of the standards to inspect the wings. On the right were the Aetolians, including the auxiliaries and the thousand who had come with Alexamenus. Alexamenus had made a practice of accompanying the tyrant during his inspection through a few of the ranks, making such suggestions as seemed called for, and then riding up to the Aetolians on the right and giving them the necessary instructions, after which he returned to the side of the tyrant. But on the day which he had fixed for carrying out his deadly project he only accompanied the tyrant for a short time, and then withdrawing to his own men addressed the thirty picked troopers in these terms: "Young men, you have to dare and do the deed which you are under orders to carry out at my bidding. Be ready with heart and hand, and let no one falter at what he sees me doing; whoever hesitates and crosses my purpose with his own may be sure that there is no return home for him." Horror seized them all; they remembered the instructions with which they had come. The tyrant was riding up from his left wing, Alexamenus ordered them to level their lances and watch him; even he himself had to collect his thoughts, bewildered as he was at the contemplation of such a desperate deed. When the tyrant came near he made an attack upon him and speared his horse. The tyrant was flung off, and whilst he lay on the ground the troopers thrust at him with their lances. Many of their thrusts were warded off by his cuirass, but at last they reached his body, and he expired before he could be rescued by his bodyguard.

[35.36]Alexamenus went off with all the Aetolians at the double to take possession of the palace. Whilst the assassination was going on before their eyes they were too frightened to move; when they saw the Aetolian contingent hurrying away they ran to the abandoned body of the tyrant, but instead of bodyguards and avengers of his death, they were merely a crowd of spectators. In fact, not a single

man would have offered any resistance had Alexamenus, laying aside his arms, called the whole army to attention and made an address such as the situation required, keeping a considerable body of Aetolians under arms and injuring no one. But what ought to happen in every act begun by treachery happened here; the affair was so managed as to hasten the destruction of all the actors in it. The general, shutting himself up in the palace, spent a whole day and night in examining the royal treasures, the Aetolians took to looting as though they had captured the city of which they wished to appear as the liberators. The indignation this aroused and a feeling of contempt for the scanty number of Aetolians gave the Lacedaemonians courage to unite together. Some advised that the Aetolians should be driven out and the liberty snatched from them just when it seemed to be restored, asserted and made secure. Others thought that one of the royal blood should be chosen as the ostensible head of the movement. There was a scion of the old royal house called Laconicus who had been brought up with the tyrant's children; they put him on horseback, and seizing their arms slew the Aetolians who were strolling about the city. Then they forced their way into the palace and killed Alexamenus, who with a few of his men offered an ineffectual resistance. Some of the Aetolians had collected together at the Chalcioecon - a bronze temple of Minerva - and were all killed. A few flung away their arms and fled to Tegea and Megalopolis. Here they were arrested by the magistrates and sold as slaves.

[35.37]On hearing of the tyrant's death Philopoemen went to Lacedaemon, where he found universal panic and confusion. He invited the principal men to meet him, and after addressing them as Alexamenus ought to have done, incorporated the city in the Achaean league. This was rendered all the easier by the fact that just at that time A. Atilius arrived at Gytheum with four-and-twenty quinqueremes. Thoas was far from meeting with the same success at Chalcis as was achieved at Demetrias through the agency of Eurylochus. He had enlisted the services of two men - Euthymidas, one of the leading men in Chalcis who had been expelled through the influence of the Roman party, strengthened by the visit of T. Quinctius and the fleet, and Herodorus, a trader from Chios whose wealth gave him considerable weight in the city. Through their instrumentality Thoas had arranged with the adherents of Euthymidas to betray the city into his hands. Euthymidas had taken

up his residence at Athens, from there he went to Thebes, and then on to Salganeus. Herodorus went to Thronium. Not far from this place Thoas had a force of 2000 infantry and 200 cavalry, as well as thirty light transports in the Maliac Gulf. Herodorus was to take these vessels with a complement of 600 infantry to the island of Atalanta with the object of sailing across to Chalcis as soon as he learnt that the land force was nearing Aulis and the Euripus. Thoas himself marched with this force as rapidly as possible, mostly by night, to Chalcis.

[35.38]After the expulsion of Euthymidas the chief command was vested in Micynthio and Xenoclide. Either suspecting what was going on or having received information about it, they were at first in a state of panic and thought that their only safety lay in flight, but when their fears subsided and they saw that they would be deserting not only their city but their alliance with Rome, they thought out the following plan of operations. It so happened that the annual festival of Diana of Amarynthi was being held at the time in Eretria, and this festival was attended not only by the natives but also by the people of Carystus. A deputation was sent from Chalcis to beg the Eretrians and the Carystians to take compassion on those who were born in the same island as themselves, to remember their alliance with Rome, and not to allow Chalcis to pass into the hands of the Aetolians. If they held Chalcis they would hold Euboea; the Macedonians had been harsh masters, the Aetolians would be much more insupportable. The two cities were influenced mainly by their respect for the Romans, whose courage in the late war as well as their justice and considerateness they had had practical experience of. Each city accordingly armed and despatched all their fighting men. The Chalcidians left the defence of their walls to them, and crossing the Euripus with their entire force fixed their camp at Salganeus. From there they sent first a herald and then delegates to the Aetolians to inquire what they had done or said that their allies and friends should come to attack them. Thoas, who was in command, replied that they were come not to attack them but to deliver them from the Romans. "You are fettered," he said, "with more glittering but also with heavier chains than when you had a Macedonian garrison in your citadel." The Chalcidians declared that they were not in bondage to any man, nor did they need any man's protection. They then left the conference and returned to their camp. Thoas and the Aetolians had placed all

their hopes on taking the enemy by surprise, and as they were unequal to a sustained conflict and the siege of a city powerfully protected both by land and sea they returned home. When Euthymidas heard that his countrymen were encamped at Salganeus and that the Aetolians had gone away he returned to Athens. Herodorus after anxiously awaiting the signal from Atalanta sent a despatch-boat to find out the cause of the delay, and when he learnt that his associates had abandoned their enterprise he went back to Thronium.

[35.39]On hearing what had happened Quintius on his way from Corinth met Eumenes on the Euripus off Chalcis, and it was arranged that Eumenes should leave 500 troops to protect Chalcis and go on to Athens. Quintius went on as he had started in the direction of Demetrias, and judging that the liberation of Chalcis would do much towards inducing the Magnetes to resume friendly relations with Rome, he wrote to Eunomus, the chief magistrate of the Thessalians, asking him to put his fighting men on a war footing as a support to the party of his adherents. At the same time he sent Villius to sound the feeling of the populace, but not to attempt anything more unless there were a large number who were inclined to restore the old friendly relations. He went in a quinquere, and had reached the harbour mouth when he found that the whole population had poured out to see him. Villius asked them whether they preferred that he should come to them as friends or as enemies. Eurylochos, their chief magistrate, told him that he had come to friends, but he must keep away from the harbour and allow the Magnetes to live in harmony and liberty and not seduce the populace under cover of a political discussion. This started a hot dispute, not a conference, as the Roman envoy bitterly reproached the Magnetes for their ingratitude and predicted the disasters which would quickly overtake them, whilst the townsmen shouted out in reply angry aspersions on the conduct of the senate and Quintius. Foiled in his attempt Villius returned to Quintius, who sent off a message to the praetor to disband his forces and then returned to Corinth.

[35.40]The affairs of Greece, involved as they were with those of Rome, have carried me, so to speak, out of my course, not because they were worth narrating in themselves, but because they brought about the war with Antiochus. After the consular elections - for that was the point at which I digressed - the new consuls, L. Quintius and Cn. Domitius, left for their provinces, Quintius for Liguria and

Domitius for the country of the Boii. The Boii remained quiet, and even their senate with their children and the cavalry commanders with their men, 1500 in all, made a formal surrender to the consul. The other consul devastated the Ligurian country far and wide, captured several of their fortified posts and took from them not only prisoners and booty, but also many of his fellow-citizens and members of the friendly States who had been in the hands of the enemy. During the year the senate and people authorised the formation of a military colony at Vibo; 3700 infantry and 300 cavalry were sent there. The supervisors of the settlement were Q. Naevius, M. Minucius and M. Furius Crassipes. Fifteen jugera were allotted to each infantryman and double the number to the cavalry. The land had previously belonged to the Bruttii, who had taken it from the Greeks. During this time two alarming incidents occurred in Rome, one lasted longer than the other, but was less destructive. There were earth tremors which went on for thirty-eight days, and during the whole of the time business was suspended amidst general anxiety and alarm. Intercessions were offered up for three successive days to avert the peril. The other was no groundless alarm, it was a widespread disaster. A fire broke out in the Forum Boarium; for a day and a night the buildings fronting the Tiber were blazing and all the shops with their valuable stocks were burnt out.

[35.41]The year was now almost at an end and the rumours of hostile preparations on the part of Antiochus and the anxiety these caused to the senate became graver day by day. The discussion as to the assignment of provinces to the new magistrates resulted in the senate decreeing that one of the consular provinces should be Italy and the other wherever the senate should decide, for it was already generally understood that there would be war with Antiochus. The one to whom this latter field of operations would be allotted was to be furnished with 4000 Roman and 6000 allied infantry, together with 300 Roman and 400 allied cavalry. L. Quinctius was instructed to raise this force so that there might be no delay in the new consul proceeding at once wherever the senate should think it necessary. A similar decree was made in the case of the praetors-elect. The first balloting was for the two departments of civic and alien jurisdiction; the second for Bruttium; the third for the command of the fleet, which was to be sent wherever the senate should determine; the fourth for Sicily; the fifth for Sardinia, and the sixth for Further

Spain. L. Quinctius was also commanded to raise two new Roman legions and an allied contingent of 20,000 infantry and 800 cavalry. That army was decreed to the praetor who should draw Bruttium as his province. Two temples were dedicated this year to Jupiter. One had been vowed by L. Furius Purpureo, when praetor, in the war against the Gauls; the other by the consul. The dedication was performed by one of the decemviri, Q. Marcius Ralla. Many severe sentences were passed this year on moneylenders, the curule aediles M. Tuccius and P. Junius Brutus acting as prosecutors. From the proceeds of the fines inflicted on them gilded four-horse chariots were placed in the temple on the Capitol and twelve gilded shields on the pediment of the chapel of Jupiter. The same aediles constructed a colonnade outside the Porta Trigemina in the Carpenters' Quarter.

[35.42]Whilst the Romans were devoting attention to preparations for a fresh war, Antiochus for his part was by no means idle. He was, however, detained in Asia by three cities, Smyrna, Alexandria Troas and Lampsacus, none of which he had been able to become master of either by force or by persuasion, and he did not wish to leave them in his rear during his invasion of Europe. A further cause of delay was his uncertainty about Hannibal. The undecked ships with which he had intended to send Hannibal to Africa were not ready, and then the question was raised, mainly by Thoas, whether he ought to be sent at all. Thoas asserted that the whole of Greece was in a state of unrest and that Demetrias had passed into his hands. The lies about the king and the wild exaggerations as to the forces which Antiochus possessed with which he had excited many minds in Greece he now employed to feed the king's hopes. He told him that all were praying for him to come; there would be a universal rush to the shore from which they had caught the first glimpse of the royal fleet. He actually ventured to disturb the judgment which the king had now without a shadow of doubt formed of Hannibal and gave it as his opinion that no ships ought to be detached from the king's fleet, or if any were sent Hannibal was the very last person who ought to be in command of them. He was a banished man and a Carthaginian to whom his fortunes or his imagination suggested a thousand fresh prospects every day. Then, again, the military reputation which led to Hannibal's being sought after like a woman with a rich dowry was too great for any who was only officer in the king's service; the king ought to be the central figure, the sole leader the sole commander. If

Hannibal were to lose a fleet or an army the loss would be just as great as if they were lost under any other leader, but if any success were gained the glory of it would go to Hannibal and not to Antiochus. Supposing that they were fortunate enough to inflict a decisive defeat on the Romans and win the war, how could they hope that Hannibal would live quietly under a monarch, under one man's rule, after he had been unable to bear the restraints imposed by the laws of his own country? His youthful aspirations and his hopes of winning world-wide dominion had not fitted him to endure a master in his old age. There was no necessity for the king to give Hannibal a command, he might find him employment as a member of his suite and an adviser on matters concerning the war. A moderate demand upon such abilities as his would be neither dangerous nor useless; but if the highest services he could render were called for, they would prove too burdensome both for him who rendered them and him who accepted them. Such were the arguments which Thoas used.

[35.43]No characters are so prone to jealousy as those whose birth and fortune are not on a level with their intelligence, for they hate virtue and goodness in others. The plan of sending Hannibal to Africa, the one useful plan which had been thought out at the beginning of the war, was promptly set aside. Encouraged by the defection of Demetrias, Antiochus determined to postpone no longer his advance into Greece. Before setting sail he went up to Ilium to offer sacrifices to Minerva. He then rejoined his fleet and started on his expedition with 40 decked ships and 60 undecked ones, and these were followed by 200 transports laden with supplies and military stores of every description. He first touched at the island of Imbros and from there crossed the Aegean to Sciathus. After the ships which had lost their course during the voyage had rejoined him, he sailed on to Pteleum, the first point on the mainland. Here he was met by Eurylochus and the Magnetan leaders from Demetrias, and the sight of so many supporters put him in excellent spirits. The following day he entered the harbour of Demetrias and disembarked his force at a spot not far from the city. His total strength consisted of 10,000 infantry, 500 cavalry and six elephants, a force hardly sufficient for the occupation of Greece, even if there were no troops there, to say nothing of maintaining a war against Rome. When the Aetolians received intelligence that Antiochus was at Demetrias they at once convened a council and passed a resolution inviting him to

attend. As the king knew that this resolution would be passed he had already left Demetrias and advanced to Phalara on the Maliac Gulf. After being supplied with a copy of the resolution he went on to Lamia, where he received an enthusiastic welcome from the populace, who showed their delight by loud cheers and other manifestations by which the common crowd express their extravagant joy.

[35.44]When he entered the council it was with difficulty that the president, Phaeneas, and the other leaders obtained silence in order that the king might speak. He began by apologising for having come with forces so much smaller than everyone had hoped and expected. This ought to be taken, he said, as the greatest proof of his friendship and devotion towards them, for though he was quite unprepared and the season was unsuitable for a sea-passage he had unhesitatingly complied with the request of their delegates, convinced as he was that when the Aetolians saw him amongst them they would realise that, even had he come alone, it was in him that their safety and protection lay. At the same time, he was going to fulfil to the utmost the hopes of those whose expectations seemed for the moment to be disappointed. As soon as ever the season of the year made navigation safe he should fill the whole of Greece with arms and men and horses and encircle its coasts with his fleets; he would shrink from no toil or danger till he had delivered Greece from the yoke of Roman dominion and made Aetolia her foremost State. Supplies of every description would accompany his armies from Asia; for the time being it must be the care of the Aetolians to furnish his troops with an abundant supply of corn and other provisions at a reasonable price.

[35.45]After this speech, which met with unanimous approval, the king left the council. An animated discussion then arose between the two Aetolian leaders, Phaeneas and Thoas. Phaeneas argued that as their leader in war Antiochus would not be so useful to them as he would be were he to act as peace-maker and as an umpire to whom their differences with Rome might be referred for decision. His presence amongst them and his regal dignity would do more to win the respect of the Romans than his arms. Many men, to avoid the necessity of war, will make concessions which could not be extorted from them by war and armed force. Thoas, on the other hand, asserted that Phaeneas was not really anxious for peace; he only

wanted to hinder their preparations for war so that the king, tired of delays, might relax his efforts and the Romans gain time for completing their own preparations. Notwithstanding all the deputations which had been despatched to Rome and all the personal discussions with Quintius, they had learnt by experience that no equitable terms could be procured from Rome, nor would they have sought help from Antiochus had not all their hopes been dashed to the ground. Now that he had presented himself sooner than anyone expected they must not slacken their purpose, rather must they beg the king, as he had come as the champion of Greece, which was the main thing, to summon all his military and naval forces. A king in arms would gain something, a king without arms would not have the slightest weight with Romans, either as acting on behalf of the Aetolians or even defending his own interests. These arguments carried the day and they decided to appoint the king as their commander-in-chief with absolute powers, and thirty of their leading men were selected to act as an advisory council on any matter on which he might wish to consult them.

[35.46] On the break-up of the council the members dispersed to their respective cities. The next day the king consulted the council as to where operations should commence. It was thought best to begin with Chalcis, where the Aetolians had recently made their futile attempt, and where they considered success would depend on quick action more than on serious preparations or sustained effort. The king accordingly, with a force of 1000 infantry which had come up from Demetrias, marched through Phocis, and the Aetolian leaders, who had called out a few of their fighting men, taking a different route, assembled at Chaeronea and followed him in ten ships of war. Fixing his camp at Salganeus he crossed the Euripus with the Aetolians, and when he was within a short distance from the harbour the magistrates and leading men of Chalcis came forward in front of their gate. A small party from each side met to confer. The Aetolians did their utmost to persuade the Chalcidians to receive the king as an ally and friend without disturbing their friendly relations with Rome. They said that he had sailed across to Europe not to levy war but to liberate Greece, not with empty professions as the Romans had done, but to make her really free. Nothing could be more advantageous for the States of Greece than to enter into friendly relations with both parties, for then they would be secure against ill-treatment from

either side through the protection which the other would be pledged to afford. If they refused to receive the king, let them consider what they would at once have to go through, with the Romans too far away to help and Antiochus, whom they were powerless to resist, before their gates as an enemy. Micythio, one of the Achaean leaders, said in reply that he was wondering who the people were that Antiochus had left his kingdom and come across to Europe to liberate. He knew of no city in Greece which held a Roman garrison or paid tribute to Rome or had to submit against its will to conditions imposed by a one-sided treaty. The Chalcidians needed no one to vindicate their liberty, for they were a free State; nor did they require protection, for it was owing to this same Roman people that they were in the enjoyment of peace and liberty. They did not reject the proffered friendship of the king nor even of the Aetolians, but the first proof of friendship would be their departure from the island, for as far as they themselves were concerned it was quite certain that they would not admit them within their walls or even enter into any alliance with them without the authority of the Roman Government.

[35.47]The king had remained on board, and when this was reported to him he decided for the present to return to Demetrias as he had not brought sufficient troops to effect anything by force. As his first attempt had proved a complete failure he consulted the Aetolians as to what the next step should be. They decided to try what could be done with the Boeotians, the Achaeans and the Athamanian king, Amynder. They were under the impression that the Boeotians had been estranged from Rome ever since the death of Brachylles and the results which flowed from it, and they also believed that Philopoemen, the chief magistrate of the Achaeans, was an object of dislike and jealousy on the part of Quinctius owing to the reputation he had gained in the Laconian war. Amynder had married Apama, the daughter of a certain Alexander of Megalopolis, who represented himself as being descended from Alexander the Great and had given his three children the names of Philip, Alexander and Apama. Her marriage with the king had made Apama much talked about and her elder brother Philip had followed her to Athamania. He was a weak and conceited young man, and Antiochus and the Aetolians had persuaded him that if he brought Amynder and the Athamanians over to the side of Antiochus he might hope to succeed to the throne of Macedon, as he really belonged to the royal stock. These empty

promises carried weight not only with Philip but even with Amynander.

[35.48]The Aetolian agents who had been sent to Achaia were received in audience at a council held at Aegium. Antiochus' envoy spoke first. Like most men who are fed by royal bounty, he talked in a grandiloquent strain and filled sea and land with the empty sound of his words. According to him, an innumerable mass of cavalry was crossing the Hellespont into Europe; some were clad in coats of mail, they were called "cataphracti"; others were bowmen, and against them nothing was safe, their aim was surest when they were galloping away from the enemy. Although this cavalry force alone could overwhelm the massed armies of Europe, he went on to talk about bodies of infantry many times as numerous and startled his hearers with names they had hardly ever heard of - Dahae, Medes, Elymaeans and Cadusii. The naval forces were such as no harbours in Greece could hold; the right division was formed by the Sidonians and Tyrians; the left by the Aradii and Sidetae from Pamphylia, nations which were unequalled in the whole world as skilful and intrepid seamen. It was unnecessary, he continued, to refer to the money and other provision for war, his hearers themselves knew how the realms of Asia had always overflowed with gold. So the Romans would not have to do with a Philip or a Hannibal, the one only the foremost man in a single city, the other confined to the limits of his Macedonian kingdom, but with the Great King who ruled over the whole of Asia and a part of Europe. And yet, coming as he did from the remotest borders of the East to liberate Greece, he asked for nothing from the Achaeans which could impair their loyalty to Rome, their old friend and ally. He did not ask them to take up arms with him against them, all he wanted was that they should stand aloof from both sides. "Let your one wish and desire," he concluded, "as becomes common friends, be that each may enjoy peace; if there is to be war do not become involved in it." Archidamus, who represented the Aetolians, spoke to the same effect and urged them to maintain a passive attitude as the easiest and safest course, and, whilst watching the war as mere onlookers, wait for its final result upon the fortunes of others without in any way hazarding their own. Then his tongue ran away with him and he broke out into unrestrained abuse of the Romans in general and in particular of Quinctius, reproaching them with ingratitude and asserting that it was

through the valour of the Aetolians that they secured not only the victory over Pyrrhus, but even their own safety, for it was the Aetolians who saved Quinctius and his army from destruction. "What duty," he exclaimed, "incumbent on a commander has that man ever discharged? I saw him, while the battle was going on, busy with auspices, offerings and vows like some miserable priest, while I was exposing myself to the enemy's weapons in his defence."

[35.49]Quinctius replied: "Archidamus had in his mind those in whose presence rather than those to whose ears he was addressing his remarks, for you Achaeans know perfectly well that all the warlike spirit of the Aetolians lies in words not in deeds, and shows itself in haranguing councils more than on the battlefield. So they are indifferent to the opinion which the Achaeans have of them, because they are aware that they are thoroughly known to them. It is for the king's representatives, and through them for the king himself, that he has uttered this bombast. If anyone did not know before what it was that led Antiochus to make common cause with the Aetolians, it came out clearly in their delegate's speech. By lying to one another and boasting of forces which neither of them possess they have filled each other with vain hopes. These say that it was through them that Philip was defeated and by their courage that the Romans were protected, and as you heard just now, they talk as though you and all other cities and nations were going to follow their lead. The king, on the other hand, vaunts of his clouds of infantry and cavalry and covers all the seas with his fleets. It is very like something that happened when we were at supper with my host in Chalcis, a worthy man and one who knows how to feed his guests. It was at the height of summer; we were being sumptuously entertained, and were wondering how he managed to get such an abundance and variety of game at that season of the year. The man, not a boaster like these people, smiled and said, 'That variety of what looks like wild game is due to the condiments and dressing, it has all been made out of a home-bred pig.' This might be fitly said of the king's forces which were just now so extolled. All that variety of equipment and the crowd of names no one ever heard of - Dahae, Medes, Cadusians and Elymaeans - are nothing but Syrians, whose servile, cringing temper makes them much more like a breed of slaves than a nation of soldiers. I wish I could bring before your eyes, Achaeans, the flying visits which the 'Great King' paid to the national council of the

Aetolians at Lamia and afterwards to Chalcis. You would see what looked like two badly depleted legions in the king's camp; you would see the king almost on his knees begging corn from the Aetolians and trying to raise a loan from which to pay his men, and then standing at the gates of Chalcis, and on finding himself shut out from there returning to Aetolia having gained nothing but a glimpse of Aulis and the Euripus. The king's confidence in the Aetolians is misplaced, so is theirs in his empty professions. You must not, therefore, let yourselves be deceived; trust rather in the good faith of Rome, of which you have had actual experience. As to their saying that the best course for you is to have nothing to do with the war, nothing on the contrary could be further from your interests, for then, winning neither gratitude nor respect, you would fall as a prize to the victor."

[35.50]It was felt that his reply to both parties was to the point, and his speech easily won the approbation of the council. There was no debate and no hesitation in coming to a unanimous decision that the Achaeans would count as their friends or foes those whom the Romans considered such, and would also declare war on Antiochus and the Aetolians. On the instruction of Quirinus they at once despatched a contingent of 500 men to Chalcis and an equal number to the Piraeus. At Athens matters were fast approaching a state of civil war through the action of certain individuals who by holding out the prospect of bribes were drawing the mob, who can always be bought by gold, over to Antiochus. The supporters of Rome sent to Quirinus asking him to go to Athens, and Apollodorus, the ringleader of the movement, was tried at the instance of a man called Leontes, found guilty and sent into banishment. The delegates returned to the king with an unfavourable reply from the Achaeans; the Boeotians gave no definite answer. They simply promised that when Antiochus appeared in Boeotia they would deliberate as to what action they should take. When Antiochus heard that the Aetolians and Eumenes had each sent reinforcements to Chalcis he saw that he must act promptly and be the first to enter the place and if possible intercept the enemy on their advance. He sent Menippus with about 3000 men and Polyxenidas with the whole of the fleet, and a few days later marched thither in person with 6000 of his own men and a smaller body of Aetolians, taken from such force as could be hastily concentrated at Lamia. The 500 Achaeans and the small contingent supplied by Eumenes under Xenoclide of Chalcis crossed the

Euripus, as the route was still open, and reached Chalcis. The Roman troops, who were about 500 strong, came after Menippus had encamped before Sanganeus at the Hermaeum, the point of departure from Boeotia to the island of Euboea. They were accompanied by Micythio, who had been sent from Chalcis to Quirinus to ask for this very contingent. When, however, he found that the passes were blocked, he abandoned the one leading to Aulis and took the one to Delium, intending to sail across from there.

[35.51]Delium is a temple of Apollo overlooking the sea, five miles distant from Tanagra and four miles from the nearest point of Euboea by sea. Here in the fane and in the grove, sacred and therefore inviolable, with its rights of sanctuary which it possessed in common with those temples which the Greeks call "asyla," the soldiers were walking about perfectly at their ease, not having yet heard that a state of war existed or that swords had been drawn and blood shed. Some were exploring the temple and the grove, others strolling along the beach without any weapons, while a large number had gone off to procure wood and fodder. Whilst thus dispersed they were suddenly attacked by Menippus. Many were killed, as many as fifty were made prisoners; very few made their escape. Amongst these was Micythio, who was taken on board a small transport. The losses incurred greatly disquieted Quinctius and the Romans, but at the same time it was regarded as an additional justification for the war. Antiochus had moved his army up to Aulis and from there he despatched a second mission to Chalcis, consisting of some of his own people and some Aetolians. They employed the same arguments as before, but in much more threatening tone, and in spite of the efforts of Micythio and Xenoclides he had little difficulty in inducing the townsmen to open the gates to him. The adherents of Rome left the city just before the king's entry. The Achaean troops and those of Eumenes were holding Salganeus, and a small body of Romans were fortifying a post on the Euripus to defend the position. Menippus commenced the attack on Salganeus and Antiochus prepared to capture the fortified post. The Achaeans and the soldiers of Eumenes were the first to abandon the defence on condition of being allowed to depart in safety. The Romans offered a much stouter resistance, but when they found that they were blockaded by land and sea and that siege artillery was being brought up they were unable to hold out any longer. As the king was now in possession of

the capital of Euboea, the other cities on the island did not dispute his dominion. He flattered himself that he had made a most successful commencement of the war, considering how large an island and how many serviceable cities had fallen into his hands.

BOOK 36: WAR AGAINST ANTIOCHUS - FIRST STAGE

[36.1] On entering upon their office the new consuls, P. Cornelius Scipio and Manius Acilius Glabrio, were instructed by the senate to make it their first business before balloting for their provinces to sacrifice adult victims in all the temples in which for the greater part of the year there was a lectisternium and to offer up special prayers that the intention of the senate to undertake a fresh war might bring prosperity and happiness to the senate and people of Rome. All these sacrifices were performed without anything untoward occurring, and in the victims which were first offered the omens were entirely favourable. The haruspices accordingly assured the consuls that the boundaries of Rome would be extended by this war and that everything pointed to victory and triumph. When this report was laid before the senate their minds were at rest so far as the sanctions of religion were concerned and they ordered the question to be submitted to the people, "Whether it was their will and intention that war should be undertaken against Antiochus and those who were of his party?" If this proposal were carried, the consuls, if they thought fit, were to bring the matter afresh before the senate. P. Cornelius put the question to the people, and it was carried; the senate then decreed that the consuls should ballot for the provinces of Greece and Italy. The one to whom Greece was allotted was to take over the army which by order of the senate L. Quinctius had raised from Roman citizens and allies for service in that province, and in addition the army which M. Baebius had with the authority of the senate taken to Macedonia. He was also commissioned to take up reinforcements of not more than 5000 men from the allies outside Italy. It was further decided that L. Quinctius should be appointed second in command for this war. The other consul to whom Italy was allotted was instructed to conduct operations against the Boii with whichever army he preferred of the two which the late consuls had, and to send the other to Rome to form the City legions and be ready to go wherever the senate thought fit.

[36.2]Such were the decrees made by the senate up to the actual allocation of the provinces. Then at last the consuls balloted, and Greece fell to Acilius, Italy to Cornelius. When this was settled a senatus consultum was passed in the following terms: "Whereas the Roman people have at this time ordered that there be war with Antiochus and with all who are under his rule, the consuls shall on this behalf issue orders for a public intercession and M. Acilius shall vow Great Games to Jupiter and gifts and offerings to all the shrines." This vow was made by the consul in the following formula, as dictated by P. Licinius the Pontifex Maximus: "If the war which the people has ordered to be taken in hand against King Antiochus be brought to such a close as the senate and people of Rome desire, then all the Roman people shall celebrate in thy honour, Jupiter, Great Games for the space of ten days, and oblations of money shall be made to all thy shrines in such wise as the senate shall decree. Whatsoever magistrate shall hold these Games, whensoever and wheresoever he shall celebrate them, may they be deemed to be duly and rightly celebrated and the oblations duly and rightly offered!" Then the consul proclaimed special intercessions to be offered for two days. After the balloting for the consular provinces the praetors drew for theirs. M. Junius Brutus obtained the two civil jurisdictions; Bruttium fell to A. Cornelius Mammula; Sicily to M. Aemilius Lepidus; Sardinia to L. Oppius Salinator; the command of the fleet to C. Livius Salinator; and Further Spain to L. Aemilius Paullus.

The distribution of the armies amongst them was as follows: The new levies which had been raised by L. Quinctius the preceding year were assigned to A. Cornelius, and his duty was to protect the whole of the coast round Tarentum and Brundisium. It was decreed that L. Aemilius Paullus should take over the army which M. Fulvius had commanded as proconsul the year before and also raise 3000 fresh infantry and 300 cavalry for service in Further Spain, two-thirds to consist of allied troops, the remainder being Romans. A reinforcement of the same strength was sent to C. Flaminius, who was continued in his command in Hither Spain. M. Aemilius Lepidus was ordered to take over the province and army of Sicily from L. Valerius, whom he was to succeed, and if it seemed advisable he was to retain him as propraeor and divide the province with him; one section was to extend from Agrigentum to Pachynum, the other from Pachynum to Tyndareum. L. Valerius was also to guard the latter

coast with twenty ships of war. Lepidus was further commissioned to requisition two-tenths of all the corn in the island and have it conveyed to Greece. L. Oppius was ordered to make the same requisition in Sardinia, the corn, however, was not to be sent to Greece but to Rome. C. Livius, the praetor who was to command the fleet, received instructions to sail to Greece with twenty vessels which had completed their armament and take over the ships which Atilius had commanded. The repairing and fitting out of the ships in the dockyards was placed in the hands of M. Junius, and he was to select the crews of these vessels from freedmen.

[36.3]Six commissioners were sent to Africa to procure corn for Greece, the cost to be borne by Rome; three went to Carthage and three to Numidia. So determined were the citizens to be in perfect readiness for the war that the consul published an edict forbidding anyone who was a senator or had the right of speaking in the senate, or held office as an inferior magistrate, from leaving Rome for any place from which he could not return in a day. It was also forbidden for five senators to be absent from the City at any one time. Whilst C. Livius was doing his utmost to make the fleet ready for sea he was for some time delayed by a dispute with the citizens of the maritime colonies. When they were impressed for the fleet they appealed to the tribunes of the plebs, who referred them to the senate. The senate unanimously decreed that there was no exemption from service for the colonists. The colonies concerned were Ostia, Fregenae, Castrum Novum, Pyrgi, Antium, Tarracina, Minturnae and Sinuessa. The consul Acilius, in compliance with a resolution of the senate, submitted two questions to the College of Fetials. One was whether the declaration of war had to be made to Antiochus personally, or whether it would be sufficient to announce it at one of his frontier garrisons. The other was whether a separate declaration of war must be made to the Aetolians and whether in that case the league of amity and alliance must first be denounced. The Fetials replied that they had already on a previous occasion, when they were consulted in the case of Philip, decided that it was a matter of indifference whether the declaration were made personally or in one of his garrison towns. As to the league of amity, they held that it was obviously denounced, seeing that after the frequent demands put forward by our ambassadors the king had neither surrendered the towns nor given any satisfaction. In the case of the Aetolians, they had actually

declared war on Rome by taking forcible possession of Demetrias, a city belonging to the allies of Rome, by going to attack Chalcis by land and sea, and by bringing Antiochus into Europe to levy war on Rome. When all the preparations were at last completed, Acilius issued an edict for a general muster at Brundisium by the 15th of May of the Roman soldiers whom L. Quinctius had called up and those who had been supplied to him by the Latins and allies, who were under orders to go with him to his province as well as the military tribunes of the first and third legions. He himself left the City wearing his paludamentum on the 3rd of that month. The praetors left at the same time for their respective provinces.

[36.4]Just before this a mission from the two sovereigns, Philip and Ptolemy, arrived in Rome. Philip offered to furnish troops, money and corn for the war; Ptolemy sent 1000 pounds of gold and 20,000 pounds of silver. The senate declined to accept any of it and passed a vote of thanks to both the kings. On their each offering to enter Aetolia with all their forces and take their part in the war, Ptolemy was excused, but Philip's envoys were informed that the senate and people of Rome would be grateful to him if he gave his support to Acilius. Similar missions were despatched by the Carthaginians and by Masinissa. The Carthaginians offered 100,000 modii of wheat and 50,000 of barley for the use of the army; half the amount they would transport to Rome, and they pressed the Romans to accept it as a free gift. They were further prepared to fit out a fleet at their own expense and pay in one lump sum the tribute of which many annual instalments had still to run. Masinissa's envoys stated that he was prepared to supply 50,000 modii of wheat and 300,000 of barley for the army in Greece, and 300,000 modii of wheat and 250,000 of barley for consumption in Rome. He would also furnish Acilius with 500 cavalry and 20 elephants. In the matter of corn both parties were informed that the Roman people would make use of it on condition that they paid for it; the Carthaginian offer of a fleet was declined, beyond the vessels which they were bound to supply under the terms of the treaty, and in reply to the offer of money the Romans refused to accept any before the dates at which the instalments became due.

[36.5]During these proceedings in Rome Antiochus, who was at Chalcis, was not idle during the winter. Some of the Greek communities he endeavoured to win over by despatching embassies to them, others sent embassies spontaneously to him, as for instance

the Epirots, in accordance with the general determination of their people, and also the Eleans from the Peloponnese. The Eleans sought his assistance against the Achaeans, who having declared war on Antiochus against their wish would, they expected, attack them first of all. A detachment of infantry 1000 strong was sent to them under the command of Euphanes, a Cretan. The deputation from Epirus showed a by no means honest and straightforward spirit to either side; they wanted to ingratiate themselves with Antiochus, but at the same time to give no offence to the Romans. They asked the king not to involve them in the war hastily, for from their position on the front of Greece facing Italy they would have to meet the first onslaught of the Romans. But if he could protect Epirus with his fleet and army all the Epirots would eagerly welcome him in their cities and harbours; if he was unable to do so, they begged him not to expose them unprotected and defenceless to the hostility of Rome. Their object was perfectly clear. If, as they were inclined to believe, he kept clear of Epirus, all would be safe so far as the Roman armies were concerned, whilst they would have secured the king's good graces by expressing their readiness to receive him, had he gone to them. If on the other hand he entered Epirus, they hoped that the Romans would pardon them for yielding to the superior strength of one who was on the spot, without waiting for succour from a distance. As Antiochus was at a loss what reply to make to this ambiguous plea, he said he would send envoys to them to discuss the matters which concerned him and them alike.

[36.6]He next proceeded to Boeotia. The reasons which the Boeotians gave for their animosity towards Rome I have already stated - the assassination of Brachyllus and Quinctius' attack on Coronea in consequence of the massacre of Roman soldiers. But as a matter of fact, that nation once so famous for its discipline had been for many generations deteriorating both in its public and private life, and many were in a condition which could not possibly long continue without a revolutionary change. The leading Boeotians from all parts of the country assembled at Thebes, and thither Antiochus went to meet them. In spite of the fact that by his attack on the Roman detachments at Delium and Chalcis he had committed hostile acts which were neither trifling nor such as could be explained away, he took the same line in addressing the Boeotian council that he had taken at his first conference at Chalcis and had instructed his

envoys to take in the council of the Achaeans. He simply asked that friendly relations might be established with him, not that war should be declared against Rome. No one was deceived as to what he really meant; however, a resolution veiled in inoffensive terms was passed in support of the king and in opposition to Rome. Having thus secured the nation he returned to Chalcis. Letters had been previously sent to the Aetolian leaders requesting them to meet him at Demetrias that he might discuss with them the general conduct of the war, and he arrived there by sea on the day fixed for the meeting. Amynder, who had been invited from Athamania to take part in the discussion, and Hannibal, who had not been consulted for some time, were both present. A discussion arose regarding the people of Thessaly; all present thought they ought to be won over, the only divergence of opinion was as to when and how this ought to be done. Some were of opinion that they ought to set about it at once; others were for postponing action till the spring, it being now midwinter; some again thought that it would be enough to send a deputation, others were in favour of going there with the whole of their forces and frightening them into compliance if they hesitated.

[36.7]Whilst the debate was revolving entirely round these details Hannibal was asked for his opinion, and in what he said he turned the thoughts of the king and of all present to the consideration of the war as a whole. He spoke as follows: "If I had been taken into your counsels after we landed in Greece and you were deliberating about Euboea and the Achaeans and Boeotia, I should have expressed the same view which I am expressing now with regard to the Thessalians. I consider that it is of the first importance that we should use every possible means to bring Philip and the Macedonians into an armed alliance with us. As to Euboea and the Boeotians and the Thessalians, who can doubt that these people who have no strength of their own and always cringe before a power which is present to their eyes will display the same craven spirit which marks the proceedings of their councils in suing for pardon, and as soon as they see a Roman army in Greece will turn to their accustomed obedience? Nor will they be blamed for refusing to try conclusions with your strength when you and your army are amongst them and the Romans are far away. How much sooner ought we - how much better would it be - to secure the adhesion of Philip than of these people! For if he once takes up the cause he will have everything at stake, and he will contribute an

amount of strength which will not only be an accession to us in a war with Rome, but was not long ago sufficient of itself to withstand the Romans. I trust I shall not give offence in saying that with him as our ally I cannot feel doubtful as to the issue, for I see that those through whose assistance the Romans prevailed against Philip will now be the men by whom the Romans themselves are opposed. The Aetolians, who as is universally admitted defeated Philip, will now be fighting in company with him against the Romans. Amynder and the Athamanians, who next to the Aetolians rendered the greatest service in the war, will be on our side. While you, Antiochus, had not yet moved, Philip sustained the whole weight of the war; now you and he, the mightiest monarchs in Asia and Europe, will direct your united strength against a single people who - to say nothing of my own fortunes, good or bad - were at all events in the days of our fathers no match for even one king of Epirus, and how can he possibly be compared with you?

"What considerations then give me ground for believing that Philip can be made our ally? One is the identity of interests, which is the surest bond of alliance. The other is your own assurance, Aetolians. For amongst the reasons which your envoy Thoas gave for inducing Antiochus to come to Greece, the strongest was his constant asseveration that Philip was complaining and chafing under the servile conditions imposed upon him in the guise of peace. He used to compare the king's rage to that of some animal chained or shut up and longing to burst his prison bars. If that is his state of mind, let us loose his chains and burst the bars that hold him in so that he can vent his long-restrained rage on our common foe. But if our delegates are unable to influence him, let us at all events see to it that if we cannot get him on our side the enemy does not get him on his side. Your son Seleucus is at Lysimachia; if with the army he has with him he traverses Thrace and begins to lay waste the adjacent parts of Macedonia, he will easily turn Philip aside from actively assisting the Romans to the defence of his own dominions.

"You are in possession of my opinions about Philip. As regards the general strategy of the war, you have known from the outset what my views are. Had I been listened to then, it would not have been the capture of Chalcis or the storming of a fort on the Euripus that the Romans would have heard about; they would have learnt that Etruria and Liguria and the coastal districts of Cisalpine Gaul were wrapped

in the flames of war and, what would have alarmed them most of all, that Hannibal was in Italy. I am of opinion that even now you ought to bring up the whole of your military and naval forces and let a fleet of transports accompany them laden with supplies. We here are too few for the requirements of war and too many for our scanty commissariat. When you have concentrated your entire strength, Antiochus, you might divide your fleet and keep one division cruising off Corcyra, that there may be no safe and easy passage for the Romans, the other you would send across to the coast of Italy opposite Sardinia and Africa. You yourself would advance with all your land forces into the country round Byllis; from there you would protect Greece and give the Romans the impression that you are going to sail to Italy, and should circumstances render it necessary you will be in readiness to do so. This is what I advise you to do, and though I may not be profoundly versed in every phase of war, how to war with the Romans at all events I have learnt through success and failure alike. In the measures which I have advised you to take I promise to co-operate most loyally and energetically. I trust that whatever course, Antiochus, seems best to you may receive the approval of the gods."

[36.8]Such was the substance of Hannibal's speech, which was applauded at the time but led to no practical results. Not one of the measures he advocated was carried out beyond the despatch of Polyxenidas to bring up the fleet and the troops from Asia. Delegates were sent to the council of the Thessalians which was sitting at Larisa, and the Aetolians and Amynder fixed a day for the muster of their armies at Pherae, whither the king proceeded with his troops at once. Whilst waiting there for Amynder and the Aetolians he sent Philip the Megalopolitan with 2000 men to collect the bones of the Macedonians who had fallen in the final battle with Philip at Cynoscephalae. Either Philip himself suggested this to Antiochus as a means of making himself popular with the Macedonians and stirring up ill-will against their king for having left his soldiers unburied, or else Antiochus, with the vanity natural to kings, formed this in his own mind, a project apparently of importance but really trivial. The bones which were scattered in all directions were collected into a heap and buried under a tumulus, but the proceeding awoke no gratitude in the Macedonians and aroused strong resentment in Philip. He had so far been waiting on events, but now

in consequence of this he at once sent to the propraetor M. Baebius to tell him that Antiochus had invaded Thessaly, and asking him, if he thought proper, to move out of his winter quarters; he himself would go to meet him so that they might consult as to what steps ought to be taken.

[36.9]Antiochus was now encamped at Pherae, where the Aetolians and Amynander had joined him, when a deputation came from Larisa to ask him what the Thessalians had said or done to justify his making war on them. They begged him to withdraw his army so that any question which he thought necessary might be discussed with them through his envoys. At the same time they sent a detachment of 500 men under Hippolochus to protect Pherae. Finding all the routes closed by the king's troops they fell back on Scotusa. The king gave the deputation a gracious answer and explained that he had not entered Thessaly for the purpose of aggression, but solely to establish and protect the freedom of the Thessalians. A commissioner was despatched to Pherae to make a similar statement, but without giving him any reply the Pheraeans sent their chief magistrate to Antiochus. He spoke in pretty much the same strain as the Chalcidians at the conference under similar circumstances on the Euripus, though some things he said showed greater courage and resolution. The king advised them to consider their position most carefully lest they should adopt a policy which, whilst they were cautiously providing against future contingencies, might give them immediate cause for regret, and with this advice he dismissed their envoy. When the result of this mission was reported at Pherae, the people did not hesitate for a moment; they were determined to suffer everything which the chances of war might bring in defence of their loyalty to Rome, and made every possible preparation for the defence of their city. The king commenced a simultaneous attack on all sides; he quite saw, what indeed was indisputable, that it depended upon the fate of the first city which he attacked whether he would be held in contempt or in dread throughout the whole of Thessaly, so he did his utmost to spread terror everywhere. At first the beleaguered garrison offered a stout resistance to his furious assaults, but when they saw many of the defenders killed or wounded their courage began to sink and it was only by the reproaches of their officers that they were recalled to the necessity of holding to their purpose. Their numbers became so diminished that they abandoned the outer circuit of their walls and

retreated to the interior of the city, which was surrounded by a shorter line of fortifications. At last their position became hopeless and fearing, if the place were taken by storm, that they would meet with no mercy, they surrendered. The king lost no time in taking advantage of the alarm which this capture created and sent 4000 men to Scotusa. Here the townsmen promptly surrendered in view of the recent example of the Pheraeans, seeing that they had been compelled by stress of circumstances to do what at first they were determined not to do. Hippolochus and his garrison from Larisa were included in the capitulation. These were all sent away unhurt as the king thought that this act would go far to gain the sympathies of the Lariseans.

[36.10] These successes he accomplished within ten days of his appearance before Pherae. Continuing his march with the whole of his army he reached Crannon, which he took immediately on his arrival. He next secured Cierium and Metropolis and the various forts in their neighbourhood, and by this time every part of that district with the exception of Atrax and Gyrtos was in his power. His next objective was Larisa, where he expected that either the dread of meeting the fate of the other towns taken by storm or gratitude for his free dismissal of their garrison or the example of so many cities voluntarily surrendering would dissuade them from an obstinate resistance. In order to intimidate the defenders he had his elephants driven in front of the line, the army following in order of battle up to the city. The sight made a great many of the Lariseans waver between fear of the enemy at their gates and fear of being false to their distant allies. During this time Arynander and his Athamanians seized Pellinaeum, and Menippus advancing into Perrhaebia with an Aetolian force of 3000 infantry and 200 cavalry took Malloea and Cyretiae by storm and ravaged the territory of Tripolis. After these rapid successes they returned to the king at Larisa and found him holding a council of war to decide what should be done about the city. There was considerable diversity of opinion. Some were in favour of an immediate assault as the city was situated in a plain open on all sides to an approach over level ground, and they urged that there should be no delay in constructing siege works and bringing up artillery to attack the walls on all sides simultaneously. Others reminded the council that there was no comparison between the strength of this city and that of Pherae; besides, it was now winter, a

season quite unsuitable for warlike operations, most of all so for investing and assaulting a city. While the king was uncertain as to whether there was most to be hoped or feared from the attempt, delegates from Pharsalus arrived to tender the submission of their city and this raised his spirits. M. Baebius had in the meanwhile met Philip at Dassaretiae and they both agreed that Ap. Claudius should be sent to protect Larisa. Claudius traversed Macedonia by forced marches and gained the summit of the ridge which looks down on Gonni, a place twenty miles distant from Larisa at the head of the Vale of Tempe. Here he marked out a camp of greater extent than the force with him required, and kindled more numerous fires than were needed in order to give the enemy the impression that the entire Roman army was there together with Philip. Antiochus withdrew from Larisa the very next day and returned to Demetrias, alleging the approach of winter as the reason for his retreat. The Aetolians and the Athamanians also retired within their own frontiers. Although Appius saw that the purpose of his march, the raising of the siege, was effected he nevertheless went on to Larisa to reassure his allies as to the future. They were doubly delighted, first at the withdrawal of the enemy from their soil and then at the sight of Roman troops within their walls.

[36.11]The king left Demetrias for Chalcis. Here he fell in love with a daughter of Cleoptolemus, a Chalcidian magnate, and after numerous communications to her father followed by personal interviews (for he was reluctant to be entangled in an alliance so far above his own rank) Antiochus married the girl. The wedding was celebrated as though it were a time of peace, and forgetting the two vast enterprises in which he had embarked - war with Rome and the liberation of Greece - he dismissed all his cares and spent the rest of the winter in banquets and the pleasures attendant on wine, sleeping off his debauches, wearied rather than satisfied. All the king's officers who were in command of the different winter stations, especially those in Boeotia, fell into the same dissolute mode of life; even the common soldiers were completely sunk in it, not a man amongst them ever put on his armour or went on duty as guard or sentry, or discharged any military duty whatever. When, therefore, at the commencement of spring Antiochus passed through Phocis on his way to Chaeronea, where he had given orders for the whole of his army to muster, it was easy for him to see that the men had passed

the winter under no stricter discipline than their leader. From Chaeronea he ordered Alexander the Acarnanian and the Macedonian Menippus to take the troops to Stratus in Aetolia. He himself, after sacrificing to Apollo at Delphi, went to Naupactus. Here he had an interview with the Aetolian leaders, and then taking the road which runs past Calydon and Lysimachia he arrived at Stratum, where he met his army who were coming by the Maliac Gulf. Mnasilochus, one of the leading men in Acarnania, who had received many presents from Antiochus, was trying to persuade his people to take the king's side. He had succeeded in bringing Clytus, in whom the supreme power was vested at the time, over to his views, but he saw that there would be difficulty in inducing Leucas, the capital, to revolt from Rome, owing to their fear of the Roman fleet under Atilius, a portion of which was cruising off Cephalania. He therefore decided to adopt a ruse. At a meeting of the council he told them that the ports of Acarnania ought to be protected and that all who could bear arms ought to go to Medione and Tyrrheum to prevent their being seized by Antiochus and the Aetolians. Some of those present protested against this indiscriminate calling out of their fighting strength as quite unnecessary and said that a force of 500 men would be adequate for this purpose. When he had got this force he placed 300 men in Medione and 200 in Tyrrheum, his intention being that they should fall into the king's hands and be practically hostages.

[36.12]Meanwhile the king's agents arrived in Medione. They were received in audience by the council and in the subsequent discussion on the reply that they were to receive some speakers thought they ought to stand by the alliance with Rome, others urged that they ought not to reject the proffered friendship of the king; Clytus urged a middle course which the council decided to adopt, viz., to send to the king and ask him to allow them to consult the National Council of Acarnania on such an important matter. Mnasilochus and his supporters managed to get themselves put on this commission, and they despatched a secret message to Antiochus urging him to bring up his army while they wasted time by delay. The consequence was that the commission had hardly started when Antiochus appeared within their frontiers and in a short time at their gates. Whilst those who were not privy to the plot were hurrying in confusion through the streets and calling their fighting men to arms, Antiochus was

introduced into the city by Mnasilochus and Clytus. Many came round him of their own accord and even his opponents were constrained by their fears to meet him. He quieted their apprehensions by a gracious speech, and when his clemency became generally known several of the communities in Acarnania went over to him. From Medione he marched to Tyrrheum, having sent Mnasilochus and his agents on in advance. The Tyrrheans, however, saw through the treachery at Medione, and instead of intimidating them it only put them more on their guard. They returned a perfectly unambiguous answer to his summons and told him that they would not enter into any fresh alliance unless the Roman commanders authorised them to do so, at the same time they closed their gates and manned their walls. Cn. Octavius had been supplied with a body of troops and a few ships by A. Postumius, whom Atilius had placed in command at Cephalania, and his timely arrival in Leucas gave the Acarnanians fresh heart, as he reported that the consul Manius Acilius had crossed the sea with his legions and the Romans were encamped in Thessaly. His report was the more readily believed because the season of the year was favourable for navigation, and the king, after placing garrisons in Medione and in one or two other towns in Acarnania, withdrew from Tyrrheum and passing through the cities of Aetolia and Phocis returned to Chalcis.

[36.13]M. Baebius and Philip, after their meeting at Dassaretiae, when they sent Ap. Claudius to relieve Larisa had returned to their respective winter quarters as it was too early in the year for active operations. At the beginning of spring they went down with their united forces into Thessaly; Antiochus was in Acarnania at the time. Philip laid siege to Malloea in Perrhaebia and Baebius attacked Phacium. He took the place at the first assault and captured Phaestum with equal rapidity. Marching back to Atrax he advanced from there against Cyretiae and Eritium both of which places he gained possession of, and after placing garrisons in the captured towns he rejoined Philip, who was still besieging Malloea. On the arrival of the Roman army the garrison, either cowed by the strength of the besieging force or hoping to obtain more favourable terms, made their surrender. The two commanders then went on with their combined forces to recover those towns which the Athamanians were holding, namely Aeginium, Ericinium, Gomphi, Silana, Tricca, Meliboea and Phaloria. They next invested Pellinaeum, where Philip

of Megalopolis was stationed with 500 infantry and 40 cavalry, and before they delivered the assault they sent to Philip to warn him against forcing them to take extreme measures. He sent back a defiant answer and said that he would have trusted himself in the hands of Romans or Thessalians, but he would not place himself at the mercy of Philip. As it was evident that force must be employed, and that while the siege was going on Limnaea could be attacked, it was decided that the king should go there whilst Baebius remained to conduct the siege of Pellinaeum.

[36.14]Meantime the consul Manius Atilius had landed with 10,000 infantry, 2000 cavalry and 15 elephants. He ordered the military tribunes to take the infantry to Larisa, whilst he went with the cavalry to join Philip at Limnaea. On the consul's arrival the place at once surrendered and the garrison of Antiochus, together with the Athamanians, were delivered up. From Limnaea the consul went on to Pellinaeum. Here the Athamanians were the first to surrender, they were followed by the Megalopolitan Philip. As he was leaving the fort, Philip of Macedon happened to meet him, and ordered his men to salute him in mockery as king, and, in a spirit of scorn quite unworthy of his own rank, addressed him as "brother." When he was brought before the consul, he was ordered to be kept a close prisoner, and not long afterwards was sent in chains to Rome. All the Athamanian garrisons, as well as those of Antiochus, which had been surrendered were handed over to Philip. They amounted to 4000 men. The consul went on to Larisa to hold a council of war to decide as to future operations, and on his route he was met by delegates from Cierium and Metropolis, who offered the surrender of their cities. Philip was in hopes of gaining possession of Athamania, and he treated his Athamanian prisoners with special indulgence, with the design of winning their countrymen through them. After sending them home he led his army into the country. The account which the returned prisoners brought of the king's clemency and generosity towards them produced a great effect upon their countrymen. Had Amynder remained in his kingdom he might have kept some of his subjects loyal by his personal authority, but the fear of being betrayed to his old enemy Philip made him flee, together with his wife and children, to Ambracia. The whole of Athamania in consequence submitted to Philip.

The consul remained a few days at Larisa, mainly in order to recruit the horses and draught cattle, which owing to the voyage and the subsequent marching had got out of condition. When his army was, so to speak, renewed by the short rest, he marched to Crannon, and on his way he received the surrender of Pharsalus, Scotusa and Pherae, together with the garrisons which Antiochus had placed in them. These troops were asked whether they would be willing to remain with him. A thousand volunteered, and these he handed over to Philip; the rest he disarmed and sent back to Demetrias. He next captured Proerna and the fortified posts in the neighbourhood, and continued his march towards the Maliac Gulf. As he approached the pass above which Thaumaci is situated, all the men who could bear arms armed themselves, left the city and occupied the woods and roads, and from their higher ground made attacks upon the Roman column of march. The consul sent parties to approach them within speaking distance and warn them against such madness, but when he saw that they persisted he ordered a military tribune to work round them with two maniples and cut off their retreat to the city, which in the absence of its defenders the consul occupied. When they heard the shouts from the captured city behind them, they fled back from all sides and were cut to pieces. The next day the consul reached the Spercheus, and from there ravaged the fields of the Hypataeans.

[36.15]Antiochus was all this time at Chalcis, having at last discovered that he had gained nothing from Greece beyond a pleasant winter at Chalcis and a disreputable marriage. He now accused the Aetolians of having made empty promises and admired Hannibal, not only as a man of prudence and foresight, but also as little short of a prophet, seeing how he had foretold everything which was happening. In order that his reckless adventure might not be ruined through his own inactivity, he sent a message to the Aetolians requesting them to concentrate all their fighting strength at Lamia, where he himself joined them with about 10,000 infantry, made up largely of troops which had come from Asia, and 500 cavalry. The Aetolians mustered in considerably smaller numbers than on any previous occasion, only the leading men with a few of their dependents were present. They said that they had done their utmost to call up as many as possible from their respective cities, but their personal influence, their appeals, their official authority, were alike powerless against those who declined to serve. Finding himself deserted on all sides by his own

troops, who were hanging back in Asia, and by his allies, who were not doing what they undertook to do when they invited him, he withdrew into the pass of Thermopylae. This mountain range cuts Greece in two, just as Italy is intersected by the Apennines. To the north of the pass are situated Epirus, Perrhaebia, Magnesia, Thessaly, the Achaeans of Phthiotis, and the Maliac Gulf. South of it lie the greater part of Aetolia, Acarnania, Locris, Phocis, Boeotia, the adjoining island of Euboea, and Attica, which projects into the sea like a promontory; beyond these is the Peloponnese. This range extends from Leucas on the western sea through Aetolia to the eastern sea, and is so rugged and precipitous that even light infantry - let alone an army - would have great difficulty in finding any paths by which to cross it. The eastern end of the range is called Oeta, and its highest peak bears the name of Callidromus. The road running through the lower ground between its base and the Maliac Gulf is not more than sixty paces broad and is the only military road which can be traversed by an army, and then only if it meets with no opposition. For this reason the place is called Pylae, and also Thermopylae, from the hot springs there, and is famous for the battle against the Persians, but still more so for the glorious death of the Lacedaemonians who fought there.

[36.16] In a state of mind very unlike theirs Antiochus pitched his camp inside the narrowest part of the pass and barricaded it with defensive works, protecting every part of it with a double line of fosse and rampart and where it seemed necessary with a wall built up from the stones which were lying about everywhere. He felt pretty confident that the Roman army would never force a passage there, and so he sent two detachments out of the 4000 Aetolians who had joined him, one to hold Heraclea, a place just in front of the pass, the other to Hypata. He quite expected that the consul would attack Heraclea; and from Hypata numerous messages had come stating that the whole of the surrounding country was being laid waste. The consul ravaged the territory of Hypata first and then that of Heraclea; in neither place did the Aetolians prove of the slightest use, and finally encamped opposite the king in the mouth of the pass at the hot springs. Both the Aetolian detachments shut themselves up in Heraclea. Before the actual appearance of his enemy Antiochus thought that the whole of the pass was fortified and blocked by his troops, but now he felt anxious lest the Romans might find some

paths on the surrounding heights by which they could turn his defences, for the Lacedaemonians were stated to have been similarly taken in the rear by the Persians, and Philip quite recently by the Romans. Accordingly he sent a message to the Aetolians at Heraclea asking them to do him this service at least in the war, namely, to seize and hold the crests of the surrounding mountains and prevent the Romans from crossing them anywhere. On the receipt of this message there was a sharp difference of opinion among the Aetolians. Some thought that they ought to comply with the king's request and go; others were in favour of remaining in their quarters at Heraclea, prepared for either eventuality. If the king were defeated they would then have their forces intact and be able to assist in the defence of the cities round them, if on the other hand he were victorious they would then be in a position to take up the pursuit of the fugitive Romans. Each party held to its opinion, and not only held to it but acted upon it; 2000 remained in Heraclea, and the others, formed into three divisions, occupied the three heights of Callidromus, Rhoduntia and Tichius.

[36.17]When the consul saw that the heights were occupied by the Aetolians he sent M. Porcius Cato and L. Valerius Flaccus, men of consular rank commanding under him, to attack their fortified positions, Flaccus against Rhoduntia and Tichius, and Cato against Callidromus. They each took a picked force of 2000 infantry. Before making his general advance against the enemy, the consul called his men on parade and addressed a few words to them. "Soldiers," he said, "I see that there are very many amongst you, men of all ranks, who have campaigned in this very province under the leadership and auspices of T. Quinctius. In the Macedonian war the pass at the Aous was more difficult to force than this one, for here we have gates and this passage as though provided by nature is the only one available, every other route between the two seas being closed to us. On that occasion, too, the enemy defences were stronger and constructed on more advantageous ground; the hostile army was more numerous and made up of far better soldiery; there were in that army Macedonians, Thracians and Illyrians, all very warlike tribes; here there are Syrians and Asiatic Greeks, the meanest of mankind, and born only for slavery. The monarch who was opposed to us then was a true soldier, trained from his youth in wars with the Thracians and the Illyrians and all the nations round him; this man - to say nothing

of his previous life - has done nothing during the whole of the winter months more memorable than marrying a girl for love out of a private family and, even when compared with their fellow-townsmen, of obscure origin, and now the newly-wedded bridegroom, fattened up as it were with marriage feasts, has come out to fight. His main hope was in the Aetolians, they were his chief strength, and you have already learnt by experience as Antiochus is learning now what an untrustworthy and ungrateful race they are. They have not come in any considerable number, it was impossible to keep them in camp, they are at loggerheads among themselves, and after insisting that Hypata and Heraclea must be defended they refused to defend either place and took refuge on the mountain heights, some shutting themselves up in Heraclea. The king himself has shown clearly that he durst not venture to meet us on fair ground, he is not even fixing his camp in open country; he has abandoned the whole of the district in front of him which he boasts of having taken from us and from Philip, and has hidden himself amongst the rocks. His camp is not even placed at the entrance to the path, as we are told the Lacedaemonians placed theirs, but is withdrawn far within it. What difference is there, as a visible proof of fear, between his shutting himself up here or behind the walls of a besieged city? The pass, however, will not protect Antiochus, nor will the heights which the Aetolians have seized protect them. Sufficient caution and foresight have been exercised to prevent your having anything to fight against but the actual enemy. You must bear in mind that you are not fighting only for the freedom of Greece, though it will be a splendid record to deliver out of the hands of the Aetolians and Antiochus the country which you formerly rescued from Philip. Nor will it be only the spoil in the enemy's camp that will fall to you as a prize; all the stores and material which he is daily looking for from Ephesus will be your booty; you will open up Asia and Syria and all the wealthiest realms to the furthest East to the supremacy of Rome. What will then prevent us from extending our dominion from Gades to the Red Sea with no limit but the Ocean which enfolds the world, and making the whole human race look up to Rome with a reverence only second to that which they pay to the gods? Show yourselves worthy in heart and mind of such vast rewards so that we may take the field tomorrow assured that the gods will help us."

[36.18]After this address the soldiers were dismissed and got their armour and weapons ready before they took food and rest. As soon as it began to grow light the consul hung out the signal for battle and formed his line on a narrow front to suit the confined limits of the ground. When the king saw the standards of the enemy he also led out his men. Part of his light infantry he stationed in front of their rampart to form the first line. Behind them in support he posted the Macedonians, the main strength of his arm, known as the "sarisophori"; they extended across the whole length of the rampart. To the left of them were posted a body of javelin men, bowmen and slingers immediately under the foot of the mountains, so that they might from their higher ground harass the unprotected flank of the enemy. On the right of the Macedonians, towards the end of his lines, where the ground beyond down to the sea is impassable owing to bogs and quicksands, he posted the elephants with their usual guard, and behind them the cavalry, and a short distance behind them again the rest of his troops. The Macedonians in front of the rampart had no difficulty at first in resisting the Romans, who were trying at all points to break through, and they received considerable assistance from those on the higher ground, who discharged bullets from their slings, arrows and javelins all at once, a perfect cloud of missiles. But as the enemy's pressure increased and the attack was made in greater force they gradually fell back to their rampart, and standing upon it made practically a second rampart with their levelled spears. The rampart, owing to its moderate height, not only offered a higher position from which to fight, but also enabled them to reach the enemy below with their long spears. Many in their reckless attempts to mount the rampart were run through, and they would have had either to retire baffled or sustain serious losses had not M. Porcius appeared on a hill which commanded the camp. He had dislodged the Aetolians from the crest of Callidromus and killed the greater part of them, attacking them when they were off their guard and most of them asleep.

[36.19]Flaccus was not so fortunate, his attempt to reach the fortified posts on Tichius and Rhoduntia was a failure. The Macedonians and the other troops in the king's camp could at first only make out a moving mass of men in the distance, and were under the impression that the Aetolians had seen the fighting from afar and were coming to their assistance. When, however, they recognised the approaching

standards and arms and discovered their mistake, they were so panic-struck that they flung away their weapons and fled. The pursuit was impeded by the entrenchments of the camp and the confined space through which the pursuers had to pass, but the elephants were the greatest hindrance, for it was difficult for the infantry to get past them, and impossible for the cavalry; the frightened horses created more confusion than in the actual battle. The plunder of the camp still further delayed the pursuit. However, they followed up the enemy as far as Scarphea, after which they returned to camp. Large numbers of men and horses had been either killed or captured on the way, and even the elephants, which they were unable to secure, had been killed. While the battle was going on the Aetolians who had been holding Heraclea made an attempt on the Roman camp, but they gained nothing from their enterprise, which was certainly not lacking in audacity. At the third watch of the following night the consul sent the cavalry to continue the pursuit, and at daybreak he put the legions in motion. The king had gained a considerable start, as he did not stop in his headlong ride till he reached Elatia. Here he collected what was left of his army out of the battle and the flight and retreated with a very small body of half-armed soldiers to Chalcis. The Roman cavalry did not succeed in overtaking the king himself at Elatia, but they cut off a large part of his army, who were unable to go any further through sheer fatigue, or else had lost their way in an unknown country, with none to guide them. Out of the whole army not a single man escaped beyond the 500 who formed the king's bodyguard, an insignificant number even if we accept Polybius' statement which I have mentioned above that the force the king brought with him out of Asia did not exceed 10,000 men. What proportion would it be if we are to believe Valerius Antias, that there were 60,000 men in the king's army, of whom 40,000 fell and over 5000 made prisoners, and 230 standards captured? In the battle itself the Roman losses amounted to 150, and in the defence of the camp against the Aetolians not more than 50 were killed.

[36.20]Whilst the consul was taking his army through Phocis and Boeotia the citizens of the revolted towns, conscious of their guilt and fearing lest they should be treated as enemies, stood outside their gates in suppliant garb. The army, however, marched past all their cities one after the other, without doing any damage, just as though they were in friendly territory, till they came to Coronea. Here great

indignation was aroused by the sight of a statue of Antiochus set up in the temple of Minerva Itonia, and the soldiers were allowed to plunder the temple domain. It occurred, however, to the consul that as the statue had been placed there by a decree of the national council of Boeotia it was unfair to take vengeance on the territory of Coronea alone. He at once recalled the soldiers and stopped the pillaging, and contented himself with sternly rebuking the Boeotians for their ingratitude to Rome after the many benefits she had so lately conferred upon them. At the time of the battle ten of the king's ships, with Isidorus in command, were standing off Thronium in the Maliac Gulf. Alexander the Acarnanian, who had been severely wounded, fled thither with tidings of the defeat, and the ships sailed hurriedly away to Cenaeus in Euboea. Here Alexander died and was buried. Three vessels, which had come from Asia and were making for the same port, on hearing of the disaster which had overtaken the army, returned to Ephesus. Isidorus left Cenaeus for Demetrias, in case the king's flight should have carried him there. During this time A. Atilius, who was in command of the Roman fleet, intercepted a large convoy of supplies for the king which had passed through the strait between Andros and Euboea. Some of the vessels he sank, others he captured; those in the rearmost line turned their course towards Asia. Atilius sailed back with his train of captured ships and distributed the large stock of corn on board to the Athenians and the other friendly cities in that quarter.

[36.21] Just before the consul's arrival Antiochus left Chalcis and directed his course first to Tenos and from there to Ephesus. As the consul drew near to Chalcis the king's commandant, Aristoteles, left the city and the gates were thrown open to the consul. All the other cities in Euboea were delivered up without any fighting, and in a few days peace was established everywhere in the island and the army returned to Thermopylae without injuring a single city. This moderation displayed after the victory was much more deserving of praise than even the victory itself. In order that the senate and people might receive an authoritative report of the operations the consul sent M. Cato to Rome. He set sail from Creusa, the emporium of Thespia, situated in the innermost part of the Gulf of Corinth, and made for Patrae in Achaia; from Patrae he went on to Corcyra, skirting the shores of Aetolia and Acarnania, and so made his passage to Hydruntum in Italy. From there he journeyed by land, and by rapid

travelling reached Rome in five days. Entering the City before it was light he went straight to the praetor, M. Junius, who summoned a meeting of the senate at daybreak. L. Cornelius Scipio had been sent on by the consul some days previously, and on his arrival found that Cato had outstripped him. He went into the senate house while Cato was making his report and the two generals were conducted by order of the senate to the Assembly, where they gave the same details of the Aetolian campaign as had been given to the senate. A decree was made that there should be thanksgivings for three days, and the praetor was to sacrifice forty full-grown victims to such of the gods as he thought fit. M. Fulvius Nobilior, who had gone to Spain as praetor two years previously, entered the City about this time in ovation. He had carried before him 130,000 silver denarii and 12,000 pounds of other silver, as well as 127 pounds of gold.

[36.22]While Acilius was at Thermopylae he sent a message to the Aetolians, advising them, now that they had found out how empty the king's promises were, to return to a right mind and think about delivering up Heraclea and begging pardon of the senate for their madness and delusion. Other cities in Greece, he reminded them, had been faithless to their best friends, the Romans, in that war, but after the flight of the king, whose assurances had seduced them from their duty, they did not aggravate their fault by willful obstinacy, and had once more been received as allies. Even in the case of the Aetolians, though they had not followed the king, but had actually invited him, and were not his associates but his leaders in the war - even for them there was still the possibility, if they showed true repentance, of remaining unharmed. To this message they returned a defiant answer; the question would evidently have to be decided by arms, and though the king was overcome, the war with the Aetolians was clearly only just beginning. The consul accordingly moved his army from Thermopylae to Heraclea, and on the very same day he rode round the entire circuit of the walls to ascertain the situation of the city. Heraclea lies at the foot of Mount Oeta; the city itself is situated in a plain, and it has a citadel which commands it from a position of considerable elevation and precipitous on all sides. After carefully considering all there was to be learnt he decided to deliver a simultaneous attack from four different points. In the direction of the Asopus, where the Gymnasium stood, he placed L. Valerius in charge of the operations. Towards the citadel outside the walls, where

the houses were almost closer together than in the city itself, he gave the direction of the assault to Tiberius Sempronius Longus. On the side facing the Maliac Gulf, where the approach presented considerable difficulty, M. Baebius was in command. Towards the stream which they call the Melana, opposite the temple of Diana, he posted Appius Claudius. Through the strenuous exertions of these commanders, each trying to outdo the other, the towers and battering rams and all the other preparations for an assault were completed in a few days. The land round Heraclea is marshy and covered with tall trees, which furnished a liberal supply of timber for siege works of every kind, and as the Aetolians living in the suburb had taken refuge in the city the deserted houses afforded useful materials for various purposes, including not only beams and planks, but also bricks and building stones of all shapes and sizes.

[36.23]The Romans made more use of machines than of arms in their attack on the city, the Aetolians on the other hand trusted more to their arms for their defence. When the walls were battered by the rams they did not, as is usual, turn aside the blows by using looped ropes, but they made sorties in considerable strength and some carried firebrands to throw on the siege works. There were also arched sally-ports in the walls, and when they built up the wall where it had been destroyed they left more of these openings to allow of more numerous sorties. In the early days of the siege while their strength was unimpaired these sallies were frequent and powerful, but as time went on they became fewer and feebler. Amidst the many difficulties they had to contend with nothing wore them down so much as want of sleep. The Romans owing to their numbers were able to arrange regular reliefs for their men, but the Aetolians were comparatively few, and the same men having to be on duty night and day they were completely exhausted by the incessant strain. For four-and-twenty days, without a moment's respite day or night, they had to sustain the attack of the enemy, who were delivering their assaults from four different quarters at once. Considering the time during which the attack had been going on, and in view of the information brought by deserters, the consul felt pretty sure that the Aetolians were at last worn out, and he formed the following plan. When it was midnight he gave the signal to retire and called off all the soldiers from the assault. He kept them quiet in the camp till the third hour of the following day, when he recommenced the attack and carried it

on until midnight, when it was again suspended till the third hour of the following day. The Aetolians supposed that the cause of the assault not being kept up was the same as that which was acting upon them, namely excessive fatigue, and when the signal for retiring was given to the Romans, they too, as though it recalled them also, quitted their posts and did not resume duty on the walls till the third hour of the following day.

[36.24]After suspending the operations at midnight the consul recommenced the assault at the fourth watch with extreme violence on three sides. On the fourth side he ordered Tiberius Sempronius to keep his soldiers on the alert and ready for the signal, as he felt no doubt that the Aetolians would in the nocturnal confusion rush to the places from which the battle-shout arose. Some of the Aetolians were asleep, worn out by toil and want of rest, and only roused themselves with great difficulty; those who were still awake, hearing the noise of battle, ran towards it through the darkness. The assailants were trying to climb over the fallen parts of the wall into the city, others were endeavouring to mount the walls by scaling ladders, and the Aetolians were hurrying up from all parts to meet the attack. The one quarter where the suburban buildings stood was so far neither attacked nor guarded, but those who were to attack it were eagerly awaiting the signal and none were there to defend it. It was already dawn when the consul gave the signal and they penetrated into the city without any opposition, some over the ruined walls, others, where the walls were intact, by means of scaling ladders. As soon as the shouting was heard which announced that the city was captured the Aetolians left their posts and fled to the citadel.

The consul gave his victorious troops leave to sack the city, not as an act of vengeance, but in order that the soldiery who had been forbidden this in so many captured cities might in one place at least taste the fruits of victory. About midday he recalled his men and formed them into two divisions. One he ordered to march round the foot of the mountain to a peak which was the same height as that on which the citadel stood and separated from it by a ravine as though torn away from it. The twin peaks were so near one another that missiles could be thrown from the rock on to the citadel. With the other division the consul intended to mount up to the citadel, and he waited in the city for the signal from those who were to surmount the peak. Their cheers on occupying the height and the attack of the

other division from the city were too much for the Aetolians, utterly broken as their courage was and with no preparation for standing a siege in the citadel, which could hardly contain, much less protect, the women and children and the other non-combatants who had crowded there. So at the first assault they laid down their arms and surrendered. Amongst them was Damocritus, the first magistrate of Aetolia. At the beginning of the war he had told T. Quinctius, on his request for a copy of the decree inviting Antiochus, that he would give it him in Italy when the Aetolians were encamped there. This piece of arrogance made his surrender all the more pleasing to the victors.

[36.25]Whilst the Romans were laying siege to Heraclea, Philip, as arranged with the consul, was attacking Lamia. He had gone to Thermopylae to offer the consul and the people of Rome his congratulations on the victory and at the same time to excuse himself on the ground of illness for not having taken part in the operations against Antiochus. Then the two commanders separated to carry on the siege of the two places simultaneously. These are about seven miles distant from each other, and as Lamia stands on rising ground and looks towards Mount Oeta the distance between them seems very short and all that goes on in the one place can be seen from the other. The Romans and the Macedonians were strenuously engaged as though in mutual rivalry in siege operations or in actual fighting night and day. But the Macedonians had the more difficult task owing to the fact that the Roman galleries and vineae and all their siege engines were above ground while the Macedonians conducted the attack by means of subterranean mines, and in difficult places they often came to rock upon which iron tools could make no impression. Finding that he was making little progress, the king held conferences with the leading men of the place in the hope that the townsmen might be induced to surrender. He felt quite certain that if Heraclea were taken first they would surrender to the Romans sooner than to him and that the consul would win their gratitude for having raised the siege. His surmise proved correct, for no sooner was Heraclea taken than a message reached him requesting him to abandon the siege, for as it was the Romans who had fought the engagement with the Aetolians it was but fair that they should have the prize of victory. So Lamia was relieved and through the fall of a neighbouring city escaped a similar fate.

[36.26] Shortly before the fall of Heraclea the Aetolians, assembled in council at Hypata, sent a deputation to Antiochus including Thoas, who had been sent before. They were instructed to ask the king to call up his land and sea forces once more and cross over into Greece; if anything prevented him from doing this, then they were to ask him to send money and troops and to point out to him that it concerned his regal dignity and his personal honour not to betray his allies, and if he allowed the Romans after destroying the Aetolians to have a perfectly free hand and land in Asia with all their forces the very safety of his kingdom would be imperilled. What they said was true and therefore made all the deeper impression on the king. He gave them money for their immediate requirements and pledged himself to send military and naval assistance. Thoas he kept with him, and the man was very glad to remain behind, as being on the spot he might make the king fulfil his promises.

[36.27] The fall of Heraclea, however, broke the spirit of the Aetolians. Within a few days of their asking Antiochus to resume hostilities and return to Greece they laid aside all thoughts of war and sent envoys to the consul to sue for peace. When they began to speak, the consul cut them short by saying that there were other matters which had to be attended to first. He then granted them a ten days' armistice and directed them to return to Hypata accompanied by L. Valerius Flaccus, to whom they were to refer the questions they had intended to discuss with him, and any other matters which they wished to discuss. On his arrival at Hypata, Flaccus found the Aetolian leaders assembled in council and deliberating as to what line they should take in negotiating with the consul. They were preparing to begin by alleging the old-standing treaty-rights and their service to Rome, when Flaccus bade them desist from appealing to treaties which they had themselves violated and broken. They would gain much more, he told them, by confessing their misdoings and simply asking for mercy. Their only hope of safety lay not in the strength of their case but in the clemency of the Roman people, and if they adopted a suppliant attitude he would stand by them before the consul and in the senate at Rome, for they would have to send their delegates there also. All those present saw that only one path led to safety, namely their formal submission to Rome. They believed that their appearance as suppliants would give them an inviolable

character in Roman eyes, and they would still preserve their independence should Fortune hold out any better prospect.

[36.28]When they appeared before the consul, Phaeneas, the head of the deputation, made a long speech, adapted in various ways to mitigate the victor's wrath, and concluded by saying that the Aetolians committed themselves and all that they had to the honour and good faith of the people of Rome. When the consul heard that he said, "Be quite sure that these are the terms on which you surrender." Phaeneas showed him the decree in which they were expressly stated. "Since then," he replied, "you do make this complete surrender, I require you to give up at once Dicaearchus, your fellow-citizen, and Menestus the Epirote" - he was the man who introduced a body of troops into Naupactus and drove the citizens into revolt - "and Amynder and the Athamanian leaders who persuaded you to revolt from us." Phaeneas hardly allowed the Roman to finish his sentence before he replied: "We have not surrendered ourselves into slavery, but to your protection and good faith, and I am quite sure that it is because you do not know us that you lay upon us commands which are opposed to the usage of the Greeks." To this the consul retorted: "No, I do not trouble myself much as to what the Aetolians consider the usage of the Greeks as long as I follow the usage of the Romans and impose my commands on those who, after being vanquished by force of arms, have just surrendered by their own formal decree. If, then, my command is not promptly obeyed, I shall at once order you to be thrown into irons." He then ordered fetters to be brought and the lictors to close round Phaeneas. Phaeneas and the other Aetolians were now thoroughly cowed, they at last realised their position, and he said that he and the Aetolians with him quite saw that they must carry out the consul's commands, but it was necessary that a decree to that effect should be made at a meeting of the national council. In order that this might be done he asked for a ten days' armistice. Flaccus supported the request, which was granted, and they returned to Hypata. Here Phaeneas reported to the inner council - known as the Apokleti - the commands laid upon them and the fate which had all but overtaken him and his colleagues. The magnates deplored the situation to which they were reduced, but they decided that their conqueror must be obeyed and that the Aetolians from every town should be summoned to a general council.

[36.29]The whole population of Aetolia was thus assembled, and when they heard the report they were so exasperated by what they considered as the harshness and insulting tone of the order that even had they been at peace the angry outburst would have driven them into war. Besides the anger thus aroused, there were difficulties in the way of carrying out the command. How, they asked, could they possibly surrender Amynander? Their hopes, too, had been raised by the presence of Nicander, who had just returned from his mission to Antiochus and had filled the minds of the populace with the illusory prospect of huge forces being massed both by land and sea. After a voyage of twelve days from Ephesus he landed at Phalara on the Maliac Gulf, on his way to Aetolia. From there he went to Lamia, where he left the money which the king had given them, and then started early in the evening for Hypata, with an escort of light troops, through by-paths with which he was familiar. Whilst traversing the country between the Roman and Macedonian camps, he came upon a Macedonian outpost and was taken to the king. Philip had not finished dinner, and when he was informed of the arrest he treated him, not as an enemy but as a guest, and bade him sit down and partake of the banquet. Then after the other guests had left he detained him, telling him at the same time that he had nothing to fear. He proceeded to blame the Aetolians severely for their crooked policy, which had always recoiled on their own heads, for it was they who first brought the Romans and afterwards Antiochus into Greece. He went on to say that he should forget the past, which it was easier to censure than to amend, and he would not do anything to insult the Aetolians amidst their misfortunes; they in return ought to put an end to their ill-will towards him, and Nicander in particular ought never to forget that day in which he had saved his life. He then assigned him an escort to conduct him to a place of safety, and Nicander arrived at Hypata whilst the Aetolians were debating the question of making peace with Rome.

[36.30]The booty secured round Heraclea was either sold by Manius Acilius or given to the soldiers. On learning that the decision come to at Heraclea did not make for peace and that the Aetolians had concentrated at Naupactus, where they intended to meet the whole brunt of the war, the consul sent Appius Claudius with 4000 men to occupy the heights which commanded the difficult mountain passes while he himself ascended Mount Oeta. Here he offered sacrifice to

Hercules at a place called Pyra, because it was there that the mortal body of the god was cremated. From there he continued his march with the whole of his army and made fairly satisfactory progress till he came to Corax. This is the highest peak between Callipolis and Naupactus, and whilst crossing it many of the draught animals fell with their packs down the precipices, and there were casualties among the troops. It was easy to see with what an inactive enemy he had to deal, for no attempt had been made to post troops so as to close the pass, which was so difficult and dangerous. As it was, the army had sustained casualties before the consul got down to Naupactus. Opposite the citadel he established a fortified post, the other quarters of the city he invested, the troops being distributed according to the situation of the walls. This siege involved quite as much labour and effort as that of Heraclea.

[36.31]Messene, in the Peloponnese, had refused to join the Achaean league, and the Achaeans now laid siege to it. Neither of the two cities, Messene and Elis, were members of the league; their sympathies were with the Aetolians. The Eleans, however, after Antiochus' flight from Greece, returned a more conciliatory reply to the Achaean envoy and said that when the king's garrison was withdrawn they would consider what they ought to do. The Messenians, on the other hand, dismissed the envoys without vouchsafing any reply whatever and commenced hostilities. But the devastation of their land in all directions by fire and sword and the sight of the Achaean camp near their city made them tremble for their safety, and they sent a message to T. Quinctius at Chalcis to the effect that as he was the author of their liberty the men of Messene were prepared to open their gates to the Romans and surrender their city to them, but not to the Achaeans. On receipt of this message Quinctius at once left Chalcis and sent word to Diophanes, the captain-general of the Achaeans, to withdraw his army at once from Messene and go to him. Diophanes obeyed and raised the siege, and then hurrying on in advance of his army met Quinctius near Andania, a town lying between Megalopolis and Messene. When he began to explain his reasons for attacking the place Quinctius gently rebuked him for taking such an important step without his sanction and ordered him to disband his army and not to disturb the peace which had been established for the good of all. He commanded the Messenians to recall their banished citizens and join the Achaean

league; if there were any conditions they objected to, or any safeguards for the future which they wanted, they were to go to him at Corinth. At the same time he ordered Diophanes to convene a meeting of the Achaean league forthwith, at which he would be present. In his address to the council he pointed out how the island of Zacynthus had been treacherously seized, and he now demanded its restoration to the Romans. The island, he explained, had at one time formed part of Philip's dominions and he had given it to Amynder as the price of being allowed to march through Athamania into the north of Aetolia, the result of his expedition being that the Aetolians abandoned all further resistance and sued for peace. Amynder made Philip of Megalopolis governor of the island. Subsequently when Amynder joined Antiochus in war against Rome he recalled Philip to take up active service and sent Hierocles of Agrigentum to succeed him.

[36.32]After Antiochus' flight from Thermopylae and the expulsion of Amynder from Athamania at the hands of Philip, Hierocles entered into negotiations with Diophanes and sold the island to the Achaeans. The Romans considered it their lawful prize of war; it was not for the benefit of Diophanes and the Achaeans that the legions of Rome fought at Thermopylae. In his reply Diophanes sought to exculpate himself and his nation and brought forward arguments to justify their action. Some of those present protested that they had from the beginning discountenanced that action, and they now remonstrated against the pertinacious attitude of their chief magistrate. They succeeded in getting a decree made referring the whole question to Quinctius for him to deal with. To those who opposed him Quinctius was stern and uncompromising, but if you gave way he was just as placable. Laying aside every trace of anger in look and voice, he said: "If I thought that the possession of that island would be an advantage to the Achaeans I should advise the senate and people of Rome to allow you to keep it. When, however, I look at a tortoise which has completely shrunk into its shell I see that it is safe against every blow, but when it puts forth any portion of its body, the part put forth is exposed and defenceless. Just so with you, Achaeans. As long as you are shut in on all sides by the sea, you have no difficulty in incorporating in your league and protecting all the States within the frontiers of the Peloponnese, but if through a passion for aggrandisement you go beyond those frontiers all that

you possess outside is defenceless and lies at the mercy of every assailant." With the unanimous assent of the council - not even Diophanes venturing to raise any opposition - Zacynthus was ceded to the Romans.

[36.33]As the consul was starting for Naupactus, Philip asked him if he wished him to recover the cities which had renounced their alliance with Rome. On receiving the consul's consent he marched his army to Demetrias, as he was fully aware of the confusion which prevailed there. The citizens were in despair, they saw themselves deserted by Antiochus, with no prospect of help from the Aetolians, and were daily expecting the arrival of their enemy Philip, or of a more relentless enemy still, the Romans, who had more reason to be angry with them. There was in the city a disorganised body of Antiochus' soldiers, the small force which had been left to hold the city, joined afterwards by the fugitives from the battle, who came in, most of them, without arms. They had neither the strength nor the resolution to stand a siege, and when emissaries from Philip held out to them hopes of obtaining pardon they sent to him to say that the gates were open to the king. Some of the principal men left the city as he entered it; Eurylochus committed suicide. In accordance with the stipulation, the soldiers of Antiochus were sent through Macedonia and Thrace to Lysimachia under the protection of a Macedonian escort. There were also at Demetrias a few ships under the command of Isodorus, they too were allowed to depart with their commander. Philip then went on to reduce Dolopia, Aperantia, and some cities in Perrhaebia.

[36.34]While Philip was thus engaged T. Quinctius, after taking over Zacynthus from the Achaean council, sailed to Naupactus, which had been standing a siege for two months, but was now nearing its fall. Its forcible capture would probably have brought ruin on the Aetolians as a nation. Quinctius had every reason for being embittered against them; he had not forgotten that they were the only people that had spoken slightly of him when he was winning the glory of liberating Greece and had refused to be guided by him when he sought to dissuade them from their mad project by forewarning them as to what would happen to them, a forewarning which events had just now proved to be true. As, however, he looked upon himself as especially bound to see that no State in the Greece which he had freed was utterly destroyed, he decided to walk up to the walls so that

the Aetolians could easily see who he was. He was at once recognised by the advanced posts, and the news rapidly spread throughout the city and troops that Quinctius was there. There was a general rush to the walls; the people all held out their hands in supplication, and with one voice appealed to him by name and implored him to come to their succour and save them. He was deeply moved by this appeal, but at the same time he made signs to them that it was not in his power to help them. When he saw the consul he said to him, "M. Acilius, do you fail to see what is going on, or if you are quite aware of it do you consider that it in no way touches the supreme interest of the Republic?" The consul's attention was aroused and he replied, "Why are you not explicit? What do you mean?" Quinctius continued, "Do you not see, now that Antiochus is crushed, how you are wasting time in laying siege to a couple of cities when your year of office has almost expired, while Philip, who has never seen the standards or the battle-line of the enemy, has been annexing not cities only, but all those States, Athamania, Perrhaebia, Aperantia, Dolopia? And yet it is not so important to us that the strength and resources of the Aetolians should be weakened as it is that Philip should not be allowed to extend his dominions indefinitely and hold all those States as the prize of victory while you and your soldiers cannot pride yourselves on the conquest of two cities."

[36.35]The consul quite agreed, but he felt it somewhat humiliating to abandon the siege without accomplishing anything. Finally the matter was left for Quinctius to settle. He went back to that section of the walls from which the Aetolians had been calling out to him. They were still there and began to implore him still more earnestly to take pity on the nation of the Aetolians. On this he told some of them to come out to him; Phaeneas and others of their leaders at once went out. As they prostrated themselves at his feet, he said, "Your unhappy plight makes me check the expression of my angry feelings. What I told you beforehand would come to pass has actually happened, and you have not even the comfort left you of believing that you do not deserve your fate. Since, however, I have been somehow destined to be the nursing father of Greece, I shall not desist from showing kindness even to those who have shown themselves ungrateful. Send a deputation to the consul and ask him for an armistice to allow you time to send envoys to Rome with instructions to place yourselves entirely at the mercy of the senate. I will support you before the

consul as your advocate and intercessor." They followed his advice and the consul was not deaf to their appeal; an armistice was granted until the result of the mission to Rome was known; the siege was raised and the army sent into Phocis. The consul accompanied by T. Quinctius went to Aegium to attend a meeting of the Achaean council. The subjects of discussion were the entrance of the Eleans into the league and the restoration of the Lacedaemonian exiles. Neither question was settled; the Achaeans preferred that the latter should be left to them to carry out as an act of grace, and the Eleans wished their incorporation into the league to be spontaneous on their part rather than that it should be effected through the Romans.

A deputation from the Epirots visited the consul. It was pretty generally understood that their professions of friendship were insincere, for though they had not furnished Antiochus with troops it was alleged that they had given him pecuniary assistance and they made no attempt to deny that they had opened negotiations with him. Their request to be allowed to continue on the old friendly footing was met by the consul with the remark that he did not know whether he was to regard them as friends or as foes. The senate would decide that; he referred their whole cause to Rome, and for that purpose he granted them an armistice for ninety days. When they appeared before the senate they were more concerned to mention acts of hostility which they had not committed than to clear themselves from the actual charges made against them. The reply they received was such as to make them understand that they had obtained pardon rather than proved their innocence. Just before this a deputation from Philip was introduced into the senate to present his congratulations upon the recent victory and to request to be allowed to offer sacrifices in the Capitol and place an offering of gold in the temple of Jupiter Optimus Maximus. On receiving the senate's permission they deposited a golden crown weighing 100 pounds. Not only was this gracious reception accorded to them, but Philip's son Demetrius, who was living in Rome as a hostage, was placed in their hands to be taken back to his father. Such was the close of the campaign which Manius Acilius the consul conducted against Antiochus in Greece.

[36.36]The other consul, Publius Cornelius Scipio, had in the ballot drawn Gaul as his province. Before leaving for the coming war with the Boii he asked the senate to vote a sum of money for the Games

which he had vowed in the crisis of battle during his praetorship in Spain. They looked upon his request as unprecedented and unjustifiable and passed a resolution to the effect that as he had vowed Games on his own initiative without consulting the senate he should meet the cost of them from the proceeds of the spoils taken from the enemy, if he had any money reserved for the purpose, otherwise he must bear the expense himself. He celebrated the Games for ten days. The temple of Mater Magna Idaea was dedicated about this time. It was during the consulship of P. C. Scipio - afterwards called Africanus - and P. Licinius that the goddess was brought from Asia; the above-named P. Cornelius conducted her from the harbour to the Palatine. The censors, M. Livius and C. Claudius, had signed the contract for the building in accordance with instructions from the senate during the consulship of M. Cornelius and P. Sempronius. After the lapse of thirteen years M. Junius Brutus dedicated it, and the Games which were exhibited on the occasion of its dedication were, according to Valerius Antias, the first scenic Games ever given and were called the Megalesia. Another dedication was that of the temple of Juventas in the Circus Maximus, which was carried out by C. Licinius Lucullus. M. Livius had vowed it on the day when he destroyed Hasdrubal and his army, and when he was censor he signed the contract for its construction in the consulship of M. Cornelius and P. Sempronius. Games were celebrated in connection with this dedication also and everything was done with greater solemnity in view of the fresh war which was impending with Antiochus.

[36.37]At the beginning of the year in which the above events took place, before M. Acilius had left for the war and whilst P. Cornelius was still in Rome, various portents were announced. There is a tradition that two tame oxen in the Carinae climbed up the stairs on to the flat roof of a building. The haruspices ordered them to be burnt alive and the ashes thrown into the Tiber. At Terracina and Amiternum several showers of stones were said to have fallen. At Menturnae the temple of Jupiter and the booths round the forum were reported to have been struck by lightning, and at Volturnus two ships in the mouth of the river which had been similarly struck were burnt out. In consequence of these portents the senate gave directions for the decemviri to consult the Sibylline Books, and they ordained that a fast day must be instituted in honour of Ceres to be

observed every five years; that the sacrifices should be offered for nine days and solemn intercessions for one day, the suppliants to wear wreaths of laurel leaves, and that the consul should offer sacrifice to such deities and with such victims as the decemvirs should name. After the gods had been appeased and the portents duly expiated the consul left for his province. On his arrival he ordered the proconsul Cneius Domitius to disband his army and depart for Rome; he himself led his army into the country of the Boii.

[36.38] Shortly before this the Ligurians had assembled an army under the "Lex Sacrata" and made a sudden attack upon the camp where the proconsul Q. Minucius was in command. He kept his men drawn up within the rampart until daybreak to prevent the enemy from getting over his lines at any point. As soon as it was light he made a sortie from two of the camp gates simultaneously. But the Ligurians were not, as he had expected, repulsed at the first attempt; for more than two hours they maintained the struggle without either side gaining any advantage. At length, as detachment after detachment issued from the camp, and fresh troops relieved those who were exhausted with fighting, the Ligurians, worn out and suffering especially from want of sleep, turned and fled. Over 4000 of the enemy were killed, the Romans and allied troops lost less than 300. About two months later, P. Cornelius fought a most successful action with the army of the Boii. Valerius Antias states that 28,000 of the enemy were slain and 3400 made prisoners, and that the spoils included 124 standards, 1230 horses and 247 wagons, whilst in the victorious army 1484 men fell. Though we can place little confidence in this writer so far as numbers are concerned, for no one is more reckless in exaggerating them, it was evidently a great victory, for the camp of the Boii was captured and they made their surrender immediately after the battle. Moreover, special thanksgivings were ordered by the senate for the victory and full-grown victims sacrificed.

[36.39] It was about this time that M. Fulvius Nobilior entered the City in ovation after his return from Further Spain. He brought over 10,000 pounds of silver, 13,000 silver denarii and 127 pounds of gold. After receiving the hostages from the Boii, P. C. Scipio by way of punishment mulcted them of nearly half their territory in order that the Roman people might if they chose settle colonists on it. When on the point of departure to celebrate, as he confidently expected, his

triumph, he disbanded his army with orders to be in Rome by the day of triumph. The day following his arrival the senate met in the temple of Bellona and after he had given a full account of his campaign he requested to be allowed to make a triumphal entry into the City. One of the tribunes of the plebs, P. Sempronius Blaesus, was of opinion that though the honour of a triumph ought not to be refused altogether it ought to be delayed. The wars with the Ligurians, he said, were always closely connected with those against the Gauls, for these nations being neighbours rendered each other mutual help. If after his decisive defeat of the Boii Scipio had either crossed the Ligurian frontiers with his army or sent a part of his force to the assistance of Q. Minucius, who had now been detained there three years by an indecisive war, the Ligurian resistance might have been completely broken. In order to swell his triumph he had now brought back soldiers who could have rendered invaluable service to the commonwealth and could do so still if the senate would agree to make good what he in his haste to enjoy a triumph had left undone by delaying that triumph. He should be ordered to return with his legions to his province and see that the Ligurians were thoroughly subdued; unless they were brought under the dominion of Rome the Boii would be in a constant state of unrest; whether it be peace or war it must be with both of them together. When he has reduced the Boii to submission P. Cornelius will enjoy his triumph a few months hence like many before him who did not celebrate their triumph during their year of office.

[36.40]The consul in his reply reminded the tribune that he did not receive Liguria as his province nor was it with the Ligurians that he had been at war, nor was it over the Ligurians that he asked for a triumph. Q. Minucius would, he felt quite sure, soon subjugate them, and then he would ask for a triumph and it would be granted him because it would be well deserved. He (the speaker) was asking for a triumph over the Boii after defeating them in battle, depriving them of their camp, receiving the submission of the entire nation two days after the battle, and bringing away a number of hostages as a guarantee of peace for the future. But a much stronger reason for his request being granted was the fact that the number of Gauls killed amounted to more than all the thousands of Boii, to say the least, with which any Roman general before his time had ever fought. Out of 50,000 men more than half had fallen, many thousands had been

made prisoners, only old men and boys were left among the Boii. Could then anyone wonder why the victorious army after leaving not a single active enemy in the province had come to Rome to grace the consul's triumph? "If," he continued, "the senate wishes to employ these soldiers in another field, in what way do you think they will be made more ready to face fresh toils and dangers? By recompensing them in full for the perils and labours they have already undergone, or by sending them off with expectations instead of rewards after they have been cheated of the hopes already formed? As for myself, I had glory enough to last my lifetime on the day when the senate judged me to be the best and worthiest in the commonwealth and sent me to receive Mater Idaea. The bust of P. Scipio Nasica will be sufficiently honoured by bearing that record inscribed upon it though neither consulship nor triumph were added."

Not only were the senate unanimous in decreeing a triumph, but the tribune bowed to their authority and withdrew his opposition. So the consul P. Cornelius triumphed over the Boii. In the triumphal procession armour, weapons, standards and booty of all descriptions, including bronze vases, were carried in Gaulish wagons. There were also borne in the procession 1471 golden torques, 247 pounds of gold, 2340 pounds of silver, partly in bars, partly wrought, not inartistically, into native vessels, and 23,400 silver denarii. To each of the soldiers who marched behind his chariot he gave as largesse 125 ases, twice as much to each centurion, and three times as much to each of the horsemen. The next day the Assembly met, and in his speech he gave an account of his campaign and dwelt on the injustice of their tribune in trying to involve him in a war which was outside his province, and so rob him of the fruits of the victory which he had won. At the close of his speech he released his men from their military oath and discharged them.

[36.41]All this time Antiochus was stopping in Ephesus quite unconcerned about the war with Rome as though the Romans had no intention of landing in Asia. This apathy was due either to the blindness or the flattery of most of his councillors. Hannibal, who at that time had great influence with the king, was the only one who told him the truth. He said that so far from feeling any doubt about the Romans going, his only wonder was that they were not there already. The voyage, he pointed out, from Greece to Asia was shorter than from Italy to Greece, and Antiochus was a more dangerous foe

than the Aetolians, nor were the arms of Rome less potent on sea than on land. Their fleet had been for some time cruising off Malea, and he understood that fresh ships and a fresh commander had come from Italy to take part in the war. He begged Antiochus therefore to give up all hopes of being left in peace. Asia would be the scene of conflict, for Asia itself he would have to fight by sea and by land, and either he must wrest the supreme power from those who were aiming at world-wide dominion or else he must lose his own throne. The king realised that Hannibal was the only one who saw what was coming and told him the honest truth. Following his advice, he took all the ships that were ready for war to the Chersonese in order to strengthen the places there with garrisons in case the Romans came by land. Polyxenidas received instructions to fit out the rest of the fleet and put to sea, and a number of scouting vessels were sent to patrol the waters round the islands.

[36.42]C. Livius was in command of the Roman fleet. He proceeded with fifty decked ships to Neapolis, where the open vessels which the cities on that coast were bound by treaty to furnish had received orders to assemble. From there he steered for Sicily and sailed through the strait past Messina. When he had picked up the six vessels which had been sent by Carthage and the ships which Regium and Locris and the other cities under the same treaty obligation had contributed he performed the lustration of the fleet and put out to sea. On reaching Corcyra, which was the first Greek city he came to, he made inquiries as to the state of the war - for peace did not prevail throughout Greece - and the whereabouts of the Roman fleet. When he learnt that the consul and the king were encamped near the Pass of Thermopylae, and that the Roman fleet was lying in the Piraeus, he felt that for every reason he ought to lose no time and at once set sail for the Peloponnese. As Same and Zacynthus had taken the side of the Aetolians he devastated those islands and then shaped his course to Malea, and as the weather was favourable he reached the Piraeus in a few days and here he found the fleet. Whilst off Scyllaeum he was joined by Eumenes with three ships. Eumenes had remained for some time at Aegina, unable to make up his mind what to do, whether to return home and defend his kingdom, as he was constantly being told that Antiochus was concentrating naval and military forces at Ephesus. or whether to remain in close touch with the Romans, on whom he knew that his fate depended. A. Atilius

handed over to his successor the twenty-four decked ships in the Piraeus, and then left for Rome. Livius sailed to Delos with eighty-one decked vessels and many smaller, some undecked and beaked, others without beaks, to be used as scouts.

[36.43]The consul was laying siege to Naupactus at the time. Livius was detained at Delos by contrary winds for several days; the seas round the Cyclades are liable to violent storms, owing to the numerous channels, some narrower, some wider, which separate the islands. Polyxenidas received intelligence through the scouting vessels which were patrolling those waters that the Roman fleet was lying at Delos, and he sent on the information to the king. Antiochus abandoned his designs in the Hellespont and returned to Ephesus with all possible speed, taking his warships with him. He at once called a council of war to decide whether he ought to risk an engagement. Polyxenidas was opposed to any delay, and said that they certainly ought to engage before Eumenes and the Rhodians joined the Roman fleet. In that case they would not be so very unequally matched in point of numbers and in everything else they would have the advantage, in the speed of their vessels and in various other respects, for the Roman ships were awkwardly built and slow, and as they were going to a hostile country they would be heavily laden with stores, whilst the king's ships, having none but friends all round them, would carry nothing but soldiers and their equipment. They would be greatly assisted, too, by their familiarity with the sea and the coasts and their knowledge of the winds; the enemy on the other hand, who was ignorant of all this, would be thrown into confusion by them. The council unanimously approved of his proposal, since the man who made it was also the one who was to carry it out.

Two days were spent in preparations, on the third day they set sail for Phocaea with a fleet of a hundred ships, seventy decked, the rest open ships, but all smaller than the corresponding vessels of the enemy fleet. On hearing that the Roman fleet was approaching, the king, who had no intention of taking part in a naval battle, withdrew to Magnesia ad Sipylum to assemble his land forces, the fleet sailing on to Cissus, the port of Erythrae, as that appeared a more suitable place in which to await the enemy. The Romans had been detained at Delos for some days by northerly winds; when these subsided they put out from Delos and steered for the harbour of Phanae, at the

southern end of Chios, facing the Aegean. They then brought their ships up to the city, and after taking in supplies sailed to Phocaea. Eumenes, who had gone to his fleet at Elea, returned in a few days with twenty-four decked ships and a larger number of open ones, and sailed on to Phocaea, where he found the Romans getting their ships ready and making every preparation for the coming naval contest. From Phocaea they put to sea with one hundred and five decked ships and about fifty open ones. At first they were driven towards the land by the northerly winds which blew across their course and were forced to sail in almost a single line; when the wind became less violent they endeavoured to make the harbour of Corycus, which lies beyond Cissus.

[36.44]When news was brought to Polyxenidas of the approach of the Roman fleet he was delighted at the prospect of a fight. Extending his left towards the open sea he ordered the captains of the right division to align their ships towards the land, and in this way he advanced to battle with a straight front. On seeing this the Roman commander took in sail, lowered his masts, and stowing away the tackle waited for the ships in the rear to come up. His front line now consisted of thirty ships, and in order to make it extend as far as the enemy's left he directed these vessels to set up their foresails and steer for the open sea; those behind, as they came up, were ordered to direct their course landward against the enemy's right. Eumenes was bringing up the rear, but as soon as he saw the hurried removal of the masts and rigging he urged his ships on with all possible speed. Full in view of both fleets were two Carthaginian vessels which outstripped the Roman fleet and three of the king's ships went to meet them. The inequality of numbers enabled two of these to close on one of the Carthaginian vessels, and after shearing off both banks of oars they boarded it and flinging overboard or killing the defenders captured the ship. The other Carthaginian ship which had only one opponent, seeing its sister-ship captured, fled back to the Roman fleet before the three could make a simultaneous attack upon it. Livius was furious and made straight in his flagship for the enemy, and as the two vessels which had overpowered the single Carthaginian ship bore down upon him, expecting the same success, he ordered the rowers to back water on both sides so that the way of the ship might be stopped. Then he ordered them to hook their grappling irons on to the enemy ships and when they had made a

soldiers' battle of it to remember that they were Romans and not to look upon the slaves of Antiochus as men. This one ship now defeated and captured the two much more easily than the two had captured the single one previously. By this time the fleets were engaged along the whole line and as the fighting went on the ships became everywhere intermixed. Eumenes, who had come up after the battle had commenced seeing that Livius had thrown the enemy's left into confusion, attacked the right division where the struggle was still an equal one.

[36.45]It was not long before the enemy's left division took to flight, for when Polyxenidas saw that he was clearly worsted as far as the courage of his soldiers was concerned he lowered his foresails and fled away in disorder, and those who had been engaged with Eumenes near the land very soon did the same. As long as the rowers could hold out and there was any chance of harassing the hindmost ships Eumenes and the Romans kept up a vigorous pursuit. But when they found that owing to the speed of the enemy's ships, which were light as compared with theirs, loaded as they were with supplies, their attempt to overtake them was baffled, they desisted from the pursuit, after capturing thirteen vessels with their troops and crews and sinking ten. The only vessel lost in the Roman fleet was the Carthaginian vessel, overpowered by the two assailants at the beginning of the battle. Polyxenidas did not stop his flight till he was in the harbour of Ephesus. The Romans remained for that day at Cissus, from which place the king's fleet had gone out to battle; the next day they continued to follow up the enemy. Midway on their course they were met by twenty-five decked ships from Rhodes under the command of Pausistratus. With their united fleets they still followed up the enemy and appeared in line of battle before the entrance of the harbour. After they had thus forced the enemy to admit his defeat, the Rhodians and Eumenes were sent home and the Romans started for Chios. They sailed past Phocaea, one of the Erythraean ports, and then anchored for the night. The next day they sailed up to the city itself. Here they stayed for a few days mainly to recruit the crews and then they proceeded to Phocaea. Here four quinqueremes were left to guard the city and the fleet went on to Canae, where as the winter was approaching the ships were drawn up on land and protected by a ring of entrenchments. At the close of the year the elections were held. The new consuls were L. Cornelius

Scipio and C. Laelius, and all were looking upon Africanus to end the war with Antiochus. The praetors elected on the following day were M. Tuccius, L. Aurunculeius, Cn. Fulvius, L. Aemilius, P. Junius and C. Atinius Labeo.

BOOK 37: FINAL DEFEAT OF ANTIOCHUS

[37.1]After the new consuls had taken office and the obligations of religion had been discharged the position of the Aetolians took precedence of all other subjects of discussion in the senate. Their envoys pressed for an audience as the period of the armistice was drawing to a close, and they were backed up by T. Quinctius, who had by that time returned to Rome. Knowing that they had more to hope from the clemency of the senate than from the strength of their case, they adopted a suppliant attitude and brought up their former good services as a counterpoise to their recent misdoings. However, while in the House, they were subjected to a fire of questions from all sides, the senators endeavouring to force from them a confession of guilt rather than definite replies, and after they were ordered to withdraw they gave rise to a very lively debate. The feeling of resentment against them was stronger than that of compassion, for the senate were embittered against them not only as enemies, but as a wild race whose hand was against every man. The debate went on for several days, and it was finally decided that peace should neither be granted to them nor refused. They were offered two alternatives: either to place themselves unreservedly in the hands of the senate or to pay a fine of 1000 talents and have the same friends and enemies as Rome. When they endeavoured to get some idea of the matters in regard to which they were to be at the senate's disposal they got no definite reply. The same day they were sent away from the City without having obtained peace and were ordered to leave Italy within the fortnight.

Then the question of the consular provinces came up. Both the consuls wanted Greece. Laelius possessed great influence in the senate, and when it was decided that the consul should either ballot or come to a mutual agreement about their provinces he observed that he and his colleague would act more gracefully if they left the matter to the judgment of the senate rather than to the chances of the ballot. Scipio said in reply that he should consider what he ought

to do, and after a private conversation with his brother, who insisted upon his leaving the matter in the hands of the senate, he told his colleague that he would do what he advised. This method of procedure as being either unprecedented or resting on precedents of which no record survived was expected to lead to a debate, but P. Scipio Africanus declared that if the senate decreed Greece to his brother Lucius he would serve under him. This declaration met with universal approval and put an end to any further discussion. The senate were glad of the opportunity of finding out which would receive most help - Antiochus from the vanquished Hannibal or the consul and legions of Rome from his vanquisher Scipio, and they almost unanimously decreed Greece to Scipio and Italy to Laelius.

[37.2]The praetors then balloted for their provinces. L. Aurunculeius received the urban and Cneius Fulvius the alien jurisdiction; L. Aemilius Regillus the command of the fleet; P. Junius Brutus the administration of Etruria; M. Tuccius, Apulia and Bruttium; and C. Atinius, Sicily. The consul to whom Greece had been decreed, in addition to the army of two legions which he was to take over from Manius Acilius, was further reinforced by 3000 Roman infantry and 100 cavalry and allied troops to the number of 5000 infantry and 200 cavalry. It was further decided that after he had arrived in his province he should, if he thought it expedient, take his army into Asia. The other consul was supplied with an entirely fresh army, two Roman legions and 15,000 infantry and 600 cavalry from the allies. Q. Minucius had written to say that his province was pacified and the whole of the Ligurians had made their surrender; he was now ordered to take his army into the country of the Boii and hand it over to P. Cornelius, who was acting as proconsul. The city legions which had been raised the previous year were to be withdrawn from the territory of which the Boii had been mulcted after their defeat and given to the praetor M. Tuccius. These, reinforced by 15,000 allied infantry and 600 cavalry, were to occupy Apulia and Bruttium. A. Cornelius, who had commanded in Bruttium as praetor during the past year, received instructions to transfer his legions to Aetolia if the consul approved and hand them over to Manius Acilius in case he wished to remain there, but if Acilius preferred to return to Rome, Cornelius was to keep that army in Aetolia. It was further arranged that C. Atinius Labeo should take over the province of Sicily and the army of occupation from M. Aemilius and raise reinforcements if he

wished to do so in the island itself to the number of 2000 infantry and 100 cavalry. P. Junius Brutus was to raise a new army for service in Etruria consisting of one Roman legion and 10,000 infantry and 400 cavalry of allied troops. L. Aemilius, to whom the naval command had fallen, was to receive from his predecessor, M. Junius, twenty ships of war with their crews and to enlist in addition 1000 seamen and 2000 infantry soldiers to serve as marines. With his fleet thus manned he was to proceed to Asia and take over the fleet which C. Livius had commanded. The praetors commanding in the two Spains were continued in office and retained their armies. Sicily and Sardinia were each required to supply two-tenths of their corn harvest for the year; the whole of the corn from Sicily was to be transported to Aetolia for the use of the army, that from Sardinia was to go partly to Rome and partly to Aetolia, like the corn from Sicily.

[37.3] Before the consuls left for their provinces it was resolved that various portents should be expiated according to the directions of the pontiffs. The temple of Juno-Lucina in Rome was struck so seriously by lightning that the pediment and great doors were much damaged. At Puteoli, one of the gates and numerous portions of the wall were similarly struck and two men killed. At Nursea it was definitely reported that a thunderstorm suddenly burst out of a cloudless sky; there also two men were killed, both freemen. The people of Tusculum announced that a shower of earth had fallen in their district, and at Reate a mule was said to have had a foal. These portents were duly expiated and the Latin Festival was celebrated a second time owing to the Laurentians not having received their due portion of the sacrifice. To allay the religious fears which these various incidents aroused, a solemn intercession was offered, as directed by the Keepers of the Sacred Books, to those deities which, after consulting the rolls, they named. Ten free-born boys and ten maidens, all of whose fathers and mothers were alive, were employed about that sacrifice, and the Keepers of the Sacred Books offered up sacrifices of sucklings in the night. Before his departure, P. Cornelius Scipio erected an arch on the Capitol facing the road up to the temple, with seven gilded human statues and two equestrian ones. He also set up in front of the arch two marble basins. During this time forty-three of the Aetolian leading men, including Damocritus and his brother, were brought to Rome by two cohorts sent by Manius Acilius. On their arrival they were thrown into the Lautumiae, and

the cohorts were ordered to the army. A deputation came from Ptolemy and Cleopatra to offer their congratulations on the expulsion of Antiochus from Greece by the consul Acilius, and to urge the senate to send an army into Asia, as not only in Asia but even throughout Syria there was a universal feeling of alarm. The two sovereigns declared their readiness to carry out the behests of the senate, and a vote of thanks to them was passed. Each member of the deputation received a present of 4000 ases.

[37.4]When the business which he had to transact in Rome was finished, L. Cornelius gave notice in the Assembly that the men whom he had enlisted and those who were with A. Cornelius in Bruttium were all to assemble at Brundisium by 15th July. He also appointed three officers, Sextus Digitius, L. Apustius and C. Fabricius Luscinus, to collect the ships from all parts of the coast at the same place, and all his preparations being now completed, he set out from the city, wearing his paludamentum. As many as 5000 volunteers, Roman and allied troops who had served their time under P. Africanus, were waiting for the consul on his departure and gave in their names for active service. At the time of the consul's departure, whilst the Games of Apollo were being celebrated, the daylight was obscured, though the sky was clear, by the moon passing under the orb of the sun. L. Aemilius Regillus set out at the same time to take command of the fleet. L. Aurunculeius was commissioned by the senate to undertake the construction of thirty quinqueremes and twenty triremes. This step was due to a report that since the naval battle Antiochus was fitting out a considerably larger fleet than he had on that occasion. When the Aetolian envoys brought back word that there was no hope of peace, their government realised that the danger threatening them from Rome was more serious than the losses inflicted on them by the Achaeans who were harrying the whole of their sea-board which faced the Peloponnese. They had made up their minds that the Romans would return in the spring and lay siege to Naupactus, and in order to block their route they occupied Mount Corax. Acilius knew that this was what they were expecting, and he thought the better course would be to undertake something which they were not expecting; so he commenced an attack on Lamia. This place had almost been destroyed by Philip, and as the inhabitants were not apprehending any similar attempt, Acilius thought he might successfully surprise it.

After leaving Elatia his first encampment on the enemy soil was by the Spercheus; from there he made a night march, and by dawn had completely invested the place.

[37.5]As was natural in a surprise attack, there was considerable confusion and alarm, but a stouter resistance was offered than any one would have believed possible in such sudden danger. The men fought from the walls, the women carried up to them stones and missiles of every description, and though the scaling-ladders were placed at very many points against the walls, the defence was maintained for that day. Towards noon Acilius gave the signal for retiring, and took his troops back into camp, where they took food and rest. Before he dismissed his staff, he warned his men to be armed and ready before daybreak, and told them that till they had carried the city he should not take them back to camp. As on the previous day, he delivered several simultaneous assaults, and as the strength, the weapons, above all the courage, of the defenders began to fail, he took the city in a few hours. The booty found there was partly sold and partly divided amongst the soldiers. After the capture a council of war was held to decide what was to be done next. No one was in favour of going on to Naupactus as long as the Aetolians held Mount Corax. However, to avoid wasting the summer in inaction, and to prevent the Aetolians, after they had failed to obtain peace from the senate, from enjoying it through his own lack of enterprise, Acilius determined to attack Amphissa. He marched the army over Mount Oeta. and when he reached the city he did not, as at Lamia, attempt a combined assault upon the entire circuit of the walls, but he commenced a regular siege. The rams were brought up at several points, and though the walls were being battered, the townsmen made no attempt to prepare or invent anything to meet this kind of engine. All their hopes lay in their arms and their courage; they made frequent sorties and harassed the detached posts and even the men who were working the rams.

[37.6]The walls had, however, been shaken down in many places when news reached Acilius that his successor had landed in Apollonia, and was advancing through Epirus and Thessaly. The consul was coming with 13,000 infantry and 500 cavalry; he had already reached the Maliac Gulf, and had sent a detachment to Hypata to demand the surrender of that city. The reply was that the inhabitants refused to do so without the sanction of the national

council of Aetolia. Not wishing to lose time in the siege of Hypata while Amphissa was still holding out, he sent his brother Africanus on in advance and marched on Amphissa. Just before their arrival the citizens had abandoned their city, which was now to a large extent denuded of its walls, and had retreated, combatants and non-combatants alike, into the citadel which they held to be impregnable. The consul encamped about six miles distant from the place. A deputation from Athens arrived there to intercede for the Aetolians, and went first to Publius Scipio, who had, as stated above, gone on in advance, and then to the consul. They received a conciliatory reply from Africanus, who was keeping Asia and Antiochus in view and trying to find some honourable pretext for abandoning the Aetolian war. He told them that they must endeavour to persuade the Aetolians as well as the Romans to prefer peace to war. In consequence of the representations of the Athenians, a large deputation of Aetolians very soon came from Hypata and had an interview with Africanus. Their hopes of peace were considerably raised by what he said to them, as he pointed out how many tribes and nations in Spain and subsequently in Africa had thrown themselves on his protection, and how he had left everywhere nobler memorials of his clemency and kindness than of his military successes. They had to all appearance gained their end, when the consul, on being approached, gave them the very same answer as that with which they had been turned out of the senate. This unexpected treatment was a great blow to the Aetolians, for they saw that they had gained nothing either through the intervention of the Athenians or the considerate reply of Africanus.

[37.7] They returned to Hypata without seeing any way out of their difficulties. They had no fund from which they could pay 1000 talents, and if they made an unconditional surrender they were afraid they might have to suffer in person. So they instructed the same deputation to go back to the consul and Africanus, and implore them, if they were willing really to grant them peace and not simply dangle it before their eyes and cheat the hopes of their unhappy nation, either to reduce the sum fixed for them to pay, or make the conditions of surrender such that they would not affect the personal safety of the citizens. They could not induce the consul to make any change in the conditions, and the deputation was again sent away with nothing gained. The Athenian deputation followed them to

Hypata. The Aetolians had completely lost heart after so many rebuffs and were deploring in unavailing lamentation the hard fortune of their nation, when Echedemus, the leader of the Athenian deputation, recalled them to a more hopeful frame of mind by suggesting that they should ask for a six months' truce so that they might send envoys to Rome. The delay, he pointed out, would in no way aggravate their present distress which had reached the extreme point, and many things might happen in the interval to lighten it. Acting on his advice the same delegates were sent again. They first obtained an interview with P. Scipio and through his instrumentality they obtained from the consul a truce for the time they asked for.

Manius Acilius raised the siege of Amphissa and after handing over his army to the consul left Greece. The consul returned from Amphissa into Thessaly with the intention of marching through Macedonia and Thrace into Asia. On this Africanus observed to his brother: "The route which you are selecting I too quite approve of, but everything depends upon Philip's attitude. If he is faithful to us he will give us free passage, and furnish us with supplies and everything necessary for an army during a long march. If he proves untrustworthy you will find no part of Thrace safe. I think, therefore, that the king's intentions ought to be ascertained. That will be best done if your emissary pays him a surprise visit before he has taken any preparatory steps." Tiberius Sempronius Gracchus, by far the ablest and most energetic young man of his time, was selected for the task, and by using relays of horses he travelled with incredible speed and reached Pella three days after leaving Amphissa. He found the king at a banquet; he had drunk deeply, and the mere fact of his giving way to this self-indulgence removed any suspicion that he was contemplating any change in his policy. His guest received a courteous welcome and on the following day he saw provisions in lavish abundance ready for the army, bridges thrown over the rivers, and roads made where there were difficulties of transport. Returning as quickly as he had come, he met the consul at Thaumaci and reported what he had seen. The army felt more confident and hopeful and marched away in high spirits, to find everything prepared for them in Macedonia. On their arrival the king received them in royal state and accompanied them on their march. He displayed great tact and refinement, qualities which recommended him to Africanus, who, singularly distinguished as he was in other respects, did not

object to politeness and courtesy if they were not accompanied by effeminacy. Philip accompanied them through Macedonia and through Thrace as well; he had everything that they required ready for them, and in this way they reached the Hellespont.

[37.8]After the sea-fight off Corycus Antiochus had the whole winter free for fresh preparations both on sea and land, but he devoted himself mainly to fitting out his fleet in order that he might not be deprived of all command of the sea. He reflected that his defeat occurred during the absence of the Rhodian fleet, and if they took part in the next battle - and he was sure they would not commit the fault of being too late again - he would need a large number of ships so as to be equal to the enemy in ships and men. He accordingly sent Hannibal to Syria to bring the Phoenician vessels, and he gave Polyxenidas orders to refit what ships there were and to construct fresh ones. The less his success in the past, the greater must be his energy in preparing for the future. Antiochus spent the winter in Phrygia and, summoning assistance from all sides, had even sent to Gallograecia. The population there were more warlike at that time than in later years; they still retained the Gaulish temperament as the original stock had not yet died out. Antiochus had left his son with an army in Aeolis to hold the cities on the coast which Eumenes on the one side from Pergamum and the Romans on the other from Phocaea and Erythrae were trying to win over. The Roman fleet, as already stated, was wintering at Canae, and Eumenes went there about mid-winter with 2000 infantry and 500 cavalry. He represented to Livius what an amount of plunder might be carried off from the enemy's country and he persuaded him to send him on an expedition with 5000 men, and in a few days they brought away an enormous amount.

[37.9]Meantime a revolutionary movement was started in Phocaea by certain individuals who tried to enlist the sympathies of the populace on the side of Antiochus. They had various grievances; the presence of the ships in their winter quarters was a grievance; the tribute of 500 togas and 50 tunics was a grievance; the scarcity of corn was an additional and a serious grievance. Owing to this scarcity the Roman force in occupation left the place, and now the party which were haranguing the plebs in favour of Antiochus were freed from all apprehensions. The senate and aristocracy were for maintaining the alliance with Rome, but the revolutionaries had more influence with

the masses. The Rhodians made up for their slackness the previous summer by sending Pausistratus at the vernal equinox with six-and-thirty ships. Livius left Canae with thirty vessels and in addition the seven quinqueremes which Eumenes had brought with him, and set sail for the Hellespont in order to make preparations for the transport of the army which he was expecting to come overland. He first put into the harbour called "The Haven of the Achaeans." Here he went up to Ilium and offered sacrifice to Minerva, after which he gave a gracious audience to deputations from the neighbouring towns of Elaeus, Dardanus and Rhoeum, who came to place their respective localities under the protection of Rome. From there he sailed to the mouth of the Hellespont, and stationing ten ships opposite Abydos he sailed with the rest to the European shore to attack Sestus. His men were already approaching the walls when they were met by a body of hierophants known as "Galli" in their priestly robes who announced that they were the ministers of Mater Dea, the mother of the gods, and it was at her command that they had come to pray the Romans to spare the city and its walls. No violence was offered to any of them, and presently their senate and magistrates came forward to make a formal surrender of the city. From there the fleet sailed to Abydos. Here interviews took place with the citizens with the object of winning them over, but as no friendly response was given, the Romans made preparations for a siege.

[37.10] During these operations in the Hellespont, Polyxenidas, the king's lieutenant and a Rhodian refugee, received tidings of the departure from home of his country's fleet and also of the insolent and contemptuous way in which the commandant, Pausistratus, had spoken of him in public. This made the contest between them a personal one, and Polyxenidas thought of nothing else night or day but how to give the lie to the man's bombast by his deeds. He sent a man who was well known to Pausistratus to tell him that if Polyxenidas were allowed to do so he might be of great service to Pausistratus and to his country. Pausistratus was much surprised and inquired in what way this could be brought about. When he had given his word at the other's request that he would either co-operate in the scheme or conceal it in silence, the intermediary informed him that Polyxenidas would betray to him the whole of the king's fleet or at all events the greater part of it, and that the only reward he claimed for so great a service was the restoration to his native land. The offer

was too important a one for Pausistratus either to place full confidence in or absolutely to decline. He sailed to Panhormus, a harbour in Samos, and stayed there to examine the proposal more closely. Messages passed to and fro between them, but Pausistratus was not quite reassured until Polyxenidas had, in the presence of the messenger, written down with his own hand the terms of the promise he made, and affixed his seal to the document. Pausistratus thought that by a definite pledge like that the traitor would be at his mercy, for as Polyxenidas was living under an autocrat he would never dare to give what he had signed with his own hand as evidence against him. Then the plan of the pretended treachery was arranged. Polyxenidas said that he would not make any further preparations whatever, he would not keep any large number of rowers with the fleet, some of the vessels he should haul up on land, ostensibly for repairs, others he should disperse in neighbouring ports, a few he should keep at sea outside the port of Ephesus, so that if circumstances compelled him to go out he could expose them to battle. When Pausistratus heard that Polyxenidas was going to disperse his fleet in this way, he followed suit. One division of his fleet he sent to Halicarnassus for supplies, another he despatched to Samos . . . so that he might be ready to attack on receiving the signal from the traitor. Polyxenidas still further misled him by hauling up a certain number of ships and repairing the dockyards as though intending to haul up others. When the rowers were called up from their winter quarters, they were not sent to Ephesus but assembled secretly at Magnesia.

[37.11]A soldier out of Antiochus' army happened to come to Samos on private business. He was arrested as a spy and brought before the commandant at Panhormus. When questioned as to what was going on at Ephesus, either through fear or acting as traitor to his countrymen he disclosed everything, and asserted that the fleet was lying in the harbour completely equipped and ready for action, that all the rowers had been sent to Magnesia, that very few ships had been hauled up, that the dockyards were closed and that the naval service had never been more carefully looked after. Pausistratus was so completely obsessed by the deception practiced upon him and the vain hopes it had aroused that he would not believe what he heard. When all his preparations were made, Polyxenidas brought up the rowers from Magnesia by night and hastily launched the ships which

had been beached. He remained there through the day not to complete his dispositions so much as to prevent the fleet from being seen when it left the harbour. Starting after sunset with seventy decked ships, he put into the port of Pygela before daybreak as the wind was against him. Remaining there for the day for the same reason - to escape observation - he set sail at night for the nearest point on Samian territory. From there he ordered a man named Nicander, a pirate chieftain, to sail with five ships to Palinurus and take the troops from there by the shortest route across country to Panhormus in the rear of the enemy, whilst he himself proceeded thither with his fleet divided into two squadrons, so that he could hold the entrance to the harbour on either side.

Pausistratus was at first somewhat perturbed by this unexpected turn of events, but the old soldier soon pulled himself together and thinking that the enemy could be more easily checked on land than on the sea he sent two divisions of his troops to occupy the headlands which curving inward from the sea like two horns, form the harbour. He expected to repulse the enemy easily by attacking him from both sides, but the sight of Nicander on the land above upset his plan, and suddenly changing his tactics he ordered all to go on board. There was terrible confusion amongst the soldiers and seamen, and something like a flight to the ships took place when they found themselves surrounded landwards and seawards at the same time. Pausistratus saw that his only chance of safety lay in his being able to force a passage through the harbour into the open sea, and as soon as he saw all his men on board he ordered the fleet to follow him while he led the way with his vessel rowed at full speed towards the mouth of the harbour. Just as he was clearing it Polyxenidas closed round him with three ships, and his vessel, struck by their beaks, was sunk, the defenders were overwhelmed by a hail of missiles and Pausistratus, who fought most gallantly, was killed. Of the remaining ships some were taken outside the harbour, others within, and some were captured by Nicander while they were trying to put off from the shore. Only five Rhodian vessels and two from Cos escaped. They had kindled fires in braziers which they hung from poles projecting over the bows, and the terrifying sight of these flames enabled them to clear a way through the crowded ships. The Erythraean triremes which were coming to reinforce the Rhodian fleet met the fugitive vessels not far from Samos, and thereupon changed their course to

the Hellespont to join the Romans. Just before this Seleucus captured through an act of treachery the city of Phocaea; one of its gates was opened to him by a soldier on guard. The alarm this created led Cyme and other cities on that coast to go over to him.

[37.12] Whilst these events were occurring in Aeolis, Abydos had for several days been standing a siege, and the king's garrison had been defending the walls. At last, when all were weary of the struggle, the commandant, Philotas, entrusted the magistrates with the task of opening negotiations with Livius with a view to surrender. Matters were delayed by their being unable to agree as to whether the garrison should be allowed to depart with their arms or without them. Whilst they were discussing this point news arrived of the Rhodian defeat. This took the question out of their hands, for Livius, fearing lest Polyxenidas after such an important success should surprise the fleet at Canae, instantly abandoned the siege of Abydos and the protection of the Hellespont and put to sea the vessels which had been drawn up on the land there. Eumenes went to Elea and Livius sailed for Phocaea with the whole of his fleet and two ships which had joined him from Mitylene. On being informed that the place was held by a strong garrison for the king and that Seleucus was encamped not very far away, he raided the coast and hastily conveyed the spoil, mostly prisoners, on board his ships. He only waited till Eumenes came up with his fleet and then started for Samos. At Rhodes the tidings of the disaster caused widespread grief and alarm, for in addition to the loss in ships and men they had lost the flower and strength of their youth, for many of their nobles had amongst other motives been attracted by the character of Pausistratus which stood deservedly very high amongst his compatriots. But their grief gave place to anger at the thought of their having been the victims of treachery and, worst of all, at the hands of their own fellow-countrymen. They at once despatched ten ships and a few days later ten more, all under the command of Eudamus, a man by no means the equal of Pausistratus in other military qualities, but one who, they believed, would prove a more cautious leader, as possessing a less adventurous spirit. The Romans and Eumenes brought up the fleet first at Erythrae, where they stayed one night. The day following they kept their course to the headland of Corycus. From there they intended to cross over to the nearest point of Samos, but as they did not wait for the sunrise, from which the pilots could note the state of the sky, they sailed into

uncertain weather. When they were half-way the north-east wind backed into the north and they began to toss on the waves of an angry sea.

[37.13]Polyxenidas suspected that the enemy would make for Samos in order to form a junction with the Rhodian fleet. Putting out from Ephesus he first stood off Myonnesus, and from there sailed on to an island called Macris for the purpose of catching any stragglers from the fleet as it sailed past, or attacking, at advantage the hindmost ships. When he saw that the fleet was scattered by the storm he thought that his chance of attacking them had come, but in a short time the gale increased in violence and raised a heavy sea, making it impossible for him to approach them. He now steered for the island of Aethalia, intending to attack them the next day while they were putting into Samos. Towards evening a few Roman ships gained a deserted harbourage in the island, and the rest of the fleet, after tossing on the deep the whole night through, reached the same haven. Here they learnt from the peasants that the enemy's fleet was lying at Aethalia, and a council of war was held to decide whether they should seek a decision at once or wait for the Rhodian contingent. It was decided to put off the encounter and they returned to their base at Corycus. Polyxenidas also, after waiting in vain, returned to Ephesus. Now that the sea was clear of the hostile ships the Romans sailed to Samos. The Rhodian fleet arrived a few days later, and to show that the Romans had only been waiting for them, they left at once for Ephesus to bring about a decisive battle, or if the enemy declined battle, to force an admission that he was afraid to fight, which would very materially influence the attitude of the various cities. They lay off the entrance to the harbour with the ships all abreast in a long line. As no enemy appeared, one division of the fleet anchored at the harbour mouth, the other disembarked its marines who proceeded to devastate the country far and wide. While they were bringing back an enormous amount of plunder and passing near the walls, Andronicus, a Macedonian, who commanded the garrison of Ephesus, made a sortie, took a large part of the plunder from them and drove them back to the ships. The next day the Romans planted an ambushade about half-way between the city and the coast and advanced in line of march towards the city in order to draw the Macedonian outside the walls. Suspecting what had happened no one came out, and they marched back to their ships. As

the enemy shunned an encounter either on land or sea, the fleet returned to Samos. From this port the praetor despatched two vessels belonging to the Italian allies and two Rhodian ships under the command of Epicrates to the Strait of Cephallania. This sea was infested by pirates under the leadership of Hybristas a Lacedaemonian, and supplies from Italy were cut off.

[37.14] Lucius Aemilius Regillus, who succeeded to the command of the fleet, was met at the Piraeus by Epicrates. On hearing of the defeat of the Rhodians, as he himself had only two quinqueremes, he took Epicrates and his four ships with him to Asia, and some ships from Athens accompanied him. He crossed the Aegean to Chios. Timasicrates the Rhodian arrived there in the dead of night with two quinqueremes from Samos, and on being conducted to Aemilius, explained that he had been sent as an escort because the king's ships made those waters dangerous for transports by their constant excursions from the Hellespont and from Abydos. Whilst Aemilius was crossing from Chios to Samos he was met by two Rhodian quadriremes sent to him by Livius, and Eumenes also met him with two quinqueremes. On his arrival at Samos, Aemilius took over the fleet from Livius, and after the customary sacrifices had been duly offered he called a council of war. Livius was first asked for his opinion. He said that no one could give more sincere advice than the man who advised another to do what he would himself do, were he in his place. He had had it in his mind to sail to Ephesus with the whole of his fleet, including a number of transports loaded with ballast, and sinking these at the entrance of the harbour. This barrage would not involve much trouble because the mouth of the harbour was like that of a river, long, narrow and full of shoals. In this way he would have prevented the enemy from operating by sea and made his fleet useless.

[37.15] This suggestion found no supporters. Eumenes asked: "What do you mean? When you have barred access to the sea with the sunken ships whilst your own fleet is free, are you going to sail away to assist your friends and spread alarm amongst your enemies, or are you going to continue your blockade of the harbour just the same? If you leave the place, who can have the slightest doubt that the enemy will raise the sunken obstacles and open the harbour with less trouble than it will take us to close it? And if you have to remain here, what good will the closing of the harbour do? Nay, on the other hand, they

will spend the summer in the peaceful enjoyment of a harbour perfectly safe and a city filled with wealth, with all the resources of Asia at their command, whilst the Romans, exposed to waves and storms on the open sea and deprived of all supplies, will have to maintain a constant watch and will be themselves more tied up and debarred from doing what ought to be done than the enemy, in spite of their barriers." Eudamus, the commandant of the Rhodian fleet, expressed his disapproval of the plan without saying what he thought ought to be done. Epicrates gave it as his opinion that for the time being they ought to leave Ephesus out of account and send a portion of the fleet to Lycia to gain Patara, the capital of the country, as an ally. That course would possess two great advantages: the Rhodians with a friendly country opposite their island would be able to devote their undivided strength to the war with Antiochus, and his fleet which was being assembled in Cilicia would be prevented from joining Polyxenidas. This proposal weighed most with the council; it was, however, decided that Regillus should take the whole fleet to the port of Ephesus to overawe the enemy.

[37.16]C. Livius was sent to Lycia with two Roman quinqueremes, four Rhodian quadriremes and two undecked ships from Smyrna. His instructions were to visit Rhodes on his way and communicate his plans to the government. The cities which he passed on his voyage - Miletus, Myndus, Halicarnassus, Cnidus and Cos - fully met all his requirements. When he arrived in Rhodes he explained the object of his expedition, and asked their opinion on it. It was universally approved and three additional quadriremes were supplied for his fleet. He then set sail for Patara. A favourable wind carried them right up to the city, and they hoped that the suddenness of their appearance might frighten the citizens into deserting Antiochus. Afterwards the wind veered round and a heavy cross-sea arose. They succeeded by dint of hard rowing in holding the land, but there was no safe anchorage near the city and they could not lie off the harbour mouth in such a rough sea and with night coming on. Sailing past the city walls they made for the port of Phoenicus rather less than two miles away. This harbour afforded a safe shelter from the violence of the waves, but it was surrounded by high cliffs which the townsmen together with the king's troops who formed the garrison promptly occupied. Though the shore was rocky and landing difficult, Livius sent the contingent from Issa and the Smyranean light infantry to

dislodge them. As long as these light troops had only few to deal with they kept up the contest with missiles and desultory skirmishing more than with hand-to-hand fighting, but as more and more came out of the city in a constant stream and at last the whole of the able-bodied population were pouring out, Livius began to feel apprehensive lest his light troops should be cut off and the ships assailed from the shore. So he sent into the fight the whole of his troops, the seamen and even the rowers, armed with whatever weapons they could get hold of. Even then the battle hung in suspense and not only were a good many soldiers killed, but L. Apustius was amongst those who fell in this promiscuous fighting. The Lycians, however, were routed and driven back to their city and the Romans returned, victorious, but with considerable losses, to their ships. All idea of making any further attempt on Patara was abandoned; the Rhodians were sent home and Livius, sailing along the coast of Asia, crossed over to Greece to meet the Scipios who were in Thessaly at the time. Then he returned to Italy.

[37.17] Stress of weather had compelled Aemilius to abandon his station at Ephesus and he returned, without having effected anything, to Samos. Here he learnt that Livius had abandoned the Lycian campaign and left for Italy. He looked upon the failure at Patara as a humiliation and decided to sail thither with his whole fleet and attack the city with his full strength. Sailing past Miletus and the other friendly cities on the coast, he landed at Jasus in the bay of Bargyliae. The city was held by the king's troops; the Romans treated the country round as hostile and ravaged it. Then they tried to open negotiations with the magistrates and leading citizens with the view of inducing them to surrender, but after they assured him that they had no power whatever he prepared to storm the place. There were with the Romans some refugees from Jasus. These men went in a body to the Rhodians and implored them not to allow a city which was a neighbour and of the same nationality as they were to perish through no fault of its own. They pleaded that they had been expelled from their native town solely because of their fidelity to Rome, and those who still remained there were forcibly held down by the king's troops just as they had been forcibly expelled. The one desire in the breast of everyone in Jasus was to escape from their slavery to Antiochus. Moved by their entreaties and supported by Eumenes, the Rhodians urged upon the consul their ties of common nationality

with the besieged and the wretched plight of the city, beleaguered by the king's garrison. They succeeded in persuading him to desist from attacking it. Sailing away from there, as all the other cities were friendly, the fleet skirted the Asiatic shore and reached Loryma, a harbour opposite Rhodes. Here remarks were made by the military tribunes, in their private conversations, which at last reached the ears of Aemilius, to the effect that the fleet was withdrawn from Ephesus, its proper theatre of war, so that the enemy, left with full liberty of action, was able to make attempts on all the cities in his neighbourhood which were allied with Rome. Aemilius was so far influenced by what he heard that he summoned the Rhodians and inquired of them whether the whole of the fleet could find room in the harbour of Patara. On their assuring him that it could not, he made this a ground for abandoning his project, and took his ships back to Samos.

[37.18] During this time Seleucus, who had kept his army in Aeolis all the winter, engaged partly in rendering assistance to his allies and partly in ravaging the territories of those cities which he failed to win over, decided now to cross the frontiers of Eumenes whilst he was at a distance from home, engaged in attacking the maritime cities of Lycia in conjunction with the Romans and Rhodians. He began by threatening an attack on Elea, then abandoning the siege he ravaged the surrounding district, and then went on to attack Pergamum, the capital and stronghold of the kingdom. Attalus posted troops in front of the city and sent forward skirmishers of cavalry and light infantry to harass the enemy without meeting him in a regular engagement. When he found in these encounters that he was in no way a match for his foe, he retired within his walls and the investment of the city commenced. Antiochus left Apamea just about this time and encamped first at Sardis and then at the head of the Caicus, not far from Seleucus' camp, with a vast army drawn from various nations, the most formidable of whom were the Gaulish mercenaries, about 4000 strong. These, with a small admixture of other troops, were sent to devastate every part of the territory of Pergamum. As soon as news of this reached Samos, Eumenes, summoned home by this war within his borders, sailed direct to Elea, where a body of cavalry and light infantry were in readiness. Feeling himself safe with these, he hurried on to Pergamum before the enemy were aware or had made any movement to oppose him. Here again the fighting was confined

to skirmishes, as Eumenes firmly declined to risk a decisive action. A few days later the Roman and Rhodian fleets moved from Samos to Elea to support the king. When Antiochus received intelligence that troops were landed at Elea and that such a large naval force was concentrated in a single harbour, and at the same time learnt that the consul and his army were already in Macedonia, and that all preparations were being made for crossing the Hellespont, he thought that the time had come for discussing terms of peace, before he was beset both by land and sea. There was some rising ground over against Elea, and he selected this for the site of his camp. Leaving all his infantry there, and his cavalry, of which he had 6000, he went down into the plain which extended to the walls of Elea, and sent a herald to Aemilius to inform him that he wished to open up negotiations for peace with him.

[37.19]Aemilius invited Eumenes over from Pergamum and held a council, at which both Eumenes and the Rhodians were present. The Rhodians were not disinclined for peace, but Eumenes said that no peace proposals could be honourably entertained at that moment, nor could any final settlements be made. "How," he asked, "shall we, beleaguered and shut within our walls, listen with honour to any terms of peace? Or who will regard any peace settlement as valid if made without the consent of the consul, the authority of the senate and the order of the people of Rome? I put this question to you - If peace be made through you, are you going to return at once to Italy and carry away your army and your fleet, or will you wait to learn what the consul thinks, what decision the senate comes to, what order the people make? It remains, then, that you must stay in Asia and, all active operations suspended, your troops must be sent into winter quarters to drain the resources of your allies by the requisitions of your commissariat. And then, if the supreme powers so decide, we must begin the war all over again, whereas, if our strong offensive were in no way slackened or hampered by delay, we could have brought it to a close, if the gods so willed it, before winter sets in." This argument prevailed, and Antiochus was told that, till the consul arrived, there could be no discussion of the terms of peace. Finding his efforts to procure peace fruitless, Antiochus proceeded to devastate the lands of the people of Elea and then those belonging to Pergamum. Here he left Seleucus and continued his march with the intention of attacking Adramytteum, till he reached the rich

district known as the "Plain of Thebe," celebrated in the poem of Homer. In no other locality in Asia was a greater amount of plunder secured by the king's troops. Aemilius and Eumenes, sailing round with their fleet, also appeared before Adramytteum as a protection to the city.

[37.20]At this juncture a force despatched from Achaia, numbering 1000 infantry and 100 cavalry, approached Elea. On their landing they were met by a party sent by Attalus to conduct them to Pergamum. They were all veteran troops with war experience, and under the command of Diophanes, a pupil of Philopoemen, the foremost Greek general of his day. Two days were devoted to resting the men and horses, and also to keeping the enemy's advanced posts under observation and ascertaining at what points and at what hours they came on and went off duty. The king's troops made it a practice to advance up to the foot of the hill on which the city stands. In this way they acted as a screen, and the plundering parties behind them were not interfered with, as none came out of the city, not even to attack the advanced posts with missiles at long range. After the citizens had been once cowed by defeat they shut themselves within their wall, and the king's troops looked upon them with contempt and became careless. A great many did not keep their horses either saddled or bridled; a few were left standing to arms, while the rest were dispersed all over the plain, some betaking themselves to games and sports, others feeding under the shade of the trees, some even stretched in slumber.

Diophanes observed all this from Pergamum on the hill, and ordered his men to arm themselves and be in readiness at the gate. He then went to Attalus and told him that he had made up his mind to attack the enemy. With very great reluctance Attalus gave his consent, for he saw that he would have to fight with 100 cavalry against 600 and 1000 infantry against 4000. Diophanes went out from the gate and took up a position not far from the enemy's advanced posts and waited his opportunity. The people of Pergamum looked upon it as madness rather than courage, and the enemy, after keeping them under observation for some time, and seeing no movement of any kind, became careless as usual, and even ridiculed the smallness of their opponents' force. Diophanes made his men keep quiet for a while, then, when he saw that the enemy had broken up their ranks, he gave the infantry orders to follow as rapidly as possible, and

putting himself at the head of his troop of cavalry, charged the enemy's detachment at full speed, infantry and cavalry alike shouting their battle-cry. The enemy were thrown into a state of panic, even the horses were terrified and broke their halters, creating confusion and alarm amongst their own men. A few were not scared, and stayed where they were tethered, but even these the riders did not find it an easy task to saddle and bridle and mount, for the Achaean troopers were creating an alarm and terror out of all proportion to their numbers. The infantry, coming up in their ordered ranks, prepared for battle, attacked a foe carelessly scattered and almost half asleep. The whole plain was covered with the bodies of the slain, and men were everywhere fleeing for their lives. Diophanes kept up the pursuit as long as it was safe, and then retired to the shelter of the city walls, after winning great glory for the Achaeans, for the women as well as the men had watched the action from the walls of Pergamum.

[37.21]The next day the king's advanced posts, in better order and more careful formation, entrenched themselves half a mile further from the city, and the Achaeans went out about the same time and to the same place as on the previous day. For several hours the two sides were on the alert, as though in expectation of an immediate attack. When the hour for returning to camp came, just before sunset, the king's troops massed their standards and withdrew in order of march rather than of battle. As long as they could see him Diophanes kept quiet, then he charged the rear of the column as furiously as he did the day before, and again created such confusion and panic that, though they were being cut down from behind, no attempt was made to halt and face the enemy. They were driven to their camp in great disorder, with their ranks almost completely broken up. This dashing exploit of the Achaeans compelled Seleucus to remove his camp from Pergamene soil. On learning that the Romans had gone to protect Adramytteum, Antiochus left that city alone, and after ravaging the lands of Peraea, a colony from Mitylene, he carried the city itself by assault. Cotton, Corylenus, Aphrodisias and Prinne were taken at the first attempt. He then returned by way of Thyatira to Sardis. Seleucus remained on the coast, a terror to some and a protection to others. The Roman fleet in company with Eumenes and the Rhodians sailed to Mitylene, and from there to their base at Elea. They left that place for Phocaea and brought up at an island called Bacchium, opposite the city, which was rich in works of art.

On a former occasion they had spared the numerous temples and statues, but now they treated them as enemy property and plundered them. Then they sailed across to the city and after distributing the troops at different points of attack they commenced the assault. It seemed possible that it might be taken by escalade without the usual siege machinery, but after a contingent of 3000 men which Antiochus had sent for its defence had entered the city, the attack was at once abandoned and the fleet withdrawn to the island without accomplishing anything beyond the devastation of the country round the city.

[37.22]It was now decided that Eumenes should go home and make the necessary preparations for the passage of the consul and his army across the Hellespont, whilst the Roman and Rhodian fleets returned to Samos, and remained stationed there to prevent Polyxenidas from moving out of Ephesus. Here M. Aemilius the praetor's brother died. After the funeral honours had been paid, the Rhodians set sail for Rhodes with thirteen ships of their own, one quinquereme from Cos and one from Cnidus. They were to take up their station there in order to be ready for the fleet which was reported to be coming from Syria. Two days before Eudamus arrived with the fleet from Samos, a squadron of thirteen ships, together with four which had been guarding the coast of Caria, had been despatched from Rhodes under the command of Pamphilidas to meet this same Syrian fleet, and had raised the siege of Daedala and other fortified places belonging to Peraea which the king's troops were investing. Eudamus received instructions to sail again at once. The fleet which he had brought with him was augmented by six undecked ships, and with this force, by making all possible speed, he overtook the other at a harbour called Megiste. From there the combined fleets sailed on to Phaselis, which appeared to be the best position in which to await the enemy.

[37.23]Phaselis is situated on the confines of Lycia and Pamphylia and stands on a headland jutting out into the sea. It is the first land visible to ships sailing from Cilicia to Rhodes, and affords an extensive view seawards. This position was selected mainly because it lay on the route of the enemy fleet. One thing, however, had not been foreseen. Owing to the unhealthiness of the locality and the season of the year - it was midsummer - and also in consequence of a strange and mysterious smell, there was a great deal of sickness, especially among the men at the oars. Alarmed at the spread of this

epidemic they sailed away and passing the Pamphylian Gulf anchored off the mouth of the Eurymedon. Here they were informed by messengers from Aspendus that the enemy were at Sida. The progress of the king's fleet had been retarded by the Etesian winds, which blow from the N.W. at a fixed season. The Rhodian force consisted of thirty-two quadriremes and four triremes; the king's fleet numbered thirty-seven vessels of larger build; amongst them were three hepteres and four hexeres. There were in addition to these ten triremes. They, too, discovered from an observation post that the enemy were not far off. On the morrow, as soon as it was light, the two fleets left their anchorage, prepared to fight on that day. As soon as the Rhodians had rounded the point which projects into the sea from Sida, both fleets came at once in sight of each other. The left division of the king's fleet which stood out to sea was under Hannibal's command, the right under that of Apollonius, one of the court nobles, and they already had their ships in line. The Rhodians came on in a long column, Eudamus' ship leading, Chariclitus closing the rear and Pamphilidas commanding the centre. When Eudamus saw that the enemy were in line and prepared to engage, he too put out to the open sea and signalled to the ships which followed to move into line as they came up, keeping their order. This at first led to some confusion as he had gone sufficiently far out to sea to allow of all the ships coming into line towards the land, and in his extreme haste he had only five ships with him when he met Hannibal, the rest were not following, but were, as ordered, getting into line. On the extreme left there was no further room towards the land, and they were still in confusion when the fighting began on the right with Hannibal.

[37.24]But the excellence of their vessels and their own practiced seamanship took away all fear from the Rhodians in a moment. Each ship in turn steered towards the open sea and so allowed room on the land side for the one which followed it, and whenever any of them closed with an enemy vessel with its beak foremost, it either tore a hole in its prow or sheared off its oars, or else, where it found a clear way through the line, it passed it and attacked its stern. What caused the greatest alarm was the sinking of one of the hepteres at a single stroke by a much smaller Rhodian vessel; and on this, the right division were showing unmistakable signs of preparing for flight. Hannibal, on the other hand, in the open sea, was closing with a large number of ships on Eudamus, and in spite of the Rhodian's

superiority in all other respects, would have hemmed him in had not the signal which is customarily used to call a scattered fleet together been given from the commander's ship. All the ships which had won the day on the right immediately rushed to their comrades' help. Now it was Hannibal and the ships round him which took to flight; the Rhodians, however, were unable to pursue them as most of the rowers were out of health, and therefore more quickly tired. Whilst they were recruiting their strength with food as they lay on the water, Eudamus from the turret of his ship was watching the enemy as they employed their open ships to tow away the damaged and crippled ones, not much more than twenty getting away uninjured. He called for silence and then said, "Come and feast your eyes on a wonderful sight." They all got up, and after watching the hurried flight of the enemy exclaimed, with almost one voice, that they ought to follow them up. Eudamus' own ship had been repeatedly struck, so he ordered Pamphilidas and Chariclitus to go in pursuit as far as they could do so with safety. They kept up the chase for a considerable time, but when Hannibal drew near the land they were afraid of being wind-bound off the enemy shores, and so they returned to Eudamus with the captured heptere which had been struck in the beginning of the battle, and with some difficulty they succeeded in towing it to Phaselis. From there they sailed back to Rhodes, not so much delighted at their victory as angry with one another because they had not sunk or captured the whole of the hostile fleet, when it was in their power to do so. So deeply did Hannibal feel this one defeat that though he was very anxious to join the king's fleet as soon as he could, he did not venture to sail beyond the coast of Lycia, and to prevent him from being at liberty to do this the Rhodians sent Chariclitus with twenty ships of war to Patara and the harbour of Megiste. Eudamus received instructions to return to the Romans at Samos with seven of the largest vessels out of his fleet and use all the influence he possessed and every argument he could employ to induce the Romans to take Patara.

[37.25]The news of the victory followed by the appearance of the Rhodians caused much rejoicing amongst the Romans; it was quite evident that if the Rhodians were relieved from that cause of anxiety they would make all the seas in that part of the world safe. But the departure of Antiochus from Sardis and the danger of his seizing the cities on the coast forbade their abandoning the defence of the shores

of Ionia and Aeolis. Consequently, they sent Pamphilidas with four ships to reinforce the fleet off Patara. Antiochus had been busy collecting contingents from all the cities round him, and had also sent a letter to Prusias the king of Bithynia. In this despatch he bitterly complained of the Roman expedition to Asia; they had come, he wrote, to deprive them all of their crowns so that there might be no sovereignty but that of the Romans anywhere in the world; Philip and Nabis had been reduced to submission; he, Antiochus, was to be the third victim; like a spreading conflagration they would envelop all, as each lay nearest to the one already overthrown. Now that Eumenes had voluntarily accepted the yoke of servitude, it would be but a step from Antiochus to Bithynia. Prusias was much perturbed by this letter, but any doubts or suspicions which it might have created were set at rest by a letter from the consul and still more so by one from the consul's brother, Africanus. In this letter he showed how it was the uniform practice of the Roman people to enhance the dignity of their royal allies by bestowing every honour upon them, and quoted instances of his own policy in order to persuade Prusias to show himself worthy of his friendship. The chieftains whom he had taken under his protection in Spain he had left with the title of kings; Masinissa he had established on his throne and on that of Syphax, who had expelled him, as well, and now he was not only by far the most prosperous monarch in Africa, but the peer in greatness and power of any monarch in the world. Philip and Nabis, who had been enemies and whom T. Quintius had conquered, had still their thrones left them; in the case of Philip even the payment of tribute had been remitted during the past year, his son who had been a hostage was restored to him, and he had been allowed to recapture some cities outside Macedonia without any interference from the Roman generals. Nabis, too, would have retained his honour and dignity had not his own madness and the treachery of the Aetolians proved fatal to him. Such was the tenor of Africanus' communication. What did most to determine the king's attitude was a visit from C. Livius, the late commandant of the fleet. He came on a special mission from Rome and made the king understand how much more certain the prospect of victory was for the Romans than for Antiochus, and how much more inviolable and secure his friendship would be in their eyes than in those of the king.

[37.26]Now that he had lost all hope of securing Prusias as an ally, Antiochus left Sardis for Ephesus in order to inspect the fleet which had been fitted out and in readiness for several months. It was the impossibility of offering an effective resistance to the Roman army with the two Scipios in command rather than any naval successes in the past or any well-grounded confidence he felt at the time which made him interest himself in his fleet. For the moment, however, there were some things to encourage him. He had learned that a large part of the Rhodian fleet was at Patara and that Eumenes had gone with all his ships to the Hellespont to meet the consul. The destruction of the Rhodian fleet at Samos, as the result of treachery, also did something to raise his spirits. These considerations led him to send Polyxenidas with his fleet to try the chances of battle at all hazards, whilst he himself led his forces to Notium. This place belongs to Colophon and is about two miles distant from it and overlooks the sea. He wanted to get Colophon itself into his power, for it was so near Ephesus that he could take no action by sea or land which was not visible to the people of Colophon who at once informed the Romans. When once the Romans heard that Notium was besieged he felt sure that they would bring up their fleet from Samos to help their ally, and this would give Polyxenidas his opportunity.

Accordingly he commenced the siege of the city in regular form; his lines were extended equally in two directions down to the sea; on both sides he carried the agger and the vineae up to the walls and the battering-rams with their shelters were placed in position. Appalled at these dangers the people of Colophon sent to L. Aemilius at Samos to implore him for his own honour and the honour of Rome to come to their assistance. Aemilius was chafing under his protracted inactivity at Samos, the last thing he was expecting was that Polyxenidas, after being twice challenged by him in vain, would give him an opportunity of fighting. He also felt it a humiliation to be tied and bound to the assistance of besieged Colophon whilst the fleet of Eumenes was helping the consul to transport his legions to Asia. Eudamus, who had kept him at Samos, now with all the other officers urged him to go to Colophon. They pointed out how much more satisfactory it would be to relieve their friends or inflict a second defeat upon a fleet which had been worsted once, and so wrest the command of the sea from the enemy, than it would be if he were to

abandon his allies, desert his proper sphere of action by sailing to the Hellespont and so leave Asia at the mercy of Antiochus both by sea and land.

[37.27]As their stores were all consumed, the Roman fleet left Samos with the intention of sailing to Chios to get supplies. This island was a Roman granary and all the transports from Italy directed their course thither. Coasting round from the city to the opposite side of the island which looks north towards Chios and Erythrae, they were on the point of sailing across when the praetor received a despatch informing him that a large quantity of corn from Italy had reached Chios, but that the vessels laden with wine had been detained by storms. At the same time a report was brought to the effect that the Teians had furnished the king's fleet with liberal supplies and had promised to give them 5000 jars of wine. Aemilius was now half-way across, but he at once diverted his course to Teos with the intention of making use of the provisions prepared for the enemy, with the consent of the townsmen, or if not, prepared to treat them as enemies. As they were steering for the land some fifteen ships came into view off Myonnesus. The praetor thought at first that they were part of the king's fleet and began to pursue them, then it became evident that they were piratical barques and cutters. They had been plundering along the coast of Chios and were returning with booty of every description. When they saw the fleet they took to flight and owing to their vessels being lighter and built especially for the purpose and also because they were nearer the land, they outsailed their pursuers. Before the Roman fleet got near them they made their escape into the harbour of Myonnesus and the praetor, hoping to force their ships out of the harbour, followed them though he was unacquainted with the locality. Myonnesus stands on a headland between Teos and Samos, the point itself is a conical-shaped hill running up from a fairly broad base into a sharp peak. It is approached from the land side by a narrow path, and shut in from the sea by cliffs, which have been so worn away at their base by the waves that in some places the overhanging rocks project beyond the ships lying at anchor beneath them. The Roman ships did not venture close in lest they should be exposed to attacks from the pirates on the overhanging cliffs, but lay near the enemy through the day. Just before nightfall they abandoned their fruitless task and the next day arrived at Teos. After the ships had been drawn up in the

Geraesticum - a harbour behind the city - the praetor sent out his men to plunder the surrounding country.

[37.28]When the Teians saw this devastation going on before their eyes they sent a deputation, wearing suppliant emblems, to the Roman commander. In reply to their protestations of innocence as to any hostility in either word or deed against the Romans, he charged them with having assisted the enemy with whatever supplies they needed, and told them how much wine they had promised to Polyxenidas, and that if they would furnish the Roman fleet with the same quantity he would recall his soldiers from their raid. On the return of the deputation with this stern reply the townsmen were summoned by the magistrates to an assembly that they might consult as to what they should do. Polyxenidas meantime had heard that the Romans had moved from Samos and, after chasing the pirates to Myonnesus, had anchored their ships in the harbour and were plundering the Teian district. He proceeded with the king's fleet from Colophon and, without betraying his movements, cast anchor at an island opposite Myonnesus - the seafaring men call it Macris - on the very day, as it happened, that the Romans reached Teos.

From his position near the enemy he found out what they were doing, and was at first in great hopes of defeating the Romans by the same maneuver as that by which he had worsted the Rhodian fleet at Samos, namely by blocking the mouth of the harbour. The situation was much the same, the harbour is so shut in by the converging headlands that it is difficult for two ships to come out abreast. Polyxenidas intended to seize these headlands during the night and, after stationing ten ships off each to make a flank attack on the enemy vessels as they came out, he was going to land the troops from the rest of his fleet, as he had done at Panhormus, and overpower the Romans on sea and land alike. His plan would have succeeded but for the movements of the Roman fleet. As the Teians had undertaken to comply with the praetor's requirements it was thought more convenient, for the purpose of taking the supplies on board, to move into the other harbour in front of the city. Eudamus also, it is stated, drew attention to the disadvantages of the first harbour after two ships had smashed their oars by fouling one another in the narrow entrance. A further consideration which weighed with the praetor and induced him to change his moorings, was the danger which

threatened him from the land, as Antiochus had his standing camp at no great distance.

[37.29]When the fleet had been brought round to the city, the sailors and soldiers went ashore to obtain for each ship its share of the provisions, and especially of the wine. Not a single man was aware of the proximity of Polyxenidas. Towards midday a countryman was brought before the praetor, and reported that a fleet had been lying in front of the island of Macris for two days, and that a few hours ago some of the vessels looked as if they were preparing to sail. The praetor was considerably alarmed at this unexpected intelligence, and ordered the trumpeters to sound the assembly, so that those who were dispersed over the fields might come back, whilst the military tribunes were sent into the city to hurry the soldiers and sailors on board. The disorder was just like that caused by an outbreak of fire or the capture of a city: some were running into the city to recall their comrades, others were running out of the city to rejoin their ships, and amidst confused orders, wild shouting, and the braying of the trumpets, there was a general rush to the ships. Hardly anyone could make out his own ship or get near it for the tumult, and the confusion might have been attended with serious danger both on sea and land had it not been for the prompt action of the praetor. Leaving Eudamus to conduct his own operations, Aemilius led the way out of the harbour into the open sea, and meeting each ship as it came up, assigned its place in the line. Eudamus with his Rhodians remained along shore, in order that they might embark without confusion and each ship sail out as soon as it was ready. Thus the first line was formed under the praetor's eye, the Rhodians brought up the rear, and the combined fleet sailed out to sea in battle formation, as though the enemy were actually in sight. They were between Myonnesus and the point of Corycus when they got their first view of the enemy. The king's fleet, which was advancing in a long column, two ships abreast, also deployed into line and extended its left far enough to be able to envelop the Roman right. When Eudamus saw this, and realised that the Romans could not make their line equal in length to that of the enemy, and that their right would be enveloped, he speeded up his ships, which were by far the swiftest in the whole fleet, and after extending his line as far as the enemy's, placed his own vessel opposite to that of Polyxenidas.

[37.30]And now both fleets were everywhere in action. On the side of the Romans eighty ships were engaged, twenty-two of which were Rhodian vessels. The enemy fleet numbered eighty-nine, and of the largest classes of ships they had three with six tiers of oars and two with seven. The Romans were far superior in the stoutness of their ships and the bravery of their men; the Rhodians equally had the advantage in the handiness of their vessels, the skill of their helmsmen, and the training and discipline of the oarsmen. But they created the greatest alarm among the enemy by their fire-ships; the one thing which saved them at Panhormus proved here also the most effective means of victory. When the king's ships swerved aside through fear of the flames, they were unable to ram the hostile ships with their beaks, and at the same time laid themselves open to be struck on the side; any ship that did close with another was covered with the fire poured upon it, and they were thrown into greater confusion by the fire than by the actual fighting. Still, as usual, the fighting power of the soldiers was the main factor in the contest. The Romans broke through the enemy's centre, and then working round they attacked from the rear the ships which were engaged with the Rhodians, and in a very short space of time Antiochus' centre and the ships of the left division were being surrounded and sunk. Those on the right, as yet intact, were more alarmed at the defeat of their comrades than at any danger which threatened them. But when they saw their other vessels in the midst of the enemy ships and Polyxenidas deserting his fleet and fleeing with all sails set, they promptly hoisted their topsails, as the wind was favourable for those making for Ephesus, and took to flight, after losing forty-two ships in the battle, thirteen of which fell into the enemy's hands, the rest being either burnt or sunk. Two Roman ships were complete wrecks, several were damaged. One Rhodian vessel was captured through a remarkable accident. On ramming a Sidonian vessel the blow shook the anchor out of the ship on to the prow of the other, which it held with its fluke as though with a grapple. In the confusion which followed the Rhodians backed water to get clear of the enemy, but the anchor chain dragged, and becoming entangled with the oars, swept off all those on one side of the ship. Thus weakened it was captured by the very ship which had been rammed and made fast to it. Such, in its main features, was the sea fight at Myonnesus.

[37.31]Antiochus was now thoroughly alarmed. Driven from the mastery of the sea, he despaired of being able to defend his distant possessions and, adopting a policy which events subsequently proved to be a mistaken one, he withdrew his garrison from Lysimachia to prevent its being cut off by the Romans. It would not only have been easy to defend Lysimachia against the first attack of the Romans, but the place could have stood a siege through the whole winter and this check would have reduced the besiegers to sore straits for provisions. Meantime there might have been some opportunity for coming to terms and securing peace. Nor was Lysimachia the only place which he gave up to the enemy after his naval defeat; he also raised the siege of Colophon and retired to Sardis. From here he sent to Cappadocia to ask help from Ariarathes, and to every place where he could possibly collect troops. His one fixed object now was to decide matters on the battlefield. After his victory Regillus Aemilius sailed to Ephesus and formed his ships in line before the harbour. When he had thus forced from the enemy a final admission of their renunciation of sea power he sailed to Chios, whither he was directing his course before the naval battle. Here the damaged ships were repaired, and as soon as this work was finished he sent L. Aemilius Scaurus to the Hellespont with thirty ships to convey the army across. By way of an honourable distinction he gave the Rhodians a share of the plunder and also the spoils of the naval battle, and then told them they might go home. Before doing so they took an active part in transporting the consul's troops, and not till this task was completed did they return home. The Roman fleet sailed from Chios to Phocaea. This city lies in the innermost part of a bay; it is oblong in shape and the walls enclose a space of about two and a half miles, then it narrows on either hand like the sides of a wedge. The apex of the wedge is called Lamptera. Here the town has a breadth of twelve hundred paces and from it a tongue of land stretches seaward like a straight stroke almost through the centre of the bay. Where it approaches the narrow mouth of the bay it forms two excellent and perfectly safe harbours, facing in opposite directions. The one which looks north is called Naustathmon from its affording anchorage for a large number of ships; the other is close to Lamptera.

[37.32]When the Roman fleet had occupied these perfectly sheltered harbours the praetor thought it advisable, before he laid regular siege to the place, to make overtures to the magistrates and leading men of

the city. When he found that they were bent upon resistance he commenced his attack from two different points. One quarter contained but few private buildings, a considerable space being occupied by temples, and he brought up the rams at this part first and began to batter the walls and towers. When the citizens had collected here for its defence the rams were brought up against another section, and now the walls were being laid in ruins in both directions. After they had fallen the Roman soldiers began to fight their way over the ruins, but the townsmen offered such a determined resistance that it was clear they found more help from their arms and courage than from their walls. At length the risk to which his men were exposed compelled the praetor to sound the retire, as he was unwilling to expose them heedlessly to an enemy maddened by despair. Though the actual fighting was put a stop to, the defenders did not even then allow themselves any rest, they assembled from all quarters to repair and strengthen what had been laid in ruins. Q. Antonius, who had been sent by the praetor, appeared amongst them while they were thus engaged, and after censuring their obstinacy pointed out that the Romans were more anxious than they were that the struggle should not end in the destruction of their city; if they were willing to desist from their madness they would have it in their power to surrender on the same terms as they had formerly obtained from C. Livius. On hearing this they asked for a five days' armistice in which to deliberate, and meantime they tried to find out what prospect of help there was from Antiochus. The envoys they had sent to the king brought back word that they must not look for any support from him, and on this they at last opened their gates after stipulating that they should not be treated as enemies. After the praetor had announced his wish that those who had surrendered should be spared, and whilst the standards were being borne into the city, shouts of protest were raised everywhere amongst the troops, who were furious at the Phocaeans, who had never been loyal allies but always bitter enemies, getting off with impunity. At this cry, as though the praetor had given the signal, the men ran off in all directions to sack the city. At first Aemilius tried to stop them and call them back by telling them that it was captured and not surrendered cities that were sacked, and even in the case of these the decision rested with the general, not with the soldiers. When he saw that passion and greed were too strong for his authority, he sent heralds through the city with orders to summon all free men into the

forum where they would be safe from injury, and so far as his authority extended he kept his word. He restored to them their city, their lands and their laws, and as winter was now approaching he selected the harbours of Phocaea for the winter quarters of his fleet.

[37.33] Meantime the consul who had marched through the districts of Aenus and Maronea received intelligence of the defeat of the king's fleet at Myonnesus and the evacuation of Lysimachia. The latter piece of intelligence gave him greater gratification than the former, at all events when they arrived there, for they found the city packed with supplies of every description as though these had been prepared against the arrival of the army, for they had been looking forward to having to endure the extremes of toil and hunger during the siege of their city. The consul remained encamped here for some days to allow time for the baggage to come in and also the sick who, worn out by illness and the length of the march, had been left in all the fortified towns of Thrace. When all had been taken in they resumed their march through the Chersonese and arrived at the Hellespont. Here, thanks to King Eumenes, every preparation had been made for the passage, and they went on board the ships which had been drawn up at the different points and crossed over without hindrance or opposition as though to friendly shores. The Romans had expected this to be the occasion of a severe contest, and they were in high spirits when they found the way to Asia open to them. They remained in camp at the Hellespont for some time, as the holy days during which the Ancilia were borne in procession happened to fall during their march. These days enjoined special religious duties on Publius Scipio as one of the *Salii*, and kept him apart from the army, consequently their advance was delayed till he rejoined them.

[37.34] During this interval Heraclides of Byzantium had arrived at the camp with instructions from Antiochus to negotiate a peace. He had been under the impression that when once the Romans had set foot in Asia they would, without a moment's delay, advance against the royal camp, and their remaining by the Hellespont made him very sanguine of obtaining favourable terms. Heraclides, however, decided that he would not approach the consul till he had interviewed P. Scipio, and indeed such were the king's instructions. His hopes rested mainly on him, for Scipio's greatness of soul and the consciousness that he had enough of glory made him most gentle and considerate. All the world, too, knew what he had been when

victorious in Spain and in Africa, and there was also the fact that his son had been made a prisoner and was in the king's hands. As to where or when or by what mischance he had been taken prisoner the authorities differ as they do in most other matters. Some assert that it was at the beginning of the war when he was intercepted by the king's ships on his voyage from Chalcis to Oreum; others say that after the landing in Asia he was sent with a troop of Fregellan cavalry to reconnoitre towards the king's camp, and that when a large body of cavalry galloped out to meet him, he retreated and in the confusion fell from his horse and with two other troopers was overpowered, and under these circumstances was brought to the king. It is generally admitted that the youth could not have been treated and courted with greater kindness and generosity even if peace with Rome still prevailed and the personal ties of hospitality between the king and the Scipios had remained unbroken. For these reasons the envoy waited for Scipio to come, and on his arrival he approached the consul and asked him to grant him an audience that he might deliver his instructions.

[37.35]A full council assembled to hear what he had to say. The purport of his speech was as follows: "Many embassies have passed to and fro on the question of peace, and have been fruitless; I entertain strong hopes of gaining it from the very fact that those negotiators gained nothing. For the difficulty in former discussions was the position of Smyrna, Lampsacus, Alexandra Troas and the European city of Lysimachia. Of these Lysimachia has already been evacuated by the king, so that you cannot say that he holds anything in Europe. He is prepared to give up those which are in Asia, and any others in his dominions which the Romans wish to claim on the ground that they are on the side of Rome. He is also prepared to pay half the cost of the war." These were the proposed conditions of peace. In the rest of his speech he advised the council to remember the uncertainty of human affairs, to make a moderate use of their own good fortune, and not treat the misfortunes of others oppressively. Let them limit their dominion to Europe, even that was an immense empire; it was easier to extend it by single acquisitions than to hold it together in its entirety. If, however, they wanted to annex some part of Asia, provided it was defined by clearly ascertained boundaries, the king would, for the sake of peace and concord, allow his own sense of moderation and equity to give way

before the Roman greed for territory. These arguments in favour of peace, which the speaker thought so convincing, the Romans regarded as so much trifling. They considered it only just that the king, who was responsible for starting the war, should bear the whole cost of it, and that his garrisons should be withdrawn, not only from Ionia and Aeolis, but from all the cities in Asia, which should be as free as all the liberated cities in Greece, and this could only be effected if Antiochus surrendered all his Asiatic possessions west of the Taurus range.

[37.36]The envoy came to the conclusion that, as far as the council was concerned, he was not obtaining any reasonable terms, and in accordance with his instructions he tried what he could do with Scipio in a private interview. He began by telling him that the king would restore his son without ransom, and then, ignorant alike of Scipio's character and Roman usage, he held out to him the offer of an enormous bribe if he obtained peace through his instrumentality, and also a full share in the sovereign power, with the sole exception of the royal title. Scipio replied: "Your ignorance of the Romans as a whole, and of me in particular to whom you have been sent, is the less surprising when I see that you are ignorant of the situation of the man from whom you have come. You ought to have held Lysimachia to prevent our entering the Chersonese, or else you ought to have opposed us at the Hellespont to prevent our passing into Asia, if you intended to ask for peace from us as from those who were anxious about the issue of the war. But now that you have left the passage into Asia open and have accepted not only the bit but the yoke as well, what room is there for any discussion on equal terms, since you will have to submit to our sovereignty? I shall look upon my son as the greatest gift which the king's generosity could bestow; as to his other offers, I pray heaven my circumstances may never be in need of them, my mind at all events never will. In my public capacity as representing the State I will neither take anything from him nor give him anything. What I can give now is sincere advice. Go and tell him in my name to abandon hostilities and accept any terms of peace that may be offered." These words did not influence the king in the least, he regarded his chances in war as quite safe, and this too at the very time when terms were proposed to him as though he were already vanquished. For the present, therefore, he dropped all mention of peace, and devoted all his care to preparing for war.

[37.37]The preparations for carrying out his plans being now completed, the consul broke up his camp and advanced to Dardanus and then on to Rhoeteum, the inhabitants of both cities coming out to meet him. He then marched to Ilium, and after fixing his camp in the plain below the walls, he went up to the citadel, where he offered sacrifices to Minerva, the tutelary deity of the place. The Ilians did their utmost to show by their words and deeds the pride they felt in the Romans as their descendants, and the Romans were delighted at visiting their original home. A six days' march from there brought them to the source of the Caicus. Here Eumenes joined them. He had intended to take his fleet back from the Hellespont into winter quarters at Elea, but the wind was against him, and for several days he was unable to round the Cape of Lectos. Anxious not to miss the opening of the campaign he landed at the nearest point, and with a small body of troops hurried on to the Roman camp. Here he was sent back to Pergamum to expedite the delivery of supplies and, after seeing the corn handed over to those appointed by the consul to receive it, returned to the camp. The king's camp was near Thyatira. When he heard that Scipio was detained at Elea by illness he sent some of his officers to escort his son back to him. The boon was not only grateful to the father's feelings, but it helped also towards his recovery. After embracing his son to his heart's content, he said to the escort: "Take back word that I thank the king; I cannot now show my gratitude in any other way than by advising him not to go down to battle before he learns that I have returned to camp." Although his 60,000 infantry and 12,000 or more cavalry made the king hope at times for success in the battle, Antiochus was swayed by the authority of the man on whom, in view of the doubtful issue of the war, he had rested all his hopes of support, whatever might betide him. Withdrawing beyond the river Phrygius he encamped in the neighbourhood of Magnesia ad Sipylum, and in case the Romans should attempt to force his lines while he was waiting, he surrounded his camp with a fosse six cubits deep and twelve wide, and outside the fosse he threw up a double rampart, on the inner edge he constructed a wall flanked at short intervals with turrets, from which the enemy could be easily prevented from crossing the fosse.

[37.38]The consul was under the impression that the king was at Thyatira, and he marched for five successive days till he came down into the Hyrcanian plain. When he heard that Antiochus had moved

from there he followed in his track, and encamped on the western bank of the Phrygius at a distance of four miles from the enemy. Here a force of about 1000 cavalry mostly Gallograeci, together with some Dahae and mounted archers from other tribes, made a tumultuous rush across the river and charged the Roman advanced posts. At first, as they were unprepared, there was some confusion, but as the battle went on and the numbers of the Romans grew with the reinforcements from the camp close by, the king's troops, wearied and outnumbered, endeavoured to effect their retreat across the river. Before they entered the stream, however, a considerable number were killed by their adversaries, who were in close pursuit. For the next two days all was quiet, neither side making any attempt to cross the river. On the third day the whole of the Roman army crossed in a body, and formed camp about two and a half miles from the enemy. Whilst they were measuring out the area of the camp and busy entrenching it, considerable alarm and confusion were created by the approach of a picked force of 3000 infantry and cavalry. Those forming the advanced guard were much fewer in number, but they maintained a steady resistance by themselves, not a single soldier being called away from the working-parties in the camp, and as the fighting progressed they repulsed the enemy, after killing 100 of them and taking 100 prisoners. For the next four days both armies stood in front of their ramparts drawn up for battle; on the fifth day the Romans advanced into the middle of the plain, but Antiochus made no forward movement, his front lines remained in position less than a mile from their rampart.

[37.39]When the consul saw that he declined to give battle, he summoned a council of war for the next day to decide what he was to do if Antiochus did not give them the opportunity of fighting. Winter, he said, was coming on; either he would have to keep the soldiers in their tents or else, if he wished to go into winter quarters, operations would have to be suspended till the summer. For none of their enemies did the Romans ever feel greater contempt. From all sides they called upon him to lead them out to battle and to take full advantage of the ardour of the soldiers. If the enemy would not come out, they were ready to charge over the fosses and rampart and rush the camp, for it was not as though they had to fight with so many thousands of men, but rather to slaughter so many thousands of cattle. Cn. Domitius was sent to reconnoitre the ground and find out

at what point the enemy's rampart could be best approached, and after he had brought definite and complete information it was decided to move the camp on the morrow nearer the enemy. On the third day the standards were advanced into the middle of the plain and the line formed. Antiochus, on his side, felt that he ought not to hesitate any longer lest he should depress the spirits of his own men and raise the hopes of the enemy by declining battle. He led his forces out just far enough from his camp to make it appear that he intended to fight.

The Roman army was practically uniform as regards both the men and their equipment; there were two Roman legions and two of Latins and allies, each containing 5000 men. The Romans occupied the centre, the Latins the wings. The standards of the hastati were in front, then came those of the principes, and last of all the triarii. Beyond these, whom we may call the regulars, the consul drew up on his right, level with them, the auxiliary troops of Eumenes who were incorporated with the Achaean caetrati, amounting to about 3000 men; beyond them again were stationed nearly 3000 cavalry, 800 of which were furnished by Eumenes, the rest being Romans. Outside these were posted the Trallian and Cretan horse, each body numbering 500 troopers. The left wing was not considered to need so much support as it rested on the river and was protected by the precipitous banks; four squadrons of cavalry, however, were lined up at that end. This was the total strength which the Romans brought into the field. In addition to these, however, there was a mixed force of Macedonians and Thracians, 2000 in all, who had followed as volunteers; they were left to guard the camp. The sixteen elephants were placed in reserve behind the triarii; they could not possibly stand against the king's elephants, of which there were fifty-four, and the African elephants are no match for the Indian elephants even when the numbers are equal, for the latter are much larger and fight with more determination.

[37.40]The king's army was a motley force drawn from many nations and presented the greatest dissimilarity both in the men and their equipment. There were 16,000 infantry in the Macedonian fashion. known as the "phalanx." These formed the centre, and their front consisted of ten divisions; between each division stood two elephants. They were thirty-two ranks deep. This was the main strength of the king's army and it presented a most formidable

appearance, especially with the elephants towering high above the men. The effect was heightened by the frontlets and crests on the animals, and the towers on their backs on which stood the drivers, each accompanied by four soldiers. On the right of the phalanx Antiochus stationed 1500 Gallograeci infantry, and with them were linked up 3000 cavalry, clad in mail armour and known as "cataphracti." These were supported by the "agema," another body of cavalry numbering about 1000; they were a select force, consisting of Medes and men drawn from many tribes in that part of the world. Behind these in support were sixteen elephants. The line was continued by the royal cohort called "argyraspides" from the kind of shield they carried. Then came the Dahae, mounted archers, 1200 strong; then 3000 light infantry, half of them Cretans and half Tralles. Beyond these again were 2500 Mysian bowmen, and at the end of the line a mixed force of Cyrtian slingers and Elymaean archers.

On the left of the phalanx were 1500 Gallograeci infantry and 2000 Cappadocian, similarly armed and sent by Ariarathes, next to whom were posted a miscellaneous force numbering 2700. Then came 3000 cataphracti and the king's personal cavalry, 1000 strong, with somewhat slighter protection for themselves and their horses, but otherwise closely resembling the cataphracti, made up mostly of Syrians with an admixture of Phrygians and Lydians. In front of this mass of cavalry were scythe chariots and the camels which they call dromedaries. Seated on these were Arabian archers provided with narrow swords four cubits long so that they could reach the enemy from the height on which they were perched. Beyond them again a mass of troops corresponding to those on the right wing, first Tarentines, then 2500 Gallograeci cavalry, 1000 newly enlisted Cretans, 1500 Carians and Cilicians similarly armed, and the same number of Tralles. Then came 4000 caetrati, Pisidians, Pamphylians and Lydians, next to these Cyrtian and Elymaean troops equal in number to those on the right wing, and finally sixteen elephants a short distance away.

[37.41]The king commanded the right in person, the left he placed in charge of his son Seleucus and his nephew Antipater. The centre was entrusted to three commanders, Minnio, Zeuxis and Philip; the latter was the master of the elephants. The morning haze, which as the day advanced lifted into clouds, obscured the atmosphere, and then a drizzling rain coming with the south wind wetted everything. This

did not inconvenience the Romans much, but it was a serious disadvantage to the king's troops. As the Roman line was of only moderate length, the indistinctness of the light did not obstruct the view over the whole of it, and as it consisted almost entirely of heavy-armed troops, the fine rain had no effect on their weapons which were swords and javelins. The king's line, on the other hand, was of such an enormous length that it was impossible to see the wings from the centre, let alone the fact that the extremes of the line were out of sight of each other, and the wetting mist relaxed their bows and slings and the thongs of their missile spears. Antiochus trusted to his scythe chariots to throw the enemy ranks into utter confusion, but they only turned the danger against their own side. These chariots were armed in the following manner: On either side of the pole where the yoke-bar was fastened spikes were fixed which projected forward like horns, ten cubits long, so as to pierce anything that came in their way, and at each end of the yoke-bar two scythes projected, one on a level with the bar so as to cut off sideways anything it came against, the other turned towards the ground to catch those lying down or trying to get under it. Similarly two scythes pointing in opposite directions to each end of the axis of the wheels.

The chariots thus armed were stationed, as I have already said, in front of the line for had they been in the rear or the centre they must have been driven through their own men. When he saw this, Eumenes, who was quite familiar with their mode of fighting, and knew how much their assistance would be worth when once the horses were terrified, ordered the Cretan archers, the slingers and javelin men, in conjunction with some troops of cavalry, to run forward, not in close order but as loosely as possible, and discharge their missiles simultaneously from every side. What with the wounds inflicted by the missiles and the wild shouts of the assailants, this tempestuous onslaught so scared the horses that they started to gallop wildly about the field as though without bit or bridle. The light infantry and slingers and the active Cretans easily avoided them when they dashed towards them, and the cavalry increased the confusion and panic by affrighting the horses and even the camels, and to this was added the shouts of those who had not gone into action. The chariots were driven off the field, and now that this silly show was got rid of the signal was given, and both sides closed in a regular battle.

[37.42] These useless shams, however, were soon to prove the cause of a real disaster. The auxiliary troops who were posted in reserve next to them were so demoralised by the panic and confusion of the chariots that they took to flight and exposed the whole line as far as the cataphracti. Now that the reserves were broken the Roman horse made a charge against these, and many of them did not await even the first shock, some were routed, others owing to the weight of their mail armour were caught and killed. Then the remainder of the left wing entirely gave way, and when the auxiliaries who were stationed between the cavalry and the phalanx were thrown into disorder the demoralisation reached the centre. Here the ranks were broken and they were prevented from using their extraordinarily long spears-the Macedonians call them "sarissae" - by their own comrades who ran back for shelter amongst them. Whilst they were in this disorder the Romans advanced against them and discharged their javelins. Even the elephants posted between the divisions of the phalanx did not deter them, accustomed as they were in the African wars to evade the charge of the beast and attack its sides with their javelins or, if they could get nearer to it, hamstringing it with their swords. The centre front was now almost entirely beaten down and the reserves, having been outflanked, were being cut down from the rear. At this juncture the Romans heard in another part of the field the cries of their own men in flight, almost at the very gates of their camp. Antiochus from his position on his right wing had noticed that the Romans, trusting to the protection of the river, had only four squadrons of cavalry in position there, and these, keeping in touch with their infantry, had left the bank of the river exposed. He attacked this part of the line with his auxiliaries and cataphracti, and not only forced back their front, but wheeling round along the river, pressed on their flank until the cavalry were put to flight and the infantry, who were next to them, were driven with them in headlong flight to their camp.

[37.43] The camp was in charge of a military tribune, M. Aemilius, son of the M. Lepidus who a few years later was made Pontifex Maximus. When he saw the fugitives coming towards the camp he met them with the whole of the camp guard and ordered them to stop, then, reproving them sharply for their cowardly and disgraceful flight, he insisted on their returning to the battle and warned them that if they did not obey him they would rush blindly on to their ruin. Finally he gave his own men the order to cut down those who first came up and

drive the crowd which followed them back against the enemy with their swords. The greater fear overcame the less. The danger which threatened them on either hand brought them to a halt, then they went back to the fighting. Aemilius with his camp guard - there were 2000 of them, brave soldiers - offered a firm resistance to the king who was in eager pursuit, and Attalus, who was on the Roman right where the enemy had been put to flight at the first onset, seeing the plight of his men and the tumult round the camp, came up at the moment with 200 cavalry. When Antiochus found that the men whose backs he had seen just before were now resuming the struggle, and that another mass of soldiery was collecting from the camp and from the field, he turned his horse's head and fled. Thus the Romans were victorious on both wings. Making their way through the heaps of dead which were lying most thickly in the centre, where the courage of the enemy's finest troops and the weight of their armour alike prevented flight, they went on to plunder the camp. The cavalry of Eumenes led the way, followed by the rest of the mounted troops, in pursuing the enemy over the whole plain and killing the hindmost as they came up to them. Still more havoc was wrought among the fugitives by the chariots and elephants and camels which were mixed up with them; they were not only trampled to death by the animals, but having lost all formation they stumbled like blind men over one another. There was a frightful carnage in the camp, almost more than in the battle. The first fugitives fled mostly in this direction and the camp guard, trusting to their support, fought all the more determinedly in front of their lines. The Romans, who expected to take the gates and the rampart, were held up here for some time, and when at last they did break through the defence they inflicted in their rage all the heavier slaughter.

[37.44]It is stated that 50,000 infantry were killed on that day and 3000 of the cavalry; 1500 were made prisoners and 15 elephants captured with their drivers. Many of the Romans were wounded, but there actually fell not more than 300 infantry, 24 cavalry and 25 of the army of Eumenes. After plundering the enemy's camp the Romans returned to their own with a large amount of booty; the next day they despoiled the bodies of those killed and collected the prisoners. Delegates came from Thyatira and Magnesia ad Sipylum to make the surrender of their cities. Antiochus, accompanied in his flight from the field by a small number of his men, and joined by

more on the road, arrived at Sardis about midnight with a fairly numerous body of troops. On learning that his son Seleucus with some of his friends had gone as far as Apamea, he too, with his wife and daughter, started for the same city, after handing over the defence of Sardis to Xenon and appointing Timon governor of Lydia. The townsmen and the soldiers in the citadel ignored their authority and mutually agreed to send delegates to the consul.

[37.45]Almost simultaneously with these delegates others came in from Tralles, Magnesia on the Maeander and Ephesus to offer the surrender of their cities. Polyxenidas, on getting news of the battle, had left Ephesus and taken his fleet as far as Patara in Lycia, but apprehending an attack from the Rhodian squadron which was lying off Megiste, he went ashore and made his way overland with a small contingent into Syria. The cities of Asia Minor placed themselves under the protection of the consul and the dominion of Rome. The consul was now at Ephesus and Publius Scipio went there from Elea as soon as he was able to bear the fatigue of travelling. Shortly before this a herald from Antiochus arrived who, through the good offices of Publius Scipio, obtained the consent of the consul to negotiations for peace being opened on the part of the king. A few days later Zeuxis, who had been governor of Lydia, and Antipater, the king's nephew, also arrived. They first had an interview with Eumenes, who they supposed would be the strongest opponent of peace owing to his long-standing quarrels with the king, but found him in a more conciliatory mood than either they or Antiochus had hoped for. They next approached Scipio and through him the consul. At their request a full meeting of the council of war was held for them to publish their instructions. Zeuxis spoke first. "We have not so much," he said, "to speak on our own behalf as to ask you, Romans, in what way we can atone for our king's error and obtain peace and forgiveness from you, his conquerors. You have ever shown the greatest magnanimity in pardoning the kings you have conquered. With how much greater magnanimity ought you to act in this hour of victory which has made you masters of the world! It behoves you now to lay aside contention with all men and be like the gods, the protectors and fosterers of the whole human race."

It had been decided before the envoys came what reply should be given them. Scipio Africanus was the spokesman, and is reported to have expressed himself to the following effect: "Out of all those

things which are in the power of the immortal gods we have these which they have vouchsafed to give us. Our self-control and moderation, which depend upon strength of mind, we have kept unchanged in every turn of fortune, and we keep them so today; prosperity has not elated them, adversity has not depressed them. To mention no other instance, I would offer you Hannibal as a proof of this if I could not adduce you yourselves as an example. After we had crossed the Hellespont, before we saw the king's camp, before we saw his army, whilst the contest was still undecided and the issue of the war uncertain, we laid before you when you came to treat of peace, conditions as between equal powers. Now that we are victors we offer the same conditions to you whom we have vanquished. Keep clear of Europe; evacuate the whole of that part of Asia which lies on this side the Taurus. For the expenses incurred in the war you will give us 15,000 Euboean talents, 500 down and 2500 as soon as the senate and people of Rome have confirmed the peace, and then 1000 annually for twelve years. It is also our will that 400 talents be paid to Eumenes and the rest of the corn which was due to his father. When we have agreed on these conditions, it will be some guarantee to us that you will carry them out if you give us twenty hostages to be selected by us. But we shall never feel certain that there will be peace with Rome wherever Hannibal is, and before all else we demand his surrender. You will also give up Thoas the Aetolian, the prime mover in the Aetolian war, who instigated you to take up arms against us in reliance on them, and made them do the same in reliance on you. With him you will hand over Mnasilochus the Acarnanian, and the Chalcidians, Philo and Eubulidas. The king will make peace when his fortunes are at a lower ebb, because he is making it later than he should have done. If he hesitates now, let him know that it is not so easy for the pride of monarchs to be brought down from the summit of greatness to a moderate position as it is for it to be hurled from that stage to the lowest depths." The envoys had been instructed by the king to accept any terms. Arrangements were accordingly made for the despatch of delegates to Rome. The consul distributed his army in winter quarters at Magnesia on the Maeander, at Tralles and at Ephesus. A few days later the hostages from the king were brought to the consul at Ephesus, and the envoys arrived who were to go to Rome. Eumenes left for Rome at the same time as the envoys, and they were followed by delegations from all the communities in Asia.

[37.46]While these events were occurring in Asia two of the proconsuls returned to Rome - Q. Minucius from Liguria and Manius Acilius from Aetolia. They both expected to enjoy a triumph, but when the senate had heard their account of what they had done, they refused the request of Minucius and unanimously granted a triumph to Acilius, and he rode into the City in celebration of his victory over Antiochus and the Aetolians. There were carried in the procession 230 of the enemy's standards, 3000 pounds of uncoined silver, 113,000 Attic tetrachmi, 249,000 cistophori, and numerous heavy vases of embossed silver, as well as the silver household furniture and magnificent apparel which had belonged to the king. There were also 45 golden crowns presented by various allied cities, and a mass of spoils of every description; 36 prisoners of high rank, the generals of Antiochus and the Aetolians, were also led in the conqueror's train. Damocritus, the Aetolian leader, had escaped from prison a few nights previously, and the guards chased him to the bank of the Tiber, where he stabbed himself before they could catch him. One thing was lacking - soldiers to follow the commander's chariot. In every other respect it was magnificent, both as a spectacle and as the celebration of a splendid victory.

These triumphal rejoicings were marred by gloomy news from Spain. Six thousand men of the Roman army, under the command of the proconsul L. Aemilius, had fallen in an unsuccessful battle against the Lusitanians near the town of Lyco; the survivors fled to their camp, which they had difficulty in defending, and finally retreated by forced marches, as though fleeing from the enemy, into friendly territory. Such was the report received from Spain. A deputation arrived from Placentia and Cremona in Gaul, and were introduced to the senate by L. Aurunculeius. They complained of the scarcity of men; some had been carried off by the casualties of war, others by illness, and some had left owing to the annoyance from the Gauls in their neighbourhood. The senate decreed that the consul C. Laelius should, if he approved, draw up a list of 6000 families to be distributed between the two colonies, and L. Aurunculeius was to nominate the commissioners for settling the new colonists. Those nominated were M. Atilius Serranus, L. Valerius, P. F. Flaccus, L. Valerius and C. F. Tappo.

[37.47]Not long afterwards, as the date of the consular elections was approaching, the consul C. Laelius returned from Gaul. In pursuance

of the decree which the senate had made before his arrival, he enrolled colonists to reinforce the population of Cremona and Placentia, and he also brought forward a proposal which the senate adopted for founding two new colonies on land which had belonged to the Boii. A despatch was received at this time from L. Aemilius giving an account of the naval battle at Myonnesus, and stating that L. Scipio had transported his army into Asia. A day of thanksgiving was ordered for the naval victory, and on the following day thanksgivings and prayers that the encampment of the Roman army for the first time on the soil of Asia might bring success and happiness to the Republic. The consul received instructions to sacrifice each day twenty full-grown victims. A keen struggle arose over the consular elections. M. Aemilius Lepidus was a candidate, but he was everywhere unpopular, owing to his having left his province of Sicily in order to pursue his candidature without consulting the senate as to whether he might do so. The other competitors were M. Fulvius Nobilior, Cn. Manlius Volso and M. Valerius Messala. Fulvius was the only one elected, none of the others secured the requisite majority of votes. Fulvius, on the following day, co-opted Cn. Manlius; he had succeeded in getting Lepidus defeated, and Messala was at the bottom of the poll. The new praetors were two Fabii - Labeo and Pictor, the latter had been consecrated a Flamen Quirinalis that year - M. Sempronius Tuditanus, Sp. Postumius Albinus, L. Plautius Hypsaesus and L. Baebius Dives.

[37.48]After the new consuls had assumed office a rumour - so Valerius Antias tells us - gained wide currency in Rome to the effect that the two Scipios - Lucius and Africanus - had been invited to meet Antiochus for the purpose of receiving back the young Scipio, and that they were arrested, the king's army at once led against the Roman camp, which was captured, and the entire Roman force wiped out. It was further stated that the Aetolians gained fresh courage from this, and refused to carry out the commands laid upon them; their leaders went to Macedonia, Dardania and Thrace to raise a force of mercenaries. Valerius goes on to say that it was reported that A. Terentius Varro and M. Claudius Lepidus were sent by the propraeor A. Cornelius from Achaia to carry this news to Rome. He supplements this tale by informing us that on their appearance before the senate the Aetolians were questioned on this among other matters, and asked from whom they had heard that the Roman

commanders were made prisoners by Antiochus and their army destroyed, and that they stated in reply that they had been so informed by their envoys, who were with the consul. I have no other authority for this story, and whilst in my opinion it lacks confirmation, I have not passed it over as entirely groundless.

[37.49] Upon the appearance of the Aetolians before the senate, their own interest and the situation in which they were placed demanded that they should make a full admission of guilt and a humble request for pardon, whether for their error or their crime. Instead of this they began by recounting the services they had rendered to the Roman people and contrasting the courage they had themselves shown in fighting against Philip with that of the Romans. This insolence offended the ears of their audience, and their raking up old and forgotten incidents reminded the senators how much more they had done to injure Rome than to benefit her. Thus the men who needed compassion only evoked irritation and anger. They were asked by one senator whether they would place themselves at the disposal of the Roman people, by another whether they would have the same friends and enemies as Rome, and on their making no reply they were ordered to leave the House. The senate were unanimous in insisting that as the Aetolians were still entirely on the side of Antiochus and their aggressive temper depended solely on their hopes of him, they were unmistakably enemies to Rome, and, as such, war must be waged against them and their defiant spirit crushed. What made them still more angry was the duplicity of the Aetolians in suing for peace whilst they were actually carrying war into Dolopia and Athamania. Manius Acilius, the conqueror of Antiochus and the Aetolians, proposed a resolution which the senate adopted, namely that the envoys should be ordered to quit the City that day and to leave Italy within a fortnight. A. Terentius Varro was sent to escort them on the road, and they were warned that if any Aetolian delegates went to Rome except with the permission of the Roman commander and accompanied by a Roman officer, they would be treated as enemies. With this warning they were dismissed.

[37.50] The consuls now brought before the senate the allocation of provinces. It was decided that they should ballot for Aetolia and Asia. The one to whom Asia fell was to take over L. Scipio's army together with reinforcements amounting to 4000 Roman infantry and 200 cavalry and 8000 infantry with 400 cavalry furnished by the Latins

and allies. With this force he was to conduct the war with Antiochus. The other consul was to take over the army in Aetolia, and he was commissioned to raise reinforcements in the same number and proportion as his colleague. He was also required to fit out and take with him the ships which had been got ready the year before, and not to confine his operations to Aetolia, but to sail across to the island of Cephalania. He was further requested to go to Rome for the elections, if he could do so consistently with the interests of the State, for in addition to the appointment of the annual magistrates it was resolved that censors also should be chosen. If circumstances prevented his leaving his post, he was to inform the senate that he could not be present at that time. Aetolia fell to M. Fulvius and Asia to Cn. Manlius. The praetors' ballot followed. Sp. Postumius Albinus received the civic and alien jurisdiction; M. Sempronius Tuditanus, Sicily; Q. Fabius Pictor - the Flamen Quirinalis - obtained Sardinia; Q. Fabius Labeo was assigned the naval command; Hither Spain fell to L. Plautius Hypsaesus, and Further Spain to L. Baebius Dives. It was decreed that one legion and the fleet which was in the province at the time should be allotted to Sicily, and also that the new praetor should order the Sicilians to supply two-tenths of their corn, one-tenth to be sent into Asia, the other into Aetolia. The same requisition was made on Sardinia, and that corn was to be sent to the same armies as the Sicilian supply. L. Baebius in Spain received reinforcements to the extent of 1000 infantry and 500 cavalry, as well as 6000 infantry and 200 cavalry from the Latins and allies, so that each of the Spanish provinces might have one legion in full strength. Amongst the magistrates of the previous year, C. Laelius retained his province and his army for another year, as did also P. Junius in Etruria and M. Tuccius in Bruttium and Apulia.

[37.51] Before the praetors left for their provinces a dispute arose between P. Licinius, the Pontifex Maximus, and the Flamen Quirinalis, Q. Fabius Pictor. There had been a similar dispute many years previously between L. Metellus and Postumius Albinus. Metellus was Pontifex Maximus at the time, and had prevented Albinus, the newly elected consul, from accompanying his colleague to the fleet at Sicily. On the present occasion, P. Licinius had detained the praetor from going to Sardinia and kept him at his sacred duties. The question was hotly debated both in the senate and in the Assembly, orders were made on both sides, sureties accepted, fines

imposed, the authority of the tribunes invoked and appeals laid before the Assembly. At last the claims of religion prevailed and the Flamen was ordered to obey the Pontiff's direction; the fine imposed upon him was remitted by order of the people. The praetor was very angry at losing his province and wanted to resign his office, but the senate exerted their authority to prevent this and decreed that he should exercise the jurisdiction over aliens. The levies were now completed in a few days, for there were not many men to be called up, and the praetors left for their provinces. Unauthorised rumours began to spread through Rome about the events in Asia, and a few days later definite information and a despatch from the commander-in-chief reached the City. The rejoicing at their arrival was not due to the relief from present anxieties - for they had nothing to fear as to what the vanquished king could do in Aetolia - so much as to his having lost his former prestige; for when they began the war they looked upon their enemy as formidable both through his own power and through his having Hannibal to direct the campaign. They adhered, however, to their decision to send the consul into Asia, and thought it wise to maintain the present strength of their forces, in view of the probability of a war with the Gauls.

[37.52] Shortly after this L. Scipio's lieutenant, M. Aurelius Cotta, accompanied by the deputation from Antiochus, arrived in Rome. as did also Eumenes and the Rhodians. Cotta made his report of the proceedings in Asia to the senate, and they ordered him to lay it before the Assembly. A three days' thanksgiving was proclaimed and orders were given for forty full-grown victims to be sacrificed. Then Eumenes was received in audience. He began with a few words of thanks to the senate for having delivered him and his brother from a state of siege and rescuing his realm from the attacks of Antiochus. He went on to congratulate them upon their successes by sea and land and their expulsion of Antiochus, after he had been routed and driven out of his camp, first from Europe and then from the whole of Asia on this side the Taurus. What services he himself had rendered he preferred that they should learn from their own commanders rather than from him. His words were listened to with universal approval, and the senators urged him to lay aside all modest reserve and tell them frankly what he considered would be a fitting return from the senate and people of Rome; the senate, he was assured, would be more ready to do what his services merited than

he could either ask or expect. To this the king replied that if the choice of rewards were left to him he would, now that he had the privilege of consulting the Roman senate, gladly avail himself of the advice of the highest order in the State, so that his desires might not be thought extravagant or his requests lacking in modesty. As, however, it was they who were to be the givers, he thought it much more fitting that they should themselves determine the extent of their munificence towards his brothers and himself. Notwithstanding this protest the senators continued to press him to state his wishes. This friendly contest lasted some time, the senate ready to grant whatever the king asked for, and the king maintaining a modest reserve, each leaving the decision to the other and animated by a courtesy in which neither party would be outdone. As no definite conclusion was reached the king at last left the House, but the senators adhered to their opinion that it was absurd to suppose that the king should not know what expectations he entertained or what requests he had come to make. He knew best what would be most advantageous to his dominions, he was much more familiar with Asia than the senate were; he must therefore be recalled and forced to express his real sentiments and wishes.

[37.53]The king was brought back into the senate house by the praetor and requested to speak his mind. "I should," he began, "have persisted in my silence, senators, had it not been that you will presently call in the delegates from Rhodes, and after they had been heard it would have been necessary for me to speak. It will be all the more difficult for me to say what I have to say, because their demands will apparently not be in any way opposed to my interests or in any way affect you. They will plead the cause of the city-states of Greece and will say that they ought to be declared free. If they gain their point, who can doubt that they will sever from us not only those cities which will be declared free, but also those which from ancient times have been tributary to us, and after placing them all under obligation for so great a kindness will hold them nominally as allies but really as subjects, wholly under their dominion? And while they grasp at this immense power they will pretend that it does not in any way concern their interests, and that you are only doing what is right and proper and consistent with your policy in the past. Do not let these professions deceive you, you will have to be on your guard, lest you not only lower the status of some of your allies and raise unduly that

of others, but also place those who have borne arms against you in a better position than those who have been your allies and friends. As regards myself, I would rather be thought by anyone to have yielded within the limits of my rights, so far as other things are concerned, than to have shown excessive obstinacy in maintaining them; but when it is a question of being worthy of your friendship, of giving you every proof of affection and goodwill, of upholding the honour which comes from you - in such a contest I cannot resign myself to defeat. This is the most precious inheritance I have received from my father. He was the first of all who dwell in Greece or Asia to be admitted to your friendship, and he preserved it with unbroken and unchanging loyalty to the end of his life. Nor was it only in heart that he was a good and faithful friend. He took his part in all the wars that you have waged in Greece, he assisted you by sea and land and provided you with supplies of all kinds to an extent beyond anything which your other allies have done. And at last, whilst he was seeking to persuade the Boeotians to accept your alliance, he became unconscious in the middle of his speech, and shortly afterwards expired. Treading as I have done in his footsteps, I could not have shown in any way greater goodwill or a stronger desire to cherish your favour than he did, for those indeed were unsurpassable. That I have been able to go further than he did in actual achievement, in services rendered, in the sacrifices which duty imposes, is due to the opportunities afforded by the circumstances of the time, by Antiochus and your war in Asia. Antiochus, when monarch of Asia and a part of Europe, offered to give me his daughter in marriage and to restore at once the cities which had revolted from us, and he also held out great hopes of enlarging my dominions in the future if I would join him in fighting against you.

"I will not pride myself on never having been false to you; I would rather dwell upon those things in which I showed myself worthy of the friendship which has existed from very ancient times between you and my dynasty. I assisted your commanders with my military and naval forces in a way in which none of your allies can be compared with me; I supplied your commissariat both by land and sea; I took part in every one of the sea fights which occurred in so many different places; I never spared myself in toil or danger; I experienced what brings the worst suffering in war - a siege, and was shut up in Pergamum with my life and realm in imminent danger.

After I had been relieved, in spite of the fact that Antiochus on the one side and Seleucus on the other were threatening the citadel and heart of my kingdom, I left my own interests to protect themselves and went with the whole of my fleet to the Hellespont to meet your consul, L. Scipio, and assist in transporting his army. When once your army had landed in Asia I never left the consul's side. No Roman soldier was more regularly in his place in the camp than I and my brothers were; there was no expedition, no cavalry action, in which I was not present; I took my place in the battle line and held the post which the consul assigned to me.

"I shall not ask, senators, who, in respect of services rendered in this war, can be compared with me; there is none out of all the peoples or monarchs whom you hold in high honour with whom I would not dare to compare myself. Masinissa was your enemy before he was your ally, nor was he friendly to you while his crown was safe and he could have given you military help, but when he was a homeless fugitive and all his forces were lost he sought refuge in your camp with a solitary troop of cavalry. And yet, because he stood by you loyally and effectively against Syphax and the Carthaginians, you have not only restored to him his kingdom, but by adding the richest part of the dominions of Syphax to it you have made him the most powerful of African kings. What reward or honour then do we seem in your eyes to deserve, we who have never been your enemies, but always your friends? Not only in Asia have my father, my brothers and myself taken up arms on your behalf, but far from home in the Peloponnesus, in Boeotia, in Aetolia, in the wars with Philip and Antiochus and the Aetolians, on sea as well as on land. Someone will say, 'What, then, do you ask for?' As you insist, senators, upon my speaking freely, I must comply. If, then, your intention in removing Antiochus beyond the Taurus range is that you may hold those lands yourselves, I would rather have you than any others as my neighbours, nor do I see how my kingdom could be more secure or less liable to disturbance under any other arrangement. But if you purpose to retire and withdraw your armies from those parts, I would venture to suggest that there is none of your allies more worthy to occupy the territories you have conquered than myself. But I may be told it is a splendid thing to liberate cities from servitude. I think so too, if they have done nothing hostile to you. But if they have taken part with Antiochus, how much more worthy of your wisdom and

justice is it to study the interest of allies who have done you good, rather than the interest of your foes."

[37.54]The king's speech gave great pleasure to the senators, and it was easy to see that they were prepared to do everything in a generous and ungrudging spirit. As one of the Rhodian envoys was absent, the delegation from Smyrna was introduced, and they were highly commended for having chosen to endure every extremity rather than give themselves up to Antiochus. Then the Rhodians were received in audience. Their spokesman commenced by stating how their friendship with the Roman people began and what services they had rendered, first in the war with Philip and then in that with Antiochus. He continued: "Nothing in the whole conduct of our case, senators, is more difficult or painful than our having to enter into controversy with King Eumenes. We are bound to him more than to any other monarch by personal and (what we feel most) political ties of hospitality. It is not, however, our own feelings but nature itself which sets us at variance; we, free ourselves, are pleading for the liberty of others, but kings will have all subservient and submissive to their rule. But however this may be, we find ourselves more embarrassed by respect and regard for the king than by any difficulty in stating our case, or any likelihood of involving you in a perplexed discussion. For if you could not honour and reward a monarch who is your friend and ally, and has done you good service in this very war, otherwise than by giving up free cities to a state of servitude under him, you would have to choose one of two alternatives. Either you would have to send away a friendly monarch unhonoured and unrewarded, or you would have to depart from your settled policy and sully the glory you have acquired in the war with Philip by enslaving so many cities. But your good fortune entirely releases you from the necessity of either stinting your gratitude to a friend or tarnishing your glory. Through the favour of the gods your triumphal success is not more glorious than it is rich in results, sufficient to clear you from what I might call your debt to him. Lycaonia, Pisidia, the Chersonese, and all the adjacent portions of Europe are at your disposal, and the addition of any one of these countries would enlarge the king's dominions to many times their present size; if all were given him they would put him on a level with the greatest of monarchs. It is then open to you to enrich your allies with the prizes of war, and at the same time to avoid any departure from your settled policy, and

to bear in mind the reason you alleged for your war with Philip and your present war with Antiochus, and the course you pursued after Philip's defeat, the course which we desire and expect you to take now, not more because you took it then, than because it is the right and proper course to take. There are various good and sound pretexts for taking up arms. Some fight to obtain territory, others villages, others fortified towns, others ports and a strip of sea-coast. You did not covet these things before you possessed them, nor can you possibly covet them now when the whole world is beneath your sway. You fought for the honour of your commonwealth and the renown which you enjoy throughout the whole race of man, who have long looked upon your sovereignty and your name as only second to the immortal gods. To gain and acquire these things has been an arduous task, I am inclined to think it is a harder task to defend them. You have undertaken to protect from the tyranny of monarchs the liberties of an ancient people famous for their military reputation, and for all that is commendable in refinement and learning. Now that the nation has placed itself as a whole under your protection as clients, it is incumbent on you to show yourselves its patrons for all time. Those Greek cities which stand on their ancient soil are in no way more Greek than those colonies which have gone forth from them into Asia; they have changed their land but not their character or their blood. We have ventured - each city amongst us - to vie in dutiful rivalry with our parents and our founders in all honourable and praiseworthy arts and excellences. You have, most of you, visited the cities of Greece and Asia: we are at no disadvantage compared with them, except that we are at a greater distance from you. If the native temperament of the Massilians could have yielded to the influence of their soil they would have been long ago barbarised by the wild untamed tribes all round them, but we are given to understand that they are held in as much honour as though they were living in the heart of Greece. They have preserved their language, their dress, their personal habits, but above all, they have maintained their laws and customs and their open, straightforward character, untainted by any contact with their neighbours. The Taurus range now forms a frontier of your empire, and all within that line ought not to appear distant to you. Wherever your arms have penetrated there should the laws of Rome also penetrate. Let barbarians, who have always the commands of their masters for laws, keep their kings to their joy; the Greeks submit to their fate, but they have the same love of freedom

that you have. At one time they too grasped at empire in their own strength, now they pray that where the seat of empire, is there it may remain; they count it enough to protect their freedom with your arms.

"But," it may be replied, 'some cities took sides with Antiochus.' Yes, and others before that with Philip; the Terentines sided with Pyrrhus. Not to mention others, Carthage remains free, under her own laws. See, senators, how you are bound by this precedent which you yourselves have established. You will surely bring yourselves to refuse to the grasping ambition of Eumenes what you refused to the dictates of a just resentment. We leave you to judge with what effective and loyal service we Rhodians assisted you in this late war, and indeed in all the wars which you have ever waged on those shores. Now that peace is settled we suggest a course such that, if you approve of it, the whole world will regard the use you make of your victory as a more striking proof of your greatness than even the winning it." This speech was felt to be quite befitting to the greatness and majesty of Rome.

[37.55]After the Rhodians the envoys from Antiochus were called in. They took the usual line of those who ask for pardon, and, after acknowledging that the king was in the wrong, implored the senators to let their decision be guided more by their own clemency than by the fault of the king, for he had suffered punishment enough, and more than enough. They concluded by begging the senate to confirm by their authority the peace granted by L. Scipio on the terms which he had imposed. The senate decided that this peace should stand, and a few days later it was ratified by order of the Assembly. The formal treaty was concluded in the Capitol with Antipater, the son of the king's brother, who was the head of the delegation. After this, audience was given to other deputations from Asia. They all received the same reply, namely that the senate, in accordance with ancient usage, would send ten commissioners to investigate and settle affairs in Asia. The main provisions of the settlement, however, would be these: All the territory on this side the Taurus, which had been included within the limits of Antiochus' kingdom, would be assigned to Eumenes, with the exception of Lycia and Caria, as far as the Maeander; these were to be annexed to the republic of Rhodes. Of the other cities in Asia, those which had been tributary to Attalus were to pay their taxes to Eumenes, those which had paid tax to Antiochus were to be free from all taxation to a foreign power. The

ten commissioners were: Q. Minucius Rufus, L. Furius Purpurio, Q. Minucius Thermus, Ap. Claudius Nero, Cneius Cornelius Merula, M. Junius Brutus, L. Aurunculeius, L. Aemilius Paulus, P. Cornelius Lentulus and P. Aelius Tubero.

[37.56] They received full powers to make what arrangements were necessary on the spot; the settlement as a whole was determined by the senate. The whole of Lycaonia, both Phrygias, Mysia, the royal forests, the countries of Lydia and Ionia with the exception of those towns which were free on the day of the battle with Antiochus, Magnesia ad Sipylum which was specially named, that part of Caria called Hydrela which touches the confines of Phrygia, together with its forts and villages as far as the Maeander and all the towns which were not free before the war, Telmessus and its camp except what had belonged to Ptolemy of Telmessus - all these above-mentioned places were ordered to be given to Eumenes. To the Rhodians were assigned all Lycia with the exception of Telmessus and the camp and the district which had belonged to Ptolemy - these were not given to either Eumenes or the Rhodians. The Rhodians had also that part of Caria which lies south of the Maeander and faces Rhodes, together with the towns, villages, forts and lands bordering on Phrygia, exclusive of the towns which had been free before the battle with Antiochus. The Rhodians expressed their gratitude for these concessions, and then they introduced the question of the city of Soli in Cilicia. They explained that this people, in common with themselves, were originally a colony from Argos, and from this kinship there had always existed a feeling of brotherhood between them, and they now asked as a special favour that this city might be exempted from servitude under the king. The envoys of Antiochus were recalled and the matter was discussed with them, but they refused to agree to the proposal. Antipater appealed to the provisions of the treaty and maintained that it was a violation of those provisions; the Rhodians were trying to secure, not Soli alone, but the whole of Cilicia, and wanted to transcend the limits of the Taurus. On the Rhodians being recalled the senate explained how strongly the king's envoy had opposed the concession, and further assured them that if the Rhodians thought that the matter touched their honour and dignity the senate would find an easy way of overcoming the legate's obstinacy. This evoked still more profuse thanks, but at the same time they said that they were prepared to give way to the

arrogant claims of Antipater rather than afford a pretext for upsetting the peace. So the status of Soli remained unchanged.

[37.57]During this time, deputies from Massilia brought word that the praetor L. Baebius whilst on his way to Spain to take up his command had been intercepted by the Ligurians, a large part of his escort killed and he himself wounded. He succeeded in escaping with a few followers but without his lictors to Massilia, where after three days he expired. On receipt of this intelligence the senate decreed that P. Junius Brutus, who was administering Etruria as propraetor, should hand over his government and army to whichever of his lieutenants he decided upon and start at once for Further Spain, which was to be his province. This decision of the senate and the despatch announcing it were sent to Etruria by the praetor Sp. Postumius, and Publius Junius set out for Spain L. Aemilius Paulus, who in after years won a great reputation by his defeat of Perseus, had been in charge of this province and the previous year had met with a reverse, but notwithstanding this he raised a force of irregulars and fought a pitched battle with the Lusitanians. The enemy were routed, 18,000 were killed, 2300 made prisoners and their camp stormed. The report of this victory made matters quieter in Spain. On December 13th of this year the colony of Bononia was founded in pursuance of a senatorial decree, the three commissioners being L. Valerius Flaccus, M. Atilius Serranus and L. Valerius Tappo. The colonists numbered 3000; the equites received each seventy jugera, the other settlers fifty. The land had been taken from the Boii who had themselves formerly expelled the Etruscans from it.

The censorship this year was an object of ambition with many men of distinction, and as though it were not important enough in itself to excite keen competition, it provoked a still more exciting contest of a different character. The rival candidates were T. Quinctius Flaminius, P. Cornelius Scipio, L. Valerius Flaccus, M. Porcius Cato, M. Claudius Marcellus and Manius Acilius Glabrio, the conqueror of Antiochus and the Aetolians at Thermopylae. The last-named was the popular candidate owing to the fact that he had had numerous opportunities of distributing largesse and so had placed a considerable number of men under obligations to him. Many of the nobility were extremely angry at such preference being shown for a "new man" and two of the tribunes of the plebs, P. Sempronius Gracchus and C. Sempronius Rutilus, fixed a day for his

impeachment on the charge of neglecting to carry in his triumphal procession or deposit in the treasury a large part of the royal treasure and the plunder gathered in the camp of Antiochus. The evidence given by the staff officers and military tribunes was conflicting. A conspicuous witness who came forward was M. Cato; the authority which he had acquired by the uniform tenor of his life was somewhat impaired by his being a rival candidate for the censorship. He gave evidence to the effect that the gold and silver plate which he had noticed amongst the royal booty when the camp was taken, he had not seen in the triumphal procession. At last Glabrio, mainly with the object of creating odium against him, gave out that he was abandoning his candidature since a competitor who was as much a "new man" as himself, and therefore the object of silent indignation amongst the nobility, was defaming him by perjured evidence.

[37.58]The prosecutors demanded a fine of 100,000 ases. The discussion which ensued extended over two sittings of the Assembly; at the third, the defendant had already withdrawn from his candidature, and as the people refused to vote on the fine the tribunes abandoned all further proceedings. T. Quinctius Flamininus and M. Claudius Marcellus were elected censors. L. Aemilius Regillus, who had inflicted the decisive defeat on Antiochus' naval commander, was received about this time by the senate in the temple of Apollo outside the City. After hearing his statement of what he had done, with what large hostile fleets he had engaged and how many of their ships he had either sunk or captured, the senate unanimously accorded him a naval triumph. He celebrated his triumph on February 1st, and in the procession were carried 49 golden crowns, 34,200 Attic tetrachmas and 132,300 "cistophori" - a far less amount of specie than might have been expected in a triumph over the king. This was followed by public thanksgivings ordered by the senate for the successful conduct of affairs in Spain by L. Aemilius. Not long afterwards L. Scipio arrived in the City. Not to be outdone by his brother Africanus in the matter of surnames, he wanted to be called "Asiaticus." He enlarged upon his services in the senate and also before the Assembly. Some people alleged that the war had loomed larger in the popular view than its real difficulty warranted; it had been brought to a close in one memorable battle and the glory of that victory had been shorn of its splendour at Thermopylae. But rightly judged the battle at Thermopylae was won over the Aetolians much more than over the

king, for with what proportion of his total strength did he fight there? In the battle in Asia the whole power of Asia was in the field, the massed forces were drawn from every nation to the furthest limits of the East.

[37.59]Deservedly, therefore, was the utmost possible honour paid to the immortal gods for having made a crushing victory an easy one also, and a triumph was decreed to the commander. He celebrated this on the last day of the intercalary month, the day before March 1st. As a spectacle his triumph was a grander one than that of his brother Africanus, but to anyone who recalls the circumstances and forms an estimate of the risk incurred in each of the two battles, it can bear no comparison with it any more than you can compare the two Roman generals with each other or Antiochus as a strategist with Hannibal. In the procession were borne 224 military standards, 134 models of towns, 1231 tusks of ivory, 234 golden crowns, 137,420 pounds of silver, 224,000 Attic tetrachmas, 331,070 "cistophori," 140,000 gold pieces of Macedonian coinage, 1424 pounds' weight of chased and embossed silver plate and 1024 pounds of similar articles in gold. Among the prisoners were generals, prefects, and nobles attached to Antiochus' court, as many as thirty-two of these were led before the victor's chariot. Each legionary soldier received 25 denarii, each centurion twice and each trooper three times this amount, and after the triumph they all received double pay and a double ration of corn. The consul had given them the same allowance after the battle in Asia. His triumph was celebrated about a year after he had gone out of office.

[37.60]The consul Cn. Manlius landed in Asia and the praetor Q. Fabius Labeo joined the fleet almost at the same time; the consul, however, did not lack material for a war, in this case with the Gauls. Through the defeat of Antiochus the sea had been cleared of the enemy, and Q. Fabius was considering what he ought to devote himself to so that he might not appear to have received a province where there was nothing to do. He thought the best thing to do would be to sail across to Crete. Cydonia was at war with Gortynia and Gnossus, and it was reported that a large number of Roman and Italian prisoners were kept in slavery all over the island. Fabius set sail from Ephesus and as soon as he touched the coast of Crete he sent messengers to the various cities requiring them to lay down their arms, search out all the prisoners in their towns and villages and bring

them in. They were also to send representatives to him with whom he could settle matters which concerned the common interests of Crete and Rome. The Cretans took no notice of these orders and, with the exception of Gortynia, no city restored the prisoners. Valerius Antias tells us that as many as 4000 prisoners were restored out of the whole island, as hostilities were threatened in case of non-compliance, and he adds that was the sole reason why Fabius, who had done nothing else whatever, induced the senate to grant him a triumph. Fabius sailed back to Ephesus and from there despatched three ships to the coast of Thrace with orders for the withdrawal of Antiochus' garrisons from Aenos and Maronea in order that these might be free cities.

BOOK 38: ARRAIGNMENT OF SCIPIO AFRICANUS

[38.1] Whilst the war was going on in Asia, even Aetolia did not remain free from disturbance. The Athamanians were the cause of the trouble. After the expulsion of Amynder, the country was held down by the governors whom Philip had established and provided with troops, and their arbitrary and lawless rule made the people feel keenly the disappearance of their king. He was spending his time of exile in Aetolia, and the letters of his friends and their description of the condition of Athamania led him to hope that he might recover his crown. He sent messengers to Argithea, their capital, to inform their leaders that if he were fully assured of the sympathies of his compatriots, he would obtain assistance from the Aetolians and enter the country with the members of the Aetolian council and their captain-general, Nicander. When he saw that they were prepared for all eventualities, he told them at very short notice the day on which he intended to enter Athamania with an army. The movement against the Macedonians was begun by four men; they each selected six comrades, then feeling no confidence in so small a number, which was more adapted to conceal than to execute their project, they doubled the number of their fellow-conspirators. Having thus grown to fifty-two, they formed themselves into four parties; one was to make for Heraclea, a second for Tetrachylia where the royal treasure used to be kept, the third was to go to Theudoria, and the fourth to Argithea. They had all agreed to show themselves in the forums without making any disturbance, as though they had come on private business, and on a fixed day they were to raise the populations in the

different cities and expel the Macedonian garrisons from their citadels. When the day came and Amynder was on the frontier with 1000 Aetolians, the Macedonian garrisons were simultaneously driven out of the four cities, and letters were sent to all the other cities urging them to shake themselves free from the tyranny of Philip and win back their ancestral and legitimate monarchy. The Macedonians were expelled from all parts of the country. Xeno, the commandant of the garrison in Theium, intercepted the message sent to that city, and by seizing the citadel was able to stand a siege for a few days. At last that place, too, surrendered to Amynder, and the whole of Athamania, with the exception of the fort of Athenaeum, which lay close to the frontier of Macedonia, was now in his power.

[38.2] On hearing of the revolution in Athamania, Philip started off with a force of 6000 men, and after an extraordinarily rapid march arrived at Gomphi. Here he left the greater part of his army, who were unable to keep up such long marches, and went on with 2000 men to Athenaeum, the one place that had been retained by his troops. From here he tried to secure some of the places nearest to him, but he soon found that they were all hostile, and accordingly he returned to Gomphi. Re-entering Athamania with the whole of his force, he sent Xeno forward with 1000 infantry to seize Ethiopia, a good position for commanding Argithea. When Philip saw that his men were in occupation of the place, he encamped near the temple of Jupiter Acraeus. Here he was detained a whole day by a terrible storm; the next day he decided to advance against Argithea. Whilst his men were on the march they suddenly caught sight of the Athamanians running up to some high ground which commanded their line of march. At this sight the leading ranks halted and there was confusion throughout the column, as the men all asked themselves what would happen if the column went down into the valley where it was commanded by those heights. Philip wanted to push rapidly through the pass, but the confusion that had been caused compelled him to recall the head of the column and order them to counter-march along the way they had come. At first the Athamanians followed them quietly at some distance, but when the Aetolians had joined them, they left it to them to harass the enemy's rear while they themselves closed in on their flank, and some making a short cut through country they were familiar with, seized the head of the pass. The confusion amongst the Macedonians was such that

their recrossing of the river resembled a precipitate flight rather than an orderly march, and they left many men and arms behind. Here the pursuit stopped and the Macedonians got back safely to Gomphi and from there withdrew into Macedonia. The Athamanians and Aetolians mustered from all sides round Ethopia with the object of expelling Xeno and his 1000 Macedonians. Feeling their position to be insecure they left Ethopia and took up a position on higher and more precipitous ground. The Athamanians, however, found out the approaches, attacked them from several different points and drove them from the heights. Scattered in flight and unable to find their way through pathless thickets and over rocky ground with which they were unfamiliar, they were killed or made prisoners, many in their panic fell down the cliffs, and only a very few succeeded in making their escape with Xeno to the king. Subsequently a truce was arranged for the burial of those who had fallen.

[38.3]His crown recovered, Amynder sent a delegation to the senate and another to the Scipios, who were staying at Ephesus after the battle with Antiochus. He asked to be allowed to remain on a peaceful footing with Rome, and in excusing himself for having sought the aid of the Aetolians in winning back his ancestral throne, threw the whole responsibility for the war on Philip. From Athamania the Aetolians marched into Amphilochia, and the voluntary surrender of the majority of the population made them masters of the whole country. After recovering Amphilochia which had formerly belonged to them, they invaded Aperantia, hoping for equal success, and this State also to a large extent surrendered without offering any resistance. The Dolopians had never been under Aetolia; they had formed part of Philip's dominions. At first they flew to arms, but when they learnt that the Amphilochians had joined the Aetolians, that Philip had fled from Athamania and his force had been cut up, they too revolted from him and joined the Aetolians. With these States all round them, the Aetolians considered themselves secure on every side from the Macedonians. But in the midst of their security they received intelligence of the defeat of Antiochus at the hands of the Romans in Asia, and not long after, their envoys returned from Rome bringing no hope of peace and announcing that the consul Fulvius had already landed in Greece with an army. Appalled at these tidings they begged Rhodes and Athens to send delegates to Rome so that with the support of these friendly

nations their own petitions which had been lately rejected might find readier access to the ear of the senate. They then sent their leaders to Rome as their last hope, having taken no precautions to avoid war until the enemy was almost in sight. M. Fulvius had now brought his army up to Apollonia and was consulting the Epirot leaders as to where he should open the campaign. They thought the best course would be to begin with an attack on Ambracia, which had by that time joined the Aetolian League. They pointed out that if the Aetolians came to its relief, the open and level country afforded a favourable field of battle; if they avoided an engagement, the siege would be by no means a difficult one as there was abundance of timber in the neighbourhood for constructing the raised galleries and all the other siege works; the Aretho, a navigable river and well adapted for transporting all necessary materials, flowed past the very walls; and in the last place, summer, the season for active operations, was approaching.

[38.4]Induced by these considerations the consul advanced through Epirus, but when he came to Ambracia he saw that its siege would be a serious undertaking. Ambracia lies at the foot of a rugged eminence which the natives call Perranthes. The city on the side where the wall skirts the river and the plain looks to the west; the citadel built on the hill lies to the east. The Aretho, which rises in Athamania, falls into the gulf named after the city - the Ambracian Gulf. In addition to the protection afforded by the river on the one side and the hill on the other, the city was enclosed by a strong wall more than four miles in circumference. Fulvius constructed two entrenched camps at a short distance from each other in the direction of the plain and one fort on a height over against the citadel, and made preparations for connecting the whole by a rampart and fosse, so that those shut up in the city would not be able to leave it, nor would it be possible to introduce succours from outside. When the news of the siege of Ambracia reached them, the Aetolian national council assembled at Stratus, on the summons of Nicander, their captain-general. Their first intention was to march thither with all their forces and raise the siege, but when they found that a great part of the city was already invested and that the Epirot camp was fixed on the level ground the other side the river, they divided their forces. Eupolemus with 1000 light infantry succeeded in entering the city at a point where the lines were not yet closed. Nicander intended to

make a night attack with the rest of the troops upon the Epirot camp, as the Romans would find it difficult to come to their assistance with the river between them. On second thoughts, however, the risk seemed too great in case the Romans took the alarm and endangered his retreat, so he marched away and ravaged Acarnania.

[38.5]The lines of investment were at length closed and the siege works which the consul was preparing to bring up against the walls completed. He now commenced an assault from five different points. On the side of the city overlooking the plain where the approach was easiest he brought up three siege-engines, at equal distances from each other, at a place called the Pyrrheum, another near the Aesculapium, and the fifth against the citadel. As he shook the walls with the battering-rams and sheared off the parapet by scythe blades fixed on long poles the defenders were dismayed at the sight and at the terrific noise of the blows delivered by the rams, but when they saw that the walls were still standing, their courage revived and they hammered the rams by means of swing beams with heavy masses of lead, large stones and stout beams of wood; they dragged with iron grapples the poles with the scythe blades inside the walls and broke off the blades. Their night attacks on the parties guarding the engines, and sorties by day against the outposts, spread alarm on the other side. While this was the state of things in Ambracia the Aetolians had returned from their plundering raid to Stratus. Here Nicander hit upon a bold stroke by which he hoped to raise the siege. His intention was to introduce a certain Nicodamus into the city with 500 Aetolians, and he fixed the night and the hour at which an attack was to be made from the city on the hostile works directed against the Pyrrheum whilst he himself threatened the Roman camp. By this double attack, all the more alarming because made in the night, he hoped to secure a brilliant success. Nicander moved forward in the dead of the night and after passing some of the advanced posts unobserved and forcing his way through others by a determined onslaught, climbed over the lines connecting the different works and penetrated into the city. His arrival raised the hopes of the besieged and emboldened them to attempt any adventure however hazardous. When the appointed night arrived he made a sudden attack on the works. His attempt did not meet with a corresponding success, for no attack was made from outside, either because the Aetolian commander was afraid to move or because he deemed it more

important to carry assistance to the Amphilochians, who had been lately won over and whom Philip's son Perseus, who had been sent to recover Dolopia and Amphilochia, was attacking with his utmost strength.

[38.6]As stated above, the Roman engines were directed against the Pyrrheum at three separate points, and against each of these the Aetolians were making simultaneous attacks, though not with the same weapons or the same force. Some went up with lighted torches, others carried tow and pitch and fire-darts; the whole of their line was lit up by the flames. At the first onset they overwhelmed many of the guards; then when the noise of the tumult and clamour reached the camp, the consul gave the signal and the Romans, seizing their weapons, poured out of all the gates to help their comrades. Only at one point was there a real fight between sword and fire; at the two others the Aetolians after attempting, rather than sustaining, a conflict retreated without effecting anything. A desperate struggle raged in one quarter; here the two generals, Eupolemus and Nicodamus, at the head of their respective divisions urged on the combatants and encouraged them with the almost certain hope of Nicander's coming up as he had promised and taking the enemy in the rear. This hope for some time kept up their spirits, but when they failed to receive the agreed signal from their comrades and found that the numbers of the enemy were increasing, their courage waned and at last they gave up the attempt, and finding their retreat almost cut off, fled in disorder back to the city. They succeeded, however, in setting some of the siege-works on fire after losing considerably more than they had themselves killed of the enemy. If the preconcerted plan of operations had been successful, there is no doubt that at least one section of the siege-works would have been carried with a great slaughter of the Romans. The Ambracians and Aetolians in the city not only abandoned all further attempts that night, but during the remainder of the siege showed themselves much less enterprising, as they felt they had been betrayed. No more sorties were made against the enemy's posts; they confined themselves to fighting in comparative safety from the walls and towers.

[38.7]When Perseus heard that the Aetolians were approaching, he raised the siege of the city which he was attacking and, after devastating their fields, left Amphilochia and returned to Macedonia. The Aetolians, too, were called away by the ravages which were being

committed on their sea-board. Pleuratus, king of the Illyrians, had sailed into the Gulf of Corinth with sixty ships, reinforced by the Aetolian vessels from Patrae, and was devastating the maritime districts of Aetolia. A force of 1000 Aetolians was despatched against him and by taking direct roads they were able to meet him at whatever point his fleet had, in its cruising in and out of the indented coast, tried to effect a landing. At Ambracia the Romans had battered down the walls in several places and partially laid bare the city, but they could not force their way into it. As fast as the wall was destroyed a new one was raised in its place and the citizens stood in arms on the fallen masonry to bar all approach. Finding that he was making very little progress by direct assault, the consul decided to construct a secret passage underground after first covering the place whence it started with vineae. Working day and night they succeeded for a considerable time in escaping the observation of the enemy, not only whilst they were digging but also whilst carrying away the earth. Suddenly the sight of a conspicuous mound of soil gave the townsmen an indication of what was going on. To avert the danger of the wall being undermined and a way into the city being thrown open, they began to run a trench inside the wall in the direction of the place covered with vineae. When they had excavated as low as the bottom of the secret passage would probably be, they remained perfectly silent, and by placing their ears against different places in the side of the trench they caught the sound of the enemy diggers. As soon as they heard this they broke through straight into the tunnel. There was no difficulty in doing this, for they quickly found themselves in an open space where the wall had been underpinned with timber props by the enemy.¹ As the trench and tunnel now opened into one another the two parties of diggers commenced a fight with their digging tools. Very soon armed bodies came up on both sides and an underground battle began in the dark. The besieged closed up the tunnel in one place by stretching a screen of goats' hair across and improvising barricades, and they adopted a novel device against the enemy which was small but effective. A hole was bored through the bottom of a cask in which an iron pipe was inserted. and an iron cover perforated with several holes was prepared to fit the other end. The cask was then filled with light feathers, the cover fastened on, and through the holes some long spears - the so-called "sarissae" - were inserted to keep off the enemy. The cask was now placed with its head towards the tunnel and a light was placed

amongst the feathers which were blown into a blaze by a pair of smith's bellows inserted in the pipe. The tunnel was soon filled with a dense smoke, rendered all the more pungent from the horrid smell of the burning feathers, and hardly a man could endure it.

[38.8]Whilst this was the state of things in Ambracia, the Aetolians decided to open negotiations with the consul. In view of the fact that on one side Ambracia was undergoing a siege, on another the coast was being threatened by a hostile fleet, whilst on the third side Amphilochia and Dolopia were being harried by the Macedonians, and that the Aetolians were not strong enough to confront their various enemies collectively, the captain-general convened a meeting of the Aetolian League and consulted the national leaders as to what was to be done. They were unanimously of opinion that they must sue for peace, on equal terms, if possible; failing that, on any terms, if they were not intolerable. It was in reliance upon Antiochus, they said, that they had undertaken the war; now that Antiochus had been worsted both on land and sea and driven beyond the Taurus almost to the ends of the world, what hope was there of sustaining the war? Phaeneas and Damoteles must take such steps as they thought best in the interests of Aetolia, and consistent with their own honour, for what counsel, what choice had their fortunes left them? Furnished with these instructions, the envoys implored the consul to spare the city and to take pity on a nation which had once been an ally and had been driven to madness - they would not say by their wrongs, but at all events, by the wretched conditions under which they lived. The punishment they deserved for their share in the war with Antiochus ought not to outweigh the services they had rendered in the war against Philip. At that time no great gratitude had been shown them; they ought not now to pay an excessive penalty. The consul told them in reply that the Aetolians had frequently asked for peace, but seldom with the honest intention of keeping it. They must follow the example of Antiochus whom they had dragged into the war. He had ceded not only those few cities whose liberty had been the cause of quarrel, but the whole of Asia on this side the Taurus - a rich and fertile realm. He, the consul, would not listen to any proposals unless the Aetolians laid down their arms. They must first give up their arms and all their horses; then they must pay 1000 talents; half the sum to be paid down at once, if they wished to have peace. And in addition

to these terms it must be stipulated in the treaty that they would have the same friends and the same enemies as Rome.

[38.9]The envoys felt these to be onerous terms, and as they knew the fierce and fickle temper of their countrymen they left without giving any decided answer. They wished to discuss the whole position thoroughly with the captain-general and the national leaders and come to some decision as to what ought to be done. They were received with clamorous protests and reproaches. "How long," they were asked, "were they going to let matters drag on after receiving definite orders to bring back peace at any price?" Their return journey to Ambracia was a disastrous one. The Acarnanians with whom they were at war had posted an ambush close to the road on which they were travelling; they were made prisoners and conducted to Tyrrhenum for safe keeping. This interrupted the peace negotiations. The delegates who had been sent from Athens and Rhodes to support the Aetolians were already with the consul, when Amynder, who had obtained a safe-conduct, arrived in the Roman camp. He was more concerned for the city of Ambracia, where he had passed most of his years of exile, than for the Aetolians. When the consul learnt from them what had happened to the Aetolian envoys, he sent orders for them to be brought from Tyrrhenum, and on their arrival the negotiations commenced. Amynder, whose main interest was in Ambracia, did his utmost to induce the place to surrender. He approached the walls and held conversations with the leaders, but finding that he was making no progress, he at last obtained the consul's permission to enter the city and succeeded by argument and entreaty in persuading them to place themselves in the hands of the Romans. The Aetolians found a strong advocate also in C. Valerius, the son of the Valerius Laevinus who was the first to establish friendly relations with them. He was also half-brother of the consul.

After stipulating for the safe departure of their auxiliary troops, the Ambracians opened their gates. Then the Aetolians accepted the following conditions: They were to pay 500 Euboean talents; 200 at once, the remaining 300 to be spread over six years; the prisoners and refugees were to be restored to the Romans; they were not to retain within their League any city which from the day when T. Quintius landed in Greece had either been taken by or entered into friendly relations with the Romans. Although these conditions were much

less onerous than they had expected, they asked to be allowed to lay them before their council. Here there was a brief debate on the question of the cities which had been confederated with them. They felt their loss keenly; it was as though they were being torn from their living body; nevertheless they were unanimous in deciding that the terms must be accepted. The Ambracians gave the consul a gold crown 150 lbs. in weight. The statues in bronze and marble and the paintings with which Ambracia, as the royal residence of Pyrrhus, had been more richly adorned than any other city in that part of the world were all carried away, but beyond these nothing was injured or interfered with.

[38.10]The consul left Ambracia for the interior of Aetolia and fixed his camp at Amphilochian Argos, twenty-two miles distant from Ambracia. Here the Aetolian delegates at last arrived, the consul meantime wondering what had delayed them. On their informing him that the Aetolian Council accepted the conditions of peace, he told them to go to Rome to appear before the senate; the Rhodians and Athenians were also allowed to go to plead for them; and the consul also allowed his brother, C. Valerius, to accompany them. After their departure he crossed over to Cephallania. In Rome the delegates found the ears and minds of the leading men preoccupied by the accusations which Philip had brought against them. Through his representatives, in his despatches he had asserted that Dolopia, Amphilochia and Athamania had been wrested from him, and his garrisons and even his son Perseus had been expelled from Amphilochia. The senate consequently refused to listen to them. The Rhodians and Athenians, however, obtained a hearing. The Athenian spokesman, Leon the son of Hicesias, is said to have moved them by his eloquence. Making use of a common simile he compared the people of Aetolia to a calm sea which has become agitated by the winds. "As long as they were faithful to Rome," he said, "their peace-loving temperament kept them quiet, but when Thoas and Dicaearchus sent a blast from Asia and Menestas and Damocritas from Europe, then that storm arose which dashed them against Antiochus as against a rock."

[38.11]After a good deal of rough-handling the Aetolians at last succeeded in getting the terms of peace settled. They were as follows: "The nation of the Aetolians shall uphold sincerely and honestly the majesty and dominion of the Roman people; they shall not suffer to

pass through their territories or in any way assist any army which may be led against the friends and allies of Rome; they shall count the enemies of Rome as their enemies and bear arms against them and wage war against them equally with Rome; they shall restore to the Romans and their allies the deserters, the refugees and the prisoners, save and except any who have escaped from captivity and returned to their homes and then been taken captive a second time, and any prisoners from amongst those who were fighting against Rome at the time when the Aetolians formed a part of the Roman forces. Of the others, all who are known shall be handed over without reserve or subterfuge to the magistrates at Corcyra within 100 days; those who have not then been discovered shall be delivered up as soon as they are found. The Aetolians shall surrender forty hostages, such as the consul in his discretion shall choose, not less than twelve or more than forty years of age. No magistrate or commander of cavalry or public secretary shall be taken as a hostage, nor any one who has been previously held as a hostage by the Romans. Cephallania shall be excluded from the terms of peace." As to the indemnity which they were to pay and the method of payment, the understanding with the consul held good. If they preferred to pay it in silver rather than in gold, they might do so provided that ten silver pieces were taken as the equivalent of one gold piece. "Concerning the cities, the territories, the populations, which have at any time been incorporated in the Aetolian League - those of them which have either been subjugated or voluntarily surrendered to Rome during the consulships of T. Quinctius, Cneius Domitius, or the consuls which followed them, none of these must the Aetolians seek to recover. The Oeniadae with the city and the soil shall belong to the Acarnanians." Such were the terms upon which peace was concluded with the Aetolians.

[38.12]Almost at the very time when M. Fulvius was thus engaged in Aetolia, the other consul, Cneius Manlius, was warring in Gallograecia. I will now proceed to narrate the events of this war. The consul went to Ephesus at the beginning of spring and took over the troops from L. Scipio. After holding a review of the army he addressed the soldiers. He began by eulogising their valour in bringing the war with Antiochus to a close in a single battle, and went on to encourage them to begin a fresh war against the Gauls. This nation, he reminded them, had gone to the assistance of Antiochus,

and so intractable was their temper that the removal of Antiochus beyond the Taurus would be useless unless the power of the Gauls was broken. He concluded his address with a few sincere and unaffected words about himself. The soldiers were delighted and frequently applauded him; they looked upon the Gauls as simply a division of Antiochus' army, and now that the king was overcome they did not think that there would be much aggressive energy in the Gauls when left to themselves. Eumenes was in Rome at the time and the consul regarded his absence as ill-timed, since he was familiar with the country and the population and was personally interested in the destruction of the power of the Gauls. The consul sent, therefore, for his brother Attalus, who was at Pergamum, and pressed him to take his part in the war. Attalus promised on his own behalf and on that of his subjects to assist him, and was sent back to muster troops. A few days later the consul advanced from Ephesus and was met at Magnesia by Attalus with 1000 infantry and 500 cavalry. His brother Athenaeus was under orders to follow with the rest of the forces, and the defence of Pergamum was entrusted to men whom he believed to be loyal subjects of their king. The consul warmly approved of the young man's action and advanced with the whole of his forces to the Maeander. Here he entrenched himself, and as the river was unfordable, vessels had to be collected to carry the army over.

[38.13]After crossing the Maeander they marched to Hieracoma. Here there was a noble temple to Apollo and an oracular shrine; it is said that the priests delivered the responses in smooth and graceful verses. From this place, after a two days' march, they reached the river Harpasus. Here they were met by a deputation from Alabanda, who came with a request to the consul to compel, either by his personal authority or his arms, a revolted stronghold to return to its former allegiance. Here, too, came Eumenes' brother Athenaeus with the Cretan Leusis and Corragus of Macedonia. They brought with them 1000 infantry drawn from various nationalities and 300 cavalry. The consul despatched a military tribune with a small force to reduce the stronghold and it was restored to the people of Alabanda; he himself continuing his march encamped at Antiochia on the Maeander. This river rises at Celaenae; the city was once the capital of Phrygia. The population migrated a short distance from the old city and built a new one, which received the name of Apamea after Apama, the sister of King Seleucus. The river Marsyas which rises

not far from the sources of the Maeander flows into that river, and the story goes that it was at Celaenae that Marsyas contested the palm of song with Apollo. The Maeander rises at the highest part of Celaenae and runs through the middle of the city. Its course then lies through Caria and Ionia and it finally empties itself into the bay between Priene and Miletus.

Whilst the consul was in camp at Antiochia, Seleucus the son of Antiochus came to furnish corn for the army, in pursuance of the treaty obligation with Scipio. There was a slight difficulty raised in the case of the auxiliaries under Attalus because Seleucus maintained that Antiochus had only agreed to supply corn to the Roman soldiers. The dispute was settled by the firmness of the consul, who sent a tribune from the headquarters tent to give notice that the Roman soldiers were not to take the corn before the troops of Attalus had received their share. From Antiochia they marched to a place called Gordiutichi, and a further three days' march brought them to Tabae. This place lies within the frontiers of Pisidia, in that part which looks towards the Pamphylian sea. As this country was unwasted by war, its population were in a bellicose mood. On this occasion they made a vigorous attack on the Roman column and at first created some confusion, but when it became evident that they were outmatched in numbers and in courage and were driven back to their city, they craved for mercy and offered to surrender the city. A fine of 25 talents of silver and 10,000 medimni of wheat was imposed upon them. On these terms they were allowed to surrender.

[38.14] Three days after this they reached the river Casus and advanced to attack the city of Eriza, which they captured at the first assault. Continuing their march they came to Thabusion, a fortified place commanding the Indus. This river got its name from a mahout who was thrown from his elephant. They were now not far from the city of Cibyra, but no deputation came from Moagetes, the faithless and cruel tyrant of that city. In order to ascertain his attitude the consul sent an advance-party of 4000 infantry and 500 cavalry under C. Helvius. This force was already entering his territory when envoys met them with the announcement that the tyrant was ready to comply with the consul's orders. They begged Helvius to enter their territory peaceably and to restrain his soldiery from plundering their fields; they also brought 15 lbs. of gold made into a crown. Helvius promised to protect their fields from pillage and told them to go to

the consul. When they had spoken in a similar strain to him, he replied: "We Romans have received no proofs of goodwill on the part of the tyrant towards us, and it is a matter of common knowledge that he is the sort of man whom we ought to think of punishing rather than treating as a friend." The envoys were greatly perturbed at these words and simply requested him to accept the golden crown and to allow the tyrant to visit him in person with liberty to speak and clear himself of suspicions. The consul gave permission and the next day the tyrant arrived. His dress and his retinue were hardly equal to those of a private citizen of moderate means; his language was abject and broken, and he sought to excuse himself by pleading the poverty of his cities and his dominions. Besides Cibyra he had the city of Sylleum and a place called Alimne, and out of these cities he promised, though somewhat doubtfully, to raise 25 talents, but only by robbing himself and his subjects. "Really," replied the consul, "this trifling is intolerable! After trying, unblushingly, to fool us through your envoys, you actually keep up the same effrontery now you are here. You say 25 talents will exhaust your government. Very well, then, unless you pay down 500 talents in three days, look out for the plunder of your fields and the investment of your city." Though appalled by the threat, the tyrant still persisted in his presence of poverty. Shuffling, whimpering and shedding crocodile tears, he was at last brought to a fine of 100 talents, and in addition 10,000 medimni of corn. All this was carried through in six days.

[38.15] From Cibyra the army was led through the district of Sinda, and after crossing the Caularis formed camp. The following day they marched past the Caralite marshes and made a halt at Madamprum. On their further advance towards Lacos the inhabitants fled from the city, and finding it devoid of men but filled with abundance of every kind, the Romans sacked it. Then they went on to the sources of the Lysis and the following day reached the Cobulatus. The Termessians had captured the city of Isonde and were now attacking the citadel. Shut up within their walls the only hope left to them was help from the Romans. They sent to the consul to implore his assistance; shut up in their citadel with their wives and children, they were daily looking forward to death either by sword or famine. The consul gladly seized the pretext for a march into Pamphylia, and raised the siege, granting peace to Termessus on the payment of 50 talents of silver. Aspendus and the other cities in Pamphylia were treated in the

same way. Leaving Pamphylia and resuming his march he encamped at the river Taurus, and the next day at a place called Xylene Come. From there he marched continuously till he reached the city of Cormasa. The next city to this was Dursa, which they found deserted by the panic-stricken inhabitants, but abundantly supplied with all manner of stores. On his advance past the marshes a deputation came to him from Lysinoe to surrender their city. From this point he entered the territory of Sagalassus, a fertile district rich in all kinds of fruits. Its Pisidian inhabitants are by far the best soldiers in that part of the world. Their military superiority, the fruitfulness of their soil, their large population, and the situation of their exceptionally strong city make them a brave people. As no envoys appeared when the consul reached their frontiers, he sent out plundering parties into their fields. At last, as they saw their crops carried off and their cattle driven away, their stubbornness yielded. The envoys whom they sent agreed to pay a fine of 50 talents, 20,000 medimni of wheat and an equal amount of barley, and on these terms they obtained peace. Making a further advance to the source of the Rhotris he encamped at a village called Acoridos Come. The next day Seleucus arrived from Apamea. The consul sent the sick and all the baggage which was not needed to Apamea, and after being supplied with guides by Seleucus, he marched into the plain of Metropolis, and the next day to Dyniae in Phrygia. A further advance brought him to Synnada. All the cities round had been deserted by their inhabitants, and the army was so heavily laden with the booty from these places that they took a whole day to traverse the five miles to Old Beudi, as it is called. His next halt was at Anabura; the day following he encamped at the source of the Alander, and on the third day at Abassium. As he had now reached the frontiers of the Tolostobogii he remained encamped for several days.

[38.16]A large body of Gauls, induced either by want of room or desire for plunder and convinced that none of the nations through whom they intended to pass was a match for them in arms, marched under the leadership of Brennus into the country of the Dardani. Here a quarrel arose, and as many as 20,000 of them left Brennus and went off under two of their chiefs, Lonorius and Lutarius, into Thrace. Fighting with those who opposed their progress and exacting tribute from those who asked for peace, they reached Byzantium. Here they remained for some time in occupation of the coast of the

Propontis, all the cities in that region being tributary to them. When reports from those acquainted with Asia of the fertility of its soil reached their ears, they were seized with the desire of crossing over to it, and after capturing Lysimachia by treachery and making themselves masters of the whole of the Chersonese, they moved down to the Hellespont. They were all the more eager to make the passage when they saw that there was only a narrow strait which separated them, and they sent to Antipater, the governor of the coastal district, asking him to arrange for their transport. The matter took longer than they expected, and a fresh quarrel broke out between the chiefs. Lonorius, with the greater part of the host, returned to Byzantium; Lutarius took two decked ships and three light barques from some Macedonians who had been sent by Antipater, ostensibly as negotiators, but really as spies, and in these vessels he transported one detachment after another, night and day, until he had carried his whole force across. Not long afterwards, Lonorius, with the assistance of Nicomedes king of Bithynia, sailed across from Byzantium. The re-united Gauls assisted Nicomedes in his war against Ziboetas, who was holding a part of Bithynia, and it was mainly owing to them that Ziboetas was defeated and the whole of Bithynia brought under the rule of Nicomedes.

From Bithynia they went further into Asia. Out of the 20,000 men not more than 10,000 were carrying arms, yet so great was the terror they inspired in all the nations west of the Taurus, that those who had no experience of them, as well as those who had come into contact with them, the most remote as well as their next neighbours, all alike submitted to them. They were made up of three tribes, the Tolostobogii, the Trocmi and the Tectosagi, and in the end they divided the conquered territory of Asia into three parts, each tribe retaining its own tributary cities. The coast of the Hellespont was given to the Trocmi, the Tolostobogii took Aeolis and Ionia, and the Tectosagi received the inland districts. They levied tribute on the whole of Asia west of the Taurus, but fixed their own settlement on both sides of the Halys. Such was the terror of their name and the growth of their numbers that at last even the kings of Syria did not dare to refuse the payment of tribute. The first man in Asia to refuse was Attalus the father of Eumenes, and contrary to universal expectation, fortune favoured his courageous action; he proved himself superior in a pitched battle. The Gauls, however, were not so

far disheartened as to renounce their supremacy in Asia; their power remained unimpaired down to the war between Antiochus and Rome. Even then, after the defeat of Antiochus, they quite expected that owing to their distance from the sea the Romans would not advance so far.

[38.17]As it was this enemy, so much dreaded by all the people in that part of the world, that was to be met in war, the consul paraded his soldiers and delivered the following speech to them: "I am quite aware, soldiers, that of all the nations of Asia the Gauls have the highest military reputation. This fierce people, after wandering and warring over almost the entire world, have taken up their abode amongst the gentlest and most peaceable race of men. Their tall stature, their long red hair, their huge shields, their extraordinarily long swords; still more, their songs as they enter into battle, their war-whoops and dances, and the horrible clash of arms as they shake their shields in the way their fathers did before them - all these things are intended to terrify and appal. But let those fear them to whom they are strange and startling, such as the Greeks and Phrygians and Carians. We Romans are familiar with Gaulish tumults and know how they come to nothing. Once in the old days when our ancestors met them for the first time, they fled from them at the Alia; from that time for the last 200 years they have routed and slain them like so many herds of cattle, and almost more triumphs have been won over the Gauls than over the rest of the world put together. Our experience has taught us this - if you withstand their first rush with its wild excitement and blind fury, their limbs become powerless with sweat and fatigue, their weapons hang idly; their flabby bodies and, when their fury has spent itself, their flabby spirits, too, are prostrated by sun and dust and thirst, even though you did not lift a sword against them. We have made trial of them, not only legions against legions, but man against man. T. Manlius and M. Valerius have shown how steady Roman courage can get the better of Gaulish frenzy. M. Manlius flung down single-handed the Gauls who were climbing the Capitol. And, besides, those ancestors of ours had to deal with genuine Gauls bred in their own land; these are degenerates, a mongrel race, truly what they are called - Gallograeci. Just as in the case of fruits and cattle, the seed is not so effective in keeping up the strain as the nature of the soil and climate in which they are reared are in changing it.

"The Macedonians who occupy Alexandria, Seleucia, Babylonia and their other colonies throughout the world, have degenerated into Syrians and Parthians and Egyptians. Massilia, situated amongst Gauls, has contracted something of the temperament of its neighbours. How much of the rough and stern discipline of Sparta has survived amongst the Tarentines? Everything grows most vigorously in its own home; when planted in an alien soil its nature changes and it deteriorates into that from which it gets its subsistence. As in the battle with Antiochus you slew the Phrygians in spite of their heavy Gaulish arms, so you will slay them now, you the victors, they the vanquished. I am more afraid of our gaining too little glory in this war than of gaining too much. Antiochus has often routed and scattered them. Do not imagine that it is only wild beasts which preserve their ferocity when newly-captured but after being fed for some time at the hands of men grow tame. Nature works in the same way in softening the savagery of men. Do you suppose that these men are the same as their fathers and grandfathers were? Driven from their home by want of room they wandered across the rugged coast of Illyria, and after traversing the whole length of Paenonia and Thrace and fighting their way through warlike nations took possession of these countries. After becoming hardened and savage by all they had to go through, they have found a home in a land which makes them fat with bountiful supplies of every kind. All the ferocity which they brought with them has been tamed by a most fertile soil, a most genial climate and the gentle character of the people amongst whom they have settled. You, sons of Mars, believe me, will have to be on your guard against the attractions of Asia and shun them from the very first; such power have the pleasures of other lands to weaken and destroy your energies, so easily can the habits and practices of the people round you affect you. It is, however, fortunate for us that though they cannot oppose you with anything like the strength they once could, they still enjoy their former reputation amongst the Greeks. You will therefore gain as much credit with our allies in conquering as if the Gauls you defeat had retained all the courage of old days."

[38.18]After dismissing his men he sent messengers to Eposognatus, who was the only Gaulish chief who had remained friendly to Eumenes and refused assistance to Antiochus against the Romans. The consul then resumed his advance; on the first day he reached the

Alander and the day after, a village called Tyscon. Here a deputation arrived from Oroanda begging for peace. They were ordered to pay 200 talents, and the consul allowed them to return home and report his demand to their government. From there he marched to Plitendum, his next halting-place being Alyatti. Here the messengers sent to Eposognatus returned in company with envoys from the chief, who begged the consul not to commence hostilities against the Tectosagi, as he would go to them himself and persuade them to submit. His request was granted. Then the army entered a tract of country called Axylon. It derives its name from the character of the soil; not only does it bear nothing in the shape of timber, but not even brambles or thorn bushes grow here, or anything which can serve for fuel. The inhabitants use cow-dung instead of wood. Whilst the Romans were encamped at Cuballum, a fortified place in Gallograecia, a body of enemy cavalry appeared making a great tumult. Their sudden attack not only threw the Roman outposts into confusion but caused some losses amongst them. As the tumult reached the camp, the Roman cavalry hurrying out from all the gates routed the Gauls and put them to flight, and a considerable number of the fugitives were slain.

The consul, aware that he was now in the enemy's country, advanced with caution, keeping his force well together and throwing out scouting parties. Marching continuously, he came to the river Sangarius, and as there was no possibility of fording it, he decided to construct a bridge. The Sangarius rises in the Adoreos range and flowing through Phrygia mingles its waters with the Tymbris on the frontier of Bithynia, and with its volume thus increased flows through Bithynia and empties itself into the Propontis. It is not, however, so remarkable for its size as for the vast quantity of fish with which it supplies the inhabitants. When the bridge was completed the army crossed the river and as they were marching along the bank they were met by the "Galli" or priests of the Mater Magna from Pessinus with their insignia, who prophesied in mystic and oracular verses that the goddess was granting the Romans safety and victory in the war and the sovereignty of the country in which they were. The consul welcomed the omen and fixed his camp for the night on that very spot. The next day he arrived at Gordium. This is not a large place but it possesses a widely-known and much-frequented market; a larger one, in fact, than most inland towns. It is

almost equally distant from three seas, the Hellespont, the Euxine at Sinope, and the sea which washes the shores of Cilicia, and also adjoins the territories of several large populations, who for the sake of mutual commercial advantages have made this their business centre. The Romans found it deserted, the inhabitants having fled, and stored with goods of every description. Whilst they were encamped here, envoys from Eposognatus arrived with the intelligence that he had interviewed the Gaulish chiefs but could not make them listen to reason. They were abandoning their villages and farms in the open country, and together with their wives and children were carrying their portable property and driving their flocks and herds before them towards Olympus. Here they intended to defend themselves by arms and their strong position.

[38.19]Subsequently, more definite information was received from Oroanda to the effect that the Tolostobogii had actually occupied Olympus; that the Tectosagi going in a different direction had established themselves on another mountain called Magaba, and that the Trocmi had left their wives and children in the care of the Tectosagi and gone to the assistance of the Tolostobogii. The chiefs of these three tribes were Ortiagon, Comboiomarus and Gaulotus. Their main reason for adopting this mode of warfare was that by holding the principal heights in the country, provided with everything they might require for an indefinite period, they hoped to wear out the enemy. They never imagined he would venture to approach them over such steep and difficult ground; if he did make the attempt they believed that even a small force would be sufficient to dislodge him or throw him back in confusion; whilst if he remained inactive at the foot of the mountain he would be unable to endure the cold and hunger. Though the height of their position was itself a protection, they drew a trench and constructed other defences round the peaks on which they were established. Missile weapons they troubled themselves very little about as they thought the rocky ground would supply them with plenty of stones.

[38.20]As the consul had anticipated that the fighting would not be at close quarters but would involve an attack upon positions from a distance, he accumulated a large quantity of javelins, light infantry spears, arrows and leaden balls and small stones suitable for hurling from slings. Provided with these missile weapons, he marched towards Olympus and encamped about four miles' distance from the

mountain. On the morrow he sent Attalus with 500 cavalry to reconnoitre the ground and the situation of the Gaulish camp. While thus engaged a body of hostile cavalry, twice as large as his own force, sallied from their camp and put him to flight; some of his men were killed and several wounded. The next day the consul went out with the whole of his cavalry to explore, and as none of the enemy appeared outside their lines he made the circuit of the mountain in safety. He noticed that towards the south the ground rose in gentle slopes and was covered with soil; on the north the cliffs were precipitous and almost vertical. There were only three possible roads - everywhere else it was inaccessible - the one up the middle of the mountain free from rocks, and two which were difficult, one on the south-east and the other on the north-west. After making these observations he encamped for the day close to the foot of the mountain. The following day, after he had offered the sacrifices and the first victims had given favourable omens, he advanced against the enemy. The army was formed into three divisions; the largest he commanded in person and began the ascent where it afforded the easiest approach; his brother, L. Manlius, was ordered to advance from the southeastern side as far as the ground allowed of his doing so safely, but if he came to a dangerous or precipitous part he was not to struggle against the difficulties of the path nor try to force his way over insuperable obstacles. In that case he was to turn and march across the face of the mountain and unite his division with the one which the consul was leading. C. Helvius was to work gradually round the lower slopes of the mountain and then take his division up the north-eastern side. Attalus' auxiliaries were also formed into three divisions, Attalus himself accompanying the consul. The cavalry and elephants were left on the level ground at the bottom, and their commanders were under orders to watch carefully the progress of the action and render prompt assistance wherever it was required.

[38.21]The Gauls feeling confident that on two sides they were unassailable directed their attention to the southern slope. To close all access on this side they sent 4000 men to seize a height which commanded the road, distant rather less than a mile from their camp, where, as in a fort, they might prevent the enemy's advance. When they saw this, the Romans made ready for battle. Somewhat in front of the legions went the velites, the Cretan archers and slingers and the Tralli and Thracians under Attalus. The heavy infantry advanced

slowly as the ground was steep and they held their shields in front of them, not because they expected a hand-to-hand contest, but simply to avoid the missiles. With the discharge of missiles the battle began, and at first it was fought on even terms as the Gauls had the advantage of their position, the Romans that of the variety and abundance of their missile weapons. As the struggle went on, however, it became anything but equal; the shields of the Gauls though long were not broad enough to cover their bodies, and being flat also afforded poor protection. Moreover, they had no weapons but their swords, and as they could not come to close quarters these were useless. They tried to make use of stones, but as they had not got any ready, they had to use what each man in his hurry and confusion could lay hands on, and unaccustomed as they were to these weapons, they could not make them more effective by either skill or strength. On all sides they were being hit by the arrows and leaden bullets and javelins which they were powerless to ward off; blinded by rage and fear they did not see what they were to do, and they found themselves engaged in the kind of fighting for which they were least fitted. In close fighting where they can receive and inflict wounds in turn, their fury stimulates their courage; so when they are being wounded by missiles flung from a distance by an unseen foe and there is no one against whom they can make a blind rush, they dash recklessly against their own comrades like wild beasts that have been speared. Their practice of always fighting naked makes their wounds more visible, and their bodies are white and fleshy as they never strip except in battle. Consequently more blood flowed from them, the open gashes appeared more horrible, and the whiteness of their bodies showed up the stain of the dark blood. Open wounds, however, do not trouble them much. Sometimes, where it is a surface bruise rather than a deep wound, they cut the skin, and even think that in this way they win greater glory in battle. But when the head of an arrow has gone in or a leaden bullet buried itself and it tortures them with what looks like a slight wound and defies all their efforts to get rid of it, they fling themselves on the ground in shame and fury at so small an injury threatening to prove fatal. So they were lying about everywhere, and some who rushed down on their enemy were being pierced with missiles from all sides; those who got to close quarters the velites slew with their swords. These soldiers carry a shield three feet long, javelins in their right hand for use at a distance and a Spanish sword in their belts. When they have to fight at close

quarters they transfer the javelins to their left hands and draw their swords. Few of the Gauls now survived, and when they found themselves worsted by the light infantry and the legions coming on, they fled in disorder back to their camp, which was full of tumult and panic, as the women and children and other noncombatants were all crowded there together. The Romans took possession of the heights from which the enemy had fled.

[38.22]L. Manlius and C. Helvius in the meanwhile had marched up as far as the mountain-side afforded a path, and when they came to a place where it was impossible to advance they each turned towards the only part which was accessible, and as though by mutual understanding, they followed the consul at some distance from each other. Necessity compelled them to adopt now what would have been the best course at the outset, for over such difficult ground supports have often proved of the greatest use; when the first line has been thrown into disorder the second line can shelter them and go into action fresh and unshaken. When the foremost ranks of the legions had gained the heights which the light infantry had captured, the consul ordered his men to rest and recover their breath. He pointed to the bodies of the Gauls scattered over the ground and said: "If the light infantry could fight as they have done, what may I not expect from the legions, from those who are fully armed, from the valour of my bravest soldiers? Surely after the light infantry have driven the enemy in confusion into their camp, you legionaries must storm and capture it." During this halt the light infantry had been busy collecting the missiles which were lying everywhere, in order that they might have a sufficient supply, and the consul now ordered them to advance. As they approached the camp, the Gauls, fearing lest their entrenchments should afford them insufficient protection, were standing in arms in front of the rampart. They were at once overwhelmed by a general discharge of missiles, for the greater their numbers and the closer their formation so much more surely did every weapon find its mark. In a few minutes they were driven inside their lines, leaving only strong bodies to guard the camp gates. A heavy shower of missiles was now directed upon the masses in the camp, and the mingled shrieks of women and children showed that many of them were hit. Against those who were holding the gates the legionaries hurled their javelins. They were not wounded by them,

but their shields were pierced, and thus hopelessly entangled together they were not able long to resist the Roman attack.

[38.23]As the gates were now open, the Gauls fled in every direction from the camp before the victors burst in. Blindly they dashed along the paths and over places where there was no path; no precipices, no cliffs stopped them; they feared nothing but the enemy. Most of them fell headlong from the heights; they died, maimed and crushed. The consul kept his men from plundering the captured camp and ordered them to do their best to pursue and harass the enemy and increase his panic. When the second division under L. Manlius came up, he forbade them also to enter the camp, and sent them off at once in pursuit. After placing the prisoners in charge of the military tribunes he joined in the pursuit, for he believed that the war would be at an end if as many as possible were killed or made prisoners whilst they were in such a state of panic. After the consul had gone, C. Helvius came up with his division, and was unable to restrain his men from plundering the camp, and so by a most unfair chance the booty went to those who had no share of the fighting. The cavalry stood for a long time knowing nothing of the battle or the victory which their comrades had won. Then they rode, wherever their horses could travel, after the Gauls dispersed round the mountain, and either killed or took them prisoners.

It was not easy to get at the number of those killed, for the flight and the carnage extended over all the spurs and ravines of the mountain, and a great many losing their way had fallen into the deep recesses below; many, too, were killed in the woods and thickets. Claudius, who states that there were two battles on Olympus, puts the number of killed at 40,000; Valerius Antias, who is usually more given to exaggeration, says that there were not more than 10,000. The prisoners, no doubt, amounted to 40,000, because they had carried with them a multitude of both sexes and all ages, more like emigrants than men going to war. The enemy's weapons were gathered into a heap and burnt, and the consul ordered the troops to collect the rest of the booty. That portion which was to go to the State he sold; the rest he distributed with most scrupulous fairness amongst the soldiers. He then paraded them, and after warmly commending the services which the whole army had rendered, he conferred rewards on each according to their merit, especially on Attalus, who was unanimously applauded, for the exemplary courage and untiring

energy which the young prince had shown in facing toils and dangers was only equalled by his modesty.

[38.24]Now came the campaign against the Tectosagi, and the consul commenced his advance against them. In a three days' march he reached Ancyra, a city of importance in that district, and the enemy were only ten miles distant from it. Whilst he was here in camp a remarkable incident occurred in connection with a female prisoner. The wife of a chief named Orgiagon, a woman of exceptional beauty, was with other captives in the custody of a centurion who was notorious even amongst soldiers for his licentiousness and greed. At first he made improper proposals to her, but finding that she treated them with abhorrence, he took advantage of her servile condition and violated her. Then, to assuage her anger and shame at the outrage, he held out hopes to her of returning to her friends, but not as a lover would have done without ransom. He stipulated for a certain weight of gold, and to prevent his men from knowing anything about it, he allowed her to choose one of the prisoners and send a message by him to her friends. A spot by the river was fixed upon where not more than two of her friends were to come with the gold on the following night and receive her. There happened to be amongst the prisoners one of her own slaves, and this man was conducted by the centurion beyond the ramparts as soon as it was dark. The following night two of her friends and the centurion with his captive met at the place. Whilst they were showing him the gold, which amounted to an Attic talent - the sum agreed upon - the woman speaking in her own language ordered them to draw their swords and cut off the centurion's head while he was counting out the gold. Wrapping up the murdered man's head in her robe, she took it to her husband, who had fled home from Olympus. Before embracing him she flung down the head at his feet, and whilst he was wondering whose head it could possibly be, or what such an unwomanly act could mean, she told him about the outrage she had endured and the revenge she had taken for her violated chastity. It is recorded that by the purity and strictness of her life she maintained to the very last the honour of a deed so worthy of a matron.

[38.25]Whilst the consul was in camp at Ancyra he was visited by envoys from the Tectosagi, who begged him not to advance any further until he had had a conference with their kings, and assured him that there were no terms of peace which they would not prefer

to war. The next day was fixed for the interview; the spot selected was one that seemed to be halfway between Ancyra and the Gaulish camp. The consul went there at the appointed time with an escort of 500 cavalry, but as not a single Gaul was in sight he returned to camp. The envoys reappeared and excused the absence of the chiefs on religious grounds; they promised that some of their principal men would come, as matters could be equally well transacted with them. The consul said that he would send Attalus to represent him. Both parties came; Attalus with an escort of 300 cavalry. The terms of peace were discussed, but no final result could be reached in the absence of the leaders; so it was arranged that the consul should meet the chiefs on the following day. The Gauls had a double object in delaying negotiations; first, to gain time, so that they might transport their property, which might, they feared, expose them to danger, across the Halys, together with their wives and children; secondly, because they were hatching a plot against the consul, who was not taking any precautions against treachery at the conference. For this purpose they had selected out of their entire force 1000 men of proved daring, and the design would have succeeded if fortune had not defended the law of nations which they intended to violate. The Roman troops were sent to collect forage and wood near the place of the conference, as this appeared to the military tribunes to be the safest course, since they would have the consul and his escort between them and the enemy. Another detachment of 600 mounted men was stationed nearer their camp.

On receiving Attalus' assurance that the kings would come and that the negotiations could be completed, the consul started from the camp with the same escort as before. He had ridden nearly five miles and was not far from the appointed place when he suddenly saw the Gauls coming on at full gallop with hostile intent. Halting his force and bidding them prepare themselves and their arms for battle, he met the first charge firmly without giving ground. Then when the weight of numbers began to tell he slowly retired, keeping his ranks unbroken, but at last when there was more danger in remaining on the field than safety in keeping their ranks, they all broke and fled. Thus scattered they were hard pressed by the Gauls, as they cut them down, and a large proportion of them would have been destroyed had not the 600 who were posted to protect the foragers met them in their flight. They had heard the shouts of alarm amongst their

comrades, and hurriedly getting their weapons and horses ready they came fresh into the fight when it was almost over. This turned the fortunes of the day. and the panic recoiled from the defeated on to the conquerors. The Gauls were routed in the first charge, and as the foragers came running up from the fields, the enemy found themselves met on every side, with hardly any way of escape open. The Romans on fresh horses were pursuing those which were tired and exhausted, and few escaped. No prisoners were taken. By far the greater number paid the death penalty for their breach of good faith. Furious at this treachery the Romans advanced in full strength against the enemy the following day.

[38.26]The consul spent two days in making a close inspection of the natural features of the mountain that he might be familiar with every detail. The next day, after taking the auspices and offering the sacrifices, he led out his army. It was formed into four divisions; two of these he intended to take up the middle of the mountain, the two others were to ascend the sides and take the Gauls in both flanks. The dispositions of the enemy were as follows: the Tectosagi and the Trocmi, who formed his main strength, numbering 50,000 men, held the centre; the cavalry, 10,000 strong, were dismounted as horses were useless on that broken ground, and formed the right wing; the Cappadocians under Ariarathes and the Morzian auxiliaries, in all about 4000, were posted on the left. The consul placed his light infantry in the first line as he had done in the battle on Olympus, and took care that they should have an equally ample supply of weapons at hand. When they approached the enemy all the features of the former battle were reproduced except that the courage of the one side was raised by their recent victory and that of the other side depressed, for the enemy though not yet themselves defeated, looked upon the defeat of their fellow-countrymen as tantamount to their own. As the battle began, so it ended in the same way. A perfect cloud of missiles overwhelmed the Gauls. None durst run forward from his entrenchments lest he should expose his naked body to the certainty of being hit from all sides, and whilst they remained standing within their lines in close formation, they received more wounds the more densely they were packed, as though each man was specially aimed at. The consul thought that the sight of the standards of the legions would put the already demoralised Gauls to instant flight, and

accordingly he retired the light infantry and other skirmishers within the ranks of the legions and ordered an advance.

[38.27]The Gauls, unnerved by the memory of the defeat of the Tolostobogii, exhausted by their long standing and their wounds, with the javelins sticking in their bodies, did not wait for the first charge and battle-shout of the Romans. They fled towards their camp, but few gained the shelter of their entrenchments; the greater number rushed past them right or left, where-ever their eagerness to escape carried them. The victors pursued them up to their camp, slaying them from behind, but once at the camp they stopped in their eagerness for plunder; no one continued the pursuit. The Gauls held their ground somewhat longer on the wings, as it took longer to reach them; they did not, however, wait for the first discharge of missiles. As the consul could not keep his men from looting the camp, he sent the other two divisions in instant pursuit. They followed them up for a considerable distance and killed in all some 8000 men in the flight; there was no attempt at fighting. The survivors crossed the Halys. A large part of the Roman army passed the night in the enemy's camp; the rest the consul led back to their own camp. The day following, the consul counted up the prisoners and the booty; the amount of the latter was as great as even a nation that was always bent on rapine, and had for many years held by force of arms all the country west of the Taurus, could possibly have amassed. After the Gauls had collected from their scattered flight, most of them wounded, without arms, and stripped of all their belongings, they sent to the consul to sue for peace. Manlius ordered them to go to Ephesus. He himself, anxious to get out of the cold district near the Taurus - it was now the middle of autumn - led his victorious army back to the coast for their winter quarters.

[38.28]During these operations in Asia things were quiet in the other provinces. In Rome the censors T. Quinctius Flamininus and M. Claudius Marcellus revised the roll of senators. P. Scipio Africanus was for the third time selected to lead the Senate, and only four members were struck off the roll, none of whom had held any curule office. The censors showed great forbearance also in revising the list of equites. They contracted for the building of the substructure on the Capitol over the Aequimelum and also the laying down of a paved road from the Porta Capena to the temple of Mars. The Campanians asked the Senate to decide where their census should be

taken, and it was decreed that it should be taken in Rome. There were very heavy floods this year; on twelve several occasions the Tiber inundated the Campus Martius and the low-lying parts of the City. After Cn. Manlius had brought the war against the Gauls in Asia to a close, the other consul, M. Fulvius, now that the Aetolians were subjugated, sailed across to Cephallania, and sent round to the various cities in the island to ask them which they preferred - surrender to the Romans or the chances of war. Fear prevented them all from refusing to surrender, and they gave the hostages, which the consul demanded in proportion to their scanty resources. Peace beyond their hopes had now dawned upon the Cephallanians, when suddenly, for some unknown reason, one city that of Same, revolted. They said that, as their city occupied an advantageous position, they were afraid that the Romans might compel them to live elsewhere. Whether this was an invention on their part, and their breach of the peace was due to imaginary fears, or whether the matter had been talked about amongst the Romans and so come to their ears, is quite uncertain. What is certain is that after giving hostages they closed their gates, and though the consul sent these hostages to the walls to appeal to the sympathies of their fellow-citizens and kinsmen, they refused to abandon their opposition. As no peaceable reply was given, the siege of the city was begun. The consul had all the siege-engines brought from Ambracia, and the soldiers rapidly completed what works had to be made. The rams began to batter the walls in two directions.

[38.29]Nothing was left undone by the Samaeans in the way of defence against siege-works or assaults. Their method of resistance was mainly two-fold. On the one hand, where the wall was destroyed they always built a strong one inside close to it, and on the other they made sudden sorties, at one time against the siege-works, at another against the outposts. In these actions they generally proved superior. One method was discovered of keeping them back; a simple one, but worth mentioning. A hundred slingers were sent for from Aegium, Patrae and Dymae. These men had been in the habit, as their fathers had before them, of practicing with their slings, with which they used to hurl into the sea the round stones lying on the beach. In this way they gained a more accurate and longer range than the Balaric slingers. Their slings, too, were not made of a single strap, like those of the Balarics and other nations, but they consisted of three thongs,

stiffened by beings sewn together. This prevented the bullet from flying off at random when the thong was let go; when fixed in the sling it could be so whirled round as to fly out as though from the string of a bow. They used to send their stones through rings at a great distance, as targets, and were thus able to hit not only the head but whatever part of the face they aimed at. These slings kept the Samaeans from making such frequent or such daring sorties; so much so in fact that they called to the Achaeans from their walls and begged them to retire for a time and remain quiet spectators while they fought with the Roman outposts. Same sustained a siege of four months. Day by day some of their scanty numbers fell or were wounded, and the survivors became exhausted in mind and body. At last the Romans surmounted the wall and forced their way through the citadel which they call the Cyatis - the city extends on the west down to the sea - and appeared in the forum. When the Samaeans found that the city was partly captured by the enemy they took refuge in the larger citadel with their wives and children. The next day they surrendered; the city was sacked, and the whole of its population sold into slavery.

[38.30]After settling matters in Cephallania and placing a garrison in Same, the consul sailed to the Peloponnesus, whither the people of Aegium and the Lacedaemonians had for some time urged him to go. Either as a concession to its importance or owing to its convenient situation, Aegium had been the meeting-place of the Council of the League ever since it had been formed. This year for the first time Philopoemen tried to do away with this custom, and was preparing to bring in a law enacting that the Assembly should be held in each city of the League in turn. Just before the consul's visit the Damourgi (the supreme magistrates) of the various States had convened a meeting of the League at Aegium, whilst Philopoemen the captain-general had summoned them to Argos. As they would evidently almost all meet there, the consul, though he was in favour of Aegium, went to Argos. Here the question was debated, and when he saw that the Assembly were inclined towards Argos, he gave way. The Lacedaemonians then drew his attention to their grievances. The main cause of anxiety to their city was the threatening attitude of the exiles, many of whom were living in forts and villages which they had seized on the Laconian coast. The Lacedaemonians chafed under this state of things; they wanted to have access to the sea somewhere or

other in case they wanted to send a mission to Rome or elsewhere, and also that they might have a free port in which to receive merchandise and necessities from abroad. They made an attack by night upon a maritime village called Las. The villagers and exiles were at first terror-struck by the unlooked-for attack, but before it was day they collected in a body and without much difficulty drove the Lacedaemonians out. Then the whole of the coast took alarm and all the forts and villages and the exiles who had made their homes there sent a joint appeal to the Achaeans for help.

[38.31]From the first, Philopoemen had championed the cause of the exiles and had always tried to persuade the Achaeans to abridge the power and influence of the Lacedaemonians. He now summoned a council to hear the envoys, and on his initiative a decree was passed in the following terms: "Whereas T. Quinctius and the Romans have committed to the good faith and protection of the Achaeans the villages and forts on the coast of Laconia, and whereas the village of Las has been attacked by the Lacedaemonians who were bound by treaty not to interfere with them, and blood has been shed there, we decree that unless the authors and abettors of this outrage are surrendered to the Achaeans, the treaty shall be held to be broken." A mission was at once despatched to Lacedaemon to insist on this demand. So arbitrary and arrogant did it appear in the eyes of the Lacedaemonians that if that city had been in the position it once held they would undoubtedly have taken up arms. What they feared most of all was that if they submitted to the yoke so far as to comply with this initial demand, Philopoemen would carry out the policy he had long contemplated of handing Lacedaemon to the exiles. In a frenzy of anger they put to death thirty men who belonged to the party who were in league with Philopoemen and the exiles, and then passed a decree denouncing the alliance with the Achaeans and ordering the immediate despatch of a mission to Cephallania to make a formal surrender of Lacedaemon to the consul and to Rome, begging him to come to the Peloponnesus and receive their city into the protection and suzerainty of the people of Rome.

[38.32]When these proceedings were reported to the Achaeans, all the States of the League with one consent proclaimed war against the Lacedaemonians. Winter prevented any immediate operations on a large scale, but their territories were devastated by bodies of raiders both by land and sea, more in the fashion of brigandage than of

regular warfare. It was this disturbance that brought the consul to the Peloponnesus, and by his orders a council was summoned to Elis and the Lacedaemonians were invited to state their case. The discussion soon became a heated quarrel, which the consul put an end to. He was anxious to befriend both sides and after giving a reply which committed him to nothing, warned them both to abstain from hostilities until their representatives had appeared before the Senate. Both sides sent delegates to Rome; the Lacedaemonian exiles entrusted their cause to the Achaeans. The leaders of the Achaean embassy were Diophanes and Lycortas, both natives of Megalopolis. They were opposed to one another in their political views and the speeches they delivered showed a similar divergence. Diophanes was for leaving the decision on every point to the Senate as they would settle the matters in dispute between the Achaeans and the Lacedaemonians in the best possible way. Lycortas, acting on instructions from Philopoemen, claimed the right of the Achaeans to execute their decree in accordance with the treaty and their laws, and pleaded that as the Senate had been the instrument of their freedom, so they should preserve that freedom for them undiminished and unimpaired. At that time the Achaeans stood high in Roman esteem; it was, however, decided that the position of the Lacedaemonians should be in no way changed. The reply of the senate was so ambiguous that while the Achaeans assumed that they had a free hand with regard to Lacedaemon, the Lacedaemonians interpreted it to mean that the Achaeans had not gained all they asked for.

[38.33]The Achaeans made a most unscrupulous use of the permission which they considered to have been granted them. Philopoemen was still in office and in the first days of spring he called out the army and fixed his camp on Lacedaemonian territory. Then he sent to demand the authors of the revolt, and promised that if the city would surrender them it should remain at peace, and the men themselves should suffer no injury until their case had been heard. Fear kept the rest silent; those who had been named declared their willingness to go, as they had received from Philopoemen's emissaries a guarantee that they would be safe from violence until they had pleaded their cause. Others, men of high position, went with them to support their friends and also because they considered their cause to be the cause of the State. Never before had the Achaeans brought the exiles with them on to Lacedaemonian soil, because they

thought that nothing would do more to estrange their fellow-countrymen from them, but now they were almost in the forefront of the whole army. When the Lacedaemonians came to the gate of the camp the exiles met them in a body. At first they assailed them with insults; then passions became heated on both sides, and the more ferocious of the exiles made an attack upon the Lacedaemonians. Whilst these were appealing to the gods and the pledged word of Philopoemen's emissaries, and he and his emissaries were keeping back the crowd and protecting the Lacedaemonians and preventing some from actually manacling them, a large crowd collected and the disturbance increased. The Achaeans ran up to see what was going on, and the exiles, protesting loudly about the sufferings they had endured, implored their help and told them if they let this opportunity slip they would never again have such a favourable one. "The treaty which had been solemnly published in the Capitol at Olympia and in the citadel at Athens had been set at nought by these men, and before we are bound by another treaty the guilty must be punished." This language excited the crowd, and one man shouted out "Kill them." On this they flung stones at them, and seventeen men who had been thrown into chains during the tumult were killed. On the following day sixty-three were arrested whom Philopoemen had protected from violence, not that he was concerned for their safety, but because he did not want them to perish before the day of trial. Victims to the fury of the mob, they spoke but little and that to deaf ears. All were found guilty and handed over for punishment.

[38.34] Having thus terrorised the Lacedaemonians, they sent them peremptory orders: first, that they must destroy their walls; secondly, that all the foreign mercenaries who had served under the tyrants must depart from the land of Laconia; thirdly, that all the slaves whom the tyrants had set free, and of whom there was a large number, must leave by a certain day; any who remained the Achaeans would have the right to carry off and sell; lastly, they must abrogate the laws and customs of Lycurgus and accustom themselves to the laws and institutions of the Achaeans, as in this way they would form one body and unite more easily in a common policy. With none of these demands did they comply more readily than with that demanding the destruction of their walls, and none roused such bitter feeling as that demanding the restoration of the exiles. A decree for

their restoration was passed in the Council of the Achaeans at Tegea, and it was stated that the foreign mercenaries had been disbanded, and that the "naturalised Lacedaemonians," for so they designated the slaves set free by the tyrants, had left the city and dispersed into the surrounding country. On receiving this intelligence it was decided that before the army was demobilised the captain-general should go with a light force and arrest those people and sell them as lawfully acquired booty. Many were thus caught and sold. With the money thus raised the colonnade at Megalopolis, which the Lacedaemonians had destroyed, was at the suggestion of the Achaeans restored. This city also won back the territory of Belbina, which the tyrants of Lacedaemon had wrongfully taken possession of; this was in pursuance of an old decree made by the Achaeans during the reign of Philip the son of Amyntas. Through these measures the city of Lacedaemon lost the sinews of her strength, and was for a long time at the mercy of the Achaeans. No loss, however, affected her more deeply than the loss of the discipline of Lycurgus, which they had maintained for 800 years.

[38.35]After the meeting of the Council in which the dispute between the Achaeans and the Lacedaemonians took place before the consul, M. Fulvius returned to Rome for the purpose of conducting the elections, as the year was now drawing to a close. M. Aemilius Lepidus, one of the candidates, was a personal enemy of his, and he refused to allow any votes to be cast for him. The consuls elected were M. Valerius Messala and C. Livius Salinator. The praetors elected were Q. Marcius Philippus, M. Claudius Marcellus, C. Stertinius, C. Atinius, P. Claudius Pulcher and L. Manlius Acidinus. When the elections were over it was decided that M. Fulvius should return to his army and command, and an extension of office was granted to him and to his colleague Cn. Manlius. This year P. Cornelius, as directed by the Keepers of the Sacred Books, placed a statue of Hercules and a chariot with six horses, all gilded, in the Capitol. The inscription stated that it had been given by a consul. Twelve gilt shields were also hung there by the curule aediles P. Claudius Pulcher and Servius Sulpicius Gallus out of the fines levied on corn factors who had been holding back their grain. Another had been convicted at the instance of the plebeian aedile, on two separate charges, and with this fine he provided two gilt statues. His colleague A. Caecilius had not prosecuted any one. The Roman Games were

exhibited three times, the Plebeian Games five times. Immediately on entering into office on the Ides of March the new consuls consulted the senate on the policy to be pursued in the provinces and the armies. No change was made with regard to Aetolia or Asia. Pisa and Liguria were assigned to one consul, Gaul to the other. They were instructed to come to a mutual arrangement, or failing that to ballot, as to which province each should take, and each was to raise afresh army of two Roman legions and 15,000 foot and 1200 cavalry from the Italian allies. Liguria fell to Messala; Gaul to Salinator. Then the praetors balloted for their commands. The City jurisdiction fell to M. Claudius; the alien to P. Claudius; Sicily to Q. Marcius; Sardinia to C. Stertinus; Hither Spain to L. Manlius; and Further Spain to C. Atinius.

[38.36]In the case of the armies abroad it was settled that the legions in Gaul which had been under C. Laelius should be transferred to the propraetor M. Tuccius for service in Bruttium. The army in Sicily was to be disbanded, and the fleet lying there M. Sempronius the propraetor was to bring back to Rome. It was decreed that the legion stationed in each of the two Spanish provinces should remain there, and the praetors were each to take with them 3000 infantry and 200 cavalry drawn from the allies as reinforcements. Before the new magistrates left for their provinces, special intercessions for three days were ordered on the authority of the Keepers of the Sacred Books to be offered at all the cross-roads owing to a darkness which came over in broad daylight between the third and fourth hours. Sacrifices were also enjoined for nine days in consequence of a shower of stones on the Aventine. The Campanians had been obliged by a decree of the senate passed the year before to have their census taken in Rome as it had previously been uncertain where they ought to be enrolled. They now requested that they might be allowed to marry women who were Roman citizenesses, and that any who had already done so might hold themselves to be lawfully married, and that children already born might be regarded as legitimate and capable of inheriting property. Both requests were granted. One of the tribunes of the plebs, C. Valerius Tappo, brought forward a proposal granting the full franchise to the citizens of the municipal boroughs of Formiae, Fundi and Arpinum. They had hitherto enjoyed the citizenship without the power of voting. This motion was opposed by four of the tribunes on the ground that it had not

received the sanction of the senate, but on being informed that it rested with the people and not the senate to confer the franchise on whom they chose, they abandoned their opposition. The citizens of Formiae and Fundi were authorised to vote in the Aemilian tribe, and those of Arpinum in the Cornelian. In these tribes, therefore, they were for the first time enrolled by virtue of the plebiscite, passed on the motion of Valerius. The censor M. Claudius Marcellus, to whom the ballot gave precedence over T. Quinctius, closed the lustrum. The census gave the number of citizens as 258,318. After these matters were settled the consuls left for their provinces.

[38.37] During this winter Cn. Manlius, who was passing the season in Asia first as consul and then as proconsul, was visited by deputations from all the cities and nationalities west of the Taurus. Whilst the Romans regarded their victory over Antiochus as a more notable one than their subsequent victory over the Gauls, their Asiatic allies rejoiced more over the latter than the former. Subjection to the king was a much easier thing to bear than the ferocity of the ruthless barbarians and the terror which haunted them from one day to another, for they never knew in what direction that ferocity might sweep them like a storm upon plundering and devastating raids. They had regained their liberty through the repulse of Antiochus and their peace through the subjugation of the Gauls, and now they brought to the consul not only their congratulations and thanks but also golden crowns, each according to their ability. Delegates came, too, from Antiochus and even from the Gauls themselves to learn the conditions of peace. Ariarathes also sent envoys from Cappadocia to sue for forgiveness and offer a pecuniary atonement for his offence in assisting Antiochus. He was ordered to pay 600 talents of silver and the Gauls were told that when Eumenes arrived they would have the conditions of peace given to them. The delegations from the various cities were dismissed with gracious replies and went away even happier than they had come. Those from Antiochus received instructions to convey money and corn into Pamphylia, as agreed with L. Scipio, as the consul was going there with his army.

At the beginning of spring, therefore, after performing the lustrations on behalf of his army, he commenced his march, and after eight days reached Apamea. Here he remained encamped for three days, and then advanced into Pamphylia where he had ordered the king's envoys to deposit the money and the corn. He received 1500 talents

of silver which were taken to Apamea; the corn was distributed amongst the soldiers. From there he advanced to Perga, the only city in that country which was held by a garrison of the king's troops. On his approach he was met by the commandant who asked for a respite of thirty days that he might consult Antiochus about surrendering the city. He was allowed the interval and on the thirtieth day the garrison evacuated the place. Whilst the consul was at Perga he sent his brother L. Manlius with a force of 4000 men to Oroanda to exact the rest of the money which, according to the stipulation, was to be paid. On learning that Eumenes and the ten commissioners from Rome had arrived at Ephesus, he led his army back to Apamea and ordered the envoys from Antiochus to follow him.

[38.38] Here the treaty as settled by the ten commissioners was drawn up. The substance of it was as follows: "There shall be peace and amity between King Antiochus and the Roman people on these terms and conditions: The king shall not suffer any army purposing to levy war on the Roman people or their allies to pass through the borders of his kingdom or of any subject to him, nor shall he assist it with provisions or in any other way whatever. The Romans and their allies shall act in like manner towards Antiochus and those under his sway. Antiochus shall have no right to levy war upon those who dwell in the islands, or to sail across to Europe. He shall withdraw from all the cities, lands, villages and forts west of the Taurus as far as the Halys and extending from the lowlands of the Taurus up to the range which stretches towards Lycaonia. He shall not carry any arms from the aforesaid towns and lands and forts from which he withdraws; if he has carried any away he shall duly restore them to whatever place they belong. He shall not reclaim any soldier or any other person whatever from the kingdom of Eumenes. If any citizens belonging to the cities which are passing from under his rule are with Antiochus or within the boundaries of his realm, they shall all return to Apamea by a certain day; if any of Antiochus' subjects are with the Romans and their allies they shall be at liberty to depart or to remain. He shall restore to the Romans and their allies the slaves, whether fugitives or prisoners of war, or any free man who has been taken captive or is a deserter. He shall give up his elephants and not procure any more. He shall likewise make over his ships of war and all their tackle, nor shall he possess more than ten light decked ships, none of which may be propelled by more than thirty oars, and no smaller ones for use in

any war which he may undertake. He shall not take his ships west of the headlands of the Calycadnus or the Sorpedon, save only such ships as shall carry money or tribute or envoys or hostages. Antiochus shall not have the right to hire mercenary troops from those nations which shall be under the suzerainty of Rome nor to accept them even as volunteers. Such houses and buildings as belonged to the Rhodians and their allies within the dominions of Antiochus shall be held by them on the same right as before the war. If any moneys are due to them they shall have the same right to exact them, if aught has been taken from them, they shall have the right of search and recovery. Whatever cities amongst those that are to be surrendered they hold as a gift from Antiochus; he shall withdraw the garrisons from them and provide for their due surrender. He shall pay 12,000 Attic talents of sterling silver in equal instalments over twelve years - the talent shall weigh not less than 80 Roman pounds - and 540,000 modii of wheat. To King Eumenes he shall pay 350 talents within five years, and in place of corn its value in money, 127 talents. He shall give twenty hostages to the Romans and exchange them for others in three years, that none may be less than eighteen or more than forty-five years of age. If any of the allies of Rome shall wantonly and without provocation make war on Antiochus, he shall have the right to repel them by force of arms, always providing that he shall not hold any city by right of war or receive it into friendship and amity. Disputes shall be determined before a judicial tribunal, or if both parties shall so will it, by war." There was an additional clause dealing with the surrender of Hannibal, Thoas and Mnasilochus, as well as Eubulidas and Philo of Chalcidaea, and also a proviso that if it should afterwards be decided to add to, or repeal, or alter any of the articles, that should be done without impairing the validity of the treaty.

[38.39]The consul took the oath to observe the treaty, and Q. Minucius Thermus and L. Manlius who happened to have just returned from Oroanda went to demand the oath from the king. The consul also sent written instructions to Q. Fabius Labeo, who was in command of the fleet, to proceed forthwith to Patara and break up or burn all the king's ships which were stationed there. Fifty decked ships were thus either broken up or burnt. During this voyage he retook Telmessus, where the inhabitants had been greatly alarmed at the sudden appearance of the fleet. Leaving Lycia he continued his voyage, and sailing through the Archipelago he landed in Greece, and

stayed a few days at Athens, waiting for the ships which he had ordered to follow him from Ephesus. As soon as they entered the Peiraeus he returned with the entire fleet to Italy. Amongst the things which were to be taken from Antiochus were his elephants, and these Cn. Manlius presented to Eumenes. He then commenced an investigation into the circumstances of the different cities, many of which were in a state of confusion owing to the political changes. Ariarathes had about this time betrothed his daughter to Eumenes, and owing to the latter's good offices half the indemnity demanded from him was remitted.

When the investigation into the circumstances and position of the different cities was completed, the ten commissioners decided each case upon its merits. Those which had been tributary to Antiochus but whose sympathies had been with Rome were granted immunity from all tribute. Those who had sided with Antiochus or paid tribute to Attalus were all ordered to pay tribute to Eumenes. The natives of Colophon who were living at Notium, together with the inhabitants of Cymae and Mylasa, were also specially named as receiving immunity. To Clazomenae was given the island of Drymussa, as well as immunity. They restored to the Milesians the so-called "sacred ground," and the inhabitants of Ilium received Rhoeteum and Gergithus as additions to their territory not so much on account of services recently rendered as in recognition of its being the original home, and for the same reason Dardanus was granted its liberty. Chios, Zmyrna and Erythrae in return for their conspicuous loyalty in the war received a grant of territory and were treated with especial honour. The territory which the Phoceans had held before the war was restored to them, and they were allowed to enjoy their old constitution. The grants made to Rhodes under a former decree were confirmed; these included Lycia and Caria as far as the Maeander, with the exception of Telmessus. The dominions of Eumenes were enlarged by the addition of the European Chersonesus and Lysimachia, the forts, villages and territory within the limits of Antiochus' rule; in Asia the two Phrygias, the one on the Hellespont, the other called "Greater Phrygia"; Mysia which Prusias had taken from him was restored as well as Lycaonia, Milyas and Lydia, and the cities of Tralles, Ephesus and Telmessus, which were specially named. With regard to Pamphylia a difficulty arose between Eumenes and the envoys of Antiochus, as part of it lies on one side

the Taurus and part on the other, and the matter was referred to the senate.

[38.40]After these articles of peace had been finally settled and accepted, Manlius proceeded to the Hellespont with the ten commissioners and the whole of his army. Here he summoned the Gaulish chiefs to meet him and informed them of the terms upon which they were to keep the peace with Eumenes, and warned them that they must put a stop to their custom of making armed forays and confine themselves to the limits of their own territories. He then collected his ships from the whole extent of the coast, and with the addition of Eumenes' fleet, which was brought up by his brother Athenaeus, the consul was able to transport the whole of his force to Europe. The army was heavily weighted with spoils of every description and its advance consequently through the Chersonese was at a moderate pace till they reached Lysimachia. Here they rested for some time in order that their draught cattle might be as strong and fresh as possible before they entered Thrace, as they generally dreaded the march through that country. The same day on which he left Lysimachia the consul reached Melas, and the next day he arrived at Cypsela. From Cypsela a ten miles' march over broken ground shut in by forests awaited them. In view of the difficulties of the route the army was formed into two divisions. One was ordered to march in advance, the other, at a considerable distance, to bring up the rear. The baggage was placed between them. This included the wagons carrying the State money and other valuable booty. Whilst marching through a pass in this order a body of Thracians drawn from the four tribes of Astii, Caeni, Maduateni and Coreli, not more than 10,000 in number, occupied each side of the road at its narrowest part. It was generally thought that this was due to treachery on Philip's part, that he knew the Romans would return through Thrace and was also aware of the amount of money they were carrying.

The general was with the first division and the broken and difficult ground made him anxious. As long as the armed troops were passing through, the Thracians did not stir, but when they saw that the vanguard had cleared the narrowest part of the pass and those behind were nowhere near, they attacked the baggage and the pack animals, and killing the escort began to loot the wagons, while others led off the horses with their packs. The cries and shouts were first heard by those behind who had already entered the pass; then they reached the

leading division. From both directions a rush was made to the centre, and irregular fighting began at several points. The booty itself exposed the Thracians to slaughter, hampered as they were by the loads they were carrying, and most of them without arms that they might have their hands free for pillage. The unfavourable ground on the other hand exposed the Romans to the barbarians, who ran up through paths they were familiar with or concealed themselves in the recesses of the rocks. Even the packs and wagons obstructed the combatants and interfered with the movements of one side or the other just as it chanced. Here a plunderer fell; there, one trying to recover the plunder. The fortunes of the battle changed as first one side and then the other was on favourable or unfavourable ground; as the courage of each rose or fell; as the numbers preponderated on either side, some engaged with larger, others with smaller bodies than their own. Many fell on both sides and night was already coming on when the Thracians drew off from the fight, not to escape wounds and death, but because they had as much plunder as they wanted.

[38.41]When they had got clear of the pass, the first division of the Roman army encamped on open ground near the temple of Bendis. The second remained in the pass to protect the baggage train which they enclosed with a double rampart. The next day after reconnoitring the pass, they joined the front division. The fighting had practically extended the whole length of the pass, a portion of the pack animals and camp servants had fallen and a considerable number of soldiers. But the most serious loss was that of the gallant and energetic Q. Minucius Thermus. In the course of the day they reached the Hebrus, and from there they marched past a temple to the Zerynthian Apollo, as the natives call him, into the country of the Aenians. Another defile near Tempyra had to be crossed, not less precipitous than the one already surmounted, but as there was no wooded country around it, it afforded no concealment for an ambush. Another Thracian tribe, the Thrausi, had assembled here, quite as greedy of plunder, but their movements, as they tried to block the pass, were visible from afar owing to the bareness of the landscape. The Romans were very little perturbed as though the ground was ill-adapted for maneuvering, they saw that they could fight on a proper front in a regular action. Charging in close order and raising their battle-cry they drove the enemy from his ground and

then put him to flight. The narrowness of the pass crowded the fugitives together, and there was much slaughter.

The victorious Romans encamped at a village belonging to Maronia called Sale. The following day, marching through open country, they entered the plain of Priantae. Here they remained, taking in corn partly from the country people, who brought it in from their fields, and partly from the ships of the fleet which were loaded with all sorts of stores and were following their movements. A day's march brought them to Apollonia and from here, through the district of Abdera, they arrived at Neapolis. The whole of this march through the Greek colonies was unmolested, but the other part through the heart of Thrace, though not actually opposed, demanded caution both by day and night. When this army traversed the same route under Scipio they found the Thracians less aggressive; the only reason for this being that there was less chance of plunder, plunder being their one object. We are, however, told by Claudius that a body of Thracians, amounting to some 15,000, sought to oppose Muttines the Numidian, who was reconnoitring in advance of the main army. There were 400 Numidian cavalry and a few elephants; the son of Muttines, with 150 picked troopers, rode through the middle of the enemy, and after Muttines with his elephants in the centre and his cavalry on the flanks had engaged the enemy, his son attacked their rear and created such disorder amongst them that they never got near the main body of infantry. Passing through Macedonia, Cn. Manlius led his army into Thessaly and finally reached Apollonia. Here he remained for the winter, as the dangers of a winter voyage were not yet so contemptible that he could venture to cross.

[38.42]It was almost at the close of the year that the consul M. Valerius came from Liguria to elect new magistrates. He had done nothing worth mentioning in his province, and this might have been the reason why he had come at a later date than usual to conduct the elections. The consular elections were held on February 18; the new consuls were M. Aemilius Lepidus and C. Flaminius. The praetors elected on the following day were Ap. Claudius Pulcher, Ser. Sulpicius Galba, Q. Terentius Culleo, L. Terentius Massiliota, Q. Fulvius Flaccus, and M. Furius Crassipes. When the elections were over the consuls asked the senate to settle what provinces were to be assigned to the praetors. They decreed that there should be two in Rome for the administration of justice; two outside Italy, namely

Sicily and Sardinia; two in Italy itself, namely Tarentum and Gaul; and the praetors were ordered to ballot at once for these before they took office. The civic jurisdiction fell to Ser. Sulpicius, the alien to Q. Terentius, Sicily went to L. Terentius, Sardinia to Q. Fulvius, Tarentum to Ap. Claudius, and Gaul to M. Furius. During the year L. Minucius Myrtilus and L. Manlius were charged with having beaten the Carthaginian ambassadors. They were handed over to them by the fetials and carried off to Carthage.

There were rumours of a warlike movement on a large scale in Liguria, which was every day growing more serious. In consequence of this the senate decreed that both the consuls should have Liguria as their province. The consul Lepidus opposed this resolution and protested against both consuls being confined to the valleys of Liguria. M. Fulvius, he said, and Cn. Manlius had now for two years been acting like kings, the one in Europe, the other in Asia, as though they had replaced Philip and Antiochus on their thrones. If it was the pleasure of the senate that there should be armies in those countries it was more fitting that consuls should command them than unofficial citizens. They were visiting with all the horrors of war nations against whom no war had been proclaimed, and selling peace to them at a price. If it was necessary that armies should occupy those provinces, then C. Livius and M. Valerius as consuls ought to succeed Fulvius and Manlius, just as L. Scipio, when consul, succeeded Manius Acilius, and M. Fulvius and Cn. Manlius, when they became consuls, succeeded L. Scipio. Now, at all events, seeing that the war in Aetolia was at an end, Asia taken from Antiochus, and the Gauls subjugated, either consuls ought to be sent to command consular armies, or the legions brought home and restored to the republic. After listening to this speech the senate adhered to their decision that Liguria should be the province of both consuls, and Manlius and Fulvius were to resign their provinces, bring their armies away and return to Rome.

[38.43]M. Fulvius and M. Aemilius were on bad terms with one another, the main cause being Aemilius' suspicion that it was owing to Fulvius that he had been made consul two years later than he ought to have been. In order to stir up odium against him, he introduced into the senate some delegates from Ambracia who had been suborned to bring charges against him. They asserted that while they were at peace and had done all that the former consuls had required

of them and were prepared to show the same obedience to M. Fulvius, war was declared against them, their fields were ravaged, the terror created by the bloodshed and pillage reached their city and compelled them to close their gates. Then they were besieged, their city carried by storm, and all the horrors of war, fire and slaughter, wreaked upon them, their homes demolished, their city completely sacked, their wives and children dragged off into slavery, their goods carried away, and what they felt most bitterly of all, the temples in the city stripped of their adornments, the statues of their gods, or rather the gods themselves, torn from their shrines and carried away. All that was left to the Ambracians were the naked walls and the columns to receive their worship or hear their supplications and prayers. Whilst they were stating these grievances the consul, as previously arranged, questioned them as to other charges, and elicited answers made with apparent reluctance.

The House was impressed by these statements and the other consul took up the cause of Fulvius. He pointed out that the Ambracians had taken an old and outworn course; just in the same way had M. Marcellus been accused by the Syracusans, and Q. Fulvius by the Campanians. Why might not the senate allow charges to be brought on similar grounds against T. Quinctius by Philip, against Manius Acilius and L. Scipio by Antiochus, against Cn. Manlius by the Gauls, against M. Fulvius himself by the Aetolians and Cephallanians? "Ambracia," he went on to say, "has been taken by storm, the statues and temple ornaments have been carried away, and everything has happened which usually does happen at the capture of cities. Do you think, senators, that either I, speaking for Fulvius, or M. Fulvius himself, will deny this? He is going to demand a triumph just because he has done all this, and will carry in front of his chariot and fasten on the pillars of his house the captured Ambracia and the statues which he is alleged to have criminally removed. There is nothing to separate the case of the Ambracians from that of the Aetolians, the cause of the one is the cause of the other. My colleague must display his enmity in some other case or if he prefers the present one, he must keep his Ambracians till Fulvius returns. I will not allow any decree to be passed in respect of either the Ambracians or the Aetolians in M. Fulvius' absence."

[38.44]Aemilius continued to attack his enemy and declared that his cunning and malice were notorious, and that Fulvius would manage

to delay matters so as not to come to Rome while his adversary was consul. Two days were thus wasted in the quarrel between the consuls. It was clear that while Faminius was present no decision could be arrived at. Owing to Flaminius' absence through illness, Aemilius seized the opportunity to move a resolution which the senate adopted. Its purport was that the Ambracians should have all their property restored to them; they should be free to live under their own laws; they should impose such harbour dues and other imposts by land and sea as they desired, provided that the Romans and their Italian allies were exempt. With regard to the statues and ornaments which they said had been taken from their temples, it was decided that after Fulvius' return their ultimate disposal should be referred to the pontifical college, and what they deemed right would be done. The consul was not content with this; subsequently in a thinly attended House he got a clause added to the effect that there was no evidence that Ambracia had been taken by storm. In consequence of a serious epidemic which ravaged City and country alike, the Keepers of the Sacred Books decreed that special sacrifices and intercessions should be offered for three days. Then came the Latin Festival. When the consuls were free from these religious duties and had raised what men they required - they both preferred to employ fresh troops - they left for their province and disbanded all the old troops. After their departure Cneius Manlius arrived at Rome, and the praetor S. Servilius convened a meeting of the senate to grant an audience. After giving a report of what he had done, he asked that in recognition of these services, honours should be paid to the immortal gods and permission given to him to enter the City in triumph. The majority of the ten commissioners who had been with him opposed this demand, especially L. Furius Purpurio and L. Aemilius Paulus.

[38.45] They had been appointed, they said, to act as commissioners with Cn. Manlius for the purpose of concluding peace with Antiochus and finally settling the terms of the treaty which had been outlined by L. Scipio. Cn. Manlius did his utmost to upset the negotiations and, if he got the chance, to inveigle the king into his power. When the king became aware of the consul's designs, though he was frequently invited to a personal interview, he avoided not only meeting him but even the very sight of him. When the consul was bent upon crossing the Taurus range, it was with the utmost difficulty that he was prevented from doing so by the commissioners, who

warned him against tempting the doom foretold in the Sibylline Books for every one who overpassed the limits fixed by Fate. Nevertheless, he marched his army up and encamped almost on the summit where the mountain streams flow opposite ways. When he found that the king's subjects remained perfectly quiet and that there was nothing to justify hostilities, he led his troops round against the Gallograeci, a nation against whom no declaration of war had been made either by the authority of the senate or the order of the people. Who else would have ever dared to do such a thing? The wars with Antiochus, Philip, Hannibal and Carthage were fresh in all men's memories; in every one of these the senate issued its decree and the people their mandate; envoys had been sent beforehand frequently to demand satisfaction, and as a final step to declare war. "Which of these preliminaries," the speaker continued, "has been so observed by you, Cn. Manlius, as to make us regard that war as waged by the people of Rome and not simply as a marauding expedition of your own? But were you ever content with that? Did you march your army straight against those whom you had elected to regard as your enemies? Did you not on the contrary make a roundabout march through winding roads, halting at all the cross-roads in order that in whatever direction Eumenes' brother Attalus should direct his march, you might follow him like a mercenary captain, you, a consul with a Roman army? Did you not visit every hole and corner of Pisidia, Lycaonia, and Phrygia, collecting money from the tyrants and their officers scattered through the land? What business had you, pray, to interfere with Oroanda or with other equally unoffending communities? But about this war, on the strength of which you are seeking a triumph, in what way did you conduct it? Did you fight on favourable ground, at a time of your own choosing? You are certainly right in claiming that honours should be paid to the immortal gods. For in the first place they would not let the army pay the penalty of its commander's recklessness in making an aggressive war in defiance of the law of nations, and in the second place they brought against us wild animals not men.

[38.46]"Do not suppose, senators, that it is only in their name that the Gallograeci are a mixed race; it is much more their bodies and minds that have become mixed and corrupted. If they had been real Gauls like those with whom we have fought numberless doubtful battles in Italy, would a single man, so far as our general is concerned,

have returned to tell the story? He fought with them twice. On both occasions he advanced against them at a disadvantage, and from his lower ground almost placed his line under the enemy's feet, so that, without discharging their weapons from above, by simply hurling their naked bodies upon us, they could have overwhelmed us. What, then, occurred to prevent this? Great is the Fortune of the Roman people, great and terrible its name! The recent downfall of Hannibal, of Philip, of Antiochus, had almost stunned the Gauls. With all their huge bulk they were put to flight by slings and arrows, not a sword in the army was stained by the blood of a Gaul, they fled away like flocks of birds at the first whirr of our missiles. Yes, but Fortune also warned us what would have happened to us then, if we had had a real enemy. On our return march we fell amongst Thracian brigands, and were killed, put to flight, and stripped of our baggage. Q. Minucius Thermus fell, together with many brave men, and his loss was much more serious than that of Cn. Manlius would have been, through whose foolhardiness the disaster occurred. The army which was bringing home the spoil taken from Antiochus was dispersed in three sections, the van in one place, the rear in another, and the baggage in another, and they lay down one night amongst thickets and lairs of wild beasts. Is it for these exploits that a triumph is asked for? Supposing no ignominious defeat had been sustained in Thrace, over what enemy would you seek triumph? Over those, I presume, whom the senate or the people of Rome had assigned to you as your enemy. On these terms a triumph was granted to L. Scipio, to Manius Acilius over Antiochus, to T. Quinctius, a little earlier, over Philip, to P. Africanus over Hannibal and Carthage and Syphax. And even when the senate has voted for war, certain minor questions have had to be answered - as to whom the declaration of war ought to be made, whether in any case to the kings themselves, or whether it would be sufficient to proclaim it at one of his frontier garrisons. Do you then, senators, want all these formalities to be treated with scorn, the solemn procedure of the fetials to be abolished, and the fetials themselves to be done away with? Suppose all religious scruples - the gods forgive me for saying it! - were cast to the winds and forgetfulness of the gods took possession of your hearts, should you still think it right that the senate should not be consulted as to war, or the question referred to the people whether it was their will and order that war should be waged with the Gauls? Recently, at all events, when the consuls wanted to have Greece and Asia as their

provinces, you held to your resolution to decree Liguria as their province, and they submitted to your authority. Deservedly, therefore, will they ask for a triumph, after their successes, from you under whose authority they will have achieved them."

[38.47]This was the substance of what Furius and Aemilius said. I understand that Manlius spoke to the following effect: "Formerly, senators, it was the tribunes of the plebs who usually opposed those who claimed a triumph. I am grateful to them for having conceded this much to me, either personally or in acknowledgment of the greatness of my services, that they not only showed by their silence their approval of my being thus honoured, but were even ready, if necessary, to recommend it to the senate. It is amongst the ten commissioners that I find my opponents, those whom our ancestors assigned to their commanders for the purpose of gathering the fruits of their victories and enhancing their glory. L. Furius and L. Aemilius forbid me to enter the triumphal chariot; they snatch the victor's wreath from my brow; these very men whom I was going to call as witnesses to what I have done, had the tribunes opposed my triumph. I envy no man his honours, senators. Only the other day when the tribunes of the plebs were trying to prevent the triumph of Q. Fabius Labeo, strong and determined as they were, you overawed them by your authority. His enemies laid it to his charge, not that he had fought an unjust war, but that he had never even seen an enemy. Still he enjoyed his triumph. I, who have fought so many pitched battles with 100,000 of our fiercest enemies, who have killed or taken prisoners 40,000, who have stormed two of their camps, who have left all the country this side the Taurus more peaceable than the land of Italy - I am not only being defrauded of my triumph, but actually have to defend myself before you against the accusations of my commissioners.

"You have noticed, senators, that they bring a double charge against me; that I ought not to have made war on the Gauls, and that I conducted it in a rash and imprudent way. 'The Gauls,' they say, 'were not hostile to us, but you wantonly attacked them while they were quietly carrying out your orders.' I am not going to ask you, senators, to judge the Gauls who inhabit those countries from what you know of the savagery common to the race, and their deadly hatred to the name of Rome. Keep out of sight the infamous and hateful character of the race as a whole and judge those men by themselves. I wish

Eumenes, I wish all the cities of Asia were here, and that you were hearing their complaints rather than the charges I am bringing. Send commissioners to visit all the cities of Asia and find out which has delivered them from the heavier thralldom, the removal of Antiochus beyond the Taurus or the subjugation of the Gauls. Let them bring back word how often the fields of those people have been devastated, how often they and all their property have been carried off, with hardly a chance of ransoming the captives, and knowing that human victims were being sacrificed and their children immolated. Let me tell you that your allies paid tribute to the Gauls, and would have been paying it now, though freed from the rule of Antiochus, if it had not been put a stop to by me.

[38.48]"The greater the distance to which Antiochus was removed, the more tyrannically did the Gauls lord it over Asia; by his removal you added whatever lands lie on this side the Taurus to their dominion, not your own. But you say, 'Assuming this to be true, the Gauls once despoiled Delphi, but though it was the one oracle common to all mankind, and the central spot in the whole world, the Romans did not on that account declare or commence war against them.' I should certainly have thought that there was a considerable difference between the conditions existing when Greece and Asia had not yet passed under your suzerainty, as far as regards your interest and concern in their affairs, and the conditions prevailing now; when you have fixed the Taurus as the frontier of your dominion; when you are giving to the cities liberty and immunity from tribute; when you are enlarging the territories of some and depriving others of their land by way of punishment or imposing tribute: when you are extending, diminishing, giving, taking away kingdoms, and making it your one care that they shall keep the peace both on land and sea. Would you consider that the liberty of Asia would not have been secure had not Antiochus withdrawn his garrisons, which were remaining quietly in their quarters, and do you suppose that your gifts to Eumenes would be safe or the cities retain their freedom as long as the armies of the Gauls were roaming far and wide?

"But why do I use these arguments, as though I had made the Gauls into enemies and had not found them such already? I appeal to you, L. Scipio, whose valour and good fortune alike I prayed to the immortal gods - and not in vain - to grant me, when I succeeded to

your command; I appeal to you, P. Scipio, who though subordinate to your brother the consul, still possessed both with him and the army all the authority of a colleague; and I ask you whether you know that there were legions of Gauls in the army of Antiochus; whether you saw that they were posted at either end of his line, for there his main strength seemed to be; whether you fought with them as regular enemies, and killed them and brought their spoils home. And yet the war which the senate had decreed and the people ordered was a war against Antiochus, not against the Gauls. Yes, but I hold that the decree and order included those who had formed part of his army, and amongst these - with the exception of Antiochus with whom Scipio had concluded peace and with whom you ordered a special treaty to be made - all who bore arms on his behalf were our enemies. The Gauls above all supported his cause, as did also some petty kings and tyrants. With the others, however, I made peace and compelled them to make an expiation for their misdoings proportionate to the dignity of your empire, and I tried to influence the Gauls, if haply their innate ferocity could be mitigated. When I saw that they remained untameable and implacable, I thought they ought to be coerced by force of arms.

"Now that I have cleared myself of the charge of wanton aggression, I have to account for my conduct of the war. On this topic I should feel perfect confidence in my case, even if I were pleading not before the Romans but before the Carthaginian senate, where it is said that their generals are crucified, even when successful, if their strategy has been faulty. But this State has recourse to the gods at the commencement and during the conduct of all its business, because it will not have those matters which the gods have approved of open to any man's censure, and when it decrees special thanksgivings or a triumph, employs the solemn formula: 'Whereas he has managed the affairs of the Republic with success and good fortune.' If, then, renouncing all assertion of my own merits as arrogant and presumptuous, I were to demand on behalf of my own good fortune and that of my army, in having crushed so powerful a nation without any loss, that honours should be paid to the immortal gods, and that I, myself, should go up in triumph to the Capitol, from whence I started after my vows and prayers had been duly offered, would you refuse this to me and to the immortal gods as well?

[38.49]"But, they say, I fought on unfavourable ground. Then tell me where I could have fought at less disadvantage. The enemy had occupied the mountain, they kept themselves within their lines; surely if I was to win the battle it was necessary for me to advance against them. How would it have been if they had been holding a city there and keeping within its walls? Of course, they must have been attacked. Why, did not Manius Acilius engage Antiochus on unfavourable ground at Thermopylae? Did not T. Quinctius under similar conditions dislodge Philip when he was holding the heights above the Aous? So far I am unable to make out what sort of an enemy they are picturing to themselves, or in what light they wish you to regard him. If they say that he has degenerated and become enervated by the attractions and luxuries of Asia, what risk did we run in attacking him even when we were in a bad position? If they regard him as formidable, owing to ferocity and physical strength, do you refuse a triumph for so great a victory? Envy, senators, is blind and knows no other method than that of disparaging merit and soiling its honours and rewards. I crave your indulgence, senators, if the necessity of defending myself against accusations, and not a desire to sound my praises, has made my speech somewhat long. Was it in my power when marching through Thrace to make the narrow passes into open country, the broken road into level ground, the forests into open fields? Could I have made such dispositions as to prevent the Thracian banditti from concealing themselves in lurking-places with which they were perfectly familiar, or any of our baggage from being stolen, or any pack animal from being carried off from so long a column, or a single man from being wounded, or that gallant soldier, Q. Minucius, from dying of his wounds? They make a great point of that sad misfortune, involving as it did the loss of so good a citizen. But the fact of our two divisions at the front and rear of the column having hemmed in the barbarians when busy in looting our baggage, after attacking in a difficult pass on ground wholly against us; the fact that those two divisions killed or took prisoners many thousands of the enemy on that day and many more a few days later - if they have been silent as to these facts, are they not aware that you will know them when the whole army can testify to what I say? If I had never drawn the sword in Asia, or seen an enemy there, I should still have deserved a triumph for those two battles in Thrace. But I have said enough and would only ask for and, I hope, receive your

indulgence for having wearied you by speaking at greater length than I wished."

[38.50]The attack would that day have prevailed over the defence had they not protracted the debate to a late hour. When the House rose, the general opinion was that it would in all likelihood refuse the triumph. The next day the friends and relatives of Cn. Manlius exerted their utmost efforts, and the authority of the older senators prevailed. They said that there was no instance on record of a commander who had brought back his army, after subjugating a dangerous enemy and reducing his province to order, entering the city in an unofficial and private capacity without the chariot and laurels of triumph. The sense of the indignity of such a proceeding was too strong for the aspersions of his enemies, and a full senate decreed to him a triumph. All discussion and even recollection of this dispute were lost in the outbreak of a more serious controversy with a greater and more distinguished man. We are told on the authority of Valerius Antias that the two Petillii instituted proceedings against P. Scipio Africanus. Men put different interpretations on this according to their various dispositions. Some blamed, not the tribunes only, but the whole body of citizens, for letting such a thing be possible; the two greatest cities in the world, they said, had proved themselves, almost at the same time, ungrateful to their foremost men. Rome was the more ungrateful of the two, for whilst Carthage after her defeat drove the defeated Hannibal into exile, Rome would banish the victorious Scipio in the hour of her victory. Others again took the ground that no single citizen should stand on such an eminence that he could not be required to answer according to law. Nothing contributed more towards maintaining liberty for all than the power of putting the most powerful citizen on his trial. What business, it was asked - not to mention the supreme interests of the State - could be entrusted to any man, if he had not to render an account for it? If a man cannot submit to laws which are the same for all, no force which may be employed against him is unlawful. So the matter was discussed until the day of trial came. Never before had anyone, even Scipio himself when he was consul or censor, been surrounded by a greater concourse of people of all sorts and conditions than on the day when he was conducted into the Forum to make his defence. When he was called upon to plead, he made no allusion whatever to the charges brought against him, but spoke of

the services he had rendered in such a lofty tone that it was universally felt that no man had ever deserved higher or truer praise. He described his actions in the spirit and temper in which he had performed them, and he was listened to without any impatience because they were recounted not in self-glorification but in self-defence.

[38.51]In order to support the charges they were bringing against him, the tribunes brought up the old story of his luxurious living in his winter quarters in Syracuse and the disturbance created by Pleminius at Locri. They then went on to accuse him of having received bribes, more on grounds of suspicion than by direct proof; they alleged that his son who was taken prisoner was restored to him without ransom; that Antiochus had in every way tried to ingratiate himself with Scipio as though peace and war with Rome were solely in his hands; that Scipio had behaved towards the consul in his province as dictator rather than subordinate; that he had gone out with no other object than to make clear to Greece and Asia and all the kings and nationalities in the East what had long been the settled conviction of Spain and Gaul and Sicily and Africa, that he alone was the head and mainstay of Roman sovereignty; that under Scipio's shadow the mistress city of the world lay sheltered and that his nod took the place of the decrees of the senate and the orders of the people. No stigma of disgrace could be fastened upon him, so they did their utmost to excite popular odium against him. As the speeches went on till night, the proceedings were adjourned. When the next day for the hearing came, the tribunes took their seats on the Rostra at daybreak. The defendant was summoned, and passing through the middle of the Assembly accompanied by a large body of friends and clients, stood before the Rostra. Silence having been called he spoke as follows:

"Tribunes of the plebs, and you, Quirites, this is the anniversary of the day on which I fought with success and good fortune a pitched battle against Hannibal and the Carthaginians. It is therefore only right and fitting that on this day all pleas and actions should be suspended. I am going at once to the Capitol and the Citadel to make my devotions to Jupiter Optimus Maximus, and Juno and Minerva and all the other tutelar deities of the Capitol and the Citadel, and to offer up thanksgivings to them for having given me as on this day the wisdom and the strength to do the Republic exceptional service.

Those of you, Quirites, who are at liberty to do so, come with me. You have always from my seventeenth year down to this period of my old age advanced me to honours before I was of the age for them, and I have always forestalled your honours by my services; then pray now to the gods that you may always have leaders like me." From the Rostra he went straight up to the Capitol, and the whole Assembly turning their backs on the tribunes followed him; even the secretaries and apparitors left the tribunes; there was no one with them except their attendant slaves and the usher who used to stand at the Rostra and call the defendants. Scipio not only went up to the Capitol; he visited all the temples throughout the City, accompanied by the Roman people. The enthusiasm of the citizens and their recognition of his real greatness made that day almost a more glorious one for him than when he entered the City in triumph after his victories over Syphax and the Carthaginians.

[38.52] This splendid day was the last day of brightness for Scipio. He saw before him envious attacks and contests with the tribunes, and so after a somewhat lengthy adjournment had been agreed upon, he retired to Liternum, firmly resolved not to appear in his defence. His spirit was too high, his mind too great; he had all through held a position too lofty to allow him to accept the position of a defendant or submit to the humiliation of having to plead his cause. When the day arrived and his name was called, L. Scipio apologised for his absence on the ground of ill-health. The prosecuting tribunes did not accept the excuse and gave out that his refusal to appear was dictated by the same spirit of pride and arrogance in which he had left the seat of judgment and the tribunes and the Assembly. Surrounded by the very men whom he had deprived of the right and liberty of passing sentence upon him, and dragging them after him like prisoners of war, he had celebrated a triumph over the people of Rome and had made a secession on that day from the tribunes to the Capitol. "So now," they continued, "you have the due reward of your folly; the man at whose instigation and under whose leadership you deserted us, has now deserted you. So low is our courage falling day by day, that the man whom seventeen years ago we dared to send tribunes to Sicily to apprehend, whilst he had an army and a fleet at his command, that man we dare not now, though he is only a private citizen, fetch from his country-house to stand his trial." L. Scipio appealed to the tribunes of the plebs as a body, and they passed the

following resolution: "If illness be pleaded as an excuse, it is our pleasure that this excuse be accepted, and our colleagues must again adjourn the day of trial." Tiberius Sempronius Gracchus was one of the tribunes. He was a political opponent of Scipio, and had forbidden his colleagues to add his name to their resolution. It was generally expected that he would give a more severe sentence, but he drew up a resolution in the following terms: "Since L. Scipio has pleaded illness as the reason for his brother's absence, I hold that to be sufficient excuse, and will not allow P. Scipio to be put on his trial before his return to Rome; even then, if he appeals to me, I will support him in any effort to avoid a trial. Scipio has by the common consent of gods and men attained such a lofty position through his own acts and the honours which the Roman people have conferred upon him, that for him to stand beneath the Rostra as a defendant, and have to listen to the insults of young men, would be a greater ignominy for the people of Rome than for him."

[38.53]He followed this up by an indignant speech: Is Scipio, the conqueror of Africa, to stand at your feet, tribunes? Was it for this that he broke and routed four armies in Spain under the most famous generals that Carthage possessed? Was it for this that he captured Syphax and crushed Hannibal, made Carthage tributary to us, removed Antiochus beyond the Taurus - for his brother Lucius allowed him to share his glory - was it simply that he might succumb to the two Petillii, and that you might claim the palm of victory over Publius Africanus. Will you allow the claim, citizens? Will illustrious men never either through their own merits or the honours you confer, reach a safe, and if I may say so, a sacred asylum where their old age may rest, if not venerated, at least inviolate?" His resolution and the speech which followed it had their effect upon the other tribunes, even upon the prosecutors, who said that they would deliberate as to what their right and duty demanded. After the Assembly broke up, a meeting of the senate was held. Here a most hearty vote of thanks to Tiberius Gracchus was passed by the whole order, especially the men of consular rank and the elder senators, for having placed the interests of the State before his own private feelings, and the Petillii were taunted with wanting to shine by darkening another's reputation and enrich themselves by a triumph over Africanus. After this nothing more was said about proceedings against Scipio. He passed his life at Liternum without any wish to

return to the City, and it is said that on his death-bed he gave orders that he should be buried and his monument set up there, so that there might be no funeral rites performed for him by his ungrateful country. He was an extraordinary man, more distinguished, however in the arts of war than in those of peace. The earlier part of his life was more brilliant than the later; as a young man he was constantly engaged in war; with advancing years the glory of his achievements faded, and there was nothing to call forth his genius. What additional lustre did his second consulship confer as compared with his first, or even his censorship? What further distinction did he gain during his subordinate command in Asia, rendered useless through bad health and saddened by the misfortune which overtook his son? Then, again, after his return he was under the necessity of either standing his trial or of absenting himself from his native city. Still, he alone won the unique glory of bringing the war with Carthage to a close, the greatest and most serious war that the Romans have ever waged.

[38.54]With the death of Africanus the courage of his enemies rose. The foremost of these was M. Porcius Cato, who even during Scipio's lifetime was constantly belittling his greatness, and it was at his instigation, it was thought, that the Petillii attacked him whilst he was alive. After his death they introduced into the Assembly the following motion: "Touching the money which was seized, confiscated and exacted from Antiochus and his subjects, is it your will and pleasure, Quirites, that in respect of such money as has not been accounted for to the State, the City praetor Servius Sulpicius shall consult the senate as to which of the acting praetors it shall appoint to investigate the matter?" The two Mummii, Quintus and Lucius, interposed their veto to this proposal; they considered that where money had not been accounted for to the State, it was only right and proper that the senate should conduct such investigation as it always had done previously. The Petillii accused the nobility and the despotic power which the Scipios possessed over the senate. L. Furius Purpurio, a man of consular rank, one of the ten commissioners, thought that the inquiry ought to go further. By way of damaging his enemy Cn. Manlius, he suggested that it ought to include not only the amount taken from Antiochus, but all that had been taken from other kings and nations. L. Scipio, who it was evident would speak more in his own defence than against the proposal, came forward to oppose it. He protested strongly against this question being raised after the

death of his brother P. Africanus, of all men the bravest and most illustrious. No public eulogium had been made over him when he died, but that was not enough, now accusations must be levelled at him. Even the Carthaginians were content with banishing Hannibal; the Roman people were not satisfied with the death of Africanus, but his reputation must be torn to pieces over his tomb, and as an aggravation of malice, his brother also must be sacrificed. M. Cato supported the motion; his speech, "Concerning the money of King Antiochus," is still extant. The weight of his authority deterred the Mummii from opposing it, and as these withdrew their veto, the proposal was earned by the unanimous vote of the Tribes.

[38.55]Ser. Sulpicius next consulted the senate as to who was to conduct the inquiry, and they fixed upon Q. Terentius Culleo. There are some writers who assert that this praetor was so attached to the family of the Cornelii that at the funeral - they say he died and was buried in Rome - he preceded the bier wearing a cap of liberty just as though he were marching in a triumphal procession, and at the Porta Capena he distributed wine sweetened with honey to those who followed the body, because amongst the other captives in Africa he had been delivered by Scipio. Another account is that he was hostile to the family; that, knowing this, the party opposed to the Scipios selected him as the one man to conduct the inquiry. However this may be, it was before this praetor, whether biassed in favour of or against the defendant, that L. Scipio was at once put on his trial. The names of his divisional commanders, Aulus and Lucius Hostilius Cato, were also given in to the praetor, and entered by him, as well as that of the quaestor C. Furius Aculeo; and that his whole staff might appear to be associated in the embezzlement, his two secretaries and his marshal were also included. Lucius Hostilius, the secretaries and the marshal were all acquitted before Scipio's case was heard. He, together with A. Hostilius and C. Furius, were found guilty - Scipio, of having received 6000 pounds of gold and 480 of silver over and above what he had brought into the treasury; and Hostilius was convicted of having similarly embezzled 80 pounds of gold and 403 of silver; the quaestor was found guilty of having received 130 pounds of gold and 200 of silver. These are the amounts I find as stated by Antias. In the case of L. Scipio, I should prefer to regard these figures as a mistake on the part of the copyist, rather than a false assertion of the author, for the weight of the silver was in all

probability greater than that of the gold, and the fine was more likely to be fixed at 400,000 than at 2,400,000 sesterces, especially as it is stated that this was the sum for which Publius Scipio was asked to account in the senate. It is also recorded that when he had told his brother Lucius to fetch his account-book, he tore it up with his own hands while the senate was looking on, and indignantly protested against an account for 400,000 sesterces being demanded of him after he had brought into the treasury 2,000,000. He is further stated to have shown the same self-confidence in demanding the keys of the treasury, when the quaestors did not venture to bring the money out as against the law, and declaring that as it was through him it was shut, so he would open it.

[38.56] There are many other details in which writers differ, especially as regards his closing years, his impeachment, his death, his funeral, and his tomb, so that I cannot decide what traditions or documents to follow. There is no agreement as to the prosecutors. . Some say that M. Naevius, others that the Petillii, initiated the proceedings; nor as to the date when they began, nor the year in which he died, nor where he was buried. Some say that he died and was buried in Rome; others say in Liternum. In both places his monument and statues are shown. At Liternum there was a monument surmounted by a statue which we have seen lately, and which was overthrown by a storm. At Rome there are three statues above the monument of the Scipios; two are said to be those of Publius and Lucius; the third that of the poet Q. Ennius. Nor is it only the chroniclers who differ; even the speeches, if they are really those of the men whose they are said to be, viz., P. Scipio and Tiberius Gracchus, cannot be brought into agreement. The title of Scipio's speech gives the prosecutor's name as M. Naevius; in the speech itself the name does not appear; sometimes he describes him as a knave, sometimes as a trifler. Even the speech of Gracchus makes no mention of the Petillii as the prosecutors of Africanus, nor of the actual proceedings. Quite another story will have to be put together to fit this speech of Gracchus, and we shall have to follow those authorities who aver that at the time when Lucius Scipio was tried and convicted of having taken bribes from the king, Africanus was serving in a subordinate command in Etruria and, on hearing of the misfortune which had befallen his brother, hurried back to Rome. On learning that his brother was being taken to prison, he went straight to the Forum,

drove off the officer who had charge of him and, his affection for his brother getting the better of his citizenship, even used violence towards the tribunes who tried to hold him back.

Gracchus himself complains that in this instance the authority of the tribunes was successfully defied by a private citizen, and at the end of his speech where he promises to support Scipio, he adds that it would form a better precedent were it to appear that the tribunitian and State authority had been overborne by a tribune of the plebs rather than by a private citizen. But while he reproaches him bitterly for losing his self-control in this one outbreak of lawlessness, and censures him for having fallen so far below himself, he makes up for his censures in recalling the high esteem in which Scipio was held in the old days for his equable and self-disciplined character. He reminded his hearers how severely Scipio rebuked the people for wishing to make him perpetual consul and dictator; how he had prevented them from raising statues to him in the Comitium, the Rostra, the senate house, and in the shrine of Jupiter on the Capitol, and how he had prevented a decree from being passed authorising his image decked in triumphal garb to be borne in procession from the temple of Jupiter Optimus Maximus. These things, even if inserted in a public eulogium, would still be a proof of his greatness of soul in keeping his honours within the limits of ordinary civic life; how much more so when they are the admissions of an enemy.

[38.57]It is generally understood that the younger of his two daughters was married to this same Gracchus, and the elder one was certainly disposed of by her father to P. Cornelius Nasica, but whether it was after her father's death is uncertain. It is equally uncertain whether the current belief in the following story is well founded. The story goes that when Gracchus saw that L. Scipio was on the point of being carried off to prison and that none of his fellow-tribunes interfered on his behalf, he swore that though his enmity towards the Scipios was as strong as ever, and he would do nothing to win his favour, yet he would not look on whilst the brother of Africanus was being taken to a dungeon into which he had seen Africanus himself taking kings and commanders. The senate happened to be dining that day in the Capitol, and rising in a body they begged Scipio to betroth his daughter to Gracchus there and then. The betrothal having been formally completed in the presence of the whole gathering, Scipio went home. On meeting his wife, he

told her that he had betrothed their youngest daughter. She was naturally hurt and indignant at not having been consulted in the disposal of their child, and observed that even if he were giving her to Tiberius Gracchus, her mother ought to have had a voice in the matter. Scipio was delighted to find that they were of one accord, and told her that it was to that man that she was betrothed. It is right that in the case of so great a man the various opinions and the different historical statements as to these details should be noted.

[38.58]When the praetor Q. Terentius had brought the proceedings to a close, Hostilius and Furius, who had been convicted, gave the required sureties to the City quaestors. Scipio, who stoutly maintained that the whole of the money he had received was in the treasury, and that he had none which belonged to the State, was ordered off to prison. P. Scipio Nasica formally appealed to the tribunes in a speech full of just and true encomiums on the house of the Cornelii and particularly on his own family. He pointed out that the two distinguished men, Cn. and P. Scipio, were the fathers respectively of himself, and of P. and L. Scipio, who was now being led to prison. These two men had for many years fought in Spain against numerous armies of Carthaginians and Spaniards, and had not only added to the glory of Rome, but after presenting to those two nations an example of Roman moderation and good faith, had at last given their lives for the commonwealth. It would have been enough had their glory been kept untarnished for posterity, but P. Africanus had so far surpassed his father's renown that men believed him to be sprung from no human parents, but to be of divine origin. As to Lucius Scipio, whose case was before them, he would pass over all that he had done as his brother's lieutenant in Spain and Africa, and would remind them that when he was consul the senate thought him worthy of being entrusted with Asia and the war with Antiochus as his province, without having recourse to the ballot. His brother, too, though he had been censor and twice consul, and graced with a triumph, went to him to serve as his lieutenant in Asia. Whilst he was there, as though to prevent the greatness and splendour of the lieutenant from eclipsing the fame of the consul, it so happened that on the day when Lucius Scipio completely defeated Antiochus in the great battle of Magnesia, Publius Scipio was several days' journey away, lying ill at Elaea. The army that Lucius engaged was not less than that which Hannibal commanded at the battle in Africa.

Hannibal who had commanded all through the Punic war was also among the generals with Antiochus. The conduct of the war was such that no one could charge even Fortune with caprice. It is in respect of the peace that the charges are made; the peace is said to have been sold. If so, the ten commissioners are also involved in the charge; it was on their advice that the peace was granted. And though out of those ten men some came forward to accuse Cn. Manlius, not only did they fail to prove their charge, they were not even able to delay his triumph.

[38.59]But in Scipio's case the very terms of the peace formed the grounds of suspicion as being too favourable to Antiochus. "His kingdom," they say, "has been left to him in its entirety; after his defeat he remained in possession of all that had belonged to him before the war. Though he had a large amount of gold and silver, none of it has been brought into the treasury; it has all passed into private hands." Was not the amount of gold and silver borne before all men's eyes in Lucius Scipio's triumph greater than in any other ten triumphs if it were all collected together? What am I to say about the limits of the king's dominions? Antiochus held all Asia and the adjacent parts of Europe; how great a part of the world that is, stretching from the Taurus to the Aegean, you all know. This tract of country, more than thirty days' march in length and, measured from sea to sea, ten days' march in breadth, extending right up to the Taurus, has been taken from Antiochus. He has been banished to the most remote corner of the world. What more, pray, could have been taken from him, even if peace had been granted without any conditions? After Philip's defeat, Macedonia was left to him as Lacedaemon was to Nabis, and yet no criminal inquiry was instituted against Quinctius. He had not Africanus for his brother, whose great reputation ought to have helped Lucius instead of injuring him by the jealousy it aroused. It was stated in the trial that the amount of gold and silver brought into Lucius Scipio's house was greater than could have been realised by the sale of the whole of his property. Where, then, is that gold and silver and all the benefactions he has received? Surely this access of fortune must have been in evidence in a house which is not wasted with extravagance. Yes, but what cannot be got out of his property, his enemies will get out of his person by insult and torture, in order that a man so illustrious may be shut up with burglars and highwaymen in the inmost dungeon and breathe

out his life in darkness, and his naked body flung out of the prison doors. That would not bring a deeper disgrace upon the house of the Corneli than upon the whole City of Rome.

[38.60]Terentius, in reply, read the resolution carried by the Petillii, the decision of the senate and the sentence passed upon L. Scipio. He declared that unless the sum stated in the judgment were restored to the treasury, there was no other course open to him but to order him to be arrested and taken to prison. The tribunes retired for consultation and shortly afterwards C. Fannius, in the name of all his colleagues except Gracchus, declared that they would not intervene to prevent the praetor from exercising his authority. T. Gracchus gave his decision thus: He would not oppose the action of the praetor in recovering the sum in question from the sale of Lucius Scipio's property, but that as to L. Scipio himself, a man who had conquered the most prosperous and wealthy monarch in the world; who had carried the dominion of Rome to the utmost limits of the world; who had bound King Eumenes, the Rhodians, and so many other cities in Asia under obligations to Rome; who had led first in triumph, and then to prison, so many enemy commanders - this man he would not allow to lie in prison and in chains amongst the enemies of Rome. He then ordered him to be released. His decision was greeted with such enthusiasm by those who heard it, and there was such general delight at the news of Scipio's release, that it seemed hardly possible that these were the same people before whom the sentence against him had lately been pronounced. The praetor then sent the quaestors to seize L. Scipio's property in the name of the government. Not only was there not a vestige of the king's gold to be seen, but the amount realised was nowhere near the sum named in the judgment. The relatives and friends and clients of L. Scipio's contributed a sum sufficient, if he accepted it, to make him even richer than before. He refused to accept any of it. Everything necessary for him was supplied by his nearest relations. The ill-will and popular odium against the Scipios had now turned against the praetor and his assessors and the prosecution.

BOOK 39: THE BACCHANALIA IN ROME AND ITALY

[39.1]While these incidents were occurring in Rome - if indeed they did occur in this year - both consuls were engaged in war with the

Ligurians. That enemy seemed born to keep up the military discipline of the Romans in the intervals between the more important wars; no other field of operations did more to whet the soldiers' courage. In Asia the pleasures of city life, the ample supply of luxuries furnished by land and sea, the effeminacy of the enemy, and the princely wealth had enriched the armies instead of making them more efficient. Especially under the command of Manlius they became careless and undisciplined, and so the somewhat rougher march through Thrace and a more warlike enemy gave them a much-needed lesson through severe defeat. In Liguria there was everything to try a soldier's mettle; a rough and difficult country, mountainous heights which it cost the men as much labour to secure for themselves as it did to dislodge the enemy from them; steep narrow roads where there was always the danger of an ambush; an enemy lightly armed, rapid in his movements, sudden in his onset, who never allowed any place or hour to remain quiet and undisturbed. Any attack on a fortified position involved much toil and danger; there was but little to be got out of the country, and the soldiers were reduced to scanty food, as they could secure very little plunder. Consequently, there were no camp-followers, no extended line of baggage animals; there was nothing beyond the arms and the men who depended solely upon them. Occasions of fighting were never lacking, for the natives driven by their poverty were in the habit of raiding their neighbours' fields; they never, however, engaged in a pitched battle.

[39.2]The consul C. Flaminius, after several successful actions with the Ligurian Freniates, accepted their surrender and disarmed them. As they evaded this demand, he took severe measures with them, on which they abandoned their villages and took refuge on Mt. Auginus, the consul following in close pursuit. In scattered parties, mostly without arms, they fled precipitately over trackless and rocky ground, where their enemy could not follow them, and in this way escaped across the Apennines. Those who had held to their camp were surrounded and driven out. The legions were then led across the Apennines. The Gauls were protected for a short time by the mountain height which they had occupied, but they soon made their surrender. This time there was a closer search made for arms and they were all secured. From them the war was transferred to the Apuani, whose continual incursions into the territories of Pisa and Bononia made any cultivation of the soil impossible. The consul thoroughly

vanquished these also and so brought peace to their neighbours. Now that the province was brought from a state of war into one of peace and quiet, he determined that his soldiers should not be kept in idleness, so he employed them in constructing a road from Bononia to Arretium. The other consul, M. Aemilius, destroyed and burnt the farms and villages of the Ligurians who dwelt in the lowland country the inhabitants having previously fled and taken possession of the heights of Ballista and Suismontium. He then attacked them on the mountains, harassing them with skirmishes, and at last forcing them into a regular engagement, in which he completely defeated them. During the battle he vowed a temple to Diana. As all the tribes south of the Apennines were now subjugated, Aemilius advanced against those on the other side of the range, including those of the Freniates with whom C. Flaminius had not been in touch. He reduced them all to submission, deprived them of their arms and brought down the whole population from the mountains into the plains. After establishing peace in Liguria he led his army into Gaul and made a road from Placentia to Ariminum to join the Via Flaminia. In the last pitched battle he fought in Liguria he vowed a temple to Queen Juno. These were the events of the year in Liguria.

[39.3]In Gaul all was peaceful, but the praetor M. Furius, anxious to make it appear as though he were engaged in war, deprived the unoffending Cenomani of their arms. They sent to Rome to complain and were referred by the senate to Aemilius, who was empowered to investigate the case. There was a long and heated debate with the praetor, but they maintained their ground throughout, and Furius was ordered to restore their arms and leave his province. The senate then gave audience to the deputations who had come from all the cities and colonies of the Latin allies. Their grievance was that a large number of their citizens had migrated to Rome and were placed on the census there. Q. Terentius Culleo, one of the praetors, was charged with the task of finding them out, and whoever was proved to have been registered at home during the censorship of C. Claudius and M. Livius or their successors, he was to order his return to the city in which he had been registered; 12,000 Latins returned in consequence to their homes. Even then the City was overcrowded by the multitude of immigrants.

[39.4]Before the consuls returned to Rome M. Fulvius came back from Aetolia. He had an audience of the senate in the temple of

Apollo and gave a detailed report of his operations in Aetolia and Cephallenia. He then asked the senate to pass a resolution that it was right and proper, in consideration of the success and good fortune with which he had served the State, that honours should be paid to the immortal gods and that a triumph should be decreed to him. M. Albutius, one of the tribunes of the plebs, declared his intention of vetoing any decree which should be passed before the arrival of M. Aemilius. The consul had wished to speak against it, and on his departure for his province had charged him, the tribune, to reserve all discussion of the question till his return. Fulvius, he argued, would lose nothing by the delay; even when the consul was present, the senate would decree what it wished. To this Fulvius replied: "Even if Aemilius' hostility to him and the arbitrary and dictatorial temper he showed towards his opponents were not a matter of common knowledge, still it would be intolerable that an absent consul should stand in the way of honour being paid to the immortal gods and should delay a triumph which was well earned and justly due, or that a general who had achieved brilliant success should be standing before the gate of the City with his victorious army and the spoils of war and the prisoners until the consul, who was for this very purpose delaying his movements, should please to return to Rome. But as a matter of fact his differences with the consul were notorious. What fair dealing could any one look for from the man who in a thinly attended and secret meeting of the senate got a resolution carried and deposited in the treasury in the temple of Saturn stating that there was no evidence that Ambracia had been carried by assault. Why, that city was besieged by agger and vineae, and when the siege-works were burnt, new ones were constructed; for fifteen days fighting went on there round the walls above ground and below, and even when the soldiers had surmounted the walls, there was a long and doubtful struggle from early dawn till nightfall; more than 3000 of the enemy were slain. What was that malicious story which he told the pontiffs about the spoliation of the temples of the gods in the captured city? Unless, indeed, we are to suppose that whilst the adornments of Syracuse and other captured cities may decorate the City, this right of war does not hold in the solitary case of Ambracia." He implored the senators and begged the tribune not to make him an object of derision to his insolent enemy. The senators were with him to a man; some tried to persuade the tribune to forgo his veto, others assailed him with bitter reproaches.

[39.5]But it was the speech of his colleague, Tiberius Gracchus, that produced the greatest effect. He said that for a man to use his official position as the instrument of his own personal animosities was in any case setting a bad precedent, but for a tribune of the plebs to become the agent of another man's vindictiveness was a disgraceful proceeding quite unworthy of the power and inviolability of the college of tribunes. Each man ought to judge for himself whom to love and whom to hate, what actions to approve of and what to disapprove of; he must not wait upon another man's look or nod, nor must he be driven hither and thither by the motives which sway another man's mind. A tribune who becomes the tool of an angry consul and is careful to remember what M. Aemilius entrusted to him privately, forgets that the tribuneship was entrusted to him publicly by the people of Rome, and entrusted to him for the protection and liberty of private citizens, not for the defence of an autocratic consul. Albutius does not see that it will go down to posterity that of two members of the same college of tribunes one subordinated his private quarrels to the interests of the State, the other took up a quarrel which was not even a private one, but was entrusted to him by some one else. Smarting under this castigation the tribune left the senate-house, and on the proposal of Ser. Sulpicius a triumph was decreed to M. Fulvius. He thanked the senators and went on to tell them that on the day he took Ambracia he had vowed to exhibit the Great Games in honour of Jupiter Optimus Maximus, and that a hundred pounds of gold had been contributed by the cities for this purpose. Out of the money which he was going to place in the treasury after it had been borne in the triumph, he requested the senate to order that this hundred pounds of gold should be set apart. The senate ordered the question to be referred to the college of pontiffs whether it was necessary that all that gold should be spent on the Games. They replied that no question of religion arose as to what amount should be spent on the Games, and the senate consequently allowed Fulvius to spend what he liked on the Games as long as it did not exceed 80,000 sesterces.

Fulvius had fixed the date of his triumph in January but, on learning that M. Aemilius had received a letter from Albutius stating that he had withdrawn his opposition and had himself at once started for Rome to stop the triumph, but was detained on his journey by sickness, he fixed an earlier date, for he was afraid there might be

more serious conflicts over the triumph than during the war. It was on December 23 that he celebrated his triumph over the Aetolians and the Cephallenians. Before his chariot were carried golden crowns weighing in all 112 pounds, 1083 pounds of silver, 243 pounds of gold, 118,000 Attic tetrachmas and 12,422 "philippeï"; 780 brazen statues and 230 marble statues. There was a large quantity of armour, weapons and all other spoil taken from the enemy, as well as catapults, ballistae, and every kind of artillery. The generals led in the procession - Aetolian, Caphallenian and those of Antiochus left behind in Aetolia - numbered seven and twenty. Before he actually entered the City, Fulvius bestowed rewards on many of the military tribunes, prefects, cavalrymen and centurions, both those in the Roman army and in the allied contingents. Out of the booty he gave to each private soldier 25 denarii, double the amount to each centurion, and three times as much to each cavalryman.

[39.6]The time for the consular elections was now at hand, and as M. Aemilius, to whom the task of conducting them had been assigned, was unable to undertake it, C. Flaminius went to Rome for the purpose. The consuls elected were Spurius Postumius Albinus and Q. Marcius Philippus. The new praetors were T. Maenius, P. Cornelius Sulla, C. Calpurnius Piso, M. Licinius Lucullus, C. Aurelius Scaurus and L. Quinctius Crispinus. At the close of the year, after the new magistrates had been appointed, Cneius Manlius Vulso celebrated his triumph over the Asiatic Gauls. The reason why he deferred his triumph to so late a date was his anxiety to avoid a prosecution under the Petillian Law whilst Q. Terentius Culleo was praetor, and the possibility of being caught by the flames of the verdict which condemned Scipio. He thought the judges would be even more hostile to him than they had been to Scipio owing to reports which had reached Rome of his allowing the soldiers every kind of licence and completely destroying the discipline which his predecessor Scipio had maintained. Nor were the stories of what had gone on in his province far away from men's eyes the only things that discredited him. Still worse things were witnessed amongst his soldiers every day' for it was through the army serving in Asia that the beginnings of foreign luxury were introduced into the City. These men brought into Rome for the first time, bronze couches, costly coverlets, tapestry, and other fabrics, and - what was at that time considered gorgeous furniture - pedestal tables and silver salvers.

Banquets were made more attractive by the presence of girls who played on the harp and sang and danced, and by other forms of amusement, and the banquets themselves began to be prepared with greater care and expense. The cook whom the ancients regarded and treated as the lowest menial was rising in value, and what had been a servile office came to be looked upon as a fine art. Still what met the eye in those days was hardly the germ of the luxury that was coming.

[39.7]In his triumph Cn. Manlius had borne before him 200 golden crowns, each weighing 12 pounds, 220,000 pounds weight of silver, 2103 pounds of gold, 127,000 Attic tetrachmas, 250 cistophori, 16,320 golden coins of Philip's mintage, and a large quantity of arms and spoils taken from the Gauls, which were carried in wagons. Fifty-two of the enemy leaders were marched before his chariot. He distributed amongst the soldiers 42 denarii for each legionary, twice as much for the centurions, and three times as much for the cavalry, and double pay for all. Many of those who followed his chariot had received military rewards, and it was clear from the songs which the soldiers sang that they addressed him as an indulgent general who sought their goodwill, and that it was his popularity with the soldiers rather than with the people that lent lustre to his triumph. But the friends of Manlius succeeded in winning the favour of the people also; by their efforts a resolution was passed in the senate ordering that so much of the soldiers' stipends contributed by the people as had not yet been paid should be paid out of the money borne in the triumphal procession. The quaestors, making a true and just valuation, paid back 25 1/2 for every 1000 ases. Just at this time two military tribunes arrived with despatches from C. Atinius and L. Manlius, who were commanding in Hither and Further Spain. It appeared that the Celtiberi and Lusitanians were in arms and were ravaging the lands of the friendly tribes. The senate left the new magistrates to deal with the situation. Whilst the Roman Games were being celebrated this year by P. Cornelius Cethegus and A. Postumius Albinus, a pole insecurely fixed on the race-course fell on the statue of Pollentia and threw it down. This was regarded as an omen, and the senate decided that the Games should be celebrated for one day longer, and that two statues should be erected in place of the one that had fallen, one of them to be gilded. The Plebeian Games were exhibited for one day by the aediles C. Sempronius Blaesus and M. Furius Luscus.

[39.8]During the following year the consuls Sp. Postumius Albinus and Q. Marcius Philippus had their attention diverted from the army and the wars, and the administration of provinces, by the necessity of putting down a domestic conspiracy. The provinces were allotted to the praetors as follows: the civic jurisdiction to T. Maenius, the alien to M. Licinius Lucullus, Sardinia to C. Aurelius Scaurus, Sicily to P. Cornelius Sulla, Hither Spain to L. Q. Crispinus, and Further Spain to C. Calpurnius Piso. Both the consuls were charged with the investigation into the secret conspiracies. A low-born Greek went into Etruria first of all, but did not bring with him any of the numerous arts which that most accomplished of all nations has introduced amongst us for the cultivation of mind and body. He was a hedge-priest and wizard, not one of those who imbue men's minds with error by professing to teach their superstitions openly for money, but a hierophant of secret nocturnal mysteries. At first these were divulged to only a few; then they began to spread amongst both men and women, and the attractions of wine and feasting increased the number of his followers. When they were heated with wine and the nightly commingling of men and women, those of tender age with their seniors, had extinguished all sense of modesty, debaucheries of every kind commenced; each had pleasures at hand to satisfy the lust he was most prone to. Nor was the mischief confined to the promiscuous intercourse of men and women; false witness, the forging of seals and testaments, and false informations, all proceeded from the same source, as also poisonings and murders of families where the bodies could not even be found for burial. Many crimes were committed by treachery; most by violence, which was kept secret, because the cries of those who were being violated or murdered could not be heard owing to the noise of drums and cymbals.

[39.9]This pestilential evil penetrated from Etruria to Rome like a contagious disease. At first, the size and extent of the City allowing more scope and impunity for such mischiefs, served to conceal them, but information at length reached the consul, mainly through the following channel. P. Aebutius, whose father had served in the cavalry and was dead, had been left under guardians. On their death he had been brought up under the care of his mother Duronia and his stepfather T. Sempronius Rutilus. The mother was completely in her husband's hands; and as the stepfather had so exercised his

guardianship that he was not in a position to give a proper account for it, he was anxious that his ward should either be put out of the way or placed at his mercy through his getting some hold upon him. One way of corrupting the youth's morals was through the Bacchanalia. The mother told the youth that she had made a vow on his behalf during an illness, namely, that as soon as he recovered she would initiate him into the Bacchic mysteries, and in that way would through the kindness of the gods discharge the vow by which she was bound. He must preserve his chastity for ten days, then after supper on the tenth day she would take him to a place set apart for the rite of initiation.

There was a freedwoman named Hispala Fecenia who, though she was a courtesan, was worthy of better things than the gains to which she had been accustomed from her girlhood, and by which she supported herself even after she had been manumitted. As their houses were near one another, an intimacy had sprung up between her and Aebutius, which was in no way injurious to either his reputation or his purse. She sought his company and his love unsolicited, and as his parents kept him close in every way, he was maintained by the girl's generosity. Her passion for him had gone so far that after her guardian had died, and she was no longer a ward, she begged the tribunes and the praetor to appoint a guardian for her. Then she could make a will and she constituted Aebutius her sole heir.

[39.10]With these proofs of her love they had no secrets from each other, and the youth told her in a jocular tone not to be surprised if he absented himself from her for some nights; he had a religious duty to perform, the discharge of a vow made while he was ill, and he intended therefore to be initiated into the Bacchic mysteries. On hearing this she was terribly upset and exclaimed, "Heaven forbid. Better for us both to die than that you should do this," and then invoked deadly curses on the heads of those who had advised him to take this course. The youth, astonished at her outburst and excitement, bade her spare her curses; it was his mother who had given him this command with the consent of his stepfather. "Your stepfather, then," she replied, "for, perhaps, it is not right to charge your mother with it, is by this act hurrying on the ruin of your modesty, your reputation, your hopes and your life." Still more astonished, he asked her what she meant. With a prayer to the gods

and goddesses to forgive her if, constrained by her affection, she disclosed what she ought to be silent about, she explained that when she was in service she had accompanied her mistress into that place of initiation, but had never gone near it when once she was free. She knew it to be a sink of every form of corruption, and it was a matter of common knowledge that no one had been initiated for the last two years above the age of twenty. As each person was brought in, he was handed over to the priests like a victim and taken into a place which resounded with yells and songs, and the jangling of cymbals and drums, so that no cry from those who were suffering violation could be heard. She then begged and implored him to get out of the affair in whatever way he could, and not to rush blindly into a place where he would first have to endure, and then to commit, every conceivable outrage. Until he had given his word to keep clear of these rites she would not let him go.

[39.11]After he reached home his mother brought up the subject of the initiation and told him what he had to do in connection with it on that day, and what on the following days. He informed her that he would do nothing of the kind; he had no intention of being initiated. His stepfather was present. The mother at once exclaimed, "He cannot pass ten nights away from Hispala's embraces; he is so intoxicated with the fascinations of that venomous serpent, that he has no respect for either his parent or his stepfather or the gods." Amid the objurgations of his mother on the one side and his stepfather on the other, he was finally, with the assistance of four slaves, driven out of the house. The youth betook himself to his aunt Aebutia, and explained why he had been expelled from his home, and at her suggestion laid the matter privately before the consul the following day. Postumius told him to come again in three days' time, and in the meantime inquired of Sulpicia, his mother-in-law, a grave and judicious woman, whether she knew an old woman called Aebutia living in the Aventine quarter. She replied that she knew her to be a woman of respectable and strictly moral character; on which the consul said that it was important that he should have an interview with her, and Sulpicia must send for her to see her. Aebutia came to Sulpicia, and the consul coming in as though by accident turned the conversation on to her brother's son. The woman burst into tears and began to lament the youth's misfortunes, robbed as he had been of his fortune by those who ought to have been the very last to do

so. He was, she said, at her house at the time, "he had been driven away by his mother because the honest and respectable youth refused - may the gods forgive me - to be initiated into what were commonly believed to be impure and obscene mysteries."

[39.12]As the consul considered that he had ascertained all that was necessary about Aebutius, and that the evidence was trustworthy, he dismissed Aebutia and asked his mother-in-law to send for Hispala, a freedwoman, who was well known round the Aventine, as there were some questions he wished to put to her. Hispala was alarmed at the message, and at being summoned into the presence of a woman of such high rank and character, without knowing the reason, and when she saw the lictors and the consul's attendants in the vestibule, she nearly fainted. She was conducted into an inner apartment where the consul and his mother-in-law were present, and the consul told her that there was nothing to be afraid of if she could make up her mind to speak the truth; she might trust the pledged word of such a woman as Sulpicia and his own promise of safety, but she must give him a description of what usually went on at the nocturnal Bacchic rites in the grove of Simila. On hearing this, the woman was seized with such a fright and a trembling in all her limbs that she could not open her lips. At last she recovered her nerves, and said that when quite a girl she had been initiated, together with her mistress, but since she had been manumitted, now some years ago, she knew nothing of what went on there. The consul commended her for having confessed that she had been initiated and begged her to be equally truthful in the rest of her story. She avowed that she knew nothing further, on which the consul warned her that she would not receive the same consideration and forbearance if she were confuted by some one else, as she would if she made a free confession, for the person who had heard these things from her had disclosed everything to him.

[39.13]The woman being convinced, and quite rightly, that Aebutius was the informer, flung herself at Sulpicia's feet and implored her not to let a conversation between a freedwoman and her lover be treated so seriously as to amount to treason. What she had told him was for the purpose of frightening, not because she really knew anything. Postumius was very angry, and told her that she must be imagining that she was joking with her lover, and not speaking in the house of a grave and august lady and in the presence of the consul. Sulpicia

raised the terrified woman from the floor, spoke soothingly to her and tried to quiet her. At length she became calm, and after bitterly reproaching Aebutius for the return he had made after all she had done for him, and declared that while she stood in great fear of the gods, whose occult mysteries she was revealing, she stood in much greater fear of men who would tear her to pieces if she turned informer. So she begged Sulpicia and the consul to remove her to some place outside the borders of Italy where she could pass the rest of her days in safety. The consul bade her be under no apprehension; he would see to it that she found a safe home in Rome. Then Hispala gave an account of the origin of these rites.

At first they were confined to women; no male was admitted, and they had three stated days in the year on which persons were initiated during the daytime, and matrons were chosen to act as priestesses. Paculla Annia, a Campanian, when she was priestess, made a complete change, as though by divine monition, for she was the first to admit men, and she initiated her own sons, Minius Cerinnius and Herennius Cerinnius. At the same time she made the rite a nocturnal one, and instead of three days in the year celebrated it five times a month. When once the mysteries had assumed this promiscuous character, and men were mingled with women with all the licence of nocturnal orgies, there was no crime, no deed of shame, wanting. More uncleanness was wrought by men with men than with women. Whoever would not submit to defilement, or shrank from violating others, was sacrificed as a victim. To regard nothing as impious or criminal was the very sum of their religion. The men, as though seized with madness and with frenzied distortions of their bodies, shrieked out prophecies; the matrons, dressed as Bacchae, their hair dishevelled, rushed down to the Tiber with burning torches, plunged them into the water, and drew them out again, the flame undiminished, as they were made of sulphur mixed with lime. Men were fastened to a machine and hurried off to hidden caves, and they were said to have been rapt away by the gods; these were the men who refused to join their conspiracy or take a part in their crimes or submit to pollution. They formed an immense multitude, almost equal to the population of Rome; amongst them were members of noble families both men and women. It had been made a rule for the last two years that no one more than twenty years old should be initiated; they captured those to be deceived and polluted.

[39.14]When she had finished giving her evidence, she fell on her knees and again begged the consul to send her abroad. He asked his mother-in-law to set apart some portion of her house where she could take up her abode. An upper room was assigned to her which was approached by a flight of steps from the street; these were blocked up and an entrance made from inside the house. All Fecenia's effects were at once transferred, and her household slaves brought in, and Aebutius was ordered to take up his quarters with a client of the consul's. As both his informants were now in his hands, Postumius reported the affair to the senate. Everything was explained as it occurred, the information which he had first received, and then that which he had obtained in answer to his questions. The senate were greatly alarmed for the public safety; these secret conspiracies and nocturnal gatherings were a danger to the State; and they were alarmed for themselves, lest their own relations and friends might be involved. They passed a vote of thanks to the consul for having conducted his investigations so carefully and without creating any public disturbance. Then, arming the consuls with extraordinary powers, they placed in their hands the inquiry into the proceedings at the Bacchanalia and the nocturnal rites. They were to take care that Aebutius and Fecenia suffered no injury for the information they had given, and they were to offer rewards to induce other informers to come forward. Those who presided over these mysteries were to be sought out not only in Rome, but everywhere where people were in the habit of assembling, so that they might be delivered up to the consuls. Edicts were published in Rome and throughout Italy forbidding any who had been initiated from meeting together to celebrate their mysteries or performing any rites of a similar character, and above all, strict inquiry was to be made in the case of those who attended gatherings in which crime and debauchery had occurred. These were the measures which the senate decreed. The consuls sent orders to the curule aediles to search out all the priests of those rites and, when they were arrested, to keep them in such custody as they thought best until their trial. The plebeian aediles were to see that no rites were performed in open day; the police commissioners were instructed to post watches throughout the City and take care that no nocturnal gatherings took place; and as a precaution against fires, five men were appointed to assist the commissioners and take charge of the buildings assigned to them on this side the Tiber.

[39.15]When the various officials had been told off to their duties, the consuls convened the Assembly and mounted the Rostra. After the usual prayers with which proceedings are opened before the magistrates address the people, the consul began thus: "In no meeting of the Assembly has this solemn appeal to the gods been so appropriate and, I would add, so necessary. For it reminds you that it is these gods whom your ancestors ordained that we should worship, reverence, and pray to; not those who have driven the minds of people enslaved by foul and foreign superstitions, as though by goading furies, into every form of crime and every kind of lust. I am at a loss to know how far I ought to keep silence, and how far I ought to go, in what I have to say. I fear, if you remain in ignorance of anything, that I may leave an opening for neglect, whilst, if I disclose everything, I may create too much alarm. Whatever I say, you may be certain that it does not come up to the enormity and horror of the thing. We shall make it our business to say enough to put you on your guard. That the Bacchanalia have for some time been going on throughout Italy and are now practiced in many parts of the City you have, I am sure, learnt not only by report, but also by the nightly noises and yells which resound all over the City; but I do not think you know what it all means. Some of you fancy that it is a particular form of worship; others think that it is some permissible kind of sport and dalliance; its real nature is understood by few. As to their numbers, you would inevitably be very much alarmed if I were to say that there are many thousands of them, unless I went on to explain who and what sort of people they are.

"In the first place, then, women form the great majority, and this was the source of all the mischief. Then there are the males, the very counterparts of the women, committing and submitting to the foulest uncleanness, frantic and frenzied, driven out of their senses by sleepless nights, by wine, by nocturnal shouting and uproar. The conspiracy does not so far possess any strength, but its numbers are rapidly increasing day by day, and its strength is growing. Your ancestors would not have even your Assembly meet in an irregular and haphazard way, but only when the standard was hoisted on the citadel and the centuries in their array marched out, or when the tribunes had given notice of a meeting of the plebs, or the Assembly had been duly convened by one of the magistrates. Whenever the people met together there was bound to be a lawful authority to

preside over it. Have you any idea what these nocturnal gatherings, these promiscuous associations of men and women are? If you knew at what age those of the male sex are initiated, you would feel not only compassion for them, but shame as well. Do you consider, Quirites, that young men who have taken this unhallowed oath are to be made into soldiers? That after the training they have received in that shrine of obscenity they are to be entrusted with arms? Shall these men, reeking with their impurity and that of those round them, wield their swords in defence of the chastity of your wives and children?

[39.16]"The mischief would not be serious, if they had only lost their manhood through their debauchery - the disgrace would fall mainly upon themselves - and had kept from open outrage and secret treason. Never has there been such a gigantic evil in the commonwealth, or one which has affected greater numbers or caused more numerous crimes. Whatever instances of lust, treachery, or crime have occurred during these last years, have originated, you may be perfectly certain, in that shrine of unhallowed rites. They have not yet disclosed all the criminal objects of their conspiracy. So far, their impious association confines itself to individual crimes; it has not yet strength enough to destroy the commonwealth. But the evil is creeping stealthily on, and growing day by day; it is already too great to limit its action to individual citizens; it looks to be supreme in the State. Unless, Quirites, you take precautions, this Assembly legally convened by a consul in the daylight will be confronted by another assembly gathered together in the darkness of the night. Now they, disunited, fear you, a united Assembly, but when you are dispersed to your homes and your farms they will hold their assembly and plot their own safety and your ruin. It will then be your turn, scattered as you will be, to fear them in their united strength.

"You ought, therefore, every one of you, to pray that your friends may have preserved their good sense. If unbridled and maddening lust has swept any one away into that whirlpool, you must judge him as belonging not to you but to those whom he has joined as fellow-conspirators in every kind of wickedness. I do not feel sure that even some of you may not have been misled. For there is nothing which wears a more deceptive appearance than a depraved superstition. Where crimes are sheltered under the name of religion, there is fear lest in punishing the hypocrisy of men we are doing violence to

something holy which is mixed up with it. From these scruples you are delivered by numberless decisions of the pontiffs, resolutions of the senate and responses of the augurs. How often in the times of your fathers and grandfathers has the task been assigned to the magistrates of forbidding all foreign rites and ceremonies, prohibiting hedge-priests and diviners from entering either the Forum, the Circus, or the City, seeking out and burning all books of pretended prophecies, and abolishing every sacrificial ritual except what was accordant with Roman usage! Those men were masters of all human and divine love, and they believed that nothing tended so much to destroy religion as the performance of sacrificial rites, not after the manner of our fathers, but in fashions imported from abroad. I thought I ought to tell you this beforehand, so that none of you may be distressed by fears on the score of religion when you see us demolishing the seats of the Bacchanalia and dispersing their impious gatherings. All that we shall do will be done with the sanction of the gods and in obedience to their will. To show their displeasure at the insult offered to their majesty by these lusts and crimes they have dragged them out of their dark hiding-places into the light of day, and they have willed that they shall be exposed not to enjoy impunity, but to be punished and put an end to. "The senate has entrusted my colleague and myself with extraordinary powers for conducting an inquiry into this matter. We shall make an energetic use of them, and we have charged the subordinate magistrates with the care of the night-watches throughout the City. It is only right that you should show equal energy in doing your duty in whatever position you may be placed and whatever orders you receive, and also in making it your business to see that no danger or disturbance arise through the secret plots of the criminals."

[39.17] They then ordered the resolutions of the senate to be read, and offered a reward for any one who should bring a guilty person before the consuls, or give in his name if he were not forthcoming. In the case of any one who had been denounced and then taken to flight, they would fix a day for him to answer the charge, and if he failed to appear, he would be condemned in his absence; for any one who was abroad at the time they would extend the date should he wish to make his defence. They then published an edict forbidding any one to sell or buy anything for the purpose of flight, or to receive, harbour, or in any way assist those who fled. After the Assembly had

broken up, the whole of the City was thoroughly alarmed. Nor was the alarm confined within the walls of the City or the frontiers of Rome; there was uneasiness and consternation throughout the whole of Italy when letters began to arrive announcing the resolutions of the senate, the proceedings in the Assembly and the edict of the consuls. During the night following the disclosure of the affair in the Assembly, guards were posted at all the gates, and many who tried to escape were arrested by the police commissioners and brought back. Many names were handed in, and some of these, both men and women, committed suicide. It was asserted that more than 7000 of both sexes were implicated in the conspiracy. The ringleaders were, it appears, the two Atinii, Marcus and Caius, both members of the Roman plebs; L. Opiternius of Falerium, and Minius Cerrinius, a Campanian. They were the authors of all the crime and outrage, the high priests and founders of the cult. Care was taken that they should be arrested as soon as possible, and when brought before the consuls they at once made a complete confession.

[39.18]So great, however, was the number of those who fled from the City that law-suits and rights of property were in numerous cases lost by default, and the praetors were compelled through the intervention of the senate to adjourn their courts for a month, to allow the consuls to complete their investigations. Owing to the fact that those whose names were on the list did not answer to the summons, and were not to be found in Rome, the consuls had to visit the country towns and conduct their inquiries and try the cases there. Those who had simply been initiated, who, that is, had repeated after the priest the prescribed form of imprecation which pledged them to every form of wickedness and impurity, but had not been either active or passive participants in any of the proceedings to which their oath bound them, were detained in prison. Those who had polluted themselves by outrage and murder, those who had stained themselves by giving false evidence, forging seals and wills and by other fraudulent practices, were sentenced to death. The number of those executed exceeded the number of those sentenced to imprisonment; there was an enormous number of men as well as women in both classes. The women who had been found guilty were handed over to their relatives or guardians to be dealt with privately; if there was no one capable of inflicting punishment, they were executed publicly. The next task awaiting the consuls was the

destruction of all the Bacchanalian shrines, beginning with Rome, and then throughout the length and breadth of Italy; those only excepted where there was an ancient altar or a sacred image. The senate decreed that for the future there should be no Bacchanalian rites in Rome or in Italy. If any one considered that this form of worship was a necessary obligation and that he could not dispense with it without incurring the guilt of irreligion, he was to make a declaration before the City praetor and the praetor was to consult the senate. If the senate gave permission, not less than one hundred senators being present, he might observe those rites on condition that not more than five persons took part in the service, that they had no common fund, and that there was no priest or conductor of the ceremonies.

[39.19] Another matter connected with this was brought forward by the consul Q. Marcius and made the subject of a decree, namely, the cases of those whom the consuls had employed as informers. The question was left for the senate to deal with as soon as Sp. Postumius had closed his inquiry and returned to Rome. The senate decided that Minius Cerrinius, the Campanian, should be sent in chains to Ardea, and that the magistrates there should be warned to keep him in custody under close observation to prevent not only his escape but any chance of his committing suicide. After some time Sp. Postumius returned to Rome. He brought up the question of the rewards to be given to P. Aebutius and Hispala Fecenia, as it was owing to them that the Bacchanalia had been detected. The senate decided that the City praetor should give each of them 100,000 ases out of the treasury, and that the consul should arrange with the tribunes to propose to the plebs on the first opportunity that P. Aebutius should be exempted from military conscription, and not compelled, unless he wished, to serve in either the infantry or the cavalry. To Fecenia was granted the right of disposing of her property in any way she chose, of marrying out of her gens, and selecting her own guardian, just as though a husband had left her this power in his will. She was also at liberty to marry a free-born citizen, and whoever married her should not suffer in reputation or position. Moreover, the consuls and praetors then in office, and those who should succeed them, were to make it their care that no harm should happen to the woman but that she should live a safe life. These proposals the senate considered equitable and thought it right that they should be adopted.

They were submitted to the plebs and the resolution of the senate was confirmed, and the consuls were to secure the impunity of the other informers and decide upon their rewards.

[39.20]By this time Q. Marcius had completed his inquiry throughout the district assigned to him, and was preparing to start for his province in Liguria. He was reinforced by 3000 Roman infantry and 150 cavalry, together with a contingent from the Latin allies of 5000 infantry and 200 cavalry. This province had been decreed to his colleague in conjunction with him, and he, too, received reinforcements of equal strength. They took over the armies which the previous consuls had commanded, and on the authority of the senate enrolled two fresh legions in addition. They required the Latin allies to furnish 20,000 infantry and 800 cavalry, and called up 3000 Roman infantry and 200 cavalry as well. The whole of this force, with the exception of the legions, was destined to reinforce the armies in Spain. While the consuls were preoccupied with their judicial investigations they appointed T. Maenius to superintend the levying of the troops. Q. Marcius was the first to complete his inquiry, and he at once advanced against the Apuani. Whilst he was following them into the depths of secluded passes, where they were in the habit of sheltering and concealing themselves, the enemy seized a narrow defile and hemmed him in. Four thousand men were lost, three standards belonging to the second legion and eleven ensigns from the Latin allies fell into the enemy's hands, together with a large quantity of arms which the fugitives, finding that they hampered their flight through the forest tracks, had everywhere thrown away. The enemy stopped their pursuit before the Romans stopped their flight. As soon as the consul got clear of the enemy's country, he dispersed his army in friendly territory to prevent the extent of his losses from being known. He was not, however, able to efface the memory of his ill-success. The pass out of which the Ligurians had chased him was afterwards known as the "Marcian Pass."

[39.21]No sooner had the news from Liguria become generally known, than despatches were received from Spain which aroused mingled feelings of joy and grief. C. Atinius, who two years before had gone to that province as *propraetor*, fought a pitched battle with the Lusitanians in the neighbourhood of Hasta. As many as 6000 of the enemy were killed; the rest were routed and driven out of their camp. Then he led the legions to an attack on the fortified town of

Hasta which he captured with as little difficulty as he had met with in the capture of the camp. But while he was approaching the walls somewhat incautiously, he was struck by a missile and in a few days died of his wound. When the despatch announcing his death was read, the senate were of opinion that a courier ought to be sent to overtake the praetor C. Calpurnius at the port of Luna and inform him that the senate advised him to hasten his departure, so that the province might not be left without an administrator. The courier reached Luna in four days; Calpurnius had started a few days previously. In Hither Spain there was also fighting; L. Manlius Acidinus had a battle with the Celtiberi just at the time when C. Atinius reached the province. The battle was undecided, except so far as the Celtiberi shifted their camp in the following night and the Romans were allowed by the enemy to bury their dead and collect the spoils. A few days later the Celtiberi, having collected a larger force, took the aggressive and attacked the Romans near the town of Calagurris. There is no explanation as to why, though their numbers were increased, they proved to be the weaker side. They were worsted in the battle; 12,000 were killed, 2000 made prisoners, and the Romans gained possession of their camp. If his successor had not stopped Calpurnius' victorious advance, the Celtiberi would have been subjugated. The new praetors took both their armies into winter quarters.

[39.22]At the time when this intelligence was received from Spain, the "Taurii" Games were celebrated as a special religious observance. These were followed by the Games which M. Fulvius had vowed in the Aetolian war and were exhibited for ten days. Many actors from Greece came to do him honour, and athletic contests were witnessed for the first time in Rome. The hunting of lions and panthers formed a novel feature, and the whole spectacle presented almost as much splendour and variety as those of the present day. A shower of stones, lasting three days, fell at Picenum, and fire from the sky was said to have appeared in various places and singed many persons' garments. In consequence of these portents, special religious services were held for nine days. An additional day's service was ordered by the pontiffs owing to the temple of Ops on the Capitol being struck by lightning. The consuls sacrificed full-grown victims and purified the City. Almost at the same time a report came from Umbria of the discovery of a child there, nine years old, who was a hermaphrodite. Horrified

at such a portent the auspices gave orders for it to be removed from Roman soil as speedily as possible and put to death.

During the year some transalpine Gauls moved into Venetia without doing any damage or attempting hostilities. They took possession of some land not far from where Aquileia now stands on which to build a town. Roman envoys were sent across the Alps to inquire about this proceeding, and they were informed that the migration had taken place without the authority of their tribe, nor did they know what they were doing in Italy. L. Scipio now exhibited for ten days the Games which he said that he had vowed in the war with Antiochus; the cost was met by money contributed by the kings and cities of Asia. According to Valerius Antias, he was sent, after his condemnation and the sale of his property, as special commissioner to settle the differences between Antiochus and Eumenes, and whilst he was on this mission contributions in money were made for him, and actors gathered together from all parts of Asia. He had made no mention of these Games after the war in which he said that he had vowed them; it was only after his mission that they came before the senate.

[39.23]As the year was now closing, Q. Marcius was preparing to lay down his office while still abroad; S. Postumius, who had completed the investigations which he had conducted with the most scrupulous impartiality, held the election. The new consuls were Ap. Claudius Pulcher and M. Sempronius Tuditanus. The next day the following were elected praetors: P. Cornelius Cethegus, A. Postumius Albinus, C. Afranius Stellio, C. Atilius Serranus, L. Postumius Tempsanus and M. Claudius Marcellus. S. Postumius had reported that whilst engaged on his enquiries he had traversed both coasts of Italy, and had found two deserted colonies, Sipontum on the Adriatic and Buxentum on the Mediterranean. Three commissioners were appointed by the City praetor to enrol colonists for these places, namely, L. Scribonius Libo, M. Tuccius and Cn. Baebius Tamphilus. The war which was threatening with Perseus and the Macedonians did not owe its origin to what most people imagined, nor was it due to the action of Perseus himself. Its beginnings were prepared by Philip, and had he lived longer, he would himself have undertaken it. When the terms of peace were imposed upon him after his defeat, the thing which exasperated him most was the interference of the senate with his claim to punish those of his subjects who had revolted

from him during the war. In drawing up the conditions of peace Quinctius had left this point for further consideration, and he was not without hopes of making his claim good. A second grievance which he felt bitterly was that when Antiochus was worsted at Thermopylae and the two armies separated, the consul advancing against Heraclea and Philip against Lamia, he was ordered to retire from the walls of Lamia, after the capture of Heraclea, and the town was surrendered to the Romans. The Aetolians were rallying from their flight at Naupactus, and the consul, hastening there, mollified Philip's anger by permitting him to make war on Athamania and Amynder and annex the cities, which the Aetolians had taken from the Thracians, to his own dominions. He expelled Amynder from Athamania without much trouble and took some of his cities. He also reduced Demetrias, a strong city and useful in every respect, and brought the tribe of the Magnetes beneath his sway. In Thrace, too, there were some cities in a state of turmoil owing to the quarrels of their leaders and the misuse of a liberty to which they were unaccustomed, and these he secured by supporting the weaker side in these domestic conflicts.

[39.24] These successes for the time being allayed the king's anger against the Romans. Never, however, was his attention diverted from amassing a force during the years of peace which he could, whenever a favourable opportunity presented itself make use of in war. He raised the taxes which were levied on agricultural produce and increased the amount of the import and export duties; he also re-opened old and disused gold and silver mines and started new ones. In order to make good the loss of population caused by his wars, he made provision for fresh growths from the stock by compelling all his subjects to marry and bring up children. He further transported a large body of Thracians into Macedonia, and in these ways, during all the time he was undisturbed by alarms of war, he devoted all his thoughts and care to increasing the power and resources of his realm. Then fresh incidents occurred to rekindle his indignation against the Romans. The Thessalians and Perrhaebians protested against his retaining possession of their cities; envoys from Eumenes complained of the forcible occupation of towns in Thrace and the removal of the population into Macedonia. The reception given to these remonstrances made it clear that they would not be ignored. What created the deepest impression on the senate was the

information they had received that he was contemplating the seizure of Aenus and Maronea; they were less interested in the Thessalians. Delegates also appeared from Athamania, the burden of whose complaint was not the loss of a part of their country but the subjection of the whole of Athamania to the power and rule of the king. Some Maronite refugees were present who had been expelled because they had tried to defend their liberty against the king's garrison. They declared that not only Maronea but Aenus also was in Philip's power. Envoys came from Philip to defend him against these charges. They affirmed that nothing had been done without the sanction of the Roman generals; that the cities of the Thessalians and Perrhaebians and Magnetes, as well as the people of Athamania with their king Amynder, were in the same case as the Aetolians. For when after the expulsion of Antiochus the consul was engaged in the reduction of the cities of Aetolia, he sent Philip to take the cities in question; they were his by the rights of war. The senate would not come to any decision in the king's absence, and accordingly they sent Q. Caecilius, M Baebius Tamphilus and Ti. Sempronius, as special commissioners, to settle the dispute. Previous to their arrival, notice was sent to all the cities concerned that a council would be convened at Tempe in Thessaly.

[39.25]When all had taken their seats - the Roman commissioners appearing as arbitrators, the Thessalians, Perrhaebians and Athamanians as open accusers, and Philip, who had to listen to the charges against him, as defendant - the leaders of the different delegations revealed their characters in the attitude they assumed towards Philip, whether of sympathy or of more or less violent antagonism. The dispute turned upon the status of the cities of Philippopolis, Tricca, Phaloria, Eurymenae, and the other towns in their neighbourhood. Did they belong of right to the Thessalians, though they had been forcibly seized and taken possession of by the Aetolians - for it was admitted that it was from the Aetolians that Philip had wrested them - or had they always been Aetolian towns? It was argued that Acilius had granted them to the king on the understanding that they belonged to the Aetolians, and had joined their League voluntarily, not under the compulsion of arms. A similar question arose with regard to the towns in Perrhaebia and Magnesia, for the Aetolians, by seizing all these towns as they had opportunity, had made their rightful position uncertain. To these matters in

dispute were added the complaints of the Thessalians, who pointed out that if those towns were restored to them as they were, he would restore them plundered and deserted. Besides those lost through the accidents of war, he had carried off 500 of their young men to Macedonia, where they were wasting their energies in servile tasks, and whatever he was compelled to restore to the Thessalians, he took care to render of no further use. In former times the one mercantile port which the Thessalians had access to was Phthian Thebes, from which they derived profit and revenue. The king fitted out a number of merchant ships there which made their voyages past Thebes to Demetrias, and so diverted all sea-borne traffic from that port. Now things had come to such a pass that he did not shrink from doing violence to their envoys, who were protected by the law of nations; he had waylaid and captured them on their way to T. Quinctius. The whole of Thessaly was in consequence so intimidated that no one dared to open his mouth, either in their cities or in their national council. The Romans, the authors of their liberties, were far away; an oppressive tyrant was close at their side, making it impossible for them to enjoy the benefits which the people of Rome had conferred upon them. What liberty was there, where there was no liberty of speech? Even now, whilst relying on the protection of the commissioners, they were uttering groans rather than coherent words. Unless the Romans devised some means of checking Philip's audacity and relieving the fears of the Greek neighbours of Macedonia, his defeat and their liberation would be in vain. If he does not obey, he must, like a stubborn horse, be coerced with a severer bit. These bitter invectives were from those who spoke last; the former speakers had softened his resentment by asking him to pardon their speaking in defence of their liberties. They expressed a hope that he would lay aside the harshness of a master and reconcile himself to becoming their friend and ally, and so follow the example of the Romans who prefer to extend their alliances through affection and not through fear. After the Thessalians, the Perrhaebians stated their case. They claimed Gonnocondylum, which Philip had renamed Olympias, as belonging to Perrhaebia, and pleaded for its restoration. The same request was made with regard to Malloea and Ericinium. The Athamanians sought to recover their independence and the fortified posts of Athenaeum and Poetneum.

[39.26]Philip's role was to appear as accuser rather than defendant. He began by charging the Thessalians with seizing Menelais in Dolopia by force of arms, a place which belonged to his dominions, and in conjunction with the Perrhaebians capturing also Petra in Pieria. Even Xynias, beyond all doubt an Aetolian town, had been forced to join their confederacy, and without a shadow of right they had made themselves masters of Parachelois, which was under Athamania. As to the charges brought against him of waylaying envoys, of causing the fulness or emptiness of seaports, the latter was absurd; he was not responsible for the preference which traders or skippers showed for certain ports; and as to the former, it was quite alien from his character. Through all these years, charges had been continually made against him either to the Roman generals or to the Roman senate. Who had ever been injured even by a word? "They said that a plot was once formed against those who were going to Quinctius, but they did not go on to say what happened to them. These are the accusations of men who are hunting for false charges, since they have nothing true to go upon. The Thessalians in their insolence were shamelessly abusing the indulgence of the people of Rome; like men who after a long thirst drank wine too eagerly, they were intoxicated with liberty. Like slaves suddenly and unexpectedly manumitted, they show their freedom by putting no constraint on their speech and language and showering abuse on their late masters. Then in a towering rage he exclaimed: "The evening of all days has not yet come!" The Thessalians and even the Romans took this as a threat against themselves. When the murmurs of disapprobation at these words had died away, he replied to the Perrhaebian and Athamanian envoys, and maintained that the cities which they represented were in the same position as the others; Acilius and the Romans had given them to him at a time when they belonged to the enemy. If the donors wished to take away what they had given, he knew he must give them up, but in that case they would be ingratiating themselves with fickle and useless allies by doing an injustice to a more deserving and faithful friend. Nothing evoked a more short-lived gratitude than the gift of liberty, especially among those who were ready to abuse and corrupt it. After hearing all sides the commissioners announced their decision. The king's garrisons must be withdrawn from the cities in dispute, and his kingdom limited to the ancient frontiers of Macedonia. As for the complaints which each side made against the other, a court of arbitration must

be formed to settle the differences between these peoples and the Macedonians.

[39.27] Leaving the king intensely annoyed, the commissioners proceeded to Thessalonica to consider the question of the cities of Thrace. Here they met the envoys of Eumenes, who asserted that if the Romans wished Aenus and Maronea to be free, their sense of honour forbade them to say more, unless it was to warn them to leave those people in the enjoyment of a real and not merely nominal liberty, and not to allow their boon to be intercepted by some one else. But if they thought the question of the Thracian cities comparatively unimportant, it would be much more reasonable that those which had been under Antiochus should be held as prizes of war by Eumenes rather than by Philip. This would be a return to Eumenes for the services of his father Attalus during the war which the Romans waged against this same Philip, and also for what he had himself done in sharing all their toils and dangers on land and sea. Moreover, Eumenes had the decision of the ten commissioners in his favour, for in giving him the Chersonese and Lysimachia they certainly gave him Aenus and Maronea as well, for these two places owing to their proximity formed appendages as it were of the larger gift. "What service rendered to the Roman people, or what sovereign right could justify Philip in forcing his garrison on these cities, lying as they do so far from the frontiers of Macedonia? Let the Maronites be called in, then the commissioners will learn everything about the status of those cities." The Maronites were then called in. They told the commissioners that the king's troops were not confined to one part of the city, as in other places, but were dispersed everywhere; the city was full of Macedonians. The king's adherents were complete masters; they alone were allowed to speak in the senate and the public assembly; they secured all the posts of honour for themselves and their friends. Every respectable citizen who had any regard for liberty and law was either expelled from his native place or, unhonoured, and at the mercy of the mob, was compelled to remain silent. Briefly explaining what were their legal boundaries, they stated that when Q. Fabius Labeo was in that district he fixed the old "king's road," which goes up to Parorea in Thrace and nowhere descends to the sea, as Philip's boundary line; Philip subsequently constructed a new road by which he took in the cities and lands of the Maronites.

[39.28]Philip took a very different course in his reply from that which he adopted towards the Thessalians and Perrhaebians. "My contention," he began, "is not with the Maronites or with Eumenes, but with you, Romans. I have for some time perceived that I shall get no fair treatment from you. I thought it just and right that the cities of the Macedonians which revolted from me during the suspension of hostilities should be restored to me; not that these would have been a great addition to my kingdom, for they are small places situated on the extreme frontiers, but because such an example would have gone far to restrain the rest of the Macedonians. This has been refused me. During the Aetolian war I was instructed by Manius Acilius to attack Lamia, and when after long and weary siege operations and fighting I was at last surmounting the walls, and the city was all but taken, the consul recalled me, and compelled me to draw off my troops. As some consolation for this injustice, I was allowed to seize some places in Thessaly, Perrhaebia and Athamania - forts rather than cities. Those very places you, Q. Caecilius, took from me a few days ago.

"The envoys of Eumenes actually assumed just now, as a matter beyond doubt, that it would be more equitable for Eumenes to hold the places which belonged to Antiochus, than that I should do so. I take a very different view. Unless the Romans had - I will not say conquered, but even - undertaken that war, Eumenes could not have remained on his throne. So it is he who is indebted to you, not you to him. So far was any part of my kingdom from being in danger, that when Antiochus sought to purchase my support by the promise of 3000 talents, 50 decked ships, and all the cities of Greece which he had previously held, I rejected his offer and declared myself his enemy even before Manius Acilius landed his army in Greece. In concert with him I took whatever part in the war he assigned to me, and when his successor, Lucius Scipio, decided to take his army to the Hellespont overland, I not only allowed him a free passage through my dominions, but I constructed roads, built bridges and furnished supplies, and this not through Macedonia only, but through Thrace as well, where amongst other things peace had to be secured from the barbarians. In return for this proof of my goodwill towards you - I will not call it meritorious service - what is the right thing to do, Romans: to augment and amplify my kingdom by your generosity, or to rob me as you are now doing of what I hold, whether

by my own right or by your liberality? The Macedonian cities which, you admit, formed part of my dominions are not restored. Eumenes has come here to despoil me as though I were Antiochus, and actually has the impudence to put forward the decision of the ten commissioners as a cloak for his dishonest intrigues; the very decision by which he can be most effectually confuted. It is quite clearly stated there that the Chersonese and Lysimachia are given to Eumenes. Where, pray, are Aenus and Maronea and the cities of Thrace mentioned? Is he going to get from you what he did not dare to ask from them, as though they had granted it? It is a matter of some importance to me in what light you regard me. If you have made up your minds to persecute me as an enemy, go on as you have begun; but if you have any feeling of regard for me as a royal friend and ally, do not judge me deserving of so great an injustice."

[39.29]The king's address made a considerable impression on the commissioners. Their reply was a compromise; nothing was decided. If those cities were given to Eumenes by the decision of the ten commissioners, they said, they would make no change; if Philip had taken them in war, he should hold them as the prize of war; if neither of these proved to be the case, the question must be left to the senate. In order that matters might remain as they were, the garrisons must be withdrawn from those cities. These were the main reasons why Philip turned against the Romans. The war was not started by his son Perseus on any fresh ground; it might be regarded as a legacy from his father. At Rome there was no suspicion of a war with Macedonia. The proconsul L. Manlius had returned from Spain. The senate met in the temple of Bellona, and he asked to be allowed to celebrate his triumph. The magnitude of his operations justified his request, but precedent was against it; the immemorial practice had been that no commander should enjoy a triumph unless he had brought back his army, or unless he left to his successor a province thoroughly subjugated and pacified. However, the intermediate honour was allowed to Manlius; he was to enter the City in ovation. In his procession were borne 52 golden crowns, 132 pounds of gold, and 16,300 pounds of silver, and he announced in the senate that his quaestor, Q. Fabius, was bringing 10,000 pounds of silver and 80 pounds of gold, and this also he would place in the treasury. There was a wide-spread movement amongst the slaves in Apulia this year. The herdsmen had entered into a conspiracy and were making the

highroads and public pastures insecure through acts of brigandage. The praetor L. Postumius, who was administering the district from Tarentum, made a strict and close investigation, and sentenced as many as 7000 men. Many took to flight and many were executed. The consuls who had been for a long time detained in the City by the enrolment of troops departed at last for their provinces.

[39.30]As soon as their troops left their winter quarters, the two praetors, C. Calpurnius and L. Quinctius, joined their forces in Baeturia, and as the enemy were encamped in Carpetania they advanced thither, prepared to carry out their operations in mutual concert. A fight began at a spot not far from the cities of Diplo and Toletum between foraging parties, who were reinforced from both camps, and gradually the whole of the two armies were drawn out to battle. In this tumultuary conflict the enemy were helped by their knowledge of the country and the nature of the fighting. The two Roman armies were routed and driven back to their camp. The enemy did not press their demoralised adversaries. The Roman commanders, fearing lest the camp might be stormed on the morrow, withdrew their armies in silence during the night. The Spaniards formed in battle-array at dawn and marched up to the rampart; surprised at finding the camp empty, they entered it and appropriated what had been left behind in the confusion of the night. After this they returned to their own camp and remained inactive for some days. The losses of the Romans and the allies in the battle amounted to 5000, and the enemy armed themselves with the spoils taken from their bodies. Then they moved on to the Tagus.

The Roman generals in the meantime had spent their whole time in drawing Spanish troops from the friendly cities and restoring the courage of their men which had been so shaken in the battle. When they considered that they were strong enough and the soldiers were asking that they might meet the enemy and wipe out their disgrace, they moved forward and fixed their camp at a distance of twelve miles from the Tagus. Then, taking up the standards and forming into a closed square, they reached the Tagus at daybreak. The enemy camp was on a hill on the other side of the river. There were two places where the river was fordable, and the armies were promptly led across - Calpurnius on the right and Quinctius on the left. The enemy remained quiet - taken aback at the sudden advance of the Romans and making up their minds what to do - when they might

have attacked the Romans and thrown them into confusion during the passage of the river. The Romans meanwhile had transported their baggage across and placed it all together. There was not space enough for an entrenched camp, so seeing the enemy in motion, they deployed into line of battle. Two legions, the fifth from Calpurnius' army and the eighth under Quinctius, formed the centre - the main strength of the army. The ground was level and open up to the hostile camp; there was no fear of surprise or ambush.

[39.31]When the Spaniards saw the two Roman divisions on their side of the river, they decided to engage them before they could form a united front, and swarming out of their camp they rushed down to battle. The fighting began very fiercely, as the Spaniards were full of spirit after their recent victory, and the Romans were smarting under their unwonted humiliation. The Roman centre, formed by two of the bravest legions, fought most gallantly, and the enemy finding themselves unable to dislodge them in any other way, formed themselves into a wedge and thus massed, the ranks behind always more numerous than those in front, they forced the centre back. When he saw that the line was in trouble, Calpurnius sent two of his staff, T. Quinctilius Varus and L. Juventius Thalna, one to each legion, to stimulate their courage, and warn them that all hopes of victory or of keeping their hold on Spain rested with them; if they gave way, not a man would ever see the other side of the Tagus, let alone any return to Italy. He, himself, with the cavalry, made a short detour and charged the flank of the enemy's wedge as it was pressing back the centre, and Quinctilius delivered a similar charge on the other side. But the cavalry under Calpurnius fought with much the greater determination, and he, himself, most of all. He was the first to strike down an enemy, and he rode so far into the hostile ranks that it was difficult to recognise to which side he belonged. The praetor's conspicuous courage fired the cavalry, and the cavalry fired the infantry. The leading centurions who saw the praetors in the midst of the enemy's weapons felt that their honour was at stake; they each urged on their standard-bearers, shouting to them to carry their standards forward, and then called upon the soldiers to follow them up. The battle-shout rose again from the whole army, and they dashed forward as if they were charging from higher ground. Just like a mountain torrent they bore down and swept away their unnerved foe, and as rank after rank pressed on, they carried all before them.

The cavalry pursued the fugitives up to their camp, and mingling with the crowded enemy forced their way into it. Here a fresh battle began with those left to guard the camp, and the Roman troops were obliged to dismount and fight on foot. The fifth legion now joined the combatants, and the rest came up as fast as they could. The Spaniards were cut down everywhere throughout the camp; not more than 4000 men escaped. Of these about 3000, who had retained their arms, occupied a mountain in the neighbourhood, and the rest, only half-armed, straggled about the country. The enemy had numbered more than 35,000, out of whom this small number alone survived the battle. One hundred and thirty-two standards were captured. Of the Romans and allies little more than 600 fell, and of the native auxiliaries about 150. It was mainly the loss of five military tribunes and a few of the Roman cavalry that gave the victory the appearance of a bloody one. As they had not ground sufficient for their own camp, they remained in the enemy's camp. The next day Calpurnius addressed words of thanks and praise to the cavalry, and presented them with ornamental trappings for their horses. He told them that it was mainly due to them that the enemy had been routed, and his camp captured. Quinctius presented his cavalry with chains and brooches. The centurions also in both armies received rewards, especially those who had been posted in the centre.

[39.32]When the enrolment of troops and the other business which kept the consuls in Rome was finished, they led the army into Liguria. Sempronius advanced from Pisae against the Apuani, and after devastating their fields and burning their villages, opened up the pass leading to the river Macra and the port of Luna. The enemy took up their position on a mountain range, where their ancestors had long been settled, and though the approach was extremely difficult they were driven off. In his good fortune and courage Appius Claudius was not behind his colleague. He won several victories over the Ingauni, took six of their towns and many thousands of the inhabitants. Forty-three of the chief instigators of the war were beheaded. The time for the elections was now approaching. It fell to Sempronius to conduct them, but Claudius reached Rome before him, as his brother Publius was standing for the consulship. The other patrician candidates were L. Aemilius, Q. Fabius and Ser. Sulpicius Galba. They had been unsuccessful in previous contests, and they considered that they had all the stronger claim to the honour

because it had been denied them before. Only one consul could be a patrician, and this lent additional keenness to the contest. The plebeian candidates were all popular men: L. Porcius, Q. Terentius Culleo and Cnaeus Baebius Tamphilus, and they, too, had had their hopes of attaining the distinction deferred by previous defeats. Out of all the candidates, Claudius was the only new one. It was generally looked upon as a certainty that Q. Fabius Labeo and L. Porcius Licinius would be the successful candidates. But Claudius, unattended by his lictors, was bustling about with his brother in every corner of the Forum, notwithstanding the loud remonstrances of his opponents and of most of the senators, who told him to bear in mind that he was the consul of the people of Rome rather than that he was Publius' brother. "Why," they asked, "did he not take his seat on the tribunal and show himself as a witness or silent spectator of the proceedings?" In spite of all, he could not be restrained from his zealous exertions. The elections were from time to time disturbed by heated quarrels between the tribunes of the plebs; some were fighting against the consul, and some in his support. At last Appius succeeded in defeating Fabius and carrying his brother in. Contrary to his own expectation and everybody else's, P. Claudius Pulcher was elected consul. L. Porcius Licinius gained his position because he had conducted his canvass amongst the plebeians in a temper of moderation, not with the violence of a Claudius. Those who were elected praetors on the following day were C. Decimius Flavus, P. Sempronius Longus, P. Cornelius Cethegus, Q. Naevius Matho, C. Sempronius Blaesus and A. Terentius Varro. These were the main incidents at home and abroad during the consulship of Appius Claudius and M. Sempronius.

[39.33]The commissioners who had been sent to adjust the differences between Philip and Eumenes and the cities in Thrace had given in their report, and at the commencement of the year, the consuls introduced the envoys from the two monarchs and the cities to the senate. The same arguments as had been used before the commissioners in Greece were repeated on both sides. The senate decreed that a fresh commission should go to Greece and Macedonia to find out whether the cities had been given back to the Thessalians and Perrhaebians. Instructions were also given that the garrisons should be withdrawn from Aenus and Maronea, and that the whole of the Thracian sea-board should be cleared of Philip and his

Macedonians. The commissioners were further ordered to visit the Peloponnese which the former commission had left in a more unsatisfactory situation than if they had not gone there, for they had come away without receiving any assurances, and the council of the Achaean League had refused their request for an interview. Q. Caecilius complained in very strong terms of their conduct, and the Lacedaemonians at the same time deplored the razing of their walls, the removal of the population as slaves into Achaia, and the abolition of the laws of Lycurgus, on which up to that day the stability of their State had rested. The Achaeans met the charge of refusing to convene their council by quoting the law which forbade the summoning of a council except where the question was one of peace or war, or when delegates came from the senate with despatches or written instructions. That they might not have that excuse for the future, the senate pointed out to them that it was their duty to see that Roman envoys had at all times an opportunity of approaching their council, just as an audience of the senate was granted to them whenever they wished for one.

[39.34]The delegations left for their homes, and Philip was informed by his delegates that he must withdraw his garrisons from the cities. Furious as he was with everybody, he wreaked his vengeance on the Maronites. He sent instructions to Onomastus, the governor of the coastal district, to put to death the leaders of the party opposed to him. There was a certain Casander, one of the king's courtiers, who had been living a considerable time in Maronea. Through his agency a body of Thracians were admitted by night and a general massacre followed as though the place had been taken by assault. The Roman commissioners censured him for behaving so cruelly to the unoffending Maronites and so defiantly towards the people of Rome; those to whom the senate had guaranteed their liberty had been butchered as though they were enemies. Philip said that neither he nor any of his people were concerned in the matter; a domestic quarrel had broken out amongst them, some wanting to bring the city over to him, others to Eumenes; the commissioners could easily get at the facts by questioning the Maronites themselves. He made this suggestion fully convinced that the Maronites had been too much terrified by the recent bloodshed to open their mouths against him. Appius replied that he should make no enquiry, as though there was any doubt in his mind, the facts were quite clear. If Philip wished to

remove all suspicion, he must send those who were reported to have been his agents - Onomastus and Casander - to Rome, that the senate might examine them. The king was so startled at this that the colour fled from his face. At last, recovering his presence of mind, he promised that he would send Casander, if they really wished it, as he had been at Maronea; but how, he asked, could Onomastus be connected with the affair, seeing that he was not in Maronea nor anywhere near it? He was anxious to keep Onomastus out of danger because he valued him as a friend, and he was afraid of any evidence he might give, for he had had frequent conversations with him and made him his agent and confidant in many similar designs. As for Casander, it is believed that to prevent him from giving any information, he was poisoned by emissaries, who were sent direct through Epirus down to the sea

[39.35]The commissioners came away from the conference making no secret of their failure to get anything satisfactory, and Philip on his side entertained no doubt that he would have to renew hostilities. His resources were not yet sufficient, and in order to gain time, he decided to send his younger son Demetrius to Rome with the object of exculpating him from the charges brought against him, and at the same time deprecating the anger of the senate. He quite hoped that in spite of his youth, the prince, who had given proof of his princely character whilst a hostage in Rome, would have considerable influence there. Meanwhile, under cover of carrying succour to the Byzantines but really to intimidate the Thracian chiefs, he advanced against the latter and completely defeated them in a single battle, taking Amodocus, their leader, prisoner. He had previously sent messages to the barbarians dwelling round the Hister urging them to make an incursion into Italy. The Roman commissioners were under orders to proceed from Macedonia to Achaia, and their arrival was being awaited in the Peloponnese. The captain-general Lycortas summoned a special meeting of the national council to decide upon the policy to be adopted. The subject of discussion was the Lacedaemonians. From being enemies they had become accusers, and there was fear lest they should be more dangerous now that they were defeated than when engaged in war. In that war the Achaeans had found the Romans useful allies; now these very Romans were more partial to the Lacedaemonians than to the Achaeans. Areus and Alcibiades, both of them exiles and repatriated through the good

offices of the Achaeans, had actually undertaken a mission to Rome against the interests of the nation to whom they owed so much, and had spoken in such a hostile tone that it might be thought that they were expelled from, not restored to, their country. Demands arose from all sides that the council should deal with them individually. As the whole proceedings were governed by passion, not by reason, they were condemned to death.

[39.36]A few days later the Roman commissioners arrived. The council was convened to meet them at Clitoris in Arcadia. Before the business began, the Achaeans saw Areus and Alcibiades, who had been condemned to death at the last meeting, sitting with the commissioners. They were thoroughly alarmed and did not consider that the coming discussion would be very favourable to them; no one, however, dared to open his mouth. Appius pointed out how the various things that the Lacedaemonians complained of were viewed with displeasure by the senate - the assassination at Campasium of the delegates who on the invitation of Philopoemen had gone to make their defence, and then after this cruelty towards men, their filling up the measure of savagery by razing the walls of a great and famous city and annulling the immemorial laws and world-famed discipline of Lycurgus. After this speech, Lycortas in his capacity of captain-general, and also as a supporter of Philopoemen, the prime mover in all that had happened in Lacedaemon, rose to reply. "It is more difficult," he began, "for us to speak before you, Appius Claudius, than it was the other day before the Roman senate. Then we had to answer the accusations of the Lacedaemonians; now it is you who are our accusers, you before whom the issue is to be tried. Whilst labouring under this disadvantage, we still hope that you will lay aside the heated temper in which you spoke just now, and listen to us in a judicial frame of mind. At all events, as regards the complaints which the Lacedaemonians laid before Q. Caecilius and afterwards at Rome, and which you yourself have now repeated, it is to them, and not to you, that I shall suppose myself to be replying.

"You bring up against us the assassination of the delegates who had gone on the invitation of Philopoemen to make their defence. I hold this charge ought never to have been made by you, Romans, or even by others in your presence. Why so? Because it was laid down in your treaty with the Lacedaemonians that they should not interfere with the cities on the coast. Had T. Quinctius been in the Peloponnese;

had there been a Roman there at the time when the Lacedaemonians made an armed attack upon the cities which they were pledged to leave alone, the inhabitants would, of course, have taken refuge with the Romans. As you were far away, with whom else could they have found shelter but with us, your allies? They had previously seen us carrying succour to Gytheum and attacking Lacedaemon on similar grounds in conjunction with you. On your behalf, then, we undertook the war as a just one, prompted by our sense of duty. Since others commend our conduct, and not even the Lacedaemonians can find fault with it, since the gods themselves, who have given us the victory, showed their approval of it, how can what we did by right of war admit of question? And yet the thing they lay most stress upon in no way concerns us. We are responsible for having called to trial the men who had excited the population to take up arms, who had stormed and plundered the maritime towns and massacred their leading men; but the putting them to death as they were coming into the camp was your doing, Areus and Alcibiades; and now, good heavens! you are actually accusing us of it! The Lacedaemonian refugees, these two men amongst them, were with us at the time, and because they had selected the maritime towns for their residence, they believed that their lives were in danger, and in retaliation made an attack upon those who had been the instruments of their banishment and would not suffer them to pass their lives in security, even though it were in exile. It was not, therefore, the Achaeans but the Lacedaemonians who slew Lacedaemonians, whether justly or unjustly, we are not concerned to discuss.

[39.37]"Well but,' you say, 'these things are your doing, Achaeans - the abolition of the laws and discipline of Lycurgus which have come down from a remote antiquity, and the destruction of the walls.' Now, how can both these charges be made by the same people, seeing that the walls were built, not by Lycurgus but only a few years ago, and built, too, for the purpose of undermining the discipline of Lycurgus? It is quite recently that the tyrants raised them as a stronghold and defence for themselves, not for the city; and if Lycurgus could today rise from the dead, he would be glad to see them in ruins, and would say that he now recognised his old Sparta. For like disfiguring brands they marked you as slaves, and you ought to have torn down and demolished with your own hands, Lacedaemonians, every vestige of the tyrant's rule, and not have

waited for Philopoemen and the Achaeans to do it. Whilst for 800 years you were without walls, you were free and for some time the foremost power in Greece, but when shut in by walls, bound as it were by fetters, you have for the last century been slaves. As for the deprivation of their laws and constitution, I consider that the tyrants deprived the Lacedaemonians of their ancient laws; we did not deprive them of their laws and constitution, for they had none; but we gave them our own laws, nor did we in any way do the city a wrong when we made it a member of our council and incorporated it in our League, so that there might be one political body and one common council for the whole of the Peloponnese. If we ourselves had been living at the time under different laws from those which we imposed on them, they could, in my opinion, have complained and felt justly indignant at not enjoying equal rights with us.

"I am quite aware, Appius Claudius, that the language I have so far used is not the language that allies should hold towards allies, nor does it befit a nation of freemen; it is really appropriate to the bickerings of slaves before their masters. If there is any meaning in the words of the herald in which you ordered that the Achaeans should be the first of all the Greeks to be free; if our treaty is still in force; if the terms of amity and alliance are kept equally for both sides, why should I not ask what you Romans did when you took Capua, as you demand from us an account for what we Achaeans did to the Lacedaemonians, after we had conquered them in war? 'Some of them were killed.' Suppose they were killed by us, what then? Did not you, senators, behead the Campanians? We destroyed the walls; you deprived the Campanians not only of their walls but of their city and their fields. The treaty, you say, is on the face of it just to both sides. As a matter of fact, the Achaeans enjoy a precarious freedom; the supreme power rests with the Romans. I am sensible of this, and I do not, unless compelled, protest against it; but I do implore you, however great the difference between the Romans and the Achaeans, not to let our common enemies stand in as favourable position with you as we, who are your allies, still less in a more favourable one. For we put them on an equality with ourselves when we gave them our laws. What satisfies the victors is too little for the vanquished; enemies demand more than allies receive. The agreement which has been sworn to and inscribed in stone for a perpetual memorial as being sacred and inviolable, that agreement they are preparing to do

away with, and make us forsworn. We have a profound respect for you, Romans, and if you wish it, we hold you in fear, but we have a more profound respect for and a greater fear of the immortal gods."

His speech was received with general approbation; all recognised that he had spoken as befitted the high position he held, so that it was quite clear that the Romans could not maintain their authority, if they did not take a strong line. Appius said that he would strongly advise the Achaeans to court the favour of the Romans whilst they could do so of their own free-will, lest they should soon be compelled to do so against their will. These words called forth a general murmur, but they were afraid of what might happen if they refused to comply with the Roman demands. They only requested the Romans to make such changes with regard to the Lacedaemonians as seemed desirable, and not involve the Achaeans in the guilt of perjury by making them undo what they had sworn to. The only decision arrived at was the cancelling of the sentence against Areus and Alcibiades.

[39.38]In the assignment of provinces at the commencement of the year to the consuls and praetors, Liguria, the only country where war was going on, was assigned to the consuls. The allocation of provinces to the praetors was as follows: the civic jurisdiction fell to C. Decimius Flavius; the alien, P. Cornelius Cethegus; C. Sempronius Blaesus took Sicily; Q. Naevius Matho, Sardinia, and also the investigation into the alleged cases of poisoning; A. Terentius Varro, Hither Spain, and P. Sempronius Longus, Further Spain. From these two last-mentioned provinces, two representatives of the praetors - L. Juventius Thalna and T. Quinctius Varus - went to Rome and after explaining to the senate the magnitude of the war in Spain which had now been terminated, they made a request that for such a great success, honours should be paid to the immortal gods and the praetors allowed to bring home their army. A two days' thanksgiving was appointed; as to the return of the legions, the senate ordered the matter to be adjourned till the question of the armies for the consuls and praetors was considered. A few days later a decree was made transferring to each of the consuls two of the legions which Appius Claudius and M. Sempronius had had. The question of the armies in Spain gave rise to a serious dispute between the new praetors and the friends of the praetors in Spain. Each side was supported by tribunes of the plebs and by one of the consuls. The one party threatened to veto any senatorial decree which ordered the return of the armies; the

other side declared that if such a veto took place, they would stop all further business. The interests of the praetors abroad proved the stronger, and a resolution was passed by the senate that the new praetors should enrol 4000 Roman infantry and 300 cavalry, and from the Latin allies 5000 infantry and 500 cavalry, as the force which they were to take with them. When they had incorporated them with the four legions in Spain, so that each legion should not contain more than 5000 infantry and 300 cavalry, they were to discharge the remainder; first, those who had served their time, and then those who had shown exceptional bravery in battle under Calpurnius and Quinctius.

[39.39]No sooner was this dispute settled than a fresh one started on the death of the praetor C. Decimius. The candidates for the vacant post were Cnaeus Sicinius and L. Pupius, who had been aediles during the previous year; C. Valerius, one of the Flamens of Jupiter, and Q. Fulvius Flaccus, who was curule aedile designate, and therefore did not appear in a candidate's dress, though he was most active of all in his canvassing. The contest lay between him and the Flamen. At first they were level, but when he appeared to be winning, some of the tribunes of the plebs said that votes must not be accepted for him, because no one could accept or hold two magistracies, especially curule magistracies, at the same time. Other tribunes thought it only right that he should be exempted from the legal disability in order that the people might be at liberty to elect whom they would as praetor. L. Porcius, the consul, was at first disposed not to allow votes for him; then in order to have the authority of the senate for doing this, he summoned the senators and said that he referred the question to them because the canvassing for a praetorship on the part of a curule aedile elect was not in accordance with justice, nor would the precedent be one which a free commonwealth could allow. As far as he was concerned, unless they thought some other course desirable, he intended to conduct the election according to law. The senate decided that the consul should come to an understanding with Q. Fulvius not to prevent the election of a praetor in place of C. Decimius from being conducted according to law. Acting on this resolution the consul approached Flaccus. He replied that he would do nothing unworthy of himself. Those who interpreted this evasive reply in accordance with their wishes were led to hope that he would yield to the authority of the senate. On the

day of the election he displayed more determined activity than ever, and accused the consul and the senate of trying to deprive him of the goodwill and sympathy of the people of Rome, and creating odium against him for aspiring to double honours, as if it were not perfectly obvious that as soon as he was elected praetor he would resign the aedileship. When the consul saw that he was becoming more obstinate, and the popular feeling was more and more in his favour, he suspended the election and convened a meeting of the senate. There was a full attendance, and they resolved that since the authority of the senate had no weight with Flaccus, the case must be brought before the people. The Assembly met and the consul laid the matter before them. Not even then was Flaccus moved from his determination. He expressed his gratitude to the Roman People for their zealous support and their desire to make him praetor as often as they had the opportunity of expressing their desire. He had no intention of forgoing the zealous support which his fellow-citizens accorded him. The fixed determination thus expressed kindled the popular enthusiasm to such an extent that he would undoubtedly have become praetor, had the consul been willing to accept votes for him. There was a heated dispute amongst the tribunes themselves and between them and the consul, until at a meeting of the senate convened by the consul it was decreed that whereas the obstinacy of Q. Fulvius and the mischief of party strife prevented the election from being conducted according to law, the senate considered that the number of praetors was sufficient. P. Cornelius was to exercise both jurisdictions in the City and also to celebrate the Games of Apollo.

[39.40] This election had been stopped through the good sense and courage of the senate, but another followed where more important interests were at stake and more numerous and more influential competitors appeared. This was the election to the censorship. Those who were standing were L. Valerius Flaccus, the two Scipios, Publius and Lucius, Cnaeus Manlius Vulso, L. Furius Purpurio as patricians, and the following plebeians: M. Porcius Cato, M. Fulvius Nobilior, the two Sempronii, Tiberius and Sempronius Longus, and M. Sempronius Tuditanus. The contest was a very animated one, but patricians and plebeians alike, even those belonging to the noblest families, were far outstripped by M. Porcius. This man possessed such ability and force of character that in whatever station he had

been born he must have been a fortunate and successful man. In no department of business, whether public or private, was the requisite knowledge lacking to him, he was equally versed in the affairs of town and country life. Some men have reached the highest posts through their knowledge of law, others through eloquence, others again through their military reputation. This man's versatile genius made him at home in all alike, so much so indeed that whatever he took up you would say that he was born for that one thing alone. In war he was a most doughty fighter and distinguished himself in many famous battles, and when he reached the highest posts he proved himself a consummate general. In peace, if you consulted him you found him a most able lawyer, and if he had to plead in a case, a most eloquent one. Nor was he one of those whose power of speech lasts only during their lifetime, and of whose eloquence no memorial survives; his eloquence is still alive and vigorous, enshrined in writings on all sorts of subjects. There are a great number of speeches made in his own defence and in defence of others, and also against others, for he harassed his opponents equally whether he was prosecuting or defending. Personal quarrels - far too many of them - kept him busy, and he himself took care to keep them alive, so that it would be difficult to say who displayed the greater energy, the nobility in trying to suppress him, or he in worrying the nobility. He was undoubtedly a man of a rough temper and a bitter and unbridled tongue, absolute master of his passions, of inflexible integrity, and indifferent alike to wealth and popularity. He lived a life of frugality capable of enduring toil and danger, with a mind and body tempered almost like steel, which not even old age that weakens everything could break. In his eighty-sixth year he defended himself in a lawsuit and published his speech, in his ninetieth year he brought Ser. Galba to trial before the people.

[39.41] This was the man who was a candidate for the censorship, and the nobility tried now, as they had done all through his life, to crush him. With the exception of L. Flaccus, who had been his colleague in the consulship, all the candidates combined to keep him out, not so much because they wanted the post for themselves, or because they were indignant at the prospect of a "novus homo" as censor, as because they expected that his censorship would be strict and severe and damaging to many reputations; most of them had done him a bad turn and he would be eager to retaliate. Even in his candidature

he assumed a menacing tone and accused his opponents of trying to prevent his election, because they were afraid of a censor who would act with impartiality and courage. At the same time he supported the candidature of L. Valerius, for he considered him the only man with whom as colleague he could repress the vices of the time and restore the old standard of morality. His speeches awoke general enthusiasm and the people, in the teeth of the nobility, not only made him censor but gave him L. Valerius as his colleague. Close upon the election of censors followed the departure of the consuls and praetors for their provinces. Q. Naevius, however, did not leave for Sicily till four months had elapsed, as he was detained by the task of investigating charges of poisoning. These were gone into mostly in the boroughs and market towns, a more convenient arrangement than transferring them to Rome. If we are to believe Valerius Antias, he sentenced more than 2000 persons. L. Postumius, to whom Tarentum had been assigned as his province, crushed the wide-spread conspiracy of the herdsmen, and made a close and careful examination into the remaining cases connected with the Bacchanalia. Many who had been summoned to Rome had not put in an appearance or had deserted their securities and were in hiding in that part of Italy. Some he arrested and sent to Rome for the senate to deal with, others he convicted and sentenced. They were all thrown into prison by P. Cornelius.

[39.42]In Further Spain matters were quiet as the strength of the Lusitanians was broken in the last war. In Hither Spain A. Terentius besieged and took the town of Corbio belonging to the Suessetani and sold the prisoners. After this Hither Spain was also quiet through the winter. The late praetors returned to Rome, and the senate unanimously decreed a triumph to each of them. C. Calpurnius celebrated his triumph over the Lusitanians and the Celtiberi; 83 golden crowns and 12,000 pounds of silver were carried in the procession. A few days later L. Quinctius Crispinus triumphed over the same nations and a similar amount of gold and silver was carried in his procession. The censors M. Porcius and L. Valerius, amidst many forebodings, revised the roll of the senate. They removed seven names, including that of a man of consular rank, L. Quinctius Flaminius, distinguished for his high birth and the offices he had held. There is said to have been an old regulation that the censors should commit to writing their reasons for excluding any from the

senate. There are extant some incriminating speeches which Cato delivered against those whom he removed from the roll of the senate or the register of the equites, but by far the most damaging is the one he made against L. Quinctius. If Cato had delivered this speech as accuser before the name was erased and not as censor after he had erased it, not even his brother T. Quinctius, had he been censor at the time, could have kept him on the roll.

Amongst other charges he brought up against him was the following. He had persuaded by huge bribes a Carthaginian boy named Philip, an attractive and notorious catamite, to accompany him into Gaul. This boy in petulant wantonness used very often to reproach the consul for having carried him away from Rome just before the exhibition of gladiators, in order that he might put a high price upon his compliance with the consul's passions. It happened that while they were banqueting and heated with wine a message was brought in that a Boian noble had come as a refugee with his children and wanted to see the consul in order to obtain from him personally a promise of protection. He was brought into the tent and began to address the consul through an interpreter. In the middle of his speech the consul turned to his paramour and said: "As you have given up the show of gladiators, would you like to see this Gaul die?" Hardly meaning what he said, the boy assented. The consul seized a naked sword hanging above him and struck the Gaul, who was still speaking, on the head. He turned to flee, imploring the protection of the Roman People and of those who were present, when the consul ran his sword through him.

[39.43]Valerius Antias, as though he had never read Cato's speech and had only given credence to an unauthenticated story, relates a different incident, but resembling the above in its lust and cruelty. According to him, a woman of Placentia, a bad character, with whom the consul was madly in love, was invited by him to a banquet. Here, boasting of his exploits, he told the harlot, amongst other things, what a stern inquisitor he had been, how many who had been condemned to death he was keeping in chains till he executed them. She was reclining on the same couch with him, and remarked that she had never seen an execution and would dearly love to see one. Thereupon, to indulge her, he ordered one of those unhappy wretches to be brought in and then struck off his head. Whether the incident took the form described in the censor's speech, or whether

it was as Valerius narrates it, in any case a cruel and brutal crime was perpetrated. During a festive meal, when it is customary to pour libations to the gods and wish all happiness to the guests, a human victim was sacrificed and the table sprinkled with blood to delight the eyes of a wanton harlot lying on a consul's breast! Cato closed his speech by saying that if Quinctius denied the charges he gave him the option of providing security and letting the case go to trial, but if he admitted them, did he suppose that any one would grieve over his disgrace after he had amused himself, when maddened by wine and lust, by shedding a man's blood at a banquet?

[39.44]In the revision of the register of the equites L. Scipio Asiagenes was struck out. In fixing the assessments the censorship was severe and harsh on all classes. Orders were issued that an account should be taken on oath of all female dress, ornaments and carriages which were valued at more than 15,000 ases, and that they should be assessed at ten times their value. Similarly, slaves less than twenty years old who had been sold since the last lustrum for 10,000 ases or more were to be assessed at ten times that amount, and on all these assessments a tax was imposed of one-third per cent. The censors cut off from the public aqueducts all supplies of water for private houses or land, and wherever private owners had built up against public buildings or on public ground, they demolished these structures within thirty days. They next made contracts for lining the reservoirs with stone and, where it was necessary, cleaning out the sewers, money having been set apart for the purpose, and also for the construction of sewers in the Aventine quarter and in other places where as yet there were none. Flaccus constructed a raised causeway at the Fountain of Neptune to serve as a public road and also a road along the Formian Hill. Cato purchased for the State two auction halls in the Lautumiae, the Maenium and the Titium, as well as four shops, and on the site he built a basilica, known afterwards as the Porcian. They farmed the taxes to the highest bidders, and let out the contracts to the lowest tenders. The senate, yielding to the prayers and lamentations of the tax-farmers, annulled these arrangements and ordered fresh terms to be made. The censors gave public notice that those who had treated the former contracts with contempt should not be allowed to make fresh bids. They signed fresh contracts for everything on slightly easier terms. This censorship was noteworthy for the feuds and quarrels it gave rise to, and for which

Cato through his severity was held responsible; feuds which made his life a stormy one to the end. Two colonies were founded this year, one at Potentia in the Picene district, the other at Pisaurum in the land of the Gauls. Six jugera were allotted to each colonist; the commissioners who supervised the settlement were Q. Fabius Labeo, M. Fulvius Flaccus and Q. Fulvius Nobilior. The consuls for this year did nothing worth recording.

[39.45]The consuls elected for the next year were M. Claudius Marcellus and Q. Fabius Labienus. On the day they entered upon office - March 15 - they brought before the senate the question of their provinces. Liguria was assigned to both consuls with the armies which their predecessors had had. When the new praetors balloted for their provinces, the two Spains were reserved for the praetors of the year before who retained their armies. C. Valerius, the Flamen, who had been an unsuccessful candidate the year before, was in any case to have one of the two jurisdictions in Rome; he drew the alien jurisdiction. The other provinces went as follows: the civic jurisdiction to Sisenna Cornelius, Sicily to Sp. Postumius, Apulia to L. Pupius, Gaul to L. Julius, Sardinia to Cnaeus Sicinius. L. Julius was required to hasten his departure. The transalpine Gauls, who, as stated above, had descended into Italy by a hitherto unknown mountain road, were building a town in the territory which now belongs to Aquileia. The praetor received instructions to prevent their doing this, without war if he could; if they had to be restrained by force of arms he was to inform the consuls, and one of them was to lead the legions against the Gauls. At the end of the preceding year there was an election of an augur to fill the place of Cnaeus Cornelius Lentulus who had died. Sp. Postumius Albinus was elected.

[39.46]At the commencement of this year P. Licinius Crassus, the Pontifex Maximus, died. M. Sempronius Tuditanus was co-opted as pontiff to fill the vacancy in the college, and C. Servilius Geminus was elected Pontifex Maximus. On the day of the funeral of P. Licinius a public distribution of meat was made, and a hundred and twenty gladiators fought in the funeral games which lasted for three days and after the games a public feast. The couches had been spread all over the Forum when a violent storm of wind and rain burst and compelled most people to put up shelter tents there. On the sky clearing, everywhere soon after they were removed, and it was commonly said that the people had fulfilled a prediction which the

prophets of fate had made that it was necessary for tents to be set up in the Forum. No sooner were they relieved from their religious fears than another portent followed. There was a rain of blood for two days and the Keepers of the Sacred Books ordered special intercessions to be made to expiate the portent. Before the consuls left for their provinces they introduced various overseas deputations to the senate. Never before had there been so many men from that part of the world assembled in Rome. As soon as it became generally known amongst the tribes inhabiting Macedonia that the complaints about Philip were not falling on deaf ears and that many people had found it quite worth their while to bring forward complaints, they flocked to Rome, cities, tribes, even individual complainants, each with their own grievance - for the hand of their neighbour, Philip, was heavy on them all - in the hope of obtaining redress for their wrongs or comfort under their sufferings. Eumenes, too, sent his brother Athenaeus with a deputation to complain that the garrisons had not been withdrawn from Thrace, and that Philip had assisted Prusias in his war with Eumenes.

[39.47]Demetrius, who was at the time quite a young man, had to answer all the charges. It was by no means an easy matter for him to retain in his memory either the details of the allegations or the proper reply to be made to them. They were not only very numerous, but most of them were very trivial, such as disputes about boundaries, the carrying off of cattle and men, the capricious administration of justice, judges corrupted by bribes or intimidated by threats of violence. When the senate found that Demetrius could not explain things clearly and that they could get no definite information from him and saw that the youth was embarrassed and at a loss what to say, they ordered the question to be put to him whether he had received from his father any memorandum dealing with these matters. On his stating that he had received one, they thought by far the wisest course would be to have the king's own replies to each point raised. They at once called for the book and allowed him to quote from it. It contained concise explanations under each head. Some of the things he had done were, he said, in compliance with the dictates of the commissioners; with regard to other of his acts, it was not his fault but that of his accusers that he had failed to comply. Interspersed throughout the memorandum were protests against the partiality shown in the rulings of the commissioners and the unfair

way in which the discussion had been carried on before Caecilius, and also the undeserved and unworthy insults heaped upon him from all sides. The senate took these as marks of irritation on his part; however, as the young prince apologised for some things, and gave an undertaking that for the future all would be done as the senate wished, it was decided that the following reply should be given: "Nothing which his father had done was more correct or more in accordance with the senate's wishes than his willingness, whatever his conduct had been, to send his son Demetrius to give satisfaction to Rome. Much of the past the senate could close their eyes to and forget and put up with, and they believed that they could trust Demetrius, for though they returned him to his father in bodily presence, they had his mind and feelings with them still as a hostage, and they knew that so far as was consistent with his affection for his father he was a friend to the People of Rome. Out of regard for him they would send a commission to Macedonia, so that whatever had not been done which ought to have been done it might even yet be carried out without any penalty for past omissions." They also wished Philip to understand that he was indebted to his son Demetrius for the complete restoration of his good relations with Rome.

[39.48] This, which was done to enhance the dignity of the young prince, immediately aroused jealousy against him and finally proved to be his ruin. The Lacedaemonians were introduced next. Many questions, quite insignificant, were raised; there were some, however, of great importance, for instance, whether those whom the Achaeans had condemned should be restored, whether those whom they had put to death were justly or unjustly slain, and also whether the Lacedaemonians should remain in the Achaean League, or whether, as had previously been the case, that city alone out of the whole of the Peloponnese should keep its own separate laws. It was decided that the exiles should be restored and the sentences passed on them annulled, and that Lacedaemon should remain in the Achaean League. This decree was to be committed to writing and signed by the Lacedaemonians and Achaeans. Q. Marcius was sent as special commissioner to Macedonia, he was also instructed to examine the state of affairs in the Peloponnese. The unrest left by the old dissensions still prevailed there and Messene had seceded from the Achaean League. If I were to go into the origin and progress of this

war I should be forgetting my resolution not to touch on foreign affairs except so far as they are connected with those of Rome.

[39.49]There was one incident worth recording. Though the Achaeans proved superior in the war, their captain-general Philopoemen was taken prisoner. He was on his way to occupy Corone, against which place the enemy were advancing, and whilst he was traversing a valley over difficult and broken ground with a small cavalry escort, he was surprised by the enemy. It is said that with the help of the Thracians and Cretans he could have effected his escape, but honour forbade him to desert his cavalry, men of good family whom he had himself selected. Whilst he was closing up his rear to meet the enemy's onset, and so give his cavalry a chance of escaping through the narrow pass, his horse fell, and what with his own fall and the weight of the horse rolling over him, he was very nearly killed on the spot. He was now seventy years old and his strength was greatly impaired by a long illness from which he was just recovering. The enemy, closing round him as he lay, made him their prisoner. As soon as he was recognised, the enemy, out of personal regard for him and recalling his great services, treated him just as if he had been their own general, lifted him up carefully, gave him restoratives, and carried him out of the entangled ravine into the high road, hardly believing the good fortune which had befallen them. Some of them at once dispatched messengers to Messene to announce that the war was over, and Philopoemen was being brought in as a prisoner. The affair seemed at first so incredible that the messenger was regarded as not only false but out of his senses. As one after another arrived, all bringing the same story, it was at last believed, and before they really knew that he was anywhere near the city, the whole population, citizens and slaves, even boys and women, poured out to see him. The crowd had blocked the gate, it looked as though each must have the evidence of his own eyes before he could believe that such a great event had really happened. Those who were bringing Philopoemen in had the greatest difficulty in forcing an entrance into the city through the crowd. An equally dense crowd blocked the rest of the route and, as the great majority were prevented from seeing, they rushed to the theatre which was near the road and all with one voice demanded that he should be brought where the people could see him. The magistrates and principal citizens were afraid that the compassion evoked by the sight of so

great a man might lead to a disturbance, for whilst some would contrast his former greatness with his present position, others would be moved by the memory of all he had done for them. They placed him where he could be seen at a distance, and then hurriedly removed him from men's eyes. Dinocrates, the governor, gave out that there were certain questions connected with the conduct of the war which the magistrates wished to put to him. He was then led away to the senate house and on the assembling of the senate they commenced their deliberations.

[39.50] Evening was now coming on, and they were not only unable to get through their other business but they could not even agree as to where he could be safely kept during the night. They were dazed by the greatness of the man and the splendour of his career, and they did not dare to take him to their own homes or trust his custody to any single individual. Somebody reminded them of the public treasury which was an underground chamber, walled with hewn stone. Here he was let down in chains and the huge stone with which it was covered was lowered with pulleys. Having thus made up their minds that his safe-keeping ought to be entrusted to a place rather than to any man, they waited for the day. On the morrow the whole population, bearing in mind his former services to their city, considered that he ought to be spared and that through his means they must look for the remedy for their present troubles. The authors of the secession, who were in control of the government, held a secret meeting and unanimously decided that he must be put to death, but they were not agreed whether they should act at once or not. The party who were eager for his death carried the day, and a man was sent to him with the poison. It is said that he took the bowl and merely asked whether Lycortas was safe and whether the cavalry had escaped. When he was assured that they were safe he said, "It is well," and without the slightest sign of fear drained the bowl and shortly afterwards expired. The authors of this cruelty did not congratulate themselves on his death for long. Messene was captured in the war, and on the demand of the Achaeans the criminals were surrendered. The remains of Philopoemen were restored to them and the whole of the Achaean council were present at his funeral. After heaping upon him every human honour they did not shrink from according to him divine honours. Greek and Latin historians pay this man so high a tribute that some of them have placed on record as a

notable feature of this year that three illustrious generals died during its course - Philopoemen, Hannibal and Lucius Scipio. To such an equality with the greatest generals of the most powerful nations in the world have they raised him.

[39.51] Prusias had for some time fallen under suspicion in Rome, partly owing to his having sheltered Hannibal after the flight of Antiochus and partly because he had started a war with Eumenes. T. Quinctius Flaminius was accordingly sent on a special mission to him. He charged Prusias, amongst other things, with admitting to his court the man who of all men living was the most deadly foe to the People of Rome, who had instigated first his own countrymen and then, when their power was broken, King Antiochus to levy war on Rome. Either owing to the menacing language of Flaminius or because he wished to ingratiate himself with Flaminius and the Romans, he formed the design of either putting Hannibal to death or delivering him up to them. In any case, immediately after his first interview with Flaminius he sent soldiers to guard the house in which Hannibal was living. Hannibal had always looked forward to such a fate as this; he fully realised the implacable hatred which the Romans felt towards him, and he put no trust whatever in the good faith of monarchs. He had already had experience of Prusias' fickleness of temper and he had dreaded the arrival of Flaminius as certain to prove fatal to himself. In face of the dangers confronting him on all sides he tried to keep open some one avenue of escape. With this view he had constructed seven exits from his house, some of them concealed, so that they might not be blocked by the guard. But the tyranny of kings leaves nothing hidden which they want to explore. The guards surrounded the house so closely that no one could slip out of it. When Hannibal was informed that the king's soldiers were in the vestibule, he tried to escape through a postern gate which afforded the most secret means of exit. He found that this too was closely watched and that guards were posted all round the place. Finally he called for the poison which he had long kept in readiness for such an emergency. "Let us," he said, "relieve the Romans from the anxiety they have so long experienced, since they think it tries their patience too much to wait for an old man's death. The victory which Flaminius will win over a defenceless fugitive will be neither great nor memorable; this day will show how vastly the moral of the Roman People has changed. Their fathers warned

Pyrrhus, when he had an army in Italy, to beware of poison, and now they have sent a man of consular rank to persuade Prusias to murder his guest." Then, invoking curses on Prusias and his realm and appealing to the gods who guard the rights of hospitality to punish his broken faith, he drained the cup. Such was the close of Hannibal's life.

[39.52]According to Polybius and Rutilius this was the year in which Scipio died. I do not agree with either of these writers, nor with Valerius; I find that during the censorship of M. Porcius and L. Valerius, Valerius was himself chosen as leader of the senate, though Africanus had held that position through the two previous censorships, and unless we are to assume that he was removed from the senatorial roll - and there is no record of any such stigma being affixed to his name - no other leader of the senate would have been chosen. Valerius Antias is proved to be wrong by the following considerations. There was a tribune of the plebs, M. Naevius, against whom Scipio delivered a speech which is still extant. From the lists of the magistrates it appears that this Naevius was tribune of the plebs during the consulship of P. Claudius and L. Porcius, but actually entered upon office on December 10, when Appius Claudius and M. Sempronius were the consuls. Three months elapsed from that date to March 15, when P. Claudius and L. Porcius assumed office. Thus it appears that Scipio was alive when Naevius was tribune and might have been impeached by him, but dead before L. Valerius and M. Porcius were censors. We may trace a correspondence in the death of these three men, who were each the most illustrious of his nation, for not only did they die about the same time, but not one of the three ended his life in a way worthy of his splendid career. None of them died on his native soil or was buried there. Hannibal and Philopoemen were carried off by poison; Hannibal was an exile, and betrayed by his host, Philopoemen was a captive and died in prison and in chains. Though Scipio had not been banished or condemned to death, still, as he did not appear on the day fixed for his trial, though duly cited, he passed upon himself a sentence of banishment, not only for life but even after he was dead.

[39.53]During the incidents in the Peloponnese from which I have made a digression, Demetrius and his legation returned to Macedonia. There was much divergence of view as to the results of their embassy. The bulk of the Macedonian people, appalled at the

imminent prospect of a war with Rome, were enthusiastic supporters of Demetrius. They looked upon him as the author of peace and regarded his succession to the throne after his father's death as a certainty. Although younger than Perseus, he was a legitimate son, the other was the son of a concubine. People said that Perseus, the offspring of a prostitute, had no note or mark of any particular father, whereas Demetrius showed a remarkable likeness to his father; moreover, Perseus was no favourite with the Romans and they would place Demetrius on his father's throne. Such was the common talk. Perseus felt himself superior to his brother in everything else, but he was haunted by the thought that his age alone would count but little in his favour. Philip himself, too, whilst feeling doubtful whether it would be in his power to decide whom he should leave as heir to the throne, considered that his younger son was assuming more authority than he wished him to possess. He was annoyed at the way in which the Macedonians resorted to Demetrius and he looked upon the existence of a second royal court as an indignity to himself. The young prince had certainly come home with a much higher sense of his own importance, presuming as he did upon the compliments paid him by the senate and the concessions they had made to him after refusing them to his father. Every allusion he made to the Romans raised his prestige amongst the Macedonians and evoked a corresponding amount of jealousy and ill-will in his father and brother. This was particularly the case when the fresh commissioners arrived from Rome and Philip was compelled to evacuate Thrace and withdraw his garrisons and carry out the other measures demanded by the previous commissioners and the fresh orders of the senate. All these things were a source of grief and bitterness to him, all the more so because he saw him associating with the Romans much more frequently than with himself. Still he acted in obedience to the orders of Rome that there might be no pretext for commencing hostilities. Thinking to divert any suspicions the Romans might entertain as to his designs, he led his army into the interior of Thrace, against the Odrysae, the Dentheleti and the Bessi. He took the city of Philippopolis which had been deserted by the inhabitants, who with their families had taken refuge in the nearest mountains. After ravaging the fields of the barbarians who lived in the lowlands, he accepted their surrender. Leaving a garrison in Philippopolis which was shortly afterwards expelled by the Odrysae, he began to build a town in Deuriopus, a district in Paconia, near the river Erigonus

which, rising in Illyria, flows through Paeonia into the Axius, not far from the ancient city of Stobae. He ordered the new city to be called Perseis in honour of his eldest son.

[39.54]During these events in Macedonia the consuls left for their provinces. Marcellus sent a message to L. Porcius, the proconsul, asking him to take his legions to the town which the Gauls had lately built. On the consul's arrival the Gauls surrendered. There were 12,000 under arms, most of them had arms which they had taken by force from the peasants. These were taken from them as well as what they had carried off from the fields or brought with them. They resented this strongly and sent envoys to Rome to complain. C. Valerius the praetor introduced them to the senate. They explained how, owing to over-population, want of land and general destitution, they had been compelled to seek a home across the Alps. Where they saw the country uninhabited and uncultivated there they had settled, without doing injury to any one. They had even begun to build a town, a clear proof that they were not going to attack either town or village. M. Claudius had recently sent a message to them that if they did not surrender he would make war upon them. As they preferred a secure if not a very honourable peace to the uncertainties of war, they had placed themselves under the protection, before they had to submit to the power, of Rome. A few days afterwards they were ordered to evacuate their city and territory, and they intended to depart quietly and settle in what part of the world they could. Next, their arms were taken from them, and at last all that they possessed, their goods and their cattle. They implored the senate and the People of Rome not to treat those who had surrendered without striking a blow with greater severity than they treated active enemies.

To these pleas the senate ordered the following reply to be given: They had acted wrongfully in coming into Italy and attempting to build a town on ground that was not their own without the permission of any Roman magistrate who was over that province. On the other hand, it was not the pleasure of the senate that after they had surrendered they should be despoiled of their goods and possessions. The senate would send back with them commissioners to the consul, who on their returning whence they had come would order all that belonged to them to be restored. The commissioners would also cross the Alps and warn the Gaulish communities to keep their population at home. The Alps lay between as an almost

impassable frontier line; those who were the first to make them easy of transit would certainly not be the better for it. The commissioners who were sent were L. Furius Purpurio, Q. Minucius and L. Manlius Acidinus. After everything which they had any right to was restored to them, the Gauls departed from Italy.

[39.55]The transalpine tribes gave a satisfactory reply to the commissioners. The older men amongst them blamed the excessive leniency of the Romans for having sent away, unpunished, men who without any authority from their tribe had set out to occupy territory belonging to the Roman government, and had attempted to build a town on land that did not belong to them. They ought to have paid heavily for their audacity. The indulgence shown them in the restoration of their property might, they feared, invite others to similar ventures. The hospitality which they showed towards the commissioners was so generous that they loaded them with presents. After the Gauls had been cleared out of his province, M. Claudius began to lay his plans for a Histrian war. He wrote to the senate for permission to lead his legions into Histria and the senate sanctioned his doing so. They were at the time discussing the question of sending colonists to Aquileia, and the question was whether they should make it a Latin colony or send Roman citizens. It was finally decided that the colony should consist of Latin settlers. The commissioners for superintending the settlement were P. Scipio Nasica, C. Flaminius and L. Manlius Acidinus. Mutina and Parma were also colonised this year by Roman citizens. Two thousand men were settled in each colony on land which had recently belonged to the Boii, formerly to the Tuscans. Those at Parma received eight jugera each, those at Mutina, five. The allocation of the land was carried out by M. Aemilius Lepidus, T. Aebutius Carus and L. Quinctius Crispinus. Saturnia, also, a colony of Roman citizens, was founded under the supervision of Q. Fabius Labeo, C. Afranius Stellio and Tiberius Sempronius Gracchus. Ten jugera were assigned to each colonist.

[39.56]During the year the proconsul A. Terentius fought some successful actions with the Celtiberi not far from the Ebro in the Ausetanian country, and stormed several places which they had fortified there. Further Spain was quiet during the year owing to the long illness of P. Sempronius, and the Lusitanians, receiving no provocation, remained, fortunately, quiet. Nor did Q. Fabius do anything worth mentioning in Liguria. M. Marcellus was recalled

from Histria and his army disbanded. He returned to Rome to conduct the elections. The new consuls were Cnaeus Baebius Tamphilus and L. Aemilius Paulus. The latter had been curule aedile with M. Aemilius Lepidus who five years before had won his consulship after two previous defeats. The new praetors were Q. Fulvius Flaccus, M. Valerius Laevinus, P. Manlius for the second time, M. Ogulnius Gallus, L. Caecilius Denter, and C. Terentius Istra. At the end of the year there were intercessions owing to portents. It was firmly believed that a rain of blood had fallen for two days in the temple precinct of Concord, and it was reported that not far from Sicily a new island had been thrown up by the sea. Valerius Antias is our authority for stating that Hannibal died this year, and that in addition to T. Quinctius Flamininus, whose name is well known in connection with that incident, L. Scipio Asiaticus and P. Scipio Nasica were sent to Prusias on that occasion.

BOOK 40: PERSEUS AND DEMETRIUS

[40.1]At the beginning of the following year the consuls and praetors balloted for their provinces. Liguria was the only consular province and was assigned to both consuls. The result of the ballot gave the civic jurisdiction to M. Ogulnius Gallus, the alien jurisdiction to M. Valerius, Hither Spain to Q. Fulvius Flaccus, Further Spain to P. Manlius, Sicily to L. Caecilius Denter, and Sardinia to C. Terentius Istra. The consuls received instructions to levy troops. Q. Fabius had written from Liguria to say that the Apuani were contemplating a renewal of hostilities and there was danger of their making an irruption into the territory of Pisae. In the Spanish provinces too there was trouble: the senate knew that Hither Spain was in arms and that fighting was going on with the Celtiberi; in Further Spain, owing to the long-continued illness of the praetor, military discipline was relaxed by luxury and idleness. Under these circumstances they decided that fresh armies should be raised: four legions for Liguria each numbering 5200 infantry and 200 cavalry, with the addition of 15,000 infantry and 800 cavalry drawn from the Latin allies. These were to form the two consular armies. The consuls were further instructed to call up 7000 infantry and 400 cavalry as an allied contingent and despatch them to M. Marcellus, whose command in Gaul had been extended at the close of his consulship. For the two Spanish provinces a force of 4000 Roman infantry and 200 cavalry,

together with 7000 infantry and 300 cavalry from the Latin allies, was to be raised. Q. Fabius Labeo had his command in Liguria extended, and he was to retain the army which he had.

[40.2]The spring of that year was a stormy one. On the eve of the Parilia, about the middle of the day a terrible storm of wind and rain burst and wrecked many sacred and ordinary buildings. It blew down the bronze statues on the Capitol, it carried off the door from the temple of Luna on the Aventine and dashed it against the walls behind the temple of Ceres. Other statues were overturned in the Circus Maximus together with their pedestals. Several sculptures were broken off from the roofs of the temples and ruthlessly shattered. This storm was in consequence regarded as a portent, and the augurs were bidden to direct the necessary expiation for it. A further expiation was demanded in consequence of intelligence brought to Rome of the birth of a mule at Reate with only three feet, and a report from Formiae that the temple of Apollo at Caieta had been struck by lightning. In consequence of these portents twenty full-grown victims were sacrificed and special intercessions offered for one day. From a despatch sent by A. Terentius it was ascertained that P. Sempronius, after more than a year's illness, had died in Further Spain. The praetors were ordered to start for Spain as soon as possible. Legations from overseas were admitted to an audience of the senate. First came those from Eumenes, Pharnaces and the Rhodians. The latter complained of the disaster which had overtaken Sinope. Envoys from Philip and from the Achaeans and Lacedaemonians went to Rome at the same time. After hearing Marcius, who had been sent to ascertain the state of affairs in Greece and Macedonia, the senate gave their reply. The two sovereigns and the Rhodians were informed that the senate would send a commission to look into those matters.

[40.3]Marcius had increased the senate's apprehensions about Philip. He admitted that Philip had carried out the measures insisted upon by the senate, but in such a way that he would obviously continue to do so no longer than he was compelled. There was little doubt that he would recommence war, and all his words and actions pointed in that direction. He transferred almost the entire population from the maritime cities to the district now called Emathia, formerly known as Paeonia, and had handed over those cities to the Thracians and other barbarians for their residence, thinking that these races could be more

safely depended upon in case of a war with Rome. This action called forth loud protests throughout Macedonia; few of those who with their wives and children were abandoning their homes bore their grief in silence. Everywhere amongst the crowds of emigrants were heard curses on the king; their anger got the better of their fears. Furious at all this, Philip began to suspect all persons, places and seasons alike, and at last openly avowed that he could only be secure when he had the children of those whom he had put to death arrested and in safe keeping. Then he could put them out of the way from time to time.

[40.4] This brutality, hideous as it was, was rendered still more so by the sufferings of one particular family. Herodicus, a leading man in Thessaly, had been put to death by Philip many years ago; afterwards he put his sons-in-law to death and his two widowed daughters, Theoxena and Archo, were left each with one little son. Theoxena had several offers of marriage but declined them all. Archo married a man called Poris who held quite the first place among the Aenianes. She bore him several children but died whilst they were still small. In order that her sister's children might be brought up under her own care, Theoxena married Poris and took as much care of her sister's sons as she did of her own. When she heard of the king's edict about arresting the children of those whom he had put to death, she felt sure that the boys would fall victims to the king's lust and even to the passions of his guards. She formed a terrible design and dared to say that she would rather kill them with her own hand than let them fall into Philip's power. Poris was horrified at the mere mention of such a deed, and said that he would send them away to some trustworthy friends in Athens and that he would accompany them in their flight. They went from Thessalonica to Aenia. A festival was being held there at the time, which was celebrated with great pomp every four years in honour of Aeneas, the founder of the city. After spending the day in the customary feasting they waited till the third watch, when all were asleep, and went on board a ship which Poris had in readiness, ostensibly to return to Thessalonica, but really to sail across to Euboea. While, however, they were vainly trying to make headway against a contrary wind, they were surprised by daylight not far from land, and the king's troops who were on guard at the harbour sent an armed boat to seize the ship, with strict orders not to return without her. Poris, meanwhile, was doing his utmost to urge on the rowers and sailors, lifting up his hands from time to time to heaven

and imploring the gods to help him. His wife, a woman of indomitable spirit, fell back on the purpose she had long ago formed, and mixing some poison, placed the cup where it could be seen, together with some naked swords. "Death," she said, "alone can free us. Here are two ways of meeting it, choose each of you which you will, as the escape from the king's tyranny. Come, my boys, you who are the older be the first to grasp the sword, or if you would have a more lingering death, drink off the poison." On the one hand were the enemy close to them, on the other the insistent mother urging them to die. Some chose the one death, some the other, and whilst still half-alive they were thrown from the ship. Then the mother herself, flinging her arms round her husband, sprang with him into the sea. The king's troops took possession of a deserted ship.

[40.5]The horror of this deed fanned afresh the flames of hatred against the king. Curses were everywhere heaped upon him and upon his children, and the dire imprecations soon reached the ears of all the gods, so that they drove him into murderous cruelty against his own flesh and blood. Perseus saw that his brother Demetrius was growing more every day in popularity and influence with the mass of his nation and in favour with the Romans, and he felt that no hope remained to him of winning the crown except through the perpetration of a crime, and to its accomplishment he now devoted all his thoughts. He did not think himself strong enough to carry out the purpose which he was hatching in his weak and unmanly mind, and he began to sound his father's friends one by one, dropping dark and dubious hints in his talks with them. Some of them made it appear at first as though they rejected anything of the kind, because they hoped more from Demetrius. But as Philip's bitterness against the Romans, which Perseus encouraged and Demetrius did his utmost to check, became more pronounced every day, they foresaw the ruin of the youth who was taking no precautions against his brother's intrigues. So they at last decided to help on what must inevitably happen and advance the hopes of the stronger by taking the side of Perseus. They left other measures to be carried out at a fitting time, for the present they determined to use all their endeavours to inflame the king against the Romans and induce him to expedite the warlike plans which he was already contemplating. To aggravate the suspicions against Demetrius, they used to bring up the subject of the Romans in their conversations with him. Some would

run down their national character and institutions, others spoke lightly of their military achievements, others scoffed at the appearance of the City, its lack of adornment in both public and private buildings, whilst others, again, spoke contemptuously of different public men. The young man, thrown off his guard by his devotion to the name of Rome and his opposition to his brother, defended them in every way, and thus made himself an object of suspicion to his father and laid himself open to charges of disloyalty. The result was that his father excluded him from all consultations on matters relating to Rome and took Perseus entirely into his confidence, discussing these subjects with him day and night.

The envoys whom he had sent to the Bastarnae to summon assistance had returned and brought back with them some young nobles, amongst them some of royal blood. One of these promised to give his sister in marriage to Philip's son, and the king was quite elated at the prospect of an alliance with that nation. Perseus, on this, said to him, "What advantage is there in that? Little protection will there be in foreign support, compared with the danger of domestic treason. We have in our midst a spy, I do not want to call him a traitor; ever since he was a hostage in Rome, the Romans possess his heart and soul, though they have given us back his body. The eyes of almost all Macedonia are turned towards him; they are fully persuaded that they will have none else as king but the one whom the Romans give them." The distempered mind of the old king was made still more uneasy by these words, which he took more seriously than appeared from his looks.

[40.6]It happened to be the time for the lustration of the army. The following is a description of the ceremony. The body of a bitch was divided in the middle, the forepart with the head was placed on the right side of the road and the hinder part with the entrails on the left, and the troops marched between them. In front of the column were borne the insignia of all the kings of Macedonia from its remotest origin; then followed the king and his children; next to them the king's own cohort and his bodyguard, the Macedonian phalanx bringing up the rear. The two princes rode on either side of their father; Perseus was now thirty years old and Demetrius five years his junior, the former in the prime of manhood, the latter in the flower of youth. The father would have been fortunate in his maturer offspring if only he had been wise and sensible. When the

purificatory rite was completed it was the custom for the army to go through maneuvers and after being formed into two divisions to engage in a sham-fight. The two princes were appointed to command in this mimic contest, but there was no make-believe about the fighting, it looked like a struggle for the crown, so fiercely did they engage. Many wounds were caused by their staves and nothing was wanting but swords to give the actual appearance of war. The division which Demetrius commanded was by far the better one. Perseus was intensely annoyed, but his wiser friends were delighted. That circumstance in itself, they said, would afford grounds for incriminating the young man.

[40.7]Demetrius invited Perseus to supper at the close of the day, but he refused to go, and each of them gave a banquet to those who had been their comrades in the sham-fight. The lavish hospitality, as befitted the festal day, and the high spirits of youth led both parties to drink freely. Then they began to talk about the battle and jokes were made at the expense of their opponents, not even their leaders being exempt. A spy was sent from Perseus' party to listen to this conversation, but as he behaved somewhat incautiously he was caught by some youths who happened to be leaving the banquet-room and soundly cudgelled. Demetrius knew nothing of this and he asked his companions, "If my brother is still in an angry mood after the battle, why should we not go to him as boon companions and appease him by our open-hearted merriment?" All of them, except those who were afraid of prompt retaliation for thrashing the spy, called out that they would go. Demetrius made those also go with him, and they concealed swords under their garments to defend themselves in case of attack. Nothing could possibly be kept secret in this family quarrel, both their houses were full of spies and traitors. An informer ran to Perseus and told him that four young men who were wearing concealed swords were coming with Demetrius. Although he must have known the reason, for he had heard that one of his guests had been thrashed by them, he made the affair look as black as possible by ordering the door to be bolted, and going to the upper part of the house, where the windows looked down on the road, he kept the revellers from approaching the door, as though they were coming to murder him. Demetrius was under the influence of wine, and finding himself shut out protested loudly for some time

and then returned to the banquet-room, not knowing in the least what it all meant.

[40.8]As soon as he could get an opportunity of seeing his father the next day, Perseus entered the palace with a perturbed expression and stood in silence at some distance from his father. "Are you well?" asked Philip. "Why that gloomy countenance?" "Let me tell you," he replied, "that it is more than I hoped for to be alive now. It is no longer by secret plots that my brother is seeking my life; he came to my house at night with an armed band to kill me. Only by barring the doors could I shelter myself from his fury behind the walls of the house." After thus astonishing and alarming his father, he went on, "Yes, and if you can give me a hearing I will make you see the whole thing clearly." Philip said that he would certainly hear him and sent orders for Demetrius to be summoned at once. He also sent for two of his older friends who had nothing to do with the quarrel between the brothers, and did not often visit the palace - Lysimachus and Onomastus. He wished to have them present at the council. Whilst waiting for them he walked up and down deep in thought, his son standing some distance away. When they were announced he withdrew with them and two of his life-guards into an inner room, and allowed each of his sons to bring three companions unarmed. After taking his seat he began: "Here I, a most unhappy father, am sitting as judge between my two sons, one accusing the other of fratricide, and I have to find my own children guilty of either a false accusation or a confession of criminal intent. I have for some time been dreading the imminence of this storm as I watched the way you looked at one another with an expression of anything but brotherly love, and listened to some of your language. Sometimes I have ventured to hope that your anger was dying down and that suspicions could be cleared up. Even hostile nations have laid down their arms and made treaties of peace, and many men have put an end to their private quarrels. I fancied that some day you might remember your relationship to one another, the unreserved intimacy of your boyish days and the teaching which I have given you, which has, I fear, fallen on deaf ears. How often have I told you of my detestation of fraternal quarrels and the dreadful results they lead to, how often they have ruined families and houses and kingdoms! I have also placed before you happier examples on the other side; the perfectly friendly relations between the two kings of Sparta, which had for long

centuries been such a safeguard to themselves and their country; but as soon as the fashion came in of each trying to secure despotic power for himself, that State was destroyed. Look at those two monarchs, Eumenes and Attalus, who from such small beginnings that they shrank from the title of king have now become the peers of Antiochus and myself, and this is due to nothing so much as the brotherly concord that existed between them. I even drew examples from the Romans which had fallen under my own observation or which I had heard of: the two Quinctii, Titus and Lucius; the two Scipios, Publius and Lucius, who conquered Antiochus; their father and their uncle whose lifelong harmony was cemented by death. And yet the bad examples which I first mentioned and the evil results of their evil conduct could not deter you from your insane quarrels, nor could the good character and the good fortune of the others turn you to a sound and healthy state of mind. While I am yet alive and drawing vital breath you have in your criminal ambition decided to whom the crown will pass. You wish me to live just long enough to survive one of you, and then by my death make the other the unquestioned king. You cannot bear that either your father or your brother should live. You have no affection, no conscience; an insatiable desire for the crown alone has supplanted everything else in your hearts. Go on, then, grieve and shock your father's ears, fight out your differences with mutual recriminations as you will soon do with the sword; speak out openly whatever you can truly allege or find pleasure in inventing. My ears are open to you now, henceforth they will be closed to any secret charges which you may make against each other." He uttered these last words in very angry tones and all present burst into tears; there was a long and sorrowful silence.

[40.9]Then Perseus began: "You think, then, that I ought to have opened the door and admitted the armed revellers and presented my throat to the sword, and beset as I am with plots and treachery, I have to listen to the same language that is addressed to thieves and footpads. It is not for nothing that those people say that Demetrius is your only son, whilst they call me supposititious and base-born. They speak to some purpose, for if I possessed in your eyes the rank, the affection due to a son, you would not vent your anger on me when I complain of the plot that has been frustrated, but on him who contrived it, nor would you hold my life so cheap as not to be moved by past dangers or by future dangers, should the plotters escape with

impunity. If I am to die without uttering a protest, I would be silent except for a prayer to the gods that the villainy which began with me may end with me, and that my deathblow may not strike you. But if, whilst I see the sword drawn against me, I may be permitted to make my voice heard, then, just as Nature herself prompts those who are surrounded by dangers, with no friend near, to appeal for help to men they have never seen, so I beseech you by the sacred name of father - and you have long felt which of us holds that name most sacred - to grant me the same hearing as you would have done had you been awakened by a cry of alarm at night and gone at my call for help, and actually seen Demetrius with his armed comrades in my vestibule. What would have been my cry of alarm at the actual moment of danger, last night, I am today making the subject of my complaint.

"Brother, for a long time we have not lived together as table-companions. You, in any case, want to be king. This hope of yours is baffled by my seniority, by the right of primogeniture universally recognised, by the time-honoured usage of the Macedonians. You cannot surmount these barriers except through my blood. You are trying every device, every expedient. Hitherto, either my watchfulness or my good luck has stood in the way of your becoming a fratricide. Yesterday, on the occasion of the propitiatory sacrifice, the maneuvers and the sham-fight, you made the fight all but a fatal one, and nothing averted my death but the fact that I allowed my men and myself to be defeated. From that hostile encounter you wanted to inveigle me to your banquet, as though it had been merely brotherly sport. Do you believe, father, that it would have been amongst unarmed guests that I should have banqueted, when they came in arms to banquet with me? Do you believe that I was in no danger from their swords at night, after they had almost killed me with their staves whilst you were looking on? Why, Demetrius, do you come at that hour of the night, why do you come as an enemy to one who is in an angry mood, why do you come accompanied by youths with hidden swords? I did not dare to trust myself to you even as a guest, am I to admit you when you come with an armed band? Had my door been open, you, my father, would now be arranging my funeral obsequies instead of listening to my complaints. "I am not trumping up charges as a prosecutor, nor am I arguing upon questionable evidence. Surely he does not deny that he came to my

door with a large crowd, or that he was accompanied by men with concealed swords. Send for the men whose names I give you. Those who have dared so far will go to any lengths, they will not, however, venture upon a denial. If I had caught them in my vestibule with their swords and brought them to you, you would have regarded it as a clear case; take their confession as equivalent to their being caught in the act.

[40.10]"Now invoke curses on the eager longing for your crown, awake the furies that avenge a brother's blood, but do not, my father, let your execrations fall blindly. Discern, distinguish between the plotter and the victim of his plots, and let them fall on the guilty head. Let him who intended to kill his brother feel the wrath of his father's gods, let him who was to perish through a brother's crime find shelter in his father's justice and compassion. For where else can I find refuge, when there is no safety either in the ceremonial purification of the army, or in house, or banquet, or in night, nature's boon to mortals for repose? If I had accepted my brother's invitation it would have been my death, if I had admitted my brother inside my doors it would have been my death. I do not escape his murderous designs whether I go or stay. I have sought favour from none, save the gods and you, my father; I have not the Romans to flee to. They are seeking my ruin because I grieve over your wrongs, because I resent your being deprived of so many cities, so many subject nations, and now' of the coastline of Thrace. When neither you nor I are any longer safe they hope that Macedonia will be theirs. If my brother's murderous hand carries me off, if old age carries you off, or even if they do not wait for that, they know that the king and realm of Macedonia will be at their disposal. If the Romans had left you anything beyond the borders of Macedonia, I could even believe that it was left as a harbour of refuge for me.

"But, you say, I have sufficient protection in the Macedonians. You saw how the soldiers attacked me yesterday. What was lacking except a sword? What was lacking in the daytime my brother's guests furnished themselves with at night. Why should I speak about the majority of our leading men who have placed all their hopes of fortune and power on the Romans and on the man who is all-powerful with the Romans? They are not only setting that fellow above me, but very soon they will set him above you, his father and his king. It was out of kindness to him that the Romans remitted the

penalty they were going to impose on you; he it is who protects you from the arms of Rome, who thinks it right that you at your age should be at the mercy of his youth. On his side stand the Romans, on his side are all the cities which have been liberated from your rule, on his side are the Macedonians who are happy while there is peace with Rome. Whom have I to trust to but my father, what hope or security is there elsewhere?

[40.11]"What do you suppose is the meaning of that letter which has just been sent to you by T. Quinctius, in which he says that you acted wisely in your own interest by sending Demetrius to Rome, and urges you to send him again with a more numerous embassy including the foremost men in Macedonia? T. Quinctius is now his adviser and director in everything; he has renounced you, his father, and put him in your place. With him all the secret plans are arranged beforehand; he is looking out for men to help him in carrying out those plans when he bids you send more of the Macedonian leaders with him. They will go from here loyal and true, believing that they have a king in Philip, they will come back tainted and poisoned with Roman blandishments. Demetrius is everything to the Romans, they are already addressing him as king while his father is alive. If I show indignation at all this, I have forthwith to listen to charges of seeking the crown not only from others but even from you, my father. But if the accusation rests between us, I, for my part, repudiate it. For whom am I displacing that I may step into his place? My father alone is before me, and I pray Heaven that he may long be so. If I survive him - and may this be so only if my deserts make him wish it - I shall receive the heritage of the crown if my father delivers it to me. That youth is coveting the crown, and coveting it with criminal intent. He is eager to forestall the order laid down by age, by nature, by the usage of the Macedonians, by the law of nations. 'My elder brother,' he says to himself, 'to whom by right and even by my father's wish the crown belongs, stands in my way; let him be removed. I shall not be the first who has sought a kingdom at the cost of a brother's blood. My father, an old man, without the support of his elder son will be too much afraid for himself to think of avenging his son's death. The Romans will be glad, they will approve of my act and defend it.' These are uncertain hopes, but not groundless. For this is how matters stand, my father; you can repel the danger which menaces my life by punishing those who have taken up the sword to slay me; if their

criminal purpose is achieved, you will not have the power to avenge my death."

[40.12]When Perseus had finished, all present looked at Demetrius, expecting him to reply at once. There was a long silence and everybody saw that he was bathed in tears and unable to speak. At length they told him that he must speak, and he was compelled to stifle his grief. So he began: "Everything, my father, on which those who are accused could rely for their defence has been prejudiced by my accuser. The tears which he feigned for the purpose of effecting another's ruin have made you suspect the reality of mine. Ever since my return from Rome he has been hatching secret plots against me day and night with his confederates, and now he deliberately fastens on me the character not only of an intriguer but even of an open assassin. He alarms you with the bugbear of his own danger in order that through you he may hasten the destruction of his unoffending brother. He says that there is no place of refuge for him in the whole world in order that I may have no hope of safety with you. Beset by foes, deserted by friends, destitute of all resources, he loads me with the odium aroused by the favour shown to me by foreigners, which hurts me more than it benefits. How like a common prosecutor has he acted in mixing up his account of last night's events with a bitter attack upon the rest of my life so that he put that incident, which you will see in its true colours, in a suspicious light, by representing the tenor of my life as other than what it is, and bolstering up that false and scandalous description of my hopes and wishes and designs by this fictitious and hollow evidence. And at the same time he tried to make his accusations appear as though they were uttered without preparation, on the spur of the moment, called forth forsooth by the alarm and tumult of the night. But, Perseus, if I were a traitor to my father and the realm, if I were scheming with the Romans or with any of my father's enemies, you ought not to have waited for this trumped-up story of last night's doings, you ought to have accused me of treachery before this. If that accusation as distinct from this one was without any foundation and a proof of your bad feeling towards me, rather than of my guilt, surely it ought to be passed over today and deferred till another occasion, so that the question which of us in a spirit of unheard-of hatred has been intriguing against the other might be decided on its merits. At all events, so far as I am able to do so in this sudden bewilderment, I shall separate what you have

confused together, and unveil last night's plot, to show whether you or I were the author of it.

"He wants to make it appear that I formed a design against his life in order, forsooth, that after the removal of the elder brother, to whom by a universally acknowledged right, by the usage of the Macedonians and by your decision, as he says, the future crown belongs, I, the younger son, could step into the place of him whom I had killed. What then is the meaning of that part of his speech in which he says that I curried favour with the Romans and hoped through my reliance on them to come to the throne? For if I believed that the Romans possessed so much influence that they could impose upon the Macedonians whom they would as king, and if I trusted so much to my interest with them, what need was there for me to kill my brother? Was it that I might wear a crown stained with a brother's blood? That I might be execrated and hated by the very men whose favour I have won by a straightforwardness, either sincere or at least assumed, if indeed I have won it? Perhaps you imagine that T. Quinctius, by whose virtuous counsels you say that I am ruled, has instigated me to be my brother's murderer, though he himself lives in such close affection with his own brother. Perseus has brought together in what he said not only my favourable position with the Romans but also the sentiments of the Macedonians and the all but unanimous judgment of gods and men, and owing to all these advantages he professes to believe that he is no match for me. And yet, as though in everything else I were inferior to him, he maintains that I have betaken myself to crime as my last hope. Do you want the issue of the trial to take this form: 'Whichever of the two feared that the other might be thought more worthy of the crown, let him be judged to have formed the design of crushing his brother?'

[40.13]"Now in whatever way these charges have been fabricated, let us examine the order in which they stand. He said that numerous attempts had been made against his life, and he has brought all the methods employed within the limits of a single day. I wanted, he says, to kill him in broad daylight after the lustration when we were engaged in the mimic battle, actually, good heavens! on the very day of the lustration! Then I wanted to take him, forsooth, by poison, after inviting him to supper. Then I wanted to go with a band of revellers armed with hidden swords and kill him with cold steel. You notice what occasions he has selected for the murder - sports, a

banquet, a wine party? Why, what was the character of the day? A day on which the army was purified, on which they marched between the two halves of the victim, with the royal arms of all the kings of Macedonia borne before them, we two alone in front by the side of you, my father, and the Macedonian phalanx following. Even though I had previously committed some sin which required expiation, could I, after being purified and absolved in this solemn rite, especially whilst gazing upon the victim which lay on either side our path - could I then be revolving in my mind thoughts of murder, poison, swords? With what other rites could I then have cleansed a mind steeped in uttermost guilt? But in his blind eagerness to launch accusations and throw suspicion on everything I did, he has made one thing contradict another. For if I intended to take you off by poison during the banquet, what could have less served my purpose than to rouse your anger by an obstinately contested fight so as to give you just cause for refusing my invitation? After your angry refusal what should I have done? Was I to make it my business to appease your wrath so as to have another opportunity, now that I had prepared the poison, or should I have, so to speak, leaped from that plan to another, and in the guise of a boon companion killed you with the sword, and all on the same day? If I had supposed that you kept clear of my supper party for fear of your life, how could I possibly have failed to suppose that the same fear would keep you from the drinking bout which followed?

[40.14]"There is nothing to blush for, father, in my having taken wine with my comrades somewhat freely on such a festal day. I wish you would find out with what fun and merriment we kept up the banquet at my house last night, and how delighted we were - perhaps improperly - at our side not being the worst in the youthful assault-at-arms. My unhappiness and my fears have quite shaken off the effects of the wine; had these circumstances not arisen, we dangerous plotters should now all be lying fast asleep. If I had been going to attack your house, and after getting possession of it kill the owner, should I not have kept myself and my soldiers from wine for one day at least? And that I may not be alone in taking this simple and ingenuous line of defence, my brother, by no means a suspicious person, says: 'I know of nothing more, I can bring no further proof than his having come to my house with a sword.' If I were to ask 'whence do you know even this much?' you would have to confess

either that my house was filled with your spies, or that my comrades took their swords so openly that everybody saw them. And to take away all appearance of his having made previous enquiries, or of his proving me a criminal, now he wants you to ask those whose names he has given whether they had swords, as though there were any doubt about it. Then after being questioned as to a fact they all admitted, they were to be treated as persons found guilty after trial. Why do you not ask that this question be put to them: 'Did you take your swords for the purpose of murdering him?' This is what you want to have made clear, and not the other point which is openly admitted. But they say that they took their swords for their own protection. Whether they did this rightly or wrongly is their affair, they must answer for their own action. My case is in no way affected by what they did, do not mix up the two things together. Or else explain whether we were going to attack you secretly or openly. If openly, why did we not all carry swords? Why did nobody take one besides those who had given your spy a thrashing? If secretly, what sort of a plan had we formed? After the party had broken up and I had left the table and four, as you say, remained behind for the purpose of attacking you when asleep, how could they have escaped, being as they were strangers belonging to my party, and, above all, objects of suspicion since they had been fighting not long before? How, too, could they have got away after murdering you? Could your house have been stormed and taken with four swords?

[40.15]"Why do you not drop this story of what happened last night and come back to your real grievance which supplies the fuel to your jealousy? 'Why, Demetrius, are people talking everywhere about your being king? Why do you appear in some people's eyes to be a more worthy successor to your father's position than myself? Why do you cloud with doubt and anxiety those hopes which, if you did not exist, would be assured?' So Perseus thinks, if he does not speak his thoughts. It is this that makes him my enemy, my accuser, it is this that floods your palace and your realm with slander and suspicion. But, my father, as I am bound in duty not to hope for the crown nor, perhaps, ever to dispute it, since I am the younger and it is your wish that I should give place to the elder, so have I felt it my duty in the past and so I feel it today, never to show myself unworthy of you, my father, or unworthy of all my nation. For that would be caused by my faults, not by modestly giving way to him who has right and justice

on his side. You bring up the Romans against me and turn into a crime what ought to be a source of pride. I never asked to be handed over to the Romans as a hostage, or to be sent as an envoy to Rome, but when sent by you I did not refuse to go. On both occasions I so conducted myself that neither you nor your sovereignty nor the whole of Macedonia could be ashamed of me. So you, my father, were the cause of my friendship with the Romans; as long as peace exists between you and them I too shall stand in favour with them. If war breaks out I, who have been a hostage and a not unsuccessful representative of my father, shall be their most determined foe. I do not claim today that my interest with the Romans shall help me, but I do pray that it may not injure me. It did not begin in a time of war nor is it reserved for a time of war. I was a pledge of peace, I was sent as an envoy to maintain the peace: neither of these should be put down to my credit or to my fault. If I have been guilty of undutiful conduct towards you, my father, or criminal designs against my brother, I am prepared to undergo any punishment. If I am innocent, I beg that I may not fall a victim to envy and malice, since I cannot suffer for any crime.

"My brother is not accusing me for the first time today, but it is the first time he is doing so openly, though I have done nothing to deserve it. If my father were angry with me it would be your duty, as the elder brother, to intercede for the younger to obtain pardon for my offence in consideration of my youth. Where I ought to find protection, I find a determination to destroy me. I have been dragged away whilst only half-awake from a banquet and a wine party to answer a charge of fratricide. Without advocates, without defending counsel, I am compelled to plead for myself. Had I to plead for another I should have taken time to think out and arrange my speech, and what else would be at stake but my reputation as a skilful pleader? Unaware of the reason for being summoned, I found you in an angry mood, ordering me to defend myself, and my brother making accusations against me. He delivered a carefully prepared and thought-out speech against me; I had only such time as he took to make his accusations in which to learn what the matter at issue was. What was I to do in those few moments, listen to my accuser or think out my defence? Thunderstruck by a danger so sudden and so unlooked for, I could with difficulty understand the charges brought against me, still less could I see the right way of defending myself

against them. What hope would there be for me if I had not my father as my judge? If my brother has a greater share of his affection, I, who have to defend myself, ought at all events not to have a less share of his compassion. I am praying you to preserve me in your own interest as well as mine; he demands that you shall put me to death for his own security. What do you think he will do to me when you have left your crown to him, if even now he thinks it right that my life should be sacrificed for him?"

[40.16]Tears and sobs prevented him from saying more. Philip ordered them to withdraw, and after a short consultation with his friends gave his decision. He would not, he said, base his judgment of their case upon what they had said, or upon an hour's discussion, but upon an investigation into the life and character of each and a close observation of their language and behaviour on all occasions, important and unimportant alike. Everybody saw from this that whilst the charges arising out of the last night's proceedings were easily disposed of, Demetrius' excessive friendliness with the Romans had aroused suspicion. These incidents which occurred during Philip's lifetime became, so to speak, the seeds of the Macedonian war, which was fought mainly against Philip.

Both the consuls left for Liguria, which was the only consular province, and on account of their successes there thanksgivings were ordered for one day. About 2000 Ligurians came to the extreme frontier of Gaul where Marcellus was encamped, begging him to accept their surrender. Marcellus told them to stay where they were and wait till he had communicated with the senate. The senate instructed the praetor, M. Ogulnius, to inform Marcellus by letter that the consuls whose province it was were better able to decide than they were what course would be most in the interests of the State. At the same time, if Marcellus accepted the surrender of the Ligurians, the senate did not wish their arms to be taken from them and thought it right that they should be sent to the consul. The praetors took up their respective commands at the same time. P. Manlius went to Further Spain, which he had administered in his former praetorship; Q. Fulvius Flaccus proceeded to Hither Spain and took over the army from A. Terentius, for owing to the death of P. Sempronius, Further Spain had been without a magistrate. Whilst Fulvius Flaccus was besieging a Spanish town called Urbicua he was attacked by the Celtiberians. Many fierce actions took place, and there were severe

losses in killed and wounded amongst the Romans. No display of force could draw Fulvius away from the siege, and his perseverance finally conquered. Exhausted by so many battles the Celtiberi retired, and the city, now that assistance was withdrawn, was taken in a few days and sacked. The praetor gave the booty to the soldiers. Beyond this capture Fulvius did nothing worth recording, nor did P. Manlius, beyond concentrating his scattered forces. They withdrew their armies into winter quarters. Such was the record of that summer in Spain. Terentius, after giving up his command there, entered the City in ovation. He brought home 9320 pounds of silver, 82 pounds of gold and seven golden crowns weighing 60 pounds.

[40.17]During the year a commission went from Rome to arbitrate between the Carthaginian government and King Masinissa on a claim to certain territory. Masinissa's father, Gala, had taken it from the Carthaginians, Syphax had expelled Gala from it, and out of complaisance to his father-in-law Hasdrubal had made a present of it to the Carthaginians, and this year Masinissa had expelled the Carthaginians. The matter was contested as hotly in argument as it had been with the sword, and came before the Romans for decision, who investigated it on the spot. Masinissa said that he had recovered the territory as part of his ancestral dominions and held it by the universally acknowledged right of inheritance. His case was the stronger of the two, both by title and by actual possession. The only thing he feared was that he might be at a disadvantage should the Romans shrink from appearing to favour a monarch who was their friend and ally at the cost of a people who were enemies to him and them alike. The commissioners decided nothing as to the right of possession and referred the whole question to the senate. Nothing further took place in Liguria. The Gauls retreated into the pathless forests and then dispersed to their villages and forts. The consuls also wanted to disband their army, and consulted the senate about doing so. The senate ordered one of them to disband his army and proceed to Rome to elect the magistrates for the next year; the other was to winter with his legions at Pisae. There were rumours that the transalpine Gauls were arming and it was uncertain into what part of Italy they might descend, so the consuls arranged that Cn. Baebius should go to hold the elections, as his brother Marcus was a candidate.

[40.18]The new consuls were M. Baebius Tamphilus and P. Cornelius Lentulus. Liguria was assigned as their province. The assignment of provinces to the new praetors was as follows: The civic jurisdiction fell to Q. Petilius, the alien to Q. Fabius Maximus; Gaul to Q. Fabius Buteo; Sicily to Tiberius Claudius Nero; Sardinia to M. Pinarius; Apulia to L. Duronius, who was also to command in Histria, because news was received from Tarentum and Brundisium that the fields on the coast were being plundered by pirates from overseas. The same complaint was made by Marseilles about the ships of the Ligurians. The military requirements were then determined. Four legions were assigned to the consuls, each consisting of 5200 Roman infantry and 300 cavalry, and also 15,000 infantry to be drawn from the Latin allies and 800 cavalry. The former praetors remained in Spain with the armies they had, and reinforcements were sent to them of 3000 Roman citizens and 200 cavalry, together with 6000 allied infantry and 300 cavalry. Naval affairs were not lost sight of. The consuls appointed two officers to man twenty ships with crews of Roman citizens who had the status of freedmen, the officers alone being freeborn citizens. These two officers were responsible for the defence of the coast, each commanding ten ships, and their spheres of action were separated by the promontory of Minerva, which formed the centre of the defence; the operations of the one extending from that point westward to Marseilles; those of the other, south and east as far as Barium.

[40.19]Many dreadful portents were witnessed in Rome this year and reported from outlying districts. In the precincts of the temple of Vulcan and Concord there was a rain of blood, and the pontiffs announced that the spears had been shaken and the image of Juno Sospita at Lanuvium had shed tears. So severe an epidemic broke out in the market-towns and country districts that Libitina was hardly able to supply the materials for the funerals. Greatly alarmed by these portents and by the ravages of the pestilence, the senate decreed that the consuls should sacrifice full-grown victims to whatever deities they thought proper, and that the Sacred Books should be consulted. The Keepers of these Books decreed that special intercession should be offered at all the shrines for a whole day. They also advised that intercessions and suspension of work for three days should be observed throughout Italy. The senate approved and the consuls published an edict ordering the observance. Owing to a revolt in

Corsica and hostilities on the part of the Ilians in Sardinia it had been decided to call up 8000 Latin and allied infantry and 300 cavalry for the praetor M. Pinarius to take with him to Sardinia, but such was the extent and deadly nature of the pestilence that the consuls reported the number could not be made up owing to the great mortality and wide-spread sickness. The praetor was ordered to take what he wanted from C. Baebius, who was wintering in Pisae, and to sail from there to Sardinia. The praetor L. Duronius, to whom the province of Apulia had fallen, was further charged with an investigation into the Bacchanalia, some remains of which had come to light the previous year, seeds as it were sown by the earlier mischief. L. Pupius, the former praetor, had begun an inquiry but it had not been brought to a definite issue. The senate sent orders to the new praetor to cut the evil out and prevent it from spreading. Acting on the authority of the senate, the consuls brought before the people a measure dealing with bribery.

[40.20]Some deputations were introduced to the senate. The first to be received were those from Eumenes, Ariarathes of Cappadocia and Pharnaces, King of Pontus. They were simply informed that commissions would be sent to examine and settle the conflicting claims. These were followed by envoys from the Lacedaemonian refugees and the Achaeans; the refugees were led to hope that the senate would order the Achaeans to repatriate them. The Achaeans explained to the satisfaction of the House the recovery of Messene and the settlement which had been made there. Two envoys also arrived from Philip of Macedonia - Philocles and Apelles. They were not sent with the view of obtaining anything from the senate, but simply to watch what was going on and to find out what those conversations were which Perseus had accused Demetrius of holding with the Romans, and in particular those with T. Quinctius, about the succession to the throne in opposition to his brother. The king had sent these men as being impartial and not biassed in favour of either, but they, too, were agents and accomplices in Perseus' treachery against his brother. Demetrius, ignorant of all the intrigues against him save what he had learnt from the recent outbreak of his brother's malice, was neither very sanguine nor altogether hopeless of a reconciliation with his father, but he gradually felt less confidence in his father's feelings towards him as he observed his brother constantly at his ear. To avoid grounds for further suspicion he was

circumspect in all he said and did, and he took particular care to abstain from any mention of the Romans or any intercourse with them. He would not even have them write to him, because he saw that his father was particularly exasperated by this charge being brought against him.

[40.21]To prevent his soldiers from becoming demoralised through inaction, and at the same time to remove any suspicion of his meditating a war with Rome, Philip ordered his army to assemble at Stobi in Paeonia, and from there he led them into Maedica. He had been seized with a great desire to ascend the crest of Mt. Haemus, as he shared the common belief that the Pontus and the Hadriatic, the Hister and the Alps could all be seen from that point, and he believed that this prospect before his eyes would in no small measure serve to guide his plans in a war with Rome. He questioned those who knew the country about the ascent of Haemus, and all agreed that was impossible for an army, and extremely difficult even for a small lightly equipped force. His younger son he had decided not to take with him, and in order to lessen his disappointment, he engaged in familiar conversation with him and asked him, after putting before him the difficulties of the march, whether he thought he ought to go on or abandon the enterprise. If, however, he went on, he said, he could not forget the example of Antigonus, who, whilst tossing about in a violent storm and all his family in the ship with him, is reported to have given his children a precept for themselves to remember and to hand on to posterity, namely, that no one should expose himself to danger when accompanied by the whole of his family. Mindful of that precept Philip said that he would not expose both his sons to the chances of accident in what he proposed to do, and as he was taking his older son with him, he should send his younger son back to Macedonia as the stay of his hopes and the guardian of his kingdom. Demetrius was quite aware that the reason for his being sent back was that he might not be present at the council of war when Philip consulted his staff, whilst the various localities were lying in view, as to the quickest route to the Hadriatic, and the future conduct of the war. He was bound not only to obey his father's order but to show his approval of it, lest a reluctant compliance might arouse suspicions. To guarantee the safety of his journey to Macedonia, Didas, one of the royal officers who was governor of Paeonia, received orders to escort him with a small force. This man, also,

Perseus had drawn into the conspiracy against his brother, as he had most of his father's friends, after it had become clear to everyone to which of the two sons the king's sympathies pointed as the heir to the throne. Didas' instructions were for the time being to insinuate himself by every kind of obsequiousness into Demetrius' confidence and intimacy so as to be able to draw out all his secrets and ascertain his hidden sentiments. So Demetrius departed amidst greater danger from his escort than if he had travelled alone.

[40.22]Philip's first objective was Maedica. From there he marched across the desolate country between Maedica and the Haemus, and in seven days reached the foot of the mountain range. Here he remained encamped for one day to select those whom he was to take with him, and the next day resumed his march. The first part of the ascent did not involve much labour, but as they gained higher ground the country became more wooded and overgrown; and one part of their route was so dark that, owing to the density of the foliage and the interlacing of the branches, the sky was hardly visible. As they approached the crest, everything was veiled in cloud, an uncommon occurrence at great altitudes, and so dense that they found marching as difficult as at night. At last on the third day they reached the summit. After their descent they said nothing to contradict the popular belief; more, I suspect, to prevent the futility of their march from becoming a subject of ridicule than because the widely separated seas and mountains and rivers could really be seen from one spot. They were all distressed by the hardships of the march, the king most of all, owing to his age. He raised two altars there to Jupiter and the Sun, on which he offered sacrifices, and then commenced the descent, which occupied two days, the ascent having taken three. He was afraid of the cold nights, which, though it was the dog-days, were like the cold in winter.

After all the difficulties he had had to contend against during those five days, he found things just as cheerless in his camp, where they were destitute of everything. This was inevitable in a district surrounded on all sides by uninhabited country. After one day in camp to rest the men whom he had taken with him, he hastened into the Dentheletic country at a speed which resembled a flight. This people were his allies, but owing to lack of food the Macedonians plundered them as though they were on enemy soil. Not content with robbing the homesteads, they devastated some of the villages, and it

was with feelings of deep shame that the king heard his allies making fruitless appeals to the gods who watch over treaties and invoking his help and protection. Carrying off a supply of corn he returned to Maedica and made an attempt on a city called Petra. He fixed his camp on a plain which extended to the city and sent Perseus with a small force to approach the place from higher ground. With danger threatening them from all sides the townsmen gave hostages and surrendered the place for the time being, but as soon as the army had withdrawn they forgot all about the hostages, deserted their city and fled to their mountain strongholds. Philip returned to Macedonia with his men worn out to no purpose by labours and hardships innumerable, and with his mind filled with suspicions of his son through the cunning and treachery of Didas.

[40.23] This man, as I stated above, was sent to escort Demetrius. The young prince was incautious and angry, not without reason, at the way his relations treated him. Didas humoured him and pretended to be indignant on his account, and offered, unsolicited, to assist him in every way, and gave him his word of honour to be true to him. In this way he succeeded in eliciting his secret thoughts. Demetrius was meditating flight to the Romans and hoped to get away safely across Paeonia. That the governor of this province should further his project he regarded as a boon from heaven. This design was at once betrayed to his brother, and on his advice communicated to his father. A letter was sent to Philip while he was besieging Petra. On this, Heliodorus, the leading man amongst the friends of Demetrius, was flung into prison and orders were given to keep a secret watch on Demetrius. This more than anything else made the king's journey to Macedonia a very melancholy one. This new charge disturbed him greatly, but he felt that he ought to await the return of those who had been sent to find out everything in Rome. For some months he remained in suspense; at length his envoys returned after having settled beforehand in Macedonia what report they should bring back from Rome. In addition to all their other treachery, they handed to the king a forged letter sealed with a counterfeit of T. Quinctius' seal. The letter deprecated any harsh judgment of Demetrius, and stated that whatever communication the young prince in his eagerness for the crown had had with him, T. Quinctius, he was certain that he would do nothing to injure any of his relatives, nor was the writer a man who could be thought to countenance any unfilial conduct. This

letter made Perseus' accusations appear more credible. Heliodorus was at once submitted to torture and died without implicating anyone.

[40.24]Perseus made fresh accusations against Demetrius to his father. He alleged the preparations for his flight and the bribery of some who were to accompany him. The forged letter purporting to come from T. Quinctius, he said, was the strongest proof of his guilt. No pronouncement was, however, made as to the infliction of any severe punishment, the intention was rather that he should be put to death secretly, not through any anxiety felt about him, but that Philip's designs against the Romans might not be revealed by a public sentence of death. Philip was marching from Thessalonica to Demetrias, and he sent Demetrius, still accompanied by Didas, to Astraeum in Paeonia, and Perseus to Amphipolis, to receive the Thracian hostages. It is said that as Didas was departing, Philip gave him instructions about putting his son to death. Didas arranged a sacrifice or else pretended to do so, and Demetrius was invited to the sacrificial banquet and went to Heraclea for the purpose. It is said that poison was given to him at the banquet, and that as soon as he drank the goblet he became aware of it. Very soon he was in great suffering, and he left the table and retired to his room. There he lay in agony exclaiming against his father's cruelty, and accusing his brother and Didas of murdering him. Then one Thyrsis of Stubera and a Beroean named Alexander entered the room, threw the bed-clothes over his head and suffocated him. In this way the unoffending youth was killed, as his enemies were not content with only one way of putting him to death.

[40.25]During these occurrences in Macedonia, L. Aemilius Paulus, whose command had been extended on the expiry of his consulship, marched against the Ingauni in Liguria. As soon as he had encamped on the enemy's territory, envoys came to him ostensibly to sue for peace, but really as spies. Paulus told them that he only made terms with those who surrendered. They did not definitely reject his conditions, but explained that they would require time to induce their people, a rustic population, to submit. An armistice for ten days was granted them. Then they asked that his soldiers might be forbidden to cross the mountains to gather fodder and wood - that cultivated part of the country formed part of their territory. They gained his consent to this also, and at once concentrated an enormous host

behind those very mountains from which they were keeping their enemies away. A fierce attack was made on the Roman camp, all the gates being assaulted at once, and they kept up the attack with the utmost violence during the whole day. The Romans had no room for advancing against them, no sufficient ground for forming their battle-line. Massed in close order at the gates they defended the camp more by forming a barrier than by actual fighting. At sunset the enemy withdrew and Paulus sent two troopers to the proconsul at Pisae with a despatch informing him that his camp was invested in breach of the armistice, and asking him to come to his assistance as soon as possible. Baebius had handed over his army to the praetor M. Pinarius, who was on his way to Sardinia; however, he wrote to inform the senate that L. Aemilius was blockaded in his camp by the Ligurians, and he also wrote to M. Claudius Marcellus, whose province adjoined, that if he thought it wise he should transfer his army from Gaul to Liguria and relieve L. Aemilius from investment. This assistance would have been long in coming. The following day the Ligurians renewed their attack on the camp. Though L. Aemilius knew that they would come, and though he could have led out his men in line of battle, he kept them within their rampart in order that he might delay a battle till such time as Baebius could come with his army from Pisae.

[40.26]Baebius' despatch created considerable alarm in Rome, which was increased by the arrival of Marcellus a few days later. He had handed over his army to Fabius, and he told the senate that there was no hope of the army in Gaul being transferred to Liguria because it was engaged with the Histri, who were trying to prevent the formation of the colony at Aquileia. Fabius, he explained, had marched thither, and could not retrace his steps now that war had begun. There was one chance of sending help, though that would be later than the emergency demanded, namely, if the consuls hastened their departure for the province. All the senators were loud in their demand that they should go. The consuls declared that they would not go until the enrolment of troops was completed, and it was not through remissness on their part but through the violence of the epidemic that the completion was delayed. They were unable, however, to hold out against the unanimous determination of the senate, and left the City wearing the paludamentum, having appointed a day for the men whom they had enrolled to assemble at

Pisae. The consuls were empowered to raise men indiscriminately as they went on, and take them with them. The praetors Q. Petilius and Q. Fabius received orders to raise fresh troops; Petilius to enrol two emergency legions of Roman citizens and to require all under fifty years of age to take the military oath; Fabius to demand from the Latin allies 15,000 infantry and 800 cavalry. C. Matienus and C. Lucretius were appointed to the naval command and ships were fitted out for them. Matienus, who was to command it in the Gulf of Gaul, was also ordered to bring his fleet as soon as possible down to the coast of Liguria in case it could be of any assistance to L. Aemilius and his army.

[40.27]As there were no signs of assistance coming anywhere, Aemilius supposed that his mounted messengers had been intercepted, and felt that he ought not any longer to delay trying what Fortune had in store for him single-handed. The enemy's attacks showed less spirit and force, and before their next assault he drew up his army at the four gates in order that on the signal being given they might make a simultaneous sortie on all sides. To the four praetorian cohorts he added two others with M. Valerius, one of his staff officers, in command, and gave them orders to sally from the praetorian gate. At the southern gate he posted the hastati of the first legion; the principes of this legion being in reserve. M. Servilius and L. Sulpicius, both military tribunes, were in command of these. The third legion was similarly drawn up at the north gate, with this difference that the principes formed the front, the hastati the reserve. The military tribunes Sextius Julius Caesar and L. Aurelius Cotta were in command of this legion. Q. Fulvius Flaccus, a staff officer, was posted with the right division of allied troops at the quaestorian gate. Two cohorts and the triarii of the two legions were ordered to remain and guard the camp. The general visited all the gates to harangue his men and whet their rage against the enemy by everything that could exasperate them. He spoke bitterly of the treachery of the enemy who, after suing for peace and being allowed a suspension of arms, had come to attack the camp while the armistice was actually in force, in violation of all international law. He pointed out what a disgrace it was for a Roman army to be hemmed in by Ligurians, who could be more truly described as a horde of robbers than as a regular enemy. "If," he continued, "you get out of this with the help of others, and not by your own courage, with what face will any of you meet - I do

not say the soldiers who defeated Hannibal, Philip or Antiochus, the greatest generals and monarchs of our time, but - those who have so often pursued and cut to pieces these very Ligurians as they fled like frightened cattle through their pathless forests? What the Spaniards, the Gauls, the Macedonians, the Carthaginians did not dare to do, this the Ligurian is doing today; he comes up to the Roman rampart and actually surrounds and attacks our camp. And yet, formerly, it was hard to discover him after a close search as he lurked in his trackless hiding-places!" His words were met by a unanimous shout of approval from the soldiers. It was no fault of theirs, they said; no one had given the signal for a sortie; let him give the signal now, he would soon learn that the Romans and the Ligurians were the same that they had always been.

[40.28]The two camps of the Ligurians were on the near side of the mountain. During the first days they all used to march out of their camps at sunrise in proper formation; afterwards they did not take up arms unless they had been gorged with food and wine; they left their camps without any order, scattered about the field, feeling confident that their enemy would not advance outside his rampart. Whilst they were coming up in this disorderly fashion, the battle-shout was suddenly raised by every one in the camp, camp-followers and sutlers alike, and the Romans dashed out from all the gates. So little did the Ligurians expect this that they were thrown into as much confusion as if they had fallen into an ambush. For a few moments there was some appearance of a battle, then there was a wild flight and slaughter of the fugitives in all directions. The signal was given to the cavalry to mount their horses and allow no one to escape; the enemy were all driven headlong into their camp and then driven out of it. Over 15,000 Ligurians were killed that day and 2500 taken prisoners. Three days afterwards the entire tribe of the Ingauni made their submission and gave hostages. Search was made for the pilots and sailors who had been in the pirate ships, and they were all placed under guard. Thirty-two of these ships were captured by Matienus off the coast of Liguria. L. Aurelius Cotta and C. Sulpicius Gallus were sent to Rome to report what had happened and also to request that L. Aemilius, having brought his province into order, might be permitted to leave and bring away his soldiers with him and then disband them. Both requests were granted by the senate and thanksgivings at all the shrines were ordered for three days. Petilius

was ordered to disband the citizen legions, and Fabius received orders to suspend the enrolment of Latin and allied troops. The City praetor was also ordered by the senate to write to the consuls and inform them that the senate thought it right that the men which had been hastily raised to meet the emergency should be disbanded as soon as possible.

[40.29]A colony was settled this year at Gravisca in Etruria on territory which had formerly been taken from the Tarquini. Five jugera were given to each man; the supervisors of the settlement were C. Calpurnius Piso, P. Claudius Pulcher and C Terentius Istra. The year was marked by a drought and failure of the crops. It is recorded that no rain fell for six months. During this year while labourers were digging at some depth on land belonging to L. Petilius, a scrivener who lived at the foot of the Janiculum, two stone chests were discovered about eight feet long and four wide, the lids being fastened down with lead. Each bore an inscription in Latin and Greek; one stating that Numa Pompilius, son of Pompo and king of the Romans, was buried there, and the other saying that it contained his books. When the owner at the suggestion of his friends had opened them, the one which bore the inscription of the buried king was found to be empty, with no vestige of a human body or of anything else, so completely had everything disappeared after such a lapse of time. In the other there were two bundles tied round with cords steeped in wax, each containing seven books, not only intact but to all appearance new. There were seven in Latin on pontifical law, and seven in Greek dealing with the study of philosophy so far as was possible in that age. Valerius Antias says further that they were Pythagorean books, thus shaping his belief to the common opinion that Numa was a disciple of Pythagoras, and trying to give probability to a fiction.

The books were first examined by the friends who were present. As the number of those who read them grew, and they became widely known, Q. Petilius, the City praetor, was anxious to read them and took them from Lucius. They were on very friendly terms; when Q. Petilius was quaestor he had given Lucius Petilius a place on the decury. After perusing the most important passages he perceived that most of them would lead to the break-up of the national religion. Lucius promised that he would throw the books into the fire, but before doing so said that he should like to find out, if allowed to do

so, whether he could reclaim them either by the right of possession or by the authority of the tribunes of the plebs, without, however, disturbing his friendly relations with the praetor. The scrivener approached the tribunes, and the tribunes left the matter for the senate to deal with. The praetor stated that he was ready to declare on oath that the books ought not to be preserved. The senate held the praetor's asseveration to be sufficient, and that the books ought to be burnt as soon as possible in the comitium. Whatever sum the praetor and the majority of the tribunes thought a fair price for the books was to be paid to the owner. The scrivener refused to accept it. The books were burnt in the comitium in the sight of the people in a fire made by the victimarii.

[40.30]A serious war broke out this summer in Hither Spain. The Celtiberi had got together as many as 35,000 men; hardly ever before had they raised so large a force. Q. Fulvius Flaccus was in charge of the province. On hearing that the Celtiberi were arming their fighting men, he had drawn from the friendly tribes all the troops he could, but he was very inferior to the enemy in numbers. In the first days of spring he led his army into Carpetania and fixed his camp near the town of Aebura, a small detachment being sent to occupy the town. A few days afterwards the Celtiberi encamped at the foot of a hill about two miles distant. When the Roman praetor became aware of their proximity, he sent his brother Marcus with two squadrons of native cavalry to reconnoitre the enemy's camp. His instructions were to approach as closely as possible to the rampart so as to get some idea of the size of the camp, but if he saw the enemy's cavalry coming, he was to retire without fighting. These instructions he carried out. For some days nothing took place beyond the appearance of these two squadrons, and they were always withdrawn after the enemy's cavalry had emerged from their camp. At last the Celtiberi issued from their camp with the whole of their infantry and cavalry, and formed up in line of battle midway between the two camps and remained stationary. The ground was level and well adapted for a battle. There the Spaniards stood in expectancy, whilst the Roman general kept his men within their rampart. For four successive days the enemy took their stand in battle-order on the same spot, but the Romans made no move. After this the Celtiberi rested in their camp as they had no opportunity of fighting; the cavalry alone rode out and took station as advanced pickets, in case of any movement on the

part of their enemy. Both sides went out to collect fodder and wood in the rear of their camps, neither of them interfering with the other.

[40.31]When the Roman praetor had satisfied himself that after so many days' inaction the enemy would not expect him to take the initiative, he ordered L. Acilius to take the division of allied troops and 6000 native auxiliaries, and make a circuit round the mountain which lay behind the enemy's camp. When he heard the battle-shout he was to charge down on their camp. They started in the night to escape observation. At daybreak Flaccus sent C. Scribonius, the commander of the allied troops, with his "select" cavalry up to the enemy's rampart. When the Celtiberi saw them approaching more closely and in greater strength than they had usually done, the whole of their cavalry streamed out from the camp and the signal was given for the infantry also to advance. Scribonius, acting on his instructions, no sooner heard the clatter of the advancing cavalry than he turned his horses' heads and made for his camp. The enemy followed in hot haste. First their cavalry came up and soon after the infantry, never doubting but that they would that day capture the Roman camp. They were not now more than half a mile from the rampart. As soon as Flaccus considered that they were sufficiently drawn off from guarding their own camp he sallied forth from his camp, his army which had previously been drawn up inside the rampart being formed into three separate corps. The battle-shout was raised not only to stimulate the ardour of the combatants but also to reach the ears of those who were amongst the hills. Without a moment's delay these charged down, as they had been ordered, on the enemy's camp, where not more than 5000 men were left on guard. The strength of the assailants compared with their own scanty numbers and the suddenness of the attack so appalled them that the camp was taken with little or no resistance. When it was captured Acilius set fire to that part of it which could be best seen from the field of battle.

[40.32]The Celtiberi who were in the rear were the first to catch sight of the flames; then word ran through the whole line that the camp was lost and was burning furiously. This increased the dismay of the enemy and the courage of the Romans. On the one hand there were the cheers of their victorious comrades, on the other the sight of the hostile camp in flames. The Celtiberi were for a few moments uncertain what to do, but as there was no shelter for them if they

were defeated, and their only hope lay in keeping up the struggle, they recommenced the fight with greater determination. Their centre was being closely pressed by the fifth legion, but they advanced with more confidence against the Roman left where they saw that their own countrymen were posted, and it would have been repulsed had not the seventh legion come up in support. The troops left to hold Aebura appeared in the middle of the battle and Acilius was in the enemy's rear. Between the two the Celtiberi were being cut to pieces; the survivors fled in all directions. The cavalry were sent after them in two divisions and caused great slaughter among them. As many as 23,000 men were killed that day, and 4700 were made prisoners; 500 horses and 88 military standards were captured. It was a great victory, but not a bloodless one. Out of the two legions rather more than 200 Roman soldiers fell, 830 out of the Latin allies, and 2400 out of the native auxiliaries. The praetor led his victorious army back to camp. Acilius was ordered to remain in the camp he had captured. The following day the spoils were collected, and those who had shown conspicuous bravery were rewarded in the presence of the whole army.

[40.33]The wounded were carried into Aebura and the legions marched through Carpetania to Contrebia. When this city was invested, the townspeople sent to the Celtiberi for assistance. This was delayed, not through any reluctance on the part of the Celtiberi, but because they could not make their way over the roads which were rendered impassable and the rivers which were flooded by incessant rain. Despairing of any help from their countrymen, the inhabitants surrendered. Flaccus found himself compelled by the terrible storms to move his entire army into the city. The Celtiberi, meanwhile, had started from home in ignorance of the surrender, and as soon as the rain stopped they succeeded at last in crossing the rivers and arrived before Contrebia. They saw no camp outside the walls, and concluding that it had been transferred elsewhere, or else that the enemy had withdrawn, they approached the town without taking precautions or keeping any proper formation. The Romans made a sortie from two gates, and attacking them whilst in disorder, routed them. The very thing that made resistance impossible, namely, their not marching in one body, or keeping with their standards, really helped the majority to escape, for the fugitives dispersed all over the field and the Romans could nowhere intercept any considerable

number together. Nevertheless, the killed amounted to 12,000 and the prisoners to more than 5000; 400 horses and 62 standards were also secured. The scattered fugitives made their way to their homes, and meeting another body of Celtiberi who were going to Contrebia, stopped them by informing them of the surrender of the place and of their own defeat. All promptly dispersed to their forts and villages. Leaving Contrebia Flaccus led the legions through Celtiberia, ravaging the country as he marched and storming many of the forts until the greater part of the nation came in to make their surrender. Such were the incidents this year in Hither Spain. In Further Spain the praetor Manlius fought several successful actions with the Lusitanians.

[40.34]Aquileia, a city situated on land belonging to the Gauls, received this year a body of Latin colonists; 3000 infantry soldiers were settled there, and each man was allotted 50 jugera, the centurions 100, and the cavalry men 140. The supervisors of the settlement were P. Cornelius Scipio Nasica, C. Flaminius and L. Manlius Acidinus. Two temples were dedicated during the year, one to Venus Erycina, by the Porta Collina - this temple had been vowed by L. Porcius in the Ligurian war and was dedicated by his son - the other, the temple of Pietas in the Forum Olitorium. Manius Acilius Glabrio dedicated this temple and set up a gilt statue of his father Glabrio, the first gilded statue to be set up in Italy. He had himself vowed this temple on the day of his battle with Antiochus at Thermopylae and had also contracted for the building of it in accordance with a resolution of the senate. At the time of the dedication of these temples L. Aemilius Paulus celebrated his triumph over the Ingauni. Twenty-five golden crowns were borne in the procession; there was no other gold or silver in the triumph. Many Ligurian chiefs walked as prisoners before his chariot. To each soldier he gave as his share of the booty 300 ases. His triumph was notable for the presence of Ligurian envoys who had come to pray for a perpetual peace. So thoroughly had he made that people understand that they must never again take up arms except at the bidding of Rome. By order of the senate the praetor informed them in answer to their request that this was no new petition on the part of the Ligurians, there must be a new spirit and temper corresponding to it, and this rested above all with themselves. They must go to the consuls and carry out whatever they ordered. The senate would not

believe that the Ligurians meant honestly and sincerely to keep the peace on any one's word but the consuls'. Peace was established with them. In Corsica there was fighting with the natives, M. Pinarius slew 2000 of them in battle. Through this defeat they were driven to give hostages and also 100,000 pounds of wax. Pinarius took his army to Sardinia and fought successful actions with the Ilienses, a tribe which to this day is not thoroughly pacified. In the course of this year the hundred hostages were restored to the Carthaginians and the Roman people brought about peace not only on their side, but also on the side of Masinissa, who was in forcible occupation of the disputed territory.

[40.35]The consuls' province remained quiet. M. Baebius was recalled to Rome to conduct the elections. A. Postumius Albinus Luscus and C. Calpurnius Piso were the new consuls. The praetors elected were Tiberius Sempronius Gracchus, L. Postumius Albinus, P. Cornelius Mammula, Ti. Minucius Molliculus, A. Hostilius Mancinus and C. Maenius. All these magistrates entered upon office on the Ides of March. At the beginning of his year of office A. Postumius introduced to the senate L. Minucius, a staff officer, and two military tribunes, T. Maenius and L. Terentius Massiliota, who had come from Q. Fulvius Flaccus in Hither Spain. They gave a report of the two victorious battles, the surrender of the Celtiberi and the establishment of order throughout the province, and told the senate that there was no need of the pay which was usually sent nor of any supply of corn to the army for that year. They then requested that honour might be paid to the immortal gods for these successes and that Q. Fulvius should be allowed to bring back on his departure from Spain the army whose courage had been of such service to him and to many praetors before him. This was not only due to them, but it was all but inevitable, for the soldiers were in such a determined mood that it appeared impossible to keep them any longer in the province, and if they were not disbanded, they were prepared to leave without orders, or if they were kept back by a strong hand, would break out into a dangerous mutiny.

The senate ordered the consuls to take Liguria as their province. Then the praetors balloted for their provinces. Hither Spain fell to Tiberius Sempronius. As he was to succeed Q. Fulvius he did not want the province to be robbed of the veteran army and accordingly made the following speech in the senate: "I ask you, L. Minucius,

since you report that the province is in a settled state, whether it is your belief that the Celtiberi will always keep their word so that this province can be held without the presence of an army? If you can neither assure yourself nor give us any guarantee of their remaining permanently at peace, and still hold that in any case an army must be kept there, would you advise the senate to send such reinforcements as will only allow the time-expired soldiers to be released, the recruits being incorporated in the old army, or would you say that the veteran legions should be withdrawn and fresh ones enrolled and sent there, when the contempt felt for these raw recruits might possibly excite even the less aggressive barbarians to resume hostilities? To say that you have pacified and settled a province whose inhabitants are naturally warlike and aggressive may be easier than to do it. According to what I hear only a few communities, mainly those where we have made our winter quarters, have submitted to our authority; those further off are in arms. Under these circumstances, senators, I declare at the outset that I am ready to take the government of the province with the army which is there now. If Flaccus brings his legions with him, I shall select for my winter quarters places already pacified, and shall not expose my new soldiers to a most fierce enemy."

[40.36]In reply to these questions Minucius said that neither he nor any one else could possibly divine what the intentions of the Celtiberi were at the time or what they might be in the future. He could not therefore deny that it might be better for an army to be sent even to those of the natives who had been reduced to submission but were not accustomed to our rule. But whether there was need of the old army or of a new one was for him to say who was in a position to know how far the Celtiberi would keep the peace, and who had also definitely ascertained whether the soldiers would take it quietly if they were retained in the province. If their sentiments were to be inferred from what they say to one another, or from their exclamations when their commander addresses them on parade, then it ought to be known that they had openly and loudly declared that they would either keep their general in the province or else go back with him to Italy. This discussion was interrupted by the consuls, who gave it as their opinion that the right and proper course was for their province to be provided for before the question of a praetor's army was raised. A whole new army was decreed for the consuls; two Roman legions

for each with their full complement of cavalry and the usual proportion of Latin and allied troops, namely 15,000 infantry and 800 cavalry. With this army they were commissioned to make war on the Apuani in Liguria. P. Cornelius and M. Baebius were ordered to retain their commands until the consuls arrived, then after disbanding their army they were to return to Rome.

Then the question of the army for Tiberius Sempronius was settled. The consuls were ordered to enrol for him a fresh legion of 5200 infantry and 400 cavalry and an additional force of 1000 infantry and 50 cavalry. They were also to require the Latin allies to furnish 7000 infantry and 300 cavalry. Such was the army with which it was decided that Tiberius Sempronius should go to Hither Spain. Q. Flaccus received permission to bring away with him, if he thought fit, those soldiers, whether Roman citizens or allies, who had been transferred to Spain previous to the consulship of Spurius Postumius and Q. Marcius. When by the addition of the reinforcements the two legions had been raised above their normal strength, namely 14,000 infantry and 600 cavalry, Flaccus was at liberty to bring away all in excess of that number whose bravery had been of such service to Flaccus in his two successful actions against the Celtiberi. Thanksgivings were also decreed for his good services to the State. The other praetors were then sent off to their provinces; Q. Fabius Buteo was continued in his command in Gaul. It was decided that there should be only eight legions for that year besides the old army in Liguria who were expecting their discharge shortly. Even that force was with difficulty made up owing to the pestilence which had for three years been devastating Rome and Italy.

[40.37]The death of the praetor Tiberius Minucius and not long after that of the consul C. Calpurnius, followed by those of many distinguished men of all ranks, came to be regarded as a portent. C. Servilius, the Pontifex Maximus, was instructed to search in the pontifical rolls for the method of appeasing the wrath of the gods, and the Keepers of the Sacred Books were to examine their Sibylline Books. The consul was ordered to vow and offer gilded statues to Apollo, Aesculapius and Salus. The Keepers of the Sacred Books proclaimed special intercessions for two days in the City, and in all market-towns and places of public resort. All who were above twelve years of age took part in the intercessions, wearing wreaths of bay and carrying branches of it in their hands. Men began to suspect that

this was the work of criminals, and the senate ordered investigations to be made into some cases of alleged poisoning. C. Claudius was charged with this enquiry in the City and within a radius of ten miles from it; C. Maenius was to undertake it in the market-towns and places of public resort outside that limit, before he sailed for his province of Sardinia. The death of the consul aroused the strongest suspicion. He is said to have been murdered by his wife, Quarta Hostilia. When her son Q. Fulvius Flaccus was declared consul in place of his step-father, the death of Piso aroused much greater misgivings. Witnesses came forward who asserted that after Albinus and Piso had been declared consuls, Flaccus having been defeated in the election was reproached by his mother for having failed three times in his candidature for the consulship, and she went on to say that she was getting ready to canvass and would manage in less than two months to have him made consul. Amongst much other evidence bearing on the case this utterance of hers, which was only too truly confirmed by what followed, did most to secure her condemnation. While the consuls were detained in Rome by the enrolment of fresh troops and matters were still further delayed by the death of one of them, and the holding of an election to choose his successor, P. Cornelius and M. Baebius, who during their consulship had done nothing of any importance, now, at the beginning of spring, led their armies against the Apuani.

[40.38] This Ligurian tribe, who had not expected that war would begin before the arrival of the new consuls, were taken wholly by surprise, and after a crushing defeat surrendered to the number of 12,000. After consulting the senate by letter, Cornelius and Baebius decided to remove them from their mountains into some open and level country far from their homes, so that there could be no hope of return; for they did not see any other end of the Ligurian wars. There was some land in Samnium, forming part of the State domain, which had belonged to Taurania. The consuls wished to settle the Ligurians in this district, and they issued an order for them to come down from Anidus and their mountain homes with their wives and children and take all their property with them. The Ligurians made frequent appeals through their envoys, begging that they might not be compelled to abandon their household gods, the homes in which they had been born and the burial-places of their forefathers, and promising to surrender their arms and give hostages. When they

found all their appeals fruitless, and knew that they were not strong enough for war, they obeyed the consuls' edict. As many as 40,000 freemen with their wives and children were transported at the expense of the government; 150,000 silver denarii were allowed them to procure necessities for their new homes. Cornelius and Baebius were also authorised to distribute and assign the land; they asked, however, that five assessors might be appointed to assist them, and the senate appointed them. After finishing this business they brought their army of veterans to Rome, and the senate decreed a triumph for them. These men were the very first to enjoy a triumph without having been engaged in a war. Only victims for sacrifice were led before the chariot; there were no prisoners, no spoils, nothing to distribute amongst the soldiers.

[40.39]As his successor was somewhat late in reaching Spain, Fulvius Flaccus led out his army from winter quarters and began to devastate the more distant parts of Celtiberia, where the inhabitants had not come in to surrender. By this action he irritated the natives more than he intimidated them, and secretly collecting a force they beset the Manlian Pass, through which they were tolerably certain that the Romans would march. Gracchus had instructed his colleague, L. Postumius Albinus, who was on his way to Further Spain, to inform Q. Fulvius that he was to bring his army to Tarraco, where he intended to disband the old soldiers, incorporate the reinforcements into the various corps and reorganise the whole army. Fulvius was also informed of the date of his successor's arrival which was close at hand. This information compelled Flaccus to abandon his projected operations and withdraw his army hastily from Celtiberia. The barbarians, ignorant of the true reason, and imagining that he had become aware of their rising and secret gathering in arms and was afraid of them, invested the pass all the more closely. When the Roman column entered the pass, the enemy rushed down upon it from both sides. As soon as Flaccus saw this, he allayed the first symptoms of tumult in the column by giving the order through the centurions for every man to stand where he was and get his weapons ready. The packs of the baggage animals were piled up in one place, and partly by his own exertions, partly through his officers, he got the whole force into such fighting order as the time and place required. He reminded his men that they had to deal with those who had twice made their submission and who were impelled by

treachery, not by true courage. His soldiers, he told them, would have returned home without distinguishing themselves; the enemy had given them the chance of a glorious and memorable homecoming. They would carry in triumph through Rome swords reddened with the slaughter of their foes and spoils dripping with their blood. Time did not allow him to say more; the enemy were upon them and fighting was already begun at the outermost points. Then the two lines closed.

[40.40]The battle was everywhere a desperate one, but with changing fortunes. The legionaries fought splendidly, nor did the two divisions of allied troops offer a less vigorous resistance. The native auxiliaries confronted by men similarly armed, but somewhat better fighters, could not hold their ground. When the Celtiberi found that their regular order of battle made them no match for the legions, they bore down upon them in wedge-formation, a maneuver which gives them such weight that in whatever direction they carry their attack it cannot be withstood. Even the legions were now thrown into disorder and the Roman line was all but broken. Fulvius, seeing this, galloped up to the legionary cavalry and shouted: "Unless you can come to the rescue it will be all over with this army." "Say," they shouted in reply, "what you want done, we shall not be slack in carrying out your orders." He replied: "Close up your squadrons, cavalry of the two legions, and let your horses go where the enemy wedge is pressing our men. Your charge will have all the greater force if you make it on unbitted horses." (We have heard that Roman cavalry have often done that and covered themselves with glory.) They removed the horses' bits and charged the wedge in both directions, first forward and then back again, inflicting great slaughter upon the enemy and shivering all their spears. When the wedge on which all their hopes rested was broken up, the Celtiberi so completely lost heart that they gave up almost any attempt at fighting and began to look about for means of escape. When the auxiliary cavalry saw the notable feat of the Roman horse they, too, fired by the courage of the others, and without waiting for orders, spurred their horses against the enemy who was now thoroughly shaken. This proved decisive; the Celtiberi fled precipitately in all directions, and the Roman commander, watching them as they turned their backs, vowed a temple to Fortuna Equestris and the celebration of solemn Games to Jupiter Optimus Maximus. The Celtiberi, scattered in flight, were cut to pieces all

through the pass. It is asserted that 17,000 of the enemy were killed on that day, and more than 4000 taken alive, together with 277 military standards and nearly 600 horses. The victorious army remained encamped in the pass. The victory was not without loss; 472 Roman soldiers, 1019 soldiers of the allies and 3000 native auxiliaries perished on the field. With its former glory thus renewed the victorious army marched to Tarraco. Tiberius Sempronius, who had landed two days before, went to meet Fulvius and congratulated him upon his successful conduct of affairs. They were quite at one as to which soldiers they should release and which retain. After releasing the time-expired men from their military oath, Fulvius embarked with them for Italy. Sempronius led the legions into Celtiberia.

[40.41]The two consuls advanced against the Ligurians by different routes. Postumius with the first and third legions closed round the mountains of Ballista and Suisмонтium, and posted detachments to block the passes. By thus cutting off their supplies and reducing them to complete destitution, he brought them to terms. Fulvius moved out from Pisae with the second and fourth legions, and marched against those of the Apuani who dwelt round the Macra, and after receiving their surrender placed some 7000 of them on board ship and sailing along the Etruscan coast landed them at Neapolis. From there they were transported to Samnium, and land was assigned to them amongst their own countrymen. The Ligurians who dwelt in the mountains had their vineyards cut down and their corn crops burnt by A. Postumius, until after suffering all the miseries of war they were compelled to submit and give up their arms. From there Postumius sailed on a tour of inspection along the coast occupied by the Ingauni and Intemelii. Before the new consuls joined the army which was to assemble at Pisae, A. Postumius remained in command. M. Fulvius Nobilior, brother of Q. Fulvius, who was a military tribune in the second legion, during his two months of office, disbanded the legion, having first exacted an oath from the centurions that they would carry the unexpended soldiers' pay back to the quaestors who had charge of the treasury. As soon as Aulus heard of this at Placentia, where he happened to be at the time, he followed the disbanded soldiers, and those whom he caught he sternly rebuked and took them back to Pisae, and sent word to the consul about the others. The consul laid the matter before the senate, and they passed a resolution that M. Fulvius should be relegated to a

part of Spain beyond New Carthage, and a letter was handed to him by the consul to be given to P. Manlius in Further Spain. The soldiers were ordered to rejoin their standards; and in the case of any soldier who did not return to the army, the consul received orders to sell him as a slave and all his goods. In consequence of their disgraceful conduct, it was decreed that this legion should only receive half the year's pay.

[40.42]L. Duronius, who had been commanding as praetor in Illyria, returned this year to Brundisium. In giving his report of what he had done, he unhesitatingly threw all the responsibility for the piracy on Gentius, the King of Illyria; it was from his dominions that all the ships had sailed which had ravaged the shores of the Hadriatic. He stated, further, that he sent envoys to the king to deal with the matter, but they had had no opportunity of meeting him. A deputation from Gentius went to Rome and explained that at the time when the Romans went to meet the king he happened to be lying ill in the most distant part of his kingdom. He asked the senate not to accept the trumped-up charges against him which his enemies had made. In reply to this, Duronius further stated that injuries had been inflicted on many Roman citizens and Latin allies in his dominions, and it was reported that Roman citizens were being detained in Corcyra. The senate decided that they should all be brought to Rome and that the praetor C. Claudius should investigate their case. Till then no reply should be given to Gentius or to his envoys.

Amongst the many who were carried off by the epidemic this year were some of the priests. The pontiff L. Valerius Flaccus died, and Q. Fabius Labeo was appointed in his place; P. Manlius, who had lately returned from Further Spain, one of the three superintendents of the sacrificial banquets, fell a victim, and Quinctus the son of M. Fulvius was appointed in his place, quite a young man at the time. The filling of the vacancy caused by the death of Cneius Cornelius Dolabella, the rex sacrificulus, led to a dispute between the Pontifex Maximus C. Servilius and L. Cornelius Dolabella, one of the two directors of naval affairs. The pontiff required him to resign his post in order that he might inaugurate him. On his refusing to do so, the pontiff imposed a fine upon him, and on his appeal the question of the fine was argued before the Assembly. When several of the tribes had declared by their votes that the naval director should comply with the pontiff's requirement, and that if he resigned his post the fine

should be remitted, a thunderstorm interrupted the proceedings. The pontiffs were thus prevented on religious grounds from appointing Dolabella, and they inaugurated P. Claelius Siculus, who had the next largest number of votes. At the close of the year the Pontifex Maximus died. C. Servilius Geminus was not only Pontifex Maximus, but also one of the Keepers of the Sacred Books. Q. Fulvius Flaccus was co-opted by the college as one of the pontiffs, and M. Aemilius Lepidus was made Pontifex Maximus in place of Geminus from among many distinguished competitors. In his place Q. Marcius Philippus was chosen as a Keeper of the Sacred Books. The augur Sp. Postumius also died and the other augurs co-opted P. Scipio the son of Africanus to fill the vacancy.

[40.43]During the year the people of Cuma sent a request to be allowed to use Latin as the language of law and commerce. Pisae offered land for the foundation of a Latin colony and was thanked by the senate. The supervisors of the settlement were Q. Fabius Buteo and the two Popillii Laenates, Marcus and Publius. C. Maenius, to whom Sardinia had been allotted, had also been charged with the investigation of the cases of poisoning which had occurred beyond the ten-mile radius from the City. A letter was received from him stating that he had sentenced 3000 offenders, and that the accumulating evidence was widening the scope of his enquiry; either he would have to give up the task or resign his province. Q. Fulvius Flaccus returned to Rome with a great reputation after his work in Spain. While he was still outside the City waiting for his triumph he was elected consul, together with L. Manlius Acidinus, and a few days later he entered the City in triumph with the soldiers he had brought with him. In the procession there were carried 124 golden crowns, 31 pounds of gold and 173,200 pieces of Oscan coinage. To each of the legionaries he gave from the sale of the booty 50 denarii, double the amount to the centurions and treble to the cavalry, and the same amount to the men of the Latin allies. All were alike granted double pay.

[40.44]A law was passed for the first time this year fixing the age at which men could be candidates for or hold a magistracy. It was introduced by L. Vilius, a tribune of the plebs, and from this his family received the cognomen of Annalis. After many years had elapsed, four praetors were elected this year under the Baebian Law, which laid down the rule that four praetors should be elected in

alternate years. Those elected were Cnaeus Cornelius Scipio, C. Valerius Laevinus, and two sons of M. Scaevola, Quinctius and Publius. The new consuls had the same province assigned to them as their predecessors, and the same number of Roman and allied infantry and cavalry. In the two Spains, Ti. Sempronius and L. Postumius had their commands extended and retained their armies. To reinforce them the consuls were instructed to enrol 3000 Roman infantry and 300 cavalry, and 5000 infantry and 400 cavalry from the Latins and allies. P. Mucius Scaevola received the civic jurisdiction and was also charged with the investigation into the poisoning cases in the City and within ten miles of it. Cn. Cornelius Scipio had the alien jurisdiction; Q. Mucius Scaevola, Sicily; and C. Valerius Laevinus, Sardinia. Before Q. Fulvius commenced his duties as consul he said that he wished to discharge the State from the obligation of his vows. He had on the day of his last battle with the Celtiberi vowed Games to Jupiter Optimus Maximus and also a temple to Fortuna Equestris, and he had collected money from the Spaniards for this purpose. A decree was made that the Games should be celebrated and that two commissioners should be appointed to see to the construction of the temple. A limit was fixed for the expenditure on the Games. It was not to exceed the sum which had been decreed for the celebration of the Games after the Aetolian war by Fulvius Nobilior, and the consul was forbidden to requisition or levy or accept or do anything in respect of these Games in contravention of the resolution passed by the senate during the consulship of L. Aemilius and Cn. Baebius. The senate made their decree in this form in consequence of the extravagant cost incurred in the Games exhibited by Ti. Sempronius in his capacity of aedile, a cost which proved burdensome not only to Italy and the Latin allies, but to the provinces abroad as well.

[40.45]The winter was a severe one owing to snow and storms of every description. The trees which were exposed to the icy winds were all blasted, and the cold season lasted longer than usual. One result of this was that the Latin Festival was broken up by a terrible storm which burst suddenly upon the Alban Mount, and the pontiffs ordered it to be celebrated afresh. The same storm flung down some statues on the Capitol and several localities were disfigured by lightning, amongst them the temple of Jupiter in Terracina, the Alban temple at Capua and one of the gates of Rome. In some places the

battlements were dislodged from the walls. Amongst these ominous occurrences it was reported from Reate that a mule had been foaled with only three feet. The Keepers were ordered to consult the Sacred Books, and they announced what deities were to be propitiated and what victims were to be offered, and they also enjoined special intercessions for one day. After this the Games which Q. Fulvius had vowed were exhibited on a grand scale for ten days. Next came the election of censors. The new censors were M. Aemilius Lepidus, Pontifex Maximus, and M. Fulvius Nobilior, who had celebrated his triumph over the Aetolians. Between these two distinguished men there was a feud which had often caused many violent quarrels between them in the senate and before the Assembly. When the election was over the censors took their seats, according to ancient custom, in curule chairs at the altar of Mars in the Campus Martius. Suddenly the leaders of the senate appeared, accompanied by a large body of citizens, and Q. Caecilius Metellus addressed them in the following terms:

[40.46]"We have not forgotten, censors, that you have just been chosen by the universal voice of the Roman people to superintend our morals, and that we must be admonished and regulated by you, not you by us. We are, however, bound to point out what it is in you that gives offence to all good citizens, or at all events what they would prefer to see changed. When we contemplate you each by himself, M. Aemilius and M. Fulvius, we feel that we have no one amongst the citizens today whom, if we were recalled to the polling booths, we should wish to take precedence of you. But when we behold you both together we cannot help fearing that you are ill-suited for each other, and that the unanimous vote in your favour will not benefit the commonwealth so much as the entire absence of unanimity between yourselves will injure it. For many years you have been cherishing violent and bitter feelings against each other, and the danger is that these may prove more disastrous to us and to the commonwealth than to you. Many considerations might be alleged, unless you are deaf to all remonstrance, as to the causes of your mutual hostility. We all of us with one voice implore you to put an end to these quarrels on this day and on this hallowed ground; we ask that the men whom the Roman people have associated together by their vote may through us be reconciled to one another. Choose the senate, revise the equities, close the lustrum with one mind, one

judgment, so that when you repeat the formula of almost all the prayers: 'May this prove to be a good and blessed thing for me and my colleague,' you may in all sincerity desire and bring it about that it shall so prove, so that what you have prayed for from the gods, we men may believe you really wish for. In the very City where they met in hostile encounter, Titus Tatius and Romulus reigned peacefully side by side. Not only private quarrels, but even wars are put an end to; deadly enemies generally prove the most faithful allies; sometimes they even become fellow-citizens. When Alba was destroyed, the Albans were transferred to Rome; the Latins and the Sabines have been admitted to our franchise. That common saying: 'Friendships ought to be immortal, enmities mortal,' has passed into a proverb because it is true."

Murmurs of approval were heard and then the voices of all present, as though it were the voice of one making the same request, drowned the speaker. Hereupon Aemilius, amongst other things, complained that he had been twice rejected by M. Fulvius as a candidate for the consulship when he was certain to win it. Fulvius, on the other hand, protested that he had been constantly receiving provocation from Aemilius and had undergone the humiliation of having to give security. They each, however, signified that if the other was willing, he would bow to the authority of such an influential body. As all present pressed their demand, the censors grasped each other's hands and gave their word to dismiss all angry feelings and put an end to their quarrel. They were then conducted to the Capitol amidst universal applause, and the trouble which their leaders had taken over the matter and the yielding temper of the censors received the approbation and praise of the senate. The censors asked for a grant of money to spend on public works, and one year's revenue was assigned to them.

[40.47]The propraeors in Spain agreed upon a common plan of operation; Albinus was to march through Lusitania against the Vaccae, and if the Celtiberian war became more serious he was to return thither; Gracchus, meantime, was to penetrate to the further borders of Celtiberia. Making a nocturnal attack on the city of Munda, he took it at the first assault. After taking hostages and placing a garrison to hold the place, he marched on, storming the forts and burning the crops, till he came to another city of exceptional strength called by the natives Certima. He was already bringing up

his engines against the walls when a deputation arrived from the town. Their words betrayed a primitive simplicity; they made no concealment of their intention to continue the struggle if they had the strength. They requested permission to visit the Celtiberian camp and ask for help; if it were refused them they would take counsel among themselves. Gracchus gave them permission, and in a few days they returned, bringing with them ten more envoys. It was at the hour of noon, and the first request they made to the praetor was that he would order something to be given them to drink. After emptying the cups they asked for more, and the bystanders burst into peals of laughter at such boorishness and utter want of manners. Then the oldest amongst them spoke: "We have been sent," he said, "by our nation to enquire on what it is that you rely in carrying your arms against us." Gracchus told them that he relied upon his splendid army, and if they wanted to see it for themselves so that they might carry back a fuller account of it, he would give them the opportunity of doing so. He then sent word to the military tribunes to order the whole of the force, horse and foot, to equip themselves completely and practice their maneuvers under arms. After this exhibition the envoys were sent home, and they dissuaded their countrymen from sending any succour to the besieged city. The townsmen kindled fires on their watch towers, but when they found that it was in vain, and that their only hope of assistance had failed them, they surrendered. A war indemnity of 2,400,000 sesterces was levied upon them. They had also to give up forty youths who were in their cavalry and belonged to their noblest families, not under the name of hostages, for they were to serve in the Roman army, but as a matter of fact they were pledges of the fidelity of their countrymen.

[40.48]From there he advanced to the city of Alce, where the camp from which the envoys had come was located. For some days he confined himself to annoying the enemy by sending skirmishers against his advanced posts, but every day he sent them out in stronger force in order to draw the full strength of the enemy outside his lines. When he saw that he had gained his object, he ordered the commanders of the native auxiliaries to offer a slight resistance and then turn back in hasty flight to their camp, as though they were overborne by numbers. He in the meanwhile drew up his men at every one of the gates of the camp. No long time had elapsed when he saw his men flying back in a body with the enemy following in

disorderly pursuit. Up to this point he kept his men within their rampart, and now, only waiting till the fugitives could find shelter within the camp, the battle-shout was raised and the Romans burst forth from all the gates simultaneously. The enemy could not stand against this unlooked-for attack. They had come up to storm the Roman camp; now they could not even defend their own. Routed, put to flight, driven in a panic inside their rampart, they at last lost their camp. There were 9000 men killed that day, 320 taken prisoners, 112 horses and 37 military standards were captured. Out of the Roman army 109 fell.

[40.49]From the battlefield Gracchus led the legions further into Celtiberia, which he ravaged and plundered. When the natives saw him carrying off their property and driving away their cattle, some of the tribes bowed their necks to the yoke voluntarily, others through fear, and within a few days he accepted the surrender of a hundred and three towns and secured an enormous amount of booty. Then he marched back to Alce and commenced the siege of that place. At first the townsmen withstood the assaults, but when they found themselves attacked by siege-engines as well as by arms, they lost confidence in the protection of their walls and retired in a body to their citadel. Finally they sent envoys to place themselves and all their property at the disposal of the Romans. A large amount of booty was seized here. Many of their nobles were taken, amongst them the two sons and the daughter of Thurrus. This man was the chief of these tribes and by far the most powerful man in Spain. On hearing of the disaster to his countrymen he sent to ask for a safe-conduct while he visited Gracchus in his camp. When he arrived his first question was whether he and his family would be allowed to live. On the praetor replying that his life would be safe, he asked, further, whether he would be allowed to fight on the side of the Romans. Gracchus granted that request also, and then he said: "I will follow you against my old allies." From that time he followed the Romans, and on many occasions his gallant and faithful services were helpful to the Roman cause.

[40.50]On this, Ergavica, a powerful and influential city, alarmed at the disasters which had befallen her neighbours, opened her gates to the Romans. Some authorities assert that these surrenders were not made in good faith, and wherever Gracchus withdrew his legions, hostilities were at once renewed; also that he fought a great battle

with the Celtiberi at Mt. Chaunus, lasting from dawn till mid-day, and many fell on both sides. You would not suppose from this that the Romans achieved any great success beyond the fact that they challenged the enemy who kept within his lines, and also spent the whole day in collecting the spoils. They assert, further, that on the third day a still bigger battle was fought, and now at last the Celtiberi suffered a decisive defeat; their camp was taken and plundered, 22,000 of the enemy were killed, more than 300 taken prisoners, and about the same number of horses and 72 military standards were taken. This finished the war and a real, not an insincere peace, as before, was made. According to these authors, L. Postumius fought with great success against the Vaccae in Further Spain this summer, killing 35,000 of the enemy and getting possession of their camp. It would be nearer the truth to say that he arrived in his province too late in the summer to undertake a campaign.

[40.51]M. Aemilius Lepidus, Pontifex Maximus and Censor, was himself chosen as leader of the House. Lepidus kept some on the roll whom his colleague had left out. The sums which had been granted to them for constructive works were employed as follows. Lepidus constructed a breakwater at Terracina, an unpopular proceeding because he had estates there and was charging to the public account what should have been his private expenditure. He contracted for the building of an auditorium and stage at the temple of Apollo, and the polishing with chalk of the temple of Jupiter on the Capitol and the columns round it. He also removed the statues from the front of the columns which blocked the view and took away all the shields and military standards which had been fastened to them. M. Fulvius undertook more numerous and more useful works. He constructed a wharf on the Tiber and piles for a bridge on which some years later the censors P. Scipio Africanus and L. Mummius erected arches. He built a court-house behind the new bankers' establishments, a fish-market surrounded by shops, a market-square and colonnade outside the Porta Trigemina, and other colonnades behind the docks, at the fane of Hercules, behind the temple of Hope by the Tiber, and one at the temple of Apollo Medicus. Besides the sums allotted to each they had a certain amount to use in common, and this they devoted to the construction of an aqueduct on arches. M. Licinius Crassus threw difficulties in the way of this work, as he would not allow it to be carried through his land. Various tolls were also initiated by them,

and they fixed rents for the use of the State lands. Many chapels and public buildings had been taken possession of by private individuals; the censors made it their care that these should preserve their sacred character and be accessible to the public. The method of voting was revised by them, and through all the "regions" they classified the tribes according to their status, their circumstances, and their sources of income.

[40.52]One of the censors, M. Aemilius, asked the senate for a sum of money to be decreed for the Games on the occasion of the dedication of Queen Juno and Diana, which he had vowed eight years previously, during the Ligurian war. A sum of 20,000 ases was granted. He dedicated the temples which both stood in the Circus Flaminius, and exhibited scenic Games for three days after the dedication of the temple of Juno, and for two days after the dedication of the temple of Diana. He also dedicated a temple to the Lares Permarini in the Campus Martius. This temple had been vowed by L. Aemilius Regillus eleven years previously, during the naval action against the commanders of King Antiochus. Above the folding-doors of the temple a tablet was affixed with this inscription: "When Lucius the son of Marcus Aemilius went out to battle to put an end to a great war and to subdue kings . . . The chief cause of obtaining peace . . . under his auspicious command and fortunate leadership the fleet of Antiochus, ever before invincible, was defeated, shattered and put to flight between Ephesus, Samos and Chios, before the very eyes of Antiochus and of his whole army, his cavalry and elephants. On that day forty-two ships of war were captured there, with all their crews; and after that battle had been fought, King Antiochus and his realm . . . Wherefore, because of this action he vowed a temple to the Lares Permarini." A similar tablet is fixed above the doors of the temple of Jupiter on the Capitol.

[40.53]Two days after the censors had finished revising the roll of the senate the consul Q. Fulvius set out for Liguria. After traversing with his army pathless mountains and ravines and forests, he fought a pitched battle with the enemy, and not only defeated him but seized his camp the same day; 3200 of the enemy and the whole of that district made their surrender. The consul brought them down into the plains and posted detachments to hold the mountains. Despatches were quickly sent to Rome and a three days' thanksgiving was decreed, the praetors sacrificing full-grown victims. Nothing

worth recording was done in Liguria by the other consul L. Manlius. Three thousand men belonging to the transalpine Gauls crossed the Alps into Italy without doing any injury, and asked the consuls and senate for a grant of land, that they might live quietly under the sovereignty of Rome. The senate ordered them to quit Italy, and Q. Fulvius was instructed to seek out and take action against the prime instigators of this movement across the Alps.

[40.54]In the course of this year Philip king of the Macedonians died, worn out with old age and grief at the death of his son. He passed the winter at Demetrias, full of poignant regret at the death of his son and of remorse for his own cruelty. His feelings were still further embittered by the conduct of his other son, who, in his own opinion and in that of others, was undoubtedly king, for all eyes were turned towards him, and also by the desertion of his friends in his old age, some waiting for his death, others not even waiting for it. This was a greater source of anxiety to him as it was to Antigonus the son of Echecrates, who bore the name of his paternal uncle, Antigonus. The uncle had been Philip's guardian, a man of kingly dignity, distinguished, too, for his conduct in the famous battle against Cleomenes the Lacedaemonian. This man's nephew, Antigonus, out of all those whom Philip had honoured with his friendship, alone remained uncorrupted, and this loyalty made Perseus, who had never been friendly to him, his bitterest enemy. He foresaw the danger in which he would be involved by the heritage of the crown descending to Perseus, and as soon as he saw the king's feelings changing, and heard him deploring the loss of his son, he used sometimes to be a silent listener; at others he would lead the king to speak of the incident as unpremeditated, and in this way often showed active sympathy with his grief. And as truth usually gives signs of its presence, so it was here, and he followed up the traces to the utmost of his power so that everything might be the sooner brought to light. Suspicion attached mainly to Apelles and Philocles as the authors of the crime; they were the men who had gone in the character of envoys to Rome, and had brought back the letter forged in the name of Flaminius which had proved so fatal to Demetrius.

[40.55]It was commonly said in the palace that the letter was a forgery concocted by one of the secretaries and sealed with a counterfeit seal. Whilst, however, there was as yet no clear evidence, only suspicion, Nychus happened to meet Antigonus, who had him promptly

arrested and conveyed to the palace. Leaving him there under guard he went in to Philip and said to the king: "I think I have understood from my many conversations with you that you would value very highly the opportunity of learning the whole truth about your sons, which of them was the victim of the cunning and treachery of the other. The one man in the whole world who can unravel the knot, namely Xychus, is in your hands. I met him by chance and had him brought to the palace; order him to be summoned." When brought in he at first denied everything, but with such hesitancy that a moderate appeal to his fears would obviously make him a ready informer. The sight of the executioner with his scourge was too much for him, and he explained in full detail the villainy of the two envoys and the way he had acted as their tool. Men were at once despatched to arrest them. Philocles was seized on the spot; Apelles, who had been in pursuit of a certain Chaereas, on learning that Xychus was turned informer, sailed for Italy. The fate of Philocles is not certain. According to some writers he, at first, stoutly denied; afterwards, confronted with Xychus, he no longer held out. Others say that even when put to the torture he still maintained his innocence. Philip's grief and distress were awakened afresh. He considered that the unhappiness caused by his children was made more painful by the survival of the one than by the death of the other.

[40.56] On being informed that everything had been disclosed, Perseus, whilst feeling himself strong enough to avoid the necessity of flight, took care, nevertheless, to keep well out of the way, and prepared to protect himself from the flames of his father's wrath, as long as he was alive. Philip, hopeless of being able to inflict punishment on the person of his son, made it his aim to prevent him, whilst escaping punishment, from enjoying the rewards of his wickedness as well. Accordingly he summoned Antigonus, to whom he was under such obligations for the detection of the fratricide, and who he thought, owing to the glory recently won by his uncle, Antigonus, might be one whom the Macedonians would not be ashamed of or disappointed in as their king. "Antigonus," he began, "now that my condition is such that the childlessness which other fathers regard as a curse I am compelled to regard as a thing to be wished for, I have resolved to leave to you the kingdom which your gallant uncle not only defended but augmented by his fidelity and watchfulness. You are the only one I have whom I judge worthy of

the crown; if I had no one I would rather have my kingdom perish and disappear than that Perseus should have it as the prize of treachery and murder. I should feel that Demetrius had been recalled from the tomb, if I could leave you to take his place, you who have shed tears over the death of an innocent victim and wept at my terrible mistake."

From this time he was continually advancing him from one honour to another. Whilst Perseus was away in Thrace, Philip made a progress through the cities of Macedonia, and recommended Antigonus to their leading men, and had he lived longer he would undoubtedly have left him in actual possession of the crown. Leaving Demetrius, he stopped for a considerable time at Thessalonica. From there he travelled to Amphipolis, and here he became seriously ill. But he was more sick in mind than in body. He was a prey to gloomy fears and sleeplessness; again and again the form and shade of his innocent murdered son threw him into violent agitation. He died whilst invoking terrible curses on the other one. Antigonus could, however, have been warned, had he been at hand, or had the king's death been openly announced in the palace. Calligenes, the head physician, did not anticipate it so soon. When the case became hopeless he sent the news as had been mutually agreed, to Perseus by a relay of messengers and concealed the fact from all outside the palace pending his arrival.

[40.57]Perseus took them all by surprise; they were unaware of what had happened and were not in the least expecting him. He seized the throne which he had gained by crime. The death of Philip occurred very opportunely as regarded the postponement of hostilities and the concentration of the resources for war. A few days later the tribe of the Bastarnae, after repeated invitations, left their homes and crossed the Hister with a large body of infantry and cavalry. Antigonus and Cotto - a Bastarnian noble - went in advance to inform the king. Antigonus had previously been sent with this same Cotto to induce the Bastarnae to move. Not far from Amphipolis they heard a report, and soon afterwards were met by messengers who announced the king's death. This completely upset their plans. It had been settled that Philip would afford the Bastarnae a safe passage through Thrace and supply them with provisions. To ensure this he had bribed the chiefs in the districts to be traversed and had pledged his word that the Bastarnae would pass through peacefully. It was intended to

exterminate the Dardani and to make a home for the Bastarnae in their territory. There was to be a double advantage in this; the Dardani, who had always been bitter enemies to Macedonia, and ready to fall on her in times of misfortune, would be put out of the way, and the Bastarnae could leave their wives and children in Dardania and be sent on to devastate Italy. The way to the Hadriatic and to Italy lay through the Scordisci; that was the only practicable route for an army, and the Scordisci were expected to grant a passage to the Bastarnae without any difficulty, for neither in speech nor habits were they dissimilar, and it was hoped that they would unite forces with them when they saw that they were going to secure the plunder of a very wealthy nation. Thus Philip's plans were adapted to either alternative. If the Bastarnae were defeated by the Romans, the extermination of the Dardani, the plunder of what remained of the Bastarnae, and the unchallenged possession of Dardania would be some consolation to him; if on the other hand they met with success and the Romans were recalled to a war with the Bastarnae, he would win back what he had lost in Greece. Such were Philip's schemes.

[40.58]At the outset the Bastarnae marched in peaceable and orderly fashion. But after Cotto and Antigonus had left them and the news of Philip's death arrived a few days later, the Thracians began to make difficulties about providing a market. Unable to buy what they needed, the Bastarnae could not be kept in their ranks nor prevented from straggling. This led to acts of violence on both sides, and as these became daily more aggressive, war broke out. In the end the Thracians, finding themselves unable to withstand the numbers and the fierceness of their assailants, left their villages in the plains and retired to a mountain of immense height called Donuca. While the Bastarnae were preparing to follow them, a storm similar to that which is said to have destroyed the Gauls while plundering Delphi burst upon them as they were nearing the summit. They were overwhelmed by a deluge of rain, followed by a heavy hailstorm accompanied with the crashing of thunder peals and blinding flashes of lightning. The lightning played everywhere round them; it seemed as though it were aimed at the men; not only the common soldiers but their chiefs were struck down. As they floundered and fell in blind headlong flight amongst the beetling cliffs, they were closely pursued by the Thracians; but they said to themselves that the gods were causing their flight and the heavens were falling on them.

Scattered by the storm like shipwrecked sailors, they at last reached their camp, most having lost their arms, and then began to deliberate as to what they were to do. Opinions were divided; some were for returning home, others wanted to invade Dardania. About 30,000 men, led by Clondicus, succeeded in reaching Dardania; the rest of the host retraced their steps and made their way into the inland district of Apollonia. After gaining possession of the crown, Perseus ordered Antigonus to be put to death. Whilst he was strengthening himself on the throne, he sent an embassy to Rome to renew the friendship which had existed in his father's time and to request the senate to recognise him as king. These were the events of the year in Macedonia.

[40.59]Q. Fulvius celebrated his triumph over the Ligurians, but it was generally believed that this triumph was granted to him more on personal grounds than because of the importance of his victories. He had a large amount of enemy arms carried in the procession, but no considerable sum of money. However, he distributed 300 ases to each of the legionaries, twice as much to each centurion, and three times as much to each of the cavalry. The most striking thing about this triumph was that he happened to celebrate it on the same day as his triumph the preceding year after his praetorship. Immediately after his triumph he fixed the day for the elections. The new consuls were M. Junius Brutus and A. Manlius Vulso. Three of the praetors had been elected when a storm interrupted the proceedings. The next day the remaining three were elected, namely, M. Titinius Curvus, Ti. Claudius Nero, and T. Fonteius Capitol. The Roman Games were exhibited afresh by the curule aediles Cnaeus Servilius Caepio and Appius Claudius Cento in consequence of some portents which had occurred. There was an earthquake. Whilst a lectisternium was going on in the public shrines the deities on their couches turned away their heads from the offerings set before them, and the coverlet with the covers of the dishes set before Jupiter fell from the table. The olives were nibbled by mice before they were placed before the gods, and this was regarded as a portent. Nothing beyond the repetition of the Games was done in the way of expiating these portents.

BOOK 41: PERSEUS AND THE STATES OF GREECE

[41.1] . . . It was said that he called to arms the fighting men whom his father had kept in peace, and that he was very popular with them, as they were eager for plunder. The consul held a council of war to discuss the Histrian campaign. Some thought it ought to be undertaken at once before the enemy had time to get his forces together; others considered that the senate ought first to be consulted. The opinion in favour of prompt action prevailed. From Aquileia, the consul advanced to the Timavus Lake close to the sea. C. Furius, one of the two naval commanders, sailed there with ten ships. He and his colleague were to act against the Illyrian fleet and protect the coasts of the Upper Sea with twenty ships. Their joint command pivoted on Ancona; L. Cornelius had the defence of the coast to the right as far as Tarentum, and C. Furius to the left as far as Aquileia. The ten ships under Furius had been sent to the nearest harbour on Histrian territory, together with cargo ships and a large amount of supplies. The consul followed them with the legions and fixed his camp about five miles from the sea. A busy market soon sprang up in the harbour, and all supplies were carried up from the sea to the camp. To render this more secure, pickets were posted on every side of the camp. On the side facing Histria the emergency cohort from Placentia was posted permanently; M. Aebutius, one of the military tribunes, was ordered to take two maniples from the second legion to the river bank between the camp and the sea to protect the watering-parties; two other military tribunes, L. and C. Aelius, took the third legion along the road leading to Aquileia to protect the foraging and wood-cutting troops. In that direction lay the camp of the Gauls about a mile distant. and in their chief's absence Catemelus was in command. They did not number more than 3000 armed men.

[41.2]As soon as the Roman army began to move towards the Timavus, the Histri took up a position in concealment behind a hill and followed it while on the march, carefully watching for every opportunity; nothing that happened on sea or land escaped their notice. When they saw that only weak pickets were posted in front of the camp and that between the camp and the sea there was a crowd of unarmed traders busy with their traffic and without any protection either on the land side or towards the sea, they made a simultaneous attack on the pickets, the Placentian cohort and the maniples of the

second legion. Their movements were at first concealed by an early morning fog. As this began to disperse under the warm rays of the sun, the sunshine struggling fitfully through made everything, as it generally does, look larger to the beholder. In this way the Romans were deceived, as the hostile army appeared larger than it really was. The men from both the pickets fled in a great tumult to the camp. The terror they spread here was greater than the alarm in which they had fled, for they could not explain why they had fled, nor could they give any answer to those who questioned them. Shouts were heard from the gates, as there were no outposts there to make any resistance, and the crowding together of the soldiers, who were falling over each other in the fog, made it impossible to know whether the enemy were inside the camp or not. One voice was heard amongst the cries, calling "To the sea!" and this chance cry started by one individual resounded everywhere throughout the camp. They began to run down to the sea, as though acting under orders; at first in small bodies, some with arms, most of them without; then in larger numbers, till at last nearly every man had gone, including the consul himself. He was quite powerless to rally the fugitives; his commands, his authority, his expostulations were all fruitless. The only officer who remained was M. Licinius Strabo, a military tribune attached to the second legion, who had left him with three maniples in their flight. The Histri made their attack on the empty camp, and after finding no armed resistance, came upon him as he was forming and encouraging his men in the headquarters tent. The fight was a more stubborn one than might have been expected from the fewness of the defenders, and did not come to an end until the tribune and all round him had fallen. After overturning the headquarters tent and plundering everything in it, the enemy went on to the quaestor's tent, the forum, and the via quintana. Here they found an abundant supply of everything laid out in readiness, and in the quaestor's tent couches arranged for a meal. The chieftain lay down and began to feast himself; soon all the others, oblivious of any armed enemy, did the same, and being unused to such good fare, loaded themselves greedily with wine and food.

[41.3] Things wore a very different aspect among the Romans. There was confusion both on land and sea. The marines struck their tents and hurriedly carried back on board the stores which had been landed on the beach; the soldiers rushed in panic to the boats at the water's

edge; some of the sailors, afraid of their boats being overcrowded, tried to stop the crowd; others pushed their boats off into deep water. This resulted in a struggle, and soon a regular fight began between the soldiers and the sailors - with bloodshed on both sides - until at the consul's orders the fleet was withdrawn to some distance from the land. Then he began to separate those who had arms from those who were without any. There were hardly 1200 out of the whole number who were still armed; very few of the cavalry were found to have brought away their horses with them; the rest were a disorderly mob like so many sutlers and camp-followers, certain to fall a prey to the enemy, if the enemy had had any idea of fighting. At last, word was sent to recall the third legion and the Gaulish contingent, and the troops posted round the camp began to come in determined to recover the camp and remove the stain of disgrace. The military tribunes of the third legion ordered the loads of wood and fodder to be thrown off the baggage animals, and commanded the centurions to place the older men in couples on the mules which had been relieved of their loads, and the cavalry were each to take one of the younger men with them on their horses. They told their men that it would be a most glorious thing for their legion if, by their own valour, they recovered the camp which had been lost through the faintheartedness of the second legion. And it easily could be recovered if the barbarians were suddenly surprised in the midst of their plundering; the camp could be recaptured just as it had been captured. His words of encouragement were listened to eagerly by the soldiers, the standards rapidly went forward, and the legionaries followed without a moment's delay. The first, however, to approach the rampart were the consul and the troops he was bringing from the sea. The first tribune of the second legion, with the view of encouraging his men, pointed out to them that if the barbarians had intended to hold the camp by the same arms by which they had taken it, they would, first of all, have followed up their enemy in his flight from his camp to the sea, and then they would have stationed pickets in front of their rampart. They were in all probability lying sunk in wine and slumber.

[41.4]He thereupon ordered his standard-bearer, A. Baeculonium, a man noted for his courage, to go forward with his standard. Baeculonium replied that if they would follow him and his standard they would help him to do so all the more quickly. He then flung the

standard with all his might over the rampart and was the first to pass through the camp gate. On another side of the camp the two Aelii, Titus and Caius, came up with the cavalry of the third legion. They were almost immediately followed by the men mounted on the baggage animals, and then the consul with the whole of the army. A few of the Histri who had taken only a moderate amount of wine were careful to escape; for the rest, sleep was prolonged into death, and the Romans recovered all their property intact, save the wine and food which had been consumed. Even the sick who had been left in the camp, finding their comrades inside the rampart, seized their arms and inflicted great slaughter. A cavalryman, C. Popilius Sabellus, distinguished himself especially in this way. He had been left behind with a wounded foot and he slew by far the greatest number of the enemy. As many as 8000 of the Histri were killed, not one prisoner was taken, rage and shame made the Romans indifferent to booty. The King of the Histri, however, drunk as he was, was carried off hurriedly from the table and lifted by his men on to a horse and so escaped. Two hundred and thirty-seven of the victors perished; more fell in the morning rout than in the recapture of the camp.

[41.5] Cn. and L. Gavilius Novellus were coming with supplies from Aquileia, and unaware of what had happened, very nearly entered the camp while it was in the possession of the Histrians. They left their goods and fled back to Aquileia, spreading alarm and tumult not only in that city, but in Rome itself. Reports reached the City, true so far as they told of the capture of the camp by the enemy and the flight of the defenders, but rumours also filled the City to the effect that all was lost and the entire army annihilated. As usual in times of tumult and alarm, an extraordinary levy was ordered in the City and throughout the length and breadth of Italy. Two legions of Roman citizens were called up, and from the Latin allies 10,000 infantry with a complement of 500 cavalry were raised. The consul, M. Junius, was ordered to go to Gaul and requisition from the communities in that province as many soldiers as they could each supply. It was decreed that the praetor Tiberius Claudius should give notice to the men of the fourth legion, the 5000 allied troops and the 250 cavalry to muster at Pisae, and that he should be responsible for the defence of that province in the consul's absence. M. Titinius received instructions to order the first legion and the same number of allied infantry to assemble at Ariminum. Nero, wearing his paludamentum, left for

Pisae; Titinius, after sending C. Cassius, one of the military tribunes, to take command of the legion at Ariminum, arrived at Aquileia. There he was informed that the army was safe, and at once sent a despatch to Rome to allay the tumult and alarm. He then sent back the contingents which he had requisitioned in Gaul and went to rejoin his colleague. There was great rejoicing in Rome at the unlooked-for news, all enrolment of troops was suspended and those who had already taken the military oath were released from its obligations. The army at Ariminum which had been suffering from the pestilence was disbanded and sent home. The Histrians were encamped in great strength not far from the consul's camp, and when they heard that the other consul had arrived with a fresh army they everywhere dispersed to their cities. The consuls took the legions back to Aquileia for their winter quarters.

[41.6] After the Histrian disturbance had at last quieted down, the senate passed a resolution that the consuls should arrange which of them was to come to Rome for the election. Two tribunes of the plebs, Licinius Nerva and C. Papirius Turdus, attacked Manlius in his absence and brought forward a motion that he should not retain his command after the Ides of March - the consuls had already had their administrations extended for a year - in order that he might be brought to trial immediately on quitting office. Their colleague, Q. Aelius, opposed the motion and after long and violent disputes prevented it from being carried. On their return from Spain, Tiberius Sempronius Gracchus and L. Postumius Albinus were received by the senate in the temple of Bellona. They gave a report of their administration and asked that honours should be paid to the immortal gods. News came from T. Aebutius, commanding in Sardinia, of a serious disturbance in that island. The Ilienses, in conjunction with the Balari, had invaded the province which was at peace, and owing to the weakened condition of the army, a large number of men having been carried off by the pestilence, no resistance could be offered. Envoys from Sardinia came with the same tale; they implored the senate to send assistance to the cities at all events; it was too late to save the fields.

It was left to the consuls to decide what reply should be given to these envoys and to deal with the whole state of things in Sardinia. An equally tragic story was told by the Lycians, who had come to complain of the cruel tyranny of the Rhodians, under whose

government they had been placed by L. Cornelius Scipio. They had been formerly under Antiochus and they assured the senate that their subjection under the king was glorious liberty compared with their present condition. It was not political oppression only under which they were suffering, but absolute slavery; they, their wives and children were the victims of violence; their oppressors vented their rage on their persons and their backs, their good name was besmirched and dishonoured, their condition rendered detestable in order that their tyrants might openly assert a legal right over them and reduce them to the status of slaves bought with money. Moved by this recital, the senate gave the Lycians a letter to hand to the Rhodians, intimating that it was not the pleasure of the senate that either the Lycians or any other men born free should be handed over as slaves to the Rhodians or any one else. The Lycians possessed the same rights under the suzerainty and protection of Rhodes that friendly states possessed under the suzerainty of Rome.

[41.7]The two commanders in Spain now celebrated their triumph; first, Sempronius Gracchus for his victory over the Celtiberi and their allies, and on the following day L. Postumius over the Lusitanians and the adjacent tribes. In Gracchus' procession were borne 40,000 pounds of silver, in that of Postumius 20,000. Each of the legionaries received 25 denarii, the centurions twice and the cavalry three times as much, and the allied troops received the same. The consul, M. Junius, came about this time to Rome for the elections. Two tribunes of the plebs, Papirius and Licinius, put a multitude of questions to him in the senate about what had happened in Histria, and then they brought him before the Assembly. The consul explained that he had not been in that province more than eleven days and he, like them, only knew by report what had happened in his absence. Then they asked "why in that case A. Manlius had not come to Rome, rather than Junius, that he might explain to the people of Rome why he had left the province of Gaul, which had been allotted to him, for Histria. When did the senate make a decree or the Assembly an order for that war? 'Well,' you may say, 'granting that the war was undertaken on his personal responsibility, still it was conducted with courage and prudence.' On the contrary it is impossible to say whether its inception is the more flagitious or its conduct the more reckless. Two pickets were surprised by the Histrians, a Roman camp was taken and what troops were in the camp were cut to pieces; all the rest threw

away their arms and fled in disorder to the sea and the ships, the consul himself above all. He will have to account for all this as an ordinary citizen, since he will not do so as consul."

[41.8]Then came the elections. The new consuls were C. Claudius Pulcher and Ti. Sempronius Gracchus, and the new praetors, P. Aelius Tubero (for the second time), C. Quinctius Flaminius, C. Numisius, L. Mummius, Cnaeus Cornelius Scipio and C. Valerius Laevinus. Tubero received the civic jurisdiction, Quinctius the alien. Sicily fell to Numisius, and Sardinia to Mummius; the latter, however, owing to the magnitude of the war, was made a consular province. Gaul was divided into two provinces and allotted to Scipio and Laevinus. On the Ides of March, when Sempronius and Claudius entered upon office, the provinces of Sardinia and Histria and the instigators of war in those provinces were only informally discussed. On the following day, the Sardinian deputation, who had been referred to the new consuls, and L. Minucius Thermus, who had been second in command with the consul Manlius in Histria, appeared before the senate, and after the information they gave, the senate realised what a state of war existed in those provinces. Delegates from the Latin allies, after numberless appeals to the censors and the late consuls, were at length admitted to an audience of the senate, and their statement made a great impression. The gist of their complaint was that their citizens who were on the Roman register had migrated in great numbers to the City, and if this were allowed it would come to pass in a very few lustra that the towns and fields would be deserted and incapable of furnishing any men for the army. The Samnites and Paeligni stated that 4000 families had gone from them to Fregellae, but they were not diminishing their contingents, nor were the Fregellans increasing theirs. The practice of individuals changing their citizenship led to two kinds of fraud. The law allowed those amongst the Latin allies who chose, to become Roman citizens if they left male progeny behind in the old home. This law was abused to the injury of the allies and of the Roman people. For in order to avoid any male descendants being left at home, they gave their children as slaves to some Roman or other, on condition that they should be manumitted, and as freedmen become citizens, whilst on the other hand those who had no male descendants became Roman citizens. Subsequently, even this legal presence was brushed aside. In defiance of law and without any male descendants they migrated to

Rome and were placed on the City register. The delegates asked that this might be stopped for the future, and that those who had migrated should be ordered to return to their homes. They asked further that a law might be passed making it illegal for any person to adopt or manumit any one with the view of changing his citizenship, and also require those who had become Roman citizens by this means to renounce their citizenship. The senate granted these requests.

[41.9]The senate then decreed that the provinces which were in a state of war - Sardinia and Histria - should be assigned to the consuls. Two legions were ordered to be raised for Sardinia, each consisting of 5200 infantry and 300 cavalry; the Latin allies were to supply 12,000 infantry and 600 cavalry. In case the consul wished to take ships from the dockyard, ten quinqueremes were placed at his disposal. The same strength of infantry and cavalry was decreed for Histria as for Sardinia. The consuls also received instructions to despatch a force of one legion with its complement of cavalry and 5000 infantry and 250 cavalry from the allies to M. Titinius in Spain. Before the consuls balloted for their provinces various portents were reported. A stone fell from the sky into the grove of Mars in the Crustumian district; on Roman land a boy was born without all his limbs, and a four-footed snake was seen; at Capua numerous buildings in the forum were struck by lightning; at Puteoli two shops had been set on fire by a similar stroke. While these were being reported, a wolf entered the City by the Colline Gate in broad daylight and was chased till it escaped through the Esquiline Gate, amidst great excitement on the part of its pursuers. In consequence of these portents the consuls sacrificed full-grown victims, and there were special intercessions at all the shrines for one day. When the religious rites had been duly performed the consuls drew for their provinces. Histria fell to Claudius, Sardinia to Sempronius. Then, in accordance with the resolution of the senate, the consul C. Claudius carried a measure in which it was ordered that those of the Latin allies who themselves or whose ancestors had been registered among the Latin allies during the censorship of M. Claudius and T. Quinctius or subsequently, should all return to their cities before November 1. The praetor L. Mummius was charged to enquire into the cases of those who had not returned by that date. In addition to this new law, and the consul's edict enforcing it, a resolution was passed by the senate ordering that whenever any one of them was manumitted and

publicly declared to be free, the dictator, consul, interrex, censor or praetor for the time being should put the manumitter on his oath that he was not doing it for the purpose of altering his citizenship; in case he refused to take the oath the senate would declare the manumission invalid. This resolution was to guide all future proceedings.

[41.10]M. Junius and A. Manlius, the ex-consuls who had been in winter quarters at Aquileia, led their army into Histria at the commencement of spring. They carried their ravages far and wide, and the Histrians were animated much more by indignation and rage at the loss of their property than by any certain hope that they would be strong enough to meet two consular armies. From all the tribes their fighting men collected into a hastily levied tumultuary force, and they displayed much more impetuosity in beginning a battle than steadfastness in keeping it up. Four thousand of them fell on the field; the rest abandoned all resistance and dispersed to their cities. From these cities delegates were sent to the Roman camp to sue for peace, and on being required to give hostages they sent them. When this became known in Rome through despatches from the proconsuls, C. Claudius, fearing lest this success should rob him of his province and his army, went off post-haste to his province without offering the customary prayers, unattended by his lictors and in the dead of night, his colleague being the only one who was aware of his intention. His conduct after his arrival was more ill-advised even than the way in which he had started for his province. Addressing the assembled troops, he taunted Manlius with his flight from the camp, to the intense annoyance of the soldiers, since it was they who began the flight, and then he attacked M. Junius for associating himself with his colleague's disgrace, and ended by ordering them both to quit the province. They promised that they would obey his order as soon as he had made his departure from the City in the traditional way, after the customary prayers in the Capitol, and attended by his lictors in their official dress. Claudius, beside himself with rage, called the official who was acting as quaestor to Manlius to bring fetters, and threatened to send both Manlius and Junius in chains to Rome. This officer also ignored the consul's authority, and their determination not to obey was strengthened by the way the army supported their commanders and resented the conduct of Claudius. At last the consul, overborne by the insults and jeers of individual soldiers, and the ridicule (for they actually laughed

at him) of the whole army, returned to Aquileia in the same vessel in which he had come. From there he sent word to his colleague to warn that portion of the new levies which had been raised for service in Histria to assemble at Aquileia, so that nothing might detain him in Rome or prevent him from leaving the City, with due formalities, offering the customary prayers and wearing the paludamentum. His colleague carried out his instructions and ordered the troops to assemble at an early date at Aquileia. Claudius almost overtook his letter. On his arrival he convened the Assembly and laid before it the case of Manlius and Junius. His stay in Rome only lasted three days, and then, in full state with lictors and paludamentum, after offering up prayers in the Capitol, he departed for his province with quite as much precipitancy as before.

[41.11]A few days before his arrival Junius and Manlius began a determined attack on the town of Nesactium, to which place the chiefs of the Histri, with their king, Aepulo, had retired. Claudius brought up the two newly-raised legions, and after disbanding the old army with its generals, invested the town and proceeded to attack it with the vineae. There was a river flowing past the town which impeded the assailants and furnished water to the Histrians. After many days' work he diverted this river into a new channel, and the cutting off of their water-supply as though by a miracle greatly alarmed the natives. Even then they had no thought of suing for peace; they made up their minds to murder their women and children, and that this horrid deed might be a spectacle to the enemy, they butchered them openly on the walls and then flung them down. Amidst the shrieks of the women and children and the unspeakable horrors of the massacre, the Romans surmounted the walls and entered the town. When the king heard the terrified cries of those who fled, and understood from the tumult that the place was taken, he stabbed himself that he might not be taken alive. The rest were either killed or made prisoners. This was followed by the storming and destruction of two other towns, Mutila and Faveria. The booty, considering the poverty of the natives, surpassed expectations, and the whole of it was given to the soldiers; 5632 persons were sold as slaves. The prime instigators of the war were scourged and beheaded. The extermination of these three towns and the death of the king led to peace throughout Histria; all the tribes made their submission and gave hostages.

[41.12]Just after the Histrian war had come to an end the Ligurians began to hold councils of war. Tiberius Claudius, who had been praetor the previous year and was now acting as proconsul, was in command of Pisae with one legion. He reported the movement in Liguria to the senate, and they decided to send his despatch on to C. Claudius, for the other consul had landed in Sardinia, and they authorised him to transfer his army, if he thought it advisable now that Histria was quiet, to Liguria. After receiving the consul's report of his operations in Histria a two days' thanksgiving was decreed. The other consul, Tiberius Sempronius, was equally successful in Sardinia. He marched into the Ilian country, and finding a large body of Balari had come to the assistance of the Ilians, he fought a pitched battle with the two tribes. The enemy were routed, put to flight and driven out of their camp, 12,000 men being killed. The consul ordered all the arms to be collected on the following day and thrown into one heap. He then burnt them as an offering to Vulcan. The victorious army retired into winter quarters in the friendly cities. On receipt of Tiberius Claudius' despatch and the instructions of the senate, Caius Claudius led his legions into Liguria. The enemy had come down into the plains and was encamped by the river Scultenna. A battle took place there; 15,000 were killed and over 700 were made prisoners, either on the battlefield or in the camp - for this was stormed - and 51 military standards taken. The Ligurians who survived this slaughter fled to the mountains, and no resistance was met with anywhere by the consul as he traversed the level country plundering and devastating their fields. After winning victories over two nations and reducing two provinces to submission during his year of office - a thing which very few have done - Claudius returned to Rome.

[41.13]Some portents were reported this year. Near Crustumerium an osprey cut a sacred stone with its beak; in Campania a heifer spoke; a brazen image of a cow in Syracuse was mounted by a bull which had strayed from the herd. Special intercessions were offered on the spot at Crustumerium, and the heifer in Campania was to be kept at the public cost. The portent at Syracuse was expiated by sacrifices to the deities who were named by the haruspices. One of the pontiffs, M. Claudius Marcellus, died this year. He had been consul and also censor. His son, M. Marcellus, was appointed pontiff in his place. Two thousand Roman citizens were settled as colonists at Luna under the supervision of P. Aelius, M. Aemilius Lepidus and Cnaeus

Sicinius. Fifty-one and a half jugera were allotted to each colonist. The land had been taken from the Ligurians; it had previously been in the possession of the Etruscans.

[41.14]After his return to the City the consul C. Claudius made his report to the senate of his victories in Histria and Liguria, and at his request, a triumph was decreed to him. Whilst still in office he celebrated a double triumph over the two nations. In the procession were carried 307,000 denarii and 85,702 "victoriati." To each legionary were given fifteen denarii, double the amount to the centurions, and treble to the cavalry. The allied troops received only half as much, and by way of showing their anger, they followed the victor's chariot in silence. Whilst the new consuls were each sacrificing an ox to Jupiter on the day of their entering upon office, the victim which Q. Petilius was sacrificing was defective; there was no head to the liver visible. He reported this to the senate, and they ordered him to go on sacrificing until the victim gave a favourable omen. The provinces were then discussed, and the senate decreed that Pisae and Liguria should be the consular provinces, and the one to whom the ballot gave Pisae was ordered to return and hold the elections when the time for them arrived. They further decreed that the consuls should raise two new legions and 300 cavalry with each, and from the Latin allies 10,000 infantry and 600 cavalry. Ti. Claudius retained his command till the new consul arrived in his province.

[41.15]While this business was being transacted in the senate, Cnaeus Cornelius was called out by an apparitor, and left the House. On his return he was visibly perturbed, and explained that the liver of the ox which he had sacrificed had disappeared. When the victimarius reported this to him he did not believe it, and he ordered the water in which the entrails were being boiled to be poured out from the cauldron. He saw every other portion of the victim complete, but in some unaccountable way the liver had been consumed. The senators were much alarmed at this ominous incident, and their alarm was intensified by the other consul's statement that after the appearance of the defective liver he had sacrificed three oxen in succession without getting any favourable indication. The senate ordered them both to go on sacrificing until the omens were favourable. It is said that favourable omens were at last observed in the case of all the other deities, but not in the case of Salus, to whom Petilius was sacrificing.

The consuls and praetors now balloted for their provinces. Pisae fell to Cnaeus Cornelius, Liguria to Petilius, the City jurisdiction to L. Papirius Maso, the alien to M. Aburius. M. Cornelius Scipio Maluginensis had Further Spain, and L. Aquilius Gallus received Sardinia. Two asked to be excused from going to their provinces. M. Popilius alleged as a reason for his not going to Sardinia that Gracchus was pacifying that province and that the praetor T. Aebutius was, by direction of the senate, helping him in this task. It was, he said, most inconvenient for a line of policy to be interrupted when its success mainly depends upon its continuance in the same hands. During the transfer of authority and the time required by the new man to learn the condition of affairs before taking any action, many an opportunity of achieving success is lost. The senate allowed his excuse. P. Licinius Crassus, to whom Hither Spain had fallen, alleged that he was prevented by his religious duties. However, he was ordered either to go or to take an oath before the Assembly that he was prevented by his religious duties. When the case of P. Licinius had been settled in this way, M. Cornelius Scipio asked them to accept his oath also, that he might not have to go to Further Spain. These two praetors both took the same oath. M. Titinius and T. Fonteius, who were in charge of that province as proconsuls, were ordered to remain in Spain with the same authority as before and reinforcements were to be sent to them - 3000 Roman citizens and 200 cavalry, with 5000 infantry and 300 cavalry from the allies.

[41.16]The Latin Festival took place on March 5, and something occurred to mar its celebrations; the magistrate of Lanuvium omitted to pray over one of the victims for "the Roman people of the Quirites." This irregularity was reported to the senate and by them referred to the college of pontiffs. The pontiffs decided that the Latin Festival not having been properly and duly celebrated must be observed anew, and that the people of Lanuvium, whose fault made the renewal necessary, should provide the victims. A fresh misfortune increased the general uneasiness. The consul Cn. Cornelius, whilst returning from the Alban Mount, fell from his horse and was partially crippled. He went to the Baths of Cumae, but became gradually worse and died at Cumae. The body was brought to Rome and received a magnificent funeral. He had also been a pontiff. Orders were given to the consul Q. Petilius to hold an election - as soon as he obtained favourable omens from the sacrifices - to provide him

with a colleague and also to proclaim the Latin Festival. He fixed the election for the 3rd and the Latin Festival for the 11th of August.

Whilst men's minds were thus filled with religious fears, fresh portents were announced. At Tusculum a burning brand was seen in the sky; at Gabii the temple of Apollo and several private buildings were struck by lightning, as also were the wall and one of the gates at Graviscae. The senate ordered such measures to be taken as the pontiffs should direct. During this time, whilst the two consuls were pre-occupied with matters of religion, and then the death of one of them and the duty thrown upon the other of electing his successor, and also of presiding at the Latin Festival, created further delay, C. Claudius brought his army up to Mutina, which the Ligurians had taken the year before. After a three days' assault he recaptured the place and restored it to the colonists; 8000 Ligurians were killed inside the walls. He promptly sent a despatch to Rome in which he gave an account of his operations and boasted that owing to his good fortune and ability there was no longer any enemy to Rome on this side the Alps, and that a considerable quantity of land had been acquired which could be distributed amongst many thousands of colonists.

[41.17]After many successful actions Ti. Sempronius finally subjugated Sardinia; 15,000 natives were killed and all the revolting tribes were forced into submission. Those who had before paid the tax had now to pay double; the rest paid in corn. After peace was established in the province and hostages taken from all parts of the island - 230 in all - a deputation was sent to Rome to announce the subjection of the island and to ask the senate that honours should be paid to the immortal gods for the success achieved under the leadership and auspices of Ti. Sempronius, and that he himself might be allowed to bring away his army with him when he left the province. The senate received the deputation with their report in the temple of Apollo and decreed a two days' thanksgiving; the consuls were also ordered to offer forty sacrifices of the larger victims. Ti. Sempronius was to remain in the province with his army as proconsul. The election to fill the vacancy in the consulship took place on the appointed day, August 3. C. Valerius Laevinus was chosen as colleague to Q. Petilius and was to enter upon his consulship at once. He had long been anxious to obtain a province and most opportunely for his wishes a despatch reached Rome saying

that the Ligurians had begun another war. On receipt of this intelligence the senate ordered his immediate departure, and he left the City, wearing the paludamentum, on August 5. The third legion was ordered to join C. Claudius in Gaul and the fleet commanders were instructed to proceed to Pisae, making a circuit of the Ligurian littoral and creating alarm in the coastal districts. Q. Petilius had previously fixed the date for the muster of the army at Pisae. C. Claudius, on hearing that the Ligurians were renewing hostilities, raised an emergency force in addition to the troops he had with him, and marched to the frontiers of Liguria.

[41.18]The enemy had not forgotten that it was C. Claudius who had defeated and routed them at the Scultenna, and they prepared to defend themselves against a force of which they had had so unhappy an experience more by the strength of their position than by their arms. With this object they occupied two mountain heights, Letum and Ballista, and enclosed them with a wall. Some who were too late in getting away from their fields were caught and 1500 of them perished; the rest kept to the mountains. But they were not too much cowed to forget their native savagery, and they glutted their cruelty upon what they had taken at Mutina. The prisoners were put to death amid horrible tortures; the cattle were killed in their temples as an act of butchery rather than of sacrifice. When they were satiated with the slaughter of living things they turned to the destruction of inanimate objects and dashed against the walls vessels of every description, though made for use more than for ornament. Q. Petilius did not want the war to be brought to a close while he was absent and sent written instructions to C. Claudius to come to him in Gaul with his army, saying that he should expect him at the Campi Macri. On receiving the despatch C. Claudius left Liguria and handed over his army to the consul at the Campi Macri. A few days later the other consul, C. Valerius, arrived. Here, before the two armies separated, a lustration was completed for them both. As the consuls had settled not to make a combined attack on the enemy, they drew lots to decide in which direction each should advance. It was generally understood that Valerius cast his lot under proper auspices. In the case of Petilius the augurs declared afterwards that he had been at fault, for after the lottery had been taken into the sacred enclosure he remained outside, whereas he ought to have gone in himself .

Then they started for their respective positions. Petilius fixed his camp fronting the twin heights of Ballista and Letum, which are connected by a continuous ridge. Writers say that whilst he was addressing words of encouragement to his troops, he made the ominous prediction that he would take Letum on that day; the double meaning of the word did not occur to him. He then advanced up the mountain in two divisions. The division which he personally commanded mounted with great spirit, but the enemy forced the other division back, and to restore the battle the consul rode forward and rallied his men. Whilst exposing himself somewhat incautiously in front of the standards, he was struck by a missile and fell. The enemy were not aware of the general's death, and a few of his men who had witnessed it carefully concealed the body, as they felt sure that the victory turned on that. The rest of the troops - infantry and cavalry alike - drove the enemy out of his positions and took the mountain heights without their general; 5000 Ligurians were killed; out of the Roman army 52 fell. In addition to his ill-omened words, to which his death gave a clear significance, it was gathered from what the "pullarius" said that the auspices had been unfavourable and that the consul was not unaware of this.

..... Those skilled in divine and human law said that since the two duly elected consuls for the year had died, one through sickness, the other by the sword, the "consul suffectus" could not rightly hold the election.

.....

[41.19] ... On this side the Apennines there had been the Garuli, the Lopicini and the Hergates; on the other side the Briniates. P. Mucius made war on those who had ravaged Luna and Pisae, and after completely subjugating them deprived them of their arms. For these successes in Gaul and Liguria under the leadership and auspices of the two consuls, the senate decreed a three days' thanksgiving and sacrifices of forty victims. The disturbances in Gaul and Liguria which had broken out at the beginning of the year had been quelled without any great difficulty, and now the public anxiety was directed to the danger of a war with Macedonia, as Perseus was trying to involve the Dardani and the Bastarnae in a conflict. The commissioners who had been sent to Macedonia to investigate the position there had now returned and reported that there was a state

of war in Dardania. Envoys from Perseus arrived at the same time and they declared, on his behalf, that the Bastarnae had not been approached by him nor had they done anything at his instigation. The senate did not clear him from the charges brought against him, nor did they press them; they only ordered a warning to be given him that he must be very careful to hold sacred the treaty which he could regard as existing between him and Rome.

When the Dardani found that the Bastarnae were not evacuating their territory as they had hoped, but were becoming every day more aggressive and were receiving assistance from their Thracian neighbours and from the Scordisci, they thought that they ought to attempt some active measures, however hazardous. The whole of their armed force assembled at a town near the camp of the Bastarnae. It was winter and they chose that season on the chance of the Thracians and the Scordisci going back to their own country. It fell out as they expected, and when they learnt that the Bastarnae were left to themselves they divided their forces; one division was to make a frontal attack, the other fetching a circuit was to take the enemy in the rear. The fighting began, however, before they could get round the enemy, and the Dardani were defeated and driven into a city some twelve miles distant from the camp of the Bastarnae. The victors followed them closely and invested the place, feeling pretty confident that they would capture the place the next day either by surrender or by storm. Meanwhile the other division, unaware of the disaster which had overtaken their comrades, seized the camp of the Bastarnae which had been left unguarded.

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[41.20] . . . Seated in Roman fashion on an ivory chair he used to administer justice and settle the most trifling disputes. Roaming through every phase of life, he was so far from remaining constant to any one form of it, that neither he himself nor any one else was at all clear as to his real character. He did not speak to his friends; he had a pleasant smile for those who were hardly known to him; he made himself and others ridiculous by his misplaced liberality. To some who were of high rank and set great value upon themselves he used to give childish presents of cakes and toys; others who expected nothing he enriched. Some people thought that he was at a loss to know what he meant by his actions; some said he was only playing

the fool; some declared that he was undoubtedly mad. In two matters of great importance and redounding to his honour he showed a truly kingly spirit - his munificence to cities and his care for divine worship. He promised to build a wall round Megalopolis and gave the greater part of the money for it. At Tegea he began the construction of a magnificent marble theatre. At Cyzicus he furnished vessels of gold for one table in the Prytaneum, the central hall of the city, where those to whom the privilege has been granted dine at the public cost. In the case of the Rhodians he did not make them any single gift of surpassing value, but he gave them all sorts of things to suit their various requirements. The splendid munificence which he showed towards the gods is attested by the temple of Jupiter Olympius at Athens, the only one in the world which has been begun on a scale proportionate to the greatness of the deity. Delos he adorned with splendid altars and a great array of statues. At Antioch he projected a magnificent temple to Jupiter Capitolinus, of which not only the ceiling was to be overlaid with gold, but the whole of the walls were to be covered with gold leaf. Many public edifices in other places he promised to build, but the shortness of his reign prevented him from fulfilling his promises. In the magnificence of public exhibitions of every kind he surpassed all former monarchs; they were with only one exception given by Greek performers, the one exception being a gladiatorial contest exhibited in Roman fashion, which frightened the spectators, who were unused to such sights, more than it pleased them. By frequently giving these exhibitions, in which the gladiators sometimes only wounded one another, and at other times fought to the death, he familiarised the eyes of his people to them and they learnt to enjoy them. In this way he created amongst most of the younger men a passion for arms, and whilst at first he used to hire gladiators from Rome at a great cost, now from his own.

.....

[41.21] . . . Scipio, the alien jurisdiction. The province of Sardinia had fallen to M. Atilius, but he was ordered to sail to Corsica with the new legion which the consuls had raised - 5000 infantry and 300 cavalry. Whilst he was engaged in that war, Cornelius' command in Sardinia was extended. To Cnaeus Servilius in Further Spain and P. Furius Philus in Hither Spain were voted 3000 Roman infantry and 150 cavalry, and of Latin allied troops 5000 infantry and 300 cavalry. Lucius Claudius received no reinforcements for Sicily. In addition to

these troops the consuls were required to raise two fresh legions in full strength, both of infantry and cavalry, and also 10,000 infantry and 600 cavalry from the Latin allies. The work of enrolment was all the more difficult for the consuls, because the pestilence which the year before had attacked the cattle had now turned into an epidemic, and those who fell victims to it seldom survived the seventh day; those who did survive were subject to a long and tedious illness, which generally took the form of a quartidian ague. The deaths occurred chiefly amongst the slaves and their unburied bodies lay scattered in all the streets, and not even in the case of the free population could the funeral rites be carried out decently. The corpses lay untouched by dog and vulture and slowly rotted away, and it was generally observed that neither in this nor in the previous year had a vulture been anywhere seen.

Several members of the sacerdotal colleges died from the epidemic - the pontiff Cn. Servilius Caepio, father of the praetor; Tiberius Sempronius Longus, a Keeper of the Sacred Books; P. Aelius Paetus, the augur; Tiberius Sempronius Gracchus; C. Atellus Mamilius, the chief curio; and the pontiff M. Sempronius Tuditanus. C. Sulpicius Galba was elected pontiff in place of Caepio . . . in place of Tuditanus. The new augurs were T. Veturius Gracchus Sempronianus in place of Gracchus, and Q. Aelius Paetus in place of P. Aelius. C. Sempronius Longus was appointed a Keeper of the Sacred Books, and C. Scribonius Curio was made chief curio. As the pestilence continued unabated the senate decided that the Keepers should consult the Sacred Books. In accordance with their decree there were special intercessions for one day, and the people, gathered together in the Forum, made a solemn vow, in words dictated by Marcius Philippus, that if disease and pestilence were banished from Roman soil they would keep two days as solemn holy days and days of special intercession. In the district of Veii a boy was born with two heads; at Sinuessa a child with only one hand; at Ariminum a girl was born with teeth; a rainbow spanned the temple of Saturn in the Forum in broad daylight and under a cloudless sky, three suns shone at the same time, and in the same night many meteors glided through the sky. The people of Caene declared that a crested snake covered with golden spots had appeared in the town, and it was generally believed that an ox had spoken in the Capuan district.

[41.22]The commission who had gone to Carthage, after interviewing Masinissa, returned on June 7. They had been more accurately informed as to what was going on in Carthage by the king than by the Carthaginians themselves. It was an ascertained fact, so they asserted, that envoys from Perseus had gone to Carthage, and that the senate there had given them audience at a nocturnal session in the temple of Aesculapius. Masinissa had stated that envoys had been sent from Carthage to Macedonia, and this the Carthaginians did not directly deny. The Roman senate decided that they too must send envoys to Macedonia. Three were sent - C. Laelius, M. Valerius Messala, and Sextus Digritus. A certain section of the Dolopes refused to obey Perseus' orders and appealed from him to the Romans to settle the differences between them. He advanced against them with an army and reduced the whole nation to complete submission. Then he crossed Mount Oeta and went up to Delphi to consult the oracle about religious matters which were disquieting his mind. His sudden appearance in the middle of Greece created general alarm, not only amongst the neighbouring States, but in Asia as well, where information of what was happening was hurriedly sent to Eumenes. Perseus did not stay more than three days at Delphi, and passing through Phthiotis, Achaia and Thessaly, returned to his kingdom without damaging or injuring the districts through which he passed. Nor did he consider it sufficient to conciliate those States through which his route lay; he sent either letters or envoys to the different Greek peoples, asking them to dismiss from their minds the hostile feelings which had existed between them and his father. They were not, he urged, so bitter that they could not, and ought not, to be put an end to in his case. As far as he was concerned there was nothing to disturb their relations or to prevent the growth of an honest and sincere friendship. With the Achaeans, especially, he was anxious to find some way of ingratiating himself.

[41.23]This nation and the Athenians alone out of all Greece had pushed their animosity so far as to forbid the Macedonians to enter their country. Macedonia had, in consequence, become a refuge for all the runaway slaves from Achaia, for as the Achaeans had closed their frontiers against Macedonia, they could not themselves venture into that kingdom. When Perseus got to know this, he had the runaways arrested and sent a letter . . . "They, too, however, must think out the best means of preventing the flight of slaves in the

future." The letter was read at a meeting of their council by Xenophanes, their captain-general, who was anxious to make private interest with the king. Most of those present thought it written in a fair and generous spirit, especially those who were to recover the runaway slaves whom they had given up for lost. Amongst those who believed that the safety of the nation depended upon their keeping their treaty with Rome intact was Callicrates. He made the following speech to the council: "Some look upon this question as of small and trifling importance; I regard it as the greatest and most serious of all under discussion, and, more than that, I consider that it has in one way been decided. For although we have excluded the kings of Macedonia and the Macedonians themselves from our territories, and that decree is still in force forbidding us to admit the envoys and communications of their kings, through which the feelings of some amongst us might be wrongly influenced, nevertheless, we are now listening to the king as though he were addressing us whilst absent, and we are actually giving our approval to his speech. Wild animals mostly reject and shun the food which is placed to deceive them, but we in our blindness are caught by the idle show of a petty boon, and in the hope of recovering some miserable slaves of very little value we are allowing our own liberty to be tampered with and undermined. Who does not see that a way is being sought to lead us to an alliance with the king, and therefore to a breach of the treaty with Rome, with which all our interests are bound up? Unless, indeed, anyone doubts that a war between Perseus and the Romans is inevitable, and that what was expected during Philip's lifetime and interrupted by his death will take place now that he is dead. Philip, as you know, had two sons, Demetrius and Perseus. Demetrius far surpassed his brother in birth on the mother's side, in courage, in ability, in popularity with his countrymen. But Philip had destined the crown as a reward for hatred of the Romans, and he put Demetrius to death for no other offence than his friendship with Rome. Perseus, he knew, would inherit a war with Rome almost before he inherited the crown, and he made him king. What else has he been doing since his father's death but making preparations for war? In the first place he sent the Bastarnae into Dardania creating universal alarm. If they had made their home in that country, Greece would have found them more troublesome neighbours than the Gauls were in Asia. Though his expectations here were frustrated, he did not give up all thoughts of war; rather, to say the truth, he has now commenced war and

subjugated the Dolopes by force of arms, and refused to listen to their proposal to refer their differences to the arbitration of Rome. Then he crossed Mount Oeta and, in order to make a sudden appearance in the heart of Greece, went up to Delphi. What do you imagine was his object in thus exercising a right-of-way where none existed? Then he traversed Thessaly. His doing so without inflicting injury on any of those he hated I regard with all the more apprehension as an attempt to win them over. And now he has sent a letter to us with what looks like an act of generosity, and advises us to consider how for the future we may dispense with that generosity, namely, by rescinding the decree by which the Macedonians are kept out of the Peloponnese. This, too, in order that we may once more see the king's ambassadors and the renewal of hospitable relations with his chief men. Before long we shall have the Macedonian armies and the king himself entering the Peloponnese by way of Delphi - narrow is the strait that separates us! - and, finally, we shall find ourselves in the ranks of the Macedonians whenever they take up arms against Rome. I give it as my opinion that we make no fresh decree, but let everything remain just as it is, until it becomes absolutely certain whether these fears of mine are groundless or justified. If the peace between Macedonia and Rome remains unbroken, let there be friendly intercourse between us. For the present it seems to me premature and dangerous to think of altering our policy."

[41.24]He was followed by Archo, the brother of Xenarchus, who spoke as follows: "Callicrates has made it difficult for me and for all who disagree with him to reply. By taking up the defence of our alliance with Rome and asserting that it is attacked and opposed when nobody is either attacking or opposing it, he has made anyone who does not agree with him appear as though he were speaking against the Romans. To begin with, he knows and proclaims every secret transaction, just as if instead of being here amongst us he had come straight from the Roman senate-house or from the king's privy council. He even divines what would have happened had Philip lived; why under the circumstances Perseus was heir to the crown; what preparations the Macedonians are making; what designs the Romans are entertaining. But we, who do not know the cause of the circumstances of Demetrius' death, nor what Philip would have done

had he lived, are bound to frame our policy in accordance with open and notorious facts.

"Now we know that on receiving the crown Perseus was recognised as king by the Roman people; we hear that Roman ambassadors visited the king and were graciously received by him. In my judgment, this points to peace and not to war, nor can the Romans possibly be offended if, as we followed their lead in war, so now we follow them as the authors of peace. I do not see why we alone in all the world should wage a relentless war against the kingdom of Macedonia. Are we so near it as to be open to attack? Are we like the Dolopes, who are the weakest of all the nations that he has subdued? No, quite the contrary. Whether it is through our own strength or through the favour of heaven or owing to the distance which separates us, in any case we are safe. But suppose we lay as open to invasion as the Thessalians and the Aetolians, have we no more interest with the Romans, no stronger claim upon them than the Aetolians, who were not long ago in arms against them, while we have always been their friends and allies? Whatever reciprocal rights exist between the Macedonians and the Aetolians, Thessalians and Epirotes, in fact the whole of Greece, let us also enjoy. Why does this abominable interference with the common rights of humanity exist for us alone? Granting that Philip did something which caused us to make this decree against him when he was in arms and engaged in war, what has Perseus, new to the throne, guiltless of any wrong towards us, effacing by his kindness the enmity aroused against his father - what has Perseus done to make us, alone of all nations, his enemies? I might also urge this point, that the services which the former kings of Macedonia have rendered us have been so great that the injury which Philip has done to us, however great it was, should be forgotten, especially now that he is dead. You know that when the Roman fleet was lying at Cenchreae and the consul with his army was at Elatia, we were assembled in council to decide whether we should follow Philip or the Romans, and the discussion lasted three days. Even if the pressure of immediate danger in no way alienated our feelings from the Romans, there must have been something at least to make our deliberations so lengthy, and this was our long-standing union of interests with Macedonia and the great services which her kings have for many years rendered to us. Let these same motives weigh with us now, not to make us especially his friends, but to

prevent us from being especially his enemies. Do not let us make a presence, Callicrates, of seriously discussing a proposal which nobody has brought forward. No one suggests that we should form fresh alliances or draw up a new treaty so as to fetter ourselves with obligations thoughtlessly incurred. Let there be free intercourse between us, a mutual recognition of reciprocal rights; let us not, by closing our own frontiers, shut ourselves off at the same time from the king's dominions; let it not be possible for our runaway slaves to find shelter anywhere. What is there in all this that conflicts with the terms of our treaty with Rome? Why do we make so much of a little matter and throw suspicion upon what is simple and straightforward? Why do we raise such troubles out of nothing? Why do we make others mistrusted and suspected in order that we ourselves may be free to flatter the Romans? If there is to be war, even Perseus himself entertains no doubt as to our taking the side of Rome. As long as there is peace, let all hostile feelings be suppressed, even if they are not dispelled." Those who had approved of the king's letter were in full agreement with this speech. The leaders were indignant at Perseus not thinking the matter important enough for formal negotiation and making his demand in the few lines of a letter. The discussion was adjourned and no decree was made. Subsequently envoys were sent by the king whilst the council was in session at Megalopolis, and those who feared a breach with Rome took steps to prevent their admission to the council.

[41.25] While this was going on the Aetolians turned their rage against themselves, and it seemed as though the massacres on both sides would result in the total destruction of the nation. At last both factions, weary of slaughter, sent missions to Rome and approached each other in the hope of re-establishing peace and concord. But these negotiations were rendered fruitless by a fresh outrage which roused all the old passions. The refugees from Hypata, comprising eighty illustrious citizens, who belonged to the party of Proxenus, had been assured of their restoration to their native country under the pledged word of Eupolemus, the chief magistrate. As they were returning home the whole population, including Eupolemus himself, came out to meet them; he gave them a kind greeting and the right hand of friendship. But as they were entering the gates they were all put to death in spite of their appeals to the gods, as witnesses of the pledges given by Eupolemus. After this the war blazed up more

fiercely than ever. C. Valerius Laevinus, Ap. Claudius Pulcher, C. Memmius, M. Popilius and L. Canuleius had been sent by the senate to arbitrate between the contending parties. The delegates from both sides appeared before them at Delphi and a keen debate took place, in which Proxenus was considered to have spoken by far the most convincingly and most eloquently. A few days later he was poisoned by his wife Orthobula. She was convicted of the crime and sent into exile. The same madness of party faction was rife among the Cretans. When Q. Minucius, who had been sent with ten ships to settle their disputes, arrived off the island they entertained hopes of peace. There was only a six months' truce, however; after that a still more bitter conflict was kindled. The Lycians were being harassed at this time by the Rhodians. But it is not worth while to narrate in detail these wars which foreign nations waged with each other. The task before me is sufficiently and more than sufficiently heavy of describing the doings of the Romans.

[41.26]In Spain the Celtiberi who, after their defeat, had submitted to Ti. Gracchus, remained quiet during M. Titinius' administration. On the arrival of Appius Claudius they resumed hostilities and began by a sudden attack on the Roman camp. The day had hardly dawned when the sentinels on the rampart and the men on outpost duty at the gates caught sight of the enemy advancing in the distance and gave the alarm. Appius Claudius hoisted the signal for action and after addressing a few words to the soldiers made a simultaneous sortie from three gates. The Celtiberi met them as they emerged and for a short time the fighting was equal on both sides, because owing to the confined space the Romans could not all get into action. As soon as they got clear of the rampart they followed those in front of them in a compact mass in order to be able to deploy into line and extend their front to the same length as that of the enemy by whom they were being surrounded. Then they made a sudden charge which the Celtiberi could not withstand. In less than two hours they were defeated; 15,000 were either killed or taken prisoners; 32 standards were captured. The camp was stormed the same day and the war brought to an end. The survivors from the battle dispersed to their various towns. After that they submitted quietly to the authority of Rome.

[41.27]Q. Fulvius Flaccus and A. Postumius Albinus were elected censors this year and revised the roll of the senate. M. Aemilius

Lepidus, the Pontifex Maximus, was chosen as leader of the House. Nine names were struck off the roll, the most important being those of M. Cornelius, Maluginensis, who had commanded as praetor in Spain two years before, L. Cornelius Scipio, who was at the time exercising the civic and alien jurisdictions, and L. Fulvius the censor's brother, and according to Valerius Antias, co-proprietor with him of the family estate. After the usual prayers and vows the consuls left for their provinces. M. Aemilius was charged by the senate with the task of suppressing the outbreak of the Petavines in Venetia, amongst whom, as their own envoys reported, the strife of rival factions had led to civil wars. The commissioners who had gone to Aetolia to put down similar disturbances brought back word that the frenzy of the nation could not be restrained. The consul's arrival was the salvation of the Petavines, and as he had nothing else to do in his province he returned to Rome.

These censors were the first to make contracts for paving the streets of the City with flints and the roads outside with gravel, and footpaths raised at the sides, and also for the construction of bridges at various points. They furnished the praetors and aediles with a stage, placed the barriers in the Circus and provided egg-shaped balls to mark the number of laps, turning-posts on the course and iron doors for the cages through which the animals were sent into the arena. They also undertook the paving of the ascent from the Forum to the Capitol with flint and the construction of a colonnade from the temple of Saturn to the Capitol, and then on to the senaculum, and beyond that to the senate-house. The market-place outside the Porta Trigemina was paved with stone slabs and enclosed by a palisading; they also repaired the Aemilian colonnade and made a flight of stone steps on the slope leading from the Tiber. Inside the same gate they paved the colonnade leading to the Aventine with flint and made a road from the temple of Venus by the Clivus Publicius. These censors also signed contracts for the erection of walls at Calatia and Auximum, and the money which they received from the sale of portions of the State domain was spent in building shops round the forums in both these places. Postumius gave out that without the orders of the Roman senate or people he would not spend their money, so Fulvius Flaccus, acting alone, built a temple to Jupiter at Pisaurum and at Fundi and brought water to Placentia. He also paved a street at Pisaurum with flint. At Sinuessa he added some suburban

residences with aviaries, constructed sewers, enclosed the place with a wall, built colonnades and shops all round the forum, setting up three statues of Janus there. These works contracted for by one of the censors were greatly appreciated by the members of the colony. The censors were strict and painstaking in the regulation of morals; several of the equites were deprived of their horses.

[41.28] Towards the close of the year there were thanksgivings for one day for the successes gained in Spain under the auspices and generalship of Appius Claudius, and twenty of the larger victims were offered in sacrifice. The next day special intercessions were offered up at the temples of Ceres, Liber and Libera, owing to a report which had come in of a violent earthquake in the Sabine country which had laid many buildings in ruins. On Appius Claudius' return from Spain the senate decreed that he should enter the City in ovation. The consular elections were now approaching and there was keen competition owing to the large number of candidates. L. Postumius Albinus and M. Popilius Laenas were elected. The new praetors were N. Fabius Buteo, M. Matienus, C. Cicereius, M. Furius Crassipes for the second time, A. Atilius Serranus for the second time, and C. Cluvius Saxula also for the second time. When the elections were over, Ap. Claudius celebrated his triumph over the Celtiberi by entering the City in ovation, and he brought into the treasury 10,000 pounds of silver and 5000 pounds of gold. Cnaeus Cornelius was inaugurated as Flamen Dialis.

During the year a tablet was placed in the temple of Mater Matuta with this inscription: "Under the auspices and command of the consul Tiberius Sempronius Gracchus, the legions of the army of Rome have subjugated Sardinia. In that province there have been 80,000 natives either killed or made prisoners. He was most happy in his administrations; he liberated the allies of Rome; he restored the revenues and brought his army safely home laden with enormous booty. For the second time he entered Rome in triumph. Because of this he has given this tablet as an offering to Jove." There was a representation of the island and pictures of the battles on the tablet. Several gladiatorial exhibitions were given this year, most of them on a small scale; the one given by T. Flamininus far surpassed the rest. On the occasion of his father's death he exhibited this spectacle for four days, and accompanied it with a distribution of meat, a funeral

feast, and scenic plays. But even in this magnificent exhibition the total number of men who fought was only seventy-four.

BOOK 42: THE THIRD MACEDONIAN WAR

[42.1] The first business of the new consuls was to consult the senate about their provinces and armies. It was decreed that they should both have Liguria for their province and they were each to raise two fresh legions for service in that province and also 10,000 infantry and 600 cavalry from the Latin allies. They were also required to call up 3000 Roman infantry and 200 cavalry to reinforce the army in Spain. A further force of 1500 infantry and 100 cavalry was to be raised for the operations in Corsica. M. Atilius was to remain in charge of Sardinia till his successor arrived. Then the praetors balloted for their provinces. A. Atilius Serranus received the civic and C. Cluvius Saxula the alien jurisdiction; Hither Spain fell to N. Fabius Buteo; Further Spain to C. Matienus; Sicily to M. Furius Crassipes; Sardinia to C. Cicereius. Before the magistrates left for their provinces the senate decided that L. Postumius should go into Campania to fix the boundaries between the State land and the land in private occupation. It was a matter of common knowledge that persons had appropriated a large part of the State domain by gradually advancing their boundaries. Postumius was angry with the Praenestines because when he had gone there in a private capacity to offer a sacrifice in the temple of Fortune, he had not received any marks of honour, either publicly or privately. So before he left Rome he sent a despatch to Praeneste ordering the chief magistrate to go out and meet him, to have a place prepared by the municipality where he could stay, and to see that pack animals were ready to carry his luggage when he left. No one before this consul had ever been a burden or expense to the allies. The magistrates were provided with mules and tents and all other requisites simply that they might not requisition anything of the kind from the allies; they enjoyed the hospitality of private citizens whom they treated with courtesy and consideration; and their own houses in Rome were open to those with whom they were accustomed to stay. When officials were despatched to some place on a sudden emergency they only demanded one mule apiece from the towns through which their journey lay. No other expense was incurred by the allies in the case of Roman magistrates. The vindictiveness of the consul, even if justifiable, ought not in any case

to have appeared while he was in office. The Praenestines unfortunately, whether through modesty or timidity, allowed the matter to pass without protest, and this silence furnished the magistrates with a legal colouring, as though following an unquestioned precedent, to demands which became continuously more burdensome.

[42.2]At the beginning of the year, the commissioners who had visited Aetolia and Macedonia brought back word that no opportunity had been afforded them of meeting Perseus. Some made out that he was ill; others that he was away from home; both stories being equally false. It was, however, quite clear that warlike preparations were on foot, and that it would not be long before Perseus resorted to arms. In Aetolia intestine quarrels were increasing in violence day by day, and the leaders of the opposing factions refused to be kept in check by their authority. As it was fully expected that there would be war with Macedonia, it was decided that portents should be expiated and prayers offered to win "the peace of the Gods," of those deities, namely, who were mentioned in the Books of Fate. At Lanuvium the sight of a great fleet had been witnessed in the heavens; at Privernum the earth had brought forth dark-coloured wool; at Remens in the Veientine district there had been a shower of stones; the whole of the Pomptine country had been covered with clouds of locusts; in a field in Gaul where the plough was at work, fishes emerged from the turned-up clods. In consequence of these portents the Books of Fate were consulted, and the Keepers announced to what deities and with what victims sacrifices were to be offered; they further ordered special intercessions for the expiation of the portents, and also others in fulfilment of the vow taken by the people the previous year on the occasion of the pestilence. All was done as the Sacred Books ordered.

[42.3]It was in this year that the temple of Juno Lacinia was unroofed. Q. Fulvius Flaccus, the censor, was building the temple of Fortuna Equestris and was quite determined that there should be no larger or more magnificent temple in Rome. He had vowed this temple during the Celtiberian war, whilst acting as praetor in Spain. The beauty of the temple would be enhanced, he thought, if it were roofed with marble tiles, and with this object he went down to Bruttium and stripped off half the roof from the temple of Juno Lacinia, as he considered this would furnish sufficient tiles to cover his temple.

Ships were in readiness to transport them, and the natives were deterred by the authority of the censor from any attempt to prevent the sacrilege. On the censor's return the tiles were unloaded and carried to the new temple. Although no hint was dropped as to where they came from, concealment was impossible. Protests were heard in the House, and there was a general demand that the consuls should bring the matter before the senate. The censor was summoned, and his appearance called forth still more bitter reproaches from all sides. Not content, he was told, with violating the noblest temple in that part of the world, a temple which neither Pyrrhus nor Hannibal had violated, he did not rest till he had cruelly defaced it and almost destroyed it. With its pediment gone and its roof stripped off, it lay open to moulder and decay in the rain. The censor is appointed to regulate the public morals; the man who had, following ancient usage, been charged to see that the buildings for public worship are properly closed in and that they are kept in repair - this very man is roaming about amongst the cities of our allies ruining their temples and stripping off the roofs of their sacred edifices. Even in the case of private buildings such conduct would be thought disgraceful, but he is demolishing the temples of the immortal gods. By building and beautifying one temple out of the ruins of another he is involving the people of Rome in the guilt of impiety, as though the immortal gods are not the same everywhere, but some must be honoured and adorned with the spoils of others. It was quite clear what the feeling of the House was even before the question was put, and when it was put they were unanimous in deciding that those tiles should be carried back to the temple and that expiatory sacrifices should be offered to Juno. The religious duty was carefully discharged, but the contractors reported that as there was no one who understood how to replace the tiles they had been left in the precinct of the temple.

[42.4]One of the praetors, N. Fabius, whilst on his way to take charge of the province of Hither Spain, died at Marseilles. On receiving the information of his death, the senate decreed that P. Furius and Cn. Servilius, whose successors had been already appointed, should decide by ballot which of them should have his command extended and administer Hither Spain. It fell to P. Furius, fortunately, who had been in the province, to retain it. There was a quantity of land taken in the wars with the Ligurians and the Gauls which was lying unappropriated, and the senate passed a resolution that it should be

distributed amongst individual holders. In pursuance of this resolution the City praetor appointed ten commissioners to supervise the allotment, M. Aemilius Lepidus, C. Cassius, T. Aebutus Carus, C. Tremellius, P. Cornelius Cethegus, Quintus and Lucius Apuleius, M. Caecilius, C. Salonijs, and C. Menatius. Each Roman citizen received ten jugera, each of the Latin allies, three. During this time a delegation from Aetolia went to Rome with an account of their party factions and fights; others from Thessaly to report on the state of things in Macedonia.

[42.5]Perseus was revolving in his mind the war which he had been meditating in his father's life-time, and by promises more than by performance was trying through his agents to enlist the sympathies not only of the Greek States as a whole, but of the separate cities also. There was, however, a large party in his favour and much more inclined to support him than Eumenes, though Eumenes had by his munificent liberality laid all the cities of Greece and most of their leaders under personal obligations to him. His kingly rule, too, had been such that not one of the cities which owned his sway would have changed their condition with that of any autonomous community. On the other hand, there were rumours that Perseus had killed his wife with his own hand, and had put Apelles to death. Apelles had been his instrument in getting rid of his brother and had fled the country to escape the punishment which Philip sought to inflict on him. After his father's death Perseus had by lavish promises of rewards for his share in the murder enticed him back and then had him assassinated. Although he was notorious for many other murders, both of his own subjects and of foreigners, and although he did not possess a single commendable quality, the cities generally preferred him to a king who had shown such affection towards his kindred, such justice towards his subjects and such bountiful generosity towards all men. Either they were so impressed with the prestige and greatness of Macedonia as to look with contempt on a newly-founded kingdom, or they were eager for a revolutionary change, or else they did not wish to be at the mercy of Rome.

It was not in Aetolia only that disturbances had arisen through the heavy pressure of debt; the Thessalians were in the same condition, and the mischief had spread like an epidemic to Perrhaebia also. When news came that the Thessalians were in arms, the senate at once sent Ap. Claudius to examine the situation and allay the

excitement. He severely censured the leaders on both sides. The debt was swollen by illegal interest, and he reduced the amount with the consent of those who had made it so heavy, and then arranged that the amount legally owing should be paid off by equal instalments in ten years. Affairs in Perrhaebia were settled in the same way. Marcellus attended the session of the Aetolian council at Delphi and heard the arguments of both sides, who carried on the dispute in the same temper they had shown in the civil war. He saw that it was a competition in recklessness and audacity, and not wishing to lighten or to aggravate the grievances of either side, he made the same demand on both and asked them to abstain from war and bury their old quarrels in oblivion. This reconciliation was mutually guaranteed by the exchange of hostages, and Corinth was agreed upon as the place where the hostages were to reside.

[42.6] Leaving Delphi and the Aetolian council Marcellus proceeded to the Peloponnese, where he had called a meeting of the Achaean council. Here he commended them for having firmly retained the old decree forbidding the Macedonian kings any approach to their territories, and he made it quite clear that the Romans regarded Perseus as an enemy. To precipitate hostilities Eumenes went to Rome, taking with him the notes he had made during his enquiry into the warlike preparations going on. Five commissioners were at the same time sent to the king to see for themselves the state of things in Macedonia, and were instructed to visit Alexandria as well and renew the friendly relations between Ptolemy and Rome. The members of the mission were C. Valerius, Cn. Lutatius Cerco, Q. Baebius Sulca, M. Cornelius Mammula, and M. Caecilius Denter. Envoys from Antiochus arrived about the same date. Their leader, Apollonius, when introduced to the senate, alleged many valid reasons why the king was paying his tribute after the appointed day. He had, however, brought the whole amount, so that no favour need be shown to the king beyond excusing the delay. He had, in addition, brought a present of golden vases weighing 500 pounds. The king asked that the friendship and alliance which had been formed with his father might be renewed with him, and that the people of Rome would look to him for all that a friendly monarch could supply; he would never be lacking in any service he could render them. During his stay in Rome, he reminded the House, it was due to the kindness of the senate and the friendliness of the younger men that he was

treated as a prince more than as a hostage. The deputation received a gracious reply and the City praetor, A. Atilius, was ordered to renew the alliance with Antiochus which had existed with his father. The tribute was given into the charge of the City quaestors, and the golden vases were handed to the censors with instructions to deposit them in whatever temples they thought fit. The leader of the deputation received a present of 100,000 ases, and free quarters and hospitality were decreed to him as long as he remained in Italy. The commissioners who had been in Syria had reported that he held the highest place of honour with the king and was a devoted friend to Rome.

[42.7]The principal incidents in the provinces this year were the following: C. Cicereius fought a regular engagement in Corsica; 7000 of the enemy were killed and over 1700 made prisoners. During the battle the praetor vowed a temple to Juno Moneta. After this the Corsicans begged for peace, which was granted to them on condition of their paying a tribute of 200,000 pounds of wax. After the subjugation of Corsica, Cicereius sailed across to Sardinia. There was a battle also in Liguria at the town of Carystum in the Statellate country. A large force of Ligurians had concentrated there. After the consul M. Popilius reached the place they at first kept within their walls, but when they saw the Romans preparing to attack, they formed their line of battle in front of their gates. This had been the consul's object in threatening an attack and he lost no time, therefore, in commencing the action. They fought for more than three hours without any certain prospect of victory on either side. When the consul found that in no part of the field were the Ligurians giving way, he ordered the cavalry to mount and deliver as fierce a charge as possible on the front and flanks of the enemy's line. A good many broke through the enemy's centre and got behind the fighting line. This created a panic amongst the Ligurians; they broke and fled in all directions, very few reached the town, the cavalry mostly intercepting them. The obstinacy of the fighting proved costly to the Ligurians; 10,000 men are said to have been killed and more than 700 prisoners taken; 82 standards were carried off the field. The victory was not a bloodless one for the Romans: they lost more than 3000 men; the loss fell mainly on the front ranks owing to both sides refusing to give ground.

[42.8]After the battle the Ligurians rallied from their scattered flight and collected together. When they became aware that the number of those lost was greater than that of the survivors - there were not more than 10,000 men - they made their surrender and made it unconditionally in the hope that the consul would not treat them with greater severity than former generals had done. However, he deprived them all of their arms, sacked their town and sold them and their property. He forwarded a report of what he had done to the senate. As the other consul, Postumius, was occupied with the survey of the fields in Campania, the despatch was read in the House by A. Atilius. The senators regarded it as an act of gross cruelty that the Statellati, who alone of all the Ligurians had refused to take up arms against Rome, should actually have been attacked without any provocation, and after trusting themselves to the good faith of the Roman people have been tortured to death with every form of cruelty. That so many thousands of freeborn persons, guiltless of any crime, should have been sold into slavery, in spite of their appeals to the honour of Rome, is a terrible example and warning against any one henceforth making a surrender, and sharing the fate of those who have been dragged off to various places to be the slaves of men who were formerly the enemies of Rome and are hardly even now at peace with her. Moved by these considerations the senate determined that M. Popilius should restore the Ligurians to liberty and return the purchase-money, and see that as much of their property as could be recovered should be given back to them; their arms also were to be restored. All this was to be done as soon as possible; the consul was not to leave his province till he had replaced the surrendered Ligurians in their homes. He was reminded that the glory of victory was won by overcoming the enemy in fair fight, not by cruelty to those who cannot defend themselves.

[42.9]The same ungovernable temper which the consul had displayed towards the Ligurians he now showed in refusing to obey the senate. He at once sent the legions into winter quarters at Pisae and returned to Rome angry with the senate and furious with the praetors. Immediately on his arrival he convened the senate in the temple of Bellona, where he delivered a long and bitter harangue against the praetor. He ought, he said, to have asked the senate to decree honours to the immortal gods for the successes he had won, instead of which he had induced the senate to pass a resolution in favour of

the enemy by which he transferred his (the speaker's) victory to the Ligurians and practically ordered the consul to surrender to them. He therefore imposed a fine on him and asked the senators to make an order rescinding the resolution against him and also to do, now that he was in Rome, what they ought to have done when he was away, immediately they received his despatch, namely, to decree a solemn thanksgiving, first as honouring the gods and then as showing at least some regard for him. Some of the senators attacked him to his face quite as severely as they had done in his absence, and he returned to his province without either of his demands being conceded. The other consul, Postumius, spent the summer in surveying the fields and returned to Rome for the elections without even having seen his province. The new consuls were C. Popilius Laenas and P. Aelius Ligus. The new praetors were C. Licinius Crassus, M. Junius Pennus, Sp. Lucretius, Sp. Cluvius, Cn. Sicinius, and C. Memmius for the second time.

[42.10] This year the lustrum was closed. The censors were Q. Fulvius Flaccus and A. Postumius Albinus; Postumius closed the lustrum. The number of Roman citizens as shown by the census was 269,015, a somewhat smaller number than the previous one. This was owing to the fact that, as the consul explained to the Assembly, all those who had to return to their own cities in compliance with the consul's edict were registered in their own places of residence, none of them in Rome. The censors had discharged their functions in perfect harmony and in the best interests of the commonwealth. All those whom they struck off the senatorial roll, or degraded from the order of the equites, they placed amongst the aerarii and expelled from the tribes, and neither of them retained any name which the other censor had rejected. Fulvius dedicated the temple of Fortuna Equestris, which he had vowed six years previously when fighting with the Celtiberi. He also exhibited the Scenic Games for four days and those in the Circus Maximus for one day. L. Cornelius Lentulus, one of the Keepers of the Sacred Books, died this year, and A. Postumius Albinus was appointed in his place. Such clouds of locusts invaded Apulia from the sea that they covered the fields far and wide with their swarms. To get rid of this destruction to the crops Cn. Sicinius was sent with full powers into Apulia and spent a considerable time in getting together an enormous number of men to collect them.

The following year in which C. Popilius and P. Aelius were the consuls began with the dispute left over from the year before. The senators wanted to discuss the question of the Ligurians and to reaffirm their resolution. The consul Aelius brought the matter up for discussion; Popilius, on his brother's behalf, tried to dissuade both his colleague and the senate from taking any further action and publicly gave out that if they made any decree he should oppose it. He deterred his colleague from going any further; the senate were all the more incensed against both consuls and insisted on carrying the matter through. So when the allocation of provinces came up and the consuls were anxious to have Macedonia, as a war with Perseus was now imminent, the senate decreed Liguria as the province for both consuls. They refused to decree Macedonia unless the case of M. Popilius was gone into. The consuls then demanded to be allowed to raise fresh armies or else reinforcements for the old armies. Both requests were refused. Two of the praetors asked for reinforcements: M. Junius for Hither Spain and Sp. Lucretius for Further Spain. Their request was also refused. C. Licinius Crassus had received the civic and Cn. Sicinius the alien jurisdiction; C. Memmius had Sicily allotted to him, and Sp. Cluvius Sardinia. The consuls were angry with the senate for the course they had taken, and after fixing the Latin Festival at the earliest possible date, gave notice that they should leave for their province and would transact no public business beyond what was connected with the administration of the provinces.

[42.11]Valerius Antias writes that Attalus, the brother of Eumenes, went to Rome at this time to lay charges against Perseus and to describe his preparations for war. The majority of annalists, and certainly those whom you would prefer to believe, state that Eumenes came in person. When he arrived in Rome he was received with all the honours which the people of Rome considered due to his own merits and quite as much so to the kindnesses which they had heaped upon him in such profusion. After being introduced to the senate he said that he was visiting Rome for two reasons. One was his great desire to make acquaintance with the gods and men to whose beneficence he owed his present prosperity, which was such that he did not venture even to wish for anything beyond it. The other reason was that he might warn the senate of the necessity of thwarting the projects of Perseus. Beginning with a review of Philip's policy he narrated the circumstances of the death of Demetrius, who

was opposed to war with Rome. "The Bastarnae," he continued, "were induced to leave their homes that he might have their assistance in the invasion of Italy. Whilst revolving these schemes in his mind he was surprised by death and left the crown to one whom he knew to be Rome's greatest enemy. The war had thus been left as a heritage to Perseus by his father, bequeathed to him together with the crown, and from the first day of his rule all his plans were laid to feed and foster it. He has abundant resources; the long years of peace have produced a numerous progeny of men of military age; moreover he is in the prime of life, in the full strength of manhood, and with a mind strengthened and disciplined in the science and practice of war. From his boyhood he has shared his father's tent and has thus gained experience not only in border wars, but even in the wars with Rome in the various expeditions on which he has been sent. From the day he ascended the throne he has been marvellously successful in accomplishing many things which his father, after trying every means, was unable to effect either by force or craft; and his power is enhanced by a personal authority such as is only gained by great and numerous merits in a long course of time.

[42.12]"For throughout the cities of Greece and Asia all stand in awe of his greatness. I do not see for what merits or munificence such a tribute is paid him, nor can I say for certain whether this is due to the good fortune which attends him or whether, though I shrink from saying it, it is ill-feeling towards Rome that places him so high in their favour. Even with monarchs he possesses great influence; he married the daughter of Seleucus, and did not ask for her hand; on the contrary, he was invited to make the match; he gave his sister to Prusias in response to his earnest solicitations. At the celebration of both these marriages congratulations and wedding presents were offered by deputations from numberless States, and the proudest nations joined in the processions to bring good luck to the brides. The Boeotians, in spite of all Philip's persuasions, could never be brought to make a formal league of friendship and commit it to writing; today the terms of a league with Perseus are recorded in three inscriptions: one at Thebes, another in the venerable world-famed shrine in Delos, and the third at Delphi. And, as a matter of fact, unless a small section of the Achaean council had threatened the rest with the power of Rome, matters would have gone so far that the way into Achaia would have been open to him. After all the services

I have rendered to that nation - and it is difficult to say whether those to the nation or those to individuals were the greater - the statues set up in my honour have either fallen into decay through neglect, or else have been done away with through hostile malice. Who does not know that in their party conflicts the Aetolians appeal for help not to the Romans, but to Perseus? Though he had these friendships and alliances to lean upon, he has made such ample preparations for war at home that he has no need of outside help. He has stored corn for 30,000 infantry and 5000 cavalry which will last for ten years, so that he can leave the harvests of his own and of the enemy's fields untouched. He is now in possession of so much money that he has a reserve sufficient to pay 10,000 mercenary troops, in addition to his Macedonian force, for the same period. This is irrespective of the revenue from the royal mines. In the arsenals, arms have been accumulated for three armies each as large. Thrace is open to him as a never-failing source from which he can draw fighting men, supposing that the supply from Macedonia should fail."

[42.13]He closed with an earnest appeal. "I am not, senators, laying these facts before you as bruited in vague rumours, or because I wished such charges against an enemy to be true, and therefore was the more eager to credit them; I am stating the results of my investigations and disclosures just as though you had sent me on a mission of enquiry and I were reporting what I had actually seen. I would not have left my kingdom, to which you have given such extension and prestige, and undertaken so long a voyage merely to destroy all faith in me by telling you idle tales. I saw the greatest cities in Greece and Asia unveiling their designs day by day, and soon, were they allowed, they will have gone so far that there will be no room left for repentance. I have watched Perseus, not confining himself within his own borders, taking armed possession of some places, and where others could not be seized by force, winning them by a show of favour and goodwill. I observed how unequal the conditions were; he preparing for war against you and you making peace secure for him, though it seemed to me as if he were not so much preparing for war as actually commencing it. Abrupolis, your friend and ally, he has expelled from his kingdom. Arthetaurus, the Illyrian, also your friend and ally, he caused to be put to death because he discovered that he had written to you. Euersas and Callicritus, leading men in Thebes, he managed to get put out of the way because they spoke too frankly

against him in the council of Boeotia and declared that they should inform you about what was going on. He sent help to the Byzantines in violation of the treaty; he levied war on Dolopia; he marched his army through Thessaly and Doris in order that, should civil war break out, he might smash the more respectable party by the means of the more disreputable one. He brought about universal confusion in Thessaly and Perrhaebia by holding out the prospect of a cancellation of all debts, so that he might crush the aristocracy by a body of debtors bound by their obligations to him. As you have remained quiet and allowed him to do all this, and as he sees that, as far as you are concerned, Greece has been handed over to him, he takes it for granted that he will meet with no armed opposition before he has landed in Italy. How far this is an honourable or safe policy for you to pursue, it is for you to consider. I, at all events, felt that it would be disgraceful on my part if Perseus came and carried war into Italy before I, your ally, had warned you to be on your guard. I have discharged the duty incumbent upon me and have relieved myself of what was a burden on my loyalty. What can I do more, except to pray heaven that you may consult the true interest of your commonwealth and of us, your allies and friends, who depend on you?"

[42.14] This speech made a great impression on the House, but for the time no one outside could learn anything beyond the fact of the king's presence in the House, in such silence were the proceedings veiled. Only when the war was over did what the king said and what the senate replied leak out. A few days later the envoys of King Perseus were admitted to an audience. But the minds, no less than the ears, of the senators had been captured by Eumenes, and all that the Macedonian envoys alleged in justification or apology found no hearing. The effrontery of Harpalus, the leader of the embassy, created still more exasperation. He said that the king was anxious that when he declared that he had neither said nor done anything of a hostile character, his statement should be believed. If, however, he saw that they were obstinately bent upon finding some excuse for war, he should depend upon himself with resolution and courage; the chances of war were the same for both sides and the issue was uncertain.

All the cities of Greece and Asia were much concerned about the reception which Eumenes and the envoys of Perseus had met with in the senate. Most of them on learning of the arrival in Rome of the

man who, in their opinion, would influence the Romans in the direction of war, sent deputations, ostensibly to discuss other questions. One of these was from Rhodes, and its leader had no doubt whatever that Eumenes had included his city in the indictment against Perseus. Consequently he made every effort through his friends and patrons to get an opportunity of meeting the king in argument before the senate. As he did not succeed he denounced the king in unmeasured invective, declaring that he had stirred up the Lycians against the Rhodians and was much more oppressive to Asia than Antiochus had ever been. This language pleased the populace whose sympathies were with Perseus, but it was resented by the senate and did no good either to himself or his fellow-countrymen. The hostility shown towards Eumenes by the different States made the Romans all the more determined to show him favour; all honours were heaped upon him and most valuable gifts presented to him, including a curule chair and an ivory sceptre.

[42.15]After the deputations were dismissed, Harpalus returned to Macedonia as speedily as possible and informed the king that he had left the Romans not indeed actually preparing for war, but so embittered against him that any one might see they would not long delay. Perseus himself believed that events would take this turn and now he even wished that they would, as he believed himself to be at the height of his power. Eumenes was the man he hated most of all, and he determined to begin the war by shedding his blood. He suborned Euander of Crete, a leader of mercenaries, and three Macedonians who were accustomed to lend their services for crimes of this nature, and gave them a letter for Praxo, a friend of his, the wealthiest and most influential woman in Delphi. It was generally understood that Eumenes would go up to Delphi to sacrifice to Apollo. The only thing the assassins needed for executing their project was a suitable spot, and they and Euander traversed the neighbourhood to find one.

On the ascent to the temple from Cirrha, before reaching the part covered with buildings, the path, which is so narrow that passengers can only go in single file, has a wall running close to it on the left hand, and on the right a landslip has left an abrupt descent of some depth. Behind this wall the conspirators concealed themselves and built steps up against it, so that they might hurl missiles on the king as he passed under it. As he came up from the sea he was surrounded

by a crowd of friends and by his bodyguard, but as the road became narrower, fewer could walk side by side. When they reached the place where they had to go in single file, Pantaleon, one of the Aetolian leaders, was in front, and the king was engaged in conversation with him. At this moment the assassins appeared above the wall and rolled down two huge stones, one of which hit the king on the head and the other fell on his shoulder. Stunned by the blow he fell down the steep descent, after many stones had been flung upon him as he lay. All the friends and guards fled except Pantaleon, who fearlessly remained to protect the king.

[42.16]The assassins could easily have run round the wall to finish off the wounded king, but instead of this they fled up to the ridge of Parnassus as though they had completed their task, and in such haste that one of them, not being able to keep up with them, retarded their flight, and to prevent his being caught and turning informer against them, they killed their comrade. The king's friends ran to where his body lay, followed by the guards and slaves. They lifted him, still stunned by the blow and unconscious, but they found from the warmth of the body and the breath still remaining in the lungs, that he was still alive, but they had little or no hope of his recovery. Some of the guards followed in the track of the assassins and climbed as far as the top of Parnassus, but their labour was in vain and they returned from their fruitless search. The Macedonians had set about the crime with as much deliberation as daring; they abandoned it with as much haste as cowardice. The next day the king had recovered consciousness and was carried down to the ship. They first made for Corinth, then the ships were drawn across the neck of the Isthmus and the voyage was continued to Aegina. Here so much secrecy was observed regarding his progress towards recovery, none being admitted to his room, that a report of his death travelled through Asia. Even Attalus believed it, somewhat more readily indeed than was consistent with harmony between the brothers, for he talked to his brother's wife and to the commandant of the citadel as if he were the undoubted heir to the crown. Eumenes did not forget this, and though he had determined to dissemble his resentment and preserve silence, he could not restrain himself the first time they met from reproaching him for his premature haste in wooing his wife. The rumour of his death even reached Rome.

[42.17]Just after this incident C. Valerius, who had been sent to Greece to examine the state of the country and discover the designs of Perseus, returned with a report which agreed in all points with the charges brought by Eumenes. He had brought back with him from Delphi the woman Praxo, whose house had been the meeting-place of the assassins, and also L. Rammius, a native of Brundisium, who laid the following information before the senate. Rammius was the chief person in Brundisium, and he used to entertain the Roman generals and distinguished ambassadors from foreign nations, especially those who represented monarchy. Through this he became known to Perseus, though he was in a different part of the world, and when he received a letter holding out the prospect of more intimate friendship, and consequently of high fortune, he paid a visit to the king. In a short time he found himself on very familiar terms with him, and drawn more often than he could have wished into confidential talks. The king pressed a proposal upon him and promised him a huge bribe if he would consent to it. As all the Roman generals and ambassadors usually accepted his hospitality, Perseus suggested that he should arrange for poison to be administered to those whose names he should give him. He knew that the preparation of poison was extremely difficult and dangerous, as so many must know of its preparation and, besides that, there is uncertainty as to its working, whether it will be strong enough to accomplish its task or safe as against any discovery. He would therefore give him a poison which could not be detected by any indication, either whilst being given or afterwards. Rammius was afraid that, if he refused, he might be the first on whom the poison would be tried, so he promised to do what the king asked, and started for home. He did not, however, want to return to Brundisium before he saw C. Valerius, who was reported to be in the neighbourhood of Chalcis. He laid the facts before him, and acting on his instructions came with him to Rome. Introduced into the senate he narrated what had taken place.

[42.18]This information added to that which Eumenes had given hastened their decision to declare Perseus a public enemy; they recognised that he was not meditating an honourable war in the spirit of a king, but was winding his way through every criminal method of assassination and poisoning. The conduct of the war was left to the new consuls. For the present, however, it was decided that Cn.

Sicinius should raise a force, which was to be taken to Brundisium and sail across as soon as possible to Apollonia and Epirus and occupy the cities on the coast, where the consul to whom Macedonia should be allotted could find safe anchorage and disembark his men without trouble. Eumenes had been detained a considerable time at Aegina, as the dangerous nature of his wounds made his recovery slow and difficult. As soon as it was safe for him to move, he went on to Pergamum and began to make energetic preparations for war. This fresh crime of Perseus intensified his old enmity towards him and proved a powerful incentive. Delegates from Rome went to congratulate him on his escape from such great peril to his life. The Macedonian war was put off for the year, and nearly all the praetors left for their provinces, with the exception of M. Junius and S. Lucretius. They had received Spain as their province, and after repeated requests they at length prevailed on the senate to allow their army to be reinforced. They were, empowered to raise 3000 infantry and 150 cavalry for the Roman legions, and for the allied contingent 5000 infantry and 300 cavalry. This force was transported to Spain with the new praetors.

[42.19]During this year a large part of the Campanian district, which had been in many places appropriated by private individuals, was by the survey of the consul Postumius recovered for the State, and M. Lucretius, one of the tribunes of the plebs, gave notice of a proposal that the censors should let out the Campanian land for cultivation, a thing that had not been done through all the years since the fall of Capua, and as a consequence, the greed of private citizens took its course in the unoccupied land. War had now been determined upon, though not yet declared; the senate were waiting to see which of the monarchs would befriend Perseus and who would support them. Just at this time a mission from Ariarathes arrived, bringing with them the king's young son. They explained that the king had sent his son to be brought up in Rome, so that he might from his boyhood become familiar with Roman manners and Roman men. He asked that they would allow him to be not only under the charge of personal friends but also under the care and guardianship, so to speak, of the State. The senate were highly pleased with the proposal, and made a decree that Cn. Sicinius should hire a furnished house where the king's son and his suite could live. Envoys also from Thrace, with the Maedi and Astii, came to ask for alliance and friendship. Their request was

granted and each received a present of 2000 ases. The Romans were especially glad that these peoples had been received into alliance, because Thrace lay at the back of Macedonia. But that the whole situation in Asia and the islands might be thoroughly investigated, Tiberius Claudius Nero and M. Decimius were sent with instructions to visit Crete and Rhodes, to renew friendly relations, and at the same time to find out whether the allies of Rome had been tampered with by Perseus.

[42.20]Whilst the citizens were in a state of tense expectancy of a fresh war, the column erected on the Capitol during the Punic war by the colleague of Ser. Fulvius was shattered from top to bottom by a stroke of lightning. This accident was regarded as a portent and reported to the senate. The Keepers of the Sacred Books announced that the City must undergo a lustration; that intercessions and special prayers must be offered; and that animals of the larger size must be sacrificed both at Rome in the Capitol and in Campania at the Promontory of Minerva. Games were also, as soon as possible, to be celebrated for ten days in honour of Jupiter Optimus Maximus. The reply of the augurs was to the effect that the portent would prove to be favourable, for it portended the widening of frontiers and the destruction of enemies; those ships' beaks which the storm had thrown down had been taken as spoils from the enemy. Other incidents increased the religious terrors. It was reported that showers of blood had been falling for three days at Saturnia; an ass was foaled with three legs, and a bull with five cows had been destroyed by a single flash of lightning at Calatia; at Auximium there had been a shower of earth. In expiation of these portents, sacrifices were offered and special intercessions for one day, which was observed as a solemn holiday.

[42.21]Up to this time the consuls had not left for their province. They did not comply with the desire of the senate to bring up the question of Popilius, and the senators were determined not to make any decrees till this was settled. The feeling against Popilius was intensified by a despatch received from him in which he stated that he had fought another battle with the Statellati and had killed 6000 of them. This iniquitous proceeding of his drove the rest of the Ligurians to arms. Now, however, it was not only the absent Popilius who was attacked in the senate for having, in defiance of all law, human and divine, commenced an aggressive war upon a people who

had made their submission; the consuls also were severely censured for not having gone to their province. This attitude of the senate determined two of the tribunes of the plebs - M. Marcius Sermo and Q. Marcius Scylla - to warn the consuls that if they did not go to their province they should impose a fine on them. They also read to the senate the terms of a proposal which they intended to bring forward regarding the treatment of the Ligurians after they had made their submission. It was to the effect that where any of the Statellati who had made their surrender had not been restored to liberty by August 1, the senate should on oath empower a magistrate to seek out and punish the persons through whose criminal act they had passed into slavery. This order, thus sanctioned by the senate, was announced to the Assembly. Before the consuls left the City the senate gave an audience to C. Cicereius in the temple of Bellona. He gave an account of what he had done in Corsica, but his request for a triumph was refused, and he celebrated his triumph on the Alban Mount, without the sanction of the senate, a thing which had become quite customary. Marcius's proposal about the Ligurians received the hearty assent of the plebs, and was carried. Acting on this plebiscite, C. Licinius consulted the senate as to whom they would choose to conduct the enquiry, and the senators ordered him to conduct it himself.

[42.22]Now at last the consuls went to their province and took over the army from M. Popilius. He did not venture to return to Rome, where the senate were hostile, and the people still more so, for fear of having to stand his trial before the praetor who had submitted to the senate the resolution against him. His refusal to appear was met by the tribunes of the plebs with the menace of a second resolution to be submitted to the effect that if he had not entered the City of Rome by November 13, Licinius should judge and determine his case in his absence. Dragged home by this chain he found himself the object of universal odium in the senate. After many of the senators had lashed him with bitter invectives, the House passed a resolution that the praetors C. Licinius and Cn. Sicinius should make it their business to restore to liberty all Ligurians who had not been in arms against Rome since the consulship of Q. Fulvius and L. Manlius, and that the consul C. Popilius should make them a grant of land on the other side of the Po. By this resolution many thousands recovered their freedom and they were transported across the Po where land

was assigned to them. M. Popilius, under the Marcian Decree, appeared on two occasions before C. Licinius. On the third day of his trial the praetor, out of regard for his brother the consul, and yielding to the entreaties of the Popilian family, ordered the defendant to appear again on March 15, the day on which the new magistrates would enter upon office, so that he might not have to adjudicate, being no longer a magistrate. In this way the decree respecting the Ligurians was evaded by a subterfuge.

[42.23]A deputation from Carthage was in Rome at that time, as was also Gulussa, Masinissa's son. There was a hot dispute between them in the senate-house. The grievance of the Carthaginians was that in addition to the territory which had been adjudicated on the spot by the Roman commissioners, Masinissa had during the last two years taken forcible possession of more than seventy towns and forts standing on Carthaginian soil; an easy matter for a man who had no scruples. As the Carthaginians were bound by their treaty they took no action, for they were forbidden to carry their arms outside their frontiers, though they knew quite well that if they were to drive the Numidians out, they would be warring within their own frontiers. They were, however, deterred by a clear clause in the treaty, which expressly forbade them to engage in war with the allies of Rome. But the Carthaginians declared that they could no longer endure his insolence and cruelty and avarice; and they explained that they were sent to implore the senate to grant them one of three things, either themselves to decide, as between a king and a people, both of whom were their allies, what belonged to each; or to leave the Carthaginians at liberty to defend themselves against unjust attacks in a just and righteous war; or, finally, if personal bias rather than truth swayed the senate, that they should settle once for all how much of other people's property they wished to make a present of to Masinissa. The senate would at all events make their gift a more moderate one if they were to know what they had given, whereas Masinissa would fix no limits other than what his greed and ambition might determine. If they were not to obtain any of these requests, and if they had in any way given offence since Scipio granted them peace, then let the Romans themselves punish them; they preferred the security of servitude under Roman masters rather than a liberty exposed to Masinissa's lawlessness. It would, in fact, be better for them to perish at once than to draw their breath at the will of a tyrant and a butcher.

At these words they burst into tears and fell on their faces, and as they lay there prostrate they aroused not more pity for themselves than displeasure against the king.

[42.24]The senate decided to ask Gulussa what answer he had to make to these charges, or whether he preferred to state first his object in coming to Rome. Gulussa said that he was in a difficulty in having to deal with matters about which he had received no instructions from his father, nor would it have been easy for his father to give him instructions, for the Carthaginians had given no indication of the question they were going to raise or even of their intention to visit Rome. For several nights their Inner Council had been meeting in secret conclave in the temple of Aesculapius, and in addition to other steps envoys were despatched to Rome with sealed instructions. This was his father's reason for sending him to Rome, to ask the senate not to give any credit to the charges which their common foe was bringing against him; the only reason for their hatred was his unswerving loyalty to the people of Rome. After giving both sides a hearing the senate debated the requests of the Carthaginians and ordered the following reply to be given: "It is the pleasure of the senate that Gulussa sets out at once for Numidia and announces to his father that he must send envoys to the senate as soon as possible to deal with the complaints of the Carthaginians; he must also warn the Carthaginians to appear and state their case. The senate is prepared to accord to Masinissa all possible honours in the future as they have done in the past, but they cannot let personal regard take the place of justice. They wish every man to remain in possession of his own land; it is not their intention to fix new boundaries, but to preserve the old ones. When the Carthaginians were vanquished they allowed them to retain their city and their land; but this was not that they might rob them in a time of peace of what they had not taken from them by the rights of war." So the young prince and the Carthaginians were dismissed, the customary presents were given to each party and in other ways they were hospitably and courteously treated.

[42.25]Just about this time Cn. Servilius Caepio, Ap. Claudius Centho, and T. Annius Luscus, the three commissioners who had been sent to Macedonia to demand satisfaction and break off friendly relations with Perseus, returned from their mission. The report of what they had seen and what they had heard inflamed the minds of

the senators still more against Perseus. They reported that they had witnessed the most energetic preparations for war being made throughout all the cities in Macedonia. When they went to see the king there was no opportunity granted them of seeing him for many days; at last, looking upon the prospect of an interview as hopeless, they started for home; only then were they recalled and admitted to the king's presence. The sum and substance of their address to him was that a treaty had been concluded with Philip and, after his father's death, renewed with him; that in it were clauses expressly forbidding him to carry his arms beyond his frontiers or to make hostile aggression upon the allies of Rome. Then they repeated to him what they had heard Eumenes stating to the senate, all of which was found to be true. And in addition they reminded the king that he had for several days been having secret interviews at Samothrace with delegates from the cities in Asia. The senate thought it right that satisfaction should be made for this wrongful act and that they and their allies should have restored to them whatever the king was holding in defiance of treaty rights.

The king was furious and his language intemperate. He accused the Romans of greed and arrogance, and loudly protested against their sending one mission after another to spy upon his words and actions, because they thought it right that he should say and do everything in obedience to their orders. At last, after a long and violent harangue, he told them to return on the following day as he wished to give them a written reply. In this he is said to have declared that the treaty concluded with his father had nothing to do with him; he had consented to its renewal not because he approved of it, but because having just come to the throne he had to submit to everything. If they wanted to make a fresh treaty with him they must come to an understanding as to its terms. If they could bring themselves to conclude a treaty on equal terms for both parties, he would see what he had to do and he was sure they would be acting in the best interests of their commonwealth. With this he hurried off and they were all beginning to leave the audience-chamber, but not before the commissioners replied that they formally renounced his alliance and friendship. At these words he stopped and in a towering rage shouted out a warning to them to leave his dominions within three days. Under these circumstances they left the country without having received any attention or hospitality during the whole of their stay.

The Thessalian and Aetolian envoys were the next to be admitted to audience. In order that the senate might know as soon as possible what generals the State would employ, they sent written instructions to the consuls that whichever of them was able to do so should go to Rome to elect the magistrates.

[42.26] During the year the consuls did nothing worth recording, the interests of the republic seemed to be best served by quieting the exasperated Ligurians. Whilst war with Macedonia was anticipated, Gentius, King of the Illyrians, also fell under suspicion. Envoys from Issus laid complaints before the senate about his ravaging their borders and asserted that he and Perseus were living on the most perfect understanding with each other and were planning war with Rome in close co-operation. Illyrian spies had been sent to Rome at the instigation of Perseus, ostensibly as envoys, really to find out what was going on. The Illyrians were summoned before the senate. They said, that they had been sent by the king to clear him of any charges which the Issaeans might bring against him. They were then asked why in that case they had not reported themselves to the proper magistrates so that they might be assigned furnished quarters and their arrival and the object of their coming might be publicly known. As they were at a loss for a reply, they were told to leave the senate-house, and it was agreed that no reply should be made to them as envoys, since they had made no formal request to appear before the senate. It was resolved that envoys should be sent to Gentius to inform him of the complaints made against him and to make him understand that the senate regarded him as acting wrongfully in not abstaining from injuring his neighbours. The envoys were A. Terentius Varro, C. Plaetorius, and C. Cicereius. The commissioners who had been sent to interview the friendly monarchs returned from Asia and reported that they had visited Eumenes, Antiochus in Syria, and Ptolemy at Alexandria; that they had all been approached by Perseus, but were keeping perfectly true to their engagements with Rome, and they pledged themselves to carry out all that the people of Rome required. They had also visited the friendly cities and with one exception they were satisfied as to their fidelity. The one exception was Rhodes, where they found the citizens wavering and imbued by Perseus' ideas. A deputation had arrived from Rhodes to clear the citizens from charges which they knew were being generally

made against them; the senate, however, decided not to grant them an audience till the new consuls had entered upon office.

[42.27] They felt that the preparations for war ought not to be delayed. The praetor C. Licinius was instructed to select out of the old quinqueremes laid up in the dockyards in Rome all that could be made use of, and to repair and fit out fifty vessels. If he was unable to make up that number he was to write to his colleague, C. Memmius, commanding in Sicily, and direct him to refit and get ready for service the ships which were in Sicilian waters, so that they could be sent as soon as possible to Brundisium. C. Licinius was to enlist crews for twenty-five ships from Roman citizens of the freedman class, and Cn. Sicinius was to requisition the same number from the allies, and also obtain from them a force of 8000 infantry and 500 cavalry. A. Atilius Serranus, who had been praetor the year before, was selected to take over these soldiers at Brundisium and convey them to Macedonia. In order that Cn. Sicinius might have an army ready to sail, C. Licinius was authorised by the senate to write to the consul C. Popilius, requesting him to issue orders for the second legion, most of whom had seen service in Liguria, and an allied contingent of 4000 infantry and 200 cavalry, to be at Brundisium by February 13. With this fleet and army Cn. Sicinius was ordered to hold the province of Macedonia until his successor arrived, his command being extended for a year. All the measures which the senate decided upon were energetically carried out. Thirty-eight quinqueremes were launched from the naval arsenal, and L. Porcius Licinius was placed in command to take them to Brundisium; twelve were sent from Sicily. Sextius Digitius, T. Juventius, and M. Caecilius were sent into Apulia and Calabria to purchase corn for the fleet and army. When all the preparations were completed, Cn. Sicinius left the City, wearing the paludamentum, en route for Brundisium.

[42.28] Towards the end of the year the consul C. Popilius returned to Rome much later than the senate considered he ought to have done, in view of the urgency of electing fresh magistrates and the imminence of such a serious war. He did not receive a very favourable hearing when, in the temple of Bellona, he gave an account of his doings in Liguria. There were frequent interruptions and questions as to why he had not restored the Ligurians to liberty after his brother's iniquitous treatment of them. Notice of the consular elections was duly given, and they were held February 18.

The new consuls were P. Licinius Crassus and C. Cassius Longinus. The praetors elected on the following day were C. Sulpicius Galba, L. Furius Philus, L. Canuleius Dives, C. Lucretius Gallus, C. Caninius Rebilus, and L. Villius Annalis. The provinces assigned to these praetors were the two jurisdictions in Rome, civic and alien, Spain, Sicily and Sardinia, and one praetor was exempted from the ballot, to be employed as the senate should decide. The senate ordered the consuls elect to offer due sacrifices of the larger victims, with prayers that the war, which it was in the mind of the Roman people to wage, should have a prosperous issue. At the same sitting the senate decreed that the consul C. Popilius should make a vow pledging the republic that if it should remain without loss or change for ten years, Games should be held in honour of Jupiter Optimus Maximus for ten days and offerings made at all the shrines. In accordance with this decree the consul made a vow in the Capitol that the Games should take place and the offerings be made at all the shrines, at such a cost as the senate should determine in a session at which not less than 150 were present. Lepidus, the Pontifex Maximus, dictated the words of the vow. Two members of the State priesthood died this year - L. Aemilius Papus, a Keeper of the Sacred Books, and the pontiff Q. Fulvius Flaccus, who had been censor the year before. He met with a tragic death. His two sons were serving in Illyria, and he received intelligence that one had died and that the other was dangerously ill. Between grief and anxiety his mind gave way; the slaves, on entering his room in the morning, found that he had hanged himself. He was considered to be out of his mind at the close of his censorship, and there was a general belief that he had been driven mad by Juno Lacinia, in her anger at his spoliation of her temple. M. Valerius Messala was appointed Keeper of the Sacred Books in place of Aemilius, and C. Domitius Ahenobarbus, a young man, was chosen to succeed Fulvius as pontiff.

[42.29]When P. Licinius and C. Cassius began their consulship, not only the City of Rome, but all kings and commonwealths throughout Europe and Asia, were preoccupied by the approaching war between Rome and Macedonia. Eumenes had long regarded Macedonia as his enemy, and now he had a fresh incentive to his hostility in his narrow escape from being slaughtered like a victim at Delphi, through the king's foul treachery. Prusias, the king of Bithynia, had decided to take no part in the conflict, but quietly to wait on events. He felt sure

that the Romans could not possibly think it right for him to bear arms against his brother-in-law, and if Perseus were victorious he knew that he could secure his favour through his sister. Ariarathes, king of Cappadocia, had already promised to assist the Romans on his own account, and now that he was connected by marriage with Eumenes, he associated himself with all their policy, both in peace and war. Antiochus was threatening Egypt, and in his contempt for the boy-king and his unenterprising guardians he thought that, by raising the question of Coelo-Syria, he would have a good pretext for war, and be able to prosecute it without hindrance while the Romans were occupied with the Macedonian war. He had, however, made all sorts of promises to the senate in view of the war both by his own legations to Rome and personally to the envoys whom the senate had sent to him. Owing to his age. Ptolemy was under tutelage; his guardians were preparing for war with Antiochus to keep their hold on Coelo-Syria, and were at the same time promising to give the Romans all assistance in their war with Macedonia. Masinissa gave assistance by supplying corn, and was preparing to send a force with elephants and also his son, Misagenes, to the war. He had, however, laid his plans to meet any turn of fortune; if victory fell to the Romans, matters would remain as they were, nor could he make any further advance since the Romans would not allow any aggression on the Carthaginians. If the power of Rome - the sole protection of the Carthaginians - was broken, all Africa would be his. Gentius, king of the Illyrians, had brought himself under suspicion, but had not gone so far as to decide for certain which side he should support; it seemed as though whichever he supported, it would be more from impulse than policy. The Thracian Cotys, king of the Odrysae, had already declared for Macedonia.

[42.30]Such were the views which monarchs took of the war. Amongst the free nations and communities the common people were, as usual, almost to a man in favour of the worse side, and supported the king and the Macedonians. You would see great diversity amongst the views and sympathies of the ruling classes. One party went so far in their admiration of the Romans that they impaired their influence by their excessive partiality; some, attracted by the justice of Roman rule, a more numerous body, by the prospect of gaining power in their own cities if they rendered conspicuous service. The other side were sycophants and flatterers of the king; the

pressure of debt and the hopelessness of their condition, if things remained as they were, drove many in sheer desperation into revolutionary projects; others supported Perseus from sheer caprice because he was popular. A third party, comprising the most respectable and sensible men, if they had in any case to choose a master, would have preferred the Romans to Perseus. If they had been free to choose their condition, they would have had neither side made more powerful through the overthrow of the other, but would have preferred that the strength of both being equally balanced, a lasting peace on equal terms might be established. In this way the cities, placed between the two, would be under the best conditions, for one would always protect the helpless from injury at the hands of the other. Holding these sentiments they watched in safety and in silence the rivalries of those who supported the two parties.

On the day they entered office the consuls, in pursuance of the senate's resolution, visited all the shrines in which there was usually a lectisternium for the greater part of the year, offered sacrifices of the larger victims and learned from the omens given by them that their prayers were accepted by the gods. They then reported to the senate that the prayers and sacrifices had been duly offered. The augurs made the announcement that if any fresh enterprise was undertaken it ought to be begun without delay; all the portents pointed to victory, triumph and the widening of frontiers. Good fortune and success being thus promised to Rome, the senate ordered the consuls to summon a meeting of the Assembly in their centuries and submit the following order of the day: "Whereas Perseus, the son of Philip and King of Macedonia, has broken the treaty made with his father and renewed with him, by bearing arms against the allies of Rome, devastating fields and occupying their cities; and whereas he has formed plans for levying war on the people of Rome, and has to this end got together arms, soldiers and ships; be it resolved that war be made upon him unless he gives satisfaction for all these things." This resolution was put to the Assembly.

[42.31] Then the senate decided that the consuls should come to a mutual arrangement about their provinces of Italy and Macedonia; failing that, to have recourse to the ballot. The one to whom Macedonia fell was to seek redress by force of arms from Perseus, and those of his party, unless they gave satisfaction to Rome. Four fresh legions were to be called up, two for each consul. A special

provision was made for Macedonia. For the other consul each of the two legions consisted, according to ancient precedent, of 5200 infantry; those for Macedonia were each raised to 6000 infantry, and the four legions had each the same complement of 300 cavalry. The numbers of the allied contingent were also raised for this consul; he was to transport to Macedonia 16,000 infantry and 800 cavalry, in addition to the 600 cavalry whom Sicinius had commanded. A force of 12,000 allied infantry and 600 cavalry was considered sufficient for Italy. The consul who was to command in Macedonia was specially empowered to enrol as many veteran centurions and private soldiers as he desired up to fifty years of age. In view of the Macedonian war, an innovation was made this year in the case of the military tribunes. The consuls received instructions from the senate to propose to the Assembly that they should for that year forgo their claim to elect the military tribunes and leave the consuls and praetors free to appoint them. The commands were allocated to the praetors as follows: The praetor to whose lot it fell to be at the senate's disposal without an assigned province was to inspect the crews in the fleet at Brundisium, and after removing all who were unfit for service, to select freedmen to take their place, with the proviso that two-thirds should consist of Roman citizens, the remainder to be drawn from the allies. Supplies for the fleet and the legions were to be furnished by Sicily and Sardinia, and the praetors in charge of those islands were charged to requisition a second tenth from the natives, the corn to be carried to the army in Macedonia. Sicily fell to C. Caninius Rebilus; Sardinia to L. Furius Philus; Spain to L. Canuleius; the civic jurisdiction to C. Sulpicius Galba; the alien to L. Villius Annalis. The praetor who remained at the disposal of the senate was C. Lucretius Gallus.

[42.32]The consuls had a disagreement - not a serious dispute - about their province. Cassius said that he was ready to choose Macedonia without a ballot, as his colleague could not ballot with him without violating his oath. When he was made praetor he took an oath before the Assembly that he could not go to his province as he had sacrifices to perform at an appointed place and on stated days, and they could not be duly offered in his absence, when he was consul, any more than when he was praetor. Even should the senate not consider P. Licinius' wishes now that he was consul more deserving of censure than the oath which he had taken as praetor, he would bow to their authority. When the matter was put to the vote, the senators thought

it would be a high-handed proceeding to refuse a province to the man to whom the people of Rome had not refused the consulship, and ordered the consuls to proceed to ballot. P. Licinius obtained Macedonia, and C. Cassius, Italy. They then drew lots for the legions; the first and third were to be taken to Macedonia; the second and fourth to remain in Italy. The consuls carried out the mobilisation with much more care than at other times. Licinius called up the old soldiers and centurions, and many volunteers gave in their names because they saw that those who had served in the former Macedonian war or against Antiochus were rich men. The military tribunes were choosing the centurions, not in order of precedence, but picking out the best men, and twenty-three centurions of the front rank appealed to the tribunes of the plebs. Two members of the tribunitian college were for referring the matter to the consuls, on the ground that the decision ought to rest with those to whom the mobilisation had been entrusted. The rest said they would go into the reasons of the appeal, and if an injustice had been done, they would come to the aid of their fellow-citizens.

[42.33]The case was argued before the tribunes in their chairs; M. Popilius and the consul were present with the centurions. The consul demanded that the matter should be tried before the Assembly, and the Assembly was accordingly convened. M. Popilius, who had been consul two years previously, spoke on behalf of the centurions. He reminded the Assembly that these men had completed their term of military service, and were worn out by age and incessant toil. Still, they in no way objected to give their services to the State, only they protested against being assigned a position inferior to the one they held when on active service. The consul P. Licinius ordered the resolutions passed by the senate to be read, first the one in which the senate decided upon war with Perseus, then the one in which it was determined that as many of the veteran centurions as possible should be called up for the war, and that there should be no exemption for any man who was not over fifty years of age. He strongly deprecated any step being taken which would hamper the military tribunes in their task of raising troops for a fresh war, so close to Italy and against an extremely powerful monarch, or which would prevent the consul from assigning to each man the rank which, in the best interests of the commonwealth, ought to be assigned to him. If any doubt was still felt in the matter, let it be referred to the senate.

[42.34]After the consul had said what he wanted to say, one of those who were appealing to the tribunes - Sp. Ligustinus - begged the consul and the tribunes to allow him to say a few words to the Assembly. They all gave him permission, and he is recorded to have spoken to the following effect: "Quirites, I am Spurius Ligustinus, a Sabine by birth, a member of the Crustumian tribe. My father left me a jugerum of land and a small cottage in which I was born and bred, and I am living there today. As soon as I came of age my father gave me to wife his brother's daughter. She brought nothing with her but her personal freedom and her modesty, and together with these a fruitfulness which would have been enough even in a wealthy house. We have six sons and two daughters. Four of our sons wear the toga virilis, two the praetexta, and both the daughters are married. I became a soldier in the consulship of P. Sulpicius and C. Aurelius. For two years I was a common soldier in the army, fighting against Philip in Macedonia; in the third year T. Quinctius Flaminius gave me in consideration of my courage the command of the tenth company of the hastati. After Philip and the Macedonians were vanquished and we were brought back to Italy and disbanded, I at once volunteered to go with the consul M. Porcius to Spain. Men who during a long service have had experience of him and of other generals know that of all living commanders not one has shown himself a keener observer or more accurate judge of military valour. It was this commander who thought me worthy of being appointed first centurion in the hastati. Again I served, for the third time, as a volunteer in the army which was sent against Antiochus and the Aetolians. I was made first centurion of the principes by Manius Acilius. After Antiochus was expelled and the Aetolians subjugated we were brought back to Italy. After that I twice took service for a year at home. Then I served in Spain, once under Q. Fulvius Flaccus and again under Ti. Sempronius Gracchus. I was brought home by Flaccus amongst those whom, as a reward for their courage, he was bringing home to grace his triumph. I joined Tiberius Gracchus at his request. Four times, within a few years, have I been first centurion in the triarii; four-and-thirty times have I been rewarded for my courage by my commanders; I have received six civic crowns. I have served for twenty-two years in the army and I am more than fifty years old. But even if I had not served my full time and my age did not give me exemption, still, P. Licinius, as I was able to give you four soldiers for one, namely, myself, it would have been a right and

proper thing that I should be discharged. But I want you to take what I have said simply as a statement of my case. So far as anyone who is raising troops judges me to be an efficient soldier, I am not going to plead excuses. What rank the military tribunes think that I deserve is for them to decide; I will take care that no man shall surpass me in courage; that I always have done so, my commanders and fellow-campaigners bear witness. And as for you, my comrades, though you are only exercising your right of appeal, it is but just and proper that as in your early days you never did anything against the authority of the magistrates and the senate, so now, too, you should place yourselves at the disposal of the senate and the consuls and count any position in which you are to defend your country as an honourable one."

[42.35]When he had finished speaking, the consul commended him most warmly and took him from the Assembly to the senate. There, too, he was thanked by the senate, and the military tribunes made him leading centurion in the first legion in recognition of his bravery. The other centurions abandoned their appeal and answered to the roll-call without demur. To enable the magistrates to start for their provinces at an earlier date, the Latin Festival was celebrated on June 1. When that function was over, C. Lucretius sent all that was required for the fleet on in advance and then left for Brundisium. In addition to the armies which the consuls were forming, C. Sulpicius Galba was commissioned to raise four City legions with the full complement of horse and foot, and to select from amongst the senators four military tribunes to command them. He was further to require the Latins and allies to furnish 15,000 infantry and 1200 cavalry, so that this army might be ready for service wherever the senate should decide. In addition to the force of Roman citizens and allied troops, the consul P. Licinius was supplied on his request with the following: 2000 Ligurian mercenaries, a body of Cretan archers - the number not specified - also Numidian cavalry and elephants. L. Postumius Albinus, Q. Terentius Culleo, and C. Aburius were sent to Masinissa and the Carthaginians to arrange this. A. Postumius Albinus, C. Decimius, and Aulus Licinius Nerva were also sent to Crete for the same purpose.

[42.36]During this time envoys from Perseus arrived. It was decided that they should not be allowed to enter the town, as the senate and people had already determined on war with their king and the

Macedonians. They were admitted to an audience in the temple of Bellona, and told the senate that Perseus was wondering why the armies had been sent to Macedonia. If he could induce the senate to recall them, he would give such satisfaction as the senate thought fit for any wrongs of which the allies of Rome complained. Spurius Carvilius had been sent back from Greece by Cnaeus Sicinius on this same business and was present at this session. He informed the senate how Perrhaebia had been taken by storm and other cities of Thessaly captured, and also what the king was actually doing and what preparations he was making. The envoys were told to answer these charges; they hesitated and said they had not received any further instructions. On thus they were ordered to carry back to their king the announcement that in a short time the consul P. Licinius would be in Macedonia with his army; if the king really meant to give satisfaction, he might send envoys to him. It was useless for him to send any to Rome, as none of them would be allowed to pass through Italy. With this reply they were sent away, and P. Licinius was instructed to order them to quit Italy within ten days and send Sp. Carvilius to watch them till they went on board. Cnaeus Sicinius, who before quitting office had been sent to the fleet and army at Brundisium, had landed 5000 infantry and 300 cavalry in Epirus and was now encamped at Nymphaeum in the Apollonian district. From there he sent tribunes with 2000 men to occupy the forts of the Dassaretii and the Illyrians, as the people themselves were asking for troops to hold them so that they might be more secure against any attack from their Macedonian neighbours.

[42.37]A few days later Q. Marcius, A. Atilius, the two Lentuli, Publius and Servius, and also L. Decimius were sent to Greece, and took with them 2000 men as far as Corcyra. There they arranged what districts to visit and what force each was to take with him. Decimius was sent to Gentius, the king of the Illyrians, to find out whether he still had any regard for his former friendship with Rome, and if so to induce him to take an active part in the war as an ally. The two Lentuli were sent to Cephallania that they might sail across to the Peloponnese and round the western coast before winter. The visitation of Epirus, Aetolia and Thessaly was assigned to Marcius and Atilius, after which they were ordered to survey the state of Boeotia and Euboea and then sail to the Peloponnese. There they arranged to meet the Lentuli. Before they separated at Corcyra, a

despatch was received from Perseus in which he requested to know the reason for the Romans landing an army in Greece and occupying the cities. It was decided that no written reply should be sent, but that the bearer of the despatch should be told that the Romans were doing it for the protection of the cities themselves. The Lentuli in their visits to the different towns urged upon them all without distinction the duty of giving the Romans the same cordial and loyal assistance against Perseus which they had given in the war with Philip and then afterwards with Antiochus. During their meetings they heard murmurs of dissatisfaction amongst the Achaeans. They complained that while they had from the very beginning of the Macedonian war rendered every assistance to the Romans and in the war with Philip had been the declared enemies of the Macedonians, they were now put upon the same footing as the people of Messene and Elea who had fought for Antiochus against Rome, and after being incorporated into the Achaean council were handed over to their Achaean conquerors as the prize of war.

[42.38]When Marcius and Atilius went up to Gitana in Epirus, about ten miles from the sea, where the national council of Epirus was being held, they received a most favourable hearing, and 400 of the younger men were sent as a protection to those Macedonians who had been freed by the senate. From there they went into Aetolia and stayed there a few days until a chief magistrate was elected in the place of the one who had died. Lyciscus, who was known to be a supporter of the Romans, was elected, and after his election they crossed over into Thessaly. Here they were visited by envoys from Acarnania and refugees from Boeotia. The envoys were told to announce to the Acarnanians that an opportunity was now offered of atoning for any faults which in reliance on the false promises of the king they had committed against Rome in the war with Philip and then in the war with Antiochus. If their bad behaviour had met with the forbearance, their good behaviour would win the generosity, of Rome. The Boeotians were severely censured for having formed an alliance with Perseus. They threw the blame on Ismenias, the leader of the opposite faction, and declared that some cities had been brought over against the majority of the citizens. Marcius replied that this would be cleared up as they would give every city the opportunity of deciding for itself.

There was a meeting of the national council of Thessaly at Larisa. The Thessalians had abundant material for thanking the Romans for the boon of liberty, and the Roman envoys for expressing their thanks for the whole-hearted assistance they had received from the Thessalians in the wars against Philip and Antiochus. This mutual recognition of services rendered made the assembled council eager to adopt every measure which the Romans wished for. Close on this meeting came a deputation from Perseus. Their hopes of success rested mainly on the personal tie of hospitality which Marcius had inherited from his father. After alluding to this the delegates asked that the king might be admitted to a personal interview. Marcius said that he heard from his father that friendly relations had existed with Philip, and bearing that fact in mind he had undertaken this mission. He would not have put off a conference so long had he been well enough; now, as soon as he could manage it, they would go to the Peneus where the road crosses from Homolium to Dium and send to the king to announce their arrival.

[42.39]On this Perseus left Dium and went back into Macedonia, cheered by a faint breath of hope because he had heard that Marcius had said it was for his sake that he had undertaken the mission. They met at the appointed place. The king was attended by a large suite consisting of his personal friends and his bodyguard, and the Romans appeared with quite as numerous an escort, many accompanying them from Larisa, as well as the delegations from the various cities who wanted to take trustworthy reports of what they heard. Men were naturally anxious to witness the meeting of a famous monarch with the representatives of the foremost people in the whole world. When they stood to view with only the river between them, there was a slight delay while it was being settled which party should cross the river. The one party thought that precedence ought to be given to royalty, the other considered that something was due to the great name of Rome, especially as it was Perseus who had sought the interview. While they were hesitating Marcius quickened their movements by a jest: "Let the younger come to the elder and" - his own cognomen was "Philippus" - "the son to the father." The king fell in with this at once. Then a fresh difficulty arose as to the number that should accompany him. The king thought that he ought to cross with the whole of his suite, but the Romans said he must cross with three attendants, or if all that number did cross he must give securities

against any treachery during the conference. He gave as hostages Hippias and Pantauchus, chief among his friends whom he had formerly sent as envoys. The hostages were not so much needed to guarantee the king's good faith as to make the allies see that the king was by no means meeting the Romans on equal terms. They greeted one another not as foes but in a friendly and genial tone, and then sat down on the seats placed for them.

[42.40] After a few moments' silence Marcius said: "I suppose you are expecting me to give you a reply to the letter which you sent to Corcyra in which you ask us why we who are envoys have come with soldiers and are distributing garrisons in the various cities. Not to give you any reply would, I fear, be thought arrogant, whilst a truthful reply would pain you whilst you listened to it. As, however, he who breaks a treaty must be chastised either by word of mouth or by force of arms, and much as I could have wished that war against you had been entrusted to another rather than to me, I will discharge my task of telling my guest-friend some unpleasant truths, however matters stand, like physicians who administer disagreeable remedies to restore a patient's health.

"As soon as you ascended the throne you did one thing which in the opinion of the senate you were right in doing, you sent an embassy to Rome to renew the treaty, but they hold that it would have been better not to renew it than to violate it after it was renewed. You drove Abrupolis, an ally and friend of Rome, out of his kingdom. You sheltered the assassins of Arthetaurus, showing that you were glad - I will not say more - that he was murdered. The man whom they killed was of all the Illyrian princes the most loyal to the cause of Rome. You marched with an army through Thessaly and the district of Malis up to Delphi, against the provisions of the treaty, and you also sent assistance to the Byzantines. You made a secret and separate treaty, ratified by an oath, with the Boeotians, our allies, which was forbidden. As for the Theban envoys, Euersas and Callicritus, who were murdered on their way to Rome, I prefer to enquire who killed them rather than to charge anyone with it. Who could possibly be considered responsible for the civil war in Aetolia, and the deaths of the leaders, unless it were your party? The devastation of Dolopia was your own doing. When Eumenes was returning from Rome to his kingdom he narrowly escaped being butchered at Delphi, like a victim on consecrated ground before the

altar. I shrink from saying whom he accuses of this. I have certain proof that the secret crimes of which your friend at Brundisium gave us information were all communicated to you in writing by your friends in Rome and reported to you by your envoys. My saying all this might have been avoided by you, had you taken a different course and not asked us why the armies were coming into Macedonia and why we are stationing garrisons in the different cities. Had we kept silent, we should have shown you less consideration than we have done by a statement of facts. Out of regard for the friendship which we have inherited from our fathers I shall give you a favourable hearing, and I only wish that you may furnish me with some grounds for my pleading your cause before the senate."

[42.41]The king replied: "A defence which before impartial judges would be a good one, I have now to make before judges who are also accusers. As to the charges brought up against me, some of them I rather think I ought to be proud of, others I am not ashamed to admit, others again, which are simply assertions, it is enough for me simply to deny. If I were standing my trial under your laws, what evidence could either the Brundisian informer or Eumenes bring against me which would make their accusations appear true rather than false and malicious? Eumenes, who oppresses so many of his subjects both in his public and private life, has had, I suppose, no other enemy but me, and I have, it seems, been unable to discover a more capable agent for criminal deeds than Rammius, a man whom I had never seen before, and was never to see again. I have also to account for the deaths of the Thebans, who everybody knows were drowned at sea, and for the death of Arthetaurus; here, however, no charge is brought against me beyond the fact that his murderers found refuge in my dominions. I will not protest against the unfairness of this argument, if you in your turn allow that if any refugees have escaped to Italy or to Rome you were the authors of the crimes of which they have been found guilty. If you, in common with all other nations, refuse to admit this, then I shall be with the rest of the world. Good heavens! what boots it for a man to be free to go into exile, if there is nowhere a place where an exile can go? Nevertheless, as soon as I was advised by you and ascertained that these men were in Macedonia, I ordered that search should be made for them, and that they should quit the kingdom, and I forbade them ever to cross my frontiers.

"These charges have been brought against me as though I were a defendant in a criminal trial, but those others touch my conduct as king, and depend upon the interpretation of the treaty which is in force between us. If that treaty expressly says that not even if anyone levies war against me am I allowed to defend myself and my realm, then I must admit that I have violated the treaty by defending myself in arms against Abrupolis, an ally of Rome. If, however, it is allowed by treaty and established as a rule of international law that arms may be repelled by arms, what ought I to have done after Abrupolis had devastated the frontiers of my kingdom right up to Amphipolis, and carried off many freeborn persons, a large body of slaves, and many thousand head of cattle? Was I to keep quiet and let him go on till he had carried his arms into Pella and taken possession of my palace? Yes, but granting that I was justified in opposing him by force, it is said that he ought not to have been vanquished or suffer all the evils which befall the vanquished. Since it was I who was attacked and ran the risk of all these evils, how can he complain of their happening to him who was the cause of the war? I am not going to defend my coercion of the Dolopians on the same grounds, Romans, because whatever they may have deserved, I exercised my sovereign rights; they were my subjects, a part of my dominions, assigned by your own decree to my father. Seeing that they put to death Euphranor, whom I had appointed governor, with such cruelty that death was the lightest of his sufferings, I cannot possibly be thought to have exercised undue or unjust severity - I do not say by you and your federal allies, but - by those who disapprove of cruelty and injustice even towards slaves.

[42.42]"But when I left Dolopia to visit the cities of Larisa, Antron and Pteleon, as I was in the neighbourhood of Delphi I went up there for the purpose of offering sacrifice in discharge of vows taken long before. And to make this charge still more serious it is asserted that I went with an army to do, of course, what I now complain of your doing, to occupy the cities and station garrisons in the citadels. Summon those Greek cities through which I marched, and should anyone, I do not care who complain of any ill-treatment from my soldiery, I will allow it to be said that under the presence of offering sacrifice I had another object in view. We sent troops to assist the Aetolians and the Byzantines, and we established friendly relations with the Boeotians. In whatever light these measures are regarded,

they were not only made known to you through my envoys, but were even on several occasions defended in your senate, where I had some critics not so fair or just as you, Q. Marcius, my hereditary friend and guest. But my accuser, Eumenes, had not yet arrived.

"This man, by misrepresenting and distorting all my actions, has made them appear suspicious and treacherous, and he tried to persuade you that Greece could not be really free or enjoy the boon of liberty which you have conferred as long as the kingdom of Macedonia remained intact. Well, the wheel will come round full turn: somebody will soon be saying that it was to no purpose that Antiochus had been removed beyond the Taurus. Eumenes is a much greater oppressor of Asia than Antiochus ever was, your allies can have no rest as long as the kingdom of Pergamum exists, it stands like a citadel to command all the States round it. I am quite aware that the charges which you, Q. Marcius and A. Atilius, have brought against me, and the replies which I have made to them, are just what the minds and ears of those present choose to make of them, and that it is not my conduct or my motives that are important, but the light in which you view them. I am not conscious of having committed any fault knowingly: whatever lapse I may have been guilty of through imprudence can, I am sure, be corrected and amended through these stern admonitions of yours. At all events I have done nothing which cannot be remedied, nothing for which you should think it necessary to seek redress by force of arms. Otherwise the fame of your clemency and magnanimity has been carried through the world in vain, if for reasons which are hardly worth discussion you take up arms and levy war upon monarchs who are your allies."

[42.43] Marcius listened to his speech approvingly and advised him to send an embassy to Rome. The friends of Perseus thought that every possible means should be tried and that nothing that promised hope should be left undone. The only thing left for discussion was how to secure the envoys a safe journey. It was deemed necessary to ask for an armistice; this was what Marcius particularly wished for, it had been his main object in granting the interview, but he raised difficulties and made a great favour of consenting to it. The fact was the Romans were at the moment quite unready for war - no army, no general - whilst Perseus had made all his preparations and was completely equipped for war and, had he not been blinded by hopes

of peace, would have commenced hostilities at the best time for himself and the worst for his enemies. After the armistice was declared the Roman commissioners decided to go to Boeotia. There was much unrest there owing to the action of certain communities. On learning what the Roman commissioners had said, "that it would soon appear which States disapproved of the secret league with the king," they seceded from the national council of Boeotia. First delegates from Chaeronea, and then some from Thebes, met the commissioners while they were still on their journey, and assured them that they were not present at the meeting of the council when that league was formed. The commissioners gave them no reply at the time and told them to follow them to Chalcis.

There had been a violent quarrel at Thebes about another matter. The election of the magistrates for Boeotia had taken place, and the defeated party in revenge got the population together and passed a decree that the Boeotarchs should not be admitted into any of the cities. They went in a body to Thespieae where they were admitted without any hesitation. The Thebans changed their minds and recalled them; a decree was then made that the twelve who had without any authority convened the assembly and held a council should be sent into exile. Then the new magistrate, Ismenias, a man of noble family and great influence, issued a decree condemning them to death. They had fled to Chalcis, and from that city they went to the Roman commissioners at Larisa and threw the whole responsibility for the secret understanding with Perseus upon Ismenias. This led to a party war, delegates from both sides came to the Romans - the exiles, the accusers of Ismenias and Ismenias himself.

[42.44]After their arrival in Chalcis the first magistrates of the different cities, in accordance with the decrees of their respective councils, denounced the league with Perseus, to the great gratification of the Romans, and declared themselves on the side of Rome. Ismenias thought that the right course to adopt would be for the Boeotian nation as a whole to place itself under the suzerainty of Rome. This led to a quarrel, and if he had not taken refuge at the commissioners' tribunal he would have had a narrow escape from being killed by the exiles and their supporters. Thebes, the capital of Boeotia, was itself in a state of great excitement, one faction trying to bring the city over to the king, the other to the Romans. People from

Coronea and Haliartus had flocked in crowds to Thebes to defend the decree for alliance with the king. But the magistrates were firm, they pointed to the final defeats of Philip and Antiochus as proving the power and good fortune of the Roman government, and the citizens were at last convinced. They decreed that the alliance with the king should be put an end to, and sent those who had advocated friendship with Perseus to make their peace with the commissioners, and ordered the citizens to place themselves at the disposal of the commissioners. Marcius and Atilius were glad to hear this decision of the Thebans, and advised them and the other cities to send each their own envoys to renew friendly relations with Rome. They insisted on the restoration of the exiles as the first thing, and issued a decree condemning the authors of the alliance with Perseus. Thus, what they wanted most of all, the dissolution of the Boeotian League, was effected. They then left for the Peloponnese and sent for Ser. Cornelius to Chalcis. A council was summoned to meet them at Argos. They only asked the Achaeans to furnish them with 1000 soldiers. These were sent to garrison Chalcis until the Roman army landed in Greece. Having thus completed their business in Greece, Marcius and Atilius returned to Rome at the commencement of winter.

[42.45]A commission was sent about the same time to visit Asia and the islands adjoining. The commissioners were Tiberius Claudius, Sp. Postumius and M. Junius. As they went about amongst the allies they urged them to join the Romans in the war against Perseus, and the wealthier and more powerful the state the greater attention they paid to it, since the smaller ones would be led by the greater. The Rhodians were regarded as the most important of all, because they were in a position to give not only moral support but material assistance. They had, acting on the advice of Hegesilochus, got forty ships ready for service. When he was acting as supreme magistrate - "prytanis" they call him - he had, after many speeches, induced the Rhodians to abandon all those hopes of support from monarchs, which had so often proved vain, and hold to the alliance with Rome, the only one in the whole world which they could depend on for strength and fidelity. A war with Perseus was imminent, the Romans would look for the same naval armament that they had seen lately in the war with Antiochus and in the previous war with Philip. Unless they began at once to refit their ships and provide them with crews, they would be

in all the hurry and confusion of making their fleet ready for sea when it was to be actually sent off. It was all the more important that this should be done that they might give a practical proof of the falseness of the charges which Eumenes had brought against them. These arguments had their effect and when the Roman commissioners arrived they were shown a fleet of forty vessels quite ready for sea, a clear proof that they had not waited for the Romans to spur them on. The work of these commissioners in securing the support of the cities in Asia was of the utmost importance. Decimius alone returned without any success; he was widely suspected of having received bribes from Gentius and the Illyrian princes.

[42.46] On his return to Macedonia, Perseus sent envoys to Rome to carry on the peace negotiations which he had begun with Marcius, and he gave them letters to take to Byzantium and Rhodes. The purport of the letters was the same for all, he had had an interview with the Roman commissioners. What he had heard and said was put in such a way as to make it appear that he had the best of the argument. In their address to the Rhodians, his envoys said that they were confident that there would be peace, for it was on the advice of Marcius and Atilius that they were sent to Rome. If the Romans in violation of the treaty proceeded to war, then the Rhodians must use all their influence and all their power to restore peace, but if their appeals proved fruitless, then they must make it their business to prevent the power and authority over the whole world from passing into the hands of one single nation. That was the concern of all the nations, but especially of the Rhodians, by how much the more they surpassed other nations in greatness and prosperity, but they would be enslaved and helpless if they paid no regard to any but the Romans. The letter and the address of the envoys received a favourable hearing, but they did not avail to make the Rhodians change their minds; the influence and authority of the better citizens prevailed. The answer which they decided to give was to the effect that the Rhodians wanted peace; if there was war, the king need not expect or ask for anything from them, since he was trying to break up the long-standing friendship between them and the Romans, a friendship which was the fruit of many valuable services rendered in both peace and war.

On their way back from Rhodes they visited some of the cities of Boeotia - Thebes, Coronea and Haliartus - which it was supposed

had been forced against their will to abandon their alliance with Perseus and join the Romans. They made no impression on the Thebans, although there was a strong feeling amongst them against the Romans owing to the severe sentences passed on their leaders and the restoration of the exiles. But at Coronea and at Haliartus there was a kind of inborn affection for the dynasty, and they sent to Macedonia to ask for a garrison that they might protect themselves against the wanton aggression of Thebes. The king told them in reply that as there was an armistice between him and the Romans, he could not send any troops to them; still, he advised them to revenge any wrongs that the Thebans might inflict on them, but in such a way as not to give the Romans any pretext for venting their wrath on him.

[42.47] On their return to Rome, Marcus and Atilius reported the results of their mission to the senate in the Capitol. The thing for which they took most credit to themselves was the way in which they had hoodwinked the king by holding out hopes of peace. He was so fully provided with all the means of war, whilst they themselves had nothing ready, that all the strategic positions could have been occupied by him before their armies had landed in Greece. The interval of the armistice, however, would place them on equal terms, he would no longer have the advantage of preparation, the Romans would begin the war better equipped in every way. They had also succeeded by a clever stroke in breaking up the national council of Boeotia, they could never again be united in support of the Macedonians. A good many of the senators approved of these proceedings as showing very skilful management. The elder senators, however, and others who had not forgotten the moral standards of earlier days, said that they failed to recognise anything of the Roman character in these negotiations. "Our ancestors," they said, "did not conduct their wars by lurking in ambush and making attacks at night, nor by feigning flight and then turning back upon the enemy when he was off his guard. They did not pride themselves on cunning more than on true courage, it was their custom to declare war before commencing it, sometimes even to give the enemy notice of the time and place where they would fight. This sense of honour made them warn Pyrrhus against his physician, who was plotting against his life, it made them hand over to the Faliscans as a prisoner the betrayer of their children. This is the true Roman spirit, there is nothing here of the cunning of the Carthaginians or the cleverness of the Greeks,

who pride themselves more in deceiving an enemy than in overcoming him in fair fight. Occasionally more can be gained for the time being by craft than by courage, but it is only when you have forced your enemy to confess that he has been overcome not by cleverness nor by accident, but after a fair trial of strength where the rules of war are properly observed - it is only then that his spirit is broken and his defeat a lasting one." Such were the views of the older senators, who regarded the new policy with disfavour, but the majority preferred expediency to honour and signified their approval of what Marcius had done. It was decided that he should be sent back to Greece with the fifty quinqueremes, and should be at full liberty to act as he thought best in the interest of the republic. A. Atilius was also sent to occupy Larisa in Thessaly, as there was the danger of Perseus sending a garrison there on the expiration of the armistice, and so keeping the capital of Thessaly under his power. Atilius sent for 2000 infantry from the army of Cnaeus Sicinius to hold the city. P. Lentulus, who had returned from Achaia, was supplied with 300 Italian troops to look after Thebes and overawe Boeotia.

[42.48] These preliminary measures carried out, it was agreed that the senate should give audience to the king's envoys, although war was now definitely resolved upon. The envoys repeated almost the same arguments which the king had used in his conference with Marcius. Their answer to the charge of plotting against the life of Eumenes was the most laboured part of their speech and the one which made the least impression, for the facts were beyond dispute. The rest of their speech was apologetic and deprecatory, but their hearers refused to be either convinced or persuaded. They were warned to leave Rome at once and Italy within thirty days. The consul, P. Licinius, who was to command in Macedonia, was warned to fix as early a day as possible for the assembling of his army. C. Lucretius, who had been put in command of the fleet, sailed from Rome with only forty quinqueremes, as it was decided that some of the refitted ships should be kept at the City for different purposes. He sent his brother Marcus with one quinquereme to take up the ships which the allies were bound by treaty to furnish and join the main fleet at Cephallania. One trireme was provided by Rhegium, two by Locri, and four came from the Sallentines of Uria. Sailing along the coast of Italy and round the furthest headland of Calabria, he crossed the Ionian Sea to Dyrrhachium. Here he obtained ten vessels from Dyrrhachium itself,

twelve from Issa and fifty-four light vessels which belonged to Gentius and which M. Lucretius affected to believe had been got together for the use of the Romans. Carrying them all off, he reached Corcyra after a three days' voyage, and then went direct to Cephallania. C. Lucretius sailed from Naples and reached Cephallania in five days. Here the fleet anchored, waiting till the land army had crossed and the transports which had fallen out had rejoined.

[42.49]It was now that the consul, P. Licinius, after offering up the prayers in the Capitol, rode out of the City wearing the paludamentum. This departure of the commander-in-chief was always invested with dignity and grandeur, but now especially all eyes and hearts were turned to the consul as they escorted him on his way to meet a powerful enemy whose reputation for courage and success was spread far and wide. It was not only to honour their chief magistrate that the citizens had collected together, but also to see the leader to whose wisdom and authority they had entrusted the supreme defence of the commonwealth. They thought of the chances of war, the caprice of Fortune, the risks and uncertainty of battle the defeats and successes of the past - defeats often incurred by the ignorance and rashness of commanders, successes again won by skill and courage. Who of mortal men could know the capability of the consul whom they were sending to war or the fortune which would attend him? Would they presently see him with his victorious army going up to the Capitol in triumphal procession to do homage to those deities from whom he is now departing, or are those deities going to allow that happiness to the enemy? The enemy, again, whom he was going to meet was the far-famed Perseus, the king of the Macedonians, a nation distinguished in war, and the son of Philip, who amongst his many victories had even in the war with Rome added to his reputation. Ever since he ascended the throne, the name of Perseus was continually on men's lips as they spoke of the coming war. With these thoughts in their minds men of all sorts and conditions attended the departure of the consul. C. Claudius and Q. Mucius, ex-consuls and now military tribunes, were sent with him, and three young nobles, P. Lentulus, and the two Acidini, one the son of Marcus and the other the son of Lucius Manlius. The consul joined his army at Brundisium and sailing with his whole force to Nymphaeum fixed his camp in the neighbourhood of Apollonia.

[42.50]A few days before this, after the return of his envoys had dashed his hopes of peace, Perseus held a council of war. Opposing views led to considerable discussion. Some thought that they ought to consent to pay an indemnity if it was imposed upon them, or cede a portion of their territory if this were insisted on; in fact, whatever sacrifice was necessary for the sake of peace ought to be made, and no step taken which would expose the king and his subjects to the hazard of fortune where such vital issues were involved. If he were left in the certain possession of the crown, many things might happen in the future which would enable him not only to recover what he had lost, but even to become formidable to those of whom he now stood in fear. The majority, however, were much more defiant. Any concessions made, they declared, would involve the loss of the kingdom. The Romans were not in need of money or territory, but this they knew, that while all human affairs were liable to many accidents, kingdoms and empires were especially so. They had shattered the power of the Carthaginians and saddled them with a very powerful monarch to keep them down. They had sent Antiochus and his posterity into banishment beyond the Taurus mountains. The kingdom of Macedonia alone remained, a near neighbour and ready, whenever Rome lost the good fortune she once enjoyed, to animate the kings of Macedonia with their ancient courage. Whilst, therefore, his realm was still intact, Perseus must decide between two alternatives. Either he must be prepared to strip himself of all his power, by making one concession after another, and, driven from his kingdom into exile, must beg the Romans to allow him Samothrace or some other island, where, having outlived his kingship, he might grow old in privacy, disgrace and poverty; or else vindicate his fortunes and his dignity in arms, and confront as a brave man ought to do all that the chances of war can bring, and if victorious, deliver the world from its subjection to Rome. The expulsion of the Romans from Greece would not be a more wonderful thing than the expulsion of Hannibal from Italy. They could not see how he who had resisted his brother to the uttermost in his unlawful attempt to seize the crown could with any consistency resign it to men of alien blood. The question between peace and war can only arise so far as all are agreed that as there is nothing more disgraceful than to surrender the throne without striking a blow, so there is nothing more glorious than for a king to face all risks in defence of his sovereign dignity and majesty.

[42.51]This council was held at Pella, the capital of Macedonia. "Let us then," said Perseus, "wage war with the help of the gods, since thus you decide." Written orders were despatched to all his generals and he assembled the whole of his forces at Citium, a town in Macedonia. After sacrificing in regal style one hundred victims to Minerva, whom they call Alcidemos, he set out for Citium, accompanied by a number of court nobles and his bodyguard. The whole of the army, both Macedonians and auxiliaries, were assembled there. The camp was fixed in front of the city and he drew up all his soldiers in the plain. The total number of those who bore arms was 43,000, nearly half of whom formed the phalanx; Hippias of Beroea was in command. Out of the whole force of caetrati, 2000 men in the prime of strength and manhood were selected to form a body known as the "agema," their commanders were Leonnatus and Thrasippus. Antiphilus of Edessa was in command of the rest of the caetrati, numbering about 3000 men. The Paeonians and the contingents from Paroria and Parstrymonia, places in the lowlands of Thrace, and the Agrianes, including some Thracian immigrants, made up a force of about 3000. They had been armed and mustered by Didas the Paeonian, the murderer of the young Demetrius. There were also 2000 Gauls under Asclepiodotus, a native of Heraclea in Sintice. Three thousand "free" Thracians had their own leader, and about the same number of Cretans followed their own generals, Susus of Phalasarna and Syllus of Gnosus. Leonides the Lacedaemonian was at the head of a mixed force of Greeks. He was said to be of royal blood, and after his letter to Perseus had been seized, had been sentenced to banishment in a full council of the Achaeans. The Aetolians and Boeotians, who, all told, did not amount to more than 500 men, were under the command of Lyco, an Achaean. Out of these contingents drawn from so many people and tribes, a force of about 12,000 men was formed. Perseus had collected 3000 cavalry out of the whole of Macedonia. Cotys, the son of Suthis and king of the Odrysae, had come in with a picked force of 1000 horse and about the same number of infantry. Thus the total number of the army was 39,000 infantry and 4000 cavalry. It was generally admitted that, next to the army which Alexander the Great had led into Asia, no Macedonian king had ever possessed so large a force.

[42.52]It was six-and-twenty years since the peace which Philip sought had been vouchsafed to him. During all that time Macedonia

had been undisturbed and a new generation had grown up, ripe for military service, and in the small wars with their Thracian neighbours, which exercised rather than exhausted them, they had been constantly trained and disciplined. The prospect of a war with Rome, which had during the whole period been cherished by Philip and then by Perseus, had led to everything being in a state of readiness and efficiency. The army performed a few movements, not as regular maneuvers, but simply in order to avoid the appearance of only standing under arms. Perseus then called them, armed as they were, to stand round on parade, and ascended the tribunal with his two sons by his side; the elder one, Philip, his brother by birth, his son by adoption, the younger one, Alexander, his son by birth. He exhorted his soldiers to show their courage in the war, and enumerated the injuries which the Romans had inflicted on his father and on himself. His father had been compelled by all the indignities he had suffered to resume hostilities; in the midst of his preparations he had been struck down by fate. The Romans sent envoys to him (Perseus) to open negotiations and at the same time sent soldiers to occupy the cities of Greece. Then the winter was wasted over a conference, ostensibly to bring about a peaceful settlement, but really to give them time to make their preparations. Now the consul was coming with two Roman legions, each with its complement of 300 cavalry and contingents furnished by the allies of about the same strength. Even if the troops sent by Eumenes and Masinissa were counted in, there would not be more than 7000 infantry and 2000 cavalry. The king proceeded: "You have heard what the strength of the enemy is; now look at your own army, its superiority in numbers and in the quality of the soldiers as compared with the raw conscripts hastily embodied for this war, soldiers who have from their boyhood been trained in the school of war, disciplined and hardened by so many campaigns. Lydians, Phrygians and Numidians are furnishing troops for the Romans; we have on our side the Thracians, and the most warlike of all nations the Gauls. Their arms are just what each poverty-stricken soldier has provided himself with; you Macedonians are supplied from the royal arsenal with arms manufactured through all those years under my father's direction and at his cost. Their supplies will have to be brought from a distance and will be exposed to all the chances and accidents of the sea; we have for ten years been storing up money and corn in addition to the revenue from the mines. Everything which has been provided by the kindness of

heaven or by the care and forethought of their king, the Macedonians have in full and overflowing measure. You must have the courage which your ancestors had when after subjugating the whole of Europe they crossed over to Asia and opened up by their arms an unknown world, and never ceased to conquer until they were hemmed in by the purple ocean and there was nothing more to conquer. Ay, but now it is not for the remotest shores of India but for the possession of Macedonia that Fortune has called us to this contest. When the Romans were at war with my father they put forward the specious pretext that they were liberating Greece, now they are openly aiming at the enslavement of Macedonia in order that Rome may have no monarch on its borders, no nation glorious in war retaining possession of its arms. These must be surrendered to your haughty and domineering masters, and your king and kingdom as well, if you are willing to lay aside all thoughts of war and execute their commands."

[42.53] There had been frequent bursts of applause all through the speech, but at this point such a shout of indignation and defiance arose, and encouraging cheers for the king, that he brought his speech to a close, only adding that they must be prepared to march, as there was a report that the Romans were already advancing from Nymphaeum. When the troops were dismissed he proceeded to give audience to the deputations from the Macedonian cities who had made offers of money and corn, each according to their ability. He thanked them all, and excused them from making any contribution as the royal stores were sufficient for all requirements. He only requested them to furnish wagons to carry the artillery, the enormous quantity of missiles that had been got ready, and other apparatus of war. He now set forward with the whole of his army in the direction of Eordaea, and encamped by Lake Begorritis. The next day he reached the Haliacmon in Elimea. From there he crossed the Cambunian Mountains through a narrow pass and came down to Azorus, Pythoum and Doliche; the natives call these three towns the Tripolis. Here he met with a short delay because they had given hostages to the Larisaeans; in face, however, of the danger threatening them, they made their surrender. He accepted their submission graciously, feeling quite sure that Perrhaebia would do the same. The inhabitants made no show of resistance and he captured the city as soon as he arrived there. Cyretia he was forced

to attack, and was actually repulsed in the first day's assault by a vigorous charge of armed men from the gates. The next day he attacked in full strength, and before night received the submission of the entire population.

[42.54]Mylae, the next town he came to, was so strongly fortified that confidence in the impregnability of their walls made the townsmen defiant; they were not content to close their gates to the king, they even hurled taunts and insults upon him and the Macedonians. This made their enemy all the more furious in the assault, and the citizens, despairing of pardon, were all the more resolute in their defence. So for three days the city was attacked, with the utmost determination on both sides. The vast numbers of the Macedonians made it easy for them to take their turn in the fighting; the same defenders had to guard the walls night and day, and were becoming exhausted not only by their many wounds, but also by want of sleep and incessant exertion. On the fourth day, while the scaling-ladders were being raised against the walls and the gate was being attacked with greater violence than usual, the townsmen, after driving the danger from the walls, ran down to defend the gate and made a sudden sortie. This was due more to impetuosity and rage than to any well-grounded confidence in their strength and, reduced as they were in numbers and with weary and worn-out bodies, they were repulsed by the enemy who was fresh and vigorous. They turned and fled, and in their flight through the open gate let in the enemy. In this way the city was taken and sacked; even the free population, as many as survived, were sold as slaves.

After wrecking and burning most of the city, Perseus marched on to Phalanna, and on the following day arrived at Gyrto. On learning that T. Minucius Rufus and the Thessalian captain-general Hippas had entered this place with a body of troops he did not even attempt an assault, but marched past it and captured Elatia and Gonnus, the inhabitants being utterly dismayed by his unlooked-for appearance. Both towns are situated at the entrance to the Vale of Tempe, Gonnus lying further within. He garrisoned it with a strong force of infantry and cavalry, and in addition left it defended with a triple moat and rampart. Marching on to Sycurium he decided to await the enemy there and ordered the army to collect corn in all parts of the hostile territory. Sycurium is at the foot of Mount Ossa on the south side, it overlooks the plains of Thessaly; behind it lie Macedonia and

Magnesia. In addition to these advantages it possesses a perfectly healthy climate and a perennial supply of water which flows in abundance from the many springs round.

[42.55]During this time the Roman consul was on his way with his army to Thessaly. Whilst marching through Epirus he found the country clear and open, but when he had crossed the frontiers of Athamania he had to advance over rough and almost impassable ground. It was with the utmost difficulty and by short marches that he struggled through to Gomphi. If with horses and men knocked up and an army of recruits he had been met by the king with a couple of hundred men in order of battle, at a time and place of his own choosing, the Romans themselves do not deny that they would have suffered a terrible defeat. After Gomphi was reached without any fighting, there was not only rejoicing at having surmounted a dangerous pass, but also a feeling of contempt for an enemy who was so blind to his advantages. After duly performing the sacrifices and giving out corn to the soldiers, the consul stayed there a few days to rest both man and beast. On learning that the Macedonians were dispersed far and wide devastating the fields of his allies, he led his soldiers, who were now sufficiently refreshed, towards Larisa. When about three miles from the place he fixed his camp at Tripolis - the natives call it Scaea - on the Peneus. Eumenes arrived at this time with his ships at Chalcis. He was accompanied by his brothers Attalus and Athenaeus, the other brother, Philetaerus, being left at Pergamum to protect the kingdom. From Chalcis he went with Attalus and a force of 4000 infantry and 1000 cavalry to join the consul, 2000 infantry being left in Chalcis under the command of Athenaeus. Other contingents came in from all the Greek States, most of them so small that they have passed into oblivion. Apollonia sent 300 cavalry and 100 infantry; the cavalry from the whole of Aetolia made up one division, and the Thessalians, who it was hoped would send their entire force, had not more than 300 cavalry in the Roman camp. The Achaeans furnished 1500 fighting men, mostly armed in the Cretan fashion.

[42.56]C. Lucretius, commanding the fleet at Cephallania, sent instructions to his brother Marcus to take his ships past the Malean promontory to Chalcis. He himself went on board a trireme and made for the Gulf of Corinth with the view of controlling the position in Boeotia. His progress was somewhat slow owing to the

state of his health. When M. Lucretius brought up at Chalcis he learnt that Haliartus was being attacked by P. Lentulus, and he sent a message ordering him in the praetor's name to raise the siege. He had commenced operations with those Boeotian troops who were on the side of the Romans, and now he retired from the walls. The abandonment of this attack left the ground free for another; M. Lucretius at once invested the place with a force of 10,000 marines and 2000 of the troops under Athenaeus. Whilst they were getting ready for the assault the praetor appeared on the scene from Creusa. The ships furnished by the allies were now assembled at Chalcis - two Punic quinqueremes, two triremes from the Pontic Heraclea, four from Chalcedon, the same number from Samos and also five Rhodian quadriremes. As there was no naval war, the praetor sent the vessels back to the various allies. Q. Marcius also arrived at Chalcis with his fleet, after capturing Alope and storming Larisa Cremaste. While this was the position of affairs in Boeotia, Perseus, as stated above, was encamped at Sycurium. After he had collected corn from all the country round he sent a detachment to ravage the fields of Pherae, in the hope that as the Romans were drawn further from their base to help the cities of their allies he might be able to surprise them. As, however, he found that they were in no way disturbed by his sudden movements, he distributed the plunder, including some prisoners, amongst the soldiers; as it consisted mainly of cattle it provided them with a feast.

[42.57] The consul and the king both held councils of war at the same time, to decide where to commence operations. The Macedonians had grown bolder after they found that the enemy allowed them to ravage the Pheraean country without offering any resistance, and they thought they ought to go straight up to the Roman camp and give their enemy no room for further delay. The Romans, on the other hand, felt that their inactivity was damaging their prestige with their allies, and they were particularly disgusted at no help having been given to the Pheraeans. Whilst they were deliberating what steps to take - Eumenes and Attalus were both present - a messenger came in hot haste to say that the enemy were approaching in great force. The council at once broke up and the signal was given for the soldiers to arm. A hundred cavalry and the same number of slingers were in the meanwhile sent forward to reconnoitre. It was about the fourth hour of the day, and when he was little more than a mile distant from the

Roman camp, Perseus ordered the infantry to halt whilst he himself rode forward with the cavalry and light infantry; Cotys also and the commanders of the other auxiliaries rode forward with him. They were within half a mile of the camp when they caught sight of the enemy cavalry. There were two troops, largely made up of Gauls, under Cassignatus, and about 150 light infantry, partly Mysian, partly Cretan. The king halted, uncertain as to the enemy's strength. Then he sent on from the main body two squadrons of Thracian and two of Macedonian horse, together with two Cretan and two Thracian cohorts. As the two sides were equal in point of numbers, and no fresh troops came up on either side, the engagement ended in a drawn battle. About thirty of Eumenes' men were killed, amongst them Cassignatus, the Gaulish commander. Perseus then took his force back to Sycurium. The next day the king marched them to the same spot, and at the same hour. This time they were followed by water carts, for on their twelve miles' march they were without water and smothered in dust; it was quite clear that if they had to fight as soon as they came in view of the enemy, they would do so whilst suffering from thirst. The Romans retired their outposts within their lines and remained quiet, whereupon the king's troops returned to camp. They did this for several days, hoping that the Roman cavalry would attack their rear during their withdrawal, whilst they were at a considerable distance from their own camp) then the king's troops, who were superior in cavalry and light infantry, would turn and face the enemy wherever they were.

[42.58]As he had not succeeded in his attempt to draw the Romans, the king moved his camp to within a distance of five miles from the enemy. At dawn the infantry were drawn up on the same ground as before and the whole of the cavalry and light infantry marched towards the Roman camp. The sight of a cloud of dust, larger and nearer than usual, created some excitement amongst the Romans. At first the news was hardly credited because on all previous occasions the enemy had never appeared before the fourth hour of the day, and now it was sunrise. When all doubt was dispelled by the many shouts and men running from the gates there was great confusion. The military tribunes, the officers of the allied troops and the centurions hurried to the headquarters tent; the soldiers ran to their own tents. Perseus had drawn up his men less than a mile and a half from the Roman lines round a hill called Callinicus. Cotys commanded the left

wing with the whole of his native troops, the light infantry being disposed between the ranks of the cavalry. On the right were the Macedonian cavalry, the Cretans being intermixed with them in the same way. This body was under the command of Midon of Beroea; the supreme command of the whole cavalry force was in the hands of Meno of Antigonea. Flanking the two wings were the king's cavalry and a mixed body of auxiliaries drawn from different nationalities. Patrocles and Didas were in charge of these troops. In the centre of the whole line was the king surrounded by the "agema" and the troops of the "sacred" cavalry. In front of these he posted the slingers and javelin men, 400 in all, under the command of Ion and Neoptolemus. The consul formed his infantry into line inside the rampart, and sent out the whole of the cavalry and light infantry; they were drawn up in front of the rampart. The right wing was commanded by the consul's brother Caius, and comprised the whole of the Italian cavalry with the velites interspersed among them. On the left M. Valerius Laevinus had the cavalry and light infantry from the various cities in Greece. The centre was held by Quintus Mucius with a picked body of volunteer cavalry. On their front were posted 200 Gaulish troopers and 300 Cyrtians from the auxiliary troops brought by Eumenes; 400 Thessalian cavalry were drawn up a short distance beyond the Roman left. Attalus and Eumenes took ground with the whole of their force in the rear between the hindmost rank and the rampart.

[42.59]In this formation the two armies, almost equally matched in the numbers of their cavalry and light infantry, engaged. The battle was begun by the slingers and javelin men, who were in front of the whole line. First of all the Thracians, like wild beasts kept in cages and suddenly released, set up a deafening roar and charged the Italian cavalry on the right wing with such fury that, in spite of their experience of war and their native fearlessness, they threw them into disorder. The infantry on both sides snapped the lances of the cavalry with their swords, cut at the legs of the horses and stabbed them in the flanks. Perseus, charging the centre, dislodged the Greeks at the first onslaught, and pressed heavily upon them as they fell back. The Thessalian cavalry had been in reserve, a little distance from the extreme left, outside the fighting and simply watching it, but when the day began to go against them they were of the greatest use. For by slowly retiring, and keeping their ranks unbroken, they formed a

junction with Eumenes' troops, and so afforded a safe retreat within their united ranks to the allied cavalry as they fled in disorder. As the enemy slackened in the pursuit they even ventured to advance and protected many of the fugitives whom they met. The king's troops, separated by the pursuit in all directions, did not venture to come to close quarters with men who were keeping their formation and advancing in a steady line. The king, victorious in this cavalry action, shouted to his men that if they gave him a little more help the war would be over, and very opportunely for his own encouragement and that of his men, the phalanx appeared on the scene. Hippias and Leonnatus, hearing of the success of the cavalry, had hastily brought it up on their own initiative, that they might take their part in an action so daringly begun. The king was hovering between hope and fear at attempting so great a task, when Euander the Cretan, who had been his instrument in the attempt upon Eumenes' life at Delphi, ran up to him. He had seen the massed infantry advancing with their standards, and he solemnly warned the king not to be so elated by his good fortune as to stake everything upon a chance which there was no necessity for him to risk. If he would be contented with what he had gained and kept quiet for the day he would have peace with honour, or if he preferred war, he would have very many allies who would follow his fortunes. The king was more inclined to this course, so after thanking Euander for his advice, he ordered the standards to be reversed, the infantry to march back to camp and the "retire" to be sounded for the cavalry.

[42.60]On that day there fell on the side of the Romans 200 cavalry and not less than 2000 infantry; about 600 were made prisoners. Out of the king's army 20 cavalry and 40 infantry were killed. On their return to camp the victors were all in high spirits, but the Thracians surpassed all in the insolence of their joy. They returned to camp singing and carrying the heads of their enemies fixed on their spears. Amongst the Romans there was not only grief at their defeat, but a fear lest the enemy should make a sudden attack on the camp. Eumenes urged the consul to transfer the camp to the opposite bank of the Peneus, that they might have the protection of the river until the shaken soldiers could recover their morale. The consul felt bitterly the disgrace of admitting that he was afraid, but yielding to reason, he took the troops across in the dead of night and entrenched himself on the further bank. The next day the king marched up to

provoke his enemy to battle. When he noticed their camp safely fixed across the river he owned that he was wrong in not pressing upon his foe the day before, but still more so in remaining inactive through the night, for had he sent only his light infantry against the enemy during the confusion caused by the passage of the river, their force would to a large extent have been wiped out. Now that their camp was in a safe position the Romans were relieved from the danger of an immediate attack, but they were much depressed, especially at their loss of prestige. In the council at the headquarters tent, each in turn threw the blame on the Aetolians, it was with them that the panic and flight began, and the rest of the Greek contingents followed the example of the Aetolians. Five Aetolian officers, said to have been the first who were seen to turn their backs on the enemy, were sent to Rome. The Thessalians were commended before the whole army and their leaders were rewarded for their bravery.

[42.61]The spoils taken from the fallen were brought to the king. These he gave to his soldiers; to some splendid armour, to others horses, and to some prisoners. There were over 1500 shields, the cuirasses and coats of mail numbered more than 1000, the helmets, swords, and missiles of all kinds were much more numerous. The value of these gifts, ample and welcome as they were, was enhanced by the speech which the king made to his army. "You have pronounced," he said, "upon the issue of the war. The best part of the Roman army, their cavalry, who used to boast that they were invincible, have been routed by you. Their cavalry are the flower of their youth, the nursery of their senate, the men whose fathers are chosen as consuls, from whom their commanders are selected; these are the men whose spoils we have now distributed amongst you. And no less a victory have you won over their infantry, those legions who, withdrawn from your reach in a nocturnal flight, filled the river with confusion and disorder like shipwrecked men swimming for their lives. The passage of the Peneus will be easier for us, the pursuers, than it was for them in their haste to get away, and as soon as we have crossed we shall attack their camp, which we should have taken today if they had not fled. Or if they are willing to fight in the open field, look for the same result in an infantry battle which you have seen in the cavalry action." Those who had taken part in the victory and were carrying the enemy's spoils on their shoulders listened eagerly to the recital of their exploits and formed their hopes of the

future from what had already happened. The infantry, too, especially the men of the phalanx, were fired by the glory which their comrades had won, and looked forward to the opportunity of doing their king signal service and winning equal glory from their vanquished foe. The soldiers were dismissed, and the next day he marched away and fixed his camp at Mopselus. This is a hill situated at the entrance of the Vale of Tempe and commands a wide view of the plain of Larisa.

[42.62]The Romans without quitting the river moved their camp into a safer position. Whilst they were there Misagenes the Numidian came in with 1000 cavalry, the same number of infantry and 22 elephants. The king was holding a council to decide upon the future conduct of the war, and as his exultation over his victory had cooled down, some of his friends ventured to give him advice. They argued that it would be better for him to take advantage of his good fortune by securing an honourable peace than to buoy himself up with idle hopes and so expose himself to chances that might be irrevocable. To set a measure to one's prosperity and not to place too much confidence in the smiling fortune of the hour is the part of a wise man who has achieved a deserved success. Let him send men to the consul with powers to make fresh proposals for peace on the same terms on which his father Philip had accepted peace from the victorious T. Quinctius. There could be no grander close to the war than the late memorable battle and no surer grounds for hopes of a lasting peace than those which would make the Romans, disheartened as they were by their defeat, ready to come to terms. If the Romans should then, with their inbred stubbornness, reject fair terms, gods and men would alike bear witness to the moderation of Perseus and the invincible arrogance of the Romans.

The king never disliked advice of this character, and this policy was approved by the majority of the council. The deputation to the consul were received in audience in a full council. They asked for peace, and promised that Perseus would give the Romans the amount of tribute which had been agreed upon with his father. Such were their instructions. In the discussion which followed on their withdrawal Roman firmness won the day. It was the custom in those days to wear the look of prosperity in adverse circumstances, and to curb and restrain the feelings in a time of prosperity. The reply decided upon was that peace would be granted only on the condition that the king placed himself entirely in the hands of the senate and allowed it the

unrestricted right of determining his future and that of Macedonia. When the report of the deputation became known, those who were unacquainted with the Roman character regarded it as an astounding exhibition of obstinacy and any further allusion to peace was generally forbidden. Those, they said, who spurn the peace now offered will soon come to ask for it. It was this very obstinacy that Perseus was afraid of; he looked upon it as due to a confidence in their strength, and on the chance of being able to purchase peace at a price, persisted in his attempts to bribe the consul by constantly increasing the sum offered. As the consul adhered to his first reply Perseus despaired of peace and returned to Sycurium, prepared to face the hazards of war once more.

[42.63]The news of the battle spread through Greece, and in the way it was received the hopes and sympathies of men were disclosed. Not only the open supporters of Macedonia, but most of those who were under the greatest obligations to Rome, some having experienced the violence and tyranny of Perseus, were delighted at hearing it for no other reason than that morbid eagerness which a mob watching gymnastic contests displays in favour of the weaker and more disreputable competitor. In Boeotia meanwhile Lucretius was pressing the siege of Haliartus with the utmost vigour. Although the besieged neither had nor hoped for any outside help beyond the troops from Coronea who had entered the walls at the beginning of the siege, they kept up their resistance more by courage and resolution than by actual strength. They frequently made sorties against the siege works and when a battering-ram was brought up they at one time . . . at another they forced it to the ground by lowering a mass of lead upon it. If they were unable to divert the blows they replaced the old wall by a new one which they hastily built up with the stones of the fallen wall. As the progress of the siege works was too slow, the praetor ordered the scaling-ladders to be distributed among the maniples as he intended to deliver a simultaneous assault all round the walls. His numbers, he considered, would suffice for this, as there would be no advantage in attacking that side of the city which was surrounded by a swamp, nor would it be possible to do so. At a point where two towers and the wall between them had been battered down he brought up a picked force of 2000 men in order that while he was forcing his way through the breach, and the defenders were massing together to oppose him,

some portion of the walls might be left unmanned and so successfully scaled. The townsmen were not slow in preparing to meet him. On the ground covered by the ruins of the wall they heaped up faggots of brushwood, and standing on these with burning torches in their hands they were preparing to set the mass on fire in order that, shut off from the enemy by the conflagration, they might have time to throw up another wall inside. They were accidentally prevented from executing this plan. Such a heavy shower of rain suddenly fell that it was hardly possible to kindle the brushwood, and when it was alight the fire was extinguished. A passage was effected by dragging the smoking faggots out of the way, and as all had turned their attention to defending this one spot, the walls were scaled in many places. In the first confusion of the captured city the old men and boys whom they chanced to meet were killed. The combatants took shelter in the citadel, and as all hope was now lost they surrendered, and were sold as slaves. There were about 2500 of them. The adornments of the city, the statues and paintings and all the valuable plunder were placed on shipboard and the place was razed to its foundations. From there the army marched to Thebes, which was captured without any fighting, and the consul handed the city over to the refugees and the Roman party. The households and property of the other party, who had worked in the interests of the king and were Macedonian sympathisers, were sold.

[42.64] During these incidents in Boeotia, Perseus remained for several days in camp at Sycurium. Here he heard that the Romans were busy cutting and carrying off the corn from the fields and that the men were all in front of their tents cutting off the ears with their sickles that they might rub the corn cleaner, and littering all the camp with great heaps of straw. This seemed to him a good opportunity for firing the camp, and he gave orders for torches of pinewood and bundles of tow covered with pitch to be got ready. He started at midnight, intending to take the enemy unawares at daybreak. All to no purpose. The advanced posts were surprised and their shouts and tumult gave the alarm to the rest. The signal was given to arm instantly for battle and the soldiers were immediately formed up at the gates and on the rampart. His design on the camp having failed, Perseus countermarched his army and directed the baggage to lead the way, and the standards of the infantry to follow. He himself waited with his cavalry and light infantry to close the column,

expecting, as proved to be the case, that the enemy would follow and harass his rear. There was some desultory fighting on the part of the light infantry, mainly with the skirmishers; the cavalry and infantry returned to camp without disorder.

When the standing corn was cut all round their camp, the Romans moved on to Crannon, where the fields were yet untouched. Here they remained encamped for some time as they were secure against attack, owing partly to the distance from Sycurium and partly to the difficulty of obtaining water on the road from that place. Suddenly, one morning at daybreak, they were greatly excited at seeing the king's cavalry and light infantry on a range of hills overlooking the camp. These had started from Sycurium at noon the day before, and just before dawn left the infantry behind on the nearest level ground. Perseus halted for some time on the hills, thinking that the Romans might be drawn into a cavalry action. As they made no movement, he sent a trooper with orders to the infantry to march back to Sycurium, and in a short time rode after them. The Roman cavalry followed at a moderate interval to pick up stragglers. When they saw the massed infantry marching off in unbroken ranks, they too returned to camp.

[42.65]The distance he had to march annoyed the king and he advanced his camp to Mopselus. The Romans, having cut all the standing corn round Crannon, moved into the district of Phalanna. The king learnt from a deserter that the Romans were dispersed over the country, cutting the corn, without any remaining on guard. He started off with 1000 cavalry and 2000 Thracian and Cretan light infantry. Marching with the utmost possible speed he attacked the Romans when they were least expecting it. Nearly 1000 carts most of them loaded, were captured with their teams, and also 600 prisoners taken. He gave the plunder to the Cretans to escort back to their camp. Then he recalled the cavalry and the rest of the infantry, who were everywhere slaughtering the enemy, and led them against the nearest detachment who were on guard, thinking to overwhelm them without much trouble. A military tribune, L. Pomponius, was in command of the detachment and withdrew his men, who were dismayed by the sudden appearance of the enemy, to a hill near by, to serve as a defensive position since he was inferior in numbers and strength. Here he made his soldiers close up in a circular formation,

with their shields touching one another, so that they might be protected from the arrows and javelins.

Perseus surrounded the hill with his troops and ordered one body to attempt the ascent of the hill and come to close quarters with the enemy, whilst the others discharged their missiles from a distance. The Romans were in very great danger, for they could not fight in close order against those who were struggling up the hill, and if they left their ranks and ran forward they were exposed to the javelins and arrows. They suffered mainly from the cestrosphendons, a novel kind of weapon invented during the war. It consisted of a pointed iron head two palms long, fastened to a shaft made of pinewood, nine inches long and as thick as a man's finger. Round the shaft three feathers were fastened as in the case of arrows, and the sling was held by two thongs, one shorter than the other. When the missile was poised in the centre of the sling, the slinger whirled it round with great force and it flew out like a leaden bullet. Many of the soldiers were wounded by these and by missiles of all kinds, and they were becoming so exhausted that they were hardly capable of holding their weapons. Seeing this, the king urged them to surrender and pledged his word for their safety and promised to reward them. Not a single man had any thought of surrender. They had made up their minds to die, when an unlooked-for gleam of hope appeared. Some of the foragers, who had fled to the camp, informed the consul that the detachment on guard was surrounded. Alarmed for the safety of so many fellow-citizens - there were about 800, all Romans - he sallied forth from the camp with a force of cavalry and infantry, including the new reinforcement of Numidian horse and foot, as well as the elephants. The order was given to the military tribunes to follow with the legionaries. Bringing up the velites to stiffen the auxiliary light infantry, he went forward to the hill. Eumenes, Attalus and Misagenes, the Numidian leader, rode by his side.

[42.66]As soon as they caught sight of the leading files of their comrades, the spirits of the Romans revived from the depths of despair. Perseus should have made up his mind after capturing and killing several of the foragers to content himself with this chance success, and not wasted time in beleaguering the detachment. Or if he did attempt that he ought to have left the field while he could do so safely, as he knew he had no heavy infantry with him. Elated with his success he waited till the enemy appeared, and then sent a hurried

message to bring up the phalanx. It was too late to do this now. The phalanx, hastily brought into action and disarranged by the speed of its advance, had to meet troops in proper formation and ready for battle. The consul, who was first on the ground, at once engaged the enemy. For a short time the Macedonians held their own, but they were completely outmatched, and with a loss of 300 infantry and 24 of the select cavalry of the "sacred cohort," including their commander Antimachus, they attempted to leave the field. But there was almost more turmoil on their return march than in the battle itself. The phalanx, called up so hurriedly, marched off with equal haste, but where the road narrowed they met the troop of prisoners and the carts loaded with corn, and were brought to a standstill. There was great excitement and uproar; no one would wait until the troops of the phalanx could make their way through; the soldiers threw the carts over the cliff, the only way of clearing the road, and the animals were lashed till they charged madly among the crowd. Hardly had they got clear of the column of prisoners when they met the king and his discomfited cavalry, who shouted to them to face about and march back. This created a commotion almost as great as the crash of a falling house; if the enemy had continued the pursuit and ventured into the pass, there might have been a terrible disaster. The consul, satisfied with this slight success, recalled the detachment from the hill and returned to camp. According to some authorities, a great battle was fought that day, 8000 of the enemy slain, amongst them two of the king's generals, Sopater and Antipater, 2800 made prisoners, and 27 military standards captured. Nor was the victory a bloodless one. Above 4300 fell in the consul's army, and 5 standards belonging to the left wing lost.

[42.67] This day revived the spirits of the Romans and depressed Perseus, so much so that after staying a few days longer at Mopselus, mainly to see to the burial of the men he had lost, he placed a sufficiently strong garrison in Gonnus and withdrew his troops into Macedonia. One of the royal governors, Timotheus, was left with a small force at Phila with instructions to try and win over the Magnetes whilst he was in their neighbourhood. On reaching Pella, Perseus sent his army into winter quarters and then went with Cotys to Thessalonica. News reached him there that Autlebis, a Thracian chief, and Corragus, an officer of Eumenes, had invaded the dominions of Cotys and occupied a district called Marene. He felt

that he ought to release Cotys and let him go and defend his kingdom. On his departure he bestowed valuable presents on him. To his cavalry he only doled out 200 talents, half a year's pay, though at first he had agreed to give them a year's stipend.

When the consul heard that Perseus had gone he marched up to Gonnus on the chance of getting possession of the town. This place lies at the entrance to the Vale of Tempe, and forms a secure barrier against the invasion of Macedonia from that side, while it affords a convenient descent for the Macedonians into Thessaly. As the citadel, owing to its position and the strength of its garrison, was impregnable, the consul abandoned the attempt. Turning his route towards Perrhaebia he took Malloea at the first assault and sacked the town. After securing Tripolis and the other places in Perrhaebia he returned to Larisa. Eumenes and Attalus went home, and the consul settled Misagenes and his Numidians in the nearest cities of Thessaly. Part of his army he distributed amongst all the cities of Thessaly, that they might have comfortable winter quarters and serve as garrisons for the cities. Q. Mucius was sent with 2000 men to hold Ambracia, and the consul disbanded all the troops from the friendly States of Greece, except the Achaeans. Advancing with a part of his army into Achaean Phthiotis he razed to its foundations the city of Pteleum, from which the inhabitants had fled, and accepted the voluntary surrender of Antronae. Then he brought his army up to Larisa. The city was empty; all the population had taken refuge in the citadel, and he commenced an attack upon it. The king's garrison of Macedonians had first left the place through fear, and the townsmen, thus deserted, at once surrendered. He now hesitated whether to attack Demetrias or examine the position in Boeotia. The Thebans, owing to the trouble given them by the Coronaeans, were asking him to come to their assistance. In compliance with their request and also because it was more suitable for winter quarters than Magnesia, he led his army into Boeotia.

BOOK 43: THE THIRD MACEDONIAN WAR – CONTINUED

[43.1] During this summer the commander whom the consul had sent into Illyria attacked two wealthy and prosperous towns. Cerenia was forced into surrender and he allowed the inhabitants to retain their

possessions, hoping by this example of his clemency to induce the people of the strongly fortified city Carnuns to go over to him. He was unable, however, either to compel them to surrender or to take the place by siege, and in order that the fatigues which his men had undergone in the two sieges might bring them some return, he sacked the city which he had previously left unmolested. The other consul, who had had Gaul assigned to him, C. Cassius, did nothing worth mentioning there and tried, unsuccessfully however, to lead his legions through Illyria into Macedonia. The senate heard of his proposed expedition through a deputation sent from Aquileia. They explained that theirs was a new colony and not yet in a satisfactory state of defence, lying as it did between two hostile nations, the Histri and the Illyrians. They asked the senate to consider how the colony could be protected. On the question being put to them whether they would like that matter to be entrusted to the consul C. Cassius, they replied that he had ordered his army to Aquileia and had started through Illyria for Macedonia, - the thing was at first thought incredible, and the senators all supposed that he had probably commenced hostilities against the Carni or the Histri. Then the Aquileians observed that they knew nothing further and would not venture to assert anything more than that corn for thirty days had been given to the soldiers and that guides who knew the routes from Italy to Macedonia had been found and taken with the army. The senate were intensely indignant at the consul's having dared to take so much upon him as to abandon his own province and trespass upon that of another, leading his army by an unknown and perilous route through strange tribes, and opening up the way for so many nations into Italy. They made a decree in a crowded House that the praetor C. Sulpicius should select three members of the senate who were to start that very day and, making their way as speedily as possible, find the consul wherever he was, and warn him not to make a hostile move against any nation without the authorisation of the senate. The commissioners selected were M. Cornelius Cethegus, M. Fulvius and P. Marcius Rex. Fears for the consul and the army prevented for the time any attention being given to the fortification of Aquileia.

[43.2]After this a deputation from the natives of both the provinces of Spain were admitted to an audience of the senate. They complained of the rapacity and oppression of the Roman magistrates,

and falling on their knees, begged the senate not to suffer the allies of Rome to be robbed and ill-treated in a more shameful manner than even their enemies were treated. There were other indignities that they complained of, but the evidence bore chiefly upon the illegal seizure of money. L. Canuleius, to whom Spain had been allotted, was instructed to appoint five recuperatores drawn from the senatorial order to try each of the individuals from whom the Spaniards demanded redress, and also to give the complainants permission to take whomsoever they pleased as counsel. The deputation were called into the senate-house and the decree was read over to them, and they were told to nominate their counsel. They named four - M. Porcius Cato, P. Cornelius Scipio, L. Aemilius Paulus, and C. Sulpicius Gallus. The recuperatores commenced with the case of M. Titinius, who had been praetor in Hither Spain during the consulship of A. Manlius and M. Junius. The case was twice adjourned, at the third sitting the defendant was acquitted. There was a difference between the deputies, those from Hither Spain chose M. Cato and Scipio as their counsel, those from Further Spain, L. Paulus and Gallus Sulpicius. The former brought P. Furius Philus, the latter M. Matienus before the recuperatores. Philus had been praetor three years previously and M. Matienus in the following year. Both were charged with very serious offences; the proceedings were adjourned and when the whole case was to be gone into again it was pleaded on behalf of the defendants that they had gone into voluntary exile, Furius to Praeneste and Matienus to Tibur. There was a rumour that the complainants were prevented by their counsel from summoning members of the nobility and men of influence, and these suspicions were increased by the action of Canuleius. He dropped the business altogether and began to levy troops, then he suddenly went off to his province to prevent any more people from being worried by the Spaniards. Although the past was thus silently effaced, the senate provided for the future by acceding to the demand of the Spaniards and making a regulation that the Roman magistrate should not have the valuing of the corn, nor compel the Spaniards to sell their twentieths at whatever price he chose, and also that officers should not be forced upon their towns for the collection of taxes and tribute.

[43.3] Another deputation from Spain arrived, who represented a new race of men. They declared themselves to be sprung from Roman soldiers and Spanish women who were not legally married. There

were over 4000 of them, and they prayed that a town might be given them to live in. The senate decreed that they should send in their own names and the names of any whom they had manumitted to L. Canuleius, and they should be settled on the ocean shore at Carteia, and any of the Carteians who wished to remain there should be allowed to join the colonists and receive an allotment of land. This place became a Latin colony and was called the "Colony of the Libertini." The African prince Gulussa, Masinissa's son, arrived in Rome simultaneously with a deputation from Carthage. Audience was granted to Gulussa first. He described the nature of the force that his father had sent for the Macedonian war and promised, should the senate require anything more, that he would supply their demands, out of gratitude for the kindness which the people of Rome had shown towards him. He then warned the senate to be on their guard against the bad faith of the Carthaginians; they had formed the design of fitting out a great fleet, ostensibly to assist the Romans against the Macedonians. When this fleet was equipped and manned they would have it in their power to choose whom they would as an enemy or an ally

[43.4] They entered the camp displaying the heads and created such a panic that if the army had been brought up at once the camp might have been taken. Even as it was, there was a general flight, and some thought that envoys ought to be sent to beg for peace. A large number of communities when they heard what had happened made their surrender. They tried to clear themselves by throwing all the blame on the madness of two men who had voluntarily offered themselves for punishment. The praetor pardoned them and immediately set out to visit other cities. Everywhere he found his orders were being carried out and his army was unmolested. The country through which he passed, and which had been so shortly before seething with unrest and turbulence, was now quiet and peaceable. This gentleness on the part of the praetor, who had curbed the temper of a most warlike nation without bloodshed, was all the more welcomed by the senate and the plebs as the war in Greece had been conducted in a most ruthless and rapacious spirit both by the consul Licinius and the praetor Lucretius. The tribunes of the plebs were perpetually holding up to odium the absent Lucretius in their speeches, though it was pleaded on his behalf that he was absent in the service of the republic. But people in those days were so ignorant

of what was going on in their vicinity that he was actually at that very time residing on his estate at Antium, and was bringing water to that town from the Loracina from his share of the spoils of the war. It is said that this work cost 130,000 ases. He also decorated the shrine of Aesculapius with pictures which had formed part of the plunder.

The general odium and disgrace which Lucretius had incurred were diverted from him to his successor, Hortensius. A deputation from Abdera arrived in Rome, and stood weeping in the porch of the senate-house and protesting that their town had been stormed and sacked by Hortensius. He had ordered them to supply 100,000 denarii and 50,000 modii of wheat, and they asked for time to send to the consul Hostilius and to Rome. Hardly had they reached the consul when they heard that their town had been taken by storm, their leaders beheaded and the rest of the population sold into slavery. The senate regarded this as a disgraceful proceeding and they made the same decree in the case of the Abderites that they had made the previous year in the case of the Coronaeans, with instructions to the praetor to announce the decree to the Assembly. Two commissioners, C. Sempronius Blaesus and Sextius Julius Caesar, were sent to restore the Abderites to freedom, and to inform Hostilius and Hortensius that the senate considered the attack upon Abdera as utterly unjustifiable, and demanded that search should be made for all who were enslaved in order that they might be set free.

[43.5]At the same time complaints were laid against C. Cassius, who had been consul the year before and was now serving as military tribune in Macedonia with A. Hostilius. The brother of the king of the Gauls, Cincibilus, headed the deputation, and charged Cassius before the senate with devastating the fields of Alpine tribes who were friendly to Rome, and carrying off many thousands into slavery. They were followed by deputations from the Carni, the Histri and the Iapydes. They informed the senate that in the first instance Cassius required them to furnish guides to direct his route while he was leading his army into Macedonia. He left them quite peaceably, his intention being apparently to make war elsewhere, and then in the middle of his march he turned back and invaded their territory, spreading everywhere bloodshed, rapine and fire, nor did they up to that moment know the consul's reason for treating them as enemies. The reply which the senate made to these deputations and to the Gaulish prince, who had left Rome, was to the effect that with regard

to the subjects of complaint, they were quite unaware that such things would happen, and if they had happened they did not sanction them. It would, however, be unjust for a man of consular rank to be indicted and condemned in his absence, when he was absent in the service of the commonwealth. When C. Cassius had returned from Macedonia, the senate would, if they wished to bring their charges against him in his presence, investigate the facts and make it their business to give them satisfaction. They did not confine themselves to a verbal reply; it was decided that two commissioners should be sent to the prince beyond the Alps and to the three surrounding tribes to make known the senate's decision. They also agreed that presents ought to be made to each of the envoys to the value of 2000 ases. To the two princes were given two gold chains five pounds in weight, five pieces of silver plate twenty pounds in weight, two horses caparisoned and their grooms with them, outfits of cavalry armour and military cloaks, and for their suites, including the slaves, wearing apparel. They requested and were allowed to purchase each ten horses and to take them out of Italy. The commissioners who accompanied the Gauls beyond the Alps were C. Laelius and M. Aemilius Lepidus; to the other communities C. Sicinius, P. Cornelius Blasio, and T. Memmius.

[43.6] There was a gathering of numerous deputations from Greece and Asia in Rome. The Athenians were the first to obtain an audience. They explained that they had sent to the consul and the praetor what ships and soldiers they had. They had, however, made no use of them, but demanded 100,000 modii of corn. Though the soil which they tilled was unproductive and even the cultivators themselves had to be fed on corn from abroad, they had nevertheless made up the amount that they should not fail in their duty, and they were prepared to supply other things which might be required. The people of Miletus mentioned that they had not furnished anything, but expressed their readiness to carry out any orders the senate might wish to give with regard to the war. The people of Alabanda stated that they had built a temple to "The City of Rome" and had instituted annual Games in honour of that deity. They had also brought a golden crown weighing fifty pounds to be placed in the Capitol as an offering to Jupiter Optimus Maximus, and 300 cavalry shields which they would hand over to whomsoever the senate might name. They requested to be allowed to place the gift in the Capitol and to offer

sacrifices. The deputation from Lampsacus, who had brought a crown eighty pounds in weight, made the same request. They explained that though they had been under the rule of Perseus and of his father Philip before him, they had revolted as soon as the Roman army appeared in Macedonia. In consideration of this and of their having given all possible assistance to the Roman commanders they made this one request that they might be admitted amongst the friends of Rome and if peace were made with Perseus they might be left out of the conditions so as not to fall again under the power of the king. A gracious answer was vouchsafed to the other deputations; in the case of the Lampsacans the praetor Q. Mucius was instructed to enrol them amongst the allied States. Each of the delegates received a present of 2000 ases. The Alabandians were told to take the shields to A. Hostilius in Macedonia.

Legates from Carthage and from Masinissa arrived simultaneously in Rome. The Carthaginians reported that they had taken down to the coast one million modii of wheat and half a million of barley, to be transported wherever the senate should order. They knew, they said, that this gift, which they regarded as a duty, was not adequate to the services which the Roman people had rendered, nor was it what they would have wished to give, but on other occasions, when both nations were in a prosperous condition, they had fulfilled the duty of loyal and grateful allies. Masinissa's representatives promised to furnish the same amount of wheat, 1200 cavalry and 12 elephants, and asked the senate to say if anything else was required, as he would supply that just as readily as what he had voluntarily offered. Thanks were accorded to the Carthaginians and to the king, and they were asked to forward the supplies they had promised to the consul Hostilius in Macedonia. Each member of the legations received a gift of 2000 ases.

[43.7]The Cretan delegates assured the senate that they had sent into Macedonia as large a body of archers as the consul had demanded. When questioned, they did not deny the number of their archers serving with Perseus was greater than that serving with the Romans. The senate, in reply to this, told the Cretans that if they were earnest and resolute in their determination to prefer the friendship of Rome to that of Perseus, the Roman senate would treat them as faithful allies. Meantime, they were to take back word to their people that it was the senate's wish that the Cretans should see to it that as many

as possible of the soldiers serving with Perseus should be recalled. With this reply the Cretans were dismissed and the Chalcidians were called in. The entrance of this deputation caused a sensation, for Micion, their leader, was brought in on a litter as he had lost the use of his feet. It was at once recognised that the business on which he had come must be of vital importance, for, afflicted as he was, he either had not thought it right to ask to be excused on the ground of health, or if he had done so, he had met with a refusal. He began by saying that there was nothing alive in him except his tongue to deplore the calamities of his native land, and then went on to enumerate the services that Chalcis had rendered to the Roman generals and their armies in the past and now in the war with Perseus. He then described the tyrannical, rapacious and brutal treatment which the Roman praetor C. Lucretius had meted out to his countrymen and the way in which L. Hortensius was actually behaving at the present moment. Though they thought it better to suffer even worse things than these, rather than abandon their allegiance, they were convinced, so far as Lucretius and Hortensius were concerned, that it would have been safer to close their gates than to admit them into the city. The cities which had shut them out were unharmed; in their own case the temples had been despoiled of their adornments and the sacrilegious plunder had been carried off by Lucretius in his ships to Antium; the persons of freemen had been hurried away into slavery; the property of the allies of Rome had been plundered and was being plundered every day. Following the precedent set by C. Lucretius, Hortensius kept his crews in billets winter and summer alike; their homes were filled with rowdy sailors, these men were living amongst them, their wives and their children, men who did not in the least care what they said or did.

[43.8]The senate decided to send for Lucretius, that he might meet his accusers and clear himself from their charges. When, however, he put in an appearance he had to listen to many more accusations than those made in his absence, and accusers now came forward of greater weight and authority in the persons of two tribunes of the plebs, M. Juventius Thalna and Cnaeus Aufidius. They not only handled him very severely in the senate, they compelled him to appear before the Assembly, and after he had been exposed to much vituperation and obloquy a day was fixed for his trial. The senate gave the following reply to the Chalcidians through the praetor Q. Maenius: "With

regard to the services which they say they have rendered to Rome, the senate is aware that they are stating what is true, and they are duly grateful to them. As to the complaints of the conduct of C. Lucretius and L. Hortensius, no one who knew that the war with Perseus and his father before him was entered upon by the people of Rome on behalf of the liberty of Greece and not that their friends and allies should suffer at the hands of their magistrates - no one who knew this could possibly imagine that such conduct was in accordance with the wish or had the concurrence of the senate. They would send a letter to L. Hortensius informing him that the acts which the Chalcidians complained of were displeasing to the senate, and whatever freemen had gone into slavery he was to make it his care that they were discovered as soon as possible and restored to freedom. The senate insisted that no member of the crews, with the exception of the captains, should be billeted in private houses." Such was the gist of the despatch sent to Hortensius. Each of the delegates received a present of 2000 ases, and carriages were hired at the public cost to convey Micion in comfort to Brundisium. When the day of trial came, the tribunes indicted Lucretius before the Assembly and demanded a fine of 100,000 ases. When the votes were taken it was found that the thirty-five tribes had unanimously found him guilty.

[43.9]In Liguria nothing of any importance took place, the enemy made no hostile movement and the consul did not take his legions into their country. As he was tolerably certain that there would be peace for that year, he demobilised the men of the two Roman legions within two months of his coming into the province. The army of the Latin allies went early into winter quarters at Luna and Pisae, and he with his cavalry visited most of the towns in his province of Gaul. Nowhere but in Macedonia was there a state of war. Gentius, however, the king of Illyria, had fallen under suspicion. The senate accordingly made an order that eight ships fully fitted out and manned should be sent from Brundisium to C. Furius, who with two ships furnished by the inhabitants was in charge of the island of Issa. Two thousand soldiers were placed on board the eight ships; they had been raised by M. Raecius, on instructions from the senate, in that part of Italy which lies opposite to Illyria. The consul Hostilius sent Appius Claudius with 4000 infantry into Illyria to protect the adjacent population. Not feeling satisfied with the troops he had brought with him, Claudius made the friendly cities furnish him with

troops, and he succeeded in arming a mixed force of 8000 men. After marching through the whole of that district he fixed his headquarters at Lychnidus, a town in Dassaretia.

[43.10]Not far from there lay the town of Uscana; its territory mostly lay in Perseus' dominions. It had a population of 10,000 and a small detachment of Cretans was garrisoned there to protect it. A secret message was sent to Claudius assuring him that if he would approach the city there were men ready to betray it to him, and it would be worth his while to do so, as he would be able to enrich not only himself and his friends but his soldiers also with the plunder. The prospect thus held out to his avaricious disposition so blinded him that he did not detain a single person amongst those who came with the message, nor did he demand hostages as a security against treachery, nor did he send anyone to ascertain the facts, nor did he insist upon an oath to guarantee the good faith of those who made the offer. He simply advanced upon the appointed day to a spot within twelve miles of the city where he encamped. At the first watch he went forward, leaving about 1000 men to guard the camp. His troops reached the city in no proper formation, spread out in a long column, and few in number, having become separated from one another through losing their way in the darkness of the night. Their carelessness increased when they saw no armed men on the walls. As soon, however, as they came within range, a sortie was made simultaneously from two gates. Above the shouts of those who were sallying forth a horrible din arose from the walls, women yelling and banging brazen vessels, whilst the air resounded with the discordant cries of a rabble of townsfolk and slaves. These appalling sights and sounds, multiplied in all directions, so unnerved the Romans that they could not withstand the first onset which burst upon them like a storm. More were killed in flight than in actual fighting, barely 2000 men, including Claudius himself, gained their camp. The distance they had to cover made it all the easier for the enemy to overtake them, wearied as they were. Appius did not even stay in his camp to rally the fugitives as they came in, though this would have saved many who were straggling through the fields. He at once took the remnant of his force back to Lychnidus.

[43.11]These and other unsuccessful operations in Macedonia were ascertained from Sextus Digitius, a military tribune who had come to Rome to offer sacrifices. The senators were afraid that still deeper

humiliation might be incurred, and they sent M. Fulvius Flaccus and M. Caninius Rebilus into Macedonia to find out what was going on and to report. The consul A. Atilius was requested to give notice that the consular elections would be held in January, and to return to the City as soon as he possibly could. In the meantime, M. Raecius was instructed to recall all the senators in Italy to Rome, except those on business of the State, and to prohibit any who were in Rome from going more than a mile from the City. All these measures were carried out. The consular elections were held on January 28, the new consuls being Q. Marcius Philippus, for the second time, and Cnaeus Servilius Caepio, and two days later the following praetors were elected: C. Decimius, M. Claudius Marcellus, C. Sulpicius Gallus, C. Marcius Figulus, Ser. Cornelius Lentulus, and P. Fonteius Capito. Four provinces in addition to the civic jurisdiction were assigned to them, viz. Spain, Sardinia, Sicily, and the command of the fleet.

Towards the end of February the commission returned from Macedonia. They described the successes which Perseus had gained and the serious alarm felt by the allies of Rome at so many cities being secured by the king. The consul's army was much reduced in numbers owing to the indiscriminate granting of furloughs in order to curry favour with the soldiers, the consul threw the blame for this on the military tribunes, the military tribunes threw it back on the consul. The senate were given to understand that they made light of Claudius' ignominious defeat; amongst those lost, it was explained, were very few Italian troops, they were mostly those who had been conscripted for the irregular force. As soon as the new consuls entered upon office they were instructed to bring up the question of Macedonia; Macedonia and Italy were assigned as their provinces. This year (B.C. 170) was an intercalary one, the additional days being intercalated two days after the Terminalia. During its course some members of the priesthood died, L. Flamininus . . . Two of the pontiffs passed away, L. Furius Philus and C. Livius Salinator. The pontiffs elected T. Manlius Torquatus in place of Furius and M. Servilius in place of Livius.

[43.12]When at the beginning of the new year the consuls consulted the senate about their provinces, it was decided that as soon as possible they should come to an agreement or else ballot for Macedonia and Italy. Before the ballot gave its decision and the question was still undecided so that personal bias could not influence

the senate, they decreed the necessary reinforcements for each province; for Macedonia, 6000 Roman infantry and 6000 raised from the Latin allies, 250 Roman and 300 allied cavalry. The old soldiers were discharged, so that for each of the Roman legions there were not more than 6000 infantry and 300 cavalry. In the case of the other consul no definite number of Roman citizens was fixed for him from which to select reinforcements, he was only ordered to raise two legions, each to consist of 5200 infantry and 300 cavalry. A larger proportion of Latin and allied troops was decreed to him than to his colleague - 10,000 infantry and 600 cavalry. Four additional legions were to be raised for service wherever they were wanted. For these legions the consuls were not allowed to select the military tribunes, the people elected them. The Latin allies were required to supply 16,000 infantry and 1000 cavalry. It was intended that this force should only be in readiness to go wherever circumstances demanded its presence. Macedonia was the main cause of anxiety. To man the fleet 1000 Roman citizens of the status of freedmen and 500 from the rest of Italy were impressed; the same number was to be raised in Sicily, and the magistrate to whom that province was allotted received instructions to see that they were shipped to wherever the fleet was stationed off Macedonia. Three thousand Roman infantry and 300 cavalry were despatched to reinforce the troops in Spain. There also the number of soldiers in each legion was fixed at 5200 infantry and 300 cavalry. The praetor who was to command in Spain was instructed to demand from the allies 4000 infantry and 300 cavalry.

[43.13]I am quite aware that the spirit of indifference which in these days makes men in general refuse to believe that the gods warn us through portents, also prevents any portents whatever from being either made public or recorded in the annals. But as I narrate the events of ancient times I find myself possessed by the ancient spirit, and a religious feeling constrains me to regard the matters which those wise and thoughtful men considered deserving of their attention as worthy of a place in my pages. At Anagnia two portents were announced this year: a fiery torch had been seen in the sky and a cow had spoken; the cow was being fed at the public cost. At Menturnae also the appearance of the sky was as though it was on fire. At Reate there was a shower of stones. At Cumae the Apollo in the citadel shed tears for three days and three nights. Two temple custodians in the City of Rome announced portents; one stated that

a crested snake had been seen by several persons in the Temple of Fortune; the other declared that two distinct portents had appeared in the Temple of Fortuna Primigenia on the Quirinal, a palm tree sprang up in the temple precinct and a rain of blood had fallen in the daytime. There were two portents which were not taken into consideration, one because it occurred on private, the other on foreign soil. The former was reported by T. Marcius Figulus, a palm tree had sprung up in the inner court of his house; the latter by L. Atreus who stated that in his house at Fregellae a spear which he had bought for his soldier son was in flames for more than two hours in broad daylight, but no part of it was consumed by the fire. The Keepers consulted the Sacred Books about those portents which affected the State and gave the names of the deities to be propitiated. They directed that the expiatory sacrifices should consist of forty of the larger victims and be performed by the consuls; all the magistrates were to join in offering similar sacrifices at every shrine; there were to be special intercessions and the people were to wear chaplets of bay. These directions were carefully carried out.

[43.14]Then notice was given of the election of censors. Some of the leading men in the commonwealth were candidates, such as C. Valerius Laevinus, L. Postumius Albinus, P. Mucius Scaevola, M. Junius Brutus, C. Claudius Pulcher, and Tiberius Sempronius Gracchus. The two latter were elected censors by the people of Rome. Though, owing to the Macedonian war, greater care than usual was being shown in the raising of new troops, the consuls complained of the plebs in the senate, the younger men were avoiding enlistment. The two praetors C. Sulpicius and M. Claudius put forward the case for the plebs. The difficulty was due to the consuls, not because they were consuls, but because they were popularity-hunting consuls, they made no man a soldier against his will. That the senate might see how true this was, they, the praetors, though they had less power and authority, were prepared, if the senate approved, to carry the enlistment through. The senate quite approved and the praetors were entrusted with the task, not without some insulting remarks from the consuls. In order to help them the censors announced in a meeting of the Assembly that they should make it a rule in their assessment that in addition to the oath taken by all the citizens, the following questions must be answered: "Are you under 46 years of age? Have you come forward to be enrolled as

required by the edict of the censors, C. Claudius and Tiberius Sempronius? As long as these censors are in office, will you, whenever troops are being raised, come forward to be enrolled if you have not already been made a soldier?" Moreover, owing to a report that many men in the legions in Macedonia were absent from the army, the commanders having granted furloughs for all sorts of reasons, that they might be popular, they issued an edict requiring all soldiers who had been conscripted in the consulship of P. Aelius and C. Popilius or subsequently, and were at the time in Italy, to return to Macedonia within thirty days after making their returns to the censors. Those who were under the guardianship of father or grandfather must give in the names of these to the censors. The censors would investigate the reasons for discharge, and where men had been discharged before serving their time simply as a favour they should order them to resume their place in the ranks. This notice of the censors was published in all the towns throughout Italy, and such a multitude of men of military age flocked to Rome that the City was inconveniently crowded by the unusual influx.

[43.15]In addition to the troops which had to be raised as reinforcements, four legions were enrolled by the praetor C. Sulpicius and the enrolment was completed within eleven days. The consuls now balloted for their provinces; the praetors had already done so, on account of the jurisdiction. The civic jurisdiction fell to C. Sulpicius, the alien to C. Decimius, Spain to M. Claudius Marcellus, Sicily to Ser. Cornelius Lentulus, Sardinia to P. Fonteius Capito, the command of the fleet to C. Marcius Figulus. Of the two consular provinces, Italy fell to Cn. Servilius and Macedonia to Q. Marcius, and he started as soon as the Latin Festival was over. On Caepio's consulting the senate as to which two out of the four newly-raised legions he should take with him into Gaul, the senate decreed that C. Sulpicius and M. Claudius should give the consul what legions they thought fit out of those they had raised. The consul was highly indignant at being thus subjected to the will of the praetors, and after dismissing the senate stood at the praetors' tribunal and demanded that in accordance with the senate's resolution they should give him two legions. The praetors left the consul at liberty to select them. The censors next revised the roll of the senate. They chose M. Aemilius Lepidus as leader of the House, and they were the third censors who did so. Seven names were removed from the roll. In revising the

assessment of the citizens they discovered from the returns how many men from the army in Macedonia were absent from the standards and they compelled them to return to duty. They investigated the grounds of dismissal and in all cases where there did not appear so far any just reason for it they required the following question to be answered on oath: "Will you pledge yourself without reserve or evasion to return to Macedonia in obedience to the edict of the censors, C. Claudius and Tiberius Sempronius?"

[43.16]The revision of the register of the equites was strict and drastic. Many were degraded from the order, and this action was resented by the whole body of the equites. The ill-will thus evoked was further aggravated by an edict which the censors published forbidding anyone who had leased the public taxes or private contracts from the censors C. Claudius and Tiberius Sempronius from attending the present sale or becoming partner or associate in any transaction there. In spite of their frequent protests, the former tax-farmers had been unable to induce the senate to place any restrictions on the censorial powers. At last they got a tribune of the plebs, P. Rutilius, who was hostile to the censors on personal grounds, to champion their cause. The censors had ordered a client of his, a freedman, to pull down a wall which faced a public building in the Via Sacra, because it had been built on ground belonging to the State. The owner appealed to the tribunes. As no one but Rutilius interposed his veto the censors sent men to distrain his goods and imposed a fine. A sharp dispute arose, and when the former tax-farmers had recourse to the tribune, a measure was suddenly brought forward by this one tribune providing that the public and private contracts which had been leased out by C. Claudius and Tiberius Sempronius should be cancelled and all the business done over again, so that everybody might have an equal chance to tender for and work the lease. The tribune fixed a day for the discussion of this proposal in the Assembly. When he appeared, the censors stood forward to oppose the measure. There was silence while Gracchus was speaking, but Claudius met with interruptions and disturbance, and he ordered the usher to call for silence that he might be heard. The tribune declared that by doing this he had withdrawn the Assembly from his control and impugned his authority, and at once left the Capitol where the Assembly had met. The next day he created a serious disturbance. First of all, he pronounced the property of Tiberius

Gracchus to be forfeited to the gods because in fining and distraining upon a man who had appealed to a tribune, he had not yielded to his veto and had impugned his authority. He formally impeached C. Claudius because he had withdrawn the Assembly from his control, and he declared that he should bring both censors to trial for high treason, and requested C. Sulpicius to convene the citizens in their centuries to hear and adjudicate on the case. The censors offered no opposition to the people passing judgment on them as soon as possible, and September 24 and 25 were fixed upon as the days for the trial. On this they went up to the Hall of Liberty, sealed up the civic registers, closed the office, dismissed their staff and gave out that they would not deal with any public business whatever until the people had given their verdict. The case of Claudius was taken first. Eight out of the twelve centuries of equites and several other centuries of the first class sentenced him to a fine. No sooner was this known than the leading patricians put off their gold rings in the sight of the people and laid aside their robes, so that they might make a suppliant appeal to the plebs. It is said, however, that the change of mind was mainly due to Tiberius Gracchus. When shouts arose from the plebs on all sides that "Gracchus was in no danger," he took a solemn oath and declared that if his colleague were condemned he would not wait for his own trial, but would be his companion in exile. So little hope, however, had Claudius of acquittal that only eight centuries were wanted to secure his condemnation. Claudius was acquitted, and then the tribune said that he would not keep Gracchus waiting any longer.

[43.17]The Aquileians sent to Rome during the year to ask that the number of colonists might be augmented, and the senate ordered a list to be made of 1500 households. The commissioners who were to settle these colonists were T. Annius Luscus, P. Decius Subulo, and M. Cornelius Cethegus. The two members of the mission sent to Greece, C. Popilius and Cnaeus Octavius, published, first at Thebes and then through all the cities of the Peloponnese, the order of the senate that no one should make any contribution to the Roman commanders other than what the senate had fixed. This order created confidence for the future, for people knew that they were relieved from the incessant drain of the burdens and expenses which had been imposed upon them. They then addressed the council of the Achaeans which had assembled to meet them at Aegium in a most

friendly spirit, and met with an equally friendly reception, and they left that loyal and faithful nation completely reassured as to their future position. From there they passed on to Aetolia. Though there was as yet no actual fighting, there was an atmosphere of universal mistrust and mutual recrimination. Under these circumstances they demanded hostages, but were unable to effect a settlement. From there they proceeded to Acarnania; a council was assembled at Thyrium to meet them. There, too there was a party conflict; some of their leaders asked that garrisons might be introduced into their cities to check the madness of those who were trying to draw them to the side of Macedonia; others objected that it would be a disgrace for peaceable and friendly cities to be subjected to the same humiliation as those captured in war. This objection was considered a reasonable one. The commissioners returned to Hostilius at Larisa; Octavius he kept with him, Popilius he sent with 1000 soldiers into winter quarters in Ambracia.

[43.18](B.C. 170-69) In the early days of winter Perseus did not venture beyond his frontiers for fear of the Romans attempting an invasion while he was absent from his kingdom. About mid-winter, however, when snow had blocked the mountain passes on the side of Thessaly, he thought it a good opportunity for crushing the hopes and spirits of his neighbours, so that there might be no danger from them while his attention was wholly devoted to the war with Rome. Cotys was a guarantee of peace on the side of Thrace, and Cephalus, since his sudden defection from Rome, on the side of Epirus, and the late war had tamed the courage of the Dardanians. Macedonia, as Perseus saw, was only open to attack from Illyria. The Illyrians were becoming restless themselves and they were allowing a passage to the Romans; Perseus thought, therefore, that if he crushed their next neighbours, King Gentius, who had long been wavering, might become his ally. Accordingly he marched to Stuberra with a force of 10,000 infantry, some of whom belonged to the phalanx, 2000 light-armed troops and 500 cavalry. Having taken up corn enough to serve for several days and leaving orders for the siege engines to follow, he encamped after a three days' march near Uscana - the largest city in the land of Penestia. Before he had resort to force, however, he sent emissaries to tamper with the loyalty of the officers of the garrison - this was a Roman detachment with some Illyrian troops - or failing that, to work on the feelings of the townsmen. They brought back

word that there was no thought of peace, so he began the attack and tried to capture the place by a close investment. Day and night, without any intermission, the troops relieved each other, some bringing up scaling-ladders to the walls, others applying fire to the gates. The defenders, however, held out against this storm of assailants; they expected that the Macedonians would not be able much longer to stand the winter in the open, and they hoped that the exigencies of the war with Rome would make it impossible for them to linger there. When, however, they saw the vineae brought up and the movable towers in motion their resolution gave way. Apart from the fact that their strength was no match for that of the enemy, they had not sufficient supplies either of corn or anything else, for they had not expected a siege. As further resistance was now hopeless, C. Carvilius Spoletinus and C. Afranius were sent by the Roman garrison to ask Perseus to allow them to depart with their arms and belongings; if this were refused, they were to ask him to guarantee them their life and liberty. The king's promise was more generous than his performance, for after telling them to depart and take what they possessed with them, the first thing he did was to deprive them of their arms. After the departure of the Romans the Illyrian cohort, 500 strong, and the Uscanians all surrendered themselves and their city. Perseus posted a garrison there and removed the whole of the population, almost equal in numbers to an army, to Stuberra. The Roman troops, numbering 4000, with the exception of their officers were distributed amongst different cities for safe-keeping; the Uscanians and Illyrians were sold as slaves to the Penestae.

[43.19]After this he led his army back to Oaeneus with the intention of becoming master of the place, as its situation would be a convenience to him as affording amongst other things a passage to Libeates, where Gentius had his seat of government. Whilst he was marching past a strongly held fort called Daudracum, some who knew the country assured him that nothing would be gained by the capture of Oaeneus if Daudracum was not in his power; its position was more advantageous in every way. When he had brought up his army, the whole of the garrison surrendered. He was much elated at gaining the place so much more quickly than he had expected, and as he saw what terror the approach of his army created, he went to reduce eleven other fortified posts in the same way. Very few had to be stormed; the rest surrendered voluntarily, and 1500 Roman

soldiers who were stationed in these forts were made prisoners. Carvilius Spoletinus had been most useful to him in negotiating the surrenders by asserting that he and his men had not been treated cruelly or harshly. Then he arrived before Oaeneus. This place could only be taken by a regular siege; it was considerably stronger than the other places both in the number of its defenders and in the strength of its fortifications. It is encircled on one side by the river Artatus, and on the other by a very lofty and almost impassable mountain. These advantages gave the townsmen courage to resist.

Perseus completely invested the town and began to construct a raised way against the upper part of it which was to overtop the walls. While this work was being completed there was continual fighting and sorties in which the townsmen tried to defend their own walls and at the same time impede the progress of the enemy's siege-works. A large part of the population were carried off by the various accidents of war, and the survivors were rendered useless through their wounds and the incessant toil and exertions by day and night alike. As soon as the raised way was connected to the walls the king's cohort, who bear the title of "nicatores," passed over it, and at the same time the walls were scaled at many points and a simultaneous assault was delivered on all sides of the city. All the adult males were put to the sword, their wives and children were placed under guard and the rest of the booty went to the soldiers. After this victory he returned to Stuberra and sent Pleuratus, the Illyrian, who was a refugee in his suite, and Adaeus, a Macedonian from Beroea, on a mission to Gentius. Their instructions were to give an account of Perseus's summer and winter campaigns against the Romans and the Dardanians, and also the results of his winter expedition in Illyria. They were to urge Gentius to form a league of friendship with him and the Macedonians.

[43.20] These envoys crossed the summit of Mount Scordus and made their way through the desert solitudes in Illyria, which the Macedonians had created in their systematic devastations to prevent the Dardanians from finding an easy passage into either Illyria or Macedonia. It was with the utmost difficulty that they at last reached Scodra. The king was at Lissus. He invited them there and lent a favourable ear to what they had been instructed to say. His reply, however, was one of noncommittal; he said that it was not the will to join in the war against Rome that was lacking; the greatest lack of all

was the lack of money; this prevented him from attempting what he wished. This reply was brought to the king just when he happened to be selling the Illyrian prisoners. He at once sent the negotiators back again, together with Glaucias, one of his bodyguard, but without a mention of money; though without this the needy barbarian could not have been dragged into the war. After devastating Ancyra, Perseus led his army into Penestia and secured Uscana, and all the fortified places in its neighbourhood which he had captured, with garrisons, after which he returned into Macedonia.

[43.21]L. Coelius was commanding in Illyria. He did not venture to make any movement while the king was in those parts, but after his departure he attempted to recover Uscana from the Macedonians who were garrisoned there. He was, however, repulsed, and a large number of his men were wounded, and he led his force back to Lychnidus. A few days afterwards he sent M. Trebellius Fregellanus with a fairly strong force into Penestia to receive the hostages from those cities which had remained loyal, and then to go on to the Parthini; they, too, had undertaken to furnish hostages. He obtained them from both nations without trouble. Those from the Penestae were sent to Apollonia; those from the Parthini to Dyrrhachium, better known to the Greeks of that day as Epidamnus. Appius Claudius was eager to wipe out the disgrace of his defeat in Illyria and proceeded to attack a stronghold in Epirus. He had with him contingents of Chaonians and Thesprotians, which with his Roman army amounted to 6000 men. The attempt was a complete failure, as Clenas who had been left there by Perseus had a strong force for defence.

Perseus advanced to Elimea and offered the purificatory sacrifices for his army in its neighbourhood. He then marched to Stratus at the call of the Epirots. Stratus was at that time the strongest city in Aetolia. It lies beyond the Ambracian Gulf near the Inachus. Owing to the narrowness and roughness of the roads, Perseus took a comparatively small force with him - 10,000 infantry and 300 cavalry. In a three days' march he reached Mount Citium which, owing to the deep snow, he had great difficulty in crossing, and only after much trouble was he able to find a position for his camp. Resuming his march, more because he could not stay where he was than because the road or the weather made progress tolerable, he encamped the next day, after much hardship and suffering, especially among the

animals, at a temple sacred to Jupiter, called Nicaeum. From there he made a very long march to the River Arathus. The depth of the river necessitated his remaining there until a bridge could be built. After his troops had crossed the river he advanced a day's march and met Archidamus, an Aetolian magnate, through whom Stratus was to be betrayed.

[43.22]He encamped on the frontier of Aetolia and the following day appeared before Stratus. Forming his camp near the Inachus, he waited in the expectation that the Aetolians would come in crowds from all the gates and make terms with him. He found the gates shut, and on the very night of his arrival a Roman detachment under C. Popilius had been admitted within the city. As long as Archidamus was in the city he had sufficient influence to compel the aristocratical party to invite the king, but after he had left to meet him, they showed less activity and gave the opposite party an opportunity of calling in Popilius from Ambracia with 1000 infantry. Dinarchus, too, the commandant of the Aetolian cavalry, came in just at the right moment with 600 infantry and 100 cavalry. It was clear that he had gone to Stratus with the intention of supporting Perseus and then changing his mind with the change of circumstances joined the Romans whom he had come to oppose. Surrounded by such fickle people, Popilius neglected no proper precaution. He at once took into his own hands the keys of the gates and the defence of the walls; he removed Dinarchus and his Aetolians and also the fighting force of Stratus into the citadel ostensibly to defend it. Perseus attempted to hold conversations from the hills which looked down on the upper part of the city, but when he found that their determination was unshaken, and that they even prevented his nearer approach by hurling missiles at him, he withdrew to a spot five miles from the city on the side of the River Petitarus where he fixed his camp. Here he held a council of war. Archidamus and the Epirot refugees were for his staying there, but the Macedonian leaders gave it as their opinion that he ought not to fight against the inclemency of the season, with no reserve of supplies, for the besiegers would suffer from the effects of scarcity sooner than the besieged. What alarmed Perseus most was that the enemy's winter quarters were not far away, and he shifted his camp to Aperantia. Archidamus had great weight and influence with that nation and Perseus's presence among them was universally

welcomed. Archidamus himself was appointed their governor and furnished with a force of 800 men.

[43.23]The king's return to Macedonia inflicted as much suffering on both man and beast as they had endured in the advance upon Stratus. However, the report of Perseus's march to that city was sufficient to make Appius abandon the siege of Phanote. On his retreat he was followed up by Clenas with a body of vigorous and untiring troops to the almost impassable spurs of the mountain range, and 1000 of his men were killed and 200 made prisoners. Appius struggled through the pass, and remained for a few days in camp in what is known as the Plain of Meleon. Meanwhile Clenas, who had been joined by Philostratus commanding a force of Epirots, invaded the district round Antigonea. The Macedonians went out to devastate the country and Philostratus with his cohort formed an ambush in a darkly overshadowed spot. When the troops in Antigonea hurried out to attack the scattered plunderers, the latter fled and carried their pursuers headlong into the hollow where the ambush was set; 1000 were killed and about 100 made prisoners. As they had been everywhere successful, they moved their camp near to Appius's permanent encampment, to prevent the Roman army from inflicting any injury on the cities which were friendly to them. Appius had been wasting his time in this locality; he sent home the Chaonians and all the Epirots who were with him; returned to Illyria with his Italian soldiers; sent his men into winter quarters in the different cities, and then returned to Rome to offer sacrifices. Perseus recalled 1000 infantry and 200 cavalry from Penestia and sent them to garrison Cassandrea. The envoys who had been sent again to Gentius returned with the same reply, but Perseus persisted in sending fresh envoys time after time; he quite saw what a valuable support he would be to him, but he could not bring himself to spend money over a thing which was in every way of the utmost importance.

BOOK 44: PYDNA AND THE FALL OF MACEDONIA

[44.1]At the beginning of the following spring, the consul Q. Marcius Philippus arrived in Brundisium with the 5000 men who were to reinforce his legions. M. Popilius, an ex-consul, and a number of young men of equally noble birth, followed the consul as military tribunes for the legions in Macedonia. C. Marcius Figulus, who was

to command the fleet, reached Brundisium at the same time, and he and the consul left Italy together. The following day they made Corcyra, the next day Actium, the seaport of Acarnania. The consul landed at Ambracia and proceeded by land to Thessaly. Figulus sailed past Leucatas and entered the Gulf of Corinth. Leaving his ship at Creusa he hurried on through the middle of Boeotia - a one day's march for a lightly-equipped soldier - to join the fleet at Chalcis. A. Hostilius was at the time in a camp near Palaepharsalus in Thessaly. He had not fought any important action but he had checked the licence and disorder of his soldiers and brought them up to a state of complete military efficiency, and he had been consistently honourable in his conduct towards the allies and protected them from all injustice and oppression. On hearing of the arrival of his successor he made a careful inspection of the arms, the men and the horses, and went to meet the consul with his army in complete equipment. Their first meeting was quite in accord with their rank and their character as Romans, and subsequently they worked in perfect harmony as long as the proconsul stayed with the army.

A few days later the consul addressed his troops. He first alluded to Perseus's contemplated assassination of his father, and his actual murder of his brother, and then went on to describe how, after his crimes had secured him the crown, he had recourse to poisoning and bloodshed; how he laid an infamous plot against Eumenes, inflicted injuries against the people of Rome, and plundered the cities of the allies of Rome in violation of the existing treaty. He would find out in the ruin of his fortunes how hateful all this conduct was to the gods, for the gods bestowed their favour on natural affection and honourable dealing; it was by these that the Roman people gained their lofty position in the world. He next drew a comparison between the strength of Rome, embracing as she does the world, and the strength of Macedonia, army against army. "How much greater," he exclaimed, "were the forces of Philip and Antiochus, and yet they were shattered by armies no stronger than ours today."

[44.2]After kindling the spirits of his men by speeches of this kind, he consulted his staff on the strategy of the war. C. Marius, the praetor, who had taken over the command of the fleet, was also present. They decided not to waste any more time in Thessaly, but to go forward at once into Macedonia, and the praetor was to make a naval attack on the enemy's coast at the same time. The consul issued

orders for the soldiers to take a month's supply of corn. Ten days after taking over the command of the army he broke up the camp, and at the end of the first day's march he called the guides together and told them to explain to the council what route each of them would choose. After they had withdrawn he asked the council to say which they thought best. Some preferred the route through the Pythian Pass; others were in favour of the road over the Cambunian Range which the consul Hostilius had taken the previous year; others again chose the road by Lake Ascuris. All these routes had a considerable section in common; the further discussion was therefore adjourned until they reached the point where they began to diverge. From there he marched into Perrhaebia and went into camp between Azorus and Doliche, to hold a second consultation as to the best route to take. During this time Perseus had heard that the enemy were approaching, but did not know which route they were taking. He decided to occupy all the passes, and sent 10,000 light infantry under Asclepiodotus to hold a peak in the Cambunian Range - its local name is Volustana. At a fortified place above Lake Ascuris, called Lapathus, Hippias with 12,000 Macedonians was posted to defend the pass. Perseus himself with the rest of his force formed an entrenched camp at Dium. And here it would almost seem as if his reasoning faculties were benumbed and he was destitute of all resource, for he used to start from his camp at Dium with an escort of light cavalry, and gallop to Heraclea or to Phila, returning at the same speed to Dium.

[44.3]In the meanwhile the consul had made up his mind to march through the pass near Ottolobus, where as already stated the king's forces were; 4000 men were nevertheless sent on in advance to occupy suitable positions. They were under the command of M. Claudius and Q. Marcius, the consul's son. The whole of the force followed very soon afterwards. The road, however, was so steep and rough and stony that the light troops in advance had, with great difficulty, covered only fifteen miles when they formed their camp and rested at a place called Dierum. On the following day they advanced seven miles and after seizing some rising ground not far from the enemy's camp, they sent word to the consul that they had reached the enemy, and had established themselves in a safe and extremely advantageous position, so that he might follow at such speed as he could. The messenger found the consul at Lake Ascuris

in a state of anxiety about the difficulties of the route upon which he had entered and also about the fate of those few troops whom he had sent in advance to the positions occupied by the enemy. He was greatly relieved at hearing the message sent him, and marching on with his main body reunited the whole of his force and encamped in an admirable position on the slopes of the hill already occupied. Its height was such that it commanded a view not only of the enemy's camp, which was not more than a mile distant, but of the whole of the country up to Dium and Phila and the far-extended line of the sea coast. The soldiers' spirits rose when they saw the whole weight of the war, the entire military strength of the king and the hostile country so near them. They pressed the consul to lead them at once against the enemy, but he allowed them one day's rest after the toils of the march. The next day, leaving a detachment to guard the camp, he led them out to battle.

[44.4]Hippias had recently been sent by the king to guard the pass, and as soon as he caught sight of the Roman camp on the hill he prepared his men for battle and marched to meet the enemy's column as it advanced. The Romans went into the fight in light equipment; the enemy force, too, consisted of light infantry; these troops are the readiest to commence an action. When the two bodies met they at once discharged their missiles; many wounds were inflicted in their random charges, a few were killed. The following day they engaged in a more exasperated temper and in great strength, and had there been more space in which to deploy their lines a decisive action might have been fought. The summit of the mountain narrows into a wedge-shaped ridge which hardly allows a front to be formed of three men abreast. So while the actual fighting was carried on by a few, the rest, especially the heavy infantry, stood and watched it. The light infantry were able to run forward through the dips in the ridge and attack the flanks of the enemy's light infantry, both where the ground was favourable and where it was not. Night put an end to the battle in which more had been wounded than killed.

The next day the Roman commander was at a loss what to do. To stay on the bare mountain height was impossible; it was equally impossible for him to retreat without loss of honour and even without danger should the enemy attack him from the higher ground. There was only one course left, to carry through the adventure with the same rashness with which he had entered upon it; a policy which

the result sometimes proves to be a wise one. Matters had come to this - if the consul had had an enemy like the old kings of Macedonia he might have incurred a crushing defeat. Whilst, however, Perseus was riding with his cavalry along the coast at Dium and heard twelve miles away the noise and clamour of the fighting, he did not strengthen his line by sending fresh men to replace those who had borne the burden of the combat, nor, what was most important of all, did he himself appear on the field. And yet the Roman commander, more than sixty years old and very stout, was discharging personally all the duties of a soldier with unflagging energy. To the very last he showed the same splendid audacity as he had at the beginning. Leaving Popilius to hold the summit he made preparations to cross the ridge and sent men to clear a way where before there was not even a track. Attalus and Misagenes with their two contingents were told off to protect the pioneers. The cavalry and baggage formed the front part of the column, the consul with his legions followed.

[44.5]It is impossible to describe the toil and difficulty they experienced in descending the mountain, with the baggage and animals and their packs perpetually falling. They had hardly gone four miles when the one thing they desired above all else was to return if possible to their starting point. The elephants caused almost as much confusion in the line as the enemy might have done; when they came to places which could not be crossed they flung their drivers off and created great alarm, especially among the horses, by their appalling roar, until a plan was devised for getting them across. The steepness of the slope was measured and two long stout poles were firmly fastened in the ground at the bottom of it somewhat wider apart than the breadth of the animal. On the top of the poles a cross-beam was fastened and with their ends resting on this beam, barks 30 feet long were fastened together so as to form a bridge, and then covered with earth. A short distance away another similar bridge was constructed, and then a third, and so on wherever the descent was precipitous. The elephant went from the solid ground on to the bridge, and just before he reached the lower end of it the poles were cut away and the bridge subsided down to the beginning of the next bridge below it. The elephants were thus compelled to slide quietly down, some on their feet, some on their haunches. When the level of the next bridge

was reached. the lower end was made to fall in the same way and the elephants were carried down until they reached more level ground.

The Romans advanced little more than seven miles that day. Very little of this was done on their feet; their mode of progression was for the most part to roll down with their arms and the other things they had to carry in a most uncomfortable and painful manner; so much so indeed that even their general himself who was responsible for the expedition admitted that the entire army could have been annihilated by a small body of assailants. At nightfall they came to a small plain shut in on all sides. They had at last reached a place which afforded them a sure foothold, but they had not much time for looking round and seeing how exposed the position was. The next day they had to wait in this valley for Popilius and the detachment left with him, and these men, though the enemy nowhere threatened them, found a most troublesome enemy in the difficulties of the descent. The army, once more united, marched the next day through the pass called by the natives Callipeuce. From there the march was as rough and difficult as before, but they had learnt by experience and were in a more hopeful mood because the enemy nowhere showed himself, and they were approaching the sea. When they had descended into the level country between Heracleum and Libethrum, they formed their camp. The greater part of the infantry were on rising ground; that part of the plain where the cavalry had their tents was enclosed with the rest by the rampart.

[44.6]The king was having his bath when news was brought of the approach of the enemy. On hearing it he sprang in a panic from his seat and rushed out, exclaiming that he was conquered without a battle. Amidst distracted plans and contradictory orders he sent two of his "friends", the one to Pella to throw into the sea the treasures that were stored at Phacus, the other to burn the fleet. He recalled Asclepiodotus and Hippias and their troops from the places they were occupying, and left all the approaches to Macedonia open to the enemy. All the gilded statues were carried off from Dium to prevent their falling into the hands of the enemy, and the inhabitants were forced to remove to Pydna. Thus what might have been thought recklessness on the part of the consul in advancing to a place from which he could not retreat, had the enemy chosen to stop him, was actually made to look like a carefully-planned-out act of daring. The Romans had two passes through which they might emerge from their

present position: one through Tempe into Thessaly, the other past Dium and into Macedonia; and both were held by the king's troops. If, therefore, there had been an intrepid general who could have held out for ten days against what at first sight looked like a steadily advancing danger, there would have been no retreat open to the Romans through Tempe into Thessaly, nor any possibility of carrying supplies through; for the pass of Tempe is a difficult one to traverse, even if it is not occupied by an enemy. In addition to the narrowness of the road which for five miles affords scanty footing for a loaded animal, there are on both sides sheer cliffs, so precipitous that you cannot look down without feeling dizzy. The noise and depth of the Peneus flowing through the middle of the ravine adds to the stern and forbidding effect. This district, so strong by nature, was held by detachments of the king's troops at four different places. One was posted at the mouth of the pass at Gonnus; a second in Condylus, an impregnable stronghold; a third at Lapathus, which they call Charax; a fourth on the road itself in the middle of the narrowest part of the valley. where ten men could easily make a successful defence.

The conveyance of supplies and their own return through Tempe were thus alike cut off, and they would have had to make their way back to the mountains over which they had come. They had escaped the observation of the enemy before; they could not do so now with his troops posted on the commanding heights, and the difficulties they had experienced destroyed all hopes. There was no course left in this rash adventure but to go through the midst of the enemy and enter Macedonia by way of Dium, and this, if the gods had not deprived the king of his reason, would have been a task of enormous difficulty. The spurs of Mount Olympus leave only a width of a mile between the mountain and the sea. Half this space is filled by the broad marshes at the mouth of the Baphyrus, the rest of the ground is taken up either by the temple of Jupiter or the town itself. The little bit that is left could be blocked by a small fosse and rampart, and there was such a quantity of stones and growing timber at hand that a wall might have been thrown up and turrets raised. Blinded by the suddenness of the danger, the king took none of these things into consideration; he withdrew his garrisons, leaving every place open and defenceless, and fled to Pydna.

[44.7]The consul saw in the foolish and cowardly conduct of his enemy the strongest assurance of safety for himself and his army, and

the bright prospect of final victory. Orders were despatched to Sp. Lucretius at Larisa to seize the strongholds round Tempe which the enemy had abandoned and Popilius was sent forward to reconnoitre the passes round Dium. When he found that the country was clear in every direction he made an advance, and after marching for two days arrived at Dium. He ordered the site for the camp to be marked out just under the temple in order that the sanctity of the place might in no way be violated. On entering the place he found that though it was not large, it was, nevertheless, so adorned by public buildings and a whole multitude of statues, and so strongly fortified, that it was difficult to believe there was not some sinister motive behind the purposeless abandonment of so much wealth and splendour. After spending a day in thoroughly exploring the neighbourhood, he resumed his advance, and in the belief that there would be an abundant supply of corn in Pieria, he marched as far as the River Mityes, and the next day to Agassae. The population surrendered this city to him, and with the view of making a favourable impression on the rest of the Macedonians, he contented himself with demanding hostages, and left the city without stationing a garrison and promised that the citizens should be exempt from tribute and live under their own laws. Another day's march brought him to the River Ascordus, where he encamped. As he found that the further he advanced from Thessaly the greater was the difficulty of obtaining any supplies whatever, he returned to Dium, and there was no doubt in any one's mind as to what they would have had to endure had they been cut off altogether from Thessaly, seeing that it was not safe to march any distance from it. Perseus assembled all his troops together with their generals and severely censured the commandants of the garrisons - Asclepiodotus and Hippias most of all. He declared that they had handed over the keys of Macedonia to the Romans, but no one could more justly be charged with this than he himself. When the consul descried the fleet out at sea, he quite hoped that the ships were bringing supplies, for provisions were extremely dear and the supply almost exhausted. But from those who had already entered the harbour he learnt that the cargo ships had been left behind at Magnesia. Whilst he was quite undecided what to do - for he had to contend with the difficulties of the situation quite apart from anything the enemy might do to aggravate them - a despatch was handed to him from Sp. Lucretius stating that he had discovered that the strongholds commanding the Vale of Tempe, and those in the

neighbourhood of Phila, all held abundance of corn and of other necessary supplies.

[44.8]The consul was highly delighted at receiving this information and marched from Dium to Phila that he might strengthen the garrison there, and at the same time distribute the corn to his men, as the supplies were being so slowly brought up. This movement provoked comments that were anything but favourable. Some said he retreated through fear of the enemy, because had he remained in Pieria he would have had to give battle. Others held that unaware of the perpetual changes of fortune, he had thrown away the opportunities which presented themselves, and let slip through his fingers what it would very soon be impossible to recover. For the evacuation of Dium woke up his enemy, who then for the first time realised the necessity of recovering what had been previously lost through his own fault. When he heard of the consul's withdrawal he returned to Dium, repaired what had been shattered and devastated by the Romans, replaced the battlements which had been shaken down, strengthened the walls in all directions, and finally fixed his camp on the other bank of the Elpeus. This river is an extremely dangerous one to cross, and it served to protect his camp. It rises on Mount Olympus; in summer it is a narrow brook, but when swollen by winter storms it rushes over the boulders in enormous eddies and washing out the earth at the bottom and carrying it down to the sea, it forms whirlpools of great depth, and the continual hollowing out of the channel leaves the banks precipitous on both sides. As Perseus believed that the advance of the enemy would be arrested by this river, it was his intention to spend the rest of the summer there. The consul meanwhile sent Popilius with 2000 men from Phila to Heracleum. This place is about five miles distant from Phila, midway between Dium and Tempe, and is situated on a cliff which overhangs the river.

[44.9]Before Popilius commenced the assault he tried to induce the magistrates and chief men to test the good faith and clemency of the Romans rather than their strength. His appeal made no impression on them, for they saw the fires in the distance of the king's camp by the Elpeus. Then the attack began in earnest, by land and also by sea - for the fleet was moored off the shore - by direct assault as well as by the employment of siege engines and artillery. Some young Romans turned their training in the Circus games to purposes of war

and in this way seized the lowest portion of the wall. Before the extravagant habit came in of filling the Circus with animals from all parts of the world, it was the practice to devise various forms of amusement, as the chariot and horse races were over within the hour. Amongst other exhibitions, bodies of youths, numbering generally about sixty, but larger in the more elaborate games, were introduced fully armed. To some extent they represented the maneuvers of an army, but their movements were more skilful and resembled more nearly the combat of gladiators. After going through various evolutions, they formed a solid square with their shields held over their heads, touching one another; those in the front rank standing erect; those in the second slightly stooping; those in the third and fourth bending lower and lower; whilst those in the rear rank rested on their knees. In this way they formed a *testudo*, which sloped like the roof of a house. From a distance of fifty feet two fully armed men ran forward and, pretending to threaten one another, went from the lowest to the highest part of the *testudo* over the closely locked shields; at one moment assuming an attitude of defiance on the very edge, and then rushing at one another in the middle of it just as though they were jumping about on solid ground.

A *testudo* formed in this way was brought up against the lowest part of the wall. When the soldiers who were mounted on it came close up to the wall they were at the same height as the defenders, and when these were driven off, the soldiers of two companies climbed over into the city. The only difference was that the front rank and the files did not raise their shields above their heads for fear of exposing themselves; they held them in front as in battle. Thus they were not hit by the missiles from the walls, and those which were hurled on the *testudo* rolled off harmlessly to the ground like a shower of rain from the roof of a house. Now that Heracleum was taken, the consul encamped there, apparently with the intention of marching to Dium and, after driving the king from there, on to Pieria. But he was already making his preparations for wintering, and ordered roads to be constructed for the transport of supplies from Thessaly, suitable places for storing corn to be selected and houses to be built where those who brought up the supplies could be lodged.

[44.10] When Perseus had recovered from his panic, he began to wish that his commands had not been obeyed, when in his hurry he ordered his treasure at Pella to be thrown into the sea and the naval

arsenal at Thessalonica to be burnt. Andronicus, who had been sent for that purpose to Thessalonica, had delayed carrying out his orders and, as it happened, left the king time for repentance. Nicias was not so cautious and had thrown that part of the money which was lying at Phacus overboard, but the mistake proved to be not irremediable, for almost the whole was fished up by divers. The king was so ashamed of his fright that he ordered the divers to be secretly put to death, and the same fate overtook Andronicus and Nicias, in order that no one alive might know anything about his insane orders. C. Marcius sailed with his fleet from Heracleum to Thessalonica and disembarking armed forces on many points along the coast devastated the country far and wide. He engaged successfully the troops who hurried out of the city and drove them back in hasty flight to the shelter of their walls. He was now creating alarm in the city itself, but the citizens placed artillery of all kinds on the walls, and not only those who ventured near the walls but even the men on board were hit by the stones which hurtled from their engines. The troops were accordingly ordered again on board and the siege of Thessalonica was abandoned. They sailed thence to Aelia, about fifteen miles distant, lying opposite to Pydna, and possessing a fertile soil. After devastating this district they coasted along as far as Antigonea. Here they went ashore and carried off a considerable amount of plunder to the ships. While thus engaged they were attacked by a composite force of Macedonian infantry and cavalry, who put them to flight and pursued them down to the shore, killing some 500 of them and taking quite as many prisoners. Finding themselves prevented from gaining the safe shelter of their ships, the very necessity of their situation rekindled the courage of the Romans, and under the incentives of shame and despair they renewed the fight on the beach. The men in the ships helped them and about 200 Macedonians were slain and an equal number were taken prisoners.

[44.11]The fleet sailed on to the territory of Pallene where they went ashore to plunder. This district, by far the most fertile of all those on the coast along which they had sailed, belonged to Cassandrea. Here Eumenes, who had sailed from Elaea, met them with twenty decked ships, and five had also been sent by Prusias. This accession of strength emboldened the praetor to attempt the capture of Cassandrea. This city was built by Cassander on the narrow isthmus which connects the district of Pallene with the rest of Macedonia,

and is washed on one side by the Toronaic Gulf and on the other by the Gulf of Macedonia. The tongue of land on which it stands projects into the sea, forming a promontory equal in extent to the towering Mount Athos. In the direction of Magnesia it has two headlands; the larger one is called the Posideum, the smaller the Cape of Canastra. The attack was commenced on two sides. The Roman commander, at a place called Clitae, carried his lines through from the Macedonian to the Toronaic Gulf and hedged them with forked poles to cut off all communication with the north. On the other side there was a canal, and here Eumenes was operating. The Romans had a very heavy task in filling up a fosse which Perseus had recently excavated for the defence of the town. The praetor, seeing no heaps lying about anywhere, enquired where the earth out of the fosse had been carried. Some arches were pointed out to him which had been built, not up to the thickness of the old wall, but to that of a single brick. The consul formed the design of breaking through these and penetrating into the city, and he thought he might do this unobserved, if the scaling parties assaulted the walls elsewhere and called off the defenders to these threatened points. The garrison of Cassandrea consisted of a far from contemptible force of able-bodied townsmen, and in addition 800 Agrianes and 2000 Illyrians sent by Pleuratus from Peneste, all keen fighters. Whilst these were defending the walls where the Romans were doing their utmost to surmount them, the brickwork of the arches was broken down in a moment and the city laid open. If those who had made the breaches had been armed, they would have taken the place at once. When the soldiers heard that this had been effected, they were so delighted that they raised a sudden cheer and prepared to break into the city at various points.

[44.12]For a moment the enemy wondered what this sudden cheer meant. Then, on learning that the city lay open, the commandants of the garrison, Pytho and Philip, thinking that this would be an advantage to whichever side was the first to attack, made a sortie with a strong body of Agrianes and Illyrians and charged the Romans who were coming up from all sides and were massing with the intention of entering the city in regular formation. Unable to present a firm front or proper line of battle, they were routed and pursued as far as the fosse, into which they were driven headlong, and lay in heaps. Nearly 600 were killed there, and almost all who were caught between

the wall and the fosse were wounded. His attempt thus recoiling on himself made the praetor somewhat slow in forming other plans. Eumenes, too, who was making a combined attack by land and sea, was equally unsuccessful. It was decided therefore to post strong detachments on both sides of the city to prevent any succour being introduced from Macedonia, and then, as direct assault had failed, to commence a regular siege. Whilst they were preparing for this, ten swift ships belonging to Perseus's fleet were sent up from Thessalonica with a picked force of Gaulish mercenaries on board. When they caught sight of the Roman fleet standing out to sea, they waited till the depth of night, and then sailing in single line they made for the nearest point on which to disembark, and so entered the city. The news of this addition to the defence compelled Eumenes and the Romans to raise the siege. Sailing round the promontory they brought up at Torone. This place, too, they prepared to attack, but on finding that there was a strong body of defenders they gave up the attempt and shaped their course to Demetrias. On approaching the walls they saw that they were fully manned, so they sailed on to Iolcus, intending after devastating the district to attack Demetrias from that side.

[44.13]In order that he might not remain perfectly inactive in the enemy's country, the consul sent M. Popilius with 5000 men to attack Meliboea. This city lies on the lower spurs of Ossa, looking towards Thrace and in a position to command Demetrias. At first the appearance of the enemy dismayed the inhabitants, but on recovering from their alarm, they flew to arms and ran to the gates and walls, wherever they suspected that an entrance might be forced, and in this way put an end to any hopes that the city might be taken at the first assault. Preparations were accordingly made for a regular siege and the construction of the necessary works was commenced. Perseus heard that Meliboea was being attacked by the consul's army and that the fleet was lying off Iolcus, preparatory to an attack on Demetrias. He sent one of his generals, a man called Euphranor, with a picked force of 2000 men to Meliboea. This officer was ordered, in case he cleared the Romans away from Meliboea, to make a secret march to Demetrias and enter the city before the Romans advanced against it from Iolcus. His sudden appearance on the ground above the Roman lines created great alarm amongst the besiegers of Meliboea; their works were abandoned and burnt. The siege of the one city being

raised, Euphranor hurried on to Demetrias. In the night . . . not only the walls . . . but even their fields they felt sure could be protected from ravages. They made sorties and attacked the scattered groups of plunderers, not without wounding many of them. However, the praetor and Eumenes rode round the walls, examining the situation of the city, to see if they could not make an attempt somewhere, either by siege-works or by storm. There was a rumour that negotiations for the establishment of friendly relations between Perseus and Eumenes had been carried on by Cydas of Crete and Antimachus, the governor of Demetrias. At all events, the Romans withdrew from Demetrias. Eumenes sailed away to visit the consul, and after congratulating him upon his successful invasion of Macedonia, went home. The praetor sent part of his fleet to Sciathus to lie up for the winter; with the rest of his ships he steered for Oreum in Euboea, as he considered that city the most suitable base from which supplies could be sent to the armies in Macedonia and Thessaly. Very different accounts are given of Eumenes. If you are to believe Valerius Antias, the praetor received no assistance from his fleet, though he had often written for his co-operation, and further, when he left for Asia, he was not on good terms with the consul, nor could the consul induce him to leave behind the Gaulish cavalry whom he had brought with him. Valerius goes on to say that Eumenes's brother Attalus remained with the consul, was unswervingly loyal to him and rendered splendid service in the war.

[44.14] Whilst the Macedonian war was going on, envoys from a Transalpine Gaulish chieftain Balanos - his name is given but not that of his tribe - went to Rome with promises of assistance in the war. Thanks were accorded to them by the senate, and presents sent to their chief - a golden chain, two pounds in weight, and four golden bowls, each weighing one pound, a horse with all its trappings, and a complete set of equestrian armour. The Gauls were followed by a deputation from Pamphylia, who brought into the senate-house a golden crown made out of 20,000 "philippeï," and begged that they might be allowed to place it as an offering in the shrine of Jupiter Optimus Maximus in the Capitol. Permission was granted, and the senate also acceded to their request for a renewal of the league of friendship with Rome; they each received a present of 2000 ases. An audience was then granted to envoys from Prusias, and shortly afterwards to those from Rhodes. Both embassies dealt with the same

subject, but on very different lines; they both pleaded for peace with Perseus. The tone of Prusias's representatives was one of entreaty rather than demand. Prusias declared that he had stood by the Romans up to that time, and would continue to do so as long as the war lasted, but when envoys from Perseus approached him with the object of bringing the war with Rome to an end he had promised to intercede for him with the senate. He begged them, if they could make up their minds to lay aside their resentment, to look favourably upon him as the instrument of procuring peace. Such was the appeal which the king's envoys made.

The Rhodians were far less deprecatory. They enumerated the services they had rendered to the people of Rome, and practically claimed the greater share in the victory over Antiochus at all events. Whilst there was peace between Macedonia and Rome, friendly relations were formed between them and Perseus. Much against their will they had broken off that friendship, without his having done anything to deserve such treatment, because the Romans had thought good to draw them as allies into the war. For three years they had been suffering many of the evils of war; the sea had been closed to them, and without supplies by sea their island was in a state of destitution. They could not put up with this state of things any longer, and had therefore sent to Macedonia to inform Perseus that the Rhodians wished him to come to terms with Rome, and they had sent their envoys on a similar mission to Rome. The Rhodians would consider how they would have to act against those who prevented the war from being brought to a close. I am quite certain that even today such language cannot be read or heard without a deep feeling of indignation. It can then be imagined what the state of mind of the senators was as they listened to it.

[44.15]According to Claudius no reply was vouchsafed to them, but the decree of the senate was read over, in which the people of Rome made an order that Caria and Lycia should be free States, and it was decided that this decree should be at once transmitted to both nations. On hearing this the leader of the legion, whose boastful language the House had a few moments before hardly been able to endure, fell down in a state of collapse. Other writers assert the reply they received was to the following effect: At the outset of the war the Roman people had ascertained on trustworthy evidence that the Rhodians had been forming secret designs in conjunction with

Perseus against the Republic, and if there had been any doubt as to this before, the language of the envoys had now reduced it to a certainty. Dishonest dealing, even if at the beginning it has been somewhat cautious, generally betrays itself in the long run. The Rhodians were now acting as arbitrators of peace and war over the whole world; the Romans were to take up and lay down their arms at the beck and nod of Rhodes; it was no longer the gods who were to be invoked as the witnesses and guardians of treaties, but the Rhodians. Was this really so? Unless they obeyed the orders of Rhodes and withdrew their armies from Macedonia, were the Rhodians going to consider what steps to take? What steps they would take the Rhodians knew best, but the people of Rome would consider, after Perseus had been crushed, and they hoped that time was not far off, what recompense they should make to each State according to its deserts in that war. However, a present of 2000 ases was sent to each of the delegates, but they refused to accept it.

[44.16]The next thing was a despatch from the consul Q. Marcius, which was read in the senate, describing his march over the mountains and his invasion of Macedonia. Supplies had been accumulated there and drawn from other places against the winter, and he had received from the Epirots 20,000 modii of wheat and 10,000 of barley on the understanding that the money for that corn should be paid to their agents in Rome. Clothing for the soldiers would have to be sent from Rome; about 200 horses were needed, mainly for the Numidians; he had no chance of getting them in the country where he was. The senate made an order that everything should be carried out in accordance with the consults requirements. The praetor C. Sulpicius contracted for the supply of 6000 togas, 30,000 tunics and 200 horses to be transported to Macedonia and delivered to the consul, subject to his approval. He also paid the Epirot representatives for the corn and introduced to the senate Onesimus the son of Pytho, a Macedonian of high rank, who had always urged peaceful counsels on the king and advised him to keep up the custom, which his father Philip had observed to the last days of his life, of reading over twice daily the text of his treaty with Rome, or if he could not always do so, to do it frequently. When he saw that he could not deter him from war, he gradually withdrew himself on various pretexts from attendance on the king so that he might not be involved in proceedings which he did not approve of. At last, when

he found that he had aroused suspicion and that now and again charges of treason were brought against him, he went over to the Romans and became extremely useful to the consul.

On his introduction to the senate he mentioned these circumstances, and the senate made an order for him to be formally enrolled amongst the allies, quarters and free hospitality to be provided for him, 200 jugera of the State domain in the Tarentine district to be allotted to him, and a house to be purchased for him in Tarentum. The praetor C. Decimius was charged with the execution of this order. On December 13 the censors revised the roll of burgesses more strictly than on the last occasion. Many of the equites were degraded; amongst them P. Rutilius who, as tribune of the plebs, had shown so much bitterness in prosecuting them. He was now expelled from his tribe and registered among the aerarii. On a resolution of the senate, half the proceeds of the year's revenue was assigned to them by the quaestor for the construction of public works. Out of the sum allotted to him Tiberius Sempronius purchased for the State the dwelling-house of P. Africanus behind the "Old Shops" by the statue of Vertumnus, together with the butchers' stalls and the booths adjoining. He also signed a contract for the construction of the building afterwards known as the Basilica Sempronia.

[44.17]It was now near the end of the year and as men's thoughts were mainly preoccupied with the Macedonian war, there was much discussion as to whom they were to choose as consuls for the year to bring the war to a close. The senate accordingly passed a resolution that Cneius Servilius should come to hold the elections as soon as possible. The praetor Sulpicius forwarded the resolution to the consul and a despatch was received from him a few days later which he read to the senate, in which he said that he would come to the City on . . . The consul arrived in good time and the elections were held on the day fixed. The new consuls were L. Aemilius Paulus for the second time, fourteen years after his first consulship, and C. Licinius Crassus. The election of praetors followed. Anxiety about the Macedonian war stimulated the senate to expedite all their business. They desired the consuls designate to ballot for their provinces immediately, so that as soon as it was known to which consul Macedonia was allotted, and which praetor was to command the fleet, they might at once form their plans and make every preparation for the war, and in case the necessity arose, refer any question to the

senate. When they had entered upon office, the magistrates were to celebrate the Latin Festival at the earliest date which the religious observances connected with it allowed, in order that nothing might detain the consul who was to go to Macedonia. Macedonia fell to Aemilius, the other consular province was Italy and that fell to Licinius. The praetors' provinces were assigned as follows: Cn. Baebius received the civic and L. Anicius the alien jurisdiction; the latter was to be at the disposal of the senate for any special service. Cn. Octavius took the command of the fleet, P. Fonteius went to Spain, M. Aebutius to Sicily, and C. Papirius to Sardinia.

[44.18]It very soon became clear to everybody that L. Aemilius was not going to show any lack of energy in the prosecution of the war; amongst other proofs of this was the exclusive attention he gave night and day to everything that had to do with it. The very first thing he did was to ask the senate to send a commission to Macedonia to inspect the armies and the fleet and to report from their own personal knowledge what was required for the land and sea forces. They were also to find out what they could about the king's troops and how much of the country was under our control and how much under the king's, and whether the Romans were still encamped in mountainous and difficult country, or whether they had cleared all the passes and reached open country. Then with regard to our allies they were to ascertain who were still faithful, who were making their fidelity depend upon the issue of the war, and what States were openly hostile. They were further to find out what amount of supplies had been accumulated; from what sources further supplies could be brought by land or sea; and what were the results of the year's campaign by land and sea. When accurate information on these points had been received, it would be possible to form definite plans for the future. The senate authorised the consul Cn. Servilius to send as commissioners into Macedonia those whom L. Aemilius approved of. Those selected were C. Domitius Ahenobarbus, A. Licinius Nerva, and L. Baebius. They started in two days' time. As the year was closing, reports came in of two showers of stones: one in the Roman district, the other on Veientine ground. Intercessions and sacrifices were offered for nine days on each occasion. Two members of the priesthood died this year: P. Quinctilius Varus, a Flamen of Mars, and M. Claudius Marcellus, a keeper of the Sacred Books. Cn. Octavius was appointed in his place. It has been noted as a sign of

the increasing scale on which the Circus games were conducted that in those of the curule aediles P. Cornelius Scipio Nasica and P. Lentulus, sixty-three African panthers and forty bears and elephants formed part of the show.

[44.19]The new consuls, L. Aemilius Paulus and C. Licinius, entered on their duties at the beginning of the year, March 15. The senate were mainly anxious to know what the consul who was to command in Macedonia had to report about his province. Paulus said that he had nothing to lay before them, as the commissioners had not yet returned; after being twice driven out of their course back to Dyrrhachium they were now at Brundisium. When he had received the necessary information, which would be in a very few days. he would make his report. That nothing might delay his departure, he had fixed the Latin Festival for April 12. When the sacrifice had been duly performed, he and Cn. Octavius would go as soon as the senate authorised their departure. In his absence it would be his colleague's care to see that whatever had to be prepared or despatched to the war would be got ready and sent off. Meantime the foreign deputations could be received in audience.

The first to be called in were the envoys from the two monarchs, Ptolemy and Cleopatra. They were in mourning garb with beard and hair untrimmed, and when they entered the House holding the olive branch of supplication, they prostrated themselves to the ground. Their language was even more piteous than their dress. Antiochus, king of Syria, who had been in Rome as a hostage, was now, under the specious pretext of restoring the elder Ptolemy to his throne, waging war against his younger brother and was threatening Alexandria at the time. He had won a naval victory off Pelusium, and after hurriedly throwing a bridge over the Nile he had led his army across, and was terrifying Alexandria with the prospect of a siege, and it seemed almost certain that he would gain possession of the powerful realm of Egypt. After stating these facts the envoys implored the senate, to come to the assistance of the kingdom and its rulers, who were friends of Rome. They urged that the kindness which the Roman people had shown to Antiochus and their authority amongst all kings and nations were such that if they sent word to him and informed him that the senate disapproved of war being levied against monarchs who were their friends, he would at once quit the walls of Alexandria and take his army back to Syria. If the senate

hesitated to do this, they would soon have Ptolemy and Cleopatra coming as fugitives from their realm, and the Roman people would feel somewhat ashamed at not having sent them help in their extremity. The senators were much moved by the appeal of the Alexandrians, and at once sent C. Popilius Laenas, C. Decimius and C. Hostilius to put an end to the war between the monarchs. They were instructed to approach Antiochus first and then Ptolemy, and announce to them that if they did not abstain from war they should not regard the one who was responsible for its continuance as either a friend or an ally.

[44.20]The Roman delegates accompanied by the Alexandrians left in three days' time. On the last day of the Quinquatrus the commissioners arrived from Macedonia. Their return had been so anxiously awaited that had it not been in the evening the consuls would at once have convened the senate. The next day the senate gave them audience. They reported that the passage of the army over pathless mountains had resulted in more peril than profit. They had advanced into Pieria, but the king was holding the country, and the armies were in such close contact that only the River Enipeus separated them. The king did not give any opportunity of fighting, nor were our men strong enough to force a battle; winter, too, had stopped active operations; our men were living in idleness, and had not corn for more than six . . . The Macedonians were said to number 30,000 fighting men. If Appius Claudius had had a strong enough army at Lychnidus, the king might have had his attention distracted between two fronts; at the present moment, Appius and such force as he had with him were in the utmost danger, unless either a regular army was sent there without delay, or they were withdrawn from their present position. On leaving the camp they proceeded to the fleet. Here they learnt that some of the crews had been carried off by disease, some, mostly the Sicilian seamen, had gone home, and the ships were undermanned; the men who were in them had not received their pay and were without proper clothing. Eumenes and his fleet had come and gone without any apparent reason, just as though they had been carried there by the wind; no dependence could be placed on that king. Whilst all Eumenes's movements were doubtful, Attalus was behaving with exemplary fidelity.

[44.21]When the commissioners had been heard, L. Aemilius said that the question before the House was the conduct of the war. The

senate decreed that the consuls and the people should each appoint an equal number of military tribunes for the eight legions, but they wished that none should be appointed that year who had not held high office; L. Aemilius was to choose out of the whole number those whom he wished for the two legions in Macedonia, and when the Latin Festival was over the consul and Cn. Octavius, the praetor who was to command the fleet, should leave for their respective commands. In addition to these, L. Anicius, who had the alien jurisdiction, was to go to Illyria and succeed Appius Claudius in command at Lychnidus. The task of raising fresh troops was imposed on the consul C. Licinius. He was ordered to enrol 7000 Roman citizens and 200 cavalry, and from the Latin allies 7000 infantry and 400 cavalry. He was also to send written instructions to Cn. Servilius in Gaul, requiring him to enrol 600 cavalry. He was to send this new army as soon as possible to his colleague in Macedonia. In that province there were not more than two legions: they were each to be brought up to the full strength of 6000 infantry and 300 cavalry; the rest of the infantry and cavalry were to be distributed amongst the various garrisons; those who were unfit for military service were to be discharged. There were, in addition, the 10,000 infantry and 800 cavalry furnished by the allies. This force was supplementary to the two legions, each consisting of 5000 infantry and 300 cavalry, which Anicius was ordered to transport to Macedonia; 5000 seamen were also conscripted for the fleet. Licinius was ordered to hold his province with the two legions and the 10,000 infantry and 800 cavalry from the allies.

[44.22]After the senate had made all these arrangements, the consul L. Aemilius left the House and proceeded to the Assembly, where he delivered the following speech: "I think, Quirites, that my having received, through the ballot, Macedonia as my province has been greeted more warmly than when I was congratulated on my election as consul, or on the day when I entered on office. And the sole reason for this, I believe, is that you thought I could be the means of bringing this long-protracted war to such a close as shall be worthy of the greatness of Rome. I hope that the decision of the ballot has been regarded with favour by the gods also, and that they will aid me in executing the task before me. Some things I can prognosticate, others I can feel hopeful about. This I venture to affirm with absolute certainty - I will strive to the utmost of my power, that the hopes you

have formed of me shall not turn out to be vain. All measures necessary for the war the senate has already taken, and as they have decided that I must start immediately, and there is nothing to hinder me, my distinguished colleague, C. Licinius, will carry out those measures with as much energy as if he himself were going to conduct the war.

"What I write to the senate or to you, I ask you to believe, and not strengthen, by giving credence to them, the idle rumours of which no one will confess himself the author. For it is a common experience, and I have noticed it especially in this war, that no one can be so indifferent to public opinion as not to find his courage and energy influenced by it. In all public places where people congregate, and actually - would you believe it! - in private parties, there are men who know who are leading the armies into Macedonia, where their camps ought to be placed, what strategical positions ought to be occupied, when and by what pass Macedonia ought to be entered, where the magazines are to be formed, by what mode of land and sea transport supplies are to be conveyed, when actions are to be fought, and when it is better to remain inactive. And they not only lay down what ought to be done, but when anything is done contrary to their opinion they arraign the consul as though he were being impeached before the Assembly. This greatly interferes with the successful prosecution of a war, for it is not everybody who can show such firmness and resolution in the teeth of hostile criticism as Fabius did; he preferred to have his authority weakened by the ignorance and caprice of the people rather than gain popularity by disservice to the State. I am not one of those who think that generals are not to be advised; on the contrary, the man who always acts on his own initiative shows, in my judgment, more arrogance than wisdom. How then does the case stand? Commanders ought first of all to get the advice of thoughtful and far-seeing men who have special experience of military affairs; then from those who are taking part in the operations, who know the country and recognise a favourable opportunity when it comes, who, like comrades on a voyage, share the same dangers. If, then, there is any man who in the interests of the commonwealth feels confident that he can give me good advice in the war which I am to conduct, let him not refuse to help his country, but go with me to Macedonia. I will supply him with a ship, a horse, a tent, and with his travelling expenses as well. If anyone thinks this too much trouble, let him not

try to act as a sea pilot whilst he is on land. The city itself affords plenty of subjects for conversation, let him confine his loquacity to these; he may rest assured that the discussions in our councils of war will satisfy us." After delivering this speech and offering the customary sacrifice on the Alban Mount at the Latin Festival on March 31, the consul left, in company with the praetor, for Macedonia. It is recorded that the consul was escorted by an unusually large crowd of well-wishers, and that people predicted with hopeful confidence the near close of the Macedonian war and the early return and brilliant triumph of the consul.

[44.23] During these proceedings in Italy, Perseus could not make up his mind to carry out his project of gaining Gentius, king of the Illyrians, as an ally, as he would have to spend money in so doing. But when he found that the Romans had cleared the passes and that the supreme crisis of the war was at hand, he felt that this business ought not to be put off any longer. Through Hippas, who acted for him, he agreed to pay a sum of 300 silver talents on condition that hostages were exchanged on both sides. Pantauchus, one of his closest friends, was sent to complete the transaction. Pantauchus met the Illyrian king at Meteon in the district of Libea, and there he received the king's sworn word and the hostages. Gentius sent as his representative a man called Olympius to claim from Perseus his sworn word and the hostages. Men were sent with him to receive the money, and at the suggestion of Pantauchus, Parmenio and Morcus were selected to accompany them to Rhodes. Their instructions were not to go to Rhodes till they had received the king's sworn word and the hostages, as at the request of both kings the Rhodians might be induced to declare war against Rome. The adhesion of that nation, whose naval reputation was then at its height, would, it was supposed, leave the Romans no hope of victory either on sea or land. Perseus went from his camp by the Elpeus with all his cavalry, and met the Illyrians at Dium. There, with the cavalry drawn up all round them, the contracting parties ratified the covenant between them, Perseus thinking that their presence at this solemn ratification would give them fresh courage. Then the hostages were exchanged in the sight of all; those who were to receive the money were then sent to the royal treasury at Pella; those who were to accompany the Illyrian envoys to Rhodes received instructions to embark at Thessalonica. Metrodorus, who had recently come from Rhodes, was there, and he

asserted on the authority of Dinon and Polyaratus, leading men in the city, that the Rhodians were prepared for war. He was appointed head of the joint Macedonian and Illyrian legation.

[44.24]At the same time some considerations, suggested by the political conditions of the time, were submitted in common to Eumenes and Antiochus. Perseus reminded them that free commonwealths and monarchs are in the nature of things antagonistic. Rome was attacking them one by one, and what was still worse, kings were using their power against kings. His own father had been crushed by the help of Attalus; the attack on Antiochus had been made with the assistance of Eumenes and, to some extent, of his own father Philip; now Eumenes and Prusias were in arms against himself. If royalty were abolished in Macedonia, Asia would be the next. They had already become masters of some parts of it under the pretext of making the cities free. Then Syria's turn would come. Prusias was now held in higher honour than Eumenes, and Antiochus was kept out of the Egypt which he had conquered - the prize of war. He urged them to reflect on these things, and either insist upon the Romans making peace with him, or else regard those who persisted in carrying on an unjust war as the common enemies of all kings. The communication to Antiochus was sent openly, the emissary to Eumenes was sent ostensibly to arrange for the ransom of the prisoners. As a matter of fact, more clandestine negotiations were going on, which for the time aroused suspicion and ill-will against Eumenes amongst the Romans, and still graver, though unfounded, charges were made against him, for he was regarded as a traitor and a declared enemy. There was a Cretan called Cydas, an intimate friend of Eumenes. This man went with a certain Chimarus, a country man of his, who was serving under Perseus, to Amphipolis, then afterwards to Demetrias, where he held conversations under the actual walls of the city, first with Menecrates and then with Antimachus, both of them generals of Perseus. Hierophon also, who was the emissary on this occasion, had previously been on two missions to Eumenes. These secret missions and colloquies were notorious, but what had actually taken place, or what agreement had been come to between the monarchs, was not known. The facts were these.

[44.25]Eumenes was not eager for Perseus to be victorious, nor had he any intention of helping him in the war, not so much because of

the differences he had with his father as because of personal aversion he and the son felt for each other. The jealousy of the two monarchs was such that Eumenes would not have seen with complacency Perseus winning such an accession of power and glory as would have awaited him had he defeated the Romans. He knew also that from the very beginning of the war Perseus had tried every means of gaining peace, and the nearer the danger the more his actions and thoughts were, day and night, turned to this object. As regarded the Romans, he believed that since the war had dragged on longer than they expected, both their generals and the senate would not be averse from bringing to a close such a tedious and difficult war. Having thus discovered what both sides wished for, he was all the more desirous of winning their good graces by offering for a consideration his assistance towards securing what he believed would come about of itself through the weariness of the stronger and the fears of the weaker side. He fixed his price in the one case for not lending assistance to the Romans either by land or sea, and in the other for mediating peace. For refusing assistance he asked 1000 talents, for bringing about peace, 1500. Impelled by his fears Perseus was very prompt in commencing negotiations and made no delay in discussing the question of hostages; it was settled that those whom he received should be sent to Crete. But when it came to the mention of money he drew back and said that a money payment for another object would, between monarchs of so great a name, be in any case sordid and unbecoming both to him who made it and him who accepted it. Still in the hope of obtaining peace with Rome he did not grudge the expense, though he would only hand over the money when the transaction was completed; meanwhile he would deposit it in the temple at Samothrace. As that island belonged to Perseus, Eumenes saw that it made no difference whether it were there or at Pella, and he proposed to carry away a portion at once. Thus after trying unsuccessfully to trick each other they gained nothing but an evil name.

[44.26] This was not the only chance which Perseus threw away in his avarice. Had he paid the money, it is possible that he might have had peace through Eumenes's instrumentality, and this was worth purchasing even at the cost of a part of his kingdom, or if Eumenes had played him false he could have held him up as his enemy loaded with his gold, and made the Romans regard him justly as their enemy.

But the alliance with Gentius which had been already mooted and the invaluable support now offered of the Gauls who were pouring through Illyria, were both lost to him through his avarice. A body of 1000 cavalry came to offer their services, and with them the same number of foot soldiers. These latter used to run alongside the horses and when the trooper fell they seized the riderless horses and rode on them into the battle. These men had agreed to serve for ten gold pieces for each horseman and five for each footman; their leaders were to receive a thousand. Perseus went with half his whole force from his camp at the Elpeus and began to give notice through all the villages and cities adjoining their route that they were to prepare ample supplies of corn, wine and cattle. He took with him some horses with their trappings and some military cloaks as presents to their officers, and a small quantity of gold to be distributed amongst a few of the troops, trusting that the mass of the soldiery would be attracted by the hope of more. He went as far as the city of Almana and fixed his camp by the River Axius. The Gaulish army was lying in the neighbourhood of Desudaba in Maedica waiting for the stipulated pay. Perseus sent Antigonus, one of the nobles of his Court, to order the soldiers to shift their camp to Bylazora, a place in Paeonia, and their officers to go in a body to him. They were seventy-five miles distant from the king's camp on the Axius. After Antigonus had given them these orders and told them what an abundance of everything the king's care had provided for them on their line of march, and what presents of clothing and silver and horses the king had ready for the officers when they arrived, they replied that they would find out all about this on the spot. They then enquired whether they had brought the gold to be distributed according to the agreement amongst the horse and foot. To this there was no reply. Then their chief Claudicus said, "Go back! Tell the king the Gauls will not move a step further unless they receive the gold and the hostages." On this being reported to the king he held a council of war. When it became obvious what the unanimous decision would be, the king began to descant on the perfidy and savagery of the Gauls, vices which many had already experienced to their ruin. It was a dangerous thing to admit so vast a multitude into Macedonia; they might find them more troublesome as allies than the Romans as enemies; 5000 cavalry were quite enough to make use of in the war, and not too many to be dangerous.

[44.27]It was quite clear to every one that the only thing the king was afraid of was having to pay such a large host, and as no one had the courage to attempt to dissuade him, Antigonus was sent back to say that the king would only employ 5000 of their cavalry and would not detain the rest. When the barbarians heard this, there were murmurs of indignation from the rest of the army at having been called away from their homes to no purpose. Claudicus again enquired whether he would pay the stipulated sum to the 5000. He detected something evasive in the answer and sent the crafty messenger back unhurt - treatment which the man himself hardly ventured to hope for. The Gauls returned to the Hister, devastating those parts of Thrace which lay near their line of march. This band might have been led against the Romans through the mountain pass of Perrhaebia into Thessaly while the king remained quiet at the Elpeus, and could not only have plundered and stripped the fields so that the Romans could have looked for no supplies from those districts, but also have utterly destroyed the cities to prevent their affording any assistance to their allies, while Perseus was holding the Romans at the Elpeus. The Romans would have had to think of their own safety, for they could not have stayed where they were when Thessaly which fed their army was lost, nor could they have made any advance with the camp of the Macedonians in front of them. By losing such an opportunity Perseus encouraged the Romans and discouraged to a great extent the Macedonians who had hung their hopes on his taking advantage of it.

The same niggardly conduct turned Gentius against him. After he had paid 300 talents to the emissaries of Gentius at Pella, he allowed them to seal the money up. Then ten talents were sent to Pantauchus with instructions that they were to be given to the king at once. He told his people, who were carrying the rest of the money sealed with the seal of the Illyrians, to make short journeys, and when they had reached the frontier, to wait there for his instructions. After Gentius had received that small portion of the money, he was constantly being urged by Pantauchus to provoke the Romans by some hostile act; accordingly he threw the two Roman envoys into prison, who happened to be with him at the time, M. Perpenna and L. Petilius. On hearing this, Perseus thought that Gentius was, in any case, driven by the force of circumstances into war with Rome, and in this belief he sent a message to have the money brought back, as though

his one idea was that after his defeat as much spoil as possible might be reserved for the Romans. Hierophon returned from Eumenes without any one knowing what secret understanding had been arrived at between them. They themselves gave it out in public that it had to do with the exchange of prisoners, and Eumenes sent the same explanation to the consul to allay his suspicions.

[44.28] Seeing how his schemes had miscarried, Perseus sent his two naval commanders, Antenor and Calippus, with forty swift ships and five cutters to Tenedos to protect the corn ships which were making their way to Macedonia through the scattered groups of the Cyclades. The ships took the water at Cassandrea, in the two harbours under Mount Athos, and from there sailed to Tenedos in a calm sea. Some undecked vessels belonging to Rhodes were lying in the harbour and Eudamus, their commander, was allowed to take them away unharmed, as though they were friends. On learning that fifty of his transports on the other side of the island were blockaded by the war-galleys of Eumenes which were stationed at the entrance to the harbour, Antenor promptly sailed round and the enemy ships made off on his appearance. Ten swift ships were told off to escort the transports to Macedonia, and when they had seen them safe they were to return to Tenedos. Eight days afterwards they rejoined the fleet which was now anchored off Sigeum. From here they sailed to Sabota, an island situated between Elaea and Chios. The day after they arrived, thirty-five vessels called "hippagogi," carrying Gaulish horses and troopers, happened to be on their way from Elaea to Phanae, a headland in Chios, intending to sail from there to Macedonia. They were sent to Attalus by Eumenes. When Antenor received a signal that these ships were at sea, he started for Sabota and met them in the narrowest part of the channel between the headland of Erythrae and Chios. The last thing that Eumenes's officers expected was the appearance of a Macedonian fleet cruising in those waters. They first thought that they were Romans and then that it was Attalus or some that had been sent back by Attalus from the Roman camp and were on their way to Pergamum. But when the build of the approaching vessels could no longer be mistaken and the prows steering straight for them at increasing speed revealed the approach of an enemy, there was great alarm. The clumsy nature of their ships and the difficulty of keeping the Gauls quiet, destroyed all hope of resistance. Some of those who were nearer to the mainland

swam to Erythrae; others crowded on all sail and ran their ships aground in Chios, and, abandoning the horses, fled in wild disorder towards the city. But the Macedonian vessels, taking a shorter course, landed their marines nearer the city and some of the Gauls were cut down as they fled along the road, others outside the city gate. The Chians had closed their gates, not knowing who were fleeing and who were pursuing. Nearly 800 Gauls were killed and 200 made prisoners. Some of the horses in the wrecked ships were drowned; others were hamstrung by the Macedonians on the beach. There were twenty horses of exceptional beauty, and Antenor gave orders for the ten vessels which he had previously sent to carry these and the prisoners to Thessalonica and return as soon as possible; he should wait for them at Phanae. The fleet lay off Chios for three days and then sailed to Phanae. The ten ships returned sooner than was expected; the whole fleet then put out to sea and sailed across the Aegean to Delos.

[44.29]During these operations the Roman commissioners, C. Popilius, C. Decimius and C. Hostilius, left Chalcis with three quinqueremes and arrived at Delos. There they found the forty vessels belonging to the Macedonians and five quinqueremes belonging to Eumenes. The sanctity of the temple and the island prevented them from injuring one another. The Romans, the Macedonians and the crews from Eumenes' ships went about together in the city and the temple in the peaceful security of a locality sacred and inviolate. Antenor received a signal from the look-out that several transports were sailing past. He started in pursuit with some of his ships and dispersed the rest among the Cyclades. He either sunk or plundered them all, with the exception of those heading for Macedonia. Popilius tried to save all he could, both of his own ships and those of Eumenes, but the Macedonian barques sailed by night, two or three together, and so escaped observation. About this time the Macedonian and Illyrian envoys arrived in Rhodes. Their representations had all the more weight owing to the appearance of the Macedonian ships cruising amongst the Cyclades and in the Aegean, the united action which Perseus and Gentius were taking, and the rumour that the Gauls were coming with a large force of infantry and cavalry. Dinon and Polyaratus, the leaders of Perseus' faction, felt themselves now strong enough to send a favourable reply to the two monarchs, and even went so far as to proclaim publicly that they possessed sufficient authority to put an end to the war, the

kings themselves therefore must resign themselves to the acceptance of peace terms.

[44.30]It was now the beginning of spring, and the new generals had reached their provinces. The consul Aemilius was in Macedonia, Octavius with the fleet at Oreum, and Anicius was in Illyria to conduct the war against Gentius. The father of Gentius was Pleuratus, formerly king of Illyria; his mother's name was Eurydice. Gentius had two brothers, one named Plator, the other, a half-brother, named Caravantius. He felt no uneasiness about the latter, as the father was a man of low birth, but to make his throne more secure he put Plator to death, and two of his friends with him, Ettritius and Epicadus, both of them able and enterprising men. It was commonly said that his jealousy was aroused by Plator's betrothal to Etuta, a daughter of Monunus, the prince of the Dardani, as though by this marriage he would secure the whole nation to his interest, and the fact that after Plator's death his brother married the girl made this conjecture highly probable. When all fear of his brother was removed, Gentius began to harass and oppress his people, and his naturally violent temper was inflamed by excessive indulgence in wine. However, as I have said above, he was bent upon war with Rome, and assembled the whole of his forces at Lissus. They numbered 15,000 men. He sent his brother Caravantius with 1000 infantry and 500 horse to effect the subjugation of the Cavii, either by intimidation or force, whilst he himself advanced against Bassania, a city five miles distant from Lissus. The population were friendly to Rome, and when Caravantius sent a demand for submission they chose to stand a siege rather than surrender. One of the towns belonging to the Cavii, Durnium, opened its gates to Caravantius; another city, Caravandis, shut its gates against him, and when he began an extensive devastation of their fields the peasants rose and killed a considerable number of the scattered plunderers.

By this time Appius Claudius, who had strengthened the army he had with him by contingents from the Ballini, the Apolloniates and the Dyrrhachians, had left his winter quarters and was encamped near the River Genusus. The intelligence brought to him of the league between Perseus and Gentius, and the outrageous treatment of the Roman envoys, decided him to commence hostilities against him. The praetor Anicius, who was at this time in Apollonia, heard what was going on in Illyria, and sent a message to Appius requesting him

to wait for him by the Genusus. In three days he arrived at the camp and brought with him in addition to his own force 2000 infantry and 200 cavalry, sent by the Parthini, the infantry under the command of Epicadus, the cavalry under that of Algalus. He was making preparations to march into Illyria, his principal object being the raising of the siege of Bassania. The projected invasion was delayed by a report that eighty pirate barques were ravaging the coast. They had been sent by Gentius on the advice of Pantauchus to devastate the fields of Apollonia and Dyrrhachium. Then the fleet . . . they surrendered.

[44.31]One after another the cities in that part of the country took the same course; their natural inclinations were strengthened by the clemency and justice with which the Roman praetor treated them all. He marched on to Scodra, the most important place in the war. Gentius had selected it as the stronghold, so to speak, of his kingdom, and it was by far the most strongly fortified and most difficult of access of any place in the country of the Libeates. It is surrounded by two rivers, the Clausal on the eastern side and the Barbanna, which rises in the Libeatus Lake, on the west. These two rivers meet and flow into the Oriundis, which rises in Mount Scordus and, augmented by many tributaries in its course, empties itself into the Hadriatic. Mount Scordus is quite the loftiest mountain in the country, and overlooks Dardania on the east, Macedonia on the south, and Illyria on the west. Although the town was protected by its situation and defended by the whole strength of Illyria under the king himself, the Roman praetor determined to attack it. His first operations had been successful, and he believed that the same good fortune would carry him through, and that the alarm created by his sudden appearance would have its effect. Had the gates been kept shut and the defenders stationed on the walls and towers, the attempt would have failed and the Romans would have been driven away from the walls. As it was, however, they made a sortie from the gate, and they began a battle on open ground with more courage than they kept it up. They were driven back, and more than 200 men were killed as they squeezed together in their flight through the confined space of the gate. This created such a panic that Gentius at once sent two of the foremost men in the country, Teuticus and Bellus, to the praetor to ask for a cessation of hostilities, to allow him time to consider his position. He was allowed three days - the Roman camp

was only five miles away - and went on board ship and sailed up the Barbanna to Lake Libeatus as though in quest of a retired spot for reflection but, as it turned out, he had been misled by a false report that his brother Caravantius was approaching with several thousand men, whom he had raised in the country to which he had been sent. After the rumour proved groundless he went down in the same ship to Scodra, and sent to ask for permission to interview the praetor. His request was granted and he went to the camp. He began his speech by blaming his own folly, and then, falling on his knees, amidst tears and supplications he placed himself entirely in the hands of the praetor. He was told to be of good courage, and even received an invitation to supper. He went back to the city to see his friends, and was for that day treated with all honour at the praetor's table. The next thing was his being handed over to the custody of C. Cassius, one of the military tribunes, after having, himself a king, received from a king a paltry ten talents - hardly as much as a gladiator earns - in order that he might sink into this condition.

[44.32]After the capture of Scodra the first thing Anicius did was to order the two envoys, Petilius and Perpenna, to be found and brought to him. They were provided with the clothing and insignia of their rank, and Perpenna was at once sent to arrest the friends and kinsfolk of the king. He went to Metione and brought back to the camp at Scodra Etleva, the king's wife, and his two sons, Scerdilaedus and Pleuratus, and also Caravantius his brother. Anicius had brought the war in Illyria to a close in less than a month, and Perpenna was sent to Rome to announce his victory. A few days later he sent Gentius to Rome, together with his mother, his wife, his children and his brother, and also some of the principal men of Illyria. This is the only war the close of which was reported in Rome before they had heard that it had begun. All through this time, Perseus on his side was in a state of great alarm by the advance of the consul Aemilius who, he understood, was on the march in a most dangerous mood, and no less so by the forward movement of Octavius with the Roman fleet menacing the coast. Eumenes and Athenagoras were in command of Thessalonica with a small force of 2000 cetrati. He sent Androcles there also with orders to remain encamped close to the naval arsenal; 1000 cavalry under Creon of Antigonea were sent to Aenea to guard the coast, so that at whatever point they heard the hostile ships were threatening, they might at once go to the help of

the country folk; 5000 Macedonians were sent to garrison Pytho and Petra under the command of Histieaus, Theogenes and Midon. After they had left, Perseus set himself to fortify the bank of the Elpeus, because, as the river-bed was now dry, it could easily be crossed. To allow of the whole army being free for this work, supplies of food were brought into the camp by women from the neighbouring cities. Out of the woods near the soldiers were ordered . . .

[44.33]Lastly he ordered the water-carriers to follow him to the sea, which was less than 300 paces distant, and to dig at short intervals from each other on the shore. The towering height of the mountains led him to expect that as no rivulets flowed from above the ground they contained hidden streams which flowed as it were through veins into the sea and mingled with its waters. Hardly had the surface of the sand been removed when springs bubbled up, muddy at first and scanty, but they soon poured forth a clear and copious supply of water, as though it were a gift from the gods. This incident added much to their general's prestige and authority amongst the soldiers. Orders were then issued for the troops to get their arms ready, and the consul with the military tribunes and the centurions of the first rank went out to examine the place where they were to cross, where the men under arms could find an easy descent, and where the ascent of the opposite bank presented least difficulty. After satisfying himself on these points, the consul's first care was that everything should be done in an orderly fashion and without confusion, in obedience to the word of command. When an order was promulgated to all the troops at the same time, it was not distinctly heard by everybody, and in their uncertainty as to what had been said, some made additions for themselves and went beyond what had been ordered, while some did less than they were told to do. Then confused shouts arose throughout the column and the enemy knew the general's intentions before they did. He therefore gave directions for the military tribunes to communicate the order privately to the first centurion of the legion and he was to notify what was to be done to each of the centurions, rank by rank, whether the order was to be transmitted from front to rear of the column or from rear to front. He also forbade the sentinels to follow the new fashion of wearing their shields; a sentinel did not go into battle to make use of his arms; his duty was on becoming aware of the enemy's approach to retire and call the rest to arms. They used to stand, wearing their helmets

and holding their shields in front of them, and then, when they were tired, they leaned on their spears, rested their heads on the rim of their shields and went to sleep as they stood, so that the glitter of their armour made them visible to the enemy while they themselves saw nothing in front of them. He also altered the regulations with regard to the outlying pickets. They used to stand all day under arms, the cavalry with their horses bridled, and in the days of summer under a cloudless and scorching sun, the men themselves and their horses were so languid and exhausted by the heat after so many hours that often, when attacked by a small body of the enemy who were fresh and unwearied, they were discomfited, though greatly superior in numbers. He thereupon gave orders that those who were sent out in the morning should quit their posts at noon and be relieved by others who went on duty for the rest of the day. In this way it was never possible for a fresh and unwearied enemy to attack them when they were suffering from fatigue.

[44.34]After Aemilius had paraded his troops and announced to them his intention of making these reforms, he went on to address them on very much the same lines as in his speech to the Assembly. He reminded them that it was the duty of the commander alone to provide for the welfare of his army and to advise as to what ought to be done, sometimes alone and sometimes in consultation with those whom he has called into council. Those who were not called into council had no right to ventilate their own opinions either publicly or privately. It was the soldier's duty to be careful about these three things: To keep his body as strong and agile as possible; to keep his arms in good order, and to have his food ready against any sudden order of his commander. All other matters, he must understand, are under the care of the gods and of his general. In an army where the soldiers take upon them to give advice and the general is swayed by the opinions of the multitude, there is no safety. He, as their commander, would do his duty and be on the watch to give them an opportunity of fighting a successful battle. It was not for them to ask what was going to happen, as soon as the signal was given, it was their duty to do all that a soldier could do.

With these instructions he dismissed the troops, and even the veterans generally confessed that on that day they had for the first time, as though they were raw recruits, learnt what military service meant. And it was not only by remarks of this kind that they showed

how greatly they appreciated the consul's words - they began at once to act on them. In a short time you would see no one in the camp idle; some were sharpening their swords; others rubbing up their helmets and cheek-pieces and their cuirasses; others fastening on their armour and testing their agility under its weight; others poisoning their spears; others again making their swords flash with rapid thrusts and keeping their eyes on the point. So that anyone could easily see that on the very first opportunity of coming to close quarters with the enemy they would finish the war by a splendid victory or, in their own case, by a glorious death. Perseus, too, when he saw that after the consul's arrival - it was the beginning of spring as well - all was bustle and movement with the enemy as though for a fresh campaign, and that the camp was shifted from Phila to the bank of the river, and the consul was going on his rounds, at one time to inspect the works and evidently looking out for a place where he could cross the river; at another . . .

[44.35] This incident raised the spirits of the Romans and produced considerable alarm amongst the Macedonians and their king. At first he tried to stifle the report by sending to Pantauchus, who was on his way to the camp, to forbid him from entering it; but some boys, who were being taken away amongst the Illyrian hostages, had been seen by their friends. So the greater the pains taken to conceal the details, the more easily did they leak out through the love of gossip in the king's Court. Just after this the envoys from Rhodes arrived at the Roman camp bringing with them the same demand for peace which had so roused the ire of the Roman senate. They received a much more hostile hearing from the council of war in the camp. Some thought they ought to be driven helter-skelter out of the camp; the consul said he would give them an answer in a fortnight's time. Meanwhile, to make it clear how far the influence of the Rhodians extended in their efforts to bring about peace, he began to discuss the plan of operations with his council. Some, mainly the younger officers, were for crossing the Elpeus and storming the opposite bank and the defensive works above it. After their expulsion the year before from their forts, which were on higher ground, better fortified and strongly held, they thought the Macedonians would be unable to stand a general attack made in full force. Others were of opinion that Octavius ought to take his fleet to Thessalonica and devastate the coast. By thus menacing his rear they would compel the king to divide

his forces and march away to protect the interior of his kingdom, thus leaving the passage of the river in some direction open. The consul considered the river bank insurmountable, owing to its steepness and the works which defended it, especially as artillery was in position everywhere, and he had heard that the enemy used their missile weapons more skillfully, and with a surer aim.

The consul had quite made up his mind to adopt another course, and the council broke up. There were two Perrhaebian traders, Coenus and Menophilus, whose honesty and sagacity he knew he could trust. He sent for them and questioned them privately about the routes leading into Perrhaebia. They told him that the country was not difficult; it was held by detachments of the king's troops. Hearing this he thought that by a sudden night attack delivered in force, when the enemy were not expecting it, they could be dislodged and driven back. Javelins and arrows and other missiles were useless in the dark, when it was impossible to see what to aim at; it was in close hand-to-hand fighting with the sword, in the melee of battle, that the Roman soldier was victorious. He decided to take these men as guides, and sent for Octavius, to whom he explained his plans, and he gave him instructions to sail to Heracleum and have in readiness ten days' rations for 1000 men. P. Scipio Nasica and Q. Fabius Maximus, his own son, were sent overland to Heracleum with 5000 select troops, as though they were going on board the fleet to devastate the Macedonian coast - the scheme which had been advocated in the council. They were privately informed that, to avoid any delay, there was food ready for these troops on board the fleet. The two guides were then ordered so to regulate the length of each day's march as to allow of an attack being made on Pythium in the fourth watch of the third day.

To prevent the king from directing his attention elsewhere, the consul, at dawn on the following day, commenced an action with the enemy's outposts in the middle of the river-bed, and the fighting was kept up by the light infantry on both sides; heavier troops could not possibly fight on such uneven ground. From the top of each bank down to the river-bed was about 300 paces; the actual channel of the river between the banks, which varied in depth, was over a mile wide. There in mid-channel the fight went on, the king watching it from his intrenchments on the one side and the consul from the rampart surrounded by his legionaries on the other. As long as they were not

in touch and could use their missiles the king's men fought at an advantage, but when it came to close fighting the Roman was more steady and better protected, whether by the shield or the Ligurian buckler. About noon the consul ordered the retreat to be sounded, so the action was broken off for that day with a not inconsiderable number killed on both sides. The next day the conflict was renewed at sunrise with even greater bitterness, as their passions had been roused by the previous contest. But the Romans were wounded, not only by those with whom they were actually fighting, but to a much greater extent by the missiles of every kind which were discharged by the multitude of assailants posted on the turrets, and especially by the huge stones from the ballistae. Whenever they got nearer to the bank held by the enemy the discharges from the catapults reached even the hindmost. After losing far more on that day, the consul recalled his men somewhat later than the day before. On the third day he abstained from fighting and went down to the lowest part of the camp, as if to attempt a passage through that part of the enemy's line, which was carried down to the sea. . . .

[44.36]It was past the summer solstice and the time of day was approaching noon; the march had been made amidst clouds of dust and under a burning sun. Lassitude and thirst were already felt, and it was certain that both would be aggravated at high noon. The consul was determined not to expose his men while thus suffering to an enemy who was fresh and in full vigour. But such was the eagerness of the men for battle under any circumstances that it needed as much skill on the part of the consul to beguile his own men as to deceive the enemy. The battle line was not completely formed, and he urged the military tribunes to hasten its formation; he rode round the ranks and fired the spirits of the men by his words. On this they at first eagerly demanded the signal for battle; then under the increasing heat their faces showed less animation and their voices became weaker; some hung over their shields and propped themselves up with their spears. Now at last he gave the order to the centurions of the first rank to mark out the front line for a camp and to deposit the baggage. When the soldiers became aware of what was happening, some openly expressed their delight that he had not compelled them to fight, exhausted as they were with the toilsome march and the intense heat. The staff officers and the commandants of the foreign contingents, Attalus amongst them, were standing round the

commander-in-chief and unanimously approving of what they thought was his decision, namely, to give battle. Not even to them had he disclosed his intention of delaying action. The sudden change of plan made nearly all of them silent. Nasica alone had the courage to admonish the consul not to do as former commanders had done, and by avoiding battle let the enemy slip through his fingers. If Perseus got away in the night, he was afraid that infinite trouble and danger would be incurred in following him into the heart of Macedonia, and they would spend the summer as previous generals had done, in feeling their way through the passes and tracks of the Macedonian mountains. He strongly advised the consul to attack the enemy while he had him in level and open country, and not to lose the proffered chance of victory. The consul was not at all offended at the frank admonition of so distinguished a youth. "Nasica," he replied, "I, too, once felt as you do now, and one day you will feel as I do now. I have learnt, through the many accidents of war, when to fight and when to abstain from fighting. I have no time now, standing as I am at the head of the line, to explain to you why it is better to rest today. Ask me for my reasons some other time; for the time being you will be content to submit to the authority of a veteran commander." The young man was silent; he was sure that his general saw some impediments in the way of a battle which were not apparent to him.

[44.37]When Aemilius Paulus saw that the site of the camp had been marked out and the baggage collected, he first quietly withdrew the triarii from the back of the line, then the principes, leaving the hastati standing in front, in case the enemy made any movement. Finally he retired these also, withdrawing those on the right first, maniple by maniple. In this way the infantry were withdrawn without creating any confusion, leaving the cavalry and light infantry facing the enemy. The cavalry were not recalled from their position until the rampart and fosse in front of the camp were carried their full length. The king was quite ready to give battle that day, but as his men were aware that the delay was due to the enemy he was quite content, and he too led his men back to camp. When the fortification of the camp was completed, C. Sulpicius Gallus, a military tribune attached to the second legion, who had been a praetor the year before, obtained the consul's permission to call the soldiers on parade. He then explained that on the following night the moon would lose her light from the

second hour to the fourth, and no one must regard this as a portent, because this happened in the natural order of things at stated intervals, and could be known beforehand and predicted. Just in the same way, then, as they did not regard the regular rising and setting of the sun and moon or the changes in the light of the moon from full circle to a thin and waning crescent as a marvel, so they ought not to take its obscuration when it is hidden in the shadow of the earth for a supernatural portent. On the next night - September 4 - the eclipse took place at the stated hour, and the Roman soldiers thought that Gallus possessed almost divine wisdom. It gave a shock to the Macedonians as portending the fall of their kingdom and the ruin of their nation, nor could their soothsayers give any other explanation. Shouts and howls went on in the Macedonian camp until the moon emerged and gave her light. So keen had both sides been to encounter one another that on the morrow both Perseus and the consul were alike blamed by some of their own men for having retired without a battle. The king was at no loss for his defence - the enemy had openly declined battle and was the first to withdraw his troops into camp; and, besides, the position which he had chosen was such that the phalanx could not be brought up to it, even a slightly uneven ground would make it useless. As to the consul, not only did it look as if he had let slip the opportunity of fighting the previous day and given the enemy a chance, if he wished, of going away in the night, but even now he seemed to be wasting time on the pretext of offering sacrifice, although the signal for battle had been hoisted at dawn and he ought to have taken the field. It was not till the third hour after the sacrifices had been duly performed that he summoned a council of war and even then he was thought by some to be wasting the time, which ought to have been spent on the battlefield, in unseasonable speeches and discussions.

[44.38]The consul addressed the council as follows: "Out of all those who were in favour of my giving battle yesterday, P. Nasica, a most excellent young man, was the only one who disclosed his real thoughts to me, and after that he remained silent, so that it would seem that he has come over to my side. There are some others who preferred to find fault with their commander behind his back rather than offer their advice in his presence. I have no objection to giving my reasons for delaying battle to you, Nasica, and to all who entertain the same sentiments as you did, though less openly, for I am so far

from regretting our inaction yesterday that I believe I have saved the army through it. If any of you think that I have no grounds for this belief, I ask him to consider with me, if he will, how many things there were in the enemy's favour and to our disadvantage. First of all, as to his superiority in numbers, I am perfectly certain that none of you were unaware how great that is and especially yesterday when you watched his men deploying into line. Out of our own scanty numbers one-fourth had been left to guard the baggage, and you know that it is not the least efficient who are left in charge of that. But supposing we had been in full force, are we to take no account of the fact that we have remained undisturbed in the camp last night, ready with the help of the gods to take the field this very day or, at the latest, tomorrow? Is it a matter of indifference whether you order the soldier to take up his arms on a day when he has not been fatigued by a toilsome march and the labour of intrenching the camp, when he has been resting undisturbed in his tent, and so lead him into battle full of energy and vigorous in body and mind, or whether on the other hand you expose him fatigued by a long march and exhausted by the work of preparing the camp, with the sweat pouring from him and his jaws parched with thirst, his mouth and eyes full of dust, under a scorching noonday sun, to an enemy who is fresh, rested and bringing into battle a strength and energy which have not been used up beforehand? Who, in heaven's name, being thus prepared for battle, even though he were an utter coward, would not conquer the bravest of men? After the enemy had, quite at their leisure, formed their line, their minds prepared for battle, and all standing in their ordered ranks, do you suppose that we were then to form our line in haste and confusion and meet them when we were in disorder?

[44.39]"Some might say: 'Even if we had not our battle line in proper formation, had we no fortified camp, no provision for water, no troops to guard the access to it? Had we nothing which we could call our own except the bare ground on which to fight?' Your ancestors looked upon a camp as a safe haven for the army against every mischance, from which they went out to battle, where, after being tossed in the storm of battle, they could find a safe retreat. It was for that reason that after they had fenced it with earthworks, they strengthened it with a powerful guard, for he who lost his camp, even if victorious on the field, was held to be defeated. A camp is a resting-place for the victor, a shelter for the vanquished. How many armies

to whom the fortune of battle has proved unkindly have been driven inside their ramparts and then at their own time, sometimes almost immediately, have made a sortie and repulsed their victorious foe? Here is the soldier's second fatherland, here is his abode, with the rampart for its walls; here each finds in his tent, his home and his household gods. Ought we to have fought as homeless wanderers with no place to receive us after our victory?

"In reply to these difficulties and hindrances it is asked, 'What if the enemy had gone off last night?' How much exhausting toil should we have had to endure in following him into the heart of Macedonia! I am perfectly certain that if he had decided to depart he would not have awaited us, nor drawn up his troops on the field. How much easier would it have been for him to get away when we were at a distance, than it is now when we are close upon him and he cannot withdraw by day or night without our becoming aware of it! What could we wish for better than, instead of being obliged to attack their camp in its strong position on the bank of a river, fenced with a rampart and numerous towers, we attack them in the rear after they have left their intrenchments and are making their way in a straggling column through open country? These were my reasons for postponing the battle from yesterday to today, for it is my intention to give battle, and as the way to the enemy across the Elpeus has been blocked by him, I have opened up a fresh way by dislodging his men who were holding another pass, and I shall not stop till I have brought the war to a close."

[44.40]When he had finished there was silence; some had been brought round to his view; others were afraid of giving needless offence by criticising the neglect of an opportunity which, to whatever it might be due, could not be remedied. Even on this day neither the consul nor the king was prepared to engage. The king would not be able to attack them as they were yesterday, wearied with their march, deploying hurriedly into line and not in battle order; the consul held back because neither wood nor fodder had been brought into the newly-formed camp, and a large proportion of his troops had left the camp to collect these from the fields near. Against the intention of both commanders Fortune, who overrides the plans of men, brought about a conflict. There was a river, not a large one, near the enemy's camp from which both the Romans and the Macedonians drew their water, protected by detachments stationed

on either bank. On the Roman side were two cohorts, Marrucinians and Paelignians, and two squadrons of Samnite horse under the command of M. Sergius Silus. Another body was stationed in front of the camp under C. Cluvius; these consisted of Firman, Vestinian and Cremensian troops, and two squadrons of cavalry from Placentia and Aeserna. Whilst all was quiet at the river, neither side offering any provocation, a mule broke loose about three o'clock in the afternoon from the men in charge and escaped to the opposite bank. Three soldiers went after it through the water, which was up to their knees. Two Thracians were dragging the beast out of the river back to their own bank, when they were followed by some Romans, who killed one of them, recaptured the mule, and went back to their posts. There were 800 Thracians guarding the enemy's bank. A few of these, enraged at seeing a comrade killed before their eyes, ran across the river in pursuit of those who slew him; then more joined in and at last the whole body, and with them the . . .

[44.41]. . . led them into battle. His men were deeply impressed by reverence for his authority, the reputation he had acquired, and, above all, his age, for though more than sixty years old, he took upon himself to a large extent the duties and dangers which are usually the lot of younger men. The interval between the "caetrati" and the divisions of the phalanx was filled up by the legion, and thus the enemy's line was interrupted. The "caetrati" were in their rear; the legion were fronting the shieldmen of the phalanx, who were known as the "chalcaspides." L. Albinus, an ex-consul, was ordered to lead the second legion against the phalanx of "leucaspides"; these formed the centre of the enemy's line. On the Roman right, where the battle had begun, close to the river, he brought up the elephants and the cohorts of allied troops. It was here that the Macedonians first gave ground. For just as most new devices amongst men seem valuable as far as words go, but when they are put to a practical test and have to be acted upon they fail to produce results, so it was with the elephants; those of the Macedonians were of no use whatever. The contingents of the Latin allies followed up the charge of the elephants and repulsed the left wing. The second legion which had been sent against the centre broke up the phalanx. The most probable explanation of the victory is that several separate engagements were going on all over the field, which first shook the phalanx out of its formation and then broke it up. As long as it was compact, its front

bristling with levelled spears, its strength was irresistible. If by attacking them at various points you compel them to bring round their spears, which owing to their length and weight are cumbersome and unwieldy, they become a confused and involved mass, but if any sudden and tumultuous attack is made on their flank or rear, they go to pieces like a falling house. In this way they were forced to meet the repeated charges of small bodies of Roman troops with their front dislocated in many places, and wherever there were gaps the Romans worked their way amongst their ranks. If the whole line had made a general charge against the phalanx while still unbroken, as the Paeligni did at the beginning of the action against the "caetrati," they would have spitted themselves upon their spears and have been powerless against their massed attack.

[44.42]The infantry were being slaughtered all over the field; only those who threw away their arms were able to make good their escape. The cavalry, on the other hand, quitted the field with hardly any loss, the king himself being the first to flee. He was already on his way to Pella with his "sacred" cavalry, and Cotys and the Odrysaeans were following at his heels. The rest of the Macedonian horse also got away with their ranks unbroken, because the infantry were between them and the enemy, and the latter were so fully occupied in massacring the infantry that they forgot to pursue the cavalry. For a long time the slaughter of the phalanx went on in front, flank and rear. At last those who had escaped out of the hands of the enemy threw away their arms and fled to the shore; some even went into the water and, stretching out their hands in supplication to the men in the fleet, implored them to save their lives. When they saw boats from all the ships rowing to the place where they were they thought that they were coming to take them up as prisoners rather than slay them, and they waded further into the water, some even swimming. But when they found that they were being killed by the men in the boats, those who could swim back to land met with a more wretched fate, for the elephants, forced by their drivers to the water's edge, trampled on them and crushed them to death as they came out. It is universally admitted that never had so many Macedonians been killed by the Romans in a single battle. As many as 20,000 men perished; 6000 who had fled to Pydna fell into the enemy's hands, and 5000 were made prisoners in their flight. Of the victors not more than 100 fell, and of these the majority were

Paelignians; the wounded were much more numerous. If the battle had begun earlier and there had been sufficient daylight for the victors to continue the pursuit, the whole force would have been wiped out. As it was, the approach of night shielded the fugitives and made the Romans chary of following them over unknown country.

[44.43]Perseus fled to the Pierian forest, accompanied by his suite and a numerous body of cavalry. When he had entered the forest at a point where several roads diverged, as night was approaching he struck into a side-path with a very small body of those most faithful to him. The cavalry, left without a leader, dispersed to their various cities; and a few reached Pella in advance of Perseus himself, having gone by a straight road. Up to midnight the king had considerable trouble and anxiety in trying to find his way. Eulacus and Euctus and the royal pages were ready to meet the king in the gloomy palace, but of all his friends who had lived through the battle and regained Pella, not one came to him in spite of his repeated invitations. There were only three who shared his flight, Euander of Crete, Neo a Boeotian, and Archidamus the Aetolian. Fearing that those who refused to go to him might soon venture upon a more serious step, he fled away at the fourth watch, followed by certainly not more than 500 Cretans. He was intending to go to Amphipolis, but he had left Pella in the night, anxious to cross the Axios before daylight, as he thought the difficulty of crossing that river might stop the Roman pursuit.

[44.44]On his return to camp the consul's joy in his victory was damped by his anxiety about his younger son. This was P. Scipio, who had been adopted as grandson by Scipio Africanus, and himself received the title of Africanus, from the destruction of Carthage in after years. He was only seventeen at the time - a further cause for anxiety - and while he was in full pursuit of the enemy, he was carried away by the press into another part of the field. On his return late in the day to the camp, his father, finding him safe and sound, could at last feel unmixed joy in his great victory. The news of the battle had already been carried to Amphipolis, and the matrons flocked to the temple of Diana - the Tauropolon - to invoke her aid. Diodorus, the governor of the city, was apprehensive lest the Thracian garrison, some 2000 strong, should in the tumult and confusion plunder the city. He therefore hired a man to impersonate a letter-carrier, and received a pretended despatch from him in the middle of the forum. It stated that the Roman fleet had put in at Emathia, and the fields

all round were being ravaged. The officers in charge of Emathia implored him to send the garrison to deal with the ravagers. After reading the despatch he urged the Thracians to go and defend the coast of Emathia; they would inflict great slaughter on the Romans while scattered through the fields, and would also secure large booty. At the same time he made light of the report of an unfavourable battle; if, he said, it were true, fugitive after fugitive would have come in fresh from the fight. In this way he got rid of the Thracians, and as soon as he saw that they had crossed the Strymon, he shut the gates.

[44.45] Three days after the battle Perseus arrived at Amphipolis, and from that city he sent heralds with a caduceus to Paulus. In the meanwhile Hippias, Midon, and Pantauchus, the principal men among the king's friends who had fled from the field of battle to Beroea, went and made their surrender to the Roman consul. In the case of others also, their fears prompted them, one after another, to do the same. The consul sent his son Q. Fabius, together with L. Lentulus and Q. Metellus, with despatches to Rome announcing his victory. He gave the spoils taken from the enemy's army lying on the field of battle to the foot soldiers and the plunder from the surrounding country to the cavalry on condition that they were not absent from the camp more than two nights. The camp at Pydna was shifted to a site nearer the sea. First of all Beroea, then Thessalonica and Pella, and almost the whole of Macedonia, city by city, surrendered within two days. The people of Pydna, who were the nearest to the consul, had not yet sent envoys, for their citizens were prevented from coming to any decision in their council by the mixed population drawn from many nationalities and also by the crowd of fugitives from the battle. The gates were not only closed but walled up. Midon and Pantauchus were sent up to the walls to hold a parley with Solon, the commandant of the garrison; by his means the mob of fighting men was sent away. The surrendered town was given up to the soldiers to plunder. Perseus' one hope was in the help of the Bisaltians, but finding this hope vain he came before the assembled citizens of Amphipolis, with his son Philip, with the intention of kindling the courage of the Amphipolitans themselves and of the men, both infantry and cavalry, who had accompanied him or been carried there in their flight. But as often as he tried to speak he was prevented by his tears, and finding that he could not utter a word, he

told Euander what he wanted to bring before the people and went down from the tribunal. The sight of the king and his distressful weeping moved the people themselves to groans and tears, but they would not listen to Euander. Some in the middle of the Assembly had the audacity to shout out, "Go away, both of you, lest we, the few survivors, perish on your account." Their daring opposition closed Euander's lips. Then the king retired to his house, and after placing an amount of gold and silver on board some boats lying in the Strymon, went down to the river. The Thracians would not venture on board and dispersed to their homes, so did the rest of the soldiers; the Cretans, attracted by the money, followed him. As the distribution of it amongst them would cause more jealousy than gratitude, 50 talents were placed on the bank to be scrambled for. Whilst they were going on board, after the scrambling, in wild confusion, they sunk a boat in the mouth of the river through overcrowding. That day they arrived at Galepsus and the day after they reached Samothrace, for which they were making. It is asserted that 2000 talents were conveyed there.

[44.46]Paulus placed Roman officers in charge of the cities which had surrendered, so that the vanquished party might not be ill-treated now that peace was established. He kept the heralds from Perseus with him, and as he was unaware of the king's flight he sent P. Nasica with a small detachment of horse and foot to Amphipolis for the purpose of ravaging Sintice and frustrating any attempt which the king might make. At the same time Meliboea was taken and sacked by Cn. Octavius. Cn. Anicius was sent to Aegeum, but as the citizens did not know that the war was over they made a sortie from the town and the Romans lost 200 men. The following day the consul left Pydna with the whole of his army and formed his camp two miles distant from Pella. He remained there several days, surveying the city from every side, and he observed that it was not without good reason that it had been chosen as the royal residence. It is situated on the south-west slope of a hill and surrounded by a marsh too deep to be crossed on foot either in summer or winter. The citadel the "Phacus," which is close to the city, stands in the marsh itself, projecting like an island, and is built on a huge substructure which is strong enough to carry a wall and prevent any damage from the infiltration from the water of the lagoon. At a distance it appears to be continuous with the city wall, but it is really separated by a channel which flows

between the two walls and is connected with the city by a bridge. Thus it cuts off all means of access from an external foe, and if the king shut anyone up there, there could be no possibility of escape except by the bridge, which could be very easily guarded. The royal treasure was kept there, but nothing was found there at that time beyond the 300 talents which had been sent to Gentius and then kept back. During the time the camp was at Pella numerous embassies of congratulation were received, mostly from Thessaly. On receiving intelligence that Perseus had sailed to Samothrace the consul left Pella, and after a few days' march arrived at Amphipolis. The fact of the whole population coming out to meet him was a sufficient proof that they were not mourning the loss of a good and just king.

BOOK 45: ROME STABILIZES THE EAST

[45.1]The heralds of victory travelled to Rome with the utmost possible speed, but on their arrival they found that the rejoicings over it had forestalled them. Four days after the battle, while the Games were going on in the Campus Martius, a whispered rumour suddenly spread amongst the whole concourse of spectators to the effect that a battle had taken place in Macedonia resulting in the utter defeat of the king. Then the rumour grew louder until at last cheers and applause arose as though definite tidings of victory had been brought to them. The magistrates were taken by surprise and enquired who had started this sudden outburst of joy. As no one could be found the excitement produced by what they had taken for a certainty calmed down, but still they were convinced that it was a happy omen, which was subsequently verified by the arrival of the authentic messengers. They were delighted quite as much at their prognostications proving true as at the victory itself. A second outburst amongst the crowd in the Circus is recorded. On 17th September, the second day of the Roman Games, whilst the consul was mounting the stand to start the chariots, a despatch-bearer who said that he had come from Macedonia handed him a despatch wreathed in laurel. After the chariots were started he mounted his own and, riding across the course to the raised benches where the spectators were seated, held up the laurelled despatch for the people to see. On catching sight of it, the populace, regardless of the races, ran down into the middle of the Circus. The consul called the senate together there and after obtaining their sanction, read the despatch

to the onlookers in their seats. He announced that his colleague Lucius Aemilius had fought a decisive battle with Perseus, that the Macedonian army had been routed and cut to pieces, that the king with a few of his followers was a fugitive, and that all the cities of Macedonia had passed under the power of Rome. On hearing this, cheers and frantic applause broke out; most of the men deserted the Games and went home to carry the joyful news to their wives and children. This was thirteen days after the battle had been fought in Macedonia.

[45.2]The following day there was a meeting of the senate in the senate-house, and a decree was made ordering public thanksgivings. The senators also passed a resolution that, with the exception of the regular soldiers and the seamen of the fleet the consul should disband those who had taken the military oath to him. The question of the disbandment of the soldiers and seamen was postponed until the arrival of the deputation from L. Aemilius, by whom the despatch-bearer had been sent on in advance. On 25th September, about 8 A.M., they entered the City. A vast crowd had gone out to meet them at various points and accompany them back to the City. Carrying the throng along with them they made their way to the Forum, and from there to the senate-house. The senate happened to be in session, and the consul brought them into the House. They were detained there for some time whilst they described the strength of the king's troops, both horse and foot, the numbers of those killed and those taken prisoners, the small cost at which such a slaughter of the enemy had been made, and the panic in which the king had fled. They thought he would probably make for Samothrace, and they informed the senate that the fleet was ready to take up the pursuit; he could not escape either by land or sea. Shortly afterwards they were conducted to the Assembly, where they made much the same statement, and the rejoicings were renewed on the consul giving notice that all the sacred buildings were opened, and every one was to go from the Assembly and offer, each for himself, his thanks to the gods. All the temples throughout the City were filled with crowds of women as well as men. The senators were recalled to the senate-house and made a decree that, in consideration of the glorious victory won by L. Aemilius, thanksgivings should be offered at all the shrines for five days, and the victims sacrificed were to be full-grown animals. Orders were given that the ships which were lying in the Tiber fully equipped for

service, to be sent to Macedonia should occasion arise, were to be hauled up and placed in dock; the crews were to receive a year's pay and be discharged, as also all who had taken the military oath to the consul. In addition to these the troops in Corcyra, Brundisium and the coast of the Hadriatic, or in the district of Larinum - an army had been distributed in all these places as a reserve for C. Licinius to take to the support of his colleague, should it become necessary - were ordered to be disbanded. A five days' thanksgiving was proclaimed before the Assembly, to commence on 26th September.

[45.3]The two commissioners who had been sent to Illyria reported on their return that the Illyrian army had been destroyed and Gentius taken prisoner, and that Illyria had made formal submission to Rome. For these successes, gained under the leadership and auspices of L. Anicius, the praetor, the senate ordered a three days' thanksgiving. A second celebration of the Latin Festival was proclaimed by the consul for 10th-12th November. Some writers assert that the envoys from Rhodes who were still in Rome were summoned before the senate after the announcement of the victory, as if to expose them and their stupid arrogance to ridicule. Agepolis, their leader, is reported to have declared that they had been sent by the government of Rhodes to make peace between Perseus and the Romans because that war was burdensome and hurtful to the whole of Greece and an expensive and unprofitable one to the Romans themselves. Now that the war had ended otherwise, the Fortune who presides over Rome had done well to give them an opportunity of congratulating the Romans on their splendid victory. So far the Rhodians. The senate's reply was to the effect that it was neither to promote the interests of Greece nor to save the Roman exchequer that the Rhodians had despatched that embassy, but solely in the interest of Perseus. Had they really felt as anxious about these two matters as they pretended to be, the envoys ought to have been sent at the time when Perseus led his army into Thrace and went on for two years attacking the cities of Greece, some by actual investment, others by intimidation; there was no mention of peace made by the Rhodians then. It was not till they learnt that the mountain defiles had been crossed and the Romans had invaded Macedonia that they sent their envoys, their only motive being to save Perseus from the dangers which were hanging over him. With this reply the envoys were dismissed.

[45.4]About this time M. Marcellus, who was on his way home from Spain, captured the important city of Marcolica, and brought into the treasury 10 pounds' weight of gold and a quantity of silver amounting to one million sesterces. The consul Paulus Aemilius was, as I have already said, still in camp at Sirae, in the Odomantic country, when three persons of mean appearance brought him a letter from Perseus. On seeing the missive he is said to have shed tears over the fate that befalls men, for the man who a short time ago was not contented with his kingdom of Macedonia, but made an attack on the Dardanians and the Illyrians, and had called out the auxiliary levies of the Bastarnae - that man had now lost his army, was driven out of his kingdom a homeless wanderer into a small island where, as a suppliant, he was protected by the sanctity of the temple, not by any strength which he possessed. When, however, he read the salutation, "From King Perseus to the consul Paulus." the man's utter failure to realise his condition destroyed all feeling of compassion. Consequently, though in the body of the letter there were appeals for mercy which were anything but kingly, the messengers were dismissed without any reply either by word of mouth or in writing. Perseus saw that he must forget his royal title in his defeat, and a second letter was sent in which he described himself by his personal name. In this he begged most urgently that some persons might be sent to him with whom he could confer as to his status and the circumstances in which he was placed. The three who were sent to him were P. Lentulus, A. Postumius Albinus and A. Antonius. Nothing resulted from this conference; Perseus clung desperately to his royal title, and Paulus was determined that he should place himself and all that he possessed at the mercy of Rome.

[45.5]Meantime the fleet under Cn. Octavius had put in at Samothrace. Octavius thought that the presence of the fleet would intimidate Perseus, and he tried to induce him to surrender by appealing to his hopes and fears. An incident brought about either by accident or design assisted his efforts. A young man of distinction, L. Atilius, noticed that the people of Samothrace were holding an assembly, and he requested the magistrates to allow him to address a few words to the people. Permission being granted, he began: "My friends and hosts of Samothrace, is it true or false what we have heard, that this is a consecrated island and that its soil is everywhere sacred and inviolable?" There was a unanimous response in the

affirmative, and he went on: "Why, then, is it polluted and violated by a murderer stained with the blood of King Eumenes? And whilst all approach to your sacred shrines is forbidden to those who do not come with clean hands before commencing any holy rite, will you allow them to be contaminated by the presence of a blood-stained assassin?" It was well known through all the cities of Greece that the murder of Eumenes at Delphi had been attempted and all but effected by Euander. They were aware that the temple and the whole of the island lay at the mercy of the Romans, and they felt, too, that they deserved the reproach. Theondas, their chief magistrate - they give him the title of "king" - was accordingly sent to Perseus to inform him that Euander was accused of murder and that courts were established after the manner of their ancestors to try those who were alleged to have entered the sacred boundaries with unholy hands. If Euander felt sure that he would be proved innocent of any capital crime let him appear to defend himself, but if he did not dare to stand his trial, let him deliver the temple from a curse and take measures for his personal safety. Perseus called Euander aside and advised him on no account to undergo a trial; he was no match for his accusers, either on the merits of the case or in the influence which he possessed. He was haunted by the fear that if Euander were found guilty he would bring him in as the instigator of that infamous crime. What was left for him to do but to die bravely? Euander raised no objection openly, but after saying that he would rather die by poison than by the sword, he made preparations for secret flight. On this coming to the king's ears he was afraid that Euander, by escaping punishment, might bring down the wrath of the Samothracians upon himself under the belief that he had connived at his escape. He therefore gave orders for Euander to be put to death. After the reckless perpetration of this murder he suddenly reflected that he had beyond any doubt brought upon himself the blood-guiltiness which had previously rested on Euander. Eumenes had been wounded by Euander in Delphi, and now he himself had put Euander to death in Samothrace. Thus he alone was responsible for the profanation of the two holiest temples in the world by human blood. He averted this terrible charge by bribing Theondas and inducing him to announce to the people that Euander had taken his own life.

[45.6]However, the commission of such a crime against his one remaining friend, who had been tested through so many misfortunes

and who had been betrayed because he would not betray his master, alienated all men's sympathies from him. Each thinking only of himself went over to the Romans, and as he was left all but alone he was compelled to form plans for flight. There was a Cretan named Oroandas who was familiar with the coast of Thrace through his trading journeys. Perseus called upon him to take him on board with him to Cotys. There was a bay formed by one of the headlands of Samothrace, named from the adjacent temple of Demeter the Demetrium, and there the boat was lying. Just after sunset everything required for use, and as much of the money as could be carried without detection, was put on board. The king with three who shared his flight went out at midnight through a door at the back of the house into the garden which was close to his room, and after climbing the wall with considerable difficulty succeeded in reaching the shore. Oroandas had only waited till the money was on board, and as soon as it grew dark weighed anchor and put out to sea for Crete. As no ship was to be found in the harbour Perseus wandered about for some time on the shore. At last, dreading the approach of day, he did not dare to return to his quarters but hid himself in a dark corner on one side of the temple. The children of the Macedonian nobility who were chosen to wait on the king used to be known as "the royal pages." These boys had followed the king in his flight, and even now refused to desert him until a proclamation was published by order of Cnaeus Octavius, stating that the royal pages and any other Macedonians who were in Samothrace would, if they went to the Romans, preserve their personal safety and liberty, and all their property, both what they had with them and what they had left in Macedonia. After this pronouncement all went over and reported themselves to C. Postumius, one of the military tribunes. Ion, the Thessalian, also gave up the king's little children to Octavius, and now no one was left with the king except his eldest son Philip. Then Perseus, inveighing against Fortune and the gods in whose temple he was for refusing all aid to their suppliants, surrendered himself and his son into the hands of Octavius. Orders were given for him to be put on board the commander's ship, together with what remained of the money. The fleet at once sailed back to Amphipolis. From there Octavius sent the king to the consul's camp, having previously advised him that the king was being brought to his camp as a prisoner.

[45.7]Paulus regarded the capture of the king as a second victory, as it really was, and on receiving the news offered sacrifices. He then called his council together and read the praetor's despatch to them. Q. Aelius Tubero was sent to meet the king, the rest were ordered to remain together at the headquarters tent. Never has so great a crowd been brought together at any other sight. In the time of our fathers Syphax was brought as a captive monarch into the Roman camp. But he is not to be compared with Perseus in respect either of his own renown or that of his nation, and besides, he had only played a subordinate part in the Punic War, as Gentius had done in the Macedonian. Whereas Perseus was the head and supreme director of the war; and not only were all eyes drawn to him through his own reputation and that of his father and grandfather and others to whom he was allied by blood relationship, but he was heir to the glory of Philip and Alexander the Great, who raised the Macedonian Empire to a supreme position in the world. Perseus entered the camp in mourning garb without a single attendant to make him more pitiable by sharing his misfortunes. His only companion was his son. Owing to the crowd who surrounded him he was unable to make any progress until the consul sent his lictors to clear a passage for him to the headquarters tent. After asking the rest to keep their seats the consul went forward a few steps and held out his hand to the king as he entered, and when he was going to prostrate himself he raised him to his feet and would not allow him to embrace his knees as a suppliant. Once inside the tent, he bade him take his seat facing the members of the council.

[45.8]The first question put to him was what wrongs had he suffered which compelled him to commence war against Rome in such an aggressive temper and so imperil his own existence and that of his kingdom? Whilst all were waiting for his answer, he kept his eyes fixed on the ground and wept for some time in silence. Then the consul continued: "Had you received the crown in your youth I should be the less surprised at your not knowing what weight Rome possesses either as a friend or an enemy. But now, after having been associated with your father in his war against us and in the peace which followed, and which you well remember we kept with perfect good faith towards him, what could have been your object in choosing war rather than peace with those whose strength you have felt in war and whose fidelity you have experienced in peace?" He

made no reply to either the question or the charge. Then the consul said: "Well, however this may have been brought about, whether through the blindness of human nature or through chance, or through the decree of Fate, keep a stout heart. The clemency of the people of Rome, which has been shown in the misfortunes of many kings and nations, affords you not only a hope, but a tolerably certain guarantee of your personal safety." He said this in Greek to Perseus, and then turning to the council he said in Latin, "You see a striking example of the mutability of human affairs. Especially to you younger men am I now speaking - it does not become us, therefore, in the hour of prosperity to form any aggressive designs against anyone, or to trust the fortune of the moment, for it is uncertain what the evening will bring. He only will prove himself a man whose spirit is not elated by the breath of prosperity nor broken by the blasts of adversity." When the council had broken up, the custody of the king was entrusted to Q. Aelius. On that day he was invited to dine with the council, and every mark of honour was shown to him which could be shown to any one in his position.

[45.9]After this the army went into winter quarters. Amphipolis took in the greater portion. The rest were disposed in the neighbouring cities. Such was the end of the war which had for four successive years been waged between the Romans and Perseus, and the end, too, of a kingdom long renowned through the whole of Asia and most of Europe. From Caranus, the first king, twenty monarchs are enumerated down to Perseus. He received the crown in the consulship of L. Fulvius and L. Manlius, and was recognised as king by the senate when M. Junius and A. Manlius were the consuls. His reign lasted eleven years. The nation of the Macedonians was almost unknown to fame down to the time of Philip, the son of Amyntas. From that time it began to extend under his rule, but it still confined itself within the limits of Europe, embracing the whole of Greece and portions of Thrace and Illyria. Then it overflowed into Asia and during the thirteen years of Alexander's reign he first brought under his power the whole of the Persian dominions, the extent of which was almost illimitable, and then he traversed Arabia and India up to where the Red Sea washes the remotest frontiers of the world. In those days the empire of Macedonia was the greatest in the world, but after Alexander's death it was broken up into numerous kingdoms, each man grasping at power for himself until its strength

was exhausted by internal conflicts, and it sank from the highest pinnacle of prosperity to its final disappearance. It stood for about 150 years.

[45.10]When the news of the victory of Rome had spread into Asia, Antenor, who was lying with a fleet of swift ships at Phanae, left that place for Cassandrea. C. Popilius was at Delos to escort the supply ships destined for Macedonia, and when he learnt that the war in Macedonia was at an end and that the enemy vessels had left their station he sent home the ships of the allies which were under his command and set sail for Egypt to carry out the mission with which he was charged. He was anxious to meet Antiochus, if possible, before he approached the walls of Alexandria. Coasting along the shores of Asia the commissioners arrived at Loryma, a harbour little more than twenty miles from Rhodes and facing the city. Here some of the leading Rhodians had come to meet them - for by this time the news of the victory had been carried to Rhodes - and begged them to break their journey at Rhodes. They said that it deeply concerned the good name and safety of their city that the commissioners should find out for themselves what had been going on and what was going on at the time, and should carry back to Rome what they had personally ascertained and not simply empty rumours. For a long time they refused, but at last consented to a brief interruption of their voyage for the sake of an allied city. After they had entered Rhodes, these same men persuaded them to appear before their assembly. The appearance of the commissioners increased rather than allayed the fears of the citizens. Popilius brought up all the hostile speeches and acts of which they had been guilty during the war, whether individually or collectively. Being a man of fierce temper, he made the matters he spoke about appear still more heinous by his angry expression and the sternness of his voice. So though the citizens had given him no personal offence, they could gather from the embittered tone of one Roman senator what the feelings of the senate as a whole were towards them. The address of C. Decimius was much more moderate. With regard to most of the things that Popilius had mentioned, he said that the blame did not rest with the people, but with a few agitators who had stirred up the mob, and, winning their votes by bribery, had passed decrees filled with flattery of the king, and had been the means of those embassies being sent to him which had caused the Rhodians as much shame as regret. All this, if the

people were sound at heart, would recoil on the heads of the guilty parties. His words were loudly applauded, for he not only exculpated the great body of the citizens, but he fastened the guilt on those who were really responsible for the mischief. When, therefore, their leaders spoke in reply, those of them who tried to explain away the charges which Popilius had made were not listened to with anything like the approval which greeted those who agreed with Decimius that the authors of the evil should be made to atone for the evil they had done. A decree was at once passed that those who were convicted of having spoken or acted in favour of Perseus against the Romans should be sentenced to death. Some had left the city before the Romans came, others took their own lives. The commissioners did not stay beyond five days in Rhodes, and then went on to Alexandria. Their departure did not make the Rhodians any the more slack in commencing the trials under the decree passed when the commissioners were present; the mildness of Decimius did quite as much to strengthen their resolution to see the thing through as the severity of Popilius.

[45.11] (Livy takes up the history from Book 24.19) Antiochus was now master of the rest of Egypt, but after his check before Alexandria he retired from its walls. The elder Ptolemy, whose restoration to his throne Antiochus pretended was his sole object in invading Egypt was left at Memphis, and Antiochus withdrew his army into Syria, prepared to attack whichever brother should prove victorious. Ptolemy was quite aware of his intention, and hoped that by playing upon his brother's fears and holding out the prospect of a siege he might possibly, with the active assistance of his sister and the acquiescence of his brother's friends, be admitted into Alexandria. He began a correspondence with his sister and his brother's friends, and continued to write to them until he had come to terms with them. What made him suspicious of Antiochus was that after handing over the rest of Egypt he had left a strong garrison in Pelusium. It was obvious that Antiochus was holding the key of Egypt in order to make a fresh invasion whenever he chose, and for Ptolemy to engage in intestine strife with his brother would prove to be his ruin, since, even if victorious, he would be no match for Antiochus after an exhausting war. These wise reflections met with the approval of his brother and his friends, and his sister helped him very largely by her advice and her appeals to the brother. So peace was made, and he

was admitted into Alexandria with everybody's consent; even the populace manifested no opposition, though they had suffered severely both during the investment and after the retirement of the enemy, as no supplies were being brought in from the rest of Egypt. This ought to have given the liveliest satisfaction to Antiochus, had his motive for bringing his army into Egypt really been the restoration of Ptolemy. For this was the pretext he alleged in all his communications to the cities of Greece and Asia, and in his replies to their deputations. But he was so intensely annoyed at what had happened that he began to make preparations for war in a much more aggressive and ruthless temper against the two brothers than he had previously shown against the one. He at once sent his fleet to Cyprus, and in the first days of spring set his army in motion for Egypt and advanced into Coelo-Syria. When near Rhinocolura he was met by envoys from Ptolemy, who thanked him for the recovery of his ancestral crown and begged him to protect the boon he had conferred and to say clearly what he wanted rather than attack him as an enemy by force of arms after being his friend. Antiochus replied that he would not recall his fleet or withdraw his army on any other conditions than the cession of Cyprus and of Pelusium and the surrounding country at the mouth of the Nile. He further fixed a day by which he was to receive a reply stating the acceptance of the conditions.

[45.12]When the time for the suspension of hostilities had elapsed he marched through the desert of Arabia, while his fleet was sailing up the mouth of the Nile to Pelusium. After receiving the submission of the inhabitants of Memphis and of the rest of the Egyptian people, some submitting voluntarily, others under threats, he marched by easy stages towards Alexandria. After crossing the river at Eleusis, about four miles from Alexandria, he was met by the Roman commissioners, to whom he gave a friendly greeting and held out his hand to Popilius. Popilius, however, placed in his hand the tablets on which was written the decree of the senate and told him first of all to read that. After reading it through he said he would call his friends into council and consider what he ought to do. Popilius, stern and imperious as ever, drew a circle round the king with the stick he was carrying and said, "Before you step out of that circle give me a reply to lay before the senate." For a few moments he hesitated, astounded at such a peremptory order, and at last replied, "I will do what the

senate thinks right." Not till then did Popilius extend his hand to the king as to a friend and ally. Antiochus evacuated Egypt at the appointed date, and the commissioners exerted their authority to establish a lasting concord between the brothers, as they had as yet hardly made peace with each other. They then sailed to Cyprus and sent home the fleet of Antiochus which had defeated the Egyptian ships in a naval engagement. The work of the commissioners won great renown amongst the nations, for it was undoubtedly owing to this that Egypt had been rescued out of the hands of Antiochus and the crown restored to the Ptolemaic dynasty. Whilst one of the consuls for the year had signalled his consulship by a famous victory, the other remained in comparative obscurity because he had no opportunity of distinguishing himself. At the outset, in fixing the day for the muster of his legions, he did so in a place where the auspices had not been taken. The matter was referred to the augurs, who announced that the proceeding was invalid. After his departure into Gaul he selected a spot near the Macrian Plain at the foot of Mount Sicimina and Papinus for his standing camp and then went into winter quarters in the same neighbourhood with the troops of the Latin allies; the Roman legions owing to the informality in appointing the day for their assembling, remained in Rome. The praetors, with the exception of C. Papirius Corbo, went to their respective provinces. Sardinia had been allotted to him, but the senate decided that he should exercise the alien jurisdiction in Rome, for this, too, the ballot had assigned to him.

[45.13]The commissioners who had been sent to Antiochus returned to Rome, and Popilius informed the senate that the differences between the kings had been adjusted and the army had returned to Syria. Afterwards envoys from the monarchs themselves arrived. Those from Antiochus assured the senate that their king regarded the peace which the senate had imposed as preferable to any victory, and had obeyed the instructions of the Roman commissioners just as though they had been the commands of the gods. They then offered their congratulations on the victory, which they said the king would have done his utmost to further had any orders been given him to that effect. The envoys from Ptolemy returned thanks in the name of the king and Cleopatra; they were more indebted to the senate and people of Rome than to their parents or to the immortal gods, for it was through them that they had been delivered from the miseries of

a siege and had recovered the throne when it was all but lost. The senate replied that Antiochus had done what was right and proper in obeying the commissioners, and this was a source of gratification to the senate and citizens of Rome; as regards the Egyptian monarchs, Ptolemy and Cleopatra, whatever benefit and advantage had been gained through their action was a cause of rejoicing to the senate, and they would make it their business to see that the two monarchs should always look upon the people of Rome as the most secure and trustworthy protectors of their kingdom. C. Papirius was charged with the task of sending the customary presents to the envoys.

Their departure was followed by the arrival of deputations from Pisae and Luna, who had a dispute. The Pisans complained that they had been expelled from their territory by the Roman colonists; those from Luna asseverated that the land in question had been assigned to them by the commissioners who settled the colony. The senate sent five commissioners to investigate the facts and fix the boundaries - namely, Q. Fabius Buteo, P. Cornelius Blasio, T. Sempronius Musca, L. Naevius Balbus and C. Apuleius Saturninus. A joint deputation from Eumenes and the brothers Attalus and Athenaeus also came to offer their congratulations on the victory. Masgaba, the son of Masinissa, had landed at Puteoli, and the quaestor L. Manlius was sent with a sum of money to meet him and conduct him to Rome at the expense of the State. Immediately on his arrival in Rome the senate granted him an audience. The young prince spoke in such a way as to make the matter of his speech still more welcome by the way he put it. He stated the force of cavalry and infantry, the number of elephants, the quantity of corn which his father had sent to Macedonia during the last four years. Two things made him blush; one was that the senate through their ambassadors had requested him instead of commanding him to furnish what was necessary for the war, the other was that they had sent money to pay for the corn. Masinissa, he said, had not forgotten that it was to the Romans that he owed his kingdom and the subsequent extension of it; he was quite contented with enjoying the usufruct of it and was fully aware that the proprietary remained with those who gave it to him. He thought it only right that they should take and not ask or pay for the produce of the soil which they had given. What was over and above the requirements of the people of Rome would be amply sufficient for him. He then informed the senate that after leaving his father with

these instructions he was overtaken by mounted messengers who informed him of the final defeat of Macedonia and brought an order for him to offer his father's congratulations to the senate, and to say that he was so rejoiced at this that he wished to go to Rome and offer sacrifices and thanksgivings in the Capitol if the senate would give him permission.

[45.14]In reply the prince was told that Masinissa had acted as became an honourable and grateful man in enhancing the value and dignity of benefits which were justly due to him. The people of Rome had received from him loyal and powerful assistance in the Punic War, and it was through their good offices that he had gained his crown. In this equal interchange of benefits he had subsequently rendered every possible assistance in the successive wars against three kings. It was not surprising that the victory of Rome should give the king pleasure, seeing how he had associated his own fortunes and those of his kingdom with the cause of Rome. Let him offer his thanksgivings for the victory to the gods at home; his son would do this for him in Rome. He had done quite enough in offering congratulations in his own and his father's name. The senate did not think it would be to the interest of Rome for him to leave his kingdom and come away from Africa, especially as he would gain no advantage by it. The quaestor received instructions to spend 100 pounds of silver in presents for the prince, to escort him to Puteoli and defray all his expenses as long as he was in Italy, and also to hire two vessels in which he and his suite were to be conveyed to Africa. Presents of apparel were made to all his attendants, including the slaves. Not long after a communication was received from Misagenes, the second son of Masinissa, stating that after Perseus' defeat he had been sent by L. Paulus with his cavalry back to Africa, that the fleet had been scattered during the voyage in the Hadriatic, and that he had been carried down to Brundisium and was ill. L. Stertinus was sent to Brundisium with presents of equal value to those given to his brother in Rome, and was instructed to place a house at his disposal.

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[45.15]The freedmen had been distributed amongst the four City tribes, those being excepted who had a son of their own more than five years old, those they ordered to be registered where they had

been assessed at the last census, and also all who possessed a farm or farms more than 30,000 sesterces in value, these were given the right of being registered in the local tribes. Notwithstanding these reservations Claudius insisted that without an order of the people the suffrage could not be taken away from an individual freedman, much less from the order as a whole. For though the censor could remove him from his tribe, which simply meant ordering him to change his tribe, he had no power to remove him from all the thirty-five tribes; that meant depriving him of his citizenship and personal freedom, not deciding where he was to be registered, but excluding him from the list of citizens altogether. This was the question at issue between them. At last they made a compromise. Out of the four City tribes they decided to choose one by lot, publicly in the Hall of Liberty, into which all who had ever been slaves should be incorporated. The lot fell upon the Esquiline tribe, and Tiberius Gracchus announced that it was decided that all the freedmen should be enrolled in that tribe. This action of the censors was greatly appreciated by the senate, and a vote of thanks was accorded to Sempronius for his perseverance in carrying so wise a measure and to Claudius for not opposing it. More names were struck off the senatorial roll than had been the case under former censors, and also off the register of the equites. Both censors concurred in removing them from their tribes, and no one who was branded by the one had the stigma effaced by the other. They requested that their term of office - eighteen months - might be extended to allow of the repair of buildings and the completion of the works for which they had placed contracts, but a tribune of the plebs, Cneius Tremellius, interposed his veto because he had been chosen for the senate. During this year C. Cicereius dedicated the temple of Monata on the Alban Mount, five years after he had vowed it, and L. Postumius Albinus was inaugurated as a Flamen of Mars.

[45.16]When the new consuls, Q. Aelius and M. Junius, brought up in the senate the allocations of the provinces, the House decided that Spain should again form two provinces - during the Macedonian war it had only formed one - and that L. Paulus and L. Anicius should continue to hold Macedonia and Illyria until, in concert with the commissioners, they had settled the confusion caused by the war and given the disturbed countries a constitution other than the monarchical. Pisae and Gaul were allotted to the consuls, each to be held with two legions and 400 cavalry. The result of the balloting

among the praetors was that the civic jurisdiction fell to Q. Cassius, the alien to M. Juventius Thalna, Sicily to Ti. Claudius Nero, Hither Spain to Cneius Fulvius, and Further Spain to C. Licinius Nerva. Sardinia had fallen to A. Manlius Torquatus, but he was unable to go to his province as he was detained by the enquiry into criminal cases which the senate had ordered. The senate was next consulted as to various portents which had been announced. The temple of the Penates in Velia had been struck by lightning, as had also the two gates and a portion of the wall at Minervium. At Anagnia there had been a shower of earth, and at Lanuvium a blazing torch had been seen in the heavens. M. Valerius, who was farming some of the State land at Calatia, reported that blood had trickled from his hearth for three days and two nights. Mainly on account of this latter portent the keepers were ordered to consult the Sacred Books, and they announced special intercessions for one day and a sacrifice of fifty goats in the Forum. In expiation of the other portents there were special intercessions at all the shrines for a second day, sacrifices of full-grown victims, and the lustration of the City. Further, with the purpose of doing honour to the immortal gods, the senate made the following decree: "Whereas our enemies have been overcome, and Macedonia and Illyria have passed under the power of the people of Rome, gifts should be presented at all the shrines equal to those which had been offered after the defeat of Antiochus in the consulship of Appius Claudius and M. Sempronius." Q. Cassius and M. Juventius were to see that these offerings were made.

[45.17] Then the commissioners were appointed who were to advise L. Paulus and L. Anicius as to the settlement of the conquered provinces. The senate decreed ten for Macedonia and five for Illyria. Those for Macedonia were first selected. They were A. Postumius Luscus, C. Claudius (both of them had been censors), Q. Fabius Labeo, . . . C. Licinius Crassus, who had been Paulus' colleague in the consulship and was at the time in command of Gaul, his proconsulship having been extended. These were all ex-consuls, and there were added to their number Cn. Domitius Ahenobarbus, Servius Cornelius Sulla, L. Junius, T. Numisius Tarquiniensis and A. Terentius Varro. The five who were to act as commissioners for the settlement of Illyria were P. Aelius Ligus (an ex-consul), C. Cicereius and Cnaeus Baebius Tamphilus - the latter had been praetor the last year, Cicereius several years previously - P. Terentius Tuscivicanus

and P. Manlius. The consuls were advised by the senate to arrange or ballot for their provinces as soon as possible, as one of them would have to succeed C. Licinius in Gaul, in consequence of his appointment as commissioner. They balloted, and Pisae fell to M. Junius. He decided before leaving for his province to introduce to the senate the various deputations who had come from all quarters to Rome to offer their congratulations. Q. Aelius had Gaul allotted to him. Although the fifteen commissioners were men of such standing that it could reasonably be hoped that the generals acting on their advice would form no decisions unworthy of the clemency or the honour of Rome, the main principles of the settlement were nevertheless discussed in the senate in order that the commissioners might carry them in outline to the commanders.

[45.18]First of all it was resolved that the Macedonians and Illyrians should be free peoples, so that it might be clear to all the world that the arms of Rome did not carry slavery to the free, but on the contrary freedom to the enslaved; and also that amongst those nations which enjoyed liberty, the security and permanence of their liberty rested under the protection of Rome, whilst on the other hand those who lived under the rule of kings might be led to believe that their kings were all the more just and merciful through the respect they felt for Rome, and if ever their sovereigns began war, the issue of the war would bring victory to Rome and liberty to the people. It was also resolved to abolish all contracts for working the mines of Macedonia, which afforded a considerable revenue, and also all leases of the royal domains; these could not be carried on without the tax-farmer, and wherever the tax-farmer flourished either the law lost its authority or the subjects their liberty. Nor were the Macedonians able to work them themselves, for where those in charge found plunder ready to their hand there were never lacking causes for quarrels and riots. The national council was suppressed, lest some unprincipled flatterer of the mob should turn the safe and reasonable liberty which had been granted into a dangerous and fatal licence. Macedonia was to be divided into four cantons, each to have its own council, and the tribute to Rome was to be half what they had been accustomed to pay to the king. The same regulations were made in the case of Illyria. The other measures were left to the generals and commissioners, as they would be dealing with matters on the spot and would be able to make more definite arrangements.

[45.19]Amongst the numerous deputations from kings and free States and communities Attalus, the brother of Eumenes, attracted all men's eyes and thoughts. He was received by the men who had taken part with him in the war with as hearty a welcome as though Eumenes himself had come. Two objects had brought him to Rome, to all appearance honourable ones; one was to offer congratulations on the victory which he had himself helped to win, the other was to complain of an inroad of the Gauls and a defeat which he had sustained and which seriously threatened his kingdom. But he was also cherishing secret hopes of receiving from the senate benefits and rewards which could hardly fall to his lot without injuring his relations with his brother. There were certain men in Rome, evil counsellors, who encouraged his ambitions. These men made him believe that the prevailing opinion in Rome with regard to Attalus and Eumenes was that the one was a sure friend to the Romans, the other was regarded as a man whom neither the Romans nor Perseus could trust as an ally. It was difficult, therefore, to decide whether the requests he made on his own behalf or those through which he might seek to damage his brother would be the more likely to gain the consent of the senate, so bent were they as a body on granting everything to Attalus and denying everything to Eumenes. Attalus, as the event showed, was one of those men who try to gain all that their hopes promise them; but in his case the wise admonitions of a friend put a curb, so to speak, on a temper which was becoming wanton through popularity. There was in his suite a physician called Stratus; Eumenes, who felt uneasy, had sent him specially to Rome to watch his brother's conduct, and if he saw him becoming disloyal to his brother, to give him sound and faithful advice. Stratus found that he had to deal with ears already preoccupied and feelings already tampered with, but he seized favourable moments for conversing with him, and in these interviews he restored a position which had become almost hopeless. He represented to him that different kingdoms had grown strong through different causes; their kingdom was a new one, not based upon age-long power; it stood through brotherly harmony; the royal title and the crown are borne by one, but all his brothers reign with him. Who would not regard Attalus, the next in age, as a king, not only because he sees him in such a powerful position now, but also because the day is near when he will ascend the throne owing to the age and weakness of Eumenes, who has no legitimate son? (He had not yet acknowledged the one who

succeeded him.) What advantage would there be in trying to gain by violent means what would shortly come to him of its own accord? A fresh storm had burst on the realm in an invasion of the Gauls which could with difficulty be withstood even by the combined and harmonious efforts of the two monarchs. "If, however, in addition to a foreign foe there was domestic strife, resistance would be impossible, and all that would be gained would be that your brother would lose the crown before his death and you would destroy all hopes of your succeeding him. Even assuming that to save the kingdom for your brother and to wrest it from him were both things you could boast about, still the preservation of the kingdom and the proof it would afford of your brotherly affection would be the more commendable and praiseworthy. But as a matter of fact the one alternative is detestable and is next door to parricide; why then should there be any doubt as to which course to take? Are you going to try and secure a part of the kingdom or deprive your brother of the whole? If the former, then, your power being divided, you would be both weakened and exposed to every possible injury and outrage. If the latter, are you prepared to send your elder brother into private life or into banishment, old and infirm as he is, and at last to a lonely exile's death? For, without recalling the legendary stories of unnatural brothers, what a signal warning is given in the fate of Perseus, who laid at the feet of his conqueror the diadem stained with his brother's blood which he had seized in the temple at Samothrace, as though the gods who witnessed the murder were now exacting the penalty. The very men who are goading you on, not because they are friendly to you, but because they are enemies to Eumenes, will themselves applaud your affection and constancy if you maintain your loyalty to your brother to the end."

[45.20] These arguments prevailed with Attalus. Accordingly, when introduced to the senate he offered his congratulations on the victory, and alluded to the services, such as they were, which he and his brothers had rendered. He then described the serious unrest among the Gauls which had brought about a revolt and begged the senate to send envoys to them with sufficient influence and authority to induce them to lay down their arms. Having carried out his instructions so far as they affected the welfare of the kingdom, he asked that Aenus and Maronea might be assigned to him. So, to the disappointment of those who supposed that after bringing charges

against his brother he would ask for the kingdom to be divided between them, he left the senate-house. Seldom at any time has either king or private citizen been listened to with such universal pleasure and approval; all honours and gifts were showered upon him during his stay, and his departure was witnessed by large crowds. Amongst the numerous delegations from Greece the one from Rhodes excited the greatest interest. They appeared in white garments as befitted their mission of congratulation, and indeed if they had shown themselves in mourning it might have looked as though they were lamenting the fall of Perseus. When the consul, M. Junius, consulted the senate as to whether they would grant them free quarters and hospitality and an audience, the House decided that the obligations of hospitality should not be discharged in their case. The envoys meanwhile were standing in the Comitium, and when the consul came out of the senate-house they told him that they had come to offer their congratulations on the victory and to rebut the accusations of treason, and they begged that the senate would grant them an audience. The consul told them plainly that it was to friends and allies that the Romans were wont to give a hospitable welcome and grant an audience of the senate. The conduct of the Rhodians during the war had not been such that they deserved to be counted amongst the friends and allies of Rome. On hearing this, they all prostrated themselves to the ground and implored the consul and all who were present not to think it just and right that the new charges which were falsely made against them should outweigh their services in the past, services to which the Romans themselves could testify. They lost no time in putting on mourning garments and visiting the residences of the principal men, whom they implored not to condemn them without a hearing.

[45.21]M. Juventius Thalna, who was the praetor in charge of the alien jurisdiction, was inciting the populace against the Rhodians and had proposed a resolution that war should be declared against Rhodes, and that one of the magistrates for the year should be chosen to command the fleet, hoping that he himself would be appointed. Two of the tribunes of the plebs, M. Antonius and M. Pomponius, opposed this proceeding. The praetor himself had acted in defiance of precedent, for he was making the proposal on his own initiative without consulting the senate or informing the consuls of the question he was going to put, viz. whether it was the will and order

of the people of Rome that war should be declared against Rhodes. Hitherto the senate had always been consulted on the question of war, and then, if the senate gave their sanction, the question was submitted to the popular Assembly. The tribunes of the plebs, too, were in the wrong, because the traditional usage was that no one should veto a measure until the citizens had had the opportunity of speaking for or against it. Hence it had very frequently happened that those who had asserted that they would not interpose their veto did interpose after the opponents of the measure had made them aware of its defects, whilst on the other hand those who had come prepared to veto a measure were convinced by the arguments of its supporters and withdrew their veto. On this occasion the praetors and the tribunes vied with each other as to who could act most precipitately; the tribunes forestalled the praetor by interposing their veto before the right time . . .

[45.22]". . . So far it is a question whether we have or have not been guilty of any offence; all the penalty, the humiliation we are suffering from already. In the past, when we visited Rome after the Carthaginians were defeated, after Philip and Antiochus had been overcome, we went from our quarters where we were the guests of the State to offer our congratulations in the senate house, and from there we went up to the Capitol with gifts for your gods. Now we have come away from a miserable inn where we could hardly get admittance, ordered as we are to remain outside the City almost as though we were enemies. In this squalid plight we have come into the Roman senate-house - we Rhodians to whom not long ago you granted the provinces of Lycia and Caria, and upon whom you have bestowed the greatest distinctions and rewards. According to what we hear, you are ordaining that the Macedonians and Illyrians shall be free peoples, though before they went to war with you they were in servitude - not that we envy any one's good fortunes, on the contrary we recognise the clemency of Rome - but the Rhodians simply remained quiet, and are you going to convert friends into enemies by this proposed war? Surely you are the same Romans who make it your boast that your wars are successful because they are just, and pride yourselves not so much upon bringing them to a close as victors as upon never beginning them without just cause. The attack on Messina in Sicily made the Carthaginians your enemy; his attack on Athens, his attempt to enslave Greece, the assistance rendered to

Hannibal in money and troops made Philip your enemy. Antiochus, on the invitation of the Aetolians, who were your enemies, sailed in person with his fleet from Asia to Greece, seized Demetrias, Chalcis and the Pass of Thermopylae and tried to dispossess you of your empire. Your grounds for the war with Perseus were the attacks on your allies, or the murder of the princes and leading men in different communities and nationalities. What pretext or justification will there be for our ruin, if we are to perish? So far I do not make any difference between the case of our city as a whole and that of our fellow-citizens Polyaratus and Dino and the others whom we have brought with us to deliver up to you. Suppose all we Rhodians were equally guilty, what charge would be brought against us with regard to this war? You say we took the side of Perseus, and just as in the wars against Philip and Antiochus we stood by you against those monarchs, so now we stood by the king against you. Ask the commanders of your fleets in Asia, C. Livius, L. Aemilius Regillus, how we were wont to help our allies and with what energy we prosecuted the war. Your ships never fought without us to help you; we fought single-handed at Samos and a second time off Pamphylia against Hannibal, who was in command. And this victory was all the more glorious for us because after losing a large proportion of our ships and the flower of our youth in the defeat at Samos, we were not daunted even by that disaster, and we met the king's fleet on its way from Syria. I am not recounting these incidents in a spirit of boasting - our present circumstances forbid that - but to remind you how the Rhodians have been accustomed to help their allies.

[45.23]"After the final defeat of Philip and of Antiochus we received the most splendid rewards from you. If the good fortune which, through the kindness of heaven and your own courage, is now yours had fallen to the lot of Perseus and we had gone to Macedonia to meet the victorious king and ask him for rewards, what could we possibly say for ourselves? That he had received assistance from us in money or corn? Or in naval and military contingents? Or that we had held any fortified position for him? Or that we had fought any battles for him either under his generals or on our own account? If he were to ask where our soldiers were supplying his garrison or our ships joining his fleet, we should, perhaps, make the same defence before the victor that we are now making before you. This is what we have gained by sending envoys to both parties to urge peace - we

have won the gratitude of neither, and from one side we have incurred suspicion and danger. And yet Perseus truly might bring a charge against us which you, senators, cannot bring. At the outset of the war we sent a deputation to promise assistance with whatever was needful for the war, and to assure you that everything was in readiness, our naval forces, our munitions of war, our fighting men, just as in the former wars. It was owing to you that we did not supply them; whatever the reason was, you refused our assistance. So then not only did we show no hostility to you, but we were not lacking in our duty as faithful allies, though you prohibited us from discharging it.

"Some one may say, 'What then? Has nothing been done or said in your City which you disapproved of and which was such as to give just offence to the people of Rome?' I am not here now to defend what has been done - I am not so mad - but I shall draw a distinction between the cause of the State as a whole and the guilty conduct of individual citizens. There is no State which does not at some time possess bad citizens and at all times an ignorant populace. I have heard that even amongst you there have been men who made their way by flattering the mob, and that there have occasionally been secessions of the plebs when the government was no longer in your hands. If these things could happen in so well-ordered a State as this, can any one feel surprised that there have been amongst us a few men who in their desire to win the friendship of the king have led our plebs astray by their evil counsels? All the same, they did not effect anything more than make us slacken in our duty. I will not pass over what is the most serious charge brought against us with regard to this war. We sent embassies to you and to Perseus simultaneously to urge peace. This unfortunate policy has been, as we have heard, held up as abject folly by a furious orator, who it is admitted spoke in such a tone that he might have been C. Popilius, your envoy, whom you commissioned to dissuade Antiochus and Ptolemy from war. Still, whether we are to call it arrogance or folly, our policy towards you was the same as towards Perseus.

"States, like individuals, have their distinctive characters, some are hot-tempered, others bold and enterprising; some are of a timid disposition, others more prone to sensual indulgence. The people of Athens are generally reported to be quick and impulsive and venture upon enterprises beyond their strength: the Lacedaemonians are said

to be slow in action and only with difficulty are they brought to engage in undertakings in which they feel perfectly safe. I quite admit that Asia as a whole produces somewhat empty heads and that the language of my countrymen is somewhat inflated because we fancy ourselves superior to our neighbours. This in itself is due more to the honours which you have judged us worthy to receive than to any strength which we ourselves possessed. Surely that embassy was sufficiently chastised when it was dismissed without any reply. If the humiliation then inflicted was not enough, this embassy, at all events, with its piteous and suppliant appeal will be an adequate atonement for an even more peremptory set of negotiators than that one was. Arrogance, especially in language, is bitterly resented by hot-tempered people and laughed at by sensible people, particularly when shown by inferiors towards a superior, but no one has ever regarded it as a capital offence. Possibly some one imagined that the Rhodians felt a contempt for the Romans. Some men even abuse the gods in presumptuous language, but we do not hear of any one being struck by lightning for it.

[45.24]"If no hostile act can be imputed to us, if the pompous language of our envoy, offensive as it was to listen to, did not merit the destruction of our city, what is there left from which we have to clear ourselves? I hear, senators, that you are discussing the amount of the fine which is to be imposed upon us for our unspoken wishes. It is alleged that our sympathies were with the king and that we should have preferred to see him victorious, so, some of you think we ought to be punished by war, others hold that while that was our wish we ought not on that account to be punished. In no State has it been laid down either by traditional usage or by positive enactment that whoever wishes the destruction of an enemy, but does nothing to bring it about, shall still suffer capital punishment. To those of you who are for freeing us from the penalty though not from the charge we are grateful; we assert this principle for ourselves - if, as is alleged, this was the universal wish, we do not distinguish between will and deed, we are all involved. If some of our leaders were on your side and others on the side of the king, I do not ask that the supporters of the king should enjoy immunity on account of us who were on your side; what I do ask is that we should not perish on account of them. You are not more angry with them than our State itself is, and, knowing this, most of them have either fled or taken their own lives;

others whom we have found guilty will be in your hands, senators. Though the conduct of the rest of us during the war has merited no gratitude, it certainly has not merited punishment. Let the accumulation of our former services outweigh this failure in our duty. During these late years you have been engaged in war with three kings; let not the fact that we gave no assistance in one war count more against us than the fact that we fought for you in two wars counts for us. Let Philip, Antiochus and Perseus stand for three separate verdicts; two acquit us, one is so doubtful as to be adverse. If they were our judges we should be pronounced guilty; you, senators, are now acting as judges as to whether Rhodes is to remain in the world or be utterly blotted out. The question before you is not one of war; you can commence one, but you cannot continue it, since not a single Rhodian is going to bear arms against you. If you persist in nursing your wrath against us we shall ask for time to carry the tidings of this fatal embassy home. All of us every free person, every man and woman in Rhodes, will go on board our ships with all the money we possess, and bidding farewell to our national and our household gods, we shall come to Rome. All the gold and silver belonging to the State, all that individual citizens possess, will be placed in a heap on the Comitium, on the threshold of your senate-house, and we shall deliver up ourselves, our wives and children to you, prepared to suffer whatever may be in store for us. Far removed from our eyes, let our city be plundered and burnt. The Romans have it in their power to judge the Rhodians to be public enemies, we too can pass some judgment on ourselves; we shall never judge ourselves to be your enemies, nor will we commit a single hostile act, even if we have to suffer everything that you can inflict upon us."

[45.25]Such was the speech. At its close they all again prostrated themselves, waving their suppliant olive branches to and fro. At last they rose and left the senate-house. Then the senators were asked to state their view. The bitterest opponents of the Rhodians were those who as consuls or praetors or staff officers had taken part in the war. The one who did most to help them was M. Porcius Cato, who though naturally stern and inflexible acted on this occasion the part of a lenient and conciliatory senator. I will not insert a specimen of his fluency and eloquence by transcribing his speech, it is extant in the Fifth Book of his *Origines*. The reply made to the Rhodians was to the effect that they would neither be declared enemies nor allowed

to remain as allies. The leaders of the deputation were Philocrates and Astymedes. Some of the delegates decided to accompany Philocrates back to Rhodes with the report of the proceedings, others elected to remain in Rome with Astymedes so that they could find out what was going on and inform their countrymen. For the time being they were only required to withdraw their governors from Lycia and Caria. This would in itself have created a painful impression, but as they were relieved from the apprehension of a worse evil, that of war, the announcement was received with joy. They at once decreed a crown of 20,000 gold pieces in value and sent it to Theaetetus, the commandant of the fleet, for him to carry it to Rome. They wished him to press for an alliance with Rome, but in such a way that the terms would not be submitted to the people, nor reduced to writing, because in case he was unsuccessful the failure would be all the more humiliating. It was the sole prerogative of the commandant of the fleet to act in these matters without any formal decree being made. For all those years they had maintained friendly relations with Rome without binding themselves by an express treaty of alliance, their only reason being that they did not wish to preclude the kings from all hopes of their assistance should it ever be needed, nor themselves from the advantage to be derived from the bounty and good fortune of those monarchs. Under present circumstances it seemed especially desirable that an alliance should be formed, not to give them additional security against other nations - for they feared none but the Romans - but to make them less suspected by the Romans themselves. Just at this time the Caunians revolted from them and the Mylasensians seized the towns of the Euromensians. The Rhodian government was not so broken in spirit as not to become aware that if Lycia and Caria had been taken from them by Rome the other subject countries would either win their freedom by revolt or be seized by their neighbours, and they themselves would be shut up in a small and unfertile island which was quite incapable of supporting the population of so large a city. A body of troops was accordingly despatched to the disaffected districts and reduced the Caunians to submission, though they had summoned help from the Cibyratae. They also defeated in an action near Orthosia the Mylasensians and Alabandians who had joined forces to wrest from them the province of Euromos.

[45.26]While these various events were taking place in Caria, Macedonia and Rome, L. Anicius was campaigning in Illyria. After receiving the submission of King Gentius, as stated above, he placed a garrison in Scodra, the capital, with Gabinius in command, and others in Rhizon and Olcinium, cities well adapted for the purpose, under C. Licinius. He then advanced with the rest of his army into Epirus. The first city to surrender to him here was Phanota, where the whole population streamed out to meet him with fillets of supplication round their brows. He garrisoned the place and marched into Molossia. All the towns with four exceptions made their surrender. Those who stood out were Passaron, Tecmon, Phylace and Horreum. The first to be attacked was Passaron. Antinous and Theodotus were the leaders in this city. They had distinguished themselves by their support of Perseus and their hatred of the Romans; it was through them that the whole nation had revolted from Rome. Knowing that the guilt rested on them personally and hopeless of obtaining pardon, they shut the gates that they might be buried in the general ruin of their country, and appealed to the inhabitants to prefer death to servitude. No one ventured to open his lips against such powerful men. At last a certain Theodotus, a young man of noble birth, whose dread of the Romans proved stronger than his fear of his chiefs, exclaimed, "What madness possesses you that you should make the whole body of citizens accessories to the guilt of two men? I have often heard tell of men who have met death on behalf of their country; these are the first who have been found to think it right that their country should perish for their sake. Why do we not open our gates and accept the sovereignty which the whole world has accepted?" As he said this the whole multitude followed him, Antinous and Theodotus rushed against the nearest outpost of the enemy and died of the wounds they had invited, the city surrendered to the Romans. At Tecmon the chief magistrate was equally defiant and closed the gates. He was put to death and the place surrendered. Neither Phylace nor Horreum stood a siege.

When Epirus was finally pacified and the army distributed amongst the cities suitable for their winter quarters Anicius returned to Scodra, where the five commissioners had arrived from Rome. Here he summoned the chief magistrates from all parts of the province to a conference. Ascending the tribunal, he made the following announcement as agreed upon with the commissioners: "It is the

order of the senate and people of Rome that the Illyrians shall be a free nation. I shall withdraw my garrisons from all your towns, citadels and forts. The Issenses, the Taulantii, the Pirustae of Dassaretia, the cities of Rhizon and Olcinium, shall be not only free politically, but exempt from all tribute, because they revolted to the Romans whilst Gentius was still in power. Similar exemption is also granted to the Daorsei, because they deserted Caravantius and went over fully armed to the Romans. The people of Scodra, Dassara, and Selepetia will have half the tribute imposed upon them that they paid to the king." He then announced a threefold division of Illyria. One has been mentioned already; the second comprised the whole country up to Lake Libeatus; the third included the Agravonites, the Rhizonites, the Olciniates and the settlers on their borders. After laying down this constitution for Illyria he returned to Passaron in Epirus for the winter.

[45.27] During these proceedings in Illyria, Paulus, prior to the arrival of the ten commissioners, sent his son Q. Maximus, who had now returned from Rome, to sack the cities of Aeginium and Agassae, the latter because after surrendering to the consul Marcius and voluntarily asking for an alliance it had again revolted to Perseus. The offence of the people of Aeginium was of a novel character. They did not attach any credence to the report of the Roman victory, and killed some of the soldiers who had entered the town. L. Postumius was also sent to sack the city of Aeniae because the inhabitants had shown greater obstinacy than the surrounding cities. Autumn was approaching and the consul decided to utilise this season for making a tour through Greece and visiting objects to which the fame that reaches our ears lends a grandeur which the eye fails to discern. He placed C. Sulpicius Galbus in charge of the camp and set out with a small escort, his son Scipio and Athenaeus, Eumenes' brother, riding on either side of him. Passing through Thessaly he made his way to Delphi, the world-famed oracle. Here he offered sacrifices to Apollo and some unfinished columns in the vestibule on which it had been intended to place statues of Perseus he set apart for statues of himself in commemoration of his victory. He also visited the temple of Jupiter Trophonius at Lebadia and saw the mouth of the cavern into which those who consult the oracle descended. There is a temple here dedicated to Jupiter and Hercynna, and he offered sacrifices to these deities. He then went on to Chalcis to see the Euripus and the bridge

which connects the large island of Euboea with the mainland. From there he crossed to Aulis, a distance of three miles, and viewed the harbour, famous as the anchorage of Agamemnon's thousand ships, and also the temple of Diana, at whose altar the renowned "king of kings" sacrificed his daughter that his fleet might have a favourable voyage to Troy. He then went on to Oropus, where an ancient bard is worshipped as a god and his venerable temple is delightfully situated amidst fountains and brooks. From there he proceeded to Athens. This city is full of the traditions of its ancient glory, but it nevertheless possesses many things worth seeing - the citadel, the harbour, the walls connecting the city with the Piraeus and the dockyards; memorials of great commanders, statues of gods and men, splendidly wrought in every kind of material and every form of art.

[45.28]After sacrificing to Minerva, the tutelary deity in the Acropolis, he left for Corinth, which he reached on the following day. At that time, before its destruction, it was a glorious city. The citadel and the Isthmus presented a striking spectacle - the citadel inside the walls rising to a great height, with streams flowing everywhere, and the Isthmus separating by a narrow belt of land two seas, one to the east and the other to the west. Sicyon and Argos were the next places visited, both of them famous cities; and next to them Epidaurus, not so wealthy as those, but celebrated for the splendid temple of Aesculapius, five miles distant from the city, filled at the present day with the relics and vestiges of the offerings which then enriched it, offerings made to the god by the sick as a grateful reward for their recovery. From there he went on to Lacedaemon, a city memorable, not for the magnificence of its buildings, but for its discipline and its institutions. Passing through Megalopolis he went up to Olympia. Here among the different objects which attracted his attention, he was deeply impressed as he gazed on Jupiter, standing as it were before him, and he gave orders for a sacrifice to be prepared on an ampler scale than usual, just as if he were going to sacrifice in the Capitol.

In this progress through Greece he was careful to avoid doing anything that might alarm those who were friends of Rome, and therefore he made no enquiry into the sentiments entertained by communities as a whole or by individual citizens during the war with Perseus. On his return to Demetrias he was met by a crowd of

Aetolians dressed in mourning. On his asking with some surprise what the matter was, they told him that five hundred and fifty of their principal citizens had been put to death by Lyciscus and Tisippus, after they had placed round the senate-house a cordon of Roman soldiers sent by A. Baebius, the commandant of the garrison. Others they had sent into exile, and they were keeping the property of those who had been killed as well as of those who had been banished. He sent orders for those who were accused to await him at Amphipolis. He met Cnaeus Octavius at Demetrias, and while he was there a report reached him that the ten commissioners had landed in Greece, and laying aside all other business he proceeded to Apollonia. Through the slackness of his guard Perseus had been able to get away from Amphipolis and met Aemilius at Apollonia - it is only a day's journey. Aemilius is said to have spoken to him in a kindly tone, but when he arrived in the camp at Amphipolis he severely censured C. Sulpicius, in the first place because he had allowed Perseus to wander so far away in the province and secondly because he had shown such indulgence to his soldiers that he allowed them to remove the tiles from the city walls in order to roof their winter huts. He ordered the tiles to be taken back and the uncovered places to be restored to their former condition. Perseus and his elder son Philip were handed over to A. Postumius to be kept under guard; Aemilius treated the daughter and the younger son, who had been brought from Samothrace, with every mark of respect and kindness.

[45.29]Aemilius gave notice for the councils of ten from all the cities to assemble at Amphipolis and to bring with them all archives and documents wherever they were deposited, and all the money due to the royal treasury. When the day arrived he advanced to the tribunal, where he took his seat with the ten commissioners, surrounded by a vast concourse of Macedonians. Though they were accustomed to the display of royal power, this novel assertion of authority filled them with fear; the tribunal, the clearing of the approach to it through the mass of people, the herald, the apparitor, all these were strange to their eyes and ears and might even have appalled allies of Rome, to say nothing of a vanquished enemy. After the herald had called for silence Paulus, speaking in Latin, explained the arrangements decided upon by the senate and by himself in concert with the ten commissioners; Cnaeus Octavius, who was also present, translated the address into Greek. First of all it was laid down that the

Macedonians were to be a free people, possessing their cities and fields as before, enjoying their own laws and customs and electing their annual magistrates. They were to pay to Rome half the tribute which they had been paying to the king. Secondly, Macedonia was to be broken up into four separate cantons. The first would embrace the district between the Strymon and the Nessus, and in addition, beyond the Nessus to the east, the forts, towns and villages which Perseus had held, with the exception of Aenus, Maronea and Abdera, and beyond the Strymon to the west the whole of Bisaltica together with Heraclea, which district the natives call Sintice. The second canton would be bounded on the east by the Strymon, exclusive of Sintice, Heraclea and Bisaltica; and on the west by the Axios, including the Paeonians, who dwelt to the east of the Axios. The third division would be the district enclosed between the Axios on the east and the Peneus on the west; the Bora range shuts it in on the north. This canton was increased by the addition of the part of Paeonia which extends westwards beyond the Axios; Edessa and Beroea were assigned to this division. The fourth canton lay on the other side of the Bora range, bordering Illyria on the one side and Epirus on the other.

Aemilius then designated the capital cities where the councils were to be held in the different cantons; Amphipolis was fixed for the first, Thessalonica for the second, Pella for the third, and Pelagonia for the fourth. There the councils for each canton were to be summoned, the tribute deposited, and the annual magistrates elected. His next announcement was that all intermarriage between the inhabitants of the different cantons was forbidden, as also the possession of land or houses in more than one canton. The gold and silver mines were not allowed to be worked, but permission was given in the case of the iron and copper mines. Those working the mines would have to pay one half of the royalty which they had paid to the king. The use of imported salt was also forbidden. The Dardanians were laying claim to Paeonia on the ground that it once belonged to them, and they had a common frontier; the consul told them in reply that he was granting political liberty to all who had been under the rule of Perseus. As he had refused them Paeonia he granted them the right to purchase salt and ordered the third canton to carry its salt to Stobi, fixing, at the same time, the price at which it was to be sold. He forbade the Macedonians either to cut timber for ship-building

themselves or to allow others to do so. He gave permission to those cantons whose frontiers were contiguous to those of the barbarians to maintain armed forces on their borders.

[45.30] This pronouncement made on the first day of the conference called forth mixed feelings in the audience. The unhopèd-for boon of political liberty and the lightening of the annual tribute were a great relief to them, but the prohibition of mutual intercourse between the different cantons seemed to them like the rending asunder of their country, like an animal deprived of its limbs, where each limb is necessary to all the rest so ignorant were they of the size of Macedonia, how easily it lent itself to division and how self-contained each part was in itself. The first section includes the Bisaltae, a nation of warriors living on the other side of the Nessus and around the Strymon and contains many special kinds of fruit and minerals and the city of Amphipolis, which is so conveniently situated, commanding as it does all approaches from the east. Then again, the second division comprises the populous cities of Thessalonica and Cassandrea and also the rich corn-growing district of Pallene. Facilities for sea-borne traffic are afforded by numerous harbours: some at Torone under Mount Athos, and at Aenea and Acanthus, others facing Thessaly and Euboea, and others again easily accessible from the Hellespont. The third canton includes the famous cities of Edessa, Beroea and Pella, the warlike tribe of the Vettii and also a large population of Gauls and Illyrians who are devoted to husbandry. The fourth canton is peopled by the Eordaei the Lyncestae and the Pelagones, and there are also the three cities of Atintania, Tymphaei, and Elimiotis. The whole of this strip of country is cold and unkindly and difficult of cultivation, and the character of the peasants corresponds to that of their country. Their barbarian neighbours make them still more ferocious by sometimes familiarising them with war, and in times of peace introducing their own rites and customs. In this division of Macedonia, therefore, each separate portion had its own distinctive advantages

[45.31] After the constitution of Macedonia had been thus announced, and the consul had declared his intention of providing a code of laws, the Aetolians were summoned to appear. The enquiry was directed more to find out who had been in favour of the Romans and who in favour of the king than to discover which party had inflicted and which had suffered wrongs. The murderers were

acquitted, the exiles and the slain were alike considered to have deserved their fate; the only one found guilty was A. Baebius because he had allowed his soldiers to be the instruments of the massacre. This result of the case of the Aetolians had the effect of inflating the adherents of the Roman party in all the communities and peoples of Greece to an insupportable pitch of insolence, and whenever there was any suspicion of having favoured the king their opponents were trampled in the dust. The leaders in the various cities fell into three classes; two of these consisted of men who, whilst insinuating themselves into the confidence of the Romans on the one hand or the king on the other, aggrandised themselves at the expense of their fellow-citizens, the third class sought to defend their liberties and their laws by opposing both the others. The greater the affection which their compatriots felt for them at home, the less were they appreciated abroad. Elated by the success of the Romans, the supporters of that party were in sole possession of the magistracies and the sole representatives of their States. Numbers of these men came from the Peloponnesus, from Boeotia, and the other national councils in Greece to be present at the congress, and they filled the ears of the commissioners with their charges. They averred that the supporters of Perseus included not only those who in a spirit of idle vanity openly boasted that they were his friends and intimates, but a far more numerous body who had secretly espoused his cause, and under the pretext of defending their liberties had everywhere induced the councils to act in direct hostility to Rome. The loyalty of the different States could only be maintained by crushing these parties and strengthening the authority of those whose sole aim was to support the power of Rome. A list of names was furnished by these men, and letters from the commander were despatched to Acarnania, Aetolia, Epirus and Boeotia, ordering those named to follow him to Rome to make their defence. Two of the commissioners, C. Claudius and Cnaeus Domitius, went in person to Achaia to publish this order. There were two reasons for this. One was their belief that the self-confidence and high spirit of the Achaeans would prevent their obeying the order, and possibly Callicrates and the other informers might even be in danger of their lives. The other was that while letters from the leaders in other States had been discovered in the royal archives, none had been found from the Achaeans, and the charges against them lacked proof. After the Aetolians had withdrawn, the Acarnanian deputation was called in. In their case no change was

made beyond the removal of Leucas as a member of their league. Then the commissioners extended the scope of this enquiry as far as Asia. Labeo was sent to destroy the city of Antissa in the island of Lesbos, and transfer the inhabitants to Methymna, the reason for this step being that they had admitted the king's naval commander, Antenor, into their harbour and helped him with supplies while he was cruising off Lesbos. Two of their leaders were beheaded: Andronicus, the son of Andronicus, an Aetolian, because he had followed his father and borne arms against Rome, and Neo, a Theban, who had been the prime agent in their forming an alliance with Perseus

[45.32]The congress of the Macedonians which had been interrupted by these proceedings was again convened. First of all the status of Macedonia was defined. Senators, who were known as "synedri," were to be elected to form a council for the administration of government. Then a list was read out of the names of those Macedonian leaders who it was decided were to go in advance to Italy with all their children over fifteen years of age. At first glance this seemed a cruel measure, but it soon became apparent to the Macedonians that it was done to protect their liberties. The names on the list were those of the friends and court nobles of the king, the generals of his armies, the commanders of his ships and garrisons accustomed to servile submission towards him and dictatorial insolence towards others. Some were exceedingly wealthy others whose fortunes did not equal theirs lived quite as extravagantly; their table and dress were on a regal scale they had no idea of citizenship, and were incapable of submission to law or to a liberty equal for all. Every one, therefore, who had been employed in the king's service, even those who had been sent as envoys, were ordered to leave Macedonia and proceed to Italy, and whoever refused obedience was threatened with death. The laws which Aemilius gave to the Macedonians had been so carefully and considerately drawn up that he might be thought to be giving them not to vanquished enemies but to allies who had rendered good service, and not even after a long practical experience - the only safe guide in legislative reform - have they been found to need amendment. After attending to these more serious matters he celebrated the Games, for which preparations had been going on for a long time, with great splendour. Notice of them had been sent to the cities of Asia and to the kings, and during his

tour in Greece Aemilius had informed the leading men about them. There was a gathering of artistes proficient in every kind of scenic display, a vast assemblage of athletes from all parts of the world, and horses that had won many races. There were also civic deputations with their animals for sacrifice; everything, in fact, which usually formed a part of these exhibitions in honour both of gods and men. The performances were so good that not only the magnificence of the spectacle but the skill shown in its display were universally admired; the Romans were not in those days adepts at these exhibitions. The same care was taken over the rich banquets which were prepared for the civic deputations. A remark of the consul's was often quoted, that, the man who knew how to win a war had also to furnish entertainment and prepare Games for the conquered.

[45.33]When all the performances were ended and the bronze targets had been put on board the ships, the rest of the spoils were collected into enormous heaps. Then the commander offered up prayers to Mars and Minerva and Lua Mater and the other deities to whom the spoils taken from the enemy must be solemnly dedicated. He then applied a torch to the heap and the military tribunes standing round each cast a brand on the pile. It is a noteworthy fact that in this great meeting of Europe and Asia, where a multitude had been drawn together from every part of the world, some to offer congratulations, some to see the spectacle, where such great naval and military forces were assembled, there was nevertheless such abundance of everything and provisions were so cheap that the general out of this abundance made gifts to individuals, to cities, and even to whole nations, sufficient not only for their use at the time, but enough for them to take home with them. The spectators were not more interested in the scenic representations and the athletic contests and chariot races than they were in the display of the spoils from Macedonia. These were all laid out to view - statues, pictures, woven fabrics, articles in gold, silver, bronze and ivory wrought with consummate care, all of which had been found in the palace, where they had not been intended, like those which filled the palace at Alexandria, for a moment's ornament but for constant and lasting use. They were all placed on board the fleet under the charge of Cnaeus Octavius to be transported to Rome. After taking a friendly leave of the various deputations Paulus crossed the Strymon and fixed his camp a mile distant from Amphipolis. A five days' further

march brought him to Pella. Marching past the city he arrived at a place called Spilaeum, where he stayed two days. During his stay he sent P. Nasica and his son Q. Maximus to ravage that part of Illyria from which assistance had been sent to Perseus and afterwards to meet him at Oricum. He himself took the road to Epirus and after a fifteen days' march reached Passaron.

[45.34]Anicius' camp was not far away, and the consul sent a letter telling him not to be disturbed at what was going on, for the senate had made a grant to his army of the plunder from those cities in Epirus which had gone over to Perseus. Centurions were sent to each of the cities to say that they had come to bring away the garrisons in order that the Epirots should be free as the Macedonians were free. The town councillors in each community were sent for and warned to have the gold and silver brought out into some public place, and cohorts were ordered to visit all the cities. Those who were to go to the more distant places started before those who were to go to the nearer ones, and they all reached their destination on the same day. The military tribunes had received instructions as to what they were to do. All the silver and gold had been collected together in the morning, and at ten o'clock the signal was given to the soldiers to sack the cities. So great was the amount of booty secured that 400 denarii were distributed to each cavalryman and 200 to each foot soldier, and 150,000 human beings were carried off. Then the walls of the plundered cities, some seventy in number, were destroyed, the booty sold and the proceeds furnished the above-mentioned sum for the troops. Paulus went down to the seaport of Oricum, but his soldiers were far from satisfied; they resented being excluded from all share in the plunder of the palace, as though they had not taken any part in the Macedonian war. At Oricum he found the troops which had been sent off with Scipio Nasica and Q. Maximus, and after seeing his army on board sailed back to Italy. A few days later Anicius, who had been meeting the representatives of the rest of the Epirots, ordered those of their leaders whose case he had reserved for the senate to follow him to Italy. He then waited for the ships which had been used to transport the army from Macedonia, and on their arrival he too returned to Italy.

During these occurrences in Macedonia and Epirus the mission which had been sent in company with Attalus to put a stop to the war between the Gauls and Eumenes landed in Asia. A truce had

been arranged for the winter; the Gauls had gone home and the king had retired into winter quarters at Pergamum, where he had been seriously ill. The beginning of spring had drawn the Gauls from their homes and they had gone as far as Synnada, while Eumenes had assembled at Sardis an army drawn from every quarter of his kingdom. When the Romans who were there had ascertained that the Gauls were at Synnada they decided to proceed thither and interview Solovetius, the Gaulish leader; Attalus accompanied them, but they decided that he should not enter the Gaulish camp lest there should be an angry debate. P. Licinius had a conversation with their leader, and brought back word that all attempts to persuade him only made him more defiant; he expressed his astonishment that whilst the representations of the Roman commissioners succeeded in allaying the strife between such powerful monarchs as Antiochus and Ptolemy, they had no weight whatever with the Gauls.

[45.35]The captive monarchs Perseus and Gentius, with their children, were the first to be brought to Rome as prisoners; a host of prisoners followed them. These were succeeded by the Macedonians and the leading men of Greece who had received orders to go to Rome. In the case of these latter the summons embraced not only those at home, but also any who were reported to be with Antiochus or Ptolemy. A few days later Paulus himself sailed up the Tiber to the City in the king's ship, a vessel of enormous size propelled by sixteen banks of oars and adorned with the spoils of Macedonia in the shape of glittering armour and embroidered fabrics which belonged to the king. The river banks were crowded with multitudes who had streamed out to greet his arrival. Anicius and Octavius, with their fleet, arrived shortly afterwards. A triumph for all three was decreed by the senate, and the praetor Q. Cassius was instructed to arrange with the tribunes of the plebs that they should propose a resolution to the Assembly that on the day when they entered the City in triumph they should retain their full military powers. Men of mediocre ability escape envy, it generally aims its shafts at the highest. No hesitation was felt about allowing Anicius and Octavius a triumph; Paulus, with whom they would have blushed to compare themselves, was the mark for calumny. He had maintained the ancient discipline amongst his men; he had given the soldiers much less booty than they had hoped considering Perseus' immense wealth; had he satisfied their demands they would have left nothing for the

treasury. The whole of the army in Macedonia were incensed against their commander, and intended to give very little support to the resolution. Servius Sulpicius Galba, who had served in Macedonia as military tribune in the second legion and who had a private grievance against his commander, had gone about personally amongst the men and through the soldiers of his own legion had solicited and spurred on the rest to come in force and vote against the resolution, they would then have their revenge upon their despotic and niggardly general. "The City plebs would follow the lead of the soldiers. He forsooth had not the power to give the soldiers money! The soldiers, however, had the power to confer honour. He must not hope to reap the fruit of a gratitude which he had not earned."

[45.36]In this angry mood they assembled in the Capitol. When Tiberius Sempronius put the resolution and the citizens were at liberty to speak, not a single person came forward to support it, as though it was taken for granted that it would be carried. Suddenly Servius Galba came forward and said that it was now four o'clock in the afternoon and there was not sufficient time for him to give his reasons why they should refuse the order for P. Aemilius to enjoy a triumph; he requested the tribunes of the plebs to adjourn the Assembly to the following day and commence the discussion in the morning, as he would need an entire day to state his case. The tribunes told him to say what he wanted to say there and then. His speech lasted till nightfall. He reminded his audience how all military tasks had been ruthlessly imposed, how there had been more labour, more danger incurred than circumstances required; but on the other hand, when it came to rewards and distinctions everything was cut down; if such generals were to have their way warfare would become more rough and repulsive to those engaged in it, and even when victory came it would bring neither profit nor honour. The Macedonians were better off than the Roman soldiers were. If they came in force the next day to vote against the resolution the men in power would understand that the general has not everything in his own hands, the soldiers too have something in their hands. Excited by this language, the soldiers crowded into the Capitol in such numbers that there was no room for any one else to give his vote. When the tribes who were first called upon were beginning to vote against the proposal, the chiefs of the City hurried to the Capitol and exclaimed loudly against such an unworthy proceeding. Lucius

Paulus, they said, the victor in so great a war, was being robbed of his triumph, the commanders were being placed at the mercy of a licentious and grasping soldiery. Political corruption had already been the cause of too many crimes; what would happen if the soldiers were made the lords and masters of their commanders? Each did his utmost to shower reproaches on Galba. The tumult was at last allayed, and M. Servilius who had been consul and Master of the Horse begged the tribunes to commence the proceedings afresh and give him an opportunity of addressing the people. The tribunes retired to deliberate, and out of deference to the authority of the leaders of the State, prepared to go through the business from the beginning, and announced their intention of calling upon the tribes who had already voted to vote again after M. Servilius and any other citizens had stated their views.

[45.37]Then Servilius began: "How great a commander L. Aemilius has shown himself may be estimated, if by nothing else, at all events by this simple fact, that though he had in his camp such mutinous and fickle soldiers, and a man so notorious for his impulsiveness and power of rousing a multitude bent on mischief by his eloquence, yet he never had a mutiny in his camp. The same stern exercise of authority, which they now detest, kept them as a united body. Held fast by the ancient discipline, they neither uttered a seditious word nor acted in a seditious way. As to Servilius Galba, if he wished to make his first essay, and give us a specimen of his eloquence by accusing L. Paulus, he ought not to have stood in the way of his triumph, if for no other reason at least for this, that the senate had judged it just and right. He ought to have waited till the morrow of his triumph, when he would see him as a private citizen and would be able to indict him before a magistrate, or at a later time, as soon as he himself had taken up the duties of a magistrate, he could impeach his enemy and prosecute him before the Assembly. In that way Lucius Paulus would have been rewarded by a triumph for having done his duty in conducting a war so gloriously, and would have been punished for anything he had done unworthy of his former reputation and his newly-acquired glory. But see! He could not say anything against his conduct as a citizen or his character as a man, so he tried to besmirch his reputation. Yesterday afternoon he asked for a whole day in which to bring his accusations against L. Paulus; he took up what was left of the day - four hours - with his speech. What

man has ever been placed upon his trial, so steeped in guilt that the crimes of his life could not be recounted in that number of hours? What, however, did he bring up which L. Paulus, were he on his trial, would wish to deny?

"Let some one picture to himself for a moment two assemblies, the one made up of the soldiers who served in Macedonia, the other free from prejudice, with a judgment unwarped by either partiality or aversion - the whole of the people of Rome sitting as judges. Suppose the defendant were first brought before the assembly of civilians clad in their peaceful togas. What would you say, Servilius Galba, before the Quirites of Rome? You said yesterday: 'Your outpost duty was too arduous, too much of a strain; the inspection of the night watches was too inconsiderate and incessant; you did heavier fatigue duty than formerly, when the commander himself went round and inspected. You had a march, and then went straight into battle on the same day, and even after you had won the victory, you were not allowed any rest; you were instantly sent in pursuit of the enemy. It was within his power to make you rich by distributing the plunder; he is going to carry the royal wealth in his triumphal procession and then put it into the treasury.' This sort of talk has a certain sting in it to goad on men who think that sufficient deference has not been shown to their licence and avarice. But it would have no influence with the people of Rome. They might not remember the old-time stories, and those which they have heard from their fathers, the defeats incurred by commanders who wished to be popular, and the victories won by stern and strict discipline; but they have not at all events forgotten the last Punic war, the difference between M. Minucius, the Master of the Horse, and Q. Fabius Maximus, the Dictator. So it is quite clear that the accuser would not have had a word to say, and any defence by Paulus would have been superfluous. "Now let us pass to the other assembly. I think I shall call you 'soldiers,' and not 'Quirites,' if that title can at least call up a blush and evoke in you a feeling of shame for the way you have insulted your commander.

[45.38]"While I fancy myself addressing the army, I am in a very different state of mind from what I was in a few moments ago, when my words were addressed to the citizens. What do you say, soldiers? Is there a single man in Rome besides Perseus who would object to a triumph over the Macedonians, and you do not tear him in pieces with the same arms with which you conquered the Macedonians? The

man who prevents you from entering the City in triumph would have prevented you, had it been in his power, from winning the war. You are mistaken, soldiers, if you think that a triumph is an honour to the general alone, and not to the soldiers also, and to the whole people of Rome. It is not the glory of Paulus alone that is at stake here - many who failed to obtain the senate's sanction have triumphed on the Alban Mount; no one can snatch from Paulus the glory of bringing the Macedonian war to a close any more than he could deprive C. Lutatius of his glory in the first Punic war, or P. Cornelius of his glory in the second. A triumph will not diminish or enhance L. Paulus' greatness as a commander - it is the fair fame of the soldiers and the people of Rome that is in question. Take care that this action be not looked upon as an instance of jealousy and ingratitude towards all our noblest citizens, copying the example of the Athenians, who persecuted their foremost men because they were jealous of their greatness. Enough wrong was done by your ancestors in the case of Camillus, whom they treated with injustice - it was, however, before he rescued the City from the Gauls - enough, too, by yourselves in the case of P. Africanus. We must blush with shame when we remember that the domicile and home of the man who subjugated Africa was at Liternum; that it is at Liternum we are shown his tomb. If the glory of L. Paulus is on a par with theirs, do not let the injustice you are showing to him equal what was shown to them. Let us begin then by effacing this infamy so ugly in the eyes of other nations, so disastrous to our own people; for who would wish to resemble either Africanus or Paulus in a community which was ungrateful and hostile to its good citizens? If there were no question of disgrace, if it were only one of glory, what triumph, pray, does not bring with it a glory in which every Roman has a share? All those triumphs over the Gauls, all those over the Spaniards; all those over the Carthaginians, are they spoken of as the triumphs of the commanders only, and not rather of the people of Rome as a whole? As it was not over Pyrrhus or Hannibal personally but over the Epirots and the Carthaginians, so it was not Manlius Curius or P. Cornelius alone who celebrated them but the Romans. Especially is this true of the soldiers. With their laurel wreaths, each wearing his decorations, they shout their 'Io Triumphe' and make their progress through the City, hymning their commander's praises. If at any time the soldiers have not been brought back from the province for their triumph they murmur, yet even then they consider that they are taking their part in it because it

was by their hands that the victory was won. If any one were to ask you soldiers for what object you were brought back to Italy and not disbanded as soon as the province was brought into order; why you have come to Rome in your thousands and under your standards; why you remain here and do not disperse each of you to your homes; what answer would you give except that you want to appear in the triumph? You, at all events, ought to wish to be seen as victors.

[45.39]"Triumphs have been celebrated over Philip, this man's father, and over Antiochus; both were on the throne at the time. Shall there be no triumph over Perseus carried off as a prisoner and brought here with his children? Now, if while Anicius and Octavius were ascending the Capitol in their chariot, clad in gold and purple, L. Paulus standing as an ordinary citizen in the crowd were to ask them: 'Whom do you, L. Anicius and Cn. Octavius, think more deserving of a triumph, me or yourselves?' I think they would for very shame descend from their chariot and hand over their insignia of triumph to him. Would you rather, Quirites, see Gentius led in triumph than Perseus? Would you rather see a triumph over an episode of the war than over the war itself? The legions from Illyria will enter the City in triumph wearing their laurel wreaths; so will the seamen of the fleet. Are the legions from Macedonia going to watch the triumph of others after their own has been denied? What will become of the royal booty, the spoils of such a rich victory? Where will the many thousands of arms and armour stripped from the bodies of the slain be stored? Are they to be sent back to Macedonia? Where are the statues of gold and marble and ivory to go, the paintings, the embroidery, the mass of gold and silver plate, the immense sum of money that belonged to the king? Will they be carried away to the treasury by night as though they were the proceeds of a robbery? Yes, and the greatest spectacle of all, a monarch once most famous and most wealthy, now a prisoner, where is he to be shown to the victorious people? Most of us remember the crowds that gathered to see the captive king Syphax, who played a subordinate part in the Punic war; Perseus, a captive monarch, and his sons Philip and Alexander - names borne by mighty monarchs - are they to be kept out of the sight of the citizens? All men's eyes are yearning to watch L. Paulus, consul now for the second time, the conqueror of Greece, entering the city in his chariot. It was for this that we made him consul that he might bring to an end a war which to our infinite

shame had been dragging on for four years. Are we going to deny a triumph to the man to whom, when the ballot had allotted him the province, we destined with prescient minds victory and a triumph, as we watched him leave the City? Are we going to defraud not him alone but the gods as well? Your ancestors invoked them when they started upon any great enterprise, and they invoked them also when they had carried it through. When a consul or a praetor goes to his province with his lictors, wearing the paludamentum, he recites prayers in the Capitol; when the war is over and he returns as victor in triumph to the Capitol, he carries up the gifts which are their due to the same deities to whom he offered the prayers. Not the least important part of the procession is the victims which precede the chariot, so that all may see that the commander is coming back to offer thanks to the gods for the successes they have vouchsafed to the commonwealth. All those victims which he has destined for his triumphal procession you had better go and sacrifice for yourselves, each where and when he chooses. Are those solemn banquets to which the senators sit down, not in any private house nor in any unconsecrated public building, but in the Capitol itself - are they, I ask, intended to gratify men or to honour the gods, and are you going to interfere with them at the bidding of Servius Galba? Will the City gates be closed against L. Paulus' triumph? Is Perseus, the king of the Macedonians, with his children and all the other prisoners, the spoils of Macedonia, to be left in the Circus Flaminius? Is L. Paulus to go to his house like an ordinary citizen returning home from the country, whilst you, centurion and legionary, march wearing the decorations which Paulus has bestowed upon you?

"Listen to the decree of the senate, rather than to the romancing of Servius Galba. Listen to this that I am saying, rather than to him. He has learnt nothing but speech-making, and that only to insult and calumniate. I have fought three-and-twenty times in answer to challenges; from all whom I encountered I carried off the spoils. My body is covered with honourable scars, every one received in front." It is said that he then stripped himself and explained in what war each had been received. While making this display he uncovered what ought to be concealed, and a swelling in the groin evoked laughter amongst those nearest to him. He then continued: "This which you are laughing at I got from sitting on horseback night and day, and I am no more ashamed of this than of my other scars; it has never

hindered me from serving the commonwealth faithfully, either at home or on the field of battle. As an old soldier I have often shown this body of mine, hacked with the sword, to the young ones. Let Galba strip and show his smooth skin with not a scar upon it. "Tribunes, call back, if you please, the tribes to vote"

[45.40]Valerius Antias states that all the gold and silver coinage carried in the procession amounted to 120,000,000 sesterces, but from his own account of the number of wagons and the weight carried in each, the amount must undoubtedly have exceeded this. It is also asserted that a second sum equal to this had been either expended in the war or dispersed by the king during his flight to Samothrace, and this was all the more surprising, since all that money had been accumulated during the thirty years from the close of the war with Philip either as profits from the mines or from other sources of revenue, so that while Philip was very short of money, Perseus was able to commence his war with Rome with an overflowing exchequer. Last of all came Paulus himself, majestic alike in the dignity of his personal presence and the added dignity of years. Following his chariot were many distinguished men, amongst them his two sons, Quintus Maximus and Publius Nasica. Then came the cavalry, troop after troop, and the legionaries, cohort after cohort. The legionaries were given 100 denarii each, the centurions twice as much, and the cavalry three times that amount. It is believed that he would have doubled these grants had they not tried to deprive him of the honour, or even if they had been grateful for the actual amount which he did give them.

Perseus, however, was not the only instance during those days of triumph of sudden changes in the fortunes of men. He, it is true, was led in chains through the city of his foes in front of his conqueror's chariot, but Paulus, resplendent in gold and purple, was suffering too. Of the two sons whom he kept with him as the heirs to his name and his house and to the sacred rites of his yens - he had parted with two who had been adopted - the younger one, a boy of about twelve, died five days before his triumph, and the elder, a boy of fourteen, died three days after it. They ought to have been riding with their father, wearing the praetexta and anticipating triumphs similar to his. A few days later M. Antonius, a tribune of the plebs, summoned a meeting of the Assembly that Aemilius might address it. Following the

practice of other commanders, he gave an account of what he had done. It was a memorable speech worthy of a Roman leader.

[45.41]"Although, Quirites, I do not suppose that you are unaware of the good fortune and success which have marked my administration, nor of the two thunderbolts which have within these last few days fallen upon my house, seeing that you were at one time spectators of my triumph, and at another were watching the obsequies of my children, still I ask you to allow me to make a comparison in a befitting spirit between the prosperity of the republic and my own private fortunes. "On my departure from Italy I ordered the fleet to leave Brundisium at sunrise. In nine days I brought up at Corcyra with all my ships. Five days later I offered sacrifice to Apollo at Delphi on behalf of myself and of your fleets and armies. Four days brought me from Delphi to the camp, where after taking over the army I made changes in certain matters that were seriously interfering with the chances of victory. As the enemy camp was unassailable, and the king could not be forced into an engagement, I advanced and cleared the pass in spite of the force posted to defend it, and advanced to Petra. Here I forced the king to give battle and defeated him. Macedonia submitted, and in a fortnight I finished a war which for four years the consuls before me had conducted in such a way that each handed on to his successor a more serious task than he had received. The fruits of that victory showed themselves in further successes; the cities of Macedonia made their surrender; the royal treasure fell into our hands; the king himself was captured with his children in a temple at Samothrace, almost as though the gods had delivered him into our power. Even I began to regard my good fortune as something too great, and therefore distrusted it. I began to fear the perils of the sea, whilst carrying the royal treasury into Italy and transporting my victorious army.

"We had a favourable voyage, and after all had reached Italy safely, and there was nothing more for me to pray for, my one ardent desire was that in the usual turn of Fortune's wheel the change might affect my house rather than the commonwealth. I hope, therefore, that its continued prosperity has been secured by the signal calamity which has overtaken me. As though in mockery of mortal grief, my triumph intervened between the death of my two sons. Both Perseus and myself may now be regarded as noteworthy examples of the lot which awaits men. He, himself a captive, has seen his children led as captives

before him, but still, he has them safe and sound; I, who have triumphed over him, went from the funeral of one of my sons in my chariot to the Capitol, and returned to find the other at the point of death. Out of all my sons, not one remains to bear the name of Lucius Aemilius Paulus. As though I had a large family, two have been adopted by the Cornelian and Fabian houses; there is not a Paulus left except myself. But your happiness and the good fortune of the republic are my consolation in this ruin of my house." The self-restraint which this speech evinced made a far greater impression upon his audience than if he had indulged in tearful laments over his bereavement.

[45.42]On December 1, Cn. Octavius celebrated his naval victory over Perseus. That triumph was without prisoners and without spoil. He gave each member of the crews seventy-five denarii; to the pilots twice as much; and to the captains four times as much. A meeting of the senate was then convened, and the senators decided that Q. Cassius should conduct Perseus and his son Alexander to Alba to remain there under guard. The king was allowed to retain his suite, his money, his silver plate and his household effects. Bithys the son of Cotys, king of the Thracians was sent, together with the hostages, to Carseoli, to be interned there. The rest of the captives who had been led in the triumphal procession were to be shut up in prison. A few days later a deputation from Cotys arrived with a sum of money for the ransom of his son and the other hostages. They were admitted to an audience of the senate, and they especially urged that it was not of his own will that Cotys had assisted Perseus; he had been compelled to give hostages, and they implored the senate to allow them to be ransomed at such a figure as the senate should fix. The senate instructed the praetor to tell them in reply that the senate bore in mind the friendly relations which had existed between Rome and Cotys and the ancestors of Cotys and the Thracian nation. The giving of hostages was itself the offence, and could not be alleged as an excuse, for the Thracians had nothing to fear from Perseus, even had he kept the peace, much less when he was engaged in a war with Rome. However, though Cotys had preferred the favour of Perseus to the friendship of Rome, they would mete out their treatment of him by what was consistent with their own dignity more than by his deserts; they would send back his son and the hostages. The beneficent acts of the people of Rome were gratuitous; they preferred

to leave the value of them in the hearts of those who received them rather than to exact a cash payment for them. Three commissioners were appointed - T. Quinctius Flamininus, C. Licinius Nerva and M. Caninius Rebilus - to conduct the hostages back to Thrace, and each of the Thracian envoys received a present of 2000 ases. Bithys was taken with the rest of the hostages from Carseoli and sent to his father. The king's ships, which were larger than had ever been seen before, were hauled up on to the Campus Martius.

[45.43]Whilst the Macedonian triumph was still fresh in men's minds and almost before their eyes, L. Anicius triumphed on the day of the Quirinalia (Feb. 17) over Gentius and the Illyrians. The spectacle as a whole showed rather a general resemblance to the triumph of Paulus than a correspondence in details. The general himself was a smaller man, and people contrasted the position of the house of Anicius and his authority as praetor with the high lineage of Aemilius and his rank as consul, and there could be no comparison between Gentius and Perseus, or between the Illyrians and the Macedonians, or between the spoils and wealth carried in the two processions, or the amount of the donative to the soldiers in the two armies. But though the recent triumph eclipsed this one, it was clear to the onlookers that in itself it was by no means contemptible. The Illyrians were a nation formidable both by land and sea, who felt secure in their strong fortified positions, and Anicius had thoroughly subjugated them in a few days and captured their king and all his family. Many captured standards were carried in the procession, together with other spoils, and the furniture of the palace, 27 pounds of gold, and 19 of silver, besides 13,000 denarii and 120,000 silver pieces of Illyrian coinage. Before his chariot walked Gentius, with his wife and children, Caravantius his brother, and several Illyrian nobles. Out of the booty each legionary received 45 denarii, the centurions twice, and the cavalry three times as much. Anicius gave to the Latin allies as much as to the Romans, and to the seamen of the fleet as much as the soldiers received. The soldiers marched more joyously in this triumph, and the general himself was the subject of many laudatory songs. According to Antias, 200,000 sesterces were realised from the sale of that booty, besides the gold and silver deposited in the treasury, but as it is not clear to me how this sum was realised, I quote his authority instead of stating it as a fact. By resolution of the senate, Gentius, with his wife and children and brother, were interned

in Spolegium; the rest of the captives were thrown into prison in Rome. As the Spolethians refused to be responsible for their safe-keeping, the royal family were transferred to Iguvium. The remainder of the Illyrian spoils consisted of 220 swift barques. These Q. Cassius was ordered by the senate to distribute amongst the Corcyraeans, the Apolloniates and the Dyrrhachians.

[45.44]The consuls for the year had done nothing worth recording in Liguria; the enemy never took the field, so they confined themselves to devastating the country. They returned to Rome for the elections, and on the first day M. Claudius Marcellus and C. Sulpicius Galba were elected consuls. On the following day the election of praetors took place. Those elected were L. Julius, L. Apuleius Saturninus, A. Licinius Nerva, P. Rutilius Calvus, P. Quinctilius Varus and M. Fonteius. The provinces assigned to them were the two home jurisdictions, the two Spanish provinces, Sicily and Sardinia. This year was an intercalary one, the additional day being the one following the Terminalia (Feb. 23). One of the augurs, C. Claudius, died this year; the augurs chose T. Quinctius Flamininus in his place; Q. Fabius Pictor, a Flamen Quirinalis, also died. During the year Prusias went to Rome with his son Nicomedes. He entered the City amid a large concourse, and proceeded through the streets to the tribunal of Q. Cassius the praetor, surrounded by a crowd of citizens. Addressing the praetor, he said that he had come to pay reverence to the gods of the City, to salute the senate and citizens of Rome, and to congratulate them on their victory over Perseus and Gentius, and the extension of their sway by the subjugation of the Macedonians and Illyrians. On the praetor informing him that the senate would grant him an audience on that day, if he wished it, he requested to be allowed two days in which to visit the temples of the gods and see the City and pay visits to his hosts and friends. L. Cornelius Scipio, the quaestor who had been sent to meet him at Capua, was appointed to take him round, and a house in which he and his suite could find ample accommodation was hired for him. Three days afterwards he attended a meeting of the senate. After congratulating them upon the victory, he enumerated his own services in the war, and asked permission to sacrifice ten full-grown victims in the Capitol in fulfilment of a vow, and one to Fortune at Praeneste; these vows had been made for the victory of Rome. He also requested that the alliance with him might be renewed, and that the district taken from

Antiochus, which, as the Romans had not assigned it to any one, the Gauls had taken possession of, might be given to him. Lastly, he commended his son to the care and protection of the senate.

All who had commanded in Macedonia supported his requests, and, with one exception, they were all granted. With regard to the land, however, he was told that a commission would be sent to investigate the question of ownership. If the territory belonged to Rome, and had not been granted to any one, they should consider that no one was more deserving of the grant than Prusias. If, however, it should turn out not to have belonged to Antiochus and had, therefore, never been claimed by Rome, or should it prove to have been actually granted to the Gauls, Prusias must pardon them if the people of Rome were unwilling that anything should be granted to him to the injury of another. To no one can a gift be grateful when he knows that the giver can take it away whenever he pleases. The senate accepted the commendation of his son Nicomedes; the care with which the people of Rome protect the sons of friendly monarchs was shown in the case of Ptolemy, King of Egypt. With this reply Prusias was dismissed. Presents of . . . sesterces were ordered to be made to him and 50 pounds of silver plate. The senate also decided that presents should be made to Nicomedes of the same value as those made to Masinissa's son Masgaba, and that the victims for sacrifice and the other requisites, whether he wished to offer them at Rome or at Praeneste, should be supplied to the king at the public cost, as in the case of the magistrates. From the fleet at Brundisium twenty warships were assigned to him for his use. Till the king had reached the fleet thus presented to him, L Cornelius Scipio was to be his constant attendant, and was to defray all expenses incurred by him and his suite. They say that the king was wonderfully delighted with the kindness the people of Rome had shown towards him. He refused to have any presents purchased for himself, but he ordered his son to accept what the Roman people gave him. This is what our historians say about Prusias. Polybius alleges that the king was unworthy of his regal title; he was in the habit of meeting the ambassadors who were sent to him with his head shaved, and wearing a freedman's cap, speaking of himself as the manumitted slave of Rome, and wearing the distinctive dress of this class on that account. At Rome, too, when he entered the senate-house, he prostrated himself and kissed the threshold and called the senators his

protecting deities, with other expressions more degrading to himself than complimentary to those who heard him. After a stay of not more than thirty days in the City and the neighbourhood he left for his kingdom. A war in Asia was begun (between Eumenes and the Gauls)

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